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119TH CONGRESS
2D SESSION

H. R. 8800

AN ACT

To authorize appropriations for fiscal year 2027 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''National Defense Authorization Act for Fiscal Year 2027''.

SEC. 2. ORGANIZATION OF ACT INTO DIVISIONS; TABLE OF CONTENTS.

(a) DIVISIONS.—This Act is organized into four divisions as follows:

(1) Division A—Department of Defense Authorizations.

(2) Division B—Military Construction Authorizations.

(3) Division C—Department of Energy National Security Authorizations and Other Authorizations.

(4) Division D—Funding Tables.

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(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

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Sec. 3687. Fuel funding for training ships operated by State maritime academies.
Sec. 3688. State Maritime Academy Sea Term Scholarship Programs.
Sec. 3689. Naval joint exercise involvement for training ships operated by State maritime academies.

CHAPTER 4—MARITIME CREDENTIALING MODERNIZATION

Sec. 3690. Merchant mariner credentialing modernization.
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DIVISION D—FUNDING TABLES

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TITLE XLI—PROCUREMENT

Sec. 4101. Procurement.

TITLE XLII—RESEARCH, DEVELOPMENT, TEST, AND EVALUATION

Sec. 4201. Research, development, test, and evaluation.

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Sec. 4401. Military personnel.

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Sec. 4501. Other authorizations.

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Sec. 4601. Military construction.

TITLE XLVII—DEPARTMENT OF ENERGY NATIONAL SECURITY PROGRAMS

Sec. 4701. Department of Energy national security programs.

DIVISION E—SAVE AMERICA ACT

Sec. 4801. Short title.
Sec. 4802. Ensuring only citizens are registered to vote in elections for Federal office.
Sec. 4803. Requiring voters to provide photo identification.

SEC. 3. CONGRESSIONAL DEFENSE COMMITTEES.

In this Act, the term ''congressional defense committees'' has the meaning given that term in section 101(a)(16) of title 10, United States Code.

DIVISION A—DEPARTMENT OF DEFENSE AUTHORIZATIONS

TITLE I—PROCUREMENT

Subtitle A—Authorization of Appropriations

SEC. 101. AUTHORIZATION OF APPROPRIATIONS.

Funds are hereby authorized to be appropriated for fiscal year 2027 for procurement for the Army, the Navy and the Marine Corps, the Air Force and the Space Force, and Defense-wide activities, as specified in the funding table in section 4101.

Subtitle B—Army Programs

SEC. 111. STANDARDS FOR NETWORKED, AUTONOMOUS, KINETIC CAPABILITIES TO PROTECT AGAINST SMALL UNMANNED AIRCRAFT SYSTEMS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall establish standards to guide the development, procurement, and fielding of covered capabilities to protect ground combat, support, and mobility platforms against small unmanned aircraft systems.

(b) REQUIREMENTS.—The standards established under subsection (a) shall provide for the development, procurement, and fielding of covered capabilities that—

(1) are interoperable across brigade combat team elements, including interoperability of capabilities for the detection, tracking, and kinetic interception of small unmanned aircraft systems;

(2) ensure seamless networking between a wide variety of sensors and ground platforms; and

(3) meet such other requirements as the Secretary of the Army determines appropriate.

(c) REPORT TO CONGRESS.—Not later than 90 days after the date on which the Secretary of the Army establishes the standards under subsection (a), the Secretary shall submit to the Committees on Armed Services of the

Senate and the House of Representatives a report that includes—

(1) an explanation of the standards; and

(2) identification of any hardware or software components that—

(A) potentially meet such standards; and

(B) would be appropriate for incorporation into covered capabilities.

(d) COVERED CAPABILITIES DEFINED.—In this section, the term ''covered capabilities'' means platforms and other capabilities that—

(1) are networked and autonomous;

(2) are capable of the detection, tracking, and kinetic interception of small unmanned aircraft systems; and

(3) incorporate—

(A) passive and active sensors for the persistent detection and tracking of threats posed by unmanned aircraft systems;

(B) autonomous kinetic effects capable of neutralizing threats with minimal operator intervention; and

(C) mesh networking to allow for sensor-to-shooter handoffs between multiple ground platforms.

SEC. 112. REPORT ON PRODUCTION OF 155MM ARTILLERY AMMUNITION.

Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report that includes—

(1) an explanation of the status of efforts to produce 155mm artillery ammunition for the Department of Defense; and

(2) recommendations, if any, for accelerating the production of such ammunition to support the Army's minimum production goal of 100,000 rounds per month for each type of 155mm artillery round.

SEC. 113. SENSE OF CONGRESS ON DOMESTIC PRODUCTION OF ARTILLERY PROJECTILES.

It is the sense of Congress that—

(1) maintaining robust domestic production of M795 155mm artillery projectiles is critical to ensuring the operational effectiveness of the Army; and

(2) the Secretary of Defense should take such steps as may be necessary to ensure that the United States has sufficient stockpiles of such projectiles to protect the interests of the United States and its allies and partners throughout the world.

SEC. 114. REPORT ON FIELDING OF LINK 16 TACTICAL DATA LINK NETWORKING CAPABILITIES ON UH–60M AND CH–47F AIRCRAFT.

Not later than December 1, 2026, the Secretary of the Army shall submit to the congressional defense committees a report on the efforts of the Army to field Link 16 tactical data link networking capabilities on UH–60M and CH–47F aircraft. The report shall include—

(1) a description of how Link 16 tactical data link networking capabilities on the AH–64E, UH–60M, and CH–47F aircraft contribute to the Next Generation Command and Control efforts of the Army; and

(2) such other information as the Secretary determines appropriate.

SEC. 115. MINIMUM INVENTORY REQUIREMENT FOR STRYKER A1 COMBAT VEHICLES.

(a) MINIMUM INVENTORY REQUIREMENT.—During the period beginning on the date of the enactment of this Act and ending on December 31, 2030, the Secretary of the Army shall ensure that the Army maintains a minimum inventory of not fewer than 1,524 deployable Stryker DVH A1 combat vehicles in its Stryker Brigade Combat Teams.

(b) EXCEPTION.—The requirement under subsection (a) shall not apply to individual Stryker DVH A1 combat

vehicles that the Secretary of the Army determines, on a case-by-case basis, to be no longer mission capable and uneconomical to repair because of accidents, mishaps, or excessive material degradation.

SEC. 116. MULTIYEAR PROCUREMENT AUTHORITY FOR ARMORED MULTI-PURPOSE VEHICLES.

(a) AUTHORITY FOR MULTIYEAR PROCUREMENT.—Subject to section 3501 of title 10, United States Code, the Secretary of the Army may enter into one or more multiyear contracts, beginning with the fiscal year 2027 program year, for the procurement of armored multipurpose vehicles.

(b) CONDITION FOR OUT-YEAR CONTRACT PAYMENTS.—A contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year after fiscal year 2027 is subject to the availability of appropriations or funds for that purpose for such later fiscal year.

(c) AUTHORITY FOR ADVANCE PROCUREMENT.—The Secretary of the Army may enter into one or more contracts, beginning in fiscal year 2028, for advance procurement associated with the vehicles for which authorization to enter into a multiyear procurement contract is provided under subsection (a), which may include procurement of

economic order quantities of material and equipment for such vehicles when cost savings are achievable.

Subtitle C—Navy Programs

SEC. 121. TEMPORARY UNAVAILABILITY OF AMPHIBIOUS WARFARE SHIPS.

Section 8062(b) of title 10, United States Code, is amended—

(1) by inserting ''(1)'' before ''The naval''; and

(2) by adding at the end the following new paragraph:

''(2) In this subsection, the term 'temporarily unavailable', when used with respect to an amphibious warfare ship, means that the ship has not surpassed its planned availability by a margin of—

''(A) greater than 100 percent of the nominal duration of that availability in 2026 or 2027;

''(B) greater than 75 percent of the nominal duration of that availability in 2028 or 2029;

''(C) greater than 50 percent of the nominal duration of that availability in 2030 or 2031; and

''(D) greater than 25 percent of the nominal duration of that availability in 2032 or any year thereafter.''.

SEC. 122. AUTHORITY TO USE INCREMENTAL FUNDING FOR LONG LEAD-TIME COMPONENTS FOR VIRGINIA CLASS SUBMARINES.

Section 126 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 755) is amended—

(1) by redesignating subsections (b) through (d) as subsections (c) through (e), respectively; and

(2) by inserting after subsection (a) the following:

''(b) AUTHORITY TO USE INCREMENTAL FUNDING.—In exercising the authority under subsection (a), the Secretary of the Navy may enter into incrementally funded contracts for the procurement of covered components that are long lead-time items.''.

SEC. 123. MULTIYEAR PROCUREMENT AUTHORITY FOR ARLEIGH BURKE CLASS DESTROYERS.

(a) AUTHORITY FOR MULTIYEAR PROCUREMENT.—Subject to section 3501 of title 10, United States Code, the Secretary of the Navy may enter into one or more multiyear contracts for the procurement of up to 15 Arleigh Burke class Flight III guided missile destroyers.

(b) AUTHORITY FOR ADVANCE PROCUREMENT.—The Secretary of the Navy may enter into one or more contracts, beginning in fiscal year 2027, for advance procurement associated with the destroyers for which authoriza-

tion to enter into a multiyear procurement contract is provided under subsection (a), and for systems and subsystems associated with such destroyers in economic order quantities when cost savings are achievable.

(c) CONDITION FOR OUT-YEAR CONTRACT PAYMENTS.—A contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year after fiscal year 2027 is subject to the availability of appropriations or funds for that purpose for such later fiscal year.

(d) MANDATORY INCLUSION OF PREPRICED OPTION IN CERTAIN CIRCUMSTANCES.—

(1) IN GENERAL.—In the event the total base quantity of destroyers to be procured through all contracts entered into under subsection (a) is less than 15, the Secretary of the Navy shall ensure that one or more of the contracts includes a prepriced option for the procurement of additional destroyers such that the sum of such base quantity and the number of destroyers that may be procured through the exercise of such options is equal to 15 destroyers.

(2) DEFINITIONS.—In this subsection:

(A) BASE QUANTITY.—The term ''base quantity'' means the quantity of destroyers to

be procured under a contract entered into under subsection (a) excluding any quantity of destroyers that may be procured through the exercise of an option that may be part of such contract.

(B) PREPRICED OPTION.—The term ''prepriced option'' means a contract option for a contract entered into under subsection (a) that, if exercised, would allow the Secretary of the Navy to procure a destroyer at a predetermined price specified in such contract.

(e) LIMITATION.—The Secretary of the Navy may not modify a contract entered into under subsection (a) if the modification would increase the target price of the destroyer by more than 10 percent above the target price specified in the original contract for the destroyer under subsection (a).

SEC. 124. MULTIYEAR PROCUREMENT AUTHORITY FOR JOHN LEWIS CLASS OILERS.

(a) AUTHORITY FOR MULTIYEAR PROCUREMENT.—Subject to section 3501 of title 10, United States Code, the Secretary of the Navy may enter into one or more multiyear contracts for the procurement of John Lewis class Oilers and systems, components, and long-lead time materials associated with such vessels.

(b) AUTHORITY FOR ADVANCE PROCUREMENT.—The Secretary of the Navy may enter into one or more contracts, beginning in fiscal year 2027, for advance procurement associated with the oilers for which authorization to enter into a multiyear procurement contract is provided under subsection (a), including economic order quantity purchases and advance procurement of long-lead time materials, to support the continuous production of such vessels and to achieve cost savings.

(c) CONDITION FOR OUT-YEAR CONTRACT PAYMENTS.—A contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year after fiscal year 2027 is subject to the availability of appropriations or funds for that purpose for such later fiscal year.

(d) TERMINATION LIABILITY.—A contract entered into under subsection (a) shall provide that the total liability to the Federal Government for termination of the contract shall be limited to the total amount of funding obligated for the contract at the time of termination.

SEC. 125. PROCUREMENT AUTHORITIES FOR CERTAIN AMPHIBIOUS SHIPBUILDING PROGRAMS.

(a) CONTRACT AUTHORITY.—

(1) PROCUREMENT AUTHORIZED.—The Secretary of the Navy may enter into one or more contracts for the procurement of covered ships.

(2) PROCUREMENT IN CONJUNCTION WITH EXISTING CONTRACTS.—The ships authorized to be procured under paragraph (1) may be procured as additions to existing contracts covering programs for covered ships.

(b) CERTIFICATION REQUIRED.—A contract may not be entered into under subsection (a) unless the Secretary of the Navy certifies to the congressional defense committees, in writing, not later than 30 days before entry into the contract, each of the following, which shall be prepared by the milestone decision authority for the covered ship program concerned:

(1) The use of such a contract is consistent with the Commandant of the Marine Corps' projected force structure requirements for amphibious ships.

(2) The use of such a contract will result in savings compared to the total anticipated costs of carrying out the program through annual contracts. In certifying cost savings under the preceding sentence, the Secretary shall include a written explanation of—

(A) the estimated end cost and appropriated funds by fiscal year, by hull, without the authority provided in subsection (a);

(B) the estimated end cost and appropriated funds by fiscal year, by hull, with the authority provided in subsection (a);

(C) the estimated cost savings or increase by fiscal year, by hull, with the authority provided in subsection (a); and

(D) the contractual actions that will ensure the estimated cost savings are realized.

(3) The Secretary of the Navy has a reasonable expectation that throughout the contemplated contract period funding will be available for the contract at the level required to avoid contract cancellation.

(4) There is a stable design for the property to be acquired and the technical risks associated with such property are not excessive.

(5) The estimates of both the cost of the contract and the anticipated cost avoidance through the use of a contract authorized under subsection (a) are realistic.

(6) The use of such a contract will promote the national security of the United States.

(7) During the fiscal year in which such contract is to be awarded, sufficient funds will be available to perform the contract in such fiscal year.

(c) AUTHORITY FOR ADVANCE PROCUREMENT.—The Secretary of the Navy may enter into one or more contracts for advance procurement or advance construction associated with a ship or ships for which authorization to enter into a contract is provided under subsection (a), and for systems, sub systems, spare parts, and major shore based spares associated with such ships in economic order quantities when cost savings are achievable.

(d) AUTHORITY TO USE INCREMENTAL FUNDING.—The Secretary of the Navy may incrementally fund a contract entered into under subsection (a) or (c).

(e) CONDITION FOR OUT-YEAR CONTRACT PAYMENTS.—A contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year is subject to the availability of appropriations for that purpose for such fiscal year.

(f) TERMINATION.—The authority of the Secretary of the Navy to enter into contracts under subsection (a) shall terminate on September 30, 2030.

(g) DEFINITIONS.—In this section:

(1) The term ''covered ship'' means a San Antonio-class or America-class ship.

(2) The term ''milestone decision authority'' has the meaning given that term in section 4251(e) of title 10, United States Code.

SEC. 126. CONTRACT AUTHORITY FOR SUBMARINE TENDER PROGRAM.

(a) CONTRACT AUTHORITY.—The Secretary of the Navy may enter into one or more contracts for the procurement of not more than two AS(X) submarine tenders.

(b) USE OF INCREMENTAL FUNDING.—With respect to a contract entered into under subsection (a), the Secretary of the Navy may use incremental funding to make payments under the contract.

(c) LIABILITY.—Any contract entered into under subsection (a) shall provide that—

(1) any obligation of the United States to make a payment under the contract is subject to the availability of appropriations for that purpose; and

(2) the total liability of the Federal Government for termination of the contract shall be limited to the total amount of funding obligated to the contract at the time of termination.

SEC. 127. MULTIYEAR PROCUREMENT AUTHORITY FOR E–2D ADVANCED HAWKEYE AIRCRAFT.

(a) AUTHORITY FOR MULTIYEAR PROCUREMENT.—Subject to section 3501 of title 10, United States Code, the Secretary of the Navy may enter into one or more multiyear contracts, beginning with the fiscal year 2027 program year, for the procurement of twelve E–2D Advanced Hawkeye aircraft.

(b) AUTHORITY FOR ECONOMIC ORDER QUANTITY.—The Secretary of the Navy may enter into one or more contracts, beginning in fiscal year 2027, for advance procurement associated with the aircraft for which authorization to enter into a multiyear procurement contract is provided under subsection (a), which may include procurement of economic order quantities of material and equipment for such aircraft when cost savings are achievable.

(c) LIABILITY.—Any contract entered into under subsection (a) shall provide that—

(1) any obligation of the United States to make a payment under the contract is subject to the availability of appropriations for that purpose; and

(2) the total liability of the Federal Government for termination of the contract shall be limited to the total amount of funding obligated to the contract at the time of termination.

SEC. 128. AUTHORITY TO USE INCREMENTAL FUNDING FOR THE CONSTRUCTION OF A GUIDED MISSILE DESTROYER (DDG).

(a) IN GENERAL.—Amounts authorized to be appropriated by this Act or otherwise made available for the Navy for Shipbuilding and Conversion for fiscal year 2027 may be used by the Secretary of the Navy to enter into an incrementally funded contract for the construction of one Guided Missile Destroyer (DDG).

(b) AVAILABILITY OF FUNDS AND TERMINATION LIABILITY.—A contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract is subject to the availability of appropriations for that purpose, and that total liability to the Government for the termination of the contract shall be limited to the total amount of funding obligated at time of termination.

SEC. 129. AUTHORITY FOR ADVANCE PROCUREMENT OF COMPONENTS FOR SHIP-TO-SHORE CONNECTOR CLASS CRAFT.

(a) AUTHORITY FOR ADVANCE PROCUREMENT.—The Secretary of the Navy may enter into one or more contracts, prior to ship authorization, for the advance procurement of components for Ship-to-Shore Connector class craft, including procurement of such components in economic order quantities when cost savings are achievable.

(b) CONDITION FOR OUT-YEAR CONTRACT PAYMENTS.—A contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year is subject to the availability of appropriations for that purpose for such fiscal year.

SEC. 130. TORPEDO MODERNIZATION, TESTING, AND INVENTORY SUFFICIENCY FOR TWO SIMULTANEOUS REGIONAL CONFLICTS.

(a) STRATEGY AND INVENTORY REQUIREMENT.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Navy shall develop and implement a comprehensive strategy for torpedo modernization, testing, production, and inventory sufficiency.

(2) ELEMENTS.—The strategy required under subsection (a) shall include the following:

(A) An assessment of the minimum required inventory levels of—

(i) MK–48 heavyweight torpedoes;

(ii) lightweight torpedoes, including MK–54 torpedoes;

(iii) advanced torpedo variants;

(iv) exercise, training, and telemetry torpedoes; and

(v) torpedo countermeasure systems, necessary to support not fewer than two simultaneous regional conflicts.

(B) An assessment of wartime torpedo expenditure assumptions for combat operations against peer and near-peer maritime adversaries.

(C) An evaluation of current torpedo production capacity, including limitations associated with—

(i) energetics;

(ii) propulsion systems;

(iii) acoustic seekers;

(iv) guidance electronics;

(v) specialty metals;

(vi) undersea weapon integration facilities; and

(vii) single-source suppliers.

(D) A plan to increase annual torpedo production capacity and reduce production lead times during contingencies.

(E) An assessment of the adequacy of existing torpedo testing infrastructure, including—

(i) undersea warfare test ranges;

(ii) target vessels and unmanned targets;

(iii) telemetry and instrumentation systems;

(iv) contested electromagnetic environment testing capabilities;

(v) digital engineering and modeling environments;

(vi) Arctic and deep-water testing capacity;

(vii) shallow water testing capability; and

(viii) opportunities to cooperate on testing activities with allies and partners of the United States.

(F) A description of efforts to improve torpedo survivability and effectiveness against advanced countermeasures and adversary electronic warfare systems.

(G) An assessment of storage, transportation, reload, and expeditionary rearmament capacity for torpedoes during wartime operations.

(H) A description of any statutory or regulatory barriers limiting expansion of torpedo production, testing, or procurement.

(I) Recommendations for legislative or administrative action necessary to improve torpedo readiness and wartime sufficiency.

(b) INDUSTRIAL BASE EXPANSION PLAN.—Not later 90 days after the date of the enactment of this Act, the Secretary of the Navy shall develop a plan to expand the undersea weapons industrial base to support sustained wartime production requirements. Such plan shall include—

(1) options for second-source suppliers;

(2) expansion of Government-owned, contractor-operated facilities;

(3) use of multiyear procurement authorities pursuant to section 3501 of title 10, United States Code;

(4) opportunities to expand public-private partnerships for undersea weapons manufacturing and sustainment;

(5) measures to improve supply chain resilience for critical components; and

(6) options for surge production during national emergencies or armed conflict.

(c) REPORTS REQUIRED.—Not later than 120 days after the date of the enactment of this Act, the Secretary of the Navy shall submit to the congressional defense committees—

(1) a report on the strategy developed under subsection (a); and

(2) a report on the plan developed under subsection (b).

(d) BRIEFING REQUIRED.—Not later than 120 days after the date of the enactment of this Act, the Secretary of the Navy shall provide to the congressional defense committees a briefing on—

(1) the highest-risk shortfalls in torpedo inventory and testing capacity;

(2) operational testing methodology for torpedos and efforts to test for real world scenarios;

(3) projected wartime torpedo inventory depletion timelines; and

(4) investments required during period covered by the future-years defense program to ensure torpedo sufficiency for two simultaneous regional conflicts.

SEC. 131. LIMITATION ON CONSTRUCTION OF BATTLESHIP PENDING CERTIFICATION ON TECHNOLOGY READINESS LEVELS.

The Secretary of the Navy may not enter into a contract or other agreement that includes a scope of work for the construction of the lead ship of the Battleship program until the date on which the Secretary certifies to the congressional defense committees that the weapon systems planned for inclusion in such lead ship are at a sufficiently mature technology readiness level.

SEC. 132. STRATEGY FOR ITERATIVE DEVELOPMENT AND FLIGHT MODIFICATIONS FOR FF(X) CLASS FRIGATES.

(a) STRATEGY REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Navy shall submit to the congressional defense committees a strategy for the iterative development of the FF(X) class frigate. Such strategy shall include the following:

(1) Information on the estimated timeline for each planned variant (commonly known as a ''Flight'') of the FF(X) class frigate.

(2) Details on the integration of additional capabilities for future Flights of the frigate, such as vertical launch systems or improved sensors, and im-

plications for the space, weight, power, and cost of the hull form.

(3) Any additional mission sets or combat functions that may be added to the concept of operation for FF(X) class frigates.

(b) INTERIM BRIEFING.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Navy shall provide to the congressional defense committees a briefing on the development of the strategy required under subsection (a).

(c) FF(X) CLASS FRIGATE DEFINED.—In this section, the term ''FF(X) class frigate'' means the new class of frigate vessel under development by the Secretary of the Navy (as of the date of the enactment of this Act) based on a design derived from the Legend class Coast Guard cutter.

SEC. 133. REPORT ON CONTINUITY OF MISSION AND READINESS DURING TRANSITION OF F–5 TO F/A–18E/F AIRCRAFT FOR THE NAVY RESERVE.

(a) REPORT REQUIRED.—Not later than March 1, 2027, and annually thereafter for four years, the Secretary of the Navy shall submit to the congressional defense committees a report on the status of efforts to transfer F/A–18E/F aircraft to the Navy Reserve to replace the F–5 aircraft.

(b) ELEMENTS.—Each report under subsection (a) shall include an explanation of—

(1) how the Secretary will mitigate risk to any degradation, gap, or delay in mission execution, fleet readiness, or pilot and maintainer qualification during the period in which aircraft are being transferred and replaced as described in subsection (a);

(2) the Secretary's plans for retaining key Navy Reserve personnel to support operational readiness during such period;

(3) how the Secretary plans, if possible, to ensure that assigned operational and adversary training missions are executed during such period;

(4) how the Secretary plans to maintain pilot and maintenance personnel proficiency, currency, and qualifications during such period; and

(5) the timelines associated with the transfer and replacement of aircraft described in subsection (a), including timelines associated with—

(A) support equipment and initial spares;

(B) pilot and maintenance personnel training;

(C) achievement of initial operational capability and full operational capability; and

(D) execution of all contracts supporting the transfer and replacement of such aircraft.

SEC. 134. MINIMUM INVENTORY OF P–8A POSEIDON AIRCRAFT.

(a) IN GENERAL.—The Secretary of the Navy shall ensure that the total number of P–8A Poseidon aircraft in the inventory of the Navy is not less than 136 aircraft.

(b) AUTHORITY TO INCREASE PLANNED PROCUREMENT.—Beginning on October 1, 2026, the Secretary of the Navy may increase the total planned procurement of P–8A Poseidon aircraft to beyond 136 aircraft.

(c) LIMITATION.—None of the funds authorized to be appropriated by this Act or otherwise made available for the Department of Defense may be obligated or expended to retire, divest, transfer to a nonoperational status, place in storage, prepare for retirement, or otherwise reduce the total active inventory of P–8A Poseidon aircraft below the number specified in subsection (a).

(d) WAIVER.—The Secretary of Defense may waive the limitation under subsection (c) if the Secretary certifies to the congressional defense committees that—

(1) the reduction is required due to the loss of an aircraft through combat, accident, or other unforeseen circumstance; and

(2) the reduction will not materially degrade the ability of the Navy to conduct maritime patrol, anti-submarine warfare, antisurface warfare, intelligence, surveillance, reconnaissance, and fleet support missions.

Subtitle D—Air Force Programs

SEC. 141. INVENTORY REQUIREMENTS FOR CERTAIN FIGHTER AIRCRAFT.

(a) MODIFICATION OF INVENTORY REQUIREMENTS FOR AIR FORCE FIGHTER AIRCRAFT.—

(1) IN GENERAL.—Subsection (i) of section 9062 of title 10, United States Code, is amended to read as follows:

''(i)(1)(A) During the period beginning on October 1, 2026, and ending on October 1, 2035, the Secretary of the Air Force shall maintain a total aircraft inventory of fighter aircraft of not less than 1,800 aircraft.

''(B) The Secretary of the Air Force shall maintain a total aircraft inventory of combat-coded fighter aircraft of—

''(i) not less than 1,369 aircraft by December 31, 2030; and

''(ii) not less than 1,558 aircraft by December 31, 2035.

''(2) In this subsection:

''(A) The term 'fighter aircraft'—

''(i) means an aircraft that—

''(I) is designated by a mission design series prefix of F– or A–;

''(II) is manned by one or two crewmembers; and

''(III) executes single-role or multi-role missions, including air-to-air combat, air-to-ground attack, air interdiction, suppression or destruction of enemy air defenses, close air support, strike control and reconnaissance, combat search and rescue support, or airborne forward air control; and

''(ii) does not include collaborative combat aircraft.

''(B) The term 'primary mission aircraft inventory' means aircraft assigned to meet the primary aircraft authorization to a unit for the performance of its wartime mission.''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall take effect on October 1, 2026.

(b) AUTHORITY TO INCREASE PLANNED PROCUREMENT.—Beginning on October 1, 2026, the Secretary of

the Air Force may increase the total planned procurement of F–15EX aircraft to beyond 267 aircraft.

SEC. 142. EXTENSION OF PROHIBITION ON RETIREMENT OF F–22 AIRCRAFT.

Section 9062(k)(1) of title 10, United States Code, is amended by striking ''September 30, 2027'' and inserting ''September 30, 2032''.

SEC. 143. LIMITATION ON RETIREMENT OF E–3 AIRBORNE WARNING AND CONTROL SYSTEM AIRCRAFT AND REQUIREMENTS RELATING TO E–7 AIRCRAFT.

(a) EXTENSION AND MODIFICATION OF MINIMUM INVENTORY REQUIREMENT.—Section 149 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60) is amended—

(1) by striking ''below 16'' each place it appears and inserting ''below 15''; and

(2) in subsection (a), by striking ''fiscal year 2026'' and inserting ''fiscal year 2026 or 2027''.

(b) REQUIREMENT TO PLAN AND BUDGET FOR E–7 PROGRAM OF RECORD.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force shall submit to the congressional defense committees—

(1) a detailed schedule for procurement, fielding, and achievement of initial and full operating capability for E–7 Wedgetail aircraft; and

(2) a funding profile across the period covered by the Future Years Defense Program sufficient to meet the requirements of paragraph (1).

(c) CAPABILITY ASSURANCE.—The Secretary of Air Force shall certify to the congressional defense committees that—

(1) the plan under subsection (b) will ensure there is no degradation in the airborne early warning, battle management, and command and control capabilities available to support combatant commands; and

(2) any proposed retirement of E–3 aircraft will not result in a gap in operational coverage, mission availability, or responsiveness to the demands of the combatant commands.

SEC. 144. EVALUATION FOR POTENTIAL TRANSFER OF CERTAIN A–10 AIRCRAFT AMONG MILITARY DEPARTMENTS.

Section 137(b) of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 137 Stat. 174) is amended—

(1) by striking ''by this Act or by the National Defense Authorization Act for Fiscal Year 2023 (Public Law 117-263)'' and inserting ''to the Department of Defense for any of fiscal years 2023 through 2030''; and

(2) by inserting ''to another military department or'' after ''evaluated for potential transfer''.

SEC. 145. EXTENSION OF REQUIREMENTS RELATING TO C–130 AIRCRAFT.

(a) EXTENSION OF MINIMUM INVENTORY REQUIREMENT.—Section 146(a)(3)(B) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2455), as most recently amended by section 145(a) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 760), is further amended by striking ''2026'' and inserting ''2028''.

(b) EXTENSION OF PROHIBITION ON REDUCTION OF C–130 AIRCRAFT ASSIGNED TO NATIONAL GUARD.—Section 146(b)(1) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2455), as most recently amended by section 145(b) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 760),

is further amended by striking ''2026'' and inserting ''2028''.

(c) REPORT REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force shall submit to the congressional defense committees a report detailing the following:

(1) The total number and variant types of C–130 aircraft in the inventory of the Air Force.

(2) Any planned retirements, divestments, or reductions to the fleet of such aircraft.

(3) Modernization and recapitalization efforts, including block upgrades and procurement schedules.

(4) Planned basing actions for fielding C–130J aircraft to recapitalize C–130H aircraft.

SEC. 146. LIMITATION ON AVAILABILITY OF FUNDS FOR C–37 AIRCRAFT RECAPITALIZATION PROGRAM.

Of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Air Force for the procurement of C–37 aircraft, not more than 50 percent may be obligated or expended until a period of 30 days has elapsed following the date on which the Secretary of the Air Force submits to the congressional defense committees—

(1) the acquisition strategy for such aircraft; and

(2) a justification for using other than competitive procedures under section 3204 of title 10, United States Code, for the award of a contract for the procurement of such aircraft.

SEC. 147. LIMITATION ON RETIREMENT OF MQ–9 REAPER AIRCRAFT.

(a) LIMITATION ON RETIREMENT OR DIVESTMENT.—None of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of the Air Force may be obligated or expended to retire, divest, place in storage, transfer to nonoperational status, or prepare for retirement any MQ–9 Reaper aircraft.

(b) CERTIFICATION REQUIREMENT FOR FUTURE RETIREMENT OR DIVESTMENT.—Beginning after September 30, 2027, the Secretary of the Air Force may not retire, divest, or transfer to nonoperational status any MQ–9 Reaper aircraft until the Secretary certifies in writing to the congressional defense committees that—

(1) a replacement capability has achieved initial operational capability;

(2) such replacement capability provides comparable or superior—

(A) persistent intelligence, surveillance, and reconnaissance capability;

(B) strike capability;

(C) survivability in a dynamic and high-threat environment;

(D) maritime surveillance capability;

(E) communications relay capability; and

(F) operational availability and sortie generation capacity;

(3) the replacement capability is available in sufficient operational quantities to meet requirements of the combatant commands;

(4) the retirement or divestment will not increase operational risk to ongoing contingency operations, homeland defense missions, maritime domain awareness missions, or crisis response operations;

(5) the Secretary has conducted a force structure assessment evaluating the impact of such retirement on—

(A) globally deployed operations;

(B) distributed operations in the Indo-Pacific region;

(C) operations in the United States Central Command area of responsibility;

(D) support to special operations forces; and

(E) support to allied and partner nation operations; and

(6) the Secretary has submitted the assessments required under subsection (c).

(c) COMBATANT COMMANDER SUFFICIENCY ASSESSMENT.—Not later than 30 days prior to submitting a certification under subsection (b), the Secretary of the Air Force shall submit to the congressional defense committees an assessment from—

(1) each of the commanders of the combatant commands regarding the operational sufficiency of the remaining remotely piloted aircraft force to execute approved operational plans and ongoing missions;

(2) the Commander of United States Special Operations Command regarding the impact of such retirement on support to special operations missions;

(3) the Commander of United States Indo-Pacific Command regarding the impact on distributed maritime surveillance and targeting operations in the Indo-Pacific theater; and

(4) the Commander of United States Central Command regarding the impact on ongoing

counterterrorism, force protection, and crisis response operations.

(d) REPLACEMENT CAPABILITY DEFINED.—In this section, the term ''replacement capability'' means a platform, family of systems, or operational capability intended to replace the operational functions currently performed by the MQ–9 Reaper fleet, including—

(1) intelligence, surveillance, and reconnaissance;

(2) precision strike;

(3) maritime domain awareness;

(4) electronic warfare; and

(5) communications relay.

SEC. 148. ANALYSIS OF ALTERNATIVES FOR NEXT GENERATION AIRLIFT CAPABILITIES.

(a) IN GENERAL.—The Secretary of the Air Force, in coordination with the Commander of the United States Transportation Command, shall conduct an analysis of alternatives for next generation airlift capabilities.

(b) ELEMENTS.—In conducting the analysis of alternatives required under subsection (a), the Secretary of the Air Force shall—

(1) evaluate a range of options for next generation airlift capabilities, including recapitalization of existing platforms, service life extension and mod-

ernization efforts, and development of new airlift platforms;

(2) in evaluating such options, consider operational effectiveness, survivability in contested environments, fuel efficiency, lifecycle costs, connectivity, basing, and interoperability with joint and coalition forces and battle networks; and

(3) assess the feasibility of incorporating unmanned or optionally crewed systems and innovative concepts of operations.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force shall submit to the congressional defense committees a report on the results of the analysis of alternatives conducted under subsection (a). The report shall include—

(1) the findings and conclusions of the analysis;

(2) recommendations, if any, for future investment in next generation airlift capabilities; and

(3) such other information as the Secretary determines appropriate.

SEC. 149. AUTHORIZATION OF TRANSITIONAL ACTIVITIES TO IMPROVE AIRLIFT OPERATIONS.

(a) IN GENERAL.—The Secretary of the Air Force may carry out activities, prior to fielding the next generation airlift aircraft, to improve the readiness, reliability,

capacity, and capabilities of the Air Force with respect to airlift operations.

(b) ACTIVITIES.—The activities carried out under subsection (a) may include—

(1) entering into partnerships with commercial entities—

(A) to provide the Air Force with access to commercially developed aircraft capable of handling outsized airlift payloads; and

(B) to modify such aircraft, as necessary, to meet military requirements;

(2) carrying out a pilot program to assess the feasibility and advisability of using commercial providers to test, certify, and operate select C–5 aircraft in support of the Air Force; and

(3) such other activities as the Secretary of the Air Force determines appropriate.

(c) FUNDING.—This section shall be carried out using amounts otherwise authorized to be appropriated to the Department of the Air Force and no additional funds are authorized to be appropriated to carry out this section.

SEC. 150. CONVEYANCE OF CERTAIN F–14 AIRCRAFT TO U.S. SPACE AND ROCKET CENTER COMMISSION IN HUNTSVILLE, ALABAMA.

(a) AUTHORITY.—The Secretary of the Navy may convey, without consideration, to the U.S. Space and Rocket Center Commission in Huntsville, Alabama (in this section referred to as the ''Commission''), all right, title, and interest of the United States in the following:

(1) F–14 aircraft (Bureau number 159437).

(2) F–14 aircraft (Bureau number 164341).

(3) F–14 aircraft (Bureau number 164602).

(b) FORM OF CONVEYANCE.—Any conveyance under subsection (a) shall be made by means of a conditional deed of gift.

(c) CONVEYANCE AT NO COST TO THE UNITED STATES.—Any conveyance under subsection (a) shall be made at no cost to the United States. Any costs associated with such conveyance, costs of determining compliance with terms of the conveyance, and costs of operation and maintenance of the aircraft conveyed shall be borne by the Commission.

(d) CONDITION OF AIRCRAFT.—The aircraft being conveyed under subsection (a) do not have any capability for use as a platform for launching or releasing munitions or any other combat capability that it was designed to have.

(e) CONDITIONS.—The Secretary shall include in the instrument of conveyance of the aircraft under subsection (a)—

(1) a condition that the Secretary is not required to repair or alter the condition of the aircraft before conveying ownership of the aircraft;

(2) a condition that the Secretary shall provide any maintenance and operations manuals that—

(A) are specific to the F–14 aircraft; and

(B) the Secretary has sufficient intellectual property rights to convey;

(3) a condition that the Secretary may provide excess spare parts to make one of the F–14 aircraft flyable or able to complete a static display, provided that any part transferred from existing Navy stock is reimbursed at fair market value by the Commission, with no items being procured by the Secretary on behalf of the Commission; and

(4) a condition that the Secretary will not be responsible for transferring any additional parts or providing any additional support beyond what is stated in this section, during or after the conveyance of the aircraft.

(f) AGREEMENTS FOR RESTORATION AND OPERATION.—The Secretary may—

(1) authorize the Commission to enter into agreements with qualified nonprofit organizations for the purpose of restoring and operating the aircraft transferred under subsection (a) for public display, airshows, and commemorative events to preserve naval aviation heritage; and

(2) if the Secretary authorizes any such agreement, require such additional terms and conditions in the instrument of conveyance as appropriate to protect the interests of the United States.

(g) REVERTER UPON BREACH OF CONDITIONS.—The Secretary shall include in the instrument of conveyance of the aircraft under subsection (a)—

(1) a condition that the Commission shall operate and maintain the aircraft in compliance with all applicable limitations and maintenance requirements imposed by the Administrator of the Federal Aviation Administration;

(2) a condition that the Commission shall not convey any ownership interest in, or transfer possession of, the aircraft to another party without the prior approval of the Secretary; and

(3) a condition that if the Secretary determines at any time that the Commission has failed to comply with the conditions set forth in paragraphs (1)

and (2), all right, title, and interest in and to the aircraft, including any repair or alteration of the aircraft, shall revert to the United States, and the United States shall have the right of immediate possession of the aircraft.

(h) CLARIFICATION OF LIABILITY.—Notwithstanding any other provision of law, upon the conveyance to the Commission of interests in the aircraft under subsection (a), the United States may not be liable for any death, injury, loss, or damage that results from any use of such aircraft by any person other than the United States.

(i) APPLICABLE LAW.—The conveyance of an aircraft under subsection (a), and the use of such aircraft following such conveyance, shall be subject to all applicable Federal and State laws and regulations, including the Arms Export Control Act (22 U.S.C. 2751 et seq.), the Export Control Reform Act of 2018 (50 U.S.C. 4801 et seq.), chapter 37 of title 18, United States Code (commonly referred to as the ''Espionage Act''), the regulations set forth in subchapter M of chapter I of title 22, Code of Federal Regulations (commonly referred to as the ''International Traffic in Arms Regulations''), subchapter C of chapter VII of title 15, Code of Federal Regulations (commonly referred to as the ''Export Administration Regulations''), and chapter V of title 31, Code of Federal

Regulations (commonly referred to as the ''Foreign Assets Control Regulations'').

SEC. 151. REPORT ON THE FEASIBILITY OF RESTORING NUCLEAR CAPABILITY TO THE B–1B LANCER BOMBER AIRCRAFT.

(a) IN GENERAL.—Not later than December 1, 2026, the Secretary of the Air Force, in coordination with the Commander of the United States Strategic Command, shall submit to the congressional defense committees a report assessing the feasibility of restoring nuclear capability to the B–1B Lancer bomber aircraft.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) A description of any structural, electronic, software, and weapons-integration modifications required to enable the B–1B aircraft to deliver nuclear weapons.

(2) An assessment of the compatibility of such aircraft with currently fielded and planned nuclear gravity bombs and air-launched cruise missiles.

(3) Identification of any military construction, storage, security, and certification infrastructure that would be required at forward operating locations within the continental United States should nuclear capability be restored to such aircraft.

(4) Requirements related to aircrew certification, maintenance training, security forces training, nuclear surety inspections, and personnel reliability programs should nuclear capability be restored to such aircraft.

(5) Estimated research, development, test, evaluation, procurement, operations, and sustainment costs over a the five-year period following the initiation of any efforts to restore nuclear capability to such aircraft.

(6) An assessment of the expected remaining service life of the B–1B aircraft fleet.

(7) The estimated time required to achieve initial operational capability and full operational capability should the Air Force pursue restoring nuclear capability to such aircraft.

(8) An assessment of the military utility and strategic deterrence value of restoring nuclear capability to the B–1B aircraft.

(9) An assessment of any costs and additional requirements to restore nuclear capability across bomber bases.

(c) FORM.—The report required under subsection (a) shall be submitted in unclassified form but may include a classified annex.

SEC. 152. LIMITATION ON RETIREMENT OF E–11 BATTLEFIELD AIRBORNE COMMUNICATIONS NODE AIRCRAFT.

None of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of the Air Force may be obligated or expended to retire, divest, place in storage, transfer to nonoperational status, or prepare for retirement any E–11 Battlefield Airborne Communications Node aircraft.

Subtitle E—Defense-wide, Joint, and Multiservice Matters

SEC. 161. MULTIYEAR PROCUREMENT AUTHORITY FOR F–15EX AIRCRAFT.

(a) AUTHORITY FOR MULTIYEAR PROCUREMENT.—Subject to section 3501 of title 10, United States Code, and except as provided in subsection (b), the Secretary of Defense may enter into one or more multiyear contracts, beginning with the fiscal year 2027 program year, for the procurement of—

(1) F–15EX aircraft; and

(2) initial spare parts, alternate mission equipment, and conformal fuel tanks for such aircraft.

(b) LIMITATION.—The Secretary of Defense may not enter into a contract for the procurement of an aircraft under subsection (a) until the date on which the Secretary certifies to the congressional defense committees that such

contract will provide for the procurement of the full complement of initial spare parts, alternate mission equipment, and conformal fuel tanks for each aircraft to be procured under the contract.

(c) CONDITION FOR OUT-YEAR CONTRACT PAYMENTS.—A contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year after fiscal year 2027 is subject to the availability of appropriations or funds for that purpose for such later fiscal year.

(d) AUTHORITY FOR ADVANCE PROCUREMENT.—The Secretary of Defense may enter into one or more contracts, beginning in fiscal year 2027, for advance procurement associated with the aircraft for which authorization to enter into a multiyear procurement contract is provided under subsection (a), which may include procurement of economic order quantities of material and equipment for such aircraft when cost savings are achievable.

SEC. 162. MULTIYEAR PROCUREMENT AUTHORITY FOR F–35 AIRCRAFT.

(a) AUTHORITY FOR MULTIYEAR PROCUREMENT.—Subject to section 3501 of title 10, United States Code, and except as provided in subsections (b) and (c), the Secretary of Defense may enter into one or more multiyear

contracts, beginning with the fiscal year 2027 program year, for the procurement of—

(1) F–35 aircraft; and

(2) initial spare parts and alternate mission equipment for such aircraft.

(b) LIMITATION.—The Secretary of Defense may not enter into a contract for the procurement of an aircraft under subsection (a) until the date on which the Secretary certifies to the congressional defense committees that such contract will provide for the procurement of the full complement of initial spare parts and alternate mission equipment for each aircraft to be procured under the contract.

(c) ADDITIONAL REQUIREMENTS AND LIMITATIONS.—

(1) IN GENERAL.—The Secretary of Defense may not enter into a contract for the procurement of an aircraft under subsection (a) until the date on which all of the following requirements have been met:

(A) The Under Secretary of Defense for Acquisition and Sustainment has certified to the congressional defense committees that—

(i) any multiyear contracts for the procurement of F–35 aircraft units will achieve savings of not less than 5 percent

compared with the estimated cost of procuring the same number and configuration of F–35 aircraft through annual contracts over the same period; and

(ii) the Director of Cost Assessment and Program Evaluation reviewed and validated such savings estimate.

(B) The Under Secretary of Defense for Acquisition and Sustainment has submitted to the congressional defense committees a report on the plan of the Department of Defense to improve operational readiness rates of F–35 aircraft. The report shall include—

(i) funding requirements, by fiscal year, that achieve readiness to the required rates of full mission capability, mission capability, and aircraft availability, as defined by the Air Force and the Department of the Navy; and

(ii) funding requirements across the period covered by the future-years defense program that demonstrate full resources budgeted and programmed to achieve annual readiness requirements as identified in clause (i).

(2) LIMITATION ON AVAILABILITY OF FUNDS.—Of the funds authorized to be appropriated by this Act or otherwise made available for the Department of Defense for fiscal year 2027 for the Office of the Under Secretary of Defense for Acquisition and Sustainment for official travel, not more than 50 percent may be obligated or expended until the date on which the Under Secretary submits to the congressional defense committees a certification—

(A) that funding for fiscal year 2026 has been obligated and expended to meet the fiscal year 2026 readiness requirements as identified in paragraph (1)(B)(i); and

(B) that funding for fiscal year 2027 has been requested to meet fiscal year 2027 readiness requirements as identified in such paragraph.

(d) CONDITION FOR OUT-YEAR CONTRACT PAYMENTS.—A contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year after fiscal year 2027 is subject to the availability of appropriations or funds for that purpose for such later fiscal year.

(e) AUTHORITY FOR ADVANCE PROCUREMENT.—The Secretary of Defense may enter into one or more con-

tracts, beginning in fiscal year 2027, for advance procurement associated with the aircraft for which authorization to enter into a multiyear procurement contract is provided under subsection (a), which may include procurement of economic order quantities of material and equipment for such aircraft when cost savings are achievable.

SEC. 163. PROHIBITION ON PROCUREMENT AND USE OF HUMANOID ROBOTIC SYSTEMS PRODUCED, DEVELOPED, OR CONTROLLED BY FOREIGN ADVERSARIES.

(a) PROHIBITION.—

(1) IN GENERAL.—The Secretary of Defense may not procure, lease, or otherwise obtain a covered humanoid robotic system that—

(A) is produced or developed by a foreign adversary or foreign adversary entity;

(B) incorporates firmware, software, artificial intelligence models, remote update capability, or cloud services provided by a foreign adversary or foreign adversary entity; or

(C) is subject to remote access, maintenance, data transmission, or update authority controlled by a foreign adversary or foreign adversary entity.

(2) APPLICABILITY.—The prohibition under paragraph (1) shall apply with respect to contracts and other agreements entered into after the date of the enactment of this Act.

(b) LIMITED WAIVER FOR CONTROLLED TESTING AND COUNTERINTELLIGENCE PURPOSES.—The Secretary of Defense may waive the prohibition under subsection (a)(1) with respect to a covered humanoid robotic system if—

(1) the system is to be used solely for counterintelligence, cybersecurity testing, vulnerability assessment, or research purposes;

(2) the system operates in a physically isolated or air-gapped environment;

(3) the system is not connected to operational Department of Defense networks; and

(4) the Secretary notifies the congressional defense committees not later than 30 days after issuing such waiver.

(c) IMPLEMENTATION.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall issue any rules, regulations, policies, and guidance necessary for the implementation of this section.

(d) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to prohibit the procurement or use

of a covered humanoid robotic system solely on the basis that such system incorporates commercially available, off-the-shelf components not specifically designed for humanoid robotic systems, provided that such components do not enable remote access, data transmission, or control by a foreign adversary or foreign adversary entity.

(e) DEFINITIONS.—In this section:

(1)(A) The term ''covered humanoid robotic system'' means a commercially available robotic system that—

(i) is designed for general-purpose interaction within human-occupied environments;

(ii) possesses articulated upper extremities capable of dexterous manipulation;

(iii) is capable of autonomous or semi-autonomous operation using artificial intelligence or machine learning systems; and

(iv) is equipped with wired or wireless networking connectivity, including internet, cellular, satellite, Bluetooth, Wi-Fi, radio-frequency communication, or cloud-based data storage or processing services.

(B) Such term does not include—

(i) industrial robotic systems permanently installed in controlled manufacturing environments;

(ii) robotic systems incapable of network connectivity; or

(iii) assistive medical devices regulated under the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 301 et seq.).

(2) The term ''foreign adversary'' means a covered nation as defined in section 4872(f)(2) of title 10, United States Code.

(3) The term ''foreign adversary entity'' means an entity that—

(A) is organized under the laws of, headquartered in, or subject to the jurisdiction of a foreign adversary;

(B) is owned or controlled by the government of a foreign adversary; or

(C) is owned or controlled by an entity that meets any of the criteria described in subparagraph (A) or (B).

SEC. 164. LIMITATION ON AVAILABILITY OF FUNDS TO RETIRE OR DECOMMISSION CERTAIN RADAR SYSTEMS.

(a) LIMITATION.—Except as provided in subsection (b), none of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of Defense may be obligated or expended to retire, decommission, divest, or otherwise remove from active operational service, any covered radar system.

(b) EXCEPTION.—The limitation under subsection (a) shall not apply to any individual unit of a covered radar system that the Secretary of the military department concerned determines has been damaged or degraded beyond economical repair.

(c) COVERED RADAR SYSTEM.—In this section, the term ''covered radar system'' means the following:

(1) The AN/SPN–43 shipboard air traffic control and air marshaling radar system.

(2) The AN/SPY–1 phased-array radar system for the Aegis Combat System.

(3) The AN/TPQ–36 Firefinder counter-battery radar system.

(4) The AN/TPQ–37 Firefinder counter-battery radar system.

(5) Airborne Station Keeping Equipment radar systems, including the AN/APN–243.

SEC. 165. STANDARDS FOR COMMON OPERATING SYSTEM FOR SMALL UNMANNED AIRCRAFT SYSTEMS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Secretaries of the military departments, shall establish standards for a common operating system for small unmanned aircraft systems.

(b) ELEMENTS.—The standards established under subsection (a) shall provide for a common operating system for small unmanned aircraft systems that—

(1) enables interoperability between small unmanned aircraft system platforms from different vendors and classes across the joint force;

(2) enables modular integration of mission applications, including by enabling the use of applications and features from multiple different vendors on the same platform;

(3) facilitates rapid deployment of autonomy and command and control functions;

(4) facilitates rapid deployment of autonomy and operating capabilities in contested, degraded, and denied environments, including capabilities enabling operation in contested electromagnetic and de-

graded positioning, navigation, and timing environments;

(5) integrates operating software that can function on multiple hardware platforms from different vendors;

(6) supports secure software updates and cybersecurity improvements;

(7) avoids vendor lock by enabling multiple vendors of hardware and software to develop and field applications and capabilities; and

(8) establishes baseline standards for aided target recognition capabilities.

(c) IMPLEMENTATION.—

(1) IN GENERAL.—Not later than 90 days after the date on which the Secretary of Defense finalizes the standards under subsection (a), the Secretary, in coordination with the Secretaries of the military departments, shall develop and commence implementation of a plan for equipping small unmanned aircraft systems of the Department of Defense with a common operating system that meets such standards.

(2) USE OF COMMERCIALLY AVAILABLE SOLUTIONS.—In implementing the plan under paragraph (1), the Secretary of Defense shall make use of com-

mercially available solutions to the maximum extent practicable.

SEC. 166. MINIMUM ANNUAL PROCUREMENT GOAL FOR ABILITYONE PROGRAM.

Beginning in fiscal year 2027, the Secretary of Defense shall establish the goal that the total amount of funds obligated for the procurement of products and services from nonprofit concerns pursuant to chapter 85 of title 41, United States Code, in a fiscal year is equal to not less than one percent of the total amount of funds obligated for all procurement contracts entered into by the Department of Defense in such fiscal year.

SEC. 167. IMPLEMENTATION OF COMPTROLLER GENERAL RECOMMENDATIONS ON F–35 JOINT STRIKE FIGHTER TECHNICAL DATA NEEDS FOR SUSTAINMENT.

(a) PLAN REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees and to the Comptroller General of the United States a plan to address the following recommendations made by the Government Accountability Office:

(A) Recommendation 5 in the report titled ''F–35 Sustainment: Need for Affordable Strategy, Greater Attention to Risks, and Improved Cost Estimates'' (GA–14–778).

(B) Recommendations 1 through 7 in the report titled ''F–35 Aircraft: DOD and the Military Services Need to Reassess the Future Sustainment Strategy'' (GAO–23–105341).

(C) Recommendations 1 and 2 in the report titled ''F–35 Aircraft: Actions Needed to Address Long-Standing Risks to Operational Effectiveness'' (GAO–25–107101C).

(2) ELEMENTS.—The plan under paragraph (1) shall include the following:

(A) With respect to each recommendation specified in paragraph (1) that the Secretary has implemented or intends to implement—

(i) a summary of actions that have been taken or will be taken to implement the recommendation; and

(ii) a schedule, with specific milestones, for completing implementation of the recommendation.

(B) Identification of any recommendations specified in paragraph (1) that the Secretary

does not intend to implement, together with a discussion of the reasons for not implementing the recommendations and any alternative actions taken or intended to be taken to address the matters identified by the Government Accountability Office in connection with such recommendations.

(b) PLAN IMPLEMENTATION REPORT.—Not later than one year after the date on which the Secretary of Defense submits the implementation plan under subsection (a), the Secretary shall carry out activities to implement the plan and submit to the congressional defense committees and the Comptroller General of the United States a report on the following:

(1) All critical technical data rights requirements for F–35 Joint Strike Fighter sustainment, including for both organizational-level and depot-level sustainment and repair.

(2) Estimated costs for acquiring identified critical technical data rights for sustainment.

(3) The status of efforts for acquiring identified critical technical data rights for sustainment.

(4) Any known challenges for acquiring identified critical technical data rights for sustainment.

SEC. 168. IMPLEMENTATION OF GAO RECOMMENDATION ON F–35 JOINT STRIKE FIGHTER USE OF CONTRACT INCENTIVE FEES.

(a) IMPLEMENTATION PLAN.—

(1) IN GENERAL.—The Secretary of Defense shall develop and implement a plan to address recommendation 3 from the report of the Government Accountability Office titled ''F–35 Joint Strike Fighter: Actions Needed to Address Late Deliveries and Improve Future Development'' (GAO-25-107632).

(2) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees and to the Comptroller General of the United States a report on the plan developed under paragraph (1). Such report shall include—

(A)(i) a summary of actions that have been taken or will be taken to implement the recommendation specified in paragraph (1); and

(ii) a schedule, with specific milestones, for completing implementation of the recommendation; or

(B) if the Secretary does not intend to implement the recommendation, discussion of the reasons and alternative actions taken or in-

tended to be taken to address the issues to which the recommendation pertains.

(b) REPORT ON IMPLEMENTATION.—Not later than one year after the submittal of the plan under subsection (a), the Secretary of Defense shall submit to the congressional defense committees and the Comptroller General of the United States a report on the status of the implementation of the plan. Such report shall include, at a minimum—

(1) the results of a reevaluation of contract incentive fees for inclusion in future F135 and F–35 production contracts;

(2) a timeframe for implementing a new incentive fee structure in future F135 and F–35 production contracts;

(3) a plan for determining the effectiveness of a new incentive fee structure in achieving desired production outcomes; and

(4) an explanation of any efforts to apply a new incentive fee structure more broadly across the F–35 contracting enterprise.

SEC. 169. STUDY ON FUEL PROCUREMENT PRACTICES OF THE DEPARTMENT OF DEFENSE.

(a) STUDY REQUIRED.—The Secretary of Defense, in coordination with the Commander of the United States

Transportation Command and the Director of the Defense Logistics Agency, shall conduct a study on the fuel procurement practices of the Department of Defense.

(b) ELEMENTS.—The study under subsection (a) shall address the following:

(1) The projected amount budgeted by the Department of Defense for fuel procurement and consumption for fiscal year 2026, set forth separately by military department and Defense Agency.

(2) The actual amount spent by the Department of Defense for fuel procurement and consumption for fiscal year 2026, set forth separately by military department and Defense Agency.

(3) Any changes to fuel cost and fuel cost projections for fiscal year 2026 that have occurred since February 28, 2026, including an examination of—

(A) the magnitude of such changes (expressed in total dollars and as a percentage change from prior projections);

(B) the factors driving such changes, including changes in market crude oil prices, changes in the standard price of fuel established by the Defense Logistics Agency, changes in operational demand, and any other relevant factors;

(C) the effects of such changes on the budget of the Department of Defense as a whole and the budget of each military department; and

(D) the effects of such changes on the ability of the military departments to meet readiness standards, including—

(i) any exercises (including joint exercises with allies and partners), training, or other operational activities that were modified, delayed, or canceled as a result of such changes, set forth separately by Armed Force;

(ii) any reductions in readiness accounts resulting from such changes, set forth separately by account, amount, and Armed Force, including—

(I) operation and maintenance accounts; and

(II) accounts for depot maintenance and spare parts; and

(iii) any effects of such changes on prepositioned fuel stocks or bulk fuel inventories.

(4) Any transfers, reprogramming actions, or other budgetary adjustments made or anticipated to be made during the period of fiscal years 2026 through 2031 as a result of fuel cost variances.

(c) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the results of the study conducted under subsection (a), including the findings of the study with respect to each element specified in subsection (b).

SEC. 170. LIMITATION ON PROCUREMENT OF CUT FLOWERS AND CUT GREENS.

(a) REQUIREMENT.—

(1) IN GENERAL.—Funds appropriated or otherwise available to the Department of Defense may only be used for the procurement of a cut flower or cut green if the cut flower or cut green is grown in a qualifying area.

(2) APPLICABILITY.—This subsection shall apply to a procurement made or contracted for—

(A) in the United States; and

(B) on or after the date that is 1 year after the date of the enactment of this section.

(b) GIFTS FOR DISPLAYS.—

(1) IN GENERAL.—The Department of Defense may only accept a gift of a cut flower or cut green that is not grown in a qualifying area from a covered entity for the purpose of displaying the cut flower or cut green if the origin of the cut flower or cut green is clearly displayed at the time of delivery.

(2) REQUIREMENT.—If the Department of Defense accepts a gift of a cut flower or cut green from a covered entity under paragraph (1), it shall clearly display the origin of the cut flower or cut green during the period of display of the cut flower or cut green.

(c) DEFINITIONS.—In this section:

(1) The term ''covered entity'' means—

(A) a foreign government; and

(B) an agent of a foreign principal (as defined section 1 of the Foreign Agents Registration Act of 1938 (22 U.S.C. 611)).

(2) The term ''cut flower'' means a flower removed from a living plant for decorative use.

(3) The term ''cut green'' means a green, foliage, or branch removed from a living plant for decorative use.

(4) The term ''qualifying area'' means—

(A) a State;

(B) the District of Columbia;

(C) a territory or possession of the United States; or

(D) an area subject to the jurisdiction of a federally recognized Indian Tribe.

SEC. 171. MODIFICATION TO MULTIYEAR PROCUREMENT AUTHORITY FOR DOMESTICALLY PROCESSED CRITICAL MINERALS.

Section 152 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 50 U.S.C. 98e–2) is amended—

(1) by redesignating subsection (e) as subsection (f); and

(2) by inserting after subsection (d) the following new subsection:

''(e) CONSIDERATION OF RECYCLED AND REUSED MATERIALS.—In exercising the authority under this section, the Secretary of Defense shall give special consideration the procurement of critical minerals derived from recycled and reused minerals and metals, to the maximum extent practicable.''.

SEC. 172. ASSESSMENT OF DEPARTMENT OF DEFENSE DISPLAY SUPPLY CHAIN VULNERABILITIES.

(a) ASSESSMENT REQUIRED.—The Secretary of Defense, in coordination with the Secretary of Commerce,

shall conduct an assessment of supply chain vulnerabilities related to displays used in Department of Defense weapon systems and platforms.

(b) ELEMENTS.—The assessment shall include—

(1) identification of defense systems dependent on displays sourced from the People's Republic of China or Taiwan;

(2) assessment of supply disruption risks and potential operational impacts;

(3) evaluation of domestic or allied manufacturing capabilities for advanced display technologies;

(4) analysis of emerging display technologies, including microLED displays; and

(5) recommendations for reducing foreign dependence in critical display applications.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the results of the assessment conducted under subsection (a).

(d) FORM.—The report under subsection (c) shall be submitted in unclassified form, but may include a classified annex.

SEC. 173. SENSE OF CONGRESS ON FIELDING OF COMBAT COLLABORATIVE AIRCRAFT CAPABILITIES TO SUPPORT WARFIGHTERS.

It is the sense of Congress that the Secretary of Defense should take such steps as may be necessary to prioritize funding for the procurement of combat collaborative aircraft to ensure there is a minimal viable fielded and operational combat collaborative aircraft capability by the end of fiscal year 2028 to meet operational requirements of combatant commanders.

TITLE II—RESEARCH, DEVELOPMENT, TEST, AND EVALUATION

Subtitle A—Authorization of Appropriations

SEC. 201. AUTHORIZATION OF APPROPRIATIONS.

Funds are hereby authorized to be appropriated for fiscal year 2027 for the use of the Department of Defense for research, development, test, and evaluation, as specified in the funding table in section 4201.

SEC. 202. FUNDING FOR COMPACT SEMICONDUCTOR-BASED FAST NEUTRON DETECTORS.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for Research, Development, Test, and Evaluation, Air Force, as speci-

fied in the corresponding funding table in section 4201, for Aerospace Sensors (PE 0602204F), Line 9, is hereby increased by $4,300,000 for Compact Semiconductor-Based Fast Neutron Detectors.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 101 for Aircraft Procurement, Navy, as specified in the corresponding funding table in section 4101, for F–18 Series, Line 028, is hereby reduced by $4,300,000.

SEC. 203. FUNDING FOR ENVIRONMENTAL AND THERMAL PROTECTION COATINGS.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for Research, Development, Test, and Evaluation, Air Force, as specified in the corresponding funding table in section 4201, for Aerospace Sensors (PE 0602204F), Line 9, is hereby increased by $8,500,000 for ultra-high-temperature metallic oxide environmental and thermal protection coatings for hypersonic vehicle leading edges, hot structures, and space vehicle heat shields.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 101 for Aircraft Procure-

ment, Navy, as specified in the corresponding funding table in section 4101, for F–18 Series, Line 028, is hereby reduced by $8,500,000.

SEC. 204. FUNDING FOR REACTIVE MATERIAL TO ENHANCE THE LETHALITY OF MUNITIONS.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test and evaluation, Defense-wide, as specified in the corresponding funding table in section 4201, for industrial base analysis and sustainment support, line 233 (PE 0607210D8Z) for domestic manufacturing capability for advanced reactive materials is hereby increased by $5,000,000 (to be available for the purpose of accelerating the manufacture of a reactive material to enhance the lethality of munitions).

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and maintenance, Defense-wide, as specified in the corresponding funding table in section 4301, for defense media activity, line 330 is hereby reduced by $5,000,000.

SEC. 205. FUNDING FOR NEXT GENERATION COMBAT VEHICLE ADVANCED TECHNOLOGY.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Army as specified in the corresponding funding table in section 4201, for advanced technology development for Next Generation Combat Vehicle Advanced Technology, Line 050, is hereby increased by $7,000,000 (with the amount of such increase to be used to support Virtual Engineering and Army Readiness and Sustainment (VEARS)).

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and maintenance, Navy, as specified in the corresponding funding table in section 4301, for Ship Depot Operations Support, Line 090, is hereby reduced by $7,000,000.

SEC. 206. FUNDING FOR RAPID AIRBORNE AND WATERBORNE CHEMICAL AND BIOLOGICAL THREAT DETECTION.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Army, as specified in the corresponding funding table in section 4201, for ap-

plied research for Ground Technology, Line 012, is hereby increased by $10,000,000 (with the amount of such increase to be used to support Rapid Airborne and Waterborne Chemical and Biological Threat Detection (RAW CBTD)).

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and maintenance, Navy, as specified in the corresponding funding table in section 4301, for Ship Depot Operations Support, Line 090, is hereby reduced by $10,000,000.

SEC. 207. FUNDING FOR THE RAPID PROTOTYPING PROGRAM.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for Research, Development, Test, and Evaluation, as specified in the corresponding funding table in section 4201, for Rapid Prototyping Program is hereby increased by $4,900,000.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for Operation and Maintenance, Navy, as specified in the corresponding funding table in section 4301, for Ship Depot Operations Support is hereby reduced by $4,900,000.

SEC. 208. FUNDING FOR ULTRA-LIGHT GROUP 1 SMALL UNMANNED AIRCRAFT SYSTEMS FOR SPECIAL OPERATIONS FORCES.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Defense-wide, as specified in the corresponding funding table in section 4201, for intelligence systems development (PE 1160405BB), line 303, is hereby increased by $10,000,000 (with the amount of such increase to be made available for ultra-light Group 1 small unmanned aircraft systems for the United States Special Operations Command).

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Defense-wide, as specified in the corresponding funding table in section 4201, for Office of the Secretary of Defense, OUSD(C) IT development initiatives (PE 0605027D8Z), line 153, is hereby reduced by $10,000,000.

SEC. 209. FUNDING FOR NATIONAL DEFENSE EDUCATION PROGRAM.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research,

development, test, and evaluation, Defense-wide, as specified in the corresponding funding table in section 4201, for basic research, National Defense Education Program, line 6, is hereby increased by $5,000,000 (with the amount of such increase to be used to strengthen and expand STEM education opportunities and workforce initiatives targeted at military students).

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 4301 for Operation and Maintenance, Defense-wide, for Washington Headquarters Services, line 510, as specified in the corresponding funding table in section 4301, is hereby reduced by $5,000,000.

SEC. 209A. FUNDING FOR SOFTWARE-DEFINED AND AI-POWERED COUNTER UNMANNED AERIAL SYSTEMS.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Army, as specified in the corresponding funding table in section 4201, for Landmine Warfare/Barrier—Eng Dev (PE 0604808A), line 122, is hereby increased by $10,000,000 for software-defined and AI-powered counter unmanned aerial systems.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and maintenance, Defense-wide, as specified in the corresponding funding table in section 4301, for the Office of the Secretary of Defense, line 480, is hereby reduced by $10,000,000.

SEC. 209B. FUNDING FOR BLAST OVERPRESSURE MITIGATION DEVICES FOR SMALL AND MEDIUM CALIBER WEAPONS.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 4201 for Research, Development, Test, and Evaluation, Defense-wide, as specified in the corresponding funding table in section 4201, for Warrior Systems, line 305, is hereby increased by $5,000,000 (with the amount of such increase to be used for blast overpressure mitigation devices for small and medium caliber weapons).

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 4201 for Research, Development, Test, and Evaluation, Army, as specified in the corresponding funding table in section 4201, line 128 for Artillery Systems—EMD is hereby reduced by $5,000,000.

SEC. 209C. FUNDING FOR HIGH-HYPERSONIC DETONATION PROPULSION RESEARCH AND FLIGHT DEMONSTRATIONS.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Air Force, as specified in the corresponding funding table in section 4201, for Aerospace Systems Technologies (PE 0602203F), line 008, is hereby increased by $5,000,000 for the acceleration of high-hypersonic detonation propulsion research and flight demonstrations.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and maintenance, Defense-wide, as specified in the corresponding funding table in section 4301, for administration and service-wide activities, Office of the Secretary of Defense, line 480, is hereby reduced by $5,000,000.

SEC. 209D. INCREASE IN FUNDING FOR SENSITIVE COMPARTMENTED INFORMATION FACILITIES.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Air Force, as specified in the corresponding funding table in section 4201, for

Future AF Capabilities Applied Research (PE 0602020F), line 003, is hereby increased by $1,200,000 for Secure Research Facilities in fast-growing metropolitan areas located in proximity to aerospace industries and facilities.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and maintenance, Defense-wide, as specified in the corresponding funding table in section 4301, for administration and service-wide activities, Office of the Secretary of Defense, line 480, is hereby reduced by $1,200,000.

SEC. 209E. FUNDING FOR ADVANCED NAVAL CASTING FOR HARDWARE AND OPERATIONAL REPAIRS.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Navy, as specified in the corresponding funding table in section 4201, for Ship Concept Advanced Design (PE 0603563N), line 044, is hereby increased by $16,000,000 for Advanced Naval Casting for Hardware and Operational Repairs.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and main-

tenance, Navy, as specified in the corresponding funding table in section 4301, for Administration, line 410, is hereby reduced by $16,000,000.

SEC. 209F. FUNDING FOR ACCELERATING THE ADOPTION OF NAVAL AVIATION ADVANCED MANUFACTURING PROCESSES.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Navy, as specified in the corresponding funding table in section 4201, for Navy Advanced Manufacturing (PE 0604286N), line 084, is hereby increased by $15,000,000 for Accelerating the Adoption of Naval Aviation Advanced Manufacturing Processes.

(b) OFFSETS.—

(1) Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Defense-wide, as specified in the corresponding funding table in section 4201, for Cyber Operations Technology Support, line 293, is hereby reduced by $5,000,000.

(2) Notwithstanding the amounts set forth in the funding tables in division D, the amount author-

ized to be appropriated in section 201 for research, development, test, and evaluation, Navy, as specified in the corresponding funding table in section 4201, for Marine Corps Ground Combat/Support System, line 057, is hereby reduced by $10,000,000.

SEC. 209G. FUNDING FOR AIR FORCE MATERIALS RESEARCH.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Air Force, as specified in the corresponding funding table in section 4201, for applied research, materials (PE 0602102F), line 005, is hereby increased by $6,400,000 to secure U.S. silicon carbide for national security and critical technologies.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and maintenance, Air Force, as specified in the corresponding funding table in section 4301, for other servicewide activities, line 410, is hereby reduced by $6,400,000.

SEC. 209H. FUNDING FOR UNIVERSITY INNOVATIVE MATERIALS PROCESSING MODERNIZATION RESEARCH.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research development, test, and evaluation, Defense-wide, as specified in the corresponding funding table in section 4201, for Defense-wide manufacturing science and technology program (PE 0603680D8Z), line 062, is hereby increased by $5,000,000 for university innovative materials processing modernization research.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and maintenance, Defense-wide, as specified in the corresponding funding table in section 4301, for Washington Headquarters Services, line 510, is hereby reduced by $5,000,000.

SEC. 209I. FUNDING FOR AUTONOMOUS HIGH-ALTITUDE LONG-ENDURANCE AIRCRAFT AND PSEUDO-SATELLITES.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Defense-wide, as speci-

fied in the corresponding funding table in section 4201, for the Rapid Prototyping Program (PE 604331D8Z), line 111, is hereby increased by $5,000,000 for the development, prototyping, and demonstration of autonomous High-Altitude Long-Endurance Aircraft (HALE) and High-Altitude Pseudo-Satellites (HAPS) capable of providing resilient intelligence, surveillance, reconnaissance, communications, and sensing capabilities in contested environments.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 201 for research, development, test, and evaluation, Defense-wide, as specified in the corresponding funding table in section 4201, for JADC2 Development and Experimentation Activities (PE 0604122D8Z), line 169, is hereby reduced by $5,000,000.

Subtitle B—Program Requirements, Restrictions, and Limitations

SEC. 211. BUDGET REVIEW AND CERTIFICATION FOR CERTAIN CATEGORIES OF RESEARCH AND DEVELOPMENT.

Section 133a of title 10, United States Code, is amended—

(1) in subsection (b)—

(A) in paragraph (4), by striking ''and'' at the end;

(B) in paragraph (5), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following new paragraph:

''(6) in addition to the duties described in subsection (c), promulgating guidance and recommended standards on adequate levels of science and technology spending by elements of the Department of Defense with responsibilities associated with basic research, applied research, and advanced technology development (budget activities 6.1 through 6.3, respectively, as set forth in the Department of Defense Financial Management Regulation (DOD 7000.14-R), or any successor budget classification) and developmental test and evaluation that could be incorporated into budget and planning guidance of the Department as appropriate.'';

(2) by redesignating subsection (c) as subsection (d); and

(3) by inserting after subsection (b) the following new subsection:

''(c) BUDGET REVIEW AND CERTIFICATION.—

''(1) TRANSMITTAL.—The Secretary of Defense, acting through the Under Secretary of Defense (Comptroller), shall require the Secretaries of the military departments and the heads of the Defense Agencies with responsibilities associated with basic research, applied research, and advanced technology development (budget activities 6.1 through 6.3, respectively, as set forth in the Department of Defense Financial Management Regulation (DOD 7000.14-R), or any successor budget classification) and developmental test and evaluation to transmit the proposed budget for such activities for a fiscal year and for the period covered by the future-years defense program submitted to Congress under section 221 of this title for that fiscal year to the Under Secretary of Defense for Research and Engineering for review under paragraph (2) before submitting the proposed budget to the Under Secretary of Defense (Comptroller).

''(2) REPORT AND CERTIFICATION.—The Under Secretary of Defense for Research and Engineering shall review each proposed budget transmitted under paragraph (1) and, not later than January 31 of the year preceding the fiscal year for which the budget is proposed, shall submit to the Secretary of Defense

a report containing the comments of the Under Secretary of Defense for Research and Engineering with respect to all such proposed budgets, together with the certification of the Under Secretary regarding whether each proposed budget is adequate.

''(3) REPORT TO CONGRESS.—Not later than 15 days after the date on which the budget of the President for each fiscal year is submitted to Congress pursuant to section 1105(a) of title 31, the Secretary of Defense shall submit to Congress a report specifying each proposed budget contained in the most-recent report submitted under paragraph (2) that the Under Secretary of Defense for Research Engineering did not certify to be adequate. The report of the Secretary shall include the following matters:

''(A) A discussion of the actions that the Secretary proposes to take, together with any recommended legislation that the Secretary considers appropriate, to address the inadequacy of the proposed budgets specified in the report.

''(B) Any additional comments that the Secretary considers appropriate regarding the inadequacy of the proposed budgets.''.

SEC. 212. DEPUTY DIRECTORS OF OPERATIONAL TEST AND EVALUATION.

Section 139 of title 10, United States Code, is amended—

(1) by redesignating subsection (l) as subsection (m); and

(2) by inserting after subsection (k) the following new subsection (l):

''(l) The Director shall have a sufficient number of Deputy Directors to supervise the activities of the Office and to carry out the duties and responsibilities prescribed by law. Each such Deputy Director shall be a appointed from the Senior Executive Service.''.

SEC. 213. REPEAL OF PILOT AUTHORITY FOR USE OF OTHER TRANSACTIONS FOR INSTALLATION OR FACILITY PROTOTYPING.

Section 4022 of title 10, United States Code, is amended by striking subsection (i).

SEC. 214. MODIFICATIONS TO RESPONSIBILITIES OF THE DEFENSE INNOVATION UNIT.

(a) IN GENERAL.—Section 4127(d) of title 10, United States Code, is amended—

(1) by redesignating paragraph (11) as paragraph (12); and

(2) by inserting after paragraph (10) the following new paragraph:

''(11) Coordinate with the portfolio acquisition executives of the Army, Navy, Air Force, Marine Corps, and Space Force to—

''(A) identify priority acquisition problems and capability needs and gaps;

''(B) identify platforms, capabilities, and solutions developed by entities working with the Unit that have the potential to address the priority acquisition problems and capability needs and gaps identified under subparagraph (A); and

''(C) assist such portfolio acquisition executives in establishing and carrying out programs for the acquisition of such platforms, capabilities, and solutions.''.

(b) CLARIFYING AMENDMENT TO BOOST PROGRAM.—Section 1833 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. 3453 note) is amended by striking ''commercial'' each place it appears.

SEC. 215. TEST AND EVALUATION REPOSITORY AND REGIONAL TEST HUBS OF THE TEST RESOURCE MANAGEMENT CENTER.

(a) IN GENERAL.—Section 4173 of title 10, United States Code, is amended—

(1) in subsection (c)(1) by adding at the end the following new subparagraph:

''(G) To carry out the activities described in subsections (j) and (k).'';

(2) by redesignating subsection (j) as subection (l);

(3) by inserting after subsection (i) the following new subsections:

''(j) REPOSITORY OF TEST AND EVALUATION FACILITIES.—(1) The Director shall establish and maintain a digital repository that identifies and provides relevant information on all testing and evaluation facilities in the United States that could be made available for use by the Department of Defense and qualified partners for the testing and evaluation of weapon systems and innovative technologies.

''(2) The repository established under paragraph (1) shall—

''(A) identify all testing and evaluation facilities that meet the criteria specified in paragraph (1), including—

''(i) facilities owned or operated by the Federal Government, including—

''(I) facilities in the Major Range and Test Facility Base;

"(II) facilities not included in the Major Range and Test Facility Base; and

"(III) National Guard facilities; and

"(ii) facilities owned or operated by—

"(I) State or local governments;

"(II) academic institutions;

"(III) nonprofit organizations; or

"(IV) for-profit entities; and

"(B) with respect to each testing and evaluation facility identified in the repository, provide—

"(i) a description of the facility, including a description of the capabilities and instrumentation available at the facility;

"(ii) points of contact for scheduling range time at the facility; and

"(iii) such other information as the Director determines appropriate.

"(3) The Director shall update the repository under paragraph (1) not less frequently than annually.

"(4) The Director shall make the repository established under paragraph (1) accessible to such elements of the Department of Defense and qualified partners as the Director determines appropriate.

''(k) AUTHORITY TO ESTABLISH REGIONAL TEST AND EVALUATION HUBS.—(1) The Director may establish and maintain regional test and evaluation hubs at locations within and outside the United States for purposes of facilitating or conducting test and evaluation activities.

''(2) In the event the Director exercises the authority to establish and maintain regional test and evaluation hubs under paragraph (1), the Director shall develop a strategy and criteria for the selection of locations for such hubs, which shall include consideration of whether the geographic region served by the hub provides an environment conducive to the simulation of realistic threats and environmental conditions.''; and

(4) in subsection (l), as so redesignated—

(A) in the subsection heading, by striking ''DEFINITION'' and inserting ''DEFINITIONS'';

(B) by striking ''In this section, the term'' and inserting ''In this section:

''(1) The term''; and

(C) by adding at the end the following new paragraph:

''(2) The term 'qualified partner' means an entity that the Director determines—

''(A) is engaged in the development of capabilities for the Department of Defense, such

as a contractor, academic institution, or other private sector organization; and

''(B) is qualified to conduct test and evaluation activities at a facility described in subsection (j) or a regional test and evaluation hub described in subsection (k).''.

(b) DEADLINE.—The Director of the Test Resource Management Center shall establish the repository required under section 4173(j) of title 10, United States Code (as added by subsection (a) of this section), by not later than 180 days after the date of the enactment of this Act.

SEC. 216. WEAPON SYSTEM PLATFORM MODERNIZATION AND CYBER HARDENING.

Section 228 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 786; 10 U.S.C. 4001 note) is amended—

(1) in subsection (b), by inserting after paragraph (2) the following new paragraph:

''(3) The Secretary shall, not later than two years after the date of the enactment of this Act, select not fewer than three additional weapon system platforms for participation in the demonstration.'';

(2) by redesignating subsection (c) as subsection (d), and in such subsection—

(A) in paragraph (1)—

(i) by inserting after ''2027,'' the following: ''and again on January 1, 2028, and January 1, 2029,''; and

(ii) by striking ''with respect to the demonstration conducted pursuant to subsection (a)'' and inserting ''with respect to the activities carried out under subsections (a), (b), and (c)'';

(B) in each of paragraphs (2) and (3), by striking ''The report'' and inserting ''Each report''; and

(C) in paragraph (2)—

(i) by redesignating subparagraph (B) as subparagraph (C); and

(ii) by inserting after subparagraph (B) the following new subparagraph:

''(B) The results of the evaluation carried out under subsection (c)(1) and any pilot efforts carried out under subsection (c)(2).'';

(3) by inserting after subsection (b) the following new subsection:

''(c) OPERATIONAL INTEGRATION.—The Secretary of Defense shall—

''(1) evaluate opportunities to integrate data collected and analyzed from the demonstration into

command and control, logistics, sustainment, and maintenance systems of the Department of Defense, prioritizing systems with the greatest operational value; and

''(2) conduct pilot efforts to integrate the monitoring capabilities included in the demonstration into the platforms included in the demonstration, as appropriate.''; and

(4) by adding at the end the following new subsection:

''(e) DURATION OF AUTHORITY.—The authority provided under this section shall remain in effect until September 30, 2028.''.

SEC. 217. REPEAL OF REQUIREMENT FOR SECRETARY OF DEFENSE TO ACT THROUGH A SPECIFIED OFFICIAL FOR NATO INNOVATION PROGRAM.

(a) REPEAL OF REQUIREMENT TO ACT THROUGH SPECIFIED OFFICIAL.—Subsections (a) and (b) of section 222 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 137 Stat. 189) are amended by striking '', acting through the Under Secretary of Defense for Research and Engineering,'' each place it appears.

(b) REPEAL OF EXECUTED REQUIREMENT.—Such section is further amended—

(1) by striking subsection (c); and

(2) by redesignating subsections (d) and (e) as subsections (c) and (d), respectively.

SEC. 218. MODIFICATION TO TEST PROGRAM FOR ENGINEERING PLANT OF CERTAIN VESSELS.

Section 221 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 135 Stat. 1599) is amended—

(1) in the section heading, by inserting ''**AND OTHER LARGE SURFACE COMBATANT**'' before ''**VESSELS**'';

(2) in subsection (a), by inserting ''or any subsequent class of large surface combatant vessels'' after ''destroyer class of vessels'';

(3) in subsection (b), by striking ''Senior Technical Authority for the DDG(X) destroyer class of vessels'' and inserting ''Senior Technical Authority for the class of vessels involved (as designated pursuant to section 8669b of title 10, United States Code)'';

(4) in subsection (d), by striking ''for the DDG(X) destroyer class of vessels'' and inserting ''for the class of vessels involved'';

(5) in subsection (e), by striking ''by not later than the delivery date of the lead ship in the

DDG(X) destroyer class of vessels'' and inserting ''for a class of vessels by not later than the delivery date of the lead ship in that class of vessels''; and

(6) by amending subsection (f) to read as follows:

''(f) DELIVERY DATE DEFINED.—In this section, term 'delivery date' has the meaning given that term in section 8671 of title 10, United States Code.''.

SEC. 219. UNITED STATES–ISRAEL DEFENSE TECHNOLOGY COOPERATION INITIATIVE.

(a) ESTABLISHMENT.—The Secretary of Defense shall designate an executive agent, as such term is defined in Department of Defense Directive 5101.01 (relating to DoD Executive Agent, issued February 7, 2022), responsible for synchronizing cooperative efforts between the United States and Israel, to expand and accelerate bilateral defense technology research, development, testing, evaluation, and industrial cooperation, by—

(1) identifying jointly developed or Israeli-origin technologies with operational utility for potential integration into United States systems and programs of record;

(2) ensuring collaborative research initiatives involving government, private sector, and academic institutions in the United States and Israel, is done

in a manner that protects sensitive technology and information and the national security interests of the United States and Israel;

(3) facilitating the transition of technologies from research and development into procurement and acquisition pathways;

(4) establishing frameworks for joint ventures, licensing agreements, and United States-based co-production or manufacturing partnerships with Israeli industry;

(5) coordinating with relevant Department of Defense components, including the Irregular Warfare Technical Support Directorate, capability development and innovation divisions, the Under Secretary of Defense for Research and Engineering, the Defense Innovation Unit, the United States-Israel Operations Technology Working Group, the Defense Advanced Research Projects Agency, the Missile Defense Agency, the United States Space Command, the military departments, and other Department of Defense entities, as appropriate, to align efforts and avoid duplication; and

(6) promoting joint training exercises and information-sharing mechanisms to enhance operational readiness to deploy jointly developed technologies.

(b) COOPERATIVE EFFORTS.—The synchronized cooperative efforts under subsection (a) may be carried out through the following domains:

(1) Counter-Unmanned Systems including aerial, maritime, and ground platforms.

(2) Anti-tunneling and subterranean threats.

(3) Missile and air defense technologies.

(4) Artificial intelligence, quantum, machine learning, and autonomous systems.

(5) Directed energy and advanced sensing.

(6) Cyber defense, electronic warfare, and digital resilience.

(7) Biotechnology, biomanufacturing, and medical defense.

(8) Networks, data fusion, and contested logistics.

(9) Defense industrial base cooperation, manufacturing, and co-production.

(10) Other emerging technologies as jointly agreed by the United States and Israel.

(c) ACTIVITIES IN COORDINATION WITH OTHER FEDERAL DEPARTMENTS AND AGENCIES.—The Secretary of Defense shall coordinate activities, as appropriate, with the Secretary of State, the Secretary of Commerce, and the heads of other relevant Federal depart-

ments and agencies, to ensure consistency with existing laws and regulations.

(d) INTERIM PROGRESS UPDATE.—Not later than 180 days after the date of enactment of this Act, the Secretary of Defense shall provide to the congressional defense committees an interim briefing on—

(1) the executive agent designated pursuant to subsection (a) and the efforts undertaken by such executive agent to lead Department of Defense implementation of the synchronized cooperative efforts described in such subsection;

(2) the status of coordination, Department-wide, with Israeli counterparts;

(3) initial technology areas identified for accelerated cooperation and technologies with operational utility for United States systems and programs of record; and

(4) any early transition, prototyping, or integration activities initiated during the period covered by the update.

(e) ANNUAL REPORT.—Not later than 1 year after the date of enactment of this Act, and annually thereafter until the date on which there is no longer an executive agent designated under subsection (a), the Secretary of Defense shall submit to the congressional defense commit-

tees a report on implementation of the cooperative efforts described in subsection (a). Each such report shall include—

(1) a description of activities conducted;

(2) an assessment of progress made in advancing shared national security interests;

(3) an assessment of collaboration with other relevant Federal programs;

(4) a description of technologies transitioned into United States acquisition programs or fielded systems;

(5) a description of partnerships established with United States and Israeli industry; and

(6) recommendations for future opportunities to promote the long-term joint capabilities between the United States and Israel.

(f) FORM.—Each report required under subsection (e) shall be submitted in unclassified form and may include a classified annex.

(g) PUBLIC TRANSPARENCY.—The Secretary of Defense shall make available on a publicly accessible website of the Department of Defense periodic, unclassified updates, to the maximum extent practicable, on the synchronized cooperative efforts carried out under subsection (a), including a description of how these efforts contribute

to United States technological and military supremacy. Such updates shall be made in a manner that ensures that classified information or other information that would compromise operational security, export controls, or sensitive technology are not released.

SEC. 220. ESTABLISHMENT OF SYNTHETIC TRAINING ENVIRONMENT TO SUPPORT INDO-PACIFIC OPERATIONS.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Commander of the United States Indo-Pacific Command, shall establish a synthetic training environment that meets the requirements of subsection (b) to support operations in the Indo-Pacific Region.

(b) REQUIREMENTS.—The synthetic training environment established under subsection (a) shall—

(1) incorporate live, virtual, and constructive elements;

(2) integrate training, testing, and simulation capabilities across the area of responsibility of the United States Indo-Pacific Command;

(3) provide integrated synthetic training and mission rehearsal capabilities across all warfighting

domains, including land, maritime, air, space, cyberspace, and the electromagnetic spectrum;

(4) integrate and synchronize, to the maximum extent practicable, existing training, experimentation, and simulation capabilities of the Department of Defense;

(5) enable distributed training of joint and combined forces;

(6) support rehearsal of operational plans and crisis response;

(7) enable experimentation for emerging capabilities;

(8) be scalable to support additional combatant command requirements as directed by the Secretary of Defense; and

(9) be accessible to allies and partners of the United States, consistent with applicable law and security requirements.

(c) REPORT TO CONGRESS.—Before establishing the training environment under subsection (a), but not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report that includes—

(1) an explanation of how the Secretary intends to implement the synthetic training environment required under subsection (a);

(2) a cost estimate for the training environment;

(3) a plan for making the training environment accessible to allies and partners of the United States; and

(4) an assessment of the potential effects of the training environment on readiness.

SEC. 221. REQUIREMENT TO ESTABLISH TEST AND TRAINING CORRIDORS FOR SMALL UNMANNED AIRCRAFT SYSTEMS AND ASSOCIATED CAPABILITIES.

(a) IN GENERAL.—The Secretary of Defense shall establish or designate, and operate, one or more test and training corridors for small unmanned aircraft systems, counter-unmanned aircraft system platforms, and associated capabilities within the national airspace system.

(b) FACILITIES.—The Secretary of Defense may construct new facilities, or use existing facilities available to the Department of Defense, to support one or more test and training corridors established or designated under subsection (a) that collectively address each of the functions described in subsection (c).

(c) FUNCTIONS.—The Secretary of Defense shall ensure that any test and training corridor established or designated under subsection (a) enables the research, development, testing, and evaluation of, and training for members of the Armed Forces on—

(1) small unmanned aircraft systems and associated autonomy software, kinetic and nonkinetic payloads, sensors, communications, and navigation technology;

(2) kinetic and nonkinetic counter small-unmanned aircraft system capabilities, including high power microwave, high energy laser, and electronic warfare capabilities, and any requisite autonomy software, sensors, and command and control capabilities;

(3) small to medium caliber counter unmanned aircraft systems ammunition and weapon systems, low collateral damage weapons and munitions, and drone-versus-drone capabilities;

(4) the acceleration of the integration of modular payloads onto multiple unmanned aircraft systems and counter unmanned aircraft systems and platforms;

(5) the reduction in time-to-field for lethal and non-lethal drone-enabled munitions and munition payload capabilities; and

(6) standardization of payload-to-platform interfaces.

(d) SITE SELECTION.—In establishing or designating one or more test and training corridors under subsection (a), the Secretary of Defense, in coordination with the Director of the Test Resource Management Center and the Secretaries of the military departments, shall—

(1) identify potential locations within the national airspace system that would be conducive to conducting testing, evaluation, and training activities with respect to small unmanned aircraft systems and counter-small unmanned aircraft capabilities, with prioritization of sites that best support the test and training corridor functions described in subsection (c);

(2) assess whether existing test and evaluation facilities, including Government-owned and non-Government owned facilities, could be used to meet current and future requirements with respect to such testing, evaluation and training;

(3) identify any additional resources required to establish or designate, and operate the corridor, in-

cluding military construction costs and personnel and manning costs;

(4) identify any sensors and capabilities needed to adequately simulate operationally realistic environments in the corridor, including environments with denied or degraded—

(A) communications;

(B) electromagnetic spectrum; and

(C) global positioning system;

(5) identify any interagency, legal, regulatory, or policy impediments to carrying out testing, evaluation, and training activities with respect to small unmanned aircraft systems and counter-small unmanned aircraft capabilities within the national airspace system, including any impediments to the use of—

(A) electronic warfare;

(B) directed energy (such as high-powered microwave and high energy lasers);

(C) GPS jamming and spoofing;

(D) spectrum enabled and cellular-network enabled systems and capabilities; and

(E) other relevant capabilities;

(6) consult with interagency partners to develop recommendations for—

(A) addressing any impediments identified under paragraph (4); and

(B) ensuring the safety of testing and training activities conducted in the national airspace system; and

(7) consider diverse geographic regions across the United States.

(e) NOTIFICATION TO CONGRESS.—Not later than 90 days after establishing or designating a test and training corridor under subsection (a), the Secretary of Defense shall submit to the congressional defense committees a written notification that describes—

(1) the location of the corridor;

(2) any funding, personnel, or other resources required to support the corridor;

(3) any agreements with other Federal agencies that may be required to safely operate the corridor in the national airspace system; and

(4) specific statutory changes necessary to allow for rapid development, testing, and operational evaluation of unmanned systems and counter-unmanned system platforms within the designated corridors, including draft legislative text necessary to expedite development for such systems.

SEC. 222. OPERATIONAL AUTONOMY REQUIREMENTS FOR UNMANNED SURFACE VESSELS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Navy shall take such actions as may be necessary, including modification of research and development and acquisition procedures as appropriate, to ensure that unmanned surface vessels are capable of autonomous operation—

(1) during periods in which communications capabilities are denied, degraded, intermittent, or limited; and

(2) during periods in which positioning, navigation, and timing capabilities are degraded or unavailable.

(b) BRIEFING.—Following implementation of the actions required under subsection (a), but not later than 270 days after the date of the enactment of this Act, the Secretary of the Navy shall provide to the congressional defense committees a briefing on such actions. The briefing shall include an explanation of each of the following:

(1) The ability of unmanned surface vessels to execute preauthorized mission tasks without continuous human control.

(2) The ability of such vessels to adhere to defined autonomy behaviors, decision logic, and safety constraints governing mission execution.

(3) The ability of such vessels to adapt, recover, retask, or terminate missions in accordance with preestablished operational parameters when communications or positioning, navigation, and timing are degraded or unavailable.

(c) UNMANNED SURFACE VESSELS.—In this section, the term ''unmanned surface vessels'' includes—

(1) unmanned surface vessels in use by the Navy or Marine Corps; and

(2) unmanned surface vessels planned for development or procurement for the Navy or Marine Corps.

SEC. 223. REALIGNMENT OF THE NATIONAL STRATEGIC RESEARCH INSTITUTE TO THE DEPARTMENT OF THE AIR FORCE.

(a) TRANSFER OF RESPONSIBILITY.—Not later than two years after the date of the enactment this Act, the Under Secretary of Defense for Research and Engineering shall—

(1) designate the Air Force as the primary sponsor of the National Strategic Research Institute University Affiliated Research Center (referred to in this section as the ''Center''); and

(2) coordinate with the Secretary of the Air Force and the Commander of the United States

Strategic Command to ensure that the Center receives the funding and other resources necessary to meet the applicable requirements of the UARC Management Plan following such designation.

(b) RESOURCING PLAN.—Not later than 90 days after the date on which the designation under subsection (a)(1) occurs, the Secretary of the Air Force shall submit to the congressional defense committees a plan for providing funding and other resources to the Center in accordance with subsection (a)(2).

(c) DEFINITIONS.—In this section:

(1) The term ''prime sponsor'' has the meaning given that term in the UARC Management Plan.

(2) The term ''UARC Management Plan'' means the publication of the Department of Defense titled ''Department of Defense University Affiliated Research Center (UARC) Management Plan'', dated July 2010 (or any successor to such plan).

SEC. 224. REIMBURSEMENT OF NATIONAL GUARD FOR RESEARCH, DEVELOPMENT, TEST, AND EVALUATION EXPENSES.

(a) AVAILABILITY.—Amounts authorized to be appropriated after the date of the enactment of this Act for the Department of Defense for research, development, test, and evaluation shall be available for reimbursement

of pay, allowances, and other expenses which would otherwise be incurred against appropriations for the reserve components of the Armed Forces, including the National Guard, in cases in which members of the such reserve components provide support to research, development, test, and evaluation projects in which their involvement furthers the project because of a member's or unit's availability, qualifications, experience, or education.

(b) RULE OF CONSTRUCTION.—Nothing in this section shall be construed—

(1) to authorize a deviation from established personnel and training procedures of the reserve components of the Armed Forces, including the National Guard; or

(2) to authorize the direct engagement of members or units of such components to conduct independent research, development, test, and evaluation projects.

SEC. 225. USE OF INNOVATIVE AND EMERGING FOOD PRODUCTION TECHNOLOGIES FOR COMPONENTS OF MILITARY RATIONS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that requirements for the future battlefield include dealing with contested logistics that—

(1) cannot be achieved with the size and weight of currently fielded rations; and

(2) could be mitigated by incorporating within rations, components produced with emerging and innovative technologies developed in partnership with the Department of Defense Combat Feeding Research and Engineering Program.

(b) ACTIVITIES REQUIRED.—Subject to the availability of appropriations for such purpose, the Secretary of Defense shall carry out the following activities with respect to military rations:

(1) The Secretary shall seek to enter into one or more contracts for the procurement of rations produced using emerging food technologies such as sonic agglomeration and vacuum microwave drying to reduce size and weight.

(2) The Secretary shall maximize the use of the technologies described in paragraph (1) for individual combat ration components to ensure successful technology transition from small business innovation research and research, development, test, and evaluation.

(3) As operational needs allow, the Secretary shall prioritize clean-label, nutrient-dense compo-

nents that do not contain unhealthy fats or artificial preservatives.

(c) REPORT TO CONGRESS.—Not later than 120 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report that includes the following:

(1) A description of any emerging and innovative food processing technologies that have been developed or are being developed using research, development, test, and evaluation investments of the Department of Defense.

(2) The total amount of Department of Defense investments in the development of sonic agglomeration and vacuum microwave drying technology for military rations, disaggregated by research, development, test, and evaluation budget activity, including small business innovation research.

(3) The results of warfighter field testing of potential ration components produced with the technologies described in paragraph (2).

(4) An explanation of quantitative and qualitative logistical and nutritional benefits of ration components produced using such technologies.

(5) A description of any procurement processes for military rations that may be barriers to the ac-

quisition of components produced with new and emerging food processing technologies.

(6) A description of any activities carried out to advance the transition and adoption of such technologies to better meet the challenges of military operations in a contested logistics environment.

SEC. 226. SUPPORT FOR ADVANCED TECHNOLOGIES THAT STRENGTHEN UNITED STATES AGRICULTURAL PRODUCTION, AGRIFOOD SYSTEMS, AND ASSOCIATED BIOINDUSTRIAL MANUFACTURING CAPACITY.

(a) IN GENERAL.—The Under Secretary of Defense for Research and Engineering, in coordination with the Secretary of Agriculture, may carry out activities to support the development, testing, validation, demonstration, and transition of advanced technologies that strengthen the resilience, security, and operational continuity of United States agricultural production, agrifood systems, and associated bioindustrial manufacturing capacity against biological threats, supply chain disruptions, natural disasters, and other risks to national security, including technologies relating to—

(1) agricultural biosecurity, including detection, prevention, mitigation, and recovery relating to plant

disease, livestock disease, invasive species, and other biological threats;

(2) advanced plant, animal, microbial, and bio-industrial technologies supporting defense readiness, domestic manufacturing capacity, and supply chain security;

(3) engineering, automation, artificial intelligence, autonomous systems, and data systems supporting agricultural production, logistics, and operational resilience;

(4) natural resource management technologies relating to water, energy, soil, forests, and food systems that reduce scarcity risks and enhance civilian and military resilience; and

(5) wildfire prediction, prevention, mitigation, response, and recovery technologies relevant to agricultural productivity, infrastructure resilience, and military readiness.

(b) ACTIVITIES.—The activities carried out under subsection (a) shall include—

(1) interagency collaboration to accelerate research, development, testing, evaluation, field validation, demonstration, deployment, and transition of technologies described in subsection (a);

(2) collaboration with Federal agencies, federally funded research and development centers, national laboratories, institutions of higher education, nonprofit organizations, and private sector entities; and

(3) prioritization, to the extent practicable, of projects demonstrating clear potential to enhance food security, operational readiness, domestic production resilience, or defense supply chain security.

(c) REPORTING.—Not later than 180 days after the date of the enactment of this Act, the Under Secretary of Defense for Research and Engineering, in coordination with the Secretary of Agriculture, shall submit to the congressional defense committees an implementation plan for activities to be carried out under this section.

(d) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to limit authorities of the Department of Defense or the Department of Agriculture that—

(1) were in effect on the day before the date of the enactment of this Act; and

(2) authorize or require conduct or support of research, development, testing, evaluation, or operational activities.

SEC. 227. PRIZE COMPETITIONS TO SUPPORT THE RESEARCH AND DEVELOPMENT OF BIOTECHNOLOGY FOR THE DEPARTMENT OF DEFENSE.

(a) PROGRAM REQUIRED.—

(1) IN GENERAL.—Pursuant to the authority provided under section 4025 of title 10, United States Code, the Secretary of Defense shall carry out a program (referred to in this section as the ''Program'') to award prizes to support the research, development, and commercialization of biotechnology-based capabilities that address priority areas identified by the Secretary under subsection (b).

(2) ADDITIONAL REQUIREMENTS.—The Secretary shall—

(A) before commencing prize competitions under the Program, establish requirements for the prize competition process, including—

(i) eligibility criteria for participants consistent with paragraph (3); and

(ii) procedures for the testing, judging, and verification of submissions to the competitions; and

(B) ensure that information on the prize competitions is made available to eligible par-

ticipants, including by conducting outreach and posting such information to a publicly accessible website of the Department of Defense.

(3) ELIGIBLE PARTICIPANTS.—To be eligible for a prize award under the Program, an individual or entity shall meet the requirements described in section 24(g)(3) of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719(g)(3)).

(4) JUDGES.—In accordance with section 24(k) of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719(k)), an individual from the private sector may be appointed as a judge for a prize competition under the Program.

(5) COORDINATION.—The Secretary of Defense shall carry out the Program acting through the head of the Biotechnology Management Office of the Department of Defense and in consultation with the Secretaries of the military departments and relevant officials from laboratories of the Armed Forces and other appropriate elements of the Department of Defense.

(6) DEADLINE.—The Secretary of Defense shall commence implementation of the Program not later than one year after the date of the enactment of this Act.

(b) SELECTION OF PRIORITY AREAS.—

(1) IN GENERAL.—Before commencing prize competitions under the Program, but not later than one year after the date of the enactment of this Act, the Secretary of Defense shall identify and select specific, well-defined, and measurable priority areas of biotechnology research and development to be advanced through the award of prizes under the Program.

(2) BIOTECHNOLOGY APPLICATIONS.—In carrying out paragraph (1), the Secretary is encouraged to identify and select priority areas that support the following applications of biotechnology for defense purposes:

(A) Bioenergetics.

(B) Biobased material, including for use in existing and planned systems where such materials could provide improved performance over traditional material.

(C) Biomining, including for critical minerals.

(D) Biomanufacturing platforms and processes, including for modular or deployable systems.

(E) Biotechnology convergence with other technologies and subject areas, including artificial intelligence, advanced manufacturing, and advanced computing.

(3) PUBLIC INPUT AND OTHER CONSIDERATIONS.—In identifying and selecting priority areas under paragraph (1), the Secretary shall—

(A) solicit and consider public input; and

(B) consider—

(i) relevant existing and planned programs and activities of Department of Defense and other research and development entities of the Federal Government;

(ii) the likelihood of relevant research or development being conducted by the private sector without further support from the Federal Government;

(iii) the likelihood that investment in an area by the Department of Defense will result in improved capabilities or readiness, including by increasing supply chain resilience; and

(iv) whether such an investment would foster innovation beyond the primary goal of the proposed priority area.

SEC. 228. PILOT PROGRAM TO RECOGNIZE OUTSTANDING ACHIEVEMENTS IN TECHNOLOGY AND PROTOTYPE DEVELOPMENT.

(a) PILOT PROGRAM.—The Director of the Defense Innovation Unit (referred to in this section as the Director) shall carry out a pilot program under which the Director awards prizes, on a competitive basis, to recognize outstanding achievements in technology development and prototype development that—

(1) have the potential to address operational problems and capability gaps identified by the Secretary of Defense, the Secretaries of the military departments, and combatant commanders; or

(2) have potential for application to the performance of the military missions of the Department of Defense.

(b) FORM OF PRIZES.—Prizes awarded under this section may include—

(1) cash prizes; or

(2) the award of contracts or other agreements.

(c) INFORMATION DISSEMINATION.—The Director shall carry out activities to publicize the prize competitions carried out under this section and to solicit participation in such competitions from eligible individuals and entities.

(d) PRIZE MAXIMUM AND COINVESTMENT REQUIREMENTS.—

(1) MAXIMUM VALUE.—The value of a prize awarded under this section may not exceed $15,000,000.

(2) COINVESTMENT.—The Director may award a prize under this section without receiving approval from the Under Secretary of Defense for Research and Engineering if—

(A) the value of the prize is not more than $2,000,000; or

(B) in the case of a prize with a value exceeding $2,000,000, at least half of the funds for the portion of the prize in excess of $2,000,000 are provided by the portfolio acquisition executive of an organization of the Department of Defense outside the Defense Innovation Unit.

(e) USE OF PRIZE AUTHORITY.—Use of prize authority under this section shall be considered the use of competitive procedures for the purposes of chapter 221 of title 10, United States Code.

(f) COMMENCEMENT AND TERMINATION.—

(1) DEADLINE FOR COMMENCEMENT.—The Director shall commence implementation of the pilot program under subsection (a) not later than 90 days after the date of the enactment of this Act.

(2) TERMINATION.—The authority to carry out the pilot program under subsection (a) shall terminate on the date that is three years after the date of the enactment of this Act.

(g) CONGRESSIONAL NOTICE.—

(1) IN GENERAL.—Not later than 15 days after a contract or other agreement that exceeds a fair market value of $2,000,000 is awarded under this section, the Director shall submit to the congressional defense committees written notice of such award.

(2) CONTENTS.—Each notice submitted under paragraph (1) shall include—

(A) the value of the relevant contract or other agreement, as applicable, including all options;

(B) an identification of any portfolio acquisition executive responsible for implementation or oversight of technology development or prototype development (as applicable) for which an award was made under this section, and a brief summary of lessons learned by such portfolio acquisition executive in carrying out such implementation or oversight;

(C) a brief description of the technology development or prototype for which such contract or other agreement, as applicable, was awarded; and

(D) an explanation of the benefit to the performance of the military mission of the Department of Defense resulting from the award.

(h) PORTFOLIO ACQUISITION EXECUTIVE DEFINED.—In this section, the term ''portfolio acquisition executive'' has the meaning given that term in section 1737 of title 10, United States Code.

SEC. 229. PILOT PROGRAM ON FORWARD DEPLOYABLE BIOMANUFACTURING CAPABILITIES.

(a) AUTHORIZATION.—The Under Secretary of Defense for Research and Engineering, in coordination with the Secretary of the Army, may carry out a pilot program—

(1) to identify near-term and long-term use cases for forward deployable mobile biomanufacturing capabilities; and

(2) to conduct demonstrations of such capabilities.

(b) ACTIVITIES.—In carrying out the pilot program under subsection (a), the Under Secretary of Defense for Research and Engineering may—

(1) consider the use of novel manufacturing processes and equipment, including automation, modularity, and miniaturization of production capabilities;

(2) collaborate with industry to develop forward deployable mobile biomanufacturing capabilities; and

(3) consider the security measures required for such capabilities when forward deployed.

(c) REPORT.—Not later than one year after the date of the enactment of this Act, the Under Secretary of Defense for Research and Engineering shall submit to the congressional defense committees a report on the status of the pilot program under subsection (a). The report shall include—

(1) an assessment of existing Department of Defense capabilities related to biomanufacturing and an explanation of whether and how those capabilities may be used as part of the pilot program;

(2) identification of near-term and long-term use cases for the deployment of mobile biomanufacturing;

(3) for each use case identified under paragraph (2), a comparison of the estimated cost of fulfilling such use case through domestic biomanufacturing at an industrial scale versus the cost of ful-

filling such use case using mobile biomanufacturing at the miniaturized scale;

(4) an assessment of security measures required to deploy forward deployable mobile biomanufacturing capabilities; and

(5) an assessment of the viability of transitioning technology developed under the pilot program into operational use within the Department, including the resources needed for further development and scaling of such technology and the potential benefits of such technology.

SEC. 230. PILOT PROGRAM ON THE USE OF AUTOMATED DATA SECURITY POSTURE MANAGEMENT TECHNOLOGIES FOR ARTIFICIAL INTELLIGENCE SYSTEMS.

(a) ESTABLSIHIMENT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Army shall establish and commence implementation of a pilot program to evaluate the use of commercially available automated data security posture management technologies to enhance the cybersecurity, effectiveness, and reliability of artificial intelligence systems.

(b) ELEMENTS.—In carrying out pilot program under subsection (a) the Secretary of the Army shall—

(1) identify, select, and deploy at least one commercially available data security posture management technology platform that is capable of continuous, automated monitoring and assessment of artificial intelligence systems for security threats specific to such systems;

(2) designate at least one artificial intelligence system currently deployed by the Army to demonstrate the data security posture managed technology platform selected under paragraph (1);

(3) complete the demonstration described in paragraph (2);

(4) train relevant personnel on the deployment, maintenance, and data interpretation of the demonstrated data security posture management technology platform;

(5) evaluate the demonstrated data security posture management technologies—

(A) across the different tasks involved in development, deployment, storage, or hosting of components of such artificial intelligence system;

(B) to determine the ability of such technologies to identify, mitigate and restore any corruption or malicious manipulation of the ap-

plications or data of such artificial intelligence system; and

(C) for compatibility and ease of adoption into the value chains of existing artificial intelligence systems of the Army;

(6) assess the feasibility of broader deployment of commercially available automated data security posture management technologies to improve the trustworthiness, resilience and integrity of artificial intelligence systems maintained by the Army.

(c) REPORTS.—

(1) PROGRESS REPORT.—Not later than 120 days after the date on which the Secretary of the Army commences the pilot program under subsection (a), and annually thereafter until the termination date specified un subsection (d), the Secretary of the Army shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the status of implementation and preliminary findings of the pilot program, including with respect to each element described in subsection (b).

(2) FINAL REPORT.—Not later than 180 days after the termination date specified in subsection (d), the Secretary of the Army shall submit to the

Committees on Armed Services of the Senate and the House of Representatives a final report on the results of the pilot program. The report shall include—

(A) any recommendations of the Secretary with respect to the broader implementation commercially available automated data security posture management technologies to support artificial intelligence systems of the Army; and

(B) an assessment of the costs and benefits of such technologies.

(d) TERMINATION.—The pilot program under subsection (a) shall terminate on the date that is three years after the date on which the Secretary of the Army commences the pilot program.

SEC. 231. PILOT PROGRAM ON TECHNOLOGIES TO STRENGTHEN AUTHENTICATION AND ATTRIBUTION OF HUMAN AUTHORIZATION FOR CONSEQUENTIAL ACTIONS.

(a) PILOT PROGRAM AUTHORIZED.—The Secretary of Defense may carry out a pilot program to evaluate commercially available technologies that strengthen authentication and attribution of human authorization for consequential actions in order to improve the cybersecurity

and physical security posture of the Department of Defense.

(b) OBJECTIVES.—Under the pilot program, the Secretary of Defense shall evaluate technologies that—

(1) strengthen access controls for systems and physical areas of the Department of Defense; and

(2) can be integrated across various environments of the Department without requiring specialized hardware.

(c) COMENCEMENT AND DURATION.—If the Secretary of Defense exercises the authority to carry out the pilot program under subsection (a), the program shall—

(1) commence not later than 180 days after the date of the enactment of this Act; and

(2) terminate not later than one year after the date on which the program is commenced.

(d) REPORT.—Not later than March 1, 2028, the Secretary of Defense shall submit to the congressional defense committees a report that includes—

(1) a summary of the results of the pilot program under subsection (a); and

(2) recommendations regarding adoption the technologies evaluated under the program at a wider scale across the Department of Defense.

SEC. 232. CLOUD LABORATORY PILOT PROGRAM.

(a) CLOUD LABORATORY PILOT PROGRAM.—

(1) PROGRAM REQUIRED.—

(A) IN GENERAL.—The Secretary of Defense shall carry out a pilot program to support the establishment of cloud laboratories at the Department of Defense.

(B) REQUIREMENTS.—Each cloud laboratory supported under the pilot program shall generate high-quality data that shall be collected for use and analysis by authorized researchers.

(2) IMPLEMENTATION.—

(A) INITIAL LABORATORY.—Not later than one year after the date of the enactment of this Act and subject to the availability of appropriations, the Secretary shall establish at least one fully operational cloud laboratory.

(B) ADDITIONAL LABORATORIES.—Not later than three years after the date of the enactment of this Act and subject to the availability of appropriations, the Secretary shall, on a competitive basis, establish not fewer than two additional fully operational cloud laboratories.

(C) BIOTECHNOLOGY-FOCUSED LABORATORY.—At least one of the cloud laboratories established under this paragraph shall be focused on advancing research and development of biotechnology.

(3) IMPLEMENTATION PLAN.—Not later than one year after the date of enactment of this Act, the Secretary shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report that includes the following:

(A) A plan to establish the cloud laboratories.

(B) A plan for building in considerations related to cybersecurity, biosecurity, and research security from the beginning of development for each cloud laboratory.

(b) DEFINITIONS.—In this section:

(1) The term ''artificial intelligence'' has the meaning given such term in section 5002 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283;15 U.S.C. 9401).

(2) The term ''authorized researcher'' refers to an individual who has been appropriately authorized to access data generated by the cloud laboratories

supported under the pilot program, as determined by the Secretary using an authorization process established by the Secretary for such purpose.

(3) The term ''cloud laboratory'' means a physical laboratory that is equipped with automation and data storage to conduct continuous experiments.

(4) The term ''Secretary'' means the Secretary of Defense.

SEC. 233. PILOT PROGRAM TO TEST AND EVALUATE MUZZLE BLAST OVERPRESSURE MITIGATION DEVICES.

(a) PROGRAM REQUIRED.—The Secretary of Defense, in coordination with the Secretaries of the military departments, shall carry out a pilot program to evaluate, test, and implement muzzle blast overpressure mitigation devices for small and medium caliber weapons in relevant training and operational environments.

(b) ACTIVITIES.—Under the pilot program, the Secretary of Defense shall—

(1) assess the effectiveness of commercially available and emerging muzzle blast overpressure mitigation devices in reducing blast exposure to operators and nearby personnel;

(2) evaluate the operational suitability, durability, and performance effects of such devices across representative weapon systems and mission sets; and

(3) collect information to inform future Department of Defense policies, requirements, procurement decisions, and force-wide implementation strategies relating to blast overpressure mitigation.

SEC. 234. SPACE TECHNOLOGY DEMONSTRATION OF ADVANCED NUCLEAR PROPULSION TECHNOLOGIES.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force, acting through the Commander of the Air Force Research Laboratory, may establish a pilot program to conduct in-space technology demonstrations, and related risk reduction technology development activities, with respect to both advanced nuclear fission propulsion systems and advanced nuclear fusion propulsion systems.

(b) PURPOSE.—If the Secretary carries out the pilot program under subsection (a), the Secretary shall carry out the pilot program in a manner that reduces technical risk and informs future development requirements relating to nuclear propulsion for national security missions in space, including potential operations beyond geosynchronous orbit, including in cislunar orbit.

(c) SELECTION.—If the Secretary carries out the pilot program under subsection (a), the Secretary shall select entities to carry out activities under the pilot program. In determining the criteria for making such selection, the Secretary shall emphasize previous subcomponent and prototype development and the ability to demonstrate within reasonable timeframes.

(d) DEMONSTRATION REQUIRED.—If the Secretary carries out the pilot program under subsection (a), not later than three years after the date of the enactment of this Act, the Secretary shall conduct in-space demonstrations described in subsection (a), with oversight by the Air Force Research Laboratory Rocket Propulsion Division at Edwards Air Force Base, California.

(e) ACTIVITIES.—In carrying out the pilot program under subsection (a), the Secretary shall, at a minimum—

(1) establish technical objectives and success criteria for the in-space demonstrations described in subsection (a);

(2) develop a concept of operations and test and evaluation approach for the demonstrations;

(3) conduct ground test activities necessary to support the demonstrations;

(4) assist in the acquisition of launch services;

(5) plan for collection and analysis of on-orbit data sufficient to assess propulsion performance, operability, and reliability; and

(6) assess potential use cases for applications in cislunar operations pending the conclusion of the demonstrations.

(f) PLAN.—Before commencing the pilot program under subsection (a), the Secretary shall submit to the congressional defense committees a plan on the pilot program.

(g) REPORT.—If the Secretary carries out the pilot program under subsection (a), not later than one year after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report on the pilot program. The report shall include—

(1) a description of the activities carried out under the pilot program, including the planned demonstration concept of operations and the associated timeline;

(2) the technical objectives and success criteria established under subsection (e)(1);

(3) an assessment of major technical risks and planned risk-mitigation activities; and

(4) an assessment of parallel efforts by the People's Republic of China to develop and deploy ad-

vanced space propulsion technologies for strategic purposes.

SEC. 235. PROHIBITION ON PILOT TRAINEES OPERATING T–7 AIRCRAFT PENDING TESTING AND CORRECTIVE ACTIONS.

(a) IN GENERAL.—A pilot trainee may not operate a T–7 aircraft of the Air Force until the Secretary of the Air Force certifies to the Committees on Armed Services of the Senate and the House of Representatives that each of the following conditions have been met:

(1) All corrections to flight control laws and mission systems discovered in developmental testing of such aircraft are fully implemented.

(2) The subsonic, transonic, and supersonic full operational flight and performance envelopes of such aircraft are fully tested and characterized.

(3) Qualification testing of the Ground Based Training System for such aircraft is fully completed and all deficiencies are resolved.

(b) PILOT TRAINEE DEFINED.—In this section, the term ''pilot trainee'' means a non-rated officer of the Air Force enrolled as a student participating in a formal undergraduate pilot training course.

SEC. 236. PROHIBITION ON AVAILABILITY OF FUNDS FOR GAIN OF FUNCTION RESEARCH.

(a) PROHIBITION.—None of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of Defense may be obligated or expended—

(1) to conduct gain-of-function research on any potential pandemic pathogen at any facility operated by or on behalf of the Department; or

(2) to award contracts, grants, cooperative agreements, or any other form of financial assistance to any institution of higher education, nonprofit organization, private entity, or other research institute that is conducting gain-of-function research on potential pandemic pathogens.

(b) WAIVER.—

(1) IN GENERAL.—The Secretary of Defense may waive the prohibition under subsection (a) on a case-by-case basis, with respect to an individual research project, grant, contract, or cooperative agreement, if the Secretary determines that such a waiver is in the national interests of the United States.

(2) CONGRESSIONAL NOTICE.—Not later than 30 days before the date on which an award is made, a project is initiated, or an agreement entered into, with respect to which a waiver is made under para-

graph (1), the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives notice of such waiver.

(c) DEFINITIONS.—In this section:

(1) The term ''gain-of-function research'' means any research that may be reasonably anticipated to confer an attribute to a pathogen such that the pathogen would have enhanced pathogenicity or transmissibility in mammals.

(2) The term ''potential pandemic pathogen'' means a pathogen that, as a result of any gain-of-function research—

(A) is likely more transmissible or likely capable of wide and uncontrollable spread in human populations;

(B) is likely more virulent or likely to cause modest or greater morbidity or mortality in humans; or

(C) is likely to pose a severe threat to public health, the capacity of the public health systems to function, or national security.

SEC. 237. PROHIBITION ON AVAILABILITY OF FUNDS FOR ANIMAL RESEARCH IN COLLABORATION WITH FOREIGN COUNTRIES OF CONCERN.

(a) PROHIBITION.—None of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of Defense may be obligated or expended—

(1) to carry out research, development, test, evaluation, or training activities involving animals—

(A) in collaboration with a foreign country of concern; or

(B) at any facility located in, or owned or controlled (directly or indirectly) by, a foreign country of concern; or

(2) to enter into a contract or other agreement, or make a grant, pursuant to which such activities would be carried out.

(b) FOREIGN COUNTRY OF CONCERN DEFINED.—In this section, the term ''foreign country of concern'' has the meaning given that term in section 9901 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 15 U.S.C. 4651).

SEC. 238. PRIORITIZATION OF PARTNERSHIPS WITH INSTITUTIONS OF HIGHER EDUCATION IN CERTAIN RESEARCH AREAS.

(a) IN GENERAL.—In exercising the authority to enter into partnerships to support the research, development, test, and evaluation activities of the Department of Defense, the Secretary of Defense shall prioritize partnerships with institutions of higher education conducting research on hypersonics, biotechnology, and artificial intelligence.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report that identifies any ongoing partnerships with institutions of higher education as described in subsection (a).

SEC. 239. MOBILE DEVICE FORCE PROTECTION AGAINST COMMERCIAL SURVEILLANCE THREATS.

(a) PILOT PROGRAM.—

(1) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall establish a pilot program to evaluate mobile device force protection technologies intended to reduce the operational exposure of covered personnel arising from application-generated signals.

(2) PARTICIPATION.—The Secretary shall make participation in the pilot program available to the military departments, the combatant commands, and other covered organizations seeking to participate.

(3) ACQUISITION AUTHORITIES.—The Secretary shall, to the maximum extent practicable, use existing rapid acquisition authorities and other transaction authorities to minimize administrative barriers to participation in the pilot program.

(4) MEASURES OF EFFECTIVENESS.—The Secretary shall establish objective, outcome-based measures of effectiveness before the initiation of the pilot program.

(b) MINIMUM OPERATIONAL REQUIREMENTS.—A technology evaluated under the pilot program shall demonstrate the ability to—

(1) identify applications generating signals relevant to force protection;

(2) determine the destinations receiving such signals;

(3) characterize the categories of information transmitted in sufficient detail to assess operational exposure;

(4) distinguish legitimate application functionality from analytics, diagnostics, advertising, profiling, and related exploitation activities;

(5) maintain auditable records and generate commander-level reporting sufficient to support force protection decisions;

(6) actively control application-generated transmissions, including the ability to block, throttle, or otherwise govern which signals leave the device and the destinations to which they may be sent, and not merely to observe, characterize, or report them;

(7) enable the Department of Defense, and not solely a vendor, to independently verify the matters described in paragraphs (1) through (6) and to confirm measured reductions in operational exposure; and

(8) adapt as commercial surveillance techniques evolve.

(c) TRANSITION AND OPERATIONAL ADOPTION.—

(1) DETERMINATION.—Not later than 90 days after the evaluation of a technology is completed under the pilot program, the Secretary shall determine whether the evaluated technology demonstrated measurable reductions in operational exposure associated with commercial mobile surveillance.

(2) ADOPTION.—If the Secretary determines that the effectiveness of a technology evaluated under the pilot program has been adequately demonstrated, the Secretary may authorize operational deployment of the technology without initiating a duplicative requirements process.

(3) TRANSITION PATHWAYS.—The Secretary shall identify potential transition pathways for a technology before evaluating the technology under the pilot program.

(d) CONTINUOUS ASSESSMENT.—

(1) FRAMEWORK.—The Secretary shall establish a continuous assessment framework applicable to deployed mobile device force protection technologies, under which each such technology is reviewed not less frequently than annually to evaluate whether it continues to reduce operational exposure arising from commercial mobile surveillance.

(2) ANNUAL REPORT.—Not less frequently than annually, the Secretary shall submit to the congressional defense committees a report that summarizes the findings of the assessments conducted under paragraph (1), identifies emerging commercial surveillance techniques, documents the effectiveness of

deployed technologies, and recommends modifications to standards and procurement approaches.

(e) DEGRADATION AND REASSESSMENT.—If the Secretary determines that a deployed mobile device force protection technology no longer provides meaningful protection against identified threats, the Secretary shall initiate a review of alternative capabilities using the authorities established under this section.

(f) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to require the use of a particular technical architecture, implementation methodology, or commercial vendor. The requirements established under this section are intended to define the operational outcomes necessary to support force protection and not to prescribe the means by which those outcomes are achieved.

(g) DEFINITIONS.—In this section:

(1) The term ''application-generated signal'' means any data transmitted from a mobile device by, or on behalf of, a software application, including data derived from device sensors, network and environmental observations, diagnostic and behavioral telemetry, and embedded software development kits, whether or not the data includes a persistent identifier.

(2) The term ''covered personnel'' means—

(A) members of the Armed Forces;

(B) civilian employees of the Department of Defense;

(C) contractors supporting the Department of Defense;

(D) employees of entities engaged in the development or manufacture of weapons systems or other defense articles; and

(E) any other category of personnel designated by the Secretary of Defense whose duties involve heightened operational security considerations.

(3) The term ''mobile device force protection technology'' means a technology or capability intended to identify, observe, characterize, audit, report upon, restrict, suppress, or otherwise manage application-generated signals that may contribute to operational surveillance or pattern-of-life reconstruction affecting covered personnel.

(4) The term ''Secretary'' means the Secretary of Defense.

SEC. 240. MODIFICATIONS TO JOINT ARTIFICIAL INTELLIGENCE RESEARCH, DEVELOPMENT, AND TRANSITION ACTIVITIES.

(a) IN GENERAL.—Section 238 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 10 U.S.C. 4061 note prec.) is amended—

(1) in subsection (a)—

(A) by amending paragraph (1) to read as follows:

''(1) IN GENERAL.—The Secretary of Defense shall maintain within the Department of Defense a set of activities, led by the Chief Digital and Artificial Intelligence Officer (referred to in this section as the 'CDAO'), to coordinate the efforts of the Department to develop, mature, and transition artificial intelligence technologies into operational use, and to prepare the Department for the national security implications of artificial general intelligence and other forms of highly advanced artificial intelligence.''; and

(B) by adding at the end the following new paragraph:

''(3) ARTIFICIAL GENERAL INTELLIGENCE PREPAREDNESS.—The set of activities established under paragraph (1) shall include a dedicated initiative (re-

ferred to in this section as the 'AGI Preparedness Initiative') to—

''(A) study and prepare for the national security implications of artificial general intelligence;

''(B) analyze strategic competition with the People's Republic of China and other adversaries with respect to artificial general intelligence and highly advanced artificial intelligence; and

''(C) develop countermeasures against adversary artificial intelligence-enabled military capabilities.'';

(2) in subsection (d)—

(A) in paragraph (2)—

(i) in subparagraph (J), by striking ''and'' at the end;

(ii) in subparagraph (K), by striking the period at the end and inserting a semicolon; and

(iii) by adding at the end the following new subparagraphs:

''(L) review relevant industry, scientific, and classified documents describing artificial general intelligence and other forms of highly

advanced artificial intelligence, including the preparedness frameworks, scaling policies, and risk management frameworks of advanced artificial intelligence developers;

''(M) develop and maintain an internal set of definitions for the Department that characterizes tiers of artificial general intelligence to inform intelligence collection requirements, program and procurement requirements, and national strategy around advanced artificial intelligence competition, with emphasis on describing the capabilities of artificial intelligence systems with the most significant impacts for national security and strategic competition, including chemical, biological, radiological, and nuclear capabilities, advanced cyber capabilities, model autonomy, strategic deception, advanced research and development capabilities in military domains, and advanced research and development capabilities for producing increasingly powerful artificial intelligence;

''(N) develop and conduct unclassified and classified scenario exercises, wargames, tabletop exercises, and other similar efforts to understand how artificial general intelligence and ad-

vanced artificial intelligence capabilities could present acute national security risks or crises, pose risks to existing Department operational plans, or create strategic opportunities for the United States;

''(O) develop preparedness plans detailing governmental response strategies to scenarios described in subparagraph (N), including detailed information describing how the Department would coordinate with relevant United States entities, including advanced artificial intelligence developers, compute cluster providers, and relevant government officials, in the event of an acute national security risk or crisis;

''(P) identify potential gaps in the Department's authorities, relationships, personnel, or other factors that could affect the Department's ability to address scenarios described in subparagraph (N) or execute plans described in subparagraph (O);

''(Q) develop a detailed approach to limit the proliferation of artificial general intelligence and other highly advanced artificial intelligence systems by defining artificial intelligence systems with critical capabilities that would pose a

grave national security threat if acquired or stolen by adversaries, reviewing and potentially drawing from approaches derived from Department of Energy practices for handling Restricted Data and Formerly Restricted Data, as well as approaches for handling other national security information;

''(R) assess the value of creating a centralized, highly secure, Department-led project to develop artificial general intelligence or other highly advanced artificial intelligence in a secure environment, including examination of the chain-of-command, size and location of such project, resources and personnel required, cyber and physical security protocols, counterintelligence and anti-espionage measures against the People's Republic of China and other foreign adversaries, contingency and emergency response plans, and geopolitical considerations; and

''(S) prepare strategies to protect the weights of advanced artificial intelligence systems, core insights required to develop or deploy advanced artificial intelligence systems, and other sensitive technical information from

highly resourced adversaries, including nation-states.''; and

(B) by adding at the end the following new paragraphs:

''(4) ADVERSARY ARTIFICIAL INTELLIGENCE ANALYSIS.—

''(A) IN GENERAL.—The CDAO shall establish a dedicated analytical cell to continuously monitor, assess, and report on the progress of the People's Republic of China and other adversaries designated by the Secretary in developing artificial general intelligence and advanced artificial intelligence capabilities for military and intelligence applications.

''(B) DUTIES.—Such analytical cell shall—

''(i) coordinate with the Defense Intelligence Agency, the National Security Agency, the Central Intelligence Agency, and other elements of the intelligence community to ensure timely access to classified reporting on adversary artificial intelligence development programs;

''(ii) produce, not less frequently than annually, classified assessments of adversary artificial intelligence military capabili-

ties, including identified applications in autonomous weapons systems, command and control, intelligence analysis, cyber operations, electronic warfare, and information operations;

''(iii) develop and maintain a classified database of identified People's Republic of China artificial intelligence military programs, key personnel, institutional relationships, supply chain dependencies, and assessed capability timelines;

''(iv) assess the effectiveness of existing United States technology control and denial measures in constraining adversary artificial intelligence capabilities and recommend modifications as needed, in coordination with other relevant interagency bodies;

''(v) develop specific countermeasure recommendations and identify vulnerabilities in adversary artificial intelligence systems that could be exploited to maintain United States military advantage; and

''(vi) identify strategies for improving strategic competition relating to advanced artificial intelligence, including strategies to ensure United States leadership in global artificial intelligence competition and strategies to avoid or mitigate national security threats from such competition.

''(C) PERSONNEL.—The analytical cell required by this paragraph shall include personnel with demonstrated expertise in People's Republic of China military modernization, technical artificial intelligence competence, and intelligence analysis.

''(5) COUNTERMEASURE DEVELOPMENT.—The CDAO shall, in coordination with the Under Secretary of Defense for Research and Engineering and the Director of the Defense Advanced Research Projects Agency, develop and maintain a classified program of research and development focused on countermeasures against adversary artificial intelligence-enabled military capabilities, including autonomous weapons systems, artificial intelligence-directed cyber operations, artificial intelligence-enhanced intelligence collection, and artificial intelligence-enabled command and control systems.

"(6) WORKFORCE REQUIREMENTS.—

"(A) IN GENERAL.—Not later than 180 days after the date of the enactment of this paragraph, the CDAO shall develop and submit to the congressional defense committees minimum qualification standards for personnel assigned to artificial general intelligence preparedness functions under this section, including requirements for technical expertise in machine learning, neural network architectures, computational infrastructure, and artificial intelligence safety and alignment research.

"(B) HIRING AUTHORITY.—The CDAO shall establish a competitive hiring authority, consistent with section 1599f of title 10, United States Code, to recruit and retain individuals with demonstrated expertise in advanced artificial intelligence research and development from private industry, academia, and national laboratories.

"(C) TECHNICAL STAFF.—Not less than 50 percent of the technical staff assigned to artificial general intelligence preparedness functions under this section shall possess graduate-level education or equivalent professional experi-

ence in artificial intelligence, machine learning, computer science, or a directly related field.

''(D) EXCHANGE PROGRAM.—The Secretary of Defense shall establish an exchange program with leading artificial intelligence research laboratories and companies to provide personnel assigned to functions under this section with rotational assignments of not less than 90 days to maintain current technical expertise.

''(E) REPORT.—Not later than one year after the date of the enactment of this subparagraph, and annually thereafter, the CDAO shall submit to the congressional defense committees a report on the status of workforce recruitment and retention for functions under this section, including the number of billets authorized and filled, attrition rates, average tenure, and an assessment of the competitiveness of Department compensation relative to the private sector for comparable artificial intelligence positions.

''(7) SENIOR LEADER ARTIFICIAL INTELLIGENCE EDUCATION.—

''(A) IN GENERAL.—The CDAO, in coordination with the Chairman of the Joint Chiefs of

Staff, shall develop and implement an artificial intelligence education program for all general and flag officers, members of the Senior Executive Service within the Department, and combatant command staff principals.

''(B) ELEMENTS.—Such program shall include—

''(i) technical foundations of current artificial intelligence capabilities and limitations;

''(ii) the current state and projected trajectory of artificial general intelligence development;

''(iii) adversary artificial intelligence military capabilities and doctrine, with emphasis on People's Republic of China programs;

''(iv) artificial intelligence-enabled operational concepts and their implications for force design and employment; and

''(v) artificial intelligence safety, alignment, and control challenges relevant to military applications.

''(8) OPERATIONAL INTEGRATION.—The CDAO shall, in coordination with the Joint Staff and the

combatant commands, develop a plan to integrate artificial general intelligence preparedness findings into joint operational planning processes, including updates to contingency plans, campaign plans, and global force management allocation plans, not later than one year after the date of the enactment of this paragraph.

''(9) INTERAGENCY COORDINATION ON EXPORT CONTROLS AND TECHNOLOGY PROTECTION.—The CDAO shall coordinate with the Bureau of Industry and Security of the Department of Commerce, the Committee on Foreign Investment in the United States, the Department of Energy, and other relevant interagency bodies to—

''(A) assess the effectiveness of technology control measures in constraining adversary access to artificial intelligence capabilities;

''(B) recommend modifications to export control lists, end-use restrictions, and investment screening criteria as needed to address emerging artificial intelligence-related threats; and

''(C) ensure that classification guidance developed under subsection (d)(2)(G) is updated

to address artificial general intelligence and advanced artificial intelligence systems.'';

(3) by redesignating subsections (f) and (g) as subsections (g) and (h), respectively;

(4) by inserting after subsection (e) the following new subsection:

''(f) REPORTS, BRIEFINGS, AND ACCOUNTABILITY.—

''(1) INITIAL REPORT AND BRIEFING.—Not later than 180 days after the date of the enactment of this subsection, the Secretary of Defense shall—

''(A) submit to the Committees on Armed Services of the Senate and the House of Representatives a report detailing—

''(i) the organizational structure, staffing requirements, and initial objectives of the AGI Preparedness Initiative described in subsection (a)(3);

''(ii) a comprehensive assessment of the performance of the CDAO in executing the duties established under this section since the date of the original enactment of this section, including an identification of specific deficiencies in organizational structure, personnel qualifications, interagency coordination, and operational impact; and

"(iii) the initial objectives and milestones for the duties added by the amendments to this section made by title II of the National Defense Authorization Act for Fiscal Year 2027; and

"(B) provide to such Committees a briefing on the matters set forth in the report.

"(2) PERIODIC REPORTS AND BRIEFINGS.—Not later than 180 days after the submission of the initial report under paragraph (1), and annually thereafter, the Secretary of Defense shall—

"(A) submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the activities carried out under this section since the date of the last report under this paragraph, including—

"(i) any findings, assessments, and recommendations with respect to the national security implications of artificial general intelligence and advanced artificial intelligence;

"(ii) the progress of the CDAO against each benchmark established under paragraph (3); and

"(iii) a classified annex containing specific assessments of People's Republic of China artificial intelligence military capabilities, the effectiveness of current export control measures with respect to adversary artificial intelligence development, and identified countermeasure priorities; and

"(B) provide to such Committees a briefing on the matters set forth in the report.

"(3) PERFORMANCE METRICS AND ACCOUNTABILITY.—

"(A) IN GENERAL.—Not later than 180 days after the date of the enactment of this paragraph, the CDAO shall submit to the congressional defense committees a set of measurable performance benchmarks and milestones for each duty described in subsection (d).

"(B) ELEMENTS.—Each report required under paragraph (2) shall include a detailed assessment of progress against each benchmark established under subparagraph (A), including specific explanations for any benchmarks not met and corrective actions planned.

''(4) POLICY RECOMMENDATIONS.—The CDAO shall provide policy recommendations to the Secretary of Defense, the President, and Congress relating to the national security implications of artificial general intelligence and advanced artificial intelligence, including recommendations for legislative action.''; and

(5) by adding at the end the following new subsection:

''(i) ADDITIONAL DEFINITIONS.—In this section:

''(1) The term 'artificial general intelligence' means artificial intelligence systems that match or exceed human expert performance across a wide variety of domains, including chemical, biological, radiological, and nuclear applications, cyber offense, model autonomy, persuasion, research and development, and self-improvement.

''(2) The term 'CDAO' means the Chief Digital and Artificial Intelligence Officer of the Department of Defense, or such successor official as the Secretary of Defense may designate.''.

(b) CONFORMING AMENDMENT.—The heading of section 238 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 10 U.S.C. 4061 note prec.) is amended by striking

''**JOINT ARTIFICIAL INTELLIGENCE RESEARCH, DEVELOPMENT, AND TRANSITION ACTIVITIES**'' and inserting ''**DEPARTMENT OF DEFENSE ARTIFICIAL INTELLIGENCE AND ARTIFICIAL GENERAL INTELLIGENCE ACTIVITIES**''.

(c) RULE OF CONSTRUCTION.—Nothing in this section or the amendments made by this section shall be construed to limit or otherwise affect any authority of the Secretary of Defense or the Chief Digital and Artificial Intelligence Officer under section 238 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 10 U.S.C. note prec. 4061), as in effect on the day before the date of the enactment of this Act.

SEC. 241. PILOT PROGRAM ON USE OF SUBSCRIPTION-BASED FUNDING MODEL AT MAJOR RANGE AND TEST FACILITY BASE.

(a) IN GENERAL.—Not later than 270 days after the date of the enactment of this Act and subject to the availability of appropriations for such purpose, the Under Secretary of Defense for Research and Engineering shall, acting through the Director of the Test Resource Management Center, commence carrying out a pilot program to determine the feasibility, effectiveness, and operational im-

pacts of implementing a subscription-based funding model for test and evaluation facilities.

(b) REQUIREMENTS.—The pilot program required by subsection (a) shall—

(1) be conducted during the two-year period beginning on the date of the commencement of the pilot program;

(2) include not fewer than two cyber-physical test and training ranges designated by the Director of the Test Resource Management Center;

(3) include at least one cyber-physical test and training range operated by, or under the authority of, the National Guard of a State;

(4) provide for participation by military departments, defense agencies, combat support agencies, federally funded research and development centers, and such other Department of Defense entities as the Director considers appropriate; and

(5) evaluate the applicability of subscription-based funding to cyber, cyber-physical, electronic warfare, modeling and simulation, and integrated test environments associated with the participating ranges.

(c) SUBSCRIPTION-BASED FUNDING MODEL.—For purposes of the pilot program required by subsection (a),

the Under Secretary shall establish a funding structure under which participating organizations pay recurring subscription fees in exchange for access to specified range capabilities, infrastructure, services, test environments, cybersecurity resources, data management capabilities, and related support functions, in lieu of or in combination with traditional reimbursable or direct-user funding mechanisms. The Under Secretary shall ensure that any subscription fees are commensurate with the services provided.

(d) ELEMENTS.—In carrying out the pilot program required by subsection (a), the Under Secretary shall—

(1) establish subscription tiers or other recurring funding arrangements designed to support baseline operational, sustainment, modernization, and cybersecurity costs of participating ranges;

(2) assess the extent to which a subscription-based model improves funding predictability, resource utilization, infrastructure availability, and mission readiness;

(3) evaluate impacts on range scheduling, access, interoperability, and support for developmental testing, operational testing, training, experimentation, and rapid prototyping activities;

(4) identify authority constraints or other challenges associated with broader implementation of such a model;

(5) measure effects on cost recovery, user demand, and long-term sustainment of cyber-physical range capabilities; and

(6) develop recommendations regarding whether and how a subscription-based funding model could be expanded to additional test and evaluation facilities.

(e) SELECTION OF PARTICIPATING RANGES.—In selecting ranges for participation in the pilot program required by subsection (a), the Under Secretary shall prioritize cyber-physical ranges that—

(1) support joint testing, training, or experimentation activities;

(2) integrate operational technology, cyber, communications, electronic warfare, or weapon-system testing capabilities; and

(3) can provide representative data regarding the scalability of subscription-based funding approaches across test and evaluation facilities.

(f) REPORT.—Not later than 270 days after the date of the enactment of this Act, the Under Secretary shall submit to the Committee on Armed Services of the Senate

and the Committee on Armed Services of the House of Representatives a report describing the following:

(1) The actions taken under subsection (a).

(2) The status of implementation of integration required by such subsection.

(3) Any exceptions to full integration under subsection (b)(2).

(4) The reasons for the exceptions described in paragraph (3).

(g) BRIEFING.—Not later than 30 days after the date on which the Under Secretary submits the report required by subsection (f), the Under Secretary shall provide the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives a briefing on the matters covered by the report.

SEC. 242. SECURE ARTIFICIAL INTELLIGENCE DATA CENTER DEMONSTRATION PROGRAM.

(a) DEMONSTRATION PROGRAM.—The Secretary of Defense shall, acting through the Under Secretary of Defense for Research and Engineering and in consultation with the Director of the National Security Agency and the head of the Center for Artificial Intelligence Standards and Innovation at the Department of Commerce, carry out a program to construct, prototype, and perform testing

and evaluation on highly secure data centers, and to assess security requirements for such facilities, focused on—

(1) resisting attacks by nation-state adversaries;

(2) securing the confidentiality, integrity, and availability of artificial intelligence models and inference pipelines; and

(3) assessing whether existing security frameworks are sufficient to protect artificial intelligence capabilities supporting classified workloads.

(b) FOCUS.—The program required by subsection (a) shall be focused on—

(1) prototyping technologies and security controls needed to protect artificial intelligence data centers from attacks by nation-state adversaries;

(2) protecting model weights and other sensitive assets from theft, sabotage, or unauthorized access;

(3) assessing physical security, cybersecurity, supply chain, insider threat, and incident response requirements for such facilities;

(4) prototyping secure inference-only clusters or devices designed to prevent unauthorized model weight extraction or modification, including mechanisms to securely or cryptographically verify that only authorized workloads are executed; and

(5) developing plans, budgets, and cost estimates and recommended courses of action for constructing or retrofitting such facilities.

(c) BRIEFING AND REPORT.—

(1) BRIEFING.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall provide to the congressional defense committees a briefing on progress made under the program required by subsection (a), including key findings from prototype activities, threats, vulnerabilities, capability gaps, and resourcing requirements.

(2) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report on the results of the program required by subsection (a), including—

(A) prototype results, technologies, or operational measures needed to improve the security of artificial intelligence data centers; and

(B) recommendations for further investments to address threats from nation-state adversaries.

SEC. 243. COMPREHENSIVE SHARED DATABASE FOR RESEARCH AND DEVELOPMENT.

(a) ESTABLISHMENT.—The Secretary of Defense shall, in collaboration with Federal laboratories, establish a comprehensive shared database of research and technology developed to help improve public and private cooperation in order to benefit national security. Such database shall meet necessary security standards, as determined by the Secretary.

(b) FEDERAL LABORATORIES.—In establishing the database under subsection (a), the Secretary shall collaborate with Federal laboratories that focus on a variety of technologies, sectors, and needs within the national security sector.

SEC. 244. DEVELOPMENT, TEST, EVALUATION, DEMONSTRATION, AND TRANSITION TO PRODUCTION OF ALTERNATIVE LOW-COST WEAPON SYSTEMS.

(a) IN GENERAL.—The Secretary of Defense, acting through the Under Secretary of Defense for Acquisition and Sustainment and in coordination with Secretaries of the military departments and the Director of the Missile Defense Agency, shall develop, test, evaluate, demonstrate, and transition to production, as appropriate, a portfolio of alternative, affordable, low-cost weapon systems in each of the following categories:

(1) Hypersonic strike systems.

(2) Cruise missiles.

(3) Shoulder-launched missiles.

(4) Extended range munitions.

(5) Mid-range integrated air and missile defense interceptors.

(6) Exoatmospheric interceptors.

(7) Short-range integrated air and missile defense interceptors.

(8) Medium-range air-to-air missiles.

(9) Autonomous systems, counter-unmanned systems, and loitering munitions.

(b) REQUIREMENTS.—In carrying out subsection (a), the Secretary of Defense shall—

(1) employ innovative acquisition strategies, including rapid prototyping, digital engineering, modular open-system architectures, commercial-off-the-shelf components where feasible, and other cost-reduction initiatives to achieve significantly lower unit costs than current baseline systems while maintaining operationally relevant performance;

(2) prioritize expendable designs optimized for attritable, high-volume employment, compatibility with existing launch platforms, logistics infrastructure, and command-and-control networks, and the ability to complement existing programs of record;

(3) ensure systems are designed to enable production at scale in significantly greater quantities than current program of record systems through the prioritization of manufacturing ease and speed;

(4) include technology maturation, risk reduction, testing, and transition planning to low-rate initial production not later than fiscal year 2030 for each category of weapon system specified in subsection (a);

(5) establish specific cost and performance targets through competitive analysis, market research, prototyping, and experimentation;

(6) maximize the use of commercial acquisition procedures, commercial solutions openings, other transaction authority, and other rapid acquisition authorities to increase participation by nontraditional defense contractors, commercial suppliers, and small businesses;

(7) treat autonomous systems described in subsection (a)(9) as consumable combat equipment, including for purposes of acquisition, budgeting, sustainment, inventory, training, fielding, expenditure, replenishment, repair, upgrade, and replacement, unless the Secretary of Defense, or a covered designee, determines in writing that such treatment

is inappropriate based on cost, complexity, expected service life, safety requirements, operational role, or replenishment requirements; and

(8) ensure that autonomous systems described in subsection (a)(9) are not subjected to acquisition, sustainment, inventory, training, or fielding requirements applicable to aircraft, vessels, or enduring major platforms solely on the basis that such systems operate in the air, on the surface of the sea, or undersea, unless the Secretary of Defense, or a covered designee, determines in writing that such requirements are necessary based on safety, operational, or legal requirements.

(c) DEFINITIONS.—In this section:

(1) The term ''alternative low-cost'' systems means weapon systems in the categories listed in subsection (a) that are designed to achieve unit procurement costs significantly lower than existing program of record systems while delivering the minimum requirements set forth by the Secretary.

(2) The term ''autonomous systems'' means unmanned, remotely operated, optionally unmanned, autonomous, or semiautonomous systems, including associated software, sensors, payloads, communications equipment, and mission autonomy capabilities,

that operate in the air, on land, on or below the surface of the sea, or across multiple domains.

(3) The term ''counter-unmanned systems'' means systems designed to detect, track, and defeat unmanned platforms through kinetic, directed energy, electronic warfare, cyber, or other means.

(4) The term ''covered designee'' means the Under Secretary of Defense for Acquisition and Sustainment, the Under Secretary of Defense for Research and Engineering, the Secretary of a military department, or a service acquisition executive.

(5) The term ''cruise missiles'' means turbojet-powered missiles designed for standoff precision strikes against land or sea targets at ranges generally exceeding 250 nautical miles, with simplified guidance, propulsion, and airframe designs.

(6) The term ''exoatmospheric interceptors'' means kinetic hit-to-kill interceptors designed for ballistic missile defense in the exoatmosphere, with engagement ranges generally exceeding 300 nautical miles (or equivalent altitudes above 50 nautical miles) and closing speeds of not less than Mach 8.

(7) The term ''extended range munitions'' means ground-launched precision munitions designed

for extended standoff strikes at ranges generally exceeding 50 nautical miles.

(8) The term ''hypersonic strike systems'' means systems capable of Mach 5 or greater flight with maneuverability, designed for long-range precision strikes against time-sensitive, defended, or high-value targets at ranges generally exceeding 400 nautical miles.

(9) The term ''loitering munitions'' means expendable unmanned aerial systems designed to loiter in a target area and deliver kinetic effects against surface targets, capable of autonomous or semi-autonomous terminal guidance.

(10) The term ''medium-range air-to-air missiles'' means guided missiles providing beyond-visual-range air-to-air intercept capability with diverse target-set engagement potential, performing intercepts at not less than 60 nautical miles and with a maximum speed of not less than Mach 3.

(11) The term ''mid-range integrated air and missile defense interceptors'' means interceptors optimized for integrated air and missile defense against cruise missiles, aircraft, and short- to medium-range ballistic missiles, with engagement

ranges of not less than 30 nautical miles and speeds of not less than Mach 3.5.

(12) The term ''short-range integrated air and missile defense interceptors'' means interceptors for terminal defense against aircraft, cruise missiles, and unmanned aerial systems, with engagement ranges of not less than five nautical miles and maximum speeds of not less than Mach 2.

(13) The term ''shoulder-launched missiles'' means man-portable or vehicle-launched missiles providing fire-and-forget or command-guided antiarmor capability at ranges of not less than one nautical mile.

SEC. 245. MODIFICATION TO USE OF PARTNERSHIP INTERMEDIARIES TO PROMOTE DEFENSE RESEARCH AND EDUCATION.

Section 4124(f) of title 10, United States Code, is amended—

(1) by inserting ''or Department of Defense laboratory'' after ''Center'' each place it appears;

(2) by redesignating paragraph (2) as paragraph (3);

(3) by inserting after paragraph (1) the following new paragraph:

''(2) A Department of Defense laboratory may pay the Federal costs of a contract, memorandum of understanding, or other transaction entered into under this subsection out of funds available to the laboratory for the support of technology transfer and transition functions, research and development, or operation and maintenance.'';

and

(4) in paragraph (3)(B), as so redesignated, by adding '', or that can assist a Center or Department of Defense laboratory with technology transition, either out of, or into, the Center or laboratory'' before the semicolon.

Subtitle C—Plans, Reports, and Other Matters

SEC. 251. POLICY TO GUIDE THE DEVELOPMENT AND ACQUISITION OF QUANTUM COMPUTING SYSTEMS FOR THE DEPARTMENT OF DEFENSE.

(a) POLICY REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall issue a policy to guide the development and acquisition of quantum computing systems for the Department of Defense. Under the policy, the Secretary shall—

(1) establish a definition of ''quantum computing system'' for purposes of the policy;

(2) establish a process for validating and verifying quantum computing systems before such systems are developed or acquired by the Department; and

(3) ensure that the development and acquisition of such systems is consistent with and informed by the findings and processes of the Quantum Benchmarking Initiative of the Defense Advanced Research Projects Agency (or any successor initiative).

(b) LIMITATION AND WAIVER.—

(1) LIMITATION.—Following issuance of the policy under subsection (a), a quantum computing system may not be developed or acquired by an element of the Department of Defense unless the system has been validated and verified in accordance with such policy.

(2) WAIVER.—The Secretary of Defense may waive the limitation under paragraph (1), on a case by case basis, with respect to a specific quantum computing system. In the event the Secretary issues such a waiver, the Secretary shall provide to the congressional defense committees, not later than 15 days after date on which the waiver was issued—

(A) written notice of such waiver; and

(B) the Secretary's justification for the waiver.

SEC. 252. PLAN FOR COMPETITIVE EXPERIMENTATION RELATING TO AUTONOMOUS AND NONTRADITIONAL CAPABILITIES RELEVANT TO THE A–10 MISSION SET.

(a) PLAN REQUIRED.—The Secretary of the Air Force shall develop a plan to carry out competitive experimentation, prototyping, and operational assessment of autonomous, semi-autonomous, artificial intelligence-enabled, and adjunct aircraft capabilities relevant to the A–10 mission set.

(b) ELEMENTS.—The plan under subsection (a) shall include the following:

(1) Appropriate opportunities for participation by nontraditional defense contractors, commercial technology firms, venture-backed defense firms, and other private-sector entities capable of rapidly developing relevant hardware, software, autonomy, sensing, communications, or mission system capabilities.

(2) Measures to ensure operational experimentation is conducted in a manner consistent with meaningful human command and control, by a qualified military aviator, over mission-critical functions, including target engagement, weapons release, mis-

sion abort, and such other functions as the Secretary of the Air Force determines appropriate.

(3) An estimated annual budget for implementing the plan.

(4) Consideration of how to make available to a qualified United States entity a limited number of A–10 aircraft, components, or associated support equipment for the sole purpose of research, development, test, and evaluation activities relevant to the A–10 mission set, autonomous or semi-autonomous aircraft integration, mission systems development, digital battlefield communications, or other related capabilities.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force shall submit to the Committees on Armed Services of the Senate and the House of Representatives report on the plan developed under subsection (a).

(d) QUALIFIED UNITED STATES ENTITY.—In this section, the term ''qualified United States entity'' means—

(1) a nontraditional defense contractor;

(2) a traditional defense contractor;

(3) a federally funded research and development center;

(4) a university-affiliated research center; or

(5) another domestic entity the Secretary determines is capable of carrying out the activities described in subsection (a) in a manner consistent with national security and public safety.

SEC. 253. PLAN FOR ESTABLISHMENT AND EVALUATION OF EXPERIMENTAL, DRONE-CENTRIC RECONNAISSANCE AND SECURITY FORMATIONS.

(a) PLAN REQUIRED.—The Secretary of the Army shall develop a plan for establishing and evaluating one or more experimental, battalion-sized formations that integrate unmanned aircraft systems to carry out intelligence, surveillance, and reconnaissance and precision strike operations at-scale.

(b) ELEMENTS.—The plan required under subsection (a) shall—

(1) provide for the establishment of at least one experimental formation, as described in subsection (a), attached to a division;

(2) include mechanisms to enable the Secretary of the Army to evaluate the operational effectiveness, survivability, targeting capacity, and cost-efficiency of such a formation relative to legacy cavalry and scout formations, and to inform future force design decisions;

(3) identify any modifications to organizational design, personnel structure, and training pipelines that may be needed to facilitate the establishment of such a formation;

(4) as appropriate, provide for the use of rapid acquisition pathways to procure unmanned aircraft systems for such a formation; and

(5) coordinate with the Defense Autonomous Working Group to ensure that defense-wide research, development, testing, procurement, and fielding of mass-produced small unmanned aircraft systems will meet current and emerging Army requirements.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall submit to the congressional defense committees a report that includes—

(1) the plan developed under subsection (a); and

(2) an estimate of the funding required to establish and sustain the initial experimental formation under the plan, disaggregated by individual appropriation.

SEC. 254. PLAN FOR USE OF CERTAIN AIRCRAFT FOR RESEARCH AND DEVELOPMENT PURPOSES.

(a) PLAN REQUIRED.—The Secretary of the Air Force shall develop a plan to regenerate, restore, modify, and use a limited number of covered aircraft for research, development, test, and evaluation activities relevant to—

(1) autonomous and semi-autonomous aircraft capabilities;

(2) human-machine teaming;

(3) mission autonomy software;

(4) mission systems integration;

(5) sensing, communications, and digital battlefield networking;

(6) operational experimentation and tactics development; and

(7) such other defense innovation purposes as the Secretary determines appropriate.

(b) ELEMENTS.—The plan under subsection (a) shall include the following:

(1) Plans for the use of covered aircraft for—

(A) developmental flight testing;

(B) operational evaluation;

(C) autonomy experimentation;

(D) software, sensor, communications, and mission systems integration;

(E) optionally piloted, remotely assisted, or other autonomy-related flight experimentation, to the extent authorized by applicable law and regulation; and

(F) associated ground test, simulation, mission rehearsal, and related research activities.

(2) Consideration of how to make available to qualified United States entities a limited number of covered aircraft for the sole purpose of conducting the research, development, test, and evaluation activities described in this section, including any demilitarization requirements, cost reimbursements, and access to approved testing and evaluation facilities that may be required to facilitate the participation of such entities.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force shall submit to the Committees on Armed Services of the Senate and the House of Representatives report on the plan developed under subsection (a).

(d) DEFINITIONS.—In this section:

(1) The term ''covered aircraft'' means an aircraft preserved at, inducted into, or proposed for induction into the 309th Aerospace Maintenance and

Regeneration Group, including an aircraft stored or preserved on behalf of another military department or Department of Defense component, that the Secretary of the Air Force, in coordination with the head of the relevant military department or component, as appropriate, determines—

(A) is structurally viable for regeneration, modification, test, evaluation, or other authorized use under this section;

(B) is not required to meet current operational, training, test, contingency reserve, heritage, or security cooperation requirements; and

(C) may be useful for research, development, test, and evaluation, autonomy experimentation, mission systems integration, uncrewed conversion, or related defense innovation purposes.

(2) The term ''qualified United States entity'' means a domestic entity that the Secretary determines has the technical, security, financial, safety, and programmatic capability to support activities under this section, including—

(A) a nontraditional defense contractor;

(B) a commercial technology company;

(C) a small business concern;

(D) a traditional defense contractor;

(E) a federally funded research and development center;

(F) a university-affiliated research center; or

(G) a consortium, team, or other arrangement composed of entities described in subparagraphs (A) through (F).

SEC. 255. SONOBUOY MODERNIZATION, TESTING, AND INVENTORY SUFFICIENCY FOR TWO SIMULTANEOUS REGIONAL CONFLICTS.

(a) STRATEGY AND INVENTORY REQUIREMENT.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Navy shall develop and implement a comprehensive strategy for sonobuoy modernization, testing, production, and inventory sufficiency.

(2) ELEMENTS.—The strategy required under paragraph (1) shall include the following:

(A) An assessment of the minimum required inventory levels of——

(i) passive sonobuoys;

(ii) active sonobuoys;

(iii) multistatic sonobuoys;

(iv) air-deployed anti-submarine warfare sensor systems;

(v) exercise, training, and telementry sonobuoys;

(vi) extended-duration and deep-water sonobuoys;

(vii) Arctic-capable sonobuoys; and

(viii) next-generation networked or autonomous sonobuoy systems.

(B) An assessment of wartime sonobuoy expenditure assumptions for combat operations against peer and near-peer maritime adversaries, including assumptions associated with high-tempo anti-submarine warfare operations in the Indo-Pacific and North Atlantic theaters.

(C) An evaluation of current sonobuoy production capacity, including limitations associated with—

(i) acoustic transducers;

(ii) signal processing electronics;

(iii) microelectronics and semiconductors;

(iv) batteries and power systems;

(v) radio frequency transmitters and receivers;

(vi) specialty materials and rare earth elements;

(vii) air deployment integration systems; and

(viii) single-source supplies.

(D) A plan to increase annual sonobuoy production capacity and reduce production lead times during contingencies.

(E) An assessment of the adequacy of existing sonobuoy testing infrastructure, including—

(i) undersea warfare test ranges;

(ii) acoustic measurement and calibration facilities;

(iii) contested electromagnetic spectrum testing capabilities;

(iv) Arctic and deep-water testing environments;

(v) shallow water and littoral testing capabilities;

(vi) digital engineering, modeling, and synthetic testing environments;

(vii) unmanned systems integration and testing capabilities; and

(viii) opportunities for allied and partner nation testing and interoperability.

(F) A description of efforts to improve sonobuoy survivability, persistence, networking capability, and effectiveness against advanced adversary submarine quieting, decoys, electronic warfare systems, and acoustic countermeasures.

(G) An assessment of storage, transportation, prepositioning, and expeditionary resupply capacity for sonobuoys during wartime operations.

(H) A description of efforts to integrate sonobuoys with—

(i) maritime patrol aircrafts;

(ii) carrier-based aircrafts;

(iii) rotary-wing anti-submarine warfare platforms;

(iv) tiltrotor aircrafts;

(v) unmanned aerial systems;

(vi) unmanned surface vessels;

(vii) unmanned undersea vehicles; and

(viii) joint and allied anti-submarine warfare networks.

(I) An assessment of any statutory or regulatory barriers limiting expansion of sonobuoy production, testing, procurement, or fielding.

(J) Recommendations for legislative or administrative action necessary to improve sonobuoy readiness and wartime sufficiency.

(b) INDUSTRIAL BASE EXPANSION PLAN.—Not later than 90 days after the enactment of this Act, the Secretary of the Navy shall develop a plan to expand the sonobuoy industrial base to support sustained wartime production requirements. Such plan shall include—

(1) options for second-source suppliers;

(2) the potential for Government-owned, contractor-operated facilities;

(3) use of multiyear procurement authorities pursuant to section 3501 of title 10, United States Code;

(4) opportunities to expand public-private partnerships for anti-submarine warfare sensor manufacturing and sustainment;

(5) measures to improve supply chain resilience for critical components;

(6) options for surge production during national emergencies or armed conflict; and

(7) opportunities for allied co-production and stockpile interoperability.

(c) OPERATIONAL TEST EVENTS.—Beginning not later than fiscal year 2028, the Secretary of the Navy shall conduct recurring operationally realistic sonobuoy exercises that include—

(1) congested elecromagnetic spectrum conditions;

(2) integrated fleet anti-submarine warfare operations;

(3) multiple simultaneous submarine targets;

(4) degraded communications and positioning, navigation, and timing environments;

(5) unmanned systems integration;

(6) distributed maritime operations;

(7) Arctic and littoral anti-submarine warfare scenarios; and

(8) joint and allied participation, as appropriate.

(d) BRIEFING REQUIREMENT.—Not later than 120 days after the enactment of this Act, the Secretary of the Navy shall provide a briefing to the congressional defense committees on—

(1) the highest-risk shortfalls in sonobuoy inventory and testing capacity;

(2) projected wartime inventory depletion timelines;

(3) vulnerabilities associated with single-source suppliers and critical materials dependencies; and

(4) investments required during the future-years defense program to achieve sufficiency for two simultaneous regional conflicts.

SEC. 256. REVIEW AND IMPLEMENTATION OF STRATEGIES TO ACCELERATE THE QUALIFICATION PROCESS FOR DOMESTICALLY PRODUCED ADVANCED ENERGETIC MATERIALS.

(a) ACCELERATION OF FORMULATION-TO-SYSTEM QUALIFICATION FOR ADVANCED ENERGETIC MATERIALS.—

(1) REVIEW AND IMPLEMENTATION.—The Secretary of Defense, acting through the head of the Joint Energetics Transition Office shall—

(A) conduct a review to identify opportunities to accelerate the qualification process for the integration of novel advanced energetic materials into military systems; and

(B) based on the results of such review, implement measures to accelerate such qualification process.

(2) ELEMENTS.—In conducting the review required under paragraph (1)(A), the Secretary of Defense shall—

(A) conduct a detailed analysis of the feasibility of—

(i) expediting the qualification of new formulations derived from advanced energetic materials, including developmental classification, insensitive munitions testing, and hazard classification activities;

(ii) streamlining nonstatutory administrative requirements for warhead-level and system-level qualification of advanced energetic materials in cases in which modeling, simulation, and surrogate testing of such materials provide sufficient evidence of equivalent or superior performance and safety compared to legacy energetic materials, without compromising statutorily prescribed safety or environmental standards;

(iii) implementing integrated test campaigns that enable concurrent or overlapping evaluations of the formulation, warhead, and system performance of ad-

vanced energetic materials to reduce total time to fielding, aiming for full system qualification within 18 months to the extent feasible, while ensuring no compromise to safety or operational reliability; and

(iv) prioritizing advanced energetic materials for inclusion in mission-aligned prototyping, live-fire demonstrations, and portfolio-level experimentation under rapid acquisition authorities;

(B) identify any barriers to the integration of novel advanced energetic materials into military systems;

(C) develop a set of prioritized measures that may be implemented to address such barriers, including potential near-term measures achievable under existing authorities; and

(D) determine—

(i) estimated timelines for implementing such measures;

(ii) the organizations and elements of the Department of Defense that could carry out such measures; and

(iii) any statutory, regulatory, or administrative barriers inhibiting the implementation of such measures.

(b) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the findings of the review conducted under subsection (a)(1)(A) and the measures implemented under subsection (a)(1)(B). The report shall include—

(1) a list of advanced energetic materials for which the Secretary accelerated the formulation-to-system qualification process as a result of the review under subsection (a)(1)(A) and a list of advanced energetic materials that were identified as candidates for acceleration;

(2) a comparison of the timelines to qualification milestones for materials identified under paragraph (1) compared to such timelines if the formulation-to-system qualification process had not been accelerated for such materials, including quantitative estimates of time savings and measurable milestones to the extent practicable;

(3) a description of any other actions taken to accelerate the qualification process for such materials, with justifications; and

(4) recommendations for further legislative or administrative actions to enhance domestic energetics production and qualification.

(c) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to authorize the waiver of any statutory requirement, including any statutory requirement related to safety, environmental protection, or national security.

(d) ADVANCED ENERGETIC MATERIAL DEFINED.—The term ''advanced energetic material'' means a domestically produced substance or mixture, such as explosives, propellants, or pyrotechnics, that releases energy rapidly and demonstrates performance improvements over legacy energetic materials in areas such as energy density, as determined by the Secretary of Defense in accordance with established Department of Defense standards.

SEC. 257. FUNDING FOR ROTARY WING AVIATION LIFT UPGRADE ENHANCEMENT.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in Division D, the amount authorized to be appropriated in section 201 for Research, Development, Testing and Evaluation, Defense-Wide, as specified in the corresponding funding table in section 4201 for system development for Aviation Systems (PE1160403BB) Line 302 is hereby increased by

$12,000,000 (with the amount of such increase to be used to support Rotary Wing Aviation Lift Upgrade Enhancement).

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in Division D the amount authorized to be appropriated in section 301 for operation and maintenance, Army, as specified in the corresponding funding table in section 4301, for Aviation Assets, Line 060, is hereby reduced by $12,000,000.

SEC. 258. STRATEGY FOR THE ADOPTION AND INTEGRATION OF ARTIFICIAL INTELLIGENCE.

(a) IN GENERAL.—The Secretary of Defense, in coordination with the Secretary of Commerce, shall develop a strategy regarding the adoption, fielding, integration, and scaling of artificial intelligence technologies across the Department of Defense and the defense industrial base.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report that includes—

(1) the strategy developed under subsection (a); and

(2) with respect to artificial intelligence technologies, a description of any—

(A) barriers to adoption and integration;

(B) workforce and infrastructure requirements;

(C) opportunities to strengthen collaboration with private industry and institutions of higher education; and

(D) recommendations to improve the deployment of such technologies.

SEC. 259. REPORT ON GUN-LAUNCHED ELECTROMAGNETIC OBSCURATION CAPABILITIES FOR NAVAL SYSTEMS.

(a) IN GENERAL.—Not later than March 1, 2027, the Secretary of the Navy, in coordination with the Chief of Naval Research and the Commander of the Naval Surface and Undersea Warfare Centers, shall submit to the Committee on Armed Services of the House of Representatives a report on the feasibility and operational utility of integrating electromagnetic obscurant payloads into existing 5-inch naval cargo rounds.

(b) CONTENTS.—The report under subsection (a) shall include the following:

(1) An assessment of the feasibility of integrating radiofrequency chaff or other electromagnetic obscurant payloads into existing 5-inch naval cargo rounds and Mk 45 naval gun systems.

(2) An assessment of the operational utility of gun-launched electromagnetic obscuration capabilities for degrading adversary radar tracking, targeting, and sensor fusion in contested maritime environments.

(3) A description of ongoing or planned prototyping, testing, or live-fire demonstration activities related to ship-launched electromagnetic countermeasure payload delivery.

(4) An assessment of integration considerations, including shipboard storage, handling, payload dispersion, range, and compatibility with existing naval gun systems.

(5) An assessment of opportunities to leverage existing cargo munition technologies, infrastructure, or cross-service technical expertise relevant to electromagnetic payload delivery.

(c) FORM.—The report required under subsection (a) shall be submitted in unclassified form but may include a classified annex.

SEC. 260. PLAN TO SUPPORT ADVANCED MANUFACTURING AND MATERIALS FOR HYPERSONICS RESEARCH AND DEVELOPMENT.

(a) PLAN REQUIRED.—The Under Secretary of Defense for Acquisition and Sustainment shall develop a plan

to develop a comprehensive set of advanced manufacturing practices and advanced materials for hypersonics research and development.

(b) ELEMENTS.—At a minimum, the plan under subsection (a) shall—

(1) address—

(A) intelligence-optimized robotic forming;

(B) additive and subtractive manufacturing methods;

(C) precision joining (laser, e-beam, friction stir) for dissimilar metals and metal/CMC interfaces; and

(D) advanced materials and processing; and

(2) define qualification artifacts (process allowable, non-destructive inspection procedures, and digital-thread data standards) and pilot lines executed by consortia of primes, startups, and Federal labs, with TRL/MRL, cost, and lead-time objectives.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Under Secretary of Defense for Acquisition and Sustainment shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the plan developed under subsection (a).

SEC. 261. STRATEGY FOR THE DEVELOPMENT OF FRICTION STIR ADDITIVE MANUFACTURING TECHNOLOGIES.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this section, the Under Secretary of Defense for Research and Engineering shall submit to the congressional defense committees a comprehensive report outlining the strategy of the Department of Defense for the research, development, and deployment of friction stir additive manufacturing technologies.

(b) ELEMENTS.—The report required by subsection (a) shall include the following:

(1) An assessment of the strategic importance of developing and deploying friction stir additive manufacturing technologies for national defense, including their potential to enhance supply chain resilience, manufacturing agility, and operational readiness.

(2) A detailed summary of current and planned Department of Defense programs and initiatives that are supporting the development, testing, or implementation of friction stir additive manufacturing technologies.

(3) An analysis of key areas of operational impact of such technologies, including—

(A) expeditionary manufacturing and sustainment capabilities;

(B) deployable micro-factory systems for forward operating bases or contested environments; and

(C) development of ultra-large-scale friction stir additive manufacturing techniques for critical defense infrastructure and platforms.

SEC. 262. ANNUAL REPORT ON THE TRANSITION OF SUCCESSFUL PROTOTYPE PROJECTS.

(a) IN GENERAL.—Not later than the last day of each of fiscal years 2027 through 2031, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the transition of successful prototype projects into procurement, follow-on production, or operational deployment.

(b) ANNUAL REPORTING REQUIREMENTS.—Each report required under subsection (a) shall include the following information:

(1) The average time between the successful completion of a prototype project and a determination regarding procurement, follow-on production, operational deployment, additional testing, or program termination.

(2) The number and percentage of successful prototype projects that transitioned into procurement, follow-on production, or programs of record during the preceding year.

(3) The number and percentage of successful prototype projects that failed to transition into procurement or production capabilities during the preceding year.

(4) Explanations for delays exceeding 365 days between prototype completion and procurement or production decisions.

(5) Data on prototype projects funded through the Small Business Innovation Research (SBIR) Program, Other Transaction Authority (OTA) agreements, the Defense Innovation Unit (DIU), and other defense innovation and prototyping initiatives.

(6) Data broken down by military department, defense agency, and technology category, including artificial intelligence, autonomy, cyber capabilities, microelectronics, advanced manufacturing, and other critical emerging technologies.

(c) ONE-TIME REPORTING REQUIREMENTS.—In addition to the information required under subsection (b),

the final report required under subsection (a) shall include the following information:

(1) An identification of acquisition, contracting, budgeting, testing, or requirements-related bottlenecks that delay the transition of innovative technologies into operational capability.

(2) Recommendations to improve procurement efficiency and accelerate transition timelines for prototype projects.

(3) An assessment of barriers faced by small businesses and nontraditional defense contractors participating in defense innovation programs, including challenges related to financing, cybersecurity compliance, intellectual property protection, and access to follow-on procurement opportunities.

(d) SUCCESSFUL PROTOTYPE PROJECT DEFINED.—In this section, the term ''successful prototype project'' means a prototype project that achieved the operational, technical, or mission requirements identified by the sponsoring military department or defense agency.

(e) FORM OF REPORT.—Each report required under subsection (a) shall be submitted in unclassified form but may include a classified annex.

TITLE III—OPERATION AND MAINTENANCE

Subtitle A—Authorization of Appropriations

SEC. 301. AUTHORIZATION OF APPROPRIATIONS.

Funds are hereby authorized to be appropriated for fiscal year 2027 for the use of the Armed Forces and other activities and agencies of the Department of Defense for expenses, not otherwise provided for, for operation and maintenance, as specified in the funding table in section 4301.

Subtitle B—Energy and Environment

SEC. 311. INCLUSION OF NUCLEAR ENERGY IN ENERGY POLICY OF DEPARTMENT OF DEFENSE AND RELATED MATTERS.

(a) INCLUSION IN ENERGY POLICY.—Section 2911 of title 10, United States Code, is amended—

(1) in subsections (b) and (e), by inserting ''or nuclear energy'' after ''renewable energy sources'' each place it appears;

(2) in subsection (g)—

(A) in the heading, by inserting ''and nuclear energy'' after ''renewable energy'';

(B) in paragraphs (1) and (2), by inserting ''or nuclear energy'' after ''renewable energy sources'' each place it appears; and

(C) in paragraph (2), by inserting ''and nuclear energy'' after ''the use of renewable energy''; and

(3) in subsection (h)(2)—

(A) in subparagraph (C), by inserting ''or nuclear energy'' after ''renewable energy source, other than solar energy,''; and

(B) in subparagraph (D), by inserting ''or nuclear energy'' after ''a renewable energy source''.

(b) INCLUSION IN MATTERS RELATING TO USE OF ENERGY FOR FACILITIES.—Section 2915 of title 10, United States Code, is amended—

(1) in the section heading, by striking ''renewable forms of energy'' and inserting ''nuclear energy, renewable forms of energy,'';

(2) by striking ''solar energy or other renewable forms of energy'' each place it appears and inserting ''nuclear energy, or solar energy or other renewable forms of energy,''; and

(3) in subsection (b), by striking ''a renewable form of energy'' and inserting ''such a form of energy''.

SEC. 312. MODIFICATION TO PILOT PROGRAM ON NAVY INSTALLATION NUCLEAR ENERGY.

Section 321(b)(2)(B) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. note prec. 8751) is amended by striking ''needed capacity of the reactor is in the range of 20MW to 300MW'' and inserting ''needed capacity of the reactor is a minimum of 20MW''.

SEC. 313. STANDARDIZED DOCUMENT ON SCOPE OF PROJECTS CARRIED OUT UNDER MILITARY MUNITIONS RESPONSE PROGRAM.

(a) ESTABLISHMENT.—Not later than 270 days after the date of the enactment of this Act, the Secretary of Defense shall establish a standardized document for the scope of munitions responses (in this section referred to as a ''scope document'') for each project carried out under the Military Munitions Response Program at a covered site.

(b) REQUIRED CERTIFICATION AND APPROVAL.—The Secretary of Defense shall require that, for each project specified in subsection (a), the Secretary of the military department or head of the Defense Agency con-

cerned certifies and approves the scope document for the project prior to the issuance of any task order for the project.

(c) ELEMENTS.—Each scope document shall include, with respect to the applicable project and at a minimum, the following:

(1) A description of the scope of the project, including an identification of the applicable phase or phases of munitions responses under the project and the key assumptions, data gaps, and principal risk drivers, affecting such scope.

(2) A cost and schedule estimate for the completion of such phase or phases, with contingencies sufficient to account for uncertainty in subsurface conditions, anomaly or contaminant quantity, access limitations, and explosives safety constraints.

(3) A summary of explosives safety, human health, environmental, and mission risks, applicable statutory and regulatory requirements, and the consequences of delayed action with respect to the project, set forth in a format that supports the prioritization of projects across covered sites.

(4) Documented certification and approval of the scope document, consistent with the requirement under subsection (b).

(d) GUIDANCE.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall issue guidance specifying the required form of, and additional details on the matters required to be included in, each scope document based on the complexity of the covered site at which the applicable project is carried out and the phase of munitions response under such project.

(e) DEFINITIONS.—In this section:

(1) The terms ''base closure law'' and ''Defense Agency'' have the meanings given such terms in section 101(a) of title 10, United States Code.

(2) The term ''covered site'' means a military installation under the jurisdiction of the Secretary of Defense, a National Guard facility, a military installation closed or realigned under a base closure law, or a formerly used defense site.

SEC. 314. PILOT PROGRAM FOR SECURE RECYCLING OF DOMESTIC ELECTRONIC WASTE.

(a) PILOT PROGRAM.—The Secretary of Defense shall establish a pilot program to evaluate the use of domestic, integrated electronic waste recycling infrastructure to support the secure destruction of data and the recovery of critical materials from electronic equipment of the Department of Defense.

(b) SCOPE.—In carrying out the pilot program under subsection (a), the Secretary shall—

(1) use existing facilities capable of end-to-end processing of the electronic waste referred to in such subsection, including the secure dismantling and shredding of such waste and metallurgical recovery from such waste;

(2) assess the potential for reuse in the defense industrial base of critical minerals and other materials so recovered;

(3) assess the environmental and supply chain benefits associated with the domestic recycling of such electronic waste; and

(4) ensure compliance with applicable standards of the Department of Defense and the National Security Agency, respectively, for the destruction of data.

(c) REPORT.—Not later than one year after the date of enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the results of the pilot program under subsection (a), including an assessment of—

(1) the cost effectiveness of the pilot program;

(2) security benefits realized through the pilot program, including with respect to data protection;

(3) the effect of the pilot program on supply chain resilience; and

(4) recommendations of the Secretary regarding the potential expansion of the pilot program across the Department of Defense.

SEC. 315. PROGRAM FOR DEPLOYMENT OF TRANSPORTABLE NUCLEAR MICROREACTOR IN AREA OF RESPONSIBILITY OF THE UNITED STATES INDO-PACIFIC COMMAND.

(a) ESTABLISHMENT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall commence the conduct of a program for the deployment, operation, and evaluation of a transportable nuclear microreactor in the area of responsibility of the United States Indo-Pacific Command.

(b) DESIGNATION.—The program under subsection (a) shall be known as the ''Operational Energy Deployable Nuclear Power Program''.

(c) LEADERSHIP AND COORDINATION.—

(1) EXECUTIVE AGENT.—The Secretary of Defense shall designate the Assistant Secretary of the Army for Installations, Energy, and Environment as the Department of Defense executive agent for carrying out the program under subsection (a) and ensuring budget accountability for such program.

(2) COORDINATION.—In carrying out the program under subsection (a), the Assistant Secretary designated pursuant to paragraph (1) shall coordinate with—

(A) the Commander of United States Indo-Pacific Command, who shall be responsible for validating operational requirements under the program, the demonstration of technologies to be deployed under the program, and the operational use of such technologies; and

(B) as appropriate, the Secretary of Energy and the Chairman of the Nuclear Regulatory Commission, for the purpose of ensuring the deployment and operation of any nuclear microreactor under the program is carried out in a manner that is safe, secure, and in compliance with applicable requirements of the Department of Energy and the Nuclear Regulatory Commission, respectively.

(d) OBJECTIVES.—The objective of the program under subsection (a) shall be to deploy and operate, by not later than January 1, 2030, a transportable nuclear microreactor in support of distributed and expeditionary operations in contested logistics environments within the area of responsibility of the United States Indo-Pacific

Command, with a priority for deployment in such an environment within the Western Pacific area.

(e) REQUIRED ACTIVITIES.—The activities of the program under subsection (a) shall include the following:

(1) The validation of operational requirements of the United States Indo-Pacific Command with respect to the transportable nuclear microreactor to be deployed under the program, and the integration of such nuclear microreactor with expeditionary and dispersed power architectures in the area of responsibility of such Command.

(2) The development and implementation of a plan for the test and evaluation of such nuclear microreactor, including with respect to sustainment, safety, cybersecurity, and physical security requirements.

(3) The conduct of joint operational demonstrations with the United States Indo-Pacific Command in connection with not fewer than one major exercise within the area of responsibility of such Command, to evaluate the deployment, integration, sustainment, survivability, and operational use of such nuclear microreactor under realistic conditions.

(f) BUDGET MECHANISM.—Beginning with respect to fiscal year 2028, the Secretary of Defense shall establish

a dedicated program element, or equivalent budget mechanism, for the program under subsection (a), including to support the transition of technologies under such program from demonstration to operational capability.

(g) NUCLEAR MICROREACTOR DEFINED.—In this section, the term ''nuclear microreactor'' means a nuclear reactor with a rated electric generating capacity of not greater than 50 megawatts.

SEC. 316. PROHIBITION ON OPERATION OF CONNECTED VEHICLES DESIGNED, DEVELOPED, MANUFACTURED, OR SUPPLIED BY PERSONS OWNED BY, CONTROLLED BY, OR SUBJECT TO THE JURISDICTION OF A FOREIGN ENTITY OF CONCERN ON DEPARTMENT OF DEFENSE PROPERTY.

(a) PROHIBITION OF OPERATION OF PROHIBITED CONNECTED VEHICLES.—

(1) PHASE 1.—After January 1, 2027, no covered connected vehicle, as designated by the Department of Commerce under part 791 of title 15 of the Code of Federal Regulations, or any successor regulation, may be operated on a military installation or on any other property of the Department of Defense.

(2) PHASE 2.—After January 1, 2029, no connected vehicle on the list required under subsection

(b) may be operated on a military installation or on any other property of the Department of Defense.

(3) EXCEPTION.—The Secretary of Defense may waive the application of a prohibition under paragraph (1) or (2) to a connected vehicle if the Secretary determines the waiver is in the interest of national security.

(b) LIST OF PROHIBITED CONNECTED VEHICLES.—

(1) IN GENERAL.—Not later than January 1, 2028, the Secretary of Defense shall establish and make publicly available on a website of the Department of Defense a list of prohibited connected vehicles that—

(A) are designed, developed, manufactured, or supplied by persons owned by, controlled by, or subject to the jurisdiction of a foreign entity of concern; and

(B) the Secretary determines pose—

(i) an undue risk of sabotage to or subversion of the design, integrity, manufacturing, production, distribution, installation, operation, or maintenance of information and communications technology and services in the United States;

(ii) an undue risk of catastrophic effects on the security or resiliency of critical infrastructure in the United States or the digital economy of the United States; or

(iii) an unacceptable risk to the national security of the United States or the security and safety of United States persons.

(2) INCORPORATION OF EXISTING FEDERAL RULES.—In establishing the list required under paragraph (1), the Secretary shall incorporate Federal rules in effect as of the date of the enactment of this Act for identifying prohibited connected vehicles.

(3) ANNUAL REVIEW.—

(A) IN GENERAL.—The Secretary shall review the list required under paragraph (1) not less frequently than once each year and shall make such additions, subtractions, supplements, or amendments to the list as the Secretary determines appropriate.

(B) EXPLANATION OF SUBTRACTIONS.—Any review under subparagraph (A) that makes subtractions from the list required under para-

graph (1) shall include an explanation of why the subtraction was made.

(4) NOTICE.—If the Secretary adds a vehicle to the list under paragraph (1), the Secretary shall provide public notice of the addition.

(5) CONSULTATION.—

(A) IN GENERAL.—The Secretary shall consult with the head of any Federal department or agency that the Secretary determines is appropriate in making the list required under paragraph (1) and conducting any annual review under paragraph (3).

(B) TRANSMITTAL OF LIST.—The Secretary shall transmit a copy of the list required under paragraph (1), and any modification to that list, to the heads of each Federal department or agency determined appropriate under subparagraph (A).

(c) IMPLEMENTATION PLAN AND BRIEFING.—

(1) IN GENERAL.—Not later than June 1, 2027, the Secretary of Defense shall establish and provide to the congressional defense committees a briefing on an implementation plan for carrying out the prohibition under subsection (a).

(2) ELEMENTS.—The implementation plan required under paragraph (1) shall include—

(A) an identification of the lead organization within the Department of Defense responsible for implementing and overseeing the prohibition under subsection (a);

(B) a description of the process by which the Department will identify and assess prohibited connected vehicles;

(C) a description of the means by which the Department will conduct coordination with appropriate Federal departments and agencies;

(D) an identification of the metrics by which the Department will assess connected vehicles for threats to national security;

(E) a description of the means by which military installations will ensure compliance with such prohibition; and

(F) an assessment of resource requirements necessary to implement and maintain such prohibition.

(3) APPLICABILITY OF PROHIBITIONS.—A prohibition under subsection (a) shall not take effect before the date on which the Secretary submits to the

congressional defense committees certification that the implementation of the prohibition is possible.

(d) DEFINITIONS.—In this section:

(1) The term ''connected vehicle'' has the meaning given that term in section 791.301 of title 15, Code of Federal Regulations, or successor regulations.

(2) The term ''foreign entity of concern'' has the meaning given that term in section 9901 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (15 U.S.C. 4651).

(3) The term ''military installation'' has the meaning given that term in section 2801(c) of title 10, United States Code.

SEC. 317. PILOT PROGRAM ON OFF-GRID TACTICAL POWER.

(a) IN GENERAL.—The Secretary of Defense may establish a pilot program on employing expeditionary off-grid power generation capabilities across the Joint Force.

(b) REQUIREMENTS.—If the Secretary carries out the pilot program authorized in subsection (a), the Secretary shall carry out the following activities under the pilot program:

(1) The exploration of the research, development, procurement, and operational integration of

mobile expeditionary tactical microgrid systems to provide resilient power supply to forward-deployed formations and critical command, control, and communications elements at the tactical edge.

(2) The incorporation of novel power generation and advanced battery storage that can integrate with secure satellite communications or other mission-essential electronic systems.

(3) The conduct of operational assessments and testing of systems in conditions that simulate contested logistics and degraded infrastructure.

(c) REPORT.—If the Secretary carries out the pilot program authorized in subsection (a), the Secretary shall provide to the congressional defense committees, not later than one year after the commencement of the pilot program, a briefing on the status and results of the pilot program. The briefing shall include—

(1) an assessment of the technologies used in the program;

(2) an overview of the operational assessments and testing of the systems, including system performance; and

(3) recommendations for fielding across the Joint Force, as appropriate.

SEC. 318. CLARIFICATION OF CERTAIN AUTHORITIES INDEPENDENT FROM DESIGNATED EXECUTIVE AGENT FOR INSTALLATION OR OPERATIONAL NUCLEAR ENERGY.

(a) MILITARY DEPARTMENTS.—Notwithstanding the designation of the Secretary of the Army or any other official as the Department of Defense Executive Agent for installation or operational nuclear energy, and except as expressly otherwise provided in another provision of law, the sole authority to transfer, reprogram, obligate, expend, and otherwise manage any funds authorized to be appropriated for a military department for advanced nuclear energy for installation or operational energy capabilities shall be vested in the Secretary of such military department.

(b) NUCLEAR FUEL ALLOCATION.—The Secretary of Defense shall make determinations regarding the allocation of nuclear fuel among the military departments, including determinations for the prioritization of such allocation between the military departments.

(c) RULE OF CONSTRUCTION.—Nothing in this section shall be construed as limiting any previously authorized program of the Department of Defense.

SEC. 319. ASSESSMENT OF GEOTHERMAL ENERGY POTENTIAL WITH RESPECT TO MILITARY INSTALLATIONS.

(a) ASSESSMENT.—The Secretary of Defense, in consultation with the Secretary of Energy, shall conduct an assessment of geothermal energy resources located on or underlying military installations.

(b) CONTENTS.—The assessment under subsection (a) shall include an identification of the following:

(1) Each military installation with significant geothermal energy potential.

(2) Opportunities to improve the energy resilience (as such term is defined in section 101(f) of title 10, United States Code) of military installations through geothermal energy development.

(3) Opportunities for collaboration between the Department of Defense and the Department of Energy with respect to resource characterization, technology demonstration, and future geothermal energy development.

(c) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report containing the results of the assessment under subsection (a).

SEC. 319A. REPORT ON PFAS DESTRUCTION AND WATER RECLAMATION.

(a) REPORT.—Not later than June 1, 2027, the Secretary of Defense shall submit to the congressional defense committees a report on available technology that leverages recent developments in single-pass high PFAS-destruction technology in water.

(b) ELEMENTS.—The report described in subsection (a) shall include the following:

(1) A list and a description of available technology that allows—

(A) an air-water interface to serve as the primary heat transfer surface; and

(B) for the core operating temperature to enable single-pass high PFAS-destruction technology to ensure rapid destruction of per- and polyfluoroalkyl substances in water.

(2) A proposal to establish a pilot program under which single-pass high PFAS destruction technology shall be tested for Department of Defense uses.

(3) A list of potential locations that could host such a pilot program.

(4) Any other matters the Secretary determines relevant.

(c) SINGLE-PASS HIGH PFAS-DESTRUCTION TECHNOLOGY DEFINED.—In this section, the term ''single-pass high PFAS-destruction technology'' means a technology that—

(1) destroys per- and polyfluoroalkyl substances;

(2) is portable and able to operate in remote areas; and

(3) can process up to 20,000 gallons of water per day.

SEC. 319B. GEOTHERMAL RESOURCE CONFIRMATION FOR SAIPAN UNDER ENERGY RESILIENCE AND CONSERVATION INVESTMENT PROGRAM.

(a) ASSESSMENT REQUIRED.—As part of the Energy Resilience and Conservation Investment Program, the Secretary of Defense shall conduct an assessment of the viability of geothermal resources through drilling and other means on the island of Saipan in the Commonwealth of the Northern Mariana Islands, for the purposes of improving the energy security of Department of Defense facilities and operations. Such assessment shall include each of the following:

(1) The collection and analysis of geophysical, geochemical, and subsurface data relevant to geothermal resource viability.

(2) Field investigations, including geophysical surveys and test well drilling, to confirm the capacity of geothermal resources.

(3) An evaluation of the potential of geothermal resources to support resilient power for Department of Defense activities on Saipan, as well on Tinian via undersea cable.

(b) EXECUTION; COORDINATION.—In carrying out the assessment under subsection (a), the Secretary—

(1) may act through the Assistant Secretary of Defense for Energy, Installations and Environment, the United States Army Corps of Engineers, or such other component of the Department of Defense as the Secretary considers appropriate; and

(2) shall coordinate, as appropriate, with the Secretary of the Interior, the Secretary of Energy, the Commonwealth Utilities Corporation, and the Government of the Commonwealth of the Northern Mariana Islands.

(c) REPORT.—Upon the completion of the assessment required under subsection (a), the Secretary shall submit to the Committee as on Armed Services of the Senate and House of Representatives a report on the findings of the assessment, including a determination regarding the via-

bility of geothermal resources and recommended next steps.

SEC. 319C. STUDY ON ENERGY FUEL SOURCE CONVERSION AT THE IOWA ARMY AMMUNITION PLANT.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this section, the Secretary of the Army shall, using funds otherwise made available to the Army, conduct a study to assess the feasibility and cost-effectiveness of converting the energy fuel source at the Iowa Army Ammunition Plant from propane to natural gas.

(b) ELEMENTS.—The study under subsection (a) shall include the following:

(1) A determination of the current annual propane consumption at the Iowa Army Ammunition Plant, including consumption by use category and seasonal variation.

(2) An estimate of the equivalent annual natural gas demand required to meet the energy needs of the plant.

(3) An analysis of the projected costs and savings associated with converting from propane to natural gas, including any capital costs for the conversion of plant infrastructure.

(4) An assessment of the energy reliability and resilience implications of such a conversion.

(5) An evaluation of the availability of natural gas supply to the plant, including any infrastructure, such as pipeline access, that would be required to deliver natural gas to the facility.

(c) SUBMISSION.—Not later than 30 days after the completion of the study under subsection (a), the Secretary of the Army shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report containing the findings of such study.

Subtitle C—Logistics and Sustainment

SEC. 321. REQUIREMENT FOR QUARTERLY REPORTS ON MUNITIONS INVENTORY NUMBERS.

Section 222c of title 10, United States Code, is amended—

(1) in the section heading, by inserting "**; current inventory numbers**" after "**Out-Year inventory numbers**";

(2) in subsection (a), by striking "subsection (c)" and inserting "subsection (d)";

(3) by redesignating subsections (b) through (h) as subsections (c) through (i), respectively;

(4) by inserting after subsection (a) the following new subsection:

''(b) QUARTERLY REPORTS.—At the same time each year that the budget for the fiscal year beginning in such year is submitted to Congress pursuant to section 1105(a) of title 31, and on a quarterly basis thereafter, the Secretary of Defense shall submit to the congressional defense committees a report setting forth munitions inventory numbers current as of the date of the submission of such report, presented in the aggregate and disaggregated by armed force.'';

(5) in subsection (d), as so redesignated, by striking ''described in subsection (d)'' and inserting ''described in subsection (e)'';

(6) in subsection (g), as so redesignated, by striking ''subsection (e)(1)'' and inserting ''subsection (f)(1)''; and

(7) in subsection (h), as so redesignated, by striking ''subsection (c)(10)'' and inserting ''subsection (d)(10)''.

SEC. 322. INCREASE OF CAPITAL INVESTMENT PROGRAM THRESHOLD FOR WORKING-CAPITAL FUNDS.

Section 2208(k)(2) of title 10, United States Code, is amended by striking ''installation or a science and technology reinvention laboratory and not less than $250,000

for procurements at all other facilities'' and inserting ''installation, science and technology reinvention laboratory, or any other facility''.

SEC. 323. ESTABLISHMENT OF CIVIL RESERVE INDUSTRIAL BASE.

(a) IN GENERAL.—Chapter 131 of title 10, United States Code, is amended by inserting after section 2224a the following new section:

''§ 2224b. Civil Reserve Industrial Base

''(a) IN GENERAL.—The Secretary of Defense, acting through the Under Secretary of Defense for Acquisition and Sustainment, shall establish the Civil Reserve Industrial Base program under which the Secretary shall enter into agreements under subsection (c) with covered commercial facilities—

''(1) to enhance the availability and responsiveness of sustainment and repair capabilities in support of military operations; and

''(2) to strengthen the collaboration during peacetime between the Department of Defense and the defense industrial base in theater by leveraging the capacity of covered commercial facilities and the co-sustainment capabilities of allies and partners of the United States, including through the assignment of recurring low-volume or mid-volume workloads, to

ensure the availability of logistics, sustainment, and repair surge capacity during contingency operations.

''(b) PROGRAM ELEMENTS.—In carrying out this section, the Secretary shall—

''(1) identify covered commercial facilities that are located within the area of operations of each of the geographic combatant commands, including facilities in allied and partner nations;

''(2) develop arrangements to store, maintain, and manage replenishment parts and related equipment at covered commercial facilities identified under paragraph (1) that enter into agreements with the Secretary under subsection (c);

''(3) enter into agreements under subsection (c) with such facilities under which such facilities agree to provide peacetime workload or sustainment activities or receive other incentives to ensure such facilities and personnel employed by such facilities remain qualified, ready, and available to support contingency operations; and

''(4) integrate the participating facilities and the capabilities such facilities provide into the product support strategy developed in accordance with section 4324 of this title, other relevant sustainment planning, logistics posture efforts, and the oper-

ational plans of the geographic combatant commands.

''(c) AGREEMENTS.—In carrying out this section, the Secretary of Defense may enter into contracts, grants, cooperative agreements, or other appropriate agreements with covered commercial facilities under which such facilities agree to provide for the storage, maintenance, repair, overhaul, and distribution of replenishment parts and related equipment. An agreement under this subsection may—

''(1) provide for the use of commercial facilities and personnel during peacetime and contingency operations;

''(2) include terms addressing force protection, continuity of operations, and security requirements;

''(3) provide for the sustainment of capability through recurring peacetime workload, as appropriate;

''(4) provide for support for commercial entities headquartered in the United States in order to provide surge operational support when required by the Secretary; and

''(5) support and encourage the negotiation of voluntary license agreements directly between origi-

nal equipment manufacturers and third parties in accordance with section 3771(b)(9)(C) of this title.

''(d) CONTRACTOR AND SUBCONTRACTOR TECHNICAL DATA.—Sections 3771 through 3775 of this title shall apply to contractor and subcontractor technical data in contracts or agreements entered into under this section.

''(e) DEFINITIONS.—In this section:

''(1) The term 'covered commercial facility' means a commercial facility owned by a United States entity that is capable of providing one or more of the following:

''(A) Warehousing and secure storage.

''(B) Supply chain management and distribution.

''(C) Maintenance, repair, and overhaul.

''(D) Repairable management, component repair, and test capability.

''(E) Other sustainment-related capabilities identified by the Secretary.

''(2) The term 'replenishment parts' means repair parts, components, or other items to support the sustainment of Department of Defense systems and equipment through replacement, repair, or overhaul.''.

(b) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the implementation of section 2224b of title 10, United States Code, as added by subsection (a). Such report shall include each of the following:

(1) A description of the structure and governance of the Civil Reserve Industrial Base program, as established by such section.

(2) A description of the types of covered commercial facilities and capabilities identified under subsection (b)(1) of such section, including the number of such facilities identified that are located in the area of operations of each of geographic combatant commands.

(3) An assessment of the sustainment, readiness, and resiliency benefits of leveraging commercial facilities for in-theater replenishment parts storage and maintenance, including the expected effect on time-to-repair and time-to-resupply for key platforms.

(4) A description of the contracting mechanisms, incentives, or public-private partnership authorities required to enable recurring peacetime use by the Department of Defense of covered commercial

facilities under the Civil Reserve Industrial Base program.

(5) A description of any force protection, operational security, or continuity-of-operations requirements applicable to covered commercial facilities participating in the Civil Reserve Industrial Base in the event of conflict.

(6) An identification of statutory, regulatory, or policy barriers that limit the ability of the Department to implement the Civil Reserve Industrial Base, including barriers related to contracting, logistics policy, or cross-border sustainment.

(7) Any recommendations for additional authorities needed to expand or sustain the Civil Reserve Industrial Base.

SEC. 324. MODIFICATION OF MINIMUM CAPITAL INVESTMENT FOR CERTAIN DEPOTS OF DEPARTMENT OF DEFENSE.

Section 2476(a)(1) of title 10, United States Code, is amended by striking ''the preceding three fiscal years'' and inserting ''the preceding fiscal year, the current fiscal year, and the estimated amount for the following fiscal year''.

SEC. 325. EXPANSION OF COVERED DEPOTS TO INCLUDE CRANE ARMY AMMUNITION ACTIVITY, INDIANA.

Section 2476(f)(1) of title 10, United States Code, is amended by adding at the end the following new subparagraph:

''(J) Crane Army Ammunition Activity, Indiana.''.

SEC. 326. EXPANSION OF SPACE-AVAILABLE TRAVEL PROGRAM FOR MEMBERS OF THE ARMED FORCES STATIONED AT UNITED STATES NAVAL STATION GUANTANAMO BAY, CUBA.

Section 2641b of title 10, United States Code, is amended—

(1) by redesignating subsection (g) as subsection (h); and

(2) by inserting after subsection (f) the following new subsection (g):

''(g) PURCHASED TRANSPORTATION TO AND FROM UNITED STATES NAVAL STATION GUANTANAMO BAY, CUBA.—(1) Notwithstanding subsection (b), an individual eligible for the travel program under subsection (c)(1) and stationed at United States Naval Station Guantanamo Bay, Cuba, may purchase transportation on Department of Defense aircraft, at commercially-competitive rates as determined by the Secretary of Defense, for travel to and

from Naval Station Guantanamo Bay on a space-available basis.

''(2) An individual who purchases transportation pursuant to paragraph (1) shall receive a priority consistent with members of the armed forces traveling in a space-required status, as determined by the Secretary.

''(3) Amounts collected pursuant to paragraph (1) for transportation shall be credited to the applicable appropriation of the Armed Force providing such transportation, shall be merged with funds in the appropriation to which credited, and shall be available for the same purposes and period as the appropriation with which merged.''.

SEC. 327. AUTHORIZATION OF SUSTAINABLE AVIATION FUEL PROCUREMENT.

Section 2911 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(k) SUSTAINABLE AVIATION FUEL PROCUREMENT.—The Secretary of Defense may procure sustainable aviation fuel for operational or training purposes at a cost that exceeds the cost of conventional petroleum based aviation fuel.''.

SEC. 328. MODIFICATION AND EXTENSION OF PILOT PROGRAM ON OPTIMIZATION OF AERIAL REFUELING AND FUEL MANAGEMENT IN CONTESTED LOGISTICS ENVIRONMENTS THROUGH USE OF ARTIFICIAL INTELLIGENCE.

Section 346 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) is amended—

(1) by striking subsection (c) and inserting the following:

''(c) DEADLINE FOR IMPLEMENTATION.—The Under Secretary of Defense for Acquisition and Sustainment, in coordination with the Chief of Staff of the Air Force, shall implement the pilot program under this section, by not later than 270 days after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2027.'';

(2) by redesignating subsection (e) as subsection (g);

(3) in subsection (g) as so redesignated, by striking ''January 1, 2027'' and inserting ''January 1, 2030''; and

(4) by inserting after subsection (d) the following new subsections (e) and (f):

''(e) RESPONSIBILITY.—Beginning on the date that is 180 days after the date of the enactment of the National

Defense Authorization Act for Fiscal Year 2027, the Under Secretary of Defense for Acquisition and Sustainment, in coordination with the Chief of Staff of the Air Force, shall be responsible for carrying out the pilot program under this section.

''(f) BRIEFING.—Not later than January 1, 2028, the Under Secretary shall provide to the congressional defense committees a briefing on the status of the implementation of the pilot program under this section. Such briefing shall address—

''(1) outcomes and performance metrics of the pilot program;

''(2) any barriers identified for integration of the pilot program into operational planning; and

''(3) recommendations regarding continuation, modification, or expansion of the pilot program.''.

SEC. 329. ARMY EXPANSION OF PRODUCTION OF 155MM ARTILLERY AMMUNITION.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the production of 155mm artillery ammunition at a minimum rate to reach total munition requirements is a national priority; and

(2) the production rate of such ammunition should be sustained or increased over the next five years in order to—

(A) fully meet all Army and Marine Corps annual training requirements;

(B) rebuild war reserve inventories for both the Army and the Marine Corps to fully comply with the planning guidance of the Secretary of Defense and ensure that associated inventory and war reserve levels are met;

(C) modernize the stockpile with the best performing weapons; and

(D) continue foreign military sales of ammunition manufactured in the United States to generate the domestic workforce and assures wartime interoperability with United States allies.

(b) PRODUCTION EXPANSION.—The Secretary of the Army shall—

(1) expand and upgrade facilities of the Army that are used to produce propellant, metal parts, explosive fill, load assemble pack, and components of 155mm artillery; and

(2) increase the production of propellant, metal parts, explosive fill, load assemble pack, and components of 155mm artillery to ensure that—

(A) the total production capacity of all such facilities reaches 100,000 rounds each month; and

(B) the Out-Year Unconstrained Total Munitions Requirement for 155mm artillery ammunition in effect for the Army pursuant to section 222c of title 10, United States Code, is met.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall submit to the congressional defense committees a report on the steps taken by the Secretary to carry out the requirements of this section. Such report shall include—

(1) an identification of the amount of funds required to reach the production capacity under subsection (b)(2)(A);

(2) a plan for—

(A) expanding and upgrading facilities of the Army used to produce 15mm artillery ammunition; and

(B) increasing the rate of production of such munitions;

(3) an estimated time frame for when the production capacity under subsection (b)(2)(A) will be reached;

(4) an estimated time frame for the production of sufficient munitions to replenish stocks to reach total munition requirements under the Out-Year Unconstrained Total Munitions Requirement for 155mm artillery in effect for the Army pursuant to section 222c of title 10, United States Code; and

(5) a long-term plan to sustain munitions production facilities as demand for artillery ammunition may increase or decrease.

SEC. 330. REQUIREMENTS RELATING TO AERIAL REFUELING CAPABILITY OF AIR FORCE TANKER FLEET.

(a) REQUIREMENTS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force shall—

(1) adopt the use of metrics and standards for specifically assessing the aerial refueling capability of the tanker fleet of the Air Force;

(2) direct the Commander of the Air Mobility Command, in coordination with any program offices and entities of such command that the Commander determines relevant, to submit to the Committees on

Armed Services of the Senate and the House of Representatives periodic reports on the application of the metrics and standards required under paragraph (1) to assess the aerial refueling capability of the tanker fleet;

(3) conduct a comprehensive Air Force-wide assessment of risks associated with the sustainment of the aerial refueling tanker fleet of the Air Force, including, for each such risk, an assessment of the likelihood of the risk occurring and the likely effects of the risk if it occurs; and

(4) develop a mitigation plan based on the results of the risk assessment required under paragraph (3).

(b) REPORT.—

(1) IN GENERAL.—Not later than September 30, 2027, the Secretary of the Air Force shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the progress of implementing the requirements under subsection (a). Such report shall include a comprehensive readiness improvement plan for addressing the sustainment challenges of the aerial refueling capability of the tanker fleet.

(2) FORM OF REPORT.—The report required under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

SEC. 331. NAVY CONTAINERIZED EXPEDITIONARY ADVANCED MANUFACTURING CAPABILITIES PILOT PROGRAM.

(a) ESTABLISHMENT.—

(1) AUTHORITY.—Beginning not later than 180 days after the date of the enactment of this Act, the Secretary of the Navy, acting through the Commander of the Naval Sea Systems Command and in coordination with the Commander of the United States Indo-Pacific Command and the heads of such other Navy organizations as the Secretary considers appropriate, shall carry out a pilot program to—

(A) field, evaluate, and assess compact containerized expeditionary advanced manufacturing capabilities in support of naval and joint forces operating in contested, remote, and expeditionary environments;

(B) expand the use of advanced and additive manufacturing within the Department of Defense;

(C) support the objectives of the Department of the Navy Advanced Manufacturing

Strategy, including warfighter self-sufficiency and distributed sustainment; and

(D) evaluate and define validated Navy requirements for containerized expeditionary advanced manufacturing capabilities rather than replace traditional industrial base production, depot-level repair, or established logistics systems.

(2) EXECUTION.—

(A) LEAD AGENT.—The Naval Sea Systems Command Technology Office, in coordination with the Naval Surface Warfare Centers, shall serve as the lead technical and programmatic agent for the pilot program.

(B) SUPPORT.—The Secretary may use the Naval Postgraduate School, and seek to enter into agreements with other appropriate public or private entities, to support experimentation, operational execution, data collection, digital integration, sustainment planning, training development, and requirements capture activities conducted under the pilot program.

(b) DESIGN OF PROGRAM.—The Secretary shall design the pilot program to—

(1) evaluate the operational utility of compact, containerized expeditionary advanced manufacturing systems capable of producing metal and polymer components in contested and austere environments;

(2) assess how such capabilities may provide commanders with additional options to restore readiness in remote or denied conditions when traditional resupply or depot support is unavailable or delayed;

(3) evaluate the appropriate role of commander discretion and commander risk in the production and installation of expeditionary-manufactured parts;

(4) identify categories of components suitable for edge production and establish associated qualification, documentation, and digital traceability requirements;

(5) assess operator training, workforce development, and certification requirements necessary to normalize safe and effective use of compact, containerized advanced manufacturing systems;

(6) evaluate sustainment requirements for expeditionary manufacturing systems, including maintenance, consumables, digital integration, configuration management, and supply chain implications;

(7) measure effects such systems on readiness, maintenance timelines, logistics demand, and operational availability; and

(8) inform future Navy requirements, acquisition pathways, standards, and resourcing decisions regarding expeditionary manufacturing as a complementary sustainment capability.

(c) SYSTEM CHARACTERISTICS.—To the maximum extent practicable, the Secretary shall ensure that advanced manufacturing systems evaluated under the pilot program shall—

(1) consist of containerized platforms not exceeding a 10-foot by 10-foot footprint;

(2) provide multi-material additive manufacturing capabilities;

(3) integrate additive and subtractive manufacturing processes;

(4) support secure digital engineering workflows and configuration control;

(5) be compatible with naval and expeditionary power sources; and

(6) be operable by trained military personnel in deployed maritime and expeditionary environments.

(d) ELEMENTS.—The pilot program shall consist of the following two elements:

(1) A forward-oriented element carried out in support of exercises and deployed maritime operations of the United States Indo-Pacific Command to evaluate—

(A) operational employment;

(B) test and evaluation under expeditionary conditions;

(C) commander use authorities; and

(D) training in distributed and contested environments.

(2) An element carried out at one or more naval installations designated by the Secretary that are located in the continental United States and that may support surface, subsurface, and aviation forces to conduct—

(A) real-time fleet feedback;

(B) operator training development;

(C) sustainment refinement;

(D) digital integration; and

(E) iterative requirements development.

(e) PROCUREMENT AUTHORITY.—To carry out the pilot program under this section, subject to the availability of appropriations, the Secretary of the Navy shall procure not fewer than two expeditionary advanced manufacturing systems using amounts authorized to be appropriated for

the Navy for research, development, test and evaluation, operations, or sustainment, consistent with applicable law.

(f) REPORTING REQUIREMENT.—Not later than one year after the date of the establishment of the pilot program, and annually thereafter for the duration of the pilot program, the Secretary of the Navy shall submit to the congressional defense committees a report that includes—

(1) an identification of the units and locations selected for purposes of the pilot program;

(2) a description of the operational outcomes of the pilot program, including case studies;

(3) an assessment of the employment authorities of the Commander of United States Pacific Command and associated risk frameworks that are relevant to the pilot program;

(4) an identification of part categories appropriate for expeditionary production;

(5) training, workforce, and certification requirements for the pilot program;

(6) an identification of the sustainment and digital integration requirements of the pilot program;

(7) the effects of the pilot program on readiness, logistics demand, and maintenance timelines; and

(8) the recommendations of the Secretary regarding formal requirement validation and transition of expeditionary point-of-need advanced manufacturing to an enduring complementary capability.

(g) DURATION.—The duration of the pilot program required under subsection (a) shall be not fewer than three years and not more than five years.

SEC. 332. EXPANSION OF TRANSPORTATION SERVICES ON NAVY INSTALLATIONS.

(a) IN GENERAL.—The Secretary of the Navy shall seek to enter into a contract with a public transportation services provider for the purpose of expanding transportation services available on Navy installations for members of the Armed Forces and their families. A contract under this section shall prioritize expanding transportation services between lodging facilities, dining facilities, fitness and recreation centers, administrative offices, air terminals, and other activity centers of a Naval installation to improve security and personnel safety at the Navy installation.

(b) SELECTION OF INSTALLATIONS AND PROVIDERS.—The Secretary shall—

(1) select one or more Navy installations at which to expand transportation services pursuant to a contract under subsection (a); and

(2) for each selected Navy installation, identify a public transportation services provider that—

(A) provides public transportation services in the geographic area where the Navy installation is located; and

(B) the Secretary determines is capable of carrying out the contract in a manner that—

(i) addresses the transportation needs of installation personnel, including junior enlisted personnel without access to personal vehicles;

(ii) improves the quality of life and military readiness of installation personnel; and

(iii) implements best practices for partnerships between the installation and the provider.

(c) TERMINATION.—The period of a contract authorized under this section may not exceed three years.

(d) REPORT.—

(1) INITIAL REPORT.—Not later than 90 days after the conclusion of the second year of a contract authorized under this section, the Secretary shall submit to the congressional defense committees an initial report on the contract that includes—

(A) preliminary findings on the transportation services provided under the contract, including ridership levels and service effectiveness;

(B) an initial evaluation of effects of the transportation services on the quality of life and military readiness of Navy installation personnel;

(C) the cost to the Secretary of the contract for the first two years; and

(D) the recommendation of the Secretary as to whether to extend the contract or to enter into similar contracts for the provision of transportation services at additional Navy installations.

(2) FINAL REPORT.—Not later than 180 days after the conclusion of the contract, the Secretary shall submit to the congressional defense committees a final report on the contract that includes—

(A) a comprehensive assessment of ridership levels and service effectiveness of the transportation services provided under the contract;

(B) a complete evaluation of effects of the mass transit services on the quality of life and

military readiness of Navy installation personnel;

(C) the cost to the Secretary of the contract;

(D) the recommendation of the Secretary as to whether to extend the contract or to enter into similar contracts for the provision of transportation services at additional Navy installations; and

(E) such other matters as the Secretary determines appropriate.

(e) DEFINITIONS.—In this section:

(1) The term ''congressional defense committees'' has the meaning given that term in section 101(a)(16) of title 10, United States Code.

(2) The term ''Navy installation'' means a military installation (as such term is defined in section 2801 of title 10, United States Code) under the jurisdiction of the Chief of Naval Operations.

(3) The term ''public transportation services'' means—

(A) public transportation, as defined in section 5302 of title 49, United States Code;

(B) over-the-road bus transportation, as defined in section 1501 of the Homeland Secu-

rity Act of 2002 (6 U.S.C. 1151), and school bus transportation;

(C) intercity rail passenger transportation, as defined in section 24102 of title 49, United States Code;

(D) the transportation of passengers onboard a passenger vessel, as defined in section 2101 of title 46, United States Code; and

(E) other regularly scheduled waterborne transportation service of passengers by vessel of at least 20 gross tons.

(4) The term ''public transportation services provider'' means—

(A) a State, local, or Federal government entity that provides public transportation services; or

(B) or a non-government entity that—

(i) receives financial assistance from a State, local, or Federal government entity; and

(ii) provides public transportation services.

SEC. 333. REQUIREMENTS RELATING TO SUSTAINMENT OF A–10 AIRCRAFT AND RELATED TRAINING.

(a) LIMITATION ON RELOCATION OF A–10 TRAINING UNIT.—The Secretary of the Air Force may not relocate the formal training unit of the Air Force for providing to pilots the qualifications necessary for the operation of A–10 aircraft, including by reassigning the primary training activities carried out by such unit to another military installation, unless—

(1) the Secretary submits to the congressional defense committees an analysis comparing the costs and benefits of such relocation versus preserving the unit at its current location; and

(2) a period of 90 days has elapsed following the date of such submission.

(b) SUSTAINMENT REQUIREMENTS.—

(1) IN GENERAL.—The Secretary of the Air Force shall maintain, as necessary, sufficient training capacity, development, test, and evaluation capacity, depot-level maintenance and repair capacity, supply, logistics, and contractor capacity, and other sustainment-related capacity to ensure the A–10 fleet remains operationally viable through fiscal year 2030, including with respect to each mission and capability of such fleet as of the date of the enactment

of this Act (including combat search and rescue missions).

(2) FORMAL TRAINING UNIT.—In carrying out this subsection, the Secretary shall, as necessary, maintain a formal training unit of the Air Force for providing to pilots the qualifications necessary for the operation of A–10 aircraft, and a process for the requalification of pilots formerly so qualified.

(3) BUDGET MATERIALS.—Concurrent with the submission to Congress of a budget pursuant to section 1105 of title 31, United States Code, for each of fiscal years 2028 through 2030, the Secretary of Defense shall submit to the congressional defense committees a report on the amounts necessary to implement this subsection.

(c) ANNUAL BRIEFING ON A–10 SUSTAINMENT.—

(1) ANNUAL BRIEFING.—Not later than March 1, 2027, and annually thereafter until March 1, 2030, the Secretary of the Air Force shall provide to the congressional defense committees a briefing describing the extent to which the Department of the Air Force met the requirements under subsection (b) during the preceding fiscal year.

(2) ELEMENTS.—Each briefing required under paragraph (1) shall include, at a minimum, the following:

(A) An identification of the number of pilots that received the qualifications necessary for the operation of A–10 aircraft during the preceding fiscal year, disaggregated by whether such qualifications were an initial qualification or a requalification.

(B) An identification of the number of officers that received advanced instructor qualifications through the weapons instructor course for A–10 aircraft offered through the United States Air Force Weapons School, disaggregated by whether such qualifications were an initial qualification or a requalification.

(C) A description of the status of actions taken to meet the requirement under subsection (b)(2) during the preceding fiscal year, and any related instructor shortfalls.

(D) A description of the status of operational test and evaluation capacity with respect to the A–10 fleet, including major limitations affecting airworthiness, weapons integration, tactics development, or mission effectiveness.

(E) The status of programmed depot-level maintenance and repair with respect to A–10 aircraft or related infrastructure, and any resulting effect on the ability of the Department to meet the requirements under subsection (b).

(F) The status of logistics, supply, contractor maintenance, and other sustainment functions for the A–10 fleet, and any resulting effect on the ability of the Department to meet the requirements under subsection (b).

(G) An assessment as to whether the Department met the requirements under subsection (b) during the preceding fiscal year.

(H) A description of any shortfall, delay, or other deviation resulting in a failure to meet any such requirement, including any corrective action planned or underway.

(d) ROADMAP FOR A–10 FLEET SUSTAINMENT.—

(1) ROADMAP REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Air Force shall submit to the congressional defense committees a roadmap setting forth proposed actions to meet the requirements under subsection (b).

(2) BRIEFING.—Not later than 15 days after the date of the submission of the roadmap under paragraph (1), the Secretary of the Air Force shall provide to the congressional defense committees a briefing on such roadmap and any anticipated material shortfall in meeting a requirement under subsection (b).

(3) ANNUAL UPDATES.—Not later than one year after the date of the submission of the roadmap under paragraph (1), and annually thereafter until September 30, 2030, the Secretary of the Air Force shall submit to the congressional defense committees a written update to such roadmap.

(e) PROGRAM TO PRESERVE KNOWLEDGE AND HISTORY RELATING TO A–10 AIRCRAFT.—

(1) ESTABLISHMENT.—The Secretary of the Air Force shall establish a program to preserve technical and historical knowledge relating to the operation and sustainment of the A–10 fleet.

(2) LEAD ENTITY.—The Director of the Air Force Historical Research Agency shall serve as the lead entity carrying out the program under paragraph (1), in coordination with the Commander of the Air Combat Command, the head of the National Museum of the United States Air Force, and such

other organizations of the Department of the Air Force as the Secretary of the Air Force determines appropriate.

(3) REQUIRED ACTIVITIES.—The program established under paragraph (1) shall include, at a minimum the following activities:

(A) The collection of oral histories relating to the A–10 fleet from pilots, advanced instructor-qualified aircrew, maintainers, joint terminal attack controllers, and other personnel involved in the operation (including operational support for combat search and rescue missions) or sustainment of aircraft within such fleet.

(B) The collection and preservation of records associated with the A–10 fleet, including technical data, operational tactics, weapons integration records, upgrade and modification history, and records relating to the sustainment of aircraft within such fleet.

(C) The digital archiving of materials collected under subparagraphs (A) and (B) in a searchable repository accessible to appropriate users within the Department of Defense.

(D) The identification of lessons learned pursuant to the materials so collected.

(E) The development of recommendations for collecting, preserving, and transferring knowledge relating to the A–10 fleet with respect to design, doctrine, training, and sustainment activities relating to successor aircraft.

(4) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of the Air Force shall submit to the congressional defense committees a report containing a summary of—

(A) the activities carried out under the program established under paragraph (1);

(B) the status of the archive established pursuant to paragraph (3)(C); and

(C) the principal lessons learned identified pursuant to paragraph (3)(D).

(f) DEPOT-LEVEL MAINTENANCE AND REPAIR DEFINED.—In this section, the term ''depot-level maintenance and repair'' has the meaning given such term in section 2460 of title 10, United States Code.

SEC. 334. REQUIREMENT FOR STANDARDIZED MUNITIONS WITH RESPECT TO CERTAIN UNMANNED AIRCRAFT.

(a) REQUIREMENT.—The Secretary of Defense shall establish standardized munitions for use in one-way attack operations by covered unmanned aircraft.

(b) COVERED UNMANNED AIRCRAFT DEFINED.—In this section, the term ''covered unmanned aircraft'' means an unmanned aircraft (as such term is defined in section 130i(j) of title 10, United States Code), that is categorized as Group 1 or Group 2 pursuant to the Joint Publication 3–30 of the Department of Defense, titled ''Joint Air Operations'' and dated July 25, 2019, or such successor publication.

SEC. 335. REQUIREMENT TO ENSURE SUFFICIENCY OF NAVAL MINE INVENTORY.

(a) REQUIREMENT.—To the maximum extent practicable, the Secretary of the Navy shall ensure that the inventory of naval mines of the Department of the Navy is sufficient to meet validated operational requirements for not fewer than two simultaneous major regional contingencies.

(b) ANNUAL CERTIFICATION.—

(1) SUBMISSION.—Not later than March 1, 2027, and annually thereafter, the Secretary of the

Navy shall submit to the congressional defense committees a certification that includes the following:

(A) A determination of whether the requirement under subsection (a) is met.

(B) If the requirement under subsection (a) is not met—

(i) a description of the shortfall in the inventory referred to in such subsection; and

(ii) a remediation plan, including timelines and funding requirements, to achieve compliance with such requirement.

(2) FORM.—Each certification required under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

SEC. 336. IMPROVEMENTS TO MANAGEMENT OF TACTICAL VEHICLES OF THE NAVY AND MARINE CORPS.

The Secretary of the Navy shall improve the management of tactical vehicles of the Navy and the Marine Corps by—

(1) establishing clearly defined responsibilities for vehicle commanders; and

(2) implementing standardized procedures that enable first-line supervisors to identify, assess and

mitigate operational risks relating to such vehicles during training and mission execution.

SEC. 337. PILOT PROGRAM ON INTEGRATED ROAD AND RAILROAD LOGISTICS CAPABILITIES FOR UNITED STATES TRANSPORTATION COMMAND.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, acting through the Commander of the United States Transportation Command, shall establish a pilot program to assess the operational utility of integrated road and railroad logistics capabilities at the initial and final stages of the transportation process, to improve the resilience, throughput, and safety of surface distribution in support of joint force operations, including in austere and contested environments.

(b) ACTIVITIES.—The pilot program under subsection (a) shall, to the maximum extent practicable and consistent with applicable safety and security requirements, include the following activities:

(1) The demonstration and evaluation of surface logistics platforms capable of—

(A) operating on public roads and on standard-gauge rail infrastructure, including yards, spurs, sidings, and railheads; and

(B) transitioning between such modes without requiring the construction of new fixed terminal infrastructure.

(2) The demonstration and evaluation of capabilities to transport standardized cargo platforms, including loads compatible with international intermodal containers (commonly referred to as ''ISO containers'') and other modular payloads, between public roads and rail infrastructure in a manner that reduces reliance on multiple specialized assets for handling cargo and reduces cargo dwell time at railheads and yards.

(3) The assessment of plans for the operational deployment of such platforms, capabilities, and associated systems, for—

(A) distribution to military installations and use with respect to depots;

(B) port and strategic mobility support activities; and

(C) distributed logistics in austere and contested environments where infrastructure is damaged, constrained, or unavailable.

(4) The demonstration and evaluation of a software-enabled capability to coordinate transportation on public roads and rail infrastructure at the initial

and final stages of the transportation process, including to coordinate the scheduling of yard and terminal availability, mission assignment, and exception management, and to generate auditable performance data on such activities.

(5) The assessment of cybersecurity and data integrity measures for any networked command-and-control, dispatch, or audit logging function relating to such pilot program, including authentication, encryption in transit, access controls, and tamper-evident recordkeeping, consistent with applicable cybersecurity policies of the Department of Defense.

(6) The evaluation of safety considerations (including with respect to human involvement in supervision activities, as appropriate) and compliance pathways for operations on or adjacent to rail infrastructure and in controlled environments, including geofenced areas.

(c) LOCATIONS.—The Commander of the United States Transportation Command shall carry out the pilot program under subsection (a) at one or more locations selected by the Commander. Such locations may include the following:

(1) A strategic distribution node, port, or other surface distribution hub supporting the Defense Transportation System.

(2) A railhead located at a military installation, a depot, a location at which logistics readiness activities are conducted, or another facility of the Department of Defense with recurring surface distribution requirements.

(d) METRICS AND EVALUATION.—In carrying out the pilot program under subsection (a), the Commander of the United States Transportation Command shall establish metrics and, to the maximum extent practicable, collect and assess performance data for the activities conducted under such pilot program. Such data may include the following:

(1) Cargo dwell time and throughput.

(2) Labor hour requirements and safety incidents.

(3) Operational availability and maintenance burden.

(4) Energy use and fuel consumption.

(5) Integration burden with existing logistics information systems.

(6) Cybersecurity observations and data integrity outcomes.

(e) TERMINATION.—The pilot program under subsection (a) shall terminate on the date that is two years after the date on which the pilot program is established.

(f) REPORT.—Not later than 180 days after the date of the termination of the pilot program under subsection (e), the Secretary of Defense shall submit to the congressional defense committees a report containing a description of the results of such pilot program, including the following:

(1) A summary of the activities conducted under such pilot program and the locations selected pursuant to subsection (c).

(2) An assessment of the performance of such activities against the metrics established pursuant to subsection (d).

(3) An identification of any safety or regulatory constraint encountered in carrying out such activities, including as a result of railroad operating rules.

(4) An assessment of cybersecurity and data integrity considerations.

(5) A cost-informed assessment of the scalability of such pilot program and related sustainment considerations.

(6) Recommendations regarding future experimentation relating to the capabilities demonstrated

and evaluated under such pilot program or similar capabilities, the development of related requirements, and potential transition pathways for such capabilities.

Subtitle D—Reports

SEC. 341. STRATEGY TO SUPPORT JOINT STRIKE FIGHTER SUSTAINMENT AND MAINTENANCE IN CONTESTED OPERATING ENVIRONMENTS.

(a) STRATEGY REQUIRED.—The Secretary of the Defense, in coordination with the Secretary of the Air Force, the Secretary of the Navy, the Commander of the United States Transportation Command, and the Director of the Defense Logistics Agency, shall develop a strategy to support the sustainment and maintenance of Joint Strike Fighter aircraft in contested operating environments. Such strategy shall address, at a minimum, the following:

(1) The transportation of spares and repair parts for such aircraft into and across contested theaters of operation.

(2) Communications requirements necessary for the transportation of such parts in a denied, degraded, intermittent, or limited environment.

(3) Requirements relating to relevant supply chain management software.

(4) Prepositioned stocks of spares and repair parts for Joint Strike Fighter aircraft, including measures to ensure the currency and serviceability of ready for issue parts and to require that the statuses of such prepositioned stocks include instructions for the disposition and replacement of any such parts that are not current or ready for issue.

(5) Spares and repair parts packages deployed on naval vessels in which Joint Strike Fighter aircraft are embarked, including measures relating to prepositioning, currency, and serviceability described in paragraph (4) with respect to spares and repair parts packages deployed on such vessels.

(6) The incorporation of sustainment efforts for deployed Joint Strike Fighter aircraft into the framework of the Air Force for agile combat employment and the framework of the Navy for distributed maritime operations.

(7) The international system for managing spare parts for Joint Strike Fighter aircraft commonly referred to as the ''global spares pool''.

(8) Support from, and coordination with, allies and partners of the United States.

(b) REPORT.—

(1) SUBMISSION TO CONGRESS.—Not later than one year after the date of enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the strategy required under subsection (a).

(2) FORM.—The report required under paragraph (1) shall be submitted in an unclassified form but may include a classified annex.

SEC. 342. ASSESSMENT OF CAPACITY FOR GROUND-SAFETY PROGRAMS WITH RESPECT TO TACTICAL VEHICLE OPERATIONS.

(a) ASSESSMENT.—The Secretary of the Army shall conduct an assessment as to whether operational units of the Army have sufficient personnel, resources, and organizational capacity to effectively implement ground-safety programs with respect to tactical vehicle operations.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall submit to the congressional defense committees a report containing the results of the assessment conducted under subsection (a).

SEC. 343. REPORT ON REDUCTION OF TRAINING-RELATED ACCIDENTS ACROSS MILITARY DEPARTMENTS.

Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on progress made by each military department to reduce training-related accidents, fatalities, and serious injuries. Such report shall include, with respect to each military department—

(1) data trends, including year-over-year comparisons of such data;

(2) an assessment of the effectiveness of any action taken in response to prior congressional concerns expressed regarding training safety; and

(3) a description of ongoing and planned efforts to further reduce training-related incidents, improve risk management practices, and enhance the safety of the members of the Armed Forces during training operations.

SEC. 344. STUDY ON POTENTIAL ESTABLISHMENT OF STRATEGIC INFRASTRUCTURE PARTNERSHIP INITIATIVE.

(a) STUDY.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Commander of the United States

Indo-Pacific Command, shall conduct a study on the potential benefits of establishing an initiative, to be known as the ''Strategic Infrastructure Partnership Initiative'', to conduct strategic assessments and leverage regional engagement to—

(1) advance the identification, development, and implementation of high-quality, resilient, and secure infrastructure projects across the area of responsibility of the United States Indo-Pacific Command;

(2) prioritize, with respect to such infrastructure projects, dual-use infrastructure (including ports, airfields, energy systems, digital networks, and logistics facilities) that supports civilian economic development and regional stability and security objectives;

(3) incorporate into the design and implementation of such infrastructure projects best practices for infrastructure resilience, including through the adoption of cybersecurity and physical security standards; and

(4) align assistance and security priorities by coordinating with the heads of relevant Federal departments and agencies, including the Director of the United States Trade and Development Agency, with respect to such infrastructure projects.

(b) REPORT.—Not later than 180 days after the date of enactment of this Act, the Secretary of Defense, in coordination with the Commander of the United States Indo-Pacific Command, shall submit to the congressional defense committees a report containing the results of the study required under subsection (a).

SEC. 345. REPORT ON ACCELERATING MILITARY POSTURE WITHIN AREA OF RESPONSIBILITY OF UNITED STATES INDO-PACIFIC COMMAND.

Not later than 180 days after the date of enactment of this Act, the Commander of United States Indo-Pacific Command shall submit to the congressional defense committees a report on options to accelerate the posture of the Armed Forces within the area of responsibility of such Command. Such report shall include the following:

(1) A comprehensive list of each planned or underway initiative to establish or enhance access by the Armed Forces to locations within such area of responsibility, including access to headquarters, military installations, prepositioned stocks, and forward operating locations within such area.

(2) For each initiative listed pursuant to paragraph (1)—

(A) an expected timeline for the completion of the initiative, including an identification of

major milestones during the periods ending in 2030, 2035, and 2040, respectively;

(B) a description of any opportunities to accelerate such expected timeline;

(C) an analysis of any financial, diplomatic, logistical, or other impediment to such accelerated timeline;

(D) recommendations to overcoming any such impediment, including an identification of resources required; and

(E) an evaluation of the operational and strategic benefits of such acceleration.

(3) A prioritized list of candidate initiatives, and corresponding locations, suitable for the acceleration described in paragraph (2), including an identification of any resources or actions required for such acceleration.

SEC. 346. REQUIREMENT TO PROVIDE BRIEFING ON INSECT REPELLENT UNIFORM TREATMENTS.

(a) REQUIREMENT.—Not later than 180 days after the date of enactment of this Act, the Secretary of the Army shall provide a briefing to the Committee on Armed Services of the House of Representatives and the Senate regarding validated insect repellent available to the Army on the date of the enactment of this Act.

(b) ELEMENTS.—The briefing under paragraph (1) shall include the following:

(1) Ongoing evaluations to validate fabric treatments to improve insect repellency for combat uniforms.

(2) An analysis of fabric treatment and garment treatment performance results.

(3) Established research and development programs to improve uniform insect repellency.

SEC. 347. STUDY AND REPORT ON USE OF NEXT-GENERATION GEOTHERMAL TECHNOLOGIES TO SUPPORT ENERGY CAPABILITIES OF THE DEPARTMENT OF DEFENSE.

(a) IN GENERAL.—The Secretary of Defense shall carry out a study to evaluate the potential and feasibility of implementing next-generation geothermal technologies to meet the power needs of the Department of Defense and strengthen national security.

(b) ELEMENTS.—The study under subsection (a) shall evaluate—

(1) the potential for next-generation geothermal technologies to be used to meet energy resilience requirements under section 2920 of title 10, United States Code;

(2) the long-term cost of increasing the use of next-generation geothermal technologies to meet Department of Defense power needs, including cost estimates for—

(A) point-of-use power production;

(B) reduced transmission requirements;

(C) reduced reliance on fuel costs; and

(D) reduced reliance on fuel delivery; and

(3) how next-generation geothermal technologies may be used to—

(A) provide district heating and cooling for military quarters, hospitals, or other relevant facilities of the Department of Defense;

(B) reduce exposure of the military departments to cybersecurity threats;

(C) reduce the reliance of the military departments on vulnerable supply chains; and

(D) improve natural disaster resiliency on military installations and in areas in geographic proximity to military installations.

(c) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to Congress a report that includes the results of the study under subsection (a).

SEC. 348. REPORT ON CERTAIN WATER AND WASTEWATER INFRASTRUCTURE SYSTEMS AT MILITARY INSTALLATIONS.

(a) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report identifying any water and wastewater infrastructure system—

(1) that is located at a military installation;

(2) the age of which exceeds 60 years;

(3) that the Secretary determines requires substantial deferred maintenance, or replacement, to maintain compliance with applicable environmental or public health requirements; and

(4) the failure of which the Secretary determines—

(A) presents a significant risk to installation readiness, force health protection, continuity of operations, or mission execution; and

(B) would result in significant contingency operating costs.

(b) MATTERS.—The report under subsection (a) shall include the following:

(1) For each system identified pursuant to such report, the following information:

(A) The age and condition of the system.

(B) The estimated cost to maintain, restore, modernize, or replace the system.

(C) The estimated contingency operating costs associated with the failure of the system.

(D) An assessment of the effect such failure would have with respect to installation readiness, force health protection, continuity of operations, and mission execution.

(E) An assessment of the effect such failure would have with respect to members of the Armed Forces, military families, and quality of life at the military installation, including such effects on access to safe drinking water, sanitation, housing, healthcare, and other essential services.

(2) A prioritized ranking across the systems so identified, based on an assessment of the lifecycle condition of such systems, the operational risks, and effects on installation readiness, that would result from the failure of such systems, and the compliance requirements specified in subsection (a)(3) applicable to such systems.

(3) Recommendations for addressing, through maintenance, restoration, modernization, or replace-

ment activities, the systems ranked as the highest priority pursuant to paragraph (2).

Subtitle E—Other Matters

SEC. 351. ESTABLISHMENT OF CENTER FOR THE STUDY OF THE NATIONAL GUARD.

(a) ESTABLISHMENT.—Chapter 1 of title 32, United States Code, is amended by adding at the end the following new section:

"§ 116. Center for the Study of the National Guard

''(a) ESTABLISHMENT.—The Secretary of Defense, in coordination with the Chief of the National Guard Bureau, shall establish a center, to be known as the 'Center for the Study of the National Guard' at an appropriate academic institution that—

''(1) maintains an established relationship with the National Guard Bureau;

''(2) possesses a strong academic program in military history; and

''(3) is situated in proximity to a major National Guard installation.

''(b) RESPONSIBILITIES.—The Center for the Study of the National Guard shall—

''(1) serve as the principal repository for historical documents, oral histories, and other records related to the National Guard;

''(2) conduct research, analysis, and educational programs related to the history, evolution, and operational contributions of the National Guard;

''(3) facilitate outreach efforts to increase public awareness of the role of the National Guard in national defense and domestic response operations; and

''(4) support the Department of Defense in shaping policy decisions and strategic planning related to National Guard operations carried out under this title and title 10.

''(c) COLLABORATION AND SUPPORT.—The Chief of the National Guard Bureau may—

''(1) collaborate with the Center for the Study of the National Guard in the collection, preservation, and dissemination of National Guard history;

''(2) provide historical documents, records, and resources to support the research and archival efforts of the Center; and

''(3) facilitate joint initiatives between the National Guard Bureau and the Center to enhance historical preservation, education, and public awareness.

''(d) PUBLIC-PRIVATE PARTNERSHIP.—The Secretary of Defense shall seek to establish and maintain the

Center for the Study of the National Guard as a public-private partnership to minimize costs to the Federal Government.''.

(b) DEADLINE FOR ESTABLISHMENT.—The Secretary of Defense shall establish the Center for the Study of the National Guard required under section 116 of title 32, United States Code, as added by subsection (a), by not later than the date that is 180 days after the date of the enactment of this Act.

(c) CONGRESSIONAL BRIEFING.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall provide to the congressional defense committees a briefing that includes—

(1) a description of the selection of the academic institution where the Center for the Study of the National Guard required under section 116 of title 32, United States Code, as added by subsection (a), is located;

(2) an identification of the status of the establishment and initial operations of the Center;

(3) a description of any ongoing efforts between the National Guard Bureau and the Center; and

(4) the recommendations of the Secretary to enhance the preservation and study of National Guard history.

SEC. 352. DISPOSITION OF ACCOUNTABLE PROPERTY IN DESIGNATED THEATERS OF OPERATION.

(a) OVERSIGHT OF DISPOSITION.—Chapter 153 of title 10, United States Code, is amended by inserting after section 2581 the following new section:

"§ 2582. Disposition of accountable property in designated theaters of operation

''(a) REPORTING REQUIREMENT.—Not later than 60 days after initiating any significant force reposturing or withdrawal within or from a covered theater of operations, the Secretary of Defense shall submit to the congressional defense committees a report that includes, with respect to accountable property used in connection with the operations associated with such reposturing or withdrawal, the following elements:

''(1) A comprehensive inventory of such property (including, to the extent practicable, the serial number and end-item identity of any such property that is a controlled inventory item), including an identification of—

''(A) whether such property remains under the custody and control of the United States;

''(B) to the extent known and consistent with available records, whether such property was previously sold or otherwise transferred to an ally or partner of the United States;

''(C) whether the Secretary has proposed a disposition for such property and if so, which disposition; and

''(D) to the extent known or assessed, the status of such property, including, if known, the disposition of such property and the end user of such property.

''(2) For each category of major defense equipment, an assessment of the feasibility, timeline, operational effect, and security, accountability, and end-user monitoring considerations, associated with potential dispositions for accountable property within each such category.

''(3) For any covered disposition assessed under paragraph (2), a description of any operational or logistical constraint rendering other dispositions unfeasible or impracticable.

''(4) For each potential disposition for accountable property assessed as feasible pursuant to paragraph (2), an estimate of the incremental costs of such option relative to baseline costs of withdrawal and redeployment activities, including an identification of—

''(A) costs associated with the shipping and handling of such property; and

''(B) costs associated with the sustainment and storage for such property.

''(5) A plan to mitigate the risk of diversion or misuse resulting from dispositions of accountable property that includes the following:

''(A) An identification of relevant end-use monitoring requirements of the Department of Defense, including the office of the Department responsible for implementing such requirements, the frequency of monitoring under such requirements, and any procedures for addressing noncompliance with such requirements, including in the event of the loss of the property.

''(B) An identification of any feasible remote disablement capability that may be used with respect to such property, and, for any such capability the use of which is not feasible, an explanation of any technical, operational, or legal constraints to such use.

''(C) Procedures for the implementation of the plan with respect to accountable property that is sensitive technology (including communications security items, cryptographic material, biometrics collection devices, and associated

databases) prior to determining a disposition for such technology.

''(D) A plan to secure, retrieve, disable, or otherwise neutralize accountable property in the event of the ally or partner of the United States to which such property was sold or transferred experiencing a collapse or regime change.

''(E) A chain-of-custody plan for the transport, storage, and transfer of accountable property, including an identification of responsible units, storage site controls, and inspection checkpoints.

''(6) For any accountable property previously sold or otherwise transferred to an ally or partner of the United States, or proposed to be so sold or transferred, an assessment of the following:

''(A) The capacity of the end user, or prospective end user, to sustain such property absent support by the United States Armed Forces or contractors of the Department of Defense.

''(B) To the extent practicable, whether the end user, or prospective end user—

''(i) has been subject to any security vetting or monitoring by the Secretary, in-

cluding an identification of any period of continuous monitoring;

''(ii) maintains effective command-and-control structures; or

''(iii) is subject to infiltration, coercion, or substantial influence by any foreign terrorist organization or other hostile actor.

''(C) The effect, or anticipated effect, of the sale or transfer on morale and retention with respect to the United States Armed Forces.

''(D) Whether there is a history of accountable property previously sold or transferred to the ally or partner being diverted to an unauthorized end user, including, as applicable, an identification of any such prior diversion, the assessed end user, and the quantity and type of any major defense equipment so diverted.

''(E) The risk of the ally or partner experiencing rapid collapse.

''(7) An assessment of the significant force reposturing or withdrawal with respect to applicable lessons learned from the operations of United States

Armed Forces in Iraq in 2014, and the withdrawal of such forces from Afghanistan in 2021, including an assessment of—

"(A) specific decision points with respect to such operations in which diversion risk was underestimated; and

"(B) any mitigation measures that would have reduced such risk.

"(b) NOTIFICATION OF CERTAIN SALES AND TRANSFERS.—Not later than 30 days after the date of a sale or transfer of accountable property in connection with a significant force reposturing or withdrawal within or from a covered theater of operations, the Secretary of Defense shall submit to the congressional defense committees a notification the contains, to the extent known—

"(1) a description of the accountable property sold or otherwise transferred;

"(2) a description of the end user of such property; and

"(3) a certification of the conduct of the assessment required under paragraph (1)(A).

"(c) SENIOR APPROVAL REQUIREMENT.—(1) The Secretary of Defense or the Deputy Secretary of Defense shall approve, in writing, any determination to proceed with a disposition described in paragraph (2) for account-

able property with an aggregate replacement value exceeding $10,000,000.

''(2) A disposition described in this paragraph is, with respect to accountable property, the abandonment or loss of such property without continuous custody and control by the United States or a partner or ally of the United States, the destruction of such property, or the demilitarization of such property.

''(d) ANNUAL REPORT AND NOTIFICATION REQUIREMENTS.—(1) Not later than one year after the date of the enactment of this section, and annually thereafter for five years, the Secretary of Defense shall submit to the congressional defense committees a report containing, with respect to the year preceding the date of submission of the report, the following:

''(A) A summary of the dispositions of accountable property in covered theaters of operation, including any covered dispositions.

''(B) A summary of any incidents in which major defense equipment was diverted, including an identification of the quantity and type of equipment so diverted and, to the extent practicable, the assessed end user.

''(C) A summary of risk mitigation measures implemented, consistent with the plan under subsection (a)(5).

''(D) Any material changes in the resilience of allies or partners of the United States relevant to determinations regarding dispositions for accountable property, including with respect to the risk of infiltration or diversion.

''(2) Not later than 30 days after any date on which the Secretary of Defense becomes aware of a collapse of an ally or partner force or other event that the Secretary determines materially increases the risk of accountable property being diverted in a covered theater of operations, the Secretary shall submit to the congressional defense committees written notification that includes a description of the event, the categories of property at risk of diversion, and any mitigation measure implemented.

''(3)(A) Not later than 30 days after any date on which the Secretary of Defense becomes aware that accountable property subject to a covered disposition in a covered theater of operations has been diverted and used in an attack conducted by a foreign terrorist organization or other hostile actor against the United States, allies or partners of the United States, or local populations, the

Secretary shall submit to the congressional defense committees a written notification.

''(B) Each notification under subparagraph (A) shall include, to the extent practicable—

''(i) an identification of the accountable property used in the attack;

''(ii) an identification of the date on which, and the location from which, the property left the custody and control of the United States or an ally or partner of the United States;

''(iii) an attribution as to the actor responsible for the attack; and

''(iv) the total number of casualties caused by the attack.

''(e) FORM OF REPORTS.—Each report required under this section shall be submitted in unclassified form but may include a classified annex.

''(f) DEFINITIONS.—In this section:

''(1) The term 'accountable property' means any accountable property of the Department of Defense, as described in Department of Defense Instruction 5000.64, titled 'Accountability and Management of DoD Equipment and Other Accountable Property' and dated June 10, 2019 (or any such successor instruction).

''(2) The term 'aggregate replacement value', with respect to accountable property, means the total replacement value of such property as reflected in property accountability systems of the Department of Defense, or, if not recorded therein, the best available estimate for such value as determined by the Secretary.

''(3) The term 'controlled inventory item' means any item designated as such pursuant to Department of Defense Instruction 5000.64, titled 'Accountability and Management of DoD Equipment and Other Accountable Property' and dated June 10, 2019 (or any such successor instruction).

''(4) The term 'covered disposition', with respect to accountable property—

''(A) means disposition of such property other than a retrograde, destruction, demilitarization, sale, or other transfer, carried out in accordance with applicable provisions of law; and

''(B) includes the abandonment of such property without continuous custody and control by the United States or a partner or ally of the United States.

''(5) The term 'covered theater of operations' means any geographic area designated by the Secretary of Defense for purposes of this section in which the United States Armed Forces are conducting contingency operations, advising or assisting ally or partner forces engaged in hostilities, or conducting operations in an environment with respect to which the Secretary determines there is a material risk of the loss or abandonment of such property without continuous custody and control by the United States or a partner or ally of the United States as a result of armed conflict, terrorist activity, collapse of an ally or partner force, or seizure by a hostile actor, taking into account any history of diversion of such property to an unauthorized end user.

''(6) The term 'disposition', with respect to accountable property, includes the retrograde, destruction, demilitarization, sale, transfer, loss, and abandonment of such property.

''(7) The term 'foreign terrorist organization' means an organization so designated by the Secretary of State under section 219 of the Immigration and Nationality Act (8 U.S.C. 1189).

''(8) The term 'major defense equipment' has the meaning given such term in section 47 of the Arms Export Control Act (22 U.S.C. 2794).

''(9) The term 'significant force reposturing or withdrawal' means a reduction, redeployment, or consolidation of the United States Armed Forces that the Secretary of Defense determines is significant for purposes of this section, including any action that—

''(A) closes, transfers, or materially reduces the capacity of a facility of the Department of Defense;

''(B) results in the disposition of accountable property with an aggregate value exceeding $10,000,000; or

''(C) reduces United States Armed Forces personnel levels by more than 20 percent in a given covered theater of operations over a 90-day period.''.

(b) INITIAL BASELINE REPORT.—

(1) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report that provides baseline information regarding the disposition of accountable prop-

erty in covered theaters of operation during fiscal year 2026 and contains plans for the implementation of section 2582 of title 10, United States Code, as added by subsection (a).

(2) ELEMENTS.—The report under paragraph (1) shall include the following:

(A) A description of the processes and systems of the Department of Defense for the disposition of accountable property in covered theaters of operations, including any such systems used to record inventories of, or dispositions for, such property.

(B) A description of any policies or procedures of the Department of Defense governing dispositions for accountable property, including the approval procedures for covered dispositions, and any planned updates to such policies to conform with the requirements of such section 2582.

(C) An assessment of any gaps in data that would affect compliance with such requirements, and a plan and timeline to resolve any such gaps.

(3) FORM.—The report required under this subsection shall be submitted in unclassified form but may include a classified annex.

(c) REPORT ON SENIOR LEADER ACCOUNTABILITY FOR CERTAIN DISPOSITIONS.—

(1) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report describing processes to determine accountability for covered dispositions of accountable property in connection with a significant force reposturing or withdrawal.

(2) ELEMENTS.—The report under paragraph (1) shall include the following:

(A) A description of the policies and standards applied to assess individual and command responsibility for the covered dispositions referred to in paragraph (1), including distinctions, if any, by grade, position, or component.

(B) A description of any adverse personnel action available, and (as applicable) taken, with respect to members of the Armed Forces as a result of such covered dispositions.

(C) An identification of the criteria used to determine whether such covered dispositions

trigger a formal investigation or accountability review.

(D) Any recommendations for statutory, regulatory, or policy changes to ensure accountability standards are applied consistently and proportionately across ranks and responsibilities.

(3) FORM.—The report required under this subsection shall be submitted in unclassified form but may include a classified annex.

(d) GAO REVIEW.—

(1) REVIEW.—The Comptroller General of the United States shall review the implementation of section 2582 of title 10, United States Code, as added by subsection (a), including with respect to—

(A) the completeness of any inventories submitted under such section;

(B) the validity of cost comparisons used in implementing such section, including any assumptions used in such comparisons;

(C) the adequacy of any plan developed under subsection (a)(5) of such section; and

(D) the frequency of, justifications for, and execution of, sales or transfers of accountable property for which a waiver is issued under sub-

section (b)(2)(A) of such section, including compliance with the notification and reporting requirements of such subsection.

(2) BRIEFING.—Not later than one year after the date of the enactment of this Act, the Comptroller General shall provide to the congressional defense committees a briefing on the results of the review under paragraph (1).

(e) DEFINITIONS.—In this section, the terms ''accountable property'', ''covered disposition'', ''disposition'', and ''significant force reposturing or withdrawal'' have the meanings given such terms in section 2582(f) of title 10, United States Code, as added by subsection (a).

SEC. 353. CERTIFICATION REQUIREMENT FOR MOTOR CARRIERS TRANSPORTING DEPARTMENT OF DEFENSE FREIGHT.

Chapter 157 of title 10, United States Code, is amended by inserting after section 2631a the following new section:

''§ 2631b. Certification regarding affiliations with Chinese military companies for surface transportation contracts

''(a) CERTIFICATION REQUIRED.—(1) No contract for the transportation of cargo by motor carrier for the Department of Defense (including contracts awarded by

the United States Transportation Command or the Military Surface Deployment and Distribution Command) may be awarded to, or performed by, any covered carrier unless such covered carrier submits a certification described in subsection (b).

''(2) The requirement under paragraph (1) shall apply to prime contractors, subcontractors, and owner-operators at all tiers.

''(b) CONTENTS OF CERTIFICATION.—A certification under this section shall state that, to the best of the covered carrier's knowledge after reasonable inquiry—

''(1) the covered carrier is not owned or controlled by, and does not have significant business relationships with, any entity identified on the most recent list of Chinese military companies required under section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 10 U.S.C. 113 note); and

''(2) the covered carrier will require the same certification from any subcontractor or owner-operator it engages for performance of the contract.

''(c) FLOW-DOWN AND RECORDKEEPING.—Prime contractors shall include the substance of this certification requirement in all subcontracts and lease agreements for

Department of Defense freight transportation. Covered carriers shall maintain records of certifications for not less than 5 years.

''(d) PENALTIES.—Any covered carrier that knowingly provides a false certification under this section shall be subject to suspension or debarment from Department of Defense contracting and civil penalties under section 1001 of title 18.

''(e) IMPLEMENTATION.—The Secretary of Defense shall prescribe regulations to implement this section not later than 180 days after the date of the enactment of this section, including integration into existing carrier approval processes of the Military Surface Deployment and Distribution Command.

''(f) DEFINITIONS.—In this section:

''(1) COVERED CARRIER.—The term 'covered carrier' means any motor carrier, subcontractor, or owner-operator providing surface transportation services.

''(2) SIGNIFICANT BUSINESS RELATIONSHIPS.—The term 'significant business relationships' shall have the meaning given by the Secretary of Defense in regulations.''.

SEC. 354. ESTABLISHMENT OF NATIONAL SECURITY REGISTRY FOR MOTOR CARRIERS HANDLING DEPARTMENT OF DEFENSE FREIGHT.

(a) IN GENERAL.—Subtitle IV of title 49, United States Code, is amended by inserting after chapter 139 the following:

"CHAPTER 140—SECURE DEFENSE FREIGHT CARRIER REGISTRY

"14001. Definition of registry.
"14002. Establishment of registry.
"14003. Eligibility and approval.
"14004. Use of registry.

"§ 14001. Definition of registry

"In this chapter, the term 'registry' means the Secure Defense Freight Carrier Registry established under section 14002.

"§ 14002. Establishment of registry

"Not later than 1 year after the date of the enactment of this chapter, the Secretary, acting through the Administrator of the Federal Motor Carrier Safety Administration and in coordination with the Secretary of Defense, shall establish and maintain a registry, to be known as the 'Secure Defense Freight Carrier Registry', of motor carriers approved to transport freight for the Department of Defense.

"§ 14003. Eligibility and approval

''(a) ELIGIBILITY REQUIREMENTS.—To be included in the registry, a motor carrier shall—

''(1) hold valid operating authority from the Federal Motor Carrier Safety Administration;

''(2) meet all applicable Department of Defense carrier qualification standards;

''(3) undergo enhanced national security vetting, including—

''(A) screening for ownership, control, or significant business relationships with—

''(i) an entity identified on the list maintained by the Department of Defense under section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 113 note; Public Law 116–283); or

''(ii) any other foreign adversary entity designated by the Secretary of Defense; and

''(B) verification that drivers and personnel with access to Department of Defense freight meet security standards comparable to those required under Transportation Worker Identification Credential programs or other relevant Federal security programs; and

''(4) submit to periodic revetting not less frequently than once every 2 years.

''(b) APPLICATION AND APPROVAL PROCESS.—

''(1) IN GENERAL.—The Secretary shall establish a streamlined application process for inclusion on the registry.

''(2) REQUIREMENT.—The process established under paragraph (1) shall include coordination with existing Department of Defense carrier approval systems.

''§ 14004. Use of registry

''(a) PROHIBITION.—Subject to subsection (b), beginning 1 year after the date of the enactment of this chapter, a motor carrier may not bid on or perform a Department of Defense freight transportation contract unless the motor carrier is included in the registry.

''(b) WAIVERS.—The Secretary of Defense may grant waivers from the prohibition under subsection (a) for exigent circumstances.''.

(b) CLERICAL AMENDMENT.—The analysis for subtitle IV of title 49, United States Code, is amended by inserting after the item relating to chapter 139 the following:

''140. SECURE DEFENSE FREIGHT CARRIER REGISTRY ..... 14001''.

SEC. 355. PROTECTION OF PROPERTY OWNED, POSSESSED, OR SHIPPED BY THE DEPARTMENT OF DEFENSE FROM LIEN, ARREST, OR SEIZURE DURING SHIPMENT.

(a) IN GENERAL.—Chapter 157 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 2655. Property owned, possessed, or shipped by the Department of Defense: protection from lien, arrest, or seizure during shipment

''(a) PROHIBITION.—No carrier, port agent, warehouseman, freight forwarder, broker, or other person involved in the transportation of cargo owned, possessed, or shipped by the Department of Defense may have any lien on, or hold, impound, or otherwise interfere with the transportation of, such cargo.

''(b) EXEMPTION FROM ARREST OR SEIZURE.—The following are not subject to lien, arrest, or seizure by judicial process in the United States:

''(1) A vessel, aircraft, motor vehicle, rail car, or other conveyance owned by, possessed by, or operated by or for the Department of Defense.

''(2) Cargo owned, possessed, or shipped by the Department of Defense.

''(c) AUTHORITY TO ACCOMPLISH DELIVERY.—The Secretary of Defense may take such actions as may be

necessary to recoup, recover, arrange for, or accomplish transportation and delivery of cargo owned, possessed, or shipped by the Department of Defense.

''(d) DELAY OF SHIPMENT FOR UNDECLARED, MISPACKAGED, OR MISLABELED HAZARDOUS MATERIAL.—Nothing in this section shall preclude a carrier from stopping the movement of undeclared, mispackaged, mislabeled, or otherwise noncompliant hazardous material shipments until the hazardous material is properly offered for transportation in accordance with section 5103 of title 49 and regulations prescribed under that section.

''(e) ARREST OR SEIZURE OF PROPERTY PURSUANT TO FEDERAL CRIMINAL OR FORFEITURE LAW.—Nothing in this section shall preclude the United States from arresting or seizing personal property of a member of the armed forces or employee of the Department of Defense pursuant to Federal criminal or forfeiture law.

''(f) DEFINITIONS.—In this section:

''(1) The term 'broker' means a person, other than a carrier or an employee or agent of a carrier, that as a principal or agent sells, offers for sale, negotiates for, or holds itself out by solicitation, advertisement, or otherwise as selling, providing, or arranging for, transportation by carrier for compensation.

''(2) The term 'carrier' means a person, including a freight forwarder, that transports passengers or property in commerce by pipeline, rail, motor, air, or water.

''(3) The term 'freight forwarder' means a person holding such person out to the general public (other than as a pipeline, rail, motor, air, or water carrier) to provide transportation of property for compensation and in the ordinary course of the business of such person—

''(A) assembles and consolidates, or provides for assembling and consolidating, shipments and performs or provides for break-bulk and distribution operations of the shipments; and

''(B) assumes responsibility for the transportation from the place of receipt to the place of destination.''.

(b) EXPANSION OF COVERAGE.—Section 453(c)(5) of title 37, United States Code, is amended by striking ''baggage and household goods'' and inserting ''personal property''.

SEC. 356. ESTABLISHMENT OF UNITED STATES MARINE CORPS MUSEUM SYSTEM.

Chapter 861 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 8617B. United States Marine Corps Museum System

''(a) IN GENERAL.—The Secretary of the Navy shall support a system of official Marine Corps museums within the Department of the Navy. Such system shall include the National Museum of the United States Marine Corps and may contain other museums honoring individual installations, units, and branches, as designated by the Secretary of the Navy, that meet criteria established under subsection (b).

''(b) CRITERIA FOR DESIGNATION.—The Secretary of the Navy shall establish criteria for designating museums of subsection (a) for inclusion in the Marine Corps museum system. Such criteria shall include—

''(1) historical significance to Marine Corps operations, technology, or personnel;

''(2) public accessibility and educational outreach programs; and

''(3) alignment with the mission of the Marine Corps to preserve the heritage of the Marine Corps.

''(c) CRITERIA FOR CLOSURE.—The Secretary of the Navy shall establish criteria for the closure of museums

within the Marine Corps museum system. No museum within such system may be closed until—

''(1) the Secretary of the Navy submits to the Committees on Armed Services of the House of Representatives and the Senate notice that includes—

''(A) a plan for the preservation, storage, or alternate display of historical collections contained in the museum;

''(B) how any issues relating to museum personnel will be resolved;

''(C) an identification of any efforts to maintain museum operations through public-private partnerships; and

''(D) an analysis of the cost to transport, consolidate, and preserve the historical collections contained in the museum; and

''(2) period of 90 days has elapsed after the date on which such notice is received by such committees.

''(d) FUNDING AND SUPPORT.—Consistent with applicable law, the Secretary may enter into partnerships, including with nonprofit organizations, to enhance the financial sustainability and public engagement of the museums in the Marine Corps museum system.''.

SEC. 357. REQUIREMENT FOR FIREGUARD PROGRAM.

Section 510(a) of title 32, United States Code, is amended by striking ''may'' and inserting ''shall''.

SEC. 358. PILOT PROGRAM FOR TESTING AND EVALUATION OF COUNTER-FIRE UNMANNED FIRE SUPPRESSION AIRCRAFT SYSTEMS ON MILITARY INSTALLATIONS.

(a) ESTABLISHMENT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall commence a three-year pilot program under which the Secretary shall conduct testing and evaluation of counter-fire unmanned fire suppression and remote sensing aircraft systems at military installations selected for participation in the program. In carrying out the pilot program, the Secretary shall—

(1) evaluate the effectiveness of counter-fire unmanned aircraft systems with respect to suppressing wildfire, improving the safety of prescribed burns, monitoring wildfire, and responding to other fire emergencies on military installations;

(2) assess the integration of fire suppression drone capabilities with existing fire protection and emergency response systems on military installations;

(3) determine operational parameters, safety protocols, and certification requirements for counter-fire unmanned aircraft systems;

(4) for each counter-fire unmanned aircraft system, evaluate—

(A) suppression payload delivery accuracy;

(B) refill and turnaround time;

(C) night operations capabilities;

(D) beyond visual line-of-sight flight operations;

(E) swarm capabilities; and

(F) sustained sortie rates;

(5) analyze the cost-effectiveness and scalability of counter-fire drone capabilities; and

(6) develop training curricula and operational procedures for personnel operating counter-fire unmanned aircraft systems.

(b) SELECTION OF INSTALLATIONS.—The Secretary shall select at least one military installation to participate in the pilot program. In making such a selection, the Secretary shall consider—

(1) geographic diversity, including climate zones and fire risk profiles;

(2) existing fire suppression infrastructure and capabilities;

(3) airspace availability and compatibility with unmanned aircraft operations;

(4) proximity to civilian communities that could benefit from enhanced fire response capabilities; and

(5) availability of qualified personnel and training facilities.

(c) REPORTING REQUIREMENTS.—

(1) INTERIM REPORT.—Not later than 18 months after the date of the commencement of the pilot program, the Secretary shall submit to the congressional defense committees an interim report on the pilot program.

(2) FINAL REPORT.—Not later than six months after the date of the completion of the pilot program, the Secretary shall submit to the congressional defense committees a final report on the pilot program.

(3) ELEMENTS OF REPORTS.—Each report required under this subsection shall include, for the period covered by the report—

(A) a description of each counter-fire unmanned aircraft system tested and the performance metrics for each such system;

(B) an assessment of operational effectiveness of each such system in fire detection and suppression scenarios;

(C) an analysis of the integration of each such system with existing fire protection systems;

(D) an identification of any supplementary mission critical use cases for each such system at military installations;

(E) a description of any safety incidents and lessons learned for each such system;

(F) a cost analysis and projection of return on investment for each such system;

(G) any recommendations for the potential broader implementation of each such system across the Department of Defense; and

(H) any recommendations for potential dual-use applications of each such system in support of civilian fire authorities.

SEC. 359. PILOT PROGRAM ON DATA COLLECTION AND ANALYSIS IN CONNECTION WITH ARMY COMBAT TRAINING CENTER ROTATIONS.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall establish a pilot program to collect, store,

and analyze covered data generated during rotations of members of the Armed Forces at combat training centers.

(b) PURPOSES.—The purposes of the pilot program under subsection (a) shall be to improve the realism of training for members of the Armed Forces, enhance unit readiness, collect observational data for application to efforts of the Department relating to agentic artificial intelligence, and support the development of secure systems and analytic tools that enable the responsible deployment and interoperability of the sensors specified in subsection (c)(2)(A).

(c) ACTIVITIES.—In carrying out the pilot program under subsection (a), the Secretary of the Army shall—

(1) designate not fewer than one rotation at a combat training center for the conduct of the pilot program;

(2) identify and evaluate technologies and processes for the collection, storage, and analysis of covered data from multiple sources during such rotation, including—

(A) soldier-borne artificial intelligence small arms weapon sensors and related networked systems; and

(B) unmanned systems;

(3) collect, store, and analyze covered data during such rotation using such technologies and processes;

(4) analyze how data generated by the sensors specified in paragraph (2)(A) may contribute to improved lethality, survivability, and situational awareness in multi-domain operations; and

(5) evaluate the cost, feasibility, and operational benefits of permanently establishing a program for the collection, storage, and analysis of covered data generated during rotations of members of the Armed Forces across combat training centers.

(d) BRIEFING.—Not later than 180 days after the completion of the pilot program under subsection (a), the Secretary of the Army shall provide to the Committees on Armed Services of the Senate and the House of Representatives a briefing on the activities, findings, and recommendations resulting from such pilot program, including the following:

(1) An assessment of the effectiveness and security of incorporating data derived from sensors specified in subsection (c)(2)(A) into training and readiness analyses.

(2) Recommendations regarding the potential expansion or permanent establishment of a program

for the collection, storage, and analysis of covered data generated during rotations of members of the Armed Forces across combat training centers and across the Armed Forces.

(e) TERMINATION.—Not later than three years after the date of enactment of this Act, the pilot program under subsection (a) shall terminate.

(f) COVERED DATA DEFINED.—In this section, the term ''covered data'' means data relating to the tactical performance and decision-making of, and training effectiveness for, members of the Armed Forces (at the individual, team, and unit levels).

SEC. 360. MINIMUM MARITIME FIREFIGHTING CAPABILITY STANDARDS FOR NAVAL INSTALLATIONS THAT BERTH LARGE NAVAL VESSELS.

(a) IN GENERAL.—The Secretary of the Navy shall establish minimum maritime firefighting capability standards for naval installations that berth large naval vessels. Such standards shall include each of the following:

(1) The minimum pumping capacity required to support firefighting operations aboard naval vessels moored at piers or within harbor areas.

(2) Required response times for waterside firefighting assets.

(3) The availability of firefighting foam systems and hazardous material response capability suitable for aviation fuel and shipboard fires.

(4) The integration of waterside firefighting assets with shipboard damage control systems.

(5) The availability of redundant maritime firefighting capability in the event of simultaneous emergencies.

(b) IMPLEMENTATION PLAN.—Not later than one year after the date of the enactment of this Act, the Secretary of the Navy shall submit to the congressional defense committees a plan to implement the standards established under subsection (a) and to improve fire prevention at private sector repair yards. Such plan shall include each of the following:

(1) An identification of installations that do not meet the standards, as of the date of the submission of the plan.

(2) Options for addressing capability gaps, including procurement of fireboats, modernization of existing vessels, or agreements with municipal or port authority fire departments.

(3) Estimated costs associated with implementing the plan.

(4) Mechanisms to maximize available resources across organizations responsible for fire safety oversight to better ensure contractor fire safety oversight and alleviate the burden on members of the Navy.

(5) Options to reassess progress payment retention rate for surface ship maintenance contracts based on an assessment of the risk to the Government.

(6) Options to reassess the ship repair limitation of liability clause.

(7) The incorporation of safety performance standards into the Quality Assurance Surveillance Plan of the Secretary.

SEC. 361. MINIMUM STAFFING REQUIREMENTS FOR FIRE APPARATUS AT CERTAIN SPACE FORCE INSTALLATIONS.

The Secretary of Defense shall ensure that at any Space Force installation with launch and landing facilities—

(1) the minimum staffing requirements for firefighters and the requirements relating to structural and aircraft, rescue, and firefighting apparatus pursuant to section 388 of the National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 10 U.S.C. 2661 note) and section 1110 of

the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. note prec. 9771) apply on a permanent basis;

(2) all firefighting structural and aircraft, rescue, and firefighting apparatus are maintained at optimum staffing levels and optimum levels of service at all times; and

(3) the cross-manning of firefighter personnel is not permitted between a first due structural fire engine response apparatus and an aircraft, rescue, and firefighting apparatus.

SEC. 362. ACTIVITIES FOR EVALUATING INTEGRATION AND INTEROPERABILITY OF TECHNOLOGIES FOR SUBTERRANEAN OPERATIONS.

(a) REQUIREMENT.—The Secretary of Defense, in coordination with the Secretary of the Army and the Commander of the United States Special Operations Command, shall conduct recurring evaluation activities in subterranean environments for the purpose of assessing the integration and interoperability of technologies supporting operations in such environments, including in conditions involving the denial or degradation of the Global Positioning System (GPS) or other contested communications conditions.

(b) ACTIVITIES.—Activities conducted pursuant to subsection (a) shall include the evaluation of technologies supporting sensing, mapping, navigation, communications, command and control, and situational awareness across multiple operational systems and platforms in the denied, degraded, and contested conditions described in subsection (a).

(c) USE OF EXISTING RESOURCES.—In carrying out this section, the Secretary of Defense shall use existing facilities, authorities, training activities, and amounts appropriated or otherwise available for the Department of Defense for such purpose. Nothing in this section shall be construed to require the construction of a new facility or the establishment of a new program office or standalone training activity.

(d) BRIEFING.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall provide to the congressional defense committees a briefing describing—

(1) the activities conducted pursuant to subsection (a);

(2) any operational integration or interoperability challenge identified in the course of conducting such activities; and

(3) recommendations for improving the integration and interoperability of technologies supporting subterranean operations in denied, degraded, and contested communications environments, including with respect to potential transition pathways for such technologies.

SEC. 363. IMPROVEMENTS TO OSPREY AIRCRAFT SAFETY EFFORTS.

(a) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall ensure that the Secretary of the Navy and the Secretary of the Air Force, in coordination with the Chief of Naval Operations, the Chief of Staff of the Air Force, and the Commandant of the Marine Corps—

(1) refine the joint program's process for identifying, analyzing, and responding to all Osprey aircraft safety risks, including incorporating and prioritizing systems and nonsystem safety risks;

(2) refine existing oversight structures with clearly defined roles and responsibilities for resolving known system and nonsystem safety risks in a timely manner and conduct periodic reviews of efforts to resolve those risks;

(3) assess safety-related information sharing agreements and update the agreements as needed to

ensure that a process exists to proactively share relevant safety information from hazard and accident reporting with Osprey units and unit safety personnel across the Armed Forces and ensure timely receipt of such information;

(4) establish a routine method, such as a recurring multiservice conference, to share information on Osprey aircraft knowledge and emergency procedures across the joint force; and

(5) maintain a method to share information, immediately or near-immediately, on essential Osprey aircraft safety of flight information and changes to safety processes across the joint force.

(b) CERTIFICATION TO CONGRESS.—Not later than 60 days after the requirements under subsection (a) have been implemented, the Secretary of the Navy and the Secretary of the Air Force shall each provide to the Committees on Armed Services of the Senate and the House of representatives a certification—

(1) verifying that the requirements have been implemented; and

(2) identifying any changes made to comply with such requirements by the Armed Forces under the jurisdiction of the certifying Secretary.

SEC. 364. ARMY PILOT PROGRAM ON ELECTRONIC AMMUNITION SIMULATION FOR SMALL ARMS TRAINING.

(a) ESTABLISHMENT.—The Secretary of the Army shall carry out a pilot program to evaluate the integration of electronic ammunition simulation systems into small arms training across the Army.

(b) PURPOSES.—The purposes of the pilot program are to—

(1) improve individual and collective small arms proficiency through increased training repetitions and enhanced training realism;

(2) enable safe training with assigned weapon systems in a broad range of environments, including non-range locations, as determined appropriate by the Secretary;

(3) reduce costs and logistics burdens associated with the procurement, storage, distribution, and disposal of blank ammunition;

(4) reduce safety risks associated with blank ammunition, including negligent discharges and live-blank ammunition mixing incidents; and

(5) assess the feasibility and scalability of integrating electronic ammunition simulation systems with training environments of the Armed Forces.

(c) ADMINISTRATION.—

(1) IN GENERAL.—The Secretary of the Army shall designate the Capability Program Executive for Simulation, Training, Test, and Threat as the lead actor responsible for carrying out the pilot program.

(2) OVERSIGHT.—The Secretary of the Army shall designate a senior official within the Office of the Assistant Secretary of the Army for Acquisition, Logistics, and Technology as the lead actor responsible for providing oversight of the pilot program.

(d) SELECTION OF TRAINING ENVIRONMENTS.—The Secretary of the Army shall select not fewer than four training environments with respect to which the Secretary shall carry out the pilot program under subsection (a), which shall include, at a minimum—

(1) one Advanced Camp training event, regional training event, or other training event carried out at a Reserve Officers' Training Corps training site;

(2) one rotation at a combat training center;

(3) one basic combat training activity; and

(4) one brigade-level or battalion-level collective training event carried out at an operational military installation.

(e) ACTIVITIES.—In carrying out the pilot program, the Secretary of the Army shall—

(1) integrate electronic ammunition simulation systems into training for legacy and next-generation small arms provided through the training environments selected under subsection (d), including in connection with qualification ranges and force-on-force exercises;

(2) evaluate the interoperability of electronic ammunition simulation systems with legacy and successor systems for simulated engagement, including the Multiple Integrated Laser Engagement System and synthetic training environments;

(3) assess the integrated training carried out pursuant to paragraph (1) with respect to effectiveness, cost savings, safety improvements, and scalability across training environments of the Armed Forces, including the Reserve Officers' Training Corps of the Armed Forces; and

(4) develop and validate associated training tactics, procedures, and sustainment requirements for potential expansion of such integrated training.

(f) COORDINATION OF EFFORTS.—The pilot program under subsection (a) shall supplement, and neither supplant nor duplicate, modernization efforts relating to synthetic training environments and other activities for the modernization of force-on-force training.

(g) BRIEFINGS.—

(1) INTERIM BRIEFING.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall provide to the congressional defense committees an interim briefing on the pilot program under subsection (a) that includes—

(A) evaluation metrics for the pilot program;

(B) an identification of the training environments selected under subsection (d); and

(C) the plan of the Secretary for the integration of activities under the pilot program with respect to such selected training environments.

(2) FINAL BRIEFING.—Not later than March 1, 2028, the Secretary of the Army shall provide to the congressional defense committees a final briefing on the pilot program under subsection (a) that includes—

(A) the results of the assessment required under subsection (e)(3), including, with respect to cost savings, a comparison between the cost of the integrated training provided pursuant to the pilot program with the cost of training using blank ammunition; and

(B) recommendations regarding—

(i) the continuation, expansion, or termination of the pilot program; and

(ii) with respect to such potential continuation or expansion, recommendations for the transition to acquisition of electronic ammunition simulation systems.

(h) TERMINATION.—The authority to carry out the pilot program under subsection (a) shall terminate on September 30, 2031.

SEC. 365. PILOT PROGRAM ON HYDROPHOBIN-BASED BIOMANUFACTURED TREATMENT AS FLAME-RESISTANT AND WATER-REPELLENT TREATMENTS FOR MILITARY UNIFORMS.

(a) ESTABLISHMENT.—The Secretary of the Army shall establish a pilot program, to be carried out through the United States Army Combat Capabilities Development Command Soldier Center, to evaluate the feasibility, performance, and scalability of hydrophobin-based biomanufactured treatments as flame-resistant and water-repellent treatments for military textile systems, including as potential alternatives to conventional chemical treatments currently used in Department of Defense uniforms.

(b) SELECTION OF CONTRACTORS.—In carrying out the pilot program, the Secretary shall prioritize partnerships with entities that—

(1) demonstrate domestic biomanufacturing capability within the United States;

(2) use advanced biotechnology to produce hydrophobin proteins or related bioderived compounds suitable for textile performance applications; and

(3) possess the capability to transition successful pilot outcomes into large-scale textile finishing or coating processes supporting Department of Defense procurement.

(c) REPORT TO CONGRESS.—Not later than three years after the date of the enactment of this Act, the Secretary of the Army shall submit to the congressional defense committees a report on the results of the pilot program, including recommendations regarding potential integration of hydrophobin-based biomanufactured treatments into Department of Defense military textile systems.

(d) DURATION.—The authority to carry out a pilot program under this section shall terminate four years after the date of the enactment of this Act.

SEC. 366. FEDERAL FINANCIAL ASSISTANCE FOR OPERATION AND MAINTENANCE OF NATIONAL GUARD FACILITIES.

Chapter 1 of title 32, United States Code, is amended by adding at the end the following new section:

"§ 116. Federal financial assistance for operation and maintenance of National Guard facilities

''The Secretary of Defense may provide assistance, through a grant or cooperative agreement entered into with the Governor of a State (or, in the case of the District of Columbia, with the commanding general of the District of Columbia National Guard), a local government, or other recipient for the purpose of operating or maintaining National Guard facilities required to organize, train, and equip the National Guard to perform State and Federal operations and missions.''.

TITLE IV—MILITARY PERSONNEL AUTHORIZATIONS

Subtitle A—Active Forces

SEC. 401. END STRENGTHS FOR ACTIVE FORCES.

The Armed Forces are authorized strengths for active duty personnel as of September 30, 2027, as follows:

(1) The Army, 469,000.

(2) The Navy, 356,600.

(3) The Marine Corps, 173,700.

(4) The Air Force, 330,400.

(5) The Space Force, 13,200.

Subtitle B—Reserve Forces

SEC. 411. END STRENGTHS FOR SELECTED RESERVE.

(a) IN GENERAL.—The Armed Forces are authorized strengths for Selected Reserve personnel of the reserve components as of September 30, 2027, as follows:

(1) The Army National Guard of the United States, 331,300.

(2) The Army Reserve, 172,000.

(3) The Navy Reserve, 56,500.

(4) The Marine Corps Reserve, 34,700.

(5) The Air National Guard of the United States, 107,400.

(6) The Air Force Reserve, 67,400.

(7) The Coast Guard Reserve, 8,500.

(b) END STRENGTH REDUCTIONS.—The end strengths prescribed by subsection (a) for the Selected Reserve of any reserve component shall be proportionately reduced by—

(1) the total authorized strength of units organized to serve as units of the Selected Reserve of such component which are on active duty (other than for training) at the end of the fiscal year; and

(2) the total number of individual members not in units organized to serve as units of the Selected

Reserve of such component who are on active duty (other than for training or for unsatisfactory participation in training) without their consent at the end of the fiscal year.

(c) END STRENGTH INCREASES.—Whenever units or individual members of the Selected Reserve of any reserve component are released from active duty during any fiscal year, the end strength prescribed for such fiscal year for the Selected Reserve of such reserve component shall be increased proportionately by the total authorized strengths of such units and by the total number of such individual members.

SEC. 412. END STRENGTHS FOR RESERVES ON ACTIVE DUTY IN SUPPORT OF THE RESERVES.

Within the end strengths prescribed in section 411(a), the reserve components of the Armed Forces are authorized, as of September 30, 2027, the following number of Reserves to be serving on full-time active duty or full-time duty, in the case of members of the National Guard, for the purpose of organizing, administering, recruiting, instructing, or training the reserve components:

(1) The Army National Guard of the United States, 31,154.

(2) The Army Reserve, 16,511.

(3) The Navy Reserve, 10,409.

(4) The Marine Corps Reserve, 2,400.

(5) The Air National Guard of the United States, 25,533.

(6) The Air Force Reserve, 6,278.

SEC. 413. END STRENGTHS FOR MILITARY TECHNICIANS (DUAL STATUS).

The minimum number of military technicians (dual status) as of the last day of fiscal year 2027 for the reserve components of the Army and the Air Force (notwithstanding section 129 of title 10, United States Code) shall be the following:

(1) For the Army National Guard of the United States, 21,294.

(2) For the Army Reserve, 6,258.

(3) For the Air National Guard of the United States, 10,405.

(4) For the Air Force Reserve, 6,455.

SEC. 414. MAXIMUM NUMBER OF RESERVE PERSONNEL AUTHORIZED TO BE ON ACTIVE DUTY FOR OPERATIONAL SUPPORT.

During fiscal year 2027, the maximum number of members of the reserve components of the Armed Forces who may be serving at any time on full-time operational support duty under section 115(b) of title 10, United States Code, is the following:

(1) The Army National Guard of the United States, 17,000.

(2) The Army Reserve, 13,000.

(3) The Navy Reserve, 6,200.

(4) The Marine Corps Reserve, 3,000.

(5) The Air National Guard of the United States, 16,000.

(6) The Air Force Reserve, 14,000.

SEC. 415. AUTHORIZED STRENGTHS: SENIOR ENLISTED MEMBERS ON ACTIVE DUTY OR ON FULL-TIME NATIONAL GUARD DUTY FOR ADMINISTRATION OF THE MARINE CORPS RESERVE.

Section 12012(a) of title 10, United States Code, is amended by striking that part of the table pertaining to the Marine Corps Reserve and inserting the following:

''Marine Corps Reserve:

1,100	68	18
1,200	75	20
1,300	81	21
1,400	87	23
1,500	93	24
1,600	99	26
1,700	106	28
1,800	112	29
1,900	118	31
2,000	124	33
2,100	130	34
2,200	137	36
2,300	143	37
2,400	149	39
2,500	155	41
2,600	161	42
2,700	168	44
2,800	174	46
2,900	180	47
3,000	186	49''.

SEC. 416. REMOVAL OF END STRENGTH LIMITATION FOR NATIONAL GUARD SUPPORT FOR COUNTERDRUG ACTIVITIES.

Section 112 of title 32, United States Code, is amended—

(1) by striking subsection (e); and

(2) by redesignating subsections (f) and (g) as subsections (g) and (h), respectively.

Subtitle C—Authorization of Appropriations

SEC. 421. MILITARY PERSONNEL.

(a) AUTHORIZATION OF APPROPRIATIONS.—Funds are hereby authorized to be appropriated for fiscal year 2027 for the use of the Armed Forces and other activities and agencies of the Department of Defense for expenses, not otherwise provided for, for military personnel, as specified in the funding table in section 4401.

(b) CONSTRUCTION OF AUTHORIZATION.—The authorization of appropriations in the subsection (a) supersedes any other authorization of appropriations (definite or indefinite) for such purpose for fiscal year 2027.

TITLE V—MILITARY PERSONNEL POLICY

Subtitle A—Officer Policy and Reserve Component Management

SEC. 501. FLEXIBILITY IN REQUIREMENTS OF SELECTION BOARDS: COMPOSITION; CONVENING.

(a) CONSIDERATION OF TEMPORARY APPOINTMENTS OF OFFICERS OF THE DEPARTMENT OF THE NAVY DESIGNATED FOR LIMITED DUTY.—Section 612(a)(2) of title 10, United States Code, is amended—

(1) in subparagraph (A), by inserting ''and (C)'' after ''subparagraph (B)''; and

(2) by inserting a new subparagraph (C):

''(C) A selection board need not include an officer from a competitive category to be considered by the board when considering officers designated for limited duty under section 8146 of this title.''.

(b) SELECTION OF OFFICERS FOR CONTINUATION ON ACTIVE DUTY.—

(1) OFFICERS IN THE GRADE OF O-3 OR O-4.—Section 637 of title 10, United States Code, is amended, in subsection (a)(1)—

(A) by striking ''he is selected for continuation on active duty by a selection board con-

vened under section 611(b) of this title.'' and inserting an em dash; and

(B) by adding at the end the following new subparagraphs:

''(A) the officer is selected for continuation on active duty by a selection board convened under section 611(b) of this title; or

''(B) the Secretary concerned recommends all officers, whom the Secretary finds to be fully qualified, for continuation on active duty.''

(2) REGULAR OFFICERS IN THE GRADE OF O-5 OR O-6.—Such section is further amended, in subsection (b)(1)—

(A) by striking ''he is selected for continuation on active duty by a selection board convened under section 611(b) of this title.'' and inserting an em dash; and

(B) by adding at the end the following new subparagraphs:

''(A) the officer is selected for continuation on active duty by a selection board convened under section 611(b) of this title; or

''(B) the Secretary concerned recommends all officers, whom the Secretary finds to be fully qualified, for continuation on active duty.''.

SEC. 502. REQUIREMENTS FOR REMOVAL OF CERTAIN GENERAL AND FLAG OFFICERS.

Chapter 49 of title 10, United States Code, is amended by inserting after section 974 the following new section:

''§ 975. Notice of removal of certain general and flag officers

''Not later than five days after the date on which an officer in a grade above O-8 is removed from, transferred from, or relieved of duty in, a position designated under section 601(a) of this title or by law to carry such grade, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report in writing that describes the performance concerns, actions, or inactions of that officer that are cause for such removal, transfer, or relief of duty.''.

SEC. 503. LIMITED CONSIDERATION OF SATISFACTORY NON-REGULAR SERVICE TOWARDS SERVICE-IN-GRADE REQUIREMENT OF A RESERVE OFFICER WHO RETIRES VOLUNTARILY.

Section 1370(b)(1) of title 10, United States Code, is amended—

(1) in subparagraph (A), by striking ''; and'' and inserting a semicolon;

(2) in subparagraph (B), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following new subparagraph:

''(C) in the case of a reserve officer, such period may include satisfactory non-regular service, but not for purposes of calculating—

''(i) the retired pay or other benefits from the United States to which such reserve officer would have been entitled based upon military service; or

''(ii) any benefit to which any other person may become entitled based on such military service.''.

SEC. 504. RANKS OF JUDGE ADVOCATES GENERAL.

(a) ARMY.—Section 7037(a) of title 10, United States Code, is amended by adding at the end the following: ''The Judge Advocate General, while so serving, has the grade of lieutenant general. An officer appointed as Deputy Judge Advocate General who holds a lower regular grade shall be appointed in the regular grade of major general.''.

(b) MARINE CORPS.—Section 8046(a) of title 10, United States Code, is amended by adding at the end the following: ''If the officer to be appointed as the Staff Judge Advocate to the Commandant of the Marine Corps holds a grade lower than the grade of lieutenant general

immediately before the appointment, the officer shall be appointed in the grade of lieutenant general.''.

(d) NAVY.—

(1) THE JUDGE ADVOCATE GENERAL.—Section 8088(b) of title 10, United States Code, is amended by adding at the end the following: ''The Judge Advocate General, while so serving, has the grade of vice admiral or lieutenant general, as appropriate.''.

(2) THE DEPUTY JUDGE ADVOCATE GENERAL.—Section 8089(a)(1) of title 10, United States Code, is amended by adding at the end the following: ''If an officer appointed as the Deputy Judge Advocate General holds a lower regular grade, the officer shall be appointed in the regular grade of rear admiral or major general, as appropriate.''.

(f) AIR FORCE.—

(1) THE JUDGE ADVOCATE GENERAL.—Section 9037(a) of title 10, United States Code, is amended by adding at the end the following: ''The Judge Advocate General, while so serving, has the grade of lieutenant general.''.

(2) THE DEPUTY JUDGE ADVOCATE GENERAL.—Section 9037(d)(1) of title 10, United States Code, is amended by adding at the end the following: ''An officer appointed as Deputy Judge

Advocate General who holds a lower regular grade shall be appointed in the regular grade of major general.''.

SEC. 505. GRADES OF CERTAIN CHIEFS OF RESERVE COMPONENTS.

(a) IN GENERAL.—

(1) CHIEF OF ARMY RESERVE.—Section 7038(b) of title 10, United States Code, is amended by striking paragraph (4) and inserting the following new paragraph:

''(4) The Chief of Army Reserve, while so serving, holds the grade of lieutenant general.''.

(2) CHIEF OF NAVY RESERVE.—Section 8083(b) of such title is amended by striking paragraph (4) and inserting the following new paragraph:

''(4) The Chief of Navy Reserve, while so serving, holds the grade of vice admiral.''.

(3) COMMANDER, MARINE FORCES RESERVE.—Section 8084(b) of such title is amended by striking paragraph (4) and inserting the following new paragraph:

''(4) The Commander, Marine Forces Reserve, while so serving, holds the grade of lieutenant general.''.

(4) CHIEF OF AIR FORCE RESERVE.—Section 9038(b) of such title is amended by striking paragraph (4) and inserting the following new paragraph:

''(4) The Chief of Air Force Reserve, while so serving, holds the grade of lieutenant general.''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect on the day that is one year after the date of the enactment of this Act and shall apply to appointments made on or after such day.

SEC. 506. GRADE OF CHIEF OF THE VETERINARY CORPS OF THE ARMY.

Section 7084 of title 10, United States Code, is amended—

(1) by striking ''The Chief'' and inserting ''(a) APPOINTMENT.—The Chief''; and

(2) by adding at the end the following new subsection:

''(b) GRADE.—The Chief of the Veterinary Corps of the Army, while so serving, holds the grade of brigadier general.''.

SEC. 507. REPORT ON EFFECT OF EQUIPMENT SHORTFALLS ON NATIONAL GUARD ABILITY TO ASSIST IN DISASTER RESPONSE.

Chapter 9 of title 32, United States Code, is amended by adding at the end the following new section:

"§ 909. Report on effect of equipment availability to assist in disaster response

''Not later than March 31 of the next fiscal year, the Secretary of Defense, in consultation with the Administrator of the Federal Emergency Management Administration, shall submit to the Committee on Armed Services of the House of Representatives and the Committee on Armed Services of the Senate a report with respect to each fiscal year on—

''(1) equipment shortfalls in the National Guard of each State;

''(2) the effect of such shortfalls in the ability of the National Guard of a State to provide assistance or conduct operations related to disaster response, including with respect to hurricanes; and

''(3) recommendations for addressing the shortfalls, including through modernization and preposition of equipment in disaster-prone States.''.

SEC. 508. CONTINUATION IN OFFICE OF VICE CHIEF OF THE NATIONAL GUARD BUREAU WHEN NECESSARY TO ENSURE LEADERSHIP CONTINUITY.

(a) EXTENSION OF TERM WHEN POSITION OF CHIEF OF THE NATIONAL GUARD BUREAU IS VACANT.—Section 10505(a)(3) of title 10, United States Code, is amended—

(1) in subparagraph (A), by striking ''subparagraph (B)'' and inserting ''subparagraphs (B) and (C)''; and

(2) by adding at the end the following new subparagraph:

''(C) If upon the date on which the term of the Vice Chief of the National Guard Bureau would otherwise expire the position of Chief of the National Guard Bureau is vacant and a replacement for the position of Vice Chief of the National Guard Bureau has not been confirmed by the Senate, the term of the Vice Chief of the National Guard Bureau shall be extended until the date on which the Senate has confirmed a nominee for either position.''.

(b) INCLUSION AS A MEMBER OF THE JOINT REQUIREMENTS OVERSIGHT COUNCIL.—Section 181 of such title is amended—

(1) in subsection (c)(1), by adding at the end the following new subparagraph:

''(G) The Vice Chief of the National Guard Bureau.''; and

(2) in subsection (d), by striking paragraph (4).

SEC. 509. LIMITATION ON THE TRANSFER TO THE SPACE FORCE OF CERTAIN FUNCTIONS OF THE AIR NATIONAL GUARD.

Section 514 of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. 20001 note) is amended—

(1) by redesignating subsection (k) as subsection (l); and

(2) by inserting after subsection (j) the following new subsection (k):

''(k) RULES OF CONSTRUCTION.—Nothing in this section shall be construed to—

''(1) authorize the transfer of a member of the Air National Guard of the United States more than once under subsection (c); or

''(2) establish a waiver of the applicability of any provision of section 104 of title 32, United States Code, or of section 18238 of title 10, United States Code.''.

SEC. 509A. CHANGE IN EVALUATION CRITERIA FOR OFFICERS: NOTIFICATION; CONSULTATION.

(a) IN GENERAL.—Not less than 180 days before the Secretary of Defense changes any criterion used in the evaluation of an officer of a covered Armed Force, the Secretary shall—

(1) submit to the covered committees a written explanation of such proposed change; and

(2) consult, in conversation, with the covered committees regarding such proposed change.

(b) DEFINITIONS.—In this section:

(1) The term ''covered Armed Force'' means the Army, Navy, Marine Corps, Air Force, or Space Force.

(2) The term ''covered committees'' means the Committees on Armed Services of the Senate and House of Representatives.

SEC. 509B. INCLUSION OF JUDGE ADVOCATES IN GLOBAL FORCE MANAGEMENT PROCESSES.

Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall ensure that Global Force Management plans and processes—

(1) specifically address the assignment and allocation of active duty and reserve judge advocates; and

(2) convey information on the staffing availability of judge advocates in a manner that enables combatant commanders to readily determine the number of judge advocates who are available for permanent assignment to the combatant commands in the event of an armed conflict.

SEC. 509C. ROLE OF MILITARY CHAPLAINS.

(a) IN GENERAL.—The Secretary of Defense shall ensure—

(1) a covered military chaplain is able to provide pastoral counseling, including emotional, moral, or behavioral assistance counseling;

(2) a covered military chaplain is able to provide pastoral counseling with respect to matters not strictly related to spiritual counseling; and

(3) that privileged communications between covered military chaplains and members of the Army, Navy, Air Force, Marine Corps, or Space Force are protected.

(b) COVERED MILITARY CHAPLAIN DEFINED.—In this section, the term ''covered military chaplain'' means a chaplain in the Army, Navy, Air Force, Marine Corps, or Space Force.

Subtitle B—Recruitment, General Service Authorities and Prohibitions, and Military Records

SEC. 511. RECRUITMENT: IMPROVEMENTS RELATING TO SECONDARY SCHOOLS.

Section 503(c)(1)(A) of title 10, United States Code, is amended—

(1) in clause (ii), by striking ''; and'' and inserting a semicolon;

(2) in clause (iii)—

(A) by inserting ''academic grades, sexes,'' after ''student names,''; and

(B) by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following new clause:

''(iv) in addition to the requirement under clause (ii), shall, upon the request of a military recruiter for the purpose described in clause (i), provide at least four visits to each secondary school across each academic year, between classes, when students are physically present, and in a manner that does not interfere with class attendance and, after reasonable notice, in meeting spaces (including

auditoriums), at athletic functions, and at other group or social activities.''.

SEC. 512. PROHIBITION ON REDUCTION IN PERSONNEL ASSIGNED TO DUTY WITH A SERVICE REVIEW AGENCY; REPORT ON REVIEWS OF CERTAIN DISCHARGES RELATED TO PTSD.

(a) PROHIBITION ON REDUCTION IN PERSONNEL ASSIGNED TO DUTY WITH A SERVICE REVIEW AGENCY.—Section 1559(a) of title 10, United States Code, is amended by striking ''Before December 31, 2025'' and inserting ''During the period beginning on the date of the enactment of the National Defense Authorization Act for Fiscal Year 2027 and ending on December 31, 2030''.

(b) REPORT ON TIME REQUIRED FOR A BOARD TO CONSIDER A REVIEW OF A DISCHARGE OR DISMISSAL FROM THE ARMED FORCES BASED ON MATTERS RELATING TO POST-TRAUMATIC STRESS DISORDER OR TRAUMATIC BRAIN INJURY.—

(1) REPORT REQUIRED.—

(A) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, acting through the Under Secretary of Defense for Personnel and Readiness, in coordination with the Secretaries of the military departments, shall submit

to the Committees on Armed Services of the Senate and House of Representatives a report regarding the periods required for a board established under section 1552 or 1553 of title 10, United States Code, to make a determination in a case involving liberal consideration.

(B) ELEMENTS.—The report shall include the following:

(i) An analysis of the time such periods, disaggregated by military department.

(ii) An explanation of the differences between such periods, disaggregated by military department.

(iii) The number of personnel assigned to review, process, and consider such cases.

(iv) Recommendations of the Secretary of Defense to expedite the consideration of such cases.

(C) FORM.—The report shall be submitted in unclassified form.

(D) PUBLICATION.—The executive summary of the report shall be published on a publicly accessible website of the Department of Defense.

(2) BRIEFING.—Not later than 30 days after submitting the report, the Secretary of Defense shall provide to the Committees on Armed Services of the Senate and House of Representatives a briefing on the findings, conclusions, and recommendations of such report.

(3) LIBERAL CONSIDERATION DEFINED.—In this section, the term ''liberal consideration'' is used as such term is used in section 1552(h) and 1553(d) of title 10, United States Code.

SEC. 513. SELECTIVE SERVICE SYSTEM: OMISSION OF DECEASED PERSONS FROM REGISTRATION.

(a) IN GENERAL.—Section 3 of the Military Selective Service Act (50 U.S.C. 3802), as amended by section 535 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60), is further amended by adding at the end the following new subsection:

''(c) In carrying out subsection (a), the Director shall not register a person whose name appears in the Death Master File (as such term is defined in section 203 of the Bipartisan Budget Act of 2013 (Public Law 113–167; 42 U.S.C. 1306c)).''.

(b) EFFECTIVE DATE.—The amendment made by this section shall take effect as if included in the enact-

ment of the National Defense Authorization Act for Fiscal Year 2026.

SEC. 514. REQUIREMENT OF EQUAL OPPORTUNITY, RACIAL NEUTRALITY, AND EXCLUSIVE USE OF MERIT IN MILITARY PERSONNEL ACTIONS.

(a) MERIT REQUIREMENT.—Any Department of Defense military personnel action related to accessions, promotions, nominative assignments, command selection, and military and civil schooling selection and training shall be based exclusively on individual merit, fitness, capability, and performance.

(b) CONSIDERATION OF RACE PROHIBITED.—Consideration of an individual's race, ethnicity, or national origin in any military personnel action is prohibited throughout the Department of Defense.

(c) LIMITED EXCEPTION FOR TASKING OF SPECIFIC MISSIONS.—

(1) IN GENERAL.—This section shall not be construed to prohibit tasking for specific, unconventional missions in foreign countries, where the anticipated ground operating environment of indigenous populations may justify consideration of race, ethnicity, or national origin when tasking for the mission to optimize mission success.

(2) COMBATANT COMMANDER APPROVAL REQUIRED.—Any tasking pursuant to the exception described in paragraph (1) shall require the approval of the combatant commander concerned.

(3) REPORTING REQUIREMENT.—Not later than 60 days after a tasking pursuant to the exception described in paragraph (1), the Secretary of Defense shall report the tasking to the Committees on Armed Services of the Senate and the House of Representatives. The report shall describe—

(A) the mission, including location and duration;

(B) the staffing of the mission;

(C) the demographic factors warranting the tasking;

(D) the number of personnel involved, including their rank, position, and race, ethnicity, and national origin; and

(E) the rationale for the tasking.

SEC. 515. PROHIBITION OF HATE SYMBOLS: REGULATIONS; GUIDANCE; TRAINING.

(a) PROHIBITION.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall prescribe in regulations—

(1) a policy of the Department of Defense that prohibits the display, possession for display, or use of a hate symbol in the workplace or in connection with official duties, including on the body, uniform, civilian work attire, personal equipment, government property, or digital work platforms, including through a tattoo, brand, insignia, patch, apparel, or electronic imagery;

(2) standards for identifying and addressing prohibited hate symbols; and

(3) procedures to review a determination under such policy, order the removal of a symbol determined to be a hate symbol, or other remediation consistent with applicable law.

(b) EXCEPTION.—The policy under subsection (a) shall not prohibit the good-faith display or use of a symbol for a legitimate religious, educational, intelligence, law enforcement, or investigative purpose. To determine whether such display or use is subject to an exception under this subsection, the Secretary shall consider—

(1) the historical and cultural meaning of the symbol;

(2) the manner, context, and location in which the symbol is displayed;

(3) whether the symbol is associated with an extremist organization or ideology;

(4) whether the display would reasonably be interpreted as communicating support for hatred, discrimination, or violent extremism;

(5) applicable constitutional and statutory law; and

(6) religious accommodations.

(c) GUIDANCE.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall—

(1) issue guidance and reference materials, developed in consultation with subject matter experts, to assist commanding officers, supervisors, human resources personnel, and investigators, regarding the identification of hate symbols; and

(2) review, in consultation with civil rights experts and organizations with recognized expertise in hate and extremist symbols, and update such guidance not less than once every 36 months after such issuance.

(d) TRAINING.—The Secretary shall incorporate instruction on the policy and guidance under this section into existing training programs for members of the cov-

ered Armed Forces and civilian employees of the Department of Defense.

(e) CERTIFICATION.—Not later than 180 days after the Secretary prescribes regulations under subsection (a), the Secretary of a military department or head of a Defense agency shall certify to the Secretary of Defense whether their subordinate members of the covered Armed Forces or civilian employees subordinate have implemented the regulations. guidance, and training under this section.

(f) BRIEFING.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and House of Representatives a briefing detailing the implementation of this section.

(g) DEFINITIONS.—In this section:

(1) The term ''hate symbol'' means any symbol, image, insignia, emblem, tattoo, sign, coded designation, or other visual representation that, in context, would be reasonably understood to promote violence or unlawful discrimination against a person or group based on a protected identity characteristic.

(2) The term ''covered Armed Force'' means the Army, Navy, Marine Corps, Air Force, or Space Force.

SEC. 516. TIMELY RESOLUTION OF CAREER-IMPACTING ADMINISTRATIVE INVESTIGATIONS.

(a) POLICY REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall prescribe a policy applicable to covered administrative investigations. Such policy shall include—

(1) standard timelines for initiation, investigation, legal review, command action, and final disposition of covered administrative investigations;

(2) a requirement that an extension of a standard timeline described in paragraph (1) be approved by an appropriate official in writing that includes an explanation of the reasons for the extension, an identification of the investigative steps remaining, and an expected date of completion of those steps;

(3) a requirement that any covered administrative investigation of a member of the Armed Forces that includes the suspension of a favorable personnel action for such member during the period of investigation—

(A) that is open for 90 days or more may only continue if the investigation is approved by the first general officer, flag officer, or member of the Senior Executive Service in the chain of command of the member of the Armed Forces that is the subject of such investigation; and

(B) is reviewed not less than once every 30 days during the period of investigation to determine whether such suspension is necessary and narrowly tailored to address the particular concern being investigated;

(4) a requirement that prior to initiation of a covered administrative investigation, or continuation of a closed covered administrative investigation, based substantially on allegations occurring outside of an applicable reporting period, the investigating authority make a determination in writing as to—

(A) the reason for the delay in reporting such allegations;

(B) the availability and reliability of witnesses;

(C) the availability of documentary or electronic evidence;

(D) whether a complete and fair inquiry can be conducted; and

(E) whether an alternative to an investigation is more appropriate;

(5) a requirement that a member who is the subject of a covered administrative investigation be given reasonable opportunity to provide evidence and identify witnesses;

(6) a requirement that a member who is the subject of a covered administrative investigation be given written notice of proposed actions, findings, recommendations, and supporting evidence prior to a final adverse administrative action;

(7) a requirement that investigators assigned to a covered administrative investigation be screened for potential conflicts of interest prior to being so assigned;

(8) a requirement that a member who is the subject a covered administrative investigation be given an opportunity to request relief from a suspension of a favorable personnel action for purposes of a permanent change of station, reassignment, military schooling, retirement, or other personnel action when no derogatory finding has been made within the standard timelines required by paragraph (1); and

(9) a requirement that the Secretaries of the military departments regularly review policy and practices with respect to covered administrative investigations to ensure such investigations comply with the requirements of this section and other applicable laws and policies.

(b) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the implementation of the policy required by subsection (a), including—

(1) the number of covered administrative investigations initiated during the preceding fiscal year;

(2) the number of such investigations exceeding 30, 60, 90, and 180 days in length;

(3) the number of such investigations that included a suspension of favorable personnel action during the period of the investigation;

(4) the number of such investigations that resulted in a delay of a permanent change of station, reassignment, military schooling, retirement, or other personnel action;

(5) the number of such investigations resulting in substantiated, partially substantiated, unsubstantiated, or dismissed findings;

(6) the average and median duration of covered administrative investigations by military department;

(7) the number of such investigations based substantially on allegations reported outside an applicable regulatory reporting period;

(8) the number of covered administrative investigations reviewed for consistency with this section and other applicable laws and policies; and

(9) recommendations for legislative or administrative action.

(c) COVERED ADMINISTRATIVE INVESTIGATION DEFINED.—In this section, the term ''covered administrative investigation'' means any non-criminal inquiry or investigation that results in or is reasonably like to result in—

(1) suspension of a favorable personnel action during the period of investigation or as a result of the investigation;

(2) delay or denial of permanent change of station, reassignment, military schooling, retirement, or other personnel action;

(3) adverse administrative action;

(4) filing of adverse information in the personnel file of the member; or

(5) other material career impact, as determined by the Secretary concerned.

SEC. 517. PROHIBITION ON USE OF PREDICTION MARKETS BY PERSONNEL OF THE DEPARTMENT OF DEFENSE.

(a) REGULATIONS REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Sec-

retary of Defense, in consultation with the Secretaries of the military departments, shall issue regulations prohibiting members of the covered Armed Forces and civilian employees of the Department of Defense from entering into transactions on prediction markets in cases in which the member or employee—

(1) at the time of the transaction, possesses material nonpublic information relevant to such transaction; or

(2) may reasonably obtain such material nonpublic information in the course of performing official duties, including when such information would not otherwise be available to a member of the public exercising reasonable diligence.

(b) ENFORCEMENT.—The regulations under subsection (a) shall specify a range of punishments for the use of prediction markets in violation of the regulations.

(c) DEFINITIONS.—In this section:

(1) The term ''covered Armed Forces'' means the Army, Navy, Air Force, Marine Corps, and Space Force.

(2) Term ''material nonpublic information'' means information—

(A) that a reasonable investor would consider important in making an investment decision; and

(B) that is not publicly available.

SEC. 518. SOLDIER DIGITAL LIFECYCLE MODERNIZATION INITIATIVE.

(a) IN GENERAL.—The Secretary of the Army shall carry out a pilot program to design, develop, and implement an initiative to be known as the ''Soldier Digital Lifecycle Modernization Initiative'' to provide members of the Army, prospective recruits to the Army, and veterans of the Army with a secure, digital experience through the lifecycle of a member of the Army, including during recruitment and after separation.

(b) ELEMENTS.—The pilot program under subsection (a) shall—

(1) be carried out consistent with Executive Order 14338 (90 Fed. Reg. 163, relating to Improving Our Nation Through Better Design) and Office of Management and Budget Memorandum M-23-22 relating to Delivering a Digital-First Public Experience or any successor Executive order or Office of Management and Budget memorandum;

(2) make use of existing digital infrastructure and systems of the Army;

(3) include establishment a secure digital identity record enabling continuity of data from recruitment into the Army through separation and transition to being a veteran;

(4) include development of a unified experience platform for members of the Army that provides integrated, role-based, and personalized digital services;

(5) include modernization of routine administrative workflows to reduce manual processing and data reentry;

(6) include deployment of analytics and decision-support tools to inform readiness and retention decisions; and

(7) include enhancement of digital transition pathways to support separation from the Armed Forces and continued engagement with veterans.

(c) COMMERCIAL BEST PRACTICES.—In carrying out the pilot program required by subsection (a), the Secretary shall, to the maximum extent practicable and cost-effective, make use of commercially available technologies, modular architectures, and open standards to accelerate delivery and improve user experience.

(d) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army

shall submit to the congressional defense committees a report describing—

(1) the implementation plan for the initiative;

(2) key design and integration milestones;

(3) estimated costs by fiscal year;

(4) performance metrics to measure improvements in user experience, administrative burden reduction, retention indicators, and transition outcomes; and

(5) any additional authorities the Secretary determines are required.

(e) TERMINATION.—The pilot program required by subsection (a) shall terminate on the date that is three years after the date of the establishment of such pilot program.

SEC. 519. AUTHORITY TO STUDY THE PROPENSITY OF CERTAIN STUDENTS TO SERVE IN THE ARMED FORCES.

(a) STUDY.—

(1) AGREEMENT.—The Secretary of Defense shall seek to enter into an agreement—

(A) with an entity described in paragraph (2) pursuant to which such entity shall conduct a comprehensive study on the propensity to serve of military-connected students; and

(B) not later than year after the date of the enactment of this Act.

(2) ELIGIBLE ENTITY.—An entity described in this paragraph is a national nonprofit organization that—

(A) focuses on the educational environment of military-connected youth;

(B) is a partner to an institution of higher education; and

(C) has demonstrated expertise in research, mixed-methods methodology, or adolescent development.

(3) SCOPE.—Such study shall—

(A) examine the relationship between family military tradition and legacy, including generational service, parental attitudes toward service in the Armed Forces, and household military culture, and a student's propensity to serve in the Armed Forces;

(B) assess the relationship between academic environmental factors (including participation in JROTC, access to military-affiliated mentors and counselors, and type of school) and the propensity to serve;

(C) evaluate the role of peer support programming in shaping plans after secondary school among military-connected students;

(D) catalog factors that enhance or detract from the propensity to serve identified by military-connected students, their parents or guardians, and school personnel; and

(E) aggregate findings by subgroup, including by grade level, gender, race, ethnicity, geographic region, and school type.

(4) METHODOLOGY.—Study shall be conducted—

(A) using mixed methods, including—

(i) a quantitative survey administered to a nationally representative sample of not fewer than 1,500 military-connected students, using a purpose-built and validated instrument measuring the propensity to serve, family military legacy, JROTC participation, and school environment; and

(ii) semi-structured qualitative interviews with not fewer than 60 participants, including military-connected students, their parents or guardians, JROTC instructors,

school counselors, school liaison officers, and program coordinators; and

(B) in accordance with—

(i) the Federal Policy for the Protection of Human Subjects (part 46 of title 45, Code of Federal Regulations including provisions applicable to research involving minors;

(ii) the Family Educational Rights and Privacy Act (Public Law 93–380; 20 U.S.C. 1232g); and

(iii) applicable guidance of the Department of Defense governing the conduct of research on human subjects.

(5) OPTIONAL PARTICIPATION.—Participation in the study shall be voluntary. A military-connected student who is under 18 years of age may not participate without the informed written consent of a parent or legal guardian.

(b) REPORTS.—

(1) INTERIM REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the Committees on Armed Services of the Senate and the House of Representatives an interim report on such a study, including—

(A) whether the Secretary has entered into an agreement under subsection (a);

(B) whether such study has begun; and

(C) any preliminary findings available at the time of the report.

(2) FINAL REPORT.—Not later than two years after the Secretary enters into an agreement under subsection (a), the Secretary shall submit to the Committees on Armed Services of the Senate and the House of Representatives a final report on the results of the study. Such a final report shall include—

(A) a detailed description of the study methodology, sample characteristics, and data collection procedures;

(B) the quantitative findings, including statistical analyses of the relationship between family military legacy, school environment, JROTC participation, peer-to-peer program participation, and the propensity to serve;

(C) the qualitative findings, including key themes derived from interviews with military-connected students, their parents or guardians, and school personnel;

(D) an integrated analysis of quantitative and qualitative findings;

(E) findings disaggregated by grade level, gender, race, ethnicity, geographic region, and school type;

(F) recommendations for the Secretary regarding military recruitment strategy, development of JROTC programs, and support services for military-connected students; and

(G) recommendations to Congress regarding legislative action based on such findings.

(3) FORM.—The reports required under this subsection shall be submitted in unclassified form, but may include a classified annex if the Secretary determines such annex is necessary.

(c) DEFINITIONS.—In this section:

(1) The term ''military-connected student'' means a secondary school student—

(A) enrolled in grade 11 or 12; and

(B) who has at least one parent or guardian who is currently serving, or who previously served, in the Armed Forces.

(2) The term ''propensity to serve'' means a student's self-reported likelihood of joining the

Armed Forces after graduation from secondary school.

(3) The term ''JROTC'' means the Junior Reserve Officers Training Corps program authorized under chapter 102 of title 10, United States Code.

SEC. 519A. PROHIBITION ON ENLISTMENT OR APPOINTMENT OF FOREIGN NATIONALS FROM FOREIGN ADVERSARIES.

(a) ENLISTMENT.—Section 504 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(d) NATIONALS OF FOREIGN ADVERSARY COUNTRIES.—Notwithstanding subsection (b), no person who is a national of a covered nation (as defined in section 4872(f) of this title) may be enlisted in an armed force.''.

(b) APPOINTMENT.—Section 532(a) of title 10, United States Code, is amended—

(1) in paragraph (3), by striking ''; and'' and inserting a semicolon;

(2) by redesignating paragraph (4) as paragraph (5); and

(3) by inserting after paragraph (3) the following new paragraph:

''(4) has not been a national of a covered nation (as defined in section 4872(f) of this title) during

the five-year period ending on the date of such appointment; and''.

(c) REVIEW OF EXISTING PERSONNEL.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report that—

(1) identifies the number of members of the Armed Forces who—

(A) are foreign nationals of a covered nation (as defined in section 4872(f) of title 10, United States Code); and

(B) were lawfully admitted for permanent residence (as defined in section 101(a) of the Immigration and Nationality Act (8 U.S.C. 1101(a))) on the date of accession to the Armed Forces;

(2) identifies the date of accession to the Armed Forces of each member identified in paragraph (1);

(3) identifies the number of years of service of each member identified in paragraph (1); and

(4) identifies how many members identified in paragraph (1) are in the process of seeking citizenship in the United States.

(d) APPLICABILITY.—The amendments made by subsections (a) and (b) shall apply to the original enlistment or original appointment of a person as a member of the Armed Forces on or after the date that is 180 days after the date of the enactment of this Act.

SEC. 519B. REPORT ON EDUCATIONAL PARTNERSHIPS TO SUPPORT MILITARY RECRUITMENT, READINESS, AND END STRENGTH REQUIREMENTS.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in consultation with the Secretary of Education, shall submit to the congressional defense committees, the Committee on Education and Workforce of the House of Representatives, and the Committee on Health, Education, Labor, and Pensions of the Senate a report on opportunities to strengthen military recruitment and support the readiness and end strength requirements of the Armed Forces through partnerships with secondary schools, institutions of higher education, and career and technical education programs.

(b) MATTERS INCLUDED.—The report required under subsection (a) shall include the following:

(1) An assessment of current and projected recruiting challenges affecting the Armed Forces and

the ability of the military departments to meet authorized end strength requirements.

(2) An assessment of the extent to which academic preparedness, physical fitness, workforce readiness, and awareness of military service opportunities impact the pool of qualified applicants available to the Armed Forces.

(3) An evaluation of existing Department of Defense engagement with secondary schools, institutions of higher education, and career and technical education programs and the effectiveness of such engagement in supporting recruiting objectives and military readiness.

(4) An assessment of the Junior Reserve Officers' Training Corps program and the Senior Reserve Officers' Training Corps program, including—

(A) participation levels and recent enrollment trends;

(B) geographic distribution and accessibility of those programs;

(C) barriers to program expansion, including in areas experiencing recruiting shortfalls; and

(D) opportunities to increase participation, improve awareness of military service pathways,

and strengthen leadership development among participants.

(5) An assessment of opportunities to expand partnerships between the Department of Defense and educational institutions to support recruitment into mission-critical military career fields, including science, technology, engineering, mathematics, cybersecurity, aviation, logistics, healthcare, artificial intelligence, and other fields identified by the Secretary of Defense.

(6) Recommendations for improving coordination between the Department of Defense and the Department of Education to increase awareness of military service opportunities, scholarships, service academies, Senior Reserve Officers' Training Corps scholarships, military career pathways, and other programs that support military recruiting and readiness.

(7) An assessment of opportunities to align existing educational, workforce development, and career readiness programs with current and projected Armed Forces personnel requirements.

(8) Recommendations for legislative or administrative actions to strengthen the pipeline of qualified

applicants for military service and support long-term military readiness and end strength requirements.

(9) Recommendations to increase the attractiveness of military service as a career path and form of public service, including recommendations to improve awareness of military career opportunities, expand pathways to service through the Junior Reserve Officers' Training Corps and Senior Reserve Officers' Training Corps programs, strengthen educational and workforce development partnerships, and increase the pool of qualified applicants available to meet military readiness and end strength requirements.

(c) BRIEFING.—Not later than 30 days after submitting the report required under subsection (a), the Secretary of Defense shall provide a briefing to the congressional defense committees on the findings and recommendations contained in the report.

(d) FORM.—The report required under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

SEC. 519C. PROHIBITED DIETARY SUPPLEMENT INGREDIENTS AND PERFORMANCE-ENHANCING SUBSTANCES.

(a) PROHIBITION.—Chapter 49 of title 10, United States Code, is amended by inserting after section 978 the following new section:

"§ 978a. Prohibited dietary supplement ingredients and performance-enhancing substances

''(a) PROHIBITED INGREDIENT AND SUBSTANCE LISTS.—The Secretary shall publish and, not less frequently than once every 90 days, shall update a list of—

''(1) dietary supplement ingredients prohibited for use by members of the armed forces; and

''(2) performance-enhancing substances prohibited for use by members of the armed forces.

''(b) REQUIRED FORMATS.—The Secretary shall publish the list under subsection (a)—

''(1) on an internet website where such list may be viewed in full without use of a search function;

''(2) in a searchable database; and

''(3) in a digital file that may be downloaded from such internet website in a common format.

''(c) COMMANDING OFFICER MAY ELECT NOT TO DISCIPLINE.—The commanding officer of a member of the armed forces who possesses or uses a dietary supplement containing an ingredient (other than a substance included

in the schedule under section 202 of the Controlled Substances Act (21 U.S.C. 812)) appearing on the list under subsection (a)(1)—

"(1) may elect not to subject such member to discipline if—

"(A) such possession or use is the first disciplinary offense committed by such member;

"(B) such commanding officer determines that such member satisfies the good faith standard under subsection (e); and

"(C) such member agrees to participate in education, counseling, or drug testing in lieu of discipline; and

"(2) may elect not to subject such member to administrative separation.

"(d) POSSESSION OF PROHIBITED INGREDIENT NOT DRUG ABUSE.—Notwithstanding any other provision of law, possession of a dietary supplement containing an ingredient (other than a substance included in the schedule under section 202 of the Controlled Substances Act (21 U.S.C. 812)) appearing on the list under subsection (a)(1) shall not constitute drug abuse for purposes of this title.

"(e) GOOD FAITH STANDARD.—A member of the armed forces satisfies the good faith standard under this subsection if such member—

''(1) possesses or uses a dietary supplement containing an ingredient (other than a substance included in the schedule under section 202 of the Controlled Substances Act (21 U.S.C. 812)) appearing on the list under subsection (a)(1) without actual knowledge that such dietary supplement contains such ingredient;

''(2) purchases such supplement from a retail facility affiliated with the Department of Defense;

''(3) reasonably relies, prior to purchasing or using such supplement, on a search of the list under subsection (a)(1) that fails to identify such ingredient as prohibited under subsection (a)(1), including due to a misspelling or variation in the name of such ingredient on such list; or

''(4) otherwise demonstrates a reasonable belief that such supplement does not contain such ingredient.''.

(b) SECRETARY TO UPDATE DEPARTMENT OF DEFENSE INSTRUCTION.—Not later than 120 days after the date of the enactment of this section, the Secretary of Defense, acting through the Under Secretary for Personnel and Readiness, shall revise Department of Defense Instruction 6130.06 pursuant to section 978a of title 10, United States Code, as added by subsection (a).

(c) SECRETARY TO UPDATE OPERATION SUPPLEMENT SAFETY INTERNET WEBSITE.—Not later than one year after the date of the enactment of this section, the Secretary shall—

(1) update the Operation Supplement Safety internet website to enhance functionality for—

(A) vendors of dietary supplements; and

(B) members of the Armed Forces; and

(2) review possible improvements to such internet website, including with respect to—

(A) search tools that employ—

(i) autofill functionality; and

(ii) autocorrect functionality;

(B) artificial intelligence tools that can—

(i) scan product labels; and

(ii) search such internet website for information on the ingredients found on such labels; and

(C) capacity to allow a user to register to receive a notification when a dietary supplement ingredient is added to the list under section 978a(a)(1) of title 10, United States Code, as added by subsection (a).

(d) SECRETARY TO REVIEW DIETARY SUPPLEMENT SAFETY EDUCATION OPPORTUNITIES.—Not later than

one year after the date of the enactment of this section, the Secretary shall review opportunities for incorporating into existing training programs for members of the Armed Forces education concerning—

(1) dietary supplement safety; and

(2) the list under section 978a(a) of title 10, United States Code, as added by subsection (a).

(e) REPORTS.—

(1) INITIAL IMPLEMENTATION REPORT.—Not later than 120 days after the date of the enactment of this section, the Secretary shall submit to the congressional defense committees a report describing efforts made to ensure that retail facilities affiliated with the Department of Defense do not sell any products containing an ingredient appearing on the list under section 978a(a) of title 10, United States Code, as added by subsection (a).

(2) FINAL IMPLEMENTATION REPORT.—Not later than two years after the date of the enactment of this section, the Secretary shall submit to the congressional defense committees a report describing steps taken to implement section 978a of title 10, United States Code, as added by subsection (a).

(3) ANNUAL REPORTS.—Not later than one year after the date of the enactment of this section,

and annually thereafter for a period of five years, the Secretary shall submit to the congressional defense committees a report—

(A) listing, for the one-year period ending on the date on which such report is submitted—

(i) the total number of administrative separation actions initiated for possession or use of a dietary supplement containing an ingredient appearing on the list under section 978a(a)(1) of title 10, United States Code, as added by subsection (a), disaggregated by—

(I) armed force;

(II) pay grade;

(III) characterization of discharge sought;

(IV) whether the member subject to the administrative separation action contested such action; and

(V) outcome; and

(ii) the number of commanding officers who elected not to subject a member of the Armed Forces to discipline under section 978a(c) of such title; and

(B) assessing the effectiveness of efforts to provide education relating to dietary supplement safety to members of the Armed Forces.

Subtitle C—Member Training

SEC. 521. INELIGIBILITY OF A NATIONAL OF A NON-ALLIED FOREIGN NATION TO ATTEND A SERVICE ACADEMY.

Section 347 of title 10, United States Code, is amended—

(1) by redesignating subsection (d) as subsection (e); and

(2) by inserting, after subsection (c), the following new subsection (d):

''(d) INELIGIBILITY OF FOREIGN NATIONALS FROM CERTAIN COUNTRIES.—(1) A person who is a foreign national of a covered nation may not receive instruction at or otherwise attend a Service Academy pursuant to this section.

''(2) In this subsection, the term 'covered nation' has the meaning given such term in section 4872 of this title.''.

SEC. 522. SCIENCE, TECHNOLOGY, ENGINEERING, AND MATHEMATICS PROGRAM FOR JUNIOR RESERVE OFFICERS' TRAINING CORPS.

(a) IN GENERAL.—Chapter 102 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 2037. Science, technology, engineering, and mathematics program

''(a) PROGRAM.—The Secretary of Defense shall develop and implement a program to assist units of the Junior Reserve Officers' Training Corps in providing participants opportunities in STEM fields.

''(b) ELEMENTS.—The program required by subsection (a) shall include—

''(1) the provision of guidance and best practices for identifying, evaluating, formalizing, and managing partnerships with local educational agencies, community colleges and trade schools, institutions of higher education, private-sector entities (including non-profit organizations) with expertise in STEM field programming and career and technical education, the defense industrial base, and any other entities with capacity and capability to support learning and development in STEM fields;

''(2) the provision of templates for agreements to facilitate the establishment of such partnerships;

''(3) the establishment of a national directory of prospective partners for opportunities in STEM fields; and

''(4) the establishment of a directory of opportunities in STEM fields for participants in the Junior Reserve Officers' Training Corps.

''(c) CONTINUATION OF EFFECTIVE PROGRAMS.—In carrying out this section, the Secretary of Defense shall continue and maintain any Junior Reserve Officers' Training Corps STEM field program that existed before the enactment of this section if such program demonstrates satisfactory participation and learning outcomes.

''(d) STEM FIELD DEFINED.—In this section, the term 'STEM field' means the fields of science, technology, engineering, or mathematics.''.

(b) BRIEFING.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall provide to the Committees on Armed Services of the House of Representatives and the Senate a briefing on the development, implementation, and initial outcomes of the program required by section 2037 of title 10, United States Code, as added by subsection (a).

SEC. 523. ADDITIONAL NOMINEES TO THE SERVICE ACADEMIES FROM THE COMMONWEALTH OF THE NORTHERN MARIANA ISLANDS.

(a) UNITED STATES MILITARY ACADEMY.—Section 7442 of title 10 is amended, in subsection (a)(10), by striking ''Three'' and inserting ''Four''.

(b) UNITED STATES NAVAL ACADEMY.—Section 8454 of title 10, United States Code is amended, in subsection (a)(10), by striking ''Three'' and inserting ''Four''.

(c) UNITED STATES AIR FORCE ACADEMY.—Section 9442 of title 10, United States Code is amended, in subsection (a)(10), by striking ''Three'' and inserting ''Four''.

SEC. 524. ELIMINATION OF CAP ON THE NUMBER OF CADETS OR MIDSHIPMEN WHO MAY RECEIVE ALTERNATIVE SERVICE OBLIGATIONS TO BECOME PROFESSIONAL ATHLETES.

(a) UNITED STATES MILITARY ACADEMY.—Section 7448(b)(4) of title 10, United States Code, is amended by striking ''not more than five cadets, who obtain'' and inserting ''a cadet who obtains''.

(b) UNITED STATES NAVAL ACADEMY.—Section 8459(b)(4) of title 10, United States Code, is amended by striking ''not more than five midshipmen, who obtain'' and inserting ''a midshipman who obtains''.

(c) UNITED STATES AIR FORCE ACADEMY.—Section 9448(b)(4) of title 10, United States Code, is amended

by striking ''not more than five cadets, who obtain'' and inserting ''a cadet who obtains''.

SEC. 525. ELIMINATION OF THE RIGHT OF CADETS TO AUTOMATIC REEXAMINATION.

(a) UNITED STATES MILITARY ACADEMY.—Section 7451 of title 10, United States Code, is amended—

(1) in the heading, by inserting ''**failure of an examination;**'' before ''**effect**'';

(2) in subsection (a), by striking ''studies and recommended'' and inserting ''studies, or who fails to pass a required examination, and is recommended'';

(3) by striking subsection (b); and

(4) by redesignating subsection (c) as subsection (b).

(b) UNITED STATES AIR FORCE ACADEMY.—Section 9451 of title 10, United States Code, is amended—

(1) in the heading, by inserting ''**failure of an examination;**'' before ''**effect**'';

(2) in subsection (a), by striking ''studies and recommended'' and inserting ''studies, or who fails to pass a required examination, and is recommended'';

(3) by striking subsection (b); and

(4) by redesignating subsection (c) as subsection (b).

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to the first academic year beginning after the date of the enactment of this Act.

SEC. 526. CONGRESSIONAL COMMUNICATIONS OFFICIALS OF THE SERVICE ACADEMIES.

(a) UNITED STATES MILITARY ACADEMY.—Chapter 753 of title 10, United States Code, is amended by inserting after section 7455 the following new section:

"§ 7455a. Congressional communications official

''(a) APPOINTMENT.—The Secretary of Defense, in coordination with the Secretary of the Army, shall appoint a civilian employee of the Department of the Army to serve as the congressional communications official of the Board of Visitors under section 7455 of this title.

''(b) DUTIES.—(1) The congressional communications official shall communicate directly with a Member of Congress, congressional defense committee, or covered congressional employee regarding the activities of such Board of Visitors.

''(2) The Secretary of Defense may not require the congressional communications official to obtain approval, clearance, or review of a communication under paragraph (1) before submitting such communication to a Member

of Congress, congressional defense committee, or covered congressional employee.

''(c) DEFINITIONS.—In this section:

''(1) The term 'covered congressional employee' means an employee of a Member of Congress, or of a congressional defense committee, without regard to—

''(A) whether such employee serves on a full-time or part-time basis; or

''(B) where such employee so serves.

''(2) The term 'Member of Congress' has the meaning given such term in section 1563 of this title.''.

(b) UNITED STATES NAVAL ACADEMY.—Chapter 853 of title 10, United States Code, is amended by inserting after section 8468 the following new section:

''§ 8468a. Congressional communications official

''(a) APPOINTMENT.—The Secretary of Defense, in coordination with the Secretary of the Navy, shall appoint a civilian employee of the Department of the Navy to serve as the congressional communications official of the Board of Visitors under section 7455 of this title.

''(b) DUTIES.—(1) The congressional communications official shall communicate directly with a Member of Congress, congressional defense committee, or covered

congressional employee regarding the activities of such Board of Visitors.

''(2) The Secretary of Defense may not require the congressional communications official to obtain approval, clearance, or review of a communication under paragraph (1) before submitting such communication to a Member of Congress, congressional defense committee, or covered congressional employee.

''(c) DEFINITIONS.—In this section:

''(1) The term 'covered congressional employee' means an employee of a Member of Congress, or of a congressional defense committee, without regard to—

''(A) whether such employee serves on a full-time or part-time basis; or

''(B) where such employee so serves.

''(2) The term 'Member of Congress' has the meaning given such term in section 1563 of this title.''.

(c) UNITED STATES AIR FORCE ACADEMY.—Chapter 953 of title 10, United States Code, is amended by inserting after section 9455 the following new section:

''§ 9455a. Congressional communications official

''(a) APPOINTMENT.—The Secretary of Defense, in coordination with the Secretary of the Air Force, shall ap-

point a civilian employee of the Department of the Air Force to serve as the congressional communications official of the Board of Visitors under section 9455 of this title.

''(b) DUTIES.—(1) The congressional communications official shall communicate directly with a Member of Congress, congressional defense committee, or covered congressional employee regarding the activities of such Board of Visitors.

''(2) The Secretary of Defense may not require the congressional communications official to obtain approval, clearance, or review of a communication under paragraph (1) before submitting such communication to a Member of Congress, congressional defense committee, or covered congressional employee.

''(c) DEFINITIONS.—In this section:

''(1) The term 'covered congressional employee' means an employee of a Member of Congress, or of a congressional defense committee, without regard to—

''(A) whether such employee serves on a full-time or part-time basis; or

''(B) where such employee so serves.

''(2) The term 'Member of Congress' has the meaning given such term in section 1563 of this title.''.

SEC. 527. REVISION TO DECISION TIMEFRAME FOR EXPEDITED TRANSFERS AT THE MILITARY SERVICE ACADEMIES.

(a) UNITED STATES MILITARY ACADEMY.—Section 7461(e) of title 10, United States Code, is amended by striking ''72 hours'' each place it appears and inserting ''five days''.

(b) UNITED STATES NAVAL ACADEMY.—Section 8480(e) of title 10, United States Code, is amended by striking ''72 hours'' each place it appears and inserting ''five days''.

(c) UNITED STATES AIR FORCE ACADEMY.—Section 9461(e) of title 10, United States Code, is amended by striking ''72 hours'' each place it appears and inserting ''five days''.

SEC. 528. JUNIOR RESERVE OFFICERS' TRAINING CORPS INSTRUCTOR PAY.

(a) NON-FOREIGN AREA COLA.—Not later than July 1, 2027, the Secretary of Defense shall revise the Junior Reserve Officers' Training Corps Standardized Instructor Pay Scale to increase the otherwise applicable minimum instructor pay for instructors located outside of

the continental United States or in Alaska by the amount of the non-foreign area cost-of-living allowance rate pursuant to section 5941 of title 5, United States Code, or the post allowance rate pursuant to section 5924 of title 5, United States Code, as appropriate for the area in which the instructor is located and as would be applicable if the instructor were an employee eligible for such allowance.

(b) REPORT.—Not later than April 1, 2027, the Secretary of Defense shall complete an analysis of the impact of the Junior Reserve Officers' Training Corps Standardized Instructor Pay Scale on recruitment and retention of Junior Reserve Officers' Training Corps instructors and submit to the congressional defense committees a report containing such analysis. Such report shall include—

(1) the total number of authorized Junior Reserve Officers' Training Corps instructor positions, disaggregated by Armed Force, as of—

(A) January 31, 2027;

(B) January 31, 2026; and

(C) January 31, 2025;

(2) the total number of such instructor positions, disaggregated by Armed Force, that were vacant as of each of the dates specified in paragraph (1);

(3) a description of the efforts of the Department of Defense to fill such instructor positions; and

(4) any recommendations of the Secretary to address issues identified in such analysis.

SEC. 529. ESTABLISHMENT OF PROGRAM TO PROMOTE PARTICIPATION OF FOREIGN STUDENTS IN THE SENIOR RESERVE OFFICERS' TRAINING CORPS.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—Not later than January 1, 2028, the Secretary of Defense shall establish a program using the authority provided under section 2103(b) of title 10, United States Code, to promote the participation of foreign students in the Senior Reserve Officers' Training Corps (in this section referred to as the ''Program'').

(2) ORGANIZATION.—The Secretary of Defense, in consultation with the Director of the Defense Security Cooperation Agency, the Secretaries of the military departments, the commanders of the combatant commands, the participant institutions in the Senior Reserve Officers' Training Corps program, and any other individual the Secretary of Defense considers appropriate, shall be responsible for, and shall oversee, the Program.

(b) OBJECTIVE.—The objective of the Program is to promote the readiness and interoperability of the United States Armed Forces and the military forces of partner countries by providing a high-quality, cost effective military-based educational experience for foreign students in furtherance of the military-to-military program objectives of the Department of Defense and to enhance the educational experience and preparation of future United States military leaders through increased, extended interaction with highly qualified potential foreign military leaders.

(c) ACTIVITIES.—

(1) IN GENERAL.—Under the Program, the Secretary of Defense shall—

(A) identify to the military services' Senior Reserve Officers' Training Corps program the foreign students who, based on criteria established by the Secretary, the Secretary recommends be considered for admission under the Program;

(B) coordinate with partner countries to evaluate interest in and promote awareness of the Program;

(C) establish a mechanism for tracking an alumni network of foreign students who participate in the Program; and

(D) to the extent practicable, work with the participant institutions in the Senior Reserve Officers' Training Corps program and partner countries to identify academic institutions and programs that—

(i) have specialized academic programs in areas of study of interest to participating countries; or

(ii) have high participation from or significant diaspora populations from participating countries.

(d) STRATEGY.—

(1) IN GENERAL.—Not later than September 30, 2027, the Secretary of Defense shall submit to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives a strategy for the implementation of the Program.

(2) ELEMENTS.—The strategy required by paragraph (1) shall include the following elements:

(A) A governance structure for the Program, including—

(i) the officials tasked to oversee the Program;

(ii) the format of the governing body of the Program;

(iii) the functions and duties of such governing body with respect to establishing and maintaining the Program; and

(iv) mechanisms for coordinating with partner countries whose students are selected to participate in the Program.

(B) A list of additional authorities, appropriations, or other congressional support necessary to ensure the success of the Program.

(C) A description of targeted partner countries and participant institutions in the Senior Reserve Officers' Training Corps for the first three fiscal years of the Program, including a rationale for selecting such initial partners.

(D) A description of opportunities and potential timelines for future Program expansion, as appropriate.

(E) A description of the mechanism for tracking the alumni network of participants of the Program.

(F) Any other information the Secretary of Defense considers appropriate.

(e) REPORT.—

(1) IN GENERAL.—Not later than September 20, 2028, and annually thereafter, the Secretary of Defense shall submit to the congressional defense committees (as that term is defined in section 101 of title 10, United States Code) a report on the Program.

(2) ELEMENTS.—Each report required by paragraph (1) shall include the following elements:

(A) A narrative summary of activities conducted as part of the Program during the preceding fiscal year.

(B) An overview of participant Senior Reserve Officers' Training Corps programs, individuals, and countries, to include a description of the areas of study entered into by the students participating in the Program.

(C) A description of opportunities and potential timelines for future Program expansion, as appropriate.

(D) Any other information the Secretary of Defense considers appropriate.

(f) LIMITATION ON AUTHORITY.—The Secretary of Defense may not use the authority provided under this section to pay for tuition or room and board for foreign students who participate in the Program.

(g) TERMINATION.—The Program shall terminate on December 31, 2032.

SEC. 529A. ESTABLISHMENT OF THE MILITARY SERVICE ACADEMY PANEL ON ATHLETICS.

(a) ESTABLISHMENT.—The Secretary of Defense shall establish within the Department of Defense a panel to be known as the ''Military Service Academy Panel on Athletics'' (referred to in this section as the ''Panel'').

(b) REVIEW.—The Panel shall conduct a comprehensive review and analysis of the effects of the following on athletics at the Service Academies:

(1) Rules of the NCAA regarding the compensation of a collegiate athlete for use of the name, image, and likeness of such athlete.

(2) The transfer portal of the NCAA.

(c) REPORT.—

(1) REPORT REQUIRED.—Not later than December 31, 2027, the Panel shall submit to the congressional defense committees a written report regarding the review under subsection (b).

(2) ELEMENTS.—The report shall include the following elements:

(A) The evaluation of the Panel of the effects described in subsection (b) on the recruitment, retention, and military readiness of cadets and midshipmen at the Service Academies who are collegiate athletes.

(B) The legal and ethical implications identified by the Panel, including with regards to the Uniform Code of Military Justice and regulations of the Department, of receipt of compensation described in subsection (b) by a member of a covered Armed Force on active duty or a cadet or midshipman subject to a commissioned service obligation.

(C) The effect of the transfer portal on the rosters and cohesion of athletic teams at the Service Academies, given the unique attrition challenges faced by the Service Academies.

(3) PUBLICATION.—The Secretary shall publish the report on a publicly accessible website of the Department. The report—

(A) shall be in unclassified form; and

(B) may not contain any personally identifiable information of a cadet, midshipman, or member of a covered Armed Force.

(d) TERMINATION.—The Panel shall terminate upon submission of the report under subsection (c).

(e) DEFINITIONS.—In this section:

(1) The term ''commissioned service obligation'' has the meaning given such term in section 7448, 8459, or 9448 of title 10, United States Code, as applicable.

(2) The term ''covered Armed Force'' means the Army, Navy, Marine Corps, Air Force, or Space Force.

(3) The term ''NCAA'' means the National Collegiate Athletic Association.

(4) The term ''Service Academy'' has the meaning given such term in section 347 of title 10, United States Code.

SEC. 529B. LIMITATION ON AUTHORITY TO ELIMINATE THE 70TH FLYING TRAINING SQUADRON OF THE UNITED STATES AIR FORCE ACADEMY.

(a) LIMITATION.—The Secretary of the Air Force may not perform a covered action regarding the 70th Flying Training Squadron of the USAFA until the earlier of the following:

(1) October 1, 2031.

(2) The day that is 90 days after the day that the Secretary submits, to the congressional defense committees and the Board of Visitors to USAFA, a report described in subsection (b).

(b) REPORT.—A report described in this subsection is a report on covered action regarding the 70th Flying Training Squadron of USAFA. Such a report includes the following elements:

(1) An assessment of the effect of such covered action on the capacity to train cadets at USAFA, including the number of cadets so affected annually.

(2) A plan to maintain capacity described in paragraph (1) provided by the 70th Flying Training Squadron, including the retention of advanced mission sets, simulator training, and evaluator pilot functions.

(3) An analysis of alternatives to such covered action, including the reallocation of chronically vacant billets within Air Force Reserve Command.

(4) An assessment of the cost differential between continued operation of the 70th Flying Training Squadron and replacement of its functions by active-duty personnel.

(5) A plan to preserve the institutional knowledge and instructional capacity currently provided by aviators assigned to the 70th Flying Training Squadron.

(c) PLAN REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a plan to sustain the 70th Flying Training Squadron until the earlier day under subsection (a).

(d) DEFINITIONS.—In this section:

(1) The term ''covered action'' includes eliminating, deactivating, defunding, reducing the number of personnel, and reducing the number of aircraft.

(2) The term ''USAFA'' means the United States Air Force Academy.

SEC. 529C. MODIFICATIONS TO PAYMENT OF TUITION FOR OFF-DUTY TRAINING OR EDUCATION.

(a) AUTHORITY.—Section 2007 of title 10, United States Code, is amended—

(1) in the heading, by inserting ''**and institution fees**'' after ''**tuition**'';

(2) in subsection (a), by striking ''tuition or expenses'' and inserting ''tuition, expenses, or institution fees''; and

(3) in subsection (c), by striking ''tuition or expenses'' each place it appears and inserting ''tuition, expenses, or institution fees''.

(b) INCREASE IN PER-SEMESTER HOUR CAP.—The Secretary of Defense shall prescribe regulations increasing the limit on tuition assistance per-semester-hour under section 2007 of title 10, United States Code, to $350.

(c) ANNUAL REPORT.—Section 2007 of title 10, United States Code, is further amended by adding at the end the following new subsection:

''(h) The Secretary of Defense shall annually submit to the congressional defense committees a report on outcomes related to off-duty and voluntary education and training for members of the armed forces. Such report shall include—

''(1) the amount of funds used to provide such education and training;

''(2) the number of members of the armed forces receiving assistance with such education and training sections 2005, 2006a, and 2007 of this title;

''(3) an analysis of the compliance of the use of such funds with the requirements of sections 2005, 2006a, and 2007 of this title;

''(4) an analysis of the relationship between the use of funds to provide such education and training to members and the educational attainment, retention, mission readiness, and transition readiness of such members and the recruitment of new members; and

''(5) an analysis of the potential severing of an annual limit per member on the provision of such funds and a per-semester-hour limit.''.

SEC. 529D. UPDATE OF GUIDANCE AND EVALUATION OF JUNIOR RESERVE OFFICERS' TRAINING CORPS INSTRUCTOR PAY SCALE.

(a) UPDATE OF GUIDANCE.—Not later than 270 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Secretaries concerned (as that term is defined in section 101(a)(9) of title 10, United States Code), shall update Department of Defense guidance governing the Junior Reserve Officers' Training Corps (JROTC) program to include—

(1) an evaluation plan to assess the effects of the JROTC Standardized Instructor Pay Scale (JSIPS), or any successor pay system, on recruitment and retention of JROTC instructors; and

(2) standardized metrics for measuring JROTC instructor recruiting outcomes and retention rates across the military services.

(b) REQUIRED METRICS.—The evaluation plan required under subsection (a) shall include, at a minimum, metrics relating to—

(1) instructor vacancy rates and time-to-hire;

(2) retention rates and length of service;

(3) geographic variation in recruiting and retention outcomes, including high-cost-of-living areas, rural, urban, and geographically isolated locations;

(4) comparisons between outcomes under the legacy pay system and the JSIPS;

(5) the identification of recruiting efforts used to attract instructor applicants, including data on how applicants learned about available instructor positions;

(6) the number of applicants who begin, complete, or withdraw from the instructor hiring process, including the interview and background investigation stages;

(7) the number of applicants who accept or decline instructor position offers, including to the extent practicable, information on the reasons offers were declined; and

(8) any other matters the Secretary determines appropriate.

(c) REPORT TO CONGRESS.—Not later than one year after the issuance of the updated guidance under subsection (a), and annually thereafter for two years, the Secretary of Defense shall submit to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives a report that includes—

(1) a description of the updated guidance and implementation status;

(2) baseline data and metrics collected using the metrics developed under subsection (a);

(3) an assessment of the effects of the pay scale on recruitment and retention; and

(4) any recommendations for legislative or administrative action.

SEC. 529E. EXPANSION OF PERSONALIZED FINANCIAL AND HOUSING COUNSELING FOR MEMBERS OF THE ARMED FORCES.

(a) IN GENERAL.—Section 992 of title 10, United States Code, is amended—

(1) in subsection (a)(1)—

(A) by redesignating subparagraphs (D) and (E) as subparagraphs (E) and (F), respectively; and

(B) by inserting after subparagraph (C) the following new subparagraph:

''(D) practices relating to financial management, home buying and selling, renting during changing permanent station, rental planning, home loans available through the programs of the Department of Veterans Affairs, and other financial services that are routinely offered to private sector home loans;'';

(2) by redesignating subsection (d) through (f) as subsections (e) through (g), respectively; and

(3) by inserting after subsection (c) the following new subsection:

''(d) INDIVIDUALIZED FINANCIAL AND HOUSING COUNSELING.—(1) Not later than one year after the date of the enactment of this subsection, the Secretary of Defense shall establish a program in accordance with this section and Department of Defense Instruction 1322.34, or any successor guidance, to provide one-on-one counseling tailored to the needs of each member of the armed forces on the following topics:

''(A) Credit management.

''(B) Budgeting.

''(C) Anti-predatory lending practices.

''(D) Changes of permanent station and rental planning.

''(E) Home loans available through the programs of the Department of Veterans Affairs.

''(F) Protections under the Servicemembers Civil Relief Act (50 U.S.C. 3901 et seq.) and section 987 of this title.

''(2) For the purposes of carrying out paragraph (1), the Secretary shall seek to enter an agreement with a counseling service organization that—

''(A) is a HUD-approved counseling agency (as defined in section 106(h) of the House and Urban Development Act of 1968 (12 U.S.C. 1701x(h)));

''(B) is organized as a tax-exempt entity under section 501(c)(19) of the Internal Revenue Code of 1986, defined by the Internal Revenue Service as a Veteran Service Organization serving the military-connected community;

''(C) has expertise in financial literacy, housing stability, and home loan benefits for veterans; and

''(D) is capable of developing, administering, maintaining, and providing specialized training and certification for HUD-Certified Housing Counselors

serving members of the armed forces, veterans, and their families.''.

(b) REGULATIONS.—The Secretary of Defense may prescribe such regulations as are necessary to carry out the amendments made by subsection (a).

(c) REPORT.—Not later than 2 years after the date on which the services required under subsection (d) of section section 992 of title 10, United States Code, as added by subsection (a), are established, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the implementation of such services, including—

(1) the number of members of the Armed Forces who received counseling for housing stability, home loan benefits for veterans, or rental planning;

(2) the rate of completion of the counseling services offered under the pilot program; and

(3) indicators of financial stress and housing instability for members of the Armed Forces participating in the pilot program and any metrics for mitigating risks to the members participating.

SEC. 529F. STRATEGY TO IMPROVE ACADEMIC OUTCOMES AT THE UNITED STATES AIR FORCE ACADEMY.

Not later than 120 days after the date of the enactment of this Act, the Superintendent of the United States Air Force Academy shall submit to the congressional defense committees and the Chairman of the Board of Visitors of the Academy a report containing a strategy to improve academic outcomes at the Academy. Such report shall include—

(1) an assessment of the Cadet Honor Code and any recommendations of the Superintendent to update the Cadet Honor Code to address artificial intelligence, large language models, and other emerging technology;

(2) an assessment of the effects of banning the use of mobile phones, smart watches, and other internet-connected devices in academic settings, including a review of publicly available data and outcomes from academic institutions other than military service academies that have implemented such a ban; and

(3) any other policies or modifications to methods of instruction that the Superintendent considers appropriate to improve academic outcomes in sup-

port of the Air Force Core Values of ''Integrity First. Service Before Self. Excellence in All We Do''.

Subtitle D—Member Education

SEC. 531. ESTABLISHMENT OF A DOCTOR OF PSYCHOLOGY PROGRAM AND A MASTER OF SOCIAL WORK PROGRAM AT THE UNIFORMED SERVICES UNIVERSITY OF THE HEALTH SCIENCES.

(a) IN GENERAL.—Section 2113 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(h) ESTABLISHMENT OF A DOCTOR OF PSYCHOLOGY PROGRAM AND A MASTER OF SOCIAL WORK PROGRAM.—(1) The Secretary shall establish at the University a doctor of psychology program and a master of social work program.

''(2) A doctor of philosophy in clinical psychology shall not be considered to satisfy the requirement of paragraph (1).''.

(b) ESTABLISHMENT DATE.—The Secretary shall establish the programs required by subsection (h) of section 2113 of title 10, United States Code, as added by subsection (a), not later than five years after the date of the enactment of this Act.

(c) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit

to Congress a report on the programs required by subsection (h) of section 2113 of title 10, United States Code, as added by subsection (a), including—

(1) the estimated date of matriculation for the first class of students for each such program;

(2) the estimated graduation date for the first class from each such program;

(3) the expected class size of each such program during the 10-year period following the submission of the report;

(4) the estimated number of faculty needed to operate each such program during the 10-year period following the submission of the report;

(5) an estimate of facilities needs for each such program; and

(6) the estimated cost to establish and operate each such program during the 10-year period following the submission of the report, categorized by—

(A) personnel;

(B) facilities; and

(C) other costs, as determined by the Secretary.

SEC. 532. ARMED FORCES HEALTH PROFESSIONS SCHOLARSHIP AND FINANCIAL ASSISTANCE PROGRAM: ELIGIBLE INSTITUTIONS; CONTINUITY OF PAYMENTS.

Section 2127 of title 10, United States Code, is amended by adding at the end the following new subsections:

''(f) The Secretary of Defense shall consider an accredited civilian educational institution eligible for a payment, contract, or determination under this section unless the Secretary determines that the accreditation of such institution is under review for potential adverse action.

''(g)(1) The Secretary of Defense may cease payments described in paragraph (2) only if—

''(A) the Secretary makes a determination described in subsection (f); or

''(B) the member of the program is dropped from the program as described in subsection (c) of section 2123 of this title.

''(2) Payments described in this paragraph are payments—

''(A) under this section;

''(B) to an accredited civilian educational institution;

''(C) for educational expenses of a member of the program; and

''(D) incurred in the course of study of such member of the program.''.

SEC. 533. INCLUSION OF NATIONAL INTELLIGENCE COLLEGE AS PART OF THE NATIONAL DEFENSE UNIVERSITY.

Section 2165(b) of title 10, United States Code, is amended—

(1) by redesignating paragraph (7) as paragraph (8); and

(2) by inserting after paragraph (6) the following new paragraph:

''(7) The National Intelligence College.''.

SEC. 534. DEFENSE INFORMATION SCHOOL: AUTHORITY TO GRANT ASSOCIATE'S DEGREE IN COMMUNICATIONS.

(a) AUTHORITY.—Chapter 108 of title 10, United States Code, is amended by adding at the end the following new section:

''§ 2169a Defense Information School: degree of associate of arts

''(a) DEGREE GRANTING AUTHORITY.—Pursuant to regulations prescribed by the Secretary of Defense, the Commandant of the Defense Information School may confer upon a student of the Defense Information School an associate of arts degree in communications.

''(b) LIMITATION.—A degree may be conferred upon a student under this section only after the Provost of the Defense Information School certifies to the Commandant that the student has satisfied all the requirements prescribed for the degree.''.

(b) REPORTING.—

(1) REPORT REQUIRED.—Not later than one year after the date of the enactment of this Act, and annually thereafter, subject to termination under paragraph (3), the Secretary of Defense shall submit to the congressional defense committees a report regarding the implementation of section 2169a of such title, as added by subsection (a).

(2) ELEMENTS.—A report under this subsection shall include the plan and timeline of the Secretary to carry out such implementation.

(3) TERMINATION.—The report under this subsection shall terminate on the day that the Commandant of the Defense Information School first confers a degree under such section.

SEC. 535. ELIGIBILITY OF AN ENLISTED MEMBER TO RECEIVE A DEGREE FROM THE NAVAL POSTGRADUATE SCHOOL.

Section 8545 of title 10, United States Code, is amended by striking subsection (d).

SEC. 536. REDESIGNATION OF DEAN OF THE FACULTY OF UNITED STATES AIR FORCE ACADEMY AS PROVOST AND DEAN OF THE FACULTY.

Chapter 953 of title 10, United States Code, is amended—

(1) in section 9431(b)(2), by striking ''Dean of the Faculty'' and inserting ''Provost and Dean of the Faculty''; and

(2) in section 9435—

(A) in the heading, by inserting ''**Provost and**'' before ''**Dean**'';

(B) in subsection (a)—

(i) in the first sentence, by striking ''Dean of the Faculty'' and inserting ''Provost and Dean of the Faculty''; and

(ii) by striking ''the Dean'' each place it appears in the second and third sentences and inserting ''the Provost and Dean''; and

(C) in subsection (b), by striking ''Dean of the Faculty'' and inserting ''Provost and Dean of the Faculty''.

SEC. 537. JOINT SPECIAL OPERATIONS UNIVERSITY.

Chapter 108 of title 10, United States Code, is amended by inserting after section 2165 the following new section:

"§ 2166. Joint Special Operations University

''(a) ESTABLISHMENT.—There is a Joint Special Operations University in the Department of Defense.

''(b) FUNCTIONS.—The Joint Special Operations University shall—

''(1) provide relevant joint special operation-peculiar education programs that strengthen the impact of special operations on the armed forces and the United States;

''(2) provide joint special operation-peculiar staff education and development programs tailored to the needs of joint special operations forces headquarters and commanders;

''(3) provide education and academic enabling programs required for special operations mission and activities for which no solution exists in an armed force to address critical special operations knowledge gaps;

''(4) provide accredited graduate-level programs, professional military education, and specialized short courses for special operations forces of the armed forces and associated personnel;

''(5) conduct and coordinate research and analysis on the full range of special operations activities to inform Department of Defense policy and strategy;

''(6) serve as a hub for collaboration with academic institutions, allied countries, and interagency partners to advance special operations capabilities;

''(7) provide outreach and education to enhance understanding of special operations roles within the Department of Defense and the Federal Government; and

''(8) provide input to service and joint professional military education institutions to ensure special operations capabilities and activities are incorporated into curricula and courses.

''(c) ADMINISTRATION.—(1) Subject to the authority, direction, and control of the Assistant Secretary of Defense for Special Operations and Low-Intensity Conflict, the Commander of United States Special Operations Command shall oversee the Joint Special Operations University.

''(2) The Commander of United States Special Operations Command shall appoint a President of the Joint Special Operations University, who shall be a senior officer of the armed forces or a civilian with expertise in special operations and education, to manage the operations and academic programs of the Joint Special Operations University.''.

Subtitle E—Military Justice

SEC. 541. CLARIFICATION OF QUALIFICATIONS FOR JUDGE ADVOCATES.

Section 806(a)(1)(B) of title 10, United States Code (article 6(a)(1)(B) of the Uniform Code of Military Justice), is amended by striking ''license status that provides current eligibility to actively practice law before such court'' and inserting ''license status, in good standing, that provides eligibility to practice law''.

SEC. 542. AUTHORITY OF SPECIAL TRIAL COUNSEL TO ENTER INTO PRETRIAL AGREEMENTS WITH RESPECT TO CERTAIN OFFENSES.

Section 824a(c) of title 10, United States Code (article 24a(c) of the Uniform Code of Military Justice), is amended—

(1) in paragraph (3)—

(A) in the matter preceding subparagraph (A), by striking ''paragraph (5)'' and inserting ''paragraphs (4) and (6)''; and

(B) in subparagraph (C), by inserting ''or pretrial agreement'' after ''plea agreement'';

(2) by redesignating paragraphs (4) and (5) as paragraphs (5) and (6), respectively; and

(3) by inserting after paragraph (3) the following new paragraph:

''(4) PRETRIAL AGREEMENTS.—If a special trial counsel exercises authority pursuant to subsection (d) over an offense that occurred before January 1, 2019, the special trial counsel may enter into a pretrial agreement with the accused in accordance with regulations prescribed by the President. Upon acceptance of such an agreement by the military judge of a general or special court-martial, the agreement shall bind the parties and the convening authority.''.

SEC. 543. CLARIFYING AMENDMENT TO COMPLETION OF APPELLATE REVIEW UNDER ARTICLE 57 OF THE UNIFORM CODE OF MILITARY JUSTICE.

Section 857(c) of title 10, United States Code (article 57(c) of the Uniform Code of Military Justice), is amended—

(1) by redesignating paragraph (2) as paragraph (3);

(2) in paragraph (1)(B), by striking ''Appeals and—'' and all that follows and inserting ''Appeals and the review and time requirements described in paragraph (2) are satisfied.''; and

(3) by inserting after paragraph (1) the following new paragraph:

''(2) REVIEW AND TIME REQUIREMENTS.—The review and time requirements referred to in paragraph (1)(B) are satisfied if any of the following applies:

''(A) The time for the accused to file a petition for review by the Court of Appeals for the Armed Forces has expired and the accused has not filed a petition for such review in a timely manner and the case is not otherwise under review by that Court.

''(B) A petition for review by the Court of Appeals for the Armed Forces is withdrawn by the accused.

''(C) In the case of a petition for review by the Court of Appeals for the Armed Forces that has been timely filed and not withdrawn, the petition—

''(i)(I) is denied or otherwise rejected by the Court of Appeals for the Armed Forces; or

''(II) the review requested by the petition is completed in accordance with the judgment of the Court of Appeals for the Armed Forces; and

''(ii) with respect to subsequent review by the Supreme Court—

''(I) a petition for a writ of certiorari as provided in section 1259 of title 28 is not filed within the time limits prescribed by the Supreme Court;

''(II) such a petition for a writ of certiorari is rejected by the Supreme Court;

''(III) such a petition for a writ of certiorari is withdrawn by the petitioner; or

''(IV) review is otherwise completed in accordance with the judgment of the Supreme Court.''.

SEC. 544. REVIEW OF COURTS-MARTIAL RECORDS.

(a) REVIEW WHEN DIRECT APPEAL IS WAIVED, WITHDRAWN, OR NOT FILED.—Section 865(d) of title 10, United States Code (article 65(d) of the Uniform Code of Military Justice), is amended—

(1) by striking paragraph (2);

(2) by redesignating paragraph (3) as paragraph (2); and

(3) in paragraph (2), as so redesignated—

(A) in subparagraph (A)(ii), by striking ''subparagraph (A), (B), or (C)'' and inserting ''subparagraph (A) or (B)''; and

(B) in subparagraph (B), by striking ''conclusions'' and all that follows and inserting ''a conclusion on each of the following matters:

''(i) Whether the court had jurisdiction over the accused and the offense.

''(ii) Whether the charge and specification stated an offense.

''(iii) Whether the sentence was within the limits prescribed as a matter of law.''.

(b) TECHNICAL CORRECTION.—Section 869(c)(2) of title 10, United States Code (article 69(c)(2) of the Uniform Code of Military Justice), is amended by striking ''section 865(b) of this title (article 65(b))'' and inserting ''section 865(d) of this title (article 65(d))''.

SEC. 545. UNIFORM CODE OF MILITARY JUSTICE: PROHIBITION OF REVIEW OF FACTUAL SUFFICIENCY IN CERTAIN APPEALS BEFORE A COURT OF CRIMINAL APPEALS.

Section 866 of title 10, United States Code (article 66 of the Uniform Code of Military Justice), is amended in subsection (d)(1)(B)—

(1) in clause (i)—

(A) by striking ''(i)'';

(B) by striking ''may consider'' and inserting ''may not consider''; and

(C) by striking ''upon request of the accused if the accused makes a specific showing of a deficiency in proof''; and

(2) by striking clauses (ii) and (iii).

SEC. 546. CLARIFICATION OF COURT OF CRIMINAL APPEALS REVIEW OF SENTENCING.

Section 866(e)(1) of title 10, United States Code (article 66(e)(1) of the Uniform Code of Military Justice), is amended—

(1) by amending subparagraph (B) to read as follows:

''(B) whether the portion of the sentence extending to confinement is inappropriately severe, except that in the case of an offense for which the President has established a sentencing parameter for such portion pursuant to section 539E(e) of the National Defense Authorization Act for Fiscal Year 2022, the Court may not consider such portion inappropriately severe if such portion is at or below the upper range of such sentencing parameter;''; and

(2) in subparagraph (C), by striking ''the sentence'' and inserting ''the portion of the sentence extending to confinement''.

SEC. 547. EXPANSION OF VICTIM ACCESS TO COURT OF APPEALS FOR THE ARMED FORCES.

(a) REVIEW BY COURT OF APPEALS FOR THE ARMED FORCES.—Section 867 of title 10, United States Code (article 67 of the Uniform Code of Military Justice), is amended—

(1) by redesignating subsections (c) through (e) as subsections (d) through (f), respectively; and

(2) by inserting after subsection (b) the following new subsection:

''(c)(1) The Court of Appeals for the Armed Forces may review all decisions taken by a Court of Criminal Appeals pursuant to a petition filed by a victim of an offense under this chapter under section 806b(e) of this title (article 6b(e)) and on good cause shown.

''(3) The victim of an offense under this chapter may petition the Court of Appeals for the Armed Forces for review pursuant to paragraph (1) not later than 60 days after the earlier of—

''(A) the date on which the victim is notified of the decision of the Court of Criminal Appeals on a

petition pursuant to section 806b(e) of this title (article 6b(e)); or

''(B) the date on which a copy of the decision of the Court of Criminal Appeals, after being served on counsel for the victim (if the victim has counsel), is deposited into the United States mails for delivery by first-class certified mail to the victim at an address provided by the victim or at the latest address listed for the victim in the record of any proceedings held pursuant to section 830a or 832 of this title (article 30a or 32) or during trial.

''(4) Review of any decision of a Court of Criminal Appeals on a petition for writ of mandamus described in section 806b(e) of this title (article 6b(e)) shall have priority in the Court of Appeals for the Armed Forces, as determined under the rules of the Court of Appeals for the Armed Forces.''.

(b) CONFORMING AMENDMENT.—Section 806b(e)(3) of title 10, United States Code (article 6b(e)(3) of the Uniform Code of Military Justice), is amended by striking subparagraph (C).

SEC. 548. MODIFICATIONS TO OFFENSE OF WRONGFUL BROADCAST OR DISTRIBUTION OF INTIMATE VISUAL IMAGES UNDER THE UNIFORM CODE OF MILITARY JUSTICE.

Section 917a of title 10, United States Code (article 117a of the Uniform Code of Military Justice) is amended to read as follows:

"§ 917a. Art. 117a. Wrongful broadcast, distribution, or publication of intimate visual images

"(a) PROHIBITION.—Any person subject to this chapter who—

"(1) knowingly and wrongfully broadcasts, distributes, or publishes a covered image involving a person who—

"(A) is at least 18 years of age at the time the image was created;

"(B) is identifiable from the image, or from information displayed or provided in connection with the image;

"(C) did not consent to the broadcast, distribution, or publication of the image; and

"(D) did not, in a public or commercial setting, voluntarily—

"(i) display the private area depicted in the image; or

"(ii) engage in the sexually explicit conduct depicted in the image;

"(2) knowingly and wrongfully broadcasts, distributes, or publishes an authentic covered image and knows or reasonably should have known that the image was made under circumstances in which the identifiable individual in the image retained a reasonable expectation of privacy regarding any broadcast, distribution, or publication of the image; or

"(3) knowingly and wrongfully broadcasts, distributes, or publishes a covered image and knows or reasonably should have known that the broadcast, distribution, or publication of the covered image is likely—

"(A) to cause harm, harassment, intimidation, emotional distress, or financial loss for the identifiable individual in the image; or

"(B) to harm substantially the identifiable individual with respect to that person's health, safety, business, calling, career, financial conduction, reputation, or personal relationships,

is guilty of an offense under this section (article) and shall be punished as a court-martial may direct.

"(b) DEFINITIONS.—In this section (article):

''(1) AUTHENTIC.—The term 'authentic', when used with respect to an image, means a visual image of an identifiable individual that accurately represents the individual, and has not been created, altered, manipulated, or generated through the use of machine learning or artificial intelligence in a manner that would cause a reasonable person to perceive the authentic visual image as anything other than a genuine, unmodified, or not digitally forged visual image.

''(2) BROADCAST.—The term 'broadcast' means to electronically transmit a visual image with the intent that it be viewed by a person.

''(3) COVERED IMAGE.—The term 'covered image' means an authentic or digitally forged visual image of—

''(A) the private area of a person; or

''(B) sexually explicit conduct involving a person.

''(4) DIGITALLY FORGED.—The term 'digitally forged', when used with respect to an image, means any visual image of an identifiable individual created through the use of software, machine learning, artificial intelligence, or any other computer-generated or technological means, including by adapting, modi-

fying, manipulating, or altering an authentic visual image, that, when viewed as a whole by a reasonable person, is indistinguishable from an authentic visual image of the individual and does not accurately reflect the original source or reality.

''(5) DISTRIBUTE.—The term 'distribute' means to deliver to the actual or constructive possession of another person, including transmission by mail or electronic means.

''(6) IDENTIFIABLE INDIVIDUAL.—The term 'identifiable individual' means an individual whose face, likeness, other distinguishing characteristic (including a unique birthmark or other recognizable feature), or other personally identifiable information is displayed in connection with a covered image.

''(7) PRIVATE AREA.—The term 'private area' means the naked or underwear-clad genitalia, anus, buttocks, or female areola or nipple.

''(8) PUBLISH.—The term 'publish' means to display, exhibit, present, or otherwise make a covered image available for viewing by another person in any medium without regard to whether such image is—

''(A) directly shown to another person; or

''(B) broadcast or distributed.

''(9) REASONABLE EXPECTATION OF PRIVACY.—The term 'reasonable expectation of privacy' means circumstances in which a reasonable person would believe that a private area of the person, or sexually explicit conduct involving the person, would not be visible to the public.

''(10) SEXUALLY EXPLICIT CONDUCT.—The term 'sexually explicit conduct' means actual or simulated—

''(A) genital-genital contact, oral-genital contact, anal-genital contact, oral-anal contact, or the transfer of bodily sexual fluids on to any part of the body of an identifiable individual, whether between persons of the same or opposite sex;

''(B) bestiality;

''(C) masturbation; or

''(D) sadistic or masochistic abuse.

''(11) VISUAL IMAGE.—The term 'visual image' means—

''(A) any developed or undeveloped photograph, picture, film, or video;

''(B) any digital or computer image, picture, film, or video made by any means, includ-

ing those transmitted by any means, even if not stored in a permanent format;

''(C) any digital or electronic data capable of conversion into a visual image; or

''(D) any visual image that is digitally forged.''.

SEC. 549. AUTHORIZATION OF DEATH PENALTY FOR OFFENSE OF RAPE OF A CHILD UNDER THE UNIFORM CODE OF MILITARY JUSTICE.

Section 920b(a) of title 10, United States Code (article 120b(a) of the Uniform Code of Military Justice), is amended by inserting ''by death, or such other punishment'' after ''shall be punished''.

SEC. 549A. PUNITIVE ARTICLE ON RETALIATION FOR REPORTING OF SEXUAL HARASSMENT UNDER THE UNIFORM CODE OF MILITARY JUSTICE.

(a) IN GENERAL.—Subchapter X of chapter 47 of title 10, United States Code (the Uniform Code of Military Justice), is amended by inserting after section 932 (article 132) the following new section (article):

''§ 932a. Art. 132a. Retaliation for reporting of sexual harassment

''(a) IN GENERAL.—Any person subject to this chapter who, with the intent to retaliate against any person for reporting or planning to report sexual harassment or

with the intent to discourage any person from reporting sexual harassment—

''(1) wrongfully takes or threatens to take an adverse personnel action against any person; or

''(2) wrongfully withholds or threatens to withhold a favorable personnel action with respect to any person;

shall be punished as a court-martial may direct.

''(b) SEXUAL HARASSMENT DEFINED.—In this section, the term 'sexual harassment' has the meaning given that term in section 1561 of this title.''.

(b) CONFORMING AMENDMENT.—The heading of section 932 of title 10, United States Code (article 132 of the Uniform Code of Military Justice) is amended by striking ''**Retaliation**'' and inserting ''**Retaliation generally**''.

SEC. 549B. REVISION OF DEPARTMENT OF DEFENSE INSTRUCTION REGARDING EARLY RELEASE ELIGIBILITY FOR OFFENDERS CONVICTED OF CERTAIN SEXUAL OFFENSES UNDER THE UNIFORM CODE OF MILITARY JUSTICE.

(a) REVISION REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall revise Department of Defense Instruction 1325.07, or any successor instruction, to provide that an

individual serving a sentence of confinement imposed pursuant to a conviction by a general or special court-martial for an offense described in subsection (b) is ineligible for any reduction in the term of confinement based on good-conduct time.

(b) COVERED OFFENSES.—An individual is ineligible for any reduction in the term of confinement based on good-conduct time as described in subsection (a) if the individual is serving a sentence for a conviction under—

(1) section 920 of title 10, United States Code (article 120 of the Uniform Code of Military Justice), relating to rape and sexual assault;

(2) section 920b of title 10, United States Code (article 120b of the Uniform Code of Military Justice), relating to rape and sexual assault of a child;

(3) section 920c of title 10, United States Code (article 120c of the Uniform Code of Military Justice), relating to abusive sexual contact;

(4) section 918 of title 10, United States Code (article 118 of the Uniform Code of Military Justice), relating to murder, if the offense was committed in the course of conduct involving a sexual act or sexual contact as defined in section 920 of that title (article 120);

(5) section 919 of title 10, United States Code (article 119 of the Uniform Code of Military Justice), relating to manslaughter, if the offense was committed in the course of conduct involving a sexual act or sexual contact as defined in section 920 of that title (article 120);

(6) section 925 of title 10, United States Code (article 125 of the Uniform Code of Military Justice), relating to kidnapping, if the victim was a minor;

(7) section 928 of title 10, United States Code (article 128 of the Uniform Code of Military Justice), relating to assault, if the offense involved a sexual act or sexual contact as defined in section 920 of that title (article 120);

(8) section 930 of title 10, United States Code (article 130 of the Uniform Code of Military Justice), relating to stalking, if the offense involved a sexual motive or the victim was a minor;

(9) section 934 of title 10, United States Code (article 134 of the Uniform Code of Military Justice), relating to indecent conduct or indecent acts with another person;

(10) section 934 of title 10, United States Code (article 134 of the Uniform Code of Military Jus-

tice), relating to the possession, distribution, or production of child pornography;

(11) section 880 of title 10, United States Code (article 80 of the Uniform Code of Military Justice), relating to attempts, if the offense attempted is an offense described in paragraphs (1) through (10) of this subsection; or

(12) section 881 of title 10, United States Code (article 81 of the Uniform Code of Military Justice), relating to conspiracy, if the offense that is the object of the conspiracy is an offense described in paragraphs (1) through (10) of this subsection.

(c) APPLICABILITY.—The revision required by subsection (a) shall apply to sentences imposed after the date on which the revision takes effect. Nothing in this section shall be construed to affect a sentence imposed before the effective date of such revision.

(d) PRESERVATION OF VICTIM RIGHTS.—Nothing in this section shall be construed to limit the rights of a victim under section 806b of title 10, United States Code (article 6b of the Uniform Code of Military Justice). The Secretary of the military department concerned shall ensure that a victim retains the right to be reasonably heard at any clemency proceeding conducted outside the stand-

ard annual review cycle with respect to an individual described in subsection (a).

(e) CERTIFICATION.—Not later than 30 days after completing the revision required by subsection (a), the Secretary of Defense shall certify to the Committees on Armed Services of the Senate and the House of Representatives that Department of Defense Instruction 1325.07 has been revised in accordance with this section.

SEC. 549C. NOTIFICATION REQUIRED TO IMPLEMENT CHANGES TO MILITARY LEGAL SYSTEM RECOMMENDED BY SPECIAL REVIEW PANEL ACTIVITIES.

(a) PROHIBITION.—The Secretary of Defense may not implement a recommendation of the Special Review Panel until a period of 180 days has elapsed following the date on which the Secretary submits to the congressional defense committees all documentation required under subsection (b).

(b) DOCUMENTATION REQUIRED.—

(1) IN GENERAL.—The Secretary of Defense shall submit to the congressional defense committees all recommendations and analysis delivered by the Special Review Panel to the Secretary of Defense.

(2) TIMING OF SUBMISSIONS.—

(A) Any documentation described in paragraph (1) that was delivered to the Secretary of Defense before the date of the enactment of this Act, shall be submitted to the congressional defense committees not later than 30 days after such date of enactment.

(B) Any documentation described in paragraph (1) that is delivered to the Secretary of Defense on or after the date of the enactment of this Act, shall be submitted to the congressional defense committees not later than five days after the date of delivery to the Secretary.

(c) SPECIAL REVIEW PANEL DEFINED.—In this section, the term ''Special Review Panel'' means the Special Review Panel established pursuant to the memorandum of the Secretary of Defense dated May 8, 2026, titled ''Departmental Review of the Military Legal System and Its Impact on Service Members''.

SEC. 549D. ANALYSIS OF POTENTIAL ESTABLISHMENT OF SEPARATE PUNITIVE ARTICLE ON HAZING UNDER THE UNIFORM CODE OF MILITARY JUSTICE.

(a) ANALYSIS REQUIRED.—The Secretary of Defense, in coordination with the Joint Service Committee on Military Justice, shall analyze the feasibility and advis-

ability of, and develop recommendations with respect to, modifying chapter 47 of title 10, United States Code (the Uniform Code of Military Justice), to establish a separate punitive article on hazing. As part of such analysis, the Secretary shall develop a proposed definition of the term ''hazing'' for purposes of such article.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the results of the analysis under subsection (a).

Subtitle F—Investigations and Other Legal Matters

SEC. 551. EXTENSION OF SPECIAL VICTIMS' COUNSEL SERVICES TO DOMESTIC VIOLENCE VICTIMS.

(a) AMENDMENTS.—Section 1044e of title 10, United States Code, is amended—

(1) in the section heading, by inserting ''**domestic violence and**'' before ''**sex-related offenses**'';

(2) by inserting ''domestic violence or'' before ''sex-related offense'' each place it appears;

(3) in subsection (b)(3), by striking ''domestic abuse advocate'' and inserting ''domestic abuse victim advocate'';

(4) in subsection (f)(1), by inserting ''domestic abuse victim advocate,'' after ''healthcare provider,''; and

(5) in subsection (h)—

(A) in the subsection heading, by inserting ''DOMESTIC VIOLENCE OR'' before ''SEX-RELATED OFFENSE''; and

(B) in paragraph (1), by striking ''or 930 of this title (article 120, 120b, 120c,'' and inserting ''928b, or 930 of this title (article 120, 120b, 120c, 128b,''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect two years after the date of the enactment of this Act.

(c) BRIEFING.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall provide to the Committees on Armed Services of the Senate and the House of Representatives a briefing on the implementation of policies and procedures to carry out the changes required pursuant to subsection (a).

SEC. 552. POLICIES REGARDING THE REPORTING OF MISSING MEMBERS OF THE ARMED FORCES.

(a) POLICIES REQUIRED.—Chapter 80 of title 10, United States Code, is amended by adding at the end the following new section.

"§ 1568. Policies regarding the reporting of missing members of the Armed Forces

''The Secretary of Defense shall prescribe policies for the Department of Defense that establish minimum standards with respect to reporting the discovery that a member of the armed forces is missing. Such policies shall include—

''(1) standards for the categorization of absences of members of the armed forces;

''(2) a requirement that the appropriate military criminal investigative organization be notified not later than three hours after a member of the armed forces is discovered to be missing; and

''(3) a requirement that the primary next of kin of the member (as defined in section 1513 of this title) be notified not later than eight hours after a member of the armed forces is discovered to be missing.''.

(b) IMPLEMENTATION.—The Secretary of Defense shall prescribe policies required by section 1568 of title 10, United States Code, as added by subsection (a) of this section, not later than 180 days after the date of the enactment of this Act.

SEC. 553. AUTHORITY OF NAVAL CRIMINAL INVESTIGATIVE SERVICE TO INVESTIGATE SEXUAL HARASSMENT.

Chapter 871 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 8750a. Naval Criminal Investigative Service: authority to investigate sexual harassment.

''(a) IN GENERAL.—The Naval Criminal Investigative Service shall be the entity within the Department of the Navy with the sole and exclusive authority to conduct investigations of alleged sexual harassment by members of the Navy or Marine Corps.

''(b) SEXUAL HARASSMENT DEFINED.—In this section, the term 'sexual harassment' means conduct that constitutes the offense of sexual harassment as punishable under section 934 of this title (article 134 of the Uniform Code of Military Justice) pursuant to the regulations prescribed by the Secretary of Defense for purposes of such section (article).''.

SEC. 554. CROSS-SERVICE DATA SHARING REGARDING SUBSTANTIATED ALLEGATIONS OF SEXUAL MISCONDUCT.

The Secretary of Defense, in coordination with the Secretaries of the military departments, shall establish a data sharing arrangement pursuant to which each Armed Force shall be required to collect and make available to

the other Armed Forces data concerning substantiated allegations of sexual misconduct by members of that Armed Force.

SEC. 555. INCLUSION OF SEXUAL HARASSMENT IN CATCH A SERIAL OFFENDER PROGRAM.

(a) PARTICIPATION AND NOTICE.—Not later than 60 days after the date of the enactment of this Act, the Secretary of Defense shall—

(1) modify the policies, procedures, and forms necessary to permit individuals who are members of the Armed Forces, adult dependents of such members, or employees of the Department of Defense to participate in the Catch a Serial Offender Program of the Department of Defense if the individual submits a confidential complaint or report of sexual harassment or an unrestricted report or informal complaint of sexual harassment without disclosing the name of the subject to a military criminal investigative organization; and

(2) such individuals are notified of whether such individuals may participate in the Catch A Serial Offender Program when submitting a confidential complaint or report of sexual harassment or an unrestricted report or informal complaint of sexual harassment.

(b) APPLICABILITY TO EXISTING REPORTS.—The Secretary of Defense shall ensure that individuals who submitted a confidential complaint or report of sexual harassment or an unrestricted report or informal complaint of sexual harassment before the effective date of the modifications to policies, procedures, and forms in accordance with subsection (a)(1)—

(1) are eligibility to participate in the Catch a Serial Offender Program in the same manner and under the same conditions as an individual who submits such a complaint or report after such effective date; and

(2) are notified of such eligibility.

SEC. 556. MILITARY DOMESTIC VIOLENCE EMERGENT HOUSING POLICY.

(a) IN GENERAL.—The Secretary of Defense shall establish and implement a policy under which unit level commanders in the covered Armed Forces, in response to domestic violence reports or complaints, shall be required to—

(1) move alleged offenders into military housing separate from the victim; and

(2) maintain emergent housing entitlements to basic allowance for housing or military housing units

in support of domestic violence victims for up to one year.

(b) AMENDMENT OF DD FORM 2873.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall amend the Military Protective Order form, DD Form 2873, to incorporate the changes implemented pursuant to this section.

(c) COVERED ARMED FORCES DEFINED.—In this section, the term ''covered Armed Forces'' means the Army, Navy, Air Force, Marine Corps, and Space Force.

SEC. 557. REQUIREMENT FOR STANDARDIZED POLICIES AND PROCESSES TO ENSURE THE TIMELY REVIEW, DOCUMENTATION, AND RESOLUTION OF REQUESTS FOR MILITARY PROTECTIVE ORDERS.

(a) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Secretary of the department in which the Coast Guard is operating when not operating as a service in the Navy with respect the Coast Guard, shall establish standardized policies and processes to ensure the timely review, documentation, and resolution of requests for military protective orders submitted to commanding officers of the Armed Forces.

(b) PURPOSES.—The purposes of this section are—

(1) to ensure prompt, consistent, and transparent decision making regarding requests for military protective orders;

(2) to enhance the safety of individuals affected by such orders; and

(3) to improve accountability in command actions related to such orders.

(c) REQUIREMENTS.—In establishing the policies and processes under subsection (a), the Secretary of Defense shall—

(1) require that any commanding officer of the Armed Forces who receives a request for a military protective order from an individual who is eligible to request such order—

(A) make a determination as to whether to issue such order not later than three calendar days after receipt of the request, unless the officer certifies to the Secretary that extraordinary circumstances prevent the officer from meeting that deadline;

(B) before making such determination, seek counsel and legal review from a Staff Judge Advocate or other qualified judge advocate to inform the decision-making process; and

(C) in the event the commander denies the request for a military protective order, provide written notification of such denial to the individual who requested the order not later than two calendar days after making the denial decision;

(2) update Department of Defense Form 2873 (or any successor form) to reflect enhanced documentation requirements for approved and denied military protective order requests; and

(3) require that such form be completed, maintained, and retained in accordance with applicable records management and privacy policies of the Department of Defense.

(d) IMPLEMENTATION PLAN.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees, and the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate with respect to the Coast Guard, a report that includes—

(1) a summary of the standardized policies and processes established under subsection (a);

(2) a plan for the implementation of such policies and processes; and

(3) a description of—

(A) any revisions to Department of Defense Form 2873 and other changes to documentation procedures made as result of such policies and process; and

(B) measures that will be implemented to ensure compliance with decision-making timelines and legal guidance requirements specified in subsection (c).

(e) OVERSIGHT AND REPORTING.—Not later than two years after the date of the enactment of this Act, and annually thereafter for seven years, the Secretary of Defense shall submit to the congressional defense committees, and the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate with respect to the Coast Guard, a report that includes, with respect to the year preceding the date of the report—

(1) the number of military protective order requests received by commanding officers of the Armed Forces;

(2) the number of military protective order requests that were approved and denied;

(3) the average processing times for such approvals and denials; and

(4) a description of any barriers to the timely review, documentation, and resolution of requests for military protective orders.

SEC. 558. REESTABLISHMENT OF DEFENSE ADVISORY COMMITTEE FOR THE PREVENTION OF SEXUAL MISCONDUCT.

(a) ESTABLISHMENT REQUIRED.—

(1) IN GENERAL.—The Secretary of Defense shall establish and maintain within the Department of Defense an advisory committee to be known as the ''Defense Advisory Committee for the Prevention of Sexual Misconduct'' (in this section referred to as the ''Advisory Committee'').

(2) DEADLINE FOR ESTABLISHMENT.—The Secretary of Defense shall establish the Advisory Committee not later than 90 days after the date of the enactment of this Act.

(b) MEMBERSHIP.—

(1) IN GENERAL.—The Advisory Committee shall consist of not more than 20 members, appointed by the Secretary of Defense from among in-

dividuals who have an expertise appropriate for the work of the Advisory Committee, including at least one individual with each expertise as follows:

(A) Expertise in the prevention of sexual assault and behaviors on the sexual assault continuum of harm.

(B) Expertise in adverse behaviors, including the prevention of suicide and the prevention of substance abuse.

(C) Expertise in the change of culture of large organizations.

(D) Expertise in implementation science.

(2) BACKGROUND OF INDIVIDUALS.—Individuals appointed to the Advisory Committee may include individuals with expertise in sexual assault prevention efforts of institutions of higher education, public health officials, and such other individuals as the Secretary of Defense considers appropriate.

(3) PROHIBITION ON MEMBERSHIP OF MEMBERS OF ARMED FORCES ON ACTIVE DUTY.—A member of the Armed Forces serving on active duty may not serve as a member of the Advisory Committee.

(c) DUTIES.—

(1) IN GENERAL.—The Advisory Committee shall advise the Secretary of Defense on the following:

(A) The prevention of sexual assault (including rape, forcible sodomy, other sexual assault, and other sexual misconduct (including behaviors on the sexual assault continuum of harm)) involving members of the Armed Forces.

(B) The policies, programs, and practices of each military department, each Armed Force, and each military service academy for the prevention of sexual assault as described in subparagraph (A).

(2) BASIS FOR PROVISION OF ADVICE.—For purposes of providing advice to the Secretary of Defense pursuant to this subsection, the Advisory Committee shall review, on an ongoing basis, the following:

(A) Closed cases involving allegations of sexual assault described in paragraph (1).

(B) Efforts of institutions of higher education to prevent sexual assault among students.

(C) Any other information or matters that the Advisory Committee or the Secretary considers appropriate.

(3) COORDINATION OF EFFORTS.—In addition to the reviews required by paragraph (2), for purposes of providing advice to the Secretary of Defense the Advisory Committee shall also consult and coordinate with the Defense Advisory Committee on Investigation, Prosecution, and Defense of Sexual Assault in the Armed Forces on matters of joint interest to the two Advisory Committees.

(d) ANNUAL REPORT.—Not later than March 30 each year, the Advisory Committee shall submit to the Secretary of Defense and the Committees on Armed Services of the Senate and the House of Representatives a report on the activities of the Advisory Committee pursuant to this section during the preceding year.

(e) SEXUAL ASSAULT CONTINUUM OF HARM DEFINED.—In this section, the term ''sexual assault continuum of harm'' includes—

(1) inappropriate actions (such as sexist jokes), sexual harassment, gender discrimination, hazing, cyber bullying, or other behavior that contributes to a culture that is tolerant of, or increases risk for, sexual assault; and

(2) maltreatment or ostracism of a victim for a report of sexual misconduct.

(f) TERMINATION.—

(1) IN GENERAL.—Except as provided in paragraph (2), the Advisory Committee shall terminate on the date that is five years after the date of the establishment of the Advisory Committee pursuant to subsection (a).

(2) CONTINUATION.—The Secretary of Defense may continue the Advisory Committee after the termination date applicable under paragraph (1) if the Secretary determines that continuation of the Advisory Committee after that date is advisable and appropriate. If the Secretary determines to continue the Advisory Committee after that date, the Secretary shall notify the Committees on the Armed Services of the Senate and House of Representatives.

(g) CONFORMING REPEAL.—Section 550B of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92; 10 U.S.C. 1561 note) is repealed.

SEC. 559. PILOT PROGRAM ON USE OF ADVANCED MONITORING AND REHABILITATIVE TECHNOLOGIES IN ARMY CORRECTIONAL FACILITIES.

(a) IN GENERAL.—Beginning not later than one year after the date of the enactment of this Act, the Secretary of the Army, acting through the Commanding General of the Army Corrections Command, shall carry out a pilot program (referred to in this section as the ''Pilot Program'') to evaluate the use of advanced monitoring and rehabilitative technologies in Army correctional facilities to improve safety, accountability, rehabilitation outcomes, and operational efficiency.

(b) LOCATIONS.—The Secretary of the Army shall select one or more correctional facilities of the Army in which to implement the Pilot Program.

(c) ADDITIONAL REQUIREMENTS.—In carrying out the Pilot Program, the Secretary of the Army shall—

(1) ensure that personnel participating in the Program receive appropriate training;

(2) establish safeguards to protect privacy and civil liberties; and

(3) develop performance metrics to measure the effectiveness of the technologies evaluated under the Program in reducing misconduct, improving compli-

ance, enhancing rehabilitation outcomes, and supporting reintegration efforts.

(d) REPORTS.—

(1) INITIAL REPORT.—Not later than one year after the date on which of the Pilot Program commences, the Secretary of the Army shall submit to the congressional defense committees a initial report on the progress of the Program.

(2) FINAL REPORT.—Not later than 30 days after the date on which the Pilot Program terminates under subsection (e), the Secretary of the Army shall submit to the congressional defense committees a final report on the Program.

(3) ELEMENTS.—Each of the reports under paragraphs (1) and (2) shall include—

(A) an evaluation of the costs of the Program as of the date of the report, including the costs of the technologies evaluated under the Program;

(B) any measurable outcomes achieved by the program as of such date;

(C) recommendations as to whether any technologies evaluated under the Program are suitable for implementation across the Army Corrections Command; and

(D) such other information as the Secretary of the Army determines appropriate.

(e) TERMINATION.—The authority to carry out the Pilot Program shall terminate five years after the date of the enactment of this Act.

(f) DEFINITION.—In this section, the term ''advanced monitoring and rehabilitative technologies'' means emerging technologies appropriate for correctional environments such as secure digital platforms, biometric identification systems, data analytics, or other such technologies.

SEC. 559A. ESTABLISHMENT OF DEPARTMENT OF DEFENSE AUTOMATED VICTIM NOTIFICATION SYSTEM.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall establish an automated notification system to ensure that a registered victim receives timely and accurate notification of each of the following:

(1) Any proceeding of a service clemency and parole board relating to the offense, not later than 30 days before the date of such proceeding.

(2) Any change in the confinement status of the offender, including release, transfer to a residential reentry center or halfway house, furlough, or escape.

(3) Any grant of clemency or parole with respect to the offender.

(4) The projected release date of the offender, not later than 60 days before such date, including notice of whether the offender has received good time credits for early release.

(b) SYSTEM REQUIREMENTS.—In establishing the automated notification system required by subsection (a), the Secretary of Defense shall ensure the system incorporates the notification capabilities available in existing Federal and State automated victim notification platforms, including capabilities equivalent to those provided by the Department of Justice Victim Notification System and State-based Victim Information and Notification Everyday programs. At a minimum, the system shall—

(1) provide each registered victim with a unique victim identification number and a personal identification number to enable secure access to case and custody information through an internet-accessible portal and a toll-free automated telephone call center, both available 24 hours a day, 7 days a week, 365 days a year;

(2) allow a registered victim to elect to receive notifications through any combination of—

(A) automated telephone call, with persistent retry at regular intervals until receipt is confirmed by entry of the victim's personal

identification number, or until a 48-hour threshold is reached, after which a written notification shall be mailed to the victim's address of record;

(B) electronic mail;

(C) short message service text message;

(D) a secure, dedicated mobile application available on commonly used mobile operating systems; or

(E) TTY or other accessible format for victims with hearing impairments;

(3) make notifications available in English and Spanish, and provide access to live interpretation services in not fewer than 10 additional languages through the toll-free call center;

(4) provide each registered victim with the ability to use the internet portal or toll-free call center to—

(A) search for and verify the current custody status and facility location of the offender;

(B) view the projected release date and any scheduled service clemency and parole board proceedings relating to the offense;

(C) update the victim's contact information; and

(D) discontinue participation in the notification program;

(5) continuously poll the military confinement records system for changes in offender custody status and transmit notifications to registered victims not later than 24 hours after a triggering event described in subsection (a);

(6) generate a confirmation record for each notification transmitted, which shall be retained in the confinement record of the offender;

(7) be accessible to victims regardless of the military department of the offender or the military correctional facility in which the offender is confined;

(8) protect the privacy and confidentiality of each registered victim by—

(A) encrypting all victim data at rest and in transit using encryption modules validated under Federal Information Processing Standard 140–3, or any successor standard, as certified by the National Institute of Standards and Technology;

(B) limiting access to victim registration data and notification records to authorized personnel with a demonstrated need to know, and

maintaining an audit log of all access to such data;

(C) prohibiting the use of victim registration data for any purpose other than providing notifications authorized under this section, and prohibiting disclosure of such data to any person or entity not authorized under this section or applicable Federal law; and

(D) providing each registered victim with a written privacy notice, at the time of registration and upon any material change to the system's data practices, describing the categories of information collected, the purposes for which such information is used, the individuals authorized to access such information, and the procedures by which a victim may request correction or deletion of their registration data; and

(9) be designed, implemented, and operated in a manner consistent with the guidelines for protecting personally identifiable information set forth in National Institute of Standards and Technology Special Publication 800–122, or any successor publication.

(c) VERIFICATION BEFORE BOARD PROCEEDINGS.—(1) The Secretary of the military department concerned shall verify, before convening any proceeding of the applicable service clemency and parole board, that each registered victim, with respect to the offense at issue has been notified of the proceeding in accordance with subsection (a)(1). A record of such verification shall be included in the official record of the proceeding.

(2) If the Board determines that timely notice was not given or that the victim was not adequately informed of the nature of the proceeding, the Board shall continue the hearing for the time necessary to notify the victim of the time, place, and nature of the proceeding.

(3) Before making such determination, the Board shall make every effort to permit the fullest attendance possible by the victim and shall consider reasonable alternatives to the exclusion of the victim from the proceeding.

(d) COORDINATION.—In carrying out this section, the Secretary of Defense shall ensure that the system established under subsection (a) is consistent with—

(1) the rights of victims under section 806b of title 10, United States Code (article 6b of the Uniform Code of Military Justice); and

(2) the victim and witness assistance programs established under Department of Defense Instruction 1030.02, or any successor instruction.

(e) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the implementation of this section, including—

(1) a description of the automated notification system established under subsection (a), including the delivery channels and languages made available;

(2) the number of registered victims enrolled to receive notifications as of the date of the report;

(3) the number of notifications transmitted during the one-year period covered by the report, disaggregated by triggering event type and delivery channel; and

(4) any recommended legislative changes to further strengthen victim notification under section 806b of title 10, United States Code (article 6b of the Uniform Code of Military Justice).

(f) DEFINITIONS.—In this section:

(1) The term ''registered victim'' means a victim of an offense under chapter 47 of title 10,

United States Code (the Uniform Code of Military Justice), who—

(A) has a right to receive notices under section 806b(a)(2) of such chapter (article 6b(a)(2)); and

(B) informed the Department of Defense of their desire to receive such notices—

(i) by submitting Department of Defense form 2705 (or a successor form); or

(ii) through another method determined appropriate by the Secretary of Defense.

(2) The term ''service clemency and parole board'' means a clemency and parole board established by the Secretary of a military department pursuant to sections 952 and 954 of title 10, United States Code.

Subtitle G—Career Transition

SEC. 561. ESTABLISHMENT OF SEPARATION OATH FOR MEMBERS OF THE ARMED FORCES.

(a) FINDINGS.—Congress makes the following findings:

(1) The United States Armed Forces is the largest, all-volunteer military force in the world, yet

less than one percent of the American population serves in the Armed Forces.

(2) Each branch of the Armed Forces (Army, Navy, Air Force, Marine Corps, Space Force, and Coast Guard) instills in its members a sense of duty and obligation to the United States, their branch of service, and their comrades-in-arms.

(3) The Department of Veterans Affairs estimates that approximately 20 veterans of the Armed Forces commit suicide each day, and a veteran's risk of suicide is 21 percent higher than an adult who has not served in the Armed Forces.

(4) The Department of Veterans Affairs is aggressively undertaking measures to prevent these tragic outcomes, yet suicide rates among veterans remain unacceptably high.

(5) Upon enlistment or appointment in the Armed Forces, a new member is obligated to take an oath of office or oath of enlistment.

(6) Most members of the Armed Forces view this oath not as an imposition, but as a promise that they are bound to fulfill.

(b) ESTABLISHMENT OF SEPARATION OATH.—Section 502 of title 10, United States Code, is amended—

(1) in subsection (b), by striking ''The oath'' and inserting ''An oath established by this section'';

(2) by redesignating subsection (b), as amended, as subsection (c); and

(3) by inserting after subsection (a) the following new subsection (b):

''(b) SEPARATION OATH.—Prior to retirement or other separation from the armed forces, other than separation pursuant to the sentence of a court-martial, a member of an armed force may take the following oath:

'' 'I, _____, recognizing that my oath to support and defend the Constitution of the United States against all enemies, foreign and domestic, has involved me and my fellow members in experiences that few persons, other than our peers, can understand, do solemnly swear (or affirm) to continue to be the keeper of my brothers- and sisters-in-arms and protector of the United States and the Constitution; to preserve the values I have learned; to maintain my body and my mind; to give help to, and seek help from, my fellow veterans; and to not bring harm to myself or others. I take this oath freely and without purpose of evasion, so help me God.' ''.

(c) CLERICAL AMENDMENTS.—

(1) SECTION HEADING.—The heading of section 502 of title 10, United States Code, is amended to read as follows:

"§ 502. Enlistment oath and separation oath: who may administer".

(2) TABLE OF SECTIONS.—The table of sections at the beginning of chapter 31 of title 10, United States Code, is amended by striking the item relating to section 502 and inserting the following new item:

''502. Enlistment oath and separation oath: who may administer.''.

SEC. 562. DESIGNATION OF SENIOR OFFICIAL FOR MILITARY-TO-CIVILIAN TRANSITION.

(a) IN GENERAL.—Chapter 58 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 1156. Senior official for military-to-civilian transition

''(a) DESIGNATION.—The Under Secretary of Defense for Personnel and Readiness shall designate a senior official of the Department of Defense to oversee policy and programs related to the transition of members of the armed forces from active duty to civilian life or reserve components.

''(b) QUALIFICATIONS.—The official designated under paragraph (1) shall be designated from among indi-

viduals with extensive experience with veterans services and knowledge of the transition from active duty to civilian life and reserve components.

''(c) ROLE, RESPONSIBILITY, AND AUTHORITY.—(1) Subject to paragraph (2), the Under Secretary of Defense for Personnel and Readiness shall prescribe the roles, responsibilities, and authorities of the official designated under subsection (a).

''(2) The roles, responsibilities, and authorities prescribed under paragraph (1) shall include, with respect to the transition of members of the armed forces from active duty to civilian life and reserve components and the families of such members experiencing such transition—

''(A) serving as the principal advisor to the Secretary of Defense, the Deputy Secretary of Defense, and the Under Secretary of Defense for Personnel and Readiness on policies, operations, and programs and activities relating to the transition of members;

''(B) assisting the Secretary of Defense, the Deputy Secretary of Defense, and the Under Secretary of Defense for Personnel and Readiness with policies, operations, and programs and activities relating to the transition of members;

''(C) working, in consultation with the Secretary of Veterans Affairs, the Secretary of Labor,

and the Secretary of Education, to improve the efficiency and effectiveness of all activities relating to the transition of members;

''(D) serving as the chief transition officer of the Department of Defense, with the mission of coordinating and overseeing the effectiveness of transition programs of the Department of Defense and ensuring all members of the armed forces are well equipped for civilian life or the reserve components, as the case may be;

''(E) overseeing the implementation of transition programs in the Department of Defense;

''(F) conducting a review and assessment of all transition programs and services offered by the Department of Defense, including the programs under this chapter, and proposing legislative or administrative action—

''(i) to improve the efficacy and efficiency of the programs; and

''(ii) to ensure compliance with all legal requirements related to transition assistance; and

''(G) working with Federal agencies, State and local governments, and nongovernmental organizations to improve the delivery of transition support services to members and families of members.''.

(b) IMPLEMENTATION AND BRIEFING.—

(1) IMPLEMENTATION.—The Under Secretary of Defense for Personnel and Readiness shall designate a senior official under section 1156(a) of title 10, United States Code, as added by subsection (a) of this section, not later than 90 days after the date of the enactment of this Act.

(2) BRIEFING.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall provide a briefing to the congressional defense committees on—

(A) the status of the designation of the official under subsection (a); and

(B) the implementation of the roles, responsibilities, and authorities of the official under subsection (b).

SEC. 563. AUTHORIZATION OF PILOT PROGRAM TO HELP MEMBERS SEPARATING FROM CERTAIN ARMED FORCES OBTAIN EMPLOYMENT AS TEACHERS.

(a) AUTHORITY.—The Secretary of Defense may carry out a pilot program to refer covered members for employment as teachers in elementary and secondary schools that elect to participate in the pilot program.

(b) PRIORITY.—Under such a pilot program, the Secretary shall give priority to participating schools that need teachers of subjects in greater demand, including special education and STEM.

(c) REPORT.—Under such a pilot program, the Secretary shall submit to the appropriate congressional committees an annual report regarding such a pilot program. Elements of such a report include the following:

(1) The number of covered members who apply for the pilot program, disaggregated by covered Armed Force and rank.

(2) The number of covered members who obtain such employment under the pilot program, disaggregated by covered Armed Force and rank.

(3) The locations of participating schools.

(4) The percentages of participating covered members who teach in subjects described in subsection (b).

(5) The number and percentages of participating covered members who—

(A) obtain required teaching credentials by expedited means; or

(B) receive exemptions from such requirements.

(6) The results of a satisfaction survey of participating schools.

(7) A summary of interviews with participating covered members who obtain such employment, including such covered members who do not complete an academic year of such employment.

(d) TERMINATION.—This section shall cease to have any effect on the day that is five years after the date of the enactment of this Act.

(e) DEFINITIONS.—In this section:

(1) The term ''covered member'' means a member—

(A) separating from a covered Armed Force; and

(B) who wishes to obtain employment as a teacher in an elementary or secondary school.

(2) The term ''appropriate congressional committee'' means—

(A) the Committee on Armed Services of the House of Representatives;

(B) the Committee on Armed Services of the Senate;

(C) the Committee on Education and Workforce of the House of Representatives; or

(D) the Committee on Health, Education, Labor, and Pensions of the Senate.

(3) The term ''covered Armed Force'' means the Army, Navy, Marine Corps, Air Force, or Space Force.

(4) The term ''STEM'' means science, technology, engineering, and mathematics.

SEC. 564. STUDY ON SEPARATION OF MEMBERS OF THE ARMED FORCES DUE TO THE MANDATE TO RECEIVE THE COVID-19 VACCINE AND THE TRANSFER OF EDUCATION BENEFITS BY SUCH MEMBERS.

(a) STUDY.—The Secretary of Defense shall conduct a study on covered individuals and the transfer of education benefits by covered individuals to covered dependents.

(b) REPORT.—

(1) REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report containing the results of the study required by subsection (a). Such report shall include—

(A) the number of covered individuals;

(B) the number of covered individuals who initiated a transfer of education benefits to a dependent in accordance with section 3319 of title 38, United States Code, before separation;

(C) the number of covered individuals who initiated such a transfer and did not complete the years of service in the Armed Forces necessary for such dependent to commence use of such education benefits in accordance with such section before separation;

(D) the number of members of the Armed Forces who were denied a religious exemption from the mandate to receive the COVID-19 vaccine during the period beginning on August 24, 2021, and ending on January 10, 2023;

(E) the number of covered individuals who were denied such a religious exemption;

(F) the number of covered individuals who returned to service in accordance with the terms of Executive Order 14184 (relating to reinstating service members discharged under the military's COVID–19 vaccination mandate);

(G) the number of covered individuals who returned to service in accordance with the terms of Executive Order 14184 (relating to re-

instating service members discharged under the military's COVID–19 vaccination mandate) who initiated a transfer of education benefits to a dependent in accordance with section 3319 of title 38, United States Code, before separation and return to service;

(H) the number of covered individuals who returned to service in accordance with the terms of Executive Order 14184 (relating to reinstating service members discharged under the military's COVID–19 vaccination mandate) who initiated a transfer of education benefits to a dependent in accordance with section 3319 of title 38, United States Code, before separation and return to service and completed the years of service in the Armed Forces necessary for such dependent to commence use of such education benefits;

(I) the number of covered dependents;

(J) an analysis of the budgetary impact of allowing each covered dependent to commence use of education benefits that were transferred to such covered dependent in accordance with section 3319 of title 38, United States Code, without regard to whether the covered indi-

vidual who transferred such education benefits to such covered dependent completed the years of service in the Armed Forces necessary for such covered dependent to commence such use; and

(K) any recommendations of the Secretary to address the separation of covered individuals and to ensure covered individuals receive appropriate benefits as veterans of the Armed Forces.

(2) DISAGGREGATION.—The Secretary of Defense shall disaggregate the elements of the report required by paragraph (1) that are described in subparagraphs (A) through (J) of such paragraph by—

(A) Armed Force in which the covered individual served;

(B) whether the covered individual served in an active component or a reserve component;

(C) the grade of the covered individual;

(D) the years of service in the Armed Forces of the covered individual at the time of separation; and

(E) the characterization of the discharge of the covered individual.

(c) PUBLIC AVAILABILITY.—Not later than 60 days after the Secretary of Defense submits the report required by subsection (b), the Secretary shall make such report publicly available on the website of the Department of Defense.

(d) DEFINITIONS.—In this section:

(1) The term ''covered dependent'' means a dependent of an individual who—

(A) is a covered individual;

(B) initiated a transfer of education benefits to such dependent in accordance with section 3319 of title 38, United States Code; and

(C) did not complete the years of service in the Armed Forces necessary for such dependent to commence use of such benefits in accordance with such section.

(2) The term ''covered individual'' means an individual who, during the period beginning on August 24, 2021, and ending on January 10, 2023, was involuntarily or voluntarily separated from an Armed Force solely on the basis of the refusal of such individual to receive a vaccination against COVID–19.

SEC. 565. PILOT PROGRAM TO PROVIDE BENEFITS AND SERVICES TO ARMY EXPLOSIVE ORDNANCE DISPOSAL MEMBERS WHO ARE SEPARATING.

(a) PILOT PROGRAM.—Not later than one year after the date of the enactment of this Act, the Secretary of the Army and the Secretary of Homeland Security shall jointly establish a pilot program to provide members of the Army who are separating under honorable conditions who are qualified for explosive ordnance disposal to attend the Criminal Investigator Training Program of the Federal Law Enforcement Training Centers.

(b) REQUIREMENTS.—In carrying out the pilot program required by subsection (a), the Secretary of the Army shall—

(1) require participants in the pilot program to be separated from the Armed Forces or on terminal leave, as determined by the Secretary;

(2) shall reimburse the Director of the Federal Law Enforcement Training Centers not more than $50,000 per participant in the pilot program for not more than 24 participants per fiscal year; and

(3) shall not reimburse any other agency for any additional training provided to participants.

(c) REPORTS.—

(1) ANNUAL REPORT.—Not later than one year after the establishment of the pilot program required

by subsection (a), and annually thereafter until the termination of the pilot program, the Secretary of the Army, in consultation with the Secretary of Homeland Security, shall submit to the Committee on Armed Services and the Committee on Homeland Security of the House of Representatives and the Committee on Armed Services and the Committee on Homeland Security and Government Affairs of the Senate a report on the pilot program, including—

(A) the number of participants in the pilot program who successfully complete the Criminal Investigator Training Program;

(B) the recommendation of the Secretary as to whether the number of participants authorized to participate in the pilot program should be increased or decreased; and

(C) an assessment of the viability of expanding the pilot program to members of other Armed Forces with expertise in explosive ordnance disposal.

(2) FINAL REPORT.—Not later than 90 days after the termination of the pilot program required by subsection (a), the Secretary of the Army, in consultation with the Secretary of Homeland Security,

shall submit to the committees described in paragraph (1) a report that includes—

(A) the elements described in subparagraphs (A) through (C) of paragraph (1); and

(B) the recommendation of the Secretary as to whether to make the pilot program permanent.

(d) TERMINATION.—The pilot program required by subsection (a) shall terminate on the date that is five years after the date on which such pilot program is established.

SEC. 566. ADDITIONAL FUNDING FOR SKILLBRIDGE.

(a) FUNDING.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 4301 for administration and service-wide activities for the Office of the Secretary of Defense, line 480, as specified in the corresponding funding table in section 4301, is hereby increased by $5,000,000 for the Skillbridge program.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 4301 for administration and service-wide activities for Washington Headquarters Services, line 510, as specified in the corresponding funding table in section 4301, is hereby reduced by $5,000,000.

SEC. 567. GAO STUDY AND REPORT ON MENTAL HEALTH EFFECTIVENESS OF TRANSITION ASSISTANCE PROGRAM AND SOLID START PROGRAM.

(a) STUDY REQUIRED.—The Comptroller General of the United States shall conduct a study on the effectiveness of TAP and the Solid Start program in identifying, counseling, and supporting members of the Armed Forces and veterans regarding mental health risks and transition-related stressors during their separation from the Armed Forces.

(b) ELEMENTS.—The study required under subsection (a) shall include an assessment of the following:

(1) The extent to which counseling provided under TAP includes comprehensive information regarding post-traumatic stress disorder, traumatic brain injury, anxiety disorders, depression, chronic pain, sleep disorders, suicidal ideation, and other mental health conditions associated with service in the Armed Forces.

(2) The effectiveness of TAP curriculum in educating separating members on the risk factors of suicide, including signs of severe relationship strain, isolation, unemployment, or loss of community support systems.

(3) The baseline performance metrics and outreach success rates of the Solid Start program during the first year following separation from the Armed Forces, with a specific focus on the program's success in facilitating veterans' enrollment in the system of annual patient enrollment under section 1705 of title 38, United States Code.

(4) The degree of interagency data-sharing and coordination between the Secretary of Defense and the Secretary of Veterans Affairs to track warm handoffs for high-risk members of the Armed Forces separating from active duty.

(5) Gaps in current pre-separation counseling and post-separation outreach related to substance use disorder resources, including alcohol and prescription opioid abuse counseling.

(c) REPORT.—Not later than 18 months after the date of the enactment of this Act, the Comptroller General shall submit to the appropriate congressional committees a report containing the findings and recommendations of the Comptroller General based on the study conducted under subsection (a), including administrative or legislative recommendations to reduce veteran suicide during the first year following separation from the Armed Forces.

(d) DEFINITIONS.—In this section:

(1) The term ''appropriate congressional committee'' means—

(A) the Committee on Armed Services of the House of Representatives;

(B) the Committee on Armed Services of the Senate;

(C) the Committee on Veterans' Affairs of the House of Representatives; or

(D) the Committee on Veterans' Affairs of the Senate.

(2) The term ''Solid Start program'' means the program under section 6320 of title 38, United States Code.

(3) The term ''TAP'' means the Transition Assistance Program under sections 1142 and 1144 of title 10, United States Code.

Subtitle H—Family Programs, Child Care, and Dependent Education

SEC. 571. EXTENSION OF NON-MEDICAL COUNSELING SERVICES PROGRAM FOR MILITARY FAMILIES.

Section 1781(d)(4) of title 10, United States Code, is amended by striking ''three years after the date of the enactment of this subsection'' and inserting ''December 22, 2029''.

SEC. 572. PILOT PROGRAM TO INCREASE PAYMENTS FOR CHILD CARE SERVICES IN HIGH-COST AREAS.

Section 1798 of title 10, United States Code, is amended—

(1) by redesignating subsections (c) and (d) as subsection (d) and (e), respectively; and

(2) by inserting after subsection (b) the following new subsection:

''(c) PILOT PROGRAM FOR GRANTS TO INCREASE INFANT AND TODDLER CAPACITY IN HIGH-COST AREAS.—(1) The Secretary of Defense may establish a pilot program to provide grants to eligible providers seeking to expand the capacity of such providers to provide care for infants and toddlers.

''(2) A grant awarded under the pilot program established under paragraph (1) shall—

''(A) be in an amount determined by the Secretary, but in no case more than 75 percent of the estimated cost of the expansion for which the grant is provided; and

''(B) require the recipient of a grant to—

''(i) make available not less than half of any additional capacity for infants and toddlers to children of members of the armed forces that results from the expansion for which a grant is awarded for the 10-year period that begins on

the date on which such expansion is completed; and

''(ii) certify that the recipient will not displace children enrolled on the date described in clause (i) who are not children of members of the armed forces to meet the requirement of clause (i).

''(3) The Secretary—

''(A) shall award grants under the pilot program established under paragraph (1) to not less than 10 eligible providers located in areas with high child care services costs or a significant lack of accessible child care services, as determined by the Secretary; and

''(B) may award grants under the pilot program established under paragraph (1) to eligible providers located in other areas as the Secretary considers appropriate.

''(4) Not later than one year after the establishment of the pilot program under this subsection, and semiannually thereafter until the date of the termination of the pilot program, the Secretary shall submit to the appropriate congressional committees a report on the pilot program that includes—

''(A) the number of eligible providers participating in the pilot program, disaggregated by location;

''(B) the number of additional infant and toddler enrollments at eligible providers made available under the pilot program, disaggregated by location;

''(C) the determination of the Secretary as to whether grants provided under the pilot program—

''(i) helped reduce child care costs for applicable military families;

''(ii) increased child care provider participation in the financial assistance available under this section; and

''(iii) increased access to infant and toddler care for military families;

''(D) the determination of the Secretary with respect to the feasibility of expanding the pilot program to all communities;

''(E) any challenges identified by the Secretary in carrying out the pilot program;

''(F) legislation or administrative action that the Secretary determines necessary to make the pilot program permanent; and

''(G) any other information the Secretary determines appropriate.

''(5) Not later than 90 days after the date of the termination of the pilot program, the Secretary shall submit to the appropriate congressional committees a report that includes—

''(A) the elements specified in subparagraphs (A) through (G) of paragraph (4); and

''(B) the recommendation of the Secretary as to whether to make the pilot program permanent.

''(6) The pilot program established under this subsection shall terminate on the date that is five years after the date on which such program is established.

''(7) In this subsection, the term 'appropriate congressional committees' means—

''(A) the congressional defense committees;

''(B) the Committee on Commerce, Science, and Transportation of the Senate; and

''(C) the Committee on Transportation and Infrastructure of the House of Representatives.''.

SEC. 573. PILOT PROGRAM TO PROVIDE FINANCIAL ASSISTANCE TO MEMBERS OF THE ARMED FORCES FOR IN-HOME CHILD CARE: INCLUSION OF AU PAIRS.

Section 589 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 1791 note) is amended—

(1) in subsection (a)(4), by striking ''subsection (b)'' and inserting ''subsection (c)'';

(2) by redesignating subsections (b) through (e) as subsections (c) through (f), respectively; and

(3) by inserting after subsection (a) the following new subsection (b):

''(b) AU PAIRS.—(1) The Secretary shall treat an au pair who is participating in the Au Pair program of the Department of State as an in-home child care provider who meets qualifications determined under subsection (a)(3)(B).

''(2) No State or local government may enact or enforce a law, regulation, rule, or requirement related to such Au Pair program that would impose an additional or different term or condition on a military family that is the host family for an au pair.''.

SEC. 574. MODIFICATIONS TO PILOT PROGRAM TO PROVIDE FINANCIAL ASSISTANCE TO MEMBERS OF THE ARMED FORCES FOR IN-HOME CHILD CARE.

(a) IN GENERAL.—Section 589 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116-283; 10 U.S.C. 1791 note) is amended—

(1) by redesignating subsections (c), (d), and (e) as subsections (d), (e), and (f), respectively; and

(2) by inserting after subsection (b) the following new subsection:

''(c) DIRECT PAYMENTS.—

''(1) IN GENERAL.—Except as provided in paragraph (2), the Secretary of Defense shall provide financial assistance under the pilot program required by subsection (a) to members of the Armed Forces through monthly pay, direct deposit, or other form of direct payment to such members.

''(2) PAYMENT TO ELIGIBLE PROVIDERS.—The Secretary of Defense may provide financial assistance under the pilot program required by subsection (a) directly to an in-home child care provider with the written consent of the member of the Armed Forces receiving such financial assistance.''.

(b) IMPLEMENTATION DATE.—The requirements of subsection (c) of section 589 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021, as added by subsection (a) of this section—

(1) except as provided in paragraph (2), shall apply to financial assistance under the pilot program established pursuant to such section provided on or

after the date that is 180 days after the date of the enactment of this Act; and

(2) shall not apply to financial assistance under such pilot program provided to an in-home child care provider pursuant to an agreement between the Secretary of Defense until the end of the term of such agreement if—

(A) the agreement is in effect on the date of the enactment of this Act; and

(B) the agreement provides that the Secretary will make direct payments to such provider.

SEC. 575. CERTAIN ASSISTANCE TO LOCAL EDUCATIONAL AGENCIES THAT BENEFIT DEPENDENTS OF MILITARY AND CIVILIAN PERSONNEL.

(a) CONTINUATION OF AUTHORITY TO ASSIST LOCAL EDUCATIONAL AGENCIES THAT BENEFIT DEPENDENTS OF MEMBERS OF THE ARMED FORCES AND DEPARTMENT OF DEFENSE CIVILIAN EMPLOYEES.—

(1) ASSISTANCE TO SCHOOLS WITH SIGNIFICANT NUMBERS OF MILITARY DEPENDENT STUDENTS.—Of the amount authorized to be appropriated for fiscal year 2027 by section 301 and available for operation and maintenance for Defense-wide activities as specified in the funding table in

section 4301, $50,000,000 shall be available only for the purpose of providing assistance to local educational agencies under subsection (a) of section 572 of the National Defense Authorization Act for Fiscal Year 2006 (Public Law 109–163; 20 U.S.C. 7703b).

(2) LOCAL EDUCATIONAL AGENCY DEFINED.—In this subsection, the term ''local educational agency'' has the meaning given that term in section 7013(9) of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7713(9)).

(b) IMPACT AID FOR CHILDREN WITH SEVERE DISABILITIES.—

(1) IN GENERAL.—Of the amount authorized to be appropriated for fiscal year 2027 pursuant to section 301 and available for operation and maintenance for Defense-wide activities as specified in the funding table in section 4301, $10,000,000 shall be available for payments under section 363 of the Floyd D. Spence National Defense Authorization Act for Fiscal Year 2001 (as enacted into law by Public Law 106–398; 114 Stat. 1654A–77; 20 U.S.C. 7703a).

(2) ADDITIONAL AMOUNT.—Of the amount authorized to be appropriated for fiscal year 2027 pursuant to section 301 and available for operation and

maintenance for Defense-wide activities as specified in the funding table in section 4301, $10,000,000 shall be available for use by the Secretary of Defense to make payments to local educational agencies determined by the Secretary to have higher concentrations of military children with severe disabilities.

(3) BRIEFING.—Not later than March 31, 2027, the Secretary of Defense shall provide to the Committees on Armed Services of the Senate and the House of Representatives a briefing on the Department of Defense's evaluation of each local educational agency with higher concentrations of military children with severe disabilities and subsequent determination of the amounts of impact aid each such agency shall receive.

SEC. 576. POLICIES TO SUPPORT MILITARY FAMILIES SUBJECT TO COURT-ORDERED CHILD CUSTODY ARRANGEMENTS.

(a) POLICIES REQUIRED.—Beginning not later than one year after the date of the enactment of this Act, each Secretary concerned shall maintain a policy pursuant to which a member of an Armed Force under the jurisdiction of the Secretary who is a party to a court-ordered child custody arrangement may, at the discretion of the Secretary, receive—

(1) an exemption from orders for a permanent change of station or similar orders for a period of up to 24 months to enable that member to remain in geographic proximity to their child; and

(2) such other accommodations as the Secretary determines appropriate to promote family stability.

(b) REPORT TO CONGRESS.—Not later than one year after the date of the enactment of this Act, each Secretary concerned shall submit to the congressional defense committees a report on the policy required under subsection (a). The report shall include—

(1) a summary of the policy;

(2) the Secretary's plan for implementation of the policy; and

(3) an explanation of how policy meets the requirements of subsection (a) and otherwise promotes family stability among members of the Armed Forces.

(c) SECRETARY CONCERNED DEFINED.—In this section, the term ''Secretary concerned'' has the meaning given that term in section 101(a) of title 10, United States Code.

SEC. 577. AUTHORITY FOR PILOT PROGRAM FOR CERTAIN MILITARY SPOUSES TO BECOME SPECIAL EDUCATION TEACHERS IN DODEA SCHOOLS.

(a) AUTHORITY.—The Secretary of Defense may carry out a pilot program under which certain military spouses may become special education teachers in schools operated by the Department of Defense Education Activity.

(b) ELIGIBILITY.—A military spouse eligible to participate in such a pilot program is a military spouse who—

(1) is eligible for assistance under section 1784a of title 10, United States Code; and

(2) has a bachelor's or graduate degree from an institution of higher education.

(c) ASSISTANCE.—Under such a pilot program, the Secretary shall provide assistance under section 1784a of title 10, United States Code, to a participating military spouse to seek a certification or other credential as a special education teacher in the State in which the military spouse resides.

(d) SERVICE OBLIGATION.—As a condition of receiving assistance under subsection (c), a military spouse who participates in such a pilot program shall agree to serve as a special education teacher in a school operated by the Department of Defense Education Activity for a period of three years.

(e) STATE AGREEMENTS.—The Secretary may seek to enter into an agreement with a State government (or licensing body sanctioned by a State government) to expedite certification described in subsection (c).

(f) REPORT.—Not later than one year before the termination under subsection (g) of the authority to carry out a pilot program under this section, the Secretary shall submit to the appropriate congressional committees a report regarding such pilot program. Such report shall include the recommendation of the Secretary whether such authority should be extended or made permanent.

(g) TERMINATION.—The authority under this section shall terminate five years after the date of the enactment of this Act.

(h) DEFINITIONS.—In this section:

(1) The term ''appropriate congressional committee'' means the following:

(A) The Committee on Armed Services of the House of Representatives.

(B) The Committee on Armed Services of the Senate.

(C) The Committee on Education and Workforce of the House of Representatives.

(2) The term ''institution of higher education'' has the meaning given such term in section 102 of

the Higher Education Act of 1965 (20 U.S.C. 1002).

(3) The term ''special education teacher'' has the meaning given such term in section 103 of the Higher Education Act of 1965 (20 U.S.C. 1003).

SEC. 578. PILOT PROGRAM FOR PUSH-TEXT NOTIFICATIONS TO MEMBERS AND DEPENDENTS.

(a) ESTABLISHMENT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall establish a pilot program to be known as the ''Push-Text Initiative'' (in this section referred to as the ''pilot program'') to provide members of the Armed Forces, assigned to one or more military installations located outside of the United States, and the adult dependents of such members, with timely and relevant information via text message.

(b) IMPLEMENTATION.—Under the pilot program—

(1) a member of the Armed Forces assigned to a location participating in the pilot program, or the dependent of such a member, may elect to receive such information using all available text messaging contact information provided by such a member or dependent; and

(2) a member or dependent who elects to receive information under paragraph (1) may opt out

of receiving text messages under the pilot program at any time.

(c) COVERED INFORMATION.—Text messages transmitted under the pilot program shall include—

(1) information on employment opportunities for military spouses, career counseling, and related support programs;

(2) updates with respect to child care services available both on and off the installation, availability of child care, and child care fee assistance programs;

(3) information regarding general TRICARE program benefits, enrollment deadlines, and other health-related resources;

(4) notifications of changes in Department of Defense policies, regulations, or Federal laws that affect members or dependents of members; and

(5) any other information or resources that the Secretary considers relevant to the well-being of members and dependents of members.

(d) REPORT.—Not later than October 1, 2027, the Secretary of Defense shall submit to the congressional defense committees a report on the pilot program. Such report shall include—

(1) a description of how the pilot program was implemented, including the timeline, execution plan, and the official managing the pilot program;

(2) data on participation and usage, including the number of individuals who elected to participate, the rates of enrollment and disenrollment, and the frequency and types of messages transmitted;

(3) any observed benefits or outcomes of the pilot program, including feedback from participants;

(4) an analysis of the costs of operating the pilot program and any cost savings or efficiencies achieved by consolidating or scaling back other outreach efforts with respect to issues addressed by the pilot program; and

(5) the recommendations of the Secretary with respect to the feasibility and advisability of continuing or expanding the pilot program to the entire Department of Defense, including any proposed modifications to the program and an assessment of the anticipated costs, resource requirements, and potential benefits of Department-wide implementation.

(e) TERMINATION.—The pilot program shall terminate on the day that is three years after the date on which the pilot program is established.

SEC. 579. CLASSROOM SAFE HAVEN FORCE PROTECTION PILOT PROGRAM.

(a) PROGRAM.—The Secretary of Defense, acting through the Director of the Department of Defense Education Activity, shall establish a Classroom Safe Haven Force Protection Pilot Program (in this section referred to as the ''Program'') to enhance the physical security of classrooms in covered schools.

(b) OBJECTIVES.—The objectives of the Program shall be to—

(1) provide enhanced security for the approximately 600 classrooms located in covered schools;

(2) harden classroom entry points against armed attacks;

(3) increase survivability by providing protected safe-haven spaces within classrooms;

(4) improve emergency response effectiveness by extending the time available for law enforcement intervention;

(5) evaluate the operational effectiveness of ballistic-resistant door systems in educational environments; and

(6) assess the contribution of classroom hardening measures to the overall force protection posture and resilience of military communities and installations.

(c) USE OF FUNDS.—Under the Program, the Secretary of Defense shall provide support to covered schools to create protected safe havens within existing classrooms through the installation and evaluation of lightweight, fire-rated, ballistic-resistant door systems and related protective infrastructure designed to provide immediate protection for students and educators during an armed assault or active shooter incident. Such door systems shall—

(1) provide ballistic protection meeting or exceeding UL 752 Level 8 standards, including protection against 7.62x51mm FMJ rounds;

(2) be capable of defeating multiple impacts from high-velocity assault rifle rounds commonly associated with active shooter incidents;

(3) be certified to applicable fire-resistance standards for educational occupancies;

(4) be capable of retrofit installation within existing educational facilities without requiring substantial structural modification or major construction;

(5) preserve the appearance and functionality of standard educational environments during normal operations;

(6) maintain compliance with all applicable life-safety, accessibility, and emergency egress requirements; and

(7) provide continuous passive protection without reliance on external power, electronics, or mechanical deployment during an emergency.

(d) REPORT.—Not later than 180 days after an initial round of security improvements have been completed in covered schools in accordance with this section, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report detailing—

(1) participating schools and the number of classrooms protected;

(2) implementation costs;

(3) safety and operational outcomes;

(4) lessons learned;

(5) recommendations regarding expansion of the Program across additional covered schools and schools operated by the Department of Defense education activity outside the United States; and

(6) an assessment of the effectiveness of classroom hardening measures in enhancing protection for military-connected students, educators, and

school personnel and supporting military family readiness and force protection objectives.

(e) COVERED SCHOOL DEFINED.—In this section, the term ''covered school'' means a school operated by the Department of Defense Education Activity in the United States.

SEC. 579A. COMPTROLLER GENERAL STUDY OF CHILD CARE SERVICES PROVIDED OR PAID FOR BY THE DEPARTMENT OF DEFENSE.

(a) STUDY.—The Comptroller General of the United States shall conduct a study to assess the child care programs of the Department of Defense, including military child development centers, family home day care, the Military Child Care in Your Neighborhood program, and the Child Care in Your Home program.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Comptroller General shall submit to the congressional defense committees a report containing the results of the study required by subsection (a). Such report shall include the following information, disaggregated by covered Armed Force:

(1) The period of time military families in each priority category are on a waiting list from the time of submitting a request until the time of final approval.

(2) The percentage of military families that submitted a request for child care services and did not receive an offer within 90 days of the date requested.

(3) The average percentage of annual income a military family spends on child care per child.

(4) The percentage of military families that require more than one child care program to meet child care needs.

(5) The current amount of funds allocated to each covered Armed Force for the Military Child Care in Your Neighborhood and Child Care in Your Home programs.

(6) How much of the amount described in paragraph (5) is spent on—

(A) administration; and

(B) child care services for military families.

(c) DEFINITIONS.—In this section:

(1) The term ''covered Armed Force'' means the Army, Navy, Air Force, Marine Corps, or Space Force.

(2) The terms ''military child development center'' and ''family home day care'' have the meaning given those terms in section 1800 of title 10, United States Code.

SEC. 579B. PROHIBITION ON MALE PARTICIPATION IN FEMALE SPORTS AT DODEA SCHOOLS.

(a) IN GENERAL.—The Secretary of Defense shall ensure that no school operated by the Department of Defense Education Activity permits a person enrolled at such school whose sex is male to participate in an athletic program or activity that is designated for females.

(b) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to prohibit any school operated by the Department of Defense Education Activity from permitting males to train or practice with an athletic program or activity that is designated for females so long as no female is deprived of a roster spot on a team or sport, opportunity to participate in a practice or competition, or any other benefit that accompanies participating in the athletic program or activity.

(c) DEFINITIONS.—In this section:

(1) The term ''athletic programs and activities'' includes all programs or activities that are provided conditional upon participation with any athletic team.

(2) The term ''female'' refers to an individual who naturally has, had, will have, or would have, but for a developmental or genetic anomaly or historical accident, the reproductive system that at some point produces, transports, and uses eggs for fertilization.

(3) The term ''male'' refers to an individual who naturally has, had, will have, or would have, but for a developmental or genetic anomaly or historical accident, the reproductive system that at some point produces, transports, and uses sperm for fertilization.

SEC. 579C. STUDY ON WEEKEND DRILL CHILD CARE PROGRAMS.

(a) STUDY REQUIRED.—The Secretary of each military department that carries out a child care program for members of reserve components during inactive duty training on weekends shall conduct a study on the effectiveness of such program and any challenges in executing such program.

(b) REPORT.—Not later than one year after the date of the enactment of this Act, each Secretary of a military department described in subsection (a) shall submit to the congressional defense committees a report containing the results of the study required under subsection (a).

SEC. 579D. REPORT ON STRENGTHENING THE MILITARY CHILD CARE WORKFORCE.

(a) IN GENERAL.—Not later than 120 days after the date of enactment of this section, the Secretary of Defense shall submit to the congressional defense committees a report assessing workforce, readiness, and policy challenges

associated with military child care and military child development centers.

(b) CONTENTS.—The report under subsection (a) shall include the following:

(1) An analysis of the current workforce of military child development centers, including—

(A) the percentage of employees who are military spouses; and

(B) the percentage of employees who are spouses of retired or separated members of the Armed Forces.

(2) A feasibility assessment of increasing the transferability of licenses or certifications for military spouses employed at military child development centers when accompanying a service member on a permanent change of station.

(3) An assessment of vacancy rates across military child development centers and the reasons for such vacancies.

(4) An assessment of the number of additional children who could be served by military child development centers if such centers were fully staffed.

(5) A feasibility assessment of permitting military spouses residing in on-post housing to provide childcare within their homes under a supervisory

program coordinated by a military child development center.

(6) Recommendations for incentives to attract and retain military spouses in the military child care workforce, including—

(A) professional development opportunities;

(B) stipend or subsidy programs; and

(C) flexible scheduling options.

SEC. 579E. SUPPORT FOR EXPANDING EARLY CHILD CARE OPTIONS FOR MEMBERS OF THE ARMED FORCES AND THEIR FAMILIES.

(a) IN GENERAL.—The Secretary of Defense may—

(1) direct the Secretaries of the military departments—

(A) to identify gaps between existing early child care needs and available eligible child care providers;

(B) to use resources of the Department of Defense to support eligible child care providers in recruitment and retention of employees, including through professional development and financial incentives for such employees; and

(C) to seek to enter into an interagency partnership with a Federal agency with the ability to place national service participants and

volunteers trained in education services, including senior volunteer programs, at military child development centers in accordance with applicable national service laws and with all the benefits accorded to such participants and volunteers; and

(2) provide training and resource subsidies to eligible child care providers and networks of such providers.

(b) DEFINITIONS.—In this section:

(1) ELIGIBLE CHILD CARE PROVIDER.—The term ''eligible child care provider'' has the meaning given that term in section 658P of the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858n).

(2) MILITARY CHILD DEVELOPMENT CENTER.—The term ''military child development center'' has the meaning given that term in section 1800 of title 10, United States Code.

SEC. 579F. LIMITATION ON PROVISION OF FUNDS TO ELEMENTARY AND SECONDARY SCHOOLS HOSTING CONFUCIUS INSTITUTES AND CLASSROOMS.

(a) LIMITATION.—None of the funds authorized to be appropriated by this Act or otherwise made available

for fiscal year 2027 for the Department of Defense may be provided to an elementary school or secondary school that hosts a Confucius Institute or Classroom, other than amounts provided directly to students as educational assistance.

(b) DEFINITIONS.—In this section:

(1) The term ''Confucius Institute or Classroom'' means a cultural institute or educational partnership directly or indirectly funded by the Government of the People's Republic of China.

(2) The terms ''elementary school'' and ''secondary school'' have the meanings given those terms in section 8101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

SEC. 579G. DEPARTMENT OF DEFENSE EDUCATION ACTIVITY EMERGENCY RESPONSE MAPPING.

(a) IN GENERAL.—Chapter 108 of title 10, United States Code, is amended by inserting after section 2164d the following new section:

''SEC. 2164e. PROCUREMENT OF EMERGENCY RESPONSE MAPS FOR SCHOOLS OPERATED BY THE DEPARTMENT OF DEFENSE EDUCATION ACTIVITY.

''(a) IN GENERAL.—The Secretary of Defense, acting through the Director of the Department of Defense Edu-

cation Activity, shall prioritize the procurement of emergency response maps for Defense Dependent Schools to ensure, to the greatest extent practicable, compatibility with public safety systems in the event of an emergency.

"(b) REQUIREMENTS.—Maps procured under subsection (a) shall—

"(1) be—

"(A) in a digital file format accessible through a standard or open-source file reader or image viewer on a laptop computer, tablet computer, smartphone, or other mobile platform;

"(B) verified through on-site walkthrough inspections by the entity producing the mapping data;

"(C) developed in coordination with industry partners possessing demonstrated expertise in emergency response mapping for schools;

"(D) capable of being updated, printed, and shared electronically;

"(E) accessible without a subscription fee or other restriction; and

"(F) verified for accuracy by a walkthrough inspection;

''(2) integrate with software used by Federal, State, and local public safety agencies;

''(3) not be stored in a data center outside of the United States;

''(4) display information oriented true north and on a coordinate grid; and

''(5) depict any floor of such site or such portion through overlaid, aerial imagery.

''(c) DEFENSE DEPENDENT SCHOOL DEFINED.—In this section, the term 'Defense Dependent School' means—

''(1) a school operated under the Defense Dependents' Education System, as authorized under the Defense Dependents Education Act of 1978 (20 U.S.C. 921 et seq.); or

''(2) a Department of Defense domestic dependent elementary and secondary school, as authorized under section 2164 of this title.''.

(b) BRIEFING.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall provide to the congressional defense committees a briefing on the plan of the Department of Defense Education Activity for procuring emergency response maps under section 2164e of title 10, United States Code, as added by this section.

Subtitle I—Decorations and Awards

SEC. 581. GOLD STAR SURVIVOR: DEFINITION PRESCRIBED BY SECRETARY OF DEFENSE.

(a) DEFINITION PRESCRIBED BY SECRETARY OF DEFENSE.—Section 1126 of title 10, United States Code, is amended, in subsection (d)(1), by striking ''as the Secretaries concerned shall jointly specify in regulations for purposes of this section'' and inserting ''as the Secretary of Defense prescribes in regulations''.

(b) REFERENCE.—Subsection (b) of such section is amended—

(1) by inserting ''(1)'' before ''Under regulations''; and

(2) by adding at the end the following new paragraph:

''(2)(A) An individual eligible for a gold star lapel button under paragraph (1) may be referred to as a 'gold star survivor', 'member of a gold star family', or 'gold star family member'.

''(B) All of the individuals eligible for a gold star lapel button under paragraph (1) because of the loss of the life of one member under any circumstances prescribed in subsection (a) may be referred to as a 'gold star family'.''.

(c) CONFORMING AMENDMENT.—Section 626 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117-81; 10 U.S.C. 101 note) is amended by striking subsection (c).

SEC. 582. MEDAL OF HONOR RECIPIENTS: ACCESS TO ANY MILITARY INSTALLATION; LIAISON.

(a) ACCESS.—Section 1134a of title 10, United States Code, is amended by adding at the end the following new subsection:

''(e) ACCESS.—A person whose name is entered on the Army, Navy, Air Force, and Coast Guard Medal of Honor Roll shall be issued a common access card (or successor identification) that grants such person unaccompanied access to any military installation and the Pentagon.''.

(b) LIAISON.—Chapter 57 of title 10, United States Code, is amended by inserting after section 1134a the following new section:

''§ 1134b. Medal of honor liaison

''(a) ESTABLISHMENT.—There is in the Department of Defense a Medal of Honor Liaison, appointed by the Secretary of Defense, who shall serve as liaison to MOH recipients.

''(b) DUTIES.—The duties of the Medal of Honor Liaison include the following:

''(1) To serve as a primary point of contact in the Department for MOH recipients and their families.

''(2) To coordinate efforts within the Department, across the armed forces, and with the Secretary of Veterans Affairs and other Federal entities regarding MOH recipients.

''(3) To coordinate replacement of military decorations under section 1135 of this title for MOH recipients.

''(4) To standardize protocol regarding MOH recipients across the armed forces.

''(5) To perform public affairs outreach regarding MOH recipients.

''(6) To make recommendations to the Secretary of Defense regarding service on active duty by MOH recipients, including in combat.

''(c) MOH RECIPIENT DEFINED.—In this section, the term 'MOH recipient' means a person whose name is entered on the Army, Navy, Air Force, and Coast Guard Medal of Honor Roll under section 1134a of this title.''.

SEC. 583. TECHNICAL CORRECTION TO AUTHORIZATION TO AWARD THE DISTINGUISHED-SERVICE CROSS TO ISAAC "IKE" CAMACHO.

Section 592 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60) is amended, in the section heading, by striking the third word.

SEC. 584. AUTHORIZATION OF SERVICE RIBBON FOR A MEMBER OF THE NATIONAL GUARD WHO PERFORMS HOMELAND DEFENSE DUTY.

(a) RIBBON AUTHORIZED.—The Secretary of the military department concerned may award a service ribbon to a member of the National Guard who performs duty in support of a homeland defense activity, as such term is defined in section 901 of title 32, United States Code.

(b) DESIGN.—The ribbon shall be of an appropriate design approved by the Secretary of Defense.

(c) ISSUANCE TO NEXT-OF-KIN.—If the member is deceased, the Secretary of the military department concerned may issue such a ribbon to the next-of-kin of the member.

(d) REGULATIONS.—The award of a ribbon under this section shall be subject to such regulations as the Secretaries of the military departments concerned shall prescribe for purposes of this section. The Secretary of Defense shall ensure that any regulations prescribed under this subsection are uniform to the extent practicable.

SEC. 585. AUTHORIZATION FOR POSTHUMOUS AWARD OF MEDAL OF HONOR TO RAFAEL PERALTA FOR ACTS OF VALOR.

(a) AUTHORIZATION.—Notwithstanding the time limitations specified in sections 8298(a) and 8300 of title 10, United States Code, or any other time limitation with respect to the awarding of certain medals to persons who served in the Armed Forces, the President is authorized to award the Medal of Honor, under section 8291 of such title, to Rafael Peralta for the acts of valor described in subsection (b).

(b) ACTS OF VALOR DESCRIBED.— The acts of valor described in this subsection are the actions of Rafael Peralta as a member of the Marine Corps on November 15, 2004, for which he was previously awarded the Navy Cross.

SEC. 586. AUTHORIZATION FOR POSTHUMOUS AWARD OF MEDAL OF HONOR TO ROBERT A. LODGE FOR ACTS OF VALOR.

(a) AUTHORIZATION.—Notwithstanding the time limitations specified in section 9274 of title 10, United States Code, or any other time limitation with respect to the awarding of certain medals to persons who served in the Armed Forces, the President may award the Medal of Honor under section 9271 of such title to Robert A. Lodge for the acts of valor described in subsection (b).

(b) ACTS OF VALOR DESCRIBED.—The acts of valor described in this subsection are the actions of Robert A. Lodge as a Major in the Air Force on May 10, 1972.

SEC. 587. AUTHORIZATION FOR AWARD OF THE DISTINGUISHED-SERVICE CROSS FOR JAMES O. RATLIFF FOR ACTS OF VALOR DURING THE VIETNAM WAR.

(a) WAIVER OF TIME LIMITATIONS.—Notwithstanding the time limitations specified in section 7274 of title 10, United States Code, or any other time limitation with respect to the awarding of certain medals to persons who served in the Armed Forces, the President may award a Distinguished-Service Cross under section 7272 of such title to James O. Ratliff for the acts of valor described in subsection (b).

(b) ACTS OF VALOR DESCRIBED.—The acts of valor described in this subsection are the actions of James O. Ratliff on June 18, 1968, as a member of the Army during a combat mission near the village of Ap Go Cong during the Vietnam War.

SEC. 588. AUTHORIZATION TO AWARD THE DISTINGUISHED-SERVICE CROSS TO JOSEPH P. LYNCH FOR ACTS OF VALOR AS A MEMBER OF THE ARMY DURING THE VIETNAM WAR.

(a) WAIVER OF TIME LIMITATIONS.—Notwithstanding the time limitations specified in section 7274 of title 10, United States Code, or any other time limitation with respect to the awarding of certain medals to persons who served in the Armed Forces, the Secretary of the Army may award the Distinguished-Service Cross under section 7272 of such title to Joseph P. Lynch for the acts of valor in described in subsection (b).

(b) ACTS OF VALOR DESCRIBED.—The acts of valor described in this subsection are the actions of Joseph P. Lynch on April 17, 1968, as a member of the Army, during a combat mission near Khe Sanh, Republic of Vietnam, for which he was previously awarded the Silver Star.

SEC. 589. SENSE OF CONGRESS REGARDING AWARD OF MEDAL OF HONOR TO THOMAS J. GRASSO FOR ACTS OF VALOR DURING OPERATION FREEDOM'S SENTINEL.

It is the sense of Congress that—

(1) the Secretary of Defense should review the acts of valor of Thomas J. Grasso as a Sergeant First Class in the Army during Operation Freedom's Sentinel to determine whether to recommend to the

President to award Thomas J. Grasso the Medal of Honor for such acts of valor; and

(2) subject to the enactment of legislation to waive the time limitations in section 7274 of title 10, United States Code, the President should award the Medal of Honor to Thomas J. Grasso for such acts of valor if the Secretary so recommends.

SEC. 589A. SENSE OF CONGRESS REGARDING AWARD OF MEDAL OF HONOR TO RETIRED COLONEL PHILIP J. CONRAN FOR ACTS OF VALOR IN LAOS DURING THE VIETNAM WAR.

It is the sense of Congress that—

(1) the Secretary of Defense should review the acts of valor of Philip J. Conran on October 6, 1969, as a member of the Air Force, during a combat mission in the Savannakhet Province of Laos to determine whether to recommend to the President to award Philip J. Conran the Medal of Honor for such acts of valor; and

(2) subject to the enactment of legislation to waive the time limitations specified in section 9274 of title 10, United States Code, the President should award the Medal of Honor to Philip J. Conran for such acts of valor if the Secretary so recommends.

SEC. 589B. SENSE OF CONGRESS REGARDING AWARD OF AWARD OF MEDAL OF HONOR TO GREGORY MCMANUS FOR ACTS OF VALOR.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the Secretary of Defense should review the acts of valor of Gregory McManus described in subsection (b) to determine whether to recommend to the President to award Gregory McManus the Medal of Honor for such acts of valor; and

(2) subject to the enactment of legislation to waive the time limitations in section 7274 of title 10, United States Code, the President should award the Medal of Honor to Gregory McManus for such acts of valor if the Secretary so recommends.

(b) ACTS OF VALOR DESCRIBED.—The acts of valor described in this subsection are the following:

(1) Chief Warrant Officer Gregory McManus distinguished himself for his brave acts of valor while serving in the United States Army by risking his life to save the lives of his fellow servicemembers.

(2) Chief Warrant Officer McManus deserves recognition for his acts of valor while serving as the commander of a single helicopter gunship on an important mission north of Chai Duc.

(3) Discovering an envoy of hundreds of enemy troops along the Cambodian border, Chief Warrant Officer McManus attacked the enemy without hesitation.

(4) Chief Warrant Officer McManus disregarded the tracers that rose to meet him, firing rockets the entire length of the convoy, confusing the enemy, and scattering the troop column.

(5) Chief Warrant Officer McManus then attacked an armored vehicle with a mounted machine gun, destroying it and a large artillery piece which it was towing.

(6) Over and over, Chief Warrant Officer McManus flew through heavy automatic weapons and machine gun fire to attack the enemy, only deciding to return when his ordinance was expended, and his ship had taken so much damage that further flight was inadvisable.

(7) With this noble deed, Chief Warrant Officer McManus was able to destroy the enemy unit and scattered the rest in disorder with a single ship.

(8) Disregarding the size and scope of the enemy troop's convoy, Chief Warrant Officer McManus put his own life in danger, all in the serv-

ice of his country and members of the Armed Forces.

(9) Because of the heroic actions of Chief Warrant Officer McManus, countless American soldier's lives were saved.

(10) These actions of heroism by Chief Warrant Officer McManus deserves recognition and demonstrates this hero of the United States more than deserve the medal of honor.

SEC. 589C. STUDY ON TIMELY PROCESS OF AWARD AND DECORATION RECOMMENDATIONS.

(a) STUDY REQUIRED.—The Secretary of Defense shall conduct a study on the process for reviewing recommendations for the award of medals, decorations, or other honors to members of the Armed Forces.

(b) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to Congress a report containing the results of the study, including any recommendations of the Secretary to ensure the process for reviewing recommendations for the award of medals, decorations, or other honors to members of the Armed Forces is timely, consistent, and transparent.

SEC. 589D. SENSE OF CONGRESS REGARDING AWARD OF MEDAL OF HONOR TO ROBERT J. GRAHAM FOR ACTS OF VALOR.

It is the sense of Congress that—

(1) the Secretary of Defense should review the acts of valor of Robert J. Graham as a Captain in the Air Force on May 1, 1966, to determine whether to recommend to the President to award Robert J. Graham the Medal of Honor for such acts of valor; and

(2) subject to the enactment of legislation to waive the time limitations in section 9274 of title 10, United States Code, the President should award the Medal of Honor to Robert J. Graham for such acts of valor if the Secretary so recommends.

SEC. 589E. AUTHORIZATION FOR AWARD OF MEDAL OF HONOR TO CERTAIN BATTLE OF MIDWAY TORPEDO SQUADRON COMMANDERS AND DIVE BOMBER FLIGHT LEADS FOR ACTS OF VALOR.

(a) AUTHORIZATION.—Notwithstanding the time limitations specified in sections 8298(a) and 8300 of title 10, United States Code, or any other time limitation with respect to the awarding of certain medals to persons who served in the Armed Forces, the President is authorized to award the Medal of Honor, under section 8291 of such

title, to Commander Clarence W. McClusky, Lieutenant Commander Max F. Leslie, Lieutenant Commander Eugene E. Lindsey, Lieutenant Commander Lance E. Massey, Lieutenant Commander John C. Waldron, and Lieutenant Richard H. Best for the acts of valor described in subsection (b).

(b) ACTS OF VALOR DESCRIBED.—The acts of valor described in this subsection are the actions of the individuals described in subsection (a) on June 4, 1942, as members of the Navy, during combat operations near Midway Atoll that led to the sinking of four enemy aircraft carriers.

Subtitle J—Other Matters and Miscellaneous Reports

SEC. 591. EXPANSION OF ELIGIBILITY OF VETERANS FOR CERTAIN MILITARY ADAPTIVE SPORTS PROGRAM.

Section 2564a of title 10, United States Code, is amended, in subsection (a)(1)(B), in the matter preceding clause (i), by striking ", during the one-year period following the veteran's date of separation,".

SEC. 592. EXPANDED GOALS OF AUTHORIZED PROGRAM REGARDING THE NATIONAL SEPTEMBER 11 MEMORIAL AND MUSEUM.

The Secretary of Defense shall seek to amend any agreement entered into by the Secretary pursuant to section 539 of the Servicemember Quality of Life Improvement and National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159) to include promoting security at the National September 11 Memorial and Museum.

SEC. 593. LOCAL AGRICULTURAL PROCUREMENT IN GUAM COMMISSARIES.

(a) DESIGNATION OF LIAISON.—The Director of the Defense Commissary Agency shall designate an official within the Defense Commissary Agency responsible for liaising with farmers, ranchers, fishermen, and food producers in Guam for the purpose of assisting those persons in doing business with the Defense Commissary Agency and increasing the availability of locally produced food products in commissaries located in Guam.

(b) PLAN TO INCREASE LOCAL PROCUREMENT.—

(1) PLAN REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Director of the Defense Commissary Agency shall submit to the congressional defense committees a plan

to increase the volume of locally grown produce sold in commissaries located in Guam.

(2) ELEMENTS.—The plan required under paragraph (1) shall—

(A) identify barriers to procuring locally grown produce from producers in Guam;

(B) describe steps the Defense Commissary Agency will take to improve outreach, contracting, distribution, and procurement opportunities for producers in Guam;

(C) establish measurable benchmarks and timelines for increasing the amount of locally grown produce sold in commissaries located in Guam; and

(D) include a goal that not less than 15 percent of all produce sold in commissaries located in Guam be locally sourced from Guam producers.

(c) REPORT ON IMPLEMENTATION.—Not later than two years after the date of the submission of the plan required under subsection (b), the Director of the Defense Commissary Agency shall submit to the congressional defense committees a report on the implementation of the plan, including—

(1) the percentage of produce sold in commissaries located in Guam that is locally sourced;

(2) a description of progress made toward achieving the goal described in subsection (b)(2)(D);

(3) any challenges encountered in implementing the plan; and

(4) recommendations for legislative or administrative action to further increase procurement from producers in Guam.

SEC. 594. SUBMISSION OF REVIEW OF OPERATIONAL EFFECTIVENESS OF ARMY AND MARINE CORPS GROUND COMBAT UNITS.

(a) SUBMISSION TO CONGRESS.—Not later than seven days after the date of the enactment of this Act, the Secretary of Defense shall submit to Congress the complete, unredacted review of operational effectiveness of Army and Marine Corps ground combat units that is the subject of the memorandum issued by the Under Secretary of Defense for Personnel and Readiness on December 18, 2025, relating to ''Review of the Operational Effectiveness of Army and Marine Corps Ground Combat Units''.

(b) COMPTROLLER GENERAL REVIEW.—Not later than 180 days after the date of the date of the enactment of this Act, the Comptroller General of the United States

shall submit to the congressional defense committees a report reviewing—

(1) the review submitted to Congress under subsection (a); and

(2) any actions taken by the Secretary of Defense in response to the review.

SEC. 595. PILOT PROGRAM OF ANONYMOUS NONMEDICAL COUNSELING FOR SPECIAL OPERATIONS FORCES.

(a) PILOT PROGRAM.—In addition to authorities under sections 167 and 1788a of title 10, United States Code, the Commander of the United States Special Operations Command shall carry out a pilot program to provide anonymous nonmedical counseling services to members of the special operations forces and families of such members using a novel anonymous telehealth platform. The Commander shall ensure that counseling services under the pilot program are available to eligible individuals described in subsection (c) beginning not later than June 1, 2027.

(b) USE OF EXISTING PERSONNEL.—

(1) DESIGNATION.—The Commander shall designate counselors and clinicians employed by, contracted to, or assigned to the United States Special Operations Command or its component commands, including counselors and clinicians supporting the

Preservation of the Force and Family program, to provide services under the pilot program. Counseling hours dedicated to the pilot program shall be equivalent to not less than 20 percent of the total counseling capacity supporting the Preservation of the Force and Family program.

(2) CONTINUATION OF EXISTING DUTIES.—The Commander shall ensure that—

(A) designated personnel under paragraph (1) continue to perform the existing assigned duties of the personnel; and

(B) the pilot program and the anonymous telehealth platform serve as a supplemental intake pathway for participating counselors.

(3) GEOGRAPHIC SCOPE OF SERVICE.—A counselor or clinician designated under paragraph (1) may provide services under the pilot program to any eligible individual described in subsection (c), regardless of the installation, duty station, or geographic location of the counselor, clinician, or eligible individual.

(c) ELIGIBILITY.—The Commander shall ensure that the pilot program is available to all individuals currently or previously assigned to, supporting, or augmenting the United States Special Operations Command or its compo-

nent commands, and to the spouses and dependents (as defined in section 1072 of title 10, United States Code) of such individuals.

(d) STANDARD OF CARE.—Services under the pilot program shall consist of nonmedical counseling similar in type and scope to the nonmedical counseling provided under the Department of Defense Military and Family Life Counseling Program under section 1781(d) of title 10, United States Code, including with respect to charting and recordkeeping practices and the cross-jurisdictional authorities described in paragraph (2) of such section, except that services under the pilot program shall be delivered exclusively through an anonymous telehealth platform.

(e) ANONYMITY.—

(1) PLATFORM.—The Commander shall ensure that—

(A) the anonymous telehealth platform does not collect or retain personally identifiable information regarding any participant; and

(B) session content transmitted during the course of services is protected by end-to-end encryption, such that the platform vendor cannot access such content, and is not retained on the platform after the session.

(2) PARTICIPANT DISCLOSURE.—A participant may voluntarily disclose identifying information in the course of receiving services but is not required to do so as a condition of participation.

(3) COUNSELOR CONDUCT.—A counselor providing services under the pilot program may not request, require, or otherwise solicit personally identifiable information from a participant, except as necessary to act on a duty arising under applicable Federal or State law in cases involving imminent risk of harm.

(4) USE OF INFORMATION.—Participation in the pilot program, and any information disclosed by a participant during services, shall not result in entry into medical records, command notification, or referral, except as required to discharge a duty described in paragraph (3).

(f) INFORMATION SECURITY.—The Chief Information Officer of the Department of Defense shall establish alternative information security requirements for the anonymous telehealth platform used to deliver services under the pilot program, reflecting the anonymous design of the platform and the limited duration of the pilot program. Such requirements shall not include authorization

under the Federal Risk and Authorization Management Program.

(g) FUNDING.—No additional funds are authorized to be appropriated to carry out the pilot program.

(h) REPORTS.—Not later than February 1 of each year following the date counseling services first become available under the pilot program, the Commander shall submit to the congressional defense committees an annual report evaluating utilization, impact on existing counseling capacity, cost considerations, readiness implications, and recommendations for continuation or expansion.

(i) SUNSET.—The authority under this section terminates on September 30, 2029, except that the Commander may extend the pilot program for up to two additional fiscal years upon notification to the congressional defense committees.

SEC. 596. ASSESSMENT OF ANTISEMITISM IN THE SERVICE ACADEMIES.

(a) INCLUSION.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall ensure that the Defense Organizational Climate Survey (hereinafter, ''DEOCS'') includes specific questions to assess the prevalence, nature, and impact of antisemitism in the Service Academies (as such term is defined in section 347 of title 10, United States Code). The questions

included shall be designed to gather detailed information on the following:

(1) Instances of antisemitic behavior, language, and symbols.

(2) Perceptions of antisemitism among members, cadets, and midshipmen.

(3) The impact of antisemitism on unit cohesion, morale, and readiness.

(4) The effectiveness of current policies and training programs in addressing antisemitism.

(b) REPORTING REQUIREMENTS.—

(1) ANNUAL REPORT.—The Secretary of Defense shall submit a report to the congressional defense committees not later than 180 days after the enactment of this Act, and annually thereafter, detailing the following:

(A) The findings from the antisemitism assessment.

(B) Steps taken to address identified issues related to antisemitism.

(C) Recommendations for additional actions to mitigate antisemitism in the Armed Forces.

(2) INCLUSION IN EXISTING REPORT.—The results of the antisemitism assessment shall be in-

cluded in the annual report on the results of the DEOCS.

Subtitle K—Military Chaplains Modernization Act of 2026

SEC. 597. SHORT TITLE.

This subtitle may be cited as the ''Military Chaplains Modernization Act of 2026''.

SEC. 598. FINDINGS.

Congress makes the following findings:

(1) Religion and religious liberty have always served an essential role in society, culture, and military service, making them necessary for good democratic governance and a strong military.

(2) George Washington, as a young colonel, recognized the importance of religious practice for his soldiers, repeatedly requesting chaplains for his troops and periodically performing religious duties himself.

(3) When the Second Continental Congress established the Continental Army in June 1775, it recommended ''all officers and soldiers diligently to attend Divine Service''.

(4) In 1775, at the behest of George Washington, then General of the Continental Army, the Second Continental Congress established the Federal

chaplaincy that is in existence to this day, making it one of the oldest military services provided for American troops.

(5) From their earliest days, military chaplains have existed to provide pastoral care, meeting the religious needs of members of the Armed Forces and their families.

(6) In 1775, the Continental Congress, understanding the significance of chaplaincy, similarly instructed its fledgling navy that, ''The commanders of the ships of the Thirteen United Colonies are to take care that divine services be performed twice a day on board, and a sermon preached on Sundays, unless bad weather or other extraordinary accidents prevent it.''.

(7) John Adams instructed his Secretary of the Navy on the influence of a Navy chaplaincy, stating, ''I know not whether the commanders of our ships have given much attention to this subject [chaplains], but in my humble opinion, we shall be very unskillful politicians as well as bad Christians and unwise men if we neglect this important office in our infant Navy.''.

(8) In 1942, Franklin D. Roosevelt also acknowledged the importance of the chaplaincy by

vowing to ''never fail to provide for the spiritual needs of our officers and men under the Chaplains of our armed forces'', and during World War II, President Roosevelt had Bibles printed and provided to troops in the field.

(9) Understanding the importance of religion not only to the members of the United States military, but also to the United States as a whole, the Founders ratified the First Amendment to the United States Constitution in 1791.

(10) Under the First Amendment, which applies to the Armed Forces, the Federal Government has a constitutional duty to provide for the religious exercise of members of the Armed Forces, an obligation to which the chaplain corps is essential.

(11) The Supreme Court stated, in Kennedy v. Bremerton School District, 597 U.S. 507 (2022), that the court is ''aware of no historically sound understanding of the Establishment Clause that begins to 'mak[e] it necessary for government to be hostile to religion'* * *''.

(12) In Kennedy v. Bremerton School District, the Supreme Court further explained that ''the Establishment Clause does not include anything like a 'modified heckler's veto, in which * * * religious ac-

tivity can be proscribed' based on 'perceptions' or 'discomfort' " and that the Clause does not "'compel the government to purge from the public sphere' anything an objective observer could reasonably infer endorses or 'partakes of the religious' ".

(13) The Supreme Court made clear in Parker v. Levy, 417 U.S. 733 (1974) that chaplains in the Armed Forces do not forfeit their First Amendment rights by virtue of their military service.

(14) Section 6 of the Religious Freedom Restoration Act of 1993 (42 U.S.C. 2000bb–3) specifies that that Act (42 U.S.C. 2000bb et seq.) ''applies to all Federal law, and the implementation of that law, whether statutory or otherwise, and whether adopted before or after [November 16, 1993]''.

SEC. 599. DUTIES, RESPONSIBILITIES, REQUIREMENTS, AND PROTECTIONS FOR ARMY CHAPLAINS.

(a) CHAPLAINS.—Section 7073 of title 10, United States Code, is amended—

(1) in subsection (a)—

(A) by redesignating paragraphs (2) and (3) as paragraphs (5) and (6), respectively; and

(B) by inserting after paragraph (1) the following new paragraph:

''(2) the Deputy Chief of Chaplains;

''(3) the Deputy Chief of Chaplains for the Army Reserve;

''(4) the Deputy Chief of Chaplains for the Army National Guard;'';

(2) by redesignating subsection (b) as subsection (f);

(3) by inserting after subsection (a) the following new subsections:

''(b) The Chief of Chaplains shall serve as a principal advisor to the Secretary of the Army and the Chief of Staff of the Army.

''(c) The Deputy Chief of Chaplains shall serve under the authority, direction, and control of the Chief of Chaplains.

''(d) Under the authority, direction, and control of the Chief of Chaplains, the Deputy Chief of Chaplains for the Army Reserve shall serve as a principal advisor to the Chief of the Army Reserve.

''(e) Under the authority, direction, and control of the Chief of Chaplains, the Deputy Chief of Chaplains for the Army National Guard shall serve as a principal advisor to the Chief of the National Guard Bureau.''; and

(4) adding at the end the following new subsection:

''(g) The Deputy Chiefs of Chaplains, while so serving, hold the grade of brigadier general.''.

(b) CHIEFS OF BRANCHES: APPOINTMENT; DUTIES.—Section 7036 of title 10, United States Code, is amended—

(1) by redesignating subsection (g) as subsection (h); and

(2) by inserting after subsection (f) the following new subsection (g):

''(g) The Chief of Chaplains serves as the principal advisor to the Secretary of the Army and the Chief of Staff of the Army on chaplaincy matters and the provision of religious support in the Army, including strategic planning and the development of policies that affect religious support or have a nexus with the chaplaincy.''.

(c) CHAPLAINS.—Section 7217 of title 10, United States Code, is amended to read as follows:

''§ 7217. Duties, responsibilities, requirements, and protections for Army chaplains

''(a) DUTIES, RESPONSIBILITIES, AND REQUIREMENTS.—(1) The Army Chaplaincy shall perform such duties as may be prescribed by the Secretary of the Army and the Chief of Chaplains of the Army.

''(2) The Army Chaplaincy shall be overseen by the Chief of Chaplains and shall—

''(A) serve as principal advisers to commanders on all issues concerning religious practices, spiritual readiness, spiritual care, religious provisions, and religion's influence on military operations, which shall include, but not be limited to—

''(i) advising and assisting commanders in discharging their responsibilities to provide for the free exercise of religion in military service, pursuant to the First Amendment to the Constitution of the United States, section 3 of the Religious Freedom Restoration Act of 1993 (42 U.S.C. 2000bb–1), and related statutes and policies;

''(ii) assisting commanders in managing religious affairs, including the accommodation of religious practices and the development of policies and procedures related to the free exercise of religion;

''(iii) assisting commanders by serving as advisers with respect to all religious accommodation requests and by providing advice on spiritual readiness and matters concerning religion, morals, ethics, well-being, and morale; and

''(iv) overseeing education and training programs concerning the accommodation of reli-

gious practices for members of the armed forces;

''(B) meet the religious requirements and care for the spiritual needs of members of the armed forces, other authorized persons, and dependents of members, potentially in isolated or combat environments;

''(C) have a primary role in providing for the free exercise of religion and other religious requirements associated with the free exercise of religion;

''(D) facilitate meeting the religious needs and requirements for members of the armed forces to whom an assigned chaplain cannot directly minister; and

''(E) maintain confidential, sacramental, and privileged communications, including those recognized under applicable laws and policies.

''(3) The tasks of chaplains in the Army shall include, but not be limited to, the following:

''(A) Performing religious rites, rituals, services, ordinances, ceremonies, and observances (such as memorials, weddings, retirements, sermons, worship, and burials).

''(B) Counseling, meeting, advising, and praying with individuals or groups.

''(C) Providing crisis prevention and response.

''(D) Providing pastoral and spiritual care, guidance, support, and activities.

''(E) Advising on religious accommodation requests.

''(F) Providing religious training and education.

''(b) PROTECTIONS.—(1) A chaplain's duties, responsibilities, and requirements, as set forth in subsection (a), shall be conducted in a manner consistent with the chaplain's sincerely held religious beliefs and the manner, form, and tenets of the chaplain's religious-endorsing organization.

''(2) A chaplain shall have the right to conduct public worship, provide counseling, teach, deliver sermons, advise, minister, and offer prayer in accordance with the chaplain's sincerely held religious beliefs and the manner, form, and tenets of the chaplain's religious-endorsing organization. Those activities shall be free from censorship, undue restriction, or fear of retribution.

''(3) A chaplain shall uphold the chaplain's duty to protect confidential, sacramental, and privileged communications, including communications recognized under applicable laws and policies.

''(4) No member of the Armed Forces may—

''(A) require or assign a chaplain to perform any rite, ritual, ceremony, sermon, or speech contrary to the sincerely held religious beliefs of the chaplain or contrary to the manner, form, or tenets of the chaplain's religious-endorsing organization;

''(B) require or assign a chaplain to perform any task or action contrary to the sincerely held religious beliefs of the chaplain or contrary to the manner, form, or tenets of the religious-endorsing organization of the chaplain, consistent with section 3 of the Religious Freedom Restoration Act of 1993 (42 U.S.C. 2000bb–1);

''(C) retaliate or discriminate against a chaplain based on the chaplain's refusal to comply with a requirement prohibited under this subsection, or take, with respect to such a chaplain, any adverse personnel action including—

''(i) denial of promotion, schooling, training, assignment, or financial recoupment;

''(ii) issuance of letters of reprimand; or

''(iii) any other adverse action or entry in the chaplain's record; or

''(D) preclude a chaplain from conducting an activity described in paragraph (2).

''(5) A member of the Armed Forces who violates paragraph (4) shall be subject to prosecution under the Uniform Code of Military Justice.

''(c) ASSISTANCE BY COMMANDING OFFICERS.—Each officer shall furnish facilities, including necessary transportation, to any chaplain assigned to the command of the officer, to assist the chaplain in performing the duties, responsibilities, and requirements of the chaplain under subsection (a).

''(d) DEFINITIONS.—In this section:

''(1) ADMINISTRATIVE ENDORSER.—The term 'administrative endorser' means an organization that was approved to endorse chaplains for service in the armed forces under the requirements of the Department of Defense and the armed force in which those chaplains will serve, as in effect at the time the organization initially began endorsing chaplains, not on its own behalf, but on behalf of one or more external religious organizations that—

''(A) are religious-endorsing organizations;

''(B) at the time the organization initially began endorsing chaplains, did not possess the organizational capacity to endorse chaplains directly; and

"(C) were not members of, nor otherwise affiliated with, a fellowship or other organizational structure meeting the requirements set forth in paragraph (5)(A)(iii) that possessed authority to endorse chaplains.

"(2) ADVERSE PERSONNEL ACTION.—The term 'adverse personnel action' means any action taken against a member of the Armed Forces that affects or has the potential to adversely affect the member's current position or career, including—

"(A) a disciplinary action, transfer, negative performance evaluation, removal, separation, discharge, or mental health evaluation; and

"(B) a decision not to give the member a promotion, an increase in pay or benefits, an award, training, or relief.

"(3) CENSORSHIP.—The term 'censorship' means any governmental action taken to suppress or restrict information, ideas, or expression.

"(4) CONFIDENTIAL, SACRAMENTAL, AND PRIVILEGED COMMUNICATIONS.—The term 'confidential, sacramental, and privileged communications' means any private communication made to a chaplain acting in the chaplain's capacity as a spiritual advisor.

''(5) RELIGIOUS-ENDORSING ORGANIZATION.—(A) The term 'religious-endorsing organization' means an entity that—

''(i)(I) is organized and functions primarily to perform religious ministries to nonmilitary lay members and meets the requirements of the Department of Defense and the armed force in which chaplains endorsed by the entity will serve; and

''(II) possesses ecclesiastical authority to endorse and withdraw endorsements for chaplains serving under the authority of the entity to conduct religious observances or ceremonies in a military context; or

''(ii)(I) meets the requirements of the Department of Defense and the armed force in which chaplains endorsed by the entity will serve;

''(II) is organized and functions primarily to support member religious organizations and religious ministry professionals that function primarily to perform religious ministries to nonmilitary lay members; and

''(III) performs the function described in clause (i)(II) on behalf of its member religious

organizations and religious ministry professionals.

''(B) An administrative endorser that endorses chaplains before the date of the enactment of this section may continue to endorse chaplains on and after such date of enactment if administrative endorser meets the requirements of the Department of Defense and the armed force in which chaplains endorsed by the administrative endorser will serve to provide documentation verifying that the religious organizations the administrative endorser represents meet the requirements of subclause (I) and (II) of subparagraph (A)(i).''.

SEC. 599A. DUTIES, RESPONSIBILITIES, REQUIREMENTS, AND PROTECTIONS FOR NAVY CHAPLAINS.

(a) CHAPLAIN CORPS AND CHIEF OF CHAPLAINS.—Section 8082 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(f) The Chief of Chaplains shall serve as a principal adviser to the Secretary of the Navy and the Chief of Naval Operations.''.

(b) DEPUTY CHIEFS OF CHAPLAINS.—Section 8082a of title 10, United States Code, is amended to read as follows:

"§ 8082a. Deputy Chiefs of Chaplains

''(a) The Secretary of the Navy shall detail as Deputy Chiefs of Chaplains officers of the Chaplain Corps in the grade of commander or above who are on active duty and who have served on active duty in the Chaplain Corps for at least eight years.

''(b) Under the authority, direction, and control of the Chief of Chaplains, the Deputy Chief of Chaplains shall also serve as the Chaplain of the Marine Corps and shall serve as a principal advisor to the Commandant of the Marine Corps.

''(c) Under the authority, direction, and control of the Chief of Chaplains, the Deputy Chief of Chaplains for Reserve Matters shall also serve as a principal advisor to the Chief of Navy Reserve.

''(d) The Deputy Chiefs of Chaplains, while so serving, hold the grade of rear admiral (lower half).''.

(c) CHAPLAINS.—Section 8221 of title 10, United States Code, is amended to read as follows:

"§ 8221. Duties, responsibilities, requirements, and protections for Navy chaplains

''(a) DUTIES, RESPONSIBILITIES, AND REQUIREMENTS.—(1) The Navy Chaplaincy shall perform such duties as may be prescribed by the Secretary of the Navy and the Chief of Chaplains of the Navy.

''(2) The Navy Chaplaincy shall be overseen by the Chief of Chaplains and shall—

''(A) serve as principal advisers to commanders on all issues concerning religious practices, spiritual readiness, spiritual care, religious provisions, and religion's influence on military operations, which shall include, but not be limited to—

''(i) advising and assisting commanders in discharging their responsibilities to provide for the free exercise of religion in military service, pursuant to the First Amendment to the Constitution of the United States, section 3 of the Religious Freedom Restoration Act of 1993 (42 U.S.C. 2000bb–1), and related statutes and policies;

''(ii) assisting commanders in managing religious affairs, including the accommodation of religious practices and the development of policies and procedures related to the free exercise of religion;

''(iii) assisting commanders by serving as an adviser with respect to all religious accommodation requests and by providing advice on spiritual readiness and matters concerning religion, morals, ethics, well-being, and morale; and

''(iv) overseeing education and training programs concerning the accommodation of religious practices for members of the armed forces;

''(B) meet the religious requirements and care for the spiritual needs of members of the armed forces, other authorized persons, and dependents, potentially in isolated or combat environments;

''(C) have a primary role in providing for the free exercise of religion and other religious requirements associated with the free exercise of religion;

''(D) facilitate meeting the religious needs and requirements for members of the armed forces to whom an assigned chaplain cannot directly minister; and

''(E) maintain confidential, sacramental, and privileged communications, including communications recognized under applicable laws and policies.

''(3) The tasks of chaplains in the Navy shall include, but not be limited to, the following:

''(A) Performing religious rites, rituals, services, ordinances, ceremonies, and observances (such as memorials, weddings, retirements, sermons, worship, and burials).

''(B) Counseling, meeting, advising, and praying with individuals or groups.

''(C) Providing crisis prevention and response.

''(D) Providing pastoral and spiritual care, guidance, support, and activities.

''(E) Advising on religious accommodation requests.

''(F) Providing religious training and education.

''(b) PROTECTIONS.—(1) A chaplain's duties, responsibilities, and requirements, as set forth in subsection (a), shall be conducted in a manner consistent with the chaplain's sincerely held religious beliefs and the manner, form, and tenets of the chaplain's religious-endorsing organization.

''(2) A chaplain shall have the right to conduct public worship, provide counseling, teach, deliver sermons, advise, minister, and offer prayer in accordance with the chaplain's sincerely held religious beliefs and the manner, form, and tenets of the chaplain's religious-endorsing organization. Those activities shall be free from censorship, undue restriction, or fear of retribution.

''(3) A chaplain shall uphold the chaplain's duty to protect confidential, sacramental, and privileged communications, including communications recognized under applicable laws and policies.

''(4) No member of the Armed Forces may—

''(A) require or assign a chaplain to perform any rite, ritual, ceremony, sermon, or speech, contrary to the sincerely held religious beliefs of the chaplain or contrary to the manner, form, or tenets of the chaplain's religious-endorsing organization;

''(B) require or assign a chaplain to perform any task or action contrary to the sincerely held religious beliefs of the chaplain or contrary to the manner, form, or tenets of the chaplain's religious-endorsing organization, consistent with section 3 of the Religious Freedom Restoration Act of 1993 (42 U.S.C. 2000bb–1);

''(C) retaliate or discriminate against a chaplain based on the chaplain's refusal to comply with a requirement prohibited under this subsection, or take, with respect to such a chaplain, any adverse personnel action including—

''(i) denial of promotion, schooling, training, assignment, or financial recoupment;

''(ii) issuance of letters of reprimand; or

''(iii) any other adverse action or entry in the chaplain's record; or

''(D) preclude a chaplain from conducting an activity described in paragraph (2).

''(5) A member of the Armed Forces who violates paragraph (4) shall be subject to prosecution under the Uniform Code of Military Justice.

''(c) ASSISTANCE BY COMMANDING OFFICERS.—Each officer shall furnish facilities, including necessary transportation, to any chaplain assigned to the command of the officer, to assist the chaplain in performing the duties, responsibilities, and requirements of the chaplain under subsection (a).

''(d) DEFINITIONS.—In this section:

''(1) ADMINISTRATIVE ENDORSER.—The term 'administrative endorser' means an organization that was approved to endorse chaplains for service in the armed forces under the requirements of the Department of Defense and the armed force in which those chaplains will serve, as in effect at the time the organization initially began endorsing chaplains, not on its own behalf, but on behalf of one or more external religious organizations that—

''(A) are religious-endorsing organizations;

''(B) at the time the organization initially began endorsing chaplains, did not possess the organizational capacity to endorse chaplains directly; and

"(C) were not members of, nor otherwise affiliated with, a fellowship or other organizational structure meeting the requirements set forth in paragraph (5)(A)(iii) that possessed authority to endorse chaplains.

"(2) ADVERSE PERSONNEL ACTION.—The term 'adverse personnel action' means any action taken against a member of the Armed Forces that affects or has the potential to adversely affect the member's current position or career, including—

"(A) a disciplinary action, transfer, negative performance evaluation, removal, separation, discharge, or mental health evaluation; and

"(B) a decision not to give the member a promotion, an increase in pay or benefits, an award, training, or relief.

"(3) CENSORSHIP.—The term 'censorship' means any governmental action taken to suppress or restrict information, ideas, or expression.

"(4) CONFIDENTIAL, SACRAMENTAL, AND PRIVILEGED COMMUNICATIONS.—The term 'confidential, sacramental, and privileged communications' means any private communication made to a chaplain acting in the chaplain's capacity as a spiritual advisor.

''(5) RELIGIOUS-ENDORSING ORGANIZATION.—(A) The term 'religious-endorsing organization' means an entity that—

''(i)(I) is organized and functions primarily to perform religious ministries to nonmilitary lay members and meets the requirements of the Department of Defense and the armed force in which chaplains endorsed by the entity will serve; and

''(II) possesses ecclesiastical authority to endorse and withdraw endorsements for chaplains serving under the authority of the entity to conduct religious observances or ceremonies in a military context; or

''(ii)(I) meets the requirements of the Department of Defense and the armed force in which chaplains endorsed by the entity will serve;

''(II) is organized and functions primarily to support member religious organizations and religious ministry professionals that function primarily to perform religious ministries to nonmilitary lay members; and

''(III) performs the function described in clause (i)(II) on behalf of its member religious

organizations and religious ministry professionals.

''(B) An administrative endorser that endorses chaplains before the date of the enactment of this section may continue to endorse chaplains on and after such date of enactment if administrative endorser meets the requirements of the Department of Defense and the armed force in which chaplains endorsed by the administrative endorser will serve to provide documentation verifying that the religious organizations the administrative endorser represents meet the requirements of subclause (I) and (II) of subparagraph (A)(i).''.

SEC. 599B. DUTIES, RESPONSIBILITIES, REQUIREMENTS, AND PROTECTIONS FOR AIR FORCE CHAPLAINS.

(a) CHIEF OF CHAPLAINS.—Section 9039 of title 10, United States Code, is amended by adding at the end the following:

''(d) The Chief of Chaplains shall serve as the principal adviser to the Secretary of the Air Force and the Chief of Staff of the Air Force on chaplaincy and religious support, including strategic planning and policy development related to those areas.

''(e) The Air Force Chaplaincy, which also services the Space Force, shall—

''(1) be overseen by the Office of the Chief of Chaplains; and

''(2) advise and assist commanders in ensuring the right of members of the armed forces to religious freedom, in accordance with the First Amendment to the Constitution of the United States, section 3 of the Religious Freedom Restoration Act of 1993 (42 U.S.C. 2000bb–1), and applicable laws and policies.''.

(b) DEPUTY CHIEF OF CHAPLAINS.—Chapter 905 of title 10, United States Code, is amended by inserting after section 9039 the following new section:

''§ 9039a. Deputy Chief of Chaplains: appointment; duties

''(a) The Secretary of the Air Force shall detail as a Deputy Chief of Chaplains one or more officers of the Chaplain Corps in the grade of colonel or above who are on active duty and who have served on active duty in the Chaplain Corps for at least eight years.

''(b) Under the authority, direction, and control of the Chief of Chaplains, a Deputy Chief of Chaplains shall also serve as the Chaplain of the Space Force and shall

serve as a principal advisor to the Chief of Space Operations.

''(c) A Deputy Chief of Chaplains, while so serving, holds the grade of brigadier general.''.

(c) THE AIR STAFF: FUNCTION; COMPOSITION.—Section 9031 of title 10, United States Code, is amended—

(1) by redesignating paragraphs (7), (8), and (9) as paragraphs (8), (9), and (10), respectively; and

(2) by inserting after paragraph (6) the following new paragraph (7):

''(7) The Chief of Chaplains for the Air Force and the Space Force.''.

(d) CHAPLAINS.—Section 9217 of title 10, United States Code, is amended to read as follows:

''§ 9217. Duties, responsibilities, requirements, and protections for Air Force chaplains

''(a) DUTIES, RESPONSIBILITIES, AND REQUIREMENTS.—(1) The Air Force Chaplaincy shall perform such duties as may be prescribed by the Secretary of the Air Force and the Chief of Chaplains of the Air Force.

''(2) The Air Force Chaplaincy shall be overseen by the Chief of Chaplains and shall—

"(A) serve as principal advisers to commanders on all issues concerning religious practices, spiritual readiness, spiritual care, religious provisions, and religion's influence on military operations, which shall include, but not be limited to—

"(i) advising and assisting commanders in discharging their responsibilities to provide for the free exercise of religion in military service, pursuant to the First Amendment to the Constitution of the United States, section 3 of the Religious Freedom Restoration Act of 1993 (42 U.S.C. 2000bb–1), and related statutes and policies;

"(ii) assisting commanders in managing religious affairs, including the accommodation of religious practices and the development of policies and procedures related to the free exercise of religion;

"(iii) assisting commanders by serving as an adviser with respect to all religious accommodation requests and by providing advice on spiritual readiness and matters concerning religion, morals, ethics, well-being, and morale; and

"(iv) overseeing education and training programs concerning the accommodation of reli-

gious practices for members of the armed forces;

''(B) meet the religious requirements and care for the spiritual needs of members of the armed forces, other authorized persons, and dependents, potentially in isolated or combat environments;

''(C) have a primary role in providing for the free exercise of religion and other religious requirements associated with the free exercise of religion;

''(D) facilitate meeting the religious needs and requirements for members of the armed forces to whom an assigned chaplain cannot directly minister; and

''(E) maintain confidential, sacramental, and privileged communications, including communications recognized under applicable laws and policies.

''(3) The tasks of chaplains in the Air Force shall include, but not be limited to, the following:

''(A) Performing religious rites, rituals, services, ordinances, ceremonies, and observances (such as memorials, weddings, retirements, sermons, worship, and burials).

''(B) Counseling, meeting, advising, and praying with individuals or groups.

''(C) Providing crisis prevention and response.

''(D) Providing pastoral and spiritual care, guidance, support, and activities.

''(E) Advising on religious accommodation requests.

''(F) Providing religious training and education.

''(b) PROTECTIONS.—(1) A chaplain's duties, responsibilities, and requirements, as set forth in subsection (a), shall be conducted in a manner consistent with the chaplain's sincerely held religious beliefs and the manner, form, and tenets of the chaplain's religious-endorsing organization.

''(2) A chaplain shall have the right to conduct public worship, provide counseling, teach, deliver sermons, advise, minister, and offer prayer in accordance with the chaplain's sincerely held religious beliefs and the manner, form, and tenets of the chaplain's religious-endorsing organization. Those activities shall be free from censorship, undue restriction, or fear of retribution.

''(3) A chaplain shall uphold the chaplain's duty to protect confidential, sacramental, and privileged communications, including communications recognized under applicable laws and policies.

''(4) No member of the Armed Forces may—

''(A) require or assign a chaplain to perform any rite, ritual, ceremony, sermon, or speech con-

trary to the sincerely held religious beliefs of the chaplain or contrary to the manner, form, or tenets of the chaplain's religious-endorsing organization;

''(B) require or assign a chaplain to perform any task or action contrary to the sincerely held religious beliefs of the chaplain or contrary to the manner, form, or tenets of the chaplain's religious-endorsing organization, consistent with section 3 of the Religious Freedom Restoration Act of 1993 (42 U.S.C. 2000bb–1);

''(C) retaliate or discriminate against a chaplain based on the chaplain's refusal to comply with a requirement prohibited under this subsection, or take, with respect to such a chaplain, any adverse personnel action including—

''(i) denial of promotion, schooling, training, assignment, or financial recoupment;

''(ii) issuance of letters of reprimand; or

''(iii) any other adverse action or entry in the chaplain's record; or

''(D) preclude chaplains from exercising the activities described in paragraph (2).

''(5) A member of the Armed Forces who violates paragraph (4) shall be subject to prosecution under the Uniform Code of Military Justice.

''(c) ASSISTANCE BY COMMANDING OFFICERS.—Each officer shall furnish facilities, including necessary transportation, to any chaplain assigned to the command of the officer, to assist the chaplain in performing the duties, responsibilities, and requirements of the chaplain under subsection (a).

''(d) DEFINITIONS.—In this section:

''(1) ADMINISTRATIVE ENDORSER.—The term 'administrative endorser' means an organization that was approved to endorse chaplains for service in the armed forces under the requirements of the Department of Defense and the armed force in which those chaplains will serve, as in effect at the time the organization initially began endorsing chaplains, not on its own behalf, but on behalf of one or more external religious organizations that—

''(A) are religious-endorsing organizations;

''(B) at the time the organization initially began endorsing chaplains, did not possess the organizational capacity to endorse chaplains directly; and

''(C) were not members of, nor otherwise affiliated with, a fellowship or other organizational structure meeting the requirements set

forth in paragraph (5)(A)(iii) that possessed authority to endorse chaplains.

''(2) ADVERSE PERSONNEL ACTION.—The term 'adverse personnel action' means any action taken against a member of the Armed Forces that affects or has the potential to adversely affect the member's current position or career, including—

''(A) a disciplinary action, transfer, negative performance evaluation, removal, separation, discharge, or mental health evaluation; and

''(B) a decision not to give the member a promotion, an increase in pay or benefits, an award, training, or relief.

''(3) CENSORSHIP.—The term 'censorship' means any governmental action taken to suppress or restrict information, ideas, or expression.

''(4) CONFIDENTIAL, SACRAMENTAL, AND PRIVILEGED COMMUNICATIONS.—The term 'confidential, sacramental, and privileged communications' means any private communication made to a chaplain acting in the chaplain's capacity as a spiritual advisor.

''(5) RELIGIOUS-ENDORSING ORGANIZATION.—(A) The term 'religious-endorsing organization' means an entity that—

"(i)(I) is organized and functions primarily to perform religious ministries to nonmilitary lay members and meets the requirements of the Department of Defense and the armed force in which chaplains endorsed by the entity will serve; and

"(II) possesses ecclesiastical authority to endorse and withdraw endorsements for chaplains serving under the authority of the entity to conduct religious observances or ceremonies in a military context; or

"(ii)(I) meets the requirements of the Department of Defense and the armed force in which chaplains endorsed by the entity will serve;

"(II) is organized and functions primarily to support member religious organizations and religious ministry professionals that function primarily to perform religious ministries to nonmilitary lay members; and

"(III) performs the function described in clause (i)(II) on behalf of its member religious organizations and religious ministry professionals.

''(B) An administrative endorser that endorses chaplains before the date of the enactment of this section may continue to endorse chaplains on and after such date of enactment if administrative endorser meets the requirements of the Department of Defense and the armed force in which chaplains endorsed by the administrative endorser will serve to provide documentation verifying that the religious organizations the administrative endorser represents meet the requirements of subclause (I) and (II) of subparagraph (A)(i).''.

SEC. 599C. DEFINITION OF CHAPLAIN FOR TITLE 10, UNITED STATES CODE.

Section 101(b) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(17) The term 'chaplain' means a fully qualified religious ministry professional from a religious tradition who—

''(A) satisfies the professional qualifications of the chaplain's religious-endorsing organization (as defined in sections 7217, 8221, and 9217 of this title) and the educational requirements of the Department of Defense and the

Armed Force in which the chaplain serves or will serve; and

''(B) is appointed as both an officer in the Chaplain Corps of the Armed Forces and a representative of the chaplain's religious-endorsing organization, to which the chaplain shall remain accountable to for providing religious ministry to the armed forces.''.

SEC. 599D. EFFECT OF VIOLATIONS.

(a) IN GENERAL.—A member of the Armed Forces who violates section 7217(b)(4), 8221(b)(4), or 9217(b)(4) of title 10, United States Code, as added by section 3, shall be subject to prosecution under section 934 of such title (article 134 of the Uniform Code of Military Justice).

(b) REGULATIONS.—Not later than one year after the date of the enactment of this Act, the President shall—

(1) prescribe regulations establishing that a violation of section 7217(b)(4), 8221(b)(4), or 9217(b)(4) of title 10, United States Code, as added by section 3, constitutes an offense punishable under section 934 of such title (article 134 of the Uniform Code of Military Justice); and

(2) revise the Manual for Courts-Martial to include such offenses.

SEC. 599E. REGULATIONS.

The Secretary of Defense shall prescribe such regulations as are necessary to carry out the amendments made by this subtitle.

SEC. 599F. CONFORMING AMENDMENTS.

(a) EXISTING PROTECTIONS FOR CHAPLAINS.—Section 533 of the National Defense Authorization Act for Fiscal Year 2013 (Public Law 112–239; 10 U.S.C. 1030 note prec.) is amended—

(1) in the section heading, by striking ''**AND CHAPLAINS OF SUCH MEMBERS**'';

(2) by striking subsection (b); and

(3) by redesignating subsection (c) as subsection (b).

(b) PROFESSIONAL FUNCTIONS OF THE AIR FORCE.—Section 9063(h) of title 10, United States Code, is amended by adding ''in accordance with section 9217(a)'' after ''Secretary''.

TITLE VI—MILITARY COMPENSATION AND OTHER BENEFITS

Subtitle A—Bonus and Incentive Pays

SEC. 601. ONE-YEAR EXTENSION OF CERTAIN EXPIRING BONUS AND SPECIAL PAY AUTHORITIES.

(a) AUTHORITIES RELATING TO RESERVE FORCES.—Section 910(g) of title 37, United States Code,

relating to income replacement payments for reserve component members experiencing extended and frequent mobilization for active duty service, is amended by striking ''December 31, 2026'' and inserting ''December 31, 2027''.

(b) TITLE 10 AUTHORITIES RELATING TO HEALTH CARE PROFESSIONALS.—The following sections of title 10, United States Code, are amended by striking ''December 31, 2026'' and inserting ''December 31, 2027'':

(1) Section 2130a(a)(1), relating to nurse officer candidate accession program.

(2) Section 16302(d), relating to repayment of education loans for certain health professionals who serve in the Selected Reserve.

(c) AUTHORITIES RELATING TO NUCLEAR OFFICERS.—Section 333(i) of title 37, United States Code, is amended by striking ''December 31, 2026'' and inserting ''December 31, 2027''.

(d) AUTHORITIES RELATING TO TITLE 37 CONSOLIDATED SPECIAL PAY, INCENTIVE PAY, AND BONUS AUTHORITIES.—The following sections of title 37, United States Code, are amended by striking ''December 31, 2026'' and inserting ''December 31, 2027'':

(1) Section 331(h), relating to general bonus authority for enlisted members.

(2) Section 332(g), relating to general bonus authority for officers.

(3) Section 334(i), relating to special aviation incentive pay and bonus authorities for officers.

(4) Section 335(k), relating to special bonus and incentive pay authorities for officers in health professions.

(5) Section 336(g), relating to contracting bonus for cadets and midshipmen enrolled in the Senior Reserve Officers' Training Corps.

(6) Section 351(h), relating to hazardous duty pay.

(7) Section 352(g), relating to assignment pay or special duty pay.

(8) Section 353(i), relating to skill incentive pay or proficiency bonus.

(9) Section 355(h), relating to retention incentives for members qualified in critical military skills or assigned to high priority units.

(e) AUTHORITY TO PROVIDE TEMPORARY INCREASE IN RATES OF BASIC ALLOWANCE FOR HOUSING.—Section 403(b) of title 37, United States Code, is amended—

(1) in paragraph (7)(E), relating to an area covered by a major disaster declaration or containing an installation experiencing an influx of mili-

tary personnel, by striking ''December 31, 2026'' and inserting ''December 31, 2027''; and

(2) in paragraph (8)(C), relating to an area where actual housing costs differ from current rates by more than 20 percent, by striking ''December 31, 2026'' and inserting ''December 31, 2027''.

SEC. 602. AUTHORIZING BOARD CERTIFICATION INCENTIVE PAY FOR MEDICAL OFFICERS WITH DOCTORAL DEGREES.

Section 335(c)(2) of title 37, United States Code, is amended by inserting '', or holds a doctoral degree that the Secretary concerned determines appropriate,'' after ''is board certified''.

SEC. 603. ONE-TIME CORRECTIVE INCREASE AND ANNUAL ADJUSTMENTS FOR CERTAIN SPECIAL AND INCENTIVE PAYS FOR MEMBERS OF THE ARMED FORCES; CLARIFICATION OF SPECIAL AND INCENTIVE PAY AUTHORITIES FOR MEMBERS OF RESERVE COMPONENTS.

(a) ADJUSTMENTS.—

(1) IN GENERAL.—Chapter 19 of title 37, United States Code, is amended by adding at the end the following new section:

"§ 1017. Adjustments to amounts of special and incentive pays

''(a) INITIAL INCREASE.—Effective on January 1 of the first year that begins after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2027, the Secretary of Defense shall increase the amount of each covered special and incentive pay (rounded to the nearest dollar) for members of the armed forces by the greater of—

''(1) the percentage by which the CPI for the base quarter of the preceding year exceeds the CPI for the base quarter preceding the last statutory or administrative increase date for such covered special and incentive pay; and

''(2) the percentage by which the average rate of basic pay for members of the armed forces under section 203(a) of this title in effect on such January 1 exceeds the average rate of basic pay for members of the armed forces under such section 203(a) that was in effect on the last statutory or administrative increase date for such covered special and incentive pay.

''(b) RECURRING INCREASE.—Effective on January 1 of the second year that begins after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2027, and each January 1 thereafter, the Sec-

retary of Defense shall increase the amount of each covered special and incentive pay (rounded to the nearest dollar) for members of the armed forces by the greater of—

"(1) the percentage by which the CPI for the base quarter of the preceding year exceeds the CPI for the base quarter of the year before the preceding year; and

"(2) the percentage by which the rate of basic pay for members of the armed forces under section 203(a) of this title is increased on such January 1 from the rate of basic pay for such members in effect the preceding year.

"(c) RELATIONSHIP TO LIMITS OF AMOUNTS IN LAW.—The Secretary shall increase the amount of each covered special and incentive pay in accordance with subsection (a) or (b) notwithstanding any limitation on the maximum amount of such pay specified in any other provision of law.

"(d) DEFINITIONS.—In this section:

"(1) The term 'base quarter' for any year is the three-month period ending on September 30 of such year.

"(2) The term 'covered special and incentive pay' means—

''(A) a bonus, incentive, or special pay payable under chapter 5 of this title; and

''(B) the allowance payable under section 427 of this title.

''(3) The term 'CPI' means the Consumer Price Index for All Urban Consumers published by the Bureau of Labor Statistics of the Department of Labor.

''(4) The term 'last statutory or administrative increase date' means the date of the most recent adjustment to an amount of pay that—

''(A) reflects a revision based on objective economic indicators or an increase to basic pay for members of the armed forces; or

''(B) was made by Act of Congress.''.

(2) PUBLICATION OF ONE-TIME ADJUSTMENTS.—Not later than December 31 of the year of the enactment of this Act, the Secretary of Defense shall publish in the Federal Register a table that identifies—

(A) each covered special and incentive pay (as defined in section 1017 of title 37, United States Code, as added by subsection (a) of this section);

(B) the last statutory or administration increase date (as defined in such section 1017) of each such pay;

(C) the amount of increase of such pay after the application of subsection (a) of such section 1017; and

(D) the total amount of such pay after the application of such subsection (a).

(b) CLARIFICATION OF SPECIAL AND INCENTIVE PAY AUTHORITIES FOR MEMBERS OF RESERVE COMPONENTS.—Section 357 of title 37, United States Code, is amended—

(1) by striking ''special or incentive pay'' and inserting ''bonus, incentive, or special pay''; and

(2) by striking ''if the Secretary concerned'' and all that follows and inserting a period.

SEC. 604. PAYMENT OF MAXIMUM AMOUNT OF AVIATION INCENTIVE PAY TO AVIATION OFFICERS WITH MORE THAN 8 YEARS OF AVIATION SERVICE; ENHANCEMENT OF RETENTION INCENTIVES AVAILABLE TO AVIATION OFFICERS.

(a) PAYMENT OF MAXIMUM AMOUNT OF AVIATION INCENTIVE PAY TO OFFICERS WITH MORE THAN 8 YEARS OF AVIATION SERVICE.—Section 334(c) of title 37, United States Code, is amended—

(1) in paragraph (1)(A), by inserting ''subject to paragraph (5),'' before ''aviation incentive''; and

(2) by adding at the end the following new paragraph:

''(5) MAXIMUM AMOUNT FOR OFFICERS WITH MORE THAN 8 YEARS OF AVIATION SERVICE.—An officer of the Army, Navy, Air Force, Marine Corps, or Space Force who is entitled to aviation incentive pay under subsection (a) and has completed more than 8 years of aviation service shall receive the maximum monthly amount of such pay under paragraph (1)(A).''.

(b) ENHANCEMENT OF AIR FORCE RATED OFFICER RETENTION DEMONSTRATION PROGRAM.—

(1) ELIGIBLE OFFICERS.—Subsection (b)(2) of section 604 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 37 U.S.C. 301b note) is amended—

(A) by striking ''and not less than one year''; and

(B) by striking ''under section 653 of title 10, United States Code''.

(2) WRITTEN AGREEMENTS.—Subsection (c)(1) of such section is amended—

(A) by striking ''four years'' and inserting ''one year''; and

(B) by striking ''under section 653 of title 10, United States Code''.

(3) RETENTION INCENTIVES.—Subsection (d) of such section is amended—

(A) by striking paragraph (1) and inserting the following new paragraph (1):

''(1) FLEXIBILITY OF ASSIGNMENT AND DUTY LOCATIONS.—Under the demonstration program required under subsection (a), the Secretary shall offer to a rated officer described in subsection (b), to the maximum extent practicable (as determined by the Secretary)—

''(A) assignment to the duty location of the rated officer's preference, including consecutive assignments to the same duty location;

''(B) the opportunity to perform a staff assignment that does not require flying remotely, such that the officer may avoid relocation or remain in active flying status; and

''(C) the opportunity to transition indefinitely to a non-combat aviation service position.'';

(B) by striking paragraph (2) and inserting the following new paragraph (2):

''(2) AVIATION BONUS.—

''(A) IN GENERAL.—Under the demonstration program required under subsection (a), notwithstanding section 334(c) of title 37, United States Code, the Secretary may pay to a rated officer described in subsection (b) an aviation bonus not to exceed an average annual amount of $100,000.

''(B) PAYMENT OF MAXIMUM AMOUNT.—The Secretary—

''(i) shall ensure the maximum amount payable under subparagraph (A) is offered to any rated officer described in subsection (b) who executes a written agreement under subsection (c) to remain on active duty for one or more years after the completion of the active duty service obligation of the officer; and

''(ii) may not vary the amount of an aviation bonus offered to an officer based on the active duty service commitment the officer has remaining at the time of offer.''; and

(C) by adding at the end the following new paragraph:

''(4) ALIGNING TOTAL FORCE INCENTIVES.—The Secretary shall ensure that an offer under this subsection to a rated officer described in subsection (b) includes—

''(A) contract length options equal to or shorter than contract length options offered by the Air National Guard and the Air Force Reserve; and

''(B) an aviation bonus under paragraph (2) in an amount that is equal to or exceeds the amounts offered by the Air National Guard and the Air Force Reserve.''.

(4) EXTENSION OF DEMONSTRATION PROJECT.—Subsection (g) of such section is amended by striking ''2028'' and inserting ''2031''.

SEC. 605. EXPANSIONS OF AUTHORITIES TO CONTRACT WITH MEMBERS OF THE SENIOR RESERVE OFFICERS' TRAINING CORPS.

(a) EXPANSION OF AUTHORITY TO CONTRACT WITH MEMBERS INELIGIBLE FOR ADVANCED TRAINING.—Section 2103a(a) of title 10, United States Code is amended in the matter preceding paragraph (1) by striking ''who

has completed successfully the first year of a four-year Senior Reserve Officers' Training Corps course and''.

(b) CONTRACTING BONUS: INCREASED MAXIMUM BONUS; EXPANSION OF TRAINING COVERED BY CONTRACT.—Section 336 of title 37, United States Code, is amended—

(1) in subsection (b), by striking ''$5,000'' and inserting ''$15,000''; and

(2) in subsection (c)(1), by striking ''field training or a practice cruise under section 2104(b)(6)(A)(ii) of title 10'' and inserting ''training requirements prescribed by the Secretary concerned''.

SEC. 606. RETROACTIVE GRANTING OF WAIVERS FOR AVIATION INCENTIVE PAY.

(a) MANDATORY WAIVER.—Subject to subsection (c), the Secretary of the Navy shall—

(1) waive the requirements relating to months of operational flight for the receipt of aviation incentive pay under section 334 or 357 of title 37, United States Code, for any officer who—

(A) was assigned to a tactical air control squadron during the period beginning on September 1, 2018, and ending on January 1, 2025;

(B)(i) submitted a request to waive such requirements during such period that was denied; or

(ii) did not submit a request for a waiver of such requirements during such period; and

(C) who the Secretary of the Navy determines would have qualified for a waiver of such requirements under the criteria applicable to requests for such a waiver at that time, provided that the Secretary shall consider as qualified for a waiver an officer who accumulated not less than 72 months of creditable operational or proficiency flying duty as of—

(i) in the case of an officer described in paragraph (1)(B)(i), the date of the submission of a request for such a waiver; and

(ii) in the case of an officer described in paragraph (1)(B)(ii), the date on which such officer was determined ineligible for aviation incentive pay under section 334 or 357 of title 37, United States Code, due to the failure to meet the requirements relating to months of operational flight;

(2) apply the waiver required by paragraph (1) for each officer as of—

(A) in the case of an officer described in paragraph (1)(B)(i), the date of such request; and

(B) in the case of an officer described in paragraph (1)(B)(ii), the date on which such officer was determined ineligible for aviation incentive pay under section 334 or 357 of title 37, United States Code, due to the failure to meet the requirements relating to months of operational flight; and

(3) provide each such officer aviation incentive pay under those sections in the amounts such officer would have received had the waiver been granted and applied on such date.

(b) REVIEW OF FLYING DUTY POLICIES.—

(1) IN GENERAL.—Subject to subsection (c), if the Secretary of the Navy has reason to believe that the process for certifying operational or proficiency flying duty for members of the Navy or Marine Corps is not being carried out correctly, the Secretary shall conduct a review of such process, including all flying duty policies, procedures, and deter-

minations, and take such corrective actions as the Secretary considers appropriate.

(2) STATUS OF AVIATION INCENTIVE PAY.—If the Secretary conducts a review under paragraph (1), the Secretary may not make a determination that an officer is ineligible for aviation incentive pay under section 334 or 357 of title 37, United States Code, due to failure to meet the requirements relating to months of operational flight until the completion of such review.

(3) SUBMISSION.—If the Secretary conducts a review under paragraph (1), the Secretary shall submit to the congressional defense committees the results of the review.

(c) LIMITATIONS.—

(1) APPROPRIATIONS REQUIRED.—Payments under subsection (a) and corrective action under subsection (b) in a fiscal year may only be made using amounts appropriated in advance specifically for such payments or such corrective action under such subsection in such fiscal year.

(2) MATTER OF PAYMENTS.—Payments under subsection (a) and corrective action under subsection (b) shall be made on a pro rata basis if the amounts appropriated for such payments or such corrective

action are less than the total amount that would be paid for such payments or such corrective action.

(3) AMOUNTS OF PAYMENTS.—The total amount of funding obligated for payments under subsection (a) and corrective action under subsection (b) may not exceed the amount specifically appropriated for providing payments or taking such corrective action during the period of availability of such amount.

SEC. 607. IMPROVEMENTS TO INCENTIVE PAY FOR EXPLOSIVE ORDNANCE DISPOSAL DUTY.

(a) ESTABLISHMENT.—Subchapter I of Chapter 5 of title 37, United States Code, is amended by inserting, after section 301e, the following new section:

"§ 301f. Incentive pay: explosive ordnance disposal duty

''(a) ELIGIBILITY.—(1) Subject to regulations prescribed by the Secretary of Defense, a regular member of a covered armed force is entitled to continuous monthly explosive ordnance disposal duty incentive pay in the amount specified in subsection (b)(1) if the member—

''(A) is entitled to basic pay;

''(B) holds (or is in training leading to) an explosive ordnance disposal duty designator; and

''(C) is in and remains in explosive ordnance disposal duty on a career basis.

''(2) Subject to regulations prescribed by the Secretary of Defense, a member of a covered armed force who is entitled to basic pay but is not entitled to continuous monthly explosive ordnance disposal duty incentive pay under paragraph (1) is entitled to explosive ordnance disposal duty incentive pay in the amount prescribed pursuant to subsection (b)(2) for any period during which such member performs explosive ordnance disposal duty under orders.

''(b) RATES.—(1) Continuous monthly explosive ordnance disposal duty incentive pay under subsection (a)(1) shall be in the following amounts:

''Years of explosive ordnance disposal duty (including training):	Monthly Rate
2 or fewer	$125
Over 2	$156
Over 3	$188
Over 4	$206
Over 6	$650
Over 8	$800
Over 10	$1,000
Over 17	$840
Over 22	$585
Over 24	$385
Over 25	$250

''(2) Explosive ordnance disposal duty incentive pay under subsection (a)(2)—

''(A) shall be in amounts prescribed by the Secretary of Defense;

''(B) may not, for any month, exceed the maximum amount specified in paragraph (1); and

''(C) may not be less per day than the amount under subsection (d).

''(c) COMPUTATION OF YEARS.—Years of explosive ordnance disposal duty by a member shall be computed beginning with the effective date of the initial order to such member to perform explosive ordnance disposal duty.

''(d) APPLICABILITY TO CERTAIN DUTY IN THE RESERVE COMPONENTS.—Under regulations prescribed by the Secretary of Defense and to the extent provided for by appropriations, for each day that a member of a reserve component of a covered armed force who is entitled to compensation under section 206 of this title, performs, under orders, explosive ordnance disposal duty, such member is eligible for an increase in compensation equal to one-thirtieth of the continuous monthly incentive pay under subsection (b)(1) for a member of corresponding years of service entitled to basic pay.

''(e) DEFINITIONS.—In this section:

''(1) The term 'covered armed force' means the Army, Navy, Marine Corps, Air Force, or Space Force.

''(2) The term 'explosive ordnance disposal' has the meaning given such term in section 2284 of title 10.

''(3) The term 'explosive ordnance disposal duty' means duty performed by a member of a covered armed force, under regulations prescribed by the Secretary of Defense, in explosive ordnance disposal.''.

(b) EFFECTIVE DATE.—Section 301f of title 37, United States Code, as added by subsection (a), shall take effect on the date that is 180 days after the date of the enactment of this Act and apply to explosive ordnance disposal duty performed on or after such date.

SEC. 608. MODIFICATION OF IMPLEMENTATION DETERMINATION FOR SPECIAL AND INCENTIVE PAY AUTHORITIES FOR MEMBERS OF RESERVE COMPONENTS.

Section 602(d) of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117-81; 37 U.S.C. 357 note) is amended—

(1) by striking ''IMPLEMENTATION DATE'' and all that follows through ''The Secretary shall not'' and inserting ''IMPLEMENTATION DATE.—The Secretary shall not'';

(2) by striking paragraph (2); and

(3) by redesignating subparagraphs (A) and (B) as paragraphs (1) and (2), respectively, and conforming the margins accordingly.

Subtitle B—Allowances

SEC. 611. BASIC NEEDS ALLOWANCE: EXCLUSION OF BASIC ALLOWANCE FOR HOUSING FROM THE CALCULATION OF GROSS HOUSEHOLD INCOME OF AN ELIGIBLE MEMBER OF THE ARMED FORCES.

Section 402b(k)(1)(B) of title 37, United States Code, is amended—

(1) by striking ''in'' and all that follows through ''portion of''; and

(2) by striking ''that the Secretary concerned elects to exclude'' and inserting ''paid to such member''.

SEC. 612. BASIC ALLOWANCE FOR HOUSING: PERMANENT AUTHORITY TO MAKE CERTAIN TEMPORARY INCREASES.

(a) AREA COVERED BY A MAJOR DISASTER DECLARATION OR CONTAINING AN INSTALLATION EXPERIENCING AN INFLUX OF MILITARY PERSONNEL.—Subsection (b) of section 403 of title 37, United States Code, is amended, in paragraph (7)—

(1) in subparagraph (D), by striking ''Subject to subparagraph (E), an'' and inserting ''An''; and

(2) by striking subparagraph (E).

(b) AREA WHERE ACTUAL HOUSING COSTS DIFFER FROM CURRENT RATES BY MORE THAN 20 PERCENT.—Such subsection is further amended, in paragraph (8), by striking subparagraph (C).

SEC. 613. TEMPORARY ADJUSTMENT TO A RATE OF THE BASIC ALLOWANCE FOR HOUSING FOR MEMBERS OF THE UNIFORMED SERVICES: LOWER THRESHOLD; PERMANENT AUTHORITY.

Section 403(b)(8) of title 37, United States Code, is amended—

(1) in subparagraph (A), by striking ''20 percent'' and inserting ''15 percent''; and

(2) by striking subparagraph (C).

SEC. 614. MODIFICATIONS TO COST-OF-LIVING ALLOWANCE IN THE CONTINENTAL UNITED STATES FOR MEMBERS OF THE ARMY, NAVY, AIR FORCE, MARINE CORPS, AND SPACE FORCE.

Section 403b of title 37, United States Code, is amended—

(1) by redesignating subsection (i) as subsection (j); and

(2) by inserting after subsection (h) the following new subsection:

''(i) SPECIAL RULE FOR MEMBERS OF THE ARMY, NAVY, AIR FORCE, MARINE CORPS, AND SPACE FORCE.—This section shall be applied for members of the Army, Navy, Air Force, Marine Corps, and Space Force as follows:

''(1) Subsection (a) shall be applied by substituting 'shall pay' for 'may pay'.

''(2) Subsection (c) shall be applied by substituting for the second and third sentences the following: 'The threshold percentage shall be three percent, except that the administering Secretaries may prescribe a higher threshold percentage to be applied for a fiscal year when it is necessary to do so in order to ensure that the total amount of the payments of the cost-of-living allowance made to members of the uniformed services under this section for such fiscal year does not exceed the total amount available to all uniformed services for that fiscal year for paying such allowance.'

''(3) The Secretary concerned may exclude general officers (as defined in section 101(b) of title 10) and flag officers (as defined in such section) from

members who are eligible to receive a cost-of-living allowance under this section.''.

SEC. 615. PAYMENT OF COSTS TO SHIP BREAST MILK OF A MEMBER PERFORMING CERTAIN DUTY.

(a) AUTHORITY.—Section 453 of title 37, United States Code, is amended by adding at the end the following new subsection:

''(j) COSTS TO SHIP BREAST MILK.—(1) The Secretary concerned shall pay directly, or reimburse a covered member for, the costs for shipping expressed breast milk of the covered member to be used by the infant child of such member because the infant is separated from the member by reason of a qualifying circumstance.

''(2) The costs paid or reimbursed by the Secretary concerned with respect to a covered member for a single qualifying event may not exceed $1,000.

''(3) A covered member shall be eligible for a payment or reimbursement under paragraph (1) during the period in which the member is eligible for breastfeeding support pursuant to chapter 55 of title 10.

''(4) In this subsection:

''(A) The term 'covered member' means a member of the armed forces serving on active duty or inactive duty training.

''(B) The term 'qualifying circumstance' means, with respect to a covered member, any of the following:

''(i) The covered member is performing temporary duty pursuant to orders.

''(ii) The covered member is undergoing a permanent change of station, regardless of whether the tour of duty is an accompanied or unaccompanied tour of duty.

''(iii) The covered member is performing annual training duty.

''(iv) The covered member is performing inactive-duty training.''.

(b) REGULATIONS.—The Secretary of Defense shall—

(1) prescribe regulations to carry out subsection (j) of section 453 of title 37, United States Code, as added by subsection (a) of this section, in a manner that ensures parity with relevant existing programs of the Department of Defense; and

(2) issue implementing guidance by not later than 180 days after the date of the enactment of this Act.

SEC. 616. PROHIBITION ON CHARGING MEMBERS OF THE ARMED FORCES FOR MEALS WHILE SERVING ON NAVAL VESSELS.

(a) IN GENERAL.—Section 402 of title 37, United States Code, is amended—

(1) by redesignating subsection (i) as subsection (j); and

(2) by inserting after subsection (h) the following new subsection:

''(j) PROHIBITION ON CHARGING MEMBERS OF THE ARMED FORCES FOR MEALS WHILE SERVING ON NAVAL VESSELS.—A member of the armed forces assigned to duty on a naval vessel of the United States shall not be required to pay any charge for meals provided to the member while the vessel is underway or deployed from the homeport of the vessel.''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect on October 1, 2026, and apply to meals provided to a member of the Armed Forces on or after that date.

Subtitle C—Leave

SEC. 621. ACCRUAL OF LEAVE FOR MEMBERS OF THE ARMED FORCES.

Section 701(a) of title 10, United States Code, is amended by striking ''2½ calendar days'' and inserting ''3½ calendar days''.

SEC. 622. ACCUMULATION OF LEAVE FOR MEMBERS OF THE ARMED FORCES.

(a) ACCUMULATION OF LEAVE FOR MEMBERS OF THE ARMED FORCES.—Section 701 of title 10, United States Code, is amended—

(1) by striking subsections (b), (e), and (g);

(2) by redesignating subsections (c), (d), (f), (h), (i), (j), (k), (l), and (m) as subsections (b) through (j), respectively;

(3) in subsection (d), as redesignated by paragraph (2), by striking ''without regard to the limitations in subsections (b) and (e)''; and

(4) in subsection (f) (as so redesignated), by striking '', subject to the accumulation limits in subsections (b) and (e),''.

(b) CONFORMING AMENDMENTS.—

(1) CADETS AND MIDSHIPMEN.—Section 702(c) of title 10, United States Code, is amended by striking ''section 701(m)'' and inserting ''section 701(j)''.

(2) EMERGENCY LEAVE RETENTION AUTHORITY.—

(A) IN GENERAL.—Section 2508 of title 14, United States Code, is repealed.

(B) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 25 of title

14, United States Code, is amended by striking the item relating to section 2508.

(3) PAYMENTS FOR UNUSED ACCRUED LEAVE.—Section 501 of title 37, United States Code, is amended—

(A) in subsection (b)—

(i) in paragraph (5), by striking ''and in subsection (f)''; and

(ii) by striking paragraph (6);

(B) in subsection (d)—

(i) in paragraph (1), by striking ''subsections (b) and (g)'' each place it appears and inserting ''subsections (b) and (f)'';

(ii) in paragraph(2), by striking ''subsection (b)(3), subsection (f), and the second sentence of subsection (g)'' and inserting ''subsection (b)(3)'';

(C) by striking subsection (f);

(D) by redesignating subsections (g) and (h) as subsections (f) and (g), respectively; and

(E) in subsection (f) (as so redesignated), by striking the second sentence.

(4) ABSENCES DUE TO SICKNESS, WOUNDS, AND CERTAIN OTHER CAUSES.—Section 502(b) of

title 37, United States Code, is amended by striking ''and section 701(g) of title 10''.

SEC. 623. BEREAVEMENT LEAVE FOR A MEMBER OF THE ARMED FORCES IN THE CASE OF A LOSS OF PREGNANCY OR STILLBIRTH.

Subsection (l)(1)(A) of section 701 of title 10, United States Code, is amended—

(1) by striking ''the death of an immediate family member.'' and inserting an em dash; and

(2) by adding at the end the following new clauses:

''(i) the death of an immediate family member; or

''(ii) the loss of a pregnancy or a stillbirth by such member or the spouse of such member.''.

SEC. 624. AUTHORIZATION OF MORE THAN ONE PERIOD OF REST AND RECUPERATION ABSENCE FOR CERTAIN MEMBERS EXTENDING DUTY AT DESIGNATED LOCATIONS OVERSEAS.

Section 705(b) of title 10, United States Code, is amended—

(1) in paragraph (1), by striking ''a period of''; and

(2) in paragraph (2)—

(A) by striking ''a period of''; and

(B) by inserting ''one'' before ''round-trip''.

Subtitle D—Family and Survivor Benefits

SEC. 631. PAYMENT TO PARTICIPANT IN SURVIVOR BENEFIT PLAN WHOSE SPOUSE DIES BEFORE THE PARTICIPANT.

(a) ESTABLISHMENT.—Subchapter II of chapter 73 of title 10, United States Code, is amended by inserting, after section 1448a, the following new section:

''§ 1448b. Payment to participant whose spouse dies before the participant

''(a) PAYMENT REQUIRED.—The Secretary concerned shall make a one-time payment of $1,000 to a participant described in subsection (b).

''(b) ELIGIBLE PARTICIPANT.—A participant described in this subsection is a person—

''(1) who becomes a participant in the Plan on or after July 1, 2027;

''(2) whose beneficiary under the Plan is the spouse of such person; and

''(3) whose spouse dies before such person.''.

(b) CONFORMING REDUCTION IN RETIRED PAY.—Section 1452(a)(1) of such title is amended by adding at the end the following new subparagraph:

''(C) ADDITIONAL REDUCTION FOR PAYMENT TO PARTICIPANT WHOSE SPOUSE DIES BEFORE THE PARTICIPANT.—The reduction under subparagraph (A) or (B) for a participant in the Plan who elects to provide spouse coverage on or after July 1, 2027, shall be increased by an amount prescribed in regulations by the Secretary of Defense as a premium for coverage under section 1448b of this title.''.

SEC. 632. INCREASE IN AND COST-OF-LIVING ADJUSTMENT OF DEATH GRATUITY.

(a) INCREASE IN DEATH GRATUITY.—

(1) INCREASE.—Section 1478(a) of title 10, United States Code, is amended by striking ''$100,000'' and inserting ''$165,000''.

(2) APPLICABILITY.—The amendment made by paragraph (1) shall apply with respect to deaths occurring on or after the date of the enactment of this Act.

(b) COST-OF-LIVING ADJUSTMENT OF DEATH GRATUITY.—

(1) ADJUSTMENT.—Section 1478 of title 10, United States Code, as amended by subsection (a) of this section, is further amended by inserting after subsection (b) the following new subsection:

''(c) ANNUAL ADJUSTMENT TO DEATH GRATUITY.—(1) On January 1 of each year, the amount of the death gratuity payable under subsection (a) shall be increased by the percentage (if any) by which the Consumer Price Index for All Urban Consumers, published by the Bureau of Labor Statistics, during the preceding calendar year exceeds such Consumer Price Index for the calendar year before such preceding calendar year, rounded to the nearest $100.

''(2) The Secretary of Defense shall annually publish the amount of the death gratuity payable under subsection (a), as adjusted by paragraph (1), in the Federal Register.''.

(2) APPLICABILITY.—The amendment made by paragraph (1) shall apply beginning on January 1, 2027.

Subtitle E—Defense Resale Matters

SEC. 641. USE OF COMMISSARY STORES BY EMPLOYEES OF THE DEPARTMENT OF DEFENSE EDUCATION ACTIVITY AND MILITARY CHILD DEVELOPMENT CENTERS.

Section 1066(a) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(3) An employee of the Department of Defense Education Activity or a military child development center may be permitted to use commissary stores and MWR retail facilities on the same basis as members of the armed forces on active duty.''.

SEC. 642. SINGLE-USE SHOPPING BAGS IN COMMISSARY STORES.

Section 2485 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(j) SINGLE-USE SHOPPING BAGS.—The Defense Commissary Agency may not prohibit the use of, or charge a fee for, single-use shopping bags in a commissary store.''.

SEC. 643. LIMITATION ON IMPLEMENTATION OF SUPPLY CHAIN TRANSFORMATION INITIATIVE OF THE DEFENSE COMMISSARY AGENCY.

No funds authorized to be appropriated or otherwise made available to the Department of Defense for fiscal year 2027 may be obligated or expended to implement, award contracts in furtherance of, or change commissary supply chain operations pursuant to the two-wholesaler national supply model of the Supply Chain Transformation Initiative of the Defense Commissary Agency until 180 days after the day when the Secretary of De-

fense submits to the congressional defense committees the report regarding the Defense Commissary Agency required by the conference report accompanying the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60).

SEC. 644. PROHIBITION ON PROCUREMENT AND COMMISSARY SALES OF SEAFOOD ORIGINATING OR PROCESSED IN THE PEOPLE'S REPUBLIC OF CHINA.

(a) PROHIBITION ON PROCUREMENT OF SEAFOOD ORIGINATING OR PROCESSED IN THE PEOPLE'S REPUBLIC OF CHINA FOR MILITARY DINING FACILITIES.—

(1) IN GENERAL.—Except as provided by paragraph (2) or (3), the Secretary of Defense may not enter into a contract for the procurement of seafood that originates or is processed in the People's Republic of China for use in military dining facilities, including galleys onboard United States naval vessels.

(2) EXCEPTIONS.—

(A) UNDUE BURDEN.—The Secretary of Defense, or a designee of the Secretary, may grant exceptions to the prohibition under paragraph (1) to facilities on military installations located outside of the United States if such pro-

hibition would unduly burden or prevent seafood from being served at such facility.

(B) UNITED STATES VESSELS VISITING FOREIGN PORTS.—The Secretary of Defense, or a designee of the Secretary, may grant exceptions to the prohibition under paragraph (1) to United States vessels visiting foreign ports.

(3) WAIVER.—The Secretary of Defense may waive the prohibition under paragraph (1).

(b) PROHIBITION ON SALES OF SEAFOOD ORIGINATING IN THE PEOPLE'S REPUBLIC OF CHINA AT COMMISSARY STORES.—

(1) IN GENERAL.—Section 2484 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(m) PROHIBITION ON SALES OF SEAFOOD ORIGINATING IN THE PEOPLE'S REPUBLIC OF CHINA.—

''(1) IN GENERAL.—Except as provided by paragraph (2), raw or processed seafood or seafood products originating in the People's Republic of China may not be sold at commissary stores.

''(2) WAIVER.—The Secretary of Defense may waive the prohibition under paragraph (1).''.

(2) BRIEFING ON COMPLIANCE.—Section 2481(c)(4) of such title is amended—

(A) in subparagraph (D), by striking ''; and'' and inserting a semicolon;

(B) by redesignating subparagraph (E) as subparagraph (F); and

(C) by inserting after subparagraph (D) the following new subparagraph (E):

''(E) an assessment of compliance with the prohibition under section 2484(m) of this title; and''.

(3) TRANSITION RULES.—

(A) APPLICABILITY.—The prohibition under subsection (m) of section 2484 of title 10, United States Code, as added by paragraph (1), shall apply on and after the date that is 30 days after the date of the enactment of this Act.

(B) DISPOSAL OF REMAINING STOCK.—The Director of the Defense Commissary Agency may determine how to dispose of any stock covered by the prohibition under subsection (m) of section 2484 of title 10, United States Code, as added by paragraph (1), that remains as of the date described in subparagraph (A).

(c) EFFECTIVE DATE.—The prohibitions under this section, and the amendments made by this section, shall

take effect 90 days after the date of the enactment of this Act.

Subtitle F—Other Benefits, Reports, and Briefings

SEC. 651. CAREER FLEXIBILITY PROGRAMS: ELIGIBILITY OF A MEMBER ALREADY SUBJECT TO A PERIOD OF OBLIGATED SERVICE; MINIMUM LENGTH OF PROGRAM.

(a) ELIGIBILITY OF A MEMBER ALREADY SUBJECT TO A PERIOD OF OBLIGATED SERVICE.—Section 710 of title 10, United States Code, is amended, in subsection (a), by adding at the end the following new paragraph:

''(3) The Secretary of a military department may not prohibit a member from inactivation under this section solely on the basis that such member is subject to a period of obligated service on active duty other than a period of service under subsection (c)(3).''.

(b) MINIMUM LENGTH OF PROGRAM.—Such section is further amended, in subsection (b)(1), by inserting ''and the minimum period shall be one month'' after ''may not exceed three years''.

SEC. 652. PROVISION OF INFORMATION REGARDING FOOD ACCESS AND CHILD CARE FOR MEMBERS RECEIVING ORDERS FOR A CHANGE OF PERMANENT STATION.

Section 1056(b)(2)(F) of title 10, United States Code, is amended—

(1) in clause (v), by striking ''; and'' and inserting a semicolon;

(2) by redesignating clause (vi) as clause (viii); and

(3) by inserting after clause (v) the following new clauses:

''(vi) resources regarding food access and assistance, including the supplemental nutrition assistance program (as such term is defined in section 3 of the Food and Nutrition Act of 2008 (Public Law 88–525; 7 U.S.C. 2012)), State requirements for eligibility for the special supplemental nutrition program for women, infants, and children established by section 17 of the Child Nutrition Act of 1966 (42 U.S.C. 1786), and local support services;

''(vii) available child care services, including child care furnished under subchapter II of chapter 88 of this title, other assistance furnished by the Secretary of Defense, community-

based partner programs, and other resources; and''.

SEC. 653. RESERVES AND RETIRED MEMBERS: ACCEPTANCE OF EMPLOYMENT, PAYMENTS, AND AWARDS FROM FOREIGN GOVERNMENTS THROUGH PRIVATE ENTITIES.

Section 908(a) of title 37, United States Code, is amended—

(1) by redesignating paragraphs (1), (2), and (3) as subparagraphs (A), (B), and (C), respectively, and adjusting the margins accordingly;

(2) by inserting ''(1)'' before ''Subject to''; and

(3) by adding at the end the following new paragraph:

''(2)(A) The Secretary of the military department concerned shall apply the provisions of this section to the acceptance, by a person described in subparagraph (B) who is under the jurisdiction of such Secretary, of employment (and compensation related to that employment) or payments or awards indirectly from a foreign government through a private entity to the same extent and in the same manner as such provisions apply to employment (and compensation related to that employment) and payments and awards described in paragraph (1).

''(B) A person described in this subparagraph is—

''(i) a retired member of the Army, Navy, Marine Corps, Air Force, or Space Force; or

''(ii) a member—

''(I) of a reserve component of an armed force specified in subclause (i); and

''(II) who is not serving on active duty under a call or order to active duty for a period in excess of 30 days.''.

SEC. 654. PROGRAM TO PROVIDE TO CERTAIN PATRONS A DISCOUNT ON MOTOR FUEL SOLD AT EXCHANGE STORES.

(a) IN GENERAL.—The Secretary of Defense may, if there is a tax described in subsection (b) applicable to motor fuel, carry out a program to provide to eligible patrons a discount on such motor fuel—

(1) sold at an exchange store; and

(2) dispensed directly into a vehicle owned by an eligible patron.

(b) AMOUNT OF DISCOUNT.—

(1) BASE DISCOUNT.—A discount provided under subsection (a) shall be an amount not less than—

(A) the rate of tax applicable to gasoline under section 4081 of the Internal Revenue Code of 1986 (26 U.S.C. 4081), except that

such discount may not be less than 18.4 cents per gallon; and

(B) the rate of tax applicable to diesel fuel under such section 4081, except that such discount may not be less than 24.4 cents per gallon.

(2) AUTHORIZATION OF SUPPLEMENTAL DISCOUNT.—The Secretary of Defense may, if there is a State or local tax applicable to such motor fuel, provide an additional discount to an eligible patron, with respect to each gallon of motor fuel sold at an exchange store, of such amount as the Secretary of Defense determines appropriate.

(c) AUTOMATIC APPLICATION.—The Secretary of Defense shall, to the maximum extent practicable, ensure that a discount provided under this section is applied upon the sale of motor fuel at an exchange store to an eligible patron.

(d) REGULATIONS.—The Secretary of Defense shall update any appropriate regulations to prevent—

(1) fraud or abuse of a program carried out under this section; and

(2) the resale or commercial use of motor fuel purchased at a discount under this section.

(e) TERMINATION.—The authority of the Secretary of Defense to provide a discount under this section shall terminate on September 30, 2029.

(f) REPORT.—Not later than 180 days after the date on which the Secretary of Defense carries out a program under this section, and annually thereafter until the termination under subsection (e), the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on such a program, including—

(1) the number of exchange stores, disaggregated by exchange system, that sold motor fuel subject to a discount under subsection (b)(1);

(2) the total gallons of such motor fuel sold annually by—

(A) each exchange store;

(B) all exchange stores; and

(C) all exchange stores, disaggregated by exchange system;

(3) the total annual cost of the discount under subsection (b)(1)(A);

(4) the total annual cost of any additional discount under subsection (b)(1)(B);

(5) the average amount of motor fuel sold annually by each exchange store before the date of the enactment of this Act;

(6) any identified fraud, abuse, or issues with implementation with respect to such program; and

(7) any recommendations with respect to continuing or modifying such program.

(g) COORDINATION.—Nothing in this section shall be construed to prohibit the Secretary of Defense from coordinating with the heads of other Federal departments or agencies to encourage the adoption of similar policies with respect to discounts on motor fuel—

(1) for members of the uniformed services; or

(2) other persons served by exchange systems outside the Department of Defense.

(h) ELIGIBLE PATRON DEFINED.—The term ''eligible patron'' means a person who is authorized under Federal law and applicable regulations to purchase motor fuel from a fuel station operated by an exchange store.

SEC. 655. INDEPENDENT STUDY ON MILITARY PERSONNEL TEMPO, WORKLOAD, AND COMPENSATION IN COMPARISON TO CIVILIANS WITH SIMILAR DUTIES.

(a) INDEPENDENT STUDY.—Not later than 90 days after the date of the enactment of this Act, the Secretary

of Defense shall seek to enter into an agreement with a federally funded research and development center with expertise in matters relating to military and civilian personnel responsibilities and compensation to conduct a study on military personnel tempo, workload demands, and compensation in comparison to civilian counterparts in comparable professions.

(b) ELEMENTS.—The study required under subsection (a) shall include the following:

(1) An assessment of average weekly and annual work hours performed by members of the Armed Forces, and civilians if available, in all military career fields, including those with operational, administrative, training, and deployment-related duties.

(2) A comparative analysis of work hours, personnel tempo, and workload demands, if available, between military personnel and civilians in comparable professions, including professions relating to aviation, explosive ordnance disposal, medical, diving, cyber, nuclear, law enforcement, special operations forces communities, and technical specialties.

(3) An assessment of the effects of deployment cycles, training rotations, field exercises, shipboard

operations, alert requirements, shift work, and other operational demands on total military workload.

(4) An assessment of the cumulative time burden associated with military accession training, professional military education, qualification requirements, readiness training, and advanced specialty training pipelines.

(5) An assessment of workload and personnel tempo within specialized military communities, including aviation, explosive ordnance disposal, medical, diving, cyber, nuclear, law enforcement, special operations forces communities, and technical specialties.

(6) An assessment of the impact of military-specific obligations on members of the Armed Forces and military families, including permanent change of station requirements, family separation, deployment frequency, irregular work schedules, and fitness and training requirements.

(7) A comparative analysis of military compensation relative to civilian compensation when accounting for cumulative workload demands and military-specific service obligations.

(8) Identification of any limitations associated with direct comparisons between military and civil-

ian professions, including recommendations for appropriate methodologies, assumptions, and future data collection efforts.

(9) Recommendations, if any, for improving the measurement and tracking of personnel tempo, workload, and workforce use by the Department of Defense.

(c) REPORTS.—

(1) SUBMISSION TO SECRETARY OF DEFENSE.—The agreement entered into in accordance with subsection (a) shall include a requirement that—

(A) not later than 2 years after the date of the enactment of this Act, the federally funded research and development center that is party to the agreement shall submit to the Secretary of Defense a report containing the results study conducted under subsection (a); and

(B) not less than every 180 days until the final report required by subparagraph (A) is submitted, such federally funded research and development center shall provide to the Secretary of Defense and the congressional defense committees an interim report on the progress and results of such study.

(2) SUBMISSION OF FINAL REPORT TO CONGRESS.—Not later than 30 days after the date on which the Secretary of Defense receives the report required under paragraph (1)(A), the Secretary shall submit to the congressional defense committees a copy of the report and any comments of the Secretary with respect to the report.

(d) FORM.—The reports required under subsection (c) shall be submitted in unclassified form.

(e) PERSONNEL TEMPO DEFINED.—In this Act, the term ''personnel tempo'' means the amount of time a member of the Armed Forces is engaged in official duties at a location or under circumstances that make it infeasible for such member to spend off-duty time in the housing in which the member resides.

SEC. 656. DEPARTMENT OF DEFENSE MILITARY RETIREMENT FUND: PAYMENT OF RETIRED PAY FOR ALL MEMBERS OF THE UNIFORMED SERVICES.

(a) IN GENERAL.—Section 1463 of title 10, United States Code, is amended—

(1) in paragraph (1), by striking ''retired lists'' and all that follows through ''Space Force'' and inserting ''retired lists of the uniformed services'';

(2) in paragraph (2), by striking ''armed forces'' and inserting ''uniformed services''; and

(3) in paragraph (4)—

(A) by striking ''Department of Defense and the Department of Homeland Security'' and inserting ''Departments of Defense, Homeland Security, Commerce, and Health and Human Services'';

(B) by striking ''armed forces'' and inserting ''uniformed services'';

(C) by striking ''and section'' and inserting ''section''; and

(D) by inserting '', subtitle C of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3041 et seq.), and section 229 of the Social Security Act (42 U.S.C. 429)'' after ''Public Law 96–402''.

(b) CONFORMING AMENDMENTS.—

(1) FUND PURPOSE; DEFINITION.—Section 1461 of such title is amended—

(A) in subsection (a), by striking ''the Department of Defense and the Coast Guard'' and inserting ''the uniformed services''; and

(B) in subsection (b)—

(i) in paragraph (2)—

(I) by striking ''armed forces'' and inserting ''uniformed services''; and

(II) by striking ''; and'' and inserting a semicolon;

(ii) in paragraph (3), by striking the period at the end and inserting a semicolon; and

(iii) by adding at the end the following new paragraphs:

''(4) a program under subtitle C of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3041 et seq.); and

''(5) a program under section 211 or 221 of the Public Health Service Act (42 U.S.C. 212, 213a).''.

(2) DETERMINATION OF CONTRIBUTIONS TO THE FUND.—Section 1465 of such title is amended—

(A) in subsection (a), by adding at the end the following new paragraph:

''(3) Not later than January 1, 2027, the Board of Actuaries, in consultation with the Secretaries of the departments specified in section 1463(a)(4) of this title,

shall determine the amount that is the value on the date of such determination of future benefits payable from the Fund that are attributable to service in the commissioned corps of the National Oceanic and Atmospheric Administration and of the Public Health Service performed before such date. That amount is the original National Oceanic and Atmospheric Administration and Public Health Service unfunded liability of the Fund. The Board shall determine the period of time over which the original National Oceanic and Atmospheric Administration and Public Health Service unfunded liability should be liquidated and shall determine an amortization schedule for the liquidation of such liability over that period. Contributions to the Fund for the liquidation of the original National Oceanic and Atmospheric Administration and Public Health Service unfunded liability in accordance with such schedule shall be made as provided in section 1466(b) of this title.'';

(B) in subsection (b)—

(i) in paragraph (1)—

(I) in the matter preceding subparagraph (A)—

(aa) by striking ''Secretary of the department in which the Coast Guard is operating'' and inserting ''Secretaries of the de-

partments specified in section 1463(a)(4) of this title''; and

(bb) by striking ''Department of Defense and Coast Guard'' and inserting ''uniformed services'';

(II) in subparagraph (A)(ii), by striking ''Armed Forces'' and inserting ''uniformed services''; and

(III) in subparagraph (B)(ii), by striking ''armed forces'' and inserting ''uniformed services'';

(ii) in paragraph (2), by inserting '', the Department of Health and Human Services Retirement Pay account for Commissioned officers, and the Department of Commerce NOAA Corps Retirement Pay account for Commissioned officers'' after ''Coast Guard Retired Pay account''; and

(iii) in paragraph (3), by striking ''Department of Defense and Coast Guard'';

(C) in subsection (c)—

(i) in paragraph (1)—

(I) in the matter preceding subparagraph (A), by striking ''Secretary of the department in which the Coast Guard is operating'' and inserting ''Secretaries of the departments specified in section 1463(a)(4) of this title'';

(II) in subparagraph (A), by striking ''Armed Forces'' and inserting ''uniformed services''; and

(III) in subparagraph (B), by striking ''armed forces'' and inserting ''uniformed services''; and

(ii) in paragraphs (2) and (3), by striking ''Secretary of the department in which the Coast Guard is operating'' both places it appears and inserting ''Secretaries of the departments specified in section 1463(a)(4) of this title''; and

(D) in subsection (e), by striking ''The Secretary of Defense and, with regard to the Coast Guard, the Secretary of the department in which the Coast Guard is operating shall'' and inserting ''The Secretary of a department specified in section 1463(a)(4) of this title

shall, with regard to the respective department''.

(3) PAYMENTS INTO THE FUND.—Section 1466 of such title is amended—

(A) in subsection (a)—

(i) in the matter preceding paragraph (1)—

(I) by striking ''Secretary of Defense and the Secretary of the department in which the Coast Guard is operating, with respect to the Coast Guard'' and inserting ''Secretaries of the departments specified in section 1463(a)(4) of this title''; and

(II) by striking ''the Secretary of Defense and the Secretary of the department in which the Coast Guard is operating'' and inserting ''such Secretaries'';

(ii) in paragraph (1)(B), by inserting '', the commissioned corps of the National Oceanic and Atmospheric Administration, or the Commissioned Corps of the Public Health Service'' after ''Coast Guard''; and

(iii) in paragraph (2)(B), by striking ''armed forces'' and inserting ''uniformed services'';

(B) in subsection (b)—

(i) in paragraph (1), by striking ''armed forces under the jurisdiction of the Secretary of a military department'' and inserting ''uniformed services''; and

(ii) in paragraph (2), by striking ''Coast Guard'' and inserting ''Coast Guard, commissioned corps of the National Oceanic and Atmospheric Administration, or the Commissioned Corps of the Public Health Service''; and

(C) in subsection (c)—

(i) in paragraph (1), by striking ''Secretary of Defense'' and inserting ''Secretaries of the departments specified in section 1463(a)(4) of this title of this title'';

(ii) in paragraph (2)(A), by striking ''the Department of Defense and the Coast Guard'' and inserting ''each uniformed service''; and

(iii) in paragraph (3), by striking ''Secretary of Defense and the Secretary of

the Department in which the Coast Guard is operating'' and inserting ''Secretaries of the departments specified in section 1463(a)(4) of this title''.

(4) RETIRED SERVICEMAN'S FAMILY PROTECTION PLAN.—Subchapter I of chapter 73 of title 10, United States Code, is amended—

(A) in section 1444(a), by striking ''armed forces, the National Oceanic and Atmospheric Administration, and the Public Health Service'' and inserting ''uniformed services'';

(B) by striking ''armed forces'' each place it appears and inserting ''uniformed services'';

(C) by striking ''an armed force'' both places it appears and inserting ''a uniformed service'';

(D) by striking ''armed force'' each place it appears and inserting ''uniformed service''; and

(E) in the headings to sections 1431 and 1432 by striking ''**armed forces**'' both places it appears and inserting ''**uniformed services**''.

(5) SURVIVOR BENEFIT PLAN.—Section 1449(a) of title 10, United States Code, is amended

by striking ''armed force'' and inserting ''uniformed service''.

(6) NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION COMMISSIONED OFFICER CORPS ACT OF 2002.—Section 261(a) of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (Public Law 107–372; 33 U.S.C. 3071) is amended—

(A) by redesignating paragraphs (21) through (27) as paragraphs (22) through (28), respectively; and

(B) by inserting, after paragraph (20), the following new paragraph (21):

''(21) Chapter 74, relating to the Department of Defense Military Retirement Fund.''.

(7) PUBLIC HEALTH SERVICE ACT.—Section 221(a) of the Public Health Service Act (42 U.S.C. 213a(a)) is amended—

(A) by redesignating paragraphs (6) through (21) as paragraphs (7) through (22), respectively; and

(B) by inserting, after paragraph (5), the following new paragraph (6):

''(6) Chapter 74, Department of Defense Military Retirement Fund.''.

SEC. 657. REPORT ON MILITARY CAMPING AND RECREATIONAL PARK PROGRAM.

(a) IN GENERAL.—Not later than March 1, 2027, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report describing how each military department administers military camping and recreational parks to ensure such parks are equally accessible to all persons authorized to use such parks.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) A list of military camping and recreational vehicle parks that includes the location of each park and an identification of the military department that administers such park.

(2) An estimate of the average number of members of the Armed Forces and veterans who use each facility in a year, disaggregated by members of an active component, members of a reserve component, and veterans.

(3) A list of such parks that allow users to stay more than 30 days during any 90-day period.

(4) A list of such parks that allow users to live at a park full-time.

(5) An explanation of how the Department of Defense policy on recreational vehicle parks complies with industry safety standards.

(6) An explanation of the differences between the policies that apply to such parks and the policies that apply to other morale, welfare, and recreation facilities of the Department of Defense that do not allow persons to stay more than 30 days.

(7) A description of any additional authorities or resources the Secretary determines are necessary to increase capacity and to ensure such parks are equally accessible to all persons authorized to use such parks.

TITLE VII—HEALTH CARE PROVISIONS

Subtitle A—TRICARE and Other Health Benefits

SEC. 701. DENTAL READINESS FOR CERTAIN MEMBERS OF SELECTED RESERVE.

Section 1076a of title 10, United States Code, is amended—

(1) in subsection (a)—

(A) in paragraph (1), by striking ''A dental insurance plan'' and inserting ''Except as

provided by paragraph (5), a dental insurance plan'';

(B) in paragraph (2), in the header, by inserting ''INDIVIDUAL READY'' after ''OTHER''; and

(C) by adding at the end the following new paragraph:

''(5) PLAN FOR CERTAIN SELECTED RESERVE.—A dental benefits plan for members of the Selected Reserve of the Ready Reserve in pay grade E–1, E–2, E–3, or E–4.'';

(2) in subsection (d)—

(A) by redesignating paragraph (3) as paragraph (4); and

(B) by inserting after paragraph (2) the following new paragraph:

''(3) NO PREMIUM PLANS.—(A) The dental insurance plan established under subsection (a)(5) is a no premium plan.

''(B) Members enrolled in a no premium plan may not be charged a premium for benefits provided under the plan.'';

(3) by redesignating subsections (f) through (l) as subsections (g) through (m), respectively;

(4) by inserting after subsection (e) the following new subsection (f):

''(f) COPAYMENTS UNDER NO PREMIUM PLANS.—A member who receives dental care under a no premium plan referred to in subsection (d)(3) shall pay no charge for any care described in subsection (e).''; and

(5) in subsection (i), as redesignated by paragraph (4), by striking ''subsection (k)(2)'' and inserting ''subsection (l)(2)''.

SEC. 702. EXPANDED ACCESS TO DENTAL CARE FOR CERTAIN DEPENDENTS.

Paragraph (2) of section 1077(c) of title 10, United States Code, is amended to read as follows:

''(2) Dependents who are covered by a dental plan established under section 1076a of this title may be treated on a space available basis by postgraduate dental residents in a dental treatment facility of the uniformed services under a graduate dental education program accredited by the American Dental Association if the Secretary of Defense determines that adequate resources exist to provide such treatment.''.

SEC. 703. FERTILITY TREATMENT FOR CERTAIN MEMBERS OF THE ARMED FORCES AND DEPENDENTS.

(a) FERTILITY TREATMENT.—Chapter 55 of title 10, United States Code, is amended by inserting after section 1074o the following new section:

"§ 1074p. Fertility treatment for certain active duty members of the armed forces and dependents

''(a) COVERAGE.—The Secretary shall ensure that fertility-related care for a covered member (or a dependent of such a member) shall be covered under TRICARE Prime and TRICARE Select.

''(b) IN VITRO FERTILIZATION.—In the case of in vitro fertilization treatment furnished to an individual pursuant to subsection (a)—

''(1) three completed oocyte retrievals may be furnished per calendar year; and

''(2) single embryo transfers shall be provided unless otherwise medically indicated in accordance with the guidelines of the American Society for Reproductive Medicine.

''(c) COST SHARING AND OTHER LIMITATIONS.—The Secretary shall ensure that cost-sharing amounts for an individual who receives fertility-related care under this section are determined under section 1075, 1075a, or other applicable provision of this chapter in accordance

with the kind of care provided (such as an in-network inpatient visit) and without regard to whether the care is fertility-related care. The Secretary may not impose any waiting periods or other limitations once the individual has received a medical diagnosis of infertility.

''(d) PROHIBITIONS.—Funds available to the Department of Defense may not be used for preimplantation genetic screening, human cloning, international surrogacy, or artificial womb technology.

''(e) DEFINITIONS.—In this section:

''(1) The term 'covered member' means—

''(A) a member of the Army, Navy, Marine Corps, Air Force, or Space Force, serving on active duty; and

''(B) does not include a former member of the armed forces.

''(2) The term 'infertility' means a disease, condition, or status characterized by—

''(A) the failure to establish a pregnancy or to carry a pregnancy to live birth after regular, unprotected sexual intercourse in accordance with the guidelines of the American Society for Reproductive Medicine;

''(B) the inability of an individual to reproduce without medical intervention either as a

single individual or with the partner of the individual; or

''(C) the findings of a licensed physician based on the medical, sexual, and reproductive history, age, physical findings, or diagnostic testing, of the individual.

''(3) The term 'fertility-related care' means—

''(A) the diagnosis of infertility; and

''(B) fertility treatment.

''(4) The term 'fertility treatment' includes the following:

''(A) In vitro fertilization or other treatments or procedures in which human oocytes, embryos, or sperm are handled when clinically appropriate.

''(B) Sperm retrieval.

''(C) Egg retrieval.

''(D) Preservation of human oocytes, embryos, or sperm.

''(E) Artificial insemination, including intravaginal insemination, intracervical insemination, and intrauterine insemination.

''(F) Transfer of reproductive genetic material.

''(G) Medications as prescribed or necessary for fertility.

''(H) Fertility treatment coordination.

''(I) Such other information, referrals, treatments, procedures, testing, medications, laboratory services, technologies, and services facilitating reproduction as determined appropriate by the Secretary of Defense.''.

(b) PROGRAM ON FERTILITY TREATMENT COORDINATION.—Chapter 55 of title 10, United States Code, is amended by adding at the end the following new section:

''§ 1110c. Program on fertility-related care coordination

''(a) IN GENERAL.—The Secretary of Defense shall establish a program on the coordination of fertility-related care by the Secretary for purposes of ensuring patients receive timely fertility-related care.

''(b) TRAINING AND SUPPORT.—In carrying out the program established under subsection (a), the Secretary shall provide to community health care providers training and support with respect to the unique needs of members of the armed forces and the dependents of such members.''.

(c) CONFORMING AMENDMENT.—Section 1079(a) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(21) Fertility-related care shall be provided in accordance with section 1074p of this title.''.

(d) EXCLUSION FROM CONTRACTS FOR FORMER MEMBERS AND THEIR DEPENDENTS.—Section 1086(a) of such title is amended by striking ''eye examinations and'' and inserting ''eye examinations, fertility-related care pursuant to paragraph (21) of such section, and''.

(e) APPLICATION.—The amendments made by this section shall apply with respect to services provided on or after October 1, 2028.

SEC. 704. LIMITATION ON ABILITY OF SECRETARY OF DEFENSE TO MODIFY SCOPE OF MEDICAL SERVICES.

(a) LIMITATION.—Section 1073d(f) of title 10, United States Code, is amended—

(1) in paragraph (1)(A), by striking ''a notification of'' and inserting ''a notification under paragraph (2) and a report under paragraph (3) regarding''; and

(2) by adding at the end the following new paragraph:

''(3) Each report under paragraph (1) shall contain the following:

''(A) A budget that is consistent with the requirements under this chapter regarding access to medical care and the quality of such care.

''(B) A description of how the Secretary uses enhanced appointment and compensation authorities, including under section 1599c of this title, to recruit and retain civilian employees.

''(C) An analysis of the effects to services at a military medical treatment facility when any medical provider who is a member of the armed forces permanently changes station and the position of such member is not filled (whether by a member, a civilian, or a contractor).

''(D) The number of positions required to fully staff the current military health system, as of the date of the report, and the number of such unfilled positions, including with respect to whether such positions would be filled by a member, a civilian, or a contractor.

''(E) An analysis of the ability of the managed care network to absorb a member or covered beneficiary that cannot be provided care at a military medical treatment facility, including an explanation

of the exact elements used in developing a cost analysis between such providing care through such network and such facilities.

''(F) An analysis of the ability of the Defense Health Agency to encourage members and covered beneficiaries to use military medical treatment facilities over the managed care network.

''(G) The status of efforts to close all recommendations by the Comptroller General of the United States contained in the July 2025 report titled 'Defense Health Care: Information Needed to Improve Monitoring of Military Personnel Staffing at Medical Facilities' and numbered GAO-25-106988.

''(H) The status of efforts to close all recommendations by the Comptroller General contained in the April 2025 report titled 'Defense Healthcare Actions Needed to Address Long-Standing Management Challenges with Medical Facilities' and numbered GAO-25-107432.

''(I) The status of efforts to close all recommendations by the Inspector General of the Department of Defense contained in the December 2025 report titled 'Audit of the Defense Health Agency's Management of Military Medical Treat-

ment Facilities Outside the Continental United States in Meeting Access to Primary Care Standards' and numbered DODIG-2026-025.''.

(b) APPLICATION.—The amendments made by subsection (a) shall apply with respect to any modification of the scope of medical care proposed by the Secretary of Defense on or after January 1, 2026, including such proposals submitted by the Under Secretary of Defense for Personnel and Readiness to the Committees on Armed Services of the House of Representatives and the Senate on March 4, 2026.

SEC. 705. PROHIBITION ON AND REVERSAL OF ACTIONS TO MODIFY SCOPE OF MEDICAL SERVICES PROVIDED AT CERTAIN MILITARY MEDICAL TREATMENT FACILITIES.

(a) PROHIBITION.—The Secretary of Defense may not take any action to carry out a service change described in subsection (c).

(b) REVERSAL AND RESTORATION.—Not later than 30 days after the date of the enactment of this Act, the Secretary of Defense shall carry out the following actions:

(1) Reverse any steps taken to carry out a service change described in subsection (c).

(2) Restore personnel and clinical services affected by any such service change to the level exist-

ing as of March 3, 2026 (unless such level is otherwise modified by a provision of law enacted on or after such date).

(c) SERVICE CHANGE DESCRIBED.—A service change described in this subsection is a service change specified in the notification of service changes submitted by the Under Secretary of Defense for Personnel and Readiness to the Committees on Armed Services of the House of Representatives and the Senate on March 4, 2026, pursuant to section 1073d(f) of title 10, United States Code, including the following:

(1) EISENHOWER ARMY MEDICAL CENTER, FORT GORDON, GEORGIA.—With respect to the Eisenhower Army Medical Center, Fort Gordon, Georgia—

(A) converting the military medical treatment facility from an inpatient hospital to an outpatient ambulatory care center;

(B) discontinuing inpatient, operating, and emergency room services; and

(C) realigning medical manpower to other military medical treatment facilities.

(2) 88TH MEDICAL GROUP, WRIGHT-PATTERSON AIR FORCE BASE, OHIO.—With respect to the 88th

Medical Group, Wright-Patterson Air Force Base, Ohio—

(A) converting the military medical treatment facility from an inpatient hospital to an outpatient ambulatory care center with surgical capabilities;

(B) discontinuing inpatient, operating, and emergency room services;

(C) realigning medical manpower to other military medical treatment facilities;

(D) closing pediatric cardiology services; and

(E) discontinuing contracts for chiropractic services.

(3) NAVAL HOSPITAL BEAUFORT, SOUTH CAROLINA.—With respect to the Naval Hospital Beaufort, South Carolina—

(A) converting the military medical treatment facility from an inpatient hospital to an outpatient ambulatory care center;

(B) discontinuing inpatient, operating, and emergency room services;

(C) realigning medical manpower to other military medical treatment facilities; and

(D) discontinuing contracts for chiropractic services.

(4) 22D MEDICAL GROUP, MCCONNELL AIR FORCE BASE, KANSAS.—With respect to the 22d Medical Group, McConnell Air Force Base, Kansas, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(5) 19TH MEDICAL GROUP, LITTLE ROCK AIR FORCE BASE, ARKANSAS.—With respect to the 19th Medical Group, Little Rock Air Force Base, Arkansas—

(A) limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members; and

(B) discontinuing contracts for nutrition services.

(6) 341ST MEDICAL GROUP, MALMSTROM AIR FORCE BASE, MONTANA.—With respect to the 341st Medical Group, Malmstrom Air Force Base, Montana, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(7) 28TH MEDICAL GROUP, ELLSWORTH AIR FORCE BASE, SOUTH DAKOTA.—With respect to the 28th Medical Group, Ellsworth Air Force Base, South Dakota, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(8) 92D MEDICAL GROUP, FAIRCHILD AIR FORCE BASE, WASHINGTON.—With respect to the 92d Medical Group, Fairchild Air Force Base, Washington, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(9) 90TH MEDICAL GROUP, FRANCIS E. WARREN AIR FORCE BASE, WYOMING.—With respect to the 90th Medical Group, Francis E. Warren Air Force Base, Wyoming, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(10) 355TH MEDICAL GROUP, DAVIS-MONTHAN AIR FORCE BASE, ARIZONA.—With respect to the 355th Medical Group, Davis-Monthan Air Force Base, Arizona, limiting access to the military med-

ical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(11) 9TH MEDICAL GROUP, BEALE AIR FORCE BASE, CALIFORNIA.—With respect to the 9th Medical Group, Beale Air Force Base, California, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(12) 45TH MEDICAL GROUP, PATRICK SPACE FORCE BASE, FLORIDA.—With respect to the 45th Medical Group, Patrick Space Force Base, Florida, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(13) 4TH MEDICAL GROUP, SEYMOUR JOHNSON AIR FORCE BASE, NORTH CAROLINA.—With respect to the 4th Medical Group, Seymour Johnson Air Force Base, North Carolina, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(14) 20TH MEDICAL GROUP, SHAW AIR FORCE BASE, SOUTH CAROLINA.—With respect to the 20th

Medical Group, Shaw Air Force Base, South Carolina—

(A) limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members; and

(B) discontinuing contracts for nutrition services.

(15) 460TH MEDICAL GROUP, BUCKLEY SPACE FORCE BASE, COLORADO.—With respect to the 460th Medical Group, Buckley Space Force Base, Colorado, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(16) 27TH SPECIAL OPERATIONS MEDICAL GROUP, CANNON AIR FORCE BASE, NEW MEXICO.—With respect to the 27th Special Operations Medical Group, Cannon Air Force Base, New Mexico, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(17) 412TH MEDICAL GROUP, EDWARDS AIR FORCE BASE, CALIFORNIA.—With respect to the 412th Medical Group, Edwards Air Force Base,

California, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(18) 30TH MEDICAL GROUP, VANDENBERG SPACE FORCE BASE, CALIFORNIA.—With respect to the 30th Medical Group, Vandenberg Space Force Base, California, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(19) NAVAL HEALTH CLINIC CORPUS CHRISTI, TEXAS.—With respect to Naval Health Clinic Corpus Christi, Texas, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members.

(20) 23D MEDICAL GROUP, MOODY AIR FORCE BASE, GEORGIA.—With respect to the 23d Medical Group, Moody Air Force Base, Georgia, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members living on base.

(21) 366TH MEDICAL GROUP, MOUNTAIN HOME AIR FORCE BASE, IDAHO.—With respect to the 366th Medical Group, Mountain Home Air Force Base, Idaho, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members living on base.

(22) 319TH MEDICAL GROUP, GRAND FORKS AIR FORCE BASE, NORTH DAKOTA.—With respect to the 319th Medical Group, Grand Forks Air Force Base, North Dakota, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members living on base.

(23) 61ST MEDICAL SQUADRON, LOS ANGELES SPACE FORCE BASE, CALIFORNIA.—With respect to the 61st Medical Squadron, Los Angeles Space Force Base, California, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty and the dependents of such members living on base.

(24) 78TH MEDICAL GROUP, ROBINS AIR FORCE BASE, GEORGIA.—With respect to the 78th Medical Group, Robins Air Force Base, Georgia, limiting access to the military medical treatment facility only

to members of the Armed Forces serving on active duty.

(25) 72D MEDICAL GROUP, TINKER AIR FORCE BASE, OKLAHOMA.—With respect to the 72d Medical Group, Tinker Air Force Base, Oklahoma, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty.

(26) 75TH MEDICAL GROUP, HILL AIR FORCE BASE, UTAH.—With respect to the 75th Medical Group, Hill Air Force Base, Utah, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty.

(27) 66TH MEDICAL SQUADRON, HANSCOM AIR FORCE BASE, MASSACHUSETTS.—With respect to the 66th Medical Squadron, Hanscom Air Force Base, Massachusetts, limiting access to the military medical treatment facility only to members of the Armed Forces serving on active duty.

(28) DAVID GRANT MEDICAL CENTER, TRAVIS AIR FORCE BASE, CALIFORNIA.—With respect to the David Grant Medical Center, Travis Air Force Base, California, closing the labor and delivery services.

(29) 42D MEDICAL GROUP, MAXWELL AIR FORCE BASE, ALABAMA.—With respect to the 42d

Medical Group, Maxwell Air Force Base, Alabama, discontinuing educational and developmental intervention services.

(30) VILSECK ARMY HEALTH CLINIC, GERMANY.—With respect to the Vilseck Army Health Clinic, Germany, discontinuing physical medicine and rehabilitation services.

(31) DESERT SAGE COMMUNITY BASED MEDICAL HOME, WILLIAM BEAUMONT ARMY MEDICAL CENTER, FORT BLISS, TEXAS.—With respect to the Desert Sage Community Based Medical Home, William Beaumont Army Medical Center, Fort Bliss, Texas, closing such home.

(32) NAVAL HEALTH CLINIC PATUXENT RIVER, BRANCH HEALTH CLINIC DAHLGREN, VIRGINIA.—With respect to Naval Health Clinic Patuxent River, Branch Health Clinic Dahlgren, Virginia, discontinuing radiology services.

(33) ARMY HEALTH CLINIC MUNSON, FORT LEAVENWORTH, KANSAS.—With respect to Army Health Clinic Munson, Fort Leavenworth, Kansas, discontinuing mammography services.

(34) NAVAL HEALTH CLINIC LEMOORE, CALIFORNIA.—With respect to Naval Health Clinic

Lemoore, California, discontinuing operating room services.

(35) 55TH MEDICAL GROUP, OFFUTT AIR FORCE BASE, NEBRASKA.—With respect to the 55th Medical Group, Offutt Air Force Base, Nebraska—

(A) discontinuing contracts for nutrition services; and

(B) discontinuing contracts for chiropractic services.

(36) 7TH MEDICAL GROUP, DYESS AIR FORCE BASE, TEXAS.—With respect to the 7th Medical Group, Dyess Air Force Base, Texas, discontinuing contracts for nutrition services.

(37) 2D MEDICAL GROUP, BARKSDALE AIR FORCE BASE, LOUISIANA.—With respect to the 2d Medical Group, Barksdale Air Force Base, Louisiana—

(A) discontinuing contracts for nutrition services; and

(B) discontinuing contracts for chiropractic services.

(38) 87TH MEDICAL GROUP, JOINT BASE MCGUIRE-DIX-LAKEHURST, NEW JERSEY.—With respect to the 87th Medical Group, Joint Base McGuire-Dix-Lakehurst, New Jersey—

(A) discontinuing contracts for nutrition services; and

(B) discontinuing contracts for chiropractic services.

(39) 1ST SPECIAL OPERATIONS MEDICAL GROUP, HURLBURT FIELD, FLORIDA.—With respect to 1st Special Operations Medical Group, Hurlburt Field, Florida, discontinuing contracts for chiropractic services.

(40) 10TH MEDICAL GROUP, UNITED STATES AIR FORCE ACADEMY, COLORADO.—With respect to 10th Medical Group, United States Air Force Academy, Colorado, discontinuing contracts for chiropractic services.

(41) 96TH MEDICAL GROUP, EGLIN AIR FORCE BASE, FLORIDA.—With respect to 96th Medical Group, Eglin Air Force Base, Florida, discontinuing contracts for chiropractic services.

(d) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on each action taken under subsection (b).

(e) SERVICE CHANGE DEFINED.—The term ''service change'' means, with respect to a military medical treat-

ment facility, an action by the Secretary of Defense to modify the scope of medical care provided at the facility, or the beneficiary population served at the facility, as described in section 1073d(f) of title 10, United States Code, including with respect to reducing or transferring personnel, converting an inpatient hospital to an outpatient ambulatory care center, and restricting the type of beneficiary that can access the facility.

SEC. 706. TRICARE COVERAGE FOR INCREASED SUPPLY FOR CONTRACEPTION.

(a) IN GENERAL.—Beginning not less than 180 days after the date of the enactment of the Act, contraceptive supplies of up to 365 days shall be covered for any eligible covered beneficiary to obtain, including in a single fill or refill, at the option of such beneficiary, the total days of supply (not to exceed a 365-day supply) for a contraceptive on the uniform formulary provided through a military treatment facility pharmacy, retail pharmacy described in section 1074g(a)(2)(E)(ii) of title 10, United States Code, or through the national mail-order pharmacy program of the TRICARE Program.

(b) OUTREACH.—Beginning not later than 90 days after the implementation of coverage under subsection (a), the Secretary shall conduct such outreach activities as are necessary to inform health care providers and individuals

who are enrolled in the TRICARE Program of such coverage and the requirements to receive such coverage.

(c) DEFINITIONS.—In this section:

(1) The term ''covered Armed Force'' means the Army, Navy, Marine Corps, Air Force, or Space Force.

(2) The term ''eligible covered beneficiary'' means an eligible covered beneficiary as such term is used in section 1074g of title 10, United States Code, who is—

(A) a member of a covered Armed Force serving on active duty; or

(B) a dependent of a member described in subparagraph (A).

(3) The term ''TRICARE Program'' has the meaning given that term in section 1072 of title 10, United States Code.

SEC. 707. PILOT PROGRAM TO HELP CERTAIN MEMBERS OF THE ARMED FORCES STOP SMOKING.

(a) AUTHORITY.—Beginning not later than 180 days after the date of the enactment of this Act, the Secretary of Defense may carry out a one-year pilot program to furnish to covered members the alternatives to smoking specified in subsection (b)—

(1) to help such covered members stop smoking; and

(2) to improve the health of such covered members.

(b) ALTERNATIVES TO SMOKING.—The alternatives to smoking specified in this subsection are—

(1) counseling;

(2) nicotine gum;

(3) nicotine patches;

(4) electric nicotine delivery systems;

(5) nicotine pouches; and

(6) heat-not-burn products.

(c) PARTICIPATION.—If the Secretary carries out the pilot program under subsection (a), the pilot program shall operate—

(1) in not less than one covered Armed Force; and

(2) at not less than one military installation at which covered members serve in numbers that exceed the national average for—

(A) smoking cigarettes or other combustible tobacco products;

(B) the population of Black Americans;

(C) the population of Asian and Pacific Islander Americans;

(D) the population of Hispanic Americans; and

(E) the population of Appalachian Americans.

(d) REPORT.—Not later than one year after the date on which the pilot program under subsection (a) is completed, the Secretary shall submit to the Committees on Armed Services of the Senate and House of Representatives a report regarding the results of the pilot program, including the determination of the Secretary regarding—

(1) whether the pilot program helped covered members stop smoking;

(2) the alternatives specified in subsection (b) that are most effective in helping covered members to stop smoking;

(3) gaps in health care services available to covered members who belong to the populations described in subsection (c)(2); and

(4) the recommendation of the Secretary whether to expand, extend, or make permanent the pilot program.

(e) DEFINITIONS.—In this section:

(1) The term ''covered Armed Force'' means the Army, Navy, Marine Corps, Air Force, or Space Force.

(2) The term ''covered member'' means a member of a covered Armed Force—

(A) serving on active duty; and

(B) who smokes at least one cigarette (or other combustible tobacco product) per week.

SEC. 708. CONTINUITY OF MATERNITY CARE DURING PERMANENT CHANGE OF STATION.

(a) REQUIREMENT.—The Secretary of Defense shall establish procedures to ensure continuity of care for pregnant and postpartum members of the Armed Forces and spouses of such members during a permanent change of station.

(b) REQUIREMENTS.—The procedures required under subsection (a) shall include—

(1) coordination between the military medical treatment facilities at the relevant military installations;

(2) timely transfer of medical records;

(3) assignment of a receiving provider before the permanent change of station, to the extent practicable; and

(4) measures to prevent interruption of prenatal, obstetric, postpartum, and behavioral health services.

(c) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report on the implementation of this section.

SEC. 709. PROHIBITION ON COVERAGE OF GENDER-RELATED MEDICAL TREATMENT UNDER TRICARE.

(a) TRICARE.—

(1) IN GENERAL.—Chapter 55 of title 10, United States Code, is amended by inserting after section 1076f the following new section:

"§ 1076g. TRICARE program: prohibition on coverage and furnishment gender-related medical treatment

''(a) PROHIBITION.—Except as provided by subsection (b), medical care under section 1076 of this title with respect to members of the armed forces and dependents of such members does not include gender-related medical treatment, and the Secretary of Defense may not furnish any such treatment.

''(b) EXCEPTIONS.—The prohibition in subsection (a) shall not apply to medical treatment provided for purposes of treating—

''(1) a disorder of sex development, diagnosed by a physician after such physician has determined

through genetic or biochemical testing that such minor does not have normal sex chromosome structure, sex steroid hormone production, or sex steroid hormone action;

''(2) irresolvably ambiguous biological sex characteristics of such minor, including the presence of—

''(A) 46 XX chromosomes with virilization;

''(B) 46 XY chromosomes with undervirilization; or

''(C) both ovarian and testicular tissue; or

''(3) an infection, injury, disease, or disorder caused or exacerbated by gender-related medical treatment.

''(c) DEFINITIONS.—In this section:

''(1) The term 'female' means an individual who naturally has, had, will have, or would have, but for a developmental or genetic anomaly or historical accident, the reproductive system that at some point produces, transports, and utilizes eggs for fertilization.

''(2) The term 'gender'—

''(A) means—

''(i) males, females, or the natural differences between males and females, unless

such term is otherwise specified or used alone (rather than with or as an adjective modifying other words); and

''(ii) is a synonym for sex; and

''(B) does not mean gender identity, experienced gender, gender expression, or gender roles.

''(3) The term 'gender-related medical treatment' means—

''(A) with respect to a female individual, medical treatments provided for purposes of addressing the perception of such individual that the gender or sex of such individual is not female, including—

''(i) surgical procedures, including—

''(I) vaginectomy;

''(II) hysterectomy;

''(III) oophorectomy;

''(IV) reconstruction of the urethra;

''(V) metoidioplasty;

''(VI) phalloplasty;

''(VII) salpingo-oophorectomy;

''(VIII) scrotoplasty;

''(IX) implantation of erection or testicular protheses;

''(X) subcutaneous mastectomy;

''(XI) vocal cord surgery;

''(XII) pectoral implants; and

''(XIII) penile transplantation;

''(ii) exogenous doses of testosterone or other androgens; and

''(iii) puberty blockers, including—

''(I) GnRH agonists; and

''(II) synthetic drugs that suppress the production of estrogen and progesterone or delay or suppress pubertal development in female individuals; and

''(B) with respect to a male individual, medical treatments provided for purposes of addressing the perception of such individual that the gender or sex of such individual is not male, including—

''(i) surgical procedures, including—

''(I) penectomy;

''(II) orchiectomy;

''(III) vaginoplasty;

''(IV) clitoroplasty;

''(V) vulvoplasty;

''(VI) augmentation mammoplasty;

''(VII) facial feminization surgery;

''(VIII) vocal cord surgery;

''(IX) chondrolaryngoplasty;

''(X) gluteal augmentation; and

''(XI) uterine transplantation;

''(ii) exogenous doses of estrogen; and

''(iii) puberty blockers, including—

''(I) GnRH agonists; and

''(II) synthetic drugs that suppress the production of testosterone or delay or suppress pubertal development in male individuals.

''(4) The term 'male' means an individual who naturally has, had, will have, or would have, but for a developmental or genetic anomaly or historical accident, the reproductive system that at some point produces, transports, and utilizes sperm for fertilization.

''(5) The term 'sex' means the biological determination as to whether an individual is male or female.

''(d) RULE OF CONSTRUCTION.—Nothing in this section may be construed to entitle an individual to medical care under this chapter for which they are not otherwise entitled to under this chapter.''.

(b) CONFORMING AMENDMENTS.—Such chapter is further amended as follows:

(1) In section 1077(b), by adding at the end the following:

''(4) Treatment prohibited under section 1076g of this title with respect to members of the armed forces and dependents of such members.''.

(2) In section 1079(a)(20), by striking ''that could result in sterilization''.

SEC. 710. COVERAGE OF CRANIAL ORTHOTIC DEVICES FOR DEFORMATIONAL PLAGIOCEPHALY UNDER TRICARE PROGRAM.

Section 1079(a) of title 10, United States Code, as amended by section 703, is further amended by adding at the end the following new paragraph:

''(22) Cranial orthotic devices (molding helmets) for deformational plagiocephaly may be provided as part of a reconstructive medical treatment.''.

SEC. 711. TRICARE COVERAGE FOR ANESTHESIA FOR IN-OFFICE DENTAL PROCEDURES FOR PEDIATRIC DENTISTRY FOR CHILDREN AGE 5 AND UNDER.

Section 1079(a)(1)(B) of title 10, United States Code, is amended by striking ''or for pediatric patients age 5 or under, only institutional and anesthesia services may be provided'' and inserting ''or for pediatric patients age 5 or under, only institutional services and anesthesia services (including at a dental clinic with respect to such pediatric patients) may be provided''.

SEC. 712. EDUCATION ON NEWBORN SCREENING OPTIONS FOR TRICARE BENEFICIARIES.

(a) EDUCATION REQUIREMENT.—The Secretary of Defense shall ensure that covered beneficiaries receiving prenatal care through the military health system are provided educational information regarding newborn screening.

(b) CONTENTS.—The educational information provided under subsection (a) shall include—

(1) a description of newborn screening and the purpose of such screening in identifying certain congenital and genetic conditions in infants;

(2) information regarding conditions recommended by the Secretary of Health and Human Services for newborn screening in infants;

(3) notice that newborn screening panels may vary depending on the State or location in which an infant is born; and

(4) information describing options for discussing and obtaining supplemental newborn screening for conditions recommended by the Secretary of Health and Human Services for newborn screening in infants that may not be included in the applicable State newborn screening panel.

(c) PROVISION OF INFORMATION.—The Secretary shall ensure that the educational information described in subsection (a) is made available to covered beneficiaries receiving prenatal care through—

(1) military medical treatment facilities; and

(2) TRICARE network providers furnishing prenatal care.

(d) REPORT.—Not later than one year after the date of the enactment of this section, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the feasibility of ensuring that newborns of covered beneficiaries receive screening for all conditions recommended by the Secretary of Health and Human Services for newborn screening in infants, including conditions not in-

cluded in the applicable State newborn screening panel. Such report shall include—

(1) an assessment of the feasibility of providing such screening through military medical treatment facilities and private sector care under TRICARE;

(2) an estimate of the costs associated with providing such screening;

(3) an assessment of the administrative and logistical requirements associated with identifying gaps in State newborn screening panels and providing supplemental screening; and

(4) options for implementing such screening, including through reimbursement, contracting, or other mechanisms.

(e) COVERED BENEFICIARY DEFINED.—In this section, the term ''covered beneficiary'' has the meaning given the term in section 1072 of title 10, United States Code.

SEC. 713. IMPROVEMENT TO CONTINUATION OF TRANSITIONAL HEALTH CARE.

Section 1145(a)(4) of title 10, United States Code, is amended—

(1) by striking ''Except as'' and inserting ''(A) Except as''; and

(2) by adding at the end the following new subparagraph:

''(B) In carrying out this subsection, the Secretary of Defense shall ensure that a member may enroll in the transitional health care under paragraph (1) by not later than two business days after the date on which the 180-day transition period begins.''.

Subtitle B—Health Care Administration

SEC. 721. IMPROVEMENTS TO DEFENSE HEALTH AGENCY.

(a) ADMINISTRATION OF MILITARY MEDICAL TREATMENT FACILITIES.—Subsection (b) of section 1073c of title 10, United States Code, is amended—

(1) in paragraph (1)—

(A) in subparagraph (H), by striking ''; and'' and inserting a semicolon;

(B) by redesignating subparagraph (I) as subparagraph (J); and

(C) by inserting after subparagraph (H) the following new subparagraph (I):

''(I) civilian personnel; and''; and

(2) in paragraph (2)—

(A) by striking subparagraph (C) and inserting the following new subparagraph:

''(C) to determine, in coordination with the senior military operational commander of each military installation with a military medical treatment facility, the scope of medical care provided at each such facility to meet—

''(i) the military personnel readiness requirements of such commander; and

''(ii) the health care requirements of members of the armed forces and covered beneficiaries, as determined by such commander;'';

(B) in subparagraph (D), by striking ''or the Assistant Secretary of Defense for Health Affairs'';

(C) in subparagraph (F), by striking ''joint manning'' and inserting '' uniformed, joint, civilian, and contractor manning'';

(D) by striking subparagraph (G);

(E) by redesignating subparagraphs (H) and (I) as subparagraphs (G) and (H), respectively; and

(F) in subparagraph (G), as so redesignated, by inserting ''civilian and contractor'' after ''address''.

(b) ASSISTANT DIRECTOR.—Subsection (c)(1)(A) of such section is amended by inserting ''or an officer of the armed forces'' before the semicolon.

(c) DEPUTY ASSISTANT DIRECTOR FOR FINANCIAL OPERATIONS.—Subparagraph (B) of subsection (d)(2) of such section is amended to read as follows:

''(B) The Deputy Assistant Director for Financial Operations shall be responsible for the policy, procedures, and direction of budgeting matters and financial management with respect to the following:

''(i) The provision of direct care at military medical treatment facilities.

''(ii) The TRICARE program.

''(iii) Certain medical readiness activities and expeditionary medical capabilities (as determined by the commanders of the combatant commands, in consultation with the Surgeons General of the armed forces and the Joint Staff Surgeon).

''(iv) Education and training programs.

''(v) Research, development, test, and evaluation.

''(vi) Management and headquarters activities.

''(vii) Facilities sustainment.

''(viii) Procurement.

''(ix) Civilian and contractor personnel.''.

(d) CERTAIN RESPONSIBILITIES OF DIRECTOR.—Subsection (e)(2) of such section is amended—

(1) in subparagraph (A)—

(A) by striking ''Ensuring that'' and inserting ''Coordinating with the commanders of the combatant commands to ensure''; and

(B) by striking ''the commanders of the combatant commands.'' and inserting ''such commanders.''; and

(2) in subparagraph (C)—

(A) by striking ''Ensuring that'' and inserting ''Coordinating with the senior military operational commander of each military installation with a military medical treatment facility to ensure''; and

(B) by striking ''the senior military operational commanders of the military installations.'' and inserting ''such commanders.''.

(e) CONSULTATIONS ON THE MILITARY HEALTH SYSTEM BUDGET.—Subsection (h) of such section is amended—

(1) in the heading, by striking ''MEDICAL RESEARCH OF MILITARY DEPARTMENTS'' and inserting ''CERTAIN MATTERS'';

(2) by striking ''In establishing'' and inserting ''(1) In establishing''; and

(3) by adding at the end the following new paragraph:

''(2) On a basis that is not less frequent than semi-annually, the Secretary of Defense, in coordination with the Under Secretary of Defense for Personnel and Readiness, shall carry out recurring consultations with each military department and the Surgeons General of each armed force regarding the budgetary requirements for each military department, including with respect to each matter specified in subsection (d)(2)(B).''.

(f) DEFINITION OF HEALTH CARE ADMINISTRATION.—Subsection (k) of such section is amended by adding at the end the following:

''(4) The term 'health care administration' means the administration and management of the following:

''(A) Health information technology.

''(B) Pharmacy operations.

''(C) Medical logistics.

''(D) Facility planning.

''(E) The health plan options of the TRICARE program.''.

(g) SUBMISSION OF ORGANIZATIONAL CHART.—Not later than 60 days after the date of the enactment of this Act, the Assistant Secretary of Defense for Health Affairs shall submit to the Committees on Armed Services of the House of Representatives and the Senate an organizational chart of the Defense Health Agency, including an analysis of how the organization of the Defense Health Agency meets the requirements of section 1073c of title 10, United States Code.

SEC. 722. IMPROVEMENTS TO ADMINISTRATION OF MILITARY MEDICAL TREATMENT FACILITIES.

(a) SUPPORT PROVIDED BY MTFS.—Subsection (a) of section 1073d of title 10, United States Code, is amended by striking ''and the readiness of medical personnel,'' and inserting '', the readiness of medical personnel, and the health care services available for covered beneficiaries,''.

(b) MEDICAL CENTERS.—Subsection (b) of such section is amended—

(1) in paragraph (2), by striking ''that support medical readiness'';

(2) in paragraph (4)(C)(ii), by striking ''improving'' and inserting ''ensuring''; and

(3) in paragraph (5)(C)(ii)—

(A) by striking ''may'' and inserting ''shall''; and

(B) by inserting ''or contractors'' after ''civilian employees''.

(c) HOSPITALS.—Subsection (c) of such section is amended—

(1) in paragraph (2)—

(A) in subparagraph (A), by striking ''; and'' and inserting a semicolon;

(B) by redesignating subparagraph (B) as subparagraph (C); and

(C) by inserting after subparagraph (A) the following new subparagraph:

''(B) inpatient and outpatient health services with limited speciality care to provide medical care to all eligible beneficiaries; and''; and

(2) in paragraph (3)—

(A) by redesignating subparagraphs (A) and (B) as subparagraphs (B) and (C), respectively; and

(B) by inserting before subparagraph (B), as so redesignated, the following new subparagraph:

''(A) is necessary for medical readiness;''.

(d) AMBULATORY CARE CENTERS.—Subsection (d)(3) of such section is amended—

(1) by redesignating subparagraphs (A) and (B) as subparagraphs (B) and (C), respectively; and

(2) by inserting before subparagraph (B), as so redesignated, the following new subparagraph:

''(A) is necessary for medical readiness;''.

(e) MAINTENANCE OF INPATIENT CAPABILITIES AT MILITARY MEDICAL TREATMENT FACILITIES LOCATED OUTSIDE THE UNITED STATES.—Subsection (e)(2) of such section is amended—

(1) in the matter preceding subparagraph (A), by striking ''180 days'' and inserting ''one year''; and

(2) by redesignating subparagraph (C) as subparagraph (D);

(3) by inserting after subparagraph (B) the following new subparagraph:

''(C) The Secretary has consulted with the relevant operational commander or installation commander, as appropriate, to ensure that the proposed elimination would have no impact on access by eligible beneficiaries to health care.''; and

(4) in subparagraph (D), as so redesignated, by striking ''Before'' and inserting ''At least one year before''.

(f) NOTIFICATION REQUIRED TO MODIFY SCOPE OF SERVICES PROVIDED AT MILITARY MEDICAL TREATMENT FACILITIES.—Subsection (f) of such section is amended—

(1) in paragraph (1)(B), by striking ''180 days'' and inserting ''one year''; and

(2) in paragraph (2), by adding at the end the following new subparagraph:

''(D) An analysis of the capability of the local community to absorb patients and the anticipated cost to the managed care support contract.''.

SEC. 723. DESIGNATION OF DEFENSE HEALTH AGENCY AS COMBAT SUPPORT AGENCY.

Section 193(f) of title 10, United States Code, is amended—

(1) by redesignating paragraph (5) as paragraph (6); and

(2) by inserting after paragraph (4) the following new paragraph:

''(5) The Defense Health Agency.''.

SEC. 724. ACCOUNTS FOR MEDICAL AND HEALTH CARE PROGRAMS OF THE DEPARTMENT OF DEFENSE.

(a) IN GENERAL.—Section 1100 of title 10, United States Code, is amended to read as follows:

"§ 1100. Accounts for medical and health care programs of the Department of Defense

''(a) COMBAT AND OPERATIONAL MEDICINE PROGRAM ACCOUNT.—(1) There is hereby established in the Treasury of the United States an account to be known as the 'Combat and Operational Medicine Program Account'. All sums appropriated to carry out the functions of the Secretary of Defense with respect to the military medical and health care programs of the Department of Defense shall be appropriated to this account.

''(2) Of the total amount appropriated for a fiscal year for the military medical and health care programs of the Department of Defense, the amount equal to three percent of such total amount shall remain available for obligation until the end of the following fiscal year.

''(b) PRIVATE SECTOR CARE PROGRAM ACCOUNT.—(1) There is hereby established in the Treasury of the United States an account to be known as the 'Private Sector Care Program Account'. All sums appropriated to carry out the functions of the Secretary of Defense with respect to private sector medical and health care programs

of the Department of Defense shall be appropriated to this account.

''(2) Of the total amount appropriated for a fiscal year for the private sector health care programs of the Department of Defense, the amount equal to three percent of such total amount shall remain available for obligation until the end of the following fiscal year.

''(c) OBLIGATION OF AMOUNTS FROM ACCOUNTS BY SECRETARY OF DEFENSE.—The Secretary of Defense may obligate or expend funds from the accounts under subsection (a) and (b) for purposes of the military medical and health care programs of the Department of Defense and the private sector health care programs of the Department of Defense, respectively, to the extent amounts are available in the accounts.

''(d) REGULATIONS.—The Secretary of Defense shall prescribe regulations to carry out this section.

''(e) DEFINITIONS.—In this section:

''(1) The term 'military medical and health care programs of the Department of Defense' means the medical and health care programs of the Department of Defense that are not private sector health care programs of the Department of Defense.

''(2) The term 'private sector health care programs of the Department of Defense' means the

programs and activities carried out by the Secretary of Defense under this chapter and any other provision of law providing for the furnishing of medical and dental care and health benefits by the private sector, including pursuant to contracts entered into under section 1079, 1086, 1092, or 1097 of this title.''.

(b) CONFORMING AMENDMENTS.—

(1) TITLE 10.—Title 10, United States Code, is amended as follows:

(A) Section 1076d(d)(5) is amended by striking ''the Defense Health Program Account'' and inserting ''the Private Sector Care Program Account''.

(B) Section 1076e(d)(5) is amended by striking ''the Defense Health Program Account'' and inserting ''the Private Sector Care Program Account''.

(C) Section 1076f(b)(2) is amended by striking ''the Defense Health Program Account'' and inserting ''the Private Sector Care Program Account''.

(D) Section 1110b(c)(4) is amended by striking ''the Defense Health Program Ac-

count'' and inserting ''the Private Sector Care Program Account''.

(2) NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2024.—Section 1004(b)(2) of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–81; 10 U.S.C. 240d note) is amended by striking ''Defense Health Program account'' and inserting ''Combat and Operational Medicine Program and Private Sector Care Program Accounts''.

(3) NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 1997.—Section 742(c)(3) of the National Defense Authorization Act for Fiscal Year 1997 (Public Law 104–201; 10 U.S.C. 1071 note) is amended by striking ''the Defense Health Program account'' and inserting ''the Combat and Operational Medicine Program account''.

(c) REFERENCES.—Any reference in law, regulation, document, paper, or other record of the United States to the ''Defense Health Program'' shall be deemed to be a reference to the ''Combat and Operational Medicine Program'' or the ''Private Sector Care Program'', as the case may be based on the nature of the obligation.

(d) EFFECTIVE DATE.—The amendments made by this section shall take effect on October 1, 2026, and shall

apply with respect to fiscal years beginning on or after that date.

SEC. 725. AVAILABILITY OF COMBAT AND OPERATIONAL MEDICINE PROGRAM ACCOUNT AND OTHER FUNDS FOR CERTAIN MEDICAL COUNTERMEASURES.

(a) AVAILABILITY.—Chapter 55 of title 10, United States Code, is amended by inserting after section 1100 the following new section:

"§ 1100a. Availability of Combat and Operational Medicine Program Account and other funds for certain medical countermeasures

''(a) AUTHORITY.—Subject to the availability of appropriations for such purpose, amounts available under the Combat and Operational Medicine Program Account established under section 1100 of this title, and amounts available under the Operation and Maintenance, Army, account for medical readiness, may be obligated or expended by the Director of the Defense Health Agency to conduct the activities described in subsection (b) for the protection and sustainment of deployed forces across the roles of medical care.

''(b) ACTIVITIES DESCRIBED.—The activities described in this subsection are the following:

''(1) The procurement or pre-positioning of a medical countermeasure for forward deployment.

''(2) The forward deployment of a medical countermeasure.

''(3) Any associated logistics, storage, or sustainment activity necessary to ensure the availability or readiness of a forward-deployed medical countermeasure.

''(c) COORDINATION.—The Director of the Defense Health Agency shall coordinate with the Secretaries of the military departments and the commanders of the combatant commands with respect to any obligation or expenditure of funds under subsection (a).

''(d) DEFINITIONS.—In this section:

''(1) The term 'medical countermeasure' includes—

''(A) a vaccine, therapeutic, prophylactic, or diagnostic; and

''(B) an advanced wound care product, including antimicrobial and barrier-protective dressings, such as silver-plated bandages.

''(2) The term 'roles of medical care' has the meaning given such term in the publication of the Chairman of the Joint Chiefs of Staff titled 'Joint

Publication 4-02: Joint Health Service', dated December 11, 2017, or such successor publication.''.

(b) REPORTS.—Not later than 120 days after the date of the enactment of this Act, and annually thereafter for three years, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report describing—

(1) the categories of medical countermeasures procured and forward-deployed using funds authorized to be obligated or expended under section 1100a of title 10, United States Code, as added by subsection (a);

(2) the locations supported by any such use of funds; and

(3) any gaps or shortfalls identified in connection with the provision of such medical countermeasures to deployed forces.

SEC. 726. INCLUSION OF DEFENSE HEALTH AGENCY IN REPORTING REQUIREMENTS RELATING TO UNFUNDED PRIORITIES.

Section 222a of title 10, United States Code, is amended—

(1) in subsection (a), by striking ''the armed force or forces or combatant command'' and insert-

ing ''the armed force or forces, combatant command, or combat support agency''; and

(2) in subsection (b), by adding at the end the following new paragraph:

''(8) The Director of the Defense Health Agency.''.

SEC. 727. JOINT TRAUMA SYSTEM.

Chapter 55 of title 10, United States Code, is amended by inserting after section 1073f the following new section:

''§ 1073g. Joint trauma system

''(a) REQUIREMENT.—The Secretary of Defense shall maintain the Joint Trauma System established pursuant to section 707 of the National Defense Authorization Act for Fiscal Year 2017 (Public Law 114–328) as a permanent operational element of the Defense Health Agency to support the readiness of the armed forces with respect to providing combat casualty care in support of military operations.

''(b) ELEMENTS.—In addition to the requirements of section 707(b) of the National Defense Authorization Act for Fiscal Year 2017 (Public Law 114–328), in carrying out the Joint Trauma System, the Secretary shall—

''(1) develop and maintain evidence-based clinical practice guidelines for combat casualty care

across the continuum of care, from point of injury through definitive treatment;

''(2) establish standards for, and support the certification of, predeployment medical readiness for military surgeons;

''(3) maintain and integrate trauma registries and data systems of the Department of Defense to support performance improvement, research, and operational planning;

''(4) conduct system-wide performance improvement and lessons-learned analysis for combat casualty care, including dissemination of best practices across the armed forces; and

''(5) support the integration of military and civilian trauma systems to enhance readiness and improve trauma care outcomes during military operations.

''(c) COMBATANT COMMAND TRAUMA SYSTEMS.—(1) Each commander of a combatant command shall establish and maintain a Combatant Command Trauma System to support operational planning, exercises, and military operations across the continuum of combat casualty care, from point of injury through definitive care and rehabilitation.

''(2) The Secretaries of the military departments shall assign clinically active and operationally experienced

trauma personnel, as required, to support the establishment, sustainment, and operation of each Combatant Command Trauma System in accordance with the requirements outlined in Department policy and implementation guidance with the developmental guidance, operational support, and clinical oversight of the Joint Trauma System.

''(3) Each Combatant Command Trauma System shall—

''(A) integrate trauma care data into the Department of Defense Trauma Registry;

''(B) implement clinical practice guidelines and performance improvement processes of the Joint Trauma System;

''(C) support theater-specific trauma training and readiness requirements; and

''(D) enable operational performance assessment and lessons learned across the continuum of combat casualty care.

''(d) COORDINATION.—In carrying out this section, the Secretary of Defense shall ensure coordination between the Director of the Defense Health Agency and the Surgeons General of the armed forces, the commanders of the combatant commands, and other elements of the military health system as required.

''(e) ANNUAL BRIEFING.—Not later than March 1 of each year, the Secretary of Defense shall provide a briefing to the congressional defense committees on the activities, readiness posture, and performance of the Joint Trauma System and the Combatant Command Trauma System, including—

''(1) a summary of Department-wide combat casualty care readiness across the Defense Trauma Enterprise, including findings derived from the performance improvement activities, clinical practice guideline implementation, trauma registry data, and other trauma system analyses of the Joint Trauma System supporting readiness oversight;

''(2) the status of establishment, staffing, and operational capability of each Combatant Command Trauma System, including personnel assigned by the Secretaries of the military departments to support such systems;

''(3) identified gaps in combat casualty care readiness affecting the Combatant Command Trauma System;

''(4) actions taken, planned, or resourced to address such gaps; and

''(5) such additional matters relating to the Joint Trauma System or Combatant Command

Trauma System as the Secretary of Defense determines appropriate.

''(f) DEFINITIONS.—In this section:

''(1) The term 'combat casualty care' means the provision of medical care to wounded members of the armed forces in operational environments, including prehospital care, damage-control resuscitation, and surgical intervention.

''(2) The term 'Joint Trauma System' means the Department of Defense's system for improving trauma care through data collection, analysis, performance improvement, and dissemination of best practices.''.

SEC. 728. CLARIFICATION OF CONSISTENT EVALUATIONS OF MEDICAL MALPRACTICE CLAIMS.

(a) UNIFORM EVALUATIONS.—Section 2733a(h)(2)(B) of title 10, United States Code, is amended—

(1) in the matter preceding clause (i), by inserting ''applicable to each uniformed service'' before ''consistent with generally''; and

(2) in clause (iv), by inserting ''consistent criteria used in the'' before ''calculation''.

(b) APPLICATION.—The amendments made by subsection (a) shall apply with respect to claims filed under

section 2733a of title 10, United States Code, on or after the date that is 180 days after the date of the enactment of this Act.

SEC. 729. CHAPERONES FOR CERTAIN SENSITIVE EXAMINATIONS AT MILITARY MEDICAL TREATMENT FACILITIES.

Section 1074d of title 10, United States Code, is amended—

(1) by redesignating subsection (b) as subsection (c); and

(2) by inserting after subsection (a) the following new subsection (b):

''(b) CHAPERONE.—(1) The Secretary shall ensure that a chaperone is present at any sensitive examination performed by an obstetrician-gynecologist at a military medical treatment facility.

''(2) In carrying out paragraph (1), the Secretary shall—

''(A) establish qualifications for a covered individual to serve as a chaperone;

''(B) provide appropriate training to chaperones;

''(C) require chaperones to maintain patient confidentiality except with respect to mandatory re-

porting of any suspected inappropriate activity under processes established by the Secretary; and

''(D) ensure a patient may request a different chaperone for any reason (and reschedule the sensitive examination if no other chaperone is available).

''(3) In this subsection:

''(A) The term 'covered individual' means—

''(i) a member of the armed forces or a civilian employee who is a health-care professional (as defined in section 1094 of this title);

''(ii) a resident or student covered under a formal training agreement;

''(iii) a technician, a health care para-professional, or medical support assistant; or

''(iv) a volunteer at a military medical treatment facility.

''(B) The term 'sensitive examination' means a medical examination, treatment, or procedure of the genitalia, rectum, or female breasts, or a forensic health care examination.''.

SEC. 730. REQUIREMENT TO OFFER MEDICAL CHAPERONES DURING SENSITIVE MEDICAL EXAMINATIONS.

The Secretary of Defense shall establish and implement a policy throughout the Department of Defense to

require that a medical chaperone be offered and available to be present with a patient during any sensitive medical examination, as determined by the Secretary, conducted at a military medical treatment facility.

SEC. 731. UNIFORM PROTOCOLS ON SCREENING FOR UNWANTED SEXUAL BEHAVIOR.

(a) GUIDANCE.—Not later than 180 days after the date of the enactment of this Act, the Director of the Defense Health Agency, in coordination with the Assistant Secretary of Defense for Health Affairs and the Under Secretary of Defense for Personnel and Readiness, shall develop comprehensive written guidance establishing uniform protocols for providing a screening for unwanted sexual behavior to patients at military medical treatment facilities.

(b) REPORT.—Not later than one year after the date on which the Director issues the guidance under subsection (a), the Director shall submit to the congressional defense committees a report containing the following:

(1) An assessment of the extent to which each military medical treatment facility has implemented the guidance.

(2) Aggregate, de-identified data on screening rates, positive-screen rates, and referral follow-through.

(3) Any planned revisions to the guidance.

(c) SCREENING FOR UNWANTED SEXUAL BEHAVIOR DEFINED.—In this section, the term ''screening for unwanted sexual behavior'' means the use of standardized, evidence-based questions or instruments to detect whether an individual has been subject to any sexual contact or interaction to which the individual did not or could not freely consent, including harassment, coercion, assault, or abuse.

SEC. 732. REQUIREMENT TO NOTIFY COMMITTEES ON ARMED SERVICES OF HOSPITALIZATION OF COMBAT WOUNDED MEMBERS OF THE ARMED FORCES.

Section 1074l of title 10, United States Code, is amended by adding at the end the following new subsection:

''(d) OTHER NOTIFICATIONS.—(1) The Secretary concerned shall notify the Committees on Armed Services of the House of Representatives and the Senate of the occurrence of a hospitalization of a member of the armed forces who is—

''(A) seriously or very seriously wounded in action resulting from the conduct of combat operations; and

''(B) evacuated from a theater of combat and admitted to any military medical treatment facility or civilian medical treatment facility, regardless of location.

''(2) The notifications under paragraph (1)—

''(A) may be made on an aggregate basis; and

''(B) may not include personally identifying information of the hospitalized members.''.

SEC. 733. AUTHORITY TO PROVIDE RESIDENCIES, INTERNSHIPS, AND SIMILAR POSTGRADUATE PROGRAMS FOR CIVILIAN HEALTH CARE PROFESSIONALS OF THE DEPARTMENT OF DEFENSE.

(a) AUTHORITY.—Section 1599c of title 10, United States Code, is amended—

(1) in the heading, by striking ''**and compensation**'' and inserting ''**, compensation, and training**''; and

(2) by adding at the end the following new subsection:

''(c) RESIDENCIES AND INTERNSHIPS.—(1) The Secretary may establish residencies, internships, and similar postgraduate programs at military medical treatment facilities to train individuals whom the Secretary has appointed to civilian health care positions, including physi-

cians, nurses, physician assistants, nurse practitioners and behavioral health providers.

''(2) The Secretary may require that an individual who participates in a residency, internship, or similar postgraduate program under paragraph (1) agrees to perform civilian Federal service at a military medical treatment facility for a specific period determined by the Secretary following the completion of such residency, internship, or similar postgraduate program.''.

(b) REPORT.—

(1) REQUIREMENT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the implementation of subsection (c) of section 1599c of title 10, United States Code, as added by subsection (a).

(2) MATTERS INCLUDED.—The report under paragraph (1) shall include the following:

(A) A plan to establish residencies, internships, and similar postgraduate programs under subsection (c) of such section 1599c, including a timeline to implement such subsection.

(B) The anticipated cost of carrying out such subsection.

(C) The number of each type of health care provider the Secretary expects to participate in such residencies, internships, and similar postgraduate programs.

(D) An explanation for how the Secretary—

(i) will fund such residencies, internships, and similar postgraduate programs; and

(ii) supervise individuals participating in such residencies, internships, and similar postgraduate programs.

(E) An analysis of how the residencies, internships, and similar postgraduate programs would help meet the medical workforce needs of the military health system.

(F) Any additional information that the Secretary determines appropriate.

SEC. 734. NOTIFICATION TO TRICARE BENEFICIARIES OF COVERAGE TRANSITION REQUIREMENTS.

Chapter 55 of title 10, United States Code, is amended by inserting after section 1097d the following:

"SEC. 1097e. TRICARE PROGRAM: NOTICE OF COVERAGE TRANSITION REQUIREMENTS.

"(a) PROVISION OF NOTICE.—(1) The administering Secretaries shall provide each covered beneficiary with notices of a TRICARE coverage transition requirement that affects the individual.

"(2) The administering Secretaries shall provide notice under paragraph (1) through electronic means.

"(b) TIMING OF NOTICE.—The administering Secretaries shall provide notices to a covered beneficiary under subsection (a)(1) as follows:

"(1) On the date that is one year before the covered beneficiary will experience a TRICARE coverage transition requirement.

"(2) On the date that is 180 days before the covered beneficiary will experience a TRICARE coverage transition requirement.

"(3) On the date that is 30 days before the covered beneficiary will experience a TRICARE coverage transition requirement.

"(c) OUTREACH.—The administering Secretaries shall conduct an outreach and public awareness campaign to inform covered beneficiaries of TRICARE coverage transition requirements, including through the TRICARE internet website, social media, and through family readiness groups.

''(d) REPORTS.—On an annual basis the Secretary of Defense, in consultation with the other administering Secretaries, shall submit to the appropriate congressional committees a report on the implementation of this section, including metrics relating to the outreach and public awareness campaign under subsection (c) and any recommendations to improve making covered beneficiaries aware of TRICARE coverage transition requirements.

''(e) DEFINITIONS.—In this section:

''(1) The term 'appropriate congressional committees' means the following:

''(A) The congressional defense committees.

''(B) With respect to matters concerning members and former members of the Coast Guard and dependents of such members and former members, the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate.

''(2) The term 'TRICARE coverage transition requirement' means a requirement under this chapter for a covered beneficiary to make a different election under the TRICARE program to continue enrollment in the TRICARE program, including by

reason of attaining a certain age as described in section 1086(d) or 1110b of this title.''.

SEC. 735. WAIVER OF REFERRAL REQUIREMENT UNDER TRICARE PRIME FOR CERTAIN PHYSICAL THERAPY.

Section 1095f(a)(2) of title 10, United States Code, is amended by adding at the end the following new subparagraph:

''(C) In addition to the requirements under subparagraph (B), the Secretary shall waive the referral requirement in paragraph (1) in the case of a member of the armed forces serving on active duty who seeks to obtain an appointment for physical therapy provided by a licensed provider under TRICARE Prime if the provider is located in a State in which the law of that State does not require a referral for that specific appointment.''.

SEC. 736. RATES OF PAY FOR A PROVIDER OF CARE OR SERVICES FURNISHED UNDER TRICARE PROGRAM.

(a) RATES.—Section 1097b(a) of title 10, United States Code is amended—

(1) in paragraph (1), by inserting ''and paragraph (3)(A)'' after ''Subject to paragraph (2)''; and

(2) in paragraph (3), by striking ''In establishing'' and inserting the following:

''(A) The Secretary shall establish rates for payments to providers of care or services under the TRICARE program that are specific with respect to the following sites of service at which the care or service is actually provided (regardless of the physical location of the headquarters of the provider):

''(i) A hospital outpatient department.

''(ii) An ambulatory surgical center.

''(iii) The office of a physician.

''(iv) Such other sites as the Secretary determines appropriate in carrying out this paragraph.

''(B) The Secretary shall ensure that—

''(i) each site specified in subparagraph (A) obtains a National Provider Identifier pursuant to section 1833(t) of the Social Security Act (42 U.S.C. 1395l(t)(23)) that is separate and unique from such identifier for such provider; and

''(ii) no payment for care or services under any provision of this chapter may be made unless the claim for such payment includes the National Provider Identifier for the site at which such hospital care, medical services, or extended care services were furnished.

''(C) In the case of covered OPD services (as defined in section 1833(t)(1)(B) of the Social Security Act (42

U.S.C. 1395l(t)(1)(B)) that are provided by a provider that is an off-campus outpatient department of a provider (as defined in section 1833(t)(21)(B) of the Social Security Act (42 U.S.C. 1395l(t)(21)(B)), disregarding clauses (ii) and (iv) thereof, as if such clauses did not exist), the Secretary shall ensure that such department is treated as a subpart of such provider and assigned a unique health identifier pursuant to subparagraph (B) of this paragraph, and that such provider includes such identifier on any claim form it submits under this subsection, and that such provider may not hold a member of the uniformed services or covered beneficiary liable for such item or service unless such care or services are billed using the separate unique health identifier established for such department under this paragraph.

''(D) Nothing in this paragraph may be construed to—

''(i) prevent the Secretary from determining the appropriate amount of a facility fee;

''(ii) require the Secretary to pay, for the same item or service—

''(I) an independent physician the same amount as the Secretary would pay a hospital-based physician; or

''(II) a hospital-based physician less than the Secretary would pay an independent physician; or

''(iii) affect the authority of the Secretary under paragraph (2).

''(E) In establishing''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect on January 1, 2028.

SEC. 737. PLANS ON MILITARY HEALTH SYSTEM.

(a) REQUIREMENT.—Section 1073b of title 10, United States Code, is amended—

(1) in the heading, by inserting ''**plans and**'' before ''**REPORTS**'';

(2) by redesignating subsections (a) and (b) as subsections (b) and (c), respectively; and

(3) by inserting before subsection (b), as so redesignated, the following new subsection:

''(a) LONG-TERM PLANS.—(1) During each year, the Secretary shall develop a long-term plan on the stabilization of health care delivered through the Defense Health Agency.

''(2) Each plan under paragraph (1) shall include information regarding the following with respect to each military medical treatment facility:

''(A) Milestones necessary to implement the plan.

''(B) Definable goals for personnel, budget, supplies, and readiness.

''(C) Cost estimates for personnel, supplies, and other items necessary to manage and operate the military medical treatment facility.

''(D) The number of current (as of the time of the plan) and the projection of vacancies with respect to—

''(i) military medical personnel;

''(ii) civilian and contractor medical personnel; and

''(iii) health care administration personnel.

''(E) Projected modifications of the scope of medical care provided at military medical treatment facilities.

''(F) Budget requirements.

''(3) Each plan under paragraph (1) shall cover the same period covered by the future-years defense program submitted under section 221 of this title during the year in which the plan is developed.

''(4)(A) On a quarterly basis, the Secretary shall provide to the Committees on Armed Services of the House

of Representatives and the Senate a briefing on the most recent plan under paragraph (1).

''(B) Any information included in a briefing under subparagraph (A) with respect to a projected modification of the scope of medical care provided at a military medical treatment facility may not be treated as a notification under section 1073d(f) of this title.

''(5) The Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate each plan under paragraph (1).''.

(b) LIMITATION ON MODIFICATIONS OF SCOPE OF MEDICAL CARE.—Section 1073d(f)(1) of title 10, United States Code, is amended—

(1) in subparagraph (B), by striking ''; and'' and inserting a semicolon;

(2) in subparagraph (C), by striking the period and inserting ''; and''; and

(3) by adding at the end the following new subparagraph:

''(D) the Secretary has developed the long-term plan under section 1073b(a) of this title during the year in which the Secretary submits such notification.''.

SEC. 738. MODIFICATION TO QUALIFICATION WAIVER AUTHORITY FOR APPLICANTS FOR NURSING OR PRACTICAL NURSE POSITIONS IN THE DEPARTMENT OF DEFENSE.

Section 716(a) of the Servicemember Quality of Life Improvement and National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. 1073c note), is amended by striking ''who—'' and all that follows through the period at the end and inserting ''who holds a bachelor's degree or graduate degree from an accredited professional nursing educational program and a current, unrestricted license to practice as a registered nurse or practical nurse.''.

SEC. 739. AERIAL TRANSPORT AND DEPARTMENT-WIDE CAPABILITY FOR HIGH-CONSEQUENCE INFECTIOUS DISEASES.

(a) REQUIREMENT.—Beginning not later than October 1, 2027, the Secretary of the Air Force, in coordination with the Assistant Secretary of Defense for Health Affairs, the Secretaries of the other military departments, and the Director of the Defense Health Agency, shall carry out a program to provide for the safe, long-range aerial transport of individuals known to be or suspected of infection by high-consequence infectious diseases.

(b) AERIAL TRANSPORT COMPONENT.—The Secretary of Defense shall ensure that the program under

subsection (a) serves as the component of the Department of Defense that—

(1) provides the Department with aerial transport of patients with high-consequence infectious diseases; and

(2) provides support to other departments and agencies of the Federal Government, State and local governments, and civilian and academic partners, as determined appropriate by the Secretary.

(c) PROGRAM REQUIREMENTS.—In carrying out the program under subsection (a), the Secretary of the Air Force shall—

(1) develop and maintain a curriculum, and identify qualified instructors to train and certify military and civilian medical personnel, on procedures associated with the safe, long-range aerial transport of patients with high-consequence infectious diseases;

(2) establish, and periodically update, medical care standards, infection prevention and control measures, and operational safety protocols necessary to maximize patient survival and minimize infection risk to aircrew, medical personnel, and support personnel;

(3) serve as the joint force advocate and executive agent within the Department of Defense for aerial transport of individuals with high-consequence infectious diseases;

(4) establish standards, sustainment requirements, and lifecycle management processes for personal protective equipment, transport isolation systems, and associated medical equipment used in transporting infected patients;

(5) develop, in coordination with the Joint Staff, joint doctrine, concepts of operation, and medical force requirements necessary to support a Department of Defense-wide high-consequence infectious disease capability, including patient movement, definitive care, and integration across the continuum of care;

(6) coordinate with the other Secretaries of the military departments and the Director of the Defense Health Agency to inform the organization, training, and equipping of specialized, organized teams capable of conducting high-consequence infectious disease patient movement and care in operational, austere, and strategic environments;

(7) support interoperability and operational integration with other departments and agencies of the

Federal Government, State and local governments, and civilian and academic partners to enable coordinated response to tactical incidents, large-scale contingencies, and research activities related to emerging and future infectious disease threats; and

(8) identify capability gaps and support research, development, testing, and evaluation of medical countermeasures, transport systems, protective equipment, and operational procedures necessary to improve survivability, safety, and mission effectiveness in high-consequence infectious disease operations.

(d) ENTERPRISE DOCTRINE AND OVERSIGHT.—The Secretary of Defense shall develop and maintain Department of Defense-wide doctrine and policy to guide the development, fielding, sustainment, and employment of high-consequence infectious disease response capabilities across the Department.

SEC. 740. AVAILABILITY OF OBSTETRICIAN-GYNECOLOGISTS AND CERTIFIED NURSE-MIDWIFES AT MILITARY MEDICAL TREATMENT FACILITIES.

(a) REQUIREMENT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall ensure that each military medical treatment

facility maintains, at all times, the continuous availability of at least one obstetrician-gynecologist or certified nurse-midwife.

(b) USE OF CONTRACTS TO MEET REQUIREMENT.—The Secretary may satisfy the requirement in subsection (a) with respect to a military medical treatment facility if the Secretary enters into a contract or other agreement with a private provider under which the provider ensures the continuous availability of an obstetrician-gynecologist or certified nurse-midwife to provide services at that facility. In entering into such a contract or other agreement, the Secretary shall ensure the following:

(1) An obstetrician-gynecologist or certified nurse-midwife is on call 24 hours per day and will arrive at the facility not later than two hours after being called.

(2) The obstetrician-gynecologist or certified nurse-midwife is located—

(A) not more than 25 miles by road from the facility; or

(B) within a 30-minute emergency response travel time under normal conditions from the facility.

(3) The obstetrician-gynecologist or certified nurse-midwife meet or exceed all credentialing,

training, and certification standards that the Secretary would otherwise apply to an obstetrician-gynecologist or certified nurse-midwife employed directly by the Department of Defense.

(c) INFORMATION.—Not later than one year after the date of the enactment of this Act, the Secretary shall—

(1) issue updated policy guidance of the Department of Defense with respect to implementing the requirements of subsections (a) and (b), including standard language for contracts or other agreements under subsection (b); and

(2) submit to the Committees on Armed Services of the House of Representatives and the Senate a report detailing—

(A) the status of obstetrician-gynecologist and certified nurse-midwife staffing at each military medical treatment facility;

(B) any contracts or other agreements entered into under subsection (b), including the names and locations of providers;

(C) the average response times for obstetrician-gynecologists or certified nurse-midwives and any gaps in coverage experienced during the one-year period preceding the report; and

(D) plans to address any identified shortfalls in service availability.

(d) MILITARY MEDICAL TREATMENT FACILITY DEFINED.—In this section, the term ''military medical treatment facility'' has the meaning given that term in section 1073c of title 10, United States Code.

SEC. 741. AVAILABILITY OF SEXUAL ASSAULT NURSE EXAMINER SERVICES AT MILITARY MEDICAL TREATMENT FACILITIES.

(a) REQUIREMENT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall ensure that each military medical treatment facility maintains, at all times, the continuous availability of at least one qualified sexual assault nurse examiner to provide forensic medical examinations and related care to sexual assault survivors.

(b) USE OF CONTRACTS TO MEET REQUIREMENT.—The Secretary may satisfy the requirement in subsection (a) with respect to a military medical treatment facility if the Secretary enters into a contract or other agreement with a private provider under which the provider ensures the continuous availability of a qualified sexual assault nurse examiner to provide services at that facility. In entering into such a contract or other agreement, the Secretary shall ensure the following:

(1) A qualified sexual assault nurse examiner is on call 24 hours per day and will arrive at the facility not later than two hours after being called.

(2) The qualified sexual assault nurse examiners are located—

(A) not more than 25 miles by road from the facility; or

(B) within a 30-minute emergency response travel time under normal conditions from the facility.

(3) The qualified sexual assault nurse examiners meet or exceed all credentialing, training, and certification standards that the Secretary would otherwise apply to a sexual assault nurse examiner employed directly by the Department of Defense.

(c) INFORMATION.—Not later than one year after the date of the enactment of this Act, the Secretary shall—

(1) issue updated policy guidance of the Department implementing the requirements of subsections (a) and (b), including standard language for contracts or other agreements under subsection (b); and

(2) submit to the Committees on Armed Services of the House of Representatives and the Senate a report detailing—

(A) the status of sexual assault nurse examiner staffing at each military medical treatment facility;

(B) any contracts or other agreements entered into under subsection (b), including the names and locations of providers;

(C) the average response times for sexual assault nurse examiners and any gaps in coverage experienced during the one-year period preceding the report; and

(D) plans to address any identified shortfalls in service availability.

(d) DEFINITIONS.—In this section:

(1) The term ''military medical treatment facility'' has the meaning given that term in section 1073c of title 10, United States Code.

(2) The term ''sexual assault nurse examiner'' means a registered nurse who has received specialized training and certification in the forensic examination of sexual assault survivors and the collection of forensic evidence, in accordance with standards established by the International Association of Forensic Nurses or an equivalent certifying body.

SEC. 742. IMPROVEMENT OF PROCESS FOR FILING OF COMPLAINTS AND REPORTING OF ISSUES UNDER TRICARE PROGRAM.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall issue guidance to set forth the process and timeline for covered beneficiaries, direct care providers, and authorized providers under the TRICARE program to file complaints and report issues that have not been resolved through existing channels, including complaints regarding coverage, access to care, denials, incorrect provider directory listings, network adequacy, access to specialized care within a reasonable distance from their homes, overdue or consistently inaccurate payments, and other related issues.

(b) ELEMENTS OF GUIDANCE.—The guidance required under subsection (a) shall set forth—

(1) the details and effective date of a reporting tool that follows a simple flow chart for filing complaints and reporting issues; and

(2) the timelines and protocols that the Department of Defense will use to monitor and address complaints filed and issues reported that are appropriate to the level of acuity or urgency of such complaint or issue, including responses to the covered beneficiary or provider that include—

(A) steps that have been taken by the Department of Defense to respond to the complaint or issue;

(B) any responses received by relevant parties in investigating the complaint or issue; and

(C) follow-up actions or planned follow-up actions by the Department of Defense in response to the complaint or issue.

(c) APPLICATION TO PROVIDERS.—The guidance required under subsection (a) shall apply to all agreements with authorized providers under the TRICARE program entered into on or after the date of the enactment of this Act.

(d) ANNUAL REPORT.—Not later than one year after the date of the enactment of this Act, and annually thereafter, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report that includes the following:

(1) The number of complaints filed or issues reported that are covered by subsection (a), disaggregated by category of complaint or issue, beneficiary complaint or issue, or provider complaint or issue.

(2) A description of steps that were taken to respond to such complaints or issues.

(3) A description of any follow-up actions or planned follow-up actions by the Department of Defense in response to such complaints or issues.

(e) DEFINITIONS.—In this section:

(1) The term ''covered Armed Force'' means the Army, Navy, Air Force, Marine Corps, and Space Force.

(2) The term ''covered beneficiary'' means a covered beneficiary, as defined in section 1072 of title 10, United States Code, who is a beneficiary by reason of the service by an individual in a covered Armed Force.

(3) The term ''TRICARE program'' has the meaning given that term in section 1072 of title 10, United States Code.

SEC. 743. PILOT PROGRAM ON FILLING PRIMARY CARE MANAGEMENT POSITIONS AT REMOTE MILITARY MEDICAL TREATMENT FACILITIES.

(a) PILOT PROGRAM.—Beginning not later than 180 days after the date of the enactment of this Act, each Secretary of a military department shall carry out a pilot program under which the Secretary may—

(1) appoint individuals to primary care management positions at a remote military medical treatment facility selected under subsection (d); and

(2) provide incentives for highly qualified applicants to such positions.

(b) DURATION.—Each Secretary of a military department shall carry out the pilot program under subsection (a) for a period not to exceed five years.

(c) PERSONNEL AUTHORITIES.—In carrying out subsection (a), for the purposes of hiring qualified candidates for the pilot program, each Secretary of a military department may use the authorities provided under—

(1) section 1599c of title 10, United States Code (relating to appointment and rates of pay);

(2) section 5379 of title 5, United States Code (relating to student loan repayments); and

(3) sections 5753 and 5754 of such title 5 (relating to recruitment and relocation bonuses and retention bonuses, respectively).

(d) REMOTE MILITARY MEDICAL TREATMENT FACILITIES.—

(1) SELECTION.—Not later than 60 days after the date of the enactment of this Act, each Secretary of a military department shall select not fewer than five remote military medical treatment facilities at which to carry out the pilot program under subsection (a).

(2) NOTIFICATION.—Each Secretary of a military department shall notify the Committees on Armed Services of the House of Representatives and the Senate of each remote military medical treatment facility selected under paragraph (1).

(e) REIMBURSEMENT.—

(1) REQUIREMENT.—Subject to the availability of appropriations, the Director of the Defense Health Agency shall reimburse the relevant Secretary of a military department for the actual, reasonable, and allocable cost of the salary and expenses (including with respect to travel, training, equipment, and facility support) of any individual appointed to a primary care management position under the pilot program under subsection (a) during the period in which the employee is employed in the position for which the employee was so appointed (regardless of whether such period exceeds the duration of the pilot program). The Director and the Secretary shall ensure that such costs are tracked using a detailed work breakdown structure to ensure granular tracking and financial accountability.

(2) MEMORANDUM OF UNDERSTANDING.—The Director and each Secretary of a military department shall enter into a memorandum of under-

standing to carry out reimbursements under paragraph (1). Such memorandum shall specify—

(A) the scope of services provided by the individuals appointed to a primary care management position;

(B) the allowable cost categories;

(C) billing and accounting procedures;

(D) quality and performance metrics; and

(E) dispute resolution procedures.

(f) REPORTS.—Not later than 18 months after the date on which each Secretary of a military department commences the pilot program under subsection (a), and annually thereafter during the life of the pilot program, the Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the pilot program, including with respect to the feasibility of carrying out the pilot program on a long-term basis.

(g) DEFINITIONS.—In this section:

(1) The term ''primary care management position'' means a physician, nurse practitioner, physician assistant, registered nurse, mental health nurse practitioner, licensed practical nurse, or medical assistant.

(2) The term ''remote military medical treatment facility'' means a military medical treatment facility (as defined in section 1073c of title 10, United States Code) for which medical personnel assigned to the facility may reside at a location that is either—

(A) not more than 50 miles from the military medical facility; or

(B) a distance that on average takes at least one hour to travel by car.

SEC. 744. ESTABLISHMENT OF PILOT PROGRAM ON USE OF HEALTH CARE ASSESSMENTS OTHER THAN PERIODIC HEALTH ASSESSMENTS.

(a) REQUIREMENT.—The Secretary of the Army shall carry out a pilot program to evaluate the effectiveness of different health care assessment methods for members of the Army serving on active duty, as compared to the periodic health assessment of the Army.

(b) LOCATIONS.—The Secretary shall—

(1) carry out the pilot program under subsection (a) at Fort Hood, Texas; and

(2) select at least one more installation of the Army at which to carry out the pilot program.

(c) PARTICIPANT SELECTION.—The Secretary shall select not fewer than 100 members of the Army to partici-

pate in the pilot program under subsection (a). Such members may not be in a high-risk population, as determined by the Secretary.

(e) HEALTH CARE ASSESSMENTS.—In carrying out the pilot program under subsection (a), the Secretary shall provide members of the Army participating in the pilot program with the following instead of the periodic health assessment:

(1) An in-person physical examination.

(2) Blood work that includes comprehensive metabolic panel and complete blood count conducted by qualified medical personnel.

(3) Any other test or evaluation as determined appropriate by the Secretary.

(f) BASELINE.—The Secretary shall use health care assessments provided to a member of the Army under the pilot program under subsection (a) as a baseline for the purposes of ongoing regular monitoring of the member.

(g) DURATION.—The Secretary shall carry out the pilot program for a two-year period beginning on the date of the enactment of this Act, but the Secretary may extend such period.

(h) REPORT.—Not later than 180 days after the date on which the pilot program under subsection (a) concludes, the Secretary shall submit to the congressional de-

fense committees a report on the pilot program, including findings relating to—

(1) health care outcomes;

(2) satisfaction of members of the Army; and

(3) any recommendations for broader implementation.

SEC. 745. PILOT PROGRAM TO TEST STANDALONE TECHNOLOGY TO IMPROVE EFFICIENCIES IN SUPPLY-CHAIN MANAGEMENT, MEDICAL READINESS, AND MEDICAL PROCESSES.

(a) ESTABLISHMENT.—Not later than 90 days after the date of the enactment of the Act, the Secretary of Defense, acting through the Director of the Defense Health Agency, shall carry out a pilot program to test and evaluate existing standalone technologies to assess whether such technologies accomplish the following:

(1) Improving efficiencies in medical supply-chain management and in military medical readiness.

(2) Streamlining medical processes.

(3) Improving recordation accuracy.

(4) Reducing rates of needlestick injury.

(5) Enhancing retention rates of military health care providers.

(b) DURATION.—The Secretary shall carry out the pilot program for a five-year period.

SEC. 746. IMPROVEMENT TO THE TRICARE COMPETITIVE PLANS DEMONSTRATION PROJECT.

Section 707 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 10 U.S.C. 1073a note) is amended—

(1) by redesignating subsection (b) as subsection (c); and

(2) by inserting after subsection (a) the following new subsection:

''(b) EXTENSION.—

''(1) IN GENERAL.—The Secretary shall seek to extend contracts under the TRICARE Competitive Plans Demonstration Project to carry out the project until the date on which the next generation of TRICARE managed support contracts are fully awarded, transitioned, and placed into operational status.

''(2) CONSIDERATIONS.—In exercising the authority under paragraph (1), the Secretary shall consider—

''(A) beneficiary health and quality of care; and

''(B) any disruption associated with changes in enrollment in the TRICARE program.''.

Subtitle C—Studies, Reports, and Other Matters

SEC. 751. QUARTERLY BRIEFING ON MILITARY TREATMENT FACILITIES.

(a) IN GENERAL.—Section 1073c of title 10, United States Code, as amended by section 721, is further amended—

(1) by redesignating subsection (k) as subsection (l); and

(2) by inserting after subsection (j) the following new subsection:

''(k) QUARTERLY BRIEFING ON MILITARY MEDICAL TREATMENT FACILITIES.—(1) Not less frequently than once every 90 days, the Assistant Secretary of Defense for Health Affairs shall provide to the Committees on Armed Services of the House of Representatives and the Senate a briefing on military medical treatment facilities.

''(2) Each briefing under paragraph (1) shall include, for each military medical treatment facility and with respect to the 90-day period preceding the date of the provision of the briefing, the following information:

''(A) Of the members of the armed forces and covered beneficiaries who received health care services at the military medical treatment facility during such period, the percentage for whom access standards were met.

''(B) An assessment of the clinical readiness of the members of the armed forces staffing the military medical treatment facility.

''(C) An assessment of the unit readiness of members of the armed forces who receive health care services at the military medical treatment facility.

''(D) The number of members of the armed forces and covered beneficiaries enrolled in TRICARE Prime, disaggregated by category of enrollee, that received health care services at the military medical treatment facility during such period.

''(E) The number of members of the armed forces and covered beneficiaries enrolled in TRICARE Prime, disaggregated by category of enrollee, that received referrals under the TRICARE program from providers at the military medical treatment facility to specialty care providers outside the military medical treatment facility during such period.

''(F) The composition of the workforce at the military medical treatment facility, including the number of members of the armed forces, civilian employees of the Department of Defense, and contractors of the Department.

''(G) With respect to personnel staffing at the military medical treatment facility, the following:

''(i) The number of unfilled billets, disaggregated by type of profession, including clinicians, nurses, hospital administrators, and administrative personnel.

''(ii) The average amount of time for an unfilled billet to be filled, disaggregated in accordance with clause (i).

''(H) A description of any deficiencies or shortages with respect to the budget, medical supplies and equipment, or personnel necessary to meet metrics relating to access to healthcare services provided at the military medical treatment facility and applicable standards of care relating to such services.

''(I) A plan to remedy any such deficiencies.''.

(b) DEADLINE FOR INITIAL BRIEFING.—Not later than 60 days after the date of the enactment of this section, the Assistant Secretary of Defense for Health Affairs

shall submit the first briefing required under section 1073c(k) of title 10, United States Code, as amended by subsection (a).

SEC. 752. ENHANCED MEDICAL COVERAGE FOR CIVILIAN EMPLOYEES OF THE DEPARTMENT OF DEFENSE AND DEPENDENTS IN CERTAIN LOCATIONS.

(a) ENHANCED MEDICAL COVERAGE.—Section 1599b of title 10, United States Code, is amended—

(1) by redesignating subsection (e) as subsection (f); and

(2) by inserting after subsection (d) the following new subsection:

''(e) ENHANCED MEDICAL COVERAGE.—(1) Not later than July 1, 2027, the Secretary of Defense shall seek to enter into a contract to provide each covered individual in a location specified in paragraph (2) with enhanced medical coverage for services that are not covered by the health care plan for which the covered individual is enrolled under the Federal Employees Health Benefits Plan.

''(2) The locations specified in this paragraph are the following:

''(A) Japan.

''(B) Guam.

''(C) Any location the Secretary determines appropriate under a mitigation plan carried out under paragraph (5)(C).

''(3)(A) With respect to covered individuals living in Japan, the Secretary shall ensure that the enhanced medical coverage under subsection (a) includes the following:

''(i) Assistance in finding health care providers with the capacity to meet the health care needs of the individuals.

''(ii) Language translation services to assist in accessing health care.

''(iii) Assistance in making prepayments for health care services if such prepayments are required by the health care provider.

''(iv) Any other supplemental services the Secretary determines appropriate.

''(B) With respect to covered individuals living in Guam, the Secretary shall ensure that the enhanced medical coverage under subsection (a) includes the following:

''(i) Assistance in finding health care providers with the capacity to meet the health care needs of the individuals.

''(ii) Medical evacuation coverage if needed health care services are not available on Guam or are only available in a facility that is not accredited.

''(iii) Any other supplemental services the Secretary determines appropriate.

''(4)(A) On an annual basis, the Secretary shall conduct a review of the availability of health care services for civilian employees of the Department of Defense employed in a position outside the continental United States and accompanying dependents of such employees. Each review shall assess the availability of the following:

''(i) Ambulatory patient services, including outpatient surgery.

''(ii) Emergency services.

''(iii) Inpatient care, including trauma care and intensive care.

''(iv) Maternity and newborn care, including neonatal intensive care.

''(v) Mental health and substance use disorder services.

''(vi) Rehabilitative and habilitative services.

''(vii) Laboratory services.

''(viii) Preventive services.

''(ix) Pediatric services.

''(B) If the Secretary determines in a review under subparagraph (A) that health care services specified in such subparagraph are not available, or do not meet the standards of care for such services provided in the United

States, with respect to a specific State, territory or possession of the United States, or foreign country, the Secretary shall—

''(i) carry out a mitigation plan under subparagraph (C); and

''(ii) notify each civilian employee of the Department employed in a position at such location, and any applicant for such a position, of the determination and mitigation plan.

''(C) With respect to each location covered by a determination under subparagraph (B), the Secretary shall carry out a mitigation plan under which the Secretary may—

''(i) include such location in the enhanced medical coverage made available under paragraph (1), including with respect to assistance in finding health care providers, providing medical travel benefits, and medical evacuation coverage;

''(ii) designate civilian positions at such location as being unaccompanied; or

''(iii) take such other actions as the Secretary determines appropriate to increase access to health care for civilian employees of the Department employed in a position at such location and accompanying dependents of such employees.

''(5) Not later than February 1, 2028, and annually thereafter, the Secretary shall submit to the congressional defense committees a report on—

''(A) the findings of each review under subparagraph (A) of paragraph (5); and

''(B) a summary of each mitigation plan carried out by the Secretary under subparagraph (C) of such paragraph.

''(6) In this subsection:

''(A) The term 'covered individual' means an individual who is—

''(i) a civilian employee of the Department of Defense employed in a position at a location specified in paragraph (2) or an accompanying dependent of such an employee; and

''(ii) enrolled in a health care plan under the Federal Employees Health Benefits Plan.

''(B) The term 'Federal Employees Health Benefits Plan' means the health insurance program under chapter 89 of title 5.''.

(b) CURRENT PILOT PROGRAM.—The contract awarded by the Secretary of Defense to carry out the pilot program titled ''Pilot Health Insurance Enhancement for Department of Defense Civilian Employees in Japan'' may continue without interruption, and with the necessary

modifications, in implementing subsection (e) of section 1599b of title 10, United States Code, as added by subsection (a).

(c) CONFORMING AMENDMENT.—Subsection (f) of section 1599b of title 10, United States Code, as redesignated by subsection (a)(1), is amended by striking ''In this section'' inserting ''Except as provided by subsection (e), in this section''.

SEC. 753. MODIFICATIONS TO PILOT PROGRAM TO ASSIST CERTAIN MEMBERS OF THE ARMED FORCES AND DEPENDENTS WITH ADDITIONAL SUPPLEMENTAL COVERAGE RELATING TO CANCER.

(a) AGREEMENT.—Subsection (b) of section 734 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. 1071 note) is amended—

(1) in paragraph (1)—

(A) in subparagraph (B), by striking ''; and'' and inserting a semicolon;

(B) by redesignating subparagraph (C) as subparagraph (D); and

(C) by inserting after subparagraph (B) the following new subparagraph:

''(C) provide no coordination with any other health benefit plan; and''.

(2) in paragraph (2), by striking ''a period of not more than three years, and may not be renewed'' and inserting ''a period of not less than three years''; and

(3) by adding at the end the following new paragraph:

''(3) REQUIREMENTS.—In entering into an agreement under paragraph (1) with a company, the Secretary—

''(A) may not select such company to provide coverage in a State, the District of Columbia, the Commonwealth of Puerto Rico, or any territory or possession of the United States in which such company—

''(i) is not licensed; and

''(ii) does not meet solvency requirements applicable to such State;

''(B) shall award the agreement based on the expertise of such company;

''(C) shall negotiate the terms and conditions of the fixed indemnity supplemental benefit plan provided under the agreement;

''(D) shall negotiate the cost of coverage with the company that will cover the participants who elect to enroll in such plan;

''(E) shall provide a method for verification of the eligibility of applicants and procedures for determination of eligibility; and

''(F) shall provide a method for payroll deduction of premiums.''.

(b) PROVISION OF INFORMATION.—Subsection (c) of such section is amended by striking ''website'' and inserting ''website, as determined by the Secretary,''.

(c) PREEMPTION.—Such section is further amended—

(1) by redesignating subsection (f) as subsection (g); and

(2) by inserting after subsection (e) the following new subsection:

''(f) PREEMPTION.—A fixed indemnity supplemental benefit plan provided under the pilot program shall be deemed to be a contract for which the Secretary of Defense has determined to preempt State or local laws pursuant to section 1103 of title 10, United States Code, as administered under section 199.17(a)(7)(i) of title 32, Code of Federal Regulations, as in effect on the date of the enactment of this Act.''.

SEC. 754. MODIFICATIONS TO EVALUATION AND REPORT ON TRICARE PROGRAM EFFECTIVENESS.

(a) EVALUATION.—Subsection (a) of section 717 of the National Defense Authorization Act for Fiscal Year 1996 (Public Law 104–106; 10 U.S.C. 1073 note) is amended—

(1) in paragraph (2), by striking ''; and'' and inserting a semicolon;

(2) in paragraph (3)(B)(v), by striking the period and inserting a semicolon; and

(3) by adding at the end the following new paragraphs:

''(4) examine trends with respect to—

''(A) the demographics of members of the Armed Forces and covered beneficiaries;

''(B) the use of the TRICARE program by such members and beneficiaries;

''(C) the costs incurred by the Government relating to such use; and

''(D) the satisfaction of such members and beneficiaries with respect to the TRICARE program and other metrics relating to the performance of the military health system;

''(5) compare the trends examined under paragraph (4) with trends on similar matters experienced by civilian health care programs;

''(6) identify possible determining factors that could cause changes in the use of the TRICARE program or the costs incurred by the Government relating to such use; and

''(7) determine the impacts of cost-sharing amounts under the TRICARE program on members of the Armed Forces and covered beneficiaries.''.

(b) ANNUAL REPORT.—

(1) REVIVAL.—Subsection (c) of such section is amended by striking ''March 1, 1997'' and inserting ''March 1, 2027''.

(2) CONFORMING AMENDMENT.—Section 1061(i) of the National Defense Authorization Act for Fiscal Year 2017 (Public Law 114–328; 10 U.S.C. 111 note) is amended by striking paragraph (3).

SEC. 755. EXTENSION OF EXTRAMEDICAL MATERNAL HEALTH PROVIDERS DEMONSTRATION PROJECT.

Section 746 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 10 U.S.C. 1073 note) is amended—

(1) in subsection (d), by striking ''five years'' and inserting ''eight years''; and

(2) in subsection (f)—

(A) in the heading, by inserting ''AND BRIEFING'' after ''REPORTS''; and

(B) by adding at the end the following new paragraph:

''(3) BRIEFING.—Not later than June 30, 2027, the Secretary shall provide to the Committees on Armed Services of the House of Representatives and the Senate a briefing on the feasibility of the Department of Defense hiring doulas to provide services to members of the Armed Forces and covered beneficiaries at military medical treatment facilities that are located in the United States and such facilities that are located outside the United States.''.

SEC. 756. MODIFICATION OF TRAUMATIC BRAIN INJURY OVERSIGHT STRATEGY AND ACTION PLAN OF THE DEPARTMENT OF DEFENSE.

(a) CLARIFICATION OF STRATEGY AND PLAN REQUIREMENTS.—Section 724 of the Servicemember Quality of Life Improvement and National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. 1071 note) is amended—

(1) by redesignating subsections (b) through (d) as subsections (c) through (e), respectively; and

(2) by inserting after subsection (a) the following new subsection (b):

''(b) REQUIREMENTS; IMPLEMENTATION.—

''(1) REQUIREMENTS.—The oversight strategy and action plan under subsection (a) shall include the following requirements:

''(A) Establishment of a baseline neurocognitive assessment to be conducted during the accession process of all members of the covered Armed Forces before the beginning of training.

''(B) Establishment of annual neurocognitive assessments to monitor the cognitive function of such members to be conducted—

''(i) at least every three years as part of the periodic health assessment of such members, and yearly for members determined to be at a high risk, as determined by the Under Secretary of Defense for Personnel and Readiness; and

''(ii) as part of the post-deployment health assessment of such members.

''(C) Establishment of standards for recurrent and prolonged exposure.

"(D) Ensuring that all neurocognitive assessments of such members, including those required under subparagraphs (A) and (B), are maintained in the electronic medical record of such member.

"(E) Establishment and maintenance of blast overpressure exposure logs and traumatic brain injury logs for every member of the covered Armed Forces.

"(2) IMPLEMENTATION.—Not later than one year after the date of the enactment of this subsection, the Secretary shall implement each requirement under paragraph (1).".

(b) MODIFICATION OF REPORTS ON SUICIDE.—Section 741(a)(2) of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92; 133 Stat. 1467), as amended by section 736(2)(B) of the Servicemember Quality of Life Improvement and National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 138 Stat. 1959), is amended—

(1) by redesignating subparagraphs (I) through (M) as subparagraphs (J) through (N), respectively; and

(2) by inserting after subparagraph (H) the following new subparagraph (I):

''(I) The number of suicides identified under subparagraph (A), as a whole and disaggregated by the military occupational specialty (or other similar classification, rating, or specialty code) of the member, excluding such specialities that the Secretary determines would not provide statistically valid data, with respect to which the member had a history of one of the following:

''(i) Concussive or subconcussive brain injuries, including traumatic brain injuries.

''(ii) Exposure to blast overpressure.

''(iii) Other head trauma, regardless of whether it required the treatment of a medical provider.''.

SEC. 757. EXPANSION OF PROHIBITION ON PAINFUL RESEARCH ON CERTAIN ANIMALS.

Section 732 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. 4001 note) is amended—

(1) in the section heading, by striking ''**ON DOMESTIC CATS AND DOGS**'' and inserting ''**ON CERTAIN ANIMALS**''; and

(2) in subsection (a), by striking ''a domestic cat (Felis catus) or a domestic dog (Canis

familiaris)'' and inserting ''a domestic cat (Felis catus), a domestic dog (Canis familiaris), or a nonhuman member of the order Primates''.

SEC. 758. PILOT PROGRAM TO TREAT PREGNANCY AS A QUALIFYING EVENT FOR ENROLLMENT IN TRICARE SELECT.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall commence a five-year pilot program under which—

(1) the Secretary shall treat pregnancy as a qualifying event under section 1099(b)(1)(B) of title 10, United States Code, for enrollment in TRICARE Select by an eligible beneficiary; and

(2) a member of the Army, Navy, Marine Corps, Air Force, or Space Force on active duty may enroll in TRICARE Select under paragraph (1) for a period that ends not later than 180 days after the end of pregnancy.

(b) INITIAL BRIEFING.—Not later than one year after the date of the enactment of this Act, the Secretary shall provide to the Committees on Armed Services of the House of Representatives and the Senate a briefing on the status of the pilot program under subsection (a).

(c) ANNUAL REPORT.—Not later than one year after the Secretary commences the pilot program under subsection (a), and annually thereafter for the next four years, the Secretary shall provide to the Committees on Armed Services of the House of Representatives and the Senate a report on the pilot program. Each such report shall include the number of covered enrollment changes, disaggregated by—

(1) month, beginning with January 2027; and

(2) whether the eligible beneficiary made such covered enrollment change—

(A) because the eligible beneficiary is a member of the covered Armed Forces on active duty who may enroll in TRICARE Select under the pilot program;

(B) because the eligible beneficiary is a member of the covered Armed Forces who separated from active duty;

(C) because the eligible beneficiary is a member of the covered Armed Forces who returned to active duty;

(D) because the eligible beneficiary is a dependent of a member of the covered Armed Forces who separated from active duty;

(E) because the eligible beneficiary is a dependent of a member of the covered Armed Forces who returned to active duty; or

(F) based on the treatment, under the pilot program, of pregnancy as a qualifying event for enrollment in TRICARE Select.

(d) DEFINITIONS.—In this section:

(1) The term ''covered Armed Forces'' means the Army, Navy, Marine Corps, Air Force, and Space Force.

(2) The term ''covered enrollment change'' means a change to a previous election by an eligible beneficiary under subsection (b)(1) of section 1099 of title 10, United States Code, to enroll in a health care plan designated under subsection (c) of such section.

(3) The term ''eligible beneficiary'' means an individual—

(A) eligible to enroll in TRICARE Select under section 1075(b) of title 10, United States Code, by reason of being a member or former member of the covered Armed Forces, or a dependent of such a member or former member; or

(B) a member of the covered Armed Forces on active duty.

(4) The terms ''TRICARE program'' and ''TRICARE Select'' have the meanings given such terms in section 1072 of title 10, United States Code.

SEC. 759. ACCESS TO AUTOMATED EXTERNAL DEFIBRILLATORS DURING MILITARY PHYSICAL TRAINING.

(a) ACCESS TO AEDS.—Beginning not later than one year after the date of the enactment of this Act, the Secretary of Defense shall ensure that, for any covered physical training event, an automated external defibrillator (in this section referred to as an ''AED'') is available and accessible at a distance that ensures a three-minute response time calculated under subsection (c).

(b) REQUIREMENTS.—In carrying out subsection (a), the Secretary shall—

(1) require that AEDs be staged at the immediate site of any covered physical training event;

(2) ensure that at least one individual present at covered physical training event site is certified (as of the date of the event) in the use of an AED and cardiopulmonary resuscitation (commonly known as ''CPR''); and

(3) establish a standardized protocol for regular quarterly inspections and maintenance of all AED units to ensure operational readiness.

(c) THREE-MINUTE RESPONSE TIME DETERMINATION.—The Secretary shall determine the three-minute response time under subsection (a) by calculating the total elapsed time beginning at the recognition of a suspected sudden cardiac arrest and ending at the delivery of the first defibrillation shock, including all time required for AED retrieval, transport, and device preparation. In making such determinations, the Secretary may presume that locating an AED within 100 yards of the site of the covered physical training event will meet such response time.

(d) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report outlining—

(1) the total number of additional AEDs required to achieve Department-wide compliance with this section;

(2) the estimated cost of procurement and maintenance of such AEDs; and

(3) a timeline for full implementation across all military installations to comply with this section.

(e) COVERED PHYSICAL TRAINING EVENT DEFINED.—In this section, the term ''covered physical training event'' means a required unit level physical training event or high-intensity exercise conducted by the Department of Defense.

SEC. 760. PILOT PROGRAM ON REMOTE BLOOD PRESSURE MONITORING FOR CERTAIN PREGNANT AND POSTPARTUM TRICARE BENEFICIARIES.

(a) ESTABLISHMENT.—

(1) REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, acting through the Director of the Defense Health Agency, shall establish a pilot program on blood pressure monitoring for pregnant and postpartum TRICARE beneficiaries in order to increase the rate of early detection of a hypertensive disorder of pregnancy.

(2) MODEL.—The Secretary may model the pilot program under paragraph (1) on a pilot program for blood pressure self-monitoring under the Healthy Start Program of the Health Resources and Services Administration of the Department of Health and Human Services.

(b) MILITARY MEDICAL TREATMENT FACILITIES.—

(1) NUMBER.—The Secretary shall carry out the pilot program under subsection (a) at not fewer than two military medical treatment facilities of each of the Army, Navy, Marine Corps, Air Force, and Space Force.

(2) SELECTION.—In selecting the military medical treatment facilities at which to carry out the pilot program under subsection (a), the Secretary shall—

(A) ensure that the military medical treatment facilities are geographically diverse, including locations in rural and urban areas; and

(B) give priority to military medical treatment facilities that have a large number of obstetric patients or a history of maternal health programs.

(c) PARTICIPANTS.—

(1) ELIGIBILITY.—An individual is eligible to participate in the pilot program under subsection (a) if—

(A) the individual—

(i) is enrolled in the TRICARE program;

(ii) is pregnant or postpartum; and

(iii) receives health care through a military medical treatment facility at which the Secretary is carrying out the pilot program; and

(B) the Secretary determines the individual is at risk (based on evidence and current medical standards and recommendations) of a hypertensive disorder of pregnancy or negative health outcomes as a result of a hypertensive disorder of pregnancy.

(2) VOLUNTARY.—The Secretary may not require an individual to participate in the pilot program under subsection (a).

(d) EQUIPMENT AND INFORMATION.—The Secretary shall provide to an individual participating in the pilot program under subsection (a)—

(1) a blood pressure cuff device that—

(A) is approved by the Food and Drug Administration for the digital monitoring of blood pressure;

(B) is validated for use during pregnancy according to the International Organization for Standardization (as determined by the Secretary);

(C) is capable of remote monitoring and data transmission; and

(D) has adjustable or alternative cuff sizes; and

(2) educational materials and instructions on the use of such device from a health care provider of the Department of Defense.

(e) PROVIDERS.—In carrying out the pilot program under subsection (a), the Secretary shall use the primary care and obstetric care provider of the individual participating in the pilot program, to the extent practicable.

(f) MATERIALS.—The Secretary shall develop supporting materials for health care providers who facilitate the pilot program under subsection (a), including the following:

(1) Guidance on how to identify individuals eligible to participate in the pilot program.

(2) Evidence-based educational materials regarding maternal health best practices for such individuals.

(g) TERM.—The pilot program under subsection (a) shall terminate five years after the date on which the Secretary establishes such pilot program.

(h) REPORT.—Not later than 180 days after the date of the termination of the pilot program, the Secretary

shall submit to the Committees on Armed Services of the House of Representatives and the Senate, and make publicly available on the internet website of the Department of Defense, a report on the pilot program. The report shall include the following elements, disaggregated by the Armed Force, sex, age, race, and ethnicity of individuals who participated in the pilot program:

(1) The number of participants.

(2) The percentage of such participants who used the monitors as prescribed.

(3) A summary of barriers or challenges participants experienced using the monitors and if such barriers or challenges resulted in the monitors being underused.

(4) The percentage of participants who had blood pressure readings of concern.

(5) The percentage of participants described in paragraph (4) who received medical attention based on such readings.

(6) A summary of provider and participant feedback, including percentages of—

(A) providers that found the program influenced patient care; and

(B) participants who found the program was helpful in managing the care of the participant.

(7) Recommendations of the Secretary whether the pilot program should be altered, expanded, or made permanent.

SEC. 761. CONTINUOUS GLUCOSE MONITORING PILOT PROGRAM.

(a) PILOT PROGRAM.—The Secretary of Defense shall carry out a pilot program under the TRICARE program under which the Secretary provides covered members with continuous glucose monitoring technology to assess the effects of real-time metabolic health tracking and early intervention on improving—

(1) the health of the members; and

(2) force readiness.

(b) PARTICIPATION.—The Secretary shall require a covered member to participate in the pilot program under subsection (a) if the Secretary identifies the member as being in either the Partially Medically Ready category or the Not Medically Ready category of the Individual Medical Readiness program.

(c) DATA.—

(1) EXCLUSIVE USES.—The Secretary may use the health information of a covered member collected

under the pilot program under subsection (a) only for the purposes of—

(A) carrying out the pilot program, including with respect to furnishing information to the Comptroller General of the United States pursuant to subsection (g)(1);

(B) providing health care, including preventative care, to the member pursuant to chapter 55 of title 10, United States Code; and

(C) conducting the Individual Medical Readiness program.

(2) NO USE FOR MEDICAL DISCHARGES.—The Secretary may not use the health information of a covered member collected under the pilot program under subsection (a) in separating or discharging the member from the Armed Forces under chapter 61 of title 10, United States Code.

(3) PROHIBITION ON NONGOVERNMENTAL USE.—A nongovernmental entity that provides continuous glucose monitoring technology under the pilot program under subsection (a), or otherwise provides services under the pilot program, may not—

(A) retain any rights to health information of a covered member collected under the pilot program;

(B) use such information except as authorized by this section; and

(C) may not retain such information after such authorized use is completed.

(d) PROVISION OF INFORMATION AND SERVICES.—The Secretary shall provide covered members participating in the pilot program under subsection (a) with—

(1) information regarding metabolic health awareness; and

(2) education and services to improve force readiness.

(e) TRAINING.—The Secretary shall—

(1) provide medical professionals of the military departments with in-person training on the background, procedures, and reporting requirements of the pilot program under subsection (a); and

(2) establish shared educational resources and training materials that may be used by all the military departments.

(f) DURATION.—The Secretary shall carry out the pilot program under subsection (a) for a five-year period.

(g) REPORTS.—

(1) COMPTROLLER GENERAL.—

(A) INITIAL.—Not later than three years after the date on which the Secretary commences the pilot program under subsection (a), the Comptroller General of the United States shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the pilot program, including—

(i) a comparison of the rates of members in the Partially Medically Ready category or the Not Medically Ready category of the Individual Medical Readiness program during 2025 and during the third year in which the pilot program is carried out; and

(ii) recommendations to improve the pilot program.

(B) FINAL.—Not later than five years after the date on which the Secretary commences the pilot program under subsection (a), the Comptroller General shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the pilot program, including—

(i) an assessment of the effectiveness of the recommendations under subparagraph (A)(ii); and

(ii) a determination by the Comptroller General regarding whether the pilot program should be extended.

(2) DOD.—Not later than five years after the date on which the Secretary commences the pilot program under subsection (a), the Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the pilot program, including—

(A) data regarding the use and efficacy of the pilot program;

(B) how the pilot program affected force readiness; and

(C) any recommendations by the Secretary to improve the pilot program.

(h) DEFINITIONS.—In this section:

(1) The term ''covered member'' means a member of the Armed Forces serving on active duty who meets any of the following criteria:

(A) The member has been diagnosed with prediabetes.

(B) The member has been diagnosed with type 2 diabetes and does not take insulin.

(C) The member has had gestational diabetes.

(D) The member is overweight or obese.

(2) The term ''Individual Medical Readiness program'' means the program specified in Department of Defense Instruction 6025.19, or successor instruction.

(3) The term ''TRICARE program'' has the meaning given that term in section 1072 of title 10, United States Code.

SEC. 762. PILOT PROGRAM ON SECURE, MOBILE PERSONAL HEALTH RECORD FOR MEMBERS OF THE ARMED FORCES.

(a) PILOT PROGRAM.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall commence a pilot program under which a member of the Armed Forces serving on active duty may use a covered health record platform to collect the health records of the member before separating from active duty.

(b) SELECTION OF ARMED FORCE.—The Secretary shall select not fewer than one Armed Force in which to carry out the pilot program under subsection (a).

(c) CONTRACTS.—

(1) AUTHORITY.—The Secretary shall seek to enter into a contract using competitive procedures with an appropriate entity for the provision of the covered health record platform under the pilot program under subsection (a).

(2) NOTICE OF COMPETITION.—

(A) REQUEST FOR PROPOSALS.—Not later than 60 days after the date of the enactment of this Act, the Secretary shall issue a request for proposals for the contract described in paragraph (1).

(B) OPEN COMPETITION.—A request under subparagraph (A) shall be full and open to any contractor that has an existing covered health record platform.

(3) SELECTION.—Not later than 120 days after the date of the enactment of this Act, the Secretary shall award a contract to an appropriate entity pursuant to the request for proposals under paragraph (2) if the Secretary determines that at least one acceptable offer is submitted.

(d) DURATION OF PILOT PROGRAM.—

(1) PERIOD.—The Secretary shall carry out the pilot program under subsection (a) for a period of not less than one year.

(2) TERMINATION OR EXTENSION OF PROGRAM.—After carrying out the pilot program under subsection (a) for a period of 180 days, the Secretary shall survey all participants in the pilot program and, based on survey results, may—

(A) terminate the pilot program;

(B) continue the pilot program;

(C) expand the pilot program; or

(D) implement the use of a covered health record platform in the Defense Health Agency throughout the Armed Forces.

(e) PROHIBITION ON NEW APPROPRIATIONS.—No additional funds are authorized to be appropriated to carry out the requirements of this section.

(f) COVERED HEALTH RECORD PLATFORM DEFINED.—In this section, the term ''covered health record platform'' means a secure personal health record platform that meets the following requirements:

(1) Has web-based and native mobile phone application capabilities.

(2) Has the capability to store and share records with the Department of Veterans Affairs or any other designated care provider.

(3) Has the capability to store records in the cloud.

(4) Does not have a requirement for integration to receive or share records.

(5) Has the capability to instantly share data based on a combination of access key and personal identifier.

(6) Has the capability to provide secure data storage and records transfer upon separation of a member of the Armed Forces from active duty.

(7) Does not require a business associate agreement with any parties.

(8) Has secure data isolation with access controls.

(9) Has, at a minimum, data security that would require separate encryption for each document, relying on AES256 or better algorithm with keys encryption using RSA2048 or better algorithm, or any successor similar algorithm.

SEC. 763. PILOT PROGRAM TO PROVIDE FOR THE USE OF BLUE-LIGHT DISSIPATING DISPLAYS TO CERTAIN INDIVIDUALS.

(a) PILOT PROGRAM.—The Director of the Defense Health Agency shall carry out a pilot program under which the Director provides for the use of blue-light dissipating displays by covered individuals in clinical and rehabilitative settings.

(b) USE OF BLUE-LIGHT DISSIPATING DISPLAYS.—The Director shall ensure that blue-light dissipating displays provided under the pilot program under subsection (a) are used to assist covered individuals with screen-mediated tasks associated with rehabilitation, patient education, assistive technology, and telehealth appointments.

(c) SELECTION OF TECHNOLOGY.—In carrying out the pilot program under subsection (a), the Director shall select commercially available, stand-alone blue-light dissipating displays that do not require modifications to the electronic health record systems of the military health system.

(d) LOCATIONS.—The Director shall select military medical treatment facilities at which to carry out the pilot program under subsection (a).

(e) BRIEFING.—Not later than 180 days after the date of the enactment of this Act, the Director shall provide to the Committees on Armed Services of the House of Representatives and the Senate a briefing on the design of the pilot program under subsection (a), including identification of the military medical treatment facilities selected under subsection (d).

(f) REPORT.—Not later than one year after the date of the enactment of this Act, the Director shall submit to the Committees on Armed Services of the House of

Representatives and the Senate a report on the pilot program under subsection (a), including an evaluation of each of the following:

(1) Whether the use of blue-light dissipating displays provided under the pilot program changed the time needed to complete screen-mediated tasks associated with rehabilitation, patient education, assistive technology, and telehealth appointments.

(2) Whether such use improved the ability of covered individuals to read information relating to such tasks.

(3) Whether such use improved the glare sensitivity and visual fatigue of covered individuals.

(g) DEFINITIONS.—In this section:

(1) The term ''blue-light dissipating display'' means a display technology that is blue-light-dissipating and uses a diffused light-output architecture, including with respect to employing optical-elastomer or diffused light-output nanomaterial light-management layers (or both).

(2) The term ''covered individual'' means a covered beneficiary (as defined in section 1072 of title 10, United States Code) who is partially blind, legally blind, or otherwise visually impaired.

SEC. 764. EXTENSION AND IMPROVEMENT OF PILOT PROGRAM OF THE UNIFORMED SERVICES UNIVERSITY OF THE HEALTH SCIENCES ON PHARMACEUTICAL SUPPLY CHAIN.

(a) EXTENSION.—The Secretary of Defense shall carry out the pilot program of the Uniformed Services University of the Health Sciences titled ''Assessing the Security and Quality of the U.S. Military Health System Pharmaceutical Supply Chain'' for a period of not less than five years beginning on the date of the enactment of this Act.

(b) ELEMENTS.—The Secretary shall ensure that the pilot program under subsection (a) includes the following:

(1) Defining the Department Essential Medicine list to consist of not more than 100 medicines that do not have patent exclusivity and are determined by the Secretary as essential for operational capabilities, predeployment, or the military health system (based on the progress of the pilot program before the date of the enactment of this Act).

(2) To the extent practicable, harmonizing such Department Essential Medicine list with a list of defense-relevant generic drugs based on the risk management framework developed under section 860 of the James M. Inhofe National Defense Authoriza-

tion Act for Fiscal Year 2023 (Public Law 117–263; 10 U.S.C. 3241 note prec.).

(3) Refreshing and expanding chemical testing data from the pilot program as carried out before the date of the enactment of this Act to include all medicines listed on the Department Essential Medicine List and creating National Drug Code-specific categorizations of high-risk, moderate-risk, or low-risk based on objective indicators for relative chemical quality and safety risk.

(4) Adding to the objective risk-categorization framework assessment of location of manufacturing, including flagging entities in China and other countries that are not compliant with the Trade Agreements Act of 1979 (19 U.S.C. 2501 et seq.) and creating National Drug Code-specific, objective categorizations of high-risk, moderate-risk, or low-risk based on independently derived indicators for true country of origin, that includes countries of concern, including China, being classified under the highest-risk category.

(5) Making recommendations for the continuation of the scoring framework at the conclusion of the pilot program.

(c) INDEPENDENT TESTING.—The Secretary shall ensure that, in determining the true country of origin (location quality) and relative chemical quality and safety risks of medicines under the pilot program under subsection (a), the testing for such information is conducted by independent laboratories acceptable to the Uniformed Services University of the Health Sciences that—

(1) are accredited under ISO 17025 standards;

(2) are not registered as a Good Manufacturing Practice facility to ensure no conflicts of interest;

(3) have experience developing and operating a published quality risk scoring framework applicable to individual National Drug Codes; and

(4) are duly licensed and demonstrate an ability to conduct ongoing post-market surveillance through procurement of pharmaceutical products from common wholesalers, and not directly from manufacturers.

SEC. 765. WORKING GROUP ON DIGITAL STRATEGY FOR TRAUMATIC BRAIN INJURIES.

(a) ESTABLISHMENT.—In accordance with the Warfighter Brain Health Initiative under section 735 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 10 U.S.C. 1071 note), not later than July 1, 2027, the Assistant Sec-

retary of Defense for Health Affairs shall establish a working group to develop a digital health strategy that leverages advances in artificial intelligence for the treatment of traumatic brain injuries.

(b) MEMBERSHIP.—The Assistant Secretary shall appoint to the working group under subsection (a) members of the Armed Forces, officers and employees of the Department of Defense, and nongovernmental experts. Such individuals shall have expertise in clinical care of traumatic brain injuries, biomedical informatics, biomedical engineering, or biomedical implementation science.

(c) STRATEGY.—The strategy under subsection (a) shall include, at a minimum, the following:

(1) Identification of capability gaps in treatment of traumatic brain injuries that could be addressed through artificial intelligence and digital health technologies.

(2) An analysis of existing research, development, and acquisition efforts leveraging artificial intelligence-based capabilities and digital health, including any applicable commercial off-the-shelf solutions being used by the Department of Defense to support treatment of traumatic brain injuries.

(3) Expert recommendations on advances required to address identified capability gaps and sig-

nificantly improve treatment of traumatic brain injuries using artificial intelligence and digital health technologies.

(4) A recommended investment plan to advance technology and knowledge readiness levels to field digital solutions for treating traumatic brain injuries.

SEC. 766. STUDY ON LONG-TERM EFFECTS OF MILITARY FLIGHT OPERATIONS ON BRAIN HEALTH AND MENTAL HEALTH.

(a) STUDY.—The Secretary of Defense shall conduct a comprehensive, longitudinal study to assess the long term physiological and psychological effects of military aviation, including with respect to high-performance flight and G-force exposure, on military aviators.

(b) ELEMENTS.—The study under subsection (a) shall examine, at a minimum—

(1) the relationship between cumulative flight hours and exposure to G-forces and incidents of traumatic brain injury, subconcussive trauma, or cognitive impairment;

(2) long-term mental health outcomes, including with respect to incidence of depression, anxiety disorders, and post-traumatic stress disorder, in mili-

tary aviators compared to other members of the Armed Forces;

(3) the correlation between aviation-related physiological stress and suicide risk among aviators;

(4) the prevalence of neurodegenerative conditions (including chronic traumatic encephalopathy, amyotrophic lateral sclerosis, and Parkinson's disease) in current and former military aviators;

(5) the effect of helmet design, oxygen systems, flight suit pressurization, and other cockpit environmental factors on neurocognitive health;

(6) current screening and diagnostic procedures used to detect early signs of neurological injury or psychological distress in military aviators; and

(7) recommended improvements in the monitoring, prevention, and treatment of aviation-related brain trauma and mental health challenges.

(c) CONSULTATION.—In conducting the study under subsection (a), the Secretary shall consult with—

(1) the Surgeons General of the military departments;

(2) the Director of the Defense Health Agency;

(3) the Secretary of Veterans Affairs; and

(4) relevant academic institutions and federally funded research and development centers with exper-

tise in aviation medicine, neuroscience, and psychiatry.

(d) PILOT HEALTH REGISTRY.—The Secretary of Defense shall establish and maintain a centralized Military Aviator Neurohealth Registry that includes—

(1) anonymized health data of military aviators voluntarily participating in the study under subsection (a);

(2) flight exposure metrics, including cumulative hours and G-force profiles;

(3) relevant health outcomes tracked over time; and

(4) a mechanism for longitudinal follow-up with the military aviators after retirement or separation from the Armed Forces.

(e) REPORTS.—

(1) INTERIM REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees an interim report on the study under subsection (a), including any preliminary findings and recommendations.

(2) FINAL REPORT.—Not later than three years after the date of the enactment of this Act, the Secretary shall submit to the congressional defense com-

mittees a report on the study under subsection (a), including findings and recommendations.

(f) MILITARY AVIATOR DEFINED.—In this section, the term ''military aviator'' means a member of the Armed Forces, including a commissioned officer or a warrant officer, who—

(1) has been designated as a pilot, naval aviator, or aircrew member by the Secretary of the military department concerned;

(2) operates, or is regularly assigned as a flight crew member aboard, high-performance, crewed, fixed-wing or rotary-wing aircraft designed for tactical, training, or reconnaissance missions, including—

(A) fighter aircraft (such as the F–35, F/A–18, F–22, and F–16 aircraft);

(B) attack aircraft (such as the A–10 and AH–64 aircraft);

(C) trainer jets (such as the T–7, T–38,and T–45 aircraft); and

(D) tiltrotor or high-speed rotary aircraft (such as the V–22 aircraft); and

(3) is subject to sustained or repeated G-forces during the routine execution of flight duties.

SEC. 767. STUDY ON FEASIBILITY OF ESTABLISHING MILITARY MEDICAL TREATMENT FACILITY AT HOMESTEAD AIR RESERVE BASE.

(a) STUDY.—The Secretary of Defense, acting through the Director of the Defense Health Agency, in coordination with the Secretary of the Air Force, shall conduct a feasibility study on establishing a military medical treatment facility at Homestead Air Reserve Base, Florida.

(b) MATTERS INCLUDED.—The study under subsection (a) shall evaluate the following:

(1) The total eligible beneficiary population who would access a military medical treatment facility at Homestead Air Reserve Base, including with respect to members of the Armed Forces (including the reserve components thereof) and covered beneficiaries stationed at such Base or at a different military installation in the proximity of such Base.

(2) The extent to which reliance by such members and covered beneficiaries on civilian health care providers—

(A) meets medical readiness and deployment training requirements;

(B) supports or degrades military-unique clinical skill sustainment; and

(C) satisfies adequacy standards under the TRICARE network.

(3) Identified gaps between civilian health care access and military operational medical readiness requirements.

(4) A cost comparison of—

(A) a direct care military medical treatment facility model;

(B) a hybrid readiness clinic model; and

(C) continued purchased care reliance.

(5) Opportunities for integration with local civilian health care systems while preserving military-unique readiness competencies.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate—

(1) the findings of the study under subsection (a);

(2) a recommended course of action;

(3) estimated cost and manpower requirements;

(4) an assessment of medical readiness impacts; and

(5) an analysis of the implications to covered beneficiaries with respect to accessing medical care.

(d) COVERED BENEFICIARY DEFINED.—In this section, the term ''covered beneficiary'' has the meaning given that term in section 1072 of title 10, United States Code.

SEC. 768. STUDY ON FEASIBILITY OF ESTABLISHING DIGITAL SYSTEM RELATING TO ACCESS TO CARE AT MILITARY MEDICAL TREATMENT FACILITIES.

(a) STUDY.—Not later than 18 months after the date of the enactment of this Act, the Secretary of Defense shall conduct a study to determine the feasibility of establishing a digital system under which—

(1) a covered individual who receives health care at a military medical treatment facility may electronically—

(A) file a complaint relating to access to care at such military medical treatment facility; and

(B) view the status of such complaint at any time, including the status of any interim or final action taken to address the complaint;

(2) any complaint filed under paragraph (1)(A) is promptly transmitted to an appropriate patient advocate of the Department of Defense; and

(3) complaints filed under paragraph (1)(A) with respect to a military medical treatment facility may be automatically aggregated and submitted to the Director of the Defense Health Agency on a quarterly basis.

(b) REPORT.—

(1) REQUIREMENT.—Not later than December 1, 2027, the Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the feasibility of establishing the digital system described in subsection (a).

(2) ELEMENTS.—The report under paragraph (1) shall include the following:

(A) An identification of the most common complaints relating to access to care filed by covered individuals.

(B) A comparison of the number of complaints regarding access to specialty care versus access to primary care.

(C) A comparison of the number of complaints regarding access to pediatric care versus nonpediatric care.

(D) A comparison of the number of complaints regarding administrative hurdles to ac-

cess to care versus other issues relating to access to care.

(E) A summary of steps taken to reduce complaints relating to access to care.

(c) COVERED INDIVIDUAL DEFINED.—In this section, the term ''covered individual'' means an individual enrolled in a health care plan under the TRICARE program and eligible to receive care at a military medical treatment facility.

SEC. 769. REVIEW BY INSPECTOR GENERAL OF THE DEPARTMENT OF DEFENSE ON EFFORTS TO PREVENT SUICIDE.

(a) REVIEW.—The Inspector General of the Department of Defense shall conduct a review of the efforts of each Secretary of a military department to prevent incidents of deaths by suicide, suicide attempts, and suicidal ideation among members of the Armed Forces, including with respect to—

(1) efforts to increase public awareness of such prevention; and

(2) developing unit commanding officer crisis response plans.

(b) ELEMENTS.—The review under subsection (a) shall include an assessment of each of the following:

(1) The extent of data collected regarding incidents of deaths by suicide, suicide attempts, and suicidal ideation among members of the Armed Forces.

(2) The means used by commanders to prevent and respond to incidents of deaths by suicide, suicide attempts, and suicidal ideation among members.

(3) Challenges relating to—

(A) the prevention of incidents of deaths by suicide, suicide attempts, and suicidal ideation among members deployed; and

(B) the development of a response to such incidents.

(4) The capacity of teams providing mental health services to members to respond to incidents of suicidal ideation or suicide attempts among members in the respective unit each such team serves.

(5) The means used by such teams to respond to such incidents, including the extent to which post-incident programs are available to members.

(6) Barriers to providing signage and advertisements for mental health resources in high-traffic areas on installations.

(7) Current annual training requirements and leadership training programs for each Armed Force, including any enforcement measures.

(8) Such other matters as the Inspector General determines appropriate.

(c) REPORT.—Not later April 30, 2027, the Inspector General of the Department of Defense shall submit to the Committees on Armed Services of the Senate and House of Representatives a report that includes a summary of the results of the review under subsection (a).

SEC. 770. REQUIREMENTS RELATING TO WELLNESS CHECKS FOR HEALTH AND WELFARE OF CERTAIN MEMBERS OF THE ARMED FORCES.

(a) WELLNESS CHECKS.—

(1) WELLNESS CHECKS REQUIRED.—The Secretary of Defense shall issue such regulations, policies, and procedures as may be necessary to require that, whenever appropriate, following a member of the Armed Forces sustaining any significant injury or illness or being on sick call, a wellness check is conducted to account for the health and welfare of such member.

(2) METHODS OF CONTACT.—In conducting a wellness check for a member of the Armed Forces pursuant to paragraph (1), if the member does not respond to such check conducted via an electronic or telephone communication method, the individual con-

ducting the check shall progress to an in-person method of contact.

(3) RESULT OF FAILURE TO LOCATE.—If, as a result of a wellness check conducted pursuant to paragraph (1) for a member of the Armed Forces, the individual conducting such check is unable to locate such member, the individual shall refer to the applicable regulations, policies, and procedures of the Department of Defense regarding the determination and reporting of such member as missing, absent unknown, absent without leave, or duty status whereabouts unknown.

(b) IMPLEMENTATION BY UNIT COMMANDERS.—In carrying out subsection (a), the Secretary of Defense shall ensure that each unit commander coordinates with the judge advocates assigned or attached to, or performing duty with, the unit under the command of such commander for assistance in the implementation of any regulation, policy, or procedure required under subsection (a) with respect to such unit.

(c) ADDITIONAL ACTIONS BY UNIT COMMANDERS.—On a routine basis, each unit commander shall—

(1) review the requirements contained in the document titled ''Commander's Critical Information

Requirements'', dated January 2020, or such successor document, to ensure such requirements—

(A) have been issued or updated during the three-year period preceding any such review;

(B) reflect such medical issues or safety incidents of members of the Armed Forces that the commander deems sufficiently significant; and

(C) have been distributed to the unit under the command of such commander; and

(2) host confidential wellness meetings with subordinate commanders at which such commanders may discuss with one or more medical officers assigned to such unit any significant injuries or illnesses affecting members of the Armed Forces serving in or with such unit.

(d) TRAINING COURSES.—Each Secretary concerned, and the Secretary of Defense with respect to civilian personnel of the Department of Defense, shall develop and implement training courses to ensure each member of an Armed Forces under the jurisdiction of that Secretary (or each civilian employee of the Department of Defense, respectively) is aware of the importance of accountability with respect to health and welfare and of the significant

negative outcomes that may occur when accountability procedures fail. Such courses shall be offered at leadership and supervisor trainings and shall include content relating to the conduct of wellness checks in accordance with subsection (a) and other related actions.

(e) SECRETARY CONCERNED DEFINED.—In this section, the term ''Secretary concerned'' has the meaning given such term in section 101(a) of title 10, United States Code.

SEC. 771. REPORTS ON DEPARTMENT OF DEFENSE COMPREHENSIVE AUTISM CARE DEMONSTRATION PROGRAM.

(a) REPORT ON IMPLEMENTATION OF RECOMMENDATIONS.—Not later than February 1, 2027, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the plan by the Secretary to implement the recommendations made by the National Academies of Sciences, Engineering, and Medicine in the report on the Department of Defense Comprehensive Autism Care Demonstration program submitted under section 737 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 135 Stat. 1800).

(b) SEMIANNUAL REPORTS.—On a semiannual basis, the Secretary shall submit to the Committees on Armed

Services of the House of Representatives and the Senate a report on the Department of Defense Comprehensive Autism Care Demonstration program, including the following with respect to the period covered by the report:

(1) The total number of children receiving applied behavior analysis services under the program.

(2) The total average wait time for such children, listed by the State in which such services are provided and calculated based on the date of the diagnosis of autism and the date on which such services are first provided.

(3) The number of new referrals for such services.

(4) The number of providers accepting new patients for such services.

(5) The number of providers who no longer accept new patients for such services.

(6) The average number of treatment sessions required by such children.

SEC. 772. TRANSITION OF MEDICS TO CIVILIAN WORKFORCE.

(a) RECOMMENDATIONS.——

(1) REQUIREMENT.—Each Secretary concerned shall develop recommendations to improve the transition of medics under the jurisdiction of the Sec-

retary concerned into the civilian workforce in health care occupations, including as certified nurse aides, licensed practical nurses, or medical assistants.

(2) CONSIDERATIONS.—In carrying out paragraph (1), the Secretary concerned shall—

(A) identify any barriers—

(i) to improving the ability of the Secretary concerned to determine and communicate how the military medic credentials and experience of a medic separating from the Armed Forces translate to credentialed civilian employment in health care occupations;

(ii) that exist to the standardization among the Armed Forces of military medic credentials and experience and the alignment of such credentials and experience to credentialed civilian employment in health care occupations;

(iii) that exist to ensuring members of the Armed Forces with military medic credentials and experience have earned the equivalent civilian credential prior to separation from the Armed Forces in addition to receiving their military credentials;

(iv) to the increased establishment and uptake of accelerated or bridge programs to assist separating members of the Armed Forces in translating military credentials and experience into civilian health care credentials and employment;

(v) to increasing the availability and accessibility of preparatory activities under the SkillBridge program established under section 1143(e) of title 10, United States Code, in the health care sector for members of the Armed Forces preparing for separation, to include—

(I) the approval timeline for separating members to participate in SkillBridge programs in the health care sector; and

(II) requirements to return to their duty station for out-processing; and

(vi) to providing information on civilian health care credentials and employment under the Transition Assistance Program to medics separating from the Armed

Forces, including information on State-by-State licensing and credentialing; and

(B) consider the potential effects of—

(i) clarification by States through legislation, actions of State licensing boards, or actions of State credentialing boards of the civilian equivalents of certain military credentials and experience in health care;

(ii) implementation, including through State-provided incentives, of accelerated programs to bridge military medic credentials and experience with civilian health care credentials and licenses;

(iii) financial support or incentives by States to increase the availability and accessibility of such programs;

(iv) requiring the military departments to align military health care credentials with civilian equivalents; and

(v) requiring the Department of Veterans Affairs and the Department of Labor to track and report the number of separated members of the Armed Forces with health care-related military credentials and experience who continue in the ci-

vilian health care sector, including the type of employment they pursue.

(3) CONSULTATION.—The Secretaries concerned shall carry out paragraph (1) in consultation with each of the States (through the Defense-State Liaison Office of the Department of Defense), the Secretary of Veterans Affairs, the Secretary of Health and Human Services, and the Secretary of Labor.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary concerned shall submit to the appropriate congressional committees a report containing—

(1) the recommendations developed under subsection (a); and

(2) a plan to implement those recommendations.

(c) DEFINITIONS.—In this section:

(1) The term ''appropriate congressional committees'' means the following:

(A) The Committee on Armed Services, the Committee on Education and the Workforce, the Committee on Transportation and Infrastructure, and the Committee on Veterans' Affairs of the House of Representatives.

(B) The Committee on Armed Services, the Committee on Commerce, Science, and Transportation, the Committee on Health, Education, Labor, and Pensions, and the Committee on Veterans' Affairs of the Senate.

(2) The term ''medic'' means a member of the Armed Forces acting in a clinical health care-related occupation while serving in the Armed Forces.

(3) The term ''Secretary concerned'' means—

(A) the Secretary of Defense, with respect to matters concerning the Department of Defense; and

(B) the Secretary of Homeland Security, with respect to matters concerning the Coast Guard when it is not operating as a service in the Department of the Navy.

(4) The term ''State'' means each of the several States, the District of Columbia, the Commonwealth of Puerto Rico, the United States Virgin Islands, Guam, American Samoa, or the Commonwealth of the Northern Mariana Islands that have a Defense-State Liaison Office.

(5) The term ''Transition Assistance Program'' means the program of the Department of Defense for pre-separation counseling, employment assist-

ance, and other transitional services provided under sections 1142 and 1144 of title 10, United States Code.

SEC. 773. STRATEGIC PLAN TO ADDRESS MENTAL HEALTH OF CERTAIN MEMBERS OF THE ARMED FORCES.

(a) PLAN.—The Secretary of Defense, in coordination with each Secretary of a military department and the Director of the Defense Health Agency, shall develop a strategic plan to address suicide by members of the covered Armed Forces and the mental health services provided to such members.

(b) ELEMENTS.—The plan under subsection (a) shall include the following:

(1) Developing and enforcing uniform protocols with respect to—

(A) the regulations prescribed for the self-initiated referral process under section 1090b(e) of title 10, United States Code, for members of the covered Armed Forces seeking mental health evaluations;

(B) the provision of information, including through workplace posters, flyers, and advertisements, to ensure members are aware of such referral process.

(2) Standardized mental health training for members of the covered Armed Forces, including—

(A) specialized training for commanders, senior enlisted leaders, and medical personnel on identifying and addressing mental health concerns;

(B) the development of a certification process based on completion of training with documented proof of compliance;

(C) how to respond when a member initiates the referral process under section 1090b(e) of title 10, United States Code; and

(D) how to recognize signs indicating mental health distress.

(c) COVERED ARMED FORCES DEFINED.—In this section, the term ''covered Armed Forces'' means the Army, Navy, Air Force, Marine Corps, and Space Force.

SEC. 774. BRIEFING ON PROSTATE CANCER INCIDENCE AND EMERGING DIAGNOSTIC TECHNOLOGIES.

Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Secretary of Veterans Affairs, shall provide to the Committees on Armed Services of the House of Representatives and the Senate and the Committees on Vet-

erans' Affairs of the House of Representatives and the Senate a briefing on—

(1) the status and any preliminary findings of ongoing studies on cancer incidence rates among members of the Armed Forces and veterans, including—

(A) the results of and remedial actions taken following the study conducted by the Secretary of Defense on aircrew members of rotary-wing aircraft under section 736 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 935); and

(B) the results of and remedial actions taken following the completion of the study conducted by the Secretary of Veterans Affairs relating to fixed-wing aviators and associated ground crew pursuant to title V of the Sergeant First Class Heath Robinson Honoring our Promise to Address Comprehensive Toxics Act of 2022 (Public Law 117–168) and subsequent related directives;

(2) the incidence and prevalence of prostate cancer among members of the Armed Forces and

veterans, including any identified elevated risks within specific occupational specialties;

(3) an assessment of emerging and advanced prostate cancer screening, diagnostic, and prognostic technologies, including those that are less invasive and capable of determining cancer aggressiveness;

(4) the extent to which such technologies are currently available within the military health system and the health care system of the Department of Veterans Affairs; and

(5) a plan, including timelines and resource requirements, to evaluate and, as appropriate, implement such technologies within the military health system and the health care system of the Department of Veterans Affairs.

SEC. 775. ASSESSMENT OF ACCESS, FAIRNESS, AND TRANSPARENCY UNDER TRICARE PHARMACY BENEFITS PROGRAM.

(a) COMPTROLLER GENERAL AUDITS.—

(1) REQUIREMENT.—Not later than one year after the date of the enactment of this Act, the Comptroller General of the United States shall conduct audits of—

(A) data reported by the contractor responsible for the administration of the pharmacy benefits program relating to—

(i) rates of reimbursement and any price concessions;

(ii) any discrepancies between average reimbursements to various types of pharmacies disaggregated by retail, mail order, specialty, and long-term care pharmacies, and any pharmacy owned by or affiliated with such contractor; and

(iii) the difference between what the contractor charges the TRICARE program for a pharmaceutical agent and what the contractor pays to pharmacies for the same pharmaceutical agent, disaggregated by retail, mail order, specialty, and long-term care pharmacies;

(B) prior authorizations required by the TRICARE program for prescription drug treatments and services;

(C) the timeliness of dispensing prescription drugs from the various types of pharmacies, disaggregated by retail, mail order, specialty, and long-term care pharmacies; and

(D) the adequacy of the retail pharmacy network under the TRICARE program and access by eligible covered beneficiaries to such network, including with respect to continuity of care, geographic accessibility (taking into account factors in addition to travel time to and from a pharmacy, with special consideration for rural and underserved areas), and the extent to which elections by such beneficiaries reflect personal preference; and

(2) BRIEFING.—Not later than one year after the date of the enactment of this Act, the Comptroller General shall provide to the Committees on Armed Services of the Senate and the House of Representatives a briefing on the audits under paragraph (1).

(3) REPORT.—Not later than 18 months after the date of the enactment of this Act, the Comptroller General shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report with the results the audits under paragraph (1).

(b) ACCESS TO INFORMATION.—

(1) IN GENERAL.—As a condition of administering the pharmacy benefits program on and after

the date of the enactment of this Act, and notwithstanding any other provision of law, or any contract, subcontract, agreement, or confidentiality provision to the contrary, the contractor responsible for administering the pharmacy benefits program shall agree to make available to the Comptroller General any information the Comptroller General determines necessary to conduct the audits under subsection (a)(1) not later than 30 days after the request for such information by the Comptroller General.

(2) INFORMATION TO BE INCLUDED.—Information required under paragraph (1) shall include the following:

(A) Claims-level data.

(B) Information on reimbursement methodologies and payment rates.

(C) An identification of all price concessions, including rebates, fees, discounts, and remuneration of any kind from manufacturers, pharmacies, or other entities.

(D) Information on amounts charged to the Department of Defense and amounts paid to pharmacies for the same drug.

(E) Contracts, subcontracts, and other arrangements with manufacturers, pharmacies, or

third parties relevant to the administration of the pharmacy benefits program.

(3) PROHIBITION ON WITHHOLDING OF INFORMATION.—Information required to be provided under this paragraph may not be withheld, redacted, or limited on the basis of claims relating to proprietary information, trade secrets, or confidential commercial information, except that the Comptroller General shall protect such information from public disclosure in accordance with applicable law.

(4) FORM, DETAIL, AND FREQUENCY.—The Comptroller General may determine the form, level of detail, and frequency of data submissions required under paragraph (1).

(c) ASSESSMENT OF IMPACT.—If any audit conducted under subsection (a)(1) finds that reimbursement rates paid to retail pharmacies under the pharmacy benefits program are, on average or in a systemic manner, less than the documented acquisition cost to such pharmacies for outpatient prescription drugs covered by such audit, the Comptroller General shall include in the report on such audit under subsection (a)(2) an assessment of the impact of such reimbursement rates on retail pharmacy participation, beneficiary access, network adequacy, and continuity of care.

(d) ACCESS METRICS.—In conducting oversight of the pharmacy benefit program, the Secretary of Defense shall ensure that measures of access to such program include—

(1) continuity of care and beneficiary preference, including the ability of beneficiaries to remain with their pharmacy of choice; and

(2) meaningful geographic access standards beyond drive-time calculations, with special consideration for rural and underserved areas.

(e) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a plan for the implementation of this section.

(f) APPLICABILITY TO EXISTING CONTRACTS.—This section shall apply to any contract, agreement, or other arrangement in effect on or after the date of the enactment of this Act, including any contract, agreement, or arrangement entered into before such date.

(g) RELATIONSHIP TO EXISTING AUTHORITY.—Nothing in this section shall be construed to limit, amend, supersede, or restrict in any manner any existing authority of the Comptroller General.

(h) DEFINITIONS.—In this section:

(1) The terms ''eligible covered beneficiary'', ''pharmaceutical agent'', and ''prescription drug'' have the meanings given those terms in section 1074g of title 10, United States Code.

(2) The term ''pharmacy benefits program'' means the pharmacy benefit program of the TRICARE program under section 1074g of title 10, United States Code.

(3) The term ''TRICARE program'' has the meaning given that term in section 1072 of title 10, United States Code.

SEC. 776. REPORT ON FEASIBILITY OF PILOT PROGRAM ON BEHAVIORAL NEUROLOGY FELLOWSHIPS.

(a) REPORT.—Not later than 270 days after the date of the enactment of this Act, the Director of the Defense Health Agency shall submit to the congressional defense committees a report on the feasibility of establishing a pilot program that establishes a behavioral neurology fellowship program to provide training opportunities with respect to treating members of the Armed Forces and veterans with traumatic brain injuries, particularly regarding the intersection of behavior and traumatic brain injury.

(b) MATTERS INCLUDED.—The report on the potential pilot program under subsection (a) shall include the following:

(1) The feasibility of the pilot program meeting the requirements described in subsection (c).

(2) An evaluation of potential locations at which to carry out the pilot program.

(c) REQUIREMENTS DESCRIBED.—The requirements described in this subsection are the following:

(1) The pilot program would include two individuals selected for a one-year clinical fellowship program under the pilot program.

(2) An individual may hold a fellowship under the pilot program if the individual—

(A) holds a Doctor of Medicine or Doctor of Osteopathy from any medical school accredited by the Liaison Committee on Medical Education; and

(B) before participating in the fellowship program, has completed a residency program in neurology or psychiatry at an institution accredited by the Accreditation Council for Graduate Medical Education.

(3) An individual would not be required to be board certified to hold a fellowship under the pilot program.

(4) The pilot program would be carried out in a manner that seeks to allow an individual, upon

completion of the fellowship program, to sit for board certification in behavioral neurology and neuropsychiatry offered by the United Council for Neurologic Subspecialties.

(5) The fellowship program would be accredited.

SEC. 777. GOVERNMENT ACCOUNTABILITY OFFICE STUDY ON RESERVE COMPONENT DENTAL READINESS AND BENEFIT SUFFICIENCY.

(a) STUDY.—The Comptroller General of the United States shall conduct a study on the sufficiency of the Department of Defense Reserve Component dental program in supporting the medical readiness and deployability of members of the reserve components.

(b) ELEMENTS.—The study under subsection (a) shall include, at a minimum, the following:

(1) An assessment of the extent to which current annual benefit caps, including the $1,500 coverage limit under the TRICARE Dental Program, contribute to dental nondeployability among members of the reserve components.

(2) An evaluation of the relationship between out-of-pocket dental costs and delays in obtaining necessary dental care required for deployment readiness.

(3) An analysis of the extent to which dental readiness requirements impose a financial burden on members of the reserve components, including whether such requirements function as an unfunded mandate on individual members.

(4) A review of the findings of section 707 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2652) and an assessment of remaining gaps in data regarding dental readiness and benefit sufficiency.

(5) An identification and evaluation of targeted, cost-effective policy options to improve dental readiness among members of the reserve components, including—

(A) adjustments to annual benefit caps;

(B) coverage of readiness-related dental procedures not currently included under existing plans;

(C) alternative models for delivering dental care to reservists; and

(D) any other mechanisms the Comptroller General determines appropriate to reduce cost-related barriers to deployability.

(6) An assessment of the potential effects of such policy options on—

(A) overall force readiness and deployability;

(B) recruitment and retention within the reserve components; and

(C) cost to the Department of Defense.

(c) BRIEFING.—Not later than 180 days after the date of the enactment of this Act, the Comptroller General shall provide to the congressional defense committees a briefing on the preliminary observations and emerging findings of the study under subsection (a).

SEC. 778. REVIEW OF THE OCCUPATIONAL HEALTH AND SAFETY CONDITIONS OF OPERATIONAL FACILITIES ASSOCIATED WITH THE LGM–30G MINUTEMAN III INTERCONTINENTAL BALLISTIC MISSILE SYSTEM.

(a) IN GENERAL.—The Assistant Secretary of Defense for Health Affairs, in consultation with the Assistant Secretary of Defense for Nuclear Deterrence, Chemical, and Biological Defense Policy and Programs, shall seek to enter into an agreement with the Executive Officer of the National Academy of Sciences, Engineering, and Medicine for a review of the occupational health and safety conditions of covered operational facilities.

(b) ELEMENTS.—The review required by subsection (a) shall include the following:

(1) An independent review of the methodology and findings of the Missile Community Cancer Study conducted by the Air Force Medical Service and Air Force Global Strike Command.

(2) An independent assessment of occupational hazards, covered toxic substances, and operational activities associated with the LGM–30G Minuteman III intercontinental ballistic missile system that accounts for—

(A) enclosed space dynamics;

(B) ventilation inefficiencies; and

(C) limited fresh air exchange rates.

(3) An independent case-controlled retrospective study of cancer incidence rates among—

(A) Minuteman III missile launch officers and support personnel; compared to

(B) a group of members of the Air Force with—

(i) a substantially similar demographic makeup to the group of launch officers and support personnel included in the study;

(ii) responsibilities that are not associated with the Minuteman III system; and

(iii) a low potential for occupational exposure to covered toxic substances, as determined by Air Force Specialty Code and occupational duties.

(4) A comparative evaluation of the suitability and effectiveness of historic versus current year environmental surveillance policies, procedures, and technologies of the Department of the Air Force for covered operational facilities used to detect exposure to covered toxic substances and occupational hazards, including—

(A) air quality;

(B) groundwater and drinking water contamination;

(C) ventilation systems and particulate matter accumulation; and

(D) residual contamination associated with confined operational environments.

(5) An evaluation of the suitability and effectiveness of policies, procedures, and technologies of the Department of the Air Force to prevent occupational hazards, and reduce exposure to covered toxic

substances, associated with the Minuteman III system including—

(A) personal protective equipment;

(B) engineering controls;

(C) environmental surveillance; and

(D) other policies, procedures, and technologies deemed relevant.

(6) An evaluation of the suitability and effectiveness of policies, procedures, and technologies of the Department of the Air Force and the Department of Defense for reporting and periodic medical screening, testing, and evaluations for potential exposure to occupational hazards and covered toxic substances for personnel associated with the Minuteman III system.

(7) Recommendations of the Executive Officer with respect to—

(A) Department of Defense actions to ensure that occupational health and safety conditions of covered operational facilities—

(i) meet current occupational safety and national security requirements in effect as of the date of the enactment of this Act; and

(ii) are applied to the LGM–35A Sentinel intercontinental ballistic missile system; and

(B) potential modifications to—

(i) the current design and operation of the LGM–30G Minuteman III intercontinental ballistic missile system; and

(ii) the future design and operation of the Sentinel system.

(c) INFORMATION AND CLEARANCES.—The Secretary of Defense shall ensure that personnel of the National Academy of Sciences, Engineering, and Medicine supervising the implementation of the agreement required by subsection (a), or conducting the review required by such subsection, are granted, in a timely manner, access to the information and security clearances necessary to carry out such review.

(d) REPORT REQUIRED.—

(1) IN GENERAL.—Not later than 18 months after the date of the enactment of this Act, the Executive Officer of the National Academy of Sciences, Engineering, and Medicine shall submit to the congressional defense committees a report that includes the findings of the review required by subsection (a).

(2) FORM.—The report required by paragraph (1) shall be submitted in unclassified form but may include a classified annex.

(e) DEFINITIONS.—In this section:

(1) The term ''covered operational facilities'' mean physical structures and work environments associated with the LGM–30G Minuteman III intercontinental ballistic missile system, including—

(A) launch control facilities;

(B) launch facilities;

(C) missile alert facilities; and

(D) other associated facilities.

(2) The term ''covered toxic substances'' means contaminants and other risk factors that pose a significant health risk to an individual when inhaled, ingested, absorbed by, or in close proximity to, the individual, including—

(A) asbestos;

(B) radiation;

(C) polychlorinated biphenyls;

(D) combustion byproducts associated with burning classified materials, accelerants, and industrial solvents;

(E) volatile organic compounds (VOCs), including VOCs from cleaning and maintenance chemicals;

(F) radon and naturally occurring radioactive materials in subterranean facilities;

(G) hydrogen cyanide, hydrazine, ethylene glycol, and sodium chromate;

(H) pesticides and herbicides from facility perimeters and surrounding agricultural runoff;

(I) noise; and

(J) other chemical compounds or elements associated with the LGM–30G Minuteman III intercontinental ballistic missile system or covered operational facilities.

SEC. 779. CONTINUED EVALUATION OF THE TRICARE PROGRAM THROUGH BENEFICIARY EXPERIENCE SURVEYS.

(a) CONTINUED EVALUATION REQUIRED.—The Secretary of Defense shall ensure the sustained collection and analysis of beneficiary experience data necessary to support the ongoing evaluation of the TRICARE program in meeting the goals of—

(1) increasing access to health care for covered beneficiaries under chapter 55 of title 10, United States Code;

(2) improving the quality of health care provided to covered beneficiaries; and

(3) informing oversight of the performance of the military health system.

(b) ELEMENTS OF EVALUATION.—The evaluation under subsection (a) shall include an assessment of each of the following:

(1) The impact of the TRICARE program on members of the covered Armed Forces and the dependents of such members, retirees of the covered Armed Forces and the dependents of such retirees, and dependents with severe disabilities and chronic health care needs of members of the covered Armed Forces serving on active duty regarding access, costs, quality, and beneficiary experience.

(2) Barriers affecting beneficiary utilization of military medical treatment facilities and factors influencing the use of purchased care in lieu of direct care.

(3) Patient safety, quality of care, and access to care at military medical treatment facilities, including appointment wait times, beneficiary satisfaction, and comparison to the access standards of the Department of Defense.

(4) Trends in beneficiary experience and access to care over time through the use of longitudinal population-level data collection methodologies.

(c) SUBMISSION.—The Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate the results of each evaluation under subsection (a).

(d) CONTINUITY OF DATA COLLECTION.—The Secretary of Defense shall ensure that any transition or modification to beneficiary experience survey methodologies does not result in a lapse in the collection, analysis, or reporting of population-level beneficiary experience data necessary to support the evaluation, performance assessment, and reporting requirements, of the military health system.

(e) COVERED ARMED FORCE.—In this section:

(1) The term ''covered Armed Force'' means the Army, Navy, Air Force, Marine Corps, and Space Force.

(2) The term ''covered beneficiary'' means a covered beneficiary, as defined in section 1072 of title 10, United States Code, who is a beneficiary by reason of the service by an individual in a covered Armed Force.

(3) The term ''TRICARE program'' has the meaning given that term in section 1072 of title 10, United States Code.

SEC. 780. REMOVAL OF PEPTIDES FROM PROHIBITED PERFORMANCE ENHANCING SUBSTANCES LIST.

The Secretary of Defense may not include legally available peptides on the prohibited dietary supplement ingredients list established pursuant to Department of Defense Instruction 6130.06, or any other similar list of substances that are prohibited for use by a member of the Armed Forces without a medical exemption, if the member of the Armed Forces obtains and uses such peptides in a manner that is lawful in the location of the member.

SEC. 781. STUDY ON LONG-TERM EFFECTS OF EXPOSURE TO TOXIC SUBSTANCES ON REPRODUCTIVE HEALTH AND FERTILITY.

(a) STUDY.—The Secretary of Defense shall conduct a comprehensive, longitudinal study to assess the long-term effects of exposure to toxic substances on the reproductive health and fertility of members of the covered Armed Forces.

(b) ELEMENTS.—The study under subsection (a) shall include the following:

(1) The relationship between service in the covered Armed Forces and exposure to toxic substances.

(2) The resultant effect of exposure to toxic substances on the reproductive health and fertility of covered members of the Armed Forces.

(3) Whether certain career fields in the covered Armed Forces have a higher chance of damaging fertility.

(4) The effects of exposure to toxic substances and other mechanism on the health of children of such members.

(5) The effects of exposure to toxic substances and other mechanisms on the sex of the children of such members.

(6) The rates of infertility and reduced fertility among such members.

(7) The rates of congenital disabilities and birth defects in the children of such members.

(c) CONSULTATION.—In conducting the study subsection (a), the Secretary shall consult with—

(1) the Surgeons General of the covered Armed Forces;

(2) the Director of the Defense Health Agency; and

(3) relevant academic institutions and federally funded research and development centers with expertise in fertility and reproductive health.

(d) REPORT.—

(1) INITIAL REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate an interim report on the study under subsection (a), including any preliminary findings and recommendations.

(2) FINAL REPORT.—Not later than three years after the date of the enactment of this Act, the Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the study under subsection (a), including the following:

(A) Findings.

(B) Identification of the categories of toxic substances most commonly associated with reproductive harm among members of the covered Armed Forces.

(C) A description of current research programs within the Department of Defense exam-

ining the relationship between such exposures and reproductive health.

(D) An evaluation of the extent to which members of the covered Armed Forces have access to fertility preservation services, assisted reproductive technology, and fertility services, and any gaps in access to such services, including with respect to members of the reserve components.

(E) Recommendations regarding—

(i) improvements to screening and monitoring protocols for reproductive health outcomes related to toxic exposure;

(ii) expanded access to reproductive health services and fertility treatments for members of the covered Armed Forces affected by toxic exposure; and

(iii) legislative or regulatory actions to address reproductive health effects of such exposure.

(e) DEFINITIONS.—In this section:

(1) The term ''covered Armed Forces'' means the Army, Navy, Air Force, Marine Corps, and Space Force.

(2) The term ''toxic substances'' means any substance known to the Department of Defense to be toxic, hazardous, or otherwise cause negative health outcomes.

SEC. 782. IDENTIFICATION OF BEST PRACTICES RELATING TO NUTRITION, FITNESS, AND CHRONIC DISEASE PREVENTION PROGRAMS.

The Secretary of Defense shall—

(1) identify best practices relating to nutrition, fitness, and chronic disease prevention programs of the Armed Forces; and

(2) share successful models for such programs throughout the Department of Defense.

SEC. 783. REPORT ON CONGRESSIONALLY DIRECTED MEDICAL RESEARCH PROGRAMS.

(a) REPORT.—The Secretary of Defense shall submit to the congressional defense committees, and make publicly available on the internet website of the Department of Defense, a report on the effects and transition of research funded under the Congressionally Directed Medical Research Programs.

(b) ELEMENTS.—The report under subsection (a) shall include the following:

(1) An assessment of how research funded under the Congressionally Directed Medical Re-

search Programs has contributed to prevention, diagnosis, treatment, rehabilitation, clinical care, operational medicine, or readiness outcomes.

(2) An identification of research funded under the Congressionally Directed Medical Research Programs with near-term potential to transition into the military health system, operational use by the military departments, or broader clinical practice.

(3) An assessment of barriers that may prevent promising research funded under the Congressionally Directed Medical Research Programs from reaching patients or being adopted for clinical or operational use.

(4) Recommendations to improve transition pathways for research funded under the Congressionally Directed Medical Research Programs.

(c) FORM.—The report under subsection (a) shall be submitted in unclassified form, but may include a classified annex or annex with other controlled information.

SEC. 784. FUNDING FOR RESEARCH ON ALPHA-GAL SYNDROME.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 1405 for Combat and Operational Medicine Program, R&D research, as

specified in the corresponding funding table in section 4501, is hereby increased by $5,000,000 for alpha-gal syndrome research.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 1405 for Combat and Operational Medicine Program, R&D Advanced Development, as specified in the corresponding funding table in section 4501, is hereby reduced by $5,000,000.

SEC. 785. MEDICAL SUPPLY CHAIN RISK IDENTIFICATION AND TRANSPARENCY ENHANCEMENT.

The Secretary of Defense shall—

(1) conduct a Department-wide risk assessment of the medical supply chain of the Department;

(2) develop a classified, prioritized list of high-risk critical medical products for which the United States is dependent on the People's Republic of China for precursor elements; and

(3) submit to Congress a report on the findings of the assessment and mitigation strategies, including recommendations for procurement, sourcing, and domestic manufacturing actions relating to such medical products to reduce reliance on adversarial supply chains for such products.

SEC. 786. RESEARCH AND ANALYSIS ON OPTIMAL PROTECTION STRATEGIES FOR PREVENTING TRAUMATIC BRAIN INJURY IN MEMBERS OF THE ARMED FORCES.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall seek to enter into an agreement with a multi-university research center focused on physics-based neutralization of threats to human tissues and organs to conduct research on understanding and preventing traumatic brain injuries in members of the Armed Forces.

(b) ELEMENTS.—The research conducted under subsection (a) shall seek to achieve the following:

(1) Determine critical cell-based injury thresholds in the brain due to blunt, blast, or directed energy exposures.

(2) Identify critical molecular injury pathways for developing a holistic understanding of brain injury and its neurodegenerative sequelae.

(3) Define force and energy transmission from outside the head to the brain.

(4) Define factors that influence subject-specific relative risk of injury.

(5) Develop exposure monitors to predict onset of brain injury.

(6) Develop countermeasure systems to optimally protect members of the Armed Forces from brain injury stemming from multimodal threats and operations in complex environments.

SEC. 787. BRIEFING ON MEDICAL AND SAFETY RESOURCES AT EDWARDS AIR FORCE BASE.

Not later than February 1, 2027, the Secretary of Defense, in consultation with the Secretary of the Air Force, shall provide to the congressional defense committees a briefing on the status and availability of medical and safety resources at Edwards Air Force Base for members of the Armed Forces, civilian employees of the Department of Defense, and contractor personnel. The briefing shall include the following:

(1) The status of sufficient medical and safety resources.

(2) Whether sufficient emergency response assets exist to support lifesaving treatment.

(3) Any actions that need to be taken to improve the health and safety of such members, employees, and contractors.

SEC. 788. IMPROVEMENTS TO PILOT PROGRAM ON WASTEWATER SURVEILLANCE SYSTEM OF THE DEPARTMENT.

Section 733 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. 1071 note) is amended—

(1) in subsection (a), by inserting ''or covered drugs'' after ''infectious diseases'';

(2) in subsection (c), by striking ''two-year'' and inserting ''five-year''; and

(3) by adding at the end the following new subsection:

''(d) COVERED DRUGS DEFINED.—In this section, the term 'covered drugs' means any drug the Secretary determines appropriate to identify under the pilot program, such as synthetic opioids or harmful stimulants included in counterfeit pills.''.

SEC. 789. PILOT PROGRAM ON PRE-PROGRAMMING OF SUICIDE PREVENTION RESOURCES INTO SMART DEVICES ISSUED TO MEMBERS OF THE ARMED FORCES.

(a) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the Secretary of Defense shall commence the conduct of a pilot program under which the Secretary—

(1) pre-downloads the Virtual Hope Box application of the Defense Health Agency, or such successor application, on the covered devices of members of the Armed Forces;

(2) pre-programs the National Suicide Hotline number and Veterans Crisis Line number into the contacts for such covered devices; and

(3) provides training, as part of the training on suicide awareness and prevention conducted throughout the Department of Defense, on the preventative resources described in paragraphs (1) and (2).

(b) DURATION.—The Secretary of Defense shall carry out the pilot program under this section for a two-year period.

(c) SCOPE.—The Secretary of Defense shall determine the appropriate scope of individuals participating in the pilot program under this section to best represent each Armed Force and to ensure a relevant sample size.

(d) IDENTIFICATION OF OTHER RESOURCES.—In carrying out the pilot program under this section, the Secretary of Defense shall coordinate with the Director of the Defense Health Agency and the Secretary of Veterans Affairs to identify other useful technology-related resources for use in the pilot program.

(e) REPORT.—Not later than 30 days after the date on which the pilot program under this section terminates, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the pilot program, including recommendations by the Secretary relating to expanding the scope of future pilot programs to include members of the Armed Forces who do not possess covered devices.

(f) DEFINITIONS.—In this section:

(1) The term ''covered device'' means a smart device (including a mobile phone) that is issued to an individual by the Secretary of Defense or the Secretary of an Armed Force.

(2) The term ''Veterans Crisis Line'' means the toll-free hotline for veterans established under section 1720F(h) of title 38, United States Code.

SEC. 790. EXTENSION OF STUDY ON TREATMENT OF CERTAIN CONDITIONS USING CERTAIN PSYCHEDELIC SUBSTANCES.

Section 723 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 10 U.S.C. 1074 note) is amended—

(1) in subsection (d), by striking ''three years'' and inserting ''nine years'';

(2) by redesignating subsection (e) as subsection (f); and

(3) by inserting after subsection (d) the following new subsection:

''(e) PERIOD OF PERFORMANCE.—The Secretary shall seek to extend the performance of research conducted using funding awarded under this section to September 30, 2033.''.

SEC. 791. INCLUSION ON A WEBSITE OF THE DEPARTMENT OF DEFENSE OF CERTAIN INFORMATION WITH RESPECT TO A PATIENT BOOKING AN APPOINTMENT AT A MILITARY MEDICAL TREATMENT FACILITY.

Section 1073b(b)(1) of title 10, United States Code, as amended by section 737, is further amended—

(1) by striking ''The Secretary'' and inserting ''(A) The Secretary''; and

(2) by striking ''Such data'' and all that follows and inserting the following new subparagraph:

''(B) The data made available under subparagraph (A) shall include the following:

''(i) The core performance metrics adopted by the Secretary under section 728 of the National Defense Authorization Act for Fiscal Year 2017 (Public Law 114–328; 130 Stat. 2234).

''(ii) The average number of days between the date an individual books an appointment at a military medical treatment facility and the date of such appointment.

''(iii) The percentage of referrals of an individual to another health care facility that are made not later than one business day after the date on which such individual contacted the military medical treatment facility.''.

SEC. 792. REPORT AND STANDARDS ON TIMELINESS OF ELECTRONIC HEALTH RECORDS DURING TRANSITION FROM THE ARMED FORCES.

(a) REPORT.—

(1) REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the timeliness of providing members of the Armed Forces who are separating from active duty with a copy of the electronic health records of the members.

(2) ELEMENTS.—The report under paragraph (1) shall include the following, with respect to the one-year period preceding the date of the report:

(A) The average number of days following separation from active duty for a member to re-

ceive the electronic health records of the member.

(B) The most number of days a member has waited to receive such records.

(C) An explanation for delays in providing members such records.

(b) STANDARDS.—Not later than 270 days after the date on which the Secretary submits the report under subsection (a)(1), the Secretary shall establish standards to ensure that a member of the Armed Forces who is separating from active duty receives the electronic health records of the member within a reasonable period.

(c) REASONABLE PERIOD DEFINED.—In this section, the term ''reasonable period'', with respect to the standards established under subsection (b), means a period that the Secretary of Defense determines appropriate after taking into account—

(1) the findings of the report under subsection (a)(1); and

(2) the views of members of the Armed Forces who are separating from active duty, veterans, and other individuals the Secretary determines appropriate.

SEC. 793. ASSESSMENT OF NONINVASIVE FOCUSED ULTRASOUND TECHNOLOGIES.

The Secretary of Defense shall conduct an assessment of applications of noninvasive focused ultrasound technologies, including histotripsy, within the military health system, including an examination of—

(1) opportunities to use such technologies to improve outcomes and reduce recovery times; and

(2) the effect of the use of such technologies on military readiness.

SEC. 794. STUDY ON USE OF ROUTINE NEUROIMAGING MODALITIES IN DIAGNOSIS, TREATMENT, AND PREVENTION OF BRAIN INJURY DUE TO BLAST PRESSURE EXPOSURE DURING COMBAT AND TRAINING.

(a) IN GENERAL.—The Secretary of Defense shall conduct a study on the feasibility and effectiveness of the use of routine neuroimaging modalities in the diagnosis, treatment, and prevention of brain injury among members of the Armed Forces due to one or more blast pressure exposures during combat and training.

(b) REPORTS.—

(1) INTERIM REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the Committees on Armed Services of the Senate and the House of Representa-

tives an interim report on the methods and action plan for the study under subsection (a).

(2) FINAL REPORT.—Not later than two years after the date on which the Secretary begins the study under subsection (a), the Secretary shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the results of such study.

SEC. 795. REPORT ON EMERGENCY MEDICAL SERVICES CAPABILITIES AT MILITARY INSTALLATIONS.

(a) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on emergency medical services capabilities at military installation.

(b) MATTERS INCLUDED.—The report under subsection (a) shall include an assessment of emergency medical services capabilities at military installations, including—

(1) the number and distribution of emergency medical services response units;

(2) ambulance capabilities and equipment levels;

(3) staffing levels and certification levels of emergency medical personnel;

(4) availability of advanced life support services;

(5) integration with military medical treatment facilities and local civilian hospitals; and

(6) an evaluation of systems used to track naloxone distribution, including—

(A) the degree of integration of such tracking systems between emergency medical services reporting systems and medical record systems;

(B) procedures for documenting naloxone administration during emergency responses; and

(C) recommendations for establishing a standardized Department-wide tracking framework.

SEC. 796. REVIEW OF CHAPERONE POLICIES WITHIN FACILITIES OF THE DEFENSE HEALTH AGENCY.

(a) REVIEW.—Not later than 60 days after the date of the enactment of this Act, the Director of the Defense Health Agency shall review the compliance by all facilities of the Defense Health Agency with chaperone policies required by the policy memorandum of the Defense Health Agency dated December 15, 2025, and titled ''Chap-

erones/Standbys within Defense Health Agency Facilities'' (DHA-Policy Memorandum 25-020).

(b) FACILITIES IN NONCOMPLIANCE.—In carrying out the review under subsection (a), the Director shall—

(1) identify facilities that are not in compliance with the memorandum specified in such subsection; and

(2) not later than seven days after identifying a facility under paragraph (1), submit to Congress—

(A) an identification of the resources needed by such facility to comply with such memorandum; and

(B) information to enable Congress to verify when such facility is in compliance with such memorandum.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director shall submit to Congress a report containing the following:

(1) The findings of the review under subsection (a).

(2) A detailed plan outlining steps the Director has taken or will take pursuant to such review, including a timeline for completion of such steps.

(3) An evaluation of resourcing constraints of the Defense Health Agency in ensuring compliance

with the memorandum specified under such subsection.

(4) A detailed plan outlining additional formalized guidance with respect to the provision of chaperones for sensitive medical examinations to be provided through policy instructions of the Defense Health Agency.

(5) A mechanism for monitoring the effectiveness of the policies contained within such memorandum on an ongoing basis, including establishing routine inspections and collecting data to assess compliance by facilities of the Defense Health Agency with such memorandum.

(6) An assessment of how existing law affects the provision of chaperones for sensitive medical examinations.

(7) Recommendations for changes to relevant law to more effectively implement the policies contained within such memorandum.

TITLE VIII—ACQUISITION POLICY, ACQUISITION MANAGEMENT, AND RELATED MATTERS

Subtitle A—Acquisition Policy and Management

SEC. 801. RESPONSIBILITIES AND AUTHORITIES OF PORTFOLIO ACQUISITION EXECUTIVES WITH RESPECT TO CONTRACTORS.

(a) IN GENERAL.—Chapter 205 of title 10, United States Code, is amended by inserting after section 3105 the following new sections:

"§ 3105a. Portfolio acquisition executives: performance management authorities with respect to contractors

"(a) PERFORMANCE MANAGEMENT AUTHORITIES.—Each portfolio acquisition executive shall, with respect to contractors under the defense acquisition programs assigned to such executive, have the following authorities:

"(1) To issue a performance improvement notice to any contractor that, as documented in any contractor past performance database used by the Department of Defense, has received a rating indicating a deficiency (such as marginal or unsatisfactory) in two or more consecutive assessment periods,

or in three or more assessment periods within a period of five years. Such a notice shall specify, with particularity, the deficiencies identified in such ratings and shall establish measurable corrective action benchmarks and a remediation period not to exceed 180 days. The portfolio acquisition executive shall ensure that the notice is provided contemporaneously to the contractor and the component acquisition executive or service acquisition executive of the military department concerned, as applicable, and is documented in any contractor past performance database used by the Department.

''(2) To initiate a contract restructuring action, including an action to adjust a performance metric, milestone schedule, deliverable specification, or associated incentive fee structure, without the prior approval of the component acquisition executive or the service acquisition executive of the military department concerned, as long as the total value of the restructured contract does not exceed any applicable threshold. The portfolio acquisition executive shall provide written notification to the component acquisition executive or service acquisition executive, as applicable, not later than 15 days after initiating such an action.

''(3) To recommend to the component acquisition executive or the service acquisition executive of the military department concerned that a contract be terminated for cause. The service acquisition executive shall act on such recommendation, or determine not to act on such recommendation, not later than 30 days after receiving the recommendation.

''(b) RESPONSIBILITIES OF COMPONENT ACQUISITION EXECUTIVE OR SERVICE ACQUISITION EXECUTIVE.—In a case in which the component acquisition executive or service acquisition executive, as applicable, overrides the issuance of a performance improvement notice under subsection (a)(1), overrides a contract restructuring action under subsection (a)(2), or determines not to act on a recommendation under subsection (a)(3), the component acquisition executive or service acquisition executive, as applicable, shall—

''(1) not later than 15 days after such override or determination, make a written documentation of the override or determination that cites the specific statutory, regulatory, or policy basis for the override or determination; and

''(2) provide a copy of such written documentation to the portfolio acquisition executive and the

Under Secretary of Defense for Acquisition and Sustainment.

''(c) LIMITATION.—This section does not—

''(1) authorize a portfolio acquisition executive to terminate a contract for cause without the approval of the component acquisition executive or service acquisition executive, as applicable; or

''(2) supersede any right of the contractor to notice and opportunity to respond under applicable provisions of law or regulation.

''(d) GUIDANCE.—The Under Secretary of Defense for Acquisition and Sustainment shall issue guidance for the implementation of this section.

''(e) ANNUAL REPORT.—On an annual basis, the Under Secretary of Defense for Acquisition and Sustainment, in consultation with each component acquisition executive and service acquisition executive, shall submit to the congressional defense committees a report on the exercise of authorities under this section. The report shall include—

''(1) a consolidated list of all actions taken by a portfolio acquisition executive under paragraphs (1), (2), and (3) of subsection (a);

''(2) a consolidated list of all overrides and determinations by a component acquisition executive or

service acquisition executive under subsection (b); and

''(3) an assessment of the effectiveness of the actions taken under paragraphs (1), (2), and (3) of subsection (a).

''§ 3105b. Portfolio acquisition executives: defense-wide framework of contractor performance metrics

''(a) FRAMEWORK REQUIRED.—The Under Secretary of Defense for Acquisition and Sustainment, in consultation with each component acquisition executive and service acquisition executive, shall establish a framework of contractor performance metrics to be used by all portfolio acquisition executives of the Department of Defense. The framework shall—

''(1) specify metrics that must be used by each portfolio acquisition executive to assess each defense acquisition program assigned to such executive;

''(2) for each such metric, establish minimum thresholds for reporting; and

''(3) provide for consistency and comparability of contractor performance data across the Department while preserving the flexibility of each portfolio acquisition executive to tailor specific indicators and

thresholds to the defense acquisition programs assigned to such executive.

''(b) CATEGORIES REQUIRED.—The framework required by subsection (a) shall include metrics in each of the following categories:

''(1) COST PERFORMANCE.—Metrics relating to variance from the approved cost baseline, including estimate at completion versus budget at completion, undefinitized contract action definitization rate, and cost overrun recurrence.

''(2) SCHEDULE PERFORMANCE.—Metrics relating to adherence to milestones, including delivery delays measured in days against the approved program baseline and frequency of approved re-baselining.

''(3) TECHNICAL PERFORMANCE.—Metrics relating to achievement of key performance parameters at applicable program milestones and deficiency closure rates.

''(4) SUSTAINMENT READINESS.—Metrics relating to mission capable rate contribution, mean time between failures relative to contractual specifications, and materiel backorder rate.

''(5) CONTRACT MANAGEMENT.—Metrics relating to the assignment and distribution of ratings in

the contractor past performance database used by the Department, rates of compliance with corrective action plans, and competitive re-compete rates.

''(6) OTHER CATEGORIES.—Any other categories that the Under Secretary of Defense for Acquisition and Sustainment considers appropriate.

''(c) ADDITIONAL TAILORED METRICS.—Each portfolio acquisition executive shall—

''(1) for each category established under subsection (b), develop additional metrics and thresholds tailored to the defense acquisition programs assigned to such portfolio acquisition executive;

''(2) submit such additional metrics and thresholds to the Under Secretary of Defense for Acquisition and Sustainment; and

''(3) upon approval of the Under Secretary of Defense for Acquisition and Sustainment, file such additional metrics and thresholds with the Office of the Under Secretary of Defense for Acquisition and Sustainment.

''(d) SUBMISSION TO COMMITTEES AND COMPTROLLER GENERAL.—The Under Secretary of Defense for Acquisition and Sustainment shall submit any metrics and thresholds approved under subsection (c)(3)—

''(1) to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives not later than 30 days after approving such metrics and thresholds; and

''(2) to the Comptroller General upon request.

''(e) ANNUAL REVIEW.—The Under Secretary of Defense for Acquisition and Sustainment shall review the framework under subsection (a) not less frequently than annually and shall update the framework as necessary to reflect changes in acquisition policy, program structure, or operational requirements.

''(f) RELATIONSHIP TO ACQUISITION WORKFORCE PERFORMANCE OBJECTIVES.—(1) The Under Secretary of Defense for Acquisition and Sustainment shall ensure that the metrics and thresholds under this section—

''(A) are distinct from, and shall be administered consistent with and separately from, the key performance objectives established under section 826 of the National Defense Authorization Act for Fiscal Year 2026 (10 U.S.C. 1722b note) for evaluating the performance of civilian members of the acquisition workforce; and

''(B) complement, and do not conflict with, the integration of such key performance objectives into

performance management systems of the Department.

''(2) This section does not require the assessment of the individual performance of any member of the acquisition workforce.

''§ 3105c. Portfolio acquisition executives: authority to designate contractors for high performer preference

''(a) AUTHORITY TO DESIGNATE.—Each portfolio acquisition executive shall, with respect to contractors under the defense acquisition programs assigned to such executive, have the authority to designate a contractor for the high performer preference for purposes of this section if the contractor—

''(1) as documented in the contractor past performance database used by the Department of Defense, has received a rating of exceptional or very good for not fewer than three consecutive assessment periods under the defense acquisition programs assigned to such executive; and

''(2) has met or exceeded all key performance parameters applicable to such programs during such period.

''(b) DOCUMENTATION.—The portfolio acquisition executive shall make a designation under subsection (a)

in writing, ensure that it is documented in any contractor past performance database used by the Department, and report the designation not later than 30 days after making the designation to the Under Secretary of Defense for Acquisition and Sustainment and the component acquisition executive or service acquisition executive of the military department concerned, as applicable.

''(c) DURATION; REVOCATION.—(1) Except as provided in paragraph (2), a designation under subsection (a) shall remain in effect for a period not to exceed three years from the date on which the designation is made, at which time a new designation under subsection (a) may be made if the requirements of subsection (a) are met.

''(2) A portfolio acquisition executive may revoke a designation under subsection (a) at any time upon a determination that the contractor no longer satisfies a requirement in subsection (a). The portfolio acquisition executive shall make the revocation in writing, ensure that it is documented in any contractor past performance database used by the Department, and report the revocation not later than 30 days after making the revocation to the Under Secretary of Defense for Acquisition and Sustainment and the component acquisition executive or service acquisition executive of the military department concerned, as applicable.

''(d) EFFECT OF DESIGNATION.—In any competitive source selection conducted under the defense acquisition programs assigned to a portfolio acquisition executive that has made a designation under subsection (a) that remains in effect, the contracting officer shall assign to any offeror with such a designation a past performance confidence rating of substantial confidence, except in a case in which the contracting officer determines, for specific documented reasons supported by specific performance data, to assign a lower past performance rating. In such a case, the contracting officer shall document in writing such determination, such reasons, and such data.

''(e) LIMITATIONS.—A designation under subsection (a) shall not—

''(1) constitute a sole-source justification or otherwise relieve the contracting officer of the obligation to conduct full and open competition as required by applicable law, regulation, and policy; or

''(2) be used to evaluate the past performance of an offeror in a source selection under a defense acquisition program not assigned to the portfolio acquisition executive that made the designation, except with the prior written concurrence of the porfolio acquisition executive to whom the defense acquisition program is assigned.''.

(b) IMPLEMENTATION.—

(1) GUIDANCE.—The guidance required by section 3105a of title 10, United States Code, as added by this section, shall be issued not later than 180 days after the date of the enactment of this Act.

(2) APPLICABILITY.—The authorities provided by sections 3105a, 3105b, and 3105c of such title, as added by this section, shall apply on and after the date on which such guidance is issued, except as provided in paragraphs (3) and (4).

(3) REPORTS.—The first report required by section 3105a of such title shall be submitted not later than one year after the date of the enactment of this Act.

(4) ADDITIONAL TAILORED METRICS.—The first set of additional tailored metrics required by section 3105b of such title shall be submitted not later than 270 days after the date of the enactment of this Act.

SEC. 802. ENSURING BEST VALUE IN PROCUREMENT.

(a) CODIFICATION OF USE OF LOWEST PRICE TECHNICALLY ACCEPTABLE SOURCE SELECTION PROCESS.—

(1) TITLE 10.—Chapter 223 of title 10, United States Code, is amended by inserting after section 3243 the following new section:

"§ 3244. Use of lowest price technically acceptable source selection process

''(a) STATEMENT OF POLICY.—It shall be the policy of the Department of Defense to avoid using lowest price technically acceptable source selection criteria in circumstances that would deny the Department the benefits of cost and technical tradeoffs in the source selection process.

''(b) REGULATIONS.—The Secretary of Defense shall ensure the Defense Federal Acquisition Regulation Supplement requires that lowest price technically acceptable source selection criteria are used only in situations in which—

''(1) the Department of Defense is able to comprehensively and clearly describe the minimum requirements expressed in terms of performance objectives, measures, and standards that will be used to determine acceptability of offers;

''(2) the Department of Defense would realize no, or minimal, value from a contract proposal exceeding the minimum technical or performance requirements set forth in the request for proposal;

''(3) the proposed technical approaches will require no, or minimal, subjective judgment by the source selection authority as to the desirability of one offeror's proposal versus a competing proposal;

''(4) the source selection authority has a high degree of confidence that a review of technical proposals of offerors other than the lowest bidder would not result in the identification of factors that could provide value or benefit to the Department;

''(5) the contracting officer has included a justification for the use of a lowest price technically acceptable evaluation methodology in the contract file;

''(6) the Department of Defense has determined that the lowest price reflects full life-cycle costs, including for operations and support;

''(7) the Department of Defense would realize no, or minimal, additional innovation or future technological advantage by using a different methodology; and

''(8) with respect to a contract for procurement of goods, the goods procured are predominantly expendable in nature, nontechnical, or have a short life expectancy or short shelf life.

''(c) AVOIDANCE OF USE OF LOWEST PRICE TECHNICALLY ACCEPTABLE SOURCE SELECTION CRITERIA IN CERTAIN PROCUREMENTS.—To the maximum extent practicable, the use of lowest price technically acceptable source selection criteria shall be avoided in the case of a procurement that is predominately for the acquisition of—

''(1) information technology services, cybersecurity services, systems engineering and technical assistance services, advanced electronic testing, audit or audit readiness services, or other knowledge-based professional services;

''(2) personal protective equipment; or

''(3) knowledge-based training or logistics services in contingency operations or other operations outside the United States.''.

(2) TITLE 41.—

(A) IN GENERAL.—Chapter 47 of title 41, United States Code, is amended by inserting after section 4714 the following new section:

''§ 4715. Use of lowest price technically acceptable source selection process

''(a) STATEMENT OF POLICY.—It shall be the policy of the United States Government to avoid using lowest price technically acceptable source selection criteria in circumstances that would deny the Government the benefits of cost and technical tradeoffs in the source selection process.

''(b) REGULATIONS.—The Federal Acquisition Regulatory Council shall ensure the Federal Acquisition Regulation requires that lowest price technically acceptable

source selection criteria are used only in situations in which—

''(1) an executive agency is able to comprehensively and clearly describe the minimum requirements expressed in terms of performance objectives, measures, and standards that will be used to determine acceptability of offers;

''(2) the executive agency would realize no, or minimal, value from a contract proposal exceeding the minimum technical or performance requirements set forth in the request for proposal;

''(3) the proposed technical approaches will require no, or minimal, subjective judgment by the source selection authority as to the desirability of one offeror's proposal versus a competing proposal;

''(4) the executive agency has a high degree of confidence that a review of technical proposals of offerors other than the lowest bidder would not result in the identification of factors that could provide value or benefit to the executive agency;

''(5) the contracting officer has included a justification for the use of a lowest price technically acceptable evaluation methodology in the contract file; and

''(6) the executive agency has determined that the lowest price reflects full life-cycle costs, including for operations and support.

''(c) AVOIDANCE OF USE OF LOWEST PRICE TECHNICALLY ACCEPTABLE SOURCE SELECTION CRITERIA IN CERTAIN PROCUREMENTS.—To the maximum extent practicable, the use of lowest price technically acceptable source selection criteria shall be avoided in the case of a procurement that is predominately for the acquisition of—

''(1) information technology services, cybersecurity services, systems engineering and technical assistance services, advanced electronic testing, audit or audit readiness services, health care services and records, telecommunications devices and services, munitions response services, or other knowledge-based professional services;

''(2) personal protective equipment; or

''(3) knowledge-based training or logistics services in contingency operations or other operations outside the United States.

''(d) DEFINITIONS.—In this section:

''(1) EXECUTIVE AGENCY.—The term 'executive agency' has the meaning given that term in section 102 of title 40, except that the term does not include the Department of Defense.

''(2) CONTINGENCY OPERATION.—The term 'contingency operation' has the meaning given that term in section 101 of title 10.''.

(B) CLERICAL AMENDMENT.—The table of contents for such chapter is amended by inserting after the item relating to section 4714 the following new item:

''4715. Use of lowest price technically acceptable source selection process.''.

(b) ENSURING BEST VALUE IN PROCUREMENT.—Section 152(3)(B) of title 41, United States Code, is amended by striking ''lowest overall cost alternative'' and inserting ''best value''.

(c) CONFORMING REPEALS.—

(1) DEPARTMENT OF DEFENSE REQUIREMENT.—Section 813 of the National Defense Authorization Act for Fiscal Year 2017 (10 U.S.C. note prec. 3241) is repealed.

(2) GOVERNMENT-WIDE REQUIREMENT.—Section 880 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (41 U.S.C. 3701 note) is repealed.

SEC. 803. LIMITATION ON CERTAIN CONTRACT CLAUSES FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES.

Section 3452 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(f) LIMITATIONS.—The Secretary of Defense may not—

''(1) include in the lists required by subsections (b) and (c)(1) any contract clause that is substantially similar to a contract clause for commercial products or commercial services that is required by the Federal Acquisition Regulation or otherwise required by the Department of Defense Supplement to the Federal Acquisition Regulation; and

''(2) include in a contract for the procurement of commercial products or commercial services a contract clause from the Department of Defense Supplement to the Federal Acquisition Regulation or Federal Acquisition Regulation that is not included on such lists.''.

SEC. 804. ELIMINATION OF LATE COST AND PRICING DATA SUBMISSION DEFENSE.

Section 3706(c) of title 10, United States Code, is amended—

(1) in paragraph (3) by striking ''or'' at the end;

(2) in paragraph (4) by striking the period and inserting ''; or''; and

(3) by adding at the end the following:

''(5) updates to cost or pricing data submitted by the prime contractor or subcontractor after the date of agreement on the price of the contract (or price of the modification) or, if applicable and if consistent with subsection (a)(2), such other date agreed upon between the parties, were based on data that was more than 30 days old.''.

SEC. 805. REPORTING OF PRICE INCREASES.

Chapter 271 of title 10, United States Code, is amended by adding at the end the following new section:

''§ 3710. Reporting of increases above specified prices

''(a) IN GENERAL.—An offeror shall be required to submit to the relevant contracting officer a report, not later than 30 days after the offeror becomes aware that the price of a product or service under a covered contract reaches or exceeds an amount equal to—

''(1) 25 percent more than the price specified in the covered contract bid;

''(2) 25 percent more than the price the Government paid for such product or service during the

calendar year immediately preceding the date on which the covered contract is entered into; or

''(3) 50 percent more than the price the Government paid for such product or service at any time before the 5-year period preceding the date on which the covered contract is entered into.

''(b) NONCOMPLIANCE.—With respect to an offeror who fails to submit the report required under this section, the Director of the Defense Contract Audit Agency or the relevant service acquisition executive shall include in the Federal Awardee Performance and Integrity Information System (or any successor system) the following information:

''(1) An identification of such offeror and the specific product or service to which such report should relate.

''(2) The National Stock Number of such product or service and the order quantity, unit cost, total cost, purchasing or reimbursing entity, and date of the order for such product or service.

''(c) COVERED CONTRACT DEFINED.—In this section, the term 'covered contract' means a contract awarded using procedures other than competitive procedures under section 3204 of this title or pursuant to section 6.302 of the Federal Acquisition Regulation.''.

SEC. 806. LIMITATION ON SUSPENSION OF PROGRESS PAYMENTS.

(a) CONDITIONS FOR PROGRESS PAYMENTS.—Section 3804 of title 10, United States Code, is amended—

(1) in subsection (a)—

(A) in the subsection heading, by striking ''COMMENSURATE WITH WORK'';

(B) by inserting ''(1)'' before ''The Secretary of Defense''; and

(C) by adding at the end the following new paragraphs:

''(2) After finding substantial evidence that a covered condition applies for a contract, the Secretary of Defense may reduce a progress payment, increase the rate of liquidation, or both for such contract.

''(3) After finding substantial evidence that a covered condition applies for a contract, the Secretary of Defense may suspend a progress payment for such contract only if—

''(A) the relevant contracting officer submits to the prime contractor for such contract a written statement of the substantial evidence that a covered condition applies and provides the prime contractor ten calendar days to submit a written rebuttal;

''(B) the head of the contracting activity reviews such statement and any rebuttal and rec-

ommends the suspension of the progress payment for such contract; and

''(C) the service acquisition executive notifies the Committees on Armed Services of the House of Representatives and the Senate in writing of the suspension of progress payments for such contract and of the substantial evidence that a covered condition applies.

''(4)(A) Any suspension of progress payments under paragraph (3) shall last not more than 60 calendar days if—

''(i) the prime contractor submits to the relevant contracting officer a written corrective action plan addressing the covered condition that was the basis for the suspension;

''(ii) the prime contractor initiates corrective action consistent with the submitted written plan within such 60-day period; and

''(iii) the service acquisition executive or portfolio acquisition executive, as applicable, after consultation with the head of the contracting activity and the relevant contracting officer, determines that both the corrective action plan and the initiated corrective action are sufficient to address the covered condition and meet the cost, schedule,

performance, delivery, quality, readiness, sustainment, and financial-interest objectives of the Department.

''(B) The 60-day limitation in subparagraph (A) shall not apply if the service acquisition executive or portfolio acquisition executive, as applicable, determines such limitation would materially impair the ability of the Department to protect the interests of the Government interests or would create a material risk to the Department.''.''; and

(2) by adding at the end the following new subsection:

''(d) COVERED CONDITION DEFINED.—In this section, the term 'covered condition' means any of the conditions listed in section 52.232-16(c) of the Federal Acquisition Regulation (or successor regulation).''.

(b) CONFORMING REGULATIONS.—Not later than 120 days after the date of the enactment of this Act, the Secretary of Defense shall revise the Department of Defense Supplement to the Federal Acquisition Regulation carry out the amendments made by this section.

(c) TECHNICAL AMENDMENT.—Section 3804 of title 10, United States Code, is amended by striking ''defense contract'' each place it appears and inserting ''contract''.

SEC. 807. UNIFORM REQUIREMENTS FOR ELECTRONIC CONTRACT WRITING SYSTEMS AND ACQUISITION MANAGEMENT SYSTEMS.

(a) UNIFORM REQUIREMENTS FOR THE DEPARTMENT OF DEFENSE.—Chapter 367 of title 10, United States Code, is amended by inserting after section 4754 the following new section:

"§ 4755. Requirements for electronic contract writing systems and acquisition management systems

''The Secretary shall—

''(1) establish, maintain, and make publicly available uniform data standards, internal control requirements, and independent verification and validation requirements for processing procurement requests, contracts, receipts, and invoices by the Department; and

''(2) establish policy to ensure that each electronic contract writing system and acquisition management system of the Department—

''(A) substantially conforms with the standards, requirements, and rules established pursuant to paragraph (1); and

''(B) is a commercial product or commercial service, as required by section 3453 of this title, unless the head of the agency makes the

determination required by section 3453(d) of this title regarding non-availability of commercial products or commercial services.''.

(b) IMPLEMENTATION.—The initial standards, requirements, and policies required by section 4755 of title 10, United States Code, as added by subsection (a), shall be established not later than 180 days after the date of the enactment of this Act.

(c) ASSESSMENT AND PHASED IMPLEMENTATION STRATEGY.—

(1) REQUIREMENT FOR STRATEGY.—Not later than 270 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report setting forth the strategy of the Secretary to transition the electronic contract writing systems and acquisition management systems of the Department of Defense to full implementation of the policy established as required by section 4755(2) of title 10, United States Code, as added by subsection (a).

(2) ASSESSMENT TO INFORM STRATEGY.—The strategy shall include, and be based on, an assessment of the current state, including—

(A) an inventory identifying each such system in use, in development, or in deployment within the Department; and

(B) for each system identified under subparagraph (A)—

(i) an identification of the offices and officials responsible for the system;

(ii) a cost benefit analysis, including an assessment of the criticality of the system and impact on the mission, and an identification of the system as a commercially available of-the-shelf item, an item developed by the Government, or a Government-off-the-shelf item, as applicable; and

(iii) an identification of the annual spending on the system, from inception and estimated remaining cost to complete application baselines and expected annual support and maintenance costs once complete, broken down by—

(I) Government labor and expense;

(II) contracted costs (such as the costs of software licenses and contractor support); and

(III) costs associated with the current hosting approach on the current platform, including identification of the Government's cost of maintaining infrastructure and associated sustainment costs.

(3) MATTERS INCLUDED IN STRATEGY.—The strategy shall include—

(A) a description of the coordination necessary within and among the military departments, the Defense Agencies, and other elements of the Department to enable successful transition;

(B) for each system identified under paragraph (2)(A) that is not in compliance with the policy described in paragraph (1), a timeline for transitioning from that system, including an estimate of anticipated reductions in deployment timelines for the system to reach full operating capability;

(C) for each system identified under paragraph (2)(A), a strategy for hosting the system on a platform in compliance with the policy described in paragraph (1), including an evaluation of opportunities to leverage existing com-

mercially available or commercial off-the-shelf products and services to reduce the Government's cost of maintaining infrastructure and associated sustainment costs;

(D) a recommended approach to speed the adoption of secure artificial intelligence (''AI'') services for such systems, including how best to prioritize the adoption of commercially available or commercial off-the-shelf products and services with AI technology to help prevent the proliferation of redundant and disconnected AI tools;

(E) an identification of funding, staffing, and resource requirements associated with implementation of such systems;

(F) an identification of any challenges, barriers, or risks affecting implementation of such systems and recommended approaches to addressing or mitigating such challenges, barriers, or risks; and

(G) a cost estimate associated with the transition from the current state to full implementation of the policy described in paragraph (1), including any cost savings associated with the reduction or elimination of continued use

and development of systems that are not commercial products or commercial services.

(d) APPLICABILITY TO CURRENT VENDORS.—For each system identified under paragraph (2)(A) that is a commercial product or commercial service as of the date on which the policy described in paragraph (1) is established, if the vendor of the system reasonably demonstrates that the system has the capability to meet a preponderance of the Department's requirements, the Secretary shall ensure that the vendor is given a reasonable opportunity to address any unmet requirements, as long as the unmet requirements can be delivered not later than the date that is 270 days after the date of the enactment of this Act and at no development cost to the Department.

(e) UNIFORM REQUIREMENTS FOR CERTAIN EXECUTIVE AGENCIES.—Subchapter II of chapter 11 of title 41, United States Code, is amended by adding at the end the following new section:

"§ 1132. Requirements for electronic contract writing systems and acquisition management systems

''(a) The Administrator for Federal Procurement Policy, with respect to the executive agencies other than the Department of Defense, shall—

''(1) establish or update, as necessary, uniform data standards, internal control requirements, independent verification and validation requirements, and business process rules for processing procurement requests, contracts, receipts, and invoices by the Department of Defense or other executive agencies, as applicable;

''(2) establish or update, as necessary, and maintain one or more approved electronic contract writing systems that conform with the standards, requirements, and rules established pursuant to paragraph (1); and

''(3) require the use of electronic contract writing systems approved in accordance with paragraph (2) for all contracts entered into by executive agencies other than the Department of Defense, as applicable.

''(b) RELATION TO EXISTING CONTRACT WRITING SYSTEMS AND ACQUISITION MANAGEMENT SYSTEMS.—Notwithstanding subsection (a), the head of an executive agency other than the Department of Defense shall meet the requirements of subsection (a)(2) with respect to approved electronic contract writing systems if they were in compliance with the requirements established pursuant to section 862 of the National Defense Authorization Act for

Fiscal Year 2013 (41 U.S.C. prec. 3101 note) on the date of enactment of this section until such time as those requirements are updated pursuant to subsection (a).''.

(f) REPEAL OF PRIOR RELATED PROVISION.—Section 862 of the National Defense Authorization Act for Fiscal Year 2013 (41 U.S.C. 3101 note prec.) is repealed.

SEC. 808. RISK-BASED APPROACH TO MONITORING CONTRACTOR BUSINESS SYSTEMS.

(a) REQUIREMENT FOR RISK-BASED APPROACH.—Section 3843 of title 10, United States Code, is amended to read as follows:

''§ 3843. Contractor business systems: monitoring and surveillance standards

''(a) REQUIREMENT FOR RISK-BASED APPROACH.—The Secretary shall implement an agile, streamlined risk-based approach to surveillance of contractor business systems that—

''(1) minimizes the requirements for the surveillance of contractor business systems to only those that are necessary to conform with commercial best practices or industry standards, as applicable;

''(2) integrates the surveillance of contractor business systems into the Defense Contract Management Agency's standard surveillance framework, and requires that any additional reviews be risk-based

and informed by the results of those standard surveillance activities; and

''(3) allows a contractor to provide internal reports in connection with such standard surveillance activities and targeted reviews, and ensures that any such report is considered in the course of reviewing the contractor's business systems.

''(b) MINIMUM REQUIREMENTS FOR SURVEILLANCE.—In establishing the minimum requirements for surveillance under subsection (a)(1) for each type of contractor business system, the Secretary shall ensure that such requirements do not exceed the minimum requirements that are necessary to conform with commercial best practices or industry standards, as applicable, for that type of system.

''(c) SURVEILLANCE AND REVIEW.—(1) Except as provided in paragraphs (2) and (3), in implementing the requirements of this section, the Secretary shall ensure that the frequency of review of a contractor business system shall be not more than once every three years, unless the standard surveillance activities under subsection (a)(2) indicate that the system has or may have a material weakness.

''(2) In a case in which the contractor is a company that is subject to the securities laws, if a registered public

accounting firm attests to the internal control assessment of the contractor, pursuant to section 404(b) of the Sarbanes-Oxley Act of 2002 (15 U.S.C. 7262(b)), and certified documentation from such registered public accounting firm reflects—

''(A) the unqualified opinion of such firm with respect to the contractor business system, such documentation shall eliminate the need for further review of the contractor business system by the Secretary;

''(B) a qualified opinion of such firm with respect to the contractor business system, the Secretary shall review only those aspects of the contractor business system as to which the opinion was qualified rather than unqualified; and

''(C) an adverse opinion of such firm with respect to the contractor business system, the Secretary shall take action under paragraph (1) or (2), or both, of subsection (d).

''(3) Notwithstanding paragraph (2), the Secretary may establish a profit-based exemption for cases in which the contractor is a company that is subject to the securities laws. Under the exemption, the contractor business system of such a contractor may be exempt from further review by the Secretary if the level of profit of the con-

tractor, taking into account all contracts of the contractor with the Department, is below a threshold level established by the Secretary.

''(d) CORRECTIVE ACTIONS AND REMEDIES.—The approach implemented under subsection (a) shall ensure the following:

''(1) If the Secretary determines under subsection (c) that a contractor business system has a material weakness, appropriate officials of the Department will be available to work with the contractor to develop a corrective action plan defining specific actions to be taken to address the material weakness and a schedule for the implementation of such actions.

''(2) The Secretary may pursue any other remedies that may be available under the contract or under any other applicable law and regulation.

''(e) GUIDANCE AND TRAINING.—The approach implemented under subsection (a) shall provide guidance and training to appropriate Government officials on the approach, the requirements and limitations in subsection (c) that apply to companies that are subject to the securities laws, the data that is produced by contractor business systems, and the manner in which such data should be used to effectively manage Department programs.

''(f) DEFINITIONS.—In this section:

''(1) The term 'contractor business system' means an integrated set of internal controls, processes, procedures, personnel, and information capabilities that a contractor uses to plan, execute, monitor, and report on its performance of Government contracts in a manner that is accurate, consistent, auditable, and compliant with clear and specific business system requirements that are identified and made publicly available.

''(2) The term 'material weakness' means a deficiency or combination of deficiencies in the internal control over information in contractor business systems, such that there is a reasonable possibility that a material misstatement of such information will not be prevented, or detected and corrected, on a timely basis. For purposes of this paragraph, a reasonable possibility exists when the likelihood of an event occurring—

''(A) is probable; or

''(B) is more than remote but less than likely.''.

(b) IMPLEMENTATION.—The initial approach required by section 3843 of title 10, United States Code,

as added by subsection (a), shall be implemented not later than December 1, 2027.

(c) REPORT ON IMPLEMENTING APPROACH AND DEFINING MINIMUM REQUIREMENTS.—

(1) AGREEMENT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall enter into an agreement with the acquisition research organization described in section 4142(a) of title 10, United States Code, requiring the organization to—

(A) document and evaluate commercial best practices and industry standards for each type of contractor business system, as described in subsection (b) of such section 3843; and

(B) make recommendations for the approach required by subsection (a) of such section 3843.

(2) REPORT.—Not later than 90 days after the date on which the Secretary and the organization enter into the agreement required by paragraph (1), the organization shall submit to the Secretary a report on the results of the activities carried out under paragraph (1).

(3) CONSIDERATION OF REPORT.—In implementing the initial approach required by subsection

(a) of such section 3843, and in defining the minimum requirements for contractor business systems under subsection (b) of such section, the Secretary shall take into account the report submitted under paragraph (2).

(d) REPEAL OF CONTRACTOR BUSINESS SYSTEMS IMPROVEMENT PROGRAM.—Section 893 of the Ike Skelton National Defense Authorization Act for Fiscal Year 2011 (Public Law 111–383; 10 U.S.C. note prec. 3841) is repealed.

SEC. 809. PROCUREMENT OF INITIAL SPARES.

Section 4274 of title 10, United States Code, is amended to read as follows:

"§ 4274. Procurement of initial spares

''(a) IN GENERAL.—Before awarding a contract for a covered end item, the contracting officer for such covered end item shall determine, in writing, that sufficient amounts have been programmed and budgeted for the procurement of initial spares associated with the covered end item.

''(b) DEFINITIONS.—

''(1) The term 'covered end item' means an end item (as defined section 4863 of this title) for a major defense acquisition program to be procured after the Milestone C approval (as defined in section

4172 of this title) for such major defense acquisition program.

''(2) The term 'initial spare' means a repairable or consumable part for use in a major defense acquisition program during the initial period of service of such weapon system.''.

SEC. 810. PROCUREMENT OF LOCAL PRODUCE, SEAFOOD, AND MEAT IN THE AREA OF RESPONSIBILITY OF THE UNITED STATES INDO-PACIFIC COMMAND.

(a) PROCUREMENT FOR CERTAIN FACILITIES IN THE INDO-PACIFIC REGION.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall develop and implement a plan to be carried out by the Defense Commissary Agency and the Defense Logistics Agency to increase procurement of local produce, seafood, and meat for a dining facility or commissary store located on a military installation or onboard a naval vessel located in the area of responsibility of the United States Indo-Pacific Command. Such plan will include a requirement, to the extent practicable, to procure local produce for commissary stores located in such area of responsibility.

(b) PROHIBITION ON PROCUREMENT OF FOREIGN PRODUCE OR MEAT.—Section 4862(g)(2)(A) of title 10,

United States Code, is amended by inserting ", produce, or meat" after "seafood".

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report that include the following:

(1) The plan required under subsection (a), including ways in which the plan would—

(A) support partner or allied nations that are experiencing economic coercion from China; and

(B) provide fresher food in dining facilities or commissary stores described in such subsection.

(2) The percentage of local produce, seafood, and meat available, and projected percentage after two years of implementing such plan—

(A) in each commissary store located on a military installation located in the area of responsibility of the United States Indo-Pacific Command;

(B) in each dining facility located on a military installation located in the area of responsibility of the United States Indo-Pacific Command; and

(C) onboard a naval vessel located in the area of responsibility of the United States Indo-Pacific Command.

(d) LOCAL DEFINED.—In this section, the term ''local'' means, with respect to produce, seafood, or meat, that such produce, seafood, or meat is sourced from a partner or allied nation or a State or territory of the United States located in the area of responsibility of the United States Indo-Pacific Command.

SEC. 811. REVIEW OF DEFENSE AUDIT AGENCIES.

(a) REVIEW REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall seek to enter into a contract with an entity that conducts audits, reviews, or surveillance of companies listed on a national securities exchange, to conduct a comprehensive review of the standards, guidance, and policies of the defense audit agencies relating to audits, reviews, and surveillance of defense contractors. The purpose of the comprehensive review shall be to identify opportunities to improve the processes of the defense audit agencies for auditing, reviewing, and surveilling defense contractors, including to streamline the auditing, reviewing, and surveilling processes, ensure materiality of reviews, and generally improve the effectiveness of the au-

dits, reviews, and surveillance activities of the defense audit agencies.

(b) ELEMENTS.—The comprehensive review required by subsection (a) shall assess the following:

(1) A comparison of—

(A) the processes used by the defense audit agencies to conduct audits, reviews, and surveillance of defense contractors; and

(B) industry best practices for such processes.

(2) A comparison of—

(A) the standards used by the defense audit agencies in connection with such audits, reviews, and surveillance, including the use of materiality standards; and

(B) industry best practices for such standards.

(3) The extent to which industry best practices are applicable and transferrable to the audits, reviews, and surveillance of defense contractors by the defense audit agencies.

(c) REPORT.—Not later than one year after the date of the enactment of this Act, the entity contracted for the comprehensive review required by subsection (a) shall provide a report on the results of the review to the Secretary

of Defense and the Inspector General of the Department of Defense. The report shall include—

(1) findings on the effectiveness of the defense audit agencies in conducting audits, reviews, and surveillance of defense contractors;

(2) the comparison described in subsection (b)(1);

(3) the comparison described in subsection (b)(2);

(4) the assessment described in subsection (b)(3); and

(5) Recommendations for improving the effectiveness of the defense audit agencies in conducting audits, reviews, and surveillance of defense contractors, including recommendations for—

(A) improving the training of the staff of the defense audit agencies who conduct such audits, reviews, and surveillance;

(B) improving the accuracy and reliability of such audits, reviews, and surveillance;

(C) ensuring the use of a materiality standard similar to the standard used in generally accepted auditing standards;

(D) improving the processes used by the defense agencies to conduct such audits, reviews, and surveillance;

(E) relieving the burdens on defense contractors of such audits, reviews, and surveillance without undermining the effectiveness and integrity of such audits, reviews, and surveillance; and

(F) ensuring the effective implementation of such recommendations by the defense audit agencies and the effective monitoring of such implementation.

(d) SUBMISSION TO CONGRESSIONAL COMMITTEES.—Not later than 60 days after the date on which the Inspector General of the Department of Defense receives the report required by subsection (c), the Inspector General shall submit to the congressional defense committees an unaltered copy of the report, along with any comments or recommendations that the Inspector General considers appropriate.

(e) DEFINITIONS.—In this section:

(1) The term ''defense audit agency'' means the Defense Contract Audit Agency and the Defense Contract Management Agency.

(2) The term ''industry best practices'' means the best practices used to conduct audits, reviews, and surveillance of companies listed on a national securities exchange, in accordance with generally accepted auditing standards or national securities exchange requirements, as appropriate.

(3) The term ''national securities exchange'' means an exchange registered as a national securities exchange under section 6 of the Securities Exchange Act of 1934 (15 U.S.C. 78f).

SEC. 812. PROHIBITION ON ACQUIRING, PROCURING, OR LEASING NON-TACTICAL ELECTRIC VEHICLE COMPONENTS PRODUCED BY CHILD AND SLAVE LABOR.

The Secretary of Defense may not acquire, procure, or lease non-tactical electric vehicles, advanced-biofuel-powered vehicles, hydrogen-powered vehicles, or any components or spare parts associated with such vehicles that are not in compliance with subpart 22.15 of the Federal Acquisition Regulation maintained under section 1303(a)(1) of title 41, United States Code (or any successor regulations), on the Prohibition of Acquisition of Products Produced by Forced or Indentured Child Labor.

SEC. 813. INSIDER THREAT RISK ASSESSMENT AND VOLUNTARY GUIDANCE FOR CERTAIN ARTIFICIAL INTELLIGENCE CONTRACTORS.

(a) ASSESSMENT AND ISSUANCE OF VOLUNTARY GUIDANCE ON INSIDER THREAT RISK REDUCTION.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall issue voluntary guidance for covered artificial intelligence contractors to reduce insider threat, espionage, and other personnel-related security risks to sensitive artificial intelligence systems and associated development infrastructure.

(2) ASSESSMENT AND UPDATED GUIDANCE.—Not later than one year after the date of the enactment of this Act, the Secretary shall—

(A) complete an assessment of the risks described in paragraph (1); and

(B) update the guidance issued under such paragraph based on the findings of that assessment.

(3) CONTENTS.—The guidance required under paragraph (1), including any updated guidance issued under paragraph (2)(B), shall, at a minimum—

(A) identify categories of roles, functions, models, training infrastructure, and systems that warrant enhanced security measures;

(B) recommend a risk-based framework based on the sensitivity of access and associated national security risks; and

(C) address personnel vetting, access controls, auditing, monitoring, anomaly detection, and protection against insider threats and espionage.

(4) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to require a covered artificial intelligence contractor to adopt any measure, practice, personnel policy, access restriction, or other safeguard described in the guidance issued under paragraph (1).

(5) CONSULTATION.—In carrying out this subsection, the Secretary may consult with covered artificial intelligence contractors, appropriate intelligence and counterintelligence officials, appropriate elements of the Department of Defense, and other relevant experts.

(b) REPORT TO CONGRESS.—

(1) IN GENERAL.—Not later than July 1, 2028, the Secretary of Defense shall submit to the con-

gressional defense committees an unclassified report, which may include a classified annex, on the implementation of this section.

(2) ELEMENTS.—The report shall include—

(A) a summary of the findings of the assessment conducted under subsection (a)(2)(A);

(B) an assessment of gaps and challenges in mitigating the risks identified in such assessment;

(C) a summary of the voluntary guidance issued under subsection (a), including the initial guidance and any updated guidance issued under subsection (a)(2)(B); and

(D) any recommendation for additional authorities, resources, or policy the Secretary determines appropriate.

(c) DEFINITION.—The term ''covered artificial intelligence contractor'' means a contractor that develops, maintains, or operates artificial intelligence systems for the Department of Defense and has access to artificial intelligence systems, models, development infrastructure, or related technical information.

Subtitle B—Amendments to General Contracting Authorities, Procedures, and Limitations

SEC. 821. MODIFICATION TO CERTAIN ACQUISITION THRESHOLDS.

(a) ADJUSTMENT TO INFLATION.—

(1) IN GENERAL.—Section 1908(c)(2) of title 41, United States Code, is amended by striking ''of each year evenly divisible by 5'' and inserting '', 2028, and every 3 years thereafter''.

(2) CONFORMING AMENDMENTS.—

(A) TITLE 10.—Title 10, United States Code, is amended—

(i) in section 3702(g), by striking ''Effective on October 1 of each year that is divisible by 5, each'' and inserting ''Each''; and

(ii) in section 3742, by striking ''Effective on October 1 of each year that is divisible by five, the'' and inserting ''The''.

(B) TITLE 41.—Section 3502(g) of title 41, United States Code, is amended by striking ''Effective on October 1 of each year that is divisible by 5, each'' and inserting ''Each''.

(b) ADJUSTMENTS TO CERTAIN ACQUISITION THRESHOLDS.—

(1) MAJOR PROGRAM; TITLE 41.—Section 109 of title 41, United States Code, is amended—

(A) in subsection (b)(1)—

(i) by striking ''$75,000,000 (based on fiscal year 1980 constant dollars)'' and inserting ''$275,000,000''; and

(ii) by striking ''$300,000,000 (based on fiscal year 1980 constant dollars)'' and inserting ''$1,300,000,000''; and

(B) in subsection (b)(2), by striking ''$750,000 (based on fiscal year 1980 constant dollars)'' and inserting ''$2,000,000''.

(2) SIMPLIFIED PROCEDURES FOR SMALL PURCHASES.—

(A) TITLE 10.—Section 3205(a)(2) of title 10, United States Code, is amended by striking ''$5,000,000'' and inserting ''$10,000,000''.

(B) TITLE 41.—Title 41, United States Code, is amended—

(i) in section 1901(a)(2), by striking ''$5,000,000'' and inserting ''$10,000,000''; and

(ii) in section 3305(a)(2), by striking ''$5,000,000'' and inserting ''$10,000,000''.

(3) SIMPLIFIED ACQUISITION THRESHOLD.—

(A) TITLE 10.—Section 3571 of title 10, United States Code, is amended—

(i) in subsection (a), by striking ''For'' and inserting ''Except as provided in subsection (b), for'';

(ii) by redesignating subsection (b) as subsection (c); and

(iii) by inserting after subsection (a) the following new subsection:

''(b) CONTINGENCY OPERATIONS; HUMANITARIAN OR PEACEKEEPING OPERATIONS.—For purposes of acquisitions by agencies named in section 3063 of this title, in the case of any contract to be awarded and performed, or purchase to be made, in support of a contingency operation or a humanitarian or peacekeeping operation, the simplified acquisition threshold means an amount equal to two times the amount specified for that term in subsection (a).''.

(B) TITLE 41.—Title 41, United States Code, is amended—

(i) in section 134, by striking ''$250,000'' and inserting ''$500,000''; and

(ii) in section 153(1), by striking ''outside the United States''.

(C) CONFORMING AMENDMENTS.—Title 10, United States Code, is amended—

(i) in section 1724(a), by striking ''section 3205'' and inserting ''section 3571'';

(ii) in section 3862(d), by striking paragraph (1);

(iii) in section 4505(h), by striking paragraph (7);

(iv) in section 4651(b), by striking ''(as defined in section 134 of title 41)'';

(v) in section 4654(d), by striking ''(as defined in section 134 of title 41)'';

(vi) in section 4655(c), by striking ''(as defined in section 134 of title 41)'';

(vii) in section 4656(a)(4)(A), by striking ''(as defined in section 134 of title 41)'';

(viii) in section 4659(b), by striking ''(as defined in section 134 of title 41)''; and

(ix) in section 4753(b)(3), by striking ''(as defined in section 134 of title 41)''.

(4) MICRO-PURCHASE THRESHOLD.—

(A) TITLE 10.—Section 3573 of title 10, United States Code, is amended by striking ''$10,000'' and inserting ''the micro-purchase threshold specified in section 1902(a)(1) of title 41''.

(B) TITLE 41.—Section 1902(a)(1) of title 41, United States Code, is amended by striking ''$10,000'' and inserting ''$25,000''.

(5) MODIFICATIONS TO SUBMISSIONS OF COST OR PRICING DATA; TITLE 41.—Section 3502(a) of title 41, United States Code, is amended—

(A) in paragraph (1)—

(i) by striking ''2018'' each place it appears and inserting ''2027'';

(ii) in subparagraph (A), by striking ''$2,000,000'' and inserting ''$10,000,000''; and

(iii) in subparagraph (B), by striking ''$750,000'' and inserting ''$2,000,000'';

(B) in paragraph (2)—

(i) in subparagraph (A), by striking ''$2,000,000;'' and inserting ''$10,000,000; and'';

(ii) in subparagraph (B)—

(I) by striking ''prime contract that was entered into on or before June 30, 2018, and that has been modified pursuant to subsection (f),'' and inserting ''prime contract referred to in paragraph (1)(B),''; and

(II) by striking ''$750,000; and'' and inserting ''$2,000,000.''; and

(iii) by striking subparagraph (C);

(C) in paragraph (3), by striking subparagraphs (A) through (C) and inserting the following new subparagraphs:

''(A) in the case of a prime contract entered into after June 30, 2027, the price of the subcontract is expected to exceed $10,000,000; and

''(B) in the case of a prime contract entered into on or before June 30, 2027, the price of the subcontract is expected to exceed $2,000,000.''; and

(D) in paragraph (4), by striking ''if—'' and all that follows through the period at the end and inserting ''if the price adjustment is expected to exceed $2,000,000.''.

(6) MODIFICATIONS TO PRIOR CONTRACTS.—

(A) TITLE 10.—Section 3702(f) of title 10, United States Code, is amended by striking ''2018'' and inserting ''2026''.

(B) TITLE 41.—Section 3502(f) of title 41, United States Code, is amended by striking ''2018'' and inserting ''2027''.

SEC. 822. USE OF ACCRUED INTEREST BY CERTAIN CONSORTIUM MANAGERS.

Section 4021(c) of title 10, United States Code, is amended—

(1) by striking ''The authority'' and inserting ''(1) The authority''; and

(2) by adding at the end the following new paragraph:

''(2)(A) A contracting officer or an authorized official with legal authority to enter into an agreement on behalf of the Department of Defense under this section may authorize a consortium management organization to retain the interest accruing on the held amounts of such consor-

tium management organization as payment for any covered costs through an agreement that—

"(i) authorizes such consortium management organization to make payments to members of a consortium, other than such consortium management organization, on behalf of the Department of Defense; and

"(ii) requires such consortium management organization to—

"(I) invest such held amounts in Treasury bills of the Government; and

"(II) return to the Department any interest earned on such held amounts that exceeds such covered costs.

"(B) Interest on held amounts of a covered advance payment that is returned to the Department of Defense by a consortium management organization pursuant to subparagraph (A) shall be credited to the account from which such covered advance payment was made. Amounts so credited shall be merged with amounts in that account, and shall be available for the same purposes, and subject to the same conditions and limitations, as other amounts in that account.

"(C) In this paragraph—

''(i) the term 'consortium management organization' means an entity that is responsible for coordinating, administering, and supporting the activities of a consortium under an agreement described in subparagraph (A);

''(ii) the term 'covered advance payment' means an advance payment made by the Department of Defense to a consortium management organization under an agreement described in subparagraph (A) for the purposes of such consortium management organization making payments to members of a consortium on behalf of the Department;

''(iii) the term 'covered costs' means—

''(I) the fees chargeable to the Government by a consortium management organization under an agreement described in subparagraph (A); and

''(II) any other costs incurred by a consortium management organization that are directly attributable to the operation or the management of a consortium by a consortium management organization and chargeable to the Government under such agreement; and

''(iv) the term 'held amounts' means funds provided as a covered advance payment that have not

yet been used by the consortium management organization to which such covered advance payment was made to make a payment to a member of a consortium or returned to the Government in accordance with an agreement described in subparagraph (A).''.

SEC. 823. AMENDMENT TO OTHER TRANSACTION AUTHORITY.

(a) IN GENERAL.—Section 4022 of title 10, United States Code, is amended—

(1) in subsection (a)(2)—

(A) in subparagraph (A), by striking ''agency that'' and all that follows through ''the use'' and inserting ''agency that the use'';

(B) in subparagraph (B)(i), by striking ''writing that'' and all that follows through ''the use'' and inserting ''writing that the use''; and

(C) in subparagraph (C), by striking ''subsection (f)'' each place it appears and inserting ''subsection (g)'';

(2) by amending subsection (d) to read as follows:

''(d) APPROPRIATE USE OF AUTHORITY.—An official responsible for entering into a transaction under the authority of this section may use such authority upon determining any one of the following conditions:

''(1) The use of such transaction permits the Secretary to use innovative business arrangements or structures that would not be practical or feasible under a contract.

''(2) The prototype project offered is an innovative or novel product, service, process, or business practice that is more practicable to acquire under such transaction than under a contract.

''(3) The use of such transaction is expected to accelerate delivery of capability to members of the armed forces compared with other procurement methods.

''(4) The use of such transaction provides opportunity to expand or strengthen the defense industrial base in a manner that would not be practical or feasible under a contract.'';

(3) by redesignating subsections (e) through (i) as subsections (f) through (j), respectively; and

(4) by inserting after subsection (d) the following new subsection:

''(e) ADDITIONAL CONSIDERATIONS.—The official responsible for entering into a transaction under this section shall consider other actions by an offeror relating to such transaction if such actions will increase value to the Government, or contribute positively to the expansion, diver-

sification, or resilience of the defense industrial base, including—

''(1) significant participation by one or more nontraditional defense contractors (as defined in section 3014 of this title) or small business concerns (as defined under section 3 of the Small Business Act (15 U.S.C. 632)), including through teaming arrangements, joint ventures, or consortia;

''(2) the potential to reduce technical, schedule, or performance risk, or accelerate transition to production; or

''(3) fielding through use of non-Federal cost sharing.''.

(b) CONFORMING AMENDMENTS.—

(1) NATIONAL SECURITY ACT OF 1947.—Section 102A(m)(6)(C) of the National Security Act of 1947 (50 U.S.C. 3024(m)(6)(C)) is amended—

(A) in clause (v), by striking ''of Defense'';

(B) by repealing clause (vi); and

(C) in clause (vii)—

(i) in the matter preceding subclause (I), by striking ''section 4022(f)(2)'' and inserting ''section 4022(g)(2)''; and

(ii) in subclause (V)(cc), by striking ''section 4022(f)(5)'' and inserting ''section 4022(g)(5)''.

(2) HOMELAND SECURITY ACT OF 2002.—Section 831(d) of the Homeland Security Act of 2002 (6 U.S.C. 391(d)) is amended by striking ''4022(e)'' and inserting ''4022(f)''.

(3) JOHN S. MCCAIN NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2019.—Section 873(c)(1) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 10 U.S.C. 4021 note) is amended—

(A) in subparagraph (A), by striking ''subsection (f)'' and inserting ''subsection (g)''; and

(B) in subparagraph (E), by striking ''or (f)'' and inserting ''or (g)''.

(4) JAMES M. INHOFE NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2023.—Section 322(h)(2) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 10 U.S.C. 2911 note) is amended by striking ''subsection (f)'' and inserting ''subsection (g)''.

(5) MILITARY CONSTRUCTION AUTHORIZATION ACT FOR FISCAL YEAR 2026.—Section 2828 of the Military Construction Authorization Act for Fiscal

Year 2026 (Public Law 119–60) is amended by striking ''section 4022(i)'' and inserting ''section 4022(j)''.

SEC. 824. REQUIREMENT FOR MODULAR OPEN SYSTEM APPROACH AND MODIFICATIONS TO RIGHTS IN TECHNICAL DATA.

(a) REQUIREMENT FOR MODULAR OPEN SYSTEM APPROACH.—Section 4401 of title 10, United States Code, is amended to read as follows:

''§ 4401. Requirement for modular open system approach

''(a) REQUIREMENT.—The Secretary of Defense shall ensure that a covered system to be procured is designed and developed with a modular open system approach that is appropriately tailored to—

''(1) the characteristics, intended purpose, and use of the covered system;

''(2) the planned service life of the covered system; and

''(3) any other factors relevant to the design and development of the covered system.

''(b) ASSESSMENT TO INFORM STRATEGY.—Before designing, developing, or making a modification to a covered system, the Secretary of Defense shall conduct an assessment to identify one or more open systems objectives

to be achieved by the design and development of the covered system. Such assessment shall describe how a modular open system approach would—

''(1) support the objectives of the defense acquisition system established pursuant to section 3102 of this title;

''(2) align with the preference for the acquisition of commercial products and commercial services in section 3453 of this title and preserve the commercial characteristics of modules that comprise the covered system;

''(3) reduce the complexity of, and increase the speed by which, new technologies can be integrated into a covered system to enhance military effectiveness and responsiveness to emerging threats;

''(4) enable the use of iterative development cycles and discontinue or terminate the development of capabilities—

''(A) that no longer align with a capability requirement established by the Secretary of Defense; or

''(B) that are experiencing significant cost growth, technical or performance deficiencies, or delays in schedule;

''(5) seek to maintain a robust, resilient, and innovative defense industrial base to support requirements throughout the life cycle of the covered system;

''(6) reduce schedule delays and development timelines;

''(7) increase and enable interoperability of a covered system with the joint force as changes to force design evolve;

''(8) enhance supply chain risk management and mitigate industrial base production capacity risks by enabling the integration of alternative sources of supply or enabling augmented production of modules throughout the life cycle of the covered system; or

''(9) enable effective life-cycle management and product support of a covered system—

''(A) in accordance with the requirements of section 4324 of this title; and

''(B) to achieve applicable operational readiness requirements and materiel readiness objectives (established under section 118(c) of this title) in the most cost-effective manner practicable.

''(c) ARCHITECTURE REQUIREMENTS.—(1) In developing an open systems architecture for the procurement of a covered system, the Secretary shall ensure that such architecture—

''(A) adequately designates and defines for the covered system—

''(i) modules;

''(ii) open external interfaces and open module interfaces to ensure loose coupling of modules within the covered system;

''(iii) open external interfaces, including external interfaces with a host platform or other external system, in a manner that supports interoperability; and

''(iv) the openness characteristics identified in subsection (d);

''(B) requires the exposure and full definition of open interfaces in a manner than is most suited to achieve the open systems objectives of the covered system through—

''(i) if available and suitable to achieve the open system objectives, the use, reuse, modification, or adaption of existing open systems architectures, interface

standards, or widely supported or consensus-based standards that are available at no cost or under fair and reasonable license terms;

''(ii) the use of commercial standards if such commercial standards are available under fair, reasonable, and non-discriminatory terms;

''(iii) the use of new standards that define relationships between module interfaces and external interfaces if such standards include—

''(I) the software-defined syntax and properties that specifically govern how values are validly passed and received between modules of a covered system, and between the covered system and other covered systems or a host platform, in a machine-readable format;

''(II) a machine-readable definition that is compatible with Department-approved digital engineering environments and model-based systems

engineering tools and defines the relationship between—

"(aa) a module interface or external interface; and

"(bb) existing standards or interfaces that available in the repository required by subsection (g); and

"(III) documentation with functional descriptions of software-defined interfaces that conveys the semantic meaning of elements of a module interface or external interface; or

"(iv) any combination of clauses (i) through (iii); and

"(C) is designed and developed to accelerate the procurement and integration of commercial products as modules when suitable and appropriate.

"(2) If a contractor develops a new interface standard or modifies an existing standard, and such new or modified standard is incorporated into an open systems architecture for a covered system, the Secretary shall ensure the new or modified standard is submitted to the repository required by subsection

(g) and, if the Secretary determines such submission would support the open system objectives of the covered system, is made available to recognized standards bodies.

''(3) The Secretary shall ensure acquisition executives and program managers consider input from private entities as early as possible to inform decisions regarding the level in the open systems architecture at which a modular open system approach will be implemented for a covered system.

''(4) The open systems architecture described in this subsection shall be included in any draft and final solicitations for procurement of a covered system.

''(d) OPENNESS CHARACTERISTICS.—Consistent with the requirements of subchapter I of chapter 275 of this title, the Secretary shall include in any draft or final solicitation for the covered system a description of the desired openness characteristics of the covered system necessary to achieve the open systems objectives identified in accordance with subsection (b) for such covered system including the following:

''(1) A description of the open systems objectives identified in accordance with subsection (b).

''(2) A description of the application of specifications, architectures, and standards for modularization and module interfaces and external interfaces, including open external interfaces with a host platform or other external system, to achieve such objectives.

''(3) A description of the minimum technical data package elements necessary to achieve such objectives.

''(4) The intended modularity and location of open interfaces.

''(5) The desired license rights in module interfaces or external interfaces based on such objectives, including desired license rights to enable the replacement of a module, module interface, or external interface with an alternative or new module or interface.

''(e) DISCLOSURE REQUIRED.—The Secretary of Defense shall make publicly available (to the maximum extent practicable consistent with national security requirements) any standards for implementation of modular open system approaches associated with contracts for covered systems as soon as feasible before the Secretary awards a contract to procure such a covered system, unless the applicable service acquisition executive submits to the Sec-

retary a request to delay or restrict release of such standards, including a justification for such request.

''(f) APPLICABILITY TO COMMERCIAL PRODUCTS.—In applying the requirements of this section to a procurement of a covered system that includes a commercial product, the Secretary of Defense shall—

''(1) procure such commercial product under license terms similar to such terms that are customarily provided to the public, provided such commercial terms include or can be supplemented by the license rights necessary for designated open module interfaces or open external interfaces;

''(2) when applicable, obtain the delivery of commercial software development kits with license rights necessary to support the desired openness characteristics for the covered system; and

''(3) to the maximum extent practical, conduct negotiations for desired license rights in accordance with the preference for specially negotiated licenses in section 3774(c) of this title.

''(g) DIGITAL REPOSITORIES FOR OPEN SYSTEMS ARCHITECTURES.—

''(1) IN GENERAL.—To support the creation, use, and reuse of modular open systems approaches, the Secretary shall establish a federated set of dig-

ital repositories within the Department of Defense to store open systems architectures and related artifacts for a covered system developed in accordance with this section. The Secretary shall ensure that—

''(A) the repositories incorporate cybersecurity measures consistent with Department standards;

''(B) program managers, portfolio acquisition executives, and other appropriate officials of the Department of Defense have the necessary administrative control to manage assigned repositories and to establish procedures and requirements for content; and

''(C) the repositories are searchable and accessible to authorized persons according to level of security clearance.

''(2) ADMINISTRATION.—The Secretary of Defense shall designate a lead organization responsible for governance, life-cycle management, standards adjudication, and configuration control of repositories established under this subsection. Such organization shall have demonstrated expertise in digital engineering environments, model-based systems engineering, and use of modular open system approaches.

''(h) DEFINITIONS.—In this section:

''(1) The term 'covered system' means a system that is acquired or developed under—

''(A) an acquisition program of the Department of Defense; or

''(B) a research and development program of the Department to address a capability requirement or joint capability requirement (as defined in section 181 of this title).

''(2) The term 'external interface' means an interface between a covered system and other elements, such as another covered system or a host platform.

''(3) The term 'host platform' means the system or environment that provides the core infrastructure, interfaces, and shared services necessary to support, integrate, and operate modular components or subsystems, while enabling their independent development, upgrade, and replacement through standardized and open interfaces.

''(4) The term 'modular open system approach' means an integrated strategy that—

''(A) incorporates acquisition, business, technology, and logistics considerations; and

"(B) uses an open systems architecture to achieve one or more open systems objectives.

"(5) The term 'module' means a self-contained discrete functional unit, such as hardware, software, or a combination thereof, in a discrete bundle—

"(A) that can be developed, tested, and deployed independently of a module interface or external interface; and

"(B) that can simultaneously interact with another self-contained discrete functional unit described in subparagraph (A) through a module interface or external interface.

"(6) The term 'module interface' means a shared boundary between modules in a covered system defined by physical, logical, or functional characteristics such as electrical, mechanical, fluidic, optical, radio frequency, data, networking, or software.

"(7) The term 'open systems architecture' means an architecture composed of a set of modules loosely coupled with other modules via open, well-defined, and verifiable interfaces, thereby enabling modules to be incrementally added, removed, or replaced throughout the life cycle of the covered system by any qualified offeror (as determined by the Secretary), including independent third parties.

''(8) The term 'software development kit' means a collection of software tools and programs such as libraries, application programming interfaces, integrated development environments, testing tools, or documentation used to create applications that are appropriate for a specific software platform.''.

(b) APPLICABILITY.—

(1) IN GENERAL.—The requirements of section 4401 of title 10, United States Code, as amended by this section, shall apply with respect to a contract entered into on or after the date that is 180 days after the date of the enactment of this Act.

(2) GUIDANCE.—The Secretary of Defense shall issue guidance to carry out the requirements of section 4401 of title 10, United States Code, as amended by this section in order to implement this section.

(c) MODIFICATION TO RIGHTS IN TECHNICAL DATA.—

(1) RIGHTS IN TECHNICAL DATA.—Section 3771 of title 10, United States Code, is amended—

(A) in subsection (a)—

(i) in paragraph (2)(A), by striking '' or copyrights'' and inserting '', copyrights, trade secrets,''; and

(ii) by adding at the end the following new paragraph:

''(3) ENFORCEMENT OF CERTAIN RIGHTS.—Regulations prescribed under paragraph (1) may not affect or limit any right described in paragraph (2)(A) or the ability of a contractor or subcontractor to enforce such a right against a third party that has not otherwise obtained a license for such a right from the United States or from the contractor or subcontractor.''; and

(B) in subsection (b)—

(i) by amending paragraph (3) to read as follows:

''(3) INAPPLICABILITY OF PARAGRAPH (2).—Unless otherwise negotiated, paragraph (2) does not apply to technical data that—

''(A) constitutes a correction or change to data furnished by the United States;

''(B) relates to form, fit, or function (other than detailed manufacturing or process data);

''(C) is necessary for operation, maintenance, installation, or training (other than detailed manufacturing or process data, including such data pertaining to a major system component); or

''(D) is otherwise publicly available or has been released or disclosed by the contractor or subcontractor without restriction on further release or disclosure.'';

(iii) by amending paragraph (4) to read as follows:

''(4) EXCEPTIONS TO PARAGRAPH (2).—Notwithstanding paragraph (2), unless otherwise negotiated, the United States may release or disclose technical data to persons outside the Government, or permit the use of technical data by such persons, if—

''(A) such release, disclosure, or use—

''(i) is necessary for emergency repair and overhaul; or

''(ii) is a release or disclosure of technical data (other than detailed manufacturing or process data) to, or use of such data by, a foreign government, where such release or disclosure is in the interest of the United States and is required for evaluation or informational purposes;

''(B) such release, disclosure or use is made subject to a prohibition that the person to whom the data are released or disclosed may

not further release, disclose, or use such data; and

''(C) the contractor or subcontractor asserting the restriction is notified of such release, disclosure, or use.'';

(iv) in paragraph (6)—

(I) in the paragraph heading, by striking ''INTERFACES'' and inserting ''MODULE INTERFACES OF AN ITEM'';

(II) by inserting '', in perpetuity,'' after ''government purpose rights''; and

(III) by striking ''an interface between an item or process and other items or processes'' and inserting ''a module interface of an item''; and

(v) in paragraph (7)—

(I) in the paragraph heading, by striking ''MODULAR SYSTEM INTERFACES'' and inserting ''EXTERNAL INTERFACES OF AN ITEM'';

(II) in subparagraph (A)—

(aa) by striking ''paragraphs (2) and (5)'' and inserting ''para-

graph (5) and except as otherwise provided by subsection (f) of section 4401 of this title,'';

(bb) by inserting '', in perpetuity,'' after ''government purpose rights''; and

(cc) by striking ''modular system interface'' and inserting ''external interface of an item'';

(III) in subparagraph (B), by striking ''modular system interface'' and inserting ''an external interface''; and

(IV) in subparagraph (C), by striking ''modular system interface'' and inserting ''external interface of an item''.

(2) DEFINITIONS.—Section 3775(b) of title 10, United States Code, is amended to read as follows:

''(b) ADDITIONAL DEFINITIONS.—In this subchapter, the terms 'external interface', 'modular open system approach', and 'module interface' have the meanings given, respectively, in section 4401 of this title.''.

(d) CONFORMING AMENDMENTS.—

(1) Section 3791(c)(1) of title 10, United States Code, is amended—

(A) in subparagraph (A), by striking ''section 4401(b) of this title'' and inserting ''section 4401 of this title''; and

(B) in subparagraph (D)(iv), by striking ''modular system interfaces (as defined in section 4401(b) of this title)'' and inserting ''module interfaces (as defined in section 4401 of this title)''.

(2) Section 4402 of title 10, United States Code, is repealed.

(3) Section 4403 of title 10, United States Code, is repealed.

(4) Section 4425 of title 10, United States Code, is amended to read as follows:

''§ 4425. Definitions

''In this subchapter:

''(1) The term 'major system platform' means the highest level structure of a major weapon system that is not physically mounted or installed onto a higher level structure and on which a major system component can be physically mounted or installed.

''(2) The term 'weapon system component'—

"(A) means a high level subsystem or assembly, including hardware, software, or an integrated assembly of both, that can be mounted or installed on a major system platform through a external system interface (as defined in section 4401 of this title); and

"(B) includes a subsystem, assembly or, module that is likely to have additional capability requirements, is likely to change because of evolving technology or threat, is needed for interoperability, facilitates incremental deployment of capabilities, or is expected to be replaced by another subsystem or assembly described in subparagraph (A).".

(5) Section 804 of the National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 4401 note) is repealed.

SEC. 825. MODIFICATIONS TO REQUIREMENTS RELATING TO LONG-TERM CONCESSIONS AGREEMENTS WITH CERTAIN RETAILERS.

(a) IN GENERAL.—Section 4664 of title 10, United States Code, is amended—

(1) by amending subsection (b) to read as follows:

''(b) WAIVER.—(1) The Secretary may waive the requirements of subsection (a) with respect to a long-term concessions agreement with a retailer if the Secretary determines that the goods or services to be provided by the retailer under such long-term concessions agreement are vital for the welfare and morale of members of the Armed Forces and no reasonable alternatives exist.

''(2) Not later than 30 days after each use of the waiver authority under paragraph (1), the Secretary shall provide to the Committees on Armed Services of the House of Representatives and Senate a justification for such waiver.'';

(2) by striking subsection (c);

(3) by redesignating subsection (d) as subsection (c); and

(4) in subsection (a), by striking ''subsections (b) and (c)'' and inserting ''subsection (b)''.

(b) CONFORMING AMENDMENT.—Section 841(a)(2)(B) of the National Defense Authorization Act for Fiscal Year 2026 (10 U.S.C. 4664 note) is amended to read as follows:

''(B) DETERMINATION DESCRIBED.—The determination described in this subparagraph is, with respect to a long-term concessions agreement, a determination that the retailer

that is a party to such long-term concessions agreement is controlled by a covered nation based on an assessment required by paragraph (1).''.

SEC. 826. PROHIBITION ON CONTRACTING WITH EMPLOYERS OF CONVICTED TRAFFICKERS.

(a) IN GENERAL.—Chapter 363 of title 10, United States Code, is amended by adding at the end the following new section:

''§ 4665. Prohibition on contracting with entities employing convicted traffickers.

''(a) IN GENERAL.—The Secretary of Defense may not enter into a contract or other agreement with an entity if such entity employs an individual convicted of a trafficking crime.

''(b) DEFINITIONS.—In this section—

''(1) the term 'individual convicted of a trafficking crime' means an individual who has been convicted by a court of competent jurisdiction of a trafficking crime and for whom such conviction has not been overturned; and

''(2) the term 'trafficking crime' means an offense—

''(A) under chapter 77 of title 18, United States Code; or

''(B) under State, local, or tribal law consisting of conduct that would have been an offense under the chapter described in subparagraph (A) if the conduct had occurred within the special maritime and territorial jurisdiction of the United States (as defined in section 7 of title 18, United States Code), or in interstate or foreign commerce.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 363 of title 10, United States Code, is amended by adding at the end the following new item:

''4665. Prohibition on contracting with entities employing convicted traffickers.''.

(c) APPLICABILITY.—Section 4665 of title 10, United States Code, as added by subsection (a), shall apply only with respect to contracts and other agreements entered into, renewed, or extended on or after the date of the enactment of this Act.

(d) CURRENT DEFENSE CONTRACTORS.—Not later than 90 days after the date of the enactment of this Act, each contractor of the Department of Defense as of the date of the enactment of this Act that employs an individual convicted of a trafficking crime (as defined in section 4665 of title 10, United States Code, as added by subsection (a)) shall submit to Secretary of Defense a notice that contractor employs such an individual.

SEC. 827. ACQUISITION THRESHOLDS FOR CERTAIN MATERIALS.

(a) STRATEGIC MATERIALS.—Section 4863 of title 10, United States Code, is amended by amending subsection (f) to read as follows:

''(f) EXCEPTION FOR SMALL PURCHASES.—(1) Subsection (a) does not apply to acquisitions in amounts not greater than $250,000.

''(2) A proposed acquisition of an item subject to subsection (a) in an amount greater than $250,000 may not be divided into several purchases or contracts for lesser amounts in order to meet the exception under paragraph (1).

''(3) On October 1 of each year that is evenly divisible by five, the Secretary of Defense may adjust the dollar threshold in this subsection based on changes in the Consumer Price Index. Any such adjustment shall take effect on the date on which the Secretary publishes notice of such adjustment in the Federal Register.''.

(b) SENSITIVE MATERIALS FROM NON-ALLIED FOREIGN NATIONS.—

(1) IN GENERAL.—Section 4872(c) of title 10, United States Code, as amended by section 1803 of this Act, is further amended—

(A) by redesignating subparagraphs (A) and (B) as clauses (i) and (ii), respectively;

(B) by redesignating paragraphs (1) through (4) as subparagraphs (A) through (D), respectively;

(C) by inserting ''(1)'' before ''Subsection (a)''; and

(D) by adding at the end the following new paragraph:

''(2)(A) Subsection (a) does not apply to procurements in amounts not greater than $250,000.

''(B) A proposed procurement of a material or item subject to subsection (a) in an amount greater than $250,000 may not be divided into several purchases or contracts for lesser amounts in order to meet the exception under subsection (a).

''(C) On October 1 of each year that is evenly divisible by five, the Secretary of Defense may adjust the dollar threshold in this subsection based on changes in the Consumer Price Index. Any such adjustment shall take effect on the date on which the Secretary publishes notice of such adjustment in the Federal Register.''.

(2) COORDINATION OF AMENDMENTS.—For purposes of applying amendments to section 4872 of title 10, United States Code, made by provisions of this Act other than this subsection, the amendments made by this subsection shall be treated as having

been enacted immediately after any such amendments to such section 4872 by other provisions of this Act.

(c) PRINTED CIRCUIT BOARDS.—Section 4873 of title 10, United States Code, is amended—

(1) by redesignating subsections (c) through (f) as subsections (d) through (g), respectively; and

(2) by inserting after subsection (b) the following new subsection:

''(c) EXCEPTION FOR SMALL PURCHASES.—

''(1) Subsection (a)(1) does not apply to acquisitions in amounts not greater than $10,000.

''(2) A proposed acquisition of an item subject to subsection (a)(1) in an amount greater than $10,000 may not be divided into several purchases or contracts for lesser amounts in order to meet the exception under paragraph (1).

''(3) On October 1 of each year that is evenly divisible by five, the Secretary of Defense may adjust the dollar threshold in this subsection based on changes in the Consumer Price Index. Any such adjustment shall take effect on the date on which the Secretary publishes notice of such adjustment in the Federal Register.''.

SEC. 828. CLARIFICATION OF CERTAIN ELEMENTS OF DEPARTMENT OF DEFENSE MENTOR-PROTEGE PROGRAM.

(a) CLARIFICATION OF LIMITATION ON PROTEGE FIRMS PARTICIPATING IN CONCURRENT MENTOR-PROTEGE AGREEMENTS.—Subsection (c)(2) of section 4902 of title 10, United States Code, is amended—

(1) by inserting ''under subsection (e)'' after ''one agreement''; and

(2) by striking ''during the 5-year period beginning on the date such concern enters into the first such agreement'' and inserting ''after the completion of any previous such agreement''.

(b) CLARIFICATION OF REQUIREMENT THAT MENTOR FIRMS MUST BE FOR-PROFIT FIRMS.—Subsection (d)(1) of such section is amended—

(1) by striking ''and'' at the end of subparagraph (A);

(2) by redesignating subparagraph (B) as subparagraph (C); and

(3) by inserting after subparagraph (A) the following new subparagraph (B):

''(B) is an entity organized for profit that operates primarily within the United States; and''.

(c) CLARIFICATION OF TERM OF PARTICIPATION AGREEMENT.—Subsection (e)(1)(B) of such section is amended by inserting ''for the agreement'' after ''A program participation term''.

(d) CLARIFICATION OF MATTERS RELATING TO REIMBURSEMENT OF MENTOR FIRMS.—Subsection (e)(2) of such section is amended by striking ''may be'' and inserting ''may provide reimbursement through'' after ''may be''.

SEC. 829. CODIFICATION OF PROGRAM FOR NEGOTIATION OF COMPREHENSIVE SMALL BUSINESS SUBCONTRACTING PLANS.

(a) IN GENERAL.—Section 834 of the National Defense Authorization Act for Fiscal Years 1990 and 1991 (15 U.S.C. 637 note) is transferred to subchapter I of chapter 387 of title 10, United States Code, inserted after section 4902, and redesignated as section 4903.

(b) AMENDMENTS.—Section 4903 of title 10, United States Code, as so transferred and redesignated, is amended—

(1) by striking ''test'' each place it appears in headings and text;

(2) by striking ''Test'' each place it appears in headings and text;

(3) in subsection (a)(1), by striking ''shall establish'' and all that follows through ''demonstration projects, the Secretary'' and inserting the following: ''shall maintain a program under which each service acquisition executive and each head of a Defense Agency may negotiate and administer comprehensive subcontracting plans. The Secretary'';

(4) in subsection (b)—

(A) in paragraph (1)—

(i) by striking ''In a demonstration project under the test program, the'' and inserting ''The''; and

(ii) by inserting at the end the following: ''The Secretary shall ensure procedures and systems accurately capture and report—

''(A) the annual goals for each subcontracting plan;

''(B) subcontract awards including number, dollar amount and percentages of subcontracting value and total contract value; and

''(C) the findings of good faith efforts.'';

(B) in paragraph (2)—

(i) in subparagraph (A), by striking ''and'' at the end;

(ii) in subparagraph (B), by striking the period at the end and inserting ''; and''; and

(iii) by adding at the end the following:

''(C) shall comply with the requirements included in section 8(d)(6) of the Small Business Act (15 U.S.C. 637(d)(6)).''; and

(C) by amending paragraph (3) to read as follows:

''(3) A contractor described in paragraph (4) shall annually submit to the Secretary of Defense a report on the number and dollar amount of first-tier subcontracts awarded during the period covered by the report to covered small business concerns, set forth separately—

''(A) by North American Industry Classification System code;

''(B) by major defense acquisition program (as defined in section 4201 of this title);

''(C) by military department; and

''(D) by prime contract, if—

''(i) the prime contract is for the maintenance, overhaul, repair, servicing, rehabilitation, salvage, modernization, or modification of supplies, systems, equipment; and

''(ii) the total value of the prime contract (including options) is greater than $100,000,000.'';

(5) by amending subsection (d)(2) to read as follows:

''(2) The Secretary of Defense shall report to the Committee on Armed Services and the Committee on Small Business of the House of Representatives and the Committee on Armed Services and the Committee on Small Business and Entrepreneurship of the Senate on any negotiated comprehensive subcontracting plan that the Secretary determines did not meet the subcontracting goals negotiated in the plan for the prior fiscal year and whether the contractor made a good faith effort regarding compliance.'';

(6) by striking subsections (e) and (f); and

(7) by redesignating subsection (g) as subsection (e).

SEC. 830. CONSUMPTION-BASED PROCUREMENTS AND ASSOCIATED PAYMENTS.

(a) ADVANCE PAYMENTS RELATED TO CERTAIN SERVICES.—Section 3324(d) of title 31, United States Code, is amended—

(1) in paragraph (1)(C), by striking ''; and'' and inserting a semicolon;

(2) in paragraph (2)—

(A) by inserting ''or commercially available content'' after ''publication''; and

(B) by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following new paragraph:

''(3) charges for information and communications technology subscriptions, reservations, or tenancy, including cloud environments, for which the procuring agency defines appropriate access and security standards.''.

(b) AUTHORITY TO ACQUIRE CONSUMPTION-BASED SOLUTIONS.—

(1) AMENDMENT.—Chapter 23 of title 41, United States Code, is amended by adding at the end the following new section:

''§ 2314. Authority to acquire consumption-based solutions

''(a) AUTHORITY.—The head of each executive agency may acquire services through consumption-based solutions.

''(b) PROCUREMENT REQUIREMENTS.—Not later than 180 days after the date of the enactment of this section, the Federal Acquisition Regulation shall be updated

as necessary to create a new subcategory of services that—

''(1) is any combination of hardware, equipment, software, labor, or services that together provides a seamless capability;

''(2) has the ability to be metered and billed based on actual usage;

''(3) has predetermined pricing at fixed-price units;

''(4) requires the awardee to notify the agency contracting officer when consumption under the contract reaches 75 percent and 90 percent of the funded amount, respectively, of the contract; and

''(5) treats any modification of a contract entered into under the authority established in subsection (a) to add a new feature or capability in an amount less than or equal to 25 percent of the total value of such contract, as originally awarded, as procurements made using competitive procedures (as defined in section 152) for the purposes of chapter 33 of this title.

''(c) FUNDING.—Amounts authorized to be appropriated for acquisitions using the authority under subsection (a) may be used to enter into incrementally funded

contracts or other agreements, including advanced payments.

''(d) CONSUMPTION-BASED SOLUTION DEFINED.—In this section, the term 'consumption-based solution' means a model under which a service is provided to an executive agency and may use any combination of software, hardware or equipment, data, and labor or services that provides a capability that is metered and billed based on actual usage at fixed-price units.

''(e) RULE OF CONSTRUCTION.—Nothing in this section may be construed to prohibit the use of the authority created under subsection (a) in combination with another contract type provided for under the Federal Acquisition Regulation.''.

(2) TECHNICAL AND CONFORMING AMENDMENT.—The table of sections for chapter 23 of title 41, United States Code, is amended by adding at the end the following new section:

''2314. Authority to acquire consumption-based solutions.''.

(c) MODIFICATION OF PILOT PROGRAM FOR ANYTHING-AS-A-SERVICE.—Section 809 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 10 U.S.C. note prec. 3301) is amended—

(1) by redesignating subsection (g) as subsection (i); and

(2) by inserting after subsection (f) the following new subsections:

''(g) REPORT.—Not later than March 15, 2029, the Secretary shall provide a report to the congressional defense committees on the implementation of the pilot program, describing the use of the authority under this section and any lessons learned, along with a recommendation on whether to make the authority under this section permanent.

''(h) SUNSET.—The authority under this section shall terminate on December 31, 2030.''.

SEC. 831. EXTENSION OF BRIEFING AND CERTIFICATION REQUIREMENT.

Section 886 of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 138 Stat. 2022) is amended—

(1) in the section heading, by striking ''**BRIEFINGS, CERTIFICATION, AND LIMITATION ON AVAILABILITY OF FUNDS**'' and inserting ''**BRIEFINGS AND CERTIFICATION**'';

(2) by striking subsections (a) and (d) and redesignating subsections (b) and (c) as subsections (a) and (b), respectively; and

(3) in each of subsections (a) and (b), as so redesignated, by striking ''30 days after the date of

the enactment of this Act'' and inserting ''30 days after the date on which the Secretary awards a contract for financial management services for fuel contracts''.

SEC. 832. PREFERENCE FOR RECYCLED STRATEGIC AND CRITICAL MATERIALS.

Section 848(a) of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 4811 note) is amended—

(1) by redesignating paragraph (3) as paragraph (4); and

(2) by inserting after paragraph (2) the following new paragraph:

''(3) From sources described in paragraphs (1) and (2) that produce such strategic and critical materials by extracting such materials from electronic waste.''.

SEC. 833. TRANSFER AUTHORITY FOR RAPID TRANSITION OF OTHER TRANSACTION AUTHORITY PROTOTYPES.

(a) AUTHORITY.—

(1) IN GENERAL.—Subject to limitations in paragraph (2), a portfolio acquisition executive may transfer amounts of authorizations made available for programs, projects, or activities that are included

in the portfolio assigned under the leadership of such portfolio acquisition executive in accordance with section 1732 of title 10, United States Code.

(2) LIMITATIONS ON AMOUNTS TRANSFERRED.—The transfer of an amount made in accordance with paragraph (1), with respect to amounts authorized for Research, Development, Test, and Evaluation—

(A) shall not exceed 10 percent of the amount authorized for a fiscal year for Research, Development, Test, and Evaluation for all programs, projects, or activities in the portfolio of such portfolio acquisition executive; and

(B) may only be transferred to a corresponding Procurement program, project, or activity within the same portfolio.

(b) TRANSFER CRITERIA.—A portfolio acquisition executive may transfer amounts under subsection (a) only if—

(1) the capability proposed for procurement using such transfer amounts was developed under a transaction or other agreement entered into under section 4021 or 4022 of title 10, United States Code;

(2) such proposed capability has achieved a technology readiness level of 8, as validated by the milestone decision authority (as defined in section 4211 of title 10, United States Code) or an independent technical authority designated by the Secretary of Defense; and

(3) the portfolio acquisition executive determines in writing that procurement of such proposed capability is necessary to address an operational problem or fulfill a capability requirement (as such terms are defined, respectively, in section 3101 of title 10, United States Code) in a timely and cost-effective manner.

(c) NOTIFICATION.—

(1) IN GENERAL.—Not later than 15 days before transferring amounts under subsection (a), the portfolio acquisition executive making such transfer shall submit a written notification of such transfer to—

(A) the congressional defense committees;

(B) the Under Secretary of Defense for Acquisition and Sustainment;

(C) the Under Secretary of Defense for Research and Engineering; and

(D) the Under Secretary of Defense (Comptroller).

(2) CONTENTS.—Each notification required under paragraph (1) with respect to a transfer of amounts under subsection (a) shall include—

(A) the amount to be transferred;

(B) an identification of the program, project, or activity that is the proposed source of the Research, Development, Test, and Evaluation amount and an identification of the program, project, or activity that is the proposed recipient Procurement account;

(C) a description of the capability proposed for procurement using such transfer amounts and the validated technology readiness level of such capability;

(D) the written determination required by paragraph (3); and

(E) an assessment of the benefits or risks anticipated as a result of the transfer of such amounts on the programs, projects, and activities assigned under the leadership of the portfolio acquisition executive concerned.

(d) GENERAL LIMITATIONS.—

(1) NEW PROGRAMS OF RECORD.—A portfolio acquisition executive that transfers amounts pursuant to this section may not use such amounts to initiate a program of record without approval from the appropriate milestone decision authority.

(2) FUND AVAILABILITY.—Amounts transferred pursuant to this section shall be subject to the same period of availability as the Procurement appropriation to which they are transferred.

(e) EXCLUSION FROM GENERAL TRANSFER AUTHORITY.—Amounts transferred pursuant to this section shall not be included in the dollar limitation of section 1001 of this Act.

SEC. 834. PORTFOLIO-BASED ACQUISITION OF AUTONOMOUS CAPABILITY.

(a) IN GENERAL.—There is established in the Department of Defense a program to be known as the ''Autonomy Integration Account'' (in this section referred to as the ''Account'') under which the Secretary of Defense shall seek to accelerate the resourcing and integration of autonomous mission execution capabilities into systems of the Department to enable the operational availability of such systems.

(b) ELEMENTS.—Activities carried out under the Account shall primarily emphasize the procurement, research

and development, training and simulation, integration, and continuous modernization of applicable software capabilities for navigation, targeting, communications, mission autonomy, battle management, and other mission-critical software-defined functions that enable autonomous mission execution.

(c) STANDARDS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Director of the Defense Autonomous Warfare Group and each Secretary of a military department, shall establish standards for autonomous mission execution capabilities for any portfolio acquisition executive who leads an unmanned system portfolio. Such standards shall include, at a minimum—

(1) the capability of unmanned systems within such portfolio to execute mission objectives autonomously within the domain of such systems, including in GPS-denied and communications-denied environments;

(2) the capability of such systems to integrate autonomy-enabling software consistent with a modular open systems approach as defined in section 4401 of title 10, United States Code;

(3) common autonomy interfaces, data standards, and safety and assurance criteria that permit

the use of autonomy-enabling and other mission-critical software across multiple platforms and domains to the maximum extent practicable in alignment with existing government reference architectures;

(4) establishment of an autonomy software baseline and a process for continuous integration, simulation and training, security testing, and deployment of autonomy-enabling software updates across systems within the portfolio; and

(5) an acquisition preference for scalable commercial solutions, including licensing and service agreements to enable continuous improvement, training and simulation, and rapid deployment, that—

(A) have been operationally validated in real-world deployments to conflict zones; and

(B) have achieved a Technology Readiness Level of 7 or above.

(d) FUNDING.—Activities under the Account shall be carried out using amounts authorized to be appropriated for fiscal year 2027 to Program Element 0604539D8Z on Line 115 of the account for ''Research, Development, Test, and Evaluation Defense-wide''.

(e) ANNUAL REPORT.—The Secretary of Defense shall include with the budget justification materials submitted to Congress in support of the budget of the Depart-

ment of Defense for a fiscal year (as submitted with the budget of the President under section 1105(a) of title 31, United States Code) a report on the activities carried out under the Account for such fiscal year, including—

(1) progress towards adoption of standards under subsection (b);

(2) results from cross-portfolio experimentation, integration, and fielding activities conducted;

(3) an assessment of software modernization efforts, frequency of updates, cybersecurity posture, and workforce readiness to support long-term sustainment of software-enabled capabilities;

(4) an inventory of programs that have transitioned from the integration phase to the sustainment phase; and

(5) identification of any statutory, regulatory, or budgetary barriers limiting rapid integration of autonomy-enabling software across unmanned platforms.

SEC. 835. ESTABLISHMENT OF PATHFINDER PROGRAMS TO INFORM REQUIREMENTS REFORM.

(a) REQUIREMENT FOR SERVICE-LEVEL REQUIREMENTS REFORM PATHFINDER PROGRAMS.—Not later than 120 days after the date of the enactment of this section, each Secretary of a military department shall estab-

lish a program to be known as a ''Pathfinder Program'' to—

(1) inform and assist in efforts to reorient and reform the requirements process within such military department in accordance with (b);

(2) support the service chief concerned in the development of capability requirement statements for equipping the armed force concerned that—

(A) describes the operational problem to provide necessary context for the capability requirement;

(B) proposes nonprescriptive solutions to operational problems; and

(C) ensures system interoperability, where appropriate, between and among joint military capabilities (as defined in section 181 of title 10, United States Code); and

(3) develop and establish requirements-related processes of the military department concerned in a manner that supports, and is consistent with the Joint Force Requirements Process prescribed in the ''Manual for the Joint Requirements Oversight Council and the Joint Force Requirements Process'' (document number CJCSM 5123.01; dated January 15, 2026).

(b) ESTABLISHMENT.—A Pathfinder Program established in accordance with (a) shall seek to—

(1) accelerate the delivery of capability requirements to address operational problems;

(2) remove bureaucratic barriers in the requirements process;

(3) provide operational users of required capabilities with an independent voice and direct role to ensure that capabilities meet the needs of such users;

(4) apply data-based analytics for decision making related to requirements, acquisition, and budgeting;

(5) enable a clear, unbroken linkage from strategic guidance to concepts to capabilities to budgeting;

(6) drive design, development, and integration—

(A) to integrate processes across the military department concerned and with the joint force as required;

(B) to balance the urgency of immediate needs with longer-term strategic investments;

(C) to support the breadth of existing innovative technologies and major programs regardless of acquisitions pathway; and

(D) to address all elements of doctrine, organization, training, materiel, leadership and education, personnel, facilities, and policy to deliver holistic solutions considering all such elements; and

(7) align authorities to responsibilities in order to ensure that capability developers have the authority to execute and are held accountable for outcomes.

(c) EVALUATION AND LESSONS LEARNED.—

(1) IN GENERAL.—Each Secretary of a military department carrying out a Pathfinder Program shall observe, document, and assess the execution of such Pathfinder Program, to enable the development of recommendations to improve—

(A) speed, clarity, and effectiveness in the prioritization of operation problems and the development of capability requirements statements;

(B) alignment of requirements, acquisition, and budgeting;

(C) integration of user feedback and operational insights;

(D) effectiveness of engagement with private entity partners; and

(E) alignment of requirements processes of military departments with and in support of the Joint Requirements Process.

(d) REPORT TO CONGRESS.—Not later than one year after the date of the enactment of this section, the Secretary of Defense, in coordination with each Secretary of a military department, shall submit to the congressional defense committees a report containing—

(1) barriers encountered the implementation of the Pathfinder Program;

(2) lessons learned and recommendations developed through the implementation of the Pathfinder Program; and

(3) recommended statutory, regulatory, or organizational changes needed to accelerate the delivery of capability requirements to address operational problems, and remove bureaucratic barriers in the requirements process.

(e) TERMINATION.—

(1) IN GENERAL.—A Pathfinder Program established under this section may be terminated at

the discretion of the Secretary concerned, but shall not be terminated on a date prior to the day that is 24 months after the date of establishment of such Pathfinder Program.

(2) NOTIFICATION.—Not less than 60 days before the date on which the Secretary concerned prior terminates a Pathfinder Program, such Secretary shall provide to the congressional defense committees a notification of the intent to terminate along with an updated report including the elements described in subsection (d).

(f) DEFINITIONS.—In this section:

(1) The terms ''capability requirement'', ''operational problem'', and ''service chief'' have the meanings given, respectively, in section 3101 of title 10, United States Code.

(2) The term ''requirements document'' has the meaning provided in section 3104 of title 10, United States Code.

SEC. 836. REQUIREMENTS FOR CERTAIN UNMANNED SURFACE VESSELS TO BE MANUFACTURED IN THE UNITED STATES.

(a) IN GENERAL.—Subject to subsection (b), on or after the date of the enactment of this section, the Sec-

retary of the Navy prioritize offers for a covered contract where the offeror provides assurances that—

(1) the supply chain of the offeror for parts or components of a covered program are domestic sources; and

(2) the manufacturing, assembling, and finishing of parts or components of a covered program occurs in the United States and is conducted by entities, the primary place of business of which is located in the United States.

(b) CERTIFICATION.—The Secretary may enter into a covered contract with an offeror that does not provide the assurances described in subsection (a) if the Secretary submits to the Committees on Armed Services of the Senate and House of Representatives a certification that no offeror that can provide such assurances is available to perform the contract.

(c) DEFINITIONS.—In this section:

(1) The term ''covered contract'' means a contract or other agreement for—

(A) the construction or manufacture of a covered program or parts or components of a covered program;

(B) the integration of mechanical and electrical systems associated with the power generation of such covered program; or

(C) the operation or sustainment of a covered program, where such contract or other agreement is for the replacement of or improvements to components of a covered program.

(2) The term ''covered program'' means an unmanned surface vessel acquired, leased, or operated under the Medium Unmanned Surface Vessel program of the Department of the Navy.

SEC. 837. PROCUREMENT AND USE OF DOMESTIC SILICON ANODE MATERIALS.

(a) PROGRAMS FOR BATTERY CELLS AND BATTERY SYSTEMS.—With respect to a program to procure, test, or approve a battery cell or battery system, the Secretary of Defense shall prioritize, to the extent feasible, the use of silicon anode materials manufactured in the United States or provided by domestic suppliers in such programs if such materials meet or enhance performance, safety, or cost requirements as set forth by the Department.

(b) PROCUREMENT OF BATTERY CELLS AND BATTERY SYSTEMS.—The Secretary of Defense shall, to the maximum extent practicable, procure battery cells and battery systems incorporating silicon anode materials

manufactured in the United States or provided by domestic suppliers using intellectual property developed in the United States.

(c) COORDINATION.—The Secretary of Defense shall coordinate with the Director of the Defense Logistics Agency and each Secretary of a military department to take such action as may be necessary to align procurement policies, qualification standards, and supply chain strategies for domestic production of silicon anode materials technologies and to reduce reliance on foreign-sourced silicon anode materials for battery cells and battery systems.

SEC. 838. AMENDMENT TO REQUIREMENT FOR DOMESTIC STAINLESS STEEL FLATWARE AND DINNERWARE.

Section 842 of the Servicemember Quality of Life Improvement and National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. 4862 note) is amended by striking subsection (c).

Subtitle C—Provisions Relating to Acquisition Workforce Development

SEC. 851. ACQUISITION WORKFORCE DATA ANALYTICS CAPABILITY.

(a) MANAGEMENT FOR ACQUISITION WORKFORCE EXCELLENCE.—Section 1701a(b) of title 10, United States Code, is amended—

(1) in paragraph (10), by striking ''and'' at the end;

(2) in paragraph (11), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following new paragraph:

''(12) establish and maintain a Department-wide acquisition workforce data analytics capability to collect, integrate, and analyze data relating to the acquisition workforce in order to support workforce planning and effective performance management of the acquisition workforce, including by—

''(A) integrating data from across the Department of Defense relating to the size, composition, skills, training, certifications, hiring, retention, experience, and performance of the acquisition workforce;

''(B) enabling the assessment of the capacity and capabilities of the acquisition workforce;

''(C) identifying trends, risks, and constraints, including current and projected workforce gaps, affecting workforce readiness and the ability of the acquisition workforce to achieve the objectives described in subparagraph (E);

''(D) informing decisions and resource allocation relating to the recruitment, hiring, development, training, credentialing, retention, and career progression of the acquisition workforce; and

''(E) ensuring that data and analytics generated by the capability support—

''(i) the objectives of the defense acquisition system established pursuant to section 3102 of this title; and

''(ii) the key performance objectives for the acquisition workforce established under section 1722b(d) of this title.''.

(b) IMPLEMENTATION OF ANALYTICS CAPABILITY.—

(1) IN GENERAL.—The Secretary of Defense, acting through the Under Secretary of Defense for Acquisition and Sustainment, shall implement the

capability required under paragraph (12) of section 1701a(b) of title 10, United States Code, as added by subsection (a), through the development and maintenance of a dashboard or a similar data analytics or visualization tool for such capability.

(2) DATA ELEMENTS.—The tools, systems, or other means used to implement the capability described in paragraph (1) shall, to the maximum extent practicable, include Department of Defense-wide acquisition workforce data and analytics necessary to support strategic planning and management, including data and analytics relating to—

(A) the size, composition, and geographic distribution of the acquisition workforce;

(B) the skills, certifications, and experience of members of the acquisition workforce, including relevant education and professional experience;

(C) vacancy rates, time-to-hire metrics, and other indicators of constraints on the capacity of the acquisition workforce;

(D) the activities of the Department for recruiting, hiring, and developing members of the acquisition workforce, including the Defense Ci-

vilian Training Corps established under section 2200g of title 10, United States Code;

(E) retention, attrition, career progression, and related characteristics and trends, including retirement eligibility and projected workforce changes in the acquisition workforce;

(F) the performance of the acquisition workforce, including measures relating to the execution of acquisition programs and activities; and

(G) such other matters as the Under Secretary of Defense for Acquisition and Sustainment determines appropriate.

(3) USE OF COMMERCIAL TOOLS.—The Under Secretary of Defense for Acquisition and Sustainment shall, to the maximum extent practicable, use commercially available data analytics, workforce management, and data visualization tools to support the capability described in paragraph (1).

(4) LIMITATION ON DEVELOPMENT OF CUSTOM INFORMATION TECHNOLOGY.—The Under Secretary of Defense for Acquisition and Sustainment may develop or acquire information technology that is not commercially available to support the capability described in paragraph (1) only if the Under Secretary

determines that no commercially available good or service can meet the requirements of this subsection without more than minor modifications.

(5) DATA ACCESS.—The Under Secretary of Defense for Acquisition and Sustainment, in coordination with the Under Secretary of Defense for Personnel and Readiness and officials responsible for data, digital, and information technology policy and systems of the Department of Defense, shall ensure the availability and integration of data necessary to carry out the capability described in paragraph (1). Each Secretary of a military department and each head of a Defense Agency shall provide such data, in such format and such manner, as the Under Secretary of Defense for Acquisition and Sustainment determines necessary to support such capability.

(6) WORKFORCE ASSESSMENTS.—The Under Secretary of Defense for Acquisition and Sustainment shall use the capability described in paragraph (1) to conduct regular assessments of the capacity, capability, and distribution of the acquisition workforce and provide recommendations to service acquisition executives and component acquisition executives to address identified shortfalls in the capacity and capabilities of the acquisition workforce.

(7) DEFINITIONS.—In this subsection, the terms ''acquisition workforce'', ''Defense Agency'', ''military department'', and ''service acquisition executive'' have the meanings given such terms, respectively, in section 101(a) of title 10, United States Code.

SEC. 852. CHIEF ACQUISITION TALENT OFFICER.

(a) IN GENERAL.—Subchapter I of chapter 87 of title 10, United States Code, is amended by inserting after section 1702 the following new sections:

''§ 1703. Chief Acquisition Talent Officer of the Department of Defense

''(a) IN GENERAL.—There is a Chief Acquisition Talent Officer of the Department of Defense, who shall be appointed by the Secretary of Defense and shall report to the Under Secretary of Defense for Acquisition and Sustainment.

''(b) APPOINTMENT AUTHORITIES.—The Secretary of Defense may appoint the Chief Acquisition Talent Officer of the Department of Defense as—

''(1) a member of the Senior Executive Service; or

''(2) a highly qualified expert under section 9903 of title 5, or other applicable authority.

''(c) QUALIFICATIONS.—

''(1) IN GENERAL.—The Chief Acquisition Talent Officer of the Department of Defense shall possess substantial experience in strategic talent management, workforce development, or organizational leadership in large public or private sector organizations.

''(2) EXCLUSIVITY.—An individual serving as the Chief Acquisition Talent Officer of the Department of Defense may not hold or occupy another position in the Department of Defense.

''(d) RESPONSIBILITIES.—

''(1) IN GENERAL.—The Chief Acquisition Talent Officer of the Department of Defense shall support the Under Secretary of Defense for Acquisition and Sustainment in carrying out the responsibilities of the Under Secretary with respect to the acquisition workforce under section 1702 of this title through Department of Defense-wide strategy, planning, education, training, and management of the acquisition workforce.

''(2) SPECIFIC DUTIES.—In carrying out the responsibilities under paragraph (1), the Chief Acquisition Talent Officer of the Department of Defense shall—

"(A) serve as the principal staff assistant to the Under Secretary of Defense for Acquisition and Sustainment on matters relating to acquisition workforce talent management;

"(B) engage with the service acquisition executives, portfolio acquisition executives, and other appropriate officials of the Department of Defense to provide support and assistance with the responsibilities of such officials related to the planning, development, and management of the acquisition workforce that are required to execute acquisition programs and portfolios;

"(C) use the Department-wide acquisition workforce data analytics capability established under section 1701a(b)(12) of this title to assess the capacity of the acquisition workforce, identify gaps in the capabilities of the acquisition workforce, forecast the needs of the acquisition workforce, and evaluate the effectiveness of acquisition workforce development initiatives and investments;

"(D) develop and maintain a Department of Defense-wide acquisition workforce strategy to ensure that the acquisition workforce has the capacity, capabilities, and competencies nec-

essary to achieve the objectives of the defense acquisition system under section 3102 of this title;

''(E) enable the successful implementation of the acquisition workforce strategy required by subparagraph (D) by—

''(i) assisting the Secretary of Defense in establishing policies and procedures for the effective management of the acquisition workforce in accordance with section 1701 of this title;

''(ii) establishing Department-wide acquisition workforce planning processes; and

''(iii) developing and implementing talent management initiatives for the acquisition workforce;

''(F) coordinate with the Under Secretary of Defense for Personnel and Readiness and the Secretaries of the military departments to enable the alignment of—

''(i) specific education and training for members of the acquisition workforce who are members of the armed forces with general education and training requirements, including professional military edu-

cation requirements for members of the armed forces; and

''(ii) specific assignment and career development policies related to the civilian members of the acquisition workforce and the members of the acquisition workforce who are members of the armed forces;

''(G) require the activities and curriculum of the Defense Acquisition University and, as appropriate, other education and training providers supporting the acquisition workforce, to—

''(i) align with the objectives of the defense acquisition system established pursuant to section 3102 of this title;

''(ii) promote continuous learning and technical skills improvement across the acquisition workforce; and

''(iii) support and enable the successful implementation of the acquisition workforce strategy required by subparagraph (D);

''(H) support the integration of key performance objectives for the acquisition workforce, established under section 1722b(d) of

this title, into the training, certification, career development, and performance management systems of the Department for the acquisition workforce;

''(I) assist the Under Secretary of Defense for Acquisition and Sustainment in executing programs related to the talent management initiatives of the acquisition workforce, including the Defense Civilian Training Corps authorized under section 2200g of this title, and ensure that such programs are appropriately integrated into Department-wide acquisition workforce planning;

''(J) promote and facilitate the use of the authorities under section 1599g of this title and other mechanisms to strengthen the acquisition workforce through exchanges with the private sector;

''(K) frequently conduct assessments of the capacity, capability, and performance of the acquisition workforce and develop and submit to the Under Secretary of Defense for Acquisition and Sustainment recommendations for Department-wide acquisition workforce investments under the Defense Acquisition Workforce Devel-

opment Account established under section 1705 of this title; and

''(L) convene, not less frequently than semiannually, the service acquisition executives, Service Chief Acquisition Talent Officers, Component Acquisition Executives (as defined in section 1703a(d) of this title), and such other officers of the Department as determined appropriate by the Chief Acquisition Talent Officer of the Department to assess the effectiveness of the acquisition workforce strategy required by subparagraph (D) and review the performance and priorities of the acquisition workforce across the Department.

''(3) TALENT MANAGEMENT INITIATIVE DEFINED.—In this subsection, the term 'talent management initiative' means the activities of the Department of Defense relating to recruitment, hiring, development, education, training, credentialing, performance management, retention, succession planning, and mobility, including rotations, reassignments, and career progression pathways, for the acquisition workforce.

''(e) ACQUISITION WORKFORCE PLANS.—

''(1) IN GENERAL.—In addition to the duties under subsection (d), the Chief Acquisition Talent Officer of the Department of Defense shall issue guidance requiring each Service Chief Acquisition Talent Officer and Component Chief Acquisition Talent Officer to develop and submit to the Chief Acquisition Talent Officer of the Department of Defense not less frequently than annually a plan for the acquisition workforce of the applicable military department or component of the Department of Defense that supports and enables the successful implementation of the acquisition workforce strategy required by subsection (d)(2)(D).

''(2) TIMELINE.—The Chief Acquisition Talent Officer of the Department of Defense shall ensure that the plans required under paragraph (1) are submitted in a timely manner so as to inform the development of the budget submitted to Congress under section 1105 of title 31.

''(3) PLAN ELEMENTS.—Each plan for the acquisition workforce of a military department or component of the Department of Defense submitted pursuant to paragraph (1) or under paragraph (4) shall include—

''(A) an assessment of the size, composition, and distribution of such acquisition workforce;

''(B) an identification of gaps in critical skills and projected workforce needs of such acquisition workforce, including anticipated hiring requirements and requirements for emerging skills necessary to support acquisition priorities;

''(C) the hiring, retention, and workforce development plans for such acquisition workforce;

''(D) the anticipated requirements for and availability of training programs and development programs to support the hiring, retention, and workforce development plans described in subparagraph (C); and

''(E) an explanation of how the acquisition workforce plan supports the acquisition workforce strategy required by subsection (d)(2)(D).

''(4) ALIGNMENT.—The Chief Acquisition Talent Officer of the Department of Defense shall, for each plan submitted pursuant to paragraph (1) or under paragraph (6)—

''(A) evaluate whether such plan aligns with the Department-wide acquisition workforce strategy and priorities; and

''(B) provide to the Under Secretary of Defense for Acquisition and Sustainment—

''(i) a recommendation regarding whether to approve such plan; and

''(ii) recommendations regarding workforce investments associated with such plan, including investments under the Defense Acquisition Workforce Development Account established under section 1705 of this title, to ensure alignment with workforce plans approved by the Under Secretary and the Department-wide acquisition workforce strategy.

''(5) FLEXIBILITY FOR PROGRAM ADJUSTMENTS.—In carrying out this subsection, the Chief Acquisition Talent Officer of the Department of Defense and the Under Secretary of Defense for Acquisition and Sustainment shall ensure that workforce planning, evaluation, and reporting under this subsection remain responsive to changes in the requirements of acquisition programs, including program terminations, restructurings, or changes in scope.

''(6) APPROVAL.—

''(A) IN GENERAL.—Not later than 90 days after the date on which a Service Chief Acquisition Talent Officer or Component Chief Acquisition Talent Officer submits a plan for the acquisition workforce of the military department or component of the Department pursuant to paragraph (1) or under this paragraph, the Under Secretary of Defense for Acquisition and Sustainment shall—

''(i) approve or reject such plan; and

''(ii) provide to such Service Chief Acquisition Talent Officer or Component Chief Acquisition Talent Officer a written notice of such approval or rejection.

''(B) PLAN REVISION.—If the Under Secretary of Defense for Acquisition and Sustainment rejects a plan under subparagraph (A)—

''(i) the Under Secretary shall include in the notice required by clause (ii) of such subparagraph a written explanation of the reasons for such rejection and any revisions required for such plan to be approved; and

''(ii) the Service Chief Acquisition Talent Officer or Component Chief Acquisition Talent Officer that submitted such plan pursuant to paragraph (1) or under this paragraph shall revise such plan and submit such revised plan to the Chief Acquisition Talent Officer of the Department of Defense.

''(f) REPORT TO CONGRESS.—Not later than March 1 of each year, the Chief Acquisition Talent Officer of the Department of Defense shall submit to the congressional defense committees a report on the effectiveness of the Department-wide acquisition workforce strategy, including—

''(1) an assessment of workforce trends, hiring and retention challenges, and critical skill gaps of the acquisition workforce;

''(2) an evaluation of the extent to which the acquisition workforces of the military departments and components are aligned with the objectives of the defense acquisition system established pursuant to section 3102 of this title and the Department-wide acquisition workforce strategy required by subsection (d)(2)(D);

''(3) a summary and assessment of the plans submitted under subsection (e), including for each

plan rejected under subsection (e)(6), a summary of the reasons for such rejection; and

''(4) recommendations for legislative and administrative actions to address identified workforce gaps, improve workforce performance, and strengthen the acquisition workforce.

''(g) DEPUTY CHIEF ACQUISITION TALENT OFFICER.—The Secretary of Defense may appoint a Deputy Chief Acquisition Talent Officer of the Department of Defense, from among individuals serving in the Senior Executive Service or other appropriate positions in the Department of Defense, to assist the Chief Acquisition Talent Officer of the Department of Defense in carrying out the responsibilities of the Chief Acquisition Talent Officer of the Department of Defense under this section.

''(h) PERSONNEL AND RESOURCES.—

''(1) IN GENERAL.—The Secretary of Defense shall ensure that the Chief Acquisition Talent Officer of the Department of Defense is provided dedicated personnel and resources necessary to carry out the responsibilities of the Chief Acquisition Talent Officer of the Department of Defense.

''(2) DEDICATED PERSONNEL AND RESOURCES DEFINED.—In this subsection, 'dedicated personnel

and resources' means personnel and resources that are—

''(A) exclusively engaged in supporting the Chief Acquisition Talent Officer of the Department of Defense in carrying out the responsibilities of the Chief Acquisition Talent Officer of the Department of Defense; and

''(B) under the exclusive authority of the Chief Acquisition Talent Officer of the Department of Defense.

''§ 1703a. Service and Component Chief Acquisition Talent Officers

''(a) IN GENERAL.—The Secretary of each military department and the head of each component of the Department of Defense for which there is a component acquisition executive shall designate a senior official of such military department or component as the Service Chief Acquisition Talent Officer of such military department or the Component Chief Acquisition Talent Officer of such component.

''(b) REPORTING.—

''(1) MILITARY DEPARTMENTS.—A Service Chief Acquisition Talent Officer of a military department designated under subsection (a) shall re-

port to the service acquisition executive of such military department.

''(2) COMPONENTS.—A Component Chief Acquisition Talent Officer of a component of the Department of Defense designated under subsection (a) shall report to the component acquisition executive of such component, except that if such Component Chief Acquisition Talent Officer is the component acquisition executive of such component, such officer shall report to the head of such component with respect to the duties of such Component Chief Acquisition Talent Officer under this section.

''(c) DUTIES.—A Service Chief Acquisition Talent Officer of a military department or Component Chief Acquisition Talent Officer of a component of the Department of Defense designated under subsection (a) shall, subject to the authority, direction, and control of the official to whom such Service Chief Acquisition Talent Officer or Component Chief Acquisition Talent Officer reports under subsection (b)—

''(1) develop, submit to the Chief Acquisition Talent Officer of the Department of Defense, and implement each plan for the acquisition workforce of such military department or component required under section 1703(e) of this title in accordance with

the guidance issued by the Chief Acquisition Talent Officer of the Department of Defense;

''(2) oversee the execution of workforce plans and talent management initiatives for the acquisition workforce of such military department or component in support of the Department-wide acquisition workforce strategy;

''(3) advise the official to whom such Service Chief Acquisition Talent Officer or Component Chief Acquisition Talent Officer reports under subsection (b) on matters relating to the readiness of the acquisition workforce of such military department or component;

''(4) support the service acquisition executive, portfolio acquisition executive, or component acquisition executive in identifying and addressing acquisition workforce requirements necessary to execute acquisition programs and portfolios;

''(5) coordinate with the Chief Acquisition Talent Officer of the Department of Defense on Defense-wide initiatives and programs for the acquisition workforce, including implementation of the Department-wide acquisition workforce strategy;

''(6) support the alignment of education and training for members of the acquisition workforce of

such military department or component to enable the alignment of—

''(A) specific education and training for members of the acquisition workforce with general education and training requirements, including professional military education requirements for members of the armed forces; and

''(B) specific assignment and career development policies related to the civilian members of the acquisition workforce and the members of the acquisition workforce who are members of the armed forces;

''(7) establish hiring priorities and promote the effective use of hiring authorities for the acquisition workforce of such military department or component;

''(8) support the use of the authorities under section 1599g of this title and other mechanisms to strengthen the acquisition workforce of such military department or component through public-private talent exchanges;

''(9) provide to the Under Secretary of Defense for Acquisition and Sustainment data related to the acquisition workforce of such military department or component as required to support the Department-

wide acquisition workforce data analytics capability and workforce planning; and

''(10) perform such other duties as determined appropriate by the official to whom such Service Chief Acquisition Talent Officer or Component Chief Acquisition Talent Officer reports under subsection (b).

''(d) COMPONENT ACQUISITION EXECUTIVE DEFINED.—In this subsection, the term 'component acquisition executive' means the acquisition executive of a component of the Department of Defense, including combatant commands and the Defense Logistics Agency, who is responsible for all acquisition functions of such component, except that such term does not include service acquisition executives.''.

(b) CLERICAL AMENDMENT.—The table of sections of subchapter I of chapter 87 of title 10, United States Code, is amended by inserting after the item relating to section 1702 the following new items:

''1703. Chief Acquisition Talent Officer of the Department of Defense.
''1703a. Service and Component Chief Acquisition Talent Officers.''.

(c) CONFORMING AMENDMENT.—

(1) DEFENSE ACQUISITION UNIVERSITY.—Section 1746(e) of title 10, United States Code, is amended—

(A) by redesignating paragraphs (2) and (3) as paragraphs (3) and (4), respectively; and

(B) by inserting after paragraph (1) the following new paragraph:

''(2) The President of the Defense Acquisition University shall report directly to the Chief Acquisition Talent Officer of the Department of Defense.''.

(2) DEFENSE CIVILIAN AND TRAINING CORPS.—Section 2200g of title 10, United States Code, is amended by adding at the end the following new subsection:

''(d) ADMINISTRATION.—The Chief Acquisition Talent Officer of the Department of Defense shall administer and oversee the Defense Civilian Training Corps program under the authority of the Under Secretary of Defense for Acquisition and Sustainment.''.

(d) IMPLEMENTATION.—

(1) CHIEF ACQUISITION TALENT OFFICER OF THE DEPARTMENT OF DEFENSE.—The Secretary of Defense shall implement section 1703 of title 10, United States Code, as added by subsection (a), not later than one year after the date of the enactment of this Act.

(2) SERVICE AND COMPONENT CHIEF ACQUISITION TALENT OFFICERS.—Each Secretary of a mili-

tary department (as defined in section 101(a) of title 10, United States Code) and each head of a component of the Department of Defense described in subsection (a) of section 1703a of title 10, United States Code, as added by subsection (a), shall implement such section with respect to such military department or component, as applicable, not later than one year after the date of the enactment of this Act.

SEC. 853. CODIFICATION OF ACQUISITION WORKFORCE KEY PERFORMANCE OBJECTIVES.

(a) IN GENERAL.—Section 1722b of title 10, United States Code, is amended—

(1) in subsection (b), by adding at the end the following new paragraph:

''(6) Key performance objectives described in subsection (d).''; and

(2) by adding at the end the following new subsection:

''(d) ACQUISITION WORKFORCE KEY PERFORMANCE OBJECTIVES.—(1) Not later than 180 days after the date of the enactment of this subsection, the Secretary of Defense shall implement mandatory key performance objectives (in this subsection referred to as 'KPOs') for evaluating the performance of civilian members of the acquisition workforce.

''(2) The KPOs implemented under paragraph (1) shall—

''(A) include strategic outcome objectives and workforce behavioral objectives for the workforce; and

''(B) be developed in a manner that enables an assessment of the degree of alignment between—

''(i) the objectives of the defense acquisition system established by section 3102 of this title; and

''(ii) the prudent and appropriate use by civilian members of the acquisition workforce of innovative, risk-tolerant practices in achieving those objectives.

''(3) The strategic outcome objectives required under paragraph (2)(A) shall align with the objectives of the defense acquisition system established pursuant to section 3102 of this title and shall address strategic acquisition mission areas, including—

''(A) expeditiously delivering capabilities to enhance the operational readiness of the armed forces and enable the missions of the Department of Defense;

''(B) enabling and supporting the integration of innovative solutions to enhance military effectiveness and responsiveness to emerging threats;

''(C) ensuring supply chain and industrial base resilience and surge capabilities to support contingency and operational plans of the Department of Defense;

''(D) cultivating a leadership and organizational culture in civilian members of the acquisition workforce that encourages responsible risk-taking, collaboration, and learning through failure; and

''(E) maintaining a current and proficient workforce through continuous education, including digital and artificial intelligence literacy and technical proficiency necessary for the job function of an individual.

''(4) The workforce behavioral objectives required under paragraph (2)(A) shall be designed to develop the critical skills and behaviors of civilian members of the acquisition workforce, including—

''(A) the adoption of innovative acquisition authorities and approaches;

''(B) a preference for commercial products and commercial services and supporting market research of commercial or emerging technologies;

''(C) engagement with end users to incorporate feedback into acquisition decisions and acquisition program adjustments;

''(D) the ability to use iterative development cycles and inform program tradeoffs, including discontinuing or terminating the development of capabilities—

''(i) that no longer align with approved capability requirements (as defined in section 3101 of this title) or priorities; or

''(ii) that are experiencing significant cost growth, performance or technical deficiencies, or delays in schedule;

''(E) the pursuit of professional development to broaden expertise and assume expanded responsibilities in cross-functional initiatives; and

''(F) the ability to overcome obstacles to prioritize end-user outcomes in acquisition execution.

''(5) The KPOs implemented under paragraph (1) shall be integrated into—

''(A) annual performance appraisals for civilian members of the acquisition workforce;

''(B) promotion, bonus, and assignment considerations for such members; and

''(C) requirements for certification, training, and continuing education under this chapter.''.

(b) REPEAL.—Section 826 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60) is repealed.

(c) APPLICATION TO MEMBERS OF THE ARMED FORCES.—Not later than October 1, 2027, the Secretary of Defense, in coordination with the Under Secretary of Defense for Acquisition and Sustainment and the Under Secretary of Defense for Personnel and Readiness, shall submit to the congressional defense committees a report assessing the feasibility and advisability of applying the key performance objectives established under section 1722b(d) of title 10, United States Code (as added by this section), to members of the Armed Forces serving in the acquisition workforce (as defined in section 101 of such title), including recommendations on how such objectives could be appropriately adapted for such members.

SEC. 854. DEMONSTRATED PROFICIENCY REQUIREMENTS FOR CRITICAL ACQUISITION POSITIONS.

Section 1731 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(d) DEMONSTRATED PROFICIENCY REQUIREMENTS.—(1) In addition to the requirements under sec-

tion 1735 of this title, the Secretary of Defense shall require that individuals selected for, and individuals serving in, civilian critical acquisition positions demonstrate appropriate proficiency in achieving the key performance objectives established under section 1722b(d) of this title.

''(2) The Under Secretary of Defense for Acquisition and Sustainment, in coordination with each service acquisition executive and component acquisition executive, shall establish and maintain a Department-wide framework for assessing demonstrated proficiency under this subsection, including methods for evaluating demonstrated proficiency in achieving the performance objectives described in paragraph (1), such as the use of covered authorities in programmatic or operational settings.

''(3) The Secretary shall ensure that the requirements established under this subsection are applied in a manner consistent with the acquisition workforce career field and responsibilities of the position.

''(4) The Secretary may not solely rely on the completion of training requirements of an individual, or any certification or credential earned by an individual, to satisfy the requirements of this subsection.

''(5) The Under Secretary of Defense for Acquisition and Sustainment, in coordination with each service acqui-

sition executive and component acquisition executive, shall use the framework established under paragraph (2) to—

''(A) identify gaps in demonstrated proficiency among individuals selected for, or serving in, critical acquisition positions; and

''(B) ensure that such individuals who do not demonstrate appropriate proficiency are provided targeted and structured professional development opportunities (including experiential learning, training, or other relevant opportunities) to address such gaps.

''(6) The Under Secretary of Defense for Acquisition and Sustainment shall periodically review and update the framework established under paragraph (2) to ensure alignment with the objectives of the defense acquisition system under section 3102 of this title and to adapt such framework to incorporate new acquisition practices and technologies.

''(7) In this subsection, the term 'covered authorities' means the following:

''(A) Chapter 247 of this title.

''(B) Sections 4021 and 4022 of this title.

''(C) Section 3602 of this title.

''(D) Any other acquisition authority, pathway, or method established by the Secretary to enable the

rapid, flexible, or iterative development and delivery of a capability.

''(8) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to modify or supersede any performance management system established under chapter 43 of title 5, United States Code, or to alter any rights or obligations under applicable collective bargaining agreements.''.

SEC. 855. EXTENSION AND MODIFICATION OF ACQUISITION WORKFORCE DEMONSTRATION PROJECT.

(a) INCREASE IN LIMITATION ON NUMBER OF PARTICIPANTS.—Section 1762 of title 10, United States Code, is amended by striking ''130,000'' and inserting ''143,000''.

(b) EXTENSION.—Subsection (g) of such section is amended by striking ''December 31, 2031'' and inserting ''December 31, 2035''.

(c) BRIEFING ON UTILIZATION OF ACQUISITION WORKFORCE DEMONSTRATION PROJECT AUTHORITIES.—Not later than December 1, 2026, the Under Secretary of Defense for Acquisition and Sustainment shall provide a briefing to the congressional defense committees on the planned use of authorities under section 1762 of title 10, United States Code, as amended by this section,

to support the acquisition workforce. Such briefing shall include—

(1) the current number of individuals participating in the acquisition workforce demonstration project under such section 1762, disaggregated by military department and Defense Agency;

(2) expected growth in participation in the demonstration project over the next 24 months, including anticipated and confirmed transitions of organizations or elements into the demonstration project and estimated implementation timelines for such transitions;

(3) an identification of military departments and other elements of the Department of Defense that have expressed interest in expanding participation in the demonstration project or transitioning additional individuals into the demonstration project;

(4) an assessment of the extent to which statutory limitations on the authorities in section 1762 affect workforce planning or use of the authorities;

(5) steps taken to increase and measure average workforce understanding of how contributions scores under the demonstration project are derived;

(6) findings relevant to the demonstration project based on data from tools used to measure

employee satisfaction, such as Defense Organizational Climate Surveys or the Federal Employee Viewpoint Survey; and

(7) recommendations on any additional steps, authorities, or flexibilities the Under Secretary considers necessary to support the development of the acquisition workforce.

Subtitle D—Intellectual Property Matters

SEC. 861. REFORM OF TECHNICAL DATA AND SOFTWARE RIGHTS TO SUPPORT COMPETITION, SUSTAINMENT, AND READINESS.

(a) DEFAULT GOVERNMENT PURPOSE RIGHTS FOR DELIVERABLES.—Chapter 239 of title 10, United States Code, is amended by inserting after section 3775 the following new section:

"§ 3776. Default government purpose rights for deliverables under Department of Defense contracts

''(a) DEFAULT RIGHTS.—Except as provided in subsection (b), any technical data, computer software, or computer software documentation delivered under a contract, subcontract, or other agreement entered into by the Department of Defense shall be provided with government purpose rights unless the contractor establishes, through

clear and convincing evidence, entitlement to more restrictive rights.

''(b) CONTRACTOR BURDEN.—A contractor asserting less-than-government purpose rights shall provide—

''(1) a compliant assertions table identifying each specific item of data or software claimed;

''(2) factual documentation of private development funding;

''(3) clause-specific unlimited-rights exclusions applied at the lowest practicable segregable level; and

''(4) corresponding portion markings on the deliverables.

''(c) FAILURE TO SUBSTANTIATE.—Any failure by a contractor to comply with subsection (b) shall result in the deliverable being treated as provided with government purpose rights.''.

(b) IMPROPER MARKINGS OF CRITICAL ITEMS.—For any critical readiness items of supply (as that term is defined in section 4324(d)(4) of title 10, United States Code) that are noncommercial items, if the Secretary of Defense determines that a contractor—

(1) applied an incorrect restrictive marking;

(2) failed to exclude unlimited- or unrestricted-rights categories;

(3) failed to portion-mark at the required segregable level; or

(4) submitted an incomplete or invalid assertions table;

then all affected technical data, computer software, and documentation shall be deemed as government purpose rights.

(c) REPORT ON CLAWBACK AUTHORITIES FOR IMPROPER RESTRICTIVE MARKINGS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report assessing the feasibility and advisability of establishing a mechanism to recover excess payments made by the Department of Defense in cases where improper restrictive markings, invalid assertions tables, or other unjustified restrictions on technical data, computer software, or computer software documentation contributed to reduced competition or sole-source procurement conditions. The report shall include—

(1) an assessment of the extent to which improper restrictions on technical data or software rights may have resulted in excess costs to the Department;

(2) an evaluation of existing authorities available to recover such excess payments;

(3) an assessment of the legal, contractual, and evidentiary challenges associated with establishing a clawback mechanism;

(4) options for calculating excess payments attributable to improper restrictions on technical data or software rights; and

(5) recommendations regarding whether Congress should authorize a clawback mechanism and, if so, the structure of such authority.

(d) MODIFICATIONS TO RIGHTS IN TECHNICAL DATA.—Section 3771(b) of title 10, United States Code, is amended—

(1) in paragraph (3)(C), by inserting ", and for which the United States shall have government purpose rights, unless the Government and the contractor negotiate different license rights" after "component)"; and

(2) in paragraph (4)(A)—

(A) in clause (ii), by striking "; or" and inserting a semicolon;

(B) by redesignating clause (iii) as clause (iv); and

(C) by inserting after clause (ii) the following new clause:

"(iii) is a release, disclosure, or use of detailed manufacturing or process data—

"(I) that is necessary for operation, maintenance, installation, or training and shall be used only for operation, maintenance, installation, or training purposes supporting wartime operations or contingency operations; and

"(II) for which the head of an agency determines that the original supplier of such data will be unable to satisfy military readiness or operational requirements for such operations; or".

(e) APPLICABILITY.—This section and the amendments made by this section shall apply—

(1) in competitive procurements, to solicitations issued after the date of the enactment of this Act and awards made in connection with such solicitations; and

(2) in non-competitive procurements, to awards made after the date of the enactment of this Act.

SEC. 862. INTELLECTUAL PROPERTY OMBUDSMAN; VOLUNTARY EXPERT MEDIATION FOR CERTAIN INTELLECTUAL PROPERTY MATTERS.

(a) IN GENERAL.—Subchapter III of chapter 275 of title 10, United States Code, is amended by inserting after section 3791 the following new sections:

"§ 3792. Intellectual Property Ombudsman

''(a) DESIGNATION.—(1) The Secretary of Defense, acting through the Assistant Secretary of Defense for Industrial Base Policy, shall designate a senior official, to be known as the Intellectual Property Ombudsman, to serve as ombudsman on matters involving intellectual property acquired or licensed (or proposed to be acquired or licensed) by the Department.

''(2) The Ombudsman shall be a senior official with—

''(A) demonstrated expertise in matters involving intellectual property acquired or licensed (or proposed to be acquired or licensed) by the Department, including the provisions of the Department of Defense Supplement to the Federal Acquisition Regulation that relate to technical data and computer software; and

''(B) at least 5 years of experience on intellectual property matters, of which at least 2 years must have been representing or advising covered contractors of the Department on matters involving intellec-

tual property acquired or licensed (or proposed to be acquired or licensed) by the Government.

''(b) PRESERVATION OF INDEPENDENCE.—(1) The Ombudsman shall serve within the Office of the Assistant Secretary and report directly to the Assistant Secretary, without intervening authority, and shall not report to or receive direction from any military department, agency, combatant command, or other element of the Department.

''(2) The Assistant Secretary may assign to the official serving as Ombudsman other primary or collateral duties to the extent the official remains able to carry out his or her duties as Ombudsman, except that the official—

''(A) may not perform any duty, or engage in any activity, that could compromise his or her independence as Ombudsman; and

''(B) may not advise on, or participate in, any source selection process, except to the extent necessary to carry out his or her duties as Ombudsman.

''(3) The Ombudsman shall not be subject to removal, demotion, or other adverse personnel action based on the substance of any advice, guidance, opinion, or recommendation provided by the Ombudsman to a covered contractor or to a contracting officer or other Department official.

''(c) PERSONNEL AND RESOURCES.—The Assistant Secretary shall ensure that the Ombudsman is provided with personnel and resources sufficient to carry out his or her duties as Ombudsman.

''(d) DUTIES.—(1) The Ombudsman shall, with respect to questions or disputes involving intellectual property acquired or licensed (or proposed to be acquired or licensed) by the Department, including questions or disputes involving rights and obligations relating to the delivery of, or access to, such intellectual property—

''(A) serve as the focal point for assisting covered contractors of the Department on such questions or disputes;

''(B) facilitate communication between covered contractors and appropriate senior officials of the Department on such questions or disputes;

''(C) promote the use of collaborative alternative dispute resolution techniques such as mediation to facilitate the expeditious and cost-effective resolution of such questions or disputes, when appropriate;

''(D) provide guidance to covered contractors and contracting officers with respect to such questions or disputes; and

''(E) upon request of a covered contractor or contracting officer involved in such a question or dispute—

''(i) within 45 days after the request was made—

''(I) obtain from the covered contractor (and any subcontractor involved in the question or dispute) and from the contracting officer information relevant to the question or dispute; and

''(II) complete a review of such information;

''(ii) promptly thereafter, develop and provide guidance to the covered contractor, the contracting officer, or both on matters relevant to the question or dispute, such as—

''(I) relevant laws and regulations and how they apply to the question or dispute;

''(II) alternative approaches to acquisition or licensing that may be available under applicable laws and regulations, such as specifically negotiated licenses (including specially negotiated licenses under section 3774(c) of this title); and

"(III) appropriate valuation of intellectual property under standard industry valuation techniques, including cost, value, capability, market, and income-based techniques; and

"(iii) facilitate communications, and participate in meetings, between the covered contractor and the contracting officer.

"(2) Notwithstanding paragraph (1), the authority of the Ombudsman shall extend only to questions and disputes between covered contractors and the Department, and shall not extend to questions or disputes between or among covered contractors.

"(e) NATURE OF GUIDANCE.—Guidance provided by the Ombudsman under this section—

"(1) may include analyses, opinions, and recommendations;

"(2) shall be independent and neutral with respect to the covered contractor, the contracting officer, and the Government, and

"(3) shall be advisory only and not binding on the covered contractor, the contracting officer, or the Government.

"(f) COMMUNICATIONS BETWEEN CONTRACTOR AND OMBUDSMAN; CONFIDENTIALITY; RESTRICTIONS ON GOV-

ERNMENT.—(1) Any communication between a covered contractor and the Ombudsman, including the fact that such a communication occurred, shall be treated as confidential and shall not be disclosed to any person or entity that is not a party to the question or dispute or does not have an interest in the specific question or dispute without the consent of the covered contractor.

''(2) The Government shall not require a covered contractor to disclose any such communication and shall not use any such communication as a basis for evaluating a proposal, making an award, or challenging a restriction.

''(3) A requirement to publish a copy of, or any other information with respect to, communications between a covered contractor and the Ombudsman shall not apply to the extent such copy (or portion thereof) or information would be subject to withholding from public disclosure under section 552 of title 5.

''(g) INFERENCES.—The decision of a covered contractor to request, or decline to request, assistance from the Ombudsman shall not give rise to any inference regarding the validity of the covered contractor's assertions related to intellectual property and shall not be disclosed or referenced in any validation challenge, litigation, or other legal proceeding.

''(h) CONSULTATION.—The Assistant Secretary shall establish a mechanism for regular consultation with the defense industry, portfolio acquisition executives, program managers, product support managers, and other officials of the Department responsible for sustainment of defense systems regarding the utility and effectiveness of the Ombudsman function and emerging intellectual property issues.

''(i) PUBLIC REPORTING OF STATISTICS.—On an annual basis, the Ombudsman shall make publicly available a report providing statistical information on the assistance specified in subsection (e) that was provided to covered contractors during the annual period covered by the report. The statistical information shall be presented in an aggregated or anonymized format and shall include information on the number of requests, the nature of requests, the nature of the contractors (such as small business concerns), the disposition of the requests, and the number of days from receipt of request to final disposition of the request.

''(j) REPORTS TO CONGRESS.—On an annual basis, the Ombudsman shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the activities performed during the annual period covered by the report, including any recommendations

for changes in law, regulation, policy, procedure, or practice that the Ombudsman considers appropriate.

''(k) DEFINITIONS.—In this section—

''(1) the term 'covered contractor' includes a contractor or subcontractor (or prospective contractor or subcontractor); and

''(2) the term 'subcontractor' includes a subcontractor at any tier.

"§ 3792a. Rights in covered data: voluntary expert mediation

''(a) ESTABLISHMENT AND AVAILABILITY OF PROCESS.—The Secretary of Defense shall establish an expert mediation process under this section and shall make that process available to covered contractors and contracting officers to facilitate the resolution of questions or disputes related to covered data.

''(b) MATTERS ADDRESSED.—The process established under subsection (a) may be used to address any intellectual property matters relevant to the resolution of the question or dispute, including matters such as the following:

''(1) The scope, terms, or interpretation of any relevant agreement with respect to the intellectual property.

''(2) The scope of the rights acquired or licensed (or proposed to be acquired or licensed) by the Government in the intellectual property.

''(3) To the extent the Government's rights in intellectual property are insufficient, or perceived as insufficient, to meet the Department's identified requirement, any matters necessary to address the insufficiency.

''(4) To the extent the intellectual property involves more than one covered contractor, any matters necessary to address the respective rights of the Government and each such contractor.

''(c) AVAILABILITY AND EFFECT.—The process established under subsection (a) shall be available whenever a question or dispute covered by subsection (a) has arisen, including before, during, or after a procurement and before, during, or after the administration of a contract. It shall be available without regard to, and without effect on, any other dispute resolution processes that may be available, and without tolling any periods or deadlines under any other dispute resolution processes or under any applicable statute of limitations.

''(d) PARTICIPATION IS VOLUNTARY.—Participation in the process established under subsection (a) shall be strictly voluntary, both on the part of the contracting offi-

cer and on the part of the covered contractor, except as provided in subsection (h).

''(e) INITIATION AND PARTICIPATION.—(1) Within 10 days after receiving a request under this subsection, a party shall submit to the other party a written response either accepting or declining the request.

''(2) A party submitting a written request to initiate, or any written response accepting such a request, shall include facts supporting the position of the party that the requirements of paragraphs (1) and (2) of subsection (a) are met.

''(3) If the request to initiate is accepted, a panel shall be established under subsection (f) and mediation shall commence under subsection (g).

''(f) ESTABLISHMENT OF PANEL.—(1) Mediation under the process established under subsection (a) shall be conducted by a panel established under this subsection.

''(2) The Secretary may use existing authorities, including those in paragraphs (2), (3), (4), and (6) of section 1707(d) of this title, to establish the panel.

''(3) The panel shall be composed of three members, each of whom shall be an individual with—

''(A) at least 5 years of experience in alternative dispute resolution; and

''(B) demonstrated expertise in at least two of the following areas: intellectual property law, patent licensing, government contracts data rights, technical data classification, and software licensing.

''(4) Of the three members—

''(A) one shall be selected by the covered contractor and shall have significant experience in intellectual property or data rights matters;

''(B) one shall be selected by the Department and shall have significant experience in intellectual property or data rights matters in government contracts, such as through service as a contracting officer, agency counsel, board of contract appeals judge, or Court of Federal Claims judge; and

''(C) one shall be selected by the other two members and shall serve as the panel chair.

''(5) If the question or dispute involves the valuation of intellectual property, the member selected under paragraph (4)(C) shall have significant experience with standard industry valuation techniques, including cost, market, and income.

''(6) An individual may not serve as a member of the panel if that individual has a financial interest in the outcome or any other conflict of interest that would undermine impartiality.

''(7) In a case in which there is a vacancy in the membership of the panel, a new member of the panel shall be selected as soon as practicable to fill the vacancy in accordance with paragraph (4).

''(g) MEDIATION PERIOD.—The panel shall be established as soon as practicable and shall commence the mediation not later than 30 days after the date on which the panel is established, except to the extent the parties agree to a later date. The mediation shall end not later than 90 days after the date on which the mediation commenced, except to the extent the parties agree to a later date.

''(h) EFFECT OF MEDIATION SETTLEMENT OR PANEL RECOMMENDATIONS.—(1) Except as provided in paragraphs (2) and (4), the results of the mediation shall be advisory only and shall not be binding on either party.

''(2) To the extent the parties reach a resolution, the parties shall memorialize the resolution in a settlement agreement, which shall be binding upon the parties. Any such agreement shall—

''(A) be executed by the contracting officer and an authorized representative of the covered contractor;

''(B) specifically reference the mediation; and

''(C) be incorporated into any applicable contract by modification.

''(3) To the extent the parties do not reach a full resolution—

''(A) either party may pursue any remedy otherwise available under chapter 71 of title 41 or other applicable law; and

''(B) the mediation shall not be deemed to have resolved the dispute for purposes of chapter 71 of title 41.

''(4) In a case in which the request to initiate the mediation regarding a contract entered into after the date of the enactment of this section was made by the Department and no resolution is reached, the following shall apply:

''(A) The panel may recommend to the Secretary of Defense that the covered contractor with rights in the subject covered data be required to provide non-deliverable access to such covered data if—

''(i) the panel finds that access to such covered data is necessary—

''(I) to address a critical operational requirement;

''(II) to meet a critical materiel readiness objective for a major weapon system (as established in accordance with section 118 of this title); or

"(III) to address a shortfall in a critical readiness item of supply (as defined in section 4324 of this title) or recurring insufficiency of supply that the responsible contractor has failed to remedy in response to a corrective action plan developed in accordance with section 4323 of this title; and

"(ii) the requirement for such covered data was reviewed under section 805 of the National Defense Authorization Act for Fiscal Year 2026 (10 U.S.C. 3771 note) and an insufficiency was identified under subsection (d) of such section.

"(B) Such a recommendation—

"(i) shall ensure release rights consistent with commercially reasonable terms and conditions (subject to later definitized consideration to reflect development at private expense); and

"(ii) may include a right to release to a covered government support contractor (as defined in section 3775 of this title)—

"(I) subject to a prohibition that the covered government support contractor to which the data is released may not further release, disclose, or use the covered data

beyond the purpose for which it was released; and

"(II) subject to notice by the contracting officer to the covered contractor of any such release.

"(C) If the Secretary approves the recommendation, the recommendation shall be binding on the covered contractor and the Department, subject to the availability of appropriations. The parties shall memorialize the recommendation in a settlement agreement, as described in paragraph (2). To the extent the recommendation does not reach a full resolution of the dispute, paragraph (3) shall apply.

"(i) CONFIDENTIALITY; PROTECTION OF INFORMATION.—(1) The mediation shall be conducted in accordance with section 574 of title 5.

"(2) Each member of the panel shall—

"(A) sign a nondisclosure agreement, as appropriate, to protect proprietary or nonpublic data;

"(B) access and use proprietary or nonpublic data furnished to the panel only for the purposes of the mediation;

"(C) take all reasonable steps to protect proprietary and nonpublic data furnished to the panel; and

''(D) not use proprietary or nonpublic data furnished to the panel to compete for Government or nongovernment contracts.

''(j) DEFINITIONS.—In this section—

''(1) the term 'covered contractor' includes a contractor or subcontractor;

''(2) the term 'covered data' means technical data and computer software required to enable the Department of Defense or government authorized repair contractors performing under a support contract, to perform repair or maintenance actions on a covered system;

''(3) the term 'covered system' means—

''(A) a major defense acquisition program, as defined in section 4201 of this title; or

''(B) an acquisition program or project that is carried out using the rapid prototyping or rapid fielding acquisition pathway under section 3602 of this title that is estimated by the Secretary of Defense to require an eventual total expenditure described in section 4201(a)(2) of this title;

''(4) the term 'non-deliverable access' means a model under which the contractor provides access to

intellectual property, including any associated license agreements for such intellectual property; and

''(5) the term 'subcontractor' includes a subcontractor at any tier.''.

(b) IMPLEMENTATION.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall—

(1) implement sections 3792 and 3792a of title 10, United States Code, as inserted by this section;

(2) provide a briefing to the congressional defense committees on the implementation of such sections; and

(3) submit to the congressional defense committees an assessment of, and recommendations for, pay and compensation under current law to provide competitive compensation for the Intellectual Property Ombudsman established under section 3792 of title 10, United States Code, as inserted by this Act.

(c) ANNUAL REPORT.—

(1) IN GENERAL.—Not later than March 1, 2028, and each of the next five years thereafter, the Under Secretary of Defense for Acquisition and Sustainment shall submit to the congressional defense committees an annual report on the effectiveness of the Intellectual Property Ombudsman estab-

lished under section 3792 of title 10, United States Code, as inserted by this Act, and the mediation process established under section 3792a of title 10, United States Code, as inserted by this Act, on—

(A) encouraging prime contractors and subcontractors of the Department of Defense to quickly and equitably resolve disputes with the Department concerning intellectual property in order to address critical operational readiness issues;

(B) encouraging contractors to leverage privately-funded innovation and offer their full range of relevant technologies when competing for and performing defense contracts;

(C) improving clarity for both Department and contractor personnel regarding rights in technical data, computer software, and computer software documentation during the procurement process;

(D) resolving data rights disputes more rapidly and collaboratively than through litigation, while protecting contractors' legitimate investments in privately funded innovation; and

(E) expeditiously addressing the Department's national security, sustainment, and competitive procurement needs.

(2) RECOMMENDATIONS.—The report required by paragraph (1) shall also include recommendations by the Under Secretary to address any gaps in statute, regulation, or policy that undermine the Department's ability to access technical data necessary for maintenance and sustainment, asserting existing rights, or protecting interests in intellectual property, and any other recommendations the Under Secretary considers appropriate.

SEC. 863. EXPANSION OF REVERSE ENGINEERING AUTHORITY FOR PROTOTYPE PROJECTS.

Subsection (f)(5)(B) of section 4022 of title 10, United States Code, as redesignated by section 823, is amended by striking ''to address obsolescence''.

SEC. 864. CLARIFICATIONS TO SUSTAINMENT PLANNING REQUIREMENTS FOR COVERED SYSTEMS.

(a) INTELLECTUAL PROPERTY MANAGEMENT PLAN.—Section 4324(b)(1)(D) of title 10, United States Code, is amended to read as follows:

''(D) An intellectual property management plan for product support developed in accordance with section 3774 of this title, including—

"(i) requirements for technical data, software, and modular open system approaches (as defined in section 4401 of this title);

"(ii) a method to obtain technical data and license rights necessary for maintenance, repair, and overhaul of the covered system before the Milestone B approval (or equivalent approval); and

"(iii) a method to satisfy all other aspects of sustainment for the covered system before the Milestone C approval (or equivalent approval) in accordance with the product support strategy described in subparagraph (A).".

(b) LONG-TERM TECHNICAL DATA NEEDS.—Section 3774 of title 10, United States Code, is amended—

(1) in subsection (a)(1)—

(A) in subparagraph (A), by striking "and" at the end;

(B) in subparagraph (B), by striking the period at the end and inserting "; and"; and

(C) by adding at the end the following new subparagraph:

"(C) include in any contract solicitation for such a system or subsystem requirements relating to technical data and license rights nec-

essary for sustainment of the system or subsystem.''; and

(2) in subsection (b)—

(A) by redesignating paragraphs (2), (3), and (4) as paragraphs (3), (4), and (5) respectively; and

(B) by inserting after paragraph (1) the following:

''(2) be developed in accordance with the intellectual property management plan described in section 4324(b)(1)(D) of this title.''.

SEC. 865. SOFTWARE ACCOUNTABILITY IMPROVEMENTS OVER LIFECYCLES.

(a) SOFTWARE SUSTAINMENT FRAMEWORK.—Section 4324(b)(1) of title 10, United States Code, is amended by adding at the end the following new subparagraph:

''(G) A software sustainment framework that—

''(i) defines metrics for software-enabled elements, including patch currency, vulnerability remediation timelines, and version lifecycle status; and

''(ii) provides for periodic review of such metrics.''.

(b) LIFE-CYCLE SUSTAINMENT PLANNING BY PRODUCT SUPPORT MANAGERS.—Section 4324(b)(2) of title 10, United States Code, is amended—

(1) in subparagraph (D), by striking ''and'' at the end;

(2) in subparagraph (E), by striking the period at the end and inserting a semicolon; and

(3) by adding at the end the following new subparagraphs:

''(F) maximize software-enabled solutions that reduce unanticipated growth work during maintenance cycles; and

''(G) maximize the use of consumption-based solutions as described in section 3605 of this title.''.

(c) RESPONSIBILITIES OF PORTFOLIO ACQUISITION EXECUTIVES.—Section 1732(c) of title 10, United States Code, is amended—

(1) in paragraph (7), by striking ''and'' at the end;

(2) in paragraph (8), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following new paragraph:

''(9) establish incentives for effective use by contractors of software-enabled solutions that ex-

pand the collection of decision-quality data to reduce unanticipated growth work during maintenance cycles or expedite the construction or procurement of capabilities.''.

(d) RESPONSIBILITIES OF PRODUCT SUPPORT MANAGERS.—Section 1733(d) of title 10, United States Code, is amended—

(1) by redesignating paragraphs (4) through (9) as paragraphs (5) through (10), respectively;

(2) by redesignating the second paragraph (3) (relating to ''Adopting predictive analytics'') as paragraph (4); and

(3) by adding at the end the following new paragraph:

''(11) Maximizing the qualification, approval, integration, and adoption of advanced technologies and processes.''.

SEC. 866. ASSESSMENT OF A PAY-TO-PRINT PROGRAM.

(a) ASSESSMENT.—The Secretary of Defense shall assess the feasibility and utility of establishing a Department of Defense-wide program to be known as the ''Pay-to-Print Program'' for the purposes of—

(1) increasing the availability of parts in any supply chains of a weapon system of the Department of Defense;

(2) reducing manufacturing time or costs of such parts; and

(3) increasing the ability to rapidly scale production of such parts.

(b) ELEMENTS.—In conducting the assessment required by subsection (a), the Secretary of Defense shall—

(1) identify such parts included in a program, project, or activity in a portfolio assigned under the leadership of a portfolio acquisition executive that could be produced by Government personnel or covered Government support contractors via additive manufacturing processes;

(2) review technical standards, qualification processes, design templates, contracting methods, and policies and determine if any changes are necessary to ensure the feasibility of establishing the Pay-to-Print Program;

(3) review methods of data access and methods to track the use of the data for the Pay-to-Print Program, and identify any lessons learned or best practices that could be implemented for the Pay-to-Print Program;

(4) identify funding authorities and mechanisms necessary to establish the Pay-to-Print program; and

(5) identify any other considerations for the implementation of the Pay-to-Print Program, as determined by the Secretary.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate an update on the assessment required by subsection (a).

(d) RULE OF CONSTRUCTION.—Nothing in this section shall preclude the Secretary of Defense from establishing a pay-to-print program before the submission of the report required in subsection (c).

(e) DEFINITIONS.—In this section:

(1) The term ''pay-to-print'' means a business approach where the customer pays a fee to access the original equipment manufacturer's digital design file for the purpose of printing a physical product using additive manufacturing processes.

(2) The term ''portfolio acquisition executive'' has the meaning given in section 1732 of title 10, United States Code.

(3) The term ''covered Government support contractor'' has the meaning given in section 3775 of title 10, United States Code.

SEC. 867. PRIORITIZING MAINTENANCE, REPAIR, AND OVERHAUL FOR READINESS.

Section 4323 of title 10, United States Code, is amended to read as follows:

"§ 4323. Continuous sustainment review and analysis

''(a) REVIEW REQUIRED.—The Secretary of Defense shall require each Secretary concerned to conduct an assessment, updated not less frequently than annually, of the performance of each major weapon system and each critical readiness item of supply against established operational readiness requirements and the materiel readiness objectives under section 118(c) of this title.

''(b) ANALYSIS OF DEFICIENCIES.—For any major weapon system or critical readiness item of supply that fails to meet the requirements and objectives described in subsection (a), the Secretary concerned shall evaluate the applicable life-cycle sustainment plan (in accordance with section 4324 of this title) or other sustainment plan, as appropriate. If the Secretary concerned determines such a plan does not effectively meet the requirements and objectives at an affordable cost, the Secretary shall conduct a root cause analysis to determine the reasons and to identify the specific parts, services, software, and corresponding intellectual property required to meet the requirements and objectives.

''(c) CORRECTIVE ACTION PLAN.—(1) Upon completion of a root cause analysis under subsection (b), the Secretary concerned shall develop and maintain a corrective action plan to address deficiencies identified by such analysis.

''(2) In developing and executing the corrective action plan, the Secretary concerned shall, to the maximum extent practicable, first seek to resolve any identified deficiencies through existing contractual and statutory authorities, including—

''(A) authorities described in subchapter I of chapter 275 of this title, to exercise an option, modify an existing contract or agreement, or enter into negotiations with a covered contractor for a covered system, including—

''(i) providing the covered contractor with the opportunity to submit an alternative corrective action plan to identify, qualify and secure other sources for the required parts, services, software, and intellectual property; and

''(ii) entering into another contract or agreement, or modifying an existing contract or agreement, with the covered contractor to create, develop, and validate technical instructions and procedures; or

''(B) the use of alternative sources, including advanced manufacturing, reverse engineering, re-engineering, or fabrication of parts by Government personnel or covered Government support contractors (as defined in section 3775 of this title).

''(3)(A) The Secretary concerned shall consider seeking assistance from the Intellectual Property Ombudsman (established in accordance with section 3792 of this title) in developing and implementing the corrective action plan if questions or disputes arise involving intellectual property acquired or licensed (or proposed to be acquired or licensed) by the Department for a major weapon system or critical readiness item of supply assessed under subsection (a), including questions or disputes involving rights and obligations relating to the delivery of, or access to, such intellectual property.

''(B) If such questions or disputes are not resolved through assistance from the Intellectual Property Ombudsman, the Secretary concerned shall consider submitting a written request for expert mediation in accordance with section 3792a of this title.

''(d) SUBMISSION TO CONGRESS.—(1) Not later than five days after the date on which the budget of the President is submitted to Congress pursuant to section 1105 of title 31, each Secretary concerned, in coordination with

the Under Secretary of Defense for Acquisition and Sustainment, shall submit to the congressional defense committees a report that includes the following:

''(A) Findings from the assessments required by subsection (a).

''(B) A description of how such assessments informed the submission of materials to Congress required by section 118(c)(2) of this title and the development of the future-years defense program required by section 221 of this title.

''(C) For a covered system which has been declared to meet initial operational capability, and that for two consecutive calendar years has failed to meet established materiel readiness objectives for materiel availability or operational availability (as such terms are defined, respectively, in section 118 of this title), such report shall include—

''(i) an identification of factors contributing to such failure; and

''(ii) a corrective action plan described in subsection (c), including any updates to a previously submitted corrective action plan.

''(D) A summary of actions taken by the Secretary to ensure that each covered system of the military department under the jurisdiction of the

Secretary meets the applicable operational readiness requirements and materiel readiness objectives in the most cost-effective manner practicable.

''(2) The report required by this subsection shall be submitted in unclassified form, but may include a classified annex.

''(3) For each report, the Secretary concerned shall make a summary of the report publicly available on an appropriate website of the Department of Defense not later than 60 days after the date on which it is submitted to the congressional defense committees unless the Secretary concerned, in coordination with the Under Secretary of Defense for Acquisition and Sustainment, determines that it is not feasible to make a summary publicly available due to classification or other security concerns. Upon making such a determination, the Secretary concerned shall submit to the congressional defense committees a written notification of the determination, including a detailed explanation of the security concerns and the reasons why those concerns cannot feasibly be addressed by redaction or other means.''.

Subtitle E—Other Matters

SEC. 871. ENHANCEMENT TO DEFENSE SUPPLY CHAIN RESILIENCE AND SECONDARY SOURCE QUALIFICATION.

(a) STREAMLINED ACCEPTANCE.—In implementing section 865 of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. 4811 note), the Secretary of Defense shall establish a pathway to streamline and consolidate the approval authority of the process established under such section for applications for Source Approval Requests submitted by the manufacturer of record for such capability.

(b) APPLICABILITY.—The pathway established by subsection (a) shall apply in cases where—

(1) a qualified engineering designee has certified in writing that the engineering data included in the applicable Source Approval Request, including the technical data package, conforms to the applicable technical data package or reverse engineering standards; and

(2) the applicant, or the relevant majority-owned manufacturing subsidiary of such applicant, holds a current AS9100 Rev D certification (or successor standard) issued by an accredited third-party certification body.

(c) EXPEDITED QUALIFICATION.—

(1) ACCEPTANCE OF CERTIFICATION.—Except as provided in paragraph (2), an Expedited Qualification Panel established under subsection (f) of such section 865 shall accept a certification made under subsection (b) as the full engineering evaluation necessary for the review of a Source Approval Request by the Expedited Qualification Panel.

(2) ADDITIONAL EVALUATION.—An Expedited Qualification Panel may determine in writing that additional engineering evaluation of a Source Approval Request is required based on safety or mission criticality, novelty, or complexity of the item. Such a determination shall be provided to the applicant not later than 14 days after such applicant submits such Source Approval Request, along with a request from the Expedited Qualification Panel for any additional information needed from the application to complete the expedited qualification process.

SEC. 872. TAILORED ACQUISITION PATHWAYS FOR NON-TRADITIONAL INTERMEDIATE-RANGE FIRES CAPABILITIES.

(a) TAILORED PATHWAYS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army, acting through the Army Portfolio Acquisi-

tion Executive for Fires (the ''Portolio Acquisition Executive''), shall tailor and employ existing acquisition pathways to accelerate the development, testing, evaluation, and procurement of non-traditional intermediate-range fires capabilities, including affordable intermediate-range one-way attack munitions.

(b) ELEMENTS.—

(1) IN GENERAL.—The pathways tailored under subsection (a) shall enable rapid development, testing, evaluation, and procurement of intermediate-range, affordable, attritable, and autonomous fires capabilities outside of traditional, legacy munitions.

(2) CAPABILITIES.—The characteristics of the capabilities referred to in paragraph (1) may include—

(A) operational ranges relevant to combatant command requirements;

(B) low-cost munitions and the associated deployment and launch system, payloads, autonomy software, and associated support;

(C) autonomy solutions and collaborative mission software enabling resilience to operate in denied, degraded, intermittent, and limited communications and Global Positioning System-denied environments;

(D) interoperability and iterative characteristics that enable incremental development and field-swappable payloads and support competition for upgrades, sustainment, and follow-on production;

(E) ability for deployment and operations with minimal specialized infrastructure, including in austere environments.

(F) a deployment system capacity, power needs, and integration with existing logistics and fires platforms;

(G) demonstrated producibility and scalable manufacturing, including identification of achievable monthly and annual production rates and the constraints to scaling; and

(H) commercial off-the-shelf components and manufacturing processes to reduce cost and enable production at scale.

(3) AUTHORITIES.—To the greatest extent practicable, the pathways tailored under subsection (a) shall leverage existing, alternative acquisition authorities and pathways, such as other transaction authority, rapid prototyping and rapid fielding pathways, middle tier acquisition pathways, and any new or modified acquisition methods available to the

Army and identified by the Portfolio Acquisition Executive.

(4) INTEGRATION.—The Secretary shall ensure integration across stakeholders and may formalize partnerships between and among the Army, the Defense Innovation Unit, and the Office of the Under Secretary of Defense for Acquisition and Sustainment to accelerate capability integration.

(5) MITIGATION OF RISKS.—The Secretary shall identify and mitigate long-lead risks, including test range access, airworthiness and safety certification processes, and supply-chain constraints associated with intermediate-range attritable munitions.

(6) TRANSITION CONSIDERATIONS.—The Secretary shall consider funding and resource needs, requirements, and opportunities to transition evolving prototypes into programs of record or enduring portfolio elements, including strategies for transitioning from research, development, test, and evaluation to procurement.

(7) CO-PRODUCTION ARRANGEMENTS.—The Secretary may consider co-production arrangements with trusted allies and partners to establish secondary production lines, subject to applicable technology security and foreign disclosure requirements

and provided that such arrangements do not undermine required rights and deliverables for modular system interfaces and government integration.

(8) AUTONOMOUS OR SEMI-AUTONOMOUS WEAPON SYSTEMS.—The Secretary shall ensure that any autonomous or semi-autonomous weapon system is developed, verified, validated, tested, and fielded consistent with Department of Defense policy on autonomy in weapon systems, including appropriate levels of human judgment over the use of force, rigorous verification and validation, and realistic developmental and operational test and evaluation.

(9) SOFTWARE.—The Secretary shall consider establishing software test and digital engineering infrastructure approaches based on commercial best practices that software-in-the-loop and hardware-in-the-loop test infrastructure to enable continuous validation of autonomy and mission software and integration.

(c) PORTFOLIO ALIGNMENT.—The Secretary shall determine whether such capabilities are best pursued as—

(1) a new start program within the fires portfolio;

(2) an expansion or modification of an existing effort; or

(3) an Army-wide cross-portfolio initiative under the authority of the Portolio Acquisition Executive.

(d) COORDINATION WITH JOINT FORCE REQUIREMENTS.—Pathways tailored under this section shall align with joint force operational needs for intermediate-range fires, including complementary employment with existing capabilities such as hypersonic systems, cruise missiles, and other precision fires.

(e) BRIEFING.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall provide a briefing to the congressional defense committees detailing—

(1) the acquisition pathways tailored under this section;

(2) the capabilities prioritized;

(3) anticipated timelines for prototype demonstration and initial limited operational capability; and

(4) a recommended funding profile for fiscal years 2027 through 2031.

(f) DEFINITION.—In this section, the term ''intermediate-range'' means having a range between 3,000 and 5,500 kilometers.

SEC. 873. PILOT PROGRAM FOR DOMESTIC ANTIMONY AND COPPER PRODUCTION FOR DEFENSE APPLICATIONS.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall establish a pilot program to support the recovery of antimony and copper as byproducts of mineral production in the United States.

(b) ELEMENTS.—The pilot program required by subsection (a) shall include methods—

(1) to evaluate multiple processes and techniques for recovery of antimony and copper as byproducts of mineral production;

(2) to develop process design plans necessary for scaling recovery of antimony and copper to demonstration-level production;

(3) to generate sample material for independent testing to verify suitability for defense applications; and

(4) to produce qualified antimony material that meets specifications provided by the Defense Logistics Agency.

(c) CONTRACTING AUTHORITY.—The Secretary may enter into contracts, cooperative agreements, or other transactions with appropriate entities to implement the pilot program required by subsection (a).

(d) REPORT TO CONGRESS.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, and annually thereafter for four years, the Secretary shall submit to the congressional defense committees a report on the status and findings of the pilot program required by subsection (a).

(2) ELEMENTS.—Each report required by paragraph (1) shall include—

(A) a summary of the progress made under the pilot program required by subsection (a) with respect to recovery and processing of antimony and copper;

(B) technical and economic assessments with respect to such recovery; and

(C) recommendations for expanding domestic antimony and copper production and reducing dependency on foreign sources of antimony and copper.

(e) TERMINATION.—The pilot program required by subsection (a) shall terminate not later than five years after the date of the enactment of this Act.

SEC. 874. ADDRESSING THE BACKLOG OF OPEN CASES RELATED TO THE DEFENSE FEDERAL ACQUISITION REGULATION SUPPLEMENT.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Under Secretary of Defense for Acquisition and Sustainment, acting through the Principal Director for Defense Pricing, Contracting, and Acquisition Policy, shall establish a team of experts in acquisition regulations to assist in a process of promulgating and implementing regulations to resolve the backlog of open cases related to the Department of Defense Supplement to the Federal Acquisition Regulation (commonly known as the ''DFARS'').

(b) DUTIES.—The team of experts described in subsection (a) shall be assigned to assist in all aspects of the process described in subsection (a), including drafting proposed and final rules, managing the public comment process, and any other tasks as directed by the Under Secretary.

(c) ADMINISTRATION.—

(1) IN GENERAL.—In order to achieve the purpose set forth in subsection (a), the Under Secretary shall ensure that the team of experts described in subsection (a) has the appropriate number of staff and such staff possesses the necessary skills, knowledge, and experience to carry out the duties de-

scribed in subsection (b), including in relevant areas of regulatory process, contracting, acquisition, and law. The Under Secretary may use existing authorities to staff the team, including those in paragraphs (2), (3), and (4).

(2) CIVILIAN PERSONNEL.—Civilian personnel from within the Office of the Secretary of Defense, Joint Staff, military departments, Defense Agencies, and combatant commands may be assigned to serve as members of the team of experts described in subsection (a), upon request of the Under Secretary.

(3) HIGHLY QUALIFIED EXPERTS.—The Under Secretary may use the authorities for highly qualified experts under section 9903 of title 5, to hire members of the team of experts described in subsection (a).

(4) CONTRACTS.—The Under Secretary may enter into a contract with a private-sector entity for specialized expertise to support the team of experts described in subsection (a). Such entity may be considered a covered Government support contractor, as defined in section 3775(a) of title 10, United States Code.

(d) FUNDING.—The Under Secretary is authorized to use amounts in the Defense Acquisition Workforce Devel-

opment Fund for the purpose of paying salaries of members of the team of experts described in subsection (a) for the life of the team.

(e) EXPIRATION.—The authority to maintain the team of experts established under section (a) shall expire on the earlier of—

(1) the date on which the Under Secretary determines there is no open case in the backlog described in subsection (a) of open cases related to the DFARS that—

(A) implements a requirement imposed by statute; and

(B) has been open for more than 180 days after the date of the enactment of the statute imposing the requirement; or

(2) the date that is three years after the date on which the Under Secretary establishes the team of experts described in subsection (a).

(f) BRIEFINGS.—

(1) INITIAL BRIEFING.—Not later than 60 days after the date of the enactment of this Act, the Under Secretary shall provide a briefing to the congressional defense committees outlining the strategy and methodology that will be used to establish the team of experts described in subsection (a) and the

strategy and methodology to be used to reduce the backlog described in subsection (a) of open cases related to the DFARS.

(2) PROGRESS BRIEFINGS.—Not later than 30 days after the date of the briefing required by paragraph (1), and at least once in every 30-day period thereafter, the Under Secretary shall provide a briefing to the congressional defense committees on the progress made by the team of experts described in subsection (a) in reducing the backlog described in subsection (a) of open cases related to the DFARS. The requirement for briefings under this paragraph shall terminate with the first briefing that occurs after the expiration date under subsection (e).

SEC. 875. LIMITATION ON AVAILABILITY OF FUNDS FOR PURCHASE OF PHOTOVOLTAIC CELLS, MODULES, OR INVERTERS FROM FOREIGN ENTITIES OF CONCERN.

(a) LIMITATION.—Except as provided in subsection (b), none of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of Defense may be used to enter into a contract for the procurement of photovoltaic cells, modules, or inverters manufactured by a foreign entity of concern (as defined in section 9901(8) of the William M.

(Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (15 U.S.C. 4651(8))).

(b) WAIVER AUTHORITY.—The Secretary of Defense may waive subsection (a) if the Secretary—

(1) determines that there is no alternative source of photovoltaic cells, modules, or inverters other than from a foreign entity of concern;

(2) determines there is no national security risk posed by the use of photovoltaic cells, modules, or inverters manufactured by a foreign entity of concern; and

(3) submits a certification of such determination in writing to the congressional defense committees not later than 30 days before entering into a contract described under such subsection.

(c) APPLICABILITY.—

(1) IN GENERAL.—Subsection (a) shall not apply to a contract involving any third party financing arrangements, including energy savings contracts and those involving privatized military housing or assets that enhance combat capability.

(2) DELAYED EFFECTIVE DATE FOR ASSETS THAT ENHANCE COMBAT CAPABILITY.—The limitation under subsection (a) shall not apply to assets

that enhance combat capability for a period of one year following the date of the enactment of this Act.

(d) EXEMPTION FOR CERTAIN ACTIVITIES.—The limitation under subsection (a) shall not apply if the procurement is for the purposes of intelligence, electronic warfare, or information warfare operations, testing, analysis, and training.

SEC. 876. ENSURING DEPARTMENT OF DEFENSE CONTRACTOR COMPLIANCE WITH DISABILITY HIRING GOALS.

(a) IN GENERAL.—For each of fiscal years 2027 through 2030, the Secretary of Defense shall conduct an audit of the compliance of the contractors of the Department of Defense with the 7-percent utilization goal for employment of qualified individuals with disabilities by contractors established by the Office of Federal Contract Compliance Programs of the Department of Labor under section 503 of the Rehabilitation Act of 1973 (29 U.S.C. 793).

(b) REPORTS.—Not later than 5 months after the end of a fiscal year for which the Secretary of Defense was required to conduct an audit under subsection (a), the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the findings of such audit.

SEC. 877. EXPEDITED IMPLEMENTATION OF COMMERCIAL ACQUISITION REFORMS.

(a) PRIORITIZATION REQUIRED.—The Secretary of Defense shall ensure the Principal Director for Defense Pricing, Contracting, and Acquisition Policy prioritizes the issuance of regulations, guidance, class deviations, or other implementation materials necessary to successfully implement sections 1821 through 1828 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 1245 et seq.).

(b) INTERIM IMPLEMENTATION.—Not later than 60 days after the date of the enactment of this Act, the Secretary shall issue, to the extent practicable, interim guidance, class deviations, or other temporary implementation instructions necessary to ensure that the policies reflected in sections 1821 through 1828 of the National Defense Authorization Act for Fiscal Year 2026 are applied pending completion of final regulations.

(c) FINAL REGULATIONS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall issue final regulations in the Department of Defense Supplement to the Federal Acquisition Regulation necessary to carry out sections 1821 through 1828 of the National Defense Authorization Act for Fiscal Year 2026.

(d) IMPLEMENTATION SCHEDULE AND BRIEFING.—Not later than 60 days after the date of the enactment

of this Act, the Secretary shall submit to the congressional defense committees a briefing that includes—

(1) a list of each Department of Defense Supplement to the Federal Acquisition Regulation case, Defense Acquisition Regulations Council action, class deviation, guidance document, or other implementation action associated with sections 1821 through 1828 of the National Defense Authorization Act for Fiscal Year 2026;

(2) the current status of each such action;

(3) the expected date for issuance of any proposed rule, interim rule, final rule, class deviation, or guidance document;

(4) a description of any legal, policy, or resource impediment to timely implementation; and

(5) the actions the Secretary is taking to ensure that implementation of such sections reduces barriers to the participation of nontraditional defense contractors, commercial suppliers, and small businesses in Department of Defense acquisitions.

(e) LIMITATION ON AVAILABILITY OF FUNDS.—Of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Office of the Secretary of Defense for travel expenses, not more than 50 percent may be obligated or expended until

the Secretary issues interim implementation instructions as required by subsection (b).

SEC. 878. ELIMINATION OF USE OF CERTAIN PAYMENT PROCESSING EQUIPMENT, SYSTEMS, OR SERVICES.

(a) REVIEW.—Not later than 180 days after the date of the enactment of this section, the Secretary of Defense shall complete a review of all retailers to determine if such retailers use covered equipment, systems, or services as a substantial or essential component of the performance of a contract to provide payment processing equipment, systems, or services for the Department of Defense.

(b) GUIDANCE.—Not later than 90 days after completing the review required by subsection (a), the Secretary of Defense shall issue guidance prohibiting the use of covered equipment, systems, or services by a retailer in a contract with the Department of Defense. Such policy and guidance shall direct the modification or termination of such a contract unless the retailer for such contract ceases use of covered equipment, systems, or services in a timely manner.

(c) PROHIBITION.—Effective January 1, 2027, the Secretary of Defense may not enter into a contract for payment processing equipment, systems, or services with a retailer that uses covered equipment, systems, or serv-

ices as a substantial or essential component of the performance of such contract.

(d) REPORT.—Not later than one year after the date of the enactment of this section, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a written report on the implementation on the requirements of this section.

(e) DEFINITIONS.—In this section:

(1) The term ''country of concern'' means—

(A) China;

(B) Russia;

(C) the Islamic Republic of Iran;

(D) North Korea; and

(E) any other country designated by the Secretary of Defense, as posing a significant risk to the national security of the United States.

(2) The term ''covered equipment, system, or service''—

(A) means a payment processing equipment, system, or service for which the application processor, source code, secure processor, or secure firmware is directly or indirectly developed, manufactured, provided, owned, controlled, or operated by—

(i) an entity organized under the laws of a country of concern;

(ii) an entity owned or controlled by the government of a country of concern;

(iii) an entity subject to the direction, jurisdiction, or control of the government, military, or intelligence services of a country of concern;

(iv) any subsidiary, affiliate, or successor entity of an entity described in clauses (i) through (iii); or

(v) an entity that the Secretary of Defense reasonably believes to be an entity owned or controlled by, or otherwise connected entity owned or controlled by a country of concern; and

(B) includes payment processing equipment, systems, or services substantially comprised of components, software, or technology supplied by an entity described in any of clauses (i) through (v) of subparagraph (A).

(3) The term ''electronic fund transfer''—

(A) means any transfer of funds, other than a transaction originated by check, draft, or similar paper instrument, which is initiated

through an electronic terminal (as defined in section 903 of the Electronic Fund Transfer Act (15 U.S.C. 1693a)), telephone, or computer or magnetic tape so as to order, instruct, or authorize a financial institution to debit or credit an account; and

(B) includes point-of-sale transfers, automated teller machine transactions, and direct deposits or withdrawals of funds from an account.

(4) The term ''payment processing equipment, system, or service'' means—

(A) a card, code, or other means of access to a consumer's account, or any combination thereof, that may be used by the consumer to initiate electronic fund transfers; or

(B) an electronic device, other than a telephone operated by a consumer, through which a consumer may initiate an electronic fund transfer.

(5) The term ''retailer'' has the meaning given in section 4664 of title 10, United States Code.

SEC. 879. REPORT ON SUPPLY OF RARE EARTH MATERIALS AND ELEMENTS.

Not later than one year after the date of enactment of this Act, the Secretary of Defense, in coordination with the Secretary of the Interior, shall submit to Congress a report on the supply of rare earth materials and elements extracted, processed, and refined from secure sources of supply to develop and produce advanced technologies of the Department of Defense.

SEC. 880. REPORT ON CONTRACTORS SEEKING COMPENSATORY RELIEF FROM INFLATION.

(a) FINDINGS; SENSE OF CONGRESS.—

(1) FINDINGS.—Congress makes the following findings:

(A) During the COVID-19 pandemic, Department of Defense contractors faced historic inflation for goods and services they provided to the Department of Defense after signing initial firm-fixed price contracts.

(B) In the amendments made to Public Law 85–804 (50 U.S.C. 1431) by section 822 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263) and in section 826 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 10 U.S.C. note

prec. 4601), Congress provided increased flexibility to the Department of Defense to modify contracts to provide extraordinary relief due to the effects of inflation.

(C) Despite such authority, numerous contractors still incurred increased costs for multi-year projects and seek economic price adjustments to stay solvent.

(2) SENSE OF CONGRESS.—It is the sense of Congress that the Department of Defense should reimburse low- to mid-tier suppliers for increased production costs caused from inflation to avoid disincentivizing their participation in Government contracting.

(b) REPORT.—Not later than June 1, 2027, the Secretary of Defense shall submit to the congressional defense committees a report on the plan of the Department to rectify legal claims from contractors that seek compensatory relief from inflation.

SEC. 881. OVERSIGHT OF DEPARTMENT OF DEFENSE COMPLIANCE WITH CERTAIN REQUIREMENTS FOR DOMESTIC FOOD SUPPLY CHAINS.

(a) AUDITS.—Not later than 90 days after the date of the enactment of this Act, and on a quarterly basis thereafter, the Inspector General of the Department of

Defense shall conduct an audit to determine the extent of compliance with the requirements of section 4862 of title 10, United States Code, with respect to the procurement of items described in subsection (b)(1)(A) of such section.

(b) REPORTS TO CONGRESS.—Not later than 60 days after the conclusion of each audit under subsection (a), the Inspector General shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report containing the results of such audit.

TITLE IX—DEPARTMENT OF DEFENSE ORGANIZATION AND MANAGEMENT

SEC. 901. TRANSFER OF RESPONSIBILITY TO SUPERVISE ACTIVITIES OF DEPARTMENT OF DEFENSE RELATING TO EXPORT CONTROLS.

(a) RESPONSIBILITY OF UNDER SECRETARY OF DEFENSE FOR POLICY.—Section 134(b) of title 10, United States Code, is amended—

(1) by striking paragraph (3); and

(2) by redesignating paragraphs (4) and (5) as paragraphs (3) and (4), respectively.

(b) RESPONSIBILITY OF UNDER SECRETARY OF DEFENSE FOR ACQUISITION AND SUSTAINMENT.—Section 133b(b) of title 10, United States Code, is amended—

(1) in paragraph (9) by striking ''and'' at the end;

(2) in paragraph (10) by striking the period at the end and inserting ''; and''; and

(3) by inserting after paragraph (10) the following new paragraph:

''(11) the responsibility for supervising and directing activities of the Department of Defense relating to export controls.''.

SEC. 902. MEMBERSHIP OF COMMANDANT OF THE COAST GUARD ON THE JOINT CHIEFS OF STAFF.

(a) MEMBERSHIP ON THE JOINT CHIEFS OF STAFF.—Section 151(a) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(9) The Commandant of the Coast Guard.''.

(b) APPOINTMENT OF CHAIRMAN; GRADE AND RANK.—Section 152 of such title is amended—

(1) in subsection (b)(1)(B) by striking ''or the Chief of Space Operations'' and inserting ''the Chief of Space Operations, or the Commandant of the Coast Guard''; and

(2) in subsection (c), by striking ''Navy'' and inserting ''Navy or Coast Guard''.

(c) VICE CHAIRMAN.—Section 154(f) of such title is amended by striking ''Navy'' and inserting ''Navy or Coast Guard''.

(d) INCLUSION ON THE JOINT STAFF.—Section 155(a) of such title is amended—

(1) in paragraph (2)—

(A) in the matter preceding subparagraph (A), by striking ''(other than the Coast Guard)'';

(B) in subparagraph (B), by striking ''and'' at the end;

(C) in subparagraph (C), by striking the period at the end and inserting ''; and''; and

(D) by adding at the end the following new subparagraph:

''(D) the Coast Guard.''; and

(2) in paragraph (3), by striking ''Secretary of the military department having jurisdiction over that armed force'' and inserting ''Secretary concerned''.

(e) DUTIES AS MEMBER OF JOINT STAFF.—Section 302 of title 14, United States Code, is amended—

(1) by striking ''The President may'' and inserting the following:

''(a) The President may''; and

(2) by adding at the end the following new subsection:

''(b)(1) The Commandant of the Coast Guard shall also perform the duties prescribed for the Commandant as a member of the Joint Chiefs of Staff under section 151 of title 10.

''(2) To the extent that such action does not impair the independence of the Commandant in the performance of the Commandant's duties as a member of the Joint Chiefs of Staff, the Commandant shall inform the Secretary of the department in which the Coast Guard is operating regarding military advice rendered by members of the Joint Chiefs of Staff on matters affecting such department.

''(3) Subject to the authority, direction, and control of the Secretary of Defense, the Commandant shall keep the Secretary of the department in which the Coast Guard is operating fully informed of significant military operations affecting the duties and responsibilities of such Secretary.''.

SEC. 903. OVERSIGHT OF GEOGRAPHIC COMBATANT COMMANDS.

Section 916(a) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat.

1022) is amended by inserting ''or fiscal year 2027'' after ''fiscal year 2026''.

SEC. 904. COAST GUARD INPUT TO THE JOINT REQUIREMENTS OVERSIGHT COUNCIL.

Section 181(d) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(6) INPUT FROM COMMANDANT OF COAST GUARD.—The Council shall seek, and strongly consider, the views of the Commandant of the Coast Guard regarding Coast Guard capabilities in support of national defense.''.

SEC. 905. ELIGIBILITY OF CHIEF OF THE NATIONAL GUARD BUREAU FOR APPOINTMENT AS CHAIRMAN OF THE JOINT CHIEFS OF STAFF.

Section 152(b)(1)(B) of title 10, United States Code, as amended by section 902 of this title, is further amended by striking ''or the Commandant of the Coast Guard'' and inserting ''the Commandant of the Coast Guard, or the Chief of the National Guard Bureau''.

TITLE X—GENERAL PROVISIONS

Subtitle A—Financial Matters

SEC. 1001. GENERAL TRANSFER AUTHORITY.

(a) AUTHORITY TO TRANSFER AUTHORIZATIONS.—

(1) AUTHORITY.—Upon determination by the Secretary of Defense that such action is necessary in the national interest, the Secretary may transfer amounts of authorizations made available to the Department of Defense in this division for fiscal year 2027 between any such authorizations for that fiscal year (or any subdivisions thereof). Amounts of authorizations so transferred shall be merged with and be available for the same purposes as the authorization to which transferred.

(2) LIMITATION.—Except as provided in paragraph (3), the total amount of authorizations that the Secretary may transfer under the authority of this section may not exceed $6,000,000,000.

(3) EXCEPTION FOR TRANSFERS BETWEEN MILITARY PERSONNEL AUTHORIZATIONS.—A transfer of funds between military personnel authorizations under title IV shall not be counted toward the dollar limitation in paragraph (2).

(b) LIMITATIONS.—The authority provided by subsection (a) to transfer authorizations—

(1) may only be used to provide authority for items that have a higher priority than the items from which authority is transferred;

(2) may not be used to provide authority for an item that has been denied authorization by Congress; and

(3) may not be used to reduce the total amount of authorizations available for facilities sustainment, restoration, and modernization projects for military unaccompanied housing (as defined in section 2871 of title 10, United States Code) or military child development centers (as defined in section 1800 of such title) (commonly known as ''Quality of Life Infrastructure'').

(c) EFFECT ON AUTHORIZATION AMOUNTS.—A transfer made from one account to another under the authority of this section shall be deemed to increase the amount authorized for the account to which the amount is transferred by an amount equal to the amount transferred.

(d) NOTICE TO CONGRESS.—The Secretary shall promptly notify Congress of each transfer made under subsection (a).

SEC. 1002. ANNUAL REPORT ON UNFUNDED PRIORITIES OF DEFENSE POW/MIA ACCOUNTING AGENCY.

Chapter 9 of title 10, United States Code, is amended by inserting after section 234 the following new section:

"§ 235. Unfunded priorities of Defense POW/MIA Accounting Agency: annual report

''(a) REPORTS.—Not later than 10 days after the date on which the budget of the President for a fiscal year is submitted to Congress pursuant to section 1105 of title 31, the Director of the Defense POW/MIA Accounting Agency shall submit to the Secretary of Defense and the Chairman of the Joint Chiefs of Staff, and to the congressional defense committees, a report on the unfunded priorities of the Defense POW/MIA Accounting Agency.

''(b) ELEMENTS.—(1) Each report under subsection (a) shall specify, for each unfunded priority covered by such report, the following:

''(A) A summary description of such priority, including the objectives to be achieved if such priority is funded (whether in whole or in part).

''(B) The additional amount of funds recommended in connection with the objectives under subparagraph (A).

''(C) Account information with respect to such priority, including the following (as applicable):

''(i) Line Item Number for applicable procurement accounts.

''(ii) Program Element number for applicable research, development, test, and evaluation accounts.

''(iii) Sub-activity group for applicable operation and maintenance accounts.

''(2) Each report under subsection (a) shall present the unfunded priorities covered by such report in order of urgency of priority.

''(c) UNFUNDED PRIORITY DEFINED.— In this section, the term 'unfunded priority', in the case of a fiscal year, means a program, activity, or mission requirement of the POW/MIA Accounting Agency that—

''(1) is not funded in the budget of the President for the fiscal year as submitted to Congress pursuant to section 1105 of title 31, United States Code;

''(2) is necessary to fulfill a requirement associated with an operational or contingency plan of a combatant command or other validated requirement; and

''(3) would have been recommended for funding through the budget referred to in paragraph (1) by the Director of the POW/MIA Accounting Agency in connection with the budget if additional resources had been available for the budget to fund the program, activity, or mission requirement.''.

SEC. 1003. EQUIVALENCY STANDARDS FOR FINANCIAL MANAGEMENT POSITIONS.

(a) EQUIVALENCY STANDARDS.—Section 1599d of title 10, United States Code, is amended—

(1) by redesignating subsections (b) through (f) as subsections (c) through (g), respectively;

(2) by inserting after subsection (a) the following new subsection (b):

''(b) EQUIVALENCY STANDARDS.—(1) The Secretary shall include, as part of the standards prescribed under subsection (a), equivalency standards for financial management positions that are applicable across the Department. Such equivalency standards shall include—

''(A) an identification of any test-based professional certification or credential issued by an authority other than the Department that the Secretary recognizes as satisfying, in whole or in part, a standard prescribed under subsection (a);

''(B) an identification of any training or other requirement of the Department for financial management positions required for persons holding a professional certification or credential recognized pursuant to subparagraph (A); and

''(C) rules to prevent duplicative requirements of the Department for such positions with respect to such persons.

''(2) On a basis that is not less frequent than annually, the Secretary shall review the equivalency standards under paragraph (1) and update such standards as may be necessary to reflect changes in the professional certifications or credentials recognized pursuant to such paragraph or modifications to the requirements of the Department for financial management positions.''; and

(3) in subsection (e), as so redesignated, by inserting '', and shall establish, review, and update the equivalency standards under subsection (b),'' after ''standards under subsection (a)''.

(b) DEADLINE FOR INITIAL ESTABLISHMENT.—The Under Secretary of Defense (Comptroller) shall establish the equivalency standards required under section 1599d(b) of title 10, United States Code, as amended by subsection (a), by not later than 180 days after the date of enactment of this Act.

SEC. 1004. COMPLIANCE WITH PAYMENT INTEGRITY INFORMATION ACT REQUIREMENTS AND STRENGTHENING IMPROPER PAYMENTS DETECTION.

(a) REQUIREMENT.—Not later than September 30, 2027, the Under Secretary of Defense (Comptroller) shall take such corrective actions as may be necessary to achieve full compliance by the Department of Defense with

requirements under the Payment Integrity Information Act of 2019 (Public Law 116–117; 31 U.S.C. 3301 note), consistent with the recommendations contained in the report of the Inspector General of the Department of Defense Report titled ''Audit of the Department of Defense's FY 2024 Compliance with Payment Integrity Information Act Requirements'' (DODIG-2025-105) and published on May 27, 2025, including by—

(1) conducting required risk assessments for each program subject to such requirements; and

(2) publishing improper and unknown payment estimates for such programs.

(b) NOTIFICATION.—Not later than September 30, 2027, the Under Secretary of Defense (Comptroller) shall submit to the congressional defense committees a notification outlining the following:

(1) The corrective actions taken to meet the requirement under subsection (a).

(2) Any such corrective action remaining outstanding, including a timeline for the completion of such action.

(c) AUDIT BY INSPECTOR GENERAL.—Not later than May 30, 2028, the Inspector General of the Department of Defense shall complete an updated audit of compliance by the Department of Defense with requirements under

the Payment Integrity Information Act of 2019 (Public Law 116–117; 31 U.S.C. 3301 note), including a certification of compliance with the requirement under subsection (a).

(d) BRIEFING.—Not later than September 30, 2027, the Under Secretary of Defense (Comptroller) shall provide to the congressional defense committees a briefing on strengthening the recovery audit program of the Department of Defense. Such briefing shall include the following:

(1) An assessment of the use, and effectiveness, of the improper payment detection tool of the Department of Defense Advanced Analytics (ADVANA) platform for the detection and prevention of improper payments, as well as each action taken to address high-risk programs.

(2) Comprehensive data on improper payments and recoveries in fiscal years 2025 through 2026.

(3) An identification of any additional resources or authorities necessary to strengthen the detection of improper payments.

SEC. 1005. AUTHORITY TO ESTABLISH JOINT TASK FORCE AUDIT.

(a) IN GENERAL.—Section 1005 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 137 Stat. 379; 10 U.S.C. 240a note) is amended

by inserting ''and for three consecutive fiscal years thereafter'' after ''2028''.

(b) AUTHORITY TO ESTABLISH.—In order to support the goal of achieving an unmodified financial statement audit opinion by December 31, 2028, the Secretary of Defense may establish a task force, to be known as ''Joint Task Force Audit''. If the Secretary establishes the task force, the Secretary shall designate the Under Secretary of Defense (Comptroller) as the Director of the task force.

(c) RESPONSIBILITIES.—If the Secretary establishes a task force under subsection (b), the task force shall be authorized to carry out the following responsibilities:

(1) The development and oversight of the execution of the plan of the Department of Defense to achieve an unmodified financial statement audit opinion by not later than December 31, 2028, and for three consecutive fiscal years thereafter.

(2) The approval, direction, and monitoring of performance on corrective action plans needed to obtain such an unmodified financial statement audit opinion.

(3) The provision of support to components of the Department in order to prioritize audit remediation and audit response activities.

(4) Leading and supporting engagement with the Inspector General of the Department, the Federal Accounting Standards Advisory Board, other appropriate Federal agencies, and any independent public accounting firms on matters pertaining to the audits of the financial statements of the Department.

(5) Coordinating with the Chief Information Officer of the Department on financial system modernization initiatives and the elimination of legacy or duplicative financial systems.

(d) STAFFING.—If the Secretary establishes a task force under subsection (b), the Secretary of each military department may designate a representative to serve as a Deputy Director of the task force.

(e) REPORTS.—If the Secretary establishes a task force under subsection (b), the Director of the task force shall be responsible for meeting the reporting requirements under section 240b(b) of title 10, United States Code, in a complete and timely manner.

SEC. 1006. BUDGET TRANSPARENCY FOR ARMY MULTI-DOMAIN TASK FORCE AND MARINE LITTORAL REGIMENT.

(a) CONSOLIDATED BUDGET DISPLAYS.—In the budget justification materials submitted in support of the

budget of the Department of Defense (as submitted with the budget of the President under section 1105(a) of title 31, United States Code) for fiscal year 2028 and each fiscal year thereafter until fiscal year 2032, the Secretary of the Army and the Secretary of the Navy shall each include a consolidated budget display identifying, with respect to the covered formations of the military department concerned—

(1) the number of personnel authorized to be assigned, and the number of personnel assigned, to such covered formations; and

(2) the amounts of operation and maintenance funding requested for the training and readiness of such covered formations.

(b) REPORTS.—Not later than March 1, 2027, and annually thereafter until September 30, 2032, the Secretary of the Army and the Secretary of the Navy shall each submit to the congressional defense committees a report on the covered formations of the military department concerned. Each such report shall include—

(1) an identification of the number of personnel authorized to be assigned, and the number of personnel assigned, to such covered formations;

(2) an identification of the equipment necessary for full operational capability of such covered forma-

tions, versus the equipment available to such covered formations;

(3) a description of the status of fielding for long-range fires, air defense, sensing, and command and control capabilities for such covered formations;

(4) projected timelines for such covered formations achieving initial operational capability and full operational capability;

(5) a detailed assessment of operational risks to such covered formations resulting from any identified constraint on readiness, including any such constraint relating to funding, personnel, equipment, training, the industrial base, or supply chains; and

(6) a description of measures to mitigate any risk assessed pursuant to paragraph (5) and resources necessary to restore such covered formations to full operational capability.

(c) DEFINITIONS.—In this section:

(1) The term ''Army multi-domain task force'' means a formation of the Army designated as such a task force and organized for the conduct of multi-domain operations in support of joint force employment and the operational plans of the commanders of the combatant commands.

(2) The term ''covered formation'' means an Army multi-domain task force or a Marine Littoral Regiment.

(3) The term ''Marine Littoral Regiment'' means a formation of the Marine Corps designated as such a regiment and organized for the conduct of littoral and expeditionary operations in contested maritime environments in support of the operational plans of the commanders of the combatant commands.

(4) The term ''military department concerned'' means—

(A) the Army, with respect to submissions by the Secretary of the Army; and

(B) the Marine Corps, with respect to submissions by the Secretary of the Navy.

SEC. 1007. DEPARTMENT OF DEFENSE SPENDING REDUCTIONS IN ABSENCE OF SUBMITTED FINANCIAL STATEMENTS OR FAILURE TO ACHIEVE UNQUALIFIED OR QUALIFIED INDEPENDENT AUDIT OPINION.

(a) APPLICABILITY.—

(1) IN GENERAL.—Subject to paragraph (2), this section applies to the Department of Defense,

including military departments and Defense Agencies thereof.

(2) SEPARATE APPLICABILITY.—If a military department or Defense Agency is identified by the Director of the Office of Management and Budget as required to have its own audited financial statement under section 3515 of title 31, United States Code, that military department and Defense Agency shall be treated separately from the Department of Defense for purposes of application of this section.

(b) ADJUSTMENTS FOR FINANCIAL ACCOUNTABILITY.—

(1) IN GENERAL.—On March 2 of each fiscal year, the discretionary budget authority available for the Department of Defense (or a military department or Defense Agency covered by subsection (a)(2)) for such fiscal year shall be adjusted as provided in paragraph (2).

(2) ADJUSTMENT.—If the Department of Defense (or a military department or Defense Agency covered by subsection (a)(2)) has not submitted a financial statement for the previous fiscal year, or if such financial statement has not received either an unqualified or a qualified audit opinion by an independent external auditor, the discretionary budget

authority available for the Department of Defense, the military department, or the Defense Agency (as the case may be) shall be reduced by .5 percent, with the reduction applied proportionately to each account (other than an account listed in subsection (d) or an account for which a waiver is made under subsection (d)).

(3) MINIMIZES NATIONAL SECURITY EFFECTS.—Consistent with applicable laws, the Secretary of Defense may make any reduction under paragraph (2) in a manner that minimizes any effect on national security.

(4) DEFICIT REDUCTION.—An amount equal to the total amount of any reduction under paragraph (2) shall be retained in the general fund of the Treasury for the purposes of deficit reduction.

(c) ACCOUNTS EXCLUDED.—The following accounts are excluded from any reductions referred to in subsection (b)(2):

(1) Military personnel, reserve personnel, and National Guard personnel accounts of the Department of Defense.

(2) The Defense Health Program account of the Department of Defense.

(d) WAIVER.—The President may waive subsection (b)(2) with respect to an account if the President certifies that applying the subsection to that account would harm national security or members of the Armed Forces who are deployed in combat zones.

(e) REPORT.—Not later than 60 days after the date on which an adjustment is made under subsection (b), the Director of the Office of Management and Budget shall submit to Congress a report that includes a description of the amount and account of each adjustment.

(f) DEFINITIONS.—In this section:

(1) The terms ''financial statement'' and ''external independent auditor'' have the meanings given those terms in section 3521(e) of title 31, United States Code.

(2) The term ''unqualified'', with respect to the audit status of a financial statement, includes the characterizations clean and unmodified.

(3) The term ''qualified'', with respect to the audit status of a financial statement, includes the characterization modified.

SEC. 1008. OTHER TRANSACTION AUTHORITY REPORTING.

Any project carried out by the Department of Defense using other transaction authority under section 4021 of title 10, United States Code, shall be reported in the

same manner as other Department of Defense expenditures for inclusion in the searchable public website established by the Federal Funding Accountability and Transparency Act of 2006 (31 U.S.C. 6101 note; Public Law 109–282).

SEC. 1009. USE OF TECHNOLOGY USING ARTIFICIAL INTELLIGENCE TO FACILITATE AUDIT OF THE FINANCIAL STATEMENTS OF THE DEPARTMENT OF DEFENSE FOR FISCAL YEAR 2026.

(a) USE OF AI TECHNOLOGY FOR AUDITS.—The Secretary of Defense, the Secretary of the Army, the Secretary of the Navy, and the Secretary of the Air Force shall encourage, to the greatest extent practicable, the use of technology that uses artificial intelligence or machine learning for the purpose of facilitating audits of the financial statements of the Department of Defense.

(b) IMPLEMENTATION OF AI TECHNOLOGY FOR AUDITS.—The Director of the Chief Digital and Artificial Intelligence Office of the Department, in coordination with the Under Secretary of Defense for Research and Engineering and the Inspector General of the Department, shall oversee the adoption of artificial intelligence and machine learning technologies in support of financial management and enterprise business operations.

Subtitle B—Naval Vessels and Shipyards

SEC. 1011. MODIFICATION OF AUTHORITY TO PURCHASE USED VESSELS WITH NATIONAL DEFENSE SEALIFT FUND.

(a) EXCLUSION OF VESSELS BUILT IN CHINA.—

(1) EXCLUSION.—Subsection (f)(3) of section 2218 of title 10, United States Code, is amended—

(A) in subparagraph (A), by striking ''any used vessel, regardless of where such vessel was constructed'' and inserting ''any used vessel (other than an excluded vessel), regardless of where such vessel was constructed,''; and

(B) in subparagraph (B), by inserting ''(other than an excluded vessel)'' after ''a used vessel''.

(2) DEFINITION OF EXCLUDED VESSEL.—Subsection (k) of such section is amended by adding at the end the following new paragraph:

''(6) The term 'excluded vessel' means a vessel that was—

''(A) constructed or substantially modified in the People's Republic of China; or

''(B) built by a Chinese military company or a Chinese owned or controlled entity.''.

(b) REQUIREMENT FOR PURCHASE OF TWO NEW UNITED STATES-CONSTRUCTED VESSELS FOR EACH FOREIGN-CONSTRUCTED USED VESSEL PURCHASED IN EXCESS OF 12.—Subparagraph (C) of paragraph (3) of subsection (f) of such section is amended to read as follows:

''(C) For each foreign-constructed vessel purchased by the Secretary under the authority of this paragraph in excess of 12, the Secretary shall contract for the purchase of two new vessels each of which is to be constructed in a shipyard located in the United States.''.

(c) CLARIFYING AMENDMENT.—Such paragraph is further amended in subparagraph (D) by striking ''subparagraph (A)'' and inserting ''this paragraph''.

(d) REPEAL OF OBSOLETE PROVISION.—Such paragraph is further amended—

(1) by striking subparagraph (E); and

(2) by redesignating subparagraph (F) as subparagraph (E).

(e) REPEAL OF 30-DAY NOTICE-AND-WAIT PERIOD BEFORE CERTAIN PURCHASES MAY BE FINALIZED.—Such paragraph is further amended by striking subparagraph (G).

(f) TECHNICAL AMENDMENTS TO UPDATE CITATIONS.—Such section is further amended—

(1) in subsection (d)(3), by striking ''(10 U.S.C. 8661 note)'' and inserting ''(Public Law 101–510; 10 U.S.C. 8661 note)''; and

(2) in subsections (f)(2) and (k)(2)(A), by striking ''Public Law 101–510 (104 Stat. 1683)'' and inserting ''the National Defense Authorization Act for Fiscal Year 1991 (Public Law 101–510; 10 U.S.C. 8661 note)''.

SEC. 1012. REQUIREMENT FOR PROCUREMENT OF COMPONENTS FOR NAVAL VESSELS FROM MANUFACTURERS IN NATIONAL TECHNOLOGY AND INDUSTRIAL BASE.

(a) ADDITIONAL PROCUREMENT LIMITATION.—Section 4864(a)(2) of title 10, United States Code, is amended by adding at the following new subparagraphs:

''(G) Auxiliary equipment, including pumps, for all shipboard services.

''(H) Propulsion system components, including engines, shafting, reduction gears, and propellers.

''(I) Shipboard cranes.

''(J) Spreaders for shipboard cranes.

''(K) Air circuit breakers.

''(L) Auxiliary chill water systems.''.

(b) APPLICABILITY.—The amendments made by subsection (a) shall apply with respect to contracts entered into on or after the date of the enactment of this Act.

SEC. 1013. SETTLEMENT OF ADMIRALTY CLAIMS AGAINST THE UNITED STATES.

Section 7802 of title 10, United States Code, is amended—

(1) in subsection (b), by striking ''$500,000'' both places it appears and inserting ''$1,000,000''; and

(2) in subsection (c), by striking ''$100,000'' and inserting ''$500,000''.

SEC. 1014. AMPHIBIOUS FLEET FORCE STRUCTURE.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the requirement of the Navy and Marine Corps to develop and consistently project three amphibious ready groups and the accompanying marine expeditionary units is foundational to the force sizing construct of the Department of the Navy;

(2) the Secretary of the Navy should obtain the expected service life of the amphibious ships and require the Navy to rigidly adhere to the direction provided by section 8678a of title 10, United States Code;

(3) similar to the analysis conducted on extending the submarine force structure, a comprehensive assessment of all LSD-41 and LSD-49 class dock landing ships should be conducted to assess the viability of extending such ships beyond their expected service life;

(4) the budget of the President submitted to Congress under section 1105(a) of title 31, United States Code, should consistently support a comprehensive service life extension program of the Wasp-class amphibious assault ships and fully resource mid-life maintenance of the San Antonio-class amphibious transport dock ships;

(5) the Optimized Fleet Response Plan Force generation construct of the Navy, as operating as of the date of the enactment of this Act, sub-optimizes the ability to project amphibious readiness groups; and

(6) the Navy should adopt an alternative force generation model that expands the ability to maintain a continuous 3.0 amphibious ready group/marine expeditionary unit presence capable of deploying additional amphibious readiness groups.

(b) ANNUAL RISK ASSESSMENT.—Section 8026 of title 10, United States Code, is amended—

(1) by inserting ''(a) IN GENERAL.—'' before ''The Secretary'';

(2) by adding at the end the following new subsection:

''(b) RISK ASSESSMENT.—(1) Not later than March 15 of each year, the Commandant of the Marine Corps shall submit to the Committees on Armed Services of the Senate and House of Representatives an assessment of the risks associated with amphibious forces, which shall be known as the 'Amphibious Forces Risk Assessment of the Commandant'. Each such risk assessment shall include, for the year covered by the assessment, each of the following:

''(A) An identification and definition of each level of risk, including the determination of the Commander of what constitutes 'significant' risk.

''(B) For each category of risk identified, an assessment of the extent to which the degree of risk is expected to increase, decrease, or remain stable as a result of budgetary priorities, tradeoffs, and fiscal constraints or limitations based on the most recent future-years defense program under section 221 of this title.

''(2) Each risk assessment under this subsection shall be submitted in unclassified form, but may contain a classified annex.''.

(c) NUMBER OF AMPHIBIOUS WARFARE SHIPS.—Section 8062 of title 10, United States Code, is amended—

(1) in subsection (b), by striking ''31'' and inserting ''33'';

(2) in subsection (e)(4), by striking '' scheduled maintenance and repair actions to maintain the minimum number of available amphibious warfare ships to meet operational requirements.'' and inserting ''the required number of amphibious war ships to achieve a 3.0 amphibious ready group/marine expeditionary unit presence, as determined pursuant to the Global Force Management Implementation Guidance and the certification of the Vice Chairman of the Joint Chiefs of Staff of the marine expeditionary unit presence requirement.''

(d) MODIFICATION OF AMPHIBIOUS WARFARE SHIPS.—Section 2244a(b) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(4) EXCEPTION FOR AMPHIBIOUS WARFARE SHIPS.—The prohibition in subsection (a) does not

apply to a modification to an amphibious warfare ship (as such term is defined in section 8062(h) of this title) during any of fiscal years 2027 through 2034.''.

(e) SAN ANTONIO-CLASS MAINTENANCE PLAN.—Not later than September 30, 2027, the Secretary of the Navy shall submit to the congressional defense committees a mid-life maintenance plan for San Antonio-class amphibious transport dock ships class.

(f) REPORTING REQUIREMENTS.—Not later than March 1, 2027, the Secretary of the Navy shall submit to the congressional defense committees the following reports:

(1) A report containing an assessment of all LSD-41 and LSD-49 class dock landing ships and, for each such vessel, an identification of options to extend the service life of the vessel.

(2) A report on options for the comprehensive development of a modernization program that includes a service-life extension plan for Wasp-class amphibious assault ships and a mid-life maintenance plan for San Antonio-class amphibious transport dock ships. Such report shall include, for each such option, an assessment of—

(A) the overall timing of the application of such option each Wasp-class amphibious assault ship and San Antonio-class amphibious transport dock ship and whether such timing coincides with the optimal service life extension option for the ship;

(B) specific modernization program objectives for each class of ship;

(C) the amount of funding required to carry out the modernization program; and

(D) the capability of the defense industrial base to support the modernization program.

SEC. 1015. ARMAMENT OF NAVAL AUXILIARY VESSELS.

(a) IN GENERAL.—Chapter 863 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 8699. Armament of naval auxiliary vessels

''(a) IN GENERAL.—(1) Except as provided under paragraph (2), the Secretary of the Navy shall ensure, to the maximum extent practicable, that each naval auxiliary vessel operated by the Military Sealift Command and designated as a United States Naval Ship is equipped with defensive armament sufficient to provide for the self-defense of the vessel against air, surface, and asymmetric threats in contested environments.

''(2) The requirement under paragraph (1) does not apply to a vessel that is designated as a hospital ship and is protected from attack or capture under the Convention (II) for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea done at Geneva August 12, 1949.

''(b) MINIMUM CAPABILITIES.—Armament provided pursuant to subsection (a) may include, at the discretion of the Secretary, any of the following:

''(1) Close-in weapon systems or equivalent point-defense systems.

''(2) Crew-served weapons and stabilized naval gun systems.

''(3) Counter-unmanned aerial system capabilities.

''(4) Electronic warfare and decoy systems.

''(5) Modular or containerized weapon systems capable of rapid installation and scaling across classes of vessels.

''(c) MANNING AND TRAINING.—The Secretary shall ensure that each vessel equipped pursuant to subsection (a) is—

''(1) provided with adequately trained personnel to operate and maintain the armament provided to the vessel; and

''(2) integrated, as appropriate, with Navy reserve or other augmentation forces for wartime operations.''.

(b) DEADLINE FOR IMPLEMENTATION.—The Secretary shall—

(1) begin implementation of section 8699 of title 10, United States Code, as added by subsection (a), by not later than 180 days after the date of the enactment of this Act; and

(2) in implementing such section, prioritize vessels supporting forward-deployed or contested logistics operations.

(c) REPORT.—Not later than 120 days after the date of the enactment of this Act, the Secretary of the Navy shall submit to the congressional defense committees a report that includes—

(1) a prioritized list of naval auxiliary vessels to be equipped with armament pursuant to section 8699 of title 10, United States Code, as added by subsection (a);

(2) recommended weapon systems for each class of vessel;

(3) cost estimates and installation timelines for providing such armament;

(4) manning and training requirements for each such vessel pursuant to subsection (c) of such section; and

(5) any legislative or regulatory barriers to the implementation of such section.

SEC. 1016. ADDITIONAL MEASURES FOR NAVY STRATEGY FOR INVESTMENT IN AND SUPPORT FOR THE MARITIME INDUSTRIAL BASE.

Section 1019 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 1032; 10 U.S.C. 8661 note) is amended—

(1) in subsection (a), by striking ''programs'' and inserting ''and sustainment''; and

(2) by adding at the end the following new subsection:

''(d) ADDITIONAL MEASURES.—Not later than 180 days after the date of the National Defense Authorization Act for Fiscal Year 2027, the Secretary shall include each of the following measures in the strategy required under subsection (a):

''(1) Measures to determine a total cost and schedule for investments needed to enhance the performance of the submarine industrial base to the extent to which it can support the production of one Columbia class submarine and two Virginia class

submarines each year and improve in-service submarine maintenance to achieve the goals of the Navy for operational availability.

''(2) Measures to determine a total cost and schedule for investments needed to enhance the performance of the surface ship industrial base to the extent to which it can support the goals of the Navy for surface ship construction and sustainment.

''(3) Measures to identify roles, responsibilities, and mechanism for coordination and data sharing between all entities within the Department of Defense involved in investing in and supporting the maritime industrial base.

''(4) Measures to conduct an analysis of the capacity of the Department of Defense to effectively plan for, award, and oversee investments in the maritime industrial base and, if relevant offices do not have sufficient capacity, determine how to increase capacity.''.

SEC. 1017. INCLUSION OF NAVY SURFACE COMBAT SHIP MAINTENANCE AS A SEPARATE LINE ITEM IN OPERATION AND MAINTENANCE BUDGET.

(a) IN GENERAL.—The budget of the President submitted to Congress under section 1105(a) of title 31, United States Code, for fiscal year 2028 and each subse-

quent fiscal year, shall display Navy surface combat ship maintenance as one or more separate line items under each subactivity within operation and maintenance, Navy.

(b) SURFACE COMBAT SHIP DEFINED.—In this section, the term ''surface combat ship''—

(1) means a surface ship that—

(A) is designed primarily to engage in attacks against airborne, surface, subsurface, and shore targets; and

(B) uses a propulsion system that is not nuclear-based; and

(2) includes any—

(A) guided missile cruiser;

(B) guided missile destroyer;

(C) guided missile frigate; and

(D) littoral combat ship.

SEC. 1018. CONTRACTING REFORM FOR SURFACE SHIP MAINTENANCE, REPAIR, AND OVERHAUL.

(a) INDEFINITE DELIVERY-INDEFINITE QUANTITY CONTRACT.—

(1) REQUIREMENT.—The Secretary of the Navy shall enter into an indefinite delivery-indefinite quantity contract for the maintenance, repair, and overhaul of covered vessels, and shall issue task orders under such contract for the performance of

such activities, across availability periods, by private shipyards, with a separate task order for each category of covered vessel determined by the Secretary consistent with subsection (c).

(2) RESPONSIBILITIES OF CONTRACTORS.—Each task order issued under the contract required under paragraph (1) shall require the private shipyard performing work under the task order for a category of covered vessels to be responsible for any routine, scheduled, or corrective life-cycle maintenance or repair activity of such vessels assigned to such shipyard under such task order.

(3) MINIMUM TERM DURATION.—The Secretary shall ensure that the term for any contractor that is a party to the indefinite delivery-indefinite quantity contract required under paragraph (1) is not less than five years after the date on which such contract is entered into.

(b) PRE-CONTRACT REQUIREMENTS.—Prior to entering into the contract required under subsection (a)(1) or issuing any task order under such contract, but not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report containing the following information:

(1) A determination by the Secretary of the categories of covered vessels to be used for purposes of such contract, consistent with subsection (c), including the number, classes, and anticipated availability schedules of vessels the maintenance, repair, and overhaul of which is to be addressed by each task order issued under such contract.

(2) For each such category, an identification of the availability of parts and supply chain capacity, forecasting, and planning necessary to support the maintenance, repair, and overhaul of covered vessels across availability periods.

(3) An identification of standardized work-item sequencing, bundling, and planning requirements to enable predictable maintenance, repair, and overhaul of covered vessels across availability periods.

(4) An assessment of the adequacy of facilities for such maintenance, repair, and overhaul, including with respect to workforce capacity, dry dock and pier availability, and long-term infrastructure necessary to sustain workload requirements under such contract.

(5) A cost baseline for such maintenance, repair, and overhaul, and a methodology for evaluating

potential savings or financial risks associated with such contract.

(6) An identification of risks to such maintenance, repair, and overhaul associated with schedule disruptions, supply chain delays, or industrial base shortfalls, and a description of mitigation strategies and contingency planning for such risks.

(c) CONSIDERATIONS FOR CATEGORY DETERMINATION.—In determining categories of covered vessels for purposes of the contract required under subsection (a)(1), the Secretary shall consider—

(1) the facilities, capabilities, and industrial capacity required to carry out maintenance, repair, and overhaul activities for covered vessels;

(2) the need to ensure adequate competition, and prevent the over-concentration of workload, among private shipyards; and

(3) options for task orders issued under such contract to incorporate multiple covered vessels.

(d) NOTIFICATION OF CONTRACT TERMINATION.—Not later than 30 days after any date on which the Secretary terminates the contract required under subsection (a)(1), or any task order under such contract, the Secretary shall submit to the congressional defense commit-

tees a notice of such termination, including a justification for such termination.

(e) APPLICABILITY OF FOREIGN SHIPYARD RESTRICTIONS.—The limitations under section 8680 of title 10, United States Code, shall apply with respect to the maintenance, repair, and overhaul of covered vessels pursuant to any task order issued under the contract required under subsection (a)(1).

(f) METRICS AND MECHANISMS FOR OVERSIGHT.—In carrying out this section, the Secretary shall establish metrics and oversight mechanisms for—

(1) contractor performance;

(2) schedule adherence;

(3) cost performance relative to the established baseline cost;

(4) effects on the industrial base and workforce sustainment; and

(5) effects on fleet readiness and operational availability.

(g) ANNUAL REPORTS.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for 5 years, the Secretary shall submit to the congressional defense committees a report that contains, at a minimum, the following:

(1) A description of—

(A) the status of the implementation of the contract required under subsection (a)(1);

(B) the categories of covered vessels determined by the Secretary for purposes of such contract, and the rationale behind such determination;

(C) projected cost savings, schedule improvements, and effects on the industrial base resulting from such contract; and

(D) any risk identified with respect to such contract and as applicable, the measures adopted to mitigate any such risk.

(2) Recommendations for legislative and regulatory changes to improve the authority for, or implementation of, indefinite delivery-indefinite quantity contracts entered into by the Secretary.

(h) COVERED VESSEL DEFINED.—In this section, the term ''covered vessel'' means a surface combatant vessel, as such term is defined in section 8227(e) of title 10, United States Code.

SEC. 1019. REALIGNMENT OF CONTRACT MANAGEMENT FOR POLAR SECURITY CUTTER PROGRAM.

(a) CONTRACT MANAGEMENT ALIGNMENT.—The Secretary of the Navy, in coordination with the Commandant of the Coast Guard, shall take such steps as are

necessary to ensure that the Commandant of the Coast Guard is solely responsible for the contract management responsibilities for the Polar Security Cutter program.

(b) LIMITATION ON NAVY CONTRACTING ACTIVITIES.—Beginning on the date that is 180 days after the date of the enactment of this Act, the Secretary of the Navy may not maintain a separate contracting office for the Polar Security Cutter program except as required to provide advisory support requested by the Commandant of the Coast Guard.

(c) BRIEFING REQUIREMENT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Navy shall provide to the congressional defense committees a briefing describing the implementation of this section.

SEC. 1020. DOMESTIC SOURCING OF BULK FUEL TO SUPPORT TANKER SECURITY PROGRAM.

(a) DOMESTIC SOURCING.—Beginning not later than 180 days after the date of the enactment of this Act, the Director of the Defense Logistics Agency shall seek to procure at least 10 percent of covered bulk fuel from domestic refineries with excess production capacity.

(b) USE OF TANKER SECURITY FLEET VESSELS.—The delivery of covered bulk fuel procured from a domestic refinery pursuant to subsection (a) shall be transported

for delivery to locations outside of the United States on participating fleet vessels.

(c) COORDINATION.—In carrying out this section, the Director of the Defense Logistics Agency shall coordinate with the Administrator of the Maritime Administration to align procurement and delivery planning for covered bulk fuel in accordance with subsection (a) with the Tanker Security Program, including by identifying opportunities to increase the use of participating fleet vessels consistent with subsection (b).

(d) REPORT.—Not later than 270 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report that includes—

(1) an assessment of the extent to which participating fleet vessels are expected to be used pursuant to subsection (b);

(2) a description of opportunities to increase the delivery of covered bulk fuel procured from a domestic refinery pursuant to subsection (a) in support of the Tanker Security Program, including opportunities to establish recurring shipments of such fuel to fuel depots of the Department located outside of the United States;

(3) an assessment of how such increase would support the availability of United States mariners and long-range fuel supply chains necessary to sustain military operations in contested environments; and

(4) any legislation, policy, or contract authority that the Secretary determines necessary to implement this section.

(e) DEFINITIONS.—In this section:

(1) The term ''covered bulk fuel'' means aviation turbine fuel, marine diesel, or any other refined petroleum product procured by the Secretary of Defense for delivery to locations outside of the United States in support of military operations or fuel depots of the Department of Defense.

(2) The term ''excess production capacity'', with respect to a refinery, means a production capacity of the refinery that the Secretary of Defense, in coordination with the Secretary of Energy, determines is in excess of domestic consumption requirements.

(3) The term ''participating fleet vessel'' has the meaning given such term in section 53401 of title 46, United States Code.

SEC. 1021. REQUIREMENTS RELATING TO UNMANNED SURFACE VESSELS.

(a) LIMITATION.—The Secretary of the Navy may not accept or take delivery of an unmanned surface vessel before the date on which the Secretary submits to the congressional defense committees certification in writing that the Chief of Naval Operations or the Commandant of the Marine Corps has developed both concepts of operation and concepts of employment for at least one of the following combat functions:

(1) Anti-submarine warfare.

(2) Maritime strike.

(3) Logistics.

(4) Electronic warfare.

(5) Command and control.

(6) Intelligence.

(7) Surveillance.

(8) Reconnaissance.

(9) Targeting.

(10) Systems designed to counter any of the functions described in paragraphs (1) through (9).

(11) Any other combat function designated by the Chief of Naval Operations or the Commandant of the Marine Corps.

(b) STRATEGY REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary

of the Navy shall develop and implement a strategy for the integration of unmanned surface vessels into naval force design and joint maritime operations. Such strategy shall include each of the following:

(1) A description of the role of unmanned surface vessels in the future force design for the Department of the Navy.

(2) The process and timelines associated with the integration of unmanned surface vessels into joint maritime operations.

(3) An identification of the operational authorities currently governing the use of unmanned surface vessels.

(4) An acquisition strategy for unmanned surface vessels.

(5) An identification of the manpower, training, and infrastructure requirements for the integration of unmanned surface vessels into naval force design and joint maritime operations.

(6) A description of different ownership or operating models for unmanned surface vessels, including ownership and operation by the Government and by contractors, and how each such model would affect—

(A) manpower and infrastructure requirements;

(B) sustainment planning; and

(C) competition and industrial base concerns.

(7) An identification of access and basing requirements for unmanned surface vessels.

(c) REPORT.—Not later than 210 days after the date of the enactment of this Act, the Secretary of the Navy shall submit to the congressional defense committees a report on the strategy required under subsection (b).

(d) ANNUAL BRIEFING.—Not later than 90 days after the date of the submission of the report required under subsection (c), and biannually thereafter, the Portfolio Acquisition Executive established under section 1732 of title 10, United States Code, shall provide a briefing to the Committees on Armed Services of the House of Representatives and the Senate. Each such briefing shall include each of the following:

(1) A description of any changes or refinements made to the strategy required under subsection (b) during the period by the briefing.

(2) A description of any planning, scenarios, or simulations carried out by the Navy during the period by the briefing that model the use of unmanned

surface vessels in defined environments for specific missions and tasks.

(3) A description of any operational gaps identified during the period by the briefing that unmanned surface vessel capabilities could address.

(4) A description of any validated and emerging requirements of the combatant commands identified during the period by the briefing for unmanned surface vessels and unmanned underwater vessels, and the criteria used to validate such requirements.

(5) Any gaps in operational authority or required changes with respect to unmanned surface vessels and unmanned underwater vessels identified during the period by the briefing.

SEC. 1022. ENHANCEMENT OF NAVY SUBMARINE RESCUE CAPABILITIES.

(a) DIVERSIFICATION.—Not later than 180 days after the date of the enactment of this Act, in order to ensure operational readiness in the event of a prolonged unavailability of any single system, to the extent practicable, the Secretary of the Navy shall develop and maintain multiple, redundant submarine rescue capabilities, including—

(1) Navy-owned rescue systems; and

(2) commercially-classified or contract-operated rescue systems certified under internationally recognized classification standards.

(b) TECHNOLOGICAL MODERNIZATION.—To the extent practicable, the Secretary shall—

(1) integrate emerging technologies, including unmanned and autonomous underwater vehicles, into submarine rescue operations to improve—

(A) search and location of distressed submarines;

(B) mission situational awareness; and

(C) risk mitigation for human rescue personnel; and

(2) evaluate and, where feasible, develop new deep submarine escape and survival technologies to extend safe crew survivability beyond current operational depth limits.

(c) TRAINING AND OPERATIONAL READINESS.—To the extent practicable, the Secretary shall—

(1) ensure the conduct of frequent, realistic training exercises for submarine crews and rescue teams, simulating disabled submarine scenarios under operationally relevant conditions; and

(2) integrate advanced modeling and simulation tools to optimize rescue search and response planning under uncertain environmental conditions.

(d) INTERNATIONAL INTEROPERABILITY.—To the extent practicable, the Secretary shall—

(1) expand cooperation and interoperability with allied submarine-operating nations, including through—

(A) participation in multinational exercises, such as Pacific Reach and NATO Dynamic Monarch; and

(B) engagement with the International Submarine Escape and Rescue Liaison Office and other relevant international bodies; and

(2) develop agreements, standard operating procedures, and shared protocols to enable coordinated, multinational response to submarine distress incidents.

(e) OVERSIGHT, SAFETY, AND RISK REDUCTION.—To the extent practicable, the Secretary shall—

(1) ensure independent classification, inspection, and certification of all rescue systems, both Navy-owned and commercially operated, to maintain the highest safety and operational standards; and

(2) continue programs that reduce the likelihood of submarine accidents, including submarine safety and quality assurance initiatives, to complement rescue capabilities.

(f) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report on the implementation of this section.

SEC. 1023. NAVY–COAST GUARD MARITIME WORKFORCE AND CAPACITY COORDINATION PLAN.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Navy and the Commandant of the Coast Guard shall establish a recurring coordination mechanism to align maritime industrial workforce requirements and capacity planning activities.

(b) QUARTERLY COORDINATION.—In carrying out subsection (a), the Secretary of the Navy and the Commandant of the Coast Guard shall convene meetings not less frequently than once each quarter to—

(1) identify projected workforce requirements and capacity needs associated with shipbuilding, ship repair, maintenance, sustainment, and related maritime industrial activities;

(2) identify areas of overlap, competition, or resource constraints that may adversely affect the ability of either service to meet workforce and industrial base requirements;

(3) assess opportunities to coordinate workforce development activities, training pipelines, and industrial base investments; and

(4) identify actions necessary to reduce duplication and improve coordination across shared industrial sectors.

(c) 10-YEAR MARITIME WORKFORCE AND CAPACITY PLAN.—

(1) REPORT.—Not later than one year after the date of the enactment of this Act, and every two years thereafter, the Secretary of the Navy and the Commandant of the Coast Guard shall jointly submit to the appropriate congressional committees a report containing a 10-year maritime workforce and capacity plan. Each such plan shall include, for the period covered by the plan—

(A) projected workforce requirements across shipbuilding, ship repair, maintenance, sustainment, and critical supplier sectors;

(B) projected demand signals and anticipated requirements for public and private shipyards and related industrial base participants;

(C) an assessment of workforce gaps, shortages, and associated risks to the execution of shipbuilding and sustainment requirements;

(D) the identification of areas in which Navy and Coast Guard requirements may create competing demands for labor, infrastructure, or supplier capacity;

(E) recommendations for mitigating identified constraints and improving coordination between the Navy and the Coast Guard; and

(F) an assessment of actions necessary to provide industry with greater predictability regarding future workforce and capacity requirements.

(2) BRIEFING.—Not later than 30 days after the date on which a report is submitted under paragraph (1). the Secretary of the Navy and the Commandant of the Coast Guard shall provide to the appropriate congressional committees a briefing on the plan contained in the report.

(3) APPROPRIATE CONGRESSIONAL COMMITTEES.—In this subsection, the term ''appropriate congressional committees'' means—

(A) the Committee on Armed Services and the Committee on Commerce, Science, and Transportation of the Senate; and

(B) the Committee on Armed Services and the Committee on Transportation and Infrastructure of the House of Representatives.

SEC. 1024. PILOT PROGRAM ON USE OF ADDITIVE AND ADVANCED MANUFACTURING TO SUPPORT NAVAL SHIPBUILDING.

(a) ESTABLISHMENT.—The Secretary of the Navy shall conduct a pilot program through which the Secretary shall expand the use of additive manufacturing and advanced manufacturing technologies to address supply chain constraints, production delays, and part shortages affecting naval shipbuilding and ship repair.

(b) DESIGN OF PILOT.—The Secretary shall design the pilot program to—

(1) identify shipbuilding components, replacement parts, tooling, fixtures, and other items that are constrained by limited suppliers, long lead times, obsolete production methods, or foreign dependence;

(2) evaluate the use of additive manufacturing and advanced manufacturing to produce such items in a manner that meets applicable Navy technical, safety, cybersecurity, quality assurance, and certification requirements;

(3) reduce schedule delays in ship construction, maintenance, and repair caused by shortages of parts or production capacity;

(4) strengthen domestic manufacturing capacity for naval shipbuilding; and

(5) support the development of qualification standards and repeatable certification pathways for additive manufactured shipbuilding components.

(c) IMPLEMENTATION.—In carrying out the pilot program, the Secretary shall—

(1) select not fewer than three classes of naval vessels for participation in the pilot program;

(2) prioritize components and parts that have demonstrated supply chain constraints, production bottlenecks, or recurring availability issues;

(3) partner with public shipyards, private shipbuilders, suppliers, and other entities within the domestic shipbuilding industrial base;

(4) support University Affiliated Research Centers, federally funded research and development cen-

ters, and other qualified technical organizations with expertise in additive manufacturing, advanced manufacturing, materials science, and industrial base modernization;

(5) establish procedures for testing, qualification, and certification of additive manufactured parts for naval use; and

(6) ensure that any technical data, digital models, or manufacturing processes developed under the pilot program are managed to support long-term Navy sustainment and avoid vendor lock-in.

(d) UARC SUPPORT.—The Secretary may enter into agreements with University Affiliated Research Centers to provide technical support for the pilot program, including support for—

(1) identifying candidate parts and components suitable for additive or advanced manufacturing;

(2) developing manufacturing processes and qualification standards;

(3) conducting materials testing and performance validation;

(4) assessing cybersecurity risks associated with digital manufacturing files and production systems;

(5) supporting workforce development and training for additive manufacturing in the naval shipbuilding industrial base; and

(6) advising the Navy on how to scale successful technologies across shipbuilding and ship repair programs.

(e) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report on the implementation of the pilot program, including—

(1) the ship classes, shipyards, and industrial base partners participating in the pilot program;

(2) the categories of parts or components selected for additive manufacturing or advanced manufacturing;

(3) the extent to which the pilot program has reduced lead times, production delays, costs, or supplier constraints;

(4) any barriers to qualification, certification, cybersecurity, intellectual property, or technical data rights;

(5) the role of University Affiliated Research Centers and other technical organizations in supporting the pilot program; and

(6) recommendations for expanding the use of additive and advanced manufacturing across naval shipbuilding and ship repair.

(f) DURATION.—The authority under this section shall terminate on December 31, 2032.

SEC. 1025. LIMITATION ON USE OF FUNDS FOR PROCUREMENT OF A BATTLE FORCE SHIP.

(a) IN GENERAL.—None of the funds authorized to be appropriated by this Act for fiscal year 2027 for the Department of the Navy may be obligated or expended to enter into a contract for the procurement of a battle force ship to be built a foreign shipyard that is to be commissioned a United States Ship (USS) warship.

(b) DEFINITIONS.—In this section:

(1) The term ''battle force ship'' has the meaning given in Secretary of the Navy Instruction 5030.8C.

(2) The term ''foreign shipyard'' means any shipbuilding facility located outside of the United States, Guam, and the Commonwealth of the Northern Mariana Islands.

SEC. 1026. STRATEGY FOR DISTRIBUTED SHIPBUILDING.

(a) STRATEGY.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the

Navy shall develop and implement a strategy to increase distributed shipbuilding.

(b) BRIEFING.—Not later than 270 days after the date of the enactment of this Act, the Secretary shall provide to the congressional defense committees a briefing on the strategy required under subsection (a).

(c) DISTRIBUTED SHIPBUILDING DEFINED.—In this section, the term ''distributed shipbuilding'' means, with respect to a vessel, the construction of modules of the vessel—

(1) by one or more entities that are independent from the operators of the shipyard at which the final assembly of the vessel occurs; and

(2) at a facility that is located separately from, or that is located within but is not operated by, the shipyard at which the final assembly of the vessel occurs.

SEC. 1027. STRATEGY OF DEPARTMENT OF DEFENSE RELATING TO SMALL UNCREWED SURFACE VESSELS.

(a) STRATEGY.—Not later than 270 days after the date of the enactment of this Act, the Secretary of Defense, in consultation with the Secretary of the Navy and the Director of the Defense Autonomous Warfare Group, shall develop and implement a strategy for the acquisition,

sustainment, and operational employment of, and the development of the industrial base for, small uncrewed surface vessels.

(b) ELEMENTS.—The strategy required under subsection (a) shall include the following elements:

(1) A statement of the operational concept for the employment of small uncrewed surface vessels by the naval forces of the United States, including a description of the following:

(A) The missions for which such vessels are intended to be employed.

(B) The role of such vessels in distributed maritime operations and the integration of such vessels with crewed naval vessels.

(C) The integration of such vessels with command and control, intelligence, surveillance, and reconnaissance, and logistics structures of the naval forces.

(2) A plan for the acquisition of small uncrewed surface vessels that includes the following:

(A) An identification of the role of the portfolio acquisition executive for robotic and autonomous systems of the Department of the Navy in acquiring such vessels.

(B) Rules for the use of competitive procurement methods that maximize participation by domestic shipyards, including small shipyards and nontraditional defense contractors.

(C) Measures to address the protection of designer technical data and intellectual property in a manner consistent with sustained competition for the manufacture and sustainment of such vessels.

(D) Objectives relating to performance, cost, and schedule, for each class of small uncrewed surface vessel.

(3) A plan for the development of the industrial base for small uncrewed surface vessels, including the following:

(A) An identification of the production capacity, supplier base, and workforce required to meet the acquisition plan under paragraph (2) through fiscal year 2032.

(B) Measures to expand domestic manufacturing capacity for such vessels and to ensure critical elements of the supply chain are available for the construction of such vessels.

(C) An identification of, and measures to address, risks of single-source dependency, foreign content, and supply chain disruption.

(D) Mechanisms for engagement with the maritime industrial base, including small shipyards, to align industrial investment with the demand of the Department of Defense.

(4) A plan for the sustainment of small uncrewed surface vessels, including the following:

(A) An identification of the sustainment capacity of the Department of Defense and contractors of the Department required to support the operational employment of such vessels.

(B) Measures to address the licensing, ownership, and accessibility of technical data necessary to enable the competitive sustainment of such vessels.

(C) Measures to mitigate the risk of a lack of competition for the sustainment of such vessels resulting from proprietary information or restricted technical data relating to such vessels or components or systems thereof.

(c) SUBMISSION TO CONGRESS.—Not later than 30 days after the date on which the Secretary of Defense completes the strategy required under subsection (a), the

Secretary shall submit to the congressional defense committees such strategy.

(d) ANNUAL REPORTS.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter until September 30, 2030, the Secretary of the Navy, in coordination with the portfolio acquisition executive for robotic and autonomous systems of the Department of the Navy, shall submit to the congressional defense committees a report on the development of the industrial base for, and the acquisition of, small uncrewed surface vessels.

(2) ELEMENTS.—Each report submitted under paragraph (1) shall include the following:

(A) An inventory, as of the date of the report, of each small uncrewed surface vessel acquired by the Department of the Navy, disaggregated by program, class, fiscal year of procurement, quantity procured, and unit cost.

(B) The acquisition plan for small uncrewed surface vessels for each fiscal year of the most recent future-years defense program submitted to Congress under section 221 of title 10, United States Code, including the

planned quantities and classes of such vessels to be acquired, and the costs of such acquisition.

(C) An assessment of the capacity of the domestic industrial base to meet such plan, including—

(i) an identification of shipyards and prime manufacturers engaged in the production of such vessels;

(ii) an identification of critical component and system suppliers, including suppliers of propulsion, autonomy, communications, and command and control systems for such vessels; and

(iii) an identification of any bottleneck, capacity shortfall, or other constraint that may impede the execution of such plan.

(D) A comparison of the current and projected rates of the production of small uncrewed surface vessels, versus the quantities of such vessels identified as necessary to be maintained pursuant to the strategy required under subsection (a).

(E) An assessment of the availability of the workforce, including any skilled trades with-

in such workforce, required to meet the planned production of such vessels, including an identification of any workforce shortfall and any measures being taken to address any such shortfall.

(F) An assessment of the risks to competition for the sustainment of such vessels arising from such vessels, or components or systems thereof, containing proprietary information or restricted technical data, and a description of any measures being taken to mitigate such risks.

(G) An assessment of foreign content in small uncrewed surface vessels acquired or planned for acquisition, including an identification of supply chain vulnerabilities and dependencies on suppliers from countries of concern.

(H) Any recommendations for legislative, regulatory, or budgetary action necessary to address challenges identified in the report relating to the development of the industrial base for, and the acquisition of, small uncrewed surface vessels.

(e) FORM.—The strategy required under subsection (a) and each report required under subsection (d) shall

be submitted in unclassified form, but may include a classified annex.

(f) DEFINITIONS.—In this section:

(1) The term ''country of concern'' means a covered nation as defined in section 4872(d) of title 10, United States Code.

(2) The term ''nontraditional defense contractor'' has the meaning given such term in 3014 of title 10, United States Code.

(3) The term ''small shipyard'' has the meaning given such term in section 54101 of title 46, United States Code.

(4) The term ''small uncrewed surface vessel''—

(A) means—

(i) an uncrewed surface vessel with a full load displacement of not more than 50 metric tons and a length of not more than 50 feet; or

(ii) any other uncrewed surface vessel designated by the Secretary of the Navy as a small uncrewed surface vessel for purposes of this section; and

(B) does not include any vessel of the program of the Department of the Navy referred

to as the ''Medium Unmanned Surface Vessel Program''.

SEC. 1028. ARCTIC-FOCUSED FORECASTING, ICE MODELING, AND NAVAL READINESS ASSESSMENT.

(a) REQUIREMENTS.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense, in consultation with the Secretary of the Navy and the Commander of Fleet Numerical Meteorology and Oceanography Center, shall assess options to expand and enhance Arctic-focused meteorological, oceanographic, and ice-modeling capabilities to improve naval readiness, operational planning, and force posture in the Arctic region. The Secretary shall seek carry out this subsection to—

(1) strengthen high-resolution Arctic weather forecasting, sea ice analysis, and predictive ice modeling in support of naval and joint operations;

(2) improve the integration of Arctic weather data into operational decision-making, force employment, and logistics planning;

(3) support safe navigation, domain awareness, and mission assurance for surface, subsurface, and aviation forces operating in or transiting the Arctic;

(4) enhance the ability of the Navy to anticipate and adapt to long-term effects from weather affecting Arctic operations; and

(5) align Department of Defense Arctic capabilities with whole-of-government Arctic strategies and priorities.

(b) REPORT ON EFFECTS OF EXTREME WEATHER CONDITIONS ON NAVAL READINESS.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of the Navy shall submit to the congressional defense committees a report that includes an assessment of the effects of extreme weather conditions on naval readiness and force posture in the Arctic region.

(2) CONTENTS.—Each such report shall include—

(A) an assessment of observed and projected Arctic weather trends affecting naval and ground operations;

(B) an identification of the implications of sea ice variability, permafrost degradation, and extreme weather on naval infrastructure, mobility, and sustainment;

(C) a description of the effects of Arctic weather trends on mission readiness, response timelines, and operational risk;

(D) an evaluation of how enhanced forecasting and ice-modeling capabilities are being used to mitigate such risks; and

(E) recommendations for additional capability development, posture adjustments, or policy actions to strengthen Arctic naval readiness.

SEC. 1029. RENAMING OF USNS CESAR CHAVEZ.

The Secretary of the Navy shall rename the USNS Cesar Chavez (T-AKE-14) in keeping with the naming conventions for that class of vessels and by naming the vessel after an individual, place, or concept that best reflects the values, ideals, and history of the United States and the Navy.

SEC. 1030. SENSE OF CONGRESS REGARDING NAMING OF VESSEL FOR BATTLE OF DAI DO.

It is the sense of Congress that the Secretary of the Navy should name an amphibious or expeditionary class vessel for the Battle of Dai Do.

SEC. 1031. SENSE OF CONGRESS REGARDING NAMING OF A VESSEL "USS GUADALCANAL".

(a) FINDINGS.—Congress makes the following findings:

(1) The naval campaign on Guadalcanal during World War II marked a decisive turning point in the Pacific theater and demonstrated extraordinary

courage, endurance, and joint warfighting skill by members of the Armed Forces of the United States.

(2) The name ''Guadalcanal'' carries enduring historical and operational significance for the United States Navy and Marine Corps, reflecting a campaign that shaped modern amphibious warfare and maritime power projection.

(3) The Department of the Navy has previously honored this legacy through ships bearing the name ''Guadalcanal'', thereby establishing a lineage consistent with longstanding naval naming tradition.

(4) The continued recognition of historically significant naval battles in ship naming promotes esprit de corps, preserves institutional memory, and strengthens the connection between the Fleet and the Nation's naval heritage.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the Secretary of the Navy should give favorable consideration to naming an appropriate future vessel of the United States Navy ''USS Guadalcanal''.

SEC. 1032. SENSE OF CONGRESS REGARDING NAMING OF A NAVAL VESSEL FOR BATTLE OF MIDWAY.

(a) FINDINGS.—Congress finds the following:

(1) The Battle of Midway during World War II constituted a decisive turning point in the Pacific

theater, demonstrating the skill, courage, and operational excellence of United States naval forces.

(2) The name ''Midway'' carries enduring historical and strategic significance for the United States Navy, reflecting a battle that fundamentally altered the course of the war and validated the importance of naval aviation and maritime power.

(3) The Department of the Navy has previously honored this legacy through vessels bearing the name ''Midway,'' thereby establishing a distinguished lineage consistent with longstanding naval naming traditions.

(4) Recognizing historically significant naval battles through ship naming promotes esprit de corps, reinforces warfighting heritage, and strengthens the connection between the fleet of the United States Navy and the American people.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the Secretary of the Navy should give favorable consideration to naming an appropriate future vessel of the United States Navy the ''USS Midway''.

SEC. 1033. SENSE OF CONGRESS REGARDING NAMING OF A NAVAL VESSEL IN HONOR OF CASIMIR PULASKI.

(a) FINDINGS.—Congress makes the following findings:

(1) Casimir Pulaski volunteered to support the cause of American independence during the American Revolutionary War and rendered distinguished service to the Continental Army.

(2) Casimir Pulaski is widely recognized as the ''Father of the American Cavalry'' for his contributions to the development of cavalry tactics and operations in the United States.

(3) Casimir Pulaski died from wounds sustained while leading forces during the Siege of Savannah in 1779 in support of American independence.

(4) The United States Navy previously honored Casimir Pulaski through the naming of the USS Casimir Pulaski (SSBN-633), a ballistic missile submarine that served the United States during the Cold War.

(5) The Republic of Poland remains one of the United States strongest allies in Europe and a critical member of the North Atlantic Treaty Organization.

(6) The United States and Poland maintain close military, economic, and diplomatic ties founded upon shared democratic values, mutual security interests, and enduring people-to-people relationships.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the Secretary of the Navy should name an appropriate vessel of the United States Navy as the ''USS Casimir Pulaski'' in honor of the service and sacrifice of Casimir Pulaski on behalf of the United States and to commemorate the enduring alliance and strategic partnership between the United States and the Republic of Poland.

SEC. 1034. SENSE OF CONGRESS REGARDING NAMING OF VESSEL FOR REAR ADMIRAL ALENE DUERK.

(a) FINDINGS.—Congress finds the following:

(1) Following Rear Admiral Duerk's birth in Defiance, Ohio, and graduation from the Toledo Hospital School of Nursing, she received a commission on January 23, 1943, and was appointed as an ensign in the Nurse Corps of the Naval Reserve.

(2) During World War II, Rear Admiral Duerk was assigned as a Ward Nurse at the Naval Medical Center Portsmouth, Portsmouth, Virginia, and at the Naval Hospital, Bethesda Maryland where she cared for wounded members of the Armed Forces.

(3) In 1945, Rear Admiral Duerk was stationed on the U.S.S. Benevolence in the Pacific Theater (AH–13) where she treated casualties from Third Fleet operations until the end of World War II.

(4) After World War II, Rear Admiral Duerk progressed in rank and served in positions of increasing responsibility in both active duty and in the Naval Reserves, including posts in Michigan, Virginia, Pennsylvania, Illinois, the Philippines, Japan, California, and Washington, D.C.

(5) The dedication and inspirational service of Rear Admiral Durek culminated with her historic selection for the rank of Rear Admiral on April 16, 1972, as the first woman to become a flag officer.

(6) Rear Admiral Duerk was awarded the Naval Reserve Medal, American Campaign Medal, the Asiatic-Pacific Campaign Medal with Bronze Star, the World War II Victory Medal, the Navy Occupation Service Medal, Asia Clasp, and the National Defense Service Medal with Bronze Star.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the Secretary of the Navy should consider naming a vessel of the United States Navy the ''U.S.S. Rear Admiral Alene Duerk'' in honor of Rear Admiral Alene Duerk.

SEC. 1035. SENSE OF CONGRESS REGARDING NAMING A WARSHIP THE USS PHOENIX.

It is the sense of Congress that the Secretary of the Navy should name one of the new warships the ''USS Phoenix'' as a memorial to the 1,177 members of the Armed Forces serving on the USS Arizona who were lost on December 7, 1941, in the attack on Pearl Harbor, Hawaii.

SEC. 1036. REPORT ON TRANSITION TO LIGHT-EMITTING DIODE LIGHTING ON NAVAL VESSELS.

(a) REPORT REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Navy shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the plans of the Department of the Navy to transition to light-emitting diode (LED) lighting onboard naval vessels.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) An assessment of the benefits LED light fixtures provide for the survivability of naval vessels relative to traditional incandescents.

(2) An evaluation of existing shipboard light fixtures for which qualified LED retrofit kits are available, and an identification of fixtures for which LED retrofit kits require development.

(3) A plan to transition the procurement of incandescent light bulbs by the Department to the procurement of LED retrofit kits.

(4) An analysis of the production capacity of the supplier base to provide LED retrofit kits at an increased rate of supply.

(5) A plan to discontinue the procurement of LED light fixtures that do not meet applicable military specifications.

SEC. 1037. CONVEYANCE OF CERTAIN RETIRED NAVAL VESSELS TO STATE OF FLORIDA FOR USE AS OFFSHORE REEFS.

(a) CONVEYANCE.—Not later than one year after the date of the enactment of this Act, the Secretary of the Navy shall convey to the State of Florida all right, title, and interest of the United States in and to—

(1) the U.S.S. Underwood (FFG–36), or another similar vessel from the OLIVER HAZARD PERRY–class guided missile frigates that the Secretary of the Navy has classified as ''stricken'';

(2) a decommissioned TICONDEROGA–class guided-missile cruiser that the Secretary of the Navy has classified as ''stricken'';

(3) the U.S.S. Freedom (LCS–1), the U.S.S. Independence (LCS–2), or another decommissioned

littoral combat ship that the Secretary of the Navy has classified as ''stricken''; or

(4) the U.S.S. Fort McHenry (LSD–43) or another similar vessel from the WHIDBEY ISLAND–class dock landing ship that the Secretary of the Navy has classified as ''stricken''.

(b) CONDITION OF CONVEYANCE.—Any conveyance of a vessel under subsection (a) shall be subject to the condition that the State of Florida sink such vessel for use as an offshore artificial reef.

(c) CONVEYANCE AT NO COST TO UNITED STATES.—Any conveyance of a vessel under subsection (a) shall be made at no cost to the United States. The full cost of such conveyance shall be borne by the State of Florida.

(d) ADDITIONAL TERMS AND CONDITIONS.—The Secretary may require such additional terms and conditions in connection with a conveyance of a vessel under subsection (a) as the Secretary considers appropriate to protect the interests of the United States.

SEC. 1038. STUDY TO EVALUATE ALTERNATIVE MATERIALS AND EMERGING HULL TECHNOLOGIES WITH RESPECT TO NAVAL VESSELS.

(a) STUDY.—The Secretary of Defense shall conduct a study to evaluate the use of alternative materials and

emerging hull technologies with respect to naval vessels, which shall include a determination of whether any such materials or technologies improve—

(1) durability;

(2) fuel efficiency;

(3) operational readiness; or

(4) resilience against extreme weather conditions.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the Committee on Armed Services of the House of Representatives and the Committee on Armed Services of the Senate a report detailing the results of the study conducted under subsection (a).

SEC. 1039. SENSE OF CONGRESS REGARDING NAMING AN AIRCRAFT CARRIER AFTER THE UNITED STATES.

(a) FINDINGS.—Congress finds the following:

(1) The first USS United States was one of the original six frigates authorized by the Naval Act of 1794, launched in 1797. It saw action in the Quasi-War with France and the War of 1812.

(2) In addition to the frigate, there was a proposed Civil War ironclad that never got built, and

the aircraft carrier USS United States (CVA-58) was canceled in 1949.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the Secretary of the Navy should name an aircraft carrier USS United States.

SEC. 1039A. SENSE OF CONGRESS ON NAMING A FUTURE NAVAL VESSEL USS SHANGRI-LA.

(a) FINDINGS.—Congress finds the following:

(1) The April 18, 1942, Doolittle Raid against the Japanese homeland was one of the most daring and consequential operations of World War II, demonstrating American resolve during a critical period of the war.

(2) Following the raid, President Franklin D. Roosevelt, when asked where the aircraft had originated, famously replied that they had come from ''Shangri-La'', a reference that helped protect operational security and became permanently associated with the raid and its participants.

(3) The Secretary of the Navy subsequently named the aircraft carrier USS Shangri-La (CV–38), which served with distinction during World War II, the Cold War, and the Vietnam War.

(4) The legacy of the Doolittle Raiders, USS Shangri-La (CV–38), and the generations of sailors

and aviators who served aboard that vessel represents an enduring example of courage, innovation, and determination in the defense of the United States.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the Secretary of the Navy should give favorable consideration to naming a future naval vessel USS Shangri-La in honor of the Doolittle Raiders and the proud service of USS Shangri-La (CV–38).

Subtitle C—Counterterrorism

SEC. 1041. EXTENSION OF PROHIBITION ON USE OF FUNDS FOR TRANSFER OR RELEASE OF INDIVIDUALS DETAINED AT UNITED STATES NAVAL STATION, GUANTANAMO BAY, CUBA, TO THE UNITED STATES.

Section 1033 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 132 Stat. 1953) is amended by striking ''December 31, 2026'' and inserting ''December 31, 2027''.

SEC. 1042. EXTENSION OF PROHIBITION ON USE OF FUNDS TO CONSTRUCT OR MODIFY FACILITIES IN THE UNITED STATES TO HOUSE DETAINEES TRANSFERRED FROM UNITED STATES NAVAL STATION, GUANTANAMO BAY, CUBA.

Section 1034(a) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 132 Stat. 1954) is amended by striking ''December 31, 2026'' and inserting ''December 31, 2027''.

SEC. 1043. EXTENSION OF PROHIBITION ON USE OF FUNDS FOR TRANSFER OR RELEASE OF INDIVIDUALS DETAINED AT UNITED STATES NAVAL STATION, GUANTANAMO BAY, CUBA, TO CERTAIN COUNTRIES.

Section 1035 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 132 Stat. 1954) is amended by striking ''December 31, 2026'' and inserting ''December 31, 2027''.

SEC. 1044. EXTENSION OF PROHIBITION ON USE OF FUNDS TO CLOSE OR RELINQUISH CONTROL OF UNITED STATES NAVAL STATION, GUANTANAMO BAY, CUBA.

Section 1036 of the National Defense Authorization Act for Fiscal Year 2018 (Public Law 115–91; 131 Stat. 1551) is amended by striking ''fiscal years 2018 through 2026'' and inserting ''fiscal years 2018 through 2027''.

SEC. 1045. LIMITATION ON AUTHORITY OF ARMED FORCES TO DETAIN CITIZENS OF THE UNITED STATES.

Section 1021(b) of the National Defense Authorization Act for Fiscal Year 2012 (Public Law 112–81; 10 U.S.C. 801 note) is amended, in the matter preceding paragraph (1), by inserting ‘‘, other than a citizen of the United States,’’ after ‘‘any person’’.

Subtitle D—Miscellaneous Authorities and Limitations

SEC. 1051. ESTABLISHMENT OF THE SECRETARIES OF DEFENSE HISTORICAL SERIES AND PRIORITY DECLASSIFICATION AUTHORITY.

Chapter 4 of title 10, United States Code, is amended by adding at the end the following new section:

‘‘§ 150. Publication of historical series

‘‘(a) REQUIREMENT.—The Secretary of Defense shall prepare and publish, on an ongoing basis, a thorough, accurate, and reliable documentary historical record of major United States national security and defense policy decisions and significant diplomatic and military activities of the Department of Defense. Such historical record shall be known as the ‘Secretaries of Defense Historical Series’ (in this section referred to as the ‘Series’), and shall—

''(1) consist of a comprehensive, multi-volume documentary and narrative history organized, to the extent practicable, by Presidential administration;

''(2) be based on all relevant records, including classified records;

''(3) present a thorough, objective, and scholarly historical record; and

''(4) include appropriate annotation, citations, and indexing to facilitate public and academic research.

''(b) TIMELINESS REQUIREMENT.—The Secretary shall ensure that each volume of the Series is published not later than 30 years after the events documented, to the maximum extent practicable.

''(c) DECLASSIFICATION PRIORITY.—The Secretary shall—

''(1) ensure that records required for the preparation and publication of the Series receive priority for declassification review;

''(2) coordinate with the heads of other departments and agencies to ensure timely declassification of equities contained in such records; and

''(3) establish expedited procedures for interagency review of records associated with the Series.

''(d) PUBLIC AVAILABILITY.—(1) Volumes of the Series shall be published in unclassified form to the greatest extent possible.

''(2) The Secretary shall make such volumes available to the public through—

''(A) the Government Publishing Office; and

''(B) a publicly accessible Department of Defense website.

''(e) RELATIONSHIP TO OTHER HISTORICAL ACTIVITIES.—The Series shall serve as the flagship historical publication of the Office of the Secretary of Defense Historical Office and shall complement other official Department of Defense historical programs.

''(f) RESOURCING.—The Secretary shall ensure that the Office of the Secretary of Defense Historical Office is adequately resourced to carry out this section, including personnel dedicated to—

''(1) historical research and writing; and

''(2) declassification review and coordination.''.

SEC. 1052. INCLUSION OF NATIONAL GUARD RELIEF FOUNDATION AS A MILITARY WELFARE SOCIETY FOR CERTAIN PURPOSES.

(a) PROVISION OF SPACE AND SERVICES.—Section 2566(b)(1) of title 10, United States Code, is amended by adding at the end the following new subparagraph:

''(E) The National Guard Relief Foundation.''.

(b) NON-FEDERAL ENTITIES AUTHORIZED FOR PURPOSES OF CERTAIN PARTICIPATION BY MEMBERS OF THE ARMED FORCES.—Section 1033(b)(2) of title 10, United States Code, is amended by adding at the end the following new subparagraph:

''(E) National Guard Relief Foundation.''.

SEC. 1053. JOINT EXPERIMENTATION AND TRAINING RANGE INNOVATION OFFICE.

Chapter 307 of title 10, United States Code, is amended by adding at the end the following new section:

''§ 4176. Joint Experimentation and Training Range Innovation Office

''(a) AUTHORITY.—The Secretary of Defense shall establish within the Office of the Under Secretary of Defense for Research and Engineering a Joint Experimentation and Training Range Innovation Office (in this section referred to as the 'Office').

''(b) DIRECTOR.—The Office shall be headed by a Director who shall report directly to the Under Secretary of Defense for Research and Engineering. The Director shall be subject to the supervision of the Under Secretary without the interposition of any other supervising official.

''(c) RESPONSIBILITIES.—The Office shall be responsible for the following:

''(1) Centralizing efforts relating to advocacy, budgeting, operations, and sustainment of joint experimentation and training ranges (and capabilities supporting such ranges) that are not facilities or resources of the Major Range and Test Facility Base.

''(2) Accelerating modernization and integration across such joint experimentation and training ranges.

''(3) Serving as the primary authority for the oversight, coordination, and conduct of activities of the Eastern Range Regional Complex, including such activities carried out in territories of the United States located in the Caribbean region.

''(4) Fostering and accelerating innovation in technologies that enable realistic experimentation and training for multi-domain operations (including integrated cyber, electronic warfare, and spectrum operations) in contested and other environments, including with respect to—

''(A) artificial intelligence, machine learning, and autonomous systems;

''(B) advanced modeling, digital twins, and other simulations;

''(C) hypersonic systems, directed energy capabilities, and other next-generation weapons; and

''(D) integrated systems relating to command, control, computing, communications, cyber, intelligence, surveillance, reconnaissance, and targeting.

''(5) Establishing and deploying regionally aligned support teams that provide to the Department of Defense remote and on-site technical assistance for joint multi-domain experimentation and training exercises, prototype integration, and related resource-sharing mechanisms, with a particular emphasis on the provision of such support with respect to the Eastern Range Regional Complex.

''(6) Conducting objective, independent risk assessments and other evaluations of the training programs, technologies and other capabilities, and acquisition initiatives, of the joint forces, for the purpose of informing the decision-making of senior officers of the Department of Defense and reducing such risks.

''(7) Developing and regularly updating the strategic plan under subsection (d).

''(d) STRATEGIC PLAN.—(1) Not less frequently than once every two fiscal years, the Director of the Office (in coordination with the Secretaries of the military departments, the Under Secretary of Defense for Personnel and Readiness, the Director of the Joint Staff, the Director of Operational Test and Evaluation, the Director of the Test Resource Management Center, and the heads of such other Defense Agencies as the Director of the Office may determine relevant) shall submit to the Secretary of Defense a strategic plan addressing the needs of the Department for joint experimentation and training facilities and resources.

''(2) Each strategic plan under paragraph (1) shall include the following:

''(A) An assessment of the feasibility of, and recommendations for, the conduct of a biennial joint multi-domain experimentation and training exercise across multiple States and ranges within the Eastern Range Regional Complex to validate and inform subsequent strategic plans.

''(B) An assessment of requirements for joint experimentation and training (including requirements relating to information technology, network infrastructure, and multi-level security) for the period covered by the plan.

''(C) An assessment of the facilities and resources, including advanced threat environments, live-virtual constructive simulation capabilities, interoperability standards, networks, and data-sharing mechanisms, of the Eastern Regional Range Complex, including a summary of modernization priorities for such matters during the subsequent two-year period.

''(D) An itemization, disaggregated by location, of improvements to joint experimentation and training ranges necessary to directly support the acceleration of experimentation and training involving robotic and autonomous systems and the integration of unmanned systems into joint multi-domain operations.

''(E) An assessment of the effectiveness of the Office with respect to—

''(i) carrying out the responsibilities under subsection (c);

''(ii) increasing regional access to, and frequency of, joint multi-domain experimentation and training exercises consistent with such responsibilities;

''(iii) enhancing military readiness; and

"(iv) strengthening the defense industrial base.

"(F) With respect to the exercises specified in subparagraph (E)(ii)—

"(i) an identification of the number of such exercises carried out during the period covered by the plan;

"(ii) an assessment of the extent to which such exercises incorporated actors within private industry and academia; and

"(iii) a description of lessons learned as a result of such exercises, including any resulting updates to risk assessments.

"(G) An executive summary of any joint multi-domain experimentation and training exercise planned to be carried out within the Eastern Range Regional Complex during the subsequent two-year period.

"(3) Not later than 90 days after the date on which the Secretary of Defense receives a strategic plan under paragraph (1), the Secretary shall submit to the congressional defense committees a copy of such plan and any comments of the Secretary regarding such plan.

"(e) COORDINATION.—In addition to the coordination required under subsection (d)(1), the Director of the

Office shall coordinate with the Secretaries of the military departments, the Joint Staff, the Under Secretary of Defense for Personnel and Readiness, and the commanders of relevant combatant commands, with respect to requirements for joint experimentation and training ranges and plans for joint multi-domain experimentation and training exercises under this section.

''(f) ADMINISTRATIVE SUPPORT.—The Secretary of Defense shall provide to the Director of the Office administrative support sufficient to carry out the responsibilities under this section. Such support shall be provided from headquarters activities of the Department or from other activities the Secretary determines appropriate.

''(g) FUNDING.—The Secretary of Defense may use funds authorized to be appropriated or otherwise made available for the Joint Electronic Advanced Technology program (or any successor program) for the implementation of this section.

''(h) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to limit or otherwise modify the authorities or responsibilities of the Director of the Test Resource Management Center or the Director of Operational Test and Evaluation.

''(i) MAJOR RANGE AND TEST FACILITY BASE DEFINED.—In this section, the term 'Major Range and Test

Facility Base' has the meaning given such term under section 4173 of this title.''.

SEC. 1054. ESTABLISHMENT OF ARMY INFORMATION OPERATIONS CENTER OF EXCELLENCE.

(a) FINDINGS.—Congress finds the following:

(1) The information environment has emerged as a decisive domain of strategic competition in which adversaries of the United States operate continuously and below the threshold of armed conflict.

(2) Components of Army information operations, including military information support operations, electronic warfare, public affairs, and cyberspace operations, remain organizationally fragmented, hindering the translation of national-level strategy into synchronized operational and tactical action.

(3) Following the inactivation of the 1st Information Operations Command of the Army, the Department of the Army is undertaking a significant reorganization of its information operations enterprise, including the establishment of region-specific Theater Information Advantage Detachments aligned with Multi-Domain Task Forces.

(4) A dedicated Center of Excellence would improve the translation of national-level information

strategies into operational campaigns and theater-tailored tactical activities, advance doctrine, evaluate efficacy, and advocate for resourcing. It would also aid the Army during its reorganization process, facilitating coordination and resource allocation across its information operations enterprise.

(b) ESTABLISHMENT.—Chapter 703 of title 10, United States Code, is amended by inserting after section 7024 the following new section:

"§ 7025. Army Information Operations Center of Excellence

''(a) ESTABLISHMENT.—The Secretary of the Army shall operate the Army Information Operations Center of Excellence. The purpose of the Center shall be to serve as the lead organization of the Army for the integration, synchronization, and advancement of information operations across the operational and tactical levels, in support of national and combatant command objectives.

''(b) PURPOSE.—The Center shall be used to—

''(1) Coordinate and synchronize Army information operations objectives across the geographic and functional combatant commands.

''(2) Provide training and operational planning support for information operations campaigns at the operational level.

''(3) Develop, revise, and disseminate doctrine for Army information operations, ensuring that doctrine evolves in step with on-the-ground developments and emerging threats.

''(4) Assess the efficacy of ongoing Army information operations activities and inform resourcing recommendations to senior Army leadership.

''(5) Advocate for the resourcing of critical information operations requirements within the planning, programming, budgeting, and execution process of the Army.

''(6) Integrate the activities of the components of Army information operations, including military information support operations, electronic warfare, public affairs, and cyberspace operations, to ensure that such components operate in a coordinated, mutually reinforcing manner rather than in fragmentation.

''(7) Serve as the principal liaison of the Army to comparable centers and commands of the other armed forces, including the Navy Information Operations Command, and to the information operations staff of the combatant commands.

''(8) Perform such other functions as the Secretary of the Army may specify.

''(c) ANNUAL REPORT.—The Secretary of the Army shall submit to the congressional defense committees, and make publicly available on an appropriate website of the Department, an annual report on the activities of the Center.''.

(c) IMPLEMENTATION PLAN.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall submit to the congressional defense committees a plan for the establishment of the Center of Excellence established under section 7025 of title 10, United States Code, as added by subsection (b), including—

(1) the proposed organizational structure, location, and reporting chain of the Center;

(2) the resources, personnel, and authorities required to establish and sustain the Center;

(3) a description of how the Center will integrate with the Theater Information Advantage Detachments, Multi-Domain Task Forces, and the broader reorganization of Army information operations;

(4) milestones for initial operating capability and full operating capability; and

(5) metrics by which the Secretary will evaluate the effectiveness of the Center.

SEC. 1055. EXTENSION OF LIMITATION ON RETIREMENT OR DIVESTMENT OF EA–18G AIRCRAFT.

Section 8062(f)(1)(A) of title 10, United States Code, is amended by striking ''September 30, 2027'' and inserting ''September 30, 2032''.

SEC. 1056. AUTHORITY FOR SECRETARY OF DEFENSE WAIVER RELATING TO CERTAIN TRAINING.

Section 1050 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. 4172 note) is amended—

(1) by striking ''Beginning on'' and inserting the following:

''(a) PROHIBITION.—Beginning on''; and

(2) by adding at the end the following new subsection:

''(b) WAIVER.—The Secretary of Defense may waive the prohibition under subsection (a) with respect to the special operations forces (as identified in section 167(j) of title 10, United States Code) if the Secretary determines such prohibition, including the requirement for the use of alternate methods under paragraph (2) of such subsection, would degrade the readiness of special operations forces medics with respect to the ability to manage the lethal effects of blast injuries.''.

SEC. 1057. EXPANSION OF PROHIBITION ON DESTRUCTION OR SCRAPPING OF WORLD WAR II–ERA AIRCRAFT.

Section 1051 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. 2572 note) is amended—

(1) in subsection (a)(2), by inserting ''or the Department of the Navy'' after ''Air Force'';

(2) in subsection (b)(1), by inserting ''or the Department of the Navy'' after ''Air Force'';

(3) in subsection (c)(1), by inserting '', the Department of the Navy,'' after ''Air Force''; and

(4) in subsection (d)(2), by inserting '', the National Naval Aviation Museum, the National Museum of the Marine Corps,'' after ''Air Force''.

SEC. 1058. PROHIBITION ON DEPARTMENT OF DEFENSE CONTRACTS WITH CERTAIN FOREIGN-OWNED ONLINE TUTORING SERVICES.

Section 854 of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. 4651 note prec.) is amended—

(1) by striking ''The Secretary'' and inserting ''(a) IN GENERAL—The Secretary'';

(2) by striking ''the People's Republic of China'' and inserting ''a country of concern''; and

(3) by adding at the end the following new subsection:

''(b) COUNTRY OF CONCERN DEFINED.—In this section, the term 'country of concern' means any of the following:

''(1) China.

''(2) Russia.

''(3) Iran.

''(4) North Korea.''.

SEC. 1059. PROHIBITION ON DISPLAY OF UNAPPROVED FLAGS.

Section 1052(d)(1) of the National Defense Authorization Act for Fiscal Year 2024 (10 U.S.C. 2661 note) is amended—

(1) by redesignating subparagraphs (H) through (N) as subparagraphs (I) through (O), respectively; and

(2) by inserting after subparagraph (G) the following new subparagraph:

''(H) The Honor and Remember flag.''.

SEC. 1060. PROHIBITION ON LOBBYING ACTIVITIES WITH RESPECT TO THE DEPARTMENT OF DEFENSE BY CERTAIN OFFICERS OF THE ARMED FORCES AND CIVILIAN EMPLOYEES OF THE DEPARTMENT FOLLOWING SEPARATION FROM MILITARY SERVICE OR EMPLOYMENT WITH THE DEPARTMENT.

Section 1045 of the National Defense Authorization Act for Fiscal Year 2018 (Public Law 115–91; 10 U.S.C. note prec. 971) is amended—

(1) in subsection (a)(1), by striking ''two-year'' and inserting ''five-year''; and

(2) in subsection (b)(1), by striking ''one-year'' and inserting ''three-year''.

SEC. 1061. INTEGRATION OF SMALL UNMANNED AIRCRAFT SYSTEMS AND COUNTER-UNMANNED AIRCRAFT SYSTEMS TRAINING INTO INITIAL, OFFICER, AND JOINT COLLECTIVE TRAINING.

(a) IN GENERAL.—The relevant service secretary shall integrate foundational small unmanned aircraft systems (sUAS) operation and counter-UAS (C-UAS) recognition and defeat protocols into the program of instruction for all initial entry and officer ascension training pipelines. To ensure institutional integration, sUAS and C-UAS training shall follow the historic, tiered progression of established combat marksmanship training.

(b) JOINT INTEGRATION IN SERVICE-LEVEL AND LARGE-SCALE COMBAT EXERCISES.—The Secretary of Defense, in coordination with the Secretaries of the military departments, shall ensure that no service-level training exercise or Joint-Force large-scale combat simulation may be certified as combat-ready or complete unless the exercise incorporates realistic, adversarial UAS threat simulation.

(c) APPLICABILITY.—The requirements under section (a) and (b) shall apply to the below military department training maneuvers:

(1) United States Marine Corps Marine Air-Ground Task Force Warfighting Exercises and Integrated Training Exercises conducted at Marine Corps Air-Ground Combat Center Twentynine Palms, California.

(2) United States Army exercises at the National Training Center and the Joint Readiness Training Center.

(3) United States Air Force and United States Navy Red Flag and large-scale Fleet Exercises.

(d) ESTABLISHMENT OF A MATRIXED SKILL LINE.—The Secretary of the Defense shall designate basic sUAS operation and C-UAS tactical defense as Core Warrior Tasks.

SEC. 1062. EASTERN REGIONAL RANGE COMPLEX DEMONSTRATION PROJECT.

(a) DEMONSTRATION PROJECT REQUIRED.—Consistent with section 1048 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. note prec. 4171), the Secretary of Defense shall carry out a demonstration project under which the Secretary shall—

(1) integrate with respect to the Eastern Regional Range Complex common network solutions identified with respect to the Western Regional Range Complex;

(2) interconnect training ranges and experimentation sites located in the Eastern Regional Range Complex region;

(3) use such interconnected ranges and sites for the conduct of joint, multi-domain, kinetic and non-kinetic training and experimentation, including within live, virtual, and constructive environments, across the military departments; and

(4) enhance such experimentation and training by integrating the combined operations of other Federal departments and agencies with respect to such experimentation and training.

(b) USE OF EXISTING RANGES AND CAPABILITIES.—In carrying out the demonstration project under sub-

section (a), the Secretary shall use training ranges, experimentation sites, and related capabilities that are available as of the date of the enactment of this Act.

(c) TIMELINE FOR COMPLETION OF INITIAL DEMONSTRATION.—In carrying out subsection (a), the Secretary shall complete an initial demonstration, interconnecting two or more training ranges located in the region described in subsection (a)(1) or the experimentation sites of two or more military departments located in such region, not later than one year after the date of the enactment of this Act.

(d) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, acting through the Under Secretary of Defense for Research and Engineering, shall submit to the congressional defense committees a report that includes the following:

(1) A phased implementation plan and design for the interconnection of training ranges and experimentation sites required under subsection (a), including the initial demonstration required under subsection (c).

(2) An analysis of how the design of such plan aligns with recommendations of the most recent Electromagnetic Spectrum Superiority Strategy of the Department of Defense.

(3) An analysis of how such design architecture is expected to support high-periodicity training, testing, research, and development, including to inform future network designs and architectures capable of interconnecting and supporting future, advanced, joint, live, virtual, and constructive environments.

(4) An analysis of the number and types of annually recurring and non-recurring training and experimentation activities conducted at training ranges and experimentation sites of the military departments located in the Eastern Regional Range Complex region.

(5) An identification of any shortfalls in the networks, facilities, or equipment of such ranges or sites.

(6) An analysis of any statutory or intergovernmental policy barriers to the use of the Eastern Regional Range Complex, and any recommended changes to accelerate such use.

(7) An analysis of the capacity of the Eastern Regional Range Complex to be used for additional testing and evaluation activities.

(8) An analysis of the possibility of using training ranges and experimentation sites located in the Eastern Regional Range Complex region as threat-

relevant environments for the workforce and technology development activities of other Federal department agencies and private sector entities in the United States.

(9) An analysis of the capacity of such ranges and sites to be used for realistic advanced cyber, electronic warfare, and information operations training in live, virtual, or constructive environments.

(10) An analysis of electronic warfare training shortfalls at military installations located in the United States, including with respect to the ability to perform full spectrum electronic warfare training in environments considered unobservable.

(11) An analysis of the feasibility and advisability of establishing, or expanding, dedicated training areas for electronic warfare capabilities in the United States and territories of the United States located in the Caribbean region (including in the immediate vicinity of such locations).

(e) EASTERN REGIONAL RANGE COMPLEX REGION DEFINED.—In this section, the term ''Eastern Regional Range Complex region'' means the region encompassing the territories specified in 1048(b) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. note prec. 4171).

(f) TERMINATION.—This section shall terminate on September 30, 2029.

SEC. 1063. PILOT PROGRAM ON TOTAL REPLACEMENT VALUE FOR AIR FORCE TEST CENTER GROUND TEST INFRASTRUCTURE.

(a) PILOT PROGRAM.—Not later than one year after the date of the enactment of this section, the Secretary of the Air Force shall carry out a pilot program to adopt Total Replacement Value as the standard methodology for calculating cost for ground test infrastructure assets of the Air Force Test Center.

(b) ELEMENTS.—The pilot program shall include—

(1) a calculation of the Total Replacement Value for each ground test infrastructure asset of the Air Force Test Center, including separate calculations of Plant Replacement Value and Equipment Replacement Value; and

(2) an association of non-real property installed test equipment with Real Property Unique Identifiers (or a similar identifier for real property or other assets authorized by the Secretary of Defense) in the Defense Property Accountability System, or a successor system, to enable ongoing tracking of Equipment Replacement Value.

(c) REQUIREMENTS.—The Secretary of the Air Force shall—

(1) beginning in fiscal year 2028, include in the budget justification materials submitted annually to Congress the Total Replacement Value for all ground test infrastructure assets of the Air Force Test Center, the amount requested for sustainment of such ground test infrastructure assets as a percentage of such Total Replacement Value, and, if that percentage is less than two percent, an explanation of the shortfall and the projected impact on infrastructure readiness; and

(2) submit to the congressional defense committees, not later than one year after the date of the enactment of this section, a plan to achieve a funding level for sustainment of such ground test infrastructure assets of not less than two percent of the Total Replacement Value for such assets for a fiscal year, including projected milestones to maintain such funding level for a five-year period.

(d) REPORT.—Not later than three years after the date of the enactment of this section, the Secretary of the Air Force shall submit to the congressional defense committees a report on the pilot program that includes—

(1) an assessment of the use of Total Replacement Value as a methodology as the standard methodology for calculating costs for ground test infrastructure assets of the Air Force Test Center;

(2) an assessment of funding levels for ground test infrastructure assets of the Air Force Test Center compared to the Total Replacement Value calculated during the pilot program; and

(3) a recommendation on whether and how to expand the use of the Total Replacement Value methodology to all ground test infrastructure assets of the Major Range and Test Facility Base (as defined in section 4173(j) of title 10, United States Code).

(e) RECOMMENDATION.—Not later than one year after the date of the submission of the report required under subsection (d), the Under Secretary of Defense for Research and Engineering shall review the recommendation described in subsection (d)(4) and determine whether to use the Total Replacement Value methodology for all ground test infrastructure assets of the Major Range and Test Facility Base.

(f) TERMINATION.—The pilot program shall terminate on the earlier of—

(1) the date on which the Under Secretary of Defense of Research and Engineering begins use of the Total Replacement Value methodology for all ground test infrastructure assets of the Major Range and Test Facility Base; or

(2) the date that is five years after the date of the enactment of this section.

(g) DEFINITIONS.—In this section:

(1) The term ''Equipment Replacement Value'' means the estimated cost to replace the non-real property installed test equipment within a ground test infrastructure asset, calculated using the same methodology as Plant Replacement Value is calculated.

(2) The term ''Plant Replacement Value'' means the estimated cost to replace the physical structure of a ground test infrastructure asset.

(3) The term ''Total Replacement Value'' means the sum of Plant Replacement Value and Equipment Replacement Value.

SEC. 1064. PILOT PROGRAM FOR BLOCKCHAIN-ENABLED INVENTORY MANAGEMENT.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense may establish a pilot program under which the Depart-

ment of Defense shall use commercially available distributed ledger technology to seek to improve inventory management within the Department of Defense.

(b) OBJECTIVES.—Under the pilot program established under subsection (a), the Secretary shall—

(1) assess the feasibility and effectiveness of using distributed ledger technology in improving inventory management;

(2) assess the cost savings resulting from the use of distributed ledger technology in inventory management;

(3) assess whether the use of distributed ledger technology in inventory management improves the traceability of inventory;

(4) assess whether the use of distributed ledger technology in inventory management reduces the risk of waste, fraud, and abuse; and

(5) identify and mitigate potential challenges and risks associated with the integration of distributed ledger technology for inventory management, including cybersecurity concerns.

(c) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the

activities performed under the pilot program established under subsection (a).

(d) TERMINATION.—The authority to carry out a pilot program under subsection (a) shall terminate on January 1, 2029.

(e) DEFINITIONS.—In this section:

(1) The term ''distributed ledger'' means a ledger that—

(A) is shared across a set of distributed nodes, which are devices or processes, that participate in a network and store a complete or partial replica of the ledger;

(B) is synchronized between the nodes; and

(C) has data appended to it by following a specified consensus mechanism.

(2) The term ''distributed ledger technology'' means technology that enables the operation and use of distributed ledgers.

SEC. 1065. EXTENDED DEADLINE TO REASSESS NECESSITY OF USE OF IMMEDIATE RESPONSE AUTHORITY OF DEPARTMENT OF DEFENSE.

(a) EXTENDED DEADLINE.—Not later than July 1, 2027, the Secretary of Defense shall—

(1) issue an updated version of Department of Defense Instruction 3025.18, titled ''Defense Sup-

port of Civil Authorities (DSCA)'' with a revision to require that each reassessment as to whether there remains a necessity for the use of an immediate response authority pursuant to a request for assistance is completed by not later than one week after the date on which such request is received; and

(2) submit to the congressional defense committees a notification of such issuance.

(b) IMMEDIATE RESPONSE AUTHORITY DEFINED.—In this section, the term ''immediate response authority'' has the meaning given such term in Department of Defense Instruction 3025.18, titled ''Defense Support of Civil Authorities (DSCA)''.

SEC. 1066. RECONSTITUTION OF A–10 DEMONSTRATION TEAM.

(a) RECONSTITUTION REQUIRED.—The Secretary of the Air Force may reconstitute and operate an A–10 demonstration team to support public outreach, recruiting, heritage, and official commemorative events associated with the 250th anniversary of the founding of the United States.

(b) PURPOSE.—A demonstration team reconstituted and operated under subsection (a) shall—

(1) honor the combat legacy and service history of the A–10 Thunderbolt II;

(2) promote pride in American airpower and the service of the men and women of the United States Air Force;

(3) support appropriate public events, airshows, military ceremonies, and official anniversary observances connected to the 250th anniversary of the founding of the United States; and

(4) preserve and showcase the heritage of the A–10 community and the A–10 mission set.

(c) TEAM COMPOSITION.—In carrying out this section, the Secretary may designate such aircraft, aircrew, maintainers, support personnel, and associated equipment as the Secretary determines necessary to establish and operate the demonstration team.

(d) LIMITATION.—Aircraft designated for the demonstration team under this section—

(1) shall be drawn from A–10 aircraft otherwise retained in the inventory of the Air Force; and

(2) may not be retired, divested, or transferred solely on the basis of designation for demonstration purposes during the period in which the team operates.

(e) BRIEFING.—Not later than 120 days after the date of the enactment of this Act, the Secretary of the Air Force shall provide to the congressional defense com-

mittees a briefing on whether the Secretary plans to exercise the authority under this section, and if so, the plan to implement this section. If the Secretary does plan to exercise the authority under this section, the briefing shall include—

(1) the number of aircraft to be assigned to the demonstration team;

(2) the expected cost and source of funds for such team;

(3) the anticipated schedule of appearances and commemorative events;

(4) the basing location of the team;

(5) any safety, maintenance, and sustainment requirements associated with operation of the team; and

(6) an assessment of the feasibility and advisability of rebasing the demonstration team at Davis-Monthan Air Force Base, Arizona.

(f) TERMINATION.—The authority to operate a demonstration team under this section shall terminate on September 30, 2033.

SEC. 1067. IMPLEMENTATION OF COGNITIVE PERFORMANCE ENHANCEMENT PROGRAM FOR SPECIAL OPERATIONS FORCES.

(a) IMPLEMENTATION.—Not later than 90 days after the date of the enactment of this Act, the Commander of the United States Special Operations Command shall implement a cognitive performance enhancement program to enhance cognitive performance metrics across the special operations forces. The program shall be known as the ''Cognitive Performance Enhancement Program'', and the Commander shall include the program in the strategy titled ''Comprehensive Strategy for Special Operations Warfighter Brain Health''.

(b) OBJECTIVES.—The Commander shall ensure that the Cognitive Performance Enhancement Program—

(1) improves readiness, resilience, and recovery, using evidence-based holistic and proactive high-performance brain training that has a validated ability to scale cost-effectively across the special operations forces enterprise;

(2) clearly distinguishes cognitive performance enhancement from brain decline and injuries, including with respect to traumatic brain injury, chronic traumatic encephalopathy, and mental health, including post-traumatic stress disorder;

(3) increases awareness of cognitive performance as a critical differentiator that can help ensure special operations forces remains the most lethal, decisive irregular warfare force of the United States; and

(4) ensures baseline cognitive performance assessments, training, and enhancement are included as an essential element of training and assessment throughout the career of a member of the Armed Forces in the special operations forces in a similar manner to other physical training and performance metrics.

(c) BRIEFING.—Not later than one year after the date on which the Commander commences the implementation of the Cognitive Performance Enhancement Program, the Commander shall provide to the Committees on Armed Services of the House of Representatives and the Senate a briefing that includes—

(1) an assessment of cognitive performance enhancement tools used under the Program and whether the tools qualitatively improved readiness, resilience, and recovery for members of the Armed Forces in the special operations forces;

(2) an assessment of how enhanced cognitive performance contributes to operational advantages to the special operations forces; and

(3) any recommendations with respect to the feasibility of implementing cognitive enhancement assessment and training programs across the conventional force.

SEC. 1068. SENATOR ROBERT J. DOLE GREATEST GENERATION EDUCATION PROGRAM.

(a) ESTABLISHMENT OF PROGRAM.—The Secretary of Defense shall establish and carry out a comprehensive educational program to increase public awareness and understanding of the achievements, sacrifices, and enduring lessons of the Greatest Generation in winning World War II. The Secretary shall design the program to—

(1) teach the lessons of yesterday to unite the generations of tomorrow, strengthening the bonds between young and old people of the United States;

(2) instill patriotism and pride in the young people of the United States by sharing the stories of courage, sacrifice, resilience, and unity demonstrated during World War II; and

(3) offer hope for the future by demonstrating how the people of the United States, when unified in purpose, can overcome the greatest challenges.

(b) GRANTS.—Under the program established by subsection (a), the Secretary may make grants to State and local governments, subject to the limitation under subsection (c), and nonprofit organizations. A recipient of such a grant shall use the grant to carry out educational activities for the general public anywhere in the United States that are designed to—

(1) honor and thank World War II veterans, including those who were prisoners of war or listed as missing in action, and their families, for their service and sacrifice;

(2) educate the public about the service and contributions of the United States Armed Forces during World War II, as well as the efforts of Federal agencies, allied nations, and nongovernmental organizations;

(3) promote awareness of the vital role of the home front in the United States during World War II, including the contributions of workers, families, and communities;

(4) remember the Holocaust and honor the memory of its victims, as well as recognizing the Allied forces who liberated Nazi concentration camps;

(5) support programs that engage students and young people of the United States in learning about

World War II, fostering civic pride, historical understanding, and national unity; and

(6) support programming and events held at nationally significant sites of remembrance, such as the National World War II Memorial, to reinforce public awareness and provide immersive educational experiences that honor the legacy of the Greatest Generation.

(c) LIMITATION.—A State government that receives a grant under this section may only use the grant for a new initiative and may not use the grant to provide programming that is part of a secondary education program provided by the State.

(d) NAMES AND SYMBOLS.—The Secretary of Defense shall have the sole and exclusive right to use the name ''Senator Robert J. Dole Greatest Generation Education Program'', as well as any associated seal, emblem, or badge. Nothing in this paragraph shall be construed to supersede any rights lawfully established prior to the date of enactment of this Act.

(e) NONPROFIT ORGANIZATION DEFINED.—The term ''nonprofit organization'' means an organization described in section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from taxation under section 501(a) of such Code.

SEC. 1069. RECOGNITION PROGRAM FOR WORKING DOGS.

(a) ESTABLISHMENT OF PROGRAM.—The Secretary of Defense shall establish a program to recognize working dogs for actions that contribute to mission success, including actions that—

(1) enhance force protection;

(2) support lifesaving efforts; or

(3) otherwise demonstrate exceptional service in the performance of assigned duties.

(b) RELATIONSHIP TO OTHER HONORS.—Recognition of a working dog under this section may not be considered equivalent to, or otherwise diminish, an honor, award, or sacrifice of a member of the Armed Forces or a veteran.

(c) PRESENTATION.—Recognition of a working dog under this section may occur during an official military event in a manner that clearly distinguishes such recognition from an honor or award of a member of the Armed Forces or a veteran.

(d) RECORDS.—Recognition of a working dog under this section may be recorded in the official service documentation maintained for such working dog.

SEC. 1070. PROHIBITION ON AVAILABILITY OF FUNDS FOR CLOSURE OF ROCK ISLAND ARSENAL MUSEUM.

None of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Army may be obligated or expended to close the Rock Island Arsenal Museum located in Rock Island Arsenal, Illinois.

SEC. 1071. LIMITATION ON AVAILABILITY OF FUNDS FOR DEACTIVATION OF EXPEDITIONARY COMBAT AVIATION BRIGADES.

(a) LIMITATION.—None of the funds authorized to be appropriated or otherwise made available for any of fiscal years 2027 through 2031 for the Army may be obligated or expended to retire, deactivate, schedule to deactivate, or proceed with any other action that would reduce the capabilities, resources, training, aircraft, or personnel available, as of the date of the enactment of this Act, for the Expeditionary Combat Aviation Brigades unless the Secretary of the Army submits to the congressional defense committees—

(1) a certification that the Secretary of the Army plans to recapitalize any such aircraft for the Expeditionary Combat Aviation Brigades and to otherwise restore any such capabilities, resources, train-

ing, or personnel levels reduced to the levels preceding such retirement, deactivation, or reduction;

(2) the plan of the Secretary of the Army for the actions specified in paragraph (1); and

(3) a report containing—

(A) an assessment of any planned reduction of capability to Army aviation within the Army Reserve, including reductions by platform and end strength and all changes under the transformation initiative;

(B) an assessment of the effect of such reduction on operational risk, readiness, and mission capability, taking into consideration the operational tempo and missions conducted by the Army during the five-year period preceding the date of the report;

(C) an identification of any military construction projects delayed, modified, or canceled as a result of such reductions;

(D) an assessment of the remaining Army Reserve rotary-wing and fixed-wing aviation capacity, by platform, relative to validated mission requirements;

(E) the scale of the divestment of the Expeditionary Combat Aviation Brigades as of the

date of the enactment of this Act and the effect of such divestment on Army Reserve aviation capabilities, including the number of remaining rotary wing aircraft, by platform, required to meet mission requirements;

(F) a detailed breakdown of options available to the members of the Armed Forces and civilian employees affected by such divestment of the Expeditionary Combat Aviation Brigades to continue service in the Armed Forces or Department of Defense, as applicable, including an identification of the number of affected members and employees by specialty;

(G) an evaluation of the effect on State and local communities of divesting the Expeditionary Combat Aviation Brigades, including economic and workforce effects; and

(H) a description of any strategic or scenario-based analysis or modeling used for making decisions to divest the Expeditionary Combat Aviation Brigades.

(b) REQUIREMENT TO RESTORE.—

(1) REQUIREMENT.—Not later than one year after the date of the enactment of this Act, for any Expeditionary Combat Aviation Brigade that, prior

to such date of enactment, the Secretary of the Army retired or deactivated (or carried out any other activity to reduce the capabilities, resources, requisite individual or unit proficiency or qualification training, aircraft, or personnel thereof), the Secretary of the Army shall reinstate or reactivate such brigade, or otherwise restore such brigade to the levels preceding such reduction, as the case may be.

(2) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of the Army shall submit to the congressional defense committees a report on the implementation of this subsection.

(c) PLAN REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall submit to the congressional defense committees a plan to sustain and modernize the aircraft, readiness generation capacity, maintenance infrastructure, and requisite individual and unit training associated with the Expeditionary Combat Aviation Brigades.

SEC. 1072. LIMITATION ON AVAILABILITY OF FUNDS FOR TRAVEL EXPENSES OF THE OFFICE OF THE SECRETARY OF DEFENSE.

Of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for operation and maintenance, defense-wide, and available for the Office of the Secretary of Defense for travel expenses, not more than 75 percent may be obligated or expended until the Secretary of Defense submits to the congressional defense committees a certification that the Department of Defense is compliant with the requirements of section 1067 of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 138 Stat. 2066), including—

(1) a written statement that a copy of each execute order required to be submitted to the congressional defense committees under subsection (c) of such section has been so submitted; and

(2) a description of the mechanism established to facilitate the provision to the congressional defense committees of all future briefings required under subsection (a) of such section, and the compliance with the disclosure and notice requirements under subsection (c) of such section, within the timeframes required by such section.

SEC. 1073. LIMITATION ON AVAILABILITY OF FUNDS FOR TRAVEL EXPENSES OF OFFICE OF THE SECRETARY OF DEFENSE UNTIL SUBMISSION CERTAIN ASSESSMENT.

Of the funds authorized to be appropriated by this Act for fiscal year 2027 for operation and maintenance, Defense-wide, and available for the Office of the Secretary of Defense for travel expenses, not more than 95 percent may be obligated or expended until the Secretary of Defense submits the assessment required by section 835(a)(1) of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118-31; 137 Stat. 338).

SEC. 1074. STRATEGY FOR COUNTERING FOREIGN MALIGN INFLUENCE ACTIVITIES CONDUCTED IN COGNITIVE DOMAIN.

(a) STRATEGY REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a strategy for identifying, assessing, and countering foreign malign influence activities conducted in the cognitive domain by foreign adversaries.

(b) ELEMENTS.—The strategy required under subsection (a) shall include—

(1) an assessment of threats posed by disinformation, psychological operations, propaganda, and other influence activities conducted by

foreign adversaries targeting members of the Armed Forces, military families, and national security interests of the United States;

(2) a description of Department of Defense capabilities to counter such activities;

(3) an assessment of capability gaps, organizational challenges, and resource requirements that relate to countering such activities; and

(4) recommendations for improving Department efforts to identify, deter, and counter foreign malign influence activities in the cognitive domain.

(c) FORM.—The strategy required under subsection (a) shall be submitted in unclassified form but may include a classified annex.

SEC. 1075. DISCLOSURE OF FOREIGN GIFTS MADE TO MILITARY COLLEGES.

Chapter 101 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 2018. Military colleges: disclosures of foreign gifts

''(a) DISCLOSURE REPORT REQUIRED.—(1) Whenever any military college receives a gift from a foreign source or enters into a covered contract, the value of which is $50,000 or more, considered alone or in combination with all other gifts from or contracts with that foreign

source in a calendar year, the military college shall submit a report to the Secretary of Defense.

''(2)(A) Each report to the Secretary required by this subsection shall include the following:

''(i) With respect to gifts received from, or contracts entered into with, a foreign source other than a foreign government, the aggregate dollar amount of such gifts and contracts attributable to a particular country.

''(ii) With respect to gifts received from, or contracts entered into with, a foreign government, the aggregate amount of such gifts and contracts received from such foreign government.

''(B) For purposes of subparagraph (A), the country to which a gift is attributable is—

''(i) with respect to a foreign source who is a natural person, the country of citizenship of the foreign source or, if the country of citizenship is unknown, the country in which the principal residence of the foreign source is located; and

''(ii) with respect to a foreign source that is a legal entity, the country of incorporation of the foreign source or, if the country of incorporation is unknown, the country in which the principal place of business of the foreign source is located.

''(3) Each report required under paragraph (1) shall be submitted to the Secretary not later than the earlier of the January 31 or July 31 immediately following the receipt of the gift or the entering into of the covered contract that causes a report to be required to be submitted under paragraph (1).

''(b) ADDITIONAL DISCLOSURES FOR RESTRICTED AND CONDITIONAL GIFTS.—Not later than 30 days after the date on which a military college receives a restricted or conditional gift or contract from a foreign source, the military college shall submit a report to the Secretary containing the following:

''(1) For a restricted or conditional gift or contract involving a foreign source other than a foreign government—

''(A) the amount of the gift or contract, the date on which the gift was received or the contract was entered into, and a description of the conditions or restrictions on the gift or contract;

''(B) with respect to a foreign source that is a natural person, the country of citizenship of the foreign source or, if the country of citizenship is unknown, the country in which the

principal residence of the foreign source is located; and

''(C) with respect to a foreign source that is a legal entity, the country of incorporation of the foreign source or, if the country of incorporation is unknown, the country in which the principal place of business of the foreign source is located.

''(2) For a restricted or conditional gift or contract involving a foreign source that is a foreign government—

''(A) the amount of the gift or contract, the date on which the gift was received or the contract was entered into, a description of the conditions or restrictions on the gift or contract; and

''(B) the name of the foreign government.

''(c) PUBLIC AVAILABILITY.—The Secretary shall make publicly available on an Internet website of the Department of Defense each report required to be submitted under this section.

''(d) ENFORCEMENT.—(1) Whenever it appears that a military college has failed to comply with the requirements of this section, including any rule or regulation promulgated under this section, a civil action may be brought

by the Attorney General, at the request of the Secretary, in an appropriate district court of the United States, or the appropriate United States court of any territory or other place subject to the jurisdiction of the United States, to request such court to compel compliance with the requirements of this section.

''(2) For knowing or willful failure to comply with the requirements of this section, including any rule or regulation promulgated thereunder, a military college shall pay to the Treasury of the United States the full costs to the United States of obtaining compliance, including all associated costs of investigation and enforcement.

''(e) ANNUAL REPORT.—Not later than March 1 of each year, the Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on foreign gifts to military colleges during the preceding year. Each report shall include, for the year covered by the report, an identification of each foreign gift for which disclosure was required under subsection (a) or subsection (b) and for each such gift—

''(1) the foreign government or foreign source that provided the gift;

''(2) the military college that received the gift;

''(3) the dollar value of the gift; and

''(4) the purpose of the gift.

''(f) DEFINITIONS.—In this section:

''(1) The term 'covered contract' means any agreement for the acquisition by purchase, lease, or barter of property or services by a foreign source for the direct benefit or use of any of the parties to the agreement.

''(2) The term 'foreign source' means—

''(A) a foreign government, including an agency of a foreign government;

''(B) a legal entity, governmental or otherwise, created solely under the laws of a foreign state or multiple foreign states;

''(C) an individual who is not a citizen or a national of the United States; and

''(D) an agent, including a subsidiary or affiliate of a foreign legal entity, acting on behalf of an individual or entity described in subparagraph (A), (B), or (C).

''(3) The term 'gift'—

''(A) means any gift of money, property, travel, or lodging expenses; and

''(B) with respect to a military college, includes gifts given to faculty, staff, and trustees of the military college.

''(4) The term 'military college' means—

"(A) a senior military college described in section 2111a(f) of this title; or

"(B) a military junior college as defined for purposes of section 2107a of this title.

"(5) The term 'restricted or conditional gift or contract' means an endowment, gift, grant, contract, award, or property of any kind that includes provisions regarding—

"(A) the employment, assignment, or termination of faculty;

"(B) the establishment of a department, center, research or lecture program, or new faculty position;

"(C) the selection or admission of a student; or

"(D) the award of a grant, loan, scholarship, fellowship, or other form of financial aid restricted to students of a specified country, religion, sex, ethnic origin, or political opinion.".

SEC. 1076. AUTHORITY TO MAINTAIN DEPARTMENT OF THE NAVY LIBRARY.

Chapter 803 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 8030. Department of the Navy: library

''(a) AUTHORITY.—The Secretary of the Navy may maintain in the Department of the Navy a library as a centralized institution dedicated to preserving, curating, and providing access to historical records, technical documents, and educational resources pertinent to the mission and heritage of the Department of the Navy.

''(b) MISSION.—The mission of a library maintained under this section shall include the following:

''(1) Collecting and preserving naval historical records, manuscripts, artifacts, and publications.

''(2) Supporting research, education, and training for historians, the general public, and personnel of the Department of the Navy.

''(3) Enhancing the institutional knowledge and operational readiness of the Department of the Navy through access to technical, strategic, operational, and doctrinal resources.

''(4) Promoting public understanding of the contributions of the Navy and Marine Corps to national defense and maritime history.

''(5) Supporting such other missions, functions, activities, and requirements of the Department of the Navy as the Secretary of the Navy considers appropriate.''.

SEC. 1077. CEREMONIAL HORSES ADOPTION PROGRAM OF THE ARMY.

Section 2583(c) of title 10, United States Code, is amended—

(1) in paragraph (1), by striking ''A military animal'' and inserting, ''Except as provided in paragraph (3), a military animal''; and

(2) by adding at the end the following new paragraph:

''(3) If the Secretary of the Army determines that an adoption or transfer of a horse used in any ceremonial horse program of the Army is justified under subsection (a), the Secretary shall follow the recommended priority order in paragraph (1) except that the Secretary shall give first priority to making the horse available for transfer to a State, local, municipal, or Tribal law enforcement agency capable of humanely caring for the horse (including by demonstrating the capability to adequately care, house, and train the horse).''.

Subtitle E—Studies and Reports

SEC. 1081. REPEAL OF OBSOLETE REPORTING REQUIREMENTS.

(a) JOINT SAFETY COUNCIL BRIEFINGS.—Section 185 of title 10, United States Code, is amended by striking subsection (l).

(b) BRIEFINGS ON BASIC HOUSING ALLOWANCE FOR MEMBERS WITHOUT DEPENDENTS WHEN HOME PORT CHANGE WOULD FINANCIALLY DISADVANTAGE MEMBER.—Section 403(p)(2) of title 37, United States Code, is amended by striking subparagraph (C).

(c) COSTS OF FORWARD- DEPLOYING NUCLEAR WEAPONS IN EUROPE BRIEFING.—The National Defense Authorization Act for Fiscal Year 2016 (Public Law 114–92) is amended by striking section 1656.

(d) LITTORAL COMBAT SHIP REPORT.—Section 123 of the National Defense Authorization Act for Fiscal Year 2014 (Public Law 114–328; 130 Stat. 2030) is amended—

(1) by striking subsection (a); and

(2) by redesignating subsections (b) through (e) as subsections (a) through (d), respectively.

(e) ANNUAL EXPLOSIVE ORDNANCE DISPOSAL FUNDING DOCUMENTS.—Section 343 of the National Defense Authorization Act for Fiscal Year 2017 (Public Law 114–328; 130 Stat. 2082; 10 U.S.C. 2701 note) is amended—

(1) by striking subsection (b); and

(2) by redesignating subsections (c) through (e) as subsections (b) through (d), respectively.

(f) REPORT ON MILITARY ACTION OF SAUDI ARABIA AND ITS COALITION PARTNERS IN YEMEN.—The National Defense Authorization Act for Fiscal Year 2018 (Public Law 115–91) is amended by striking section 1265.

(g) CONSOLIDATION OF REPORTS ON UNITED STATES ARMED FORCES, CIVILIAN EMPLOYEES, AND CONTRACTORS DEPLOYED IN SUPPORT OF OPERATION INHERENT RESOLVE, OPERATION FREEDOM'S SENTINEL, AND ASSOCIATED AND SUCCESSOR OPERATIONS.—Section 1267 of the National Defense Authorization Act for Fiscal Year 2018 (Public Law 115–91) is amended—

(1) by striking subsection (a) through (d);

(2) by striking ''(f) REPEAL OF SUPERSEDED PROVISION.—''; and

(3) by amending the section heading to read as follows:

''SEC. 1267. REPEAL OF SUPERSEDED PROVISION.''.

(h) STRATEGY TO COUNTER DESTABILIZING ACTIVITIES OF IRAN.—The John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232) is amended by striking section 1237.

(i) STUDY ON EMERGING BIOTECHNOLOGIES.—The National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking section 263.

(j) ANNUAL REPORT ON PROGRESS TOWARD DEPOT INFRASTRUCTURE IMPROVEMENT.—Section 359 of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–9; 133 Stat. 1323; 10 U.S.C. 2476 note) is amended by striking subsection (c).

(k) ANNUAL REPORT OF DEFENSE ADVISORY COMMITTEE FOR THE PREVENTION OF SEXUAL MISCONDUCT.—Section 550B of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92; 133 Stat. 1381; 10 U.S.C. 1561 note) is amended by striking subsection (d).

(l) ANNUAL REPORT ON PROGRAMS TO FACILITATE AWARD OF PRIVATE PILOT'S CERTIFICATES.—Section 560B of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92; 133 Stat. 1393; 10 U.S.C. 2015 note).

(m) REPORT ON LEGAL INSTITUTIONAL CAPACITY BUILDING INITIATIVE.—Section 1210 of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended—

(1) by striking subsection (d); and

(2) by redesignating subsections (e) and (f) as subsections (d) and (e), respectively.

(n) REPORT ON UPDATED STRATEGY.—Section 1239 of the National Defense Authorization Act for Fiscal Year

2020 (Public Law 116–92; 133 Stat. 1655) is amended by striking subsection (c).

(o) STUDY ON COMPETITIVE STRATEGIES WITH RESPECT TO CHINA.—Section 1253 of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92; 133 Stat. 1669) is amended by striking subsection (c).

(p) REPORT ON LAY-DOWN OF MARINES IN INDO-PACIFIC.—The National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking section 1260K.

(q) REPORT ON SAUDI-LED COALITION STRIKES IN YEMEN.—The National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking section 1274.

(r) REPORTS ON EXPENSES INCURRED FOR INFLIGHT REFUELING OF SAUDI COALITION AIRCRAFT.—The National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking section 1275.

(s) REPORT ON COST IMPOSITION STRATEGY.—The National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking section 1280.

(t) ANNUAL MILITARY CYBERSPACE OPERATIONS REPORT.—The National Defense Authorization Act for

Fiscal Year 2020 (Public Law 116–92) is amended by striking section 1644.

(u) INDEPENDENT STUDY ON POLICY OF NO-FIRST-USE OF NUCLEAR WEAPONS.—The National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking section 1673.

(v) INDEPENDENT STUDY ON RISKS OF NUCLEAR TERRORISM AND NUCLEAR WAR.—The National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking section 1674.

(w) REPORT ON MILITARY-TO-MILITARY DIALOGUE TO REDUCE RISKS OF MISCALCULATION LEADING TO NUCLEAR WAR.—The National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking section 1675.

(x) REPORT ON TRANSFERS OF EQUIPMENT TO PROHIBITED ENTITIES.—The National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking section 1722.

(y) PILOT PROGRAM ON SELF-DIRECTED TRAINING IN ADVANCED TECHNOLOGIES.—The William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283) is amended by striking section 248.

(z) REPORT ON TEMPORARY EXPANSION OF AVAILABILITY OF ENHANCED CONSTRUCTIVE SERVICE CREDIT IN A PARTICULAR CAREER FIELD UPON ORIGINAL APPOINTMENT AS A COMMISSIONED OFFICER.—Section 503 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 134 Stat. 3564; 10 U.S.C. 533 note) is amended by striking subsection (c).

(aa) BRIEFING ON USE OF EXISTING EXCHANGE PROGRAM AUTHORITY.—Section 1102 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 134 Stat. 3885) is amended by striking subsection (e).

(bb) REPORT ON ENHANCING SECURITY PARTNERSHIPS BETWEEN THE US AND AFRICAN COUNTRIES.—The William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283) is amended by striking section 1293.

(cc) REPORT ON PROGRESS WITH RESPECT TO DENYING STRATEGIC GOALS OF COMPETITORS AGAINST DEFENSE PARTNERS.—The William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283) is amended by striking section 1299G.

(dd) QUARTERLY REPORTS ON EQUIPMENT DISPOSITION.—Section 1521(c) of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 134 Stat. 4035) is amended by striking paragraph (5).

(ee) IMPLEMENTATION OF GAO RECOMMENDATIONS ON PREVENTING TACTICAL VEHICLE TRAINING ACCIDENTS.—The National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81) is amended by striking section 377.

(ff) SUBMISSION TO CONGRESS OF CERTAIN RESEARCH AND ANALYSIS RELATING TO RETENTION OF FEMALE SURFACE WARFARE OFFICERS.—Section 505(c) of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 135 Stat. 1680) is amended—

(1) by striking paragraph (2);

(2) by striking ''(1) IN GENERAL.—''; and

(3) by adjusting the text beginning with ''Not later than'' and ending with ''subsection (a).'' to appear immediately following and in line with ''(c) REPORTS.—''.

(gg) ANNUAL REPORT ON HIGHEST AND LOWEST PERFORMING ACQUISITION PROGRAMS.—The National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81) is amended by striking section 806.

(hh) REPORT ON RUSSIAN INFLUENCE OPERATIONS TARGETING US ALLIANCES.—The National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81) is amended by striking section 1235.

(ii) FEASIBILITY BRIEFING ON COOPERATION BETWEEN THE NATIONAL GUARD AND TAIWAN.—The National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81) is amended by striking section 1249.

(jj) NOTIFICATION RELATING TO OVERSEAS HUMANITARIAN, DISASTER, AND CIVIL AID FUNDS OBLIGATED IN SUPPORT OF OPERATION ALLIES WELCOME.—The National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81) is amended by striking section 1324.

(kk) ANNUAL STATUS UPDATES ON CHILD CARE AVAILABILITY.—Section 2816 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 135 Stat. 2194; 10 U.S.C. 1971 note) is amended—

(1) by striking subsection (d); and

(2) by redesignating subsection (e) as subsection (d).

(ll) STRATEGY AND PLAN FOR FOSTERING AND STRENGTHENING DEFENSE INNOVATION ECOSYSTEM.—Section 236 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2491) is amended—

(1) by striking subsections (d) through (f); and

(2) by redesignating subsection (g) as subsection (d).

(mm) PLAN FOR INVESTMENTS TO SUPPORT DEVELOPMENT OF NOVEL PROCESSING APPROACHES.—The James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263) is amended by striking section 233.

(nn) STRATEGY FOR INCREASING COMPETITIVE OPPORTUNITIES FOR CERTAIN CRITICAL TECHNOLOGIES.—The James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263) is amended by striking section 861.

(oo) BRIEFINGS ON UNIVERSAL PRE-KINDERGARDEN PROGRAMS.—The National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) is amended by striking section 587.

(pp) REPORT ON RESOURCING OF ARCTIC STRATEGY.—Section 1071 of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 138 Stat. 2070) is amended—

(1) by striking subsection (c); and

(2) by redesignating subsections (d) and (e) as subsections (c) and (d), respectively.

SEC. 1082. EXTENSION OF BRIEFING REQUIREMENT REGARDING CIVIL AUTHORITIES AT THE SOUTHWEST BORDER.

Section 1070 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2791), as most recently amended by section 1064 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 1046), is further amended by striking ''through December 31, 2026'' and inserting ''through December 31, 2027''.

SEC. 1083. EXTENSION OF REQUIREMENT FOR ANNUAL BRIEFINGS ON NATIONAL BIODEFENSE STRATEGY.

Section 1086(d) of the National Defense Authorization Act for Fiscal Year 2017 (Public Law 114–328; 6 U.S.C. 104(d)) is amended by striking ''March 1, 2025'' and inserting ''March 1, 2031''.

SEC. 1084. ANNUAL REPORT AND BRIEFING ON IMPLEMENTATION OF ARMY TRANSFORMATION INITIATIVE.

(a) IN GENERAL.—Not later than February 15, 2027, and annually thereafter through February 15, 2032, the Secretary of the Army shall submit to the congressional defense committees a report detailing the programmatic choices made to implement the Army Continuous Transformation initiative, the Army Transformation

Initiative, and the Transformation in Contact initiative, including both new developmental and fielded capabilities, as well as capabilities and capacity divested to accelerate implementation of the Army Continuous Transformation initiative.

(b) BRIEFING REQUIREMENT.—Not later than March 15, 2027, and annually thereafter through March 15, 2032, the Secretary of the Army shall provide to the congressional defense committees a briefing on the elements described under subsection (c).

(c) ELEMENTS.—Each report required under subsection (a), and each briefing required under subsection (b), shall include the following elements:

(1) An assessment of changes in the national defense strategy, the Defense Planning Guidance, the Joint Warfighting Concept (and associated concept required capabilities), and any other planning process of the Department of Defense that informed the initiatives specified in subsection (a).

(2) An inventory and assessment of the exercises and experimentation relating to the Army Continuous Transformation initiative, beginning in fiscal year 2023, including an identification of the capabilities involved and the extent to which such exer-

cises and experimentation validated or militated against proposed capability investments.

(3) An inventory of divestments of capabilities or capacity, whether force structure and equipment, beginning in fiscal year 2023, including the following information:

(A) A timeline of the progress of each such divestment.

(B) The type of force structure or equipment divested or reduced.

(C) The percentage of force structure or equipment divested or reduced, including any equipment entered into inventory management or another form of storage.

(D) The rationale and context behind such divestment.

(E) An identification of whether such divestment affects the ability of the Army to meet the requirements of the Global Force Management process and operational plans, including an explanation of how the Army plans to mitigate the loss of such capability or capacity if the divestment affects the ability of the Army to meet the requirements of the Global Force Management process and operational plans, in-

cluding through new investments, additional joint planning and training, or other methods.

(F) An assessment of the actual and projected recruitment and retention percentages for the Army, beginning in fiscal year 2023.

(4) An inventory of extant or planned investments in capabilities as a part of the Army Continuous Transformation initiative, disaggregated by combat vehicles, rotary aircraft, munitions, and reconnaissance and counter-reconnaissance forces, including—

(A) capability name;

(B) capability purpose and context;

(C) capability being replaced (or not applicable);

(D) date of initial operation capability;

(E) date of full operational capability;

(F) deliveries of units by year; and

(G) approved acquisition objective or similar inventory objective.

(5) An assessment of how the investments described in paragraph (4) contribute to joint force efficacy in new ways, including through the support of other Armed Forces.

SEC. 1085. QUARTERLY REPORTS ON EFFECTS OF UNPLANNED GLOBAL TASKINGS ON OPERATIONS, DETERRENCE, AND READINESS IN THE AREA OF OPERATIONS OF UNITED STATES INDO-PACIFIC COMMAND.

(a) SENSE OF CONGRESS.—It is the sense of Congress that, in line with the most recent national defense strategy under section 113(g) of title 10, United States Code, and national security strategy report of the President under section 108 of the National Security Act of 1947 (50 U.S.C. 3043), deterring China and maintaining a favorable balance of military power in the Indo-Pacific region is a strategic priority of the United States.

(b) QUARTERLY REPORTS.—Not later than 30 days after the last day of each fiscal quarter, the Director of the Joint Staff, in coordination with the Commander of the United States Indo-Pacific Command, shall submit to the congressional defense committees a report on the effects of unplanned global taskings, contingency deployments, and diverted assets on operations, deterrence, and readiness within the area of operations of the United States Indo-Pacific Command. Each such report shall include, for the quarter covered by the report, each of the following:

(1) A description of specific effects on current and planned operations, exercises, and training events.

(2) An assessment of the effects on the ability of the United States Indo-Pacific Command to maintain required levels of deterrence against adversaries.

(3) An assessment of the overall effects on theater readiness, including any identified capability gaps or elevated operational risks.

(4) An assessment of effects on munitions inventories, shortfalls, and projected resupply timelines within the United States Indo-Pacific Command.

(5) An assessment of the anticipated effects on force generation and sourcing, including for each of the four fiscal quarters following the quarter covered by the report.

(6) A description of mitigation measures planned or underway to address identified operational, deterrence, and readiness effects.

(c) FORM.—Each report required under subsection (b) shall be submitted in unclassified form, but may include a classified annex.

(d) TERMINATION.—The requirement to submit a report under subsection (b) shall terminate on September 30, 2029.

SEC. 1086. BIANNUAL REPORTS ON OPERATIONAL ADAPTATION AND FIELDING OF DEFENSE AUTONOMOUS WARFARE GROUP.

(a) REPORTS REQUIRED.—Not later than 90 days after the date of the enactment of this Act, and every 180 days thereafter until the date that is two years after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Commander of United States Special Operations Command, shall submit to the congressional defense committees a report on the adaptation cycles of the Defense Autonomous Warfare Group and associated autonomous warfare programs. Each such report shall include, for the period covered by the report, each of the following:

(1) A summary of operational lessons identified during such period regarding the employment, maintenance, and integration of autonomous and remotely piloted systems, including lessons derived from combat observations, electronic warfare and cyber threat environments, and joint exercises.

(2) A description of the specific actions taken to incorporate the lessons identified under paragraph

(1) into joint and service-level military doctrine, including the timeline from the identification of a lesson to the formal update of doctrinal publications.

(3) A description of modifications made to training pipelines, leader development programs, and personnel policies to reflect operational lessons.

(4) An analysis of how operational feedback has influenced current and future procurement strategies, including—

(A) changes made to existing contracts or performance requirements;

(B) the speed at which technical feedback from operators was translated into hardware or software updates;

(C) an analysis of the reliance on non-domestic supply chains for components altered during adaptation cycles; and

(D) a list of any procurement programs under which existing contractual requirements hindered the rapid adoption of operational lessons.

(5) A summary of the broad allocation of funds across major capability lines and the general distribution profile of resulting autonomous assets

across the military departments and combatant commands.

(6) An assessment of the adaptation cycle speed for autonomous systems, defined as the duration between the identification of an operational deficiency or opportunity and the implementation of a corresponding change in doctrine, training, or procurement, including an assessment of the average time required to develop, test, and deploy software patches or technical countermeasures to fielded autonomous systems.

(7) To the extent practicable, a comparison of the adaptation cycle speed of the Department of Defense relative to the observed adaptation cycles of near-peer competitors in the field of autonomous warfare.

(b) FORM OF REPORT.—The report required under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

SEC. 1087. SERVICE-WIDE ENTERPRISE STRATEGIES FOR HUMAN PERFORMANCE.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, each Secretary of a military department shall establish a strategy for human per-

formance for that military department. Each such strategy shall include each of the following elements:

(1) Requirements and policies applicable to that military department that are designed to optimize the use and acquisition of human performance technology and services.

(2) The identification of a program of primary responsibility for human performance within that military department, which will be responsible for the integration, synchronization, and optimization of human performance technology and services across the military department.

(3) Requirements for the procurement of human performance technology and services.

(4) Security requirements, including the identification of risks associated with wearable technology devices for which the hardware is assembled in China.

(5) A timeline and estimated funding for implementation of the strategy, including acquisition plans, for the period covering fiscal years 2027 through 2031.

(6) Metrics and performance indicators for assessing the effectiveness and value of the human performance enterprise solution.

(7) An identification of opportunities to leverage existing Department-wide and military department-level enterprise data, analytics, and readiness platforms, and establish interoperability requirements to optimize technology investments and accelerate implementation.

(b) REPORT.—Not later than 270 days after the date of the enactment of this Act, each Secretary of a military department shall submit to the congressional defense committees a report containing a description of the strategy required under subsection (a) for that military department.

(c) DEFINITIONS.—In this section:

(1) The term ''human performance'' means the optimization of physical and mental health (such as physical readiness, mental readiness, sleep readiness, nutritional readiness, spiritual readiness) required for optimal performance and improved readiness.

(2) The term ''human performance technology and services'' means wearable technology devices and data management platforms that support human performance.

SEC. 1088. MOBILITY CAPABILITIES STRATEGIC PLAN.

(a) IN GENERAL.—Not later than January 1, 2027, the Secretary of the Air Force, in coordination with the

Commander of the United States Transportation Command and in consultation with the commanders of each of the geographic combatant commands, shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report that includes a comprehensive and detailed strategic plan for the development, acquisition, modernization, and integration of mobility capabilities of the Department of Defense through fiscal year 2047.

(b) ELEMENTS.—The plan required by subsection (a) shall include each of the following:

(1) An operational environment assessment of—

(A) contested operations across all domains over great distances;

(B) contested lines of communication extending from the United States to operational theaters;

(C) adversary capabilities designed to target United States mobility forces, mobility infrastructure, and logistics networks; and

(D) the requirement for mobility forces to operate in degraded, contested, and highly contested environments including austere locations, battle-damaged airfields, degraded runways,

ramps, taxiways, and other runway agnostic operating environments.

(2) An assessment of current mobility force, including—

(A) the ability of Air Mobility Command to support the requirements of all of the Armed Forces in competition, crisis, and conflict;

(B) the ability of Air Mobility Command to support agility concepts for all of the Armed Forces simultaneously in conflict, including agile combat employment, multi-domain task force operations, expeditionary advanced base operations, and distributed maritime operations;

(C) the vulnerability of mobility forces, mobility infrastructure, and global logistics networks in contested environments; and

(D) the degree to which existing mobility capability and capacity meet homeland defense priorities, nuclear mission obligations, and simultaneous global operational demands.

(3) An identification of the attributes required of future mobility forces, including—

(A) secure beyond line-of-sight connectivity with—

(i) service and joint data links;

(ii) service and joint battle management networks; and

(iii) service and joint command and control network;

(B) automation and autonomous aviation capabilities;

(C) the ability to operate across the full spectrum of threat environments;

(D) flexibility across the full scale of mobility missions, including small and distributed missions, tactical, operational, and strategic missions, and oversized and large-volume movements;

(E) the ability to operate from runway-agnostic and degraded operating locations;

(F) fuel-resilient aviation concepts, including aircraft capable of operating on traditional fuels and emerging propulsion systems, such as electric, hybrid-electric, and hydrogen;

(G) consideration of aircraft designed with open architecture enabling rapid integration of mission systems including palletized effects, electronic warfare, battle management, and intelligence, surveillance, and reconnaissance capabilities; and

(H) signature management capabilities that enable mobility aircraft to operate globally while maintaining operational security, including the ability to comply with international aviation safety requirements while limiting exposure of aircraft identity, position, and mission information through publicly accessible tracking systems or other unclassified means.

(4) An evaluation of future tanker capabilities, including—

(A) collaborative tanker aircraft supporting collaborative, distant, and distributed refueling operation in contested environments;

(B) penetrating stealth tanker aircraft capable of operating in highly contested environments;

(C) low-signature tanker concepts, including blended-wing body tanker aircraft;

(D) tactical tanker aircraft capable of supporting distributed tanker and airlift operations;

(E) modernization of legacy tanker aircraft through connectivity and full automation;

(F) tanker aircraft designed with open architecture and multi-role capability, enabling

complementary missions including electronic warfare, battle management, and intelligence, surveillance, and reconnaissance capabilities;

(G) opportunities to expand tanker capacity through commercial tanker constructs including Government owned, contractor operated; and

(H) the establishment of a Civil Reserve Air Fleet tanker capability that would enable the commercial operation of tanker aircraft to provide immediate and dependable augmentation of United States tanker capacity.

(5) An evaluation of future airlift capabilities across mission scales, including—

(A) autonomous airlift platforms supporting small and tactical missions;

(B) the establishment of a distributed maneuver pool composed of autonomous and highly automated mobility platforms capable of supporting maneuvering units and distributed operations, with mobility capabilities owned or controlled by lower-echelon multi-service operational units and integrated into the broader mobility enterprise;

(C) improved and automated tactical and operational airlift capabilities supporting maneuver and distributed operations;

(D) new and improved strategic airlift capabilities supporting global force flow and theater reinforcement, including the development of a next-generation strategic airlifter to augment or replace the C–17 aircraft and establishing a new standard for military airlift through improved capability, capacity, survivability, connectivity, automation, and operational flexibility;

(E) oversized and large-volume airlift systems;

(F) vertical takeoff and landing and short-field takeoff and landing airlift platforms supporting multi-service agility and distributed operations;

(G) delivery systems, including automated airdrop, glider, towable, and hybrid aircraft logistics platforms; and

(H) opportunities to expand airlift capacity through commercial operation of strategic airlift aircraft, Civil Reserve Air Fleet participation,

and service-based acquisition models such as effects-as-a-service.

(6) An assessment of command and control architecture required to support mobility operations in contested environments, including—

(A) the use of maneuver battle management using technologies such as artificial intelligence, algorithmic allocation systems, and advanced data architectures to integrate logistics, maneuver, and mobility operations across the Joint Force; and

(B) integration of distributed traditional air battle management capabilities within mobility forces.

(7) An assessment of opportunities to expand mobility capability and capacity through commercial aviation capabilities, including—

(A) the expansion of the Civil Reserve Air Fleet;

(B) the establishment of the Civil Reserve Air Fleet tanker capability;

(C) the commercial operation of excess, transitioned, or Government-owned strategic airlift and tanker aircraft;

(D) the use of service-based acquisition models such as mobility-as-a-service or effects-as-a-service; and

(E) the role of nonprime aviation companies in enabling the building of the future mobility enterprise.

(c) FORM.—The report required under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

SEC. 1089. REQUIRED DOCTRINE ON USE OF UNMANNED AUTONOMOUS SYSTEMS AND AUTONOMOUS FORMATIONS.

Not later than 180 days after the date of the enactment of this Act, the Defense Autonomous Warfare Group shall develop a military doctrine for the deployment of unmanned autonomous systems and formations composed of such unmanned autonomous systems. Such doctrine shall address the following:

(1) Concepts for the operational use of such systems and formations.

(2) Tactics, techniques, and procedures for such use.

(3) Force structure requirements relating to such systems and formations.

(4) Plans for the sustainment and maintenance of such systems and formations.

(5) Compliance with safety and legal requirements with respect to the use of such systems and formations.

(6) Such other matters as the Defense Autonomous Warfare Group may determine relevant.

SEC. 1089A. STRATEGY FOR SUSTAINMENT OF CERTAIN UNMANNED AIRCRAFT SYSTEMS.

(a) STRATEGY.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Secretaries of the military departments, shall develop a strategy for the sustainment of covered unmanned aircraft systems. Such strategy shall address, and differentiate between, stockpiled covered unmanned aircraft systems and covered unmanned aircraft systems in use on a more frequent basis.

(b) ELEMENTS.—The strategy under subsection (a) shall include the following:

(1) A plan to ensure continuous software updates for fielded covered unmanned aircraft systems across the military departments, including any such updates relating to—

(A) operating systems;

(B) autonomy and other capabilities enabled by artificial intelligence and machine learning; or

(C) automatic target recognition.

(2) A plan to ensure the batteries of fielded covered unmanned aircraft systems are fully functional and charged, including a strategy for charging such batteries in extreme and austere environments.

(3) Metrics to assess the readiness of fielded covered unmanned aircraft systems and associated components.

(4) An identification of the command level, unit level, or other organizational level responsible for ensuring such readiness.

(5) A plan to ensure standardized training for the use of covered unmanned aircraft systems and the sustainment of such systems across the military departments.

(6) A strategy for the repair of fielded covered unmanned aircraft systems, including for field-level maintenance, as appropriate.

(c) UPDATES.—On a basis that is not less frequent than once every two years, the Secretary of Defense shall update the strategy under subsection (a).

(d) SUBMISSION TO CONGRESS.—Not later than 30 days after the date on which the Secretary of Defense completes the strategy under subsection (a), the Secretary shall submit to the congressional defense committees such strategy.

(e) DEFINITIONS.—In this section:

(1) The term ''covered unmanned aircraft'' means any unmanned aircraft categorized as Group 1, Group 2, or Group 3 pursuant to the Joint Publication 3–30 of the Department of Defense, titled ''Joint Air Operations'' and dated July 25, 2019, or such successor publication.

(2) The terms ''unmanned aircraft'' and ''unmanned aircraft system'' have the meanings given such terms in section 130i of title 10, United States Code.

SEC. 1089B. STRATEGY FOR USE OF LOW-COST AND ATTRITABLE GROUP 4 AND 5 UNMANNED AIRCRAFT SYSTEMS IN CONTESTED LOGISTICS OPERATIONS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Under Secretary of Defense for Research and Engineering and the Under Secretary of Defense for Acquisition and Sustainment, shall develop

a strategy for the use of low-cost and attritable Group 4 and 5 unmanned aircraft systems in contested logistics operations.

(b) REQUIREMENTS FOR STRATEGY.—The strategy under subsection (a) shall include each of the following:

(1) An assessment of current and projected lift capabilities required for contested logistics operations, specifically focusing on identifying—

(A) the limitations of existing platforms; and

(B) mission sets for which the use of Group 4 and 5 unmanned aircraft systems would reduce risk.

(2) An assessment of the challenges presented by communications degradation in contested logistics operations and how unmanned aircraft systems could be integrated into mission sets identified under paragraph (1)(B) to solve capability gaps.

(3) A review of performance specifications, including payload capacity and range, that are required to complete the mission sets identified under paragraph (1)(B).

(4) An evaluation of acceptable loss rates, replacement speed, scale of employment, and integration timelines for unmanned aircraft systems.

(5) A plan for coordinating among, and drafting requirements for, each of the military departments and combatant commands with respect to the use of low-cost and attritable unmanned aircraft systems for contested logistics, as appropriate.

(6) A plan to synchronize research, development, prototyping, and acquisition activities related to such systems.

(7) A transition plan for the operational fielding by the joint force of Group 4 and 5 unmanned aircraft systems for contested logistics operations.

(8) An evaluation of commercially available innovative solutions that could be used to enhance the effectiveness of the Armed Forces and the response of the Department of Defense to emerging threats.

(c) PREFERENCE FOR COMMERCIAL PRODUCTS.—In developing the strategy under subsection (a), the Secretary shall leverage commercially available solutions to the maximum extent practicable.

(d) REPORT TO CONGRESS.—Not later than 90 days after the development of the strategy required by subsection (a), the Secretary shall submit to the congressional defense committees a report on the strategy.

SEC. 1089C. FEASIBILITY STUDY ON TACTICAL INFORMATION OPERATIONS COMMAND AUTHORITY.

(a) FINDINGS.—Congress makes the following findings:

(1) Information operations must be ongoing, iterative, and responsive to rapidly evolving conditions in the information environment. Narratives and messaging that are effective at one point in time can quickly become outdated or counterproductive as the information environment changes.

(2) Department of Defense Directive 3600.01, ''Information Operations'', currently designates Combatant Commanders at the four-star and flag officer level as the principal authorities for integrating, synchronizing, employing, and adapting information-related capabilities and for developing, planning, programming, and assessing information operations.

(3) The concentration of tactical information operations approval authority at the Combatant Commander level creates operational bottlenecks, as those officers bear responsibility for the full range of joint force activities and may be unable to respond to tactical information operations requirements with the speed demanded by the information environment.

(4) In other operational domains, commanders at the O–6 level and below routinely exercise authority to execute tactical actions within strategic frameworks approved by higher-level commanders. A similar model may be feasible and beneficial for tactical information operations.

(5) At the same time, information operations carry unique risks, including potential foreign policy, legal, and escalatory implications, that may counsel retaining significant oversight at senior command levels. Any delegation of authority must be carefully calibrated to preserve appropriate oversight while reducing operational bottlenecks.

(6) Before directing any revision to Department of Defense Directive 3600.01, Congress should have the benefit of a thorough and expert assessment of the feasibility, benefits, risks, and implementation requirements of delegating tactical information operations authority to lower-level commanders.

(b) REPORT REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the feasibility of revising Department of Defense Directive 3600.01 to

delegate authority to approve and execute tactical information operations to commanders below the level of the combatant commander.

(2) CONTENTS OF REPORT.—The report required in paragraph (1) shall include—

(A) an assessment of the current command authority structure under Department of Defense Directive 3600.01 as it applies to the planning, approval, and execution of tactical information operations, including an assessment of existing operational bottlenecks and their impact on the speed and effectiveness of information operations;

(B) an evaluation of the feasibility of delegating authority to approve and execute tactical information operations to commanders at specified rank levels below combatant commander, including the O–6 (colonel or Navy captain) level, or other appropriate levels as determined by the Secretary of Defense;

(C) For each delegation option evaluated under subparagraph (B), an assessment of—

(i) the potential benefits, including improvements in operational speed, responsiveness, and effectiveness;

(ii) the potential risks, including risks related to escalation, foreign policy implications, legal compliance, consistency with strategic narratives, and unintended consequences;

(iii) the mechanisms and safeguards that would be necessary to ensure that tactical information operations executed by lower-level commanders remain consistent with higher-level strategic objectives and narratives established by Combatant Commanders and the Secretary of Defense;

(iv) the training, education, and personnel requirements necessary to prepare lower-level commanders to exercise information operations authority effectively and responsibly;

(v) the legal authorities and any statutory or regulatory changes that would be required to implement the delegation;

(vi) the oversight mechanisms that would be required to maintain the visibility of the combatant commander and Secretary of Defense into tactical information

operations conducted pursuant to delegated authority; and

(vii) the estimated costs and resource implications of implementing the delegation;

(D) an examination of analogous delegation models in other operational domains, including fire support, electronic warfare, and cyber operations, to identify lessons learned and best practices applicable to information operations;

(E) an assessment of the experiences of allied and partner nations that have implemented delegation of tactical information operations authority to lower-level commanders, to the extent practicable;

(F) an evaluation of whether the current bottleneck in tactical information operations approval could be addressed through means other than formal authority delegation, including—

(i) dedicated information operations staff augmentation at the level of the combatant commander;

(ii) predelegated authorities for specific, preapproved categories of tactical information operations activities;

(iii) streamlined approval processes and standing execution orders; and

(iv) improved interoperability and communication systems to reduce approval timelines;

(G) an identification and assessment of any legal, policy, or operational constraints that would prevent or limit the feasibility of delegating tactical information operations authority; and

(H) the assessment of Secretary of Defense of whether revision of Department of Defense Directive 3600.01 to delegate tactical information operations authority to lower-level commanders is feasible, advisable, and in the interest of the Department of Defense.

(3) FORM.—The report required in paragraph (1) shall be submitted in unclassified form, but may include an classified annex.

SEC. 1089D. PUBLIC AVAILABILITY OF FINDINGS OF INSPECTOR GENERAL INVESTIGATION OF CERTAIN TARGETING OPERATIONS.

Not later than 90 days after completion of the Evaluation of United States Southern Command Joint Targeting Cycle initiated by the Inspector General of the Department of Defense concerning targeting operations in the area of operations of United States Southern Command, the Secretary of Defense shall make publicly available an unclassified summary of the findings of the evaluation, including findings with respect to—

(1) whether the Joint Targeting Cycle was followed; and

(2) recommendations for corrective actions.

SEC. 1089E. REPORT ON COST OF UNITED STATES MILITARY OPERATIONS IN IRAN.

(a) REPORT REQUIRED.—

(1) IN GENERAL.—Not later than April 1, 2027, the Secretary of Defense shall submit to the congressional defense committees a report that includes the total financial cost to the United States of the military operations carried out in Iran during the period beginning on February 28, 2026, and ending on the date that is 30 days before the date of the submission of the report. Such total financial cost shall include the costs associated with damaged

or destroyed infrastructure of the United States. The report shall include the following:

(A) A full inventory and replacement valuation of all United States military aircraft, naval vessels, drones, and other significant equipment damaged or destroyed during such military operations.

(B) The total cost and quantity of all weapons, missiles, and munitions expended during such military operations and replacement costs.

(C) A comprehensive assessment of the costs associated with repairing or rebuilding United States military bases and facilities damaged or destroyed during such military operations and the extent to which infrastructure was damaged or destroyed during such military operations.

(D) For any military base or facility or infrastructure identified under subparagraph (C), the location of the base, facility, or infrastructure.

(E) An assessment of the overall effects that damage to infrastructure during such military operations has had on theater readiness,

including any plans to not repair or rebuild United States infrastructure in the region.

(F) All costs related to the unplanned deployments and mobilizations of additional members of a covered Armed Force and military assets for such military operations and the costs associated with the enforcement of the maritime blockade in the Strait of Hormuz.

(2) FORM.—The report required under paragraph (1) shall be submitted in unclassified form, but may include a classified annex. The Secretary shall post the unclassified report on a publicly available and appropriate website of the Department of Defense.

(b) COVERED ARMED FORCE DEFINED.—The term ''covered Armed Force'' means the Army, Navy, Marine Corps, Air Force, or Space Force.

SEC. 1089F. REPORT ON OPERATION SOUTHERN SPEAR.

(a) REPORT.—Not later than 90 days after the date of the enactment of this section, and quarterly thereafter until 180 days after the conclusion of Operation Southern Spear (or any successor operation), the Secretary of Defense shall submit to the congressional defense committees a report that includes the total financial cost (as described in subsection (b)) of the military operations carried out

under Operation Southern Spear. The initial report shall include the period beginning on January 20, 2025, and ending on the date that is 60 days after the date of the enactment of this section.

(b) TOTAL FINANCIAL COST.—In this section, the total financial cost shall include any funds of the Department of Defense obligated or expended for the operation, including the following:

(1) A full inventory and replacement value of all United States military aircraft, naval vessels, drones, and other significant equipment damaged or destroyed during such military operations.

(2) The total cost and quantity of all weapons, missiles, and munitions expended during such military operations and replacement costs.

(3) A comprehensive assessment of the costs associated with repairing or rebuilding United States military installations, facilities, and infrastructure damaged or destroyed during such military operations.

(4) An assessment of the overall effects that damage to infrastructure during such military operations has had on theater readiness, including any plans to not repair or rebuild United States infra-

structure in the region in which such military operations were conducted.

(5) All costs related to the unplanned deployments and mobilizations of additional members of the Armed Forces and military assets for such military operations.

(c) FORM.—The report required under this section shall be submitted in unclassified form, but may include a classified annex. The Secretary shall make the unclassified report publicly available on an appropriate website of the Department of Defense.

SEC. 1089G. REPORT ON CIVILIAN HARM INVESTIGATION RELATING TO SHAJAREH TAYYEBEH ELEMENTARY SCHOOL.

(a) REPORT REQUIRED.—Not later than 30 days after the completion of the civilian harm investigation of the Department of Defense with respect to the strike on Minab, Iran, that occurred on February 28, 2026, the Secretary of Defense shall submit to the congressional defense committees a report on the results of such investigation.

(b) FORM.—The report required under subsection (a) shall be submitted in unclassified form, but may contain a classified annex.

(c) PUBLIC AVAILABILITY.—The Secretary of Defense shall make publicly available the unclassified portion of the report required under subsection (a).

SEC. 1089H. REPORT ON PORT SHUAIBA INVESTIGATION.

(a) IN GENERAL.—Upon the conclusion of the Department of Defense investigation into the attack on Port Shuaiba, Kuwait, that occurred on March 1, 2026, the Secretary of Defense shall transmit to the congressional defense committees the following information:

(1) All findings of the investigation.

(2) Any remedial actions taken as a result of the findings.

(3) A detailed description of the conduct of the investigation.

(b) FORM OF SUBMISSION; AVAILABILITY.—The information required under subsection (a) shall be submitted in unclassified form, but may contain a classified annex. The Secretary shall make the unclassified version of the findings publicly available on an appropriate website of the Department.

SEC. 1089I. ACAS–X ACTION PLAN.

(a) ACAS–X ACTION PLAN.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on

Armed Services of the House of Representatives and Senate an action plan for advancing the deployment of the Airborne Collision Avoidance System–X (in this section referred to as ''ACAS–X''), ACAS–Xa, ACAS–Xr, ACAS–Xo, ACAS–Xu, ACAS–sXu, ACAS–Xp.

(2) CONTENTS.—In developing the action plan under paragraph (1), the Secretary shall include—

(A) a strategic roadmap for the deployment of ACAS–X technology, including steps required for widespread adoption among military aircraft;

(B) actions and funding necessary to complete any applicable research, development, testing, evaluation, and standards development needed to support the certification of such technology;

(C) ACAS–X interoperability considerations for aircraft operators (including rotorcraft operators) equipped with ADS–B Out and ADS–B In equipment;

(D) an assessment of safety benefits for aircraft operators equipping with such technology; and

(E) any recommendations for administrative or legislative action, as determined appropriate by the Secretary, to advance such technology deployment.

(3) IMPLEMENTATION.—The Secretary may take actions, as appropriate, to implement the action plan developed under paragraph (1).

(4) BRIEFING.—Not later than 30 days after the date on which the Secretary submits the action plan under paragraph (1), the Secretary shall provide to the Committees on Armed Services of the House of Representatives and Senate a briefing on the contents of such action plan and any prospective actions to implement such plan.

(b) DEFINITIONS.—In this section:

(1) The term ''ADS–B In'' means onboard avionics equipment that receives and processes Automatic Dependent Surveillance–Broadcast transmissions that are broadcast in accordance with sections 91.225 and 91.227 of title 14, Code of Federal Regulations (or any successor regulations), and other aviation advisory information from ground stations, that provides the aircraft with awareness to the location of other aircraft and traffic advisories.

(2) The term ''ADS–B Out''—

(A) has the meaning given such term in section 91.227 of title 14, Code of Federal Regulations; and

(B) includes equipment that broadcasts information from an aircraft in accordance with sections 91.225 and 91.227 of such title 14 (or any successor regulations).

SEC. 1089J. PLAN FOR PROTECTION OF MILITARY INSTALLATIONS LOCATED IN THE UNITED STATES FROM UNMANNED AIRCRAFT THREATS.

Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a comprehensive plan for the protection of all military installations located in the United States from threats posed by unmanned aircraft systems and unmanned aircraft (as such terms are defined in section 130i(m) of title 10, United States Code).

SEC. 1089K. REPORT ON INSTITUTIONS OF HIGHER EDUCATION RECEIVING DEPARTMENT OF DEFENSE FUNDS THAT HAVE HOSTED CONFUCIUS INSTITUTES.

The Secretary of Defense shall submit to Congress a report on institutions of higher education that have—

(1) received funding from the Department of Defense; and

(2) hosted a Confucius Institute.

SEC. 1089L. THREAT OF ARTIFICIAL INTELLIGENCE-POWERED ATTACKS, SCAMS, AND FRAUD.

(a) STUDY.—The Secretary of Defense shall conduct a study on the threat of artificial intelligence-powered attacks, scams, and fraud to United States military installations, operations, and personnel.

(b) EVALUATION OF USE OF ARTIFICIAL INTELLIGENCE BY FOREIGN ADVERSARIES.—In conducting the study required by subsection (a), the Secretary shall evaluate the use of artificial intelligence by foreign adversaries for surveillance and targeting.

(c) REPORT TO CONGRESS.—Not later than one year after the date of enactment of this Act, the Secretary shall submit to Congress a report on the results of the study required by subsection (a).

SEC. 1089M. ASSESSMENT OF INSTALLATION-WIDE FOOD PROGRAMS OF ARMY AND NAVY.

Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army and the Secretary of the Navy shall complete an assessment of installation-wide food programs (with respect to the military installations of the Army and Navy, respectively), consistent

with the recommendation of the Comptroller General of the United States contained in the report of the Government Accountability Office titled ''Department of Defense Food Program: Additional Actions Needed to Implement, Oversee, and Evaluate Nutrition Efforts for Service Members''(GAO-24-106155) and dated June 2024.

SEC. 1089N. INDEPENDENT REVIEW OF DEPARTMENT OF DEFENSE FINANCIAL MANAGEMENT EXECUTION BENCHMARKS.

(a) REVIEW REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Under Secretary of Defense (Comptroller), in coordination with the Under Secretary of Defense for Acquisition and Sustainment, shall enter into an agreement with an independent entity to review the financial management execution benchmarks used by the Department of Defense to assess obligation and expenditure performance across major appropriations.

(b) MATTERS REVIEWED.—The review required by subsection (a) shall assess—

(1) the origin, source, methodology, and authoritative basis of execution benchmarks currently used by the Department;

(2) the extent to which such benchmarks are published in, or traceable to, Department-wide policy, regulation, guidance, or other official issuance;

(3) whether such benchmarks remain relevant to modern acquisition and financial management practices, including rapid prototyping, software development, Other Transaction Agreements, milestone-based payments, program phase, and period of availability; and

(4) whether such benchmarks should be updated, segmented, or otherwise modified to better reflect differences among appropriations, acquisition pathways, contracting mechanisms, and program execution patterns.

(c) REPORT.—Not later than 180 days after the date on which the Under Secretary of Defense (Comptroller) enters into the agreement under subsection (a), the Under Secretary shall submit to the congressional defense committees a report on the results of the review, including the findings of the review and any recommendations for changes to Department policy, regulation, guidance, or practice.

(d) DEFINITIONS.—In this section:

(1) The term ''execution benchmark'' means any metric, target, curve, rate, standard, threshold,

or other measure used by the Department to assess, evaluate, compare, or characterize obligation or expenditure performance.

(2) The term ''independent entity'' means a federally funded research and development center, a nonprofit research organization, an institution of higher education, or any other entity with relevant expertise in defense financial management, acquisition, budgeting, and program execution, and no organizational conflict of interest.

SEC. 1089O. AUDIT OF CHINESE COMMUNIST PARTY-LINKED PARTICIPATION IN DEPARTMENT OF DEFENSE CONTRACTS AND SUPPLY CHAINS.

(a) IN GENERAL.—The Comptroller General of the United States shall conduct an audit of the extent to which entities owned, controlled by, affiliated with, or subject to the influence of the Chinese Communist Party participate in Department of Defense contracts and supply chains.

(b) MATTERS INCLUDED.—The audit required under subsection (a) shall include—

(1) an assessment of the extent to which covered entities participate in Department of Defense contracts as prime contractors;

(2) an assessment of the extent to which covered entities participate in Department of Defense contracts as subcontractors, suppliers, affiliates, subsidiaries, or joint venture partners;

(3) identification of sectors of the defense industrial base with significant exposure to covered entities;

(4) an assessment of risks posed to military readiness, supply chain resilience, operational security, and national security;

(5) identification of any known relationships between covered entities and the People's Liberation Army, Chinese intelligence services, or Chinese state-owned enterprises; and

(6) recommendations to reduce identified risks.

(c) REPORT.—Not later than one year after the date of the enactment of this Act, the Comptroller General shall submit to the congressional defense committees a report containing the findings of the audit required under subsection (a).

(d) COVERED ENTITY.—In this section, the term ''covered entity'' means any entity that is—

(1) owned or controlled by the Government of the People's Republic of China;

(2) owned or controlled by the Chinese Communist Party;

(3) identified on a list maintained pursuant to section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283); or

(4) otherwise determined by the Comptroller General to be subject to the direction, ownership, control, or influence of the Chinese Communist Party.

SEC. 1089P. ARMY REPORT ON RESILIENT TACTICAL POWER AND BATTERY SAFETY.

(a) FINDINGS.—Congress finds the following:

(1) Army units operating at the tactical edge increasingly rely on resilient power generation, storage, distribution, and charging to support communications systems, sensor networks, unmanned systems, directed-energy counter-UAS capabilities, command-and-control nodes, tactical vehicles, and other mission equipment.

(2) Current fielded power solutions may not be optimized as integrated systems, limiting interoperability and increasing fuel, maintenance, and logistics burdens.

(3) Batteries are a critical part of this architecture, because lithium battery performance and safety depend heavily on subcomponents, including separator materials.

(4) Separator failure or degradation under high-rate cycling, cold-start pulse demand, elevated temperatures, extended storage, or mechanical and electrical abuse can contribute to internal short circuits, thermal events, and fault propagation in confined, manned, vehicle-integrated, or unmanned applications.

(5) Separator technologies and other subcomponents should be assessed by the Army alongside power generation, charging, distribution, and sustainment needs.

(b) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Army shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the efforts of the Army to demonstrate, assess, and transition resilient tactical power architectures and safe lithium battery technologies for mission systems. The report shall include each of the following:

(1) A description of priority operational use cases for integrated tactical power and battery-de-

pendent mission systems, including how hybrid tactical microgrids, control nodes, batteries, power electronics, charging, distribution, and energy storage would support unmanned systems, sensors, command-and-control nodes, directed-energy counter-unmanned aircraft systems, tactical vehicles, and other systems at the tactical edge.

(2) A roadmap for laboratory, field, and operational demonstrations, including—

(A) integration with Army generators, tactical vehicles, batteries, power electronics, and representative combat formations;

(B) use of modular open systems architectures;

(C) cyber and electromagnetic resilience requirements; and

(D) metrics for fuel efficiency, logistics burden, reliability, survivability, and lifecycle costs.

(3) An assessment of lithium battery designs, separator technologies, and related subcomponents that could improve high-rate cycling, cold-start performance, persistent low-draw operation, elevated-temperature endurance, long-duration storage, intrinsic fault containment, and propagation resist-

ance, including relevant cooperative agreements, test standards, and representative Army mission profiles.

(4) A description of performance, safety, and sustainment testing for fielded batteries, including overcharge, crush, puncture, internal short-circuit, thermal exposure, thermal runaway, charging in extreme or austere environments, and procedures to keep batteries for unmanned systems and other mission equipment functional and charged in storage and regular use.

(5) A transition and sourcing plan for successful prototypes, validated battery designs, separator materials, and related subcomponents, including current and planned programs of record, existing platforms, candidate units and echelons for initial fielding, opportunities to leverage commercially proven domestic or allied battery and power electronics technologies, barriers to transition, and steps to secure domestic or allied production of separators, electrodes, electrolytes, cells, packs, and associated manufacturing capabilities.

SEC. 1089Q. QUARTERLY REPORTING REQUIREMENT FOR NATIONAL SECURITY CAPITAL FORUM.

Section 1092 of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C.

149 note) is amended by adding at the end the following new subsection:

''(f) REPORTS.—Not later than the end of each fiscal quarter, the Secretary of Defense shall submit to the congressional defense committees a report describing activities of the forum established under subsection (a) during such fiscal quarter and the goals of such forum in accordance with this section for the subsequent fiscal quarter.''.

SEC. 1089R. PLAN FOR DOMAIN AWARENESS AT THE SOUTHERN LAND BORDER.

(a) DEFINITIONS.—In this section:

(1) COMMON OPERATING PICTURE.—The term ''common operating picture'' means an integrated, interoperable, near-real-time geospatial and temporal display and repository of multi-source sensor, analytic, and operational data and intelligence designed to improve situational awareness, deconfliction, and coordinated response among participating agencies.

(2) DOMAIN AWARENESS.—The term ''domain awareness'' means the aggregate understanding of activities, actors, and conditions across the air, land, maritime, cyber, and space domains relevant to border security.

(3) SOUTHERN LAND BORDER.—The term ''southern land border'' means the land border of the United States adjacent to Mexico.

(b) PLAN REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall develop and submit to the congressional defense committees a plan for the Department of Defense to contribute to a common operating picture to improve domain awareness at the southern land border.

(2) COMMUNICATION.—Not later than 60 days after developing the plan required by paragraph (1), the Secretary of Defense shall transmit the plan to such interagency partners as the Secretary considers appropriate.

(3) ELEMENTS.—The plan required by paragraph (1) shall include the following:

(A) A description of the proposed architecture, data sources (including Department of Defense and non-Department of Defense sensors), technical standards for interoperability, and cybersecurity and data protection measures for the common operating picture described in such paragraph.

(B) A description of the procedures and authorities for data sharing.

(C) A concept of operations describing how a common operating picture would support operational coordination, deconfliction, and information sharing among Federal, State, Tribal, local, and authorized international partners.

(D) A phased implementation schedule with milestones and timelines for operationalizing the common operating picture at the southern land border, including benchmarks for capability deployment and full operational capability.

(E) An identification of resource requirements, estimated costs, and funding sources, and a plan for inclusion of requirements for the common operating picture in the annual budget justification materials of the Department of Defense.

(F) Plans for training, sustainment, and technical support for users across participating agencies.

(G) Metrics and procedures for—

(i) assessing effectiveness; and

(ii) periodic review and continuous improvement.

(4) FORM.—The plan required by paragraph (1) shall be submitted in unclassified form, but may contain a classified annex as necessary.

SEC. 1089S. REPORT ON PLANNED INVESTMENT IN ADVANCED SENSOR AND ELECTRONIC WARFARE SYSTEMS SPECIFIC TO COLLABORATIVE COMBAT AIRCRAFT.

Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force shall submit to the congressional defense committees a report on the planned investment in advanced sensor and electronic warfare systems specific to collaborative combat aircraft. Such shall include Air Force Plans for development and integration of foundational sensing, electronic warfare, and autonomy-enabling payloads for the collaborative combat aircraft with an emphasis on the following:

(1) Cost-Effective Scalability, with a focus on commercial off-the-shelf, multi-function technologies.

(2) Operational readiness and survivability.

(3) Strategic advantage and supply chain security, specifically regarding domestic engineering and production capabilities.

SEC. 1089T. STRATEGY AND REPORT ON STORAGE, SUSTAINMENT, AND DEPLOYMENT OF COLLABORATIVE COMBAT AIRCRAFT.

(a) STRATEGY AND REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force, in consultation with the Commander of United States Transportation Command, shall—

(1) develop a comprehensive strategy for the storage, sustainment, deployment, and operational support of CCA; and

(2) submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the strategy developed under paragraph (1).

(b) CONTENTS.—The report required under subsection (a)(2) shall include the following:

(1) A plan for the storage and sustainment of CCA that addresses requirements associated with Agile Combat Employment and Agile Combat Deployment operational concepts of the Department of the Air Force.

(2) An assessment of—

(A) the extent to which CCA are capable of deployment alongside crewed fighter aircraft traveling from within the continental United

States to forward theaters of operation under contested logistics conditions; and

(B) the mobility feasibility of deploying CCA in the manner described in subparagraph (A).

(3) A description of methods used to store CCA as of the date of the submission of the report, disaggregated by location type, including—

(A) depots located within the continental United States;

(B) forward operating hubs; and

(C) dispersed austere sites.

(4) For each location specified in paragraph (3), a summary of—

(A) environmental requirements;

(B) security requirements; and

(C) shelf-life considerations associated with storing CCA at such location.

(5) A description of the forward support footprint required for each CCA detachment, including—

(A) personnel;

(B) tools;

(C) test equipment; and

(D) communications support requirements.

(6) A model addressing expected—

(A) attrition of CCA; and

(B) repair requirements for CCA.

(7) A summary of plans of the Department of the Air Force for lifecycle sustainment of CCA, including—

(A) locations at which major maintenance, overhaul, and repair operations will be conducted;

(B) plans for spare component pools; and

(C) expected turnaround times required to prepare CCA for redeployment.

(8) A summary identifying which components of CCA—

(A) may be repaired in the event such component becomes inoperable; and

(B) must be replaced.

(9) For each component identified under paragraph (8)(B), an estimated timeline for replacement.

(10) A cost estimate for the sustainment of CCA, including identification of—

(A) the average cost-per-flight-hour for CCA operations;

(B) the average cost-per-mission involving CCA; and

(C) the primary drivers of sustainment costs.

(11) A summary of operational assumptions derived from relevant war games involving CCA, including identified operational gaps, sustainment shortfalls, or risks.

(12) An assessment of requirements associated with deploying CCA at scale in operational theaters, including requirements relating to—

(A) sealift;

(B) airlift;

(C) prepositioning;

(D) fuel;

(E) spare components; and

(F) maintenance manpower.

(13) An assessment of whether deployment of CCA—

(A) improves overall utilization or capacity of applicable ships, containers, or transportation platforms;

(B) decreases demand for space on such ships, containers, or transportation platforms; and

(C) creates new logistical or sustainment burdens within operational theaters.

(14) An assessment of—

(A) the marginal costs associated with moving, storing, and sustaining CCA at scale; and

(B) the primary factors inhibiting deployment of CCA in the Indo-Pacific region.

(15) Resource requirements and an implementation timeline for the strategy developed under subsection (a)(1), including budget estimates, force structure assumptions, and major milestones.

(c) FEDERALLY FUNDED RESEARCH AND DEVELOPMENT CENTER SUPPORT.—In carrying out the strategy and report requirements under this section, the Secretary of the Air Force may leverage the support of one or more federally funded research and development centers with expertise in logistics, force design, contested sustainment, autonomous systems, or defense mobility planning.

(d) FORM.—The report submitted pursuant to subsection (a)(2) shall be submitted in unclassified form, but may include a classified annex.

(e) CCA DEFINED.—In this section, the term ''CCA'' means autonomous, uncrewed collaborative combat aircraft of the Department of the Air Force.

SEC. 1089U. REPORT ON FUNDING BARRIERS FOR SUAS.

(a) SENSE OF CONGRESS.—Congress recognizes there is unprecedented demand within the Department of Defense for acquisition and fielding of small unmanned aircraft systems (in this section referred to as '' sUAS''), particularly for units slated for overseas deployments.

(b) REPORT.—Not later than March 31, 2027, the Secretary of Defense shall submit to the Committee on Armed Services of the House of Representatives and the Committee on Armed Services of the Senate a report that includes—

(1) the reason or reasons for prohibiting use of operation and maintenance fund for the purchase of sUAS participating in a program of record;

(2) any broader challenges to the procurement of sUAS, including lack of authority or funding sources within the Department; and

(3) a description of any legislative action required to address this issue.

SEC. 1089V. REPORT ON RED FLAGS MISSED IN FRAUD SCHEME PERPETRATED BY JANET YAMANAKA MELLO.

(a) REPORT REQUIRED.—Not later than one year after the date of the enactment of this Act, the Secretary of War shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report

on the fraud scheme perpetrated by Janet Yamanaka Mello, a civilian employee of the Department of the Army, who was indicted and pleaded guilty to stealing over $100,000,000 in 4-H Military Partnership Grant program funds.

(b) CONTENTS OF REPORT.—The report required under subsection (a) shall include each of the following:

(1) A description of the breakdown in the supervision of Mello, including any failures of management or oversight that contributed to the ability of Mello to carry out the fraud scheme undetected.

(2) A description of the breakdown in accountability with respect to the loss of the stolen funds, including any failures to ensure that such funds were actually being spent for the purposes for which such funds were intended.

(3) A description of the failure to ensure that financial program managers, such as Mello, are not able to funnel Government funds to themselves or their own entities.

(4) An identification of any other red flags or warning signs that were missed or ignored by employees of the Department of War, including any instances of whistleblower retaliation or suppression of concerns.

(5) An assessment of the policies and procedures of the Department of War and Department of the Army, as of the date of the enactment of this Act, designed to prevent employees from perpetrating similar fraud schemes in the future.

(6) Recommendations for improvements to the policies, procedures, and oversight of the Department of War and Department of the Army to prevent employees from perpetrating similar fraud schemes in the future.

(7) A description of any disciplinary or administrative actions taken against any individuals or entities found to have contributed to the ability of Mello to carry out the fraud scheme.

(8) A description of any changes made, or planned to be made, to the financial management and oversight processes of the Department of War and the Department of the Army as a result of the fraud scheme perpetrated by Mello.

(9) An assessment of the effects of the fraud scheme perpetrated by Mello on the programs and operations of the Department of War and the Department of the Army.

(10) Any other information the Secretary of War determines relevant to understanding the fraud

scheme perpetrated by Mello and preventing employees from perpetrating similar fraud schemes in the future.

(c) PUBLIC AVAILABILITY.—The Secretary of War shall make the report required under subsection (a) publicly available on an appropriate website of the Department of War.

SEC. 1089W. STUDY ON TOOL AND DIE CASTING INDUSTRY.

The Secretary of Defense shall conduct a study assessing the condition of the tool and die casting industry in the United States during fiscal year 2026, including—

(1) how many tool and die casting facilities in the United States opened during such fiscal year;

(2) how many such facilities closed during such fiscal year;

(3) the economic impact of the tool and die casting industry in the United States;

(4) any shortage in the tool and die casting workforce in the United States;

(5) development opportunities for such workforce; and

(6) other opportunities to increase tool and die casting capabilities in the United States.

SEC. 1089X. NAVAL CONSTRUCTION FORCE READINESS AND CONTESTED LOGISTICS.

(a) IN GENERAL.—Chapter 807 of title 10, United States Code, is amended by inserting at the end the following:

"§ 8064. Naval construction force prepositioned equipment and readiness requirements

''(a) REQUIREMENT.—The Chairman of the Joint Chiefs of Staff shall provide a Report to Congress on Combatant Commander requirements for Naval Construction Force to support contested logistics and expeditionary infrastructure requirements.

''(b) ELEMENTS.—The requirement under subsection (a) shall include the following:

''(1) Identification of mission requirements by combatant command.

''(2) Current and future force structure and capability mix.

''(3) Integration with joint logistics, theater opening, and expeditionary basing operations.

''(4) Infrastructure and equipment requirements.

''(5) Identified capability gaps.

"§ 8065. Naval construction force equipment and personnel readiness requirements

''(a) REQUIREMENT.—Not later than March 1, 2027, the Secretary of the Navy shall provide a brief/report to Congress on Naval Construction Force support to combatant commanders, to include:

''(1) Theater-aligned, prepositioned expeditionary construction equipment sets to enable the rapid employment of the Naval Construction Force in support of combatant command operational requirements.

''(2) A comprehensive baseline and recapitalization plan for Civil Engineer Support Equipment and other mission-essential equipment of the Naval Construction Force.

''(3) An assessment of the mobilization readiness of the reserve component of the Naval Construction Force.

''(b) ELEMENTS.—The requirement under subsection (a) shall include the following:

''(1) Identification of priority geographic locations for such equipment.

''(2) Equipment configurations necessary to support—

''(A) expeditionary airfield damage repair;

''(B) austere port and waterfront repair;

''(C) fuel, water, and power generation systems; and

''(D) expeditionary basing and logistics node establishment.

''(3) Defined readiness standards, including equipment availability, serviceability, and deployment timelines.

''(4) Integration with strategic mobility and sealift requirements.

''(5) Identification of capability gaps and associated resource requirements.

''(6) Recapitalization and Readiness Metrics—

''(A) inventory age, condition, and service life data;

''(B) mission-capable rates and readiness trends;

''(C) identification of high-risk equipment categories affecting readiness;

''(D) a prioritized recapitalization schedule with cost estimates; and

''(E) identification of supply chain and sustainment risks.

''(7) Reserve Component Mobilization Readiness elements—

''(A) time required to achieve mission-ready status upon mobilization;

''(B) availability of equipment upon activation;

''(C) training equivalency between active and reserve units;

''(D) reliance on cross-leveling of personnel and equipment; and

''(E) barriers to rapid deployment.

''(8) A plan to reduce mobilization timelines and improve readiness.

''(c) ANNUAL UPDATES.—The Secretary of the Navy shall submit an annual update to the congressional defense committees on—

''(1) the requirements under subsection (a);

''(2) specific shortfalls and associated funding requirements; and

''(3) alignment with Combatant Commander Naval Construction Force requirements.''.

(b) CLERICAL AMENDMENT.—The table of contents for chapter 807 of such title is amended by inserting at the end the following new items:

''8064. Naval construction force prepositioned equipment and readiness requirements.
''8065. Naval construction force equipment and personnel readiness requirements.''.

SEC. 1089Y. REVIEW AND REPORT ON UAS ACTIVITY IN THE VICINITY OF CRITICAL INSTALLATIONS.

(a) IN GENERAL.—The Inspector General of the Department of Defense shall conduct a review of potential foreign adversary connected unmanned aircraft system (UAS) activity over critical military installations, vessels, aircraft, and the homeland, and other matters.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Inspector General shall submit to the relevant committees a report on—

(1) UAS activity over military installations in the United States and abroad;

(2) UAS activity in close proximity to sensitive national security installations;

(3) instances of UAS activity in the vicinity of United States military and law enforcement vessels and aircraft;

(4) the process for deploying counter-UAS systems to assist State and local law enforcement;

(5) instances where the Department of Defense deployed counter-UAS systems to assist State and local law enforcement;

(6) instances where the Department of Defense received requests for counter-UAS assistance from Installation Commanders;

(7) whether the Department of Defense possess appropriate capabilities to supply all installations with counter-UAS technology;

(8) whether Installation Commanders possess the capability and authorities to address UAS incursions to installations and in the immediate vicinity of installations; and

(9) an analysis of near-peer actors who possess the capabilities to conduct such activities.

(c) DEFINITION OF RELEVANT COMMITTEE.—In this section, the term ''relevant committees'' means—

(1) the Committees on Armed Services of the House of Representatives and the Senate;

(2) the Committee on Homeland Security of the House of Representatives and the Committee on Homeland Security and Government Affairs of the Senate;

(3) the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate;

(4) the Committee on the Judiciary of the House of Representatives and the Committee on the Judiciary of the Senate;

(5) the Permanent Select Committee on Intelligence of the House of Representatives and the Select Committee on Intelligence of the Senate;

(6) the Committee on Foreign Affairs of the House of Representatives and the Committee on Foreign Relations of the Senate; and

(7) the Committee on Oversight and Accountability of the House of Representatives.

(d) FORM.—The report required under subsection (b) shall be submitted in unclassified form, but may include a classified annex.

SEC. 1089Z. REPORT ON COSTS ASSOCIATED WITH BASING LOCATIONS FOR F–35 AIRCRAFT.

(a) IN GENERAL.—The Secretary of Defense shall conduct an analysis to evaluate the full life-cycle costs associated with proposed or potential basing locations for F–35 aircraft expected to be delivered to the Department of Defense during the period of fiscal years 2030 through 2035.

(b) CONTENTS.—The analysis under subsection (a) shall include—

(1) an evaluation of the costs of military construction, infrastructure upgrades, and simulator procurement and installation associated with proposed basing locations for the F–35 aircraft de-

scribed in subsection (a) compared to those costs at existing Air Force and Air National Guard installations currently hosting fighter aircraft operations, including installations supporting United States formal training and foreign military training missions;

(2) identification of any military construction, infrastructure, and simulator costs for the F–35 aircraft described in subsection (a) that are already programmed or funded in the budget of the President (as submitted as submitted to Congress pursuant to section 1105(a) of title 31, United States Code) or the most recent future-years defense program submitted to Congress under section 221 of title 10, United States Code; and

(3) an estimate of any current or expected reductions in funding to support F–35 basing at military installations.

(c) REPORT.—Not later than 210 days after the date of the enactment of this section, the Secretary of Defense shall submit to the congressional defense committees a report on the results of the analysis conducted under subsection (a).

SEC. 1089AA. ADDITIONAL DETERMINATION REGARDING CERTAIN UNMANNED GROUND VEHICLE SYSTEMS.

Section 1078(a)(2) of the Servicemember Quality of Life Improvement and National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 138 Stat. 2075) is amended—

(1) by redesignating subparagraph (F) as subparagraph (G); and

(2) by inserting after subparagraph (E) the following:

''(F) A determination of whether the operation of covered unmanned ground vehicle systems in United States networks poses an unacceptable risk to the national security of the United States or the security and safety of United States persons.''.

Subtitle F—Other Matters

SEC. 1091. DEEMING REFERENCES TO THE DEPARTMENT OF DEFENSE AND SECRETARY OF DEFENSE AS REFERENCES TO THE DEPARTMENT OF WAR AND SECRETARY OF WAR.

Chapter 1 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 103. References to the Secretary of Defense and the Department of Defense

''Any reference to the Secretary of Defense or Department of Defense in any law, regulation, map, document, record, or other paper of the United States shall be deemed to be a reference to the Secretary of War or Department of War, respectively.''.

SEC. 1092. DEFINITION OF SPECIAL OPERATIONS ACTIVITIES.

Section 167(k)(6) of title 10, United States Code, is amended by striking ''Military information support operations'' and inserting ''Psychological and cognitive warfare''.

SEC. 1093. DEFINITION OF COUNTER-SUAS SYSTEM FOR PURPOSES OF JOINT INTERAGENCY TASK FORCE 401.

Section 199(h)(1) of title 10, United States Code, is amended by inserting ''detecting, identifying, monitoring, tracking,'' after ''lawfully and safely''.

SEC. 1094. INCREASE IN CAP FOR SUPPORT OF SMALL SCALE CONSTRUCTION PROJECTS OF FOREIGN PARTNERS IN SUPPORT OF COUNTERDRUG ACTIVITIES AND ACTIVITIES TO COUNTER TRANSNATIONAL ORGANIZED CRIME.

(a) INCREASE IN CAP.—Subsection (i)(3) of section 284 of title 10, United States Code, is amended by striking ''$1,000,000'' and inserting ''$2,000,000''.

(b) TECHNICAL CORRECTION RELATING TO CONGRESSIONAL NOTIFICATION REQUIREMENTS.—Subsection (h)(1)(B) of such section is amended by inserting ''minor military construction or'' after ''any''.

SEC. 1095. MODIFICATION TO FUNDING LIMITATION FOR PROCUREMENT OF EQUIPMENT FOR CERTAIN DRUG INTERDICTION AND COUNTERDRUG ACTIVITIES.

Section 112(a)(3) of title 32, United States Code, is amended by striking ''$15,000'' and inserting ''$25,000''.

SEC. 1096. NATIONAL GUARD ATTORNEY LICENSE PORTABILITY.

Chapter 3 of title 32, United States Code, is amended by inserting after section 329 the following new section:

''§ 330. Attorney license portability

''(a) IN GENERAL.—Notwithstanding any law regarding the licensure of attorneys, a judge advocate or techni-

cian attorney performing duties under this title may provide legal services in any jurisdiction in support of National Guard training or operations, subject to such regulations as may be prescribed by the Secretary of the Army or the Secretary of the Air Force, as the case may be.

''(b) AUTHORIZED LEGAL SERVICES.—Such legal services—

''(1) may be provided only by a judge advocate or a technician attorney who is a member of the bar of a Federal court or of the highest court of a State, and

''(2) must be within the scope of authorized duties as prescribed by the Secretary concerned.''.

SEC. 1097. OVERSIGHT AND DIRECTION OF IRREGULAR WARFARE EXERCISE LABORATORY.

Section 1094 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 1066; 10 U.S.C. 127d note) is amended—

(1) by redesignating subsection (c) as subsection (d); and

(2) by inserting after subsection (b) the following new subsection (c):

''(c) OVERSIGHT AND DIRECTION.—If the Secretary establishes an Irregular Warfare Exercise Laboratory under subsection (a)—

''(1) such laboratory shall operate under the strategic oversight and policy coordination of the Irregular Warfare Center of the Department of Defense; and

''(2) the Assistant Secretary of Defense for Special Operations and Low-Intensity Conflict, acting through the Director of the Irregular Warfare Center, shall exercise authority, direction, and control over such laboratory to—

''(A) provide policy guidance and integration direction for all activities of the laboratory;

''(B) ensure the alignment of laboratory initiatives with Department-wide irregular warfare strategy and campaigning objectives; and

''(C) prioritize the development of laboratory capabilities in accordance with the most recent national defense strategy under section 113(g) of title 10, United States Code.''.

SEC. 1098. UBIQUITOUS TECHNICAL SURVEILLANCE AND DIGITAL FORCE PROTECTION.

(a) UBIQUITOUS TECHNICAL SURVEILLANCE FUNCTIONS.—

(1) RESPONSIBILITY.—Not later than April 1, 2027, the Secretary of Defense shall designate the

head of an organization of the Department of Defense who shall be responsible for—

(A) coordinating and directing the identification of vulnerabilities with respect to ubiquitous technical surveillance;

(B) developing a plan and strategy for research, development, and procurement of secure communications and obfuscation technologies; and

(C) developing ubiquitous technical surveillance training and techniques to enhance digital force protection.

(2) PROGRAM OF RECORD.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a plan to establish a program of record to meet counter-ubiquitous technical surveillance and digital force protection needs across the Department of Defense.

(b) REPORT.—Not later than December 1, 2027, the Secretary of Defense shall submit to the congressional defense committees a report that includes—

(1) the plan and strategy developed pursuant to subsection (a)(1)(B); and

(2) the identification of the organization of the Department of Defense that has been designated under subsection (a)(1).

(c) DEFINITIONS.—In this section:

(1) The term ''digital force protection'' means the policies, tools, and practices used to protect military personnel, operations, and critical assets from adversarial exploitation of the commercial digital surveillance economy, associated commercial data, and digital footprints.

(2) The term ''ubiquitous technical surveillance'' means persistent, networked, or commercially-enabled technical means used to detect, identify, track, exploit, or monitor personnel, operations, equipment, or digital activities.

SEC. 1099. POTENTIAL DESIGNATION OF INFORMATION AS A DOMAIN OF WARFARE.

(a) DETERMINATION REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a determination as to whether to designate information as a domain of warfare of the Department of Defense.

(b) EFFECT OF POSITIVE DETERMINATION.—If the Secretary of Defense determines to make the designation specified under subsection (b), the Secretary shall—

(1) revise any applicable guidance, directive, instruction, publication, or doctrine of the Department to reflect such designation, including by directing the Chairman of the Joint Chiefs of Staff to revise the Joint Concept for Operating in the Information Environment and other relevant joint doctrine and publications, to reflect such designation;

(2) ensure that planning, programming, budgeting, and execution processes treat information as a mission-essential consideration in operational planning, rather than solely as a supporting effect;

(3) establish or strengthen career fields, professional military education, and training pipelines for personnel assigned to information domain functions, including with respect to—

(A) military information support operations;

(B) electronic warfare;

(C) public affairs;

(D) intelligence support to information operations; and

(E) cyber operations functions that contribute to information effects; and

(4) improve the integration of cyber operations, electronic warfare, intelligence, and psychological operations capabilities in support of information-domain objectives and reduce redundancy across such operations.

(c) REPORT.—

(1) SUBMISSION.—Not later than 180 days after the date on which the Secretary of Defense submits the determination required under subsection (a), the Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the implementation of this section. Such report shall include the following:

(A) An assessment of the effect of such determination, including with respect to personnel, training, and resourcing.

(B) A description of any revisions to materials made pursuant to subsection (b)(2).

(2) FORM.—The report required under paragraph (1) shall be submitted in an unclassified form but may contain a classified annex.

SEC. 1099A. DESIGNATION OF SOUTHWEST LAND BORDER ACTIVITIES, SUPPORT, AND OPERATIONS AS NAMED OPERATION.

(a) DESIGNATION.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall designate activities, support, and operations conducted by the Department of Defense in support of civil authorities at the southwest land border as a named operation, for the purposes of—

(1) providing unified identification, planning, budgeting, oversight, and reporting for such activities, support, and operations; and

(2) strengthening efforts to detect, deter, and disrupt transnational criminal organizations and other border-related threats.

(b) ANNUAL BUDGET REQUEST.—In the budget justification materials submitted to Congress in support of the Department of Defense budget for the first fiscal year following the designation under subsection (a) and each fiscal year thereafter (as submitted with the budget of the President under section 1105(a) of title 31, United States Code), the Secretary of Defense shall include—

(1) a dedicated budget line item for the named operation so designated;

(2) a display of the requested budgetary authority for such named operation by appropriations account and fiscal year;

(3) a narrative justification describing the scope of, and legal authorities for, the planned activities, support, and operations to be carried out or provided under such named operation using amounts so requested;

(4) with respect to such planned support, a summary of the types and estimated values of support to be provided; and

(5) performance metrics and planned outputs with respect to such named operation for the subsequent fiscal year.

(c) FORM.—The summary specified in subsection (b)(4) shall be submitted in unclassified form, but may include a classified annex.

(d) RULE OF CONSTRUCTION.—Nothing in this section may be construed to authorize the use of military force.

(e) DEFINITIONS.—In this section:

(1) The term ''southwest land border'' means the land border of the United States adjacent to Mexico.

(2) The term ''support of civil authorities''—

(A) has the meaning given that term in Department of Defense Directive 3025.18, as amended;

(B) includes support relating to planning, logistics, intelligence, aviation, and engineering; and

(C) does not include support provided to a civilian law enforcement agency.

SEC. 1099B. PILOT PROGRAM ON THE USE OF CLINICALLY TESTED DIGITAL FAITH-BASED PLATFORMS TO SUPPORT SPIRITUAL FITNESS AND READINESS.

(a) PILOT PROGRAM REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall establish a pilot program to evaluate the use of clinically tested, commercially available digital faith-based platforms to support the modernization and digitization of the chaplaincies of the Armed Forces and to promote spiritual fitness, operational readiness, resilience, and overall mental health among members of the Armed Forces and their dependents. The Secretary shall design the pilot program to determine whether the platforms evaluated are capable of—

(1) augmenting the ability of military chaplains to provide spiritual care and counseling using estab-

lished metrics for effectiveness and performance used by the Chaplain Corps today and included in the modernization efforts of the Secretary;

(2) measurably expanding access to voluntary spiritual support resources for geographically dispersed personnel, including deployed members of the Armed Forces;

(3) enhancing spiritual readiness consistent with total force fitness and holistic health initiatives and other applicable standards and metrics;

(4) improving measurable indicators of resilience, morale, and nonclinical mental health support; and

(5) extending access to spiritual wellness resources to military families and dependents, recognizing the integral role of family readiness in overall force resilience.

(b) REQUIREMENTS.—In carrying out the pilot program, the Secretary shall—

(1) evaluate and incorporate commercially available platforms supported by peer-reviewed evidence, specific to the platform under evaluation, demonstrating that engagement in religious or spiritual practice through the platform produces positive spir-

itual wellbeing, spiritual fitness, resilience, or mental health outcomes;

(2) ensure participation is voluntary and consistent with the constitutional protections regarding religious liberty and the prohibition on establishment of religion;

(3) ensure platforms meet applicable cybersecurity, privacy, and data protection standards of the Department;

(4) prioritize evaluation of platforms that—

(A) have a demonstrated record of user engagement and scalability across large and diverse populations;

(B) have a demonstrated record of providing tools that enable faith leaders and religious organizations to create, distribute, and measure engagement with digital spiritual care content; and

(C) provide engagement reporting and analytics sufficient to support the assessments required under subsection (d), including use by geographically dispersed personnel, deployed personnel, and military dependents;

(5) coordinate with the Chiefs of Chaplains of the military departments;

(6) conduct the pilot across not fewer than two military departments, including both active and reserve components; and

(7) carry out the pilot program using other transaction authority under section 4022 of title 10, United States Code, or procedures for the acquisition of commercial products and commercial services under part 12 of the Federal Acquisition Regulation, as the Secretary considers appropriate.

(c) DURATION; COMMENCEMENT.—The pilot program shall be conducted for a period of not less than 12 months. The Secretary shall commence participant enrollment not later than 180 days after the date of the enactment of this Act.

(d) REPORT AND ASSESSMENT OF PROGRAM OF RECORD FEASIBILITY.—Not later than 120 days after completion of the pilot program, the Secretary shall submit to the congressional defense committees a report containing the results of the program and an assessment of whether digital faith-based platforms should be incorporated into the spiritual readiness and chaplaincy programs of the Department of Defense. The report shall include the following:

(1) An assessment of participation rates, user engagement, frequency of use, completion of plat-

form content, and sustained use over the duration of the pilot.

(2) An assessment of the extent to which the pilot expanded access to spiritual support resources for members of the Armed Forces and military families who historically under-use traditional chaplain services, including personnel located in geographically dispersed locations and deployed environments, members of the reserve components, and military families.

(3) An assessment of changes in participant-reported measures of spiritual fitness, purpose, meaning, connectedness, resilience, and other indicators identified by the Department as relevant to total force fitness and holistic health initiatives.

(4) An assessment of whether digital faith-based platforms enhanced the ability of military chaplains to provide care, increased the reach of chaplaincy services, reduced barriers to engagement, or otherwise improved delivery of spiritual support across participating units.

(5) To the extent practicable, an assessment of changes in relevant readiness and resilience indicators among participants, including stress management, help-seeking behavior, social connectedness,

morale, and other nonclinical indicators identified by the Secretary.

(6) A comparison of the costs and outcomes associated with digital delivery of spiritual readiness resources relative to traditional methods of providing comparable support, including an assessment of scalability across the active and reserve components.

(7) An assessment of cybersecurity, privacy, data protection, acquisition, contracting, and implementation considerations identified during execution of the pilot program.

(8) An assessment of whether digital faith-based platforms demonstrated sufficient effectiveness, user adoption, scalability, affordability, and mission relevance to warrant establishment of a program of record or other permanent capability within the Department. Such assessment shall include—

(A) recommended governance and oversight mechanisms;

(B) recommended funding levels and appropriations accounts;

(C) recommended lead organization or executive agent;

(D) recommended performance measures for future implementation; and

(E) any legislative authorities required to support Department-wide adoption.

(9) Recommendations regarding continuation, expansion, modification, competitive procurement, or termination of the capability.

(e) DEFINITION.—In this section, the term ''digital faith-based platform''—

(1) means a commercially available digital platform the primary purpose of which is the creation, delivery, and facilitation of religious and spiritual content and practice; and

(2) includes tools for faith leaders and religious organizations.

SEC. 1099C. PLAN ON RECAPITALIZATION OF F–16 AIRCRAFT OF 140TH WING OF THE COLORADO AIR NATIONAL GUARD.

Not later than 60 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a comprehensive plan for the recapitalization of the F–16 aircraft of the 140th Wing of the Colorado Air National Guard.

SEC. 1099D. REPORT ON GO FOR GREEN NUTRITION PROGRAM.

Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit

to the congressional defense committees a report on the implementation of the Go for Green nutrition program at military dining facilities.

SEC. 1099E. CODIFICATION AND REVISION OF PROCESS BY WHICH CERTAIN DEPARTMENT OF DEFENSE PERSONNEL MAY BE PERMITTED TO CARRY FIREARMS ON A MILITARY INSTALLATION OR OTHER DEFENSE FACILITY.

(a) IN GENERAL.—Chapter 53 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 1060d. Firearms on military installations and other Defense facilities: process by which personnel may be permitted to carry

''(a) AUTHORITY.—A member of the Armed Forces or civilian employee of the Department of Defense who is assigned to duty at a facility specified in subsection (b) may carry a firearm when on that facility if permitted to do so by the designated commander. Such permission constitutes an authorization for purposes of section 930(d)(2) of title 18.

''(b) DESIGNATED FACILITIES.—For purposes of subsection (a), a facility designated in this subsection is any of the following located in the United States:

''(1) A military installation.

''(2) A military reserve center.

''(3) An armed services recruiting center.

''(4) Any other facility under the jurisdiction, custody, or control of the Department of Defense that is designated by the Secretary of Defense for purposes of this section.

''(c) DESIGNATED COMMANDER.—For purposes of subsection (a), a designated commander, with respect to a facility specified in subsection (b), is an officer serving in a grade below a General or Flag Officer grade who is—

''(1) the commander of the facility; or

''(2) a military commander otherwise designated by the Secretary of Defense for the facility for purposes of this section.

''(d) PRESUMPTION OF APPROVAL.—In considering a request for permission to carry a firearm on a designated facility, the designated commander with respect to that facility may deny the request only for objective, clearly-described, individualized reasons.

''(e) IMPLEMENTATION.—The Secretary of Defense shall establish a process for the implementation of this section.

''(f) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to limit the authority of the Secretary of Defense to permit additional individuals from

seeking, or being granted, permission to carry a firearm on a facility designated in subsection (b) in accordance with procedures established by the Secretary.''.

(b) DEADLINE.—The process required by subsection (e) of section 1060d of title 10, United States Code, as added by subsection (a), shall be implemented not later than December 31, 2027.

(c) REPEAL.—Section 526 of the National Defense Authorization Act for Fiscal Year 2016 (Public Law 114-92; 10 U.S.C. 2672 note) is repealed.

SEC. 1099F. PILOT PROGRAM ON THE ARMY NATIONAL GUARD AS THE HOMELAND DEFENSE INTEGRATOR FOR DEFEATING EXPLOSIVE ORDNANCE.

(a) PILOT PROGRAM AUTHORIZED.—

(1) IN GENERAL.—The Secretary of the Army may conduct a pilot program to assess the feasibility and advisability of the development of a capability in support of Department of the Army missions within the National Guard through which the National Guard of a State remotely provides to the National Guard of other States (whether or not in the same Armed Force as the providing National Guard) explosive ordnance disposal capability through technical assistance in the planning, preparation, train-

ing, and response to accidents and incidents involving foreign and domestic explosive ordnance, as such term is defined in section 283(d) of title 10, United States Code.

(2) ASSESSMENT PRIOR TO COMMENCEMENT.—For the purposes of the pilot program described in subsection (a), the Director of the Army National Guard shall, prior to commencing the pilot program, determine—

(A) which of the service component commands of the Army best supports the responsible combatant commands that defend the homeland including the United States Strategic Command, the United States Space Command, and the United States Northern Command;

(B) the command and support relationships of Army National Guard explosive ordnance disposal formations, and other military explosive ordnance disposal units, to the Army service component command identified pursuant to subparagraph (A);

(C) the required increase in the number of members of the National Guard performing full-time National Guard duty in the Active Guard and Reserve Program that may support

or execute such homeland defense activities performed by the National Guard under section 904 of title 32, United States Code; and

(D) the crosswalk of designated Army National Guard explosive ordnance disposal units to that of the Department of Defense prioritized critical infrastructure listing with an emphasis on United States left of launch capability including missile production and storage facilities, missile launching equipment and positions, and command and control equipment generally recognized as lawful military objectives that may be targeted.

(b) ELEMENTS.—The pilot program described in subsection (a) may include the following:

(1) A secure net-worked capability, including joint worldwide intelligence communication system and secure internet protocol router networks, that enables the National Guard explosive ordnance disposal unit of a State to remotely provide command and control, intelligence, technical operations oversight, and explosives safety compliance without the need to deploy outside its home State.

(2) The development of policies, processes, procedures, program element and management decision

packages, and authorities for use of such a capability, including with respect to the following:

(A) The roles and responsibilities of both requesting and deploying National Guards with respect to such explosive ordnance disposal capabilities as defined in section 2284(d)(2) of title 10, United States Code.

(B) Program management and governance structures for deployment and maintenance of such a capability.

(3) The conduct of at least three annual exercises known as ''Ravens Challenge exercises'' with the Bureau of Alcohol, Tobacco, Firearms, and Explosives and the Army which shall include the following:

(A) The participation of not fewer than the National Guards of two States.

(B) Circumstances designed to test and validate the policies, processes, procedures, program elements, and management decision packages and authorities pursuant to paragraph (2).

(c) CONSTRUCTION WITH CERTAIN CURRENT AUTHORITIES.—

(1) COMMAND AUTHORITIES.—Nothing in this section may be construed as affecting or altering the

command authorities otherwise applicable to any unit of the National Guard participating in the pilot program.

(2) EMERGENCY MANAGEMENT ASSISTANCE COMPACT.—Nothing in the section may be construed as affecting or altering any current agreement under the Emergency Management Assistance Compact, or any other State agreements, or as determinant of the future content of any such agreement.

(d) EVALUATION METRICS.—The Director of the Army National Guard shall establish metrics to evaluate the effectiveness of the pilot program.

(e) TERM.—The pilot program under subsection (a) shall not terminate not later than five years (a future years defense program cycle) after the date of the commencement of the pilot program.

(f) REPORTS.—

(1) INITIAL REPORT.—Not later than 180 days after the date of the commencement of the pilot program, the Secretary of the Army shall submit to the defense and intelligence committees of Congress an initial report setting forth a description of the pilot program and such other matters in connection with the pilot program as the Secretary considers appropriate.

(2) FINAL REPORT.—Not later than 180 days after the termination of the pilot program, the Secretary of the Army shall submit to the defense and intelligence committees of Congress a final report. The report shall include the following:

(A) A description of the pilot program including any partnerships entered into under the pilot program.

(B) A summary of the assessment performed prior to the commencement of the pilot program in accordance with subsection (a)(2).

(C) A summary of the evaluation metrics established in accordance with subsection (d).

(D) An assessment of the effectiveness of the pilot program, and capability elements described in subsection (b).

(E) A description of the costs associated with implementation and conduct of the pilot program.

(F) A recommendation as to authorizing a permanent program modeled on the pilot program.

(G) An estimate of the costs on making the pilot program permanent and expanding it

nationwide in accordance with the recommendation in subparagraph (F).

(H) Such recommendations for legislative or administrative action as the Secretary of the Army considers appropriate in light of the pilot program.

(g) STATE DEFINED.—In this section, the term ''State'' means—

(1) the several States;

(2) the District of Columbia;

(3) the Commonwealth of Puerto Rico;

(4) American Samoa;

(5) Guam;

(6) the United States Virgin Islands; and

(7) the Commonwealth of the Northern Mariana Islands.

SEC. 1099G. BRIEFING ON LOW COST, PLATFORM AGNOSTIC AUTONOMY MODULES FOR SUAS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) there is a growing operational need for rapidly deployable, low cost, and attritable small unmanned aerial systems (in this section referred to as ''sUAS'') capable of executing autonomous strike and reconnaissance missions;

(2) commercial sector advances now allow advanced artificial intelligence-enabled autonomy to run on inexpensive, widely fielded hardware, such as ruggedized Net Warrior Android based devices, mounted onto off the shelf drones;

(3) these capabilities can convert low cost platforms into autonomous delivery or one way attack systems without requiring complex or costly payload integration;

(4) it is encouraging that emerging platform agnostic autonomy kits that leverage onboard sensors and processors from commercially available devices to enable navigation, target recognition, and terminal engagement for sUAS operating in contested environments; and

(5) these capabilities offer the Department a rapid, scalable means of fielding attritable systems at a fraction of traditional cost.

(b) BRIEFING.—Not later than December 1, 2026, the Secretary of Defense shall provide to the congressional defense committees a briefing on opportunities to accelerate development and acquisition of low cost, platform agnostic autonomy modules for sUAS. The briefing shall include each of the following:

(1) A survey of commercially derived autonomy solutions that can be integrated onto inexpensive, non proprietary hardware.

(2) An assessment of Department of Defense integration pathways for enabling autonomous weapons delivery or ISR missions on off the shelf drones.

(3) Recommendations for rapid fielding, demonstrations, or procurement approaches that would allow the Services to acquire and deploy such capabilities at scale.

SEC. 1099H. BRIEFING ON TEST MISSION ACCIDENT AT EDWARDS AIR FORCE BASE.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the United States is indebted to the service and dedication of Col. Gregory Watson, Lt. Col. Gabriel Estrella, Retired Lt. Col. Miles Middleton, Maj. Alexander Davis, Maj. Robert Dee, Maj. Brad Hovey, Jeromy Smith, and Christopher Rischar, who lost their lives in the B–52 Stratofortress crash on June 15, 2026; and

(2) the people of the United States should honor their memories and remember the sacrifice they and their families have made.

(b) BRIEFING.—Following the completion of the investigation into the B–52 Stratofortress crash on June 15, 2026, the Secretary of Defense, in consultation with the Secretary of the Air Force, shall provide to the congressional defense committees a briefing on the crash.

SEC. 1099I. SENSE OF CONGRESS REGARDING ROCK ISLAND ARSENAL CHILD CARE DEVELOPMENT CENTER.

It is the sense of Congress that the Department of Army should prioritize the Rock Island Arsenal Defense Alliance request for the Rock Island Arsenal Child Care Development Center to support the readiness of the workforce.

SEC. 1099J. DESIGNATION OF LEAD AGENCY SERVICE DELIVERY OFFICIAL FOR THE DEPARTMENT OF DEFENSE.

(a) DESIGNATION OF LEAD AGENCY SERVICE DELIVERY OFFICIAL.—The Secretary of Defense shall designate a senior official of the Department of Defense to serve as the Lead Agency Service Delivery Official for the Department, in accordance with section 323(b) of title 5, United States Code.

(b) DESIGNATION OF MILITARY DEPARTMENT OFFICIALS.—The Secretary of Defense shall require each Secretary of a military department to designate a senior offi-

cial responsible for coordinating service delivery improvement activities within such military department.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the implementation of service delivery improvement activities by the Department. Such report shall include—

(1) an identification of each official designated pursuant to subsection (b) or (c), including a description of the respective authorities, responsibilities, and reporting relationships of such officials;

(2) an assessment of the programs, benefits, services, and functions of the Department that may be appropriate for designation as a high impact service provider, as such term is defined in section 321 of title 5, United States Code, including any such services that directly affect members of the Armed Forces and their families;

(3) a description of efforts to collect and incorporate feedback from recipients of benefits and services of the Department;

(4) a description of performance measures used to assess the accessibility, efficiency, timeliness, and quality of the delivery of such benefits and services;

(5) a description of standards established for the collection, management, and reporting of such delivery performance information across the Department; and

(6) any recommendations for additional authorities or resources needed to improve the delivery of benefits and services across the Department.

SEC. 1099K. PILOT PROGRAM FOR INTEGRATED WARFIGHTER COGNITIVE PERFORMANCE AND READINESS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) long-term exposure to high-stress operational environments compromises cognitive performance, sleep quality, and psychological resilience, creating conditions for reduced readiness, impaired decision-making, increased behavioral health risk, and greater potential for anxiety, depression, and other stress-related conditions among members of the Armed Forces;

(2) the Secretary of Defense's May 6, 2026, directive establishing Warfighter Performance Optimization as a core Department of Defense priority directs a data-driven, outcomes-focused approach to scaling proven human performance capabilities

across the force and mandates development of minimum standards for human performance programs;

(3) commanders across multiple military services have independently invested in cognitive performance capabilities from local budgets due to existing programs have not consistently delivering measurable readiness outcomes, demonstrating demand for scalable, evidence-based solutions that bridge the gap between research and real-world military performance; and

(4) commercially available, scientifically researched capabilities with documented real-world military performance, including measurable improvements in cognitive performance, sleep quality, stress resilience, and clinical care utilization, are immediately available for deployment and scaling through existing Federal acquisition pathways, with minimal cost or requirements to development of a new program, in direct support of the Department's warfighter performance optimization priorities.

(b) ESTABLISHMENT OF PILOT PROGRAM.—Not later than March 1, 2027, the Secretary of Defense shall establish a pilot program to modernize existing military resilience and performance programs in support of the warfighter performance optimization priorities of the De-

partment of Defense. The program shall be designed to provide members of the Armed Forces and their dependents with an integrated cognitive performance and readiness capability that combines live performance training, cognitive training tools and technologies, always-on digital support, live coaching, care navigation, sleep optimization, and on-installation cognitive readiness infrastructure. In selecting capabilities for the pilot program, the Secretary shall give priority to commercially or federally available capabilities with documented success and prior performance in military or high-stress operational environments.

(c) ELEMENTS.—The pilot program under subsection (b) shall be designed to include the following elements:

(1) The demonstration of a substantial body of scientifically researched and evidence-based published evidence of measurable improvements in cognitive performance outcomes, including sustained attention, reaction time under stress, and stress regulation, in military or high-stress operational populations, including evidence derived from alpha-competitive and high-consequence operational environments such as military aviation, special operations, and elite performance contexts, demonstrating real-world military efficacy.

(2) The demonstration of military cultural competence across all personnel delivering services, including coaches, facilitators, and support staff, through documented training requirements specific to military populations, operational environments, and families of members of the Armed Forces.

(3) Content and curriculum developed in partnership with experts with documented service in military operational leadership roles, aligned to service-specific resilience and readiness frameworks and the unique demands of military life, deployment cycles, and family support, and continuously updated to reflect advances in cognitive performance science.

(4) The delivery of cognitive performance capabilities through—

(A) a holistic approach encompassing education, training, leadership development, and culture, providing tactical tools and skill sets applicable across the full spectrum of military service, any area of operations, and all phases of a member's career; and

(B) multiple complementary modalities including in-person instruction by certified facilitators, on-installation cognitive performance environments, and always-on digital ac-

cess, ensuring continuity of support regardless of operational tempo, deployment status, or geographic location.

(5) Interactive and contextualized live cognitive performance training—

(A) provided by specialized training teams with expert knowledge of cognitive performance and how to apply skills across the phases of a military career, focused on development of a high-performance mindset to increase readiness, warfighter lethality, and leadership under stress, with certified facilitators embedded at installations to sustain program culture and common language within units between training events; and

(B) that is delivered in-person at installations when operationally feasible, with alternative delivery modalities available for deployed or distributed environments.

(6) Cognitive training tools and resources, including technologies and structured skill-building environments, designed to improve resilience, focus, decision making, and recovery under pressure, with documented peer-reviewed evidence of measurable improvements in cognitive performance outcomes in-

cluding attention, stress regulation, and reaction time.

(7) A commercially available digital component with demonstrated adoption by millions of users across civilian and enterprise populations, providing continuous on-demand access to cognitive performance support, sleep optimization, stress regulation, mental health and wellness content, and mental fitness resources, including content developed in partnership with experts with documented service in military operational leadership roles, accessible to members of the Armed Forcese and their family members between and independent of scheduled training events, including in deployed environments.

(8) Evidence-based sleep optimization resources and interventions with documented peer-reviewed evidence of measurable improvements in sleep onset, sleep quality, and insomnia reduction, accessible to members of the Armed Forces and their families on demand.

(9) On-demand access, at any time during the day or night, to live subclinical coaching support with response times less than two minutes on average as well as through scheduled video and text based sessions for members of the Armed Forces

and their families, with demonstrated rapid-access connection capability, with military cultural competence training required of all coaching personnel as a condition of employment.

(10) Validated assessments and structured care navigation connecting members of the Armed Forces to existing military and Department support resources, including base-level services, crisis pathways, and clinical referral infrastructure aligned to co-created protocols, optimizing the use of existing investments rather than duplicating such investments.

(11) Evidence-based cognitive readiness environments at participating installations using sensory and cognitive stimulation technologies with documented peer-reviewed evidence of measurable improvements in stress recovery and cognitive performance outcomes following use.

(12) Outcome tracking and data collection capabilities across its integrated components, including biometric, assessment-based, and clinical utilization measures of cognitive readiness, designed to support Department-wide warfighter performance reporting requirements.

(13) Commercially availability and contractability under existing Federal acquisition pathways, with a preference for capabilities with documented prior performance in military environments, to enable rapid deployment following program authorization without delay to execution.

(d) METRICS.—The Secretary shall evaluate the pilot program using the following metrics:

(1) Cognitive performance outcomes, including sustained attention, reaction time under stress, and validated measures of stress and resilience.

(2) Sleep quality indicators, including member survey data and sleep medication usage rates.

(3) Behavioral health referral and counseling center usage rates at participating installations.

(4) Related clinical care wait times and limited duty assignment rates attributable to stress and behavioral health conditions.

(5) Use and results of cognitive training tools and technologies, including data on attention, focus, relaxation, and workload regulation.

(6) The level of engagement of members of the Armed Forces and their families, including number of sessions and average hours of substantive program use per active participant.

(7) Program cost efficiency indicators, including estimated reductions in clinical care use and behavioral health-related attrition.

(e) REPORT.—

(1) IN GENERAL.—Not later than one year after the commencement of the pilot program under subsection (b), the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and House of Representatives a report on the implementation and outcomes of the program. Such report shall include—

(A) the evaluation of the pilot program using the metrics under subsection (d);

(B) an assessment of whether the program reduced attrition and improved cognitive performance and resilience among participating members of the Armed Forces; and

(C) a recommendation as to whether the Department of Defense should expand the program across additional installations or populations.

(2) FORM.—The report required under this subsection shall be submitted in unclassified form but may contain a classified annex.

SEC. 1099L. REVOCATION OF SECURITY CLEARANCES FOR CERTAIN PERSONS.

(a) PROHIBITION.—Notwithstanding any other provision of law, the Secretary of Defense shall suspend or revoke a security clearance or eligibility for access to classified information for any retired or separated member of the Armed Forces or civilian employee of the Department of Defense who engages in an activity described in subsection (b).

(b) ACTIVITIES DESCRIBED.—The activities described in this subsection are lobbying activities or lobbying contacts for or on behalf of any entity that is—

(1) identified by the Secretary of Defense in the most recent report submitted under section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 113 note) as a Chinese military company; and

(2) included in the Non-SDN Chinese Military-Industrial Complex Companies List published by the Department of the Treasury.

(c) WAIVER.—The Secretary of Defense may, for periods not to exceed 180 days, waive the application of the prohibition in subsection (a) for an individual if the Secretary certifies to the congressional defense committees

that doing so is in the national security interest of the United States.

(d) DEFINITIONS.—In this section:

(1) The term ''congressional defense committees'' has the meaning given the term in section 101(a) of title 10, United States Code.

(2) The term ''lobbying activities'' has the meaning given such term in section 3 of the Lobbying Disclosure Act of 1995 (2 U.S.C. 1602).

(3) The term ''lobbying contact'' has the meaning given such term in section 3 of the Lobbying Disclosure Act of 1995 (2 U.S.C. 1602), except that clause (iv) of paragraph (8)(B)(iv) of such section shall not apply.

TITLE XI—CIVILIAN PERSONNEL

SEC. 1101. LIMITATION ON OUTSIDE INCOME FOR INDIVIDUALS IN OFFICE OF THE SECRETARY OF DEFENSE.

Section 131 of title 10, United States Code, is amended by adding at the end the following:

''(e)(1) Any covered employee who is employed by, or detailed or otherwise assigned to, the Office of the Secretary of Defense may not receive any outside earned income during the period such individual is so employed, detailed, or assigned unless the individual notifies the rel-

evant designated agency ethics official and such official reviews such income and issues a determination (in writing) that—

''(A) the outside earned income received is unrelated to the duties the individual has performed or is expected to perform for the United States; and

''(B) the individual—

''(i) does not have official business in front of the Department of Defense; and

''(ii) the individual is not working on behalf of, or representing, a foreign agent or government.

''(2) Any determination under paragraph (1) shall be published on the public website of the Office of Government Ethics not later than 15 days after such determination is made.

''(3) Notwithstanding any other provision of law, a covered employee who receives outside earned income shall file a public financial disclosure report pursuant section 13103(a) of title 5 not later than 30 days after receiving such income.

''(4) In this subsection—

''(A) the term 'covered employee' means—

''(i) any special Government employee (as that term is defined in section 202 of title 18);

"(ii) an officer or employee who is serving without compensation; and

"(iii) any member of a reserve component of the Army, Navy, Marine Corps, Air Force, or Space Force;

"(B) the term 'designated agency ethics official' has the meaning given that term in section 13101 of title 5; and

"(C) the term 'outside earned income'—

"(i) means wages, salaries, honoraria, commissions, professional fees and any other form of compensation for services other than salary, benefits, and allowances paid by the United States Government; and

"(ii) does not include the following:

"(I) Items that may be accepted under applicable standards of conduct gift regulations if they were offered by a prohibited source.

"(II) Income attributable to service with the military reserves or national guard.

"(III) Income from pensions and other continuing benefits attributable to previous employment or services.

"(IV) Income from investment activities where the individual's services are not a material factor in the production of income.

"(V) Copyright royalties, fees, and their functional equivalent, from the use or sale of copyright, patent and similar forms of intellectual property rights, when received from established users or purchasers of those rights.

"(VI) Actual and necessary expenses incurred by the employee in connection with an outside activity. Where such expenses are paid or reimbursed by another person, the amount of any such payment shall not be counted as compensation or outside earned income. Where such expenses are not paid or reimbursed, the amount of compensation or earned income shall be determined by subtracting the actual and necessary expenses incurred by the employee from any payment received for the activity.

"(5) Not later than 180 days after the date of the enactment of the National Defense Authorization Act for

Fiscal Year 2027, the Secretary of Defense, in concurrence with the Office of Government Ethics, shall issue such regulations as the Secretary determines necessary to carry out this subsection.''.

SEC. 1102. SKILLS-BASED HIRING FOR DEPARTMENT OF DEFENSE CIVILIAN POSITIONS.

(a) IN GENERAL.—Chapter 81 of title 10, United States Code, is amended by adding at the end the following new section:

''§ 1599k. Skills-based hiring for civilian positions

''(a) FRAMEWORK FOR SKILLS-BASED HIRING.—

''(1) The Secretary of Defense shall establish and implement a skills-based hiring framework for appointment to a position in the competitive service or the excepted service that—

''(A) prioritizes the evaluation of applicants based on demonstrated competencies, skills, and relevant experience and validated assessments; and

''(B) permits applicants to qualify for positions through one or more pathways based on experience, training, apprenticeships, certifications, licenses, education, or other alternative credentials, as appropriate to the duties of the position.

''(2) Qualification standards for a position shall be based on a job analysis that identifies the competencies, knowledge, skills, abilities, and education, if applicable, necessary to perform the essential duties of the position.

''(b) USE OF EDUCATION REQUIREMENTS.—

''(1) IN GENERAL.—Except as provided in subsection (c), and consistent with paragraph (2) of this subsection, the Secretary may waive or remove a minimum education requirement as a mandatory qualification standard for appointment to a position based on a determination that the competencies required for the position may be demonstrated through relevant experience, apprenticeships, certifications, validated assessments, or other alternative qualifications.

''(2) SUNSET.—The authority to waive or remove a minimum education requirement under paragraph (1) shall expire on the date that is five years after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2027.

''(c) EXCEPTIONS.—Subsection (b) shall not apply to a position—

''(1) for which a minimum education requirement is established by Federal statute;

''(2) in a recognized profession for which a minimum education requirement is necessary for professional licensure, certification, or accreditation by a recognized accrediting body, including positions in the fields of medicine, law, engineering, accounting, and other professions as determined by the Secretary; or

''(3) classified in a scientific or technical occupational series for which the Office of Personnel Management has established a positive education requirement that the Secretary determines is directly and specifically necessary for satisfactory performance of the duties of the position.

''(d) DEFINITIONS.—In this section:

''(1) EDUCATION.—The term 'education' means any form of formal learning, including a high school diploma or its equivalent, a credential from a qualifying career or technical education program, an associate, baccalaureate, graduate, or professional degree, or industry-recognized certifications and apprenticeships.

''(2) EDUCATION REQUIREMENT.—The term 'education requirement' includes a requirement that can be met through—

''(A) education alone; or

"(B) a combination of education and experience.".

(b) TECHNICAL AND CONFORMING AMENDMENT.—The table of sections at the beginning of such chapter is amended by adding at the end the following new item:

"1599k. Skills-based hiring for civilian positions.".

(c) IMPLEMENTATION PLAN.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a plan for implementing this section, including—

(1) a timeline for implementation of this section;

(2) a strategy for training hiring managers and human resources professionals on skills-based assessment methods;

(3) a description of validated assessment tools the Department plans to develop or adopt; and

(4) metrics for evaluating the impacts of this section on time-to-hire, quality of hire, and retention rates.

(d) ANNUAL REPORT.—Not later than 180 days after the date of enactment of this Act, and annually thereafter for five years, the Secretary of Defense shall submit a report on the authority under section 1599k(b) of title 10,

United States Code, as added by this Act. The report shall include the following:

(1) Identification of any occupational series or position for which the authority under such section is exercised.

(2) The service, agency, or component to which such position is assigned.

(3) The justification for exercising such section for each such occupational series or position.

(e) APPLICABILITY.—Section 1599k of title 10, United States Code, as added by subsection (a), shall apply with respect to job opportunity announcements issued on or after the date that is 18 months after the date of the enactment of this Act.

SEC. 1103. ESTABLISHMENT OF A STUDENT INTERNSHIP PROGRAM FOR MILITARY CHILD AND YOUTH PROGRAMS.

Subchapter II of chapter 88 of title 10, United States Code, is amended by inserting after section 1792 the following new section:

"§ 1792a. Internship program for military child and youth programs

''(a) ESTABLISHMENT.—Not later than one year after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2027, the Secretary of

Defense shall establish and carry out an internship program through which an individual described in subsection (b) may perform duties as an intern in a military child and youth program to prepare the individual for possible future employment in a military child and youth program.

''(b) ELIGIBLE INDIVIDUALS.—An individual eligible to be an intern participating in the internship program under this section is an individual who—

''(1) is a student in good standing at an institution of higher education; and

''(2) the Secretary determines—

''(A) to be qualified and talented; and

''(B) has passed appropriate screening and background checks.

''(c) PROGRAM REQUIREMENTS.—Requirements of the internship program shall include the following:

''(1) An intern may perform duties only in a military child development center under the supervision of a child care employee.

''(2) Pursuant to section 1588(a)(3)(B) of this title, a student intern shall perform their duties on a voluntary basis.

''(3) A student intern may not work more than eight hours a day or a total of 40 hours per week.

''(d) AUTHORIZATION OF CERTAIN EXPENSES.—The Secretary may pay the following expenses incurred in the course of an intern's participation in the internship program:

''(1) Lodging expenses.

''(2) Subsistence expenses.

''(3) Incidental expenses.

''(4) Transportation expenses for transportation between the residence of the intern and the military installation where the intern performs duties under the internship program.

''(e) AGREEMENTS.—The Secretary may enter into agreements with one or more institutions of higher education so an intern may receive appropriate levels credit towards a graduate or undergraduate degree for duties performed under the internship program.

''(f) DEFINITION OF INSTITUTION OF HIGHER EDUCATION.—In this section, the term 'institution of higher education' has the meaning given that term in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002).''.

SEC. 1104. EXPANSION OF ELIGIBLE EDUCATIONAL PROGRAMS UNDER THE SMART DEFENSE EDUCATION PROGRAM.

(a) ELIGIBLE EDUCATIONAL PROGRAMS.—Section 4093(b)(1)(B) of title 10, United States Code, is amended

by striking ''is pursuing an associates degree, undergraduate degree, or advanced degree in a critical skill or discipline described in subsection (a) at an accredited institution of higher education'' and inserting ''is pursuing an associates degree, undergraduate degree, or advanced degree in a critical skill or discipline described in subsection (a) at an accredited institution of higher education or career and technical education, vocational education, apprenticeship preparation, or workforce credentialing program''.

(b) SERVICE AGREEMENT REQUIREMENTS.—Section 4093(c)(1)(B)(ii)(I) of title 10, United States Code, is amended by striking ''and'' and inserting ''or''.

SEC. 1105. MILITARY TECHNICIAN (DUAL STATUS): ELIMINATION OF TITLE 32 AUTHORITY; CONVERSIONS OF EXISTING POSITIONS.

(a) TERMINATION OF TITLE 32 AUTHORITY.—

(1) IN GENERAL.—Section 709 of title 32, United States Code, is amended by adding at the end the following subsection:

''(k) This section shall cease to be effective on October 1, 2038.''.

(2) TECHNICAL AND CONFORMING AMENDMENTS.—

(A) IN GENERAL.—Effective October 1, 2038—

(i) section 115(d) of title 10, United States Code, is amended by striking ''each reserve component of the Army and Air Force'' and inserting ''the Army Reserve and the Air Force Reserve''; and

(ii) section 10216(a)(1)(A) of title 10, United States Code, is amended by striking ''or section 709(b) of title 32''.

(B) NATIONAL GUARD BUREAU PERSONNEL.—Section 10508(b)(1) of title 10, United States Code, is amended by inserting ''sections 1601 and 1762 of title 10,'' before ''or section 328 of title 32,''.

(C) MAINTENANCE AND REPAIR DUTIES.—Section 328(b) of title 32, United States Code, is amended by inserting ''maintaining and repairing supplies issued to the National Guard or the Armed Forces,'' before ''and training the reserve components''.

(b) CONVERSION AUTHORITY.—The Secretary of Defense may convert a military technician (dual status) position filled by an individual employed under section 709 of title 32, United States Code, to either of the following:

(1) A position filled by an individual employed under—

(A) section 3101 of title 5, United States Code; or

(B) section 1601, 1762, or 10508 of title 10, United States Code.

(2) A position filled by an individual who is performing Active Guard and Reserve duty under section 328 of title 32, United States Code, unless such duty is performed as a general or flag officer.

(c) TRANSFER AUTHORITY.—In addition to the conversion authority under subsection (b), the Secretary of Defense may, with the consent of the Governor of the State concerned, for the purpose of reducing the number of National Guard military technician (dual status) positions, provide a State with funding for a non-Federal position for an individual employed in such position. Any such funding shall be provided through a cooperative agreement entered into with the State Governor under section 6305 of title 31, United States Code.

(d) CONSENT OF EMPLOYEE TO CONVERSION OR TRANSFER.—The Secretary of Defense may convert, pursuant to subsection (b), or transfer, pursuant to subsection (c), a filled position only with the written consent of the individual filling such position.

(e) REEMPLOYMENT.—An individual filling a military technician (dual status) position that is converted to Active Guard and Reserve duty pursuant to subsection (b)(2), waives any reemployment entitlement under section 4314 of title 38, United States Code, to another military technician (dual status) position but may assert reemployment rights to a civilian position employed under section 3101 of title 5, United States Code, or section 1601, 1762, or 10508 of title 10, United States Code if a similar position is reasonably available.

(f) AUTOMATIC ADJUSTMENT TO END STRENGTH REQUIREMENTS.—Whenever a military technician (dual status) position is converted pursuant to subsection (b)(2)—

(1) the applicable statutory annual end strength limitation for Active Guard and Reserve personnel within the Army and Air National Guards of the United States, in accordance with section 115 of title 10, United States Code, shall be increased accordingly.

(2) the applicable statutory annual minimum end strength required for National Guard military technician (dual status) within the Army and Air National Guards of the United States, in accordance

with section 115 of title 10, United States Code, shall be decreased accordingly.

(g) HIRING FREEZE.—Beginning on October 1, 2028, no individual may be newly hired or employed, or rehired or reemployed, as a military technician (dual status) under section 709 of title 32, United States Code.

(h) DEFINITIONS.—In this section—

(1) the term ''military technician (dual status)'' has the meaning given such term in section 10216 of title 10, United States Code; and

(2) the term ''State'' has the meaning given such term in section 901 of title 32, United States Code.

SEC. 1106. ONE-YEAR EXTENSION OF AUTHORITY TO WAIVE ANNUAL LIMITATION ON PREMIUM PAY AND AGGREGATE LIMITATION ON PAY FOR FEDERAL CIVILIAN EMPLOYEES WORKING OVERSEAS.

Subsection (a) of section 1101 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417), as most recently amended by section 1105 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 1074), is further amended by striking ''through 2026'' and inserting ''through 2027''.

SEC. 1107. ONE-YEAR EXTENSION OF TEMPORARY AUTHORITY TO GRANT ALLOWANCES, BENEFITS, AND GRATUITIES TO CIVILIAN PERSONNEL ON OFFICIAL DUTY IN A COMBAT ZONE.

Paragraph (2) of section 1603(a) of the Emergency Supplemental Appropriations Act for Defense, the Global War on Terror, and Hurricane Recovery, 2006 (Public Law 109–234; 120 Stat. 443), as added by section 1102 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4616) and as most recently amended by section 1106 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 1074), is further amended by striking ''2027'' and inserting ''2028''.

SEC. 1108. LIVING QUARTER ALLOWANCE FOR DEPARTMENT OF DEFENSE CIVILIAN EMPLOYEES WITH PERMANENT DUTY STATION IN GUAM.

Section 1102 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) is amended—

(1) in subsection (a)(1), by striking ''rent'' and inserting ''rent or mortgage payments'';

(2) by striking subsection (d) (relating to sunset date 3 years after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2026); and

(3) by redesignating subsection (c) (relating to sunset date of January 1, 2034) at the end as subsection (d).

SEC. 1109. PILOT PROGRAM ON INTEGRATION OF UNITED STATES TECH FORCE WITH SKILLS-BASED HIRING AUTHORITIES.

(a) PROGRAM REQUIRED.—

(1) IN GENERAL.—The Secretary of Defense shall carry out a pilot program to integrate the United States Tech Force into the implementation of the hiring and promotion reforms authorized under the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60).

(2) PURPOSE.—The purpose of the pilot is to use the United States Tech Force to develop, validate, and deploy the skills-based assessments required to modernize the defense workforce.

(b) USE OF COMMERCIAL TECHNOLOGY FOR SKILLS VERIFICATION.—In carrying out the pilot program, the Secretary of Defense shall use commercially available, interoperable technology platforms to—

(1) create a ''Digital Skills Passport'' for members of the United States Tech Force and Department of Defense civilian employees, documenting

verified competencies rather than solely degrees or tenure;

(2) automatically map the skills possessed by United States Tech Force participants to gaps identified in the Department of Defense cyber and digital workforce; and

(3) track the mobility of talent across the Department based on skills proficiency, consistent with the removal of time-in-grade restrictions.

(c) REPORTING.—Not later than 1 year after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the effectiveness of using commercial skills-based platforms to integrate the United States Tech Force with Department of Defense hiring authorities.

(d) SUNSET.—The authority to carry out the pilot program under this section shall expire on the date that is five years after the date of the enactment of this Act.

SEC. 1110. ENHANCED HIRING AUTHORITY FOR INSTRUCTOR PILOTS AND CIVILIAN SIMULATOR INSTRUCTORS.

(a) DIRECT HIRE.—The Secretary of Defense may appoint, without regard to the provisions of subchapter I of chapter 33 of title 5, United States Code, (other than sections 3303, 3307, and 3328 of such chapter), qualified

candidates to instructor pilot positions and civilian simulator instructor positions.

(b) RATES OF PAY.—The Secretary may set annual rates of pay for such positions without regard to the provisions chapters 51 and 53 (relating to classification and pay rates) of such title 5. Such rates shall be equal to the annual rate of pay for positions in private industry comparable to instructor pilot positions and civilian simulator instructor positions, as determined by the Secretary.

(c) RECRUITMENT AND RETENTION AUTHORITY.—The Secretary may use the authority provided under sections 5373 and section of title 5, United States Code, for the payment of recruitment, relocation, and retention incentives to instructor pilots and civilian simulator instructors or applicants to such positions.

(d) STUDY AND REPORT.—Not later than 1 year after the date of the enactment of this Act, the Secretary shall conduct a study on the hiring authorities issued under this section and submit a report on such study to the congressional defense committees. Such study shall include information with respect to the following:

(1) How the authority under this section is being used, including—

(A) how many instances such authority has been used and where the authority is being used;

(B) time to hire; and

(C) the hiring incentives, recruitment bonuses, and special pay authorities used under this section.

(2) The total number of—

(A) vacant instructor pilot positions and civilian simulator instructor positions filled using such authority; and

(B) vacant instructor pilot positions and civilian simulator instructor positions remaining.

(3) Any additional authorities necessary to ensure the Secretary is able to hire and retain instructor pilots and civilian simulator instructors.

(e) SUNSET.—The authority under this section shall terminate on the date that is five years after the date of the enactment of this Act.

SEC. 1111. PILOT PROGRAM ON TECH TALENT COMPETITIVENESS.

(a) PILOT PROGRAM.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall establish a pilot program that expedites and

scales the sourcing and placement of early-career talent across the Department of Defense in the areas of science, technology, engineering, and math and functional areas of artificial intelligence, cybersecurity, biotechnology, materials and manufacturing, and business process innovation. In carrying out the pilot program, the Secretary of Defense shall—

(1) use the authorities under section 213.3102(r) of title 5, Code of Federal Regulations, to appoint individuals in support of establishing fellowships;

(2) develop and implement a process for identifying, sourcing, and training a pool of qualified candidates;

(3) establish a professional development structure for pilot program participants; and

(4) partner with a nonprofit intermediary organization that have a proven track record in delivering efficient recruitment and screening processes and have demonstrated expertise in navigating the Federal security clearance procedures to support the development of qualified talent pools with the necessary skills and expertise.

(b) ASSESSMENT REQUIRED.—Not later than 180 days after the date of the enactment of this Act and annu-

ally thereafter until the pilot program sunsets, the Secretary of Defense shall provide an assessment to the congressional defense committees on the effectiveness of the pilot program. Each such assessment shall include—

(1) an evaluation of the efficacy in matching the pre-vetted pools of candidates to the requirements of the Department of Defense; and

(2) the effectiveness of partnering with intermediary organizations for the purposes of carrying out activities in support of developing qualified pools of talent with the skills and expertise necessary to meet the purposes of the pilot program.

(c) PROGRAM ADMINISTRATION.—For the purposes of carrying out this section, the Secretary of Defense may—

(1) waive any requirement for a permanent billet to be required to support hiring of talent;

(2) make selections based on needs and available budget; and

(3) direct legal counsel of the Department to provide guidance that—

(A) enables post-employment opportunities by avoiding government assignments that preclude hiring outside the Federal Government following the term appointment; and

(B) requires ethics officials to provide guidance that aligns with the temporary nature of the appointment and design protocols to minimize post-employment restrictions.

(d) SUNSET.—The pilot program shall terminate on the date that is 3 years after the date such program is established.

(e) INTERMEDIARY ORGANIZATION DEFINED.—In this section, the term ''intermediary organization'' means—

(1) a nonprofit registered under section 501(c)(3) of title 26, United States Code; and

(2) an organization having demonstrated expertise in—

(A) streamlining recruitment and prescreening for early-career tech talent;

(B) carrying out public-private talent exchanges through a proven track record, including managing rotations between private and public sector entities and reducing governmental administrative burden in the process;

(C) skills development and mentorship programming that ensures program participants remain on the cutting edge of their technical and management skills; and

SEC. 1112. CIVILIAN EMPLOYEE AND CONTRACTOR FINANCIAL MANAGEMENT WORKFORCE WITHIN THE DEPARTMENT OF DEFENSE.

(a) IN GENERAL.—The planning policies and associated processes, practices, and activities of the financial management civilian workforce within the Department of Defense shall be consistent with the following principles:

(1) Involving top management, staff members, and other stakeholders in developing, communicating, and implementing the strategic workforce plan.

(2) Supporting workforce planning strategies that use existing human capital flexibilities.

(3) Monitoring and evaluating progress toward human capital goals.

(4) Determining needed critical skills.

(5) Developing strategies to address gaps in critical skills.

(b) FINANCIAL MANAGEMENT SKILLS ASSESSMENT INTEGRATED PRODUCT TEAM.—

(1) ESTABLISHMENT.—Not later than 60 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Under Secretary of Defense (Comptroller), shall establish a Financial Management Skills Assessment Integrated Product Team (in this subsection referred to as the

''Team'') to develop a strategy to identify functions performed by civilian employees and contractors supporting financial management within the Department.

(2) PROCESS.—The Team shall establish and implement a repeatable process for timely reporting on financial management functions performed by civilian employees and contractors across the Department.

(3) BRIEFING.—The Secretary shall provide a briefing to the congressional defense committees on the Team, a description of how the Team tracks financial management functions performed by civilian employees and contractors, and the Department's audit readiness.

SEC. 1113. DEPARTMENT OF DEFENSE BEST PRACTICES GUIDE FOR FAMILY CHILD CARE HOMES.

(a) DEPARTMENT-WIDE FAMILY CHILD CARE GUIDE REQUIRED.—Not later than one year after the date of enactment of this Act, the Secretary of Defense shall publish a Department-wide best practices guide for individuals seeking to establish and operate a Family Child Care home on a military installation.

(b) CONSULTATION REQUIREMENT.—In developing the guide required under subsection (a), the Secretary of

Defense shall consult with military departments, military installations, Family Child Care program administrators, and established Family Child Care providers operating under successful Family Child Care programs across the Department of Defense to identify and incorporate best practices, lessons learned, and approaches that have demonstrated success in expanding participation and reducing barriers to establishing and operating Family Child Care homes.

(c) REQUIRED ELEMENTS.—The guide required under subsection (a) shall include, at a minimum—

(1) an overview of the process for becoming a certified Family Child Care provider;

(2) standardized information regarding training, inspections, background checks, licensing, and certification requirements;

(3) guidance regarding available financial assistance, startup support, subsidies, grants, and reimbursement opportunities;

(4) information on liability coverage, safety standards, and emergency preparedness requirements;

(5) recommendations for reducing administrative barriers to establishing Family Child Care homes; and

(6) any additional information the Secretary determines appropriate to support prospective Family Child Care providers.

(d) PUBLIC AVAILABILITY.—The Secretary shall make the guide required under subsection (a) publicly available on an internet website of the Department of Defense in a searchable and accessible format for military families.

(e) SERVICE-SPECIFIC APPENDICES.—

(1) IN GENERAL.—The Secretary of Defense shall encourage the Secretaries of the military departments to publish and maintain service-specific appendices accompanying the guide required under subsection (a).

(2) CONTENTS.—A service-specific appendix under paragraph (1) may include—

(A) service-specific policies or procedures;

(B) installation-level best practices;

(C) information regarding unique operational requirements or child care demands within the military department concerned;

(D) guidance regarding military housing considerations related to Family Child Care homes; and

(E) points of contact and resources specific to the military department concerned.

(f) BRIEFING.—Not later than 18 months after the date of enactment of this Act, the Secretary of Defense shall provide a briefing to the congressional defense committees regarding—

(1) actions taken to implement this section;

(2) efforts to improve awareness of Family Child Care opportunities among military spouses and families;

(3) barriers identified in the establishment of Family Child Care homes; and

(4) recommendations for legislative or administrative action to improve military child care capacity.

SEC. 1114. DELEGATION OF AUTHORITY FOR CORRECTIVE ACTION FOR NONAPPROPRIATED FUND EMPLOYEES IN CASES OF COMPLAINT OF REPRISAL.

Section 1587(d) of title 10, United States Code, is amended by striking the second sentence.

SEC. 1115. LIMITATION ON USE OF FUNDS TO LIMIT COLLECTIVE BARGAINING.

None of the funds authorized to be appropriated by this Act or otherwise made available for the Department of Defense for fiscal year 2027 may be used to implement

Executive Order 14251, issued on March 27, 2025, relating to Exclusions from Federal labor management relations programs, or any following policy or guidance.

SEC. 1116. HIRING FREEZE EXCEPTIONS.

None of the funds authorized to be appropriated by this Act or otherwise made available for the Department of Defense for fiscal year 2027 may be used to implement a hiring freeze on the following categories:

(1) Positions essential to immigration enforcement, national security, or public safety.

(2) Positions funded by nonappropriated funds in Department of Defense NAF instrumentalities.

(3) Civilian Mariner positions.

(4) Positions at depots, shipyards, arsenals, and maintenance facilities.

(5) Positions at United States Military Entrance Processing Command.

(6) Positions at military medical treatment facilities that perform patient care or are essential to hospital operations.

(7) Child and Youth Programs staff.

(8) Instructors or facility support staff at Department of Defense schools or child care centers.

(9) Installation positions that support fire, life, and safety functions.

SEC. 1117. PROHIBITION ON AVAILABILITY OF FUNDS FOR TERMINATION OF DODEA, CHILDCARE, AND HEALTHCARE WORKERS.

None of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of Defense may be obligated or expended to terminate employees of Military Child Development Programs, employees of the Department of Defense 9 Education Activity, or employees of the Defense Health Agencies or the healthcare workforce within the Department regardless of whether such positions are funded by appropriated or nonappropriated funds, unless the employee was documented as not performing or engaging in misconduct.

SEC. 1118. DEMONSTRATION PROJECT RELATING TO PAY AND PERSONNEL POLICIES FOR EMPLOYEES AT GROUND-BASED INTERCONTINENTAL BALLISTIC MISSILE DEVELOPMENT AND MAINTENANCE FACILITIES.

(a) COMMENCEMENT.—The Secretary of Defense, through the Secretary of the Air Force, is authorized to carry out a demonstration project, the purpose of which is to determine the feasibility or desirability of one or more proposals for improving the personnel management policies or procedures that apply with respect to the maintenance, modernization, and sustainment of ground-based

intercontinental ballistic missile systems at operational missile wings, sustainment facilities, and contractor facilities of the Department of the Air Force.

(b) APPLICATION.—Section 4703 of title 5, United States Code, shall apply to the demonstration project under this section, except that—

(1) subsection (d)(1)(A) of such section 4703 shall be applied by substituting ''15,000'' for ''5,000''; and

(2) subsection (d)(1)(B) of such section 4703 shall not apply.

(c) TERMS AND CONDITIONS.—Except as otherwise provided in this subsection, any demonstration project described in subsection (a) shall include the following:

(1) Pay band structures that provide maximum flexibility to attract and retain employees with critical skills, including into apprentice programs.

(2) Trades, technical, and leadership career paths that provide advancement opportunities for employees to progress through the bands based on performance and contribution to the mission.

(3) Broad classification authority not otherwise subject to current government classification and job grading standards.

(4) A performance management system that emphasizes desired mission outcomes and workforce alignment to Air Force priorities.

(5) Pay flexibilities that promote opportunities for greater recruitment and retention of employees at intercontinental ballistic missile facilities.

(d) EFFECT OF REORGANIZATIONS.—The applicability of this section to an organization or team shall not terminate as a result of a reorganization, restructuring, realignment, consolidation, or other organizational change.

(e) ASSESSMENTS.—

(1) IN GENERAL.—The Secretary of Defense shall designate an independent organization to conduct two assessments of this demonstration project described in subsection (a).

(2) REQUIREMENTS.—Each such assessment shall include the following:

(A) A description of the workforce included in the project.

(B) An explanation of the flexibilities used in the project to appoint individuals to the Air Force workforce participating in the demonstration project and whether those appointments are based on competitive procedures and recognized veteran's preferences.

(C) An explanation of the flexibilities used in the project to develop a performance appraisal system that recognizes excellence in performance and offers opportunities for improvement.

(D) The steps taken to ensure that such system is fair and transparent for all employees in the project.

(E) An explanation of how the project allows the organization to better meet mission needs.

(F) An analysis of how the flexibilities in subparagraphs (B) and (C) are used, and what barriers have been encountered that inhibit their use.

(G) A description of the processes for—

(i) ensuring ongoing performance feedback and dialogue among supervisors, managers, and employees throughout the performance appraisal period; and

(ii) setting timetables for performance appraisals.

(H) The project's impact on career progression.

(I) The project's appropriateness or inappropriateness in light of the complexities of the workforce affected.

(J) The adequacy of the training, policy guidelines, and other preparations afforded in connection with using the project.

(K) Whether there is a process for ensuring employee involvement in the development and improvement of the project.

(L) Five year plan.

(3) SCHEDULE.—The first assessment under this subsection shall be completed not later than September 30, 2028. The second and final assessment shall be completed not later than 2 years after the date the first assessment is completed. The Secretary shall submit to the covered congressional committees a copy of each assessment within 30 days after receiving the assessment.

(f) COVERED CONGRESSIONAL COMMITTEES.—In this section, the term ''covered congressional committees'' means—

(1) the Committees on Armed Services of the Senate and the House of Representatives;

(2) the Committee on Homeland Security and Governmental Affairs of the Senate; and

(3) the Committee on Oversight and Government Reform of the House of Representatives.

(g) TERMINATION OF AUTHORITY.—The authority to conduct a demonstration project under this section shall terminate on the date that is 3 years after the date of the enactment of this Act.

(h) CONVERSION.—Not later than 6 months after the authority to conduct a demonstration project under this section is terminated under subsection (g), employees in the project shall convert to the civilian personnel system created pursuant to section 9902 of title 5, United States Code.

SEC. 1119. DEMONSTRATION PROJECT RELATING TO PAY AND PERSONNEL POLICIES FOR EMPLOYEES AT NAVAL SHIPYARDS, NAVY REGIONAL MAINTENANCE CENTERS, AND NAVY TRIDENT REFIT FACILITIES.

(a) COMMENCEMENT.—The Secretary of Defense, through the Secretary of the Navy, is authorized to carry out a demonstration project, the purpose of which is to determine the feasibility or desirability of one or more proposals for improving the personnel management policies or procedures that apply with respect to the maintenance and sustainment of ships, submarines, and their associ-

ated systems at shipyards, regional maintenance centers, and trident refit facilities of the Department of the Navy.

(b) APPLICATION.—

(1) TITLE 5.—Section 4703 of title 5, United States Code, shall apply to the demonstration project under this section, except that—

(A) subsection (d)(1)(A) of such section 4703 shall be applied by substituting ''60,000'' for ''5,000''; and

(B) subsection (d)(1)(B) of such section 4703 shall not apply.

(2) PREVAILING RATE EMPLOYEES.—The demonstration project under this section shall only apply to prevailing rate employees.

(c) TERMS AND CONDITIONS.—Except as otherwise provided in this subsection, any demonstration project described in subsection (a) shall include the following:

(1) Pay band structures that provide maximum flexibility to attract and retain employees with critical skills, including into apprentice programs.

(2) Trades, technical, and leadership career paths that provide advancement opportunities for employees to progress through the bands based on performance and contribution to the mission.

(3) Broad classification authority not otherwise subject to current government classification and job grading standards.

(4) A performance management system that emphasizes desired mission outcomes and workforce alignment to Navy priorities.

(5) Pay flexibilities that promote opportunities for greater recruitment and retention of shipyard employees.

(d) EFFECT OF REORGANIZATIONS.—The applicability of this section to an organization or team shall not terminate as a result of a reorganization, restructuring, realignment, consolidation, or other organizational change.

(e) ASSESSMENTS.—

(1) IN GENERAL.—The Secretary of Defense shall designate an independent organization to conduct two assessments of this demonstration project described in subsection (a).

(2) REQUIREMENTS.—Each such assessment shall include the following:

(A) A description of the workforce included in the project.

(B) An explanation of the flexibilities used in the project to appoint individuals to the Navy workforce participating in the demonstra-

tion project and whether those appointments are based on competitive procedures and recognized veteran's preferences.

(C) An explanation of the flexibilities used in the project to develop a performance appraisal system that recognizes excellence in performance and offers opportunities for improvement.

(D) The steps taken to ensure that such system is fair and transparent for all employees in the project.

(E) An explanation of how the project allows the organization to better meet mission needs.

(F) An analysis of how the flexibilities in subparagraphs (B) and (C) are used, and what barriers have been encountered that inhibit their use.

(G) A description of the processes for—

(i) ensuring ongoing performance feedback and dialogue among supervisors, managers, and employees throughout the performance appraisal period; and

(ii) setting timetables for performance appraisals.

(H) The project's impact on career progression.

(I) The project's appropriateness or inappropriateness in light of the complexities of the workforce affected.

(J) The adequacy of the training, policy guidelines, and other preparations afforded in connection with using the project.

(K) Whether there is a process for ensuring employee involvement in the development and improvement of the project.

(L) Five year plan.

(3) SCHEDULE.—The first assessment under this subsection shall be completed not later than September 30, 2028. The second and final assessment shall be completed not later than September 30, 2033. The Secretary shall submit to the covered congressional committees a copy of each assessment within 30 days after receiving the assessment.

(f) COVERED CONGRESSIONAL COMMITTEES.—In this section, the term ''covered congressional committees'' means—

(1) the Committees on Armed Services of the Senate and the House of Representatives;

(2) the Committee on Homeland Security and Governmental Affairs of the Senate; and

(3) the Committee on Oversight and Government Reform of the House of Representatives.

(g) TERMINATION OF AUTHORITY.—The authority to conduct a demonstration project under this section shall terminate on the date that is 3 years after the date of the enactment of this Act.

(h) CONVERSION.—Not later than 6 months after the authority to conduct a demonstration project under this section is terminated under subsection (g), employees in the project shall convert to the civilian personnel system created pursuant to section 9902 of title 5, United States Code.

SEC. 1120. DEMONSTRATION PROJECT RELATING TO PAY AND PERSONNEL POLICIES FOR PREVAILING RATE EMPLOYEES AT COVERED DEPOTS.

(a) COMMENCEMENT.—The Secretary of Defense, through the Secretary of the Army, is authorized to carry out a demonstration project, the purpose of which is to determine the feasibility or desirability of one or more proposals for improving the personnel management policies or procedures that apply with respect to the maintenance and sustainment of covered depots (as that term is defined in section 2476 of title 10, United States Code).

(b) APPLICATION.—

(1) TITLE 5.—Section 4703 of title 5, United States Code, shall apply to the demonstration project under this section, except that—

(A) subsection (d)(1)(A) of such section 4703 shall be applied by substituting ''60,000'' for ''5,000''; and

(B) subsection (d)(1)(B) of such section 4703 shall not apply.

(2) PREVAILING RATE EMPLOYEES.—The demonstration project under this section shall only apply to prevailing rate employees.

(c) TERMS AND CONDITIONS.—Except as otherwise provided in this subsection, any demonstration project described in subsection (a) shall include the following:

(1) Pay band structures that provide maximum flexibility to attract and retain employees with critical skills, including into apprentice programs.

(2) Trades, technical, and leadership career paths that provide advancement opportunities for employees to progress through the bands based on performance and contribution to the mission.

(3) Broad classification authority not otherwise subject to current government classification and job grading standards.

(4) A performance management system that emphasizes desired mission outcomes and workforce alignment to Department priorities.

(5) Pay flexibilities that promote opportunities for greater recruitment and retention of covered depot employees.

(d) EFFECT OF REORGANIZATIONS.—The applicability of this section to an organization or team shall not terminate as a result of a reorganization, restructuring, realignment, consolidation, or other organizational change.

(e) ASSESSMENTS.—

(1) IN GENERAL.—The Secretary of Defense shall designate an independent organization to conduct two assessments of this demonstration project described in subsection (a).

(2) REQUIREMENTS.—Each such assessment shall include the following:

(A) A description of the workforce included in the project.

(B) An explanation of the flexibilities used in the project to appoint individuals to the workforce participating in the demonstration project and whether those appointments are based on competitive procedures and recognized veteran's preferences.

(C) An explanation of the flexibilities used in the project to develop a performance appraisal system that recognizes excellence in performance and offers opportunities for improvement.

(D) The steps taken to ensure that such system is fair and transparent for all employees in the project.

(E) An explanation of how the project allows the organization to better meet mission needs.

(F) An analysis of how the flexibilities in subparagraphs (B) and (C) are used, and what barriers have been encountered that inhibit their use.

(G) A description of the processes for—

(i) ensuring ongoing performance feedback and dialogue among supervisors, managers, and employees throughout the performance appraisal period; and

(ii) setting timetables for performance appraisals.

(H) The project's impact on career progression.

(I) The project's appropriateness or inappropriateness in light of the complexities of the workforce affected.

(3) SCHEDULE.—The first assessment under this subsection shall be completed not later than September 30, 2028. The second and final assessment shall be completed not later than September 30, 2033. The Secretary shall submit to the covered congressional committees a copy of each assessment within 30 days after receiving the assessment.

(f) COVERED CONGRESSIONAL COMMITTEES.—In this section, the term ''covered congressional committees'' means—

(1) the Committees on Armed Services of the Senate and the House of Representatives;

(2) the Committee on Homeland Security and Governmental Affairs of the Senate; and

(3) the Committee on Oversight and Government Reform of the House of Representatives.

(g) TERMINATION OF AUTHORITY.—The authority to conduct a demonstration project under this section shall terminate on December 31, 2032.

(h) CONVERSION.—Not later than 6 months after the authority to conduct a demonstration project under this section is terminated under subsection (g), employees in

the project shall convert to the civilian personnel system created pursuant to section 9902 of title 5, United States Code.

SEC. 1121. PROHIBITION ON CARRYING OUT HIRING FREEZE, REDUCTION IN FORCE, OR HIRING DELAY WITHOUT CAUSE AT PUBLIC SHIPYARDS OF DEPARTMENT OF DEFENSE.

None of the funds authorized to be appropriated or otherwise made available for fiscal year 2027 for the Department of Defense may be used to—

(1) carry out a hiring freeze at a public shipyard of the Department;

(2) carry out a reduction in force at a public shipyard of the Department; or

(3) delay without cause the filling of a vacant Federal civilian employee position at a public shipyard of the Department.

SEC. 1122. CODIFICATION OF DIRECT HIRE AUTHORITY FOR DOMESTIC DEFENSE INDUSTRIAL BASE FACILITIES, MAJOR RANGE AND TEST FACILITIES BASE, AND OFFICE OF THE DIRECTOR OF OPERATIONAL TEST AND EVALUATION.

(a) CODIFICATION.—Chapter 81 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 1599k. Direct hire authority for domestic defense industrial base facilities, Major Range and Test Facilities Base, and Office of the Director of Operational Test and Evaluation

''(a) DEFENSE INDUSTRIAL BASE FACILITY AND MRTFB.—The Secretary of Defense may appoint, without regard to the provisions of subchapter I of chapter 33 of title 5, other than sections 3303 and 3328 of such title, qualified candidates to positions in the competitive service at any defense industrial base facility or the Major Range and Test Facilities Base, including to Navy Supervisor of Shipbuilding, Conversion, and Repair positions.

''(b) OFFICE OF THE DIRECTOR OF OPERATIONAL TEST AND EVALUATION.—The Secretary of Defense may, acting through the Director of Operational Test and Evaluation, appoint qualified candidates possessing an advanced degree to scientific and engineering positions within the Office of the Director of Operational Test and Evaluation without regard to the provisions of subchapter I of chapter 33 of title 5, other than sections 3303 and 3328 of such title.

''(c) DEFINITION OF DEFENSE INDUSTRIAL BASE FACILITY.—In this section, the term 'defense industrial base facility' means any Department of Defense depot, arsenal, or shipyard located within the United States and

includes supporting units of a facility at an installation or base.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by adding at the end the following new item:

''1599k. Direct hire authority for domestic defense industrial base facilities, Major Range and Test Facilities Base, and Office of the Director of Operational Test and Evaluation.''.

(c) CONFORMING REPEAL.—Section 1125 of the National Defense Authorization Act for Fiscal Year 2017 (10 U.S.C. 1580 note prec.) is repealed.

SEC. 1123. REPORT ON WORKFORCE SHORTAGES AMONG AVIATION MAINTENANCE TECHNICIANS SUPPORTING MILITARY AIRCRAFT AND MAINTENANCE.

Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall assess workforce shortages among aviation maintenance technicians supporting military aircraft and maintenance and submit a report on such assessment to the congressional defense committees.

SEC. 1124. EXTENSION OF POSTAGE STAMP FOR BREAST CANCER RESEARCH.

Section 414(h) of title 39, United States Code, is amended by striking ''2027'' and inserting ''2037''.

TITLE XII—MATTERS RELATING TO FOREIGN NATIONS

Subtitle A—Assistance and Training

SEC. 1201. MODIFICATION OF AUTHORITY FOR SUPPORT OF SPECIAL OPERATIONS FOR IRREGULAR WARFARE.

Section 127d(a) of title 10, United States Code, is amended by striking ''$20,000,000'' and inserting ''$50,000,000''.

SEC. 1202. AUTHORITY TO BUILD CAPACITY FOR SPACE DOMAIN AWARENESS.

Section 333(a) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(10) Space domain awareness.''.

SEC. 1203. ESTABLISHMENT OF INTER-PACIFIC AIR FORCES ACADEMY.

Chapter 16 of title 10, United States Code, is amended by inserting after section 352 the following new section:

''§ 353. Inter-Pacific Air Forces Academy

''(a) OPERATION.—The Secretary of the Air Force may operate the Air Force education and training facility known as the Inter-Pacific Air Forces Academy (in this section referred to as the 'Academy').

''(b) PURPOSE.—The purpose of the Academy shall be to provide military education and training to military personnel of countries that are—

''(1) within the United States Indo-Pacific Command area of responsibility; and

''(2) eligible for assistance under chapter 5 of part II of the Foreign Assistance Act of 1961 (22 U.S.C. 2347 et seq.).

''(c) LIMITATIONS.—

''(1) CONCURRENCE OF SECRETARY OF STATE.—Military personnel of a country may be provided education and training under this section only with the concurrence of the Secretary of State.

''(2) ASSISTANCE OTHERWISE PROHIBITED BY LAW.—Education and training may not be provided under this section to the military personnel of any country that is otherwise prohibited from receiving such type of assistance under any other provision of law.

''(d) SUPPLIES AND CLOTHING.—The Secretary of the Air Force may, under such conditions as the Secretary may prescribe, provide to a person receiving education and training under this section the following:

''(1) Transportation incident to such education and training.

''(2) Supplies and equipment to be used during such education and training.

''(3) Billeting, food, and health services in connection with the receipt of such education and training.

''(e) LIVING ALLOWANCE.—The Secretary of the Air Force may pay to a person receiving education and training under this section a living allowance at a rate to be prescribed by the Secretary, taking into account the rates of living allowances authorized for a member of the Armed Forces under similar circumstances.

''(f) FUNDING.—Amounts for the operations and maintenance of the Academy, and for the provision of education and training through the Academy, may be paid from funds available for the Air Force for operation and maintenance.''.

SEC. 1204. REVIEW OF EXECUTION OF PROGRAMS TO BUILD PARTNER CAPACITY.

Not later than 1 year after the date of the enactment of this Act, the Comptroller General of the United States shall submit to the Committees on Armed Services of the House of Representatives and the Senate, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate a report containing a review of the execution by the Depart-

ment of Defense of programs conducted pursuant to section 333 of title 10, United States Code. The review shall include, with respect to such programs, the following information:

(1) The extent to which the Department of Defense has defined measurable timelines and goals with targets for such programs.

(2) The extent to which program execution has been timely and programs have achieved their stated goals.

(3) Challenges affecting the outcomes of such programs.

(4) Any other matters the Comptroller General of the United States determines relevant.

SEC. 1205. ESTABLISHMENT OF PARTNERSHIP PROGRAMS ON MILITARY TRAUMA CARE AND RESEARCH BETWEEN THE UNITED STATES AND FOREIGN COUNTRIES.

(a) PARTNERSHIPS.—The Secretary of Defense, in consultation with the Secretary of State, may establish a joint education and training program on military trauma care and research with appropriate personnel of the military forces of one or more foreign countries.

(b) ELEMENTS.—The Secretary may include in each joint education and training program on military trauma care and research under subsection (a) the following:

(1) The sharing of relevant lessons learned in combat casualty care derived from prior conflicts.

(2) The conduct of joint conferences, symposia, and professional exchange programs involving military medical professionals from the United States and the foreign countries participating in the program.

(3) Collaboration through structured knowledge exchanges on matters relating to health policy, health administration, and medical logistics, including with respect to medical supplies and equipment.

(4) The conduct of joint research and development initiatives addressing the health effects of new and emerging weapons and methods of warfare.

(5) Capacity-building programs to support the development, sustainment, and modernization of military trauma care systems and programs.

(6) Coordination, through the Joint Trauma System of the Defense Health Agency, of trauma care doctrine, data collection, performance improvement, and clinical best practices with the Armed Forces of the United States and the military medical

services of the foreign countries participating in the program.

(7) The provision of training to the military forces of such foreign countries with respect to—

(A) military trauma care;

(B) combat wound infection; and

(C) post-traumatic stress disorder and suicide prevention relating to the treatment of military trauma care.

(c) USE OF AUTHORITIES.—In carrying out the joint education and training program on military trauma care and research under subsection (a), the Secretary of Defense may use the authorities under chapter 16 of title 10, United States Code, and other applicable statutory authorities available to the Secretary.

SEC. 1206. INCREASE IN FUNDING THRESHOLD FOR THE REGIONAL DEFENSE FELLOWSHIP PROGRAM.

Section 345(d) of title 10, United States Code, is amended by striking ''$35,000,000'' and inserting ''$50,000,000''.

Subtitle B—Matters Relating to the Near and Middle East

SEC. 1211. EXTENSION OF COUNTER-TERRORISM SUPPORT AUTHORITY.

Section 1226(h) of the National Defense Authorization Act for Fiscal Year 2016 (Public Law 114-92; 22 U.S.C. 2151 note) is amended by striking ''December 31, 2026'' and inserting ''December 31, 2027''.

SEC. 1212. EXTENSION OF AUTHORITY FOR REIMBURSEMENT OF CERTAIN COALITION NATIONS FOR SUPPORT PROVIDED TO UNITED STATES MILITARY OPERATIONS.

(a) EXTENSION OF AUTHORITY.—Section 1233(a) of the National Defense Authorization Act for Fiscal Year 2008 (Public Law 110-181; 122 Stat. 393) is amended by striking ''beginning on October 1, 2025, and ending on December 31, 2026'' and inserting ''beginning on October 1, 2026, and ending on December 31, 2027''.

(b) EXTENSION OF LIMITATION ON AMOUNT.—Section 1233(d)(1) of the National Defense Authorization Act for Fiscal Year 2008 (Public Law 110-181; 122 Stat. 393) is amended by striking ''beginning on October 1, 2025, and ending on December 31, 2026'' and inserting ''beginning on October 1, 2026, and ending on December 31, 2027''.

SEC. 1213. DEADLINE FOR AFGHANISTAN WAR COMMISSION FINAL REPORT.

Section 1094(e)(2)(A)(ii)(I) of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 135 Stat. 1941) is amended by striking ''3 years'' and inserting ''4 years''.

SEC. 1214. PROHIBITION ON USE OF FUNDS TO SUPPORT THE TALIBAN.

None of the funds authorized to be appropriated by this Act or otherwise made available to the Department of Defense may be obligated or expended to provide direct or indirect assistance or support, including training, equipment, services, or currency, to—

(1) the Taliban;

(2) the Government of Afghanistan;

(3) any subsidiary, agent, instrumentality, or successor of the Taliban; or

(4) an entity or foreign country that solicits or accepts support or assistance from the United States with the intent to forward or transfer that support or assistance to the Taliban or the Government of Afghanistan.

SEC. 1215. EXTENSION OF AUTHORITY TO PROVIDE ASSISTANCE TO COUNTER THE ISLAMIC STATE OF IRAQ AND SYRIA.

Section 1236 of the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015 (Public Law 113- 291; 128 Stat. 3558) is amended—

(1) in subsection (a), in the matter preceding paragraph (1), by striking ''December 31, 2026'' and inserting ''December 31, 2027''; and

(2) in subsection (n)(6), by striking ''December 31, 2026'' and inserting ''December 31, 2027''.

SEC. 1216. EXTENSION OF LIMITATION ON AVAILABILITY OF FUNDS FOR THE IRAQI SECURITY FORCES.

(a) LIMITATION ON OBLIGATION OF FUNDS.—Not more than 25 percent of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Iraqi security forces under section 1236 of the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015 (Public Law 113–291; 128 Stat. 3558) may be obligated or expended until the date on which the Secretary of Defense submits to the congressional defense committees a certification that the Government of Iraq has taken credible steps—

(1) to reduce the operational capacity of Iran-aligned militia groups not integrated into the Iraqi security forces through a publicly verifiable disarmament, demobilization, and reintegration process;

(2) to strengthen the authority and operational control of the Prime Minister of Iraq as Commander-in-Chief over the Iraqi security forces; and

(3) to investigate and hold accountable members of Iran-aligned militia groups or members of the Iraqi security forces operating outside the formal chain of command of the Iraqi security forces who engage in attacks on United States or Iraqi personnel or otherwise act in an illegal or destabilizing manner.

(b) WAIVER.—The Secretary of Defense may waive the limitation in subsection (a) for a period of not more than 180 days if the Secretary determines that such waiver is in the national security interest of the United States. Any such waiver shall be submitted in writing to the congressional defense committees not later than 15 days after issuance, along with a justification and a description of the steps being taken to achieve the objectives described in subsection (a).

(c) RULE OF CONSTRUCTION.—Nothing in this section shall apply to funds authorized to be appropriated for

the Iraqi security forces that are designated for the Kurdish Peshmerga Forces.

(d) IRAQI SECURITY FORCES DEFINED.—In this section, the term ''Iraqi security forces'' means the military and other security forces of or associated with the Government of Iraq.

SEC. 1217. PROHIBITION ON TRANSFERS TO THE BADR ORGANIZATION.

None of the funds authorized to be appropriated by this Act or otherwise made available to the Secretary of Defense for fiscal year 2027 may be made available to the Badr Organization or any affiliates or successors of the Badr Organization.

SEC. 1218. SENSE OF CONGRESS ON INTERNATIONAL DEFENSE EXHIBITIONS.

It is the sense of Congress that the Department of Defense and its agencies should not participate in international defense exhibitions in any way until the Secretary of Defense certifies that such exhibitions and the jurisdictions in which they are located allow Israeli companies to fully participate in the exhibition and are not using restrictions or the threat of restrictions on any party's participation in the exposition as a means of deterring Israel from defending itself.

Subtitle C—Matters Relating to Israel

SEC. 1221. EXTENSION OF WAR RESERVE STOCKPILE AUTHORITY FOR ISRAEL.

Section 12001(d) of the Department of Defense Appropriations Act, 2005 (Public Law 108–287; 118 Stat. 1011) is amended by striking ''January 1, 2027'' and inserting ''January 1, 2029''.

SEC. 1222. UNITED STATES-ISRAEL SUBTERRANEAN COOPERATION.

Section 1279 of the National Defense Authorization Act for Fiscal Year 2016 (22 U.S.C. 8606 note) is amended—

(1) in the section heading, by striking ''**ANTI-TUNNEL**'' and inserting ''**SUBTERRANEAN**'';

(2) by striking ''anti-tunnel'' each place it appears and inserting ''subterranean'';

(3) in subsection (a)—

(A) in the heading, by striking ''ANTI-TUNNEL'' and inserting ''SUBTERRANEAN''; and

(B) in paragraph (1), strike ''underground tunnels'' and insert ''or destroy subterranean facilities, including tunnels, bunkers, and other underground targets,'';

(4) in subsection (b)—

(A) by striking paragraph (4); and

(B) by redesignating paragraph (5) as paragraph (4); and

(5) in subsection (f), by striking ''2028'' and inserting ''2029''.

SEC. 1223. UNITED STATES-ISRAEL COOPERATION TO COUNTER UNMANNED SYSTEMS IN ALL WARFIGHTING DOMAINS.

Section 1278 of the National Defense Authorization Act for Fiscal Year 2020 (22 U.S.C. 8606 note) is amended—

(1) in subsection (b)—

(A) by striking paragraph (4); and

(B) by redesignating paragraph (5) as paragraph (4); and

(2) in subsection (g), by striking ''2028'' and inserting ''2029''.

Subtitle D—Matters Relating to Europe

SEC. 1231. ARMS SALES AND WEAPONS SYSTEM TRANSFERS TO NATO COUNTRIES.

Section 1250 of the National Defense Authorization Act for Fiscal Year 2024 (10 U.S.C. 113 note) is amended—

(1) in the heading, by inserting **", AND ARMS SALES AND WEAPON SYSTEMS TRANSFERS TO,"** after "**TRAINING IN**"; and

(2) in the matter preceding paragraph (1), by inserting "and decisions related to arms sales and weapon systems and equipment transfers under section 333 of title 10, United States Code, to such member countries" after "countries".

SEC. 1232. EXTENSION AND MODIFICATION OF OVERSIGHT OF UNITED STATES MILITARY POSTURE IN EUROPE.

(a) EXTENSION.—Section 1249 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60) is amended—

(1) in subsection (a), by inserting "or fiscal year 2027" after "fiscal year 2026";

(2) in subsection (e), by striking "December 31, 2027" and inserting "December 31, 2028."; and

(3) in subsection (f), by striking "2026" each place it appears and inserting "2027".

(b) MODIFICATION OF CERTAIN CERTIFICATIONS AND ASSESSMENTS.—

(1) CERTIFICATIONS.—Section 1249(b) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60) is amended—

(A) in the matter preceding paragraph (1), by striking ''The certification described'' and inserting following:

''(1) IN GENERAL.—Except as provided under paragraph (2), the certification described'';

(B) by redesignating paragraphs (1) and (2) as subparagraphs (A) and (B), respectively; and

(C) by adding at the end following new paragraph:

''(2) EXCEPTION.—With respect to a proposed action described in paragraph (1) or (3) of subsection (a), the certification described in paragraph (1) of this subsection shall also include a certification that such action is being undertaken only after submission of the assessment described in subsection (c)(1)(A)(x) which determined it was not feasible to reposition members of the Armed Forces or Department of Defense equipment to a member of NATO located on NATO's eastern flank, including Bulgaria, Estonia, Latvia, Lithuania, Poland, or Romania.''.

(2) ASSESSMENTS.—Section 1249(c)(A) of the National Defense Authorization Act for Fiscal Year

2026 (Public Law 119–60) is amended by adding at the end the following new clause:

"(x) with respect to an assessment under this subparagraph relating to a proposed action described in subsection (a)(1) or (a)(3), in cases involving the withdrawal of members of the Armed Forces or Department of Defense equipment from countries in the area of responsibility of the United States European Command, a detailed analysis of the feasibility of repositioning such personnel or equipment to a member of NATO located on NATO's eastern flank, including Bulgaria, Estonia, Latvia, Lithuania, Poland, or Romania, that has demonstrated progress toward meeting the defense investment commitments agreed to in the Hague Summit Declaration of June 25, 2025, and has made substantial investments in infrastructure in support of United States Armed Forces personnel and allied defense objectives, as determined by the Commander of the United States European Command.".

SEC. 1233. MODIFICATION OF CERTIFICATION WITH RESPECT TO OVERSIGHT OF UNITED STATES MILITARY POSTURE IN EUROPE.

Section 1249(b) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60) is amended—

(1) in paragraph (1), by striking ''; and'';

(2) in paragraph (2), by striking the period at the end and inserting a semicolon; and

(3) by adding at the end the following:

''(3) does not undermine United States or allied deterrence of the Russian Federation; and

''(4) does not reduce the readiness of forces assigned to or stationed in the United States European Command to support global contingencies.''.

SEC. 1234. POLAND DEFENSE INDUSTRIAL COOPERATION PROGRAM.

(a) ESTABLISHMENT.—The Secretary of Defense, in coordination with the Secretary of State, shall establish a program to expand cooperation between the defense industrial bases of the United States and Poland to expand co-production capacity, enhance supply chain resilience, and support operational readiness for United States and allied forces. The program shall seek to—

(1) enhance bilateral cooperation between the United States and Poland;

(2) reduce barriers to co-production between the United States and Poland; and

(3) strengthen NATO's deterrence capability, including against malign influence from the Russian Federation and People's Republic of China.

(b) ELEMENTS.—The program established pursuant to subsection (a) may also include the following:

(1) Co-production of munitions, ground combat systems, air combat systems and other critical defense articles.

(2) The establishment and expansion of forward repair, maintenance, and sustainment capabilities in Poland.

(3) The identification and authorization of technology transfer necessary to establish co-production of co-sustainment capabilities in Poland that support the Armed Forces in Poland and NATO's deterrence capabilities.

(4) The development of redundant and resilient supply chains to carry out the objectives described in paragraphs (1) through (3) of subsection (a).

(5) Actions to identify and mitigate barriers to defense industrial base cooperation, including barriers relating to export controls, technology transfer, or contracting practices.

(c) AUTHORITIES.—In carrying out the program established pursuant to subsection (a), the Secretary of Defense shall coordinate with other Federal departments and agencies, including the Department of State and the Department of Commerce, in order to—

(1) enter into contracts, cooperative agreements, and other bilateral agreements (including under section 4022 of title 10, United States Code); and

(2) provide technical assistance, training, and equipment relating to defense industrial base cooperation.

(d) INDUSTRY ENGAGEMENT.—The Secretary of Defense, in coordination with the Secretary of State, shall seek to coordinate with appropriate counterparts of Poland to convene an annual industry roundtable consisting of United States and Polish defense companies, with the goal of expanding cooperation and engagement across sectors and between government and industry with respect to activities to implement the program established pursuant to subsection (a).

(e) REPORT.—The Secretary of Defense, in coordination with the Secretary of State, shall annually for a period of 5 years submit to the Committee on Armed Services and the Committee on Foreign Relations of the Sen-

ate and Committee on Armed Services and the Committee on Foreign Affairs of the House of Representatives a report on—

(1) any additional legislative authorities required to carry out the program established pursuant to subsection (a) or any of the elements described in subsection (b); and

(2) any regulatory or policy barriers to achieving the objectives described in paragraphs (1) through (3) of subsection (a).

SEC. 1235. POLICY ON NATO STANDARDIZATION AND ALLIED PRODUCTION FOR NEXT-GENERATION SMALL ARMS AMMUNITION.

(a) STATEMENT OF POLICY.—It shall be the policy of the Department of Defense that any next-generation small arms ammunition adopted for widespread operational use by the Armed Forces shall, to the maximum extent practicable consistent with operational and survivability requirements—

(1) be aligned with and incorporated into NATO standardization agreements;

(2) support full interoperability among NATO member countries for logistics, resupply, and coalition operations; and

(3) be capable of manufacture at scale by multiple producers, including producers located within NATO member countries.

(b) ENGAGEMENT FOR IMPLEMENTATION.—The Secretary of Defense, acting through the Secretary of the Army, shall implement the policy described in subsection (a) by—

(1) formally engaging appropriate counterparts of NATO member countries, NATO standardization bodies, and allied defense ministries to pursue adoption of a standardization agreement for 6.8x51mm ammunition, or any successor next-generation small arms ammunition, with the objective of pursuing standardization on a timeline not exceeding, to the extent feasible, five years after the date of enactment of this Act;

(2) incorporating NATO standardization and allied production objectives as mandatory program requirements, acquisition strategy elements, and milestone decision criteria for 6.8x51mm ammunition; and

(3) ensuring that domestic ammunition design, performance specifications, and production planning for 6.8x51mm ammunition—

(A) do not foreclose opportunities for NATO standardization through proprietary or design constraints; and

(B) otherwise affirmatively enable NATO standardization and interoperability.

(c) TECHNICAL DATA RIGHTS FOR ALLIED PRODUCTION.—The Secretary of the Army shall, in implementing an acquisition strategy for 6.8x51mm ammunition consistent with subsection (b)—

(1) obtain, consistent with subchapter I of chapter 275 of title 10, United States Code (and data rights policies issued thereunder), a technical data package and associated unlimited or government-purpose rights with respect to such ammunition sufficient to enable competitive procurement and, where appropriate, allied production;

(2) establish contracting mechanisms to permit licensed or independent production of such ammunition by entities within NATO member countries; and

(3) minimize, to the greatest extent possible and consistent with other applicable provisions of law, proprietary, licensing, or intellectual property restrictions that would unreasonably impede allied production or coalition interoperability.

(d) REPORT ON INTEROPERABILITY CONSTRAINTS.—Not later than March 1, 2027, the Secretary of the Army shall notify the congressional defense committees of any restrictions described in subsection (c)(3) that are not capable of being eliminated, along with the reasons for such incapability.

(e) STRATEGY FOR NATO STANDARDIZATION.—Not later than 180 days after the date of enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a strategy that—

(1) identifies the specific NATO standardization bodies, forums, and timelines through which standardization described in subsection (b)(1) will be pursued;

(2) describes the industrial base actions required to enable allied production of 6.8x51mm ammunition; and

(3) identifies known barriers to NATO standardization, adoption, or commercialization with respect to such ammunition, whether technical, legal, or contractual, and specific steps and timelines to resolve each.

(f) ANNUAL PROGRESS REPORT.—Not later than one year after submission of the strategy required under subsection (e), and annually thereafter until the Secretary of

Defense makes an affirmative determination described in subsection (g), the Secretary of Defense shall submit to the congressional defense committees a report that—

(1) describes progress toward NATO standardization of 6.8x51mm ammunition;

(2) identifies actions taken to enable allied production of such ammunition;

(3) assesses any remaining barriers to achieving NATO standardization, adoption, or commercialization and steps planned to address them; and

(4) explains any failure to meet the timelines established in the strategy submitted pursuant to subsection (e).

(g) TERMINATION OF PROGRESS REPORT.—The requirement under subsection (f) shall terminate on the date the Secretary of Defense determines that—

(1) at least one European ally is producing 6.8x51mm ammunition in accordance with the standardization and interoperability objectives of this section; or

(2) no current United States weapons system uses 6.8x51mm ammunition.

(h) APPLICABILITY.—To the maximum extent practicable, the requirements of this section shall be imple-

mented through future solicitations, contract modifications by mutual agreement, and new contract awards.

(i) RULE OF CONSTRUCTION.—Nothing in this section may be construed to require the renegotiation of existing contracts in a manner that would violate applicable procurement laws or result in a breach of contract.

SEC. 1236. REVIEW OF THE ANALYTICAL BASIS FOR UNITED STATES FORCE POSTURE ADJUSTMENTS IN EUROPE.

(a) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Under Secretary of Defense for Policy, in coordination with the Chairman of the Joint Chiefs of Staff, shall submit to the congressional defense committees a report that includes—

(1) the analytical framework, analysis of alternatives, war-gaming activities and other operational assessments, intelligence assessments, and operational and strategic risk assessments used by the Department of Defense in conducting the review of global force posture undertaken during development of the national defense strategy most recently prepared pursuant to section 113(g) of title 10, United States Code, specifically as it pertained to the area of responsibility of the United States European Command; and

(2) an explanation of how and to what extent the analytical framework, analysis of alternatives, war-gaming activities and other operational assessments, intelligence assessments, and operational and strategic risk assessments described in paragraph (1) informed and were consistent with changes to United States force posture in the area of responsibility of the United States European Command implemented after January 20, 2025.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) A description of the modeling assumptions and analytic parameters used in the review to evaluate United States force posture in the area of responsibility of the United States European Command, including—

(A) force-sizing constructs and campaign planning assumptions;

(B) logistics, sustainment, strategic mobility, contested deployment, and reinforcement assumptions;

(C) assumptions relating to United States and allied force availability, readiness, reinforcement timelines, munitions expenditures, prepositioned stocks, and strategic lift capacity;

(D) adversary force readiness, mobilization and reinforcement timelines, and operational objectives; and

(E) assumptions relating to simultaneous or overlapping theater demands.

(2) A comprehensive description of the force-planning scenarios, tabletop exercises, and war-gaming inputs used in the review to evaluate United States force posture in the area of responsibility of the United States European Command.

(3) An assessment of the alternative force posture options considered during the review and the analytical criteria used to evaluate and compare such options, including cost, host nation and allied burden-sharing contributions, the relative operational effects of rotational and permanently stationed forces, and the operational implications of positioning forces closer to potential contingency areas along NATO's eastern flank.

(4) The intelligence assessments and threat analyses used to inform the Department of Defense's review of United States force posture in the area of responsibility of the United States European Command.

(5) An assessment of capability gaps associated with combatant commander campaign plans and NATO regional plans as well as the associated operational and strategic risks identified by the Department of Defense in its review of United States force posture in the area of responsibility of the United States European Command.

(6) A description of how the analytical framework, analysis of alternatives, war-gaming activities and other operational assessments, intelligence assessments, and operational and strategic risk assessments used by the Department of Defense in the review evaluated the ability of NATO allies and partners to mitigate identified capability gaps and associated operational and strategic risks, including projected timelines for capability development and fielding.

(7) A description of the coordination undertaken during the initial review in the development and application of the analytical framework, analysis of alternatives, war-gaming activities and other operational assessments, intelligence assessments, and operational and strategic risk assessments described in paragraphs (1) through (6), with—

(A) the Joint Staff, the Military Departments, and the Commander of United States European Command;

(B) the Department of State;

(C) the intelligence community; and

(D) NATO military authorities and NATO allies and partners in Europe and Canada.

(8) An assessment of the extent to which the analytical framework, analysis of alternatives, war-gaming activities and other operational assessments, intelligence assessments, and operational and strategic risk assessments described in paragraphs (1) through (6) were consistent with United States force posture adjustments within the area of responsibility of the United States European Command implemented after January 20, 2025, including—

(A) an assessment of each such adjustment to United States force posture in Europe during such period;

(B) an assessment of the operational, strategic, fiscal, and risk-based justification for each such adjustment;

(C) an identification of any deviations from the initial review's analytical framework, analysis of alternatives, war-gaming activities and

other operational assessments, intelligence assessments, and operational and strategic risk assessments in the analysis underlying such adjustments, including the rationale for any such deviation;

(D) an identification of any deviations from military interagency assessments or nonconcurrence about such adjustments, including the rationale for any such deviation; and

(E) an evaluation of the implications of each such adjustment for United States national security interests, NATO's deterrence and defense posture, and execution of combatant commander campaign plans and NATO regional plans.

(c) FORM.—The report required under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

(d) INDEPENDENT ASSESSMENT BY THE GOVERNMENT ACCOUNTABILITY OFFICE.—

(1) ASSESSMENT REQUIRED.—Not later than 180 days after the submission of the report required under subsection (a), the Comptroller General of the United States shall submit to the congressional defense committees an independent assessment of—

(A) the analytical framework, analysis of alternatives, war-gaming activities and other operational assessments, intelligence assessments, and operational and strategic risk assessments used in conducting the review of global force posture undertaken during development of the national defense strategy most recently prepared pursuant to section 113(g) of title 10, United States Code, specifically as it pertained to the area of responsibility of the United States European Command;

(B) the conclusions drawn from such review of global force posture; and

(C) the extent to which such analytical framework, analysis of alternatives, war-gaming activities and other operational assessments, intelligence assessments, and operational and strategic risk assessments informed and were consistent with changes to United States force posture in the area of responsibility of the United States European Command implemented after January 20, 2025.

(2) ELEMENTS.—The assessment under paragraph (1) shall include—

(A) an evaluation of the completeness, rigor, and methodological validity of the analytical framework, assumptions, scenarios, intelligence inputs, and analysis of alternatives;

(B) an assessment of the consistency between the analytical conclusions and actual posture decisions implemented after January 20, 2025;

(C) a review of the sensitivity of conclusions to key assumptions and variables;

(D) an identification of any gaps, limitations, or sources of analytical risk; and

(E) an evaluation of the implications of each such adjustment for United States national security interests, NATO's deterrence and defense posture, and execution of combatant commander campaign plans and NATO regional plans.

(3) ACCESS TO INFORMATION.—The Secretary of Defense shall provide the Comptroller General with timely access to all data, assumptions, models, briefings, analyses, memoranda, recommendations, dissenting views, decision memoranda, and other information necessary to carry out the assessment re-

quired under this subsection, including classified information, consistent with applicable law.

SEC. 1237. NATO DEFENSE PLANNING AND BURDEN SHARING ACTIVITIES.

(a) REPORT REQUIRED.—Not later than 90 days after the date of the enactment of this Act, and every 90 days thereafter through January 1, 2028, the Commander, United States European Command shall submit to the congressional defense committees a report on each of the following:

(1) An evaluation of allied progress on meeting the 5 percent defense investment commitment agreed to at the 2025 Summit of the North Atlantic Treaty Organization (NATO) in The Hague.

(2) An evaluation of allied progress on implementing NATO capability targets and any priority capability shortfalls.

(3) A list of critical capabilities required to execute NATO's regional plans that are largely or wholly provided by the United States and a description of any European and Canadian allied efforts to develop or procure those or similar capabilities.

(4) A description of United States forces available to the Supreme Allied Commander Europe under the NATO Force Model.

(5)(A) In the first report submitted under this subsection, a description of any changes to the United States forces available to the Supreme Allied Commander Europe under the NATO Force Model in the previous year.

(B) In the subsequent reports submitted under this subsection, a description of any changes to the United States forces available to the Supreme Allied Commander Europe under the NATO Force Model in the preceding 90-day period.

(6) In the case of any changes described pursuant to paragraph (5)—

(A) an assessment of whether Europe has the force structure, readiness levels, and enabling capabilities to assume responsibility for any decreases in United States forces available to the Supreme Allied Commander Europe under the NATO Force Model;

(B) an assessment of the risk such change poses to NATO's deterrence and defense posture; and

(C) whether modifications to the NATO Defense Planning Process are required, including whether such changes—

(i) alter NATO capability targets or apportionment decisions; or

(ii) require updated NATO political guidance at the ministerial or summit level.

(7) An assessment of NATO's deterrence and defense posture on the alliance's eastern flank, including—

(A) a description of United States military force posture in each country on the eastern flank, including any changes to United States forces on such flank during the 90-day period preceding the submission of the report;

(B) a description of allied military force posture in each country on the eastern flank;

(C) an evaluation of the capacity of United States and allied forces to reinforce NATO's eastern flank in the event of a conflict;

(D) an identification of any obstacles that could delay such reinforcement, including the status of prepositioned United States materiel in Europe; and

(E) a description of efforts by the United States and NATO allies to address the obstacles identified pursuant to subparagraph (D).

(8) An assessment of NATO's deterrence efforts in Romania, including a description and evaluation of—

(A) United States force posture in Romania, including any new rotations to Romania intended to enhance deterrence following the 2025 decision to end the rotational presence of a United States brigade;

(B) consultations with NATO allies regarding efforts to backfill or otherwise mitigate the capability gap resulting from the end the rotational presence of a United States brigade;

(C) NATO Forward Land Forces in Romania;

(D) new or expanded bilateral and multilateral training activities and military exercises conducted to build capacity and improve interoperability among United States forces, Romanian forces, and other NATO allies;

(E) efforts undertaken by the United States, Romania, and other NATO allies to improve critical military infrastructure in Romania, including infrastructure necessary to support collective defense obligations of the alliance

and to enable United States contingency operations; and

(F) efforts to support and strengthen the defense industrial base of Romania.

(b) FORM.—The report required by subsection (a) shall be submitted in unclassified form, but may include a classified annex.

SEC. 1238. UNITED STATES–POLAND MILITARY SPACE CO-OPERATION PROGRAM.

(a) ESTABLISHMENT.—The Secretary of Defense shall establish a United States-Republic of Poland Military Space Cooperation Program.

(b) PURPOSE.—The purpose of the program shall be to strengthen military cooperation between the United States and the Republic of Poland in support of space-enabled military operations, resilience, and preparedness.

(c) ACTIVITIES.—The program may support the following activities:

(1) Analysis and assessment of threats to military space capabilities and supporting infrastructure.

(2) Development and dissemination of operational concepts, doctrine, tactics, techniques, procedures, and best practices relating to resilient positioning, navigation, and timing capabilities, satellite

communications, space domain awareness, and space-enabled military operations.

(3) Collection, analysis, and dissemination of operational lessons learned from contemporary conflicts regarding the employment, protection, and resilience of military space capabilities.

(4) Military exercises, training events, simulations, wargames, personnel exchanges, and other cooperative military activities involving personnel of the United States and the Republic of Poland.

(5) Collaboration, as appropriate, with commercial entities, federally funded research and development centers, academic institutions, and other organizations on matters relating to military space operations, space resilience, satellite communications, positioning, navigation, and timing capabilities, and related emerging technologies.

(6) Such other activities as the Secretary of Defense determines necessary to advance the purposes of the program.

(d) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report describing—

(1) plans for implementation of the program;

(2) anticipated contributions of the United States and the Republic of Poland;

(3) opportunities to incorporate operational lessons learned from the conflict in Ukraine into military space cooperation activities under the program; and

(4) any legislative or policy recommendations necessary to support the activities of the program.

SEC. 1239. UNITED STATES–POLAND SPECIAL OPERATIONS COOPERATION PROGRAM.

(a) ESTABLISHMENT.—The Secretary of Defense shall establish a United States–Poland Special Operations Cooperation Program.

(b) PURPOSE.—The purpose of the Program shall be to enhance cooperation between the special operations forces of the United States and the Republic of Poland through the development, integration, and exchange of knowledge, doctrine, training, and operational lessons related to—

(1) special operations;

(2) irregular warfare;

(3) unconventional warfare;

(4) support to territorial defense forces;

(5) countering hybrid warfare activities;

(6) operations in contested environments; and

(7) lessons learned from contemporary armed conflicts relevant to such activities.

(c) ACTIVITIES.—The Program may include the following activities:

(1) Development and dissemination of doctrine, concepts, tactics, techniques, and procedures.

(2) Collection, analysis, and publication of operational lessons learned.

(3) Joint training, seminars, workshops, and professional military education activities.

(4) Operational experimentation and assessments of emerging technologies applicable to special operations missions.

(5) Exchanges of military personnel, instructors, and subject matter experts.

(6) Such other activities as the Secretary of Defense determines necessary to carry out the purposes of the Program.

SEC. 1239A. REPORT ON MOLDOVA AIRSPACE DEFENSE REQUIREMENTS AND OPTIONS.

(a) REPORT REQUIRED.—Not later than March 1, 2027, the Commander of United States European Command shall submit to the congressional defense committees a report on options to support the development of the territorial airspace awareness and defensive capabilities of

the Republic of Moldova using existing Department of Defense security cooperation authorities.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) An assessment of the current air surveillance, counter-unmanned aircraft system, and short-range air defense capabilities of the Republic of Moldova, including identified capability gaps and operational shortfalls.

(2) An assessment of options to improve Moldova's airspace awareness through radar coverage, sensor networks, communications infrastructure, and command-and-control capabilities.

(3) An assessment of training, personnel, sustainment, and institutional requirements associated with potential security cooperation activities to enhance Moldova's airspace awareness and defensive capabilities.

(4) A description of feasible support activities that could be conducted under existing Department of Defense authorities, including section 333 of title 10, United States Code, military exercises, training activities, the State Partnership Program, and other applicable security cooperation programs.

(5) An assessment of opportunities for coordination with allies and partners to support Moldova's airspace awareness and defensive capabilities.

(6) A description of any additional authorities the Secretary of Defense determines may be necessary to improve support for the development of Moldova's airspace awareness and defensive capabilities.

(c) FORM.—The report required under subsection (a) shall be submitted in unclassified form but may include a classified annex.

Subtitle E—Matters Relating to the Indo-Pacific

SEC. 1241. SENSE OF CONGRESS ON DEFENSE ALLIANCES AND PARTNERSHIPS IN THE INDO-PACIFIC REGION.

It is the sense of Congress that the Secretary of Defense should continue efforts that strengthen United States defense alliances and partnerships in the Indo-Pacific region so as to further the comparative advantage of the United States in strategic competition with the People's Republic of China, including by—

(1) enhancing cooperation with Japan, consistent with the Treaty of Mutual Cooperation and Security Between the United States of America and

Japan, signed at Washington, January 19, 1960, including by developing advanced military capabilities, upgrading command and control relationships, fostering interoperability across all domains, and improving sharing of information and intelligence;

(2) reinforcing the United States alliance with the Republic of Korea, including by maintaining the presence of approximately 28,500 members of the United States Armed Forces deployed to the Republic of Korea, enhancing mutual defense base cooperation, and affirming the United States extended deterrence commitment using the full range of United States defense capabilities, consistent with the Mutual Defense Treaty Between the United States and the Republic of Korea, signed at Washington, October 1, 1953, in support of the shared objective of a peaceful and stable Korean Peninsula;

(3) fostering bilateral and multilateral cooperation with Australia, consistent with the Security Treaty Between Australia, New Zealand, and the United States of America, signed at San Francisco, September 1, 1951, and through the partnership among Australia, the United Kingdom, and the United States to—

(A) advance shared security objectives;

(B) accelerate the fielding of advanced military capabilities; and

(C) build the capacity of emerging partners;

(4) advancing United States alliances with the Philippines and Thailand and United States partnerships with other partners in the Association of Southeast Asian Nations to enhance maritime domain awareness, promote sovereignty and territorial integrity, leverage technology and promote innovation, and support an open, inclusive, and rules-based regional architecture;

(5) broadening United States engagement with India, including through the Quadrilateral Security Dialogue to—

(A) advance the shared objective of a free and open Indo-Pacific region through bilateral and multilateral engagements and participation in military exercises, expanded defense trade, and collaboration on humanitarian aid and disaster response; and

(B) enable greater cooperation on maritime security;

(6) strengthening the United States partnership with Taiwan, consistent with the Three Commu-

niques, the Taiwan Relations Act (Public Law 96–8; 22 U.S.C. 3301 et seq.), and the Six Assurances, with the goal of improving Taiwan's defensive capabilities and promoting peaceful cross-strait relations;

(7) reinforcing the status of Singapore as a Major Security Cooperation Partner of the United States and continuing to strengthen defense and security cooperation between the military forces of Singapore and the United States Armed Forces, including through participation in combined exercises and training;

(8) engaging with the Federated States of Micronesia, the Republic of the Marshall Islands, Palau, and other Pacific island countries, with the goal of strengthening regional security and addressing issues of mutual concern, including protecting fisheries from illegal, unreported, and unregulated fishing;

(9) collaborating with Canada, the United Kingdom, France, and other members of the European Union and the North Atlantic Treaty Organization to build connectivity and advance a shared vision for the region that is principled, long-term, and anchored in democratic resilience;

(10) investing in enhanced military posture and capabilities in the area of responsibility of the United States Indo-Pacific Command and strengthening cooperation in bilateral relationships, multilateral partnerships, and other international fora to uphold global security and shared principles, with the goal of ensuring the maintenance of a free and open Indo-Pacific region;

(11) supporting efforts by the Republic of Korea to strengthen deterrence and to deepen bilateral defense cooperation between the United States and the Republic of Korea; and

(12) expanding shipbuilding cooperation with the Republic of Korea to bolster the shipbuilding capacity and workforce of the United States and to reinforce the defense industrial base of the United States.

SEC. 1242. EXTENSION OF PACIFIC DETERRENCE INITIATIVE.

(a) FUNDING.—Subsection (c) of section 1251 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 113 note) is amended—

(1) by striking ''the National Defense Authorization Act for Fiscal Year 2026'' and inserting ''the

National Defense Authorization Act for Fiscal Year 2027''; and

(2) by striking ''fiscal year 2026'' and inserting ''fiscal year 2027''.

(b) REPORTS AND BRIEFINGS.—Subsection (d) of such section is amended—

(1) in paragraph (1)(A), in the matter preceding clause (i), by striking ''fiscal years 2027 and 2028'' and inserting ''fiscal years 2028 and 2029''; and

(2) in paragraph (2), by striking ''fiscal years 2027 and 2028'' each place it appears and inserting ''fiscal years 2028 and 2029''.

(c) EXTENSION OF PLAN.—Subsection (e) of such section is amended, in the matter preceding paragraph (1), by striking ''fiscal years 2027 and 2028'' and inserting ''fiscal years 2028 and 2029''.

SEC. 1243. EXTENSION OF REQUIREMENT FOR PUBLIC REPORTING OF CHINESE MILITARY COMPANIES OPERATING IN THE UNITED STATES.

Section 1260H(b) of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 10 U.S.C. 113 note) is amended by striking ''2030'' and inserting ''2035''.

SEC. 1244. MODIFICATIONS TO PUBLIC REPORTING OF CHINESE MILITARY COMPANIES OPERATING IN THE UNITED STATES.

Section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 113 note) is amended—

(1) in subsection (b)(3)(A), by striking ''not less frequently'' and all that follows through the end of the sentence and inserting ''as determined appropriate by the Secretary based on the latest information available.'';

(2) by amending subsection (b)(4) to read as follows:

''(4) LANGUAGE REQUIREMENT.—The Secretary shall publish the list in English. The Secretary may include Mandarin Chinese or other foreign-language identifiers as appropriate for entity identification purposes.'';

(3) by striking subsection (e) and inserting the following:

''(e) REGULATIONS.—The Secretary of Defense shall prescribe regulations as necessary to implement this section.''; and

(4) in subsection (g), by adding at the end the following:

''(6) ASSISTANCE.—The term 'assistance' means benefits provided by the Government of China, including grants, loans, subsidies, tax benefits, real or personal property, sponsored research, or any other preferential treatment.

''(7) FORMAL ASSOCIATION.—The term 'formal association' includes joint ventures, partnerships, consortiums, task forces, or research collaborations with an entity identified under subsection (g)(2)(B)(i).

''(8) INFORMAL ASSOCIATION.—The term 'informal association' includes participation in exhibitions, competitions, demonstrations, or other temporary activities with an entity identified under subsection (g)(2)(B)(i).''.

SEC. 1245. EXTENSION AND MODIFICATION OF ANNUAL REPORT ON MILITARY AND SECURITY DEVELOPMENTS INVOLVING THE PEOPLE'S REPUBLIC OF CHINA.

Section 1202 of the National Defense Authorization Act for Fiscal Year 2000 (10 U.S.C. 113 note) is amended—

(1) in subsection (a), by striking ''2027'' and inserting ''2030''; and

(2) in subsection (b)—

(A) in paragraph (3)(C), by striking the period at the end and inserting ", including nuclear, missile, air defense, submarine quieting, and drone development cooperation.";

(B) by inserting after paragraph (5) the following:

"(6) Complicity, involvement, and degree of association of the People's Liberation Army in the use of forced labor by and the violation of other human rights of Uyghurs in Xinjiang.";

(C) in paragraph (8)(A)—

(i) by inserting a comma after "infrastructure)"; and

(ii) by striking the period at the end and inserting ", and the likely role of Chinese cyber capabilities in a conflict with the United States, including against allied and partner nations in the First and Second Island Chain and the United States homeland.";

(D) in paragraph (9)—

(i) in subparagraph (A)(i), by inserting "including the United States," after "any other country,"; and

(ii) in subparagraph (B)—

(I) by inserting ''biotechnology,'' after ''space,''; and

(II) by inserting ''and emerging'' after ''other advanced'';

(E) in paragraph (10)—

(i) in subparagraph (A), by striking ''and'' at the end;

(ii) by redesignating subparagraph (B) as subparagraph (D); and

(iii) by inserting after subparagraph (A) the following:

''(B) how delays in delivery of American defense articles to Taiwan affect the Chinese Communist Party's assessments of the balance of power in the Strait;

''(C) the likely strategic intent of Chinese forces in a conflict over Taiwan, how they will conduct a cyber enabled economic warfare campaign, a cross-strait invasion campaign, or a blockade campaign and how Russia may be assisting China in preparation for such activities; and'';

(F) by redesignating paragraph (14) as paragraph (16); and

(G) by inserting after paragraph (13) the following:

''(14) An assessment of the character, extent, trajectory, and consequences of security cooperation between the People's Republic of China and the Russian Federation, the Islamic Republic of Iran, and North Korea, including how China provides dual-use support to the defense industrial bases of these countries.

''(15) An assessment of the effects that population trends and forecasts of the People's Republic of China have on the force structure and size of the People's Liberation Army.''.

SEC. 1246. MODIFICATION OF TAIWAN SECURITY COOPERATION INITIATIVE.

Subsection (d) of section 1323 of the Servicemember Quality of Life Improvement and National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159) is amended by adding at the end the following:

''(3) FISCAL YEAR 2027.—Of the amounts authorized to be appropriated for fiscal year 2027 for the Department of Defense, not more than $1,000,000,000 may be made available for the purposes of subsection (a).''.

SEC. 1247. OVERSIGHT OF UNITED STATES MILITARY POSTURE ON THE KOREAN PENINSULA.

Section 1268 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60) is amended by striking ''Amounts authorized to be appropriated by this Act may not be obligated or expended'' and inserting ''None of the amounts authorized to be appropriated by this Act or otherwise made available for fiscal years 2026 or 2027 may be obligated or expended''.

SEC. 1248. EXTENSION AND MODIFICATION OF INDO-PACIFIC MARITIME SECURITY INITIATIVE.

(a) EXPANSION OF TYPES OF ASSISTANCE AND TRAINING.—Subsection (c) of section 1263 of the National Defense Authorization Act for Fiscal Year 2016 (Public Law 114-92; 10 U.S.C. 4333 note) is amended—

(1) by redesignating paragraph (2) as paragraph (3); and

(2) by inserting after paragraph (1) the following new paragraph:

''(2) DEMONSTRATION AND OPERATIONAL TEST AND EVALUATION OF UNCREWED SYSTEMS AND ASYMMETRIC OPERATIONAL CONCEPTS.—During the period ending on December 31, 2028, assistance provided under subsection (a)(1)(A) may also include the provision, in coordination with the Department of State, of the following:

''(A) Operational test and evaluation of uncrewed systems and asymmetric operational concepts as part of other assistance to the national military or other security forces described in subsection (a)(1)(A)(i) or the other national level governmental organizations described in subsection (a)(1)(A)(ii).

''(B) Demonstration of uncrewed systems and asymmetric operational concepts as part of other assistance to the national military or other security forces described in subsection (a)(1)(A)(i) or the other national-level governmental organizations described in subsection (a)(1)(A)(ii).''.

(b) MODIFICATION OF REPORT PERIOD.—Subsection (i)(1) of such section is amended by striking ''calendar year'' in the matter preceding subparagraph (A) and in subparagraph (G) and inserting ''fiscal year''.

(c) EXTENSION.—Subsection (j) of such section is amended by striking ''December 31, 2027'' and inserting ''December 31, 2031''.

SEC. 1249. PLAN TO COUNTER PEOPLE'S REPUBLIC OF CHINA INFLUENCE AND ACTIVITIES IN THE FREELY ASSOCIATED STATES.

(a) PLAN REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Under Secretary of Defense for Policy shall conduct a comprehensive analysis of PRC influence and activities in the Freely Associated States, and develop recommendations and a plan to counter such influence and activities.

(2) COORDINATION.—In developing the plan required under paragraph (1), the Under Secretary of Defense for Policy shall coordinate, as appropriate, with—

(A) the Secretary of State;

(B) the Director of National Intelligence;

(C) the Commander, United States Indo-Pacific Command; and

(D) the heads of other relevant Federal departments and agencies.

(3) ELEMENTS.—The plan required under paragraph (1) shall include the following:

(A) An assessment of the scope, nature and objectives of PRC diplomatic, economic, military and intelligence activities in each of the Freely Associated States.

(B) An identification of vulnerabilities within the FAS that the PRC has sought to ex-

ploit or may seek to exploit, including vulnerabilities related to economic development, governance and elite influence.

(C) A description of recommended actions by the Department of Defense, in coordination with the Department of State, the Intelligence Community and other relevant Federal departments and agencies, to counter PRC influence and activities in the FAS.

(D) An assessment of resources, authorities and personnel required to implement the plan.

(E) A description of proposed engagement with FAS governments and other regional partners to strengthen United States relationships and build resilience against PRC influence operations.

(b) REPORT.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Under Secretary of Defense for Policy shall submit to the congressional defense committees a report setting forth the analysis and plan required under subsection (c).

(2) FORM.—The report required under paragraph (1) shall be submitted in unclassified form but may include a classified annex.

(e) DEFINITIONS.—In this section:

(1) The term ''Freely Associated States'' means the Federated States of Micronesia, the Republic of the Marshall Islands and the Republic of Palau.

(2) The term ''Intelligence Community'' has the meaning given that term in section 3(4) of the National Security Act of 1947 (50 U.S.C. 3003(4)).

SEC. 1249A. MODIFICATION OF AUTHORIZATION OF SALE TO AUSTRALIA OF IN-SERVICE VIRGINIA CLASS SUBMARINES TO PROVIDE FOR SALE OF ADDITIONAL IN-SERVICE SUBMARINE IN LIEU OF NEW CONSTRUCTION SUBMARINE.

(a) MODIFICATION OF AUTHORIZATION.—Subsection (a) of section 1352 of the AUKUS Submarine Transfer Authorization Act (22 U.S.C. 10431 note) is amended—

(1) by striking ''two'' and inserting ''three''; and

(2) by striking '', and transfer not more than one additional Virginia Class submarine to the Government of Australia on a sale basis''.

(b) TECHNICAL AMENDMENTS.—Such section is further amended—

(1) in subsection (a)—

(A) by striking ''Effective beginning on'' and all that follows through ''the President'' and inserting ''The President''; and

(B) by striking ''20-year period beginning on the date of the enactment of this Act'' and inserting ''20-year period beginning on December 22, 2023'';

(2) in subsection (d)(4), by striking ''the date of the enactment of this Act'' and inserting ''December 22, 2023''; and

(3) in subsection (i)(1)—

(A) in the matter preceding subparagraph (A), by striking ''Not later than'' and all that follows through ''15 years'' and inserting ''Not later than July 1 of each year through 2039''; and

(B) in subparagraph (D), by striking ''over the'' and all that follows through ''this Act'' and inserting ''through December 22, 2038''.

SEC. 1249B. STRATEGIC PARTNERSHIP ON DEFENSE INDUSTRIAL PRIORITIES BETWEEN THE UNITED STATES AND TAIWAN.

The Secretary of Defense shall seek to establish a partnership between the Department of Defense and appropriate counterparts of Taiwan in order to—

(1) enhance market opportunities for United States-based and Taiwan-based defense technology companies;

(2) bolster Taiwan's defense industrial base;

(3) harmonize global security posture through emerging technology;

(4) counter the Chinese Communist Party and Chinese Communist Party-aligned adversarial proxy group development of dual-use defense technologies; and

(5) in coordination with appropriate counterpart offices of the Taiwan Ministry of National Defense—

(A) enable coordination on defense industrial priorities;

(B) streamline emerging defense technology research and development;

(C) create more pathways to market for defense technology startups; and

(D) collaborate on the coordinated development of dual-use defense capabilities, such as the following:

(i) Drones.

(ii) Microchips.

(iii) Directed energy weapons.

(iv) Artificial Intelligence.

(v) Missile technology.

(vi) Intelligence, surveillance, and reconnaissance technology.

SEC. 1249C. JOINT UNITED STATES–TAIWAN RESEARCH, DEVELOPMENT, TEST, AND EVALUATION PROGRAM.

(a) IN GENERAL.—The Secretary, in coordination with the Director of the Defense Security Cooperation Agency and in consultation with the Secretary of State, shall seek to carry out with Taiwan a joint research, development, test, and evaluation program (in this section referred to as the ''Program'') to accelerate the development and transition of unmanned aircraft systems and counter-UAS systems.

(b) PROGRAM ACTIVITIES.—In carrying out the Program, the Secretary may, with respect to unmanned aircraft systems and counter-UAS systems—

(1) research, develop, test, and evaluate such systems, and related enabling technologies, jointly with Taiwan, including by prototyping;

(2) fund the development of critical components of such systems, including sensors, autonomy software, control systems, communications modules, and propulsion technologies;

(3) test, evaluate, and experiment with respect to such systems in relevant operational environments jointly with Taiwan;

(4) integrate systems developed under the Program into exercises, demonstrations, and operational use; and

(5) transition systems and technologies developed under the Program to production using available authorities.

(c) PRIORITIES.—In carrying out the Program, the Secretary shall prioritize systems and technologies that—

(1) address capability gaps identified by the Commander of the United States Indo-Pacific Command;

(2) demonstrate the capability to transition to production and operational use within 24 to 36 months; and

(3) support interoperability and integration with respect to the United States Armed Forces and the military forces of Taiwan.

(d) COORDINATION.—The Secretary shall ensure that activities under the Program—

(1) are coordinated with the Commander of the United States Indo-Pacific Command;

(2) leverage contributions from Taiwan, including financial and in-kind support; and

(3) align with existing security cooperation and technology development programs.

(e) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for 5 years, the Secretary shall submit to the congressional defense committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate a report that—

(1) identifies activities funded under the Program and the funding levels of such activities;

(2) evaluates progress toward testing, production, or operational use of systems developed under the Program;

(3) describes contributions to the Program from Taiwan, including financial and in-kind support;

(4) evaluates alignment of the Program with operational requirements of the United States Indo-Pacific Command; and

(5) identifies barriers to transitioning systems and technologies developed under the Program and provides recommendations to address such barriers.

(f) DEFINITIONS.—In this section:

(1) COUNTER-UAS SYSTEM; UNMANNED AIRCRAFT SYSTEM.—The terms ''counter-UAS system'' and ''unmanned aircraft system'' have the meanings given such terms in section 44801 of title 49, United States Code.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of Defense, acting through the Under Secretary of Defense for Research and Engineering.

SEC. 1249D. PLAN REQUIRED FOR FULL PARTICIPATION BY TAIWAN IN THE RIM OF THE PACIFIC EXERCISE.

Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall create a plan for the naval forces of Taiwan to fully participate in the Rim of the Pacific exercise conducted in 2028.

SEC. 1249E. ANNUAL REPORT ON SPACE CAPABILITIES OF THE PEOPLE'S REPUBLIC OF CHINA.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter through the date that is three years after the date of submission of the first report under this subsection, the Secretary of Defense and the Secretary of Commerce shall jointly submit to the appropriate congressional committees a report on covered space capabilities of the People's Republic of China.

(b) FORM.—Each report under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

(c) PUBLIC AVAILABILITY.—Not later than the date on which the Secretary of Defense and the Secretary of Commerce submit to the appropriate congressional committees a report under subsection (a), the Secretary of Defense and the Secretary of Commerce shall jointly make the unclassified portion of the report publicly available on websites of the Department of Defense and the Department of Commerce.

(d) CONTENTS.—Each report under subsection (a) shall include the following:

(1) An inventory of covered space capabilities of the People's Republic of China, including a descrip-

tion, to the extent practicable, of capabilities of PRC-affiliated entities relating to the following:

(A) Launch systems, including space launch vehicles, launch sites, and launch support infrastructure.

(B) Satellites and spacecraft, including for—

(i) intelligence, surveillance, and reconnaissance;

(ii) navigation and positioning; and

(iii) communications.

(C) Space stations and human spaceflight capabilities.

(D) Ground systems, including command and control, tracking, telemetry, and data receiving and processing.

(2) An assessment of the readiness of the covered space capabilities described in paragraph (1), including an assessment of operational status, surge capacity, sustainment, resiliency, and the ability to support military and civil missions.

(3) An assessment of counterspace capabilities of the People's Republic of China, including capabilities of PRC-affiliated entities relating to the following:

(A) Kinetic and nonkinetic antisatellite capabilities.

(B) Electronic warfare, including jamming and spoofing.

(C) Cyber capabilities affecting space systems, ground systems, and associated networks.

(D) Rendezvous and proximity operations and other capabilities that could be used to interfere with or degrade the operation of spacecraft.

(4) An assessment of the space industrial base and space-related supply chains of the People's Republic of China, including significant dependencies, chokepoints, and constraints.

(5) An assessment of pathways by which the People's Republic of China and PRC-affiliated entities acquire space-related technology, expertise, components, and services, including through licit and illicit means.

(6) A description of material changes during the one-year period preceding the date of the report in the covered space capabilities, readiness, counterspace capabilities, industrial base, and technology acquisition pathways described in paragraphs (1) through (5).

(7) If the Secretary of Defense and the Secretary of Commerce include a classified annex under subsection (b), such annex shall include additional information the Secretaries determine appropriate, including information necessary to describe capabilities, readiness, or intent with greater specificity, consistent with the protection of sources and methods.

(e) CONSULTATION.—In preparing each report under subsection (a), the Secretary of Defense and the Secretary of Commerce shall consult with the Director of National Intelligence and the heads of other Federal departments and agencies the Secretaries determine appropriate.

(f) SUBMISSION OF CLASSIFIED ANNEX.—The Secretary of Defense and the Secretary of Commerce shall submit any classified annex included with a report under subsection (b) only to the appropriate congressional committees, and shall submit such annex in accordance with applicable congressional and executive branch procedures for the handling of classified information.

(g) DEFINITIONS.—In this section:

(1) The term ''appropriate congressional committees'' means the following:

(A) The Committee on Armed Services of the House of Representatives.

(B) The Committee on Armed Services of the Senate.

(C) The Committee on Appropriations of the House of Representatives.

(D) The Committee on Appropriations of the Senate.

(E) The Committee on Science, Space, and Technology of the House of Representatives.

(F) The Committee on Commerce, Science, and Transportation of the Senate.

(2) The term ''control'' means the power, directly or indirectly, whether exercised or exercisable, to determine, direct, or decide important matters affecting an entity.

(3) The term ''covered space capabilities'' means space-related capabilities, systems, infrastructure, or services, whether civil or military, relating to launch, satellites and spacecraft, space stations and human spaceflight, intelligence, surveillance, and reconnaissance, navigation and positioning, communications, or ground systems.

(4) The term ''People's Republic of China'' includes the Government of the People's Republic of China, the Chinese Communist Party, and the People's Liberation Army.

(5) The term ''PRC-affiliated entity'' means any entity, wherever organized or operating, that—

(A) is organized under the laws of the People's Republic of China, including the laws of the Hong Kong Special Administrative Region or the Macao Special Administrative Region;

(B) is owned or controlled by one or more PRC persons, the Government of the People's Republic of China, the Chinese Communist Party, or the People's Liberation Army; or

(C) acts on behalf of, at the direction of, or for the benefit of the Government of the People's Republic of China, the Chinese Communist Party, or the People's Liberation Army.

(6) The term ''PRC person'' means—

(A) a citizen or national of the People's Republic of China;

(B) an entity organized under the laws of the People's Republic of China, including the laws of the Hong Kong Special Administrative Region or the Macao Special Administrative Region; or

(C) an entity owned or controlled by a person described in subparagraph (A) or (B).

Subtitle F—Reports

SEC. 1251. OVERSIGHT OF MILITARY-TO-MILITARY EXCHANGES AND CONTACTS BETWEEN THE UNITED STATES AND THE RUSSIAN FEDERATION.

(a) REPORT REQUIRED.—Not later than 90 days after the date of the enactment of this Act, and every 90 days thereafter, the Secretary of Defense shall submit to the congressional defense committees a report detailing any instance of bilateral military-to-military exchange or contact between the Department of Defense and the Government of the Russian Federation.

(b) ELEMENTS.—Each report required in subsection (a) shall include—

(1) a list of each instance of military-to-military exchange or contact between the Department of Defense and the Government of the Russian Federation;

(2) a description of the purpose of each such instance of military-to-military exchange or contact;

(3) a detailed description of the benefits the Government of the Russian Federation expects to gain from such military-to-military exchanges and contacts; and

(4) a detailed assessment of the benefits the Department of Defense expects to gain from such military-to-military exchanges and contacts.

(c) SUNSET.—This section shall cease to be effective on December 31, 2029.

SEC. 1252. REPORT ON RUSSIA'S TARGETING OF RELIGIOUS INFRASTRUCTURE IN UKRAINE.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for 3 years, the Secretary of Defense shall coordinate with the Director of National Intelligence to ensure the preparation of this report does not diminish national intelligence activities, and in coordination with the Secretary of State, shall submit to the appropriate congressional committees a report that includes—

(1) a detailed description of the Russian Armed Forces and their affiliated, quasi-state, or occupation-era activities that damage, destroy, seize, repurpose, or otherwise directly or indirectly engage in or facilitate serious harm to churches, synagogues, mosques, and other religious facilities, and their respective religious organizations, in Russian-occupied territories of Ukraine, including a description of the weapons systems, units, and, where ascertainable,

the commanders responsible for ordering or conducting such strikes;

(2) an identification of churches, synagogues, mosques, and other religious facilities, including Christian, Jewish, Muslim, and other minority religious institutions, that have been destroyed, damaged, seized, repurposed, or otherwise appropriated directly or indirectly by persons operating for or on behalf of the Russian Armed Forces or the Government of the Russian Federation in occupied territories of Ukraine;

(3) an assessment of—

(A) the number of Christians, Jews, Muslims (including Crimean Tatars), and other religious minorities not affiliated with the Russian Orthodox Church who have been subjected to persecution, imprisonment, or forced displacement in occupied territories of Ukraine as a result of Russian military operations or occupation-era policies;

(B) restrictions imposed on Christian, Jewish, Muslim, and other religions not affiliated with the Russian Orthodox Church's religious practices, worship services, or religious education in occupied territories, insofar as such

restrictions are imposed or enforced by Russian military or security forces;

(C) efforts by the Government of Russia, by authorities exercising de facto governmental control in occupied territory, or by entities or persons otherwise affiliated with Russia, to compel Christian organizations to affiliate with Moscow-based religious institutions or to suppress Christian, Jewish, Muslim, or any other denominations not aligned with Russian state interests, where such efforts are carried out by or in coordination with Russian military forces; and

(D) the overall impact of Russia's invasion of Ukraine, and its occupation of Ukrainian territory, on religious freedom and the physical integrity of religious infrastructure in occupied territories of Ukraine, including Crimea and Sevastopol; and

(4) a list of individuals and entities affiliated with the Government of Russia, the Russian Armed Forces, or exercising de facto authority in occupied territory, that—

(A) are responsible for ordering, directing, or conducting strikes or occupation-era activi-

ties that damaged or destroyed religious infrastructure, or that persecute, suppress, or discriminate against Christians, Jews, or Muslims in Ukraine and in the occupied territories of Ukraine; or

(B) have otherwise engaged in or attempted to engage in any of the conduct described in this subsection.

(b) FORM.—The report required under subsection (a) shall be submitted in an unclassified form but may include a classified annex.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Armed Services, the Committee on Foreign Affairs, and the Permanent Select Committee on Intelligence of the House of Representatives; and

(2) the Committee on Armed Services, the Committee on Foreign Relations, and the Select Committee on Intelligence of the Senate.

SEC. 1253. STUDY ON EFFECTIVENESS OF UNITED STATES-SOMALIA POLICY.

(a) STUDY.—Not later than 1 year after the date of enactment of this Act, the Secretary of Defense shall seek

to enter into a contract or other agreement with a federally funded research and development center under which the center shall—

(1) conduct a study to assess the effectiveness of the past 20 years of United States policy in Somalia, including through United States security cooperation and security assistance, military operations, and other forms of assistance provided to and in Somalia, with respect to—

(A) addressing and reducing the threat of violence posed by Al Shabaab and ISIS-Somalia; and

(B) achieving other United States objectives with respect to Somalia; and

(2) develop evidence-based options and recommendations for United States policy in Somalia to reduce or resolve the threat of violence posed by Al Shabaab and ISIS-Somalia.

(b) ELEMENTS.—The study required by subsection (a) shall also discuss the following with respect to Somalia:

(1) Factors leading to initial United States involvement in the conflict.

(2) The legal opinions that interpreted the 2001 Authorization to Use Military Force to apply to Al Shabaab.

(3) A description of the threats posed by Al Shabaab and ISIS-Somalia to the United States homeland.

(4) The amount of funds spent on security, development and humanitarian assistance, including the estimated costs of Department of Defense operations.

(5) An assessment of the policy objectives identified by the United States with respect to such assistance and operations and any United States Government efforts to assess whether those objectives were met.

(6) A description of any efforts to push for a political solution for the war, including internal United States Government discussions and outcomes, concerning whether or not to support dialogue with Al Shabaab.

(7) A description of all significant changes in United States policy, practice, or other factors that have contributed to an increase in the number of United States airstrikes in Somalia since January 2025.

(8) A description of past and planned efforts to engage with the Somali armed forces on civilian harm mitigation and response issues.

(9) United States Government benchmarks for disengaging from military operations in Somalia over the course of United States military operations in the country.

(c) REPORT TO SECRETARY.—The federally funded research and development center that carries out the study and analysis under subsection (a) shall submit to the Secretary of Defense a report containing the results of such study.

(d) REPORT TO CONGRESS.—Not later than 30 days after receiving the report required by subsection (c), the Secretary of Defense shall submit an unaltered copy of the report to the Committees on Armed Services of the Senate and House of Representatives.

(e) FORM; PUBLICATION.—The submission required by subsection (d) shall be in unclassified form and may include a classified annex. The unclassified portion of the report shall concurrently be made publicly available.

SEC. 1254. STUDY AND REPORT ON INTERNATIONAL SECURITY MEASURES ON THE BORDER BETWEEN GAZA AND EGYPT.

(a) IN GENERAL.—The Secretary of Defense, in coordination with the Secretary of State, shall conduct a study on steps that Israel, Egypt, and the United States can take to enhance international security measures on the

border between Gaza and Egypt to ensure Hamas and other actors do not use tunnels or methods via the Mediterranean Sea to smuggle weapons and illicit goods.

(b) REPORT.—

(1) IN GENERAL.—The Secretary shall submit to the appropriate congressional committees a report that contains the results of the study.

(2) MATTERS TO BE INCLUDED.—The report required by this subsection shall include a description and map indicating existing tunnels on the border between Gaza and Egypt.

(3) DEFINITION.—In this subsection, the term ''appropriate congressional committees'' means—

(A) the Committee on Armed Services and the Committee on Foreign Affairs of the House of Representatives; and

(B) the Committee on Armed Services and the Committee on Foreign Relations of the Senate.

SEC. 1255. ANNUAL REPORT ON TAIWAN CAPABILITIES AND INTELLIGENCE SUPPORT.

Section 1248 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81) is amended—

(1) in subsection (a)—

(A) by striking ''fiscal year 2027, the Secretary of State and the Secretary of Defense, in coordination with the Director of National Intelligence and the heads of other relevant Federal departments and agencies, shall jointly'' and inserting ''fiscal year 2031, the Secretary of Defense, in consultation with the Secretary of State and the Director of National Intelligence, shall'';

(B) in paragraph (2), by striking ''ability of Taiwan'' and inserting ''readiness of the Taiwan military'';

(C) by redesignating paragraph (16) as paragraph (19); and

(D) by adding after paragraph (15) the following:

''(16) An assessment regarding how Japan, the Republic of Korea, the Philippines, Vietnam, and Australia would likely respond to contingencies, including—

''(A) a military strike or invasion of Taiwan or an offshore island of Taiwan, including Kinmen, Matsu, Wuciou, Taiping Island, and Penghu;

"(B) a commercial blockade of Taiwan in which international vessels are subjected to search or seizure by the People's Liberation Army;

"(C) a major cyberattack against the critical infrastructure of Taiwan; and

"(D) a seizure of one or more of Taiwan's offshore islands or territorial claims.

"(17) Guidance for representatives from the military of Taiwan to attend, as observers and as appropriate, joint military exercises led by the United States, such as the biennial Rim of the Pacific exercise.

"(18) An assessment of the feasibility of using economic tools, including export controls, sanctions, and tariffs, to deter China from carrying out the actions described in subparagraphs (A) through (D) of paragraph (16)."; and

(2) in subsection (b)—

(A) in paragraph (2), by striking "; and" and inserting a semicolon;

(B) in paragraph (3), by striking the period at the end and inserting "; and"; and

(C) by adding at the end the following:

''(4) an assessment of how the United States Armed Forces could marshal resources to respond to the actions described in subparagraphs (A) through (E) of subsection (a)(16), based on the force posture and stockpiles of the Armed Forces.''.

Subtitle G—Other Matters

SEC. 1261. REPEAL OF TEMPORARY AUTHORITY TO PROVIDE TRAINING TO MILITARY FORCES OR NATIONAL SECURITY FORCES OF COSTA RICA AND PANAMA.

Section 1209 of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. 321 note) is repealed.

SEC. 1262. STUDY AND REPORT ON ADVANCING UNITED STATES INTERESTS IN THE WESTERN HEMISPHERE.

(a) FINDINGS.—Congress finds that there are unconventional transnational threat networks that—

(1) are centered on, but not exclusive to, drug trafficking organizations; and

(2) the President's National Security Strategy has identified as challenges to the core national interests of the United States.

(b) STUDY.—The Secretary of Defense shall carry out a study of the major threat networks operating in the

Western Hemisphere, with the purpose of revealing their principal leaders, capabilities, activities, methods, infrastructure, financial assets, and weapons, as well as how they overlap with drug trafficking organizations. In carrying out the study, the Secretary should prioritize such major threats that—

(1) threaten the homeland;

(2) abet international terrorism;

(3) smuggle illegal drugs or supply weapons;

(4) are heavily reliant on entities not located in the Western Hemisphere; or

(5) traffic human beings or facilitate mass migration.

(c) REPORT.—Not later than 180 days after the enactment of this Act, the Secretary of Defense shall submit to the Committee on Armed Services and the Committee on Foreign Relations of the Senate and the Committee on Armed Services and the Committee on Foreign Affairs of the House of Representatives a report containing—

(1) all findings and determinations made in carrying out the study required under subsection (b);

(2) a comparison of the threats identified in such study to the global threat priorities of the Department of Defense; and

(3) an explanation of how the Department of Defense plans to coordinate with the heads of other appropriate departments and agencies of the United States to use the resources of the Department, in coordination with criminal prosecutions, diplomacy, and other tools, to dismantle the major threat networks studied under subsection (b).

TITLE XIV—OTHER AUTHORIZATIONS

Subtitle A—Military Programs

Sec. 1401. Working capital funds.
Sec. 1402. Chemical agents and munitions destruction, defense.
Sec. 1403. Drug interdiction and counter-drug activities, defense-wide.
Sec. 1404. Defense Inspector General.
Sec. 1405. Defense Health Program.
Sec. 1406. Cable security fleet expansion.

Subtitle B—Other Matters

Sec. 1411. Extension of authorities for funding and management of joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund for Captain James A. Lovell Health Care Center, Illinois.
Sec. 1412. Authorization of appropriations for Armed Forces Retirement Home.
Sec. 1413. Critical minerals traceability pilot program.
Sec. 1414. Government-wide critical mineral procurement and resale authorities feasibility study.

Subtitle A—Military Programs

SEC. 1401. WORKING CAPITAL FUNDS.

Funds are hereby authorized to be appropriated for fiscal year 2027 for the use of the Armed Forces and other activities and agencies of the Department of Defense for providing capital for working capital and revolving funds, as specified in the funding table in section 4501.

SEC. 1402. CHEMICAL AGENTS AND MUNITIONS DESTRUCTION, DEFENSE.

(a) AUTHORIZATION OF APPROPRIATIONS.—Funds are hereby authorized to be appropriated for the Department of Defense for fiscal year 2027 for expenses, not otherwise provided for, for Chemical Agents and Munitions Destruction, Defense, as specified in the funding table in section 4501.

(b) USE.—Amounts authorized to be appropriated under subsection (a) are authorized for the destruction of lethal chemical agents and munitions in accordance with section 1412 of the Department of Defense Authorization Act, 1986 (50 U.S.C. 1521).

SEC. 1403. DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE-WIDE.

Funds are hereby authorized to be appropriated for the Department of Defense for fiscal year 2027 for expenses, not otherwise provided for, for Drug Interdiction and Counter-Drug Activities, Defense-wide, as specified in the funding table in section 4501.

SEC. 1404. DEFENSE INSPECTOR GENERAL.

Funds are hereby authorized to be appropriated for the Department of Defense for fiscal year 2027 for expenses, not otherwise provided for, for the Office of the Inspector General of the Department of Defense, as specified in the funding table in section 4501.

SEC. 1405. DEFENSE HEALTH PROGRAM.

Funds are hereby authorized to be appropriated for fiscal year 2027 for the Defense Health Program for use of the Armed Forces and other activities and agencies of the Department of Defense for providing for the health of eligible beneficiaries, as specified in the funding table in section 4501.

SEC. 1406. CABLE SECURITY FLEET EXPANSION.

(a) ESTABLISHMENT OF THE CABLE SECURITY FLEET.—Section 53202(a)(2) of title 46, United States Code, is amended by striking ''two'' and inserting ''not less than 6''.

(b) AUTHORIZATION OF APPROPRIATIONS.—Section 53209 of title 46, United States Code, is amended by striking ''$10,000,000 for each of the fiscal years 2021 through 2035'' and inserting ''$30,000,000 for each of the fiscal years 2027 through 2040''.

Subtitle B—Other Matters

SEC. 1411. EXTENSION OF AUTHORITIES FOR FUNDING AND MANAGEMENT OF JOINT DEPARTMENT OF DEFENSE-DEPARTMENT OF VETERANS AFFAIRS MEDICAL FACILITY DEMONSTRATION FUND FOR CAPTAIN JAMES A. LOVELL HEALTH CARE CENTER, ILLINOIS.

(a) IN GENERAL.—Section 1704(e) of the National Defense Authorization Act for Fiscal Year 2010 (Public

Law 111–84; 123 Stat. 2573), as most recently amended by section 1421(a) of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 138 Stat. 2129), is amended by striking ''September 30, 2027'' and inserting ''September 30, 2028''.

(b) AUTHORITY FOR TRANSFER OF FUNDS.—Of the funds authorized to be appropriated for section 1405 and available for the Defense Health Program for operation and maintenance, $174,000,000 may be transferred by the Secretary of Defense to the Joint Department of Defense–Department of Veterans Affairs Medical Facility Demonstration Fund established by subsection (a)(1) of section 1704 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 2571). For purposes of subsection (a)(2) of such section 1704, any funds so transferred shall be treated as amounts authorized and appropriated specifically for the purpose of such a transfer.

(c) USE OF TRANSFERRED FUNDS.—For the purposes of subsection (b) of such section 1704, facility operations for which funds transferred under subsection (a) may be used are operations of the Captain James A. Lovell Federal Health Care Center, consisting of the North Chicago Veterans Affairs Medical Center, the Navy Ambulatory Care Center, and supporting facilities des-

ignated as a combined Federal medical facility under an operational agreement covered by section 706 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4500).

SEC. 1412. AUTHORIZATION OF APPROPRIATIONS FOR ARMED FORCES RETIREMENT HOME.

There is hereby authorized to be appropriated for fiscal year 2027 from the Armed Forces Retirement Home Trust Fund the sum of $77,000,000 for the operation of the Armed Forces Retirement Home.

SEC. 1413. CRITICAL MINERALS TRACEABILITY PILOT PROGRAM.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall establish a pilot program within the Defense Logistics Agency to develop and evaluate traceability systems for essential materials managed by the Agency, including materials held in or acquired for the National Defense Stockpile. In carrying out the pilot program, the Secretary of Defense shall seek to—

(1) improve the ability of the Department of Defense to rapidly mobilize and allocate materials during national emergencies or contingencies; and

(2) inform potential future Department-wide implementation of traceability requirements for defense-critical supply chains.

(b) CONTRACTS.—In carrying out the pilot program, the Secretary of Defense shall seek to enter into contracts with appropriate entities to provide traceability systems in accordance with this section.

(c) TRACEABILITY PROVIDERS.—

(1) REQUIREMENTS FOR PROVIDERS.—The Secretary of Defense shall require that any entity that enters into a contract under this section—

(A) be organized under the laws of the United States;

(B) be owned and controlled by a United States person; and

(C) not be subject to foreign ownership or control or influence by any foreign government.

(2) CONTRACT REQUIREMENTS.—Any contract entered into under this section shall require that the entity operate exclusively as a noncustodial digital traceability and verification service and shall not—

(A) extract, process, refine, transport, store, broker, finance, or take title to any covered material; or

(B) exercise physical control, custody, or possession of any covered material.

(d) TRACEABILITY SYSTEM.—

(1) COVERED MATERIALS.—Any contract entered into under this section shall require that the traceability system provided under such contract traces the following materials:

(A) Titanium and titanium alloys.

(B) Cobalt.

(C) Rare earth elements and permanent magnet materials.

(D) Lithium and battery-grade materials.

(E) Such other strategic and critical materials as the Secretary of Defense determines are necessary to support defense production and surge requirements.

(2) TECHNICAL REQUIREMENTS.—Any contract entered into under this section shall require that the traceability system provided under such contract—

(A) provides end-to-end visibility of covered materials from point of extraction through processing, transportation, and end use in defense articles or defense services;

(B) verifies the origin, chain of custody, mass balance, purity, and processing history of covered materials;

(C) maintains tamper-resistant, immutable, and time-stamped records of custody events, transformation events, and compliance status for covered materials;

(D) employs cryptographic mechanisms to protect sensitive commercial and national security data while enabling verification by authorized security personnel;

(E) enables continuous auditing, anomaly detection, and identification and assessment of supply chain threats; and

(F) integrates with existing Department of Defense procurement, intelligence monitoring, and risk assessment frameworks, including support compliance audits conducted under section 252.225-7052 of the Defense Federal Acquisition Regulation, or successor regulations.

(e) ENFORCEMENT.—The Secretary of Defense may enforce compliance with the requirements of this section through—

(1) suspension or termination of contracts with entities that fail to comply with traceability system requirements under this section;

(2) withholding of payments for contractors or subcontractors that fail to provide required traceability documentation; and

(3) exclusion from future defense contracts of entities that repeatedly fail to meet traceability system requirements under this section.

(f) PHASED EXPANSION.—

(1) PHASE I.—During the period beginning on the date the pilot program is established under subsection (a) and ending on September 30, 2028, the Secretary of Defense shall implement a traceability system for materials managed by the Defense Logistics Agency, with priority given to covered materials designated as critical to weapons systems production.

(2) PHASE II.—Subject to the results of the report required under subsection (h), the Secretary of Defense may expand the traceability system to covered materials procured under defense contracts subject to the Defense Federal Acquisition Regulation Supplement, beginning not earlier than October 1, 2029.

(g) BRIEFING.—Not later than one year after the date on which the Secretary of Defense establishes the pilot program under subsection (a), the Secretary shall provide a briefing to the Committee on Armed Services of the House of Representatives. Such briefing shall include—

(1) a description of each traceability system being evaluated under the pilot program, including an assessment of how such system satisfied the technical requirements under subsection (d);

(2) the criteria and process used to select a traceability service provider for the pilot program, including how provider eligibility requirements under subsection (c) were assessed and enforced;

(3) the timeline and status of pilot program implementation milestones; and

(4) any challenges or resource requirements encountered in establishing the pilot programs.

(h) REPORT.—Not later than two years after the date on which the Secretary of Defense establishes the pilot program under subsection (a), the Secretary shall submit to the congressional defense committees a report assessing the results of the pilot program. Such report shall include—

(1) an assessment of the operational effectiveness of each traceability system evaluated under the pilot program;

(2) an assessment of the impacts of such system on defense readiness an surge capacity;

(3) an assessment of the implications of such system for National Defense Stockpile management and replenishment;

(4) an assessment of the cost, scalability, and integration of such system with existing Department of Defense procurement systems; and

(5) recommendations for expansion of the pilot program or permanent authorization of a traceability requirement for defense-critical supply chains.

(i) DEFINITIONS.—In this section:

(1) The term ''covered materials'' means any material listed in subsection (d)(1).

(2) The term ''National Defense Stockpile'' means the stockpile provided for in section 3 of the Strategic and Critical Materials Stockpiling Act (50 U.S.C. 98b).

(3) The term ''United States person'' has the meaning given such term in section 7701(a)(30) of the Internal Revenue Code of 1986.

SEC. 1414. GOVERNMENT-WIDE CRITICAL MINERAL PROCUREMENT AND RESALE AUTHORITIES FEASIBILITY STUDY.

(a) IN GENERAL.—The Secretary of Defense, in coordination with the Secretary of the Interior, the Secretary of Commerce, the Administrator of the General Services Administration, and the heads of other relevant Executive agencies, shall carry out a study on the feasibility of providing to the heads of all Executive agencies critical mineral procurement and resale authorities similar to those of the Secretary of Defense.

(b) CONTENTS.—The study required by subsection (a) shall include the following:

(1) An assessment of the need of Executive agencies for critical mineral procurement and resale authorities similar to those of the Secretary of Defense.

(2) An evaluation of the legal, regulatory, and logistical barriers to providing to the heads of all Executive agencies critical mineral procurement and resale authorities similar to those of the Secretary of Defense.

(3) An analysis of the economic and strategic effects of allowing Executive agencies to resell excess critical minerals on the open market, including po-

tential effects on the domestic supply chains and international trade.

(4) Recommendations for legislative or regulatory changes necessary to providing to the heads of all Executive agencies critical mineral procurement and resale authorities similar to those of the Secretary of Defense, including safeguards to prevent market disruption or misuse of proceeds resulting from the use of such authorities by such heads.

(c) REPORT TO CONGRESS.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the findings of the study required by subsection (a).

(2) FORM.—The report required by paragraph (1) shall be in an unclassified form, but may include as classified annex.

(d) DEFINITIONS.—In this section:

(1) The term ''critical mineral'' has the meaning given such term in section 7002(a) of the Energy Act of 2020 (30 U.S.C. 1606(a)).

(2) The term ''critical mineral procurement and resale authority'' includes any statutory authority of a Executive agency to acquire, stockpile, manage,

sell, exchange, or otherwise dispose of critical minerals for purposes of national security, economic security, or emergency preparedness, including authorities under section 303 of the Defense Production Act of 1950 (50 U.S.C. 4533) and the Strategic and Critical Materials Stock Piling Act (50 U.S.C. 98 et seq.), and any other authority that the Secretary of Defense determines relevant.

(3) The term ''Executive agency'' has the meaning given such term in section 105 of title 5, United States Code.

TITLE XV—CYBERSPACE-RELATED MATTERS

Subtitle A—Cybersecurity

SEC. 1501. DATA RECOVERY REQUIREMENTS AND STRATEGY.

(a) DATA RECOVERY REQUIREMENTS.—Chapter 19 of title 10, United States Code, is amended by inserting after section 391b the following new section:

''§ 391c. Data recovery requirements

''(a) MANDATORY RECOVERY TIME OBJECTIVES.—(1) The Secretary of Defense shall, with respect to each element of the Department of Defense, carry out the following:

''(A) Identify data that is mission critical or essential to the operation of Department of Defense information systems and national security systems.

''(B) Not later than 180 days after the date of the enactment of this section, establish mandatory recovery time objectives for data so identified.

''(2) Each recovery time objective established under paragraph (1) shall satisfy the following requirements:

''(A) Be based upon the type of data to which such objective applies, including with respect to threat exposure.

''(B) Be updated in response to intelligence on evolving threats.

''(b) DEFINITION.—In this section, the term 'recovery time objective' means the maximum allowable time the Secretary of Defense determines necessary to restore critical functions and data following a cyberattack.''.

(b) DATA RESILIENCE PILOT PROGRAM.—

(1) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall establish a pilot program to assess the feasibility and effectiveness of fielding data resilience capabilities for data that is mission critical or essential to the operation of Department

of Defense information systems and national security systems, including—

(A) immutable backups that preserve logically separated copies of data isolated from external networks by means of software, firewalls, or other controls; and

(B) continuous monitoring of backup environments to detect tampering, insider threats, and malicious corruption.

(2) SCOPE.—The Secretary shall carry out the pilot program under paragraph (1) across not fewer than three covered systems selected by the Secretary, prioritizing covered systems with the highest concentration of data that is mission critical or essential to the operation of Department of Defense information systems and national security systems.

(3) REPORT.—Not later than one year after the establishment of the pilot program under paragraph (1), the Secretary shall submit to the congressional defense committees a report on the pilot program that includes—

(A) an assessment of the effectiveness of the capabilities fielded under the pilot program in supporting recovery time objectives estab-

lished under section 391c of title 10, United States Code, as added by subsection (a);

(B) the cost of fielding such capabilities; and

(C) a recommendation on whether to extend such capabilities Department-wide.

(4) DEFINITION.—In this subsection, the term ''covered system'' means an information system or national security system of the Department of Defense that stores or processes data that is mission critical, as identified pursuant to subsection (a)(1)(A) of such section 391c.

(c) DATA RECOVERY STRATEGY.—

(1) SUBMISSION TO COMMITTEES.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a data recovery strategy for the Department of Defense that includes information relating to the following:

(A) Recovery time objectives for such strategy.

(B) The approach to accomplish such objectives.

(C) Oversight processes with respect to such strategy.

(D) The funds necessary to carry out such strategy.

(E) The approach to fielding data resilience capabilities for data that is mission critical or essential to the operation of Department of Defense information systems and national security systems, including immutable backups that preserve logically separated copies isolated from external networks, and continuous monitoring of backup environments to detect tampering, insider threats, and malicious corruption.

(2) FORM.—The strategy under paragraph (1) shall be submitted in unclassified form, but may contain a classified annex.

(3) DEFINITION.—In this subsection, the term ''recovery time objective'' means the maximum allowable time the Secretary of Defense determines necessary to restore critical functions and data following a cyberattack.

SEC. 1502. DEPARTMENT OF DEFENSE AI INCIDENT AND VULNERABILITY REPORTING PROGRAM.

Chapter 131 of title 10, United States Code, is amended by inserting after section 2224a the following new section:

"§ 2224b. Artificial intelligence incident and vulnerability reporting program

''(a) IN GENERAL.—The Secretary of Defense shall establish a centralized Department-wide program for the reporting, tracking, analysis, and remediation of covered AI incidents and covered AI vulnerabilities arising from the development, testing, procurement, fielding, or operation of artificial intelligence systems within the Department of Defense.

''(b) PURPOSE.—The purpose of the program established under subsection (a) shall be to—

''(1) identify recurring risks, failure modes, vulnerabilities, and systemic weaknesses in artificial intelligence systems, including risks or failure modes arising from human-machine teaming;

''(2) support mitigation of significant risks; and

''(3) inform testing, procurement, cybersecurity, and deployment decisions to improve the safety, security, reliability, and operational effectiveness of such systems.

''(c) REQUIREMENTS FOR PROGRAM.—The program shall—

''(1) be designed using practices drawn from established safety incident reporting programs, vulnerability disclosure programs, and programs to identify and develop lessons learned;

''(2) emphasize non-punitive reporting, protection of sensitive and proprietary information, and dissemination of lessons learned, as appropriate; and

''(3) include a mechanism to enable timely access to and sharing of relevant logs, system data, and model information as necessary to support analysis and response.

''(d) DESIGNATION OF OFFICIAL.—The Secretary shall designate an appropriate official for the reporting, tracking, analysis, and remediation of covered AI incidents and covered AI vulnerabilities under this section. The Secretary, acting through such official, shall receive and standardize reports, conduct trend analysis, identify recurring risks and failure modes, and issue guidance, alerts, and recommendations, as appropriate.

''(e) REPORTING AND CATEGORIZATION.—(1) The Secretary shall require prompt reporting to the official designated under subsection (d) of—

''(A) any covered AI incident; and

''(B) any covered AI vulnerability.

''(2) The Secretary, acting through the official, shall categorize each incident or vulnerability reported to the official according to whether the incident or vulnerability requires—

''(A) a Department-wide response;

''(B) a response at the program level; or

''(C) a response at a local level.

''(f) DEPARTMENT-WIDE AND PROGRAM-LEVEL MATTERS.—(1) In the case of any incident or vulnerability categorized under subsection (e)(2)(A) or (B), the Secretary, acting through the official designated under subsection (d), shall coordinate any responses that the Secretary considers appropriate, such as remediation, retesting, mitigation measures, or deployment restrictions.

''(2) In addition, in the case of any incident or vulnerability described in subsection (e)(2)(A), the Secretary, acting through the official, shall require—

''(A) a documented corrective action plan; and

''(B) validation that the mitigation measures, if any, in such plan have been implemented before continued operational use.

''(g) PROTECTION OF REPORTS.—(1) The Secretary shall establish a protected disclosure process, informed by established vulnerability disclosure practices, through which members of the Armed Forces, civilian employees, contractors, and subcontractors at any tier may report covered AI incidents and covered AI vulnerabilities in good faith.

''(2) The Secretary shall ensure that a person making a report in good faith under paragraph (1) is not, on the

basis of that report alone, subject to adverse contract action, subject to adverse personnel action, or otherwise retaliated against by the Department.

''(h) PROTECTION OF INFORMATION.—The Secretary shall establish procedures to protect sensitive, proprietary, and classified information submitted through the protected disclosure process under subsection (g).

''(i) ANNUAL REPORT.—(1) In each of years 2027 through 2031, the Secretary shall submit to the congressional defense committees an annual report on the program. The report shall include—

''(A) the number of reports made of incidents and vulnerabilities and the categorizations of such reports;

''(B) a summary of significant trends, recurring risks, systemic issues, and corrective actions taken in response;

''(C) in the case of any covered AI incident resulting in the loss of life of, or in bodily harm to, a member of the Army, Navy, Marine Corps, Air Force, or Space Force—

''(i) a description of the incident, including the system or systems involved and the operational context;

''(ii) the date and time the incident occurred;

''(iii) an assessment of the cause and operational consequence of the incident; and

''(iv) any corrective actions taken; and

''(D) any recommendations for changes to testing, procurement, cybersecurity, or deployment policies relating to artificial intelligence systems.

''(2) Each report under this subsection shall be submitted in unclassified form but may include a classified annex.

''(j) DEFINITIONS.—In this section:

''(1) The term 'artificial intelligence' has the meaning given such term in section 5002 of the National Artificial Intelligence Initiative Act of 2020 (15 U.S.C. 9401).

''(2) The term 'covered AI incident' means an event in which an artificial intelligence system—

''(A) causes unintended operational, safety, or security harm;

''(B) operates outside authorized parameters or approved safety, legal, or mission guardrails;

''(C) materially degrades mission performance or reliability in a real-world or operationally representative environment;

''(D) fails to respond to an operator disengage command;

''(E) operates in a manner that, under reasonably foreseeable circumstances, could have resulted in significant unintended operational, safety, or security harm; or

''(F) operates in a manner that raises concerns regarding system control and autonomy.

''(3) The term 'covered AI vulnerability' means an exploitable weakness, vulnerability, or systemic issue in an artificial intelligence system or related component that could materially affect mission performance, compromise system integrity, create safety risk, or result in unauthorized or unintended behavior.''.

SEC. 1503. REVIEW AND REALIGNMENT OF DEPARTMENT OF DEFENSE CYBERSECURITY RESPONSIBILITIES.

(a) REVIEW AND REALIGNMENT.—

(1) REVIEW REQUIRED.—The Secretary of Defense shall conduct a comprehensive review of the roles, responsibilities, relationships, authorities, and

governance structures relating to cybersecurity, information technology, network defense, and defensive cyber operations within the Department of Defense in order to achieve the following goals:

(A) Establish clear accountability for the cybersecurity of Department of Defense information networks, including identification of one official designated as the single accountable official responsible for the cybersecurity of Department of Defense information networks.

(B) Improve the operational effectiveness, responsiveness, and unity of effort of Department-wide cybersecurity, information technology, network defense, and defensive cyber operations.

(C) Eliminate structural overlap, duplication, and fragmentation across organizations responsible for cybersecurity, information technology, network defense, and defensive cyber operations.

(D) Reduce overlapping responsibilities and ensure alignment of policy, strategy, budgetary oversight, and operational support necessary for the cybersecurity of Department of

Defense information networks in an evolving threat environment.

(2) SCOPE.—The review conducted under this subsection shall include an assessment of the roles, responsibilities, relationships, and authorities among—

(A) the Chief Information Officer of the Department of Defense;

(B) the Assistant Secretary of Defense for Cyber Policy;

(C) the Principal Cyber Advisor to the Secretary of Defense;

(D) the Commander of the United States Cyber Command;

(E) the Department of Defense Cyber Defense Command; and

(F) such other offices, elements, or organizations as the Secretary determines appropriate.

(3) REALIGNMENT.—As a result of the review, and in order to achieve the goals specified in paragraph (1), the Secretary may, consistent with applicable law—

(A) realign, consolidate, or modify the roles, responsibilities, relationships, and au-

thorities of the officials, offices, elements, and organizations specified in paragraph (2);

(B) reassign functions, personnel, and resources among such officials, offices, elements, and organizations;

(C) eliminate duplicative functions; and

(D) clarify or revise reporting relationships and lines of authority.

(b) PRESERVATION OF FUNCTIONS.—In carrying out subsection (a), the Secretary shall ensure that all functions necessary for the governance, defense, and operation of Department of Defense information networks are maintained, regardless of the organizational structure to which such functions are assigned.

(c) LIMITATION ON ESTABLISHMENT OF NEW OFFICE OR ORGANIZATION.—The Secretary may not establish a new office or organization for the purpose of carrying out this section unless the Secretary determines that such establishment is necessary to achieve the goals specified in subsection (a)(1) and consistent with applicable law.

(d) LIMITATION ON REASSIGNMENT OR ELIMINATION OF FUNCTION.—The Secretary may not reassign or eliminate a function associated with an official, office, element, or organization for the purpose of carrying out this section

unless the Secretary submits to the congressional defense committees a notification of the reassignment or elimination of the function and a period of 15 days has elapsed after the date on which the notification was submitted.

(e) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to authorize the Secretary of Defense to modify, transfer, eliminate, or otherwise alter any role, responsibility, relationship, authority, function, or any other matter expressly required by law.

(f) REPORT.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the results of the review conducted under subsection (a).

(2) ELEMENTS.—The report shall include—

(A) identification of the official designated as the single accountable official responsible for the cybersecurity of Department of Defense information networks, as specified in subsection (a)(1)(A);

(B) a description of any realignment, consolidation, or modification made, or to be made, to the roles, responsibilities, relationships, and authorities of the officials, offices, elements,

and organizations reviewed, as specified in subsection (a)(3)(A);

(C) a description of any reassignment of functions, personnel, and resources made, or to be made, among the officials, offices, elements, and organizations reviewed, as specified in subsection (a)(3)(B);

(D) a description of any duplicative functions eliminated, or to be eliminated, as set forth in subsection (a)(3)(C);

(E) a description of any clarification or revision made, or to be made, to reporting relationships and lines of authority, as set forth in subsection (a)(3)(D);

(F) a mapping of the responsibilities and authorities assigned as of the date of the enactment of this Act to each respective official, office, element, or organization reviewed (including an identification of whether the responsibility or authority is required by law to be assigned to such official, office, element, or organization, and an mapping of the responsibilities and authorities as they will be assigned after completion of the activities specified in subsection (a)(3);

(G) a timeline for implementation of the activities specified in subsection (a)(3), under which all such activities shall be implemented not later than one year after the date of the enactment of this Act;

(H) identification of any legislative recommendations, including any provisions of law requiring amendment, to fully implement the goals specified in subsection (a)(1) and the activities specified in subsection (a)(3); and

(I) a justification for the new structure, including an explanation for how the new structure better achieves the goals specified in subsection (a)(1) than the current structure.

(g) BRIEFING.—Not later than 45 days after the date of the enactment of this Act, the Secretary shall provide a briefing to the congressional defense committees on preliminary findings of the review.

SEC. 1504. INCLUSION OF CRITICAL INFRASTRUCTURE AND OPERATIONAL TECHNOLOGY SECURITY IN COMBATANT COMMAND PLANNING AND READINESS EXERCISES.

(a) REQUIREMENT.—The Secretary of Defense shall direct the commanders of the combatant commands, consistent with the authorities provided under sections 164

and 167b of title 10, United States Code, to incorporate critical infrastructure security and operational technology security considerations into—

(1) planning activities conducted to execute national defense strategies; and

(2) joint and combined planning, training, and readiness exercises.

(b) SCOPE OF ACTIVITIES.—The activities described in subsection (a) shall, at a minimum, include—

(1) assessment of vulnerabilities and resilience of critical infrastructure and operational technology systems that support military operations, defense support to civil authorities, and homeland defense missions;

(2) coordination with relevant Federal departments and agencies, State, local, Tribal, and territorial authorities, and private sector owners and operators, as appropriate; and

(3) integration of cyber, operational technology, and physical effects relevant to disruption, degradation, or compromise of such systems.

SEC. 1505. PILOT PROGRAM FOR AUTONOMOUS MISSION INTEGRATION OF UNMANNED SURFACE VEHICLES.

(a) ESTABLISHMENT.—The Secretary of the Navy, in consultation with the Under Secretary of Defense for Research and Engineering, shall establish a pilot program, to be known as the Autonomous Mission Pre-Integration Pilot Program, to assess industry-led approaches for pre-integration of autonomy services and multi-mission payloads on medium unmanned surface vehicles, utilizing a common, cybersecure operating system to enable cross-platform collaboration.

(b) OBJECTIVES.—The pilot program shall develop and validate rapidly composable, multi-mission capabilities to support distributed maritime operations in contested environments, including pre-integration of—

(1) autonomy services and mission software;

(2) kinetic and non-kinetic systems;

(3) advanced sensors and communications; and

(4) edge-based collaborative artificial intelligence.

(c) MODULAR OPEN SYSTEMS ARCHITECTURE.—The pilot program shall employ modular open systems architecture standards and open interfaces to ensure interoperability, portability, and cybersecurity across platforms. The Secretary shall leverage lessons from prior autonomy

and control system efforts while avoiding approaches that limit competition, inhibit innovation, or place primary integration responsibility on the Government where industry solutions are available.

(d) BRIEFINGS.—

(1) INITIAL BRIEFING.—Not later than 120 days after the date of the enactment of this Act, the Secretary, in consultation with the Under Secretary, shall brief the congressional defense committees on the implementation of the pilot program, including—

(A) coordination between and among program offices, the Under Secretary, the commanders of the combatant commands, the operational component, and industry;

(B) methods to reduce technical risk and promote competition, including shifting integration risk to industry through pre-integration and demonstration; and

(C) plans to accelerate prototyping, independent assessment, and operational integration.

(2) FOLLOW-ON BRIEFING.—Not later than one year after the date of the enactment of this Act, the Secretary shall brief the congressional defense committees with an update on the implementation of the

pilot program, including findings, data, and mission outcomes.

SEC. 1506. CIVILIAN CYBERSECURITY RESERVE CORPS PILOT PROGRAM.

(a) PROGRAM REQUIRED.—The Secretary of Defense shall carry out a pilot program to further evaluate the feasibility and advisability of creating and maintaining a civilian cybersecurity reserve corps to enable the Department of Defense and military services to provide qualified civilian manpower to the Department of Defense to effectively respond to significant cyber incidents or to assist in solving other exceptionally difficult cyber workforce-related challenges.

(b) CONSIDERATION OF PRIOR REPORT.—In conducting the pilot program required by subsection (a), the Secretary shall take into consideration the findings and recommendations of the report required by section 1540 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2914) (titled ''Independent Assessment of Civilian Cybersecurity Reserve for Department of Defense'' and dated October 2025).

(c) PLANNING.—

(1) PLAN.—Prior to carrying out the pilot program required by subsection (a), the Secretary shall

create a detailed written plan for the program, which shall include—

(A) a concept of operations for the civilian cybersecurity reserve corps;

(B) an assessment of the necessary legal and contractual requirements;

(C) recruitment, assessment, and selection criteria and methodologies;

(D) talent management processes and system prototypes;

(E) defining the initial mission set and organization structure of the civilian cybersecurity reserve corps;

(F) metrics with respect to cost and benefits that will be used to inform the Secretary's evaluation of the pilot program; and

(G) any other matters that the Secretary considers appropriate.

(2) REPORT AND BRIEFING.—Not later than the date that is six months after the date of the enactment of this Act, the Secretary shall provide the congressional defense committees with a report and briefing on the plan created under paragraph (1). The Secretary shall not carry out the pilot program

until after the Secretary has provided the report and briefing.

(d) SCOPE.—In carrying out the pilot program, the Secretary shall establish an initial cohort of not more than 20 members of the civilian cybersecurity reserve corps.

SEC. 1507. FEDERAL CONTRACTOR VULNERABILITY DISCLOSURE POLICY.

(a) RECOMMENDATIONS.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Director of the Office of Management and Budget, in consultation with the Director of the Cybersecurity and Infrastructure Security Agency, the National Cyber Director, the Director of the National Institute of Standards and Technology, and any other appropriate head of an Executive department, shall—

(A) review the Federal Acquisition Regulation contract requirements and language for contractor vulnerability disclosure programs; and

(B) recommend updates to such requirements and language to the Federal Acquisition Regulation Council.

(2) CONTENTS.—The recommendations required by paragraph (1) shall include updates to such requirements designed to ensure that covered contractors implement a vulnerability disclosure policy consistent with NIST guidelines for contractors as required under section 5 of the IoT Cybersecurity Improvement Act of 2020 (15 U.S.C. 278g–3c).

(b) PROCUREMENT REQUIREMENTS.—Not later than 180 days after the date on which the recommended contract language developed pursuant to subsection (a) is received, the Federal Acquisition Regulation Council shall review the recommended contract language and update the FAR as necessary to incorporate requirements for covered contractors to receive information about a potential security vulnerability relating to an information system owned or controlled by a contractor, in performance of the contract.

(c) ELEMENTS.—The update to the FAR pursuant to subsection (b) shall—

(1) to the maximum extent practicable, align with the security vulnerability disclosure process and coordinated disclosure requirements relating to Federal information systems under sections 5 and 6 of the IoT Cybersecurity Improvement Act of 2020 (15 U.S.C. 278g–3c and 278g–3d); and

(2) to the maximum extent practicable, be aligned with industry best practices and Standards 29147 and 30111 of the International Standards Organization (or any successor standard) or any other appropriate, relevant, and widely used standard.

(d) WAIVER.—The head of an agency may waive the security vulnerability disclosure policy requirement under subsection (b) if—

(1) the agency Chief Information Officer determines that the waiver is necessary in the interest of national security or research purposes; and

(2) if, not later than 30 days after granting a waiver, such head submits a notification and justification (including information about the duration of the waiver) to the Committee on Oversight and Government Reform of the House of Representatives and the Committee on Homeland Security and Governmental Affairs of the Senate.

(e) DEPARTMENT OF DEFENSE SUPPLEMENT TO THE FEDERAL ACQUISITION REGULATION.—

(1) REVIEW.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall review the Department of Defense Supplement to the Federal Acquisition Regulation

contract requirements and language for contractor vulnerability disclosure programs and develop updates to such requirements designed to ensure that covered contractors implement a vulnerability disclosure policy consistent with NIST guidelines for contractors as required under section 5 of the IoT Cybersecurity Improvement Act of 2020 (15 U.S.C. 278g–3c).

(2) REVISIONS.—Not later than 180 days after the date on which the review required under subsection (a) is completed, the Secretary shall revise the DFARS as necessary to incorporate requirements for covered contractors to receive information about a potential security vulnerability relating to an information system owned or controlled by a contractor, in performance of the contract.

(3) ELEMENTS.—The Secretary shall ensure that the revision to the DFARS described in this subsection is carried out in accordance with the requirements of paragraphs (1) and (2) of subsection (c).

(4) WAIVER.—The Chief Information Officer of the Department of Defense, in consultation with the National Manager for National Security Systems, may waive the security vulnerability disclosure policy

requirements under paragraph (2) if the Chief Information Officer—

(A) determines that the waiver is necessary in the interest of national security or research purposes; and

(B) not later than 30 days after granting a waiver, submits a notification and justification (including information about the duration of the waiver) to the Committees on Armed Services of the House of Representatives and the Senate.

(f) DEFINITIONS.—In this section:

(1) The term ''agency'' has the meaning given the term in section 3502 of title 44, United States Code.

(2) The term ''covered contractor'' means a contractor (as defined in section 7101 of title 41, United States Code)—

(A) whose contract is in an amount the same as or greater than the simplified acquisition threshold; or

(B) that operates, manages, or maintains a Federal information system (as defined by section 11331 of title 40, United Stated Code) on behalf of an agency.

(3) The term ''DFARS'' means the Department of Defense Supplement to the Federal Acquisition Regulation.

(4) The term ''Executive department'' has the meaning given that term in section 101 of title 5, United States Code.

(5) The term ''FAR'' means the Federal Acquisition Regulation.

(6) The term ''NIST'' means the National Institute of Standards and Technology.

(7) The term ''OMB'' means the Office of Management and Budget.

(8) The term ''security vulnerability'' has the meaning given that term in section 2200 of the Homeland Security Act of 2002 (6 U.S.C. 650).

(9) The term ''simplified acquisition threshold'' has the meaning given that term in section 134 of title 41, United States Code.

SEC. 1508. CYBER INCIDENT REPORTING REQUIREMENTS FOR OPERATIONALLY CRITICAL CONTRACTORS.

Section 391 of title 10, United States Code, is amended—

(1) in subsection (c), by amending paragraph (2) to read as follows:

''(2) RAPID REPORTING.—The procedures established pursuant to subsection (a) shall require each operationally critical contractor to report to the component of the Department designated pursuant to subsection (d)(2)(A)—

''(A) on a rapid basis, each cyber incident with respect to any network or information system of such contractor, including for each such incident—

''(i) an assessment by the contractor of the effect of the incident on the ability of the contractor to meet the contractual requirements of the Department;

''(ii) the technique or method used in such incident;

''(iii) a sample of any malicious software, if discovered and isolated by the contractor, involved in such incident; and

''(iv) a summary of the information compromised by such incident; and

''(B) promptly, but not later than 72 hours after discovery, each discovery within any network or information system of such contractor of any hardware, software, firmware, embedded technology, or update thereto that is manufac-

tured by, is developed under the direction of, or includes source code or design contributions from, a covered Chinese entity, including for each such hardware, software, firmware, technology, or update—

''(i) a description of the hardware, software, firmware, technology, or update discovered and the network or system on which it resides;

''(ii) the function and integration level of such hardware, software, firmware, technology, or update;

''(iii) the date, method, and circumstances of discovery; and

''(iv) any immediate mitigation or isolation measures undertaken.''; and

(2) in subsection (e), by adding at the end the following new paragraph:

''(3) COVERED CHINESE ENTITY DEFINED.—The term 'covered Chinese entity' means an entity—

''(A) organized under the laws of, or primarily subject to the jurisdiction of, the People's Republic of China;

''(B) owned by, controlled by, or subject to the direction of the Government of the People's

Republic of China or the Chinese Communist Party; or

''(C) identified on the list of Chinese military companies operating in the United States under section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 10 U.S.C. 113 note), or any successor provision.''.

SEC. 1509. INTERIM DATA PROTECTION MEASURES FOR THE DEPARTMENT OF DEFENSE.

(a) DATA PROTECTION REVIEW.—The Secretary of Defense shall ensure that, not later than 45 days after the date of the enactment of this Act, each portfolio acquisition executive initiates a narrow, expeditious review of each program of record assigned to such executive to determine whether it is feasible and practicable to incorporate into the program of record cryptographic protection described in subsection (b) in a manner that does not require replacement, modification, or augmentation of existing chips, cryptographic cards, radios, hardware security modules, or other physical components.

(b) CRYPTOGRAPHIC PROTECTION.—The cryptographic protection described in this subsection is utility-based, software-only data packet level cryptographic protection that—

(1) advances data protection for the program of record toward the migration to post quantum cryptography on or before December 31, 2030, as directed in the memorandum of the Chief Information Officer dated November 18, 2025 (relating to ''Preparing for Migration to Post Quantum Cryptography'');

(2) is, or is compatible with, a lattice-based, symmetric, asymmetric, or hybrid cipher capable of providing security strength of or exceeding Advanced Encryption Standard with a 256-bit key (AES-256), including post-quantum security key encapsulation at greater than 1024-bit and digital signature mechanisms and other parameters defined by the Chief Information Officer;

(3) is capable of directly combining cryptographic key material with access controls and authorization constraints or policies controlled by the Department of Defense, a multi-factor key for user identity management and device authentication through the encryption process at the data or key level, and can guarantee provenance between the sender and the receiver of data;

(4) provides capability for variable symmetric encryption strengths of at least 512-bit with minimal degradation of encryption decryption speed; and

(5) provides full key custody and control to the data owner within the Department of Defense, consistent key sovereignty, including no requirement for key escrow, replication, derivation, or retention of cryptographic keys by third-party vendors.

(c) APPROVAL.—Software providing the cryptographic protection described in subsection (b) shall be approved by the Chief Information Officer of the Department of Defense before it is deployed in any program of record.

(d) FUTURE PROGRAMS OF RECORD.—The Secretary of Defense shall ensure that each program of record established after the date of the enactment of this Act incorporates cryptographic protection described in subsection (b) from inception, to the extent it is feasible and practicable to do so.

(e) POOLED IMPLEMENTATION.—The Chief Information Officer is authorized to direct pooled acquisitions of licenses for cryptographic protection described in subsection (b) for use by programs of record across one or more programs in one or more military departments or other elements of the Department.

(f) VENDOR LOCK.—The Secretary of Defense shall ensure, in acquiring any cryptographic protection described in subsection (b), that the Department retains the legal and technical capability to decrypt, access, and migrate its encrypted data upon termination of the contract, without cost and without extending the contract.

(g) MULTI-YEAR TERM.—A contract for cryptographic protection described in subsection (b) may have a multi-year term if the contract contains a clause for the Department of Defense to opt out of the contract every two years.

(h) RELATIONSHIP TO EXISTING GUIDANCE.—The Secretary of Defense shall ensure that this section is implemented in a manner that is consistent with, and seeks to advance, the zero-trust initiatives and classified network protection requirements of the Department of Defense.

SEC. 1510. REPORT ON INTEGRATION OF COMMERCIAL CYBER CAPABILITIES INTO THE JOINT CYBER WARFIGHTING ARCHITECTURE.

(a) REPORT REQUIRED.—Not later than March 1, 2027, the Assistant Secretary of Defense for Cyber Policy, in coordination with the Commander of the United States Cyber Command, shall submit to the congressional defense committees a report on the integration of commercial

cyber capabilities into the Joint Cyber Warfighting Architecture.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) A description of actions taken by United States Cyber Command to incorporate commercial technologies and capabilities into operational cyber activities.

(2) An assessment of the role of commercially developed capabilities, including the PATHFINDER initiative, in supporting targeting, access, operational agility, and other offensive cyber mission requirements.

(3) An assessment of how commercially developed capabilities may complement, enhance, or be integrated into the Joint Cyber Warfighting Architecture.

(4) A description of any challenges, limitations, or barriers to the integration of commercial cyber capabilities into operational cyber architectures and activities.

(5) A detailed accounting of planned funding for commercially developed cyber capabilities, including capabilities associated with the PATHFINDER initiative, across the future-years defense program,

identified by appropriation account, budget activity, program element, and, where applicable, project line.

(6) Any recommendations for improving the integration and operational employment of commercially developed cyber capabilities within the Department of Defense.

SEC. 1511. DEPARTMENT OF DEFENSE CLOUD SECURITY AUTHORIZATION RECIPROCITY PILOT PROGRAM.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Chief Information Officer of the Department of Defense shall, in consultation with the Director of the Defense Information Systems Agency, establish a pilot program on cloud security authorization reciprocity to assess the feasibility and advisability of creating a reciprocal compliance baseline between the Federal Risk and Authorization Management Program (''FedRAMP'') for civilian agency networks and the Cloud Computing Security Requirements Guide (''CC SRG'') of the Department of Defense for Department of Defense networks and national security systems.

(b) SELECTION OF SOLUTIONS.—Under the pilot program required by subsection (a), the Chief Information Officer shall select a minimum of five cybersecurity solutions authorized at the FedRAMP high impact level and

perform an accelerated assessment to validate them for CC SRG impact level 5.

(c) REPORT TO CONGRESSIONAL COMMITTEES.—

(1) IN GENERAL.—Not later than one year after the date of the establishment of the pilot program required by subsection (a), the Chief Information Officer shall submit to the congressional defense committees a report on the findings of the Chief Information Officer with respect to the pilot program.

(2) CONTENTS.—The report submitted under paragraph (1) shall cover the following:

(A) The findings described in paragraph (1), including a detailed analysis of benefits, risks, and any specific security control gaps.

(B) A strategy and implementation plan to establish a reciprocal compliance mechanism for CC SRG and FedRAMP cybersecurity requirements.

(C) An assessment of the feasibility and advisability of expanding the number of authorized cybersecurity solutions to participate in the pilot program.

(3) FORM.—The report submitted under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

Subtitle B—Information Technology and Artificial Intelligence

SEC. 1521. SOFTWARE PLANNING, PROGRAMMING, BUDGETING, AND EXECUTION REFORM.

(a) IN GENERAL.—Chapter 131 of title 10, United States Code, is amended by inserting after section 2220 the following new section:

"§ 2221. Availability of appropriations accounts for full lifecycle of software capabilities: regulations

''(a) IN GENERAL.—The Secretary of Defense shall ensure that the relevant financial management regulations of the Department provide guidance for the budgeting and execution of funds for software capabilities. Such guidance shall—

''(1) reflect that amounts appropriated for operations and maintenance, procurement, or research, development, test, and evaluation may be used at each stage in the lifecycle of a software capability, consistent with applicable law;

''(2) clarify that such amounts may be used, as appropriate, for all activities at each such stage in the lifecycle of a software capability;

''(3) provide that, for any program or activity of the Department that requires a new software capability, the appropriations account primarily available for that program or activity shall be available for that new software capability;

''(4) not impose restrictions on the availability of funds for software capabilities, except as required by law; and

''(5) maintain consistency, to the maximum extent practicable, with Recommendation 11A of the final report (dated March 2024) of the Commission on Planning, Programming, Budgeting, and Execution Reform, as submitted under section 1004 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 135 Stat. 1884).

''(b) DEFINITION.—In this section, the term 'lifecycle' includes stages such as development, prototyping, testing, fielding, modification, upgrading, licensing, sustainment, and retirement.''.

(b) ISSUANCE OF REVISED REGULATIONS.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall issue revised regulations to implement section 2221 of title 10, United States Code, as added by this section.

(2) NOTIFICATION.—Not later than 30 days after the Secretary issues the revised regulations under paragraph (1), the Secretary shall notify the congressional defense committees of the revisions.

(c) UPDATES AND REPORT.—

(1) WRITTEN UPDATES.—Not later than 180 days after the date of the enactment of this Act, and every 90 days thereafter until the revised regulations required by subsection (b) are issued, the Secretary shall submit to the congressional defense committees a written update containing—

(A) a description of the progress made toward completing the revised regulations, along with specific actions taken and remaining milestones;

(B) the most up-to-date working draft of the revised regulations, or an outline of such working draft in sufficient detail to demonstrate the manner in which, and the extent to which, the working draft implements section 2221;

(C) a description of any anticipated barriers to full and timely issuance of the revised regulations and full and timely implementation of such regulations;

(D) any recommendations for legislation to fully implement such revised regulations; and

(E) if the Secretary has not issued such revised regulations within the period described in subsection (b), an explanation for the delay and the anticipated timeline for issuing the revised regulations.

(2) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report containing—

(A) the revised regulations required by subsection (b); and

(B) any remaining barriers to full and timely implementation of such revised regulations.

SEC. 1522. REQUIREMENT FOR GUIDANCE AND PROHIBITION ON USE OF ARTIFICIAL INTELLIGENCE OF CERTAIN ARTIFICIAL INTELLIGENCE COMPANIES.

Section 1532 of the National Defense Authorization Act for Fiscal Year 2026 (10 U.S.C. 2224 note) is amended in subsection (a)—

(1) by amending paragraph (2) to read as follows:

''(2) GUIDANCE FOR DEPARTMENT SYSTEMS AND DEVICES.—Not later than 30 days after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2027, the Secretary of Defense shall issue Department of Defense-wide guidance for the identification of covered artificial intelligence companies and processes for the exclusion and removal of artificial intelligence developed by such companies from systems and devices of the Department.''; and

(2) in paragraph (3)(B), by striking ''if'' and inserting ''on and after the date that is 90 days after the date on which''.

SEC. 1523. ARTIFICIAL INTELLIGENCE MODEL RAPID DEPLOYMENT FRAMEWORK.

(a) FRAMEWORK REQUIRED.—The Secretary of Defense, acting through the Chief Digital and Artificial Intelligence Officer of the Department of Defense, shall establish a framework for the rapid deployment of artificial intelligence (''AI''), to be known as the Artificial Intelligence Model Rapid Deployment Framework (in this section referred to as the ''Framework''), to enable the evaluation, authorization, and deployment of AI systems on Department enterprise AI platforms, as appropriate. The objective of the Framework shall be to enable deployment of

such systems on such platforms within 30 days after public availability.

(b) ELEMENTS.—The Framework shall include the following elements:

(1) VENDOR AND MODEL ONBOARDING PROCESS.—Establishment of standardized processes for deploying AI systems onto Department enterprise AI platforms, including security reviews, technical assessments, and integration with other Department systems and platforms.

(2) COMMON DEFINITIONS AND CATEGORIES.—Common definitions or categories for AI systems deployed on Department enterprise AI platforms, including systems with agentic capabilities, to support acquisition clarity, testing, authorization, and operational adoption.

(3) SECURITY TESTING AND EVALUATION.—Establishment of security testing and evaluation capabilities to support security assessments for AI systems deployed on Department enterprise AI platforms, including adversarial testing, supply chain risk assessments, and other security testing appropriate for AI systems, consistent with existing cybersecurity and test and evaluation policies.

(4) MULTI-CLASSIFICATION DEPLOYMENT.—Establishment of capability to deploy AI systems on Department enterprise AI platforms across multiple classification levels, as appropriate, with appropriate security controls and data isolation.

(5) STREAMLINED SYSTEM AUTHORIZATION PROCESSES.—In coordination with the Chief Information Officer of the Department, establishment of streamlined processes for authorization of AI systems deployed on Department enterprise AI platforms, including reuse of authorization artifacts, common control inheritance, and continuous monitoring capabilities.

(6) REGISTRY AND GOVERNANCE SYSTEMS.—Implementation of registry and governance processes to track version history, performance, security status, and compliance for AI systems deployed on Department enterprise AI platforms.

(c) INTEGRATION WITH OTHER FRAMEWORKS.—The Secretary shall ensure that the rapid deployment of AI systems under the Framework is achieved in a manner that maintains security standards through integration with other relevant frameworks, including—

(1) the plans, strategies, and other matters relating to AI required by section 1544 of the Na-

tional Defense Authorization Act for Fiscal Year 2024 (10 U.S.C. 4001 note);

(2) the Defense-wide policy required by section 1512 of the National Defense Authorization Act for Fiscal Year 2026 (10 U.S.C. 394 note); and

(3) the framework and other requirements required by section 1513 of the National Defense Authorization Act for Fiscal Year 2026 (10 U.S.C. 2224 note).

(d) COMPLIANCE WITH REQUIREMENTS.—The Secretary shall ensure that the Framework complies with all applicable requirements for test and evaluation of Department systems in accordance with applicable law, policy, and guidance.

(e) METRICS AND REPORTING.—The Chief Digital and Artificial Intelligence Officer shall—

(1) establish metrics to measure the time required to evaluate, authorize, deploy, and update AI systems on Department enterprise AI platforms; and

(2) in each of fiscal years 2027, 2028, 2029, and 2030, submit an annual report to the congressional defense committees on progress toward achieving the objective stated in subsection (a).

(f) DEFINITION.—In this section, the term ''Department enterprise AI platform'' means a centrally managed

platform that hosts or provides AI services or applications for use across multiple elements of the Department, rather than for a single program, system, or mission application.

SEC. 1524. UPDATE OF POLICY ON AUTONOMOUS AND ARTIFICIAL INTELLIGENCE-ENABLED SYSTEMS.

(a) POLICY UPDATE REQUIRED.—Not later than 1 year after the date of the enactment of this Act, the Secretary of Defense shall update policies and guidance of the Department of Defense, including by revising Department of Defense Directive 3000.09 (relating to Autonomy in Weapon Systems) and establishing or revising such additional Department policies and guidance as may be appropriate, governing—

(1) autonomous and semi-autonomous weapon systems; and

(2) artificial intelligence-enabled systems intended to support, recommend, or materially influence operational decisions associated with the employment of force, including systems used for operational planning, target development, weaponeering, or engagement recommendation.

(b) REQUIRED POLICY ELEMENTS.—In updating the policies and guidance required by subsection (a), the Secretary shall ensure such policies and guidance include—

(1) criteria for categorizing systems according to such factors as mission context, autonomy, human involvement, and operational consequence;

(2) appropriate and operationally responsive requirements for approval, validation, oversight, and authorized operational use applicable to categories of systems identified pursuant to the criteria in paragraph (1);

(3) realistic and combat-effective requirements for operator intervention, override mechanisms, and operational resilience;

(4) requirements to preserve existing human command responsibility for the use of force involving autonomous systems or artificial intelligence-enabled systems, including procedures to identify the human commanders or operators responsible for authorizing, supervising, and terminating such use of force;

(5) appropriate requirements for auditability, traceability, and accountability;

(6) criteria and procedures for rapidly fielding capabilities following material changes to software, models, data, or operational context;

(7) requirements for appropriate and operationally responsive risk mitigation measures and notifi-

cations applicable to systems granted conditional or temporary operational use;

(8) requirements for operational testing, evaluation, and human training commensurate with mission risk and operational consequence, including training to promote calibrated reliance on artificial intelligence-enabled systems; and

(9) processes and timelines for periodic review and reevaluation of approved systems and operational use cases.

(c) COMPLIANCE WITH LAW.—The Secretary shall ensure that the policies and guidance required by subsection (a) are consistent with applicable provisions of Federal law, including section 1638 of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. 491 note), and applicable Department policies and regulations.

(d) CONTINUITY OF OPERATIONS.—This section does not require the Secretary to suspend or terminate any ongoing operations, activities, or programs pending completion of the updates required by subsection (a).

(e) INTERIM REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall provide a report to the congressional defense committees describing the progress of the Department toward comple-

tion of the updates required by subsection (a), including a preliminary assessment of the matters described in subsection (b).

(f) FINAL POLICY BRIEFING.—Not later than 30 days after the completion of the updates required by subsection (a), the Secretary shall provide a briefing to the congressional defense committees on—

(1) the updates completed under subsection (a);

(2) the rationale supporting the updates, including the assessment of the Secretary with respect to each matter described in subsection (b); and

(3) any recommendations for authorities, resources, or statutory changes.

(g) SEMIANNUAL REPORTS.—Not less frequently than semiannually through December 31, 2032, the Secretary of Defense shall provide a report to the congressional defense committees regarding the implementation of the updates required by subsection (a), including—

(1) systems and use cases reviewed under the updates required by subsection (a), including whether such systems and use cases were approved, restricted, suspended, or subject to additional review; and

(2) any significant acquisition, resourcing, sustainment, or programmatic impacts resulting

from implementation of the updates required by subsection (a).

(h) PUBLIC AVAILABILITY OF UNCLASSIFIED SUMMARY.—For each report under subsection (g), the Secretary of Defense shall make available to the public an unclassified summary of the report, to the maximum extent practicable.

SEC. 1525. EXPANSION OF AI-ENABLED MAINTENANCE INTELLIGENCE PLATFORMS ACROSS AIR EDUCATION AND TRAINING COMMAND.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, and subject to the availability of appropriations, the Secretary of the Air Force shall establish a pilot program to operationalize and expand artificial intelligence (AI)-enabled maintenance data cleansing and correction capabilities across the Air Force. This program will prioritize the improvement of aircraft availability and pilot production capacity by modernizing maintenance data quality, increasing the effectiveness of sustainment operations, and maximizing readiness of existing training aircraft fleets through enhanced data fidelity and decision support.

(b) SCOPE.—The program under subsection (a) shall apply across the full portfolio of aircraft operating within Air Education and Training Command.

(c) OBJECTIVES.—The objectives of the program are to leverage AI-enabled software solutions to—

(1) cleanse and correct structured and unstructured maintenance and logistics data;

(2) establish validated, high-fidelity ground-truth maintenance datasets to improve the performance and reliability of existing Air Force readiness, logistics, and decision-support systems;

(3) reduce manual data correction burdens and improve interoperability with legacy maintenance information systems;

(4) enhance sustainment efficiency, sortie generation, and scheduling accuracy through improved maintenance visibility;

(5) increase situational awareness for tactical-level maintainers and operational leadership;

(6) establish standardized, reusable maintenance data cleansing, correction, and integration frameworks designed to interoperate with and enhance existing Air Force maintenance, logistics, and readiness systems; and

(7) enable scalable, repeatable integration of AI-enabled maintenance capabilities across the Air Force.

(d) PARTNERSHIPS.—In carrying out the program under subsection (a), the Secretary of the Air Force may partner with a federally funded research and development center, a University Affiliated Research Center, a center of excellence, a military service laboratory, or one or more private-sector entities with experience in deploying AI-powered maintenance intelligence capabilities that support data cleansing, parts forecasting, and sustainment modernization within the Air Force, as well as any other partners the Secretary deems necessary.

(e) BRIEFING.—At least 30 days before the date on which the authority expires under subsection (f), the Secretary of the Air Force shall provide to the congressional defense committees a briefing that includes—

(1) a description of the data cleansing and correction challenges addressed through the program;

(2) an assessment of any improvements in data accuracy, aircraft availability, and maintenance efficiency resulting from the program; and

(3) an evaluation of the feasibility and advisability of expanding these capabilities to additional Air Force units operating the same aircraft types.

(f) EXPIRATION.—The authority to carry out the program under subsection (a) shall expire on the date that is one year after the date of the enactment of this Act.

SEC. 1526. REQUIREMENT FOR MEMORANDA OF AGREEMENT REGARDING VULNERABILITY DISCLOSURE AND PROHIBITION ON PROCUREMENT FROM IT PROVIDERS WHO SHARE CYBER VULNERABILITIES WITH COUNTRIES OF CONCERN.

(a) REQUIREMENT.—On and after the date that is 270 days after the date of the enactment of this Act, the Secretary of Defense shall not enter into or renew a contract for the procurement of information technology with any entity that makes such technology commercially available to customers in a country of concern or has operations, subsidiaries, or personnel located in a country of concern unless such entity has entered into a memorandum of agreement with the Department of Defense in accordance with subsection (b).

(b) MEMORANDUM OF AGREEMENT.—The Secretary of Defense shall require an entity covered under subsection (a) to agree to a memorandum of agreement under which the entity shall—

(1) disclose to the Department of Defense, prior to any advance disclosure to any other entity, all security vulnerabilities affecting the information technology procured under the contract; and

(2) not provide advance disclosure of such vulnerabilities to any covered company.

(c) DEFINITIONS.—In this section:

(1) The term ''advance disclosure'' means any action that preemptively and privately discloses information pertaining to security vulnerabilities to a select number of entities before publicly making such information available to the general public, including through a trusted partners program.

(2) The term ''control'' means the power, direct or indirect, whether or not exercised, to determine, direct, dictate, or decide important matters affecting an entity, including through—

(A) the ownership of at least 20 percent of the total outstanding voting interest in an entity;

(B) board representation;

(C) the ability to appoint or discharge any board members, officers, directors, employees, or contractors;

(D) proxy voting, a special share, contractual arrangements, legal obligations, formal or informal arrangements to act in concert; or

(E) other means.

(3) The term ''country of concern'' has the meaning given the term ''covered nation'' in section 4872(f) of title 10, United States Code.

(4) The term ''covered company'' means—

(A) any entity owned or operated in whole or in part by a country of concern, or subject to the control of such country of concern, and any subsidiary or parent of such entity; or

(B) any entity organized under the laws of a country of concern, or having its principal place of business in a country of concern, and any subsidiary of any such entity.

(5) The term ''information technology'' has the meaning given the term in section 11101 of title 40, United States Code.

(6) The term ''owned or operated in whole or in part'' means that a country of concern—

(A) for an entity that is a publicly traded company, has the ability to control the company, has access to any material nonpublic technical information in the possession of the company, or has any other rights or involvement in directing, dictating, controlling, or participating in the decision-making of the company beyond those available to a retail investor holding an equivalent share of ownership; and

(B) for an entity that is a privately held company, has any share of ownership of such company.

(7) The term ''security vulnerability'' has the meaning given the term in section 2200 of the Homeland Security Act of 2002 (6 U.S.C. 650).

(8) The term ''trusted partners program'' means any initiative or program run by an information technology provider to provide advanced warnings of security vulnerabilities to defensive security providers for the purpose of helping such providers proactively develop defenses against such vulnerabilities.

(d) WAIVER.—The Secretary of Defense may waive the requirement in subsection (a) on a case-by-case basis if the Secretary certifies, in writing, to the congressional defense committees that the procurement action is required in the national interest of the United States.

SEC. 1527. ARMY QUANTUM READINESS AND ADVANCED COMPUTING INITIATIVE.

(a) ESTABLISHMENT.—The Secretary of the Army shall establish an Army Quantum Readiness and Advanced Computing Initiative to prepare the Department of the Army for the integration of quantum computing, quantum-enabled technologies, and advanced computing

capabilities into future operational, intelligence, logistics, and command-and-control missions.

(b) OBJECTIVES.—The Initiative shall—

(1) identify Army operational applications of quantum computing, quantum sensing, quantum networking, and quantum-enabled artificial intelligence;

(2) assess infrastructure requirements necessary to support future quantum and advanced computing capabilities, including power, cooling, networking, cybersecurity, and secure facilities;

(3) evaluate acquisition pathways capable of accelerating the transition of quantum technologies from research and development into operational use;

(4) identify opportunities to leverage partnerships among Army laboratories, academic institutions, federally funded research and development centers, and private industry;

(5) develop a workforce strategy to support future Army quantum and advanced computing requirements; and

(6) establish pilot projects to evaluate advanced computing infrastructure supporting future quantum-enabled capabilities.

(c) QUANTUM READINESS DEMONSTRATION ACTIVITIES.—The Secretary may establish demonstration activities to evaluate—

(1) advanced computing architectures supporting quantum technologies;

(2) quantum-enabled artificial intelligence applications;

(3) post-quantum cybersecurity capabilities;

(4) resilient and secure networking architectures; and

(5) infrastructure necessary to support future Army quantum capabilities.

(d) REPORT.—Not later than 270 days after the date of the enactment of this Act, the Secretary of the Army shall submit to the congressional defense committees a report describing—

(1) Army quantum readiness requirements;

(2) recommended infrastructure investments;

(3) workforce and educational requirements;

(4) recommended pilot and demonstration activities; and

(5) legislative or acquisition authorities necessary to accelerate Army quantum readiness.

Subtitle C—Reports and Other Matters

SEC. 1541. ROADMAP FOR MODERNIZATION OF TOP SECRET AND SPECIAL ACCESS PROGRAM NETWORK ARCHITECTURES.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this section, the Secretary of Defense shall develop and submit to the congressional defense committees, and begin implementation of, a roadmap for the modernization of Department of Defense networks that process, store, or transmit information that is classified at the level of top secret or is designated as being within a special access program.

(b) ELEMENTS.—The roadmap required under subsection (a) shall include the following elements:

(1) An assessment of the current architecture, capacity, security posture, and technical limitations of such networks, including identification of major capability gaps, cybersecurity risks, infrastructure limitations, and technical debt.

(2) Target or reference architectures for modernized environments for such networks, including enterprise-level and component-level networks, as appropriate, with a preference for modern cloud-based platforms.

(3) Milestones and timelines for transition from current environments to the target or reference architectures.

(4) Plans to improve resilience, survivability, and operations of such networks in contested, degraded, or disconnected environments.

(5) Plans to improve interoperability and data sharing across such networks and relevant mission partner environments, as appropriate, with priority on real time cross domain, multi-level data sharing both up and down classifications.

(6) An assessment of high-performance computing and distributed computing requirements, whether locally or in cloud environments, necessary to support real-time sensor data fusion, advanced analytics, and artificial intelligence capabilities.

(7) An assessment of the extent to which such networks support the operational requirements of combatant commands, including the ability to enable integration with joint and mission partner environments.

(8) Identification of governance, roles, and responsibilities for modernization of such networks across the Department.

(9) Estimated resource requirements necessary to implement the roadmap.

(10) Identify and establish baseline domain-specific requirements and capabilities across elements of the Department, platform-as-a-service providers, and cloud service providers.

(c) ANNUAL REPORT.—Not later than one year after the date of the enactment of this section, and annually there after for each of the next five years, the Secretary shall submit to the congressional defense committees a report on progress in implementing the roadmap required under subsection (a).

(d) REPORT ELEMENTS.—Each report submitted under subsection (c) shall include the following:

(1) Progress made toward roadmap milestones and modernization goals.

(2) Updates to the roadmap, as appropriate.

(3) Major risks, delays, or challenges affecting implementation.

(4) Budgetary resources requested and obligated for modernization of such networks.

(5) Any recommendations that the Secretary considers appropriate for legislative or funding actions to implement the roadmap.

(e) FORM OF ROADMAP AND REPORTS.—The roadmap required by subsection (a) and the reports required by subsection (c) shall be submitted in classified form, but may include an unclassified summary.

SEC. 1542. SEMIANNUAL REPORTS ON CYBER OPERATIONAL READINESS ASSESSMENT PROGRAM.

(a) SEMIANNUAL REPORTS REQUIRED.—Not later than 180 days after the date of the enactment of this Act, and not less frequently than once every 180 days thereafter, the Secretary of Defense shall, acting through the Chief Information Officer of the Department of Defense and the Commander of the Department of Defense Cyber Defense Command (DCDC), submit to the congressional defense committees a semiannual report on the implementation of the Cyber Operational Readiness Assessment program of the Department of Defense Cyber Defense Command and the findings from such program.

(b) CONTENTS.—Each report required under subsection (a) shall include, for the period covered by the report, the following:

(1) An overview of the implementation status of the Cyber Operational Readiness Assessment program, including scope, methodology, and assessment cadence across the military departments and the de-

fense agencies and Department of Defense field activities.

(2) Aggregate and component-level findings on cyber operational readiness, including systemic risks, recurring deficiencies, and trends affecting mission assurance.

(3) An assessment of operational resilience, including the ability of the Department of Defense to maintain essential functions, contain adversary activity, and recover from cyber incidents during contested operations.

(4) A description of actions taken or planned to address material risks identified through the program, including timelines, responsible organizations, and any resource constraints.

(5) An initial plan, and subsequent progress reports, for incorporating operational technology (OT) environments into assessments carried out under the program to ensure a comprehensive operational readiness evaluation of mission-critical systems, weapon platforms, industrial control systems, and supporting infrastructure.

(6) An assessment of how assessments under the program will incorporate and operationalize Critical Infrastructure Discovery and Evaluation

(CIDE) activities conducted by the Department of Defense Cyber Defense Command on operational technology networks, including alignment of scope, methodology, data collection, reporting, and resourcing to ensure unity of effort and avoid duplication.

(7) A description of any policy, authority, or resourcing gaps that inhibit full execution of the program as an operational readiness assessment.

(c) PURPOSE.—The purpose of subsection (a) is to ensure that cybersecurity is treated by the Department as an element of operational readiness across the Department and to support senior leader decisionmaking, risk acceptance, and resource prioritization related to the security and resilience of the Department of Defense Information Network (DoDIN).

(d) TERMINATION.—The requirements of this section shall terminate on the date that is three years after the date of the enactment of this Act.

SEC. 1543. COMPTROLLER GENERAL ASSESSMENT ON SHARING OF CYBER INTELLIGENCE WITH STATE, LOCAL, TRIBAL, TERRITORIAL, AND PRIVATE SECTOR PARTNERS.

(a) ASSESSMENT.—The Comptroller General of the United States shall conduct an assessment of sharing of

cyber-related intelligence by the Department of Defense with State, local, Tribal, territorial, and private sector partners.

(b) REPORT.—

(1) SUBMISSION.—Not later than 60 days after the date on which the Comptroller General completes the assessment under subsection (a), the Comptroller General shall submit to the Committee on Armed Services of the House of Representatives and the Committee on Armed Services of the Senate a report on the results of the assessment.

(2) ELEMENTS.—The report under paragraph (1) shall include the following:

(A) With respect to each element of the Department of Defense, a summary of the capabilities and practices of the element for sharing cyber-related intelligence with State, local, Tribal, territorial, and private sector partners.

(B) An assessment of the effects of such sharing, including the timeliness, level of detail, and the degree to which intelligence is provided in a format that allows for technical correlation and network defense actions versus general situational awareness.

(C) An assessment of the deconfliction and coordination processes between elements regarding such sharing.

(D) A description of the role and effectiveness of the Department of Defense in such deconfliction and coordination process.

(E) An assessment of how the security clearances of such partners affect such sharing.

(F) An assessment of the legal, policy, and infrastructure barriers that prevent cleared private sector partners from operationalizing classified threat intelligence, including—

(i) the lack of accredited, state-run facilities where partners can securely correlate classified government-provided indicators against their own proprietary network data; and

(ii) the lack of statutory liability protections (such as State-level tort claims extensions) for private sector entities acting on classified intelligence provided by the government.

(G) Recommendations for improvements for such sharing.

SEC. 1544. REPORT ON THREAT OF CYBER ATTACKS ON UNIVERSITY-AFFILIATED RESEARCH CENTERS.

The Secretary of Defense shall submit to Congress a report on the threat of cyber attacks, including cyber attacks carried out with the assistance of artificial intelligence, on university-affiliated research centers. The report shall include a plan for the Department of Defense to provide assistance to such centers against the threat of such attacks.

TITLE XVI—SPACE ACTIVITIES, STRATEGIC PROGRAMS, AND INTELLIGENCE MATTERS

Subtitle A—Space Activities

SEC. 1601. REORGANIZATION OF ACQUISITION RESPONSIBILITIES OF THE SPACE FORCE.

(a) ELIMINATION OF SPACE DEVELOPMENT AGENCY.—

(1) REPEAL.—Section 9087 of title 10, United States Code, is repealed.

(2) CONFORMING AMENDMENTS.—

(A) TITLE 10.—Title 10, United States Code, is amended as follows:

(i) In section 4092—

(I) in subsection (a)(8)—

(aa) in the heading, by striking ''SDA'' and inserting ''SPACE FORCE'';

(bb) by striking ''The Director of the Space Development Agency'' and inserting ''The portfolio acquisition executive of the Space Force designated under section 1732 of this title with respect to missile warning and tracking''; and

(cc) by striking ''the Agency.'' and inserting ''the Space Force.'';

(II) in subsection (b)(1)(H)—

(aa) by striking ''in the case of the Space Development Agency'' and inserting ''in addition to any positions appointed under subparagraph (A), in the case of the Space Force''; and

(bb) by striking ''the Agency'' both places it appears and inserting ''the Space Force''; and

(III) in subsection (c)(2), by striking ", the Space Development Agency" and inserting ", the Space Force".

(ii) In section 9016(b)(6)(B)—

(I) by striking clauses (iii), (iv), and (v) and inserting the following new clause:

"(iii) Oversee, direct, and synchronize acquisition projects for all space systems and programs of the Department of the Air Force.";

(II) by redesignating clause (vi) as clause (iv); and

(III) in clause (iv), as so redesignated, by striking "Effective as of" and all that follows through "serve" and inserting "Serve".

(B) NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2024.—Section 1608 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 10 U.S.C. 2271 note) is repealed.

(b) ELIMINATION OF SPACE RAPID CAPABILITIES OFFICE.—

(1) REPEAL.—Section 2273a of title 10, United States Code, is repealed.

(2) CONFORMING AMENDMENT.—Section 1609(c) of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92; 10 U.S.C. 2273 note) is amended by striking ‘‘, including the Space Rapid Capabilities Office’’.

SEC. 1602. REORGANIZATION OF OVERSIGHT OF THE DEPARTMENT OF DEFENSE POSITIONING, NAVIGATION, AND TIMING ENTERPRISE.

(a) REPEAL.—Section 2279b of title 10, United States Code, is repealed.

(b) DESIGNATION OF OFFICIAL.—

(1) REQUIREMENT.—Chapter 135 of title 10, United States Code, is amended by inserting after section 2279 the following new section:

‘‘§ 2279a. Oversight of the Department of Defense Positioning, Navigation, and Timing Enterprise

‘‘(a) DESIGNATION.—(1) The Secretary of Defense, in consultation with the Chairman of the Joint Chiefs of Staff, shall designate a single official of the Department of Defense (other than the Chief Information Officer of the Department) as the principal official of the Department with responsibility for the oversight of the Depart-

ment of Defense positioning, navigation, and timing enterprise.

''(2) The official designated under paragraph (1) shall report directly to the Deputy Secretary of Defense with respect to matters concerning the Department of Defense positioning, navigation, and timing enterprise (including alternative positioning, navigation, and timing efforts of the Department).

''(b) DUTIES.—The Secretary—

''(1) shall assign to the official designated under subsection (a)(1)—

''(A) any duty the Secretary determines appropriate from among the duties carried out by the former Council on Oversight of the Department of Defense Positioning, Navigation, and Timing Enterprise as of January 1, 2026; and

''(B) any other duty the Secretary determines appropriate; and

''(2) may delegate to other officials of the Department any such duty described in paragraph (1)(A) not assigned to the official designated under subsection (a).

''(c) ANNUAL CERTIFICATIONS; LIMITATION ON AVAILABILITY OF FUNDS.—(1) At the same time as the

President submits to Congress the annual budget request under section 1105 of title 31 for a fiscal year, the official designated under subsection (a)(1) shall submit to the congressional defense committees, with respect to each military department—

''(A) a certification that such budget request would fully fund the user equipment and ground control systems of the Department of Defense positioning, navigation, and timing enterprise; or

''(B) a notice that such budget request would not fully fund such user equipment and ground control systems.

''(2) Of the amounts authorized to be appropriated or otherwise made available for fiscal year 2028 or any fiscal year thereafter for the travel expenses of the Secretary of a military department, not more than 90 percent may be obligated or expended during a fiscal year covered by a budget request for which the official designated under subsection (a)(1) did not make a certification under paragraph (1)(A).''.

(2) TIMING.—The Secretary of Defense shall designate the official under section 2279a of title 10, United States Code, as added by paragraph (1), by not later than 60 days after the date of the enactment of this Act.

SEC. 1603. SPACE LAUNCH SUPPORT SERVICES AND ALTERNATIVE LAUNCH PROCUREMENT PROCESS.

(a) EXTENSION OF TRANSITION LIMITATIONS AND REPORTING REQUIREMENTS.—Section 2276a(e) of title 10, United States Code, is amended by striking ''fiscal years 2024, 2025, and 2026'' and inserting ''fiscal years 2024 through 2031''.

(b) NOTIFICATION OF USE OF ALTERNATIVE LAUNCH PROCUREMENT.—Section 1601(c) of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 10 U.S.C. 2276 note) is amended—

(1) by striking ''the Secretary of Defense'' both places it appears and inserting ''the portfolio acquisition executive of the Space Force'';

(2) by striking ''the Director of the National Reconnaissance Office'' and inserting ''the Director of the Office of Space Launch of the National Reconnaissance Office''; and

(3) by striking ''the Director of National Intelligence'' and inserting ''the Director of the Office of Space Launch''.

SEC. 1604. SPACEPORT OF THE FUTURE INITIATIVE.

(a) PROGRAM REQUIREMENTS.—Section 1608 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 1177) is amended by adding at the end the following new subsection:

''(c) PROGRAM REQUIREMENTS.—

''(1) SINGLE PROGRAM.—The Secretary of the Air Force shall carry out the Spaceport of the Future initiative as a single program of the Space Force overseen by the portfolio acquisition executive for space access pursuant to section 1732 of title 10, United States Code.

''(2) PRIORITIZED INVESTMENTS.—As a part of the defense budget materials (as defined in section 239 of title 10, United States Code) for each of fiscal years 2027 through 2031, the portfolio acquisition executive for space access shall submit to the congressional defense committees a list of prioritized investments required for infrastructure efforts under the Spaceport of the Future initiative.''.

(b) ANNUAL UPDATES.—Paragraph (3) of subsection (b) of such section is amended to read as follows:

''(3) ANNUAL UPDATES.—Not later than March 31 of each of 2027 through 2031, the Secretary shall submit to the congressional defense committees an update on the Spaceport of the Future initiative, including with respect to—

''(A) project status;

''(B) estimated completion dates;

''(C) total costs;

"(D) any updated assessments of funding or infrastructure needs; and

"(E) the status of any policy recommendations described in paragraph (2)(D).".

SEC. 1605. PROCUREMENT OF COMMERCIAL SPACE-BASED DATA AND TO SUPPORT WILDFIRE RESILIENCE.

(a) PROCUREMENT.—Subject to the availability of appropriations for such purpose, the Secretary of the Air Force, acting through the Commercial Space Office and in coordination with the FireGuard program of the National Guard and the Commander of the United States Northern Command, shall procure space-based commercial data and end products to support the efforts of the Department of Defense and the wildfire mission of the United States Northern Command by delivering timely, effective military support to the Federal Government and State, local, and Tribal governments to protect military readiness and installations, provide emergency military support to civil authorities, and conduct proactive wildland fire management.

(b) AUTHORIZED SHARING.—The Secretary may share space-based commercial data and end products procured under subsection (a) with State, local, and Tribal governments to assist with firefighting efforts.

SEC. 1606. CONTINUATION OF NEXT-GENERATION OVERHEAD PERSISTENT INFRARED POLAR PROGRAM OF THE DEPARTMENT OF THE AIR FORCE.

(a) REQUIREMENT TO CONTINUE, MAINTAIN, AND EXECUTE PROGRAM.—Subject to the availability of appropriations made in advance for such purpose, the Secretary of the Air Force shall continue, maintain, and execute the Next-Generation Overhead Persistent Infrared Polar program, including Next Generation OPIR, Block 0 Polar, through launch of space vehicles one and two.

(b) PROGRAM MANAGEMENT.—The Secretary shall manage Next Generation OPIR, Block 0 Polar as an active acquisition program and shall take all actions necessary to preserve program continuity, including maintaining program office responsibilities, executing planned development and integration activities, supporting contracting actions, preserving schedule, and conducting launch preparation activities necessary to support the launch of space vehicles one and two.

(c) LIMITATION ON USE OF FUNDS FOR CERTAIN PURPOSES.—None of the funds authorized to be appropriated or otherwise made available for fiscal year 2027 for the Department of Defense may be obligated or expended to—

(1) to terminate, close out, materially reduce, restructure, delay, or otherwise impede continuation of the Next-Generation Overhead Persistent Infrared Polar program, including Next Generation OPIR, Block 0 Polar, through the launch of space vehicles one and two; or

(2) for any activity not directly supporting Next Generation OPIR, Block 0 Polar, including closeout activities, termination activities, or activities solely supporting other missile warning and missile tracking architectures.

(d) PROGRAM EXECUTION PLAN.—Not later than 60 days after the date of the enactment of this section, the Secretary, in coordination with the Chief of Space Operations of the Space Force, shall submit to the congressional defense committees an execution plan for continuing Next Generation OPIR, Block 0 Polar through the launch of space vehicles one and two. Such plan shall include planned activities, schedule, major milestones, contracting actions, launch preparation activities, program office responsibilities, and obligation and expenditure plans for the funds authorized to be appropriated for such program.

SEC. 1607. STUDY ON INDO-PACIFIC CRITICAL COMMERCIAL SATELLITE GROUND STATIONS.

(a) STUDY.—The Secretary of the Air Force (acting through the Space Systems Command), in consultation with the Commander of the United States Indo-Pacific Command, shall conduct a comprehensive study on the security, physical, cyber, and geopolitical vulnerabilities of commercially owned and operated satellite ground-based nodes located within the Indo-Pacific region that are relevant to a potential crisis or conflict in the region.

(b) ELEMENTS.—The study under subsection (a) shall include the following:

(1) An assessment of key contractor owned and managed locations for both primary and backup capabilities in a crisis or conflict.

(2) An assessment of physical vulnerabilities to adversary attacks, including with respect to unmanned aerial systems and unconventional warfare sabotage.

(3) An analysis of potential cyber intrusions, remote information technology network breaches, signal jamming, and data spoofing targeting commercial uplink and downlink infrastructure.

(4) An evaluation of host-nation regulatory frameworks, legal authorities, and diplomatic pressures that could force a commercial operators to

cease support for the military operations of the United States during a crisis or conflict.

(5) An assessment of the ability of contractors to quickly adjust minimum security requirements during a crisis or conflict.

(6) Recommendations for operational redundancies, expanded governmental security support during conflict, and treaty safeguards for essential commercial operations.

(c) REPORT.—

(1) REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report containing the findings of the study and any recommendations for regulatory or congressional actions.

(2) FORM.—The report under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

SEC. 1608. SENSE OF CONGRESS ON DISTRIBUTED COMMERCIAL RADAR SATELLITE CONSTELLATIONS.

It is the sense of Congress that the Secretary of Defense should continue to support the development, integration, and operational use of distributed commercial radar

satellite constellations, including Maritime Moving Target Indicator and Airborne Moving Target Indicator capabilities, while fostering robust competition among small business commercial providers to ensure innovation, cost-effective capability delivery, industrial base diversity, and resilient support to national security space systems and the intelligence, surveillance, and reconnaissance requirements of the combatant commands.

SEC. 1609. REPORT ON OPTICAL COMMUNICATIONS AND NETWORKING STANDARDS FOR NATIONAL SECURITY SPACE ARCHITECTURES.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force, acting through the Chief of Space Operations and in coordination with the Assistant Secretary of the Air Force for Space Aquistion and Integration, the Commander of Space Systems Command, and the Director of the Space Warfighting Analysis Center, shall submit to the congressional defense committees a report on the governance, maintenance, validation, implementation, and future development of optical communications and networking standards for national security space architectures.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) A description of the governance structure for such standards, including the roles and responsibilities of relevant Department of Defense organizations and participating industry and allied stakeholders.

(2) A description of the process by which such standards are developed, reviewed, validated, approved, published, maintained, and incorporated into acquisition programs and requirements.

(3) An assessment of the extent to which current and planned standards support cross-vendor interoperability, backward compatibility where practicable, and participation by qualified commercial providers.

(4) A description of technical validation processes, testing activities, and mechanisms for incorporating operational lessons learned and industry feedback into future standards revisions.

(5) An assessment of how such standards are being incorporated into United States Space Force architecture planning, acquisition activities, and allied and partner engagements.

(6) An assessment of risks associated with transitioning between versions of such standards, in-

cluding impacts on competition, acquisition timelines, interoperability, and mission assurance.

(7) Identification of any legislative, policy, authority, or resource gaps that limit the Department's ability to sustain and evolve such standards.

(c) BRIEFING.—Not later than 30 days after submitting the report required under subsection (a), the Secretary of the Air Force shall provide a briefing to the congressional defense committees on the findings and recommendations contained in the report.

(d) FORM.—The report required under subsection (a) shall be submitted in unclassified form but may include a classified annex.

SEC. 1609A. GLOBAL POSITIONING SYSTEM MODERNIZATION.

(a) FINDINGS.—Congress finds the following:

(1) The Global Positioning System (in this section referred to as ''GPS'') is a critical national asset that underpins military operations, civilian infrastructure, and economic activities. While newer satellites are part of the constellation, the GPS constellation still depends on many aging satellites, 15 of which are operating well beyond their design life with limited signal technologies in the older satellites.

(2) Modernizing the GPS Enterprise is an essential national priority to ensure the continued reliability and security of the system in the face of growing threats and aging and delayed GPS infrastructure.

(3) Adversaries are interfering with, jamming, or spoofing GPS signals, posing risks to national defense and public safety. Commercial satellite positioning, navigation, and timing systems can augment and complement GPS operations globally. Terrestrial systems, which depend on ground-based transmitters, can provide signals to receivers within a localized area during disruption despite being more geographically limited.

(4) Rapidly transitioning to more resilient systems like GPS IIIF, to include monitoring and declaring the L5 signal as ''healthy'' can significantly reduce these vulnerabilities and enhance operational effectiveness. A transition plan accounting for both the satellites that transmit positioning, navigation, and timing signals and the ground control and monitoring systems that command and control the constellation and update timing and other data is necessary to avoid capability gaps and ensure continuity

of essential services as legacy elements are phased out and new capabilities are fielded.

(5) Federal agency execution delays in updating GPS constellation and infrastructure has slowed progress toward modernization, and successfully executing Space Policy Directive–7 is necessary to align efforts across the government and accelerate the deployment of next-generation GPS capabilities.

(b) SENSE OF CONGRESS.—It is the sense of Congress that modernizing GPS is a national priority to safeguard military readiness, protect critical infrastructure, and maintain economic competitiveness and the as-yet unimplemented system required by section 312 of title 49, United States Code, remains no less crucial to the protection of United States security and prosperity than when it was mandated in 2018.

(c) MODERNIZED GPS ENTERPRISE.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the President shall accelerate the transition to a modernized GPS Enterprise to enhance the resilience and security of GPS.

(2) COMPONENTS.—The acceleration of the transition to a modernized GPS Enterprise required by paragraph (1) shall include—

(A) a clear timeline for the development and deployment of a full constellation of 24 GPS IIIF satellites and associated ground control segment upgrades;

(B) a clear timeline for the upgrade of the control segment to meet the needs of the modernized constellation and to mitigate threats, along with a plan to maintain service while the upgrades progress;

(C) prioritization of the L5 signal for civilian and military applications to augment legacy frequencies and provide additional resilience;

(D) coordination with the Secretary of Defense, the Secretary of Transportation, and other heads of relevant departments and agencies of the Federal Government to expedite system upgrades;

(E) strategies developed in coordination with the Secretary of Transportation to further incentivize critical infrastructure assets to mitigate risks associated with GPS signal interference, jamming, and spoofing, including considering the integration of commercial satellite positioning, navigation, and timing systems; and

(F) strategies to accelerate the deployment of military GPS user equipment, Increments 1 and 2, and the integration of new receivers into weapons systems.

(d) REPORT.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for a period not to exceed three years, the Secretary of Defense, in coordination with the Secretary of Transportation for commercial uses and with respect to any system required under section 312 of title 49, United States Code, and the protection of critical infrastructure, shall submit to the congressional defense committees, the Committee on Commerce, Science, and Transportation of the Senate, the Committee on Science, Space, and Technology of the House of Representatives, and the Committee on Transportation and Infrastructure of the House of Representatives a report that includes—

(A) a detailed schedule and assessment of progress made toward transitioning to the modernized GPS and positioning, navigation, and timing enterprise;

(B) an evaluation of interagency coordination efforts, including challenges in implementing system upgrades necessary for such modernization, except spectrum referenced in section 312(d) of title 49, United States Code, associated with LORAN infrastructure necessary for use in any system required in such section 312;

(C) a description of strategies to counter GPS military and civil signal interference, jamming, and spoofing, from state and nonstate actors along with their effectiveness;

(D) funding allocations, expenditures, and any additional resource needs for the Department of Defense and Department of Transportation to meet modernization objectives; and

(E) recommendations for legislative or administrative actions to further encourage critical infrastructure upgrades, modern commercial satellite positioning, navigation, and timing systems, and other efforts to enhance GPS security, reliability, and resilience.

(2) FORM.—The report required under paragraph (1) shall be submitted in an unclassified form, but may contain a classified annex.

(e) APPLICABILITY.—Nothing in this section with respect to the coordination of spectrum allocation applies to any spectrum referenced in section 312(d) of title 49, United States Code, associated with LORAN infrastructure necessary for use in any system required in section 312.

Subtitle B—Defense Intelligence and Intelligence-Related Activities

SEC. 1611. EXPENDITURE OF FUNDS ACROSS FISCAL YEARS FOR DEPARTMENT OF DEFENSE INTELLIGENCE AND COUNTERINTELLIGENCE ACTIVITIES.

Section 429a of title 10, United States Code, is amended—

(1) in subsection (a), by striking ''subsections (b) and (c)'' and inserting ''subsections (b) and (d)'';

(2) by redesignating subsections (c) through (g) as subsections (d) though (h), respectively;

(3) by inserting after subsection (b) the following new subsection:

''(c) AVAILABILITY OF FUNDS FOR PROGRAMS ACROSS FISCAL YEARS.—(1) With respect to fiscal year 2027 and any subsequent fiscal year, not more than 10 percent of the amounts described in paragraph (2) may be used for programs under subsection (a) that begin in

such fiscal year and end not later than the end of the second fiscal year thereafter.

''(2) The amounts described in this paragraph are amounts—

''(A) made available in fiscal year 2027 or any subsequent fiscal year to carry out the authority in subsection (a); and

''(B) that the Secretary may expend without making a notification pursuant to the limitation in subsection (b).''; and

(4) in subsection (e), as so redesignated—

(A) by striking ''Not later'' and inserting ''(1) Not later'';

(B) by striking ''section (c)'' and inserting ''subsection (d)''; and

(C) by adding at the end the following new paragraph:

''(2) The Secretary shall include in each report under paragraph (1) a separate portion detailing how the Secretary carried out subsection (c) during the fiscal year covered by the report with respect to the availability of funds for programs in more than one fiscal year, including—

''(A) an explanation for carrying out such subsection for such programs and the purpose of such programs;

''(B) the balance of such funds available for such programs following the first fiscal year in which funds were expended, by activity and by fiscal year; and

''(C) the program elements of such programs.''.

SEC. 1612. PERMANENT AUTHORITY FOR MILITARY INTELLIGENCE COLLECTION AND ANALYSIS PARTNERSHIPS.

(a) PERMANENT AUTHORITY.—Section 1621 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 10 U.S.C. 421 note prec.) is amended—

(1) in subsection (b), by striking ''for four years'';

(2) by striking subsection (c); and

(3) by redesignating subsection (d) as subsection (c).

(b) TRANSFER.—Section 1621 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 10 U.S.C. 421 note prec.) is—

(1) transferred to chapter 21 of title 10, United States Code;

(2) inserted after section 421; and

(3) redesignated as section 421a.

(c) CONFORMING AMENDMENTS.—Section 421a of title 10, United States Code, as added by subsection (b), is amended—

(1) in the enumerator, by striking ''SEC.'' and inserting ''§'';

(2) in the section heading—

(A) by striking the period at the end; and

(B) by conforming the typeface and typestyle, including capitalization, to the typeface and typestyle as used in the section heading of section 421 of such title; and

(3) in subsection (a)—

(A) by striking each heading that is not a subsection heading; and

(B) by conforming the margins to the margins used in section 426(a) of such title, including with respect to the use of inline paragraphs and subparagraphs.

SEC. 1613. REPEAL OF CERTAIN REPORTING AND BRIEFING REQUIREMENTS.

(a) STRATEGY AND PLAN TO IMPLEMENT CERTAIN DEFENSE INTELLIGENCE REFORMS.—Section 1622 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 10 U.S.C. 421 note prec.) is repealed.

(b) BRIEFING ON DEPARTMENT OF DEFENSE PLAN TO DETER AND COUNTER ADVERSARIES IN THE INFORMATION ENVIRONMENT.—Section 1560 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2927) is repealed.

SEC. 1614. MODIFICATION OF AUTHORITY OF ARMY COUNTERINTELLIGENCE AGENTS TO EXECUTE WARRANTS AND MAKE ARRESTS.

Section 7377(b)(2) of title 10, United States Code, is amended by striking ''during the four-year period beginning on the date of the enactment of the National Defense Authorization Act for Fiscal Year 2025,''.

SEC. 1615. PERIODIC STRATEGY AND ASSESSMENT OF INTELLIGENCE, SURVEILLANCE, AND RECONNAISSANCE CAPABILITIES TO MEET INTELLIGENCE COLLECTION PRIORITIES.

Chapter 21 of title 10, United States Code, is amended by inserting after section 426 the following new section:

''§ 426a. Periodic strategy and assessment of intelligence, surveillance, and reconnaissance capabilities to meet intelligence collection priorities

''(a) BIENNIAL REPORTS.—Not later than December 31, 2027, and every two years thereafter until December 31, 2037, the Under Secretary of Defense for Intelligence

and Security shall submit to the congressional defense committees and the congressional intelligence committees a report containing—

''(1) an assessment of the intelligence, surveillance, and reconnaissance capabilities of the Department of Defense as of the date of the report; and

''(2) a strategy to improve such capabilities to support the intelligence requirements of the Department.

''(b) MATTERS INCLUDED.—The Under Secretary of Defense for Intelligence and Security shall ensure that each report under subsection (a) includes the following:

''(1) With respect to the assessment under paragraph (1) of such subsection—

''(A) a review of all spaceborne, airborne, surface, and subsurface intelligence, surveillance, and reconnaissance activities (manned and unmanned);

''(B) an assessment of the capacity and capability to meet intelligence collection requirements, including with respect to the requirements of the commanders of the geographic combatant commands;

''(C) an assessment of the risk and security threats caused by inadequate capacity or

capability to meet intelligence collection requirements; and

''(D) a plan to mitigate such risk.

''(2) With respect to the strategy under paragraph (2) of such subsection—

''(A) an assessment of the projected intelligence, surveillance, and reconnaissance capabilities and whether such capabilities will meet future intelligence collection requirements;

''(B) recommendations to improve collection postures in the near-, mid-, and long-term to meet future intelligence collection requirements;

''(C) an assessment of the risk associated with an inability to meet future intelligence collection requirements; and

''(D) a plan to mitigate such risk.

''(3) Any other matters the Under Secretary determines necessary.

''(c) COORDINATION AND CONSULTATION.—The Under Secretary of Defense for Intelligence and Security shall develop each report under subsection (a)—

''(1) in coordination with the heads of the components of the Department of Defense that are elements of the intelligence community, the com-

manders of the geographic combatant commands, and the Commander of the United States Special Operations Command; and

''(2) in consultation with the service acquisition executives of the military departments.

''(d) FORM.—Each report under subsection (a) shall be submitted in unclassified form but may include a classified annex.

''(e) DEFINITIONS.—In this section, the terms 'congressional intelligence committees' and 'intelligence community' have the meanings given those terms in section 3 of the National Security Act of 1947 (50 U.S.C. 3003).''.

SEC. 1616. INTEGRATION OF OPEN-SOURCE INTELLIGENCE TRAINING AND TRADECRAFT INTO ALL-SOURCE INTELLIGENCE ANALYSIS CURRICULA.

(a) IN GENERAL.—Subchapter I of chapter 21 of title 10, United States Code, is amended by adding at the end the following new section:

''§ 430f. Integration of open-source intelligence training and tradecraft into all-source intelligence analysis curricula

''(a) REQUIREMENT.—The Secretary of each military department shall ensure that training within such military

department for all-source intelligence analysts includes instruction in open-source intelligence tradecraft.

''(b) GUIDANCE AND STANDARDS.—The Under Secretary of Defense for Intelligence and Security shall—

''(1) issue guidance to standardize open-source intelligence training requirements for the military departments; and

''(2) establish minimum open-source intelligence tradecraft standards for use by the military departments.

''(c) MATTERS COVERED.—Training required under subsection (a) shall include instruction in open-source intelligence tradecraft, including—

''(1) methods for the discovery, collection, and analysis of publicly available information, including commercially available information;

''(2) use of open-source intelligence tools, platforms, and data sources;

''(3) evaluation of source reliability, data quality, and analytic validity;

''(4) integration of open-source intelligence with other intelligence disciplines;

''(5) legal, policy, and privacy considerations associated with open-source intelligence activities; and

''(6) use of emerging technologies, including artificial intelligence, to support open-source intelligence analysis.

''(d) APPLICABILITY.—The requirements under subsection (a) shall apply to initial-entry training programs for military and civilian all-source intelligence analysts across the military departments.

''(e) COORDINATION.—In issuing guidance and standards under subsection (b), the Under Secretary shall consult with the Director of National Intelligence to ensure consistency with standards for open-source intelligence in the intelligence community.''.

(b) IMPLEMENTATION.—The Secretary of each military department shall implement the requirements of section 430f of title 10, United States Code, as added by subsection (a), not later than one year after the date of the enactment of this Act.

SEC. 1617. OBJECT-BASED GENERATIVE ARTIFICIAL INTELLIGENCE FOR OPEN-SOURCE INTELLIGENCE.

(a) ASSESSMENT.—The Under Secretary of Defense for Intelligence and Security shall assess the capabilities of the Defense Intelligence Enterprise that support the application of artificial intelligence, including generative artificial intelligence, to open-source intelligence. Such assessment shall—

(1) identify efforts to develop, acquire, or use capabilities that support object-based or entity-centric analysis, including the use of knowledge graphs, retrieval-augmented generation, or similar techniques;

(2) describe the maturity, scope, and users of such capabilities;

(3) assess the extent of duplication, fragmentation, or overlap among such efforts;

(4) identify gaps, limitations, and barriers to scaling such capabilities, including technical, policy, and data access challenges;

(5) evaluate the extent to which commercial technologies are being used for such capabilities; and

(6) identify opportunities to consolidate, scale, or designate a capability as a shared or enterprise solution.

(b) PILOT PROGRAM.—

(1) ESTABLISHMENT.—The Under Secretary of Defense for Intelligence and Security shall carry out a pilot program to develop, acquire, or use commercial and other technologies to develop and support an object-based generative artificial intelligence analytic capability for open-source intelligence activities throughout the Defense Intelligence Enterprise. The

Under Secretary shall design such pilot program to improve the discovery, correlation, and analysis of high-interest objects and the associated relationships of such objects, including weapon systems and related entities.

(2) CAPABILITY DESCRIBED.—The object-based generative artificial intelligence analytic capability described in paragraph (1) shall—

(A) make use of object-based data models, knowledge graphs, and retrieval-augmented generation techniques;

(B) enable discovery, contextualization, and analysis of high-interest objects, including weapon systems and associated entities;

(C) integrate publicly available information and commercially available information;

(D) produce explainable, evidence-based analytic outputs; and

(E) align with data, analytic, and security standards of the Department of Defense and the intelligence community.

(3) PILOT PROGRAM LEAD.—

(A) DESIGNATION.—The Under Secretary of Defense for Intelligence and Security shall designate the head of a component of the De-

partment of Defense to serve as the lead for the pilot program required by paragraph (1). In making that designation, the Under Secretary shall take into consideration analytic capabilities, technical expertise, and the ability to scale throughout the Defense Intelligence Enterprise.

(B) DUTIES.—The head of the component of the Department of Defense designated under subparagraph (A) shall—

(i) implement and operate the capability described in paragraph (1); and

(ii) support Defense Intelligence Enterprise users.

(c) TRANSITION AND INTEGRATION.—The Under Secretary of Defense for Intelligence and Security, in consultation with the Director of National Intelligence, shall evaluate the results of the pilot program required by subsection (b) to determine if—

(1) the capability developed by such pilot program should become an enduring program of the Defense Intelligence Enterprise; and

(2) the Under Secretary should recommend to the Director of National Intelligence that such capability be designated as a service of common concern for the intelligence community.

(d) BRIEFING.—Not later than 120 days after the date of the enactment of this Act, the Under Secretary of Defense for Intelligence and Security shall provide to the congressional intelligence committees and the Committees on Armed Services of the House of Representatives and the Senate a briefing on—

(1) the findings of the assessment required by subsection (a); and

(2) the plan for implementation fo the pilot program required by subsection (b).

(e) DEFENSE INTELLIGENCE ENTERPRISE DEFINED.—In this section, the term ''Defense Intelligence Enterprise'' has the meaning given that term in section 426(b)(4) of title 10, United States Code.

SEC. 1618. REPORT ON PROTECTION FROM DISCLOSURE OF MEMBERS OF THE ARMED FORCES UNDER COVER.

Not later than November 1, 2027, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the efforts of the Department of Defense to update military personnel systems to protect from unauthorized disclosure—

(1) intelligence operations of the Department of Defense;

(2) the identities of undercover personnel conducting intelligence or intelligence-related activities;

(3) intelligence sources and methods; and

(4) cover mechanisms in support of intelligence or intelligence-related activities.

SEC. 1619. ASSESSMENT OF FOREIGN ADVERSARY-CONTROLLED DIGITAL PLATFORMS.

(a) IN GENERAL.—The Secretary of Defense shall conduct an assessment of risks posed by foreign adversary-controlled digital platforms to operational security, force protection, military personnel, and military installations.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report on the assessment required under subsection (a), including—

(1) risks associated with the collection of data regarding members of the Armed Forces;

(2) risks posed to operational security and force protection;

(3) threats arising from foreign influence, information operations, and propaganda activities conducted through such platforms; and

(4) recommendations to mitigate identified risks.

SEC. 1620. OFFICE FOR BOMBING PREVENTION.

(a) IN GENERAL.—Subtitle A of title II of the Homeland Security Act of 2002 (6 U.S.C. 121 et seq.) is amended by adding at the end the following new section:

"SEC. 211. OFFICE FOR BOMBING PREVENTION.

''(a) ESTABLISHMENT.—There is established within the Office of Intelligence and Analysis of the Department an Office for Bombing Prevention (in this section referred to as the 'Office'), which shall be headed by an individual in the Senior Executive Service with subject matter expertise in deterring, detecting, preventing, protecting against, mitigating, and responding to terrorist explosive threats and attacks.

''(b) PRINCIPAL RESPONSIBILITIES.—The head of the Office shall—

''(1) act as the primary coordinator for the Department of Homeland Security with all elements of the Department of Defense that have responsibilities for the disposal of explosive ordnance;

''(2) ensure the effectiveness of intelligence and other information sharing between such elements of the Department of Defense and the Department of Homeland Security, including the Federal, State, local, and tribal partners of the Department of Homeland Security; and

''(3) advise the Secretary on matters related to terrorist explosive threats and attacks in the United States.

''(c) FUNCTIONS.—The Office shall have the primary responsibility within the Department of Homeland Security for enhancing the ability of, and coordinating the efforts of, the United States to deter, detect, prevent, protect against, mitigate, and respond to terrorist explosive threats and attacks in the United States, including by the following:

''(1) Coordinating the efforts of the Department to counter terrorist explosive threats and attacks in the United States, including by—

''(A) developing, in consultation with the Under Secretary for Strategy, Policy, and Plans, the strategy of the Department against terrorist explosive threats and attacks, including efforts to support the security and preparedness of critical infrastructure and the public sector and private sector;

''(B) leading the prioritization of the efforts of the Department against terrorist explosive threats and attacks, including preparedness and operational requirements;

''(C) ensuring, in consultation with the Under Secretary for Science and Technology and the Administrator of the Federal Emergency Management Agency, the identification, evaluation, and availability of effective technology applications through field pilot testing and acquisition of such technology applications by the public sector to deter, detect, prevent, protect against, mitigate, and respond to terrorist explosive threats and attacks in the United States;

''(D) providing advice and recommendations to the Administrator of the Federal Emergency Management Agency regarding the effective use of grants authorized under section 2002; and

''(E) aligning, in consultation with the Assistant Secretary for the Countering Weapons of Mass Destruction Office, the efforts of the Department related to terrorist explosive threats and attacks in the United States and weapons of mass destruction.

''(2) Engaging other Federal departments and agencies, including Sector Risk Management Agencies and relevant elements of the Department of De-

fense, regarding terrorist explosive threats and attacks in the United States.

''(3) Facilitating information sharing and decision support of the public and private sectors involved in deterrence, detection, prevention, protection against, mitigation of, and response to terrorist explosive threats and attacks in the United States, including, when appropriate, delivering information to the public and private sectors using open-source materials or downgrading the classification level of information.

''(4) Providing training, guidance, planning, assessments, and technical assistance to the public and private sectors, as appropriate, to help counter the risk of terrorist explosive threats and attacks in the United States. The training and technical assistance provided under this paragraph shall include—

''(A) support efforts to prepare for and respond to bomb threats or other acts concerning explosive threats and attacks in the United States; and

''(B) support of public and private sector preparedness for security of critical infrastructure, facilities, and special events, as appropriate.

''(5) Promoting security awareness, through educational outreach or secure information sharing, where appropriate, among the public sector, the private sector, and the general public regarding the risks posed by the misuse of explosive precursor chemicals and other bomb-making materials.

''(6) Conducting analysis and planning for the capabilities and requirements necessary for the public and private sectors, as appropriate, to deter, detect, prevent, protect against, mitigate, and respond to terrorist explosive threats and attacks in the United States, including by—

''(A) maintaining a database on capabilities and requirements, including capabilities and requirements of public safety bomb squads, explosive detection canine teams, special tactics teams, and public safety dive teams; and

''(B) applying the analysis derived from the database described in subparagraph (A) with respect to—

''(i) evaluating progress toward closing identified gaps relating to national strategic goals and standards related to deterring, detecting, preventing, protecting against, mitigating, and responding to ter-

rorist explosive threats and attacks in the United States; and

''(ii) informing decisions relating to homeland security policy, assistance, training, research, development efforts, testing and evaluation, and related requirements regarding deterring, detecting, preventing, protecting against, mitigating, and responding to terrorist explosive threats and attacks in the United States.

''(7) Facilitating secure information sharing of sensitive material and promoting security awareness, including by—

''(A) operating and maintaining a secure information sharing system that allows sharing among and between the public and private sectors of critical information relating to explosive attack tactics, techniques, and procedures;

''(B) working with international partners, in consultation with the Office of International Affairs of the Department, to develop and share effective practices to deter, detect, prevent, protect against, mitigate, and respond to terrorist explosive threats and attacks in the United States;

"(C) executing national public awareness and vigilance campaigns relating to—

"(i) terrorist explosive threats and attacks in the United States;

"(ii) preventing explosive attacks; and

"(iii) activities and measures underway to safeguard the United States; and

"(D) working with relevant stakeholder organizations.

"(8) Providing any other assistance the Secretary determines necessary.".

(b) CLERICAL AMENDMENT.—The table of contents at the beginning of such Act is amended by inserting after the item relating to section 210G the following new item:

"Sec. 211. Office for Bombing Prevention.".

(c) DEPARTMENT OF DEFENSE SYNCHRONIZATION.—The Secretary of Defense shall ensure that—

(1) planning and operations of the Department of Defense are updated to reflect the changes made by this section in a timely manner; and

(2) access to appropriate defense and military intelligence information sharing is maintained during the transition from any existing office with the Department of Homeland Security to the Office of Bombing Prevention as established by this section in

a way that would not impede a response in an emergency or on-going operations.

SEC. 1621. PROTECTION OF IDENTITIES OF CERTAIN MEMBERS OF THE ARMED FORCES WHO ARE SPECIAL OPERATORS OR PERFORM SENSITIVE ACTIVITIES.

(a) CRIMINAL PENALTY.—Section 601 of the National Security Act of 1947 (50 U.S.C. 3121) is amended as follows:

(1) In subsection (a)—

(A) by striking ''a covert agent'' and inserting ''a covert agent or protected defense individual'';

(B) by striking ''identifying such covert agent'' and inserting ''identifying such covert agent or such protected defense individual'';

(C) by striking ''identifies such covert agent'' and inserting ''identifies such covert agent or such protected defense individual''; and

(D) by inserting after ''United States,'' the following: ''or that the United States is taking affirmative measures to conceal such individual's service in a sensitive unit or participation in a Department of Defense sensitive activity,''.

(2) In subsection (b)—

(A) by striking ''a covert agent and'' and inserting ''a covert agent or protected defense individual and'';

(B) by striking ''identifying such covert agent'' and inserting ''identifying such covert agent or such protected defense individual'';

(C) by striking ''identifies such covert agent'' and inserting ''identifies such covert agent or such protected defense individual''; and

(D) by inserting after ''United States,'' the following: ''or that the United States is taking affirmative measures to conceal such protected defense individual's service in a sensitive unit or participation in a Department of Defense sensitive activity,''.

(3) In subsection (c)—

(A) by striking ''covert agents'' and inserting ''covert agents or protected defense individuals'';

(B) by striking ''as a covert agent'' and inserting ''as a covert agent or protected defense individual''; and

(C) by inserting after ''to the United States,'' the following: ''or that the United States is taking affirmative measures to conceal such individual's service in a sensitive unit or participation in a Department of Defense sensitive activity,''.

(b) DEFENSES AND EXCEPTIONS.—Section 602 of such Act (50 U.S.C. 3122) is amended—

(1) in subsection (a)—

(A) by striking ''It is a defense to a prosecution under section 601'' and inserting ''(1) With respect to a prosecution under section 601 relating to the identity of a covert agent, it is a defense''; and

(B) by adding at the end the following new paragraph:

''(2) With respect to a prosecution under section 601 relating to the identity of a protected defense individual, it is a defense before the commission of the offense with which the defendant is charged, the United States had publicly acknowledged or revealed that the individual, in the course of serving in the Armed Forces, served in a sensitive unit or participated in a Department of Defense sensitive activity.'';

(2) in subsection (b), by inserting ''or protected defense individuals'' after ''covert agents''; and

(3) in subsection (d), by inserting after ''to disclose information that solely identifies himself as a covert agent'' the following: ''or as an individual who, in the course of serving in the Armed Forces or being employed by the Department of Defense, served in a sensitive unit or participated in a Department of Defense sensitive activity''.

(c) DEFINITIONS.—Section 605 of such Act (50 U.S.C. 3126) is amended by adding at the end the following new paragraphs:

''(11) The term 'protected defense individual' means the following:

''(A) A member of the special operations forces of the Armed Forces serving in a sensitive unit.

''(B) A member of the Armed Forces or civilian personnel of the Department of Defense who is serving in a sensitive unit or who participates in a sensitive activity.

''(12) The term 'sensitive activity' has the meaning given the term 'Department of Defense sensitive activity' in section 130g of title 10, United States.

''(13) The term 'sensitive unit' has the meaning given that term in section 130b of title 10, United States Code.''.

(d) CLERICAL AMENDMENT.—Section 601 of the National Security Act of 1947 (50 U.S.C. 3121) is amended in the heading by adding at the end the following: '', AND CERTAIN OTHER INDIVIDUALS'' (and by conforming the table of contents at the beginning of such Act accordingly).

SEC. 1622. OPEN-SOURCE INTELLIGENCE INTEGRATION INTO DEPARTMENT OF DEFENSE COLLECTION MANAGEMENT.

(a) RECOGNITION AND INTEGRATION OF OPEN-SOURCE INTELLIGENCE.—The Under Secretary of Defense for Intelligence and Security shall—

(1) ensure that the Department of Defense recognizes open-source intelligence as a source of intelligence collection;

(2) integrate open-source intelligence into the processes of the Department for intelligence collection management, including processes for requirements development, prioritization, and tasking;

(3) maintain procedures for identifying and validating intelligence requirements that may be satisfied through open-source intelligence;

(4) maintain guidance for tasking, coordination, and deconfliction of open-source intelligence collection activities across the Department;

(5) identify roles and responsibilities for elements of the Department conducting open-source intelligence collection, including the Defense Intelligence Agency, the military departments, and the combatant commands; and

(6) maintain alignment of open-source intelligence collection activities with policies of the Department and of the intelligence community for collection of publicly available information and commercially available information.

(b) INTEGRATION WITH COLLECTION MANAGEMENT SYSTEMS.—The Under Secretary shall ensure that open-source intelligence collection is incorporated into the Department's intelligence collection management systems, including systems used to manage requirements, tasking, and coordination across intelligence disciplines.

(c) TRACKING AND ACCOUNTABILITY MECHANISMS.—The Under Secretary shall ensure that open-source intelligence collection activities are incorporated into and trackable within the processes of the Department for collection management and shall establish mechanisms

to track requirements, tasking, and performance of such activities.

(d) INSTRUCTION.—The Under Secretary shall ensure that Department of Defense Instruction 3325.08 (relating to intelligence collection management), or any successor instruction, incorporates the requirements of this section.

(e) IMPLEMENTATION.—This section shall be implemented not later than 180 days after the date of the enactment of this Act.

SEC. 1623. OPEN-SOURCE INTELLIGENCE DEFINITIONS.

(a) FINDINGS.—Congress finds the following:

(1) Publicly available information, including commercially available information, has become increasingly important to intelligence analysis, strategic warning, economic security, and understanding adversarial activities.

(2) Consistent governance, oversight, and safeguarding standards are necessary to support the lawful and effective use of publicly available information and commercially available information across the intelligence community.

(b) ESTABLISHMENT OF DEFINITIONS.—Not later than 180 days after the date of the enactment of this Act, the Under Secretary of Defense for Intelligence and Secu-

rity shall, in coordination with the Director of National Intelligence, establish definitions for the terms listed in subsection (c).

(c) TERMS.—The terms referred to in subsection (b) are—

(1) open-source intelligence;

(2) commercially available information; and

(3) publicly available information.

(d) APPLICABILITY.—In establishing the definitions as required by subsection (b), the Under Secretary of Defense for Intelligence and Security, in coordination with the Director of National Intelligence, shall ensure such definitions may be applicable across the Department of Defense and the intelligence community.

(e) BRIEFING REQUIRED.—Not later than 30 days after the date of the establishment of the definitions required by subsection (b), the Under Secretary of Defense for Intelligence and Security shall provide to the congressional defense committees and the congressional intelligence committees a briefing on the rationale behind such definitions.

(f) DEFINITIONS.—In this section, the terms ''congressional intelligence committees'' and ''intelligence community'' have the meanings given those terms in section 3 of the National Security Act of 1947 (50 U.S.C. 3003).

Subtitle C—Nuclear Forces

SEC. 1631. MATTERS RELATING TO INTERCONTINENTAL BALLISTIC MISSILES.

(a) TRANSFER AUTHORITY.—Chapter 24 of title 10, United States Code, is amended by adding at the end the following new section:

"§ 499d. Transfer authority to support intercontinental ballistic missile capabilities

''(a) TRANSFER AUTHORITY.—Subject to the authority, direction and control of the Secretary of Defense, and subject to the limitation under subsection (d), the Secretary of the Air Force may transfer amounts authorized to be appropriated for fiscal year 2027 or any fiscal year thereafter under 'Research, Development, Test and Evaluation', 'Air Force; Other Procurement', 'Air Force; Missile Procurement', and 'Air Force, Operation and Maintenance' for covered programs between such accounts for the purposes of modernizing, mitigating risk relating to, or otherwise enhancing, the intercontinental ballistic missile capabilities of the United States.

''(b) TREATMENT OF TRANSFERRED FUNDS.—Amounts transferred under subsection (a) shall be merged with and be available for the same purposes and for the same time period as amounts in the receiving account.

''(c) ADDITIONAL AUTHORITY.—The authority under subsection (a) is in addition to any other transfer authority available to the Department of Defense.

''(d) NOTICE AND WAIT REQUIREMENT.—The Secretary of the Air Force may not initiate a transfer under subsection (a) until—

''(1) the Secretary submits to the congressional defense committees a written notification containing a detailed description of the proposed transfer; and

''(2) a period of 15 days has elapsed following the date of such notification.

''(e) QUARTERLY REPORT.—Not later than 30 days after the end of each fiscal quarter until the date of termination under subsection (g), the Secretary of the Air Force shall submit to the congressional defense committees a report containing a summary of any transfers carried out during such fiscal quarter under subsection (a).

''(f) COVERED PROGRAM DEFINED.—In this section, the term 'covered program' means a program of the Air Force that the Secretary of the Air Force determines supports the following:

''(1) The LGM–30G Minuteman III intercontinental ballistic missile.

''(2) The LGM–35A Sentinel intercontinental ballistic missile.

''(3) Any reentry vehicle capability for an intercontinental ballistic missile.

''(4) Any other capability for an intercontinental ballistic missile, as determined by the Secretary.

''(g) TERMINATION.—The authority under subsection (a) shall terminate on the date that is 10 years after the date of the enactment of this section.''.

(b) EXCEPTION TO LIMITATION ON EXPENDITURES FOR MODIFICATIONS FOR CERTAIN BELOW-THRESHOLD MODIFICATIONS.—Section 2244a(b) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(4) EXCEPTION FOR BELOW-THRESHOLD STRATEGIC DELIVERY SYSTEM MODIFICATIONS.—The prohibition in subsection (a) does not apply to a modification of a strategic delivery system (as such term is defined in section 495(e) of this title) for which the cost is less than $500,000.''.

(c) ADVANCE PROCUREMENT OF FLIGHT TEST KITS.—

(1) AUTHORITY FOR MULTIYEAR PROCUREMENT.—Subject to section 3501 of title 10, United States Code, the Secretary of the Air Force may enter into one or more multiyear contracts, begin-

ning in fiscal year 2027, for the procurement of flight test kits in support of the program of the Air Force Global Strike Command for operational test launches of the Minuteman III intercontinental ballistic missile.

(2) AUTHORITY FOR ADVANCE PROCUREMENT.—The Secretary of the Air Force may enter into one or more contracts for advance procurement associated with the procurement of the flight test kits for which contracts are authorized under subsection (a), including procurement of systems and subsystems associated with such flight test kits in economic order quantities when cost savings are achievable.

(3) CONDITIONS FOR OUT-YEAR CONTRACT PAYMENTS.—Any contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year after fiscal year 2027 is subject to the availability of appropriations for that purpose for such fiscal year.

(4) TERMINATION.—The authority of the Secretary of the Air Force to enter into contracts under subsection (a) shall terminate on September 30, 2030.

(d) CONTRACT AUTHORITY TO MITIGATE CERTAIN DIMINISHING SOURCES AND SHORTAGES.—

(1) CONTRACT AUTHORITY.—Subject to the limitation under paragraph (2), the Secretary of the Air Force may enter into one or more contracts for the life-of-program procurement of components necessary to mitigate diminishing manufacturing sources or material shortages affecting a covered program.

(2) NOTICE AND WAIT REQUIREMENT.—The Secretary may not enter into a contract under paragraph (1) until—

(A) the Secretary submits to the congressional defense committees a written notification containing a detailed description of the proposed contract; and

(B) a period of 15 days has elapsed following the date of such notification.

(e) COVERED PROGRAM DEFINED.—In this section, the term ''covered program'' has the meaning given such term in section 499d of title 10, United States Code, as added by subsection (a).

SEC. 1632. DESIGNATION OF AIR FORCE GLOBAL STRIKE COMMAND AS NATIONAL CENTER FOR CONVENTIONAL–NUCLEAR INTEGRATION.

(a) NATIONAL CENTER FOR CONVENTIONAL–NUCLEAR INTEGRATION.—Section 9068 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(d) NATIONAL CENTER FOR CONVENTIONAL–NUCLEAR INTEGRATION.—(1) The Air Force Global Strike Command shall serve as the National Center for Conventional–Nuclear Integration of the Department of the Air Force.

''(2) The responsibilities of the National Center for Conventional–Nuclear Integration under paragraph (1) shall include the following:

''(A) Establishing policies and standards, and issuing guidance, to integrate conventional and nuclear weapons capabilities across the Air Force in a manner that aligns with the operational requirements of the United States Strategic Command, including with respect to integrated planning, command and control, and mission execution in support of such Command.

''(B) Establishing a governance and coordination framework to synchronize efforts for such inte-

gration across relevant major commands, field commands, and centers of the Air Force.

''(C) Determining required education, training, and exercise objectives relating to such integration, including by ensuring appropriate operational plans and readiness constructs of the Air Force reflect such integration.

''(D) Identifying any gaps in capabilities necessary for such integration (including with respect to doctrine, interoperability, decision support, and command and control) and establishing resourcing priorities to address any such gaps.''.

(b) DEADLINE FOR DESIGNATION.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Air Force shall designate the Air Force Global Strike Command as the National Center for Conventional–Nuclear Integration of the Department of the Air Force for purposes of section 9068(d) of title 10, United States Code, as added by subsection (a).

(c) IMPLEMENTATION PLAN.—

(1) PLAN.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a plan for the implementation of this section and the

amendments made by this section. Such plan shall include the following:

(A) A description of the organizational structure of, and a resourcing strategy for, the National Center for Conventional–Nuclear Integration under section 9068(d) of title 10, United States Code, as added by subsection (a).

(B) Measurable objectives and milestones for the implementation of the responsibilities under such section 9068(d).

(C) An assessment of the extent to which such responsibilities advance the responsibilities of the Commander of the Air Force Global Strike Command specified in section 9068(c) of title 10, United States Code, including with respect to nuclear and long-range strike missions in support of the United States Strategic Command.

(2) FORM.—The plan under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

SEC. 1633. QUADRENNIAL REPORT ON THE PLAN FOR THE NUCLEAR WEAPONS STOCKPILE, NUCLEAR WEAPONS COMPLEX, NUCLEAR WEAPONS DELIVERY SYSTEMS, AND NUCLEAR WEAPONS COMMAND AND CONTROL SYSTEM.

Section 492a of title 10, United States Code, is amended as follows:

(1) In the heading, by striking ''**Biennial**'' and inserting ''**Quadrennial**''.

(2) In subsection (a)—

(A) in paragraph (1), by striking ''2029'' and inserting ''2027, and on a quadrennial basis thereafter,''; and

(B) in paragraph (2)—

(i) in subparagraph (A), by striking ''enhance the safety, security, and reliability of'' and inserting ''sustain and modernize''; and

(ii) in subparagraph (F)—

(I) by striking ''10-year period following the date of the report'' and inserting ''period covered by the future-years defense program submitted to Congress under section 221 of this title''; and

(II) by striking ''such 10-year period'' and inserting ''such period''.

SEC. 1634. PROHIBITION ON REDUCTION OF INTERCONTINENTAL BALLISTIC MISSILES OF THE UNITED STATES.

(a) PROHIBITION.—Except as provided in subsection (b), none of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of Defense may be obligated or expended for the following, and the Department may not otherwise take any action to do the following:

(1) Reduce, or prepare to reduce, the responsiveness or alert level of the intercontinental ballistic missiles of the United States.

(2) Reduce, or prepare to reduce, the quantity of deployed intercontinental ballistic missiles of the United States to a number less than 400.

(b) EXCEPTION.—The prohibition under subsection (a) shall not apply with respect to any of the following activities:

(1) The maintenance or sustainment of intercontinental ballistic missiles.

(2) Ensuring the safety, security, or reliability of intercontinental ballistic missiles.

(3) Facilitating the transition from the LGM–30G Minuteman III intercontinental ballistic missile to the Sentinel LGM–35A intercontinental ballistic missile.

SEC. 1635. LIMITATION ON REALLOCATION OF FUNDS FOR RONALD REAGAN SPACE AND MISSILE TEST RANGE AND UNITED STATES ARMY GARRISON KWAJALEIN ATOLL.

(a) LIMITATION ON REALLOCATION OF FUNDS.—Funds authorized to be appropriated for the Department of Defense for fiscal year 2027 for activities at the Ronald Reagan Space and Missile Test Range or the United States Army Garrison Kwajalein Atoll—

(1) may be obligated or expended only for the purposes for which such funds are authorized and appropriated; and

(2) except as expressly authorized by law, may not be transferred or reprogrammed for a purpose other than the purposes for which such funds are authorized and appropriated.

(b) EXCEPTION.—The limitation under subsection (a)(2) shall not apply with respect to any transfer or reprogramming action that is carried out in accordance with section 2214 of title 10, United States Code.

SEC. 1636. FEASIBILITY ASSESSMENT FOR POTENTIAL DESIGNATION OF JOINT GLOBAL STRIKE OPERATIONS CENTER AS GLOBAL OPERATIONS CENTER–ALTERNATE.

(a) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Air Force, in coordination with the Commander of the United States Strategic Command and the Commander of the Air Force Global Strike Command, shall submit to the congressional defense committees a report that contains an assessment of the feasibility, strategic benefits, risks, and resource requirements associated with the potential designation of the Joint Global Strike Operations Center at Barksdale Air Force Base, Louisiana, as an alternate command post to the Global Operations Center of the United States Strategic Command, to be known as the ''Global Operations Center–Alternate''.

(b) ELEMENTS.—The report under subsection (a) shall include the following:

(1) A proposal setting forth how the Joint Global Strike Operations Center at Barksdale Air Force Base, Louisiana, would assume and sustain responsibilities as the Global Operations Center–Alternate in support of nuclear and long-range strike missions of the United States Strategic Command across stages of conflict and crisis response.

(2) A proposal for the organizational structure of the Global Operations Center–Alternate, including with respect to relevant authorities thereof, the relationship to and required coordination with the United States Strategic Command, the Air Force Global Strike Command, and the Eighth Air Force (and associated operational and command and control structures), and arrangements for the provision and receipt of support with respect to other elements of the Department of the Air Force.

(3) An assessment of the capabilities for communications and interoperability (including the redundancy, resiliency, and survivability of such capabilities) necessary to perform the proposed functions of the Global Operations Center–Alternate, including any such capabilities relating to nuclear command, control, and communications systems in support of nuclear and long-range strike missions of the United States Strategic Command.

(4) An identification of the personnel levels and readiness requirements necessary for the performance of such proposed functions, including any specialized requirements to support such missions.

(5) An identification of any facilities or other infrastructure the construction or modification of

which would be necessary for the performance of such proposed functions, together with cost estimates and a notional timeline for any such required construction or modification.

(6) An identification of the anticipated funding needs during the period covered by the most recent future-years defense program submitted to Congress under section 221 of title 10, United States Code, for the establishment, operation, and sustainment of the Global Operations Center–Alternate, and any resourcing activities or legislative authorities the Secretary determines necessary for such purpose.

(c) BRIEFING.—Not later than 30 days after the date on which the Secretary submits to the congressional defense committees the report under subsection (a), the Secretary shall provide to such committees an unclassified briefing to summarize key findings, recommended actions, and decision points regarding the potential designation of the Joint Global Strike Operations Center at Barksdale Air Force Base, Louisiana, as an alternate command post to the Global Operations Center of the United States Strategic Command.

SEC. 1637. SPACE LAUNCH COMPLEX 46.

The Secretary of the Air Force may not take any action to reduce or modify the exclusive and priority use of

Space Launch Complex 46 by the Secretary of the Navy until the date on which the Chief of Naval Operations submits to the congressional defense committees a notification that—

(1) the test capabilities and infrastructure at Space Launch Complex 51 are equivalent to such capabilities and infrastructure at Space Launch Complex 46 with respect to meeting the mission needs of the Secretary of the Navy; and

(2) the Director of Navy Strategic Systems Programs has issued a final acceptance and certification of the facilities at Space Launch Complex 51.

SEC. 1638. MODIFICATION OF REPORT REQUIREMENT FOR CERTAIN DECISIONS RELATING TO NUCLEAR WEAPONS EMPLOYMENT STRATEGY OF THE UNITED STATES.

Section 491(c) of title 10, United States Code, is amended by inserting ", or a similar evaluation," after "made pursuant to a Nuclear Posture Review Implementation Study".

SEC. 1639. INDEPENDENT ASSESSMENT OF BONE MARROW RADIATION SHIELDING FOR NUCLEAR SURVIVABILITY.

(a) ASSESSMENT REQUIRED.—Not later than 30 days after the date of the enactment of this Act, the As-

sistant Secretary of Defense for Nuclear, Chemical, and Biological Defense, Policy and Programs shall seek to enter into an agreement with a University Affiliated Research Center affiliated with United States Strategic Command to conduct an independent scientific assessment on whether preserving the viability of bone marrow using partial body radiation shielding can improve the survivability of an individual exposed to gamma radiation as compared to an individual without such protection.

(b) ELEMENTS.—The assessment required under subsection (a) shall examine peer-reviewed scientific literature, laboratory studies and relevant experimental data to evaluate the comparative effectiveness of preserving bone marrow using partial body radiation shielding with respect to—

(1) the likelihood of developing Acute Radiation Syndrome;

(2) the severity of Acute Radiation Syndrome when it occurs; and

(3) overall mortality rates following gamma radiation exposure.

(c) REPORT.—Not later than 150 days after the date of the enactment of this Act, the Assistant Secretary shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the assess-

ment required under subsection (a) that includes the findings of such assessment.

SEC. 1640. EXTENSION OF ANNUAL ASSESSMENT OF CYBER RESILIENCE OF NUCLEAR COMMAND AND CONTROL SYSTEM.

Section 499(e) of title 10, United States Code, is amended by striking ''December 31, 2032'' and inserting ''December 31, 2035''.

Subtitle D—Missile Defense Programs

SEC. 1651. PROHIBITION OF UNAUTHORIZED USE OF NAME OR SEAL OF THE MISSILE DEFENSE AGENCY.

(a) PROHIBITION.—Section 5502 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(d) PROHIBITION OF UNAUTHORIZED USE OF NAME OR SEAL.—(1) Except with the written permission of the Secretary of Defense, no person may knowingly use, in connection with any merchandise, retail product, impersonation, solicitation, or commercial activity in a manner reasonably calculated to convey the impression that such use is approved, endorsed, or authorized by the Secretary, any of the following (or any colorable imitation thereof):

''(A) The words 'Missile Defense Agency'.

''(B) The seal of the Missile Defense Agency.

''(2) Whenever it appears to the Attorney General that any person is engaged or is about to engage in an act or practice which constitutes or will constitute conduct prohibited by paragraph (1), the Attorney General may initiate a civil proceeding in a district court of the United States to enjoin such act or practice. Such court shall proceed as soon as practicable to the hearing and determination of such action and may, at any time before final determination, enter such restraining orders or prohibitions, or take such other actions as is warranted, to prevent injury to the United States or to any person or class of persons for whose protection the action is brought.''.

(b) TECHNICAL AMENDMENTS.—Subsection (c)(3) of such section is amended—

(1) in subparagraph (A), by striking ''the date of the enactment of this subsection'' and inserting ''December 27, 2021,'';

(2) in subparagraph (B)—

(A) by striking ''the date of the enactment of this subsection'' and inserting ''December 27, 2021''; and

(B) by striking ''the date of such enactment'' and inserting ''such date''; and

(3) in subparagraph (C), by striking ''the date of the enactment of this subsection'' and inserting ''December 27, 2021,''.

SEC. 1652. REMOVAL OF DUPLICATIVE MISSILE DEFENSE AGENCY TESTING REQUIREMENT.

Section 5534 of title 10, United States Code, is repealed.

SEC. 1653. UPDATED MIDDLE EAST INTEGRATED AIR AND MISSILE DEFENSE STRATEGY.

Section 1658(b) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2951) is amended by adding at the end the following new paragraph:

''(5) UPDATE.—Not later than 180 days after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2027, the Secretary of Defense, in consultation with the Secretary of State, shall submit to the congressional defense committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate an update to the strategy under paragraph (1).''.

SEC. 1654. NEXT-GENERATION INTEGRATED AIR AND MISSILE DEFENSE SYSTEM MUNITIONS STRATEGY.

(a) PLAN REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees an alternative plan with respect to procuring munitions for the next-generation air and missile defense architecture being developed pursuant to Executive Order 14186 (90 Fed. Reg. 8767).

(b) ELEMENTS.—The plan under subsection (a) shall include the following:

(1) A summary of the munitions and associated procurement quantities necessary to meet mission objectives by 2028.

(2) An assessment of current and near-term planned production capacity for each munition.

(3) An overview of alternative munitions with potential air and missile defense capability, including the production capacity of each such munition.

(4) An evaluation of the feasibility of incorporating alternative munitions into the next-generation air and missile defense architecture and associated effects on operational performance.

SEC. 1655. SPACE-BASED INTERCEPTORS.

(a) INDEPENDENT LIFE-CYCLE COST ESTIMATE.—

(1) REQUIREMENT.—The Director of Cost Assessment and Program Evaluation shall conduct an independent life-cycle cost estimate of the space-based interceptor program.

(2) AFFORDABILITY CONTROLS.—Following the completion of the independent life-cycle cost estimate under paragraph (1), the Secretary of Defense shall ensure that the space-based interceptor program meets affordability controls in accordance with section 4271 of title 10, United States Code.

(3) SUBMISSION.—The Secretary may not award a full-rate production contract for the space-based interceptor program unless the Secretary has submitted to the congressional defense committees—

(A) the preliminary findings of the independent cost assessment under paragraph (1); and

(B) a notification that the goals under section 4271(a)(2) of title 10, United States Code, have been established with respect to such program.

(b) FLIGHT TEST.—In addition to the requirements of section 4171 of title 10, United States Code, the Secretary may not make any decision regarding full-rate pro-

duction, or equivalent, of the space-based interceptor unless the Secretary has—

(1) certified to the congressional defense committees that the Secretary has conducted at least one successful operationally relevant flight test of the space-based interceptor; and

(2) provided to such committees a briefing on the details of such tests, including with respect to the operational realism of such tests.

SEC. 1656. LOW-COST EXO-ATMOSPHERIC INTERCEPTOR DEVELOPMENT.

(a) REQUIREMENT.—The Secretary of Defense, acting through the Director of the Missile Defense Agency, shall carry out a program to develop and demonstrate a low-cost exo-atmospheric interceptor to provide complementary, scalable intercept capability to existing interceptors in the ballistic missile defense architecture.

(b) BRIEFING.—Not later than 90 days after the date of the enactment of this Act, the Director of the Missile Defense Agency shall provide the congressional defense committees a briefing on programs and activities carried out under this section.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director of the Missile

Defense Agency shall submit to the congressional defense committees a report on—

(1) the current threat environment necessitating low-cost and scalable exo-atmospheric intercept capability; and

(2) the acquisition strategy for a low-cost and scalable exo-atmospheric interceptor program.

SEC. 1657. ASSESSMENT OF RESILIENT MISSILE DEFENSE SENSING ARCHITECTURES.

(a) REPORT.—Not later than March 1, 2027, the Secretary of Defense, acting through the Director of the Missile Defense Agency, shall submit to the congressional defense committees a report on the strategy of the Department of Defense to develop and field resilient and distributed missile defense sensing architectures.

(b) ELEMENTS.—The report under subsection (a) shall include the following:

(1) An assessment of current and planned fixed missile defense sensing infrastructure and associated vulnerabilities in contested environments.

(2) An evaluation of modular, transportable, and rapidly deployable sensing capabilities, including their potential to restore degraded sensing coverage under operational stress conditions.

(3) A description of ongoing or planned efforts to incorporate modular open systems approaches and commercially available technologies into missile defense sensing architectures.

(4) An assessment of scalable radar integration concepts and the potential of such concepts to accelerate deployment timelines and improve operational resilience.

(5) An identification of programmatic, technical, or acquisition barriers to fielding distributed sensing architectures and recommended actions to address those barriers.

(6) Recommended near-term investments or pilot efforts to improve the survivability and reconstitution capacity of missile defense sensing networks.

(c) IMPLEMENTATION AUTHORITY.—The Secretary of Defense may use funds authorized to be appropriated by this Act to initiate pilot efforts or partnerships that support implementation of the recommendations contained in the report under subsection (a).

(d) DEFINITIONS.—In this section:

(1) The term ''distributed sensing architecture'' means a missile defense sensing approach that employs multiple geographically dispersed sensor nodes

to reduce reliance on any single point of sensing infrastructure.

(2) The term ''modular open systems approach'' has the meaning given that term in section 4401 of title 10, United States Code.

SEC. 1658. REPORT ON MODERNIZATION OF THE AEGIS ASHORE MISSILE DEFENSE SITE AT DEVESSELU, ROMANIA.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Commander of the United States European Command shall submit to the congressional defense committees a report on options to modernize the missile defense capabilities of the Aegis Ashore site located in Deveselu, Romania.

(b) ELEMENTS.—The report under subsection (a) shall include the following:

(1) An assessment of requirements to improve the capability of the site to defend against advanced ballistic missile threats.

(2) An assessment of requirements to improve the capability of the site to defend against maneuvering and hypersonic missile threats.

(3) An assessment of options for integrating counter-unmanned aircraft systems capabilities.

(4) An assessment of options for advanced sensing, tracking, and command-and-control capabilities.

(5) An assessment of force protection requirements and enhancement options for the site.

(6) An assessment of opportunities to improve integration with regional air and missile defense architectures.

(7) An assessment of opportunities for greater cooperation with Romania relating to infrastructure, logistics, force protection, training, sustainment, and other host-nation support requirements associated with the continued operation and modernization of the site.

(8) An assessment of estimated costs, implementation timelines, and operational benefits associated with any modernization option identified in the report.

(9) Any other matter the Secretary of Defense determines appropriate to improve the effectiveness, survivability, readiness, or interoperability of the Aegis Ashore site.

Subtitle E—Other Matters

SEC. 1661. BRIEFINGS AND REPORTS ON CROSS-FUNCTIONAL TEAM FOR ANOMALOUS HEALTH INCIDENTS.

(a) BRIEFINGS AND REPORTS.—Subsection (e) of section 910 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 10 U.S.C. 111 note) is amended to read as follows:

''(e) UPDATES.—(1) The Secretary shall provide to the appropriate congressional committees a briefing containing updates on the activities carried out by the cross-functional team during the period covered by the briefing as follows:

''(A) On a quarterly basis during the period beginning January 1, 2027, and ending December 31, 2028.

''(B) On a semiannual basis during the period beginning January 1, 2029, and ending December 31, 2030.

''(2) On an annual basis during the period beginning January 1, 2027, and ending December 31, 2030, the Secretary shall submit to the appropriate congressional committees a report on the activities carried out by the cross-functional team during the period covered by the report.''.

(b) TRANSFER.—Section 910 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81; 10 U.S.C. 111 note) is—

(1) transferred to chapter 21 of title 10, United States Code;

(2) inserted after section 430e; and

(3) redesignated as section 430f.

(c) CONFORMING AMENDMENTS.—Section 430f of title 10, United States Code, as added by subsection (b), is amended—

(1) in the enumerator, by striking ''SEC.'' and inserting ''§'';

(2) in the section heading—

(A) by striking the period at the end; and

(B) by conforming the typeface and typestyle, including capitalization, to the typeface and typestyle as used in the section heading of section 430e of such title; and

(3) in subsection (a), by striking ''title 10, United States Code'' and inserting ''this title''.

SEC. 1662. COOPERATIVE THREAT REDUCTION FUNDS.

(a) FUNDING ALLOCATION.—Of the $221,332,000 authorized to be appropriated to the Department of Defense for fiscal year 2027 in section 301 and made available by the funding table in division D for the Department

of Defense Cooperative Threat Reduction Program established under section 1321 of the Department of Defense Cooperative Threat Reduction Act (50 U.S.C. 3711), the following amounts may be obligated for the purposes specified:

(1) For delivery system threat reduction, $0.

(2) For chemical security and elimination, $23,435,000.

(3) For global nuclear security, $29,950,000.

(4) For biological threat reduction, $66,524,000.

(5) For proliferation prevention, $52,052,000.

(6) For transportation elimination disposition, $26,414,000.

(7) For activities designated as Other Assessments/Administration Costs, $22,957,000.

(b) SPECIFICATION OF COOPERATIVE THREAT REDUCTION FUNDS.—Funds appropriated pursuant to the authorization of appropriations in section 301 and made available by the funding table in division D for the Department of Defense Cooperative Threat Reduction Program shall be available for obligation for fiscal years 2027, 2028, and 2029.

SEC. 1663. SOLID ROCKET MOTOR INDUSTRIAL BASE.

(a) SOLID ROCKET MOTOR QUALIFICATION WORKING GROUP.—

(1) ESTABLISHMENT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall establish a working group of the Department of Defense to be known as the ''Solid Rocket Motor Qualification Working Group'' to expedite the qualification of solid rocket motors from a supplier that does not otherwise supply such motors.

(2) MEMBERSHIP.—The Solid Rocket Motor Qualification Working Group shall consist of a representative from each of the following:

(A) The Department of the Army.

(B) The Department of the Navy.

(C) The Department of the Air Force.

(D) The Missile Defense Agency.

(E) The Office of the Assistant Secretary of Defense for Industrial Base Policy.

(F) Any other component of the Department of Defense the Secretary of Defense determines appropriate.

(3) DUTIES.—The Solid Rocket Motor Qualification Working Group shall—

(A) establish a strategy and implementation plan for the Department of Defense with respect to the qualification process for solid rocket motors from a contractor that does not otherwise supply such motors; and

(B) designate not fewer than three missile programs for which the Secretary of Defense will expedite such qualification.

(4) REPORTS.—

(A) ANNUAL REPORTS.—Not later than September 30, 2027, and annually thereafter through September 30, 2031, the Secretary shall submit to the congressional defense committees a report on the actions carried out by the Solid Rocket Motor Qualification Working Group, including—

(i) the status of qualifying solid rocket motors from a contractor that does not otherwise supply such motors;

(ii) an implementation plan for such qualification; and

(iii) an estimate of the costs to carry out such plan with respect to each new solid rocket motor or contractor, or both.

(B) INITIAL REPORT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report containing—

(i) a certification that the Secretary has established the Solid Rocket Motor Qualification Working Group;

(ii) an identification of who is leading the Working Group; and

(iii) the strategy and implementation plan under paragraph (3)(A).

(C) LIMITATION.—Of the amounts authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the travel expenses of the Under Secretary of Defense for Acquisition and Sustainment, not more than 75 percent may be obligated or expended until the date on which the report under subparagraph (B) is submitted.

(b) SECOND SOURCING FOR PRODUCTION OF EXISTING CRITICAL MUNITIONS.—

(1) REQUIREMENT.—The Secretary of Defense shall ensure that a prime contractor that provides a

covered munition sources solid rocket motors for such munition from more than one supplier.

(2) ANNUAL CERTIFICATIONS.—

(A) REQUIREMENT.—Except as provided by subparagraph (B), at the same time as the President submits to Congress the annual budget request under section 1105 of title 31, United States Code, for a fiscal year, the Secretary shall submit to the congressional defense committees a certification that, for each covered munition, a second supplier has been identified from which the prime contractor will source solid rocket motors for such munition during the fiscal year covered by that budget.

(B) INITIAL CERTIFICATION.—The Secretary shall submit the initial certification under subparagraph (A) by not later than September 1, 2027, with respect to fiscal year 2028.

(C) LIMITATION.—Of the amounts authorized to be appropriated by this Act or otherwise made available for fiscal year 2028 and any fiscal year thereafter for any office described in subparagraph (D), not more than 50 percent may be obligated or expended unless the Sec-

retary has submitted the certification under subparagraph (A) for that fiscal year.

(D) OFFICE DESCRIBED.—An office described in this subparagraph is any of the following:

(i) The Office of the Deputy Secretary of Defense.

(ii) The Office of the Economic Defense Unit.

(3) REPORT.—Not later than 120 days after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report on carrying out paragraph (1), including—

(A) a timeline and the costs associated with procuring from a second supplier the munitions covered by such paragraph;

(B) an identification of each such second supplier; and

(C) an assessment on the feasibility and advisability of the Secretary carrying out a direct supply strategy regarding the procurement of solid rocket motors by the Department to support critical munition production.

(c) PRODUCTION OF NEW MUNITIONS.—With respect to a contract or other agreement entered into for

a covered munition on or after October 1, 2027, the Secretary of Defense, acting through the Secretaries of the military departments and the Under Secretary of Defense for Acquisition and Sustainment, shall ensure that not fewer than two solid rocket motor suppliers are providing solid rocket motors for such munition.

(d) COVERED MUNITION.—In this section, the term ''covered munition'' means any of the following:

(1) Patriot advanced capability-3 missile segment enhancement.

(2) Terminal high altitude area defense interceptors.

(3) All standard missile variants (including standard missile-6, standard missile-3 blocks IB and IIA).

(4) Tomahawk land attack missiles.

(5) Maritime strike Tomahawk missiles.

(6) Advanced medium-range air-to-air missiles.

(7) Precision strike missiles.

(8) Hydra 70 rockets.

(9) Any other munitions the Secretary determines appropriate.

Subtitle F—Matters Relating to Adversary Supply Chains

SEC. 1671. STRATEGY FOR DISRUPTION OF ADVERSARY DEFENSE-INDUSTRIAL SUPPLY CHAINS.

(a) STRATEGY REQUIRED.—Not later than March 1, 2027, and annually after through March 1, 2032, the Secretary of Defense shall submit to the congressional defense committees and the congressional intelligence committees a strategy for identifying and disrupting foreign supply chains supporting the defense-industrial production capacity of peer adversaries.

(b) ELEMENTS.—The strategy required by subsection (a) shall include the following:

(1) Identification of critical foreign dependencies supporting the production by such adversaries of threat systems, including—

(A) artillery systems;

(B) ammunition;

(C) missile systems;

(D) armored vehicle systems;

(E) Command, Control, Communications, Computers, Cyber, Intelligence, Surveillance, Reconnaissance, and Targeting (C5ISRT) systems;

(F) chemical and biological weapons of mass destruction (CBWMD) systems;

(G) advanced kinetic and non-kinetic weapon systems; and

(H) unmanned systems.

(2) An assessment of vulnerabilities associated with reliance by such adversaries on goods and infrastructure, including—

(A) imported raw materials;

(B) specialized metallurgy;

(C) precision machine tools;

(D) artificial intelligence enablers;

(E) energy infrastructure;

(F) big data analytics;

(G) propellant precursors; and

(H) transportation infrastructure.

(3) An identification of opportunities for coordination with allies and partners regarding disruption of adversary supply chains, including—

(A) export controls;

(B) supply-chain monitoring;

(C) sanctions enforcement; and

(D) industrial security cooperation.

(4) Recommendations for improving the support provided by the Department of Defense to inter-

agency efforts to monitor and disrupt adversary defense-industrial supply chains.

SEC. 1672. DEFENSE INDUSTRIAL INTELLIGENCE INTEGRATION CELL.

(a) ESTABLISHMENT.—The Director of the Defense Intelligence Agency shall establish a Defense Industrial Intelligence Integration Cell (in this section referred to as the ''Cell'').

(b) DUTIES.—The duties performed by the Cell shall include—

(1) mapping the defense-industrial supply chains of adversaries;

(2) assessing vulnerabilities within the military production networks of adversaries;

(3) supporting operational planning of the combatant commands relating to industrial disruption;

(4) supporting interagency analysis of export controls and sanctions; and

(5) assessing foreign dependency risks associated with adversary weapons production.

(c) COORDINATION.—The Cell shall coordinate with entities including—

(1) the Office of Foreign Assets Control of the Department of the Treasury;

(2) the Bureau of Industry and Security of the Department of Commerce;

(3) the Defense Technology Security Administration;

(4) the National Geospatial-Intelligence Agency;

(5) the Department of State;

(6) the Department of Energy;

(7) the Federal Bureau of Investigation; and

(8) appropriate allied and partner intelligence organizations.

SEC. 1673. ASSESSMENT OF ADVERSARY ARTILLERY AND MUNITIONS PRODUCTION CAPACITY.

(a) ASSESSMENT REQUIRED.—Not later than March 1, 2027, and annually thereafter through March 1, 2032, the Secretary of Defense shall submit to the congressional defense committees a report assessing the production capacity and capabilities of adversary artillery, long-range strike systems, unmanned aerial systems, and missile systems.

(b) ELEMENTS.—The assessment required by subsection (a) shall include—

(1) estimated annual production capacity for artillery systems, ammunition, and long range strike systems;

(2) assessment of adversary barrel replacement capacity;

(3) identification of foreign material dependencies associated with artillery and long-range strike system production;

(4) assessment of transportation and logistics constraints affecting production and distribution; and

(5) implications for United States and allied operational planning.

TITLE XVII—OTHER DEFENSE MATTERS

Subtitle A—Miscellaneous Authorities and Limitations

SEC. 1701. AVAILABILITY OF FUNDS FOR DEPARTMENT OF DEFENSE STATE PARTNERSHIP PROGRAM.

Section 341(e)(1)(A) of title 10, United States Code, is amended by inserting ‘‘, including costs incurred with respect to activities beginning in a fiscal year and ending not later than the end of the first fiscal year thereafter’’ before the semicolon.

SEC. 1702. INCLUSION OF MEMBERS OF SPECIAL OPERATIONS FORCES IN PRESEPARATION COUNSELING.

Section 1142(a)(1) of title 10, United States Code, is amended—

(1) by inserting ''(including each member of the special operations forces)'' after ''armed forces'';

(2) by inserting ''(A)'' before ''Within''; and

(3) by adding at the end the following new subparagraph: ''(B)''

''(B) The Secretary concerned shall ensure that a member described in subparagraph (A) receives preseparation counseling in the following amounts:

''(i) In the case of a member who has accepted an offer of full-time employment,or has enrolled in a program of education or vocational training, that shall commence after the member separates, retires, or is discharged, not fewer than three days.

''(ii) In the case of a member other than a member described in clause (i), not fewer than five days.''.

SEC. 1703. COPYRIGHT TO A LITERARY WORK PRODUCED BY A CIVILIAN FACULTY MEMBER OF A SPACE FORCE PROFESSIONAL MILITARY EDUCATION PROGRAM IN THE COURSE OF EMPLOYMENT: FREE USE BY THE FEDERAL GOVERNMENT.

(a) USE BY FEDERAL GOVERNMENT.—Subsection (d)(2) of section 105 of title 17, United States Code, is amended—

(1) by redesignating subparagraphs (M) through (O) as subparagraphs (O) through (Q); and

(2) by inserting after subparagraph (L) the following new subparagraphs:

''(M) Space Force Senior Level Education Program.

''(N) Space Force Intermediate Level Education Program.''.

(b) CONFORMING AMENDMENTS.—Subsection (c) of such section is amended—

(1) in paragraph (1)—

(A) by striking ''through (L)'' and inserting ''through (N)''; and

(B) by striking ''subparagraph (M)'' and inserting ''subparagraph (O)'';

(2) in paragraph (2), by striking ''subsection (d)(2)(M)'' and inserting ''subsection (d)(2)(O)'';

(3) in paragraph (3), by striking ''subsection (d)(2)(N)'' and inserting ''subsection (d)(2)(P)''; and

(4) in paragraph (4), by striking ''subsection (d)(2)(O)'' and inserting ''subsection (d)(2)(Q)''.

SEC. 1704. INAPPLICABILITY OF DEFENSE BASE ACT TO GUAM.

Section 1 of the Defense Base Act (42 U.S.C. 1651) is amended—

(1) in subsection (b)—

(A) in paragraph (4), by striking ''and the District of Columbia.'' and inserting '', the District of Columbia, and Guam;'';

(B) by adding at the end the following new paragraph:

''(5) the term 'Territory or possession outside the continental United States' does not include Guam.''; and

(2) by adding at the end the following:

''(g) LIMITATION ON APPLICABILITY.—This section shall only apply to Guam during periods in which Guam has in effect worker's compensation regulations that are comparable to the laws and regulations of worker's compensation regulations in any of the 50 States.''.

SEC. 1705. EXTENSION OF ADMISSION FOR CERTAIN NON-IMMIGRANT H-2B WORKERS.

Section 6(b)(1)(B) of the Joint Resolution entitled ''A Joint Resolution to approve the 'Covenant to Establish a Commonwealth of the Northern Mariana Islands in Political Union with the United States of America', and for other purposes'', approved March 24, 1976 (48 U.S.C. 1806(b)(1)(B)), is amended, in the matter preceding clause (i), by striking ''December 31, 2029'' and inserting ''December 31, 2035''.

SEC. 1706. REAUTHORIZATION OF THE CYBERSECURITY ACT OF 2015.

(a) IN GENERAL.—The Cybersecurity Act of 2015 (6 U.S.C. 1501 et seq.; enacted as division N of the Consolidated Appropriations Act, 2016; Public Law 114–113) is amended—

(1) in section 102 (6 U.S.C. 1501; relating to definitions)—

(A) by redesignating paragraphs (4), (5), (6), (7), (8), (9), (10), (11), (12), (13), (14), (15), (16), (17), and (18) as paragraphs (6), (7), (8), (9), (10), (11), (12), (13), (14), (15), (16), (17), (18), (19), and (20), respectively; and

(B) by inserting after paragraph (3) the following new paragraphs:

''(4) ARTIFICIAL INTELLIGENCE.—The term 'artificial intelligence' has the meaning given such term in section 5002 of the National Artificial Intelligence Initiative Act of 2020 (15 U.S.C. 9401).

''(5) CRITICAL INFRASTRUCTURE.—The term 'critical infrastructure' has the meaning given such term in section 1016(e) of Public Law 107–56 (42 U.S.C. 5195c(e)).'';

(2) in section 103 (6 U.S.C. 1502; relating to sharing of information by the Federal Government)—

(A) in subsection (a), in the matter preceding paragraph (1), by striking ''develop and issue'' and inserting ''develop, issue, and, as appropriate, update''; and

(B) in subsection (b)—

(i) in paragraph (1)—

(I) in the matter preceding subparagraph (A), by inserting ''and, as appropriate, updated,'' after ''developed'';

(II) by amending subparagraph (A) to read as follows:

''(A) ensure the Federal Government has and maintains the capability to share cyber

threat indicators and defensive measures in real-time consistent with the protection of classified information, and maintains the capability to provide technical assistance, on a voluntary basis, to non-Federal entities in utilizing cyber threat indicators and defensive measures for cybersecurity purposes;'';

(III) in subparagraph (E)(ii), by striking ''and'' after the semicolon;

(IV) in subparagraph (F), by striking the period and inserting ''; and''; and

(V) by adding at the end the following new subparagraph:

''(G) pursuant to section 2212 of the Homeland Security Act of 2002 (6 U.S.C. 662), provide one-time read-ins, as appropriate, to select individuals identified by non-Federal entities that own or operate critical infrastructure or artificial intelligence;''; and

(ii) in paragraph (2)—

(I) by inserting ''and, as appropriate, updating,'' after ''developing''; and

(II) by inserting ''and defensive measures'' after ''promote the sharing of cyber threat indicators''; and

(C) in subsection (c)—

(i) by inserting ''and not later than 60 days after any update, as appropriate, of procedures required by subsection (a),'' after ''Act,''; and

(ii) by inserting ''(or update, as appropriate)'' after ''procedures'';

(3) in section 104 (6 U.S.C. 1503; relating to authorizations for preventing, detecting, analyzing, and mitigating cybersecurity threats)—

(A) in paragraph (3) of subsection (c)—

(i) in the matter preceding subparagraph (A), by striking ''shall be'' and inserting ''may be'';

(ii) in subparagraph (A), by striking ''or'' after the semicolon;

(iii) in subparagraph (B), by striking the period and inserting ''; or''; and

(iv) by adding at the end the following new subparagraph:

''(C) to preclude the use of artificial intelligence that is strictly deployed for cybersecu-

rity purposes in carrying out the activities authorized under paragraph (1) provided that such deployment complies with section 105(d)(5).''; and

(B) in subparagraph (B) of subsection (d)(2), by inserting '', which may utilize artificial intelligence that is strictly deployed for cybersecurity purposes,'' after ''technical capability'';

(4) in section 105 (6 U.S.C. 1504; relating to sharing of cyber threat indicators and defensive measures with the Federal Government)—

(A) in subsection (a)—

(i) in paragraph (2), by adding at the end the following new sentences: ''As appropriate, the Attorney General and the Secretary of Homeland Security shall, in consultation with the heads of the appropriate Federal entities, jointly update such policies and procedures, and issue and make publicly available such updated policies and procedures. Such updates shall prioritize rapid dissemination to State, local, Tribal, and territorial governments and owners and operators of non-Federal

critical infrastructure or artificial intelligence of relevant and actionable cyber threat indicators and defensive measures.'';

(ii) in paragraph (3), in the matter preceding subparagraph (A), by striking ''developed or issued'' and inserting ''developed, issued, or, as appropriate, updated,''; and

(iii) in paragraph (4)—

(I) in subparagraph (A), by adding at the end the following new sentence: ''As appropriate, the Attorney General and the Secretary of Homeland Security shall jointly update and make publicly available such guidance to so assist entities and promote such sharing of cyber threat indicators and defensive measures with such Federal entities under this title.''; and

(II) in subparagraph (B), in the matter preceding clause (i), by inserting ''and, as appropriate, updated,'' after ''developed'';

(B) in subsection (b)—

(i) in paragraph (2)(B), by inserting ", and, as appropriate, update," after "review"; and

(ii) in paragraph (3), in the matter preceding subparagraph (A), by inserting "and, as appropriate, updated," after "required"; and

(C) in subsection (c)(1)(D), by inserting ", including if such capability and process employs artificial intelligence" before the semicolon; and

(D) in subsection (d)—

(i) in paragraph (1), by striking "trade secret protection" and inserting "intellectual property protection"; and

(ii) in paragraph (5)(A),

(I) in clause (iv), by striking "or" after the semicolon;

(II) in clause (v)(III), by striking the period and inserting "; or"; and

(III) by adding at the end the following new clause:

"(vi) the purpose of rapidly providing to other Federal entities awareness of a cybersecurity threat that may impact the information systems of such Agencies.";

(5) in section 108 (6 U.S.C. 1507; relating to construction and preemption)—

(A) in subsection (c)—

(i) in the matter preceding paragraph (1), by striking ''shall be'' and inserting ''may be'';

(ii) in paragraph (2), by striking ''or'' after the semicolon;

(iii) in paragraph (3), by striking the period and inserting ''; or''; and

(iv) by adding at the end the following new paragraph:

''(4) to preclude the use of artificial intelligence that is strictly deployed for cybersecurity purposes in carrying out activities authorized by this title.''; and

(B) in subsection (f)(3), by inserting ''to share cyber threat indicators or defensive measures'' after ''relationship'';

(6) in section 109 (6 U.S.C. 1508; relating to report on cybersecurity threats)—

(A) in subsection (a)—

(i) by inserting ''and not later than September 30 of every two years thereafter,'' after ''Act,'';

(ii) by inserting ''the Secretary of Homeland Security and'' after ''in coordination with'';

(iii) by inserting ''and the Committee on Homeland Security and Governmental Affairs'' before ''of the Senate'';

(iv) by inserting ''and the Committee on Homeland Security'' before ''of the House''; and

(v) by inserting ''prepositioning activities, ransomware,'' after ''attacks,''; and

(B) in subsection (b)—

(i) in paragraph (1), by inserting ''prepositioning activities, ransomware,'' after ''attacks,'';

(ii) in paragraph (2), by inserting ''prepositioning activity, ransomware,'' after ''attack,'';

(iii) in paragraph (3), by inserting ''prepositioning activities, ransomware,'' after ''attacks,'' each place it appears; and

(iv) in paragraph (4), by inserting ''prepositioning activities, ransomware,'' after ''attacks,''; and

(7) in section 111(a) (6 U.S.C. 1510(a), relating to effective period), by striking ''2025'' and inserting ''2035''.

(b) CONFORMING AMENDMENTS.—Section 2200 of the Homeland Security Act of 2002 (6 U.S.C. 650; relating to definitions) is amended—

(1) in paragraph (5)—

(A) in subparagraph (B), by inserting ''or compromising'' after ''defeating'';

(B) in subparagraph (C), by inserting ''including a security vulnerability affecting an information system or a technology included in the critical and emerging technologies list of the Office of Science and Technology Policy or successor list, such as artificial intelligence, which may be in a Federal entity's or non-Federal entity's software or hardware supply chain,'' after ''security vulnerability,'';

(C) in subparagraph (D), by inserting ''or compromise'' after ''defeat''; and

(D) in subparagraph (F), by inserting ''or compromised'' after ''exfiltrated'';

(2) in paragraph (14), by amending subparagraph (B) to read as follows:

''(B) includes, in accordance with section 104(d)(2) of the Cybersecurity Sharing Act of 2015 (6 U.S.C. 1503(d)(2)), operational technology, including industrial control systems, such as supervisory control and data acquisition systems, distributed control systems, and programmable logic controllers.''; and

(3) in paragraph (25), by inserting ''or compromise'' after ''defeat''.

SEC. 1707. UNITED STATES-ABRAHAM ACCORDS DEFENSE COOPERATION INITIATIVE.

(a) ESTABLISHMENT.—The Secretary of Defense may establish a United States-Abraham Accords Defense Cooperation Initiative (in this section referred to as the ''Initiative'') to bolster defense cooperation between the United States and the militaries of Abraham Accords countries.

(b) RELATIONSHIP TO EXISTING AUTHORITIES.—An Initiative established under subsection (a) shall be carried out pursuant to the authorities provided in title 10, United States Code.

(c) OBJECTIVES.—The objectives of the Initiative shall include—

(1) deterring aggression by Iran and proxies of Iran in the Middle East;

(2) coordination with the Comprehensive Security Integration and Prosperity Agreement; and

(3) enhancing regional planning and cooperation among the militaries of Abraham Accords countries, particularly with respect to long-term regional projects, such as—

(A) counter-unmanned aircraft systems capabilities;

(B) ground-based air defenses;

(C) theater ballistic missiles and cruise missiles;

(D) intelligence, surveillance, and reconnaissance and tactical command and control;

(E) special operations forces development;

(F) joint air or naval military exercises; and

(G) any other military capability the Secretary considers appropriate.

(d) REPORT.—Not later than 6 months after the date on which the Initiative is established under subsection (a), the Secretary shall submit to the congressional defense committees a report setting forth a strategy for achieving the objectives described in subsection (c).

(e) ABRAHAM ACCORDS COUNTRY DEFINED.—In this section, the term ''Abraham Accords country'' means—

(1) a country that is a signatory of the Abraham Accords Declaration, done at Washington September 15, 2020; and

(2) any regional, Arab, or Muslim-majority country that has sought to normalize relations with the State of Israel since 2020.

SEC. 1708. ESTABLISHMENT OF THE ATOMIC CIVILIANS COMMEMORATIVE SERVICE MEDAL.

(a) IN GENERAL.—The Secretary of Defense shall design and produce a commemorative service medal, to be known as the ''Atomic Civilians Commemorative Service Medal'' (in this section referred to as the ''Medal''), to commemorate the service and sacrifice of civilian employees and contractors of the Department of Defense and other Federal agencies who were instrumental in the development of our Nation's atomic and nuclear weapons programs.

(b) ELIGIBILITY REQUIREMENTS.—

(1) ELIGIBILITY.—Current or former civilian employees, and former employees of any contractor, of the United States Government shall be eligible for the Medal if such individual—

(A) directly participated in the detonation of an atomic weapon or device;

(B) directly participated in the cleanup of radioactive material resulting from any such atmospheric detonation;

(C) directly participated in the cleanup of radioactive material resulting from an accident associated with an atomic weapon; or

(D) was exposed to ionizing radiation resulting from the operational use of atomic weapons during World War II.

(2) DOCUMENTATION.—The Secretary of Defense may require individuals to submit supporting documentation for the medal authorized in subsection (a) to determine eligibility under paragraph (1).

(c) DISTRIBUTION OF MEDAL.—

(1) ISSUANCE TO RETIRED AND FORMER CIVILIAN EMPLOYEES.—At the request of an eligible individual described under subsection (b)(1), the Secretary of Defense shall issue the Medal to such individual.

(2) ISSUANCE TO NEXT-OF-KIN.—In the case of am individual who is deceased but would otherwise be eligible for the Medal, the Secretary may provide

for issuance of the Medal to the next-of-kin of such individual. If applications for a Medal are filed by more than one next of kin of such an individual, the Secretary of Defense shall determine which next-of-kin will receive the Medal.

(3) APPLICATION.—The Secretary shall prepare and disseminate as appropriate an application by which eligible individuals and their next-of-kin may apply to receive the Medal.

SEC. 1709. ESTABLISHMENT OF THE BLAST OVERPRESSURE TASK FORCE OF THE DEPARTMENT OF VETERANS AFFAIRS.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall appoint, through the Department of Veterans Affairs-Department of Defense Joint Executive Committee under section 320 of title 38, United States Code, the Blast Overpressure Task Force of the Department of Veterans Affairs (in this section referred to as the ''Task Force'').

(b) MEMBERSHIP.—Each member of the Task Force appointed under subsection (a) shall be a member of the Health Executive Committee under subsection (b)(2) of such section who, at the time of appointment, is involved

in research regarding the mitigation and treatment of blast overpressure or blast exposure.

(c) DUTIES.—The duties of the Task Force are the following:

(1) To improve how the Secretary of Veterans Affairs, in consultation with the Secretary of Defense, provides health care and other benefits to veterans or members of the Armed Forces diagnosed with traumatic brain injury, post-traumatic stress disorder, or other symptoms, from blast overpressure or blast exposure.

(2) To align research agendas and acquisition strategies of the Department regarding such health care.

(3) To establish physiological and cognitive performance baselines for such veterans and members.

(4) To prioritize translational research regarding such veterans and members, including research regarding—

(A) sleep therapy;

(B) blast-related gut health;

(C) mobile diagnostics;

(D) vestibular dysfunction and balance impairment;

(E) autonomic nervous system dysregulation;

(F) cumulative mild traumatic brain injury;

(G) neuroinflammation and glial activation; and

(H) any other issue determined appropriate by the Secretary.

(5) To monitor sensory decline (including with regards to vision, hearing, and vestibular function) and stress-related impairments among such veterans and members.

(6) To support continuity of such care by integrating mobile and longitudinal diagnostic tools.

(d) REPORTS.—The Task Force shall issue annual reports to the Committees on Veterans' Affairs and on Armed Services of the Senate and House of Representatives. Each such report shall include the following elements:

(1) Details of research initiatives, coordination outcomes, and clinical advancements of the Task Force.

(2) Recommendations of the Task Force regarding—

(A) how claims processors of the Department of Veterans Affairs should evaluate evidence that links such conditions to active military, naval, air, or space service; and

(B) best practices regarding the evaluation of neurological injuries in examinations for benefits under chapters 11 or 15 of title 38, United States Code.

(e) SUNSET.—The Task Force shall terminate on September 30, 2029.

SEC. 1710. AUTHORIZATION OF TRANSFER OF CERTAIN LAND NEAR DAYTON NATIONAL CEMETERY TO DEPARTMENT OF VETERANS AFFAIRS.

(a) TRANSFER.—Not later than 30 days after the date on which the Montgomery County Land Bank makes an offer to transfer to the Department of Veterans Affairs the parcel of land described in subsection (b), the Secretary of Veterans Affairs shall begin the process of entering into an agreement with the Land Bank to carry out such transfer. Under any such agreement—

(1) the Land Bank shall agree to transfer to the Department all right, title, and interest in such parcel at no cost of the land to the Department and for no consideration; and

(2) the Secretary shall agree to accept such transfer—

(A) in order to use such parcel as a national cemetery; and

(B) not later than three years after the date on which the Land Bank offers to transfer the parcel.

(b) PARCEL DESCRIBED.—The parcel of land described in this subsection is the approximately 58 acres of land located in Dayton, Ohio, across from Dayton National Cemetery, bound by the intersection of McCall St. and South Gettysburg Avenue, the intersection of McCall Street and Resaca Avenue, the intersection of South Gettysburg Avenue and U.S. Route 35 of the Interstate Highway System, and depicted on the map titled ''Dayton National Cemetery Proposed Land Transfer'' and dated January 26, 2024, and labeled on the map as ''Expansion Area''.

(c) RULES OF CONSTRUCTION.—Nothing in this section shall be construed to—

(1) require or encourage the Secretary to acquire any parcel other than the parcel described in subsection (b); or

(2) require or encourage the Secretary to enter into any special agreement with an entity other than the Montgomery County Land Bank.

(d) MONTGOMERY COUNTY LAND BANK DEFINED.—In this section, the Montgomery County Land Bank means the land bank located at 130 W. Second Street, Suite 1425, Dayton, Ohio 45402.

SEC. 1711. INTERNAL BASE HARDENING ASSESSMENTS AND LOGISTICS-NODE THREAT MITIGATION.

(a) DEFINITIONS.—In this section:

(1) COVERED INSTALLATION.—The term ''covered installation'' means a military installation, as defined in section 2801 of title 10, United States Code, that the Secretary of Defense designates as having significant logistics, port, intermodal, or contractor-operated interfaces with commercial transportation, warehousing, or supply chain infrastructure.

(2) COVERED LOGISTICS NODE.—The term ''covered logistics node'' means any of the following that is located on, adjacent to, or used in support of operations at a covered installation:

(A) A strategic seaport, as defined in section 54301(a)(12)(E) of title 46, United States Code.

(B) A defense access road, as described in section 210 of title 23, United States Code.

(C) A node of the Defense Transportation System, as that term is defined in Department of Defense Directive 4500.09E and Joint Publication 4-01.

(D) Any other logistics facility that the Secretary of Defense designates as a covered logistics node for purposes of this section.

(b) INTERNAL BASE HARDENING ASSESSMENTS.—

(1) ASSESSMENT.—Not later than 180 days after the date of the enactment of this section, and annually thereafter for a period not to exceed three years, the Secretary of Defense shall conduct a comprehensive internal base hardening assessment of each covered installation.

(2) SCOPE.—Each assessment under paragraph (1) shall examine vulnerabilities arising from—

(A) commercial shipping, drayage, and trucking activity on, adjacent to, or in support of the covered installation;

(B) covered logistics nodes;

(C) contractor and vendor access to the covered installation, including subcontractor and vendor supply chains;

(D) the pre-positioning of materiel by foreign adversaries of the United States, hostile state services, transnational organized crime groups, or terrorist organizations on or adjacent to the covered installation; and

(E) opportunities for reconnaissance, sabotage, or rapid attack from within or adjacent to the perimeter of the covered installation.

(3) MITIGATION PLANS.—For each vulnerability identified in an assessment under paragraph (1), the Secretary of Defense shall develop and implement a risk-based mitigation plan that includes defined milestones, timelines, and performance measures.

(4) REPORT.—

(A) In General—Not later than 18 months after the date of the enactment of this Act, and annually thereafter for four years, the Secretary of Defense shall submit to the congressional defense committees a report describing—

(i) the assessments completed under paragraph (2);

(ii) the mitigation plans developed, including timelines, milestones, and performance measures, and the status of implementation of each plan; and

(iii) any additional authorities or resources required.

(B) FORM.—Each report required under this section shall be submitted in unclassified form and may contain a classified annex.

(5) GOVERNMENT ACCOUNTABILITY OFFICE REVIEW.—

(A) IN GENERAL.—Not later than 180 days after the date of submission of the first report described in paragraph (4), the Comptroller General of the United States shall submit a report to the congressional defense committees reviewing the assessments and mitigation plans required in paragraphs (1) and (3) of this subsection.

(B) FORM.—This report may be submitted in classified form.

SEC. 1712. TAIWAN-FIVE EYES CYBER DEFENSE COOPERATION INITIATIVE.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the Secretary of Defense, in coordination with the Secretary of State and the Director of National Intelligence, should pursue expanded coopera-

tion between Taiwan and the Five Eyes partners on cyber defense; and

(2) such cooperation should include bilateral and multilateral training exercises, law enforcement training, and the negotiation of memoranda of understanding to expand joint cyber-defense exercises.

(b) STRATEGY REQUIRED.—

(1) IN GENERAL.—Not later than 270 days after the date of the enactment of this Act, the Secretary of Defense, in consultation with the Secretary of State and the Director of National Intelligence, shall submit to the appropriate congressional committees a strategy to support the cyber defense of Taiwan through coordination with the Five Eyes partners. The strategy shall include the following:

(A) A framework for facilitating, where appropriate and to the extent consistent with United States law and policy, bilateral and multilateral cyber-defense training exercises involving Taiwan and one or more Five Eyes partners, including through the use of the authority provided in section 5503(b) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (22 U.S,C, 3353(b)).

(B) A plan to support law enforcement training programs for Taiwan focused on cyber-enabled threats, including those targeting critical infrastructure, financial systems, and electoral processes.

(C) Identification of opportunities to encourage the negotiation of memoranda of understanding among Taiwan and Five Eyes partners to expand joint cyber-defense exercises, threat-information sharing, and personnel exchanges.

(D) An assessment of lessons learned from Indo-Pacific partners, and recommendations on how applicable practices could be adapted to support Taiwan.

(E) A description of resources, authorities, and personnel required to implement the strategy, including any additional authorities the Secretary of Defense determines necessary.

(2) FORM.—The strategy described in paragraph (1) shall be transmitted in an unclassified form and may contain a classified annex.

(c) PILOT EXERCISE PROGRAM.—Pursuant to section 5503(b) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (22 U.S.C.

3353(b)), the Secretary of State and the Secretary of Defense may carry out a pilot program to conduct multilateral cyber-defense exercises that include the participation of Taiwan and one or more Five Eyes partners.

(d) BRIEFING.—Not later than 180 days after the date of enactment of this Act, and annually thereafter for a period not to exceed 5 years, the Secretary of Defense shall provide to the appropriate congressional committees a briefing on—

(1) the implementation of the strategy required under subsection (b);

(2) the exercises carried out under the pilot program under subsection (c); and

(3) any impediments to expanded cyber-defense cooperation among Taiwan and the Five Eyes partners.

(e) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committees on Armed Services, Foreign Relations, and Intelligence of the Senate; and

(2) the Committees on Armed Services, Foreign Affairs, and the Permanent Select Committee on Intelligence of the House of Representatives.

SEC. 1713. EXTENSION OF SPECIAL EMERGENCY PROCUREMENT AUTHORITY TO SPECIAL OPERATIONS PROCUREMENT.

(a) COVERAGE OF SPECIAL OPERATIONS FORCES.—Section 1903 of title 41, United States Code, is amended by adding at the end the following new subsection:

''(d) SPECIAL OPERATIONS FORCES PROCUREMENT.—

''(1) IN GENERAL.—The authorities provided in subsections (b) and (c) apply with respect to a procurement of property or services that are to be used for operations and activities of special operations forces.

''(2) APPLICABILITY OF OVERSEAS THRESHOLDS.—For the purposes of this section—

''(A) a contract to be awarded with respect to such a procurement shall be deemed to be awarded and performed outside of the United States; and

''(B) a purchase to be made under such a procurement shall be deemed to be made outside of the United States.

''(3) DEFINITION.—In this subsection, the term 'special operations forces' has the meaning given such term in section 167(j) of title 10.''.

(b) CONFORMING AMENDMENT.—Subsection (b) of such section is amended by inserting ''or (d)'' after ''subsection (a)''.

Subtitle B—Other Matters

SEC. 1721. TECHNICAL AND CONFORMING AMENDMENTS.

(a) TITLE 10, UNITED STATES CODE.—Title 10, United States Code, is amended as follows:

(1) By redesignating the second section 130g (relating to notification requirements for waivers issued under Department of Defense guidance related to autonomy in weapon systems) as section 130h.

(2) In section 130i(m)(4), by striking '' 'covered facility or asset—' '' and inserting '' 'covered facility or asset'—''.

(3) In section 179(f)—

(A) in paragraph (3)(C), by striking ''section 6218'' and inserting ''section 6128''; and

(B) in paragraph (6), by striking ''section 231(f)'' and inserting ''section 231(h)(1)''.

(4) In section 222c—

(A) in subsection (c) by redesignating the second paragraph (9) (relating to the estimated aggregate demand from United States allies and partners) as paragraph (10);

(B) in subsection (f), by striking ''paragraph (1)'' and inserting ''subsection (e)(1)''; and

(C) in subsection (g), by striking ''subsection (c)(9)'' and inserting ''subsection (c)(10)''.

(5) In section 345(c)(4)(B), by striking ''''The'' and inserting ''The''.

(6) In section 430e(a)(2)(C), by striking ''; and'' and inserting a period.

(7) In section 500f(b), by inserting ''of this title'' after ''section 500e''.

(8) In section 714(b)(1), by inserting ''of subsection (a)'' after ''paragraphs (1) through (7)''.

(9) In section 1096(e)—

(A) in paragraph (2)(A), by inserting ''National'' before ''Institute''; and

(B) in paragraph (4)(A), by striking ''1621'' and inserting ''1601''.

(10) In section 1142—

(A) in subsection (b)(9)(A), by striking '',,'' and inserting a comma; and

(B) in subsection (c), by redesignating subparagraph (R) as subparagraph (Q).

(11) In section 1597(d), by inserting a comma after ''involuntary reduction''.

(12) In section 1733(d)—

(A) by redesignating the second paragraph (3) through paragraph (9) as paragraphs (4) through (10), respectively; and

(B) in paragraph (8), as so redesignated, by inserting ''and'' before ''critical readiness''.

(13) In section 2004c(h)(2), by striking ''subsection (f)'' and inserting ''subsection (g)''.

(14) In section 2200h(b)(2), by inserting ''of'' after ''renew the appointment''.

(15) In section 2866a(g)(2)(B), by striking ''subsection (d)(1)(E)'' and inserting ''subsection (d)(2)(E)''.

(16) In section 3702(a)(3)(A)(ii), by striking ''..'' and inserting ''.''.

(17) In section 4324, by redesignating subsection (d) as subsection (c).

(18) In section 4402(e)(1)(B), by striking ''the the'' and inserting ''the''.

(19) In section 9040(b)(4), by inserting a comma after ''Secretary of the Air Force''.

(b) TITLE 37, UNITED STATES CODE.—Title 37, United States Code, is amended as follows:

(1) In paragraph (24)(H) of section 101, by striking ''Reserve Corps of the Public Health Service'' and inserting ''Ready Reserve Corps of the Public Health Service''.

(2) In section 206(d)(2), by striking ''Ready Reserve or'' and inserting ''Ready Reserve, or of''.

(3) In section 302a(a)(2)(B), by striking ''Reserve Corps of the Public Health Service'' and inserting ''Ready Reserve Corps of the Public Health Service''.

(4) In section 302i(b)(1), by striking ''Reserve Corps of the Public Health Service'' and inserting ''Ready Reserve Corps of the Public Health Service''.

(5) In section 303(a)(2)(C), by striking ''Reserve Corps of the Public Health Service'' and inserting ''Ready Reserve Corps of the Public Health Service''.

(6) In section 303a(b), by striking ''Reserve Corps of the Public Health Service'' both places it appears and inserting ''Ready Reserve Corps of the Public Health Service''.

(7) In section 317(b)(2), by striking the period and inserting ''; and''.

(8) In section 335(j)(8), by striking ''reserve corps of the Public Health Service'' and inserting ''Ready Reserve Corps of the Public Health Service''.

(9) In section 351(c)(2)(B)(ii), by striking ''of member'' and inserting ''of a member''.

(10) In section 356(g), by striking ''(a)''.

(11) In the table of sections at the beginning of chapter 8, by striking the item relating to section 463 and inserting the following new item:

''463. Programs of compliance; electronic processing of travel claims.''.

(12) In section 437, in the section heading, by striking ''**premiums**'' and inserting ''**premium**''.

(13) In section 453(g)(5)(A), by striking ''a the'' and inserting ''the''.

(14) In section 501(g), by striking ''Reserve Corps of the Public Health Service'' and inserting ''Ready Reserve Corps of the Public Health Service''.

(15) In section 503(b), by striking ''Reserve Corps of the Public Health Service'' and inserting ''Ready Reserve Corps of the Public Health Service''.

(16) In section 907(d)(1)(K), by striking ''section section'' and inserting ''section''.

(17) In section 908(a)(3), by striking ''Commissioned Reserve Corps of the Public Health Service'' and inserting ''Ready Reserve Corps of the Public Health Service''.

(18) In section 1011, in the section heading, by striking ''**operation**'' and inserting ''**operations**''.

(c) COORDINATION WITH OTHER AMENDMENTS MADE BY THIS ACT.—For purposes of applying amendments made by provisions of this Act other than this section, the amendments made by this section shall be treated as having been enacted immediately before any such amendments by other provisions of this Act.

SEC. 1722. COUNTERING CHINA'S CONTROL OF THE CAUCASUS.

(a) REPORT ON RUSSIAN AND CHINESE INTELLIGENCE ASSETS IN GEORGIA.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Director of National Intelligence and the Secretary of State, shall submit to the relevant congressional committees a classified report that—

(1) is prepared consistent with the protection of sources and methods;

(2) examines the penetration of Russian and Chinese intelligence elements and their assets in Georgia; and

(3) examines the potential intersection of Russian and Chinese influence and cooperation in Georgia.

(b) 5-YEAR UNITED STATES STRATEGY FOR BILATERAL RELATIONS WITH GEORGIA.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of State shall submit to the relevant congressional committees a detailed strategy that—

(A) outlines specific objectives for enhancing bilateral ties which reflect the current domestic political environment in Georgia;

(B) includes a determination of the tools, resources, and funding that should be available to achieve the objectives outlined pursuant to subparagraph (A) and an assessment of whether Georgia should remain a top recipient of United States funding in the Europe and Eurasia region;

(C) includes a determination of the extent to which the United States should continue to invest in its partnership with Georgia; and

(D) includes a determination of whether the Government of Georgia remains committed to expanding trade ties with the United States and Europe and whether the United States Government should continue to invest in Georgian projects.

(2) FORM.—The report required under paragraph (1) shall be submitted in unclassified form, with a classified annex.

(c) RELEVANT CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''relevant congressional committees'' means—

(1) the Committee on Foreign Relations of the Senate;

(2) the Select Committee on Intelligence of the Senate;

(3) the Committee on Armed Services of the Senate;

(4) the Committee on Foreign Affairs of the House of Representatives;

(5) the Permanent Select Committee on Intelligence of the House of Representatives; and

(6) the Committee on Armed Services of the House of Representatives.

SEC. 1723. COMPTROLLER GENERAL STUDY ON SKILLBRIDGE PROGRAMS.

(a) STUDY REQUIRED.—The Comptroller General of the United States shall conduct a study of the Skillbridge programs under section 1143(e) of title 10, United States Code.

(b) REPORT.—Not later than two years after the date of the enactment of this Act, the Comptroller General shall submit to the Committees on Armed Services, and the Committees on Veterans' Affairs, of the Senate and House of Representatives, a report regarding the study required under subsection (a). Such report shall include observations and recommendations of the Comptroller regarding, with respect to members of the Armed Forces and employers who participate in the Skillbridge program—

(1) differences in criteria for participation between the Armed Forces;

(2) other differences in Skillbridge programs between the Armed Forces;

(3) best practices in Skillbridge programs across the Armed Forces, including—

(A) the selection of employers; and

(B) the development of contracts; and

(4) the feasibility of making Skillbridge programs uniform across the Armed Forces.

SEC. 1724. CLARIFICATION OF SUPERVISORY CHAIN FOR POLITICAL APPOINTEES AT THE DEPARTMENT OF DEFENSE.

Except as provided under subsection (b), beginning on and after the date of the enactment of this section, the Secretary of Defense shall take such steps as are necessary to ensure that no political appointee of the Department of Defense is subordinate to any career civilian employee of the Department except for such employees in the Office of the Secretary of Defense.

SEC. 1725. SENSE OF CONGRESS WITH RESPECT TO EXECUTION OF WARRANTS OF THE INTERNATIONAL CRIMINAL COURT.

It is the sense of Congress that the Secretary of Defense and Secretary of State must use every opportunity at forums involving NATO or major non-NATO allies to ensure that such allied countries do not enforce warrants issued by the International Criminal Court against members of the armed forces of the United States or of its other allies.

SEC. 1726. TERMINATION OF PILOT PROGRAMS.

Notwithstanding any other provision of law, any pilot program authorized under this Act shall terminate on the earlier of—

(1) the date that is two years after the date of the enactment of this Act; or

(2) such earlier date as may be specified in the provision authorizing such program.

SEC. 1727. DISCLOSURE REQUIREMENTS FOR PERSONS PERFORMING RESEARCH OR DEVELOPMENT PROJECTS FOR DEPARTMENT OF DEFENSE.

(a) RESEARCH AND DEVELOPMENT PROJECTS.—Section 4001 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(e) DISCLOSURE REQUIREMENTS.—Whenever issuing a statement, press release, request for proposals, bid solicitation, or other document describing a project or program that is funded in whole or in part with Federal funding, a person performing a research or development project under paragraph (1) or (5) of subsection (b) shall clearly state the following:

''(1) The percentage of the total costs of the program or project financed with Federal funding.

''(2) The dollar amount of Federal funds obligated for the project or program.

''(3) The percentage and dollar amount of the total costs of the project or program that will be financed from nongovernmental sources.''.

(b) COOPERATIVE RESEARCH AND DEVELOPMENT AGREEMENTS UNDER STEVENSON-WYDLER TECH-

NOLOGY INNOVATION ACT OF 1980.—Section 4026 of such title is amended—

(1) by striking ''The Secretary of Defense'' and inserting the following:

''(a) AUTHORITY.—The Secretary of Defense'';

(2) in subsection (a), as designated by paragraph (1), in the second sentence, by striking ''Technology may'' and inserting the following:

''(b) TECHNOLOGY TRANSFER.—Technology may''; and

(3) by adding at the end the following new subsection:

''(c) DISCLOSURE REQUIREMENTS.—Whenever issuing a statement, press release, request for proposals, bid solicitation, or other document describing a project or program that is funded in whole or in part with Federal funding, a person performing a research or development project pursuant to a cooperative research and development agreement entered into under subsection (a) shall clearly state the following:

''(1) The percentage of the total costs of the program or project financed with Federal funding.

''(2) The dollar amount of Federal funds obligated for the project or program.

''(3) The percentage and dollar amount of the total costs of the project or program that will be financed from nongovernmental sources.''.

(c) SENSE OF CONGRESS.—It is the sense of Congress that the Secretary of Defense should direct the operating divisions of the Department of Defense to design and implement processes to manage and administer grantees' compliance with the requirements added by this section, including determining to what extent to provide guidance to grantees on calculations.

SEC. 1728. OPERATIONAL PILOT PROGRAM ON ORBITAL DATA CENTER SERVICES.

(a) SHORT TITLE.—This section may be cited as the ''Nodes, Enterprise Workloads, and Hybrid Operations, Resilience, Integration, Zero-Trust, Orbital Networks Act'' or ''NEW HORIZON Act''.

(b) FINDINGS.—Congress makes the following findings:

(1) Modern national security space missions generate increasing volumes of data from space-based sensors, platforms, and constellations, placing growing demands on terrestrial data transport, processing, and analysis infrastructure.

(2) Reliance on ground-based data processing can introduce latency, bandwidth constraints, and

vulnerabilities that may degrade the timeliness, resilience, and effectiveness of military and intelligence operations in contested environments.

(3) Commercial industry is developing orbital data center and space-based cloud computing capabilities that enable in-space data processing, storage, and analytics, which may reduce latency, enhance resilience, and improve mission outcomes.

(4) The Department of Defense has identified the need for hybrid architectures that integrate space, terrestrial, and commercial capabilities to support joint and national security missions.

(5) An operational pilot program is necessary to evaluate the military utility, operational integration, and transition potential of orbital data center services through real-world mission use cases before any broader adoption or sustained acquisition.

(6) Maintaining a competitive and resilient domestic industrial base for orbital infrastructure, including satellite platforms, communications systems, and in-space computing capabilities, is important to accelerating innovation and supporting operational resilience.

(c) PILOT PROGRAM.—

(1) IN GENERAL.—Not later than 1 year after the date of the enactment of this Act, the Secretary of Defense (referred to in this Act as the ''Secretary''), acting through the Director of the Defense Innovation Unit, shall carry out an operational pilot program under the Hybrid Space Architecture initiative to evaluate the use of commercially available orbital data center services and space-based cloud computing capabilities relevant to national security space and joint mission requirements.

(2) PURPOSES.—The purposes of the pilot program shall be—

(A) to assess the military utility of orbital data center and space-based cloud computing services;

(B) to evaluate the operational integration of such services into existing and planned Department of Defense space and joint architectures;

(C) to examine the resilience, latency, security, and mission assurance benefits of in-space data processing;

(D) to inform the potential transition of such services into sustained programs of record or operational use;

(E) to evaluate concepts of operations for the protection and defense of orbital data center assets against kinetic, nonkinetic, and cyber threats;

(F) to assess the asset protection strategies and vulnerabilities of orbital data center infrastructure; and

(G) to evaluate the integration and operational performance of interoperable, commercially provided orbital infrastructure components sourced from multiple vendors across the hybrid space architecture ecosystem.

(3) SCOPE.—In carrying out the pilot program, the Secretary may—

(A) employ commercially available orbital data center services in support of real-world mission scenarios, including intelligence, space domain awareness, command and control, data transport, and other national security applications;

(B) conduct testing, demonstration, and limited operational employment necessary to assess technical performance and operational viability; and

(C) support integration activities required to evaluate interoperability with the Department of Defense's space, ground, and network systems.

(4) ACQUISITION AUTHORITY.—The Secretary shall encourage competitive participation from a diverse set of nontraditional defense contractors and commercial space providers.

(5) SECURITY AND RESILIENCE MEASURES FOR SENSITIVE AND CLASSIFIED INFORMATION.—In carrying out the pilot program, the Secretary shall ensure that any orbital data center services used to process, store, or transmit sensitive or classified information have in place—

(A) cybersecurity protections, including zero-trust architecture, encryption, identity and access management, continuous monitoring, and protections against insider threats;

(B) risk-management measures—

(i) to address supply chain vulnerabilities and foreign ownership, control, or influence; and

(ii) that achieve compliance with applicable Department of Defense cybersecurity and authorization requirements;

(C) resilience and mission assurance capabilities, including redundancy, failover, operation in degraded or contested environments, and rapid reconstitution or replacement capabilities;

(D) protections against cyber, electronic warfare, counterspace, and other nonkinetic threats;

(E) secure telemetry, tracking, and command links and associated command-and-control systems, including authenticated command uplinks, encrypted telemetry and data links, anti-spoofing and anti-jamming protections, resilient cryptographic key management, protected timing and navigation inputs, and secure software and firmware update mechanisms;

(F) protections for associated ground systems, mission operations centers, terrestrial network connections, software supply chains, and user access interfaces, including segmentation, continuous monitoring, access controls, encryption, and resilience against cyber intrusion, disruption, and unauthorized access; and

(G) protections to ensure workload isolation, tenant separation, and data sovereignty

for sensitive or classified information processed, stored, or transmitted through orbital data center services, including safeguards against unauthorized cross-tenant, cross-domain, or provider access.

(6) INTEGRATION AND INTEROPERABILITY.—The Secretary shall ensure that any orbital data center services evaluated under the pilot program are interoperable with existing Department of Defense command, control, communications, and intelligence systems.

(7) CONSULTATION.—In carrying out the pilot program, the Secretary, acting through the Director of the Defense Innovation Unit, shall consult with—

(A) the Assistant Secretary of Defense for Space Policy;

(B) service acquisition executives (as defined in section 101 of title 10, United States Code);

(C) the Space Force and other military departments with potential operational interest or transition pathways;

(D) the National Reconnaissance Office;

(E) the National Geospatial-Intelligence Agency; and

(F) such other individuals and organizations as the Secretary considers appropriate.

(8) BRIEFING.—Not later than December 31, 2028, the Secretary shall provide the congressional defense committees (as defined in section 101 of title 10, United States Code) with a briefing on—

(A) execution of the pilot program;

(B) operational use cases evaluated;

(C) lessons learned from operational employment;

(D) recommendations regarding future acquisition or operational use of orbital data center services;

(E) cybersecurity risks, insider threat vulnerabilities, and mitigation measures;

(F) resilience against counterspace threats and contested space environments;

(G) commercial provider risks, including supply chain and foreign ownership concerns; and

(H) recommendations for security, resilience, and acquisition requirements for any future program of record.

(d) TERMINATION.—The authority to carry out the pilot program under this section shall terminate on the

date that is five years after the date of the enactment of this Act.

(e) ORBITAL DATA CENTER DEFINED.—In this section, the term ''orbital data center'' means a space-based computing, data storage, or networking capability, including 1 or more spacecraft, hosted payloads, or distributed orbital architectures, designed primarily to provide persistent, scalable, or shared in-orbit processing, analysis, storage, fusion, routing, or dissemination of data as a distinct operational capability, rather than as a function ancillary to the primary mission of a spacecraft, prior to transmission to terrestrial or other external infrastructure, including to reduce latency, mitigate bandwidth constraints, improve operational resilience, or support time-sensitive missions.

SEC. 1729. REPORT ON USAGE OF WEARABLE DEVICES.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to Congress a report on—

(1) the usage of wearable devices by members of the Armed Forces for health, fitness, readiness, performance, training, recovery, and operational purposes, including when on deployment and when in combat;

(2) the effectiveness of such usage; and

(3) whether such usage should be expanded.

(b) WEARABLE DEVICE DEFINED.—In this section, the term ''wearable device''—

(1) means a consumer or commercial technology device that is worn on the body of an individual and is capable of collecting, storing, or transmitting data related to the health, fitness, physiological condition, physical activity, sleep, recovery, location, or performance of such individual;

(2) includes smart watches, fitness trackers, smart rings, and similar devices; and

(3) does not include implanted medical devices or equipment issued solely for weapons operation or communications.

SEC. 1730. REPORT ON INTERAGENCY COORDINATION TARGETING FENTANYL AND PRECURSOR CHEMICALS.

(a) IN GENERAL.—The Secretary of Defense shall expand interagency coordination with respect to the targeting of fentanyl and precursor chemicals, including by establishing joint operations with the Secretary of Health and Human Services and the Attorney General.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a re-

port on the coordination required under subsection (a) that identifies, with respect to fentanyl and precursor chemicals, any gaps between agencies in detection, monitoring, and interdiction activities.

SEC. 1731. GAO STUDY ON DEPARTMENT OF DEFENSE RELIANCE ON CHINESE-SOURCED MATERIALS.

Not later than one year after the date of enactment of this Act, the Comptroller General of the United States shall conduct a component-level assessment on the reliance of the Department of Defense on Chinese-sourced materials in munitions, microelectronics, and energy storage systems, including recommendations for alternative sourcing strategies.

SEC. 1732. PROHIBITION ON TELECOMMUNICATION AWARDS TO CERTAIN ENTITIES SUBJECT TO FOREIGN INFLUENCE.

Beginning on and after the date of the enactment of this section, the Secretary of Defense may not award a Department of Defense telecommunications contract to an entity if the Secretary determines that the entity is subject to foreign ownership, control, jurisdiction, or legal obligations that could require disclosure of Department of Defense information or Department of Defense network operational data to a foreign government.

SEC. 1733. ASSESSMENT OF COUNTER-SUBTERRANEAN TECHNOLOGIES.

(a) ASSESSMENT.—Not later than one year after the date of the enactment of this Act, and annually thereafter for each of the subsequent five years, the Director of the Combating Terrorism Technical Support Office of the Department of Defense, in coordination with the Under Secretary of Defense for Research and Engineering, shall convene and engagement with appropriate officials of the Department of Homeland Security, including the United States Border Patrol Subterranean Program Management Office, to—

(1) identify Department of Defense-developed or Department of Defense-sponsored technologies, capabilities, and research efforts relevant to the detection, mapping, monitoring, or mitigation of subterranean threats;

(2) assess opportunities to transition, adapt, test, or evaluate such technologies for operational use in detecting, monitoring, and countering illicit cross-border tunnel activity along the international borders of the United States;

(3) identify opportunities for collaboration relating to research, development, testing, evaluation, and technology transition activities concerning counter-subterranean capabilities; and

(4) identify barriers to interagency cooperation, technology transfer, testing, evaluation, or deployment of such capabilities.

(b) ANNUAL REPORT AND BRIEFING.—Not later than 90 days after each engagement required under subsection (a), the Director of the Combating Terrorism Technical Support Office shall submit a report and provide a briefing to the Committee on Homeland Security of the House of Representatives and the Committee on Armed Services and the Committee on Homeland Security and Governmental Affairs of the Senate that includes a description of—

(1) the technologies, capabilities, and research efforts discussed during the engagement;

(2) opportunities identified for further research, development, testing, evaluation, transition, or operational assessment activities;

(3) recommendations for improving coordination between the Department of Defense and Federal partners regarding counter-subterranean technologies; and

(4) any legislative, regulatory, or administrative barriers affecting the development, transition, or deployment of counter-subterranean capabilities.

SEC. 1734. STUDY RELATING TO DEVELOPMENT OF SUPERSONIC AIRSPACE CORRIDOR.

(a) IN GENERAL.—The Secretary of Defense shall conduct a study relating to establishing a supersonic airspace corridor between the airspace of the R-2508 Complex and the broad ocean area.

(b) CONSIDERATIONS.—In conducting the study under subsection (a), the Secretary shall consider the following:

(1) The feasible geographical parameters of the corridor.

(2) The effect of military and commercial aircraft systems in the corridor, including both manned and unmanned systems, reaching speeds up to Mach 4.9.

(3) The requirements to carry out launch and operations at all elevations, including bidirectional operations.

(4) The requirements needed to—

(A) activate the corridor with not more than 10 days of notice; and

(B) keep the corridor active for up to 4 hours at a time.

(c) CONSULTATION.—In conducting the study under subsection (a), the Secretary shall consult with—

(1) authorities at the military installations in the R-2508 Complex, any relevant tenants, and the local space port to determine the demand for and requirements needed to the establish the corridor; and

(2) the Administrator of the Federal Aviation Administration and any other Federal, State, or local authority the Secretary determines appropriate.

(d) SUBMISSION TO CONGRESS.—Not later than March 1, 2027, the Secretary shall submit to the congressional defense committees the results of the study conducted under subsection (a).

SEC. 1735. EXTENSION OF THE DEFENSE PRODUCTION ACT OF 1950.

Section 717(a) of the Defense Production Act of 1950 (50 U.S.C. 4564(a)) is amended by striking ''2026'' and inserting ''2031''.

SEC. 1736. LIMITATION REGARDING CERTAIN EXPORT CONTROLS.

Section 38(l)(4)(B) of the Arms Export Control Act (22 U.S.C. 2778(l)(4)(B)) is amended by inserting before the semicolon '', excluding subclauses (I), (II), and (III)''.''.

SEC. 1737. SENSE OF CONGRESS.

It is the sense of Congress that the United States reaffirms its unwavering commitment to the AUKUS

partnership with Australia and the United Kingdom as vital to maintaining a safe and secure world. Congress supports robust investment in the United States submarine industrial base to promote the AUKUS partnership, including through expanded workforce training, shipyard modernization, and supply chain development.

SEC. 1738. ANNUAL REPORT ON MILITARY POWER AND ILLICIT ACTIVITIES OF CERTAIN DRUG CARTELS.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, and annually thereafter until the date specified in subsection (f), the Secretary of Defense, in coordination with the Secretary of State, the Director of National Intelligence, and the Attorney General, shall submit to the appropriate congressional committees a report on the military power and illicit activities of the cartels specified in subsection (b). Each such report shall include each of the following:

(1) A detailed assessment of the organizational structure, leadership hierarchy, and key operational figures of each cartel, including, with respect to any individuals affiliated with the cartel, the roles of such individuals in conducting military and paramilitary activities.

(2) An evaluation of the military and paramilitary capabilities of each cartel, including the size, structure, and sophistication of the armed forces or militias of the cartel, including—

(A) a description of the types and quantities of weapons, equipment, and technology (including drones, encrypted communications, and advanced surveillance systems) used by the cartel; and

(B) an assessment of the recruitment, training, and operational tactics of the cartel, including an identification of any cross-border operations and coordination with other criminal or terrorist organizations.

(3) A description of the geographic areas, both within the United States and internationally, where the cartels operate or exert control of territory or influence, including the control of such cartels over border regions and smuggling routes.

(4) An assessment of the direct and indirect threats posed by the cartels to the national security of the United States and its allies.

(5) An assessment of efforts to address the threats posed by the military power of cartels by the governments of countries identified as major drug

transit or major illicit drug producing countries pursuant to section 706(1) of the Foreign Relations Authorization Act, Fiscal Year 2003 (Public Law 107–228).

(6) A summary of current efforts by the Armed Forces, law enforcement, and intelligence community of the United States to counter the activities of the cartels, including interagency coordination and cooperation with foreign governments.

(7) Recommendations for additional authorities, resources, or strategies to enhance the efforts of the United States to disrupt and dismantle the military capabilities of the cartels.

(b) SPECIFIED CARTELS.—A cartel specified in this subsection is any organization or entity that is engaged in the production or trafficking of narcotics and that—

(1) the Secretary of State has designated as a foreign terrorist organization pursuant to section 219 of the Immigration and Nationality Act (8 U.S.C. 1189);

(2) is subject to sanctions under Executive Order 13224 (50 U.S.C. 1701 note, relating to blocking property and prohibiting transactions with persons who commit, threaten to commit, or support terrorism);

(3) is subject to sanctions under Executive Order 14059 (relating to imposing sanctions on foreign persons involved in the global illicit drug trade); or

(4) is determined to be a transnational criminal organization pursuant to the Fentanyl Eradication and Narcotics Deterrence Act (division E of Public Law 118–50; 21 U.S.C. 2341 note).

(c) FORM OF REPORT.—The report required under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

(d) PUBLIC AVAILABILITY.—The unclassified portion of the report required under subsection (a) shall be made publicly available on a website of the Department of Defense.

(e) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the congressional defense committees;

(2) the congressional intelligence committees;

(3) the Committee on Transportation and Infrastructure, the Committee on Foreign Affairs, and the Committee on the Judiciary of the House of Representatives; and

(4) the Committee on Commerce, Science, and Transportation, the Committee on Foreign Relations, and the Committee on the Judiciary of the Senate.

(f) DATE SPECIFIED.—The date specified in this subsection is December 31, 2030.

SEC. 1739. AMENDMENTS TO REQUIREMENTS FOR RAILROAD FREIGHT CARS PLACED INTO SERVICE IN THE UNITED STATES AND TRANSPORTING DEPARTMENT OF DEFENSE CARGO.

Section 20171 of title 49, United States Code, is amended—

(1) in subsection (a)—

(A) by redesignating paragraphs (5) through (12), as paragraphs (6) through (13), respectively; and

(B) by inserting after paragraph (4) the following:

''(5) DEPARTMENT OF DEFENSE CARGO.—The term 'Department of Defense cargo' means the movement of goods by a rail carrier arranged for, by, or on behalf of any of the armed forces, as defined in section 101 of title 10.'';

(2) in subsection (b)(1) by striking ''A railroad'' and inserting ''Expect as required in subsection (d), a railroad'';

(3) in subsection (c)(3)(B) by striking ''Association of American Railroad's Umler system'' and inserting ''Association of American Railroads' Umler system''; and

(4) by adding at the end the following new paragraph:

''(d) REQUIREMENTS FOR RAILROAD FREIGHT CARS TRANSPORTING DEPARTMENT OF DEFENSE CARGO.—For railroad freight cars transporting Department of Defense cargo, the requirements of subsection (b) shall apply as follows:

''(1) For the 1-year period beginning on the date of enactment of the National Defense Authorization Act for Fiscal Year 2027, a railroad freight car produced during the 2-year period immediately prior to such date of enactment.

''(2) For the 1-year period beginning 1 year after such date of enactment, a railroad freight car produced during the 5-year period immediately prior to such date of enactment.

''(3) For the 1-year period beginning 2 years after such date of enactment, a railroad freight car

produced during the 10-year period immediately prior to such date of enactment.

''(4) For the 1-year period beginning 3 years after such date of enactment, a railroad freight car produced during the 15-year period immediately prior to such date of enactment.

''(5) On and after the date that is 4 years after such date of enactment, a railroad freight car.''.

SEC. 1740. REPORT ON AVERAGE RESPONSE TIMES TO REQUESTS FOR DD-214S.

Not later than 180 days after enactment of this Act, the Secretary of Defense, in consultation with the Archivist of the United States, shall submit to the Committees on Armed Services of the Senate and House of Representatives a report that includes each of the following:

(1) The average response time, over the three-year period preceding the date of the submission of the report, to provide a replacement Certificate of Release or Discharge from Active Duty (DD Form 214) to a veteran, next of kin, or other authorized representative upon receipt of required documentation to grant such request.

(2) The average response time, over such three-year period, to notify a veteran, next of kin, or other authorized representative who requests a Certificate

of Release or Discharge from Active Duty (DD Form 214) that the request cannot be granted due to a lack of required documentation.

SEC. 1741. PROHIBITION ON USE OF CCP-LINKED FINANCIAL SERVICES PROVIDERS ON DEPARTMENT OF DEFENSE DEVICES.

(a) DEFINITIONS.—In this section:

(1) The term ''control'' means beneficially owning, either directly or through one or more companies, more than 25 percent of the voting securities of an entity.

(2) The term ''CCP-linked financial services provider'' means—

(A) a broker or dealer that is a member of a national securities association and registered with the Securities and Exchange Commission that is organized under the laws of the People's Republic of China, is controlled by an entity organized under the laws of the People's Republic of China, or is controlled by a national of the People's Republic of China who resides in the People's Republic of China;

(B) an investment adviser registered with the Securities and Exchange Commission under the Investment Advisers Act of 1940 that is or-

ganized under the laws of the People's Republic of China, is controlled by an entity organized under the laws of the People's Republic of China, or is controlled by a national of the People's Republic of China who resides in the People's Republic of China; or

(C) any other entity providing financial, investment, or payment services that is organized under the laws of the People's Republic of China, is controlled by an entity organized under the laws of the People's Republic of China, or is controlled by a national of the People's Republic of China who resides in the People's Republic of China.

(3) The term ''Department of Defense device'' means any computing device, mobile device, or communications equipment issued by the Department of Defense or any component thereof.

(b) PROHIBITION.—Except as provided in subsection (c), no officer or employee of the Department of Defense, member of the Armed Forces, or contractor personnel operating a Department of Defense device may download, install, or use any application, platform, or software interface operated by a CCP-linked financial services provider on any Department of Defense device.

(c) EXCEPTION.—Subsection (b) shall not apply to any use in connection with a law enforcement investigation, intelligence activity, national security operation, cybersecurity research activity, or enforcement or supervisory action conducted in an official capacity and authorized by the Secretary of Defense or the Secretary's designee.

SEC. 1742. PARTNERSHIP WITH SCOUTING AMERICA.

The Secretary of Defense shall maintain a partnership between the Department of Defense and Scouting America in the manner in which such partnership has historically been maintained.

Subtitle C—Initiating Biomedical Outcomes to Garner Advancements Into Innovative Efficacy

SEC. 1751. DESIGNATION OF SENIOR OFFICIAL FOR EMERGING THERAPEUTIC INTERVENTIONS WITHIN THE DEPARTMENT OF VETERANS AFFAIRS.

(a) DESIGNATION.—Not later than 90 days after the date of enactment of this Act, the Under Secretary for Health of the Department of Veterans Affairs shall designate a senior official of the Department to oversee policy, programs, and other activities related to emerging therapeutic interventions.

(b) ROLE, RESPONSIBILITY, AND AUTHORITY.—The Under Secretary for Health, in consultation with the Secretary of Veterans Affairs, shall prescribe the roles, responsibilities, and authorities of the official designated under subsection (a), including—

(1) assisting the Secretary of Veterans Affairs, the Deputy Secretary of Veterans Affairs, and the Under Secretary for Health with policies, operations, programs, and activities relating to emerging therapeutic interventions;

(2) working in coordination with the Secretary of Health and Human Services, the Commissioner of Food and Drugs, the Secretary of Defense, and the Attorney General to improve the efficiency and effectiveness of all activities related to emerging therapeutic interventions within the Department of Veterans Affairs; and

(3) working with Federal agencies, State and local governments, and nongovernmental organizations to improve the delivery of, and access to, emerging therapeutic interventions.

(c) BRIEFING ON DESIGNATION AND IMPLEMENTATION.—Not later than 90 days after the date of enactment of this Act, the Secretary of Veterans Affairs shall provide

a briefing to the Committees on Veterans' Affairs of the House of Representatives and Senate on—

(1) the status of the designation of the official under subsection (a); and

(2) the implementation of the roles, responsibilities, and the authorities of the official under subsection (b).

SEC. 1752. EMERGING THERAPEUTIC INTERVENTIONS AT THE DEPARTMENT OF VETERANS AFFAIRS.

(a) REPORT.—

(1) IN GENERAL.—Not later than 60 days after the date of enactment of this Act, and biannually thereafter, the Under Secretary for Health of the Department of Veterans Affairs shall submit to the Committees on Veterans' Affairs of the House of Representatives and Senate a report on the activities of the Department with respect to emerging therapeutic interventions, including psychedelic-assisted therapies.

(2) CONTENTS.—At a minimum, each report under paragraph (1) shall, with respect to emerging therapeutic interventions, include—

(A) a summary of research activities, including a list of active and planned clinical

trials, of the Department relating to emerging therapeutic interventions;

(B) an identification of key findings from clinical outcomes and patient-reported outcomes made during clinical trials conducted or supported by the Department;

(C) the number of veterans enrolled in treatment programs and clinical trials related to emerging therapeutic interventions;

(D) interagency coordination efforts of the Department, including with the Food and Drug Administration, the Drug Enforcement Agency, and other relevant government agencies;

(E) recommendations to improve the delivery of innovative therapies to veterans, including psychedelic-assisted therapies; and

(F) recommendations for legislative or administrative actions relating to emerging therapeutic interventions.

(b) WORKFORCE READINESS.—The Under Secretary for Health of the Department of Veterans Affairs shall develop a workforce implementation-readiness plan for emerging therapeutic interventions (including psychedelic-assisted therapies), including—

(1) conducting a workforce-readiness assessment to identify clinicians and peer support specialists with prior training or certification relevant to emerging therapeutic interventions and gaps in training, supervision, and clinical capacity necessary to support safe and effective implementation of such interventions;

(2) developing a standardized, competency-based training framework for clinicians and peer support specialists participating in emerging therapeutic interventions, including safety monitoring, supervision standards, competent care, interdisciplinary collaboration, and other areas where appropriate; and

(3) developing and implementing a plan to ensure training, using such framework, is conducted, and credentialing standards are applied, with respect to the appropriate clinicians and medical centers of the Department, including any centers of excellence, in a manner designed to ensure access across each Veterans Integrated Service Network.

SEC. 1753. REPORT ON ACCELERATING MEDICAL TREATMENTS FOR SERIOUS MENTAL ILLNESS.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary of Veterans

Affairs, in collaboration with the Commissioner of the Food and Drug Administration and the Administrator of the Drug Enforcement Agency, shall provide a report to appropriate committees of Congress on the implementation of Executive Order 14401, titled ''Accelerating Medical Treatments for Serious Mental Illness'' (April 18, 2026).

(b) APPROPRIATE COMMITTEES OF CONGRESS.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Committee on Energy and Commerce of the House of Representatives;

(2) the Committee on Veterans' Affairs of the House of Representatives;

(3) the Committee on Health, Education, Labor, and Pensions of the Senate; and

(4) the Committee on Veterans' Affairs of the Senate.

Subtitle D—Unidentified Anomalous Phenomena Records Collection At the National Archives and Records Administration

SEC. 1761. UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS COLLECTION AT THE NATIONAL ARCHIVES AND RECORDS ADMINISTRATION.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—(A) Not later than 60 days after the date of the enactment of this Act, the Archivist shall commence establishment of a collection of records in the National Archives to be known as the ''Unidentified Anomalous Phenomena Records Collection''.

(B) In carrying out subparagraph (A), the Archivist shall ensure the physical integrity and original provenance (or if indeterminate, the earliest historical owner) of all records in the Collection.

(C) The Collection shall consist of record copies of all Government, Government-provided, or Government-funded records relating to unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence (or equivalent subjects by any other name with the specific and sole exclusion of temporarily non-attributed objects), which

shall be transmitted to the National Archives in accordance with section 2107 of title 44, United States Code.

(D) The Archivist shall prepare and publish a subject guidebook and index to the Collection.

(2) CONTENTS.—The Collection shall include the following:

(A) All unidentified anomalous phenomena records, regardless of age or date of creation—

(i) that have been transmitted to the National Archives or disclosed to the public in an unredacted form prior to the date of the enactment of this Act;

(ii) that are required to be transmitted to the National Archives; and

(iii) that the disclosure of which is postponed under this subtitle.

(B) A central directory comprised of identification aids created for each record transmitted to the Archivist under section 1742.

(C) All Review Board records as required by this subtitle.

(b) DISCLOSURE OF RECORDS.—All unidentified anomalous phenomena records transmitted to the National Archives for disclosure to the public shall—

(1) be included in the Collection; and

(2) be available to the public—

(A) for inspection and copying at the National Archives within 30 days after their transmission to the National Archives; and

(B) digitally via the National Archives online database within a reasonable amount of time not to exceed 180 days thereafter.

(c) SECURITY OF RECORDS.—The National Security Program Office at the National Archives, in consultation with the National Archives Information Security Oversight Office, shall establish a program to ensure the security of the postponed unidentified anomalous phenomena records in the protected, and yet-to-be disclosed or classified portion of the Collection.

SEC. 1762. REVIEW, IDENTIFICATION, TRANSMISSION TO THE NATIONAL ARCHIVES, AND PUBLIC DISCLOSURE OF UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS BY GOVERNMENT OFFICES.

(a) IDENTIFICATION, ORGANIZATION, AND PREPARATION FOR TRANSMISSION.—

(1) IN GENERAL.—As soon as practicable after the date of the enactment of this Act, each head of a Government office shall—

(A) identify and organize records in the possession of the Government office or under the control of the Government office relating to unidentified anomalous phenomena; and

(B) prepare such records for transmission to the Archivist for inclusion in the Collection.

(2) PROHIBITIONS.—(A) No unidentified anomalous phenomena record shall be destroyed, altered, or mutilated in any way.

(B) No unidentified anomalous phenomena record made available or disclosed to the public prior to the date of enactment of this Act may be withheld, redacted, postponed for public disclosure, or reclassified.

(C) No unidentified anomalous phenomena record created by a person or entity outside the Federal Government (excluding names or identities consistent with the requirements of section 1743) shall be withheld, redacted, postponed for public disclosure, or reclassified.

(b) CUSTODY OF UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS PENDING REVIEW.—During the review by the heads of Government offices under subsection (c) and pending review activity by the Review Board, each head of a Government office shall retain custody of the

unidentified anomalous phenomena records of the office for purposes of preservation, security, and efficiency, unless—

(1) the Review Board requires the physical transfer of the records for purposes of conducting an independent and impartial review;

(2) transfer is necessary for an administrative hearing or other Review Board function; or

(3) it is a third agency record described in subsection (c)(2)(C).

(c) REVIEW BY HEADS OF GOVERNMENT OFFICES.—

(1) IN GENERAL.—Not later than 300 days after the date of enactment of this Act, each head of a Government office shall review, identify, and organize each unidentified anomalous phenomena record in the custody or possession of the office for—

(A) disclosure to the public;

(B) review by the Review Board; and

(C) transmission to the Archivist.

(2) REQUIREMENTS.—In carrying out paragraph (1), the head of a Government office shall—

(A) determine which of the records of the office are unidentified anomalous phenomena records;

(B) determine which of the unidentified anomalous phenomena records of the office have been officially disclosed or made publicly available in a complete and unredacted form;

(C)(i) determine which of the unidentified anomalous phenomena records of the office, or particular information contained in such a record, was created by a third agency or by another Government office; and

(ii) transmit to a third agency or other Government office those records, or particular information contained in those records, or complete and accurate copies thereof;

(D)(i) determine whether the unidentified anomalous phenomena records of the office or particular information in unidentified anomalous phenomena records of the office are covered by the standards for postponement of public disclosure under this subtitle; and

(ii) specify on the identification aid required by subsection (d) the applicable postponement provision contained in section 1743;

(E) organize and make available to the Review Board all unidentified anomalous phenomena records identified under subparagraph

(D) the public disclosure of, which in-whole or in-part, may be postponed under this subtitle;

(F) organize and make available to the Review Board any record concerning which the office has any uncertainty as to whether the record is an unidentified anomalous phenomena record governed by this subtitle;

(G) give precedence of work to—

(i) the identification, review, and transmission of unidentified anomalous phenomena records not already publicly available or disclosed as of the date of enactment of this Act;

(ii) the identification, review, and transmission of all records that most unambiguously and definitively pertain to unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence;

(iii) the identification, review, and transmission of unidentified anomalous phenomena records that on the date of enactment of this Act are the subject of litigation under section 552 of title 5, United States Code; and

(iv) the identification, review, and transmission of unidentified anomalous phenomena records with earliest provenance when not inconsistent with clauses (i) through (iii) and otherwise feasible; and

(H) make available to the Review Board any additional information and records that the Review Board has reason to believe the Review Board requires for conducting a review under this subtitle.

(3) PRIORITY OF EXPEDITED REVIEW FOR DIRECTORS OF CERTAIN ARCHIVAL DEPOSITORIES.—The Director of each archival depository established under section 2112 of title 44, United States Code, shall have as a priority the expedited review for public disclosure of unidentified anomalous phenomena records in the possession and custody of the depository, and shall make such records available to the Review Board as required by this subtitle.

(d) IDENTIFICATION AIDS.—

(1) IN GENERAL.—(A) Not later than 45 days after the date of enactment of this Act, the Archivist, in consultation with the heads of such Government offices as the Archivist considers appropriate, shall prepare and make available to all Government

offices a standard form of identification, or finding aid, for use with each unidentified anomalous phenomena record subject to review under this subtitle whether in hardcopy (physical), softcopy (electronic), or digitized data format as may be appropriate.

(B) The Archivist shall ensure that the identification aid program is established in such a manner as to result in the creation of a uniform system for cataloging and finding every unidentified anomalous phenomena record subject to review under this subtitle where ever and how ever stored in hardcopy (physical), softcopy (electronic), or digitized data format.

(2) REQUIREMENTS FOR GOVERNMENT OFFICES.—Upon completion of an identification aid using the standard form of identification prepared and made available under subparagraph (A) of paragraph (1)) for the program established pursuant to subparagraph (B) of such paragraph, the head of a Government office shall—

(A) attach a printed copy to each physical unidentified anomalous phenomena record, and an electronic copy to each softcopy or digitized data unidentified anomalous phenomena record, the identification aid describes;

(B) transmit to the Review Board a printed copy for each physical unidentified anomalous phenomena record and an electronic copy for each softcopy or digitized data unidentified anomalous phenomena record the identification aid describes; and

(C) attach a printed copy to each physical unidentified anomalous phenomena record, and an electronic copy to each softcopy or digitized data unidentified anomalous phenomena record the identification aid describes, when transmitted to the Archivist.

(3) RECORDS OF THE NATIONAL ARCHIVES THAT ARE PUBLICLY AVAILABLE.—Unidentified anomalous phenomena records which are in the possession of the National Archives on the date of enactment of this Act, and which have been publicly available in their entirety without redaction, shall be made available in the Collection without any additional review by the Review Board or another authorized office under this subtitle, and shall not be required to have such an identification aid unless required by the Archivist.

(e) TRANSMISSION TO THE NATIONAL ARCHIVES.—Each head of a Government office shall—

(1) transmit to the Archivist, and make immediately available to the public, all unidentified anomalous phenomena records of the Government office that can be publicly disclosed, including those that are publicly available on the date of enactment of this Act, without any redaction, adjustment, or withholding under the standards of this subtitle; and

(2) transmit to the Archivist upon approval for postponement by the Review Board or upon completion of other action authorized by this subtitle, all unidentified anomalous phenomena records of the Government office the public disclosure of which has been postponed, in whole or in part, under the standards of this subtitle, to become part of the protected, yet-to-be disclosed, or classified portion of the Collection.

(f) CUSTODY OF POSTPONED UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS.—An unidentified anomalous phenomena record the public disclosure of which has been postponed shall, pending transmission to the Archivist, be held for reasons of security and preservation by the originating body until such time as the information security program has been established at the National Archives as required in section 1741(c).

(g) PERIODIC REVIEW OF POSTPONED UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS.—

(1) IN GENERAL.—All postponed or redacted records shall be reviewed periodically by the originating agency and the Archivist consistent with the recommendations of the Review Board in the Controlled Disclosure Campaign Plan under section 1746(c)(3)(B).

(2) REQUIREMENTS.—(A) A periodic review under paragraph (1) shall address the public disclosure of additional unidentified anomalous phenomena records in the Collection under the standards of this subtitle.

(B) All postponed unidentified anomalous phenomena records determined to require continued postponement shall require an unclassified written description of the reason for such continued postponement relevant to these specific records. Such description shall be provided to the Archivist and published in the Federal Register upon determination.

(C) The time and release requirements specified in the Controlled Disclosure Campaign Plan shall be revised or amended only if the Review Board is still in session and concurs with the rationale for post-

ponement, subject to the limitations in section 1746(d)(1).

(D) The periodic review of postponed unidentified anomalous phenomena records shall serve to downgrade and declassify security classified information.

(E) Each unidentified anomalous phenomena record shall be publicly disclosed in full, and available in the Collection, not later than the date that is 25 years after the date of the first creation of the record by the originating body, unless the President certifies, as required by this subtitle, that—

(i) continued postponement is made necessary by an identifiable harm to the military defense, intelligence operations, law enforcement, or conduct of foreign relations; and

(ii) the identifiable harm is of such gravity that it outweighs the public interest in disclosure.

(h) REQUIREMENTS FOR EXECUTIVE AGENCIES.—

(1) IN GENERAL.—The heads of Executive agencies shall—

(A) transmit digital records electronically in accordance with section 2107 of title 44, United States Code;

(B) charge fees for copying unidentified anomalous phenomena records; and

(C) grant waivers of such fees pursuant to the standards established by section 552(a)(4) of title 5, United States Code.

(2) AMOUNT OF FEES.—The amount of a fee charged by the head of an Executive agency pursuant to paragraph (1)(B) for the copying of an unidentified anomalous phenomena record shall be such amount as the head determines appropriate to cover the costs incurred by the Executive agency in making and providing such copy, except that in no case may the amount of the fee charged exceed the actual expenses incurred by the Executive agency in making and providing such copy.

SEC. 1763. GROUNDS FOR POSTPONEMENT OF PUBLIC DISCLOSURE OF UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS.

Disclosure of unidentified anomalous phenomena records or particular information in unidentified anomalous phenomena records to the public may be postponed subject to the limitations of this subtitle if there is clear and convincing evidence that—

(1) the threat to the military defense, intelligence operations, or conduct of foreign relations of

the United States posed by the public disclosure of the unidentified anomalous phenomena record is of such gravity that it outweighs the public interest in disclosure, and such public disclosure would reveal—

(A) an intelligence agent whose identity currently requires protection;

(B) an intelligence source or method which is currently utilized, or reasonably expected to be utilized, by the Federal Government and which has not been officially disclosed, the disclosure of which would interfere with the conduct of intelligence activities; or

(C) any other matter currently relating to the military defense, intelligence operations, or conduct of foreign relations of the United States, the disclosure of which would demonstrably and substantially impair the national security of the United States;

(2) the public disclosure of the unidentified anomalous phenomena record would reveal the name or identity of a living person who provided confidential information to the Federal Government and would pose a substantial risk of harm to that person;

(3) the public disclosure of the unidentified anomalous phenomena record could reasonably be expected to constitute an unwarranted invasion of personal privacy, and that invasion of privacy is so substantial that it outweighs the public interest; or

(4) the public disclosure of the unidentified anomalous phenomena record would compromise the existence of an understanding of confidentiality currently requiring protection between a Federal Government agent and a cooperating individual or a foreign government, and public disclosure would be so harmful that it outweighs the public interest.

SEC. 1764. ESTABLISHMENT AND POWERS OF THE UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS REVIEW BOARD.

(a) ESTABLISHMENT.—There is established as an independent agency a board to be known as the ''Unidentified Anomalous Phenomena Records Review Board''.

(b) APPOINTMENT.—

(1) IN GENERAL.—The President, by and with the advice and consent of the Senate, shall appoint, without regard to political affiliation, 9 citizens of the United States to serve as members of the Review Board to ensure and facilitate the review, transmission to the Archivist, and public disclosure of

government records relating to unidentified anomalous phenomena.

(2) PERIOD FOR NOMINATIONS.—(A) The President shall make nominations to the Review Board not later than 90 calendar days after the date of enactment of this Act.

(B) If the Senate votes not to confirm a nomination to the Review Board, the President shall make an additional nomination not later than 30 days thereafter.

(3) CONSIDERATION OF RECOMMENDATIONS.—(A) The President shall make nominations to the Review Board after considering persons recommended by the following:

(i) The majority leader of the Senate.

(ii) The minority leader of the Senate.

(iii) The Speaker of the House of Representatives.

(iv) The minority leader of the House of Representatives.

(v) The Secretary of Defense.

(vi) The National Academy of Sciences.

(vii) Established nonprofit research organizations relating to unidentified anomalous phenomena.

(viii) The American Historical Association.

(ix) Such other persons and organizations as the President considers appropriate.

(B) If an individual or organization described in subparagraph (A) does not recommend at least 2 nominees meeting the qualifications stated in paragraph (5) by the date that is 45 days after the date of enactment of this Act, the President shall consider for nomination the persons recommended by the other individuals and organizations described in such subparagraph.

(C) The President may request an individual or organization described in subparagraph (A) to submit additional nominations.

(4) QUALIFICATIONS.—Persons nominated to the Review Board—

(A) shall be impartial citizens, none of whom shall have had any previous or current involvement with any legacy program or controlling authority relating to the collection, exploitation, or reverse engineering of technologies of unknown origin or the examination of biological evidence of living or deceased non-human intelligence;

(B) shall be distinguished persons of high national professional reputation in their respective fields who are capable of exercising the independent and objective judgment necessary to the fulfillment of their role in ensuring and facilitating the review, transmission to the public, and public disclosure of records related to the government's understanding of, and activities associated with unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence and who possess an appreciation of the value of such material to the public, scholars, and government; and

(C) shall include at least—

(i) 1 current or former national security official;

(ii) 1 current or former foreign service official;

(iii) 1 scientist or engineer;

(iv) 1 economist;

(v) 1 professional historian; and

(vi) 1 sociologist.

(5) MANDATORY CONFLICTS OF INTEREST REVIEW.—

(A) IN GENERAL.—The Director shall conduct a review of each individual nominated and appointed to the position of member of the Review Board to ensure the member does not have any conflict of interest during the term of the service of the member.

(B) REPORTS.—During the course of the review under subparagraph (A), if the Director becomes aware that the member being reviewed possesses a conflict of interest to the mission of the Review Board, the Director shall, not later than 30 days after the date on which the Director became aware of the conflict of interest, submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Government Reform of the House of Representatives a report on the conflict of interest.

(c) SECURITY CLEARANCES.—

(1) IN GENERAL.—All Review Board nominees shall be granted the necessary security clearances and accesses, including any and all relevant Presidential, departmental, and agency special access programs, in an accelerated manner subject to the standard procedures for granting such clearances.

(2) QUALIFICATION FOR NOMINEES.—All nominees for appointment to the Review Board under subsection (b) shall qualify for the necessary security clearances and accesses prior to being considered for confirmation by the Committee on Homeland Security and Governmental Affairs of the Senate.

(d) VACANCY.—A vacancy on the Review Board shall be filled in the same manner as specified for original appointment within 30 days of the occurrence of the vacancy.

(e) REMOVAL OF REVIEW BOARD MEMBER.—

(1) IN GENERAL.—No member of the Review Board shall be removed from office, other than—

(A) by impeachment and conviction; or

(B) by the action of the President for inefficiency, neglect of duty, malfeasance in office, physical disability, mental incapacity, or any other condition that substantially impairs the performance of the member's duties.

(2) NOTICE OF REMOVAL.—(A) If a member of the Review Board is removed from office, and that removal is by the President, not later than 10 days after the removal, the President shall submit to the leadership of Congress, the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Government

Reform of the House of Representatives a report specifying the facts found and the grounds for the removal.

(B) The President shall publish in the Federal Register a report submitted under subparagraph (A), except that the President may, if necessary to protect the rights of a person named in the report or to prevent undue interference with any pending prosecution, postpone or refrain from publishing any or all of the report until the completion of such pending cases or pursuant to privacy protection requirements in law.

(3) JUDICIAL REVIEW.—(A) A member of the Review Board removed from office may obtain judicial review of the removal in a civil action commenced in the United States District Court for the District of Columbia.

(B) The member may be reinstated or granted other appropriate relief by order of the court.

(f) COMPENSATION OF MEMBERS.—

(1) IN GENERAL.—A member of the Review Board, other than the Executive Director under section 1745(c)(1), shall be compensated at a rate equal to the daily equivalent of the annual rate of basic pay prescribed for level IV of the Executive

Schedule under section 5315 of title 5, United States Code, for each day (including travel time) during which the member is engaged in the performance of the duties of the Review Board.

(2) TRAVEL EXPENSES.—A member of the Review Board shall be allowed reasonable travel expenses, including per diem in lieu of subsistence, at rates for employees of agencies under subchapter I of chapter 57 of title 5, United States Code, while away from the member's home or regular place of business in the performance of services for the Review Board.

(g) DUTIES OF THE REVIEW BOARD.—

(1) IN GENERAL.—The Review Board shall consider and render decisions on a determination by a Government office to seek to postpone the disclosure of unidentified anomalous phenomena records.

(2) CONSIDERATIONS AND RENDERING OF DECISIONS.—In carrying out paragraph (1), the Review Board shall consider and render decisions—

(A) whether a record constitutes a unidentified anomalous phenomena record; and

(B) whether a unidentified anomalous phenomena record or particular information in a

record qualifies for postponement of disclosure under this subtitle.

(h) POWERS.—

(1) IN GENERAL.—The Review Board shall have the authority to act in a manner prescribed under this subtitle, including authority—

(A) to direct Government offices to complete identification aids and organize unidentified anomalous phenomena records;

(B) to direct Government offices to transmit to the Archivist unidentified anomalous phenomena records as required under this subtitle, including segregable portions of unidentified anomalous phenomena records and substitutes and summaries of unidentified anomalous phenomena records that can be publicly disclosed to the fullest extent;

(C)(i) to obtain access to unidentified anomalous phenomena records that have been identified and organized by a Government office;

(ii) to direct a Government office to make available to the Review Board, and if necessary investigate the facts surrounding, additional information, records, or testimony from individ-

uals which the Review Board has reason to believe are required to fulfill its functions and responsibilities under this subtitle; and

(iii) request the Attorney General to subpoena private persons to compel testimony, records, and other information relevant to its responsibilities under this subtitle;

(D) require any Government office to account in writing for the destruction of any records relating to unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence;

(E) receive information from the public regarding the identification and public disclosure of unidentified anomalous phenomena records;

(F) hold hearings, administer oaths, and subpoena witnesses and documents;

(G) use the Federal Acquisition Service in the same manner and under the same conditions as other Executive agencies; and

(H) use the United States mails in the same manner and under the same conditions as other Executive agencies.

(2) ENFORCEMENT OF SUBPOENA.—A subpoena issued under paragraph (1)(C)(iii) may be en-

forced by any appropriate Federal court acting pursuant to a lawful request of the Review Board.

(i) WITNESS IMMUNITY.—The Review Board shall be considered to be an agency of the United States for purposes of section 6001 of title 18, United States Code. Witnesses, close observers, and whistleblowers providing information directly to the Review Board shall also be afforded the protections provided to such persons specified under section 1673(b) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (50 U.S.C. 3373b(b)).

(j) SUPPORT SERVICES.—The Administrator of the General Services Administration shall provide administrative services for the Review Board on a reimbursable basis.

(k) INTERPRETIVE REGULATIONS.—The Review Board may issue interpretive regulations.

(l) TERMINATION AND WINDING DOWN.—

(1) IN GENERAL.—The Review Board and the terms of its members shall terminate on September 30, 2030.

(2) REPORTS.—Upon its termination, the Review Board shall submit to the President and Congress reports, including a complete and accurate accounting of expenditures during its existence and

shall complete all other reporting requirements under this subtitle.

(3) TRANSFER OF RECORDS.—Upon termination and winding down, the Review Board shall transfer all of its records to the Archivist for inclusion in the Collection, and no record of the Review Board shall be destroyed.

SEC. 1765. UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS REVIEW BOARD PERSONNEL.

(a) EXECUTIVE DIRECTOR.—

(1) APPOINTMENT.—Not later than 45 days after the date of enactment of this Act, the President shall appoint 1 citizen of the United States, without regard to political affiliation, to the position of Executive Director of the Review Board. This position counts as 1 of the 9 Review Board members under section 1744(b)(1).

(2) QUALIFICATIONS.—The person appointed as Executive Director shall be a private citizen of integrity and impartiality who—

(A) is a distinguished professional;

(B) is not a present employee of the Federal Government; and

(C) has had no previous or current involvement with any legacy program or controlling

authority relating to the collection, exploitation, or reverse engineering of technologies of unknown origin or the examination of biological evidence of living or deceased non-human intelligence.

(3) MANDATORY CONFLICTS OF INTEREST REVIEW.—

(A) IN GENERAL.—The Director shall conduct a review of each individual appointed to the position of Executive Director to ensure the Executive Director does not have any conflict of interest during the term of the service of the Executive Director.

(B) REPORTS.—During the course of the review under subparagraph (A), if the Director becomes aware that the Executive Director possesses a conflict of interest to the mission of the Review Board, the Director shall, not later than 30 days after the date on which the Director became aware of the conflict of interest, submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Government Reform of the House of Representatives a report on the conflict of interest.

(4) SECURITY CLEARANCES.—(A) A candidate for Executive Director shall be granted all the necessary security clearances and accesses, including to relevant Presidential and department or agency special access and compartmented access programs in an accelerated manner subject to the standard procedures for granting such clearances.

(B) A candidate shall qualify for the necessary security clearances and accesses prior to being appointed by the President.

(5) FUNCTIONS.—The Executive Director shall—

(A) serve as principal liaison to the Executive Office of the President and Congress;

(B) serve as Chairperson of the Review Board;

(C) be responsible for the administration and coordination of the Review Board's review of records;

(D) be responsible for the administration of all official activities conducted by the Review Board;

(E) exercise tie-breaking Review Board authority to decide or determine whether any

record should be disclosed to the public or postponed for disclosure; and

(F) retain right-of-appeal directly to the President for decisions pertaining to executive branch unidentified anomalous phenomena records for which the Executive Director and Review Board members may disagree.

(6) REMOVAL.—The Executive Director shall not be removed for reasons other for cause on the grounds of inefficiency, neglect of duty, malfeasance in office, physical disability, mental incapacity, or any other condition that substantially impairs the performance of the responsibilities of the Executive Director or the staff of the Review Board.

(b) STAFF.—

(1) IN GENERAL.—The Review Board, without regard to the civil service laws, may appoint and terminate additional personnel as are necessary to enable the Review Board and its Executive Director to perform the duties of the Review Board.

(2) QUALIFICATIONS.—

(A) IN GENERAL.—Except as provided in subparagraph (B), a person appointed to the staff of the Review Board shall be a citizen of integrity and impartiality who has had no pre-

vious or current involvement with any legacy program or controlling authority relating to the collection, exploitation, or reverse engineering of technologies of unknown origin or the examination of biological evidence of living or deceased non-human intelligence.

(B) CONSULTATION WITH DIRECTOR OF THE OFFICE OF GOVERNMENT ETHICS.—In their consideration of persons to be appointed as staff of the Review Board under paragraph (1), the Review Board shall consult with the Director—

(i) to determine criteria for possible conflicts of interest of staff of the Review Board, consistent with ethics laws, statutes, and regulations for employees of the executive branch of the Federal Government; and

(ii) ensure that no person selected for such position of staff of the Review Board possesses a conflict of interests in accordance with the criteria determined pursuant to clause (i).

(3) SECURITY CLEARANCES.—(A) A candidate for staff shall be granted the necessary security

clearances (including all necessary special access program clearances) in an accelerated manner subject to the standard procedures for granting such clearances.

(B)(i) The Review Board may offer conditional employment to a candidate for a staff position pending the completion of security clearance background investigations. During the pendency of such investigations, the Review Board shall ensure that any such employee does not have access to, or responsibility involving, classified or otherwise restricted unidentified anomalous phenomena record materials.

(ii) If a person hired on a conditional basis under clause (i) is denied or otherwise does not qualify for all security clearances necessary to carry out the responsibilities of the position for which conditional employment has been offered, the Review Board shall immediately terminate the person's employment.

(4) SUPPORT FROM NATIONAL DECLASSIFICATION CENTER.—The Archivist shall assign one representative in full-time equivalent status from the National Declassification Center to advise and support the Review Board disclosure postponement review process in a non-voting staff capacity.

(c) COMPENSATION.—Subject to such rules as may be adopted by the Review Board, without regard to the provisions of title 5, United States Code, governing appointments in the competitive service and without regard to the provisions of chapter 51 and subchapter III of chapter 53 of that title relating to classification and General Schedule pay rates—

(1) the Executive Director shall be compensated at a rate not to exceed the rate of basic pay for level II of the Executive Schedule and shall serve the entire tenure as one full-time equivalent; and

(2) the Executive Director shall appoint and fix compensation of such other personnel as may be necessary to carry out this subtitle.

(d) ADVISORY COMMITTEES.—

(1) AUTHORITY.—The Review Board may create advisory committees to assist in fulfilling the responsibilities of the Review Board under this subtitle.

(2) FACA.—Any advisory committee created by the Review Board shall be subject to chapter 10 of title 5, United States Code.

(e) SECURITY CLEARANCE REQUIRED.—An individual employed in any position by the Review Board (including an individual appointed as Executive Director)

shall be required to qualify for any necessary security clearance prior to taking office in that position, but may be employed conditionally in accordance with subsection (b)(3)(B) before qualifying for that clearance.

SEC. 1766. REVIEW OF RECORDS BY THE UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS REVIEW BOARD.

(a) CUSTODY OF RECORDS REVIEWED BY REVIEW BOARD.—Pending the outcome of a review of activity by the Review Board, a Government office shall retain custody of its unidentified anomalous phenomena records for purposes of preservation, security, and efficiency, unless—

(1) the Review Board requires the physical transfer of records for reasons of conducting an independent and impartial review; or

(2) such transfer is necessary for an administrative hearing or other official Review Board function.

(b) STARTUP REQUIREMENTS.—The Review Board shall—

(1) not later than 90 days after the date of its appointment, publish a schedule in the Federal Register for review of all unidentified anomalous phenomena records;

(2) not later than 180 days after the date of enactment of this Act, begin its review of unidentified anomalous phenomena records under this subtitle; and

(3) periodically thereafter as warranted, but not less frequently than semiannually, publish a revised schedule in the Federal Register addressing the review and inclusion of any unidentified anomalous phenomena records subsequently discovered.

(c) DETERMINATIONS OF THE REVIEW BOARD.—

(1) IN GENERAL.—The Review Board shall direct that all unidentified anomalous phenomena records be transmitted to the Archivist and disclosed to the public in the Collection in the absence of clear and convincing evidence that—

(A) a Government record is not an unidentified anomalous phenomena record; or

(B) a Government record, or particular information within an unidentified anomalous phenomena record, qualifies for postponement of public disclosure under this subtitle.

(2) REQUIREMENTS.—In approving postponement of public disclosure of a unidentified anomalous phenomena record, the Review Board shall seek to—

(A) provide for the disclosure of segregable parts, substitutes, or summaries of such a record; and

(B) determine, in consultation with the originating body and consistent with the standards for postponement under this subtitle, which of the following alternative forms of disclosure shall be made by the originating body:

(i) Any reasonably segregable particular information in a unidentified anomalous phenomena record.

(ii) A substitute record for that information which is postponed.

(iii) A summary of a unidentified anomalous phenomena record.

(3) CONTROLLED DISCLOSURE CAMPAIGN PLAN.—With respect to unidentified anomalous phenomena records, particular information in unidentified anomalous phenomena records, recovered technologies of unknown origin, and biological evidence for non-human intelligence the public disclosure of which is postponed pursuant to section 1743, or for which only substitutions or summaries have been disclosed to the public, the Review Board shall create and transmit to the President, the Archivist, the

Committee on Homeland Security and Governmental Affairs of the Senate, and the Committee on Oversight and Government Reform of the House of Representatives a Controlled Disclosure Campaign Plan, with classified appendix, containing—

(A) a description of actions by the Review Board, the originating body, the President, or any Government office (including a justification of any such action to postpone disclosure of any record or part of any record) and of any official proceedings conducted by the Review Board with regard to specific unidentified anomalous phenomena records; and

(B) a benchmark-driven plan, based upon a review of the proceedings and in conformity with the decisions reflected therein, recommending precise requirements for periodic review, downgrading, and declassification as well as the exact time or specified occurrence following which each postponed item may be appropriately disclosed to the public under this subtitle.

(4) NOTICE FOLLOWING REVIEW AND DETERMINATION.—(A) Following its review and a determination that a unidentified anomalous phenomena

record shall be publicly disclosed in the Collection or postponed for disclosure and held in the protected Collection, the Review Board shall notify the head of the originating body of the determination of the Review Board and publish a copy of the determination in the Federal Register within 14 days after the determination is made.

(B) Contemporaneous notice shall be made to the President for Review Board determinations regarding unidentified anomalous phenomena records of the executive branch of the Federal Government, and to the oversight committees designated in this subtitle in the case of records of the legislative branch of the Federal Government. Such notice shall contain a written unclassified justification for public disclosure or postponement of disclosure, including an explanation of the application of any standards contained in section 1743.

(d) PRESIDENTIAL AUTHORITY OVER REVIEW BOARD DETERMINATION.—

(1) PUBLIC DISCLOSURE OR POSTPONEMENT OF DISCLOSURE.—After the Review Board has made a formal determination concerning the public disclosure or postponement of disclosure of an unidentified anomalous phenomena record of the executive

branch of the Federal Government or information within such a record, or of any information contained in a unidentified anomalous phenomena record, obtained or developed solely within the executive branch of the Federal Government, the President shall—

(A) have the sole and nondelegable authority to require the disclosure or postponement of such record or information under the standards set forth in section 1743; and

(B) provide the Review Board with both an unclassified and classified written certification specifying the President's decision within 30 days after the Review Board's determination and notice to the executive branch agency as required under this subtitle, stating the justification for the President's decision, including the applicable grounds for postponement under section 1743, accompanied by a copy of the identification aid required under section 1741.

(2) PERIODIC REVIEW.—(A) Any unidentified anomalous phenomena record postponed by the President shall henceforth be subject to the requirements of periodic review, downgrading, declassification, and public disclosure in accordance with the

recommended timeline and associated requirements specified in the Controlled Disclosure Campaign Plan unless these conflict with the standards set forth in section 1743.

(B) This paragraph supersedes all prior declassification review standards that may previously have been deemed applicable to unidentified anomalous phenomena records.

(3) RECORD OF PRESIDENTIAL POSTPONEMENT.—The Review Board shall, upon its receipt—

(A) publish in the Federal Register a copy of any unclassified written certification, statement, and other materials transmitted by or on behalf of the President with regard to postponement of unidentified anomalous phenomena records; and

(B) revise or amend recommendations in the Controlled Disclosure Campaign Plan accordingly.

(e) NOTICE TO PUBLIC.—Every 30 calendar days, beginning on the date that is 60 calendar days after the date on which the Review Board first approves the postponement of disclosure of a unidentified anomalous phenomena record, the Review Board shall publish in the Federal Register a notice that summarizes the postponements ap-

proved by the Review Board or initiated by the President, the Senate, or the House of Representatives, including a description of the subject, originating agency, length or other physical description, and each ground for postponement that is relied upon to the maximum extent classification restrictions permitting.

(f) REPORTS BY THE REVIEW BOARD.—

(1) IN GENERAL.—The Review Board shall report its activities to the leadership of Congress, the Committee on Homeland Security and Governmental Affairs of the Senate, the Committee on Oversight and Government Reform of the House of Representatives, the President, the Archivist, and the head of any Government office whose records have been the subject of Review Board activity.

(2) FIRST REPORT.—The first report shall be issued on the date that is 1 year after the date of enactment of this Act, and subsequent reports every 1 year thereafter until termination of the Review Board.

(3) CONTENTS.—A report under paragraph (1) shall include the following information:

(A) A financial report of the expenses for all official activities and requirements of the Review Board and its personnel.

(B) The progress made on review, transmission to the Archivist, and public disclosure of unidentified anomalous phenomena records.

(C) The estimated time and volume of unidentified anomalous phenomena records involved in the completion of the Review Board's performance under this subtitle.

(D) Any special problems, including requests and the level of cooperation of Government offices, with regard to the ability of the Review Board to operate as required by this subtitle.

(E) A record of review activities, including a record of postponement decisions by the Review Board or other related actions authorized by this subtitle, and a record of the volume of records reviewed and postponed.

(F) Suggestions and requests to Congress for additional legislative authority needs.

(4) COPIES AND BRIEFS.—Coincident with the reporting requirements in paragraph (2), or more frequently as warranted by new information, the Review Board shall provide copies to, and fully brief, at a minimum the President, the Archivist, leadership of Congress, the Chairmen and Ranking Mem-

bers of the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Government Reform of the House of Representatives, and the Chairs and Chairmen, as the case may be, and Ranking Members and Vice Chairmen, as the case may be, of such other committees as leadership of Congress determines appropriate on the Controlled Disclosure Campaign Plan, classified appendix, and postponed disclosures, specifically addressing—

(A) recommendations for periodic review, downgrading, and declassification as well as the exact time or specified occurrence following which specific unidentified anomalous phenomena records and material may be appropriately disclosed;

(B) the rationale behind each postponement determination and the recommended means to achieve disclosure of each postponed item;

(C) any other findings that the Review Board chooses to offer; and

(D) an addendum containing copies of reports of postponed records to the Archivist required under subsection (c)(3) made since the

date of the preceding report under this subsection.

(5) NOTICE.—At least 90 calendar days before completing its work, the Review Board shall provide written notice to the President and Congress of its intention to terminate its operations at a specified date.

(6) BRIEFING THE ALL-DOMAIN ANOMALY RESOLUTION OFFICE.—Coincident with the provision in paragraph (5), if not accomplished earlier under paragraph (4), the Review Board shall brief the All-domain Anomaly Resolution Office established pursuant to section 1683 of the National Defense Authorization Act for Fiscal Year 2022 (50 U.S.C. 3373), or any successor Office established by law, on the Controlled Disclosure Campaign Plan, classified appendix, and postponed disclosures.

SEC. 1767. DISCLOSURE OF RECOVERED TECHNOLOGIES OF UNKNOWN ORIGIN AND BIOLOGICAL EVIDENCE OF NON-HUMAN INTELLIGENCE.

(a) EXERCISE OF EMINENT DOMAIN.—The Federal Government shall exercise eminent domain over any and all recovered technologies of unknown origin and biological evidence of non-human intelligence that may be controlled

by private persons or entities in the interests of the public good.

(b) AVAILABILITY TO REVIEW BOARD.—Any and all such material, should it exist, shall be made available to the Review Board for personal examination and subsequent disclosure determination at a location suitable to the controlling authority of said material and in a timely manner conducive to the objectives of the Review Board in accordance with the requirements of this subtitle.

(c) ACTIONS OF REVIEW BOARD.—In carrying out subsection (b), the Review Board shall consider and render decisions—

(1) whether the material examined constitutes technologies of unknown origin or biological evidence of non-human intelligence beyond a reasonable doubt;

(2) whether recovered technologies of unknown origin, biological evidence of non-human intelligence, or a particular subset of material qualifies for postponement of disclosure under this subtitle; and

(3) what changes, if any, to the current disposition of said material should the Federal Government make to facilitate full disclosure.

(d) REVIEW BOARD ACCESS TO TESTIMONY AND WITNESSES.—The Review Board shall have access to all

testimony from unidentified anomalous phenomena witnesses, close observers and legacy program personnel and whistleblowers within the Federal Government's possession as of and after the date of enactment of this Act in furtherance of Review Board disclosure determination responsibilities in section 1744(g) and subsection (c) of this section.

(e) SOLICITATION OF ADDITIONAL WITNESSES.—The Review Board shall solicit additional unidentified anomalous phenomena witness and whistleblower testimony and afford protections under section 1673(b) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (50 U.S.C. 3373b(b)) if deemed beneficial in fulfilling Review Board responsibilities under this subtitle.

SEC. 1768. DISCLOSURE OF OTHER MATERIALS AND ADDITIONAL STUDY.

(a) MATERIALS UNDER SEAL OF COURT.—

(1) INFORMATION HELD UNDER SEAL OF A COURT.—The Review Board may request the Attorney General to petition any court in the United States or abroad to release any information relevant to unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence that is held under seal of the court.

(2) INFORMATION HELD UNDER INJUNCTION OF SECRETARY OF GRAND JURY.—(A) The Review Board may request the Attorney General to petition any court in the United States to release any information relevant to unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence that is held under the injunction of secrecy of a grand jury.

(B) A request for disclosure of unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence materials under this subtitle shall be deemed to constitute a showing of particularized need under rule 6 of the Federal Rules of Criminal Procedure.

(b) SENSE OF CONGRESS.—It is the sense of the Congress that—

(1) the Attorney General should assist the Review Board in good faith to unseal any records that the Review Board determines to be relevant and held under seal by a court or under the injunction of secrecy of a grand jury;

(2) the Secretary of State should contact any foreign government that may hold material relevant to unidentified anomalous phenomena, technologies

of unknown origin, or non-human intelligence and seek disclosure of such material; and

(3) all heads of Executive agencies should cooperate in full with the Review Board to seek the disclosure of all material relevant to unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence consistent with the public interest.

SEC. 1769. RULES OF CONSTRUCTION.

(a) PRECEDENCE OVER OTHER LAW.—When this subtitle requires transmission of a record to the Archivist or public disclosure, it shall take precedence over any other provision of law (except section 6103 of the Internal Revenue Code of 1986 specifying confidentiality and disclosure of tax returns and tax return information), judicial decision construing such provision of law, or common law doctrine that would otherwise prohibit such transmission or disclosure, with the exception of deeds governing access to or transfer or release of gifts and donations of records to the United States Government.

(b) FREEDOM OF INFORMATION ACT.—Nothing in this subtitle shall be construed to eliminate or limit any right to file requests with any executive agency or seek judicial review of the decisions pursuant to section 552 of title 5, United States Code.

(c) JUDICIAL REVIEW.—Nothing in this subtitle shall be construed to preclude judicial review, under chapter 7 of title 5, United States Code, of final actions taken or required to be taken under this subtitle.

(d) EXISTING AUTHORITY.—Nothing in this subtitle revokes or limits the existing authority of the President, any executive agency, the Senate, or the House of Representatives, or any other entity of the Federal Government to publicly disclose records in its possession.

SEC. 1770. TERMINATION AND EFFECT OF ACT.

(a) PROVISIONS PERTAINING TO THE REVIEW BOARD.—The provisions of this subtitle that pertain to the appointment and operation of the Review Board shall cease to be effective when the Review Board and the terms of its members have terminated pursuant to section 1744(l).

(b) OTHER PROVISIONS.—(1) The remaining provisions of this subtitle shall continue in effect until such time as the Archivist certifies to the President and Congress that all unidentified anomalous phenomena records have been made available to the public in accordance with this subtitle.

(2) In facilitation of the provision in paragraph (1), the All-domain Anomaly Resolution Office established pursuant to section 1683 of the National Defense Authoriza-

tion Act for Fiscal Year 2022 (50 U.S.C. 3373), or its successor as subsequently designated by Act of Congress, shall develop standardized unidentified anomalous phenomena declassification guidance applicable to any and all unidentified anomalous phenomena records generated by originating bodies subsequent to termination of the Review Board consistent with the requirements and intent of the Controlled Disclosure Campaign Plan with respect to unidentified anomalous phenomena records originated prior to Review Board termination.

SEC. 1771. AUTHORIZATION OF APPROPRIATIONS.

There is authorized to be appropriated to carry out the provisions of this subtitle $20,000,000 for fiscal year 2027.

SEC. 1772. CONFORMING REPEAL AND TRANSITIONAL PROVISIONS.

(a) REPEAL.—

(1) IN GENERAL.—Subtitle C of title XVIII of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) is hereby repealed.

(2) CLERICAL AMENDMENT.—The table of contents in section 2 of such Act is amended by striking the items relating to subtitle C of title XVIII.

(b) AUTOMATIC INCLUSION AND TRANSFER OF CERTAIN RECORDS.—On the date of enactment of this Act—

(1) any record placed in, transmitted to, identified for inclusion in, cataloged for, or otherwise processed for inclusion in the collection established by subtitle C of title XVIII of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) shall be deemed an ''Unidentified Anomalous Phenomena record'' for purposes of this subtitle; and

(2) the Archivist shall transfer the custody and administrative control of all such records (together with all related metadata, indexes, finding aids, processing notes, redaction logs, correspondence, and unique identifiers) to such collection without any further identification, certification, or action by the originating agency.

(c) CONTINUATION OF PENDING ACTIONS.—Any identification, search, review, segregation, or transmission required under subtitle C of title XVIII of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) that is pending on the date of enactment shall continue without interruption and be completed in accordance with this subtitle.

(d) DEADLINES.—All deadlines applicable to the records described under subsection (b)(1) shall run from the date of enactment of this Act unless an earlier date

would result in earlier public disclosure, in which case the earlier date governs.

(e) PUBLIC RELEASE.—Any record released, whether unredacted or redacted, to the public under subtitle C of title XVIII of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) shall remain publicly available. Nothing in this subtitle authorizes re-imposition of redactions or restrictions on records already made public.

(f) REFERENCES.—Any reference in law, regulation, directive, or other document to the collection established under subtitle C of title XVIII of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) shall be deemed a reference to the Collection.

(g) INVENTORY AND MAPPING.—Not later than 30 days of after the date of enactment of this Act, the Archivist shall publish an inventory mapping prior collection identifiers to the new Collection identifiers, and shall maintain continuity of public access links.

SEC. 1773. DEFINITIONS.

In this subtitle:

(1) The term ''Archivist'' means the Archivist of the United States.

(2) The term ''close observer'' means anyone who has come into close proximity to unidentified anomalous phenomena or non-human intelligence.

(3) The term ''Collection'' means the Unidentified Anomalous Phenomena Records Collection established under section 1741.

(4) The term ''Controlled Disclosure Campaign Plan'' means the Controlled Disclosure Campaign Plan required by section 1746(c)(3).

(5) The term ''controlling authority'' means any Federal, State, or local government department, office, agency, committee, commission, commercial company, academic institution, or private sector entity in physical possession of technologies of unknown origin or biological evidence of non-human intelligence.

(6) The term ''Director'' means the Director of the Office of Government Ethics.

(7) The term ''Executive agency'' has the meaning given that term in section 552(f) of title 5, United States Code.

(8) The term ''Government office'' means any department, office, agency, committee, or commission of the Federal Government and any independent office or agency without exception that has

possession or control, including via contract or other agreement, of unidentified anomalous phenomena records.

(9) The term ''identification aid'' means the written description prepared for each record, as required in section 1741.

(10) The term ''leadership of Congress'' means—

(A) the majority leader of the Senate;

(B) the minority leader of the Senate;

(C) the Speaker of the House of Representatives; and

(D) the minority leader of the House of Representatives.

(11) The term ''legacy program'' means all Federal, State, and local government, commercial industry, academic, and private sector endeavors to collect, exploit, or reverse engineer technologies of unknown origin or examine biological evidence of living or deceased non-human intelligence that predates the date of the enactment of this Act.

(12) The term ''National Archives'' means the National Archives and Records Administration and all components thereof, including presidential archi-

val depositories established under section 2112 of title 44, United States Code.

(13) The term ''non-human intelligence'' means any sentient intelligent non-human lifeform regardless of nature or ultimate origin that may be presumed responsible for unidentified anomalous phenomena or of which the Federal Government has become aware.

(14) The term ''originating body'' means the Executive agency, Federal Government commission, committee of Congress, or other Governmental entity that created a record or particular information within a record.

(15) The term ''prosaic attribution'' means having a human (either foreign or domestic) origin and operating according to current, proven, and generally understood scientific and engineering principles and established laws-of-nature and not attributable to non-human intelligence.

(16) The term ''public interest'' means the compelling interest in the prompt public disclosure of unidentified anomalous phenomena records for historical and Governmental purposes and for the purpose of fully informing the people of the United States about the history of the Federal Govern-

ment's knowledge and involvement surrounding unidentified anomalous phenomena.

(17) The term ''record'' includes a book, paper, report, memorandum, directive, email, text, or other form of communication, or map, photograph, sound or video recording, machine-readable material, computerized, digitized, or electronic information, including intelligence, surveillance, reconnaissance, and target acquisition sensor data, regardless of the medium on which it is stored, or other documentary material, regardless of its physical form or characteristics.

(18) The term ''Review Board'' means the Unidentified Anomalous Phenomena Records Review Board established by section 1744.

(19) The term ''technologies of unknown origin'' means any materials or meta-materials, ejecta, crash debris, mechanisms, machinery, equipment, assemblies or sub-assemblies, engineering models or processes, damaged or intact aerospace vehicles, and damaged or intact ocean-surface and undersea craft associated with unidentified anomalous phenomena or incorporating science and technology that lacks prosaic attribution or known means of human manufacture.

(20) The term ''temporarily non-attributed objects'' means—

(A) the class of objects that temporarily resist prosaic attribution by the initial observer as a result of environmental or system limitations associated with the observation process that nevertheless ultimately have an accepted human origin or known physical cause. Although some unidentified anomalous phenomena may at first be interpreted as temporarily non-attributed objects, they are not temporarily non-attributed objects, and the two categories are mutually exclusive; and

(i) includes—

(I) natural celestial, meteorological, and undersea weather phenomena;

(II) mundane human-made airborne objects, clutter, and marine debris;

(III) Federal, State, and local government, commercial industry, academic, and private sector aerospace platforms;

(IV) Federal, State, and local government, commercial industry, academic, and private sector ocean-surface and undersea vehicles; and

(V) known foreign systems.

(21) The term ''third agency'' means a Government agency that originated a unidentified anomalous phenomena record that is in the possession of another Government agency.

(22) The term ''unidentified anomalous phenomena'' means—

(A) any object operating or judged capable of operating in outer-space, the atmosphere, ocean surfaces, or undersea lacking prosaic attribution due to performance characteristics and properties not previously known to be achievable based upon commonly accepted physical principles. Unidentified anomalous phenomena are differentiated from both attributed and temporarily non-attributed objects by one or more of the following observables:

(i) Instantaneous acceleration absent apparent inertia.

(ii) Hypersonic velocity absent a thermal signature and sonic shockwave.

(iii) Transmedium (such as space-to-ground and air-to-undersea) travel.

(iv) Positive lift contrary to known aerodynamic principles.

(v) Multispectral signature control.

(vi) Physical or invasive biological effects to close observers and the environment; and

(vii) includes what were previously described as—

(I) flying discs;

(II) flying saucers;

(III) unidentified aerial phenomena;

(IV) unidentified flying objects (UFOs); and

(V) unidentified submerged objects (USOs).

(23) The term ''unidentified anomalous phenomena record'' means a record that is related to unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence (and all equivalent subjects by any other name with the specific and sole exclusion of temporarily non-attributed objects) that was created or made available for use by, obtained by, or otherwise came into the possession of—

(A) the Executive Office of the President;

(B) the Department of Defense and its progenitors, the Department of War and the Department of the Navy;

(C) the Department of the Army;

(D) the Department of the Navy;

(E) the Department of the Air Force, specifically the Air Force Office of Special Investigations;

(F) the Department of Energy and its progenitors, the Manhattan Project, the Atomic Energy Commission, and the Energy Research and Development Administration;

(G) the Office of the Director of National Intelligence;

(H) the Central Intelligence Agency and its progenitor, the Office of Strategic Services;

(I) the National Reconnaissance Office;

(J) the Defense Intelligence Agency;

(K) the National Security Agency;

(L) the National Geospatial-Intelligence Agency;

(M) the National Aeronautics and Space Administration:

(N) the Federal Bureau of Investigation;

(O) the Federal Aviation Administration;

(P) the National Oceanic and Atmospheric Administration;

(Q) the National Archives and Records Administration;

(R) any Presidential library;

(S) any Executive agency;

(T) any independent office or agency;

(U) any other department, office, agency, committee, or commission of the Federal Government;

(V) any State or local government department, office, agency, committee, or commission that provided support or assistance or performed work, in connection with a Federal inquiry into unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence; and

(W) any private sector person or entity formerly or currently under contract or some other agreement with the Federal Government.

TITLE XVIII—REVITALIZATION OF THE DEFENSE INDUSTRIAL BASE

Subtitle A—Provisions to Protect and Strengthen Supply Chains

SEC. 1801. REQUIREMENTS FOR INFORMATION RELATING TO SUPPLY CHAIN RISK.

Section 3252 of title 10, United States Code, is amended—

(1) in subsection (b)—

(A) by amending paragraph (1) to read as follows:

''(1) consulting with and receiving a written recommendation from procurement and other relevant officials of the covered agency, including the chief acquisition officer of the agency (or comparable employee);'';

(B) in paragraph (2)—

(i) in subparagraph (A), by inserting '', including the conclusions of the risk assessment upon which this determination was made'' after ''supply chain risk''; and

(ii) in subparagraph (B), by striking ''risk; and'' and inserting ''risk, including the facts and evidence upon which this de-

termination was made, the options that were considered in making this determination, and why such options were not reasonably available to reduce supply chain risk; and''; and

(C) by amending paragraph (3) to read as follows:

''(3) providing a classified or unclassified notice of the determination made under paragraph (2) to the appropriate congressional committees, which notice shall include—

''(A) a summary of the risk assessment that serves as the basis for the written determination required by paragraph (2); and

''(B) the written determination required by paragraph (2).'';

(2) by redesignating subsection (d) as subsection (h);

(3) by inserting after subsection (c) the following new subsections:

''(d) ADDITIONAL REQUIREMENTS BEFORE CARRYING OUT A COVERED PROCUREMENT ACTION.—(1) The head of a covered agency may carry out a covered procurement action affecting a domestic source or a non-FOCI entity only after—

''(A) notifying the domestic source or non-FOCI entity that a covered action is being considered;

''(B) providing the domestic source or non-FOCI entity, to the extent consistent with the national security and law enforcement interests, of information that forms the basis for the covered action, in accordance with paragraph (3);

''(C) allowing the domestic source or non-FOCI entity 30 days after receipt of the notice to submit information and argument to the head of the covered agency in response to such notification; and

''(D) submitting notice to the appropriate congressional committees that the covered procurement action is not being taken for any purpose described in paragraph (2).

''(2) The head of a covered agency may not directly or indirectly exclude a domestic source or non-FOCI entity as a source pursuant to subsection (a) for—

''(A) exercising, declining to waive, or declining to renegotiate any right under, or any term or condition of, a contract, subcontract, agreement, license, or other arrangement with a Federal agency; or

''(B) for declining to enter into such an arrangement on terms proposed by a Federal official.

''(3) In carrying out a covered procurement action affecting a domestic source or a non-FOCI entity under this section, the head of a covered agency may not withhold from the domestic source or non-FOCI entity an unclassified written summary of the determinations required under subparagraphs (A) and (B) of subsection (b)(2), stated in sufficient detail to notify the entity of the basis for the action and to permit a meaningful opportunity to respond. Specific facts or sources whose disclosure would harm national security or law enforcement interests may be withheld from the domestic source or non-FOCI entity, as applicable, and provided to the appropriate congressional committees under the procedures in subsection (g).

''(e) EXCEPTION FOR IMMINENT NATIONAL SECURITY THREAT.—The head of a covered agency may immediately carry out a covered procurement action affecting a non-FOCI entity without first providing the information required under subsection (b)(3) and notifications required under subsection (d)(1) if—

''(1) such head determines that an imminent national security threat requires immediate action; and

''(2) not later than three days after carrying out such covered procurement action, such head—

''(A) provides to the appropriate congressional committees—

''(i) the notice required under subsection (b)(3) and a written explanation of the imminent national security threat and the reasons such threat required carrying out such action before providing such notice; and

''(ii) provides to the domestic source or non-FOCI entity the notifications and information required under subsection (d)(1).

''(f) CLASSIFIED ANNEX PROCEDURES.—(1) If information required to be provided under subsections (b) or (c) includes classified information, the head of the covered agency may transmit such information in a classified annex.

''(2) A classified annex transmitted under paragraph (1)—

''(A) shall be provided to members of Congress and congressional staff in accordance with applicable security procedures; and

''(B) may include intelligence sources and methods, risk assessments, and other national security information necessary to support the determination.

''(3) To the greatest extent practicable, the agency shall provide an unclassified summary of the information contained in the classified annex.''; and

(4) in subsection (h), as so redesignated—

(A) in paragraph (2), by adding at the end the following:

''(D) The termination of an existing contract, subcontract, agreement, or license for a covered system, in whole or in part, for the purpose of reducing supply chain risk.''; and

(B) by adding at the end the following:

''(7) DOMESTIC SOURCE.—The term 'domestic source' has the meaning in section 702 of the Defense Production Act of 1950 (50 U.S.C. 4552).

''(8) NON-FOCI ENTITY.—The term 'non-FOCI entity' means—

''(A) a domestic source; or

''(B) an entity that has not been identified to be operating under foreign ownership, control, or influence pursuant to a Defense Counterintelligence and Security Agency review of such entity.''.

SEC. 1802. OVERSIGHT OF SPECIALTY METALS PROCUREMENTS UNDER EXCEPTION RELATING TO AGREEMENTS WITH FOREIGN GOVERNMENTS.

(a) LIMITATION ON USE OF EXCEPTION RELATING TO AGREEMENTS WITH FOREIGN GOVERNMENTS.—Section 4863 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(o) LIMITATION ON PROCUREMENTS UNDER EXCEPTION RELATING TO AGREEMENTS WITH FOREIGN GOVERNMENTS.—(1) For any fiscal year, the total value of specialty metals acquired, including specialty metals incorporated into end items, pursuant to the exception under subsection (d), may not exceed 30 percent of the total value of specialty metals procured by the Department of Defense during such fiscal year.

''(2) In calculating the total value under paragraph (1), the Secretary of Defense shall include specialty metals directly procured by the Department and specialty metals incorporated into articles, materials, and supplies furnished by contractors and subcontractors to the Department.

''(3) Not later than 120 days after the last day of each fiscal year, the Secretary of Defense shall submit to the congressional defense committees a certification described compliance of the Secretary with the requirements

of this subsection, including a description of the the methodology used to calculate the total value under paragraph (1).

''(4) The Secretary of Defense may waive the requirements of this subsection if the Secretary determines that such waiver is necessary in the interest of national security and submits to the congressional defense committees a written justification for the waiver not later than 30 days after exercising such authority.''.

(b) REPORT.—

(1) IN GENERAL.—Not later than one year after the date of enactment of this section, the Secretary of Defense shall submit to the congressional defense committees a report regarding the use of the exception under section 4863(d) of title 10, United States Code relating to agreements with foreign governments.

(2) CONTENT.—The report required under paragraph (1) shall include—

(A) an assessment of the frequency with which the Department of Defense, including prime contractors and subcontractors performing contracts for the Department, utilizes the exception under such subsection (d);

(B) the total value and percentage of procurements to which such exception applied during each of the five fiscal years preceding the date of the report;

(C) a list of each foreign country with which the United States has entered into a reciprocal defense procurement memorandum of understanding or other defense procurement agreement for purposes of qualifying for the exception under such subsection (d);

(D) a supply chain analysis of each country described in subparagraph (C);

(E) an assessment of the extent to which specialty metals incorporated into articles, materials, or supplies acquired pursuant to the exception in section 4863(d) of title 10, United States Code, originate from countries that are not parties to a defense procurement memorandum of understanding or other defense procurement agreement;

(F) an identification of any secondary dependencies on specialty metals sourced from countries that are not parties to a defense procurement memorandum of understanding or other defense procurement agreement; and

(G) an assessment of risks to the defense industrial base arising from such dependencies.

SEC. 1803. CRITICAL MATERIALS: TIERED SOURCING RESTRICTIONS AND REQUIREMENTS.

(a) IN GENERAL.—Section 4872 of title 10, United States Code, is amended to read as follows:

"§ 4872. Critical materials: tiered restrictions on sourcing from covered nations and other foreign nations; prohibition on sales

''(a) PROHIBITION ON SOURCING COVERED MATERIALS FROM COVERED NATIONS.—Except as provided in subsections (c), (d), (e), and (g), the Secretary of Defense may not procure covered material sourced from, by, or through a covered nation, or a covered item that contains covered material sourced from, by, or through a covered nation.

''(b) APPLICABILITY.—This section applies to prime contracts and subcontracts at any tier.

''(c) EXCEPTIONS FOR CERTAIN ITEMS AND MATERIAL.—Subsection (a) shall not apply to the procurement of a covered item that is—

''(1) a commercially available off-the-shelf item, other than a covered COTS item or product;

''(2) an electronic device, unless the Secretary of Defense, upon the recommendation of the Stra-

tegic and Critical Materials Board of Directors pursuant to section 10 of the Strategic and Critical Materials Stock Piling Act (50 U.S.C. 98h–1), determines that the domestic availability of a particular electronic device is critical to national security;

''(3) a neodymium-iron-boron magnet or samarium-cobalt magnet manufactured from recycled material if the milling of the recycled material and sintering of the final magnet takes place in the United States; or

''(4) tantalum, tungsten, niobium, or molybdenum produced from recycled material, if the contractor demonstrates to the Secretary that—

''(A) the recycled material was produced outside of any covered nation; and

''(B) the melting of the recycled material and any further processing and manufacturing of the recycled material takes place in the United States or in the country of a qualifying foreign government, as defined in section 4863(m)(11) of this title.

''(d) TIER 1 MATERIALS — PROHIBITION ON SOURCING FROM COVERED NATIONS; REQUIREMENT THAT A MINIMUM PERCENTAGE BE SOURCED FROM UNITED STATES.—(1) The Secretary may not procure

Tier 1 material sourced from, by, or through a covered nation, or a covered item that contains Tier 1 material sourced from, by, or through a covered nation, except as provided in this subsection or in subsection (c) or (g).

''(2) The Secretary may procure Tier 1 material sourced outside covered nations, or covered items that contain Tier 1 material sourced outside covered nations, but only if the percentage of cost of such material, as calculated under paragraph (3), that is produced by domestically owned entities is at least 50 percent.

''(3) The percentage referred to in paragraph (2)—

''(A) shall be calculated as a fraction (and expressed as a percentage), in which—

''(i) the numerator is the total cost of all Tier 1 material in the procurement (including Tier 1 material contained in any covered item) that is produced by any domestically owned entity; and

''(ii) the denominator is the total cost of all Tier 1 material in the procurement (including Tier 1 material contained in any covered item); and

''(B) shall be calculated without including in either the numerator or denominator any Tier 2 mate-

rial contained in a covered item excluded by subsection (c).

''(e) TIER 2 MATERIALS — PROHIBITION ON SOURCING FROM COVERED NATIONS; EXCEPTIONS FOR CERTAIN PERIODS.—(1) The Secretary may not procure Tier 2 material sourced from, by, or through a covered nation, or a covered item that contains Tier 2 material sourced from, by, or through a covered nation, except as provided in this subsection or in subsection (c) or (g).

''(2) For each period specified in paragraph (3), the Secretary may procure Tier 2 material sourced from, by, or through a covered nation, or a covered item that contains Tier 2 material sourced from, by, or through a covered nation, but only if the percentage of cost of such material, as calculated under paragraph (4), that is produced outside covered nations is at least the percentage specified in paragraph (3).

''(3) The periods referred to in paragraph (2), and the percentages associated with those periods, are as follows:

''(A) January 1, 2028, to December 31, 2028, 25 percent.

''(B) January 1, 2029, to December 31, 2029, 50 percent.

''(C) January 1, 2030, to December 31, 2030, 75 percent.

''(D) On and after January 1, 2031, 100 percent.

''(4) The percentage of cost referred to in paragraph (2)—

''(A) shall be calculated separately for each category of Tier 2 material, with the calculation for a category including all Tier 2 material within that category and excluding all Tier 2 material not within that category;

''(B) shall be calculated as a fraction (and expressed as a percentage), in which—

''(i) the numerator is the total cost of all Tier 2 material in that category (including Tier 2 material contained in a covered item) that is sourced outside covered nations; and

''(ii) the denominator is the total cost of all Tier 2 material in that category (including Tier 2 material contained in a covered item); and

''(C) shall be calculated without including in either the numerator or denominator any Tier 2 material contained in a covered item excluded by subsection (c).

''(5)(A) In addition to the certifications required by subsection (h), for any procurement of Tier 2 material (or covered item that contains Tier 2 material), for each category of Tier 2 material in the procurement and for each period specified in subparagraph (B) during which the prime contractor delivers such material to the Department under the contract, the Secretary shall require the prime contractor to—

''(i) certify that it has entered into a contractual agreement, or agreements, to obtain a supply of that category of Tier 2 material (or Tier 2 material contained in a covered item, as applicable) from sources outside covered nations in amounts sufficient to ensure that the prime contractor will be able to satisfy the percentages specified in paragraph (3); and

''(ii) provide documentation in accordance with subsection (h)(4) that not less than the applicable percentage specified in paragraph (3) of that category of Tier 2 material (or Tier 2 material contained in a covered item, as applicable) was sourced outside covered nations.

''(B) The period referred to in subparagraph (A) shall be the annual period determined by the contractor's fiscal year or, in the case of a contract with a period of

performance of less than one year, the life of the contract. Notwithstanding the preceding sentence, the Secretary may prescribe a period other than an annual period for a contract or type of contract if the Secretary determines that it would be impracticable for the prime contractor to certify and provide documentation for an annual period.

''(C) In making the certification under paragraph (A)(i), the prime contractor—

''(i) shall not be required to determine the country of origin of Tier 2 material that is not counted toward compliance with this subsection;

''(ii) may use a reasonable, consistently applied estimation methodology, including grade-based, weight-based, or industry-standard estimation, provided the methodology is disclosed in the certifications required under subsection (h) and supported by available documentation; and

''(iii) may rely in good faith on certifications and supporting documentation provided by subcontractors at any tier in establishing compliance with this subsection and shall not be required to independently verify a subcontractor certification absent actual knowledge of facts that would cause a reasonable contractor to question the accuracy of the certification.

''(f) AUTHORITY OF SECRETARY TO ADD AND TRANSFER MATERIALS ON TIER 1 AND TIER 2 LISTS.—(1) Not less frequently than once every 6 months, the Secretary of Defense shall carry out a review of the categories of Tier 1 and Tier 2 materials. If the Secretary determines, based on the results of the review, that an addition or transfer described in paragraph (2) is warranted to protect national security, improve supply-chain resilience, reflect industrial base conditions, or account for changes in defense needs or commercial availability, the Secretary may implement the addition or transfer, subject to the requirements of this subsection.

''(2) An addition or transfer described in this paragraph is limited to one or more of the following:

''(A) The addition of a new category of Tier 1 or Tier 2 material.

''(B) The addition of a material that is not a covered material to a new or existing category of Tier 1 or Tier 2 material.

''(C) The transfer of a material from a category of Tier 2 material to a category of Tier 1 material.

''(3) In carrying out a review under paragraph (1), the Secretary may consider information from the elements and program offices of the Department and private industry sources, including prime and sub-tier contractors and

critical mineral producers, as well as any other information the Secretary considers appropriate.

''(4) To implement an addition or transfer under this subsection, the Secretary shall publish the addition or transfer in the Federal Register and on a publicly accessible website of the Department and ensure that the addition or transfer is incorporated, as appropriate, into the Department of Defense Supplement to the Federal Acquisition Regulation.

''(5) The addition or transfer shall take effect on the later of the following dates:

''(A) The date that is one year after the date on which it was published in the Federal Register.

''(B) The date specified in the Department of Defense Supplement to the Federal Acquisition Regulation.

''(g) AUTHORITY TO WAIVE TIER 1 OR TIER 2 SOURCING REQUIREMENTS.—(1) The Secretary of Defense may waive the application of a requirement in subsection (d) or (e), in whole or in part, to a procurement, or to a covered item, or to a Tier 1 or Tier 2 material, or to a supply-chain stage, or to any of the foregoing matters in combination or as a class, if the waiver is made in writing that—

''(A) identifies with specificity the materials and other circumstances covered by the waiver;

''(B) identifies the period during which the waiver applies;

''(C) explains the factual basis for the waiver;

''(D) includes a determination that the Tier 1 material within the scope of the waiver is not produced by domestically owned entities, or the Tier 2 material within the scope of the waiver is not produced outside covered nations, in sufficient quantity, quality, or form to meet defense needs in a timely manner and on reasonable terms;

''(E) includes a determination (which may be based on or informed by a national security waiver issued under section 4863(k) of this title) that, absent the waiver, there would be a significant adverse effect on national security, defense production, readiness, sustainment, or timely contract performance; and

''(F) provides a transition plan identifying actions to reduce reliance by the Department on foreign nations (in the case of a Tier 1 material) or covered nations (in the case of a Tier 2 material), which shall include—

"(i) mitigation measures, with quantifiable milestones and associated timelines;

"(ii) a requirement that, before the end of the period during which the waiver applies, the contractor will enter into one or more binding agreements with suppliers that will result in compliance with this section and obviate the need for a future waiver or renewal; and

"(iii) any contractual considerations the Secretary determines appropriate, such as performance security or an adjustment in performance or price.

"(2) A waiver under this subsection that applies to an upstream form of material (such as an ore, concentrate, oxide, fluoride, salt, precursor, or intermediate) shall not apply to a downstream form of material (such as a metal, alloy, magnet, mill product, or component) unless the waiver expressly so provides.

"(3) A waiver under this subsection may be effective for a period of up to two years and may be renewed one or more times for another such period upon a new written determination satisfying paragraph (1). There shall be no limit on the number of waivers or renewals that may be issued under this subsection.

''(4) A waiver or renewal under this subsection shall not take effect until the Secretary submits notice of the waiver or renewal to the congressional defense committees and a period of 30 days has elapsed or, if the Secretary certifies that there is an urgent need for the waiver or renewal, a period of 7 days has elapsed. The notice shall include the matters required by subparagraphs (A), (B), and (C) of paragraph (1) and the principal mitigation measures required by subparagraph (F)(i).

''(5) A contractor seeking a waiver under this subsection shall submit, at such time and in such manner as the Secretary may prescribe, reasonably available documentation supporting the waiver.

''(h) CONTRACTOR CERTIFICATION AND RECORDS; SPECIAL RULE FOR PREFERRED DOMESTIC MANUFACTURERS AND PRODUCERS.—(1) For each procurement of covered material or covered items that contain such material, the Secretary shall require the prime contractor to make the certifications described in paragraph (2), obtain the documentation described in paragraph (3), and maintain such certifications and documentation for not less than 10 years after the date on which the prime contractor receives final payment. The Secretary shall require each prime contractor to ensure that each subcontractor at any tier that supplies such material or items also make such

certifications, obtain such documentation, and maintain such certifications and documentation for not less than 10 years after the date on which the subcontractor receives final payment.

''(2) The certifications referred to in paragraph (1) are the following certifications, made in such form as the Secretary may prescribe:

''(A) As a condition of award or exercise of option, that the prime contractor (or subcontractor, as applicable) has a reasonable basis to expect compliance with this section.

''(B) As a condition of payment, that the covered material and covered items supplied by the prime contractor (or subcontractor, as applicable) comply with this section.

''(C) That the prime contractor (or subcontractor, as applicable) has obtained and will maintain the documentation described in paragraph (3).

''(3) The documentation referred to in paragraph (1) is—

''(A) documentation supporting the known provenance of the covered materials and covered items, together with any certifications and documentation made by subcontractors; or

''(B) if the prime contractor (or subcontractor, as applicable) is a preferred domestic manufacturer or producer, documentation identifying the supplier of the covered material and covered items, together with the attestation of the prime contractor (or subcontractor) that such supplier was also a preferred domestic manufacturer or producer and that such supplier made a certification under paragraph (2)(B) that such material and items comply with this section.

''(4) The Secretary shall prescribe regulations to implement this subsection, including uniform standards for the certifications, documentation, and attestations required by this subsection and how those requirements apply to mixed materials, recycled materials, and commingled lots.

''(i) PREFERRED DOMESTIC MANUFACTURERS AND PRODUCERS; DESIGNATION AND BENEFITS.—(1) Under regulations prescribed by the Secretary, the Secretary may designate as a preferred domestic manufacturer or producer any contractor that—

''(A) is a manufacturer or producer within the United States of covered materials; or

''(B) is a manufacturer or producer that—

"(i) manufactures or produces, within the United States, covered items that contain covered materials;

"(ii) manufactures or produces such items in a manner that complies with the sourcing requirements of subsections (d) and (e); and

"(iii) maintains documentation for such items in a manner that complies with subsection (h).

"(2) Under regulations prescribed by the Secretary, the Secretary may revoke such a designation.

"(3) A prime contractor that is supplied covered material, or a covered item that contains covered material, from a supplier that is designated as a preferred domestic manufacturer or producer at the time such material or item is supplied may reasonably rely on that designation in making certifications and obtaining documentation under subsection (h). In a case in which the supplier was not, in fact, a preferred domestic manufacturer or producer at the time such material or item is supplied (such as because the designation was revoked), the prime contractor shall not be accountable for a deficiency in its certifications and documentation under subsection (h) unless the contractor had actual knowledge of facts that would have caused a reasonable contractor to question whether

the supplier was in fact a preferred domestic manufacturer or producer.

''(4) The fact that a contractor is designated as a preferred domestic manufacturer or producer may, if appropriate and consistent with law, be used by the Department for other purposes, such as in determining whether to provide credit in source selection, priority in processing of qualifications, or opportunity to participate in pilot programs.

''(j) DELEGATION.—The authorities in subsections (f), (g), and (i) may be delegated no lower than the senior acquisition executive of the military department concerned or, in the case of a Defense Agency, the Under Secretary of Defense for Acquisition and Sustainment.

''(k) ANNUAL REPORT; PUBLICATION.—(1) Not later than March 1 of each year, the Secretary shall submit to the congressional defense committees, and publish in accordance with paragraph (3), a report on the implementation of this section. Each report shall cover the fiscal year that ended on September 30 of the preceding year and the fiscal year immediately preceding that fiscal year.

''(2) Each report shall include, for each fiscal year covered by the report, data for each category of covered material, including—

''(A) sourcing percentages achieved;

''(B) waivers granted under subsection (g), identified by category of material and supply-chain stage, including duration and stated basis;

''(C) contractors designated as preferred domestic manufacturers and producers;

''(D) any findings, whether preliminary or not, of false certification, misconduct, or noncompliance with this section;

''(E) actions taken by the Secretary to increase the supply of Tier 1 and Tier 2 materials that meet the requirements of this section, including progress on investments in domestic capacity; and

''(F) such other information as the Secretary determines appropriate to describe implementation of this section.

''(3) The report shall be submitted in unclassified form, but may include a classified annex.

''(4) To the maximum extent practicable, the Secretary shall publish each report in a machine-readable, standardized format on a publicly accessible website of the Department.

''(l) SALE OF NATIONAL DEFENSE STOCKPILE MATERIALS.—The Secretary of Defense may not sell any material from the National Defense Stockpile, if the National

Defense Stockpile Manager determines that such a sale is not in the national interests of the United States, to—

''(1) any covered nation; or

''(2) any third party that the Secretary reasonably believes is acting as a broker or agent for a covered nation or an entity in a covered nation.

''(m) DEFINITIONS.—In this section:

''(1) The term 'commercially available off-the-shelf item' has the meaning given such term in section 104 of title 41.

''(2) The term 'covered COTS item' means a commercially available off-the-shelf item—

''(A) at least 50 percent of which, by weight, is covered material; or

''(B) that is a mill product, such as bar, billet, slab, wire, cube, sphere, block, blank, plate, powder, or sheet, that has not been incorporated into an end item, subsystem, assembly, or component.

''(3) The term 'covered item' means an end item (as defined in section 4863 of this title), subsystem, assembly, component, or commercially available off-the-shelf item.

''(4) The term 'covered material' means a Tier 1 material or a Tier 2 material.

''(5) The term 'covered nation' means—

''(A) the Democratic People's Republic of North Korea;

''(B) the People's Republic of China;

''(C) the Russian Federation; and

''(D) the Islamic Republic of Iran.

''(6) The term 'domestically owned entity' means an entity organized under the laws of the United States or a State and controlled by United States persons.

''(7) The term 'preferred domestic manufacturer or producer' means a contractor designated as a preferred domestic manufacturer or producer under subsection (i).

''(8) The term 'supply-chain stage' includes stages such as mining, concentration, refining, separation, reduction, melting, alloying, powder production, sintering, processing, and manufacturing, and any other stage that the Secretary considers appropriate.

''(9) A material is 'sourced from, by, or through' a nation if any portion of the mining, refining, separation, melting and pouring, processing, or manufacturing of the material occurred in the nation or was performed by an entity located in the nation.

''(10) The term 'sourced outside covered nations' means, with respect to a material, that the contractor has established through the certifications and documentation under this section that the material was not sourced from, by, or through a covered nation.

''(11) Subject to the authority of the Secretary under subsection (f), the term 'Tier 1 material' means the following material, as set forth in categories (A) through (G):

''(A) Neodymium-iron-boron (NdFeB) and samarium-cobalt (SmCo) permanent magnets.

''(B) Tungsten metal powder, tungsten heavy alloy, or any finished or semi-finished component containing tungsten heavy alloy.

''(C) Neodymium oxide and metal, praseodymium oxide and metal, and neodymium-praseodymium oxide and metal, and ores and concentrates from which these oxides and metals are sourced.

''(D) Tantalum, including tantalum ores and oxides, concentrates, metal, tantalum powder, and tantalum alloys.

''(E) On and after December 18, 2027, molybdenum metals, powders, and alloys.

''(F) On and after December 18, 2027, gallium and gallium nitride.

''(G) On and after December 18, 2027, germanium.

''(12) Subject to the authority of the Secretary under subsection (f), and excluding any material that is Tier 1 material, the term 'Tier 2 material' means the following material, as set forth in categories (A) through (C):

''(A) Items comprised in whole or in part of oxides, metals, alloys (and intermediate products) of gadolinium, samarium, neodymium, praseodymium, neodymium-praseodymium, and terbium.

''(B) Items of tungsten, including—

''(i) precursors, including tungsten ores and concentrates, ammonium paratungstate, ammonium metatungstate, tungstic acid, sodium tungstate, and tungsten oxides; and

''(ii) on and after January 1, 2029, tungsten carbide.

''(C) Items comprised in whole or in part of niobium oxides, metals, and alloys.

''(13) The term 'United States person' means—

''(A) a citizen of the United States;

''(B) an alien lawfully admitted for permanent residence; or

''(C) an entity organized under the laws of the United States or a jurisdiction within the United States if the ultimate beneficial ownership and control of such entity is with persons described in subparagraph (A) or (B).''.

(b) EFFECTIVE DATE AND APPLICABILITY; REGULATIONS.—

(1) EFFECTIVE DATE AND APPLICABILITY.—The amendment made by subsection (a) shall take effect on the date (the ''effective date'') that is 180 days after the date of the enactment of this Act and shall apply to solicitations issued, and contracts entered into, on or after such effective date, except as provided in paragraph (3).

(2) REGULATIONS.—Not later than the effective date specified in paragraph (1), the Secretary of Defense shall issue regulations to implement section 4872 of title 10, United States Code, as amended by subsection (a).

(3) APPLICABILITY TO TIER 2 MATERIALS.—Subsection (e) of section 4872, as amended by subsection (a), shall not apply to solicitations issued or

contracts awarded before January 1, 2028. Until such date, a solicitation issued or contract awarded for a procurement of Tier 2 material (or covered item that contains Tier 2 material) shall be administered in accordance with section 4872 as in effect immediately before the effective date specified in paragraph (1).

(c) NON-EXECUTION INTO CURRENT LAW, AND REPEAL, OF AMENDMENT PROHIBITING PROCUREMENT OF MATERIAL MINED, REFINED, OR SEPARATED IN ANY COVERED NATION.—

(1) IN GENERAL.—Section 844 of the National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 134 Stat. 3766), as amended by section 848 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 978), is repealed.

(2) EFFECTIVE DATE.—The repeal made by paragraph (1) shall take effect on the earlier of December 31, 2026, or the date of the enactment of this Act.

(d) EXPEDITED QUALIFICATION OF NEW DOMESTIC AND ALLIED-NATION SOURCES.—

(1) IN GENERAL.—The Secretary of Defense shall establish an expedited qualification process for

new domestic and allied-nation sources of covered material (as defined in section 4872 of title 10, United States Code).

(2) SCOPE.—The process under paragraph (1) shall apply to—

(A) source qualification;

(B) product qualification; and

(C) platform or program qualification.

(3) DEADLINE.—The Secretary shall ensure that, for each entity seeking to be qualified as a domestic or allied-nation source, the qualification process is completed not later than 12 months after the date on which the entity submits a materially complete qualification package in the form prescribed by the Secretary.

(4) ACCEPTANCE OF EXISTING TESTING AND QUALIFICATION DATA.—In carrying out this subsection, the Secretary shall, to the maximum extent practicable, accept and rely on—

(A) test data, analyses, certifications, or other qualification evidence from a Government laboratory, an accredited independent laboratory, or an accredited commercial laboratory, whether located in the United States or outside the United States;

(B) qualification results or approvals previously accepted by a military department, another Federal agency, an original equipment manufacturer, or another commercial qualification regime; and

(C) commercial production history, first-article results, lot acceptance data, and comparable evidence of performance.

(5) DEPARTMENT-WIDE RECOGNITION.—The Secretary shall ensure that the result of each qualification process completed under this subsection is accepted throughout the Department of Defense for the same or substantially similar applications to the maximum extent practicable.

(6) IMPLEMENTATION.—The Secretary shall maintain a centralized record of the result of each qualification process completed under this subsection for use across the military departments and defense agencies.

(7) QUALIFICATION BY PRIME CONTRACTOR.—The Secretary shall, for the purposes of this subsection, establish policy for the acceptance of a determination by a prime contractor that a domestic supplier of a covered material is capable of providing such covered material in the form and quality re-

quired by the prime contractor and thus deem the domestic supplier a qualified source.

(8) DEFINITION.—In this subsection, the term ''allied nation'' means the United States or any foreign nation (other than a covered nation, as defined in section 4872 of title 10, United States Code) designated by the Secretary for purposes of this subsection.

SEC. 1804. CHANGES WITH RESPECT TO THE FEDERAL ACQUISITION SECURITY COUNCIL.

(a) DEFINITION OF SOURCE OF CONCERN, COVERED SOURCE OF CONCERN, RECOMMENDED ORDER, AND DESIGNATED ORDER.—Section 1321 of title 41, United States Code, is amended—

(1) by amending paragraph (3) to read as follows:

''(3) COVERED ARTICLE.—The term 'covered article'—

''(A) has the meaning given that term in section 4713; and

''(B) includes operational technology (as defined in section 3 of the Internet of Things Cybersecurity Improvement Act of 2020 (Public Law 116–207; 15 U.S.C. 278g–3a)).'';

(2) by redesignating paragraphs (5) through (8) as paragraphs (7) through (10), respectively;

(3) by inserting after paragraph (4) the following:

''(5) COVERED SOURCE OF CONCERN.—The term 'covered source of concern' means a source of concern that sells, produces, or is involved in the development of a covered article that is designated in section 1328(c) as a statutorily designated covered article.

''(6) DESIGNATED ORDER.—The term 'designated order' means an order described under section 1323(c)(3).''; and

(4) by adding at the end the following:

''(11) RECOMMENDED ORDER.—The term 'recommended order' means an order recommended under section 1323(c)(2).

''(12) SOURCE OF CONCERN.—

''(A) IN GENERAL.—The term 'source of concern' means a source—

''(i) subject to the jurisdiction, direction, or control of the government of a foreign adversary, or operates on behalf of the government of a foreign adversary; or

''(ii) that poses a risk to the national security of the United States based on collaboration with, whole or partial ownership or control by, or being affiliated with a military, internal security force, or intelligence agency of a foreign adversary.

''(B) FOREIGN ADVERSARY DEFINED.—In this paragraph, the term 'foreign adversary' has the meaning given the term 'covered nation' in section 4872(d) of title 10.''.

(b) ESTABLISHMENT AND MEMBERS OF COUNCIL.—Section 1322 of title 41, United States Code, is amended—

(1) in subsection (a), by striking ''executive branch'' and inserting ''Executive Office of the President'';

(2) in subsection (b)—

(A) by amending paragraph (1) to read as follows:

''(1) IN GENERAL.—The members of the Council shall be as follows:

''(A) The Administrator for Federal Procurement Policy.

''(B) The Deputy Director for Management of the Office of Management and Budget.

''(C) The following officials, each of whom shall occupy a position at the level of Assistant Secretary or Deputy Assistant Secretary (or equivalent):

''(i) Two officials from the Office of the Director of National Intelligence, one of which shall be from the National Counterintelligence and Security Center.

''(ii) Two officials from the Department of Defense, one of which shall be one from the National Security Agency.

''(iii) Two officials from the Department of Homeland Security, one of which shall be one from the Cybersecurity and Infrastructure Security Agency.

''(iv) An official from the General Services Administration.

''(v) An official from the Office of the National Cyber Director.

''(vi) Two officials from the Department of Justice, one of which shall be one from the Federal Bureau of Investigation.

''(vii) Two officials from the Department of Commerce, one of which shall be from the National Institute of Standards

and Technology and one of which shall be from the Bureau of Industry and Security.

''(viii) An official from any executive agency not listed under clauses (i) through (vii) whose temporary or permanent participation is determined by the Chairperson of the Council to be necessary to carry out the functions of the Council while maintaining the intended balance in subject matter expertise.''; and

(B) in paragraph (2)—

(i) in the heading, by striking ''LEAD REPRESENTATIVES'' and inserting ''MEMBERS'';

(ii) by amending subparagraph (A)(i) to read as follows:

''(i) IN GENERAL.—The head of each executive agency listed under paragraph (1)(C) shall designate the official or officials from that agency who shall serve on the Council in accordance with such paragraph.'';

(iii) by amending subparagraph (A)(ii) to read as follows:

''(ii) REQUIREMENTS.—To the extent feasible, any official designated under clause (i) shall have expertise in supply chain risk management, acquisitions, law, or information and communications technology.'';

(iv) by amending subparagraph (B) to read as follows:

''(B) FUNCTIONS.—A member of the Council shall—

''(i) regularly participate in the activities of the Council;

''(ii) ensure that any information requested by the Council from the agency represented by the member is provided to the Council; and

''(iii) ensure that the head of the agency represented by the member and other appropriate personnel of the agency are aware of the activities of the Council.'';

(3) in subsection (c)—

(A) by amending paragraph (1) to read as follows:

''(1) IN GENERAL.—

''(A) DESIGNATION.—Not later than 45 days after the date of the enactment of this paragraph, the President shall a designate a member of the Council to serve as Chairperson of the Council.

''(B) TRANSITION.—The Chairperson of the Council on the day before the date of the enactment of this paragraph shall remain the Chairperson until the President makes a designation pursuant to subparagraph (A).''; and

(B) in paragraph (2)—

(i) in subparagraph (B), by striking '' subsection (b)(1)(H)'' and inserting ''subsection (b)(1)(C)(viii)''; and

(ii) in subparagraph (C), by striking ''lead representative of each agency represented on the Council'' and inserting ''members of the Council''; and

(4) in subsection (d)—

(A) by striking ''The Council'' and inserting the following:

''(1) COUNCIL MEETINGS.—The Council''; and

(B) by adding at the end the following:

''(2) OTHER MEETINGS.—The Chairperson of the Council shall meet, not less frequently than semiannually, with—

''(A) the Secretary of Homeland Security, Secretary of Defense, and Director of National Intelligence; or

''(B) in the case that any of the officials under subparagraph (A) delegated authority to an official under section 1323(c)(6)(C), with the delegated official.''.

(c) FUNCTIONS AND AUTHORITIES.—Section 1323 of title 41, United States Code, is amended—

(1) in subsection (a)—

(A) by striking ''supply chain'' each place it appears and inserting ''acquisition security and supply chain'';

(B) in paragraph (1), as amended by subparagraph (A), by striking '', particularly'' and inserting ''that arise'';

(C) in paragraph (2), as amended by subparagraph (A)—

(i) by striking ''sharing information'' and inserting ''exchanging information'';

(ii) by inserting ''associated with the acquisition and use of covered articles'' after ''risk'';

(iii) in subparagraph (B), by striking ''; and'' and inserting a semicolon;

(iv) by redesignating subparagraph (C) as subparagraph (D); and

(v) by inserting after subparagraph (B) the following:

''(C) the process for an executive agency to submit supply chain risk information to the Council in furtherance of identifying, mitigating, or managing its supply chain risk; and'';

(D) in paragraph (6), as amended by subparagraph (A), by—

(i) striking ''posed by'' and inserting ''associated with''; and

(ii) inserting ''and use'' before ''of covered articles'';

(E) in paragraph (7), by striking ''posed by acquisitions'' and inserting ''associated with the acquisition'';

(F) by redesignating paragraph (7) as paragraph (12); and

(G) by inserting after paragraph (6) the following:

''(7) Implementing a prioritization scheme for evaluating the security risks associated with the acquisition and use of covered articles sold, produced, or developed by a covered source of concern.

''(8) Evaluating each covered source of concern to determine whether to issue a designated order with respect to the covered source of concern or a covered article sold, produced, or developed by the covered source of concern.

''(9) Evaluating sources of concern to determine whether to issue a recommended order with respect to the source of concern, or any covered article sold, produced, or developed by the source of concern.

''(10) Monitoring and evaluating compliance by the Secretary of Homeland Security, Secretary of Defense, and Director of National Intelligence with the requirement to issue designated orders under subsection (c)(6)(B).

''(11) Reporting to Congress annually on the security risks associated with the acquisition and use of covered articles sold, produced, or developed by sources of concern.'';

(2) in subsection (b)—

(A) by striking ''The Council'' and inserting the following:

''(1) IN GENERAL.—The Council'';

(B) in paragraph (1), as so redesignated, by striking ''a program office and''; and

(C) by adding at the end the following:

''(2) FEDERAL ACQUISITION SECURITY COUNCIL PROGRAM OFFICE.—

''(A) ESTABLISHMENT.—Not later than 45 days after the date of the enactment of this paragraph, the President shall establish a Federal Acquisition Security Council Program Office (referred to in this paragraph as the 'Program Office') within the Executive Office of the President to carry out the duties described under subparagraph (B).

''(B) DUTIES.—The Program Office shall provide to the Council, including any committees, working groups, or other constituent bodies established by the Council under paragraph (1)—

''(i) administrative, legal, and policy support; and

''(ii) analysis and subject matter expertise on information communications

technology, acquisition security, and supply chain risk.

''(C) STRUCTURE.—The head of the Program Office shall be designated by the Chairperson of the Council.

''(D) PROHIBITION.—The Program Office may not provide administrative support to the Council for any activities of the Council carried out pursuant to a provision of law other than a provision of law under this subchapter.

''(E) FUNDING AND RESOURCES.—The Program Office may use the staff and resources of the Executive Office of the President or maintain dedicated staff and resources, as appropriate, in the performance of the duties of the Office.

''(F) SHARED STAFFING AUTHORITY.—

''(i) IN GENERAL.—The Program Office may accept officers or employees of the United States or members of the Armed Forces on a detail from an element of the intelligence community (as such term is defined in section 3 of the National Security Act of 1947 (50 U.S.C. 3003)) or from another element of the Federal Gov-

ernment on a nonreimbursable basis, as jointly agreed to by the heads of the receiving and detailing elements, for a period not to exceed three years.

''(ii) RULE OF CONSTRUCTION.—Nothing in this subparagraph may be construed as imposing any limitation on any other authority for reimbursable or nonreimbursable details.

''(iii) NONREIMBURSABLE DETAIL.—A nonreimbursable detail made under this subparagraph shall not be considered an augmentation of the appropriations of the receiving element of the Program Office.''; and

(3) in subsection (c)—

(A) in paragraph (1)—

(i) in the matter preceding subparagraph (A), by striking ''supply chain risk'' and inserting ''acquisition security and supply chain risk associated with the acquisition of covered articles'';

(ii) in subparagraph (A), by inserting ''recommended'' before ''exclusion orders'';

(iii) in subparagraph (B), by inserting ''recommended'' before ''removal orders'';

(iv) in subparagraph (C), by striking ''; and'' and inserting a semicolon;

(v) in subparagraph (D), by striking the period at the end and inserting ''; and''; and

(vi) by adding at the end the following:

''(E) issuing designated orders.'';

(B) in paragraph (2)—

(i) in the heading, by striking ''RECOMMENDATIONS'' and inserting ''RECOMMENDED ORDERS'';

(ii) by striking ''use'' and inserting '', using'';

(iii) by striking ''to issue recommendations'' and inserting '', recommend orders'';

(iv) by striking ''Such recommendations'' and inserting ''Any such order recommended'';

(v) by inserting ''to the officials described under clause (iii) of paragraph

(6)(A) for issuance under such paragraph'' after ''thereof,'';

(vi) in subparagraph (D), by striking ''supply chain risk'' and inserting ''acquisition security and supply chain risk associated with the acquisition of covered articles''; and

(vii) in subparagraph (E), by striking ''exclusion or removal'';

(C) by redesignating paragraphs (3) through (7) as paragraphs (4) through (8), respectively;

(D) by inserting after paragraph (2) the following:

''(3) DESIGNATED ORDERS.—

''(A) EXCLUSION OR REMOVAL OF COVERED SOURCES OF CONCERN.—

''(i) IN GENERAL.—Not later than 270 days after a source of concern is designated as a covered source of concern, the Council—

''(I) shall provide to the officials described under clause (iii) of paragraph (6)(B) for issuance under such paragraph orders requiring—

"(aa) the exclusion of the covered source of concern from any executive agency procurement action, including source selection and consent for a contractor; or

"(bb) the removal of covered articles sold, produced, or developed by the covered source of concern from the information system of executive agencies; or

"(II) report to Congress why the Council has determined to not issue an order described under subclause (I) with respect to the covered source of concern or covered articles sold, produced, or developed by the covered source of concern.

"(ii) CONTENTS OF ORDER.—Any order provided under clause (i) shall include—

"(I) information regarding the scope and applicability of the order, including any information necessary to positively identify the covered

source of concern or covered articles sold, produced, or developed by the covered source of concern required to be excluded or removed under the order;

"(II) a summary of any risk assessment reviewed or conducted in support of the order;

"(III) a summary of the basis for the order, including a discussion of less intrusive measures that were considered and why such measures were not reasonably available to reduce security risk;

"(IV) a description of the actions necessary to implement the order; and

"(V) where practicable, in the Council's sole and unreviewable discretion, a description of mitigation steps that could be taken by the covered source of concern that may result in the Council rescinding the order.

"(B) EXCLUSION OR REMOVAL OF SECOND ORDER SOURCES OR COVERED ARTICLES.—

"(i) ISSUANCE.—In the case that the Council provides an order under subparagraph (A), the Council may also provide an order to the officials described under paragraph (6)(A)(iii) requiring the exclusion of sources or covered articles from executive agency procurement actions or removal of covered articles from executive agency information systems if—

"(I) such covered articles or such sources use a covered source of concern in the performance of a contract with the executive agency; or

"(II) such sources enter into a contract, the performance of which such source knows or has reason to believe will require, in the performance of a contract with the executive agency, the use of a covered source of concern or the use of a covered article sold, produced, or developed by a covered source of concern.

"(ii) EFFECTIVE DATE CONSIDERATIONS.—Any effective date prescribed by

the Council for an order issued pursuant to clause (i) shall take into account—

''(I) the risk posed by the covered source of concern or the covered article sold, produced, or developed by the covered source of concern to the national security of the United States;

''(II) the likelihood of the covered source of concern or the covered article sold, produced, or developed by the covered source of concern causing imminent threat to public health and safety;

''(III) the availability of an alternative source or covered article sold, produced, or developed by an alternative source; and

''(IV) an assessment of the potential direct or quantifiable costs that may be incurred by the Federal Government, a State, local, or Tribal government, or by the private sector, as a result of compliance by the head of an executive agency with such an exclusion or removal order.'';

(E) in paragraph (4), as so redesignated—

(i) in the heading, by striking ''OF RECOMMENDATION AND REVIEW'' and inserting ''AND REVIEW OF RECOMMENDED AND DESIGNATED ORDERS'';

(ii) by striking ''the recommendation'' each place it appears, and inserting ''the order'';

(iii) in the matter preceding subparagraph (A), by striking ''A notice of the Council's recommendation under paragraph (2)'' and inserting ''Before the Council recommends an order under paragraph (2) or issues an order under paragraph (3), a notice'';

(iv) in subparagraph (A), by striking ''a recommendation has been made'' and inserting ''the order will be recommended or issued'';

(v) in subparagraph (D), by striking ''paragraph (5)'' and inserting ''paragraph (6)''; and

(vi) in subparagraph (E), by striking the ''the recommendation'' and inserting ''the order'';

(F) in paragraph (5), as so redesignated—

(i) by striking ''paragraph (3)'' and inserting ''paragraph (4)'';

(ii) in subparagraph (A), by striking ''paragraph (5)'' and inserting ''paragraph (6)'';

(iii) in subparagraph (B), by striking ''paragraph (6)'' and inserting ''paragraph (7)'';

(iv) by striking ''Any notice'' and inserting ''(A) IN GENERAL.—Any notice''; and

(v) by inserting at the end the following:

''(B) INFORMATION COLLECTED.—Any information collected from a source after notice under paragraph (4) shall be exempt from public disclosure and disclosure under subsection (b)(3)(B) of section 552 of title 5 (commonly referred to as the 'Freedom of Information Act'), until an order is issued pursuant to paragraph (6).''; and

(G) in paragraph (6), as so redesignated—

(i) by amending subparagraph (A) to read as follows:

"(A) ISSUANCE OF RECOMMENDED ORDERS.—

"(i) MODIFICATIONS TO ORDER.—After considering any response properly submitted by a source under paragraph (4) related to an order to be recommended under paragraph (2), the Council shall—

"(I) make such modifications to the order as the Council considers appropriate; and

"(II) provide the order (together with any information submitted by a source under paragraph (4) related to such order) to the officials described under clause (iii).

"(ii) ORDER.—Not later than 90 days after receiving a recommended order, the officials described under clause (iii) shall—

"(I) issue the order to the heads of the applicable agencies; or

"(II) submit a notification to the Council that the order will not be issued, that includes in the notification to the Council, all the reasons for why the order will not be issued.

''(iii) OFFICIALS.—The officials described in this clause are as follows:

''(I) The Secretary of Homeland Security, for exclusion and removal orders applicable to civilian agencies, to the extent not covered by subclause (II) or (III).

''(II) The Secretary of Defense, for exclusion and removal orders applicable to the Department of Defense and national security systems other than sensitive compartmented information systems.

''(III) The Director of National Intelligence, for exclusion and removal orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by subclause (II).'';

(ii) by redesignating subparagraphs (B) through (E) as subparagraphs (C) through (F), respectively;

(iii) by inserting after subparagraph (A) the following:

''(B) ISSUANCE OF DESIGNATED ORDER.—

"(i) MODIFICATIONS.—After considering any response properly submitted by a source under paragraph (4) related to a designated order, the Council shall—

"(I)(aa) make any such modifications to the order as the Council considers appropriate; or

"(bb) if the Council determines that the issuance of a designated order is not warranted, rescind the designated order and notify the source of the rescission; and

"(II) except in the case that the Council rescinds the designated order under subclause (I)(bb), provide the designated order (including any modifications made to such order by the Council) to the officials described in clause (iii).

"(ii) ISSUANCE.—The officials described in clause (iii) shall, not later than 90 days after receiving a designated order, issue the order to the heads of the applicable agencies.

"(iii) OFFICIALS.—The officials described in this clause are as follows:

"(I) The Secretary of Homeland Security, for exclusion and removal orders applicable to civilian agencies, to the extent not covered by subclause (II) or (III).

"(II) The Secretary of Defense, for exclusion and removal orders applicable to the Department of Defense and national security systems other than sensitive compartmented information systems.

"(III) The Director of National Intelligence, for exclusion and removal orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by subclause (II).

"(iv) WAIVER.—An official described under clause (iii) may waive for a period of not more than 365 days the application of an order issued by such official under clause (ii) with respect to a covered source of concern or a covered article sold, pro-

duced, or developed by a covered source of concern if the official submits, not later than 30 days after making such waiver, a written notification to the Council, appropriate congressional committees, the Speaker and Minority Leader of the House of Representatives, and the Majority and Minority Leaders of the Senate that contains the justification for such waiver.

''(v) RENEWAL OF WAIVER.—An official described under clause (iii) may renew a waiver under clause (iv) for an additional period of not more than 180 days if—

''(I) the renewal of the waiver is in the national security interests of the United States; and

''(II) the official submits, not later than 30 days after renewing such waiver, a written notification to the Council, appropriate congressional committees, the Speaker and Minority Leader of the House of Representatives, and the Majority and Minority Leaders of the Senate that includes

the justification for renewing the wavier.

''(vi) NATIONAL SECURITY WAIVER.—An official described under clause (iii) may waive the application of an order issued by such official under clause (ii) with respect to a covered source of concern or a covered article sold, produced, or developed by a covered source of concern for any activity subject to the reporting requirements under title V of the National Security Act of 1947 (50 U.S.C. 3091 et seq.) or any authorized intelligence activities of the United States.

''(vii) RESCISSION OF ORDER.—An exclusion or removal order issued under this subparagraph by an official may be rescinded only by the Council.'';

(iv) in subparagraph (C), as so redesignated—

(I) by striking ''subparagraph (A)'' and inserting ''subparagraph (A)(iii) or (B)(iii)'';

(II) by striking ''this subparagraph'' and inserting ''subparagraph (A)(iii) or (B)(iii)''; and

(III) by striking '', except'' and all that follows before the period at the end;

(v) in subparagraph (D), as so redesignated—

(I) by striking ''this paragraph'' and inserting ''subparagraph (A)(iii) or (B)(iii)''; and

(II) by striking ''help'';

(vi) in subparagraph (E), as so redesignated, by striking ''this paragraph'' and inserting ''subparagraph (A)''; and

(vii) by adding after subparagraph (F), as so redesignated, the following:

''(G) EFFECTIVE DATE OF ORDERS.—The effective date of an order issued under this paragraph may not be more than 365 days after the order is issued.'';

(H) in paragraph (7), as so redesignated, by striking ''paragraph (5)(A)'' and inserting ''subparagraph (A) or (B) of paragraph (6)''; and

(I) in paragraph (8), as so redesignated, by striking ''paragraph (5)'' and inserting ''paragraph (6)'';

(4) in subsection (e), by inserting ''the Chief Data Officers Council,'' before ''the Chief Acquisition''; and

(5) in subsection (f)(2), by striking the period at the end and inserting '', unless such source is a covered source of concern.''.

(d) STRATEGIC PLAN.—Section 1324(a) of title 41, United States Code, is amended—

(1) by inserting '', and periodically thereafter'' after ''2018'';

(2) in the matter preceding paragraph (1), by inserting ''acquisition security and'' before ''supply chain risks'';

(3) in paragraph (8), by inserting ''acquisition security and'' before ''supply chain risks''; and

(4) in paragraph (9)(A), by inserting ''acquisition security and'' before ''supply chain risk''.

(e) REQUIREMENTS FOR EXECUTIVE AGENCIES.—Section 1326 of title 41, United States Code, is amended—

(1) in subsection (a)—

(A) in paragraph (1), by striking ''; and'' and inserting a semicolon;

(B) in paragraph (2), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(3) providing any information requested by the Chairperson of the Council for the purpose of carrying out activities of this subchapter, subject to applicable law or policy on the control and handling of classified, sensitive, or proprietary information.'';

(2) by striking ''supply chain'' each place it appears and inserting ''security and supply chain''; and

(3) in subsection (b)(6), by striking ''supply chain'' and inserting ''security or supply chain''.

(f) JUDICIAL PROCEDURE.—Section 1327(b) of title 41, United States Code, is amended—

(1) in paragraph (1), by striking ''section 1323(c)(6)'' and inserting ''section 1323(c)(7)'';

(2) in paragraph (3), by striking ''sections 1323(c)(5)'' and inserting ''sections 1323(c)(6)''; and

(3) in paragraph (4), by amending subparagraph (B)(i) to read as follows:

''(i) FILING OF RECORD.—The United States shall file with the court an administrative record, which shall consist of—

''(I) in the case of a designated order issued under section 1323(c)(6) by the appropriate official, the information the Council relied upon in providing such order to such official; and

''(II) the information that the appropriate official relied upon in issuing an exclusion or removal order under section 1323(c)(6) or a covered procurement action under section 4713.''.

(g) ADDITIONAL PROVISIONS.—Section 1328 of title 41, United States Code, is amended to read as follows:

''§ 1328. Additional provisions

''(a) COMPLIANCE WITH EXISTING PROHIBITIONS.—In implementing this subchapter, the Council shall coordinate, as applicable and practicable, with the head of an agency to assist with compliance by the agency with—

''(1) section 889 of the John S. McCain National Defense Authorization Act of 2019 (Public Law 115–232; 41 U.S.C. 3901 note);

''(2) section 5949 of the James M. Inhofe National Defense Authorization Act of 2023 (Public Law 117–263; 41 U.S.C. 4713 note); and

''(3) the American Security Drone Act of 2023 (Public Law 118–31; 41 U.S.C. 3901 note).

''(b) UPDATE TO REGULATIONS.—The Federal Acquisition Security Council shall update, not later than two years after the date of the enactment of this section, any regulations of the Council as necessary.

''(c) STATUTORILY DESIGNATED COVERED ARTICLE DEFINED.—The term 'statutorily designated covered article' pursuant to section 1321(5)—

''(1) means a vehicle or a mechanical device commonly known as an 'unmanned ground vehicle system' that—

''(A) is capable of locomotion, navigation, or movement on the ground; and

''(B) operates at a distance from one or more operators or supervisors based on commands or in response to sensor data, or through any combination thereof; and

''(2) includes—

''(A) humanoid robots, mobile robotics, remote surveillance vehicles, and autonomous patrol technologies; and

"(B) the vehicle, its payload, and any external device used to control the vehicle.".

(h) REALLOCATING EXISTING RESOURCES.—Section 5949(l)(1) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263) is amended by inserting before the period at the end the following: "and the Federal Acquisition Security Council Program Office established under section 1323(b)(2) of title 41, United States Code".

(i) IMPLEMENTATION BY THE DEPARTMENT OF DEFENSE.—

(1) NOTIFICATION.—Not later than 30 days after the date of the enactment of this Act, the Secretary of Defense shall provide to the congressional defense committees a notification of the designation of the officials of the Department of Defense who shall serve on the Council in accordance with clause (b)(1)(C)(ii) of section 1322 of title 41, United States.

(2) PERFORMANCE OF DUTIES.—The Secretary shall ensure that the officials designated—

(A) regularly participate in the activities of the Council;

(B) ensure that any information requested by the Council from the agency represented by

the such official or officials is provided to the Council in a timely manner; and

(C) establish procedures to ensure that Under Secretary of Defense for Acquisition and Sustainment, the Under Secretary of Defense for Research and Engineering, the Chair of the Joint Requirements Oversight Council, the Assistant Secretary of Defense for Industrial Base Policy, and other appropriate personnel of the Department of Defense are informed of the activities of the Council in a timely manner.

(j) TECHNICAL AND CONFORMING CHANGES.—Subchapter III of chapter 13 of title 41, United States Code, is amended—

(1) in the table of sections for the subchapter by adding after the item related to section 1327 the following:

''1328. Additional provisions.''; and

(2) by striking ''of this title'' each place the term appears.

SEC. 1805. MODIFICATIONS TO STRATEGY TO ELIMINATE SOURCING OF COMPUTER DISPLAYS FROM CERTAIN NATIONS.

Section 835 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. 4651 note prec.) is amended—

(1) by redesignating subsection (e) as subsection (f); and

(2) by inserting after subsection (d) the following new subsection:

''(e) CERTIFICATIONS.—

''(1) IN GENERAL.—The Secretary of Defense shall submit to the congressional defense committees a written certification—

''(A) not later than June 30, 2027, that implementation of the strategy required by this section has begun; and

''(B) not later than January 1, 2030, that the strategy required by this section has eliminated the reliance of the Department on any covered nation to acquire computer displays.''.

SEC. 1806. EXTENSION OF COMPTROLLER GENERAL ASSESSMENTS AND REPORTS ON COMPLIANCE WITH PROCUREMENT REQUIREMENTS RELATING TO RARE EARTH ELEMENTS AND STRATEGIC AND CRITICAL MATERIALS.

Section 857(c) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2727) is amended—

(1) in paragraph (3)(A) by inserting '', including any recommendations that the Comptroller Gen-

eral considers appropriate'' before the period at the end; and

(2) in subsection (c)(5) by striking ''the date that is 5 years after the date of the enactment of this Act'' and inserting ''the date that is 12 years after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2027''.

SEC. 1807. REQUIREMENTS RELATED TO DETECTION AND AVOIDANCE OF COUNTERFEIT ELECTRONIC PARTS.

(a) IN GENERAL.—Section 818(c)(3) of the National Defense Authorization Act for Fiscal Year 2012 (Public Law 112–81; 10 U.S.C. 3241 note prec.) is amended—

(1) in subparagraph (C), by striking ''and'' at the end;

(2) in subparagraph (D)(iii), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following new subparagraph:

''(E) require that, for purchases made in accordance with procedures applicable to purchases below micro-purchase threshold (as defined in section 3573 of title 10, United States Code) or in accordance with procedures applicable to purchases below simplified acquisition

threshold (as defined in section 3571 of such title), Department personnel—

"(i) obtain electronic parts that are in production or currently available in stock from the original manufacturer or an authorized dealer for such electronic part, or from a supplier that obtains such electronic parts exclusively from the original manufacturer or an authorized dealer for such electronic part; and

"(ii) obtain electronic parts that are not in production or currently available in stock in accordance with regulations prescribed pursuant to subparagraph (C) or (D).".

(b) DFARS REVISION.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall revise the Department of Defense Supplement to the Federal Acquisition Regulation to carry out the amendments made by this section.

(c) GUIDANCE REQUIRED.—Not later than 30 days after the revision required under subsection (b) has been finalized, the Secretary shall update the guidance required under section 818(c) of the National Defense Authorization Act for Fiscal Year 2012 (Public Law 112–81; 10

U.S.C. 3241 note prec.)) as amended by this section, including practices and procedures to be used under part 8 of the Federal Acquisition Regulation.

(d) COMPTROLLER GENERAL REPORT.—Not later than 270 days after the date of the enactment of this section, the Comptroller General of the United States shall submit to the congressional defense committees a report that reviews of use of government purchase cards by the Department of Defense to obtain electronic parts (as defined in section 818 of the National Defense Authorization Act for Fiscal Year 2012 (Public Law 112–81; 10 U.S.C. 3241 note prec.)) and components for such electronic parts using multiple award contracts or using full and open competition, along with any recommendations to improve procurement procedures to reduce the risk posed by counterfeit electronic parts and components.''.

SEC. 1808. ANALYSIS AND REPORT ON SOURCING OF CERTAIN ITEMS.

(a) ANALYSIS REQUIRED.—

(1) IN GENERAL.—The Secretary of Defense, acting through the Under Secretary of Defense for Acquisition and Sustainment and other appropriate officials, shall conduct an analysis of each item described in subsection (c) and shall make recommendations for action, consistent with the poli-

cies, programs, and activities required under chapters 381 through 385 and chapter 389 of title 10, United States Code, and chapter 83 of title 41, United States Code, including—

(A) actions for restricting procurement of each such item (with appropriate waivers for cost, emergency requirements, and nonavailability of suppliers), including such restrictions applicable to—

(i) domestic suppliers;

(ii) suppliers in the national technology and industrial base (as defined in section 4801 of title 10, United States Code); or

(iii) suppliers in other allied country;

(B) actions for increasing Federal Government investment in research and development or using other available authorities such as contracts, grants, loans, cooperative agreements, or other transaction authorities, including actions to—

(i) expand sourcing, processing, production, manufacturing capability, or production capacity of each such item;

(ii) diversify sources of supply of each such item; or

(iii) promote alternative approaches for addressing military requirements for each such item;

(C) actions for prohibiting procurement each such item from selected sources or countries;

(D) stockpiling actions for each such item, including creating incentives for domestic suppliers to expand and retain capacity such as—

(i) use of long-term purchasing agreements; or

(ii) restrictions related to provenance of each such item purchased for such stockpile;

(E) actions for increasing availability of each such item through recycling or reuse; or

(F) a combination of actions described under subparagraphs (A) through (E).

(2) CONSIDERATIONS.—In conducting the analysis described in paragraph (1), the Secretary shall consider how any actions taken under the analysis would enhance or improve—

(A) national security;

(B) the economy;

(C) current and potential suppliers of the items in subsection (c), including the ability of such suppliers to meet anticipated surge production requirements of the Department of Defense; and

(D) implementation of any existing treaties or international agreements to which the United States is a party.

(b) REPORTING ON ANALYSES, RECOMMENDATIONS, AND ACTIONS.—Not later than October 1, 2027, the Secretary of Defense shall submit to the congressional defense committees a report containing the following:

(1) A summary of the findings of the analyses undertaken for each item pursuant to subsection (a).

(2) Relevant findings and recommendations for action resulting from such analyses.

(3) Descriptions of specific actions undertaken or planned to be taken as a result of the analyses, including schedule and resources allocated for any planned actions.

(4) Any relevant findings or recommendations from such analyses, as appropriate, that should be incorporated into one or more of the following:

(A) The biennial report to Congress on the national technology and industrial base required under section 4814 of title 10, United States Code.

(B) The annual report on unfunded priorities of the national technology and industrial base required under section 4815 of such title.

(C) The Department of Defense national security strategy for the national technology and industrial base and associated policy guidance prescribed under section 4811(c) of such title.

(D) Activities to modernize acquisition processes to ensure integrity of industrial base pursuant to section 4819 of such title.

(E) Activities and associated expenditures related to defense supply chains, including for material, material production, components, subassemblies, and finished products, testing and qualification, infrastructure, facility construction and improvement, and equipment needed in accordance with 4817 of such title.

(F) Activities of the Office of Strategic Capital.

(G) Defense memoranda of understanding and related agreements between the Secretary of Defense, acting on behalf of the United States, and one or more foreign countries considered in accordance with section 4851 of such title.

(H) Activities of the Industrial Analysis Group (or successor group) of the Defense Contract Management Agency.

(I) Activities of the Warstopper Program (or successor program) of the Defense Logistics Agency.

(J) Industrial base or acquisition policy changes.

(K) Legislative proposals for modifications to relevant statutes.

(c) ITEMS DESCRIBED.—The items described in this subsection are the following:

(1) A material or other item of supply for which the Secretary or another designated official has issued a waiver or exception to a statutory sourcing restriction, or for which a domestic non-availability determination has been applied.

(2) Strategic and critical materials (as defined in section 12(1) of the Strategic and Critical Mate-

rials Stock Piling Act (50 U.S.C. 98h–3(1)), including rare earth materials.

(3) Strategic and critical minerals derived from recycled or reused minerals and metals.

(4) Printed circuit boards and components of printed circuit boards.

(5) Microelectronic, semiconductor, and data storage components.

(6) Neodymium-iron-boron permanent magnets.

(7) Samarium and samarium-cobalt permanent magnets.

(8) Neodymium oxide and metal, praseodymium oxide and metal, and neodymium-praseodymium oxide and metal.

(9) Additive powders for specialty metals such as titanium-based and nickel-based alloys.

(10) Tantalum, including tantalum metal, tantalum powder, and tantalum alloys.

(11) Gallium, gallium nitride, and gallium oxide.

(12) Niobium, including niobium metal, niobium powder, and niobium alloys.

(13) Tungsten, tungsten carbide, and tungsten precursors, including tungsten ores and concentrates, ammonium paratungstate, ammonium

metatungstate, tungstic acid, sodium tungstate, and tungsten oxides.

(14) Heavy rare earth oxides, namely oxides of erbium, gadolinium, lutetium, samarium, scandium, dysprosium, terbium, ytterbium, and yttrium.

(15) Rare earth metals and alloys, namely metals and alloys of erbium, gadolinium, lutetium, neodymium, praseodymium, samarium, scandium, dysprosium, terbium, ytterbium, and yttrium.

(16) Rare earth fluorides, namely fluorides of erbium, gadolinium, lutetium, neodymium, praseodymium, samarium, scandium, dysprosium, terbium, ytterbium, and yttrium.

(17) Magnesium alloy parts.

(18) High-purity iron suitable for rare earth magnet manufacturing, naval shipbuilding alloys, electrical steel, and other specialty alloys.

(19) Aluminum and aluminum-based alloys.

(20) Graphene and graphene-based materials.

(21) Mesophase pitch, isotropic pitch, and other critical precursor materials for carbon-carbon composites and synthetic graphite.

(22) Boron carbide powder or any finished or semi-finished product containing boron carbide powder.

(23) Optical glass or optical glass systems, as defined in section 834 of the National Defense Authorization Act for Fiscal Year 2026, and weapon sights made from such glass.

(24) Optical transmission equipment, including optical fiber, optical transmitters, and optical cable equipment.

(25) Continuous filament glass fiber yarn.

(26) Ultra-high-molecular-weight polyethylene fiber production capacity.

(27) Copper foil and copper clad laminate (including woven glass mat and glass fibers necessary to produce such laminate).

(28) Chemicals critical to defense applications, as determined by the Under Secretary of Defense for Acquisition and Sustainment.

(29) Non-rare earth permanent magnets composed of materials such as iron nitride, iron-nickel, or manganese bismuth.

(30) Synthetic diamond and super abrasive materials used in defense applications.

(d) CONFORMING REPEAL.—Section 849 of the National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283) is repealed.

SEC. 1809. ASSESSMENT AND IMPLEMENTATION PLAN FOR SOURCING OF SYNTHETIC DIAMOND AND SUPER ABRASIVE MATERIALS USED IN DEFENSE APPLICATIONS.

(a) ASSESSMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report that includes—

(1) an assessment of the extent to which the Department of Defense relies on foreign sources, including sources of concern, for synthetic diamond materials and related super abrasive materials used in defense-critical applications;

(2) a description of the defense systems, subsystems, and manufacturing processes for which such materials are critical, including their role in the production, sustainment, repair, sensing, guidance, navigation, communications, electronic warfare, and precision manufacturing functions of covered systems;

(3) an evaluation of the current and projected capacity of capable domestic sources and capable sources located in allied or partner countries to meet Department of Defense requirements for such materials;

(4) an assessment of risks to the defense industrial base associated with supply disruption, including risks arising from single points of failure, limited qualified suppliers, and reliance on sources of concern; and

(5) recommendations to mitigate identified risks and to strengthen domestic production capability where the Secretary determines such capability is necessary to address national security risks.

(b) IMPLEMENTATION PLAN.—Not later than 90 days after submittal of the report under subsection (a), the Secretary of Defense shall submit to the congressional defense committees a plan—

(1) to reduce reliance on foreign sources of concern for synthetic diamond materials and related super abrasive materials; and

(2) to increase the use of capable domestic sources and, only where such capable domestic sources are not available, capable sources located in allied or partner countries, for such materials in designated defense-critical applications.

(c) DEFINITIONS.—In this section:

(1) The term ''allied or partner country'' means a country that the Secretary of Defense determines, based on national security considerations, does not

pose an undue risk to the defense industrial base or the security of defense supply chains.

(2) The term ''capable domestic source'' means a source located in the United States that the Secretary of Defense determines has the technical capability, production capacity, quality controls, security posture, and ability to meet designated defense requirements at program scale.

(3) The term ''covered system'' means such defense systems or platforms as the Secretary of Defense determines appropriate.

(4) The term ''source of concern'' means a covered nation as defined in section 4872(f)(2) of title 10, United States Code.

(5) The term ''super abrasive material'' includes cubic boron nitride and other ultra-hard materials used in defense manufacturing or defense system applications.

(6) The term ''synthetic diamond materials'' means synthetic or laboratory-engineered diamond materials, including grit, powders, wafers, films, optical components, electronic components, and other functional diamond forms, used in defense-critical applications.

SEC. 1810. DEFENSE SUPPLY CHAIN INTELLIGENCE AND RISK RESPONSE PROGRAM.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, acting through the Assistant Secretary of Defense for Industrial Base Policy, shall establish a Department of Defense-wide program to be known as the ''Defense Supply Chain Intelligence and Risk Response Program'' (in this section referred to as the ''Program'') to enhance the Department's ability to illuminate, assess, anticipate, and respond to risks across the defense industrial base supply chain.

(b) PURPOSE.—The purpose of the Program shall be to provide a coordinated, holistic framework for the Department of Defense to effectively identify and manage the risks within and across the broader defense supply chain, including risks associated with microelectronics, semiconductors, counterfeit items, diminishing manufacturing sources and material shortages, obsolescence, supply chain disruptions, cyber vulnerabilities, foreign sourced components, foreign investments, financial distress, and sourcing of critical technologies from entities within or associated with covered nations.

(c) ACTIVITIES.—The Program shall—

(1) identify and characterize supplier concentration, single-point dependencies, structural

vulnerabilities, and risks arising from foreign ownership, control, or influence;

(2) inform Department of Defense policy and funding decisions intended to enable rapid, scalable response to supply chain vulnerabilities, including creation of stockpiles and identification of alternative domestic suppliers and surge capacity; and

(3) support and inform Department of Defense efforts to reduce reliance on covered nations for supply chains essential to the national defense.

(d) IMPLEMENTATION.—In implementing this section, the Assistant Secretary of Defense for Industrial Base Policy shall, in consultation with the Assistant Secretary of Defense for Sustainment and not later than 365 days after the date of the enactment of this Act—

(1) perform an identification and assessment of the supply chain illumination efforts, supply chain risk management activities, and policies of the Department of Defense, along with annual funding profiles associated with such efforts, activities and policies;

(2) develop a common framework across the Department of Defense and with contractors of the Department to enable a holistic and coordinated ap-

proach for identifying managing risks within defense supply chains; and

(3) provide the Secretary of Defense the following:

(A) Findings and recommendations based on the assessment performed under paragraph (1), including recommendations related to expansion, consolidation, or cancellation of identified supply chain illumination efforts and supply chain risk management activities.

(B) A plan of action for successful implementation of the framework developed under paragraph (2).

(C) Recommendations for employment of advanced data analytics and artificial intelligence capabilities or tools to support and enable Program activities, including capabilities such as—

(i) mapping of multi-tier supply chains across the defense industrial base, including domestic and international supplier networks;

(ii) identifying and linking entities across public records, corporate registries, trade data, and other commercial datasets

to identify foreign ownership, control, or influence;

(iii) highlighting supplier concentration, single-point dependencies, and other structural risk indicators; and

(iv) modeling and forecasting of supply chain disruptions and economic security risks.

(e) COMMERCIAL TECHNOLOGY UTILIZATION.—The Secretary shall ensure that any advanced data analytics and artificial intelligence capabilities or tools to support the Program are procured—

(1) in accordance with the preference for commercial products and commercial services under section 3453 of title 10, United States Code;

(2) in accordance with the requirements to use competitive procedures under applicable law and the Department of Defense Supplement to the Federal Acquisition Regulation; and

(3) in a manner that provides the Department with flexibility to adapt procurement strategies to Program needs, evolving market conditions, and advances in technology throughout the life of the Program.

(f) HARDWARE AND FIRMWARE ASSURANCE PILOT PROGRAM.—

(1) ESTABLISHMENT.—Not later than 90 days after the date of enactment of this section, the Secretary of Defense, acting through the Assistant Secretary of Defense for Industrial Base Policy, shall carry out a pilot program in partnership with relevant private entities to conduct a third-party hardware evaluation and an independent analysis of emerging technologies capable of independently verifying the composition and integrity of commercial electronic devices procured through defense supply chains without reliance on hardware bills of materials, software bills of materials, or similar records.

(2) ELEMENTS.—In carrying out the pilot program established under this section, the Secretary shall—

(A) identify such technologies for inclusion in the pilot program that perform non-destructive chipset-level interrogation to identify counterfeit, substituted, or compromised components within commercially-sourced equipment;

(B) identify military installations where such technologies can assess equipment—

(i) in use; and

(ii) that has been acquired but not yet deployed; and

(C) ensure, to the extent feasible, that a variety of types of commercially-sourced equipment are included in the pilot program.

(3) REPORT.—Not later than 180 days after the date on which the pilot program commences, the Secretary shall submit to the congressional defense committees a report on the results of the pilot program, including recommendations for broader implementation and an assessment of costs and benefits.

(g) REPORTING REQUIREMENTS.—

(1) INITIAL REPORT.—Not later than April 1, 2027, the Secretary shall submit to the congressional defense committees a report describing—

(A) progress made in implementing the Program;

(B) integration of Program activities with existing Industrial Base Analysis and Sustainment activities and supply chain risk management activities; and

(C) resource requirements, including funding, personnel, data access, and technical infrastructure.

(2) ANNUAL REPORT.—Not later than one year after the date on which the Program is established, and annually thereafter for five years, the Secretary shall submit to the congressional defense committees a report that includes—

(A) an assessment of the effectiveness of the Program in improving the Department's ability to illuminate, assess, anticipate, and respond to risks across the defense industrial base supply chain; and

(B) any additional legislative, regulatory, or policy recommendations necessary to strengthen defense industrial base resilience.

(h) DEFINITIONS.—In this section:

(1) The term ''covered nation'' has the meaning given such term in section 4872 of title 10, United States Code.

(2) The term ''foreign ownership, control, or influence'' refers to ownership structures, governance arrangements, financial relationships, or other mechanisms through which a foreign person or entity may direct, materially influence, or control a supplier or sub-tier entity within the defense industrial base.

(3) The term ''economic security risks'' means risks arising from supply chain fragility, economic coercion by a covered nation including financing by a covered nation, or other vulnerabilities in a commercial supply chain that may adversely affect national security.

SEC. 1811. IDENTIFICATION OF SUPPLY CHAIN DEPENDENCIES.

(a) ANNUAL REPORTS.—

(1) IN GENERAL.—Not later than March 1, 2028, and annually thereafter until 2032, the Secretary of Defense shall submit to the appropriate congressional committees an unclassified report with a classified annex that assesses, during the year preceding the date of the report, the extent to which the supply chains for biotechnology equipment and services obtained or funded by the Department of Defense through covered transactions contain critical supply dependencies.

(2) REPORT CONTENTS.—The unclassified report required under paragraph (1) shall, for biotechnology equipment and services described in such paragraph—

(A) describe the supply chains for such biotechnology equipment and services, including

an analysis of critical supply dependencies for such supply chains and the overall vulnerability of such supply chains to geopolitical risk stemming from critical supply dependencies;

(B) identify the value of such biotechnology equipment and services, both in absolute numbers and as a percentage of the total value of such biotechnology equipment and services, where the supply chain for such biotechnology equipment or service contained at least one critical supply dependency;

(C) list the types of such biotechnology equipment or services with critical supply dependencies in defense industrial base supply chains that, if compromised, would cause significant potential disruption to military readiness; and

(D) identify the top five percent of covered transactions for biotechnology equipment and services, as measured by the total expected value over the life of the transaction for biotechnology equipment or services obtained or funded by the Department of Defense for which the supply chains contain at least one critical supply dependency.

(3) ANNEX CONTENTS.—The classified annex required under paragraph (1) shall, for biotechnology equipment and services described in paragraph (1)—

(A) identify any covered foreign entities analyzed in the report that the Secretary of Defense has recommended or is considering recommending to the Office of Management and Budget for designation as a biotechnology company of concern to inform that recommendation;

(B) describe any additional legislative authorities or resource requirements necessary to adequately assess the vulnerability of supply chains for biotechnology equipment and services that contributes to the defense industrial base, including funding, personnel, data access, and technical infrastructure; and

(C) elaborate as necessary on the contents of the unclassified report.

(b) DEFINITIONS.—In this section:

(1) The term ''appropriate congressional committees'' means—

(A) the Committee on Armed Services of the House of Representatives; and

(B) the Committee on Armed Services of the Senate.

(2) The terms ''biotechnology company of concern'', ''biotechnology equipment or service'', and ''foreign adversary'' have the meaning givens, respectively, in section 851 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60).

(3) The term ''covered foreign entity'' means an entity including any subsidiary thereof, organized under the laws of a foreign country if either the principal place of business of such entity is in a foreign adversary or the equity securities of the entity are primarily traded on one or more exchanges based in a foreign adversary.

(4) The term ''covered transaction'' means any Department of Defense contract, subcontract, cooperative agreement, grant, or other transaction with a value greater than $10,000,000.

(5) The term ''critical supply dependency'' means a step in a supply chain for a biotechnology equipment or service characterized by a limited supplier base consisting entirely or almost entirely of covered foreign entities, such that disruption from a single covered foreign entity or a small set of cov-

ered foreign entities is likely to materially impair the availability of functionally interchangeable biotechnology equipment or services.

SEC. 1812. FEDERAL ACQUISITION SECURITY COUNCIL EXCLUSION ORDERS FOR CHINESE MILITARY COMPANY DESIGNEES.

(a) DEFINITIONS.—In this section:

(1) CMC LIST.—The term ''CMC List'' means the list of Chinese military companies operating in the United States under section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 113 note).

(2) COVERED ARTICLE.—The term ''covered article'' has the meaning given such term in section 1321 of title 41, United States Code.

(3) EXCLUSION ORDER.—The term ''exclusion order'' means an order referred to in section 1323(c)(1)(A) of title 41, United States Code.

(4) COUNCIL.—The term ''Council'' means the Federal Acquisition Security Council established under section 1322(a) of title 41, United States Code.

(b) MANDATORY REFERRAL BY THE SECRETARY OF DEFENSE.—

(1) IN GENERAL.—Not later than 90 days after determining to add an entity to the CMC List, the Secretary of Defense shall transmit to the Council a written referral recommending that the Council recommend an exclusion order for covered articles produced or provided by such entity.

(2) CONTENTS.—Each referral shall include—

(A) identification of the entity, including known subsidiaries and affiliates;

(B) the basis for the determination under such section 1260H, consistent with protection of intelligence sources and methods; and

(C) any additional information relevant to the Council's assessment of whether to recommend an exclusion order for covered articles produced or provided by such entity.

(c) REQUIRED COUNCIL ACTION.—

(1) REVIEW REQUIRED.—Upon receipt of a referral under subsection (b), the Council shall use the information provided in the referral and any other information the Council determines appropriate under section 1323(c) of title 41, United States Code, to review whether to issue a recommendation to the President for an exclusion order prohibiting executive agencies from procuring covered articles

produced or provided by the designated entity. The Council shall complete such review not later than 270 days after the date on which the Council receives the referral.

(2) RECOMMENDATION TO THE PRESIDENT.—If, as a result of the review, the Council determines to issue such a recommendation, the Council shall transmit the recommendation to the President not later than 90 days after the date on which the Council completes the review.

(3) SCOPE.—The recommendation shall apply Government-wide and include subsidiaries and affiliates identified in the referral.

(d) REMOVAL FROM CMC LIST.—

(1) NOTICE.—Not later than 90 days after determining to remove an entity from the CMC List, the Secretary of Defense shall notify the Council of the determination and provide the basis for the determination.

(2) REVIEW.—Upon receipt of such a notice, the Council shall review whether to transmit to the President a recommendation to rescind or modify the exclusion order.

(3) NO AUTOMATIC RESCISSION.—Removal from the CMC List shall not automatically rescind an exclusion order.

(e) EXISTING DESIGNEES.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall transmit to the Council a written referral under subsection (b)(1) for each entity already appearing on the CMC List for which no exclusion order is in effect.

SEC. 1813. DOMESTIC PREFERENCE IN THE PROCUREMENT OF PROFESSIONAL SERVICES.

(a) ESTABLISHMENT OF PREFERENCE.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall revise the Department of Defense Supplement to the Federal Acquisition Regulation to ensure that with respect to contracts for the procurement of professional services, a contracting officer—

(1) shall establish a preference for offerors that are United States companies, to the maximum extent practicable and consistent with the interests of national security; and

(2) may elect not to apply such preference if the contracting officer provides documentation, including a rationale, for not applying the preference, which may include evidence—

(A) that the Secretary of Defense prioritized the urgency of the procurement or delivery of professional services over such preference;

(B) that no United States company is capable of fulfilling the requirements of the contract in a timely or cost-effective manner; or

(C) of other circumstances determined by the Secretary.

(b) RELATIONSHIP TO OTHER PREFERENCES.—The preference established under subsection (a) shall not take priority over any preference for procurement from the procurement list established pursuant to section 8503 of title 41, United States Code, the Federal Prison Industries catalog described under section 4124(d) of title 18, United States Code, or under the Small Business Act (15 U.S.C. 631 et seq.).

(c) REPORTS.—Beginning on March 1, 2028, and annually thereafter through March 1, 2031, the Secretary of Defense shall submit to the congressional defense committees a report that includes—

(1) a description of the effectiveness of the preference described in subsection (a) in improving acquisition outcomes in the procurement of professional services;

(2) the effect of such preference on the number of domestic entities providing professional services to the Department of Defense; and

(3) a summary of instances during the calendar year preceding the date of submission of the report where such preference was not applied, along with rationale for not applying such preference.

(d) DEFINITIONS.—In this section:

(1) The term ''foreign entity'' has the meaning given in section 225.772–1 of the Department of Defense Supplement to the Federal Acquisition Regulation (or a successor regulation).

(2) The term ''United States company''—

(A) means a business entity that—

(i) is organized under the laws of a State, the District of Columbia, or a territory or possession of the United States;

(ii) has its principal place of business located in the United States, the District of Columbia, or a territory or possession of the United States; and

(iii) is not directly or indirectly owned and controlled by a foreign entity; and

(B) includes a joint venture for which a business entity described in subparagraph (A)

holds an ownership interest greater than or equal to 50 percent.

(3) The term ''professional services'' includes one or more of the following services:

(A) Engineering.

(B) Architecture.

(C) Design.

(D) Environmental consulting.

(E) Financial consulting.

(F) Program management.

(G) Legal.

SEC. 1814. PROHIBITION ON THE USE OF CHINESE-MANUFACTURED OPTICAL FIBER BY THE DEPARTMENT OF DEFENSE.

(a) PROHIBITION.—The Secretary of Defense may not procure or obtain optical fiber and optical fiber cable produced, manufactured, or assembled by an entity that is owned by, controlled by, or subject to the jurisdiction or direction of the People's Republic of China for use in Department of Defense information networks or communications systems.

(b) COVERED OPTICAL FIBER DEFINED.—In this section, the term ''covered optical fiber'' means single-mode or multi-mode optical fiber and optical fiber cable.

(c) WAIVER AUTHORITY.—

(1) IN GENERAL.—The Secretary of Defense may waive the prohibition under subsection (a) on a case-by-case basis if the Secretary determines that—

(A) the waiver is necessary for the national security interests of the United States; and

(B) no practicable alternative exists from a source not described in subsection (a).

(2) LIMITATION.—A waiver granted under this subsection shall be limited in time and in scope to the minimum extent necessary.

(3) NOTICE.—Not later than 30 days after granting a waiver, the Secretary shall submit written notice to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives describing—

(A) the justification for the waiver;

(B) the duration and scope of the waiver; and

(C) the plan to transition to compliant materials.

(d) EFFECTIVE DATE.—This section shall apply to contracts awarded on and after October 1 of the first fiscal year beginning after the date of the enactment of this Act.

(e) FASC RECOMMENDATION.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall direct the Department of Defense official serving on the Federal Acquisition Security Council to formally recommend that the Council—

(1) evaluate optical fiber and optical fiber cable (including fiber optic cable assemblies) sold, produced, or developed by any entity that constitutes a source of concern due to the relationship of the entity to the People's Republic of China; and

(2) determine, based on such evaluation, whether to issue a recommended order with respect to such source of concern, or any covered article sold, produced, or developed by such source of concern.

(f) SCOPE OF EVALUATION.—The recommendation under subsection (b) shall specifically request that the Federal Acquisition Security Council evaluation under paragraph (1) of such subsection consider, at a minimum—

(1) whether an entity that produces or assembles optical fiber and optical fiber cable in the People's Republic of China would meet the definition of source of concern; and

(2) potential vectors for intelligence collection, disruption, or degradation of national security com-

munications through optical fiber infrastructure procured from such an entity.

(g) REPORT.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report that includes—

(A) an assessment by the Secretary regarding national security risks posed by the procurement or use of optical fiber and optical fiber cable produced or assembled by an entity that is a source of concern based on such entity's affiliation with the People's Republic of China;

(B) an assessment of the extent to which such optical fiber is present in, or procured for information networks or communications systems of the Department of Defense, or the networks of Department of Defense contractors and subcontractors;

(C) an assessment of the availability of alternative sources of optical fiber from domestic suppliers or suppliers from a country that is not a foreign adversary;

(D) an update on the status of the recommendation for evaluation made in accordance with subsection (b);

(E) an update on any recommended order or designated order issued or under consideration by the Federal Acquisition Security Council with respect to optical fiber or optical fiber cable from any source of concern affiliated with the People's Republic of China; and

(F) any actions taken or recommended to be taken by the Secretary to mitigate risks identified under subparagraph (A), including any proposed amendments to the Department of Defense Supplement to the Federal Acquisition Regulation.

(2) FORM.—The report required under this subsection shall be submitted in unclassified form, but may include a classified annex.

(h) DEFINITIONS.—In this section, the terms ''covered article'', ''designated order'', ''Federal Acquisition Security Council'', ''foreign adversary'', ''recommended order'', and ''source of concern'' have the meanings given, respectively, in section 1322 of title 41, United States Code (as amended by section 1804 of this Act) in that

term in section 1321(3) of title 41, United States Code (as amended by section 1804 of this Act).

SEC. 1815. REPORT ON PRIMARY ALUMINUM SECTOR INDUSTRIAL BASE ASSESSMENT.

(a) REPORT.—Upon enactment of this Act, the Under Secretary of Defense for Acquisition and Sustainment shall transmit to the congressional defense committees the report titled ''Primary Aluminum Sector Industrial Base Assessment Report'' issued by the Industrial Analysis Division of the Defense Contract Management Agency and submitted to the Assistant Secretary of Defense for Industrial Base Policy on April 9, 2025.

(b) BRIEFING REQUIRED.—Not later than March 1, 2027, the Assistant Secretary of Defense for Industrial Base Policy shall provide to the congressional defense committees a briefing detailing—

(1) the reliance of the United States on imports or scrap for aluminum production, including reliance on foreign adversaries or other foreign sources that are at risk of supply chain disruption;

(2) the current alumina and primary aluminum production capacity in the United States and a near- and long-term assessment of the robustness of such capacity;

(3) the status and risks facing advanced aluminum fabrication facilities that are an essential part of the defense industrial base;

(4) insights and findings from the ''Aluminum Wargame'' executed by the Defense Logistics Agency under the Defense Logistics Agency Industrial Base Campaign of Learning series;

(5) an assessment of the need for large-scale aluminum extrusion capabilities in the United States to support current and projected national defense requirements;

(6) an assessment of workforce, permitting, infrastructure, and energy considerations associated with sustaining or expanding large-scale aluminum extrusion capabilities in the United States;

(7) opportunities for increased secondary aluminum production in the United States to increase domestic defense-grade aluminum production; and

(8) policy, acquisition, or investment options the Secretary of Defense is undertaking or considering to mitigate identified risks or gaps in domestic aluminum extrusion capacity, including potential public-private partnerships or other industrial base support mechanisms, as appropriate.

SEC. 1816. ASSESSMENT OF RISK RELATED TO ADVERSARIAL CAPITAL IN THE DEFENSE INDUSTRIAL BASE.

(a) DESIGNATION.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall designate an office within the Office of Industrial Base Policy with primary responsibility for assessing and mitigating risks related to the use of adversarial capital by the entities in the national technology and industrial base (as defined in section 4801 of title 10, United States Code).

(b) DUTIES.—The Secretary shall ensure the office designated under subsection (a) is responsible for the following:

(1) Facilitating collaboration among elements of the Department of Defense and with other stakeholders, including private sector entities and academia, to identify and mitigate such risks, including—

(A) by coordinating, deconflicting, and synchronizing adversarial capital risk management activities;

(B) by facilitating timely sharing with entities in the national technology and industrial base of threat information, vulnerability assessments, and risk indicators; and

(C) by establishing relationships, including through cooperative research and development agreements, to support shared informational understanding of the commercial and economic domain to advance the economic security interests of the Department.

(2) Tracing the flow of adversarial capital from its source to entities in the national and technological industrial base.

(3) Identifying and monitoring dependencies of entities in the national and technological industrial base on foreign adversaries by identifying—

(A) single points of failure, critical chokepoints, and foreign adversary-controlled aspects of relevant supply chains that could vulnerable to adversarial capital; and

(B) tactics, techniques, and procedures used by foreign adversaries to gain influence or control over such entities.

(4) Providing specific recommendations to Secretary of Defense on actions or policies necessary to reduce adversarial capital flows for mission-critical weapons systems, technologies, and materials.

(5) Working with stakeholders to develop and implement clear legal, contractual, and technical procedures to—

(A) support and enable identification of beneficial ownership data of subcontractors (at any tier) and suppliers in the national and technological industrial base that is relevant to national security;

(B) ensure appropriate liability protections for such subcontractors and suppliers making good-faith disclosures of data described in subparagraph (A);

(C) implement a voluntary risk-sharing framework under which national and technological industrial base entities may share supplier risk information and receive validated risk assessments of the supply chain of such entity in return, with safeguards for proprietary data.

(6) Implementing and maintaining continuous automated monitoring of entities in the national and technological industrial base for changes in corporate control, beneficial ownership, geographic sourcing, and supply chain structure.

(7) Issuing automated alerts to appropriate members of the acquisition workforce and affected

stakeholders upon detection of significant risk indicators of adversarial capital.

(8) Applying corroboration protocols requiring validation of significant risk indicators of adversarial capital across not fewer than two independent data sources before forming the basis for risk-tier elevation, mitigation action, or referral to appropriate law enforcement or regulatory authorities.

(c) ECONOMIC SECURITY RISK ASSURANCE CAPABILITY.—Not later than 180 days after the date of the enactment of this Act, the head of the office designated under subsection (a) shall establish and maintain a capability to be known as the ''Economic Security Risk Assurance'' capability, which shall—

(1) consolidate and analyze information related to adversarial capital flows to entities in the national and technological industrial base, supplier identifiers, links between programs of the Department of Defense and suppliers, and other information as determined by such head;

(2) enable analysis and reporting to support the assessment and risk mitigation of adversarial capital in the national technology and industrial base;

(3) provide visualization of the risk of adversarial capital on entities in the national and technological industrial base;

(4) enable federated access by program managers, portfolio acquisition executives, and other appropriate officials of the Department of Defense to supply chain illumination efforts of the Department; and

(5) enable the office to better perform the duties outlined by this subsection.

(d) REPORTING REQUIREMENTS.—

(1) INITIAL ESTABLISHMENT.—The Secretary shall submit to the congressional defense committees a notification of the designation of an office under subsection (a) and the establishment of the Economic Security Risk Assurance tool in accordance with subsection (c).

(2) ANNUAL REPORT.—Not later than December 1, 2027, and annually thereafter, the Secretary shall submit to the congressional defense committees an annual report analyzing the activities of the office designated under subsection (a). The report may be provided in classified form and may include any recommendations of the Secretary to reduce or further

mitigate risks related to adversarial capital in the national and technological industrial base.

(e) ADVERSARIAL CAPITAL DEFINED.—In this section, the term ''adversarial capital'' means loans or other forms of financial assistance provided to entities in the national and technological industrial base.

SEC. 1817. INTEGRATION OF DEMAND FOR FOREIGN MILITARY SALES INTO INDUSTRIAL BASE PLANNING.

(a) IN GENERAL.—The Secretary of Defense shall include projected demand for foreign military sales, including any foreign military sales that are in progress, in—

(1) Any industrial base assessments conducted by the Secretary.

(2) Munitions production planning documents.

(3) Sustainment planning for major defense acquisition programs (as defined in section 4201 of title 10, United States Code).

(4) Decisions of the Secretary regarding production rate increases and capacity expansion of defense articles (as defined in section 644 of the Foreign Assistance Act of 1961 (22 U.S.C. 2403)).

(b) OBJECTIVES.—In carrying out subsection (a), the Secretary shall seek to achieve the following objectives with respect to the defense industrial base:

(1) Expand production capacity.

(2) Stabilize critical suppliers and of the defense industrial base.

(3) Incentivize capital investment in critical production lines.

SEC. 1818. REPORT ON THE FEASIBILITY OF REQUIRING BILLS OF MATERIALS FOR DEFENSE ACQUISITION.

(a) REPORT REQUIRED.—Not later than 270 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on the following:

(1) The feasibility of including requirements for Bills of Materials, including software, hardware, artificial intelligence, and cryptography, within DoD Instruction 5000.87 and the Software Acquisition Pathway.

(2) The expected value of the information gained through Bills of Materials as it relates to risk management and supply chain integrity.

(3) The necessity of establishing a new system or consolidating existing systems to perform asset management within the Department to house the information in Bills of Materials as it relates to weap-

on system components currently in use across the Armed Forces.

(b) FORM.—The report required by subsection (a) shall be submitted in unclassified form and may include a classified annex.

SEC. 1819. ASSESSMENT OF MILITARY MEDICAL SUPPLY CHAINS.

(a) IN GENERAL.—The Secretary of Defense shall conduct an assessment of the vulnerabilities to supply chains for the medical supplies and equipment used by the Department of Defense, included a detailed assessment of the reliance of the Department on sources located in China for active pharmaceutical ingredients and medical devices.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on the findings of the assessment conducted under subsection (a).

(c) DEFINITIONS.—In this section:

(1) The term ''active pharmaceutical ingredient'' has the meaning given such term section 744A of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 379j–41).

(2) The term ''medical device'' has the meaning given the term ''device'' in section 201(h) of the

Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321(h)).

SEC. 1820. ASSESSMENT OF DEPARTMENT OF DEFENSE SUPPLY CHAIN VULNERABILITIES RELATED TO DISPLAYS USED IN DEFENSE SYSTEMS.

(a) ASSESSMENT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall conduct an assessment of supply chain vulnerabilities related to displays used in weapon systems and platforms of the Department of Defense and shall submit that assessment to the congressional defense committees.

(b) ELEMENTS.—The assessment shall include—

(1) identification of weapon systems and platforms dependent on displays sourced from the People's Republic of China or Taiwan;

(2) assessment of risks of supply disruption and potential impacts of such disruption on operations;

(3) evaluation of the capabilities of the United States and allied nations for manufacturing advanced display technologies;

(4) analysis of emerging display technologies, including MicroLED displays; and

(5) recommendations for reducing any dependence of the Department on foreign sources for displays in critical weapon systems and platforms.

(c) FORM.—The assessment shall be submitted in unclassified form, but may include a classified annex.

SEC. 1821. REPORT ON NATIONAL SECURITY IMPLICATIONS OF RESTRICTIONS ON THE CROSS-BORDER MOVEMENT OF RARE EARTH ELEMENTS CONTAINING SCRAP EQUIPMENT AND COMPONENTS.

(a) REPORT REQUIRED.—Not later than a one year after the date of the enactment of this Act, the Under Secretary of Defense for Acquisition and Sustainment shall provide to the Committee on Armed Services of the House of Representatives and the Committee on Armed Services of the Senate a report on the national security implications of imposing restrictions on the cross-border movement, export, or transfer of rare-earth-element-containing scrap equipment, devices, components, assemblies, and related materials generated in the United States. The Under Secretary may prepare the report in coordination with the Secretary of Commerce, the Secretary of State, the Secretary of Energy, and the Secretary of Homeland Security, other appropriate agencies, and may consult with

domestic recyclers and processors, manufacturers, State and tribal governments, and other stakeholders.

(b) CONTENTS.—The report shall include—

(1) an overview of the defense systems and supply chains that rely on rare earth permanent magnets and the estimated volume of rare-earth-element-containing scrap originating from the defense industrial base;

(2) the estimated quantity of rare-earth-element that could feasibly be recovered annually from domestically generated scrap;

(3) the extent to which rare-earth-element-containing scrap generated domestically is exported to foreign countries for recycling and processing;

(4) the extent to which scrap exports support rare-earth-element refining or magnet production in foreign countries of concern, such as the People's Republic of China;

(5) an assessment of current and projected capacity of domestic facilities to collect, process, and refine rare-earth-element-containing scrap materials;

(6) an evaluation of the potential impacts of imposing export restrictions on rare-earth-element-containing scrap on the defense industrial base, domes-

tic recycling and processing capacity, and supply chain resilience for defense systems;

(7) identification of gaps in federal data collection regarding the export of rare-earth-element-containing scrap and recommendations to address said gaps; and

(8) recommendations for legislative or administrative actions to strengthen domestic recovery and processing of rare earths from scrap materials, including potential mechanisms for restricting export of rare-earth-element-containing scrap to support defense supply chain resilience.

SEC. 1822. PROHIBITIONS RELATING TO COVERED DISTRIBUTED LEDGER TECHNOLOGY AND BLOCKCHAIN EQUIPMENT OR SERVICES.

(a) PROHIBITION ON ACQUISITION.—The Secretary of Defense may not acquire, or enter into, extend, or renew a contract or other agreement for, any equipment, system, or service that uses covered distributed ledger technology and blockchain equipment or services as—

(1) a substantial or essential component of such equipment, system, or service; or

(2) critical technology as part of such equipment, system, or service.

(b) PROHIBITION ON LOAN AND GRANT FUNDS.—

(1) PROHIBITION.—The Secretary of Defense may not obligate or expend loan or grant funds to acquire, or to enter into, extend, or renew a contract or other agreement for, any equipment, system, or service described in subsection (a).

(2) PRIORITIZATION.—In implementing the prohibition under paragraph (1), the Secretary of Defense, in administering a loan, grant, or subsidy program, shall prioritize available funding and technical support to assist affected entities as is reasonably necessary for those affected entities to cease use of covered distributed ledger technology and blockchain equipment or services, to acquire replacement equipment and services, and to ensure that communications service to users and customers is sustained.

(c) RULE OF CONSTRUCTION.—Nothing in subsection (a) or (b) shall be construed to—

(1) prohibit the Secretary of Defense from acquiring from an entity, or entering into, extending, or renewing a contract or other agreement with an entity for, a service that connects to the facilities of a third party, such as blockchain protocols or interconnection arrangements; or

(2) apply to wireless telecommunications equipment or third-party validators that cannot route or

redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) EFFECTIVE DATE.—The prohibitions under subsections (a) and (b) shall take effect on the date that is two years after the date of the enactment of this section.

(e) WAIVER AUTHORITY.—

(1) IN GENERAL.—Except as provided in paragraph (2), beginning on the effective date under subsection (d), the Secretary of Defense may, upon request of an entity, issue a waiver of the requirements under subsection (a) with respect to such entity for a period of not more than two years.

(2) REQUIREMENTS.—The Secretary of Defense may only provide a waiver under this subsection if the entity seeking the waiver—

(A) provides a compelling justification for the additional time to implement the requirements of this section; and

(B) submits to the Secretary of Defense, who shall not later than 30 days thereafter submit to the Committees on Armed Services of the Senate and the House of Representatives, a full and complete description of the presence of covered distributed ledger technology and

blockchain equipment or services in the entity's supply chain and a phase-out plan to eliminate such covered distributed ledger technology and blockchain equipment or services.

(3) ELEMENTS OF THE INTELLIGENCE COMMUNITY.—Beginning on the effective date under subsection (d), a head of an element of the intelligence community may waive the requirements under subsection (a) if such head determines the waiver is in the national security interests of the United States.

(f) DEFINITIONS.—In this Act:

(1) The term ''covered distributed ledger technology and blockchain equipment or services'' means distributed ledger technology and blockchain equipment or services of or originating from a foreign adversary, including any of the following companies or subsidiaries thereof:

(A) The Blockchain-based Services Network.

(B) The Spartan Network.

(C) The Conflux Network.

(D) iFinex, Inc.

(E) Red Date Technology Co., Ltd.

(2) The term ''executive agency'' has the meaning given the term in section 133 of title 41, United States Code.

(3) The term ''foreign adversary'' has the meaning given such term in section 7.2 of title 15, Code of Federal Regulations.

(4) The term ''intelligence community'' has the meaning given the term in section 3 of the National Security Act of 1947 (50 U.S.C. 3003).

SEC. 1823. FEASIBILITY STUDY ON COMBATANT COMMAND CRITICAL MINERALS MANAGEMENT.

(a) IN GENERAL.—The Secretary of Defense shall conduct a study assessing the feasibility of enabling commanders of unified combatant commands to independently identify, acquire, and dispose of critical minerals to enhance operational resilience and decentralized management of resources.

(b) CONTENTS.—The study required by subsection (a) shall include the following:

(1) An assessment of the feasibility and effectiveness of providing commanders of unified combatant commands authority to independently identify, acquire, and dispose of critical minerals through contracts, cooperative agreements, or other mecha-

nisms to address vulnerabilities in the supply chains for critical minerals.

(2) An assessment of how commanders of unified combatant commands could use the authority described in paragraph (1) to develop and implement plans for the decentralized management of resources for the areas of responsibility of the unified combatant command of the commander, including advantages, challenges, and scalability across the Department of Defense of such decentralized management of resources.

(3) An estimate of the costs associated with providing the authority described in paragraph (1) and potential sources of funds to pay for such costs, including amounts authorized for the Department of Defense or the Combatant Commander Initiative Fund under section 166a of title 10, United States Code, and amounts from the disposal of critical minerals under such authority.

(4) An identification of the risks to the security of the supply chain of critical minerals, operational readiness, and partnerships between the United States and other countries resulting from providing commanders of unified combatant commands the au-

thority described in paragraph (1), and strategies to mitigate such risks.

(5) Specific recommendations on whether to provide the authority described in paragraph (1) under a pilot program or a permanent grant of authority and any necessary changes to law or regulation required to provide such authority in the manner recommended.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees and the Comptroller General of the United States a report on the findings of the study required by subsection (a).

(d) EVALUATION.—Not later than 180 days after the date on which the Secretary of Defense submits the report required under subsection (c) to the Comptroller General of the United States, the Comptroller General shall submit to the congressional defense committees a report assessing the findings and recommendations in the report submitted to the Comptroller General under such subsection, including an evaluation of the benefits, risks, and costs of providing commanders of unified combatant commands authority to independently identify, acquire, and dispose of critical minerals.

(e) DEFINITIONS.—In this section:

(1) The term ''critical mineral'' means a mineral designated by the Secretary of Defense as a critical mineral.

(2) The term ''unified combatant command'' has the meaning given such term in section 161 of title 10, United States Code.

Subtitle B—Provisions Relating to Defense Industrial Base Manufacturing

SEC. 1831. CLARIFICATION OF ELIGIBLE USES OF DEFENSE INDUSTRIAL BASE FUND.

(a) IN GENERAL.—Section 4817(g)(1) of title 10, United States Code, as added by section 867 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60), is amended—

(1) by amending subparagraph (L) to read as follows:

''(L) Ships or submarines, including technologies and capabilities supporting the assembly or automation of ships or submarines, new or modernized infrastructure for the construction of ships or submarines, and infrastructure or capabilities for the maintenance, sustainment, or battle-damage repair of ships or submarines (including private-sector drydock

and ship repair infrastructure components and systems).''; and

(2) by adding at the end the following new subparagraph:

''(P) Advanced microelectronics packaging, including substrates, interposers, heterogeneous integration, and related manufacturing capability and capacity.''.

(b) LIMITATION ON USE OF CERTAIN FUNDS.—The Secretary of Defense may not use funds made available before the date of the enactment of this Act to carry out activities under the authority of subsection (g)(1)(L) or (g)(1)(P) of section 4817 of title 10, United States Code, as added by this Act.

SEC. 1832. INCLUSION OF BIOTECHNOLOGY IN USES OF THE INDUSTRIAL BASE FUND.

(a) IN GENERAL.—Section 4817(g)(1) of title 10, United States Code, as amended by section 1831, is further amended by adding at the end the following new subparagraph:

''(Q) Biotechnology and biomanufacturing.''.

(b) LIMITATION ON USE OF CERTAIN AMOUNTS.—The Secretary of Defense may not use amounts made available before the date of the enactment of this Act to

carry out activities under the authority of subparagraph (Q) of section 4817(g)(1) of title 10, United States Code, as added by this section.

SEC. 1833. DEVELOPMENT AND APPLICATION OF ALTERNATIVE MATERIAL SOURCES.

(a) DEFENSE MODERNIZATION ACCOUNT.—Section 3136(d) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(7) For developing alternative material sources, through technologies including reverse engineering, reengineering, and advanced manufacturing (as defined in section 4841 of this title), to meet operational requirements.''.

(b) LIFE-CYCLE SUSTAINMENT PLAN.—Section 4324(b)(1)(C) of title 10, United States Code, is amended by inserting before the period at the end the following: '', where such considerations shall include the application of alternative methods to support sustainment, including reverse engineering, reengineering, and advanced manufacturing (as defined in section 4841 of this title)''.

SEC. 1834. REPORT AND IMPLEMENTATION OF PLAN FOR ADVANCED MANUFACTURING FOR CERTAIN CRITICAL READINESS ITEMS OF SUPPLY.

Section 1842 of the National Defense Authorization Act of Fiscal Year 2026 (Public Law 119–60) is amended—

(1) by inserting after subsection (b) the following new subsections:

''(c) REPORT.—Not later than 180 days after the date of the enactment of this subsection, the Under Secretary of Defense for Acquisition and Sustainment shall submit the plan required by subsection (a) to—

''(1) the collaborative forum established under section 1844 of this Act (Public Law 119–60; 10 U.S.C. 4811 note);

''(2) the Defense Logistics Agency; and

''(3) the congressional defense committees.

''(d) IMPLEMENTATION.—

''(1) WORKING GROUP.—Following receipt of the plan described in paragraph (1), members of the collaborative forum established under such section 1844 shall establish a working group (or other appropriate organization) to implement such plan by developing or identifying advanced manufacturing solutions to increase the production of critical readiness items of supply identified under subsection

(a)(1), where such solutions are likely ensure the production of such items not later than 24 months after the date of the establishment of the working group.

''(2) NOTATION.—Not later than 60 days after receipt of the plan described in paragraph (1), the Director of the Defense Logistics Agency shall update the No Bid Solicitation List to include a notation for items that have been identified under subsection (a)(1) as critical readiness items of supply.''; and

(2) in subsection (e), by adding at the end the following new paragraphs:

''(3) The term 'No Bid Solicitation List' means the list maintained by the Defense Logistics Agency identifying solicitations that have received no bids or no responsive offers within required procurement timelines.

''(4) The term 'covered system' has the meaning given in section 4324 of title 10, United States Code.''.

SEC. 1835. ADDITIONAL GUIDANCE RELATED TO ADVANCED MANUFACTURING.

Section 1846(b)(2) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60) is amended—

(1) in subparagraph (F), by striking the word ''and'';

(2) in subparagraph (G)(ii), by striking the period and inserting ''; and''; and

(3) by adding the following new subparagraph:

''(H) risk-based policies and best practices to prevent the dissemination of information or capabilities that enable influence of entities located in China, Russia, Iran, or North Korea over the production of parts, including a preference for the use of parts produced through secure, domestic advanced manufacturing processes.''.

SEC. 1836. MODIFICATIONS TO ADVANCED MANUFACTURING POLICY REVIEW AND GUIDANCE.

Section 1846(b)(2) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 10 U.S.C. 4841 note) is amended—

(1) by striking ''September 30, 2027'' and inserting ''February 28, 2027'';

(2) in subparagraph (F), by striking ''and'' at the end;

(3) in subparagraph (G)(ii), by striking the period at the end and inserting a semicolon; and

(4) by adding at the end the following:

''(H) a methodology for establishing common part numbering system for AM materials, processes, and parts; and

''(I) a methodology for qualification testing for small run critical parts.''.

SEC. 1837. ENHANCED DOMESTIC CONTENT REQUIREMENT FOR SHIPBUILDING PROGRAMS.

Section 835(b) of the National Defense Authorization Act for Fiscal Year 2023 (Public Law 118–31; 137 Stat. 338; 10 U.S.C. note prec. 4201) is amended—

(1) in paragraph (4)(B), by inserting ''except as provided in paragraph (5),'' before ''shall not apply''; and

(2) by adding at the end the following new paragraph:

''(5) EXCLUSION FOR SHIPBUILDING PROGRAMS.—Paragraph (4)(B) shall not apply to manufactured articles procured in connection with a shipbuilding program.''.

SEC. 1838. TRIENNIAL REVIEW OF MERGER AND ACQUISITION ACTIVITY ASSOCIATED WITH MAJOR DEFENSE SUPPLIERS.

(a) TRIENNIAL REVIEW.—The Assistant Secretary of Defense for Industrial Base Policy shall triennially review merger and acquisition activity associated with major defense suppliers, including assessing the resulting financial health of such suppliers and whether resulting mergers and acquisitions have affected the supply of an essential good or service needed to support the Department of Defense's mission to provide national security and defense.

(b) TRIENNIAL REPORT.—Not later than December 31, 2027, and triennially thereafter, the Assistant Secretary of Defense for Industrial Base Policy shall submit to the congressional defense committees a report on the findings of the review conducted for the previous three fiscal years, including a description of the effects of completed mergers and acquisitions on the health of the defense industrial base and actions taken to mitigate any risks identified.

SEC. 1839. MULTIYEAR PROCUREMENT AUTHORITY FOR CERTAIN MUNITIONS.

(a) AUTHORITY.—Subject to the provisions of section 3501 of title 10, United States Code, specified in subsection (c), the head of an agency may enter into one or more multiyear contracts for more than one but not more

than seven program years, beginning in fiscal year 2027, for the procurement of the following systems (including items, services, and logistics support associated with those systems and their subsystems):

(1) Standard Missile–3 (SM–3) Block IB missile systems.

(2) Standard Missile–3 (SM–3) Block IIA missile systems.

(3) Precision Strike Missiles (PrSM).

(4) Standard Missile–6 Missiles (SM–6).

(5) Advanced Medium-Range Air-to-Air Missiles (AMRAAM).

(6) Joint Air-to-Surface Standoff Missiles (JASSM).

(7) Long Range Anti-Ship Missiles (LRASM).

(8) Tomahawk Land Attack Missile (TLAM) and Maritime Strike Tomahawk (MST).

(9) Terminal High Altitude Area Defense (THAAD) systems.

(10) Patriot Advanced Capability–3 (PAC–3) Missile Segment Enhancement (MSE) systems.

(11) Low-cost hypersonic strike systems.

(12) Family of Affordable Mass Munitions (FAMM), Extended-Range Attack Munition

(ERAM), Enterprise Test Vehicle (ETV), and ground-launched low-cost cruise missile systems.

(13) Joint Advanced Tactical Missiles (JATM).

(b) PROCUREMENT IN CONJUNCTION WITH EXISTING CONTRACTS.—The systems authorized to be procured under subsection (a) may be procured as an addition to an existing contract relating to such systems.

(c) LIMITED APPLICABILITY OF OTHER LAW.—The provisions of section 3501 of title 10, United States Code, specified in this subsection are as follows:

(1) Subsection (f).

(2) Subsection (g), applied by substituting ''contract awarded pursuant to the authority of this section'' for ''contract described in subsection (a)'' each place it appears.

(3) Subsection (i)(1).

(4) Subsection (1)(3).

(d) CERTIFICATION TO CONGRESSIONAL DEFENSE COMMITTEES REQUIRED.—The head of an agency may enter into a multiyear contract under subsection (a) only if the head of the agency certifies to the congressional defense committees in writing, not later than seven days before entering into such a contract, each of the following:

(1) That the use of such a contract is consistent with the projected force structure requirements for the applicable program.

(2) That the use of such a contract will result in significant savings compared to the total anticipated costs of carrying out the program through annual contracts.

(3) That there is a reasonable expectation that throughout the contemplated contract period the head of the agency will request funding for the contract at the level required to avoid contract cancellation.

(4) That there is a stable design for the property to be acquired and the technical risks associated with such property are not excessive.

(5) That the estimates of both the cost of the contract and the anticipated cost avoidance through the use of a such a contract are realistic.

(6) That the use of such a contract will promote the national security of the United States.

(7) That during the fiscal year in which the contract is to be awarded, sufficient funds will be available to perform the contract in such fiscal year, and the future-years defense program (as defined in section 221 of title 10, United States Code) for such

fiscal year will include the funding required to execute the program without cancellation.

(e) AUTHORITY FOR ADVANCE PROCUREMENT.—The head of an agency may enter into one or more contracts for advance procurement associated with a program for which authorization to enter into a multiyear contract is provided under subsection (a) and for systems and subsystems associated with such program, in economic order quantities when cost savings are achievable.

(f) CONDITION FOR OUT-YEAR CONTRACT PAYMENTS.—A multiyear contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year after fiscal year 2027 is subject to the availability of appropriations for that purpose for such later fiscal year.

(g) DEFINITION.—In this section, the term ''head of an agency'' means—

(1) the Secretary of Defense;

(2) the Secretary of the Army;

(3) the Secretary of the Navy; or

(4) the Secretary of the Air Force.

SEC. 1840. MULTIYEAR PROCUREMENT AUTHORITY FOR PLATFORMS AND COMPONENTS SYSTEMS.

(a) AUTHORITY.—Subject to the provisions of section 3501 of title 10, United States Code, specified in subsection (c), the head of an agency may enter into one or more multiyear contracts for more than one but not more than seven program years, beginning in fiscal year 2027, for the procurement of the following systems (including items, services, and logistics support associated with those systems and their subsystems):

(1) Guided Multiple Launch Rocket System (GMLRS).

(2) 6.8mm ammunition.

(3) Advanced Precision Kill Weapon System (APKWS) (AGR–20 A/B), II / Fixed-Wing, Air Launched, Counter-Unmanned [Aircraft Systems] Ordnance (FALCO) (AGR–20F).

(4) Lower Tier Air and Missile Defense Sensor (LTAMDS).

(5) Small Diameter Bomb II (SDB II).

(6) Air Intercept Missile–9X (AIM–9X).

(7) Patriot Guidance Enhanced Missile-Tactical (GEM–T).

(8) Integrated Battle Command System (IBCS).

(9) Air-Launched Rapid Response Weapon Increment 1 (ARRW Inc 1).

(10) Army/Navy Transportable Radar Surveillance (TPY–2).

(11) Javelin CLU (Command Launch Unit).

(12) FGM–148 Javelin.

(13) Coyote Block 2C (C–UAS interceptor).

(14) Sonobuoys (SSQ–36, SSQ–53, SSQ–62, SSQ–101, SSQ–125).

(15) RIM–162 Evolved Sea Sparrow Missile (ESSM).

(16) RIM–116 Rolling Airframe Missile (RAM).

(17) Remote Modular Terminal (RMT).

(18) Counter Communications System (CCS).

(b) PROCUREMENT IN CONJUNCTION WITH EXISTING CONTRACTS.—The systems authorized to be procured under subsection (a) may be procured as additions to existing contracts covering such systems.

(c) LIMITED APPLICABILITY OF OTHER LAW.—In applying section 3501 of title 10, United States Code, to subsection (a), only the following provisions of that section shall apply:

(1) Subsection (f).

(2) Subsection (g), in which the term ''contract described in subsection (a)'' shall mean a contract awarded pursuant to the authority of this section.

(3) Subsection (i)(1).

(4) Subsection (l)(3).

(d) CERTIFICATION TO CONGRESSIONAL DEFENSE COMMITTEES REQUIRED.—The head of an agency may enter into a multiyear contract under subsection (a) only if the head of the agency certifies to the congressional defense committees in writing, not less than 7 days before entry into the contract, each of the following:

(1) That the use of such a contract is consistent with the projected force structure requirements for the respective program.

(2) That the use of such a contract will result in—

(A) savings of the total anticipated costs of carrying out the program through annual contracts; or

(B) necessary defense industrial base stability not otherwise achievable through annual contracts.

(3) That there is a reasonable expectation that throughout the contemplated contract period the head of the agency will request funding for the con-

tract at the level required to avoid contract cancellation.

(4) That there is a stable design for the property to be acquired and the technical risks associated with such property are not excessive.

(5) That the estimates of both the cost of the contract and the anticipated cost avoidance through the use of a such a contract are realistic.

(6) That the use of such a contract will promote the national security of the United States.

(7) That during the fiscal year in which the contract is to be awarded, sufficient funds will be available to perform the contract in such fiscal year, and the future-years defense program (as defined in section 221 of title 10, United States Code) for such fiscal year will include the funding required to execute the program without cancellation.

(e) AUTHORITY FOR ADVANCE PROCUREMENT.—The head of an agency may enter into one or more contracts for advance procurement associated with a program for which authorization to enter into a multiyear contract is provided under subsection (a) and for systems and subsystems associated with such program, in economic order quantities when cost savings are achievable.

(f) CONDITION FOR OUT-YEAR CONTRACT PAYMENTS.—A multiyear contract entered into under subsection (a) shall provide that any obligation of the United States to make a payment under the contract for a fiscal year after fiscal year 2027 is subject to the availability of appropriations for that purpose for such later fiscal year.

(g) DEFINITION.—In this section, the term ''head of an agency'' means—

(1) the Secretary of Defense;

(2) the Secretary of the Army;

(3) the Secretary of the Navy; or

(4) the Secretary of the Air Force.

SEC. 1841. INCREASED MAXIMUM PRODUCTION CAPACITY PLANS FOR KEY MUNITIONS AND WEAPONS SYSTEMS.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on increased maximum production capacity for each covered system.

(b) CONTENTS.—The report under subsection (a) shall include, for each covered system, the following:

(1) The current maximum production level and the maximum production level that could be established in the following fiscal year.

(2) A description of the specific steps required to increase maximum production capacity, including capital equipment acquisitions, facility modifications, workforce expansion, and supply chain development.

(3) An identification of the leading challenges and bottlenecks that would constrain production increases, including single-source supplier dependencies, long-lead material shortfalls, workforce certification requirements, facility or tooling limitations, and critical subcontractor and supplier dependencies necessary to achieve surge production capacity.

(4) The estimated timeline for achieving production at each of the following capacity levels relative to the current contract rate, together with the assumptions underlying each timeline estimate:

(A) 150 percent of the current production rate.

(B) 200 percent of the current production rate.

(C) 500 percent of the current production rate.

(5) The estimated cost to the Government of the actions necessary to achieve each capacity level identified under paragraph (4), expressed as—

(A) the estimated additional contract cost per covered system at each such level; and

(B) the estimated total capital and non-recurring investment required.

(c) FORM.—The report under subsection (a) may be submitted in classified form.

(d) COVERED SYSTEM DEFINED.—In this section, the term ''covered system'' means—

(1) each munition or weapon system for which multiyear procurement authority is provided under this Act, including each system described in sections 1839 and 1840 of this Act; and

(2) any other system, as determined by the Secretary of Defense.

SEC. 1842. MANAGING AND MITIGATING RISKS IN MAJOR MUNITIONS PROGRAMS.

(a) REQUIREMENT.—In meeting the requirements of the Department of Defense for major munitions programs, the Secretary of Defense shall consider alternative designs, including designs such as low-cost, mass-produced munitions or other capabilities that could complement existing munitions capabilities.

(b) DEFINITIONS.—In this section—

(1) the term ''major munitions program'' means—

(A) any major munitions program within the meaning given such term in section 4172 of title 10, United States Code; and

(B) any munitions program that is identified as a critical munitions requirement by the Munitions Acceleration Council in the budget justification materials submitted to Congress in support of the Department of Defense budget for fiscal year 2027; and

(2) the term ''low-cost, mass-produced munition'' means any munition that can be produced and delivered by a single contractor—

(A) in quantities two or more times greater than the quantities that the relevant existing munition can be produced and delivered in a single fiscal year using production capacity that is currently available to the contractor; and

(B) at a cost to the Department at least 25 percent lower per unit than the relevant existing munition.

SEC. 1843. COMPTROLLER GENERAL ASSESSMENT ON IMPROVING WEAPON SYSTEMS AND TECHNOLOGY PROCUREMENT.

(a) ASSESSMENTS.—The Comptroller General of the United States shall conduct one or more assessments of how the Secretary of Defense can improve procurement of weapon systems and technologies.

(b) ELEMENTS.—Any assessment under subsection (a) shall include the following:

(1) An evaluation of the extent to which the members of the acquisition workforce (as defined in section 101 of title 10, United States Code) have the knowledge, skills, and expertise necessary to negotiate a fair deal for weapon systems and technologies for the Department of Defense.

(2) With respect to a procurement described in subsection (a), a determination of whether the Secretary—

(A) has sufficient understanding and data on the incentives and motivations of defense contractors necessary to negotiate a fair deal for the Department of Defense;

(B) has and uses mechanisms to assess contractor performance and tools for accountability for meeting contractual obligations;

(C) understands the data rights needed to maintain, sustain, and upgrade weapon systems and effectively uses contracting approaches to facilitate iterative development and to adopt commercial technologies;

(D) has sufficient understanding of, and can monitor changes in, the defense industrial base, including the effect of mergers and acquisitions and tracking as new entrants; and

(E) evaluates the effectiveness of efforts to reduce supply chain risks and measure the effects of available industrial policy tools.

(c) BRIEFING.—Not later than 60 days after the date of the enactment of this section, the Comptroller General shall provide to the congressional defense committees a briefing on plans for any assessments required under subsection (a) and a timeline and format for delivery of the final results of such assessments.

SEC. 1844. COMBAT TRACKED VEHICLE DRIVETRAIN RECIPROCITY AND SUPPLY CHAIN SECURITY.

(a) LIMITATION.—On or after the date of the enactment of this section, the Secretary of Defense may not procure, directly or through a prime contractor, original equipment manufacturer, lead systems integrator, or subcontractor at any tier, a drivetrain system for use in an

advanced combat tracked vehicle of the Department of the Army currently in development if such system is—

(1) manufactured in a foreign country; or

(2) manufactured in the United States by a manufacturer that is directly or indirectly owned or controlled by a parent entity headquartered in a foreign country, unless United States firms that manufacture such drivetrain systems are permitted to compete on substantially equal terms for the sale of such systems in—

(A) that foreign country; or

(B) the foreign country in which the parent entity is headquartered.

(b) WAIVER AUTHORITY.—The Secretary may waive the limitation in subsection (a) if the Secretary—

(1) determines that procurement of a drivetrain system under such subsection is in the national security interests of the United States;

(2) determines that the benefits outweigh any risks to long-term sustainment or supply-chain continuity that may result from such procurement; and

(3) submits a written justification for issuing such waiver to the congressional defense committees not later than 120 days before the date on which the Secretary procures a drivetrain system that, but for

the waiver, would otherwise be prohibited under subsection (a).

(c) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to prohibit the Department of Defense from awarding or maintaining a contract with an original equipment manufacturer, prime contractor, or lead systems integrator for an advanced combat tracked vehicle. Nothing in this subsection shall be construed to authorize the procurement of a drivetrain system that does not comply with subsection (a) and is not covered by a waiver under subsection (b).

(d) COMPLIANCE FLEXIBILITY.—In implementing the requirements of this section with respect to an advanced combat tracked vehicle, the Secretary of Defense may use such program management and acquisition tools as the Secretary determines are appropriate, including supplier substitution, second sourcing, directed sourcing, licensing arrangements, teaming arrangements, domestic production arrangements, and technical-data or sustainment-access arrangements, to enable the continued use of an original equipment manufacturer, prime contractor, or lead systems integrator with respect to such vehicle while ensuring that the drivetrain system procured for use in such vehicle complies with subsection (a) or is covered by a waiver issued under subsection (b).

(e) APPLICABILITY.—The prohibition in subsection (a) shall apply with respect to contracts or other agreements to procure a drivetrain system entered into on or after the date of the enactment of this section.

(f) DEFINITIONS.—In this section:

(1) The term ''advanced combat tracked vehicle'' means a combat tracked vehicle of the Department of the Army that has entered, but not yet completed, the engineering and manufacturing development phase of the defense acquisition process.

(2) The term ''drivetrain system'' means a transmission, cross-drive assembly, final drive, drivetrain module, hybrid-electric drive module, or other mechanical or electro-mechanical system that transfers power from a propulsion source to the tracks of a combat tracked vehicle, but does not include engines.

(3) The term ''headquartered'', with respect to an entity, means—

(A) such entity is organized under the laws of a country; or

(B) the principal place of business of such entity is located in a country.

(4) The term ''lead systems integrator'' has the meaning given in section 802 of the National De-

fense Authorization Act for Fiscal Year 2008 (10 U.S.C. 4292 note).

(5) The term ''long-term sustainment or supply-chain continuity risk'' includes resilience against foreseeable geopolitical or trade-policy volatility over the expected service life of the drivetrain system.

(6) The term ''United States firm'' has the meaning given in section 4852(d)(1) of title 10, United States Code.

SEC. 1845. FEASIBILITY OF ORIGINAL EQUIPMENT MANUFACTURER DESIGNATION OF SOURCES OF SUPPLY FOR GROUND SUPPORT EQUIPMENT PARTS.

(a) BRIEFING REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Under Secretary of Defense for Acquisition and Sustainment shall provide a briefing to the congressional defense committees on the feasibility of implementing a process under which an original equipment manufacturer may designate one or more of its current suppliers as a source of supply for parts produced by such supplier.

(b) ELEMENTS.—The briefing required under subsection (a) shall include the following:

(1) An assessment of the feasibility of establishing a process by which a supplier designated by

an original equipment manufacturer as a source of supply for a part may be recognized within Department of Defense supply systems as a vendor for such part not later than 30 days after such designation.

(2) An assessment of the potential benefits of such a process with respect to—

(A) improving direct oversight and supervision of suppliers by original equipment manufacturers;

(B) increasing efficiency within the defense acquisition and sustainment process;

(C) expanding the availability of qualified sources of supply for parts and materials;

(D) reducing administrative burdens associated with supplier qualification and procurement activities; and

(E) improving readiness outcomes through more timely access to critical parts and materials.

(3) An assessment of the feasibility and benefits of ensuring that all suppliers of ground support equipment parts and materials are subject to—

(A) the certificate revocation requirements under section 44726 of title 49, United States Code; and

(B) the penalties under section 38 of title 18, United States Code, for purposes of preventing the acquisition of counterfeit ground support equipment parts and materials.

(4) Recommendations for any legislative, regulatory, policy, contracting, or information technology systems changes necessary to implement the process described in paragraph (1).

(c) DEFINITIONS.—In this section:

(1) The term ''ground support equipment'' means equipment, parts, and materials used to support the operation, maintenance, servicing, or sustainment of military aircraft and related systems.

(2) The term ''original equipment manufacturer'' means a manufacturer that designs, develops, produces, or maintains equipment or components acquired by the Department of Defense.

(3) The term ''source of supply'' means a supplier designated by an original equipment manufacturer as authorized to manufacture, produce, or provide a part for use in support of equipment produced or supported by such manufacturer.

SEC. 1846. FEASIBILITY OF COMMON CERTIFICATIONS FOR NAVAL AVIATION AND NAVAL SEA SYSTEMS SUPPLY CHAINS.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this section, the Assistant Secretary of Defense for Industrial Base Policy, in coordination with the Secretary of the Navy, shall submit to the congressional defense committees a report on the feasibility of establishing common certification standards for suppliers participating in the supply chains of the Naval Air Systems Command and the Naval Sea Systems Command.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) An assessment of the current certification requirements for suppliers to the Naval Air Systems Command and the Naval Sea Systems Command, including an identification of certifications that are duplicative, overlapping, or could be standardized across both commands without compromising quality, safety, or security standards.

(2) An assessment of the feasibility of establishing a common certification framework under which a supplier certified to participate in the supply chain of one command would be recognized, without

redundant qualification processes, as eligible to participate in the supply chain of the other command.

(3) An assessment of the potential effects of such a common certification framework with respect to—

(A) increasing competition among suppliers for contracts with the Naval Air Systems Command and the Naval Sea Systems Command;

(B) expanding access to a greater number of qualified suppliers for each command;

(C) reducing administrative and compliance burdens on suppliers, particularly small business concerns (as defined under section 3 of the Small Business Act (15 U.S.C. 632)) and nontraditional defense contractors (as defined in section 3014 of title 10, United States Code), associated with maintaining separate certifications for each command;

(D) improving the sustainability and resilience of the naval supply chain industrial base; and

(E) any risks to quality assurance, safety, or national security that may result from certification standardization.

(4) Recommendations for any legislative, regulatory, or policy changes necessary to implement a common certification framework, including any changes to existing qualification requirements administered by the Defense Contract Management Agency or other relevant entities.

(c) DEFINITIONS.—In this section:

(1) The term ''Naval Air Systems Command'' means the systems command of the Department of the Navy responsible for research, development, acquisition, and sustainment of naval aviation systems.

(2) The term ''Naval Sea Systems Command'' means the systems command of the Department of the Navy responsible for research, development, acquisition, and sustainment of naval sea systems.

SEC. 1847. REPORT ON DEPENDENCY ON CHINA FOR PROCESSING MATERIALS FOR DEPARTMENT OF DEFENSE SUPPLY CHAINS.

(a) METHODOLOGY.—The Secretary of Defense shall develop and implement a methodology to identify and assess dependencies of the Department of Defense on the People's Republic of China for the processing, refining, separation, alloying, magnet manufacturing, or other midstream production stages of materials critical to the defense industrial base.

(b) REPORT.—Not later than 180 days after the date of the enactment of this section, the Secretary shall submit to the congressional defense committees a report identifying priority defense supply chains with significant midstream processing exposure to China and recommendations for mitigation of such exposure.

SEC. 1848. PROHIBITION ON ACQUISITION OF CERTAIN SILICON CARBIDE-BASED SEMICONDUCTORS MANUFACTURED IN CHINA.

(a) RESTRICTIONS ON SILICON CARBIDE WAFER SOURCING.—The Secretary of Defense shall revise section 252.225 of the Department of Defense Supplement to the Federal Acquisition Regulation to prohibit the procurement of semiconductors, other than commercially available off-the-shelf items (as defined in section 104 of title 41, United States Code), that are manufactured on silicon carbide wafers that are manufactured in the Peoples Republic of China. Such revision may provide the authority for the Secretary to issue a waiver on a case-by-case basis.

(b) BRIEFING ON FINANCIAL INSTRUMENTS.—Not later than 180 days after the date of the enactment of this section, the Secretary of Defense and the Deputy Secretary of Defense shall conduct a review, and provide to the congressional defense committees a briefing on the results of such a review, of domestic manufacturers of silicon

carbide wafers that are critical to the Department of Defense and that are facing challenges due to Chinese exports of such wafers.

(c) BRIEFING ON ESTABLISHMENT OF COMMON FOUNDRIES.—Not later than 180 days after the date of the enactment of this section, the Secretary of Defense provide to the congressional defense committees a briefing that evaluates the merits of encouraging major prime contractors in the defense industrial base to consolidate silicon carbide semiconductor design and fabrication operations in common commercial foundries to encourage economies of scale and quality improvements.

(d) CONSULTATION WITH THE CHIPS PROGRAM OFFICE.—The Secretary shall provide information to the Secretary of Commerce and other appropriate Federal agency heads on the use of Research and Development amounts to develop silicon carbide-related manufacturing technology for manufacturing high-purity single crystal silicon carbide boules, ingots, and wafers at 300mm scale for purposes of—

(1) developing next-generation high-voltage technology; and

(2) advancing state-of-the-art packaging power modules.

(e) POLICY ON INTERAGENCY DELIBERATIONS.—Not later than 90 days after the date of the enactment of this section, the Secretary of Defense shall issue a policy for recommendations for interagency consideration in deliberations on—

(1) encouraging allied and partner countries to ensure the silicon carbide substrate supply chains of such countries for national security systems and critical infrastructure do not include Chinese-manufactured silicon carbide wafers; and

(2) developing an integrated strategic plan to apply trade enforcement actions to prevent China from dominating the silicon carbide semiconductor manufacturing industry, resulting in the dependency of the United States on Chinese sources for silicon carbide substrates, chips, and power modules.

Subtitle C—Organic Industrial Base

SEC. 1861. MODIFICATION TO ANNUAL REPORT ON DEPOT-LEVEL MAINTENANCE AND REPAIR WORKLOADS BY PUBLIC AND PRIVATE SECTORS.

Section 2466(d)(1) of title 10, United States Code, is amended—

(1) by striking ''each Defense Agency, the percentage'' and inserting ''each Defense Agency—''

''(A) the percentage'';

(2) in subparagraph (A), as so redesignated, by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following new subparagraph:

''(B) the dollar amount of such expended and projected funds, respectively, disaggregated by covered depot.''.

SEC. 1862. AUTHORITY TO WRITE OFF CAPITAL EXPENDITURES FOR CERTAIN DEPOTS OF DEPARTMENT OF DEFENSE.

Chapter 146 of title 10, United States Code, is amended by inserting after section 2470 the following new section:

''§ 2471. Accounting for certain depots: authority to write off capital expenditures

''(a) AUTHORITY.—With respect to any covered depot, the Secretary of Defense may write off, for accounting purposes, any depreciated cost or debt associated with capital that does not generate revenue as a result of a Government-directed mission change.

''(b) RECOVERY OF OUTLAYS.—Write-offs under subsection (a) shall be done in a manner than ensures any previous cash outlay from a revolving fund is recovered.

''(c) DELEGATION OF AUTHORITY.—The Secretary may delegate the authority under subsection (a) to the Secretary of a military department.

''(d) COVERED DEPOT DEFINED.—In this section, the term 'covered depot' has the meaning given such term in section 2476 of this title.''.

SEC. 1863. REFORMS RELATING TO ARMY ORGANIC INDUSTRIAL BASE.

(a) MODERNIZATION.—Chapter 146 of title 10, United States Code, is amended by adding at the end the following new section:

''§ 2477. Modernization of organic industrial base of Department of the Army

''(a) MODERNIZATION.—The Secretary of the Army shall take such steps as may be necessary to accelerate the modernization of the organic industrial base of the Army to meet the requirements of the Army, including by carrying out the following:

''(1) Ensuring the production of additional materials by, or the expanded use of capabilities of, such organic industrial base.

''(2) Establishing an updated structure for the governance of such organic industrial base, under which—

''(A) decisions regarding resourcing and site operations overseen by the Army Materiel Command

shall be delineated from, and reconciled with, workload and acquisition requirements overseen by the Assistant Secretary of the Army for Acquisition, Logistics, and Technology; and

''(B) the relationship between the Army Sustainment Command and the Joint Energetics Transition Office established under section 148 of this title shall be delineated with respect to such organic industrial base.

''(3) Establishing an updated resourcing model for such organic industrial base, for the purpose of—

''(A) reducing production costs associated with each covered Army depot; and

''(B) ensuring such costs are, to the maximum extent practicable, competitive with commercial capabilities.

''(4) Ensuring the updated resourcing model established under paragraph (3)—

''(A) details any modification to a working-capital fund of the Army necessary to achieve a purpose specified in such paragraph; and

''(B) accounts for the use of funds appropriated for the Army or relevant elements of the Department of Defense, including the Army Contracting Command, the Civilian Human Resources Agency of

the Army, the Defense Finance and Accounting Service, and the Defense Information Systems Agency, or for base operating services.

''(5) Establishing key training pipelines, and desired throughput with respect to such pipelines, necessary to support each covered Army depot in accordance with this subsection, including by identifying appropriations necessary for such support.

''(b) LIMITATION ON ACTIONS TO DECREASE WORKLOAD.—The Secretary of the Army may not carry out any action that would decrease the workload performed by any covered Army depot for a year by more than 10 percent as compared with the workload performed by that covered Army depot five years prior unless—

''(1) the Secretary of the Army submits to the congressional defense committees a notification that includes an explanation for such decrease and a plan to shift other workload requirements of the Army to the covered Army depot, to maintain workforce capability; and

''(2) a period of 30 days has elapsed following such notification.

''(c) REPORTS ON MODERNIZATION EFFORTS.—Concurrent with the submission of each plan required by section 2473 of this title, the Secretary of the Army shall

submit to the congressional defense committees a report detailing, with respect to the five-year period covered by the plan, the efforts of the Army over such period to modernize covered Army depots consistent with this section, including the criteria used to allocate funds available for such modernization between such depots.

''(d) ANNUAL REPORT ON CERTAIN ACTIVITIES.—On an annual basis, the Secretary of the Army shall disseminate to each covered Army depot, and submit to the congressional defense committees, a report that includes—

''(1) with respect to the year preceding the date of the submission of the report, detailed information on—

''(A) the type and quantity of production activities and depot-level maintenance and repair activities performed by each such depot during such year; and

''(B) how such activities were coordinated with other production activities and depot-level maintenance and repair activities across the Department of Defense; and

''(2) with respect to the three-year period following the date of the submission of the report, a comprehensive plan for the production activities and depot-level maintenance and repair activities to be

performed by each such depot during such period, including detailed information on—

''(A) the type and quantity of such activities;

''(B) how such activities would be coordinated with other production activities and depot-level maintenance and repair activities across the Department of Defense;

''(C) for each fiscal year within such period, how the projected use of funds for the depot-level maintenance and repair workload of each covered Army depot would contribute to the percentage limitation under section 2466 of this title; and

''(D) the current and projected needs of the Army, the other military departments, and foreign partners, that may be addressed through such activities.

''(e) DEFINITIONS.—In this section:

''(1) The term 'covered Army depot' means a covered depot listed in section 2476(f)(1) of this title.

''(2) The term 'organic industrial base of the Army' means each covered Army depot.''.

(b) GUIDANCE.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall issue guidance to implement section 2477 of title 10, United States Code, as added by subsection (a).

(c) GAO REVIEW.—

(1) REVIEW.—The Comptroller General of the United States shall conduct a review of plans of the Army for sustainment with respect to the development and fielding of new weapon systems. Such review shall include the following:

(A) An identification of key weapon systems expected to be fielded by the Army for the first time during the five-year period following the date of the commencement of such review.

(B) An assessment of the plans of the Army for the maintenance and repair of, and the logistics, supply chain, and other sustainment functions for, such weapon systems.

(C) An assessment of the extent to which the Army is developing and investing in the sustainment functions specified in subparagraph (B) concurrent with the fielding of such weapon systems.

(2) BRIEFING.—Not later than April 1, 2027, the Comptroller General shall provide to the congressional defense committees a briefing on preliminary observations relating to the review under paragraph (1), including on planned reporting formats and schedules.

(3) REPORT.—Not later than August 1, 2027, the Comptroller General shall submit to the congressional defense committees a report containing the results of the review under paragraph (1).

SEC. 1864. EXCLUSION OF MANUFACTURING ARSENAL WORKLOAD FROM DEPOT CARRYOVER CALCULATION.

Section 377(2) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 10 U.S.C. 2476 note) is amended by inserting ''any manufacturing arsenal workload and'' after ''calculated carryover amount''.

SEC. 1865. TEMPORARY AUTHORITY FOR USE OF OPERATION AND MAINTENANCE FUNDS TO PROVIDE TRAINING FOR CERTAIN EMPLOYEES PERFORMING SERVICES OR WORK FUNDED BY WORKING-CAPITAL FUNDS.

(a) IN GENERAL.—Notwithstanding subsection (c) of section 2208 of title 10, United States Code, the Secretary

of Defense and the Secretary of a military department may use funds available for operations and maintenance to pay expenses necessary to train prevailing rate employees, as defined by section 5342(a)(2)(A) of title 5, United States Code, who perform services or work funded by a working-capital fund.

(b) TERMINATION.—The authority under subsection (a) shall expire on October 1, 2032.

SEC. 1866. DEMONSTRATION AND PROTOTYPING PROGRAM FOR QUALIFICATION OF ORGANIC INDUSTRIAL BASE AS ALTERNATE SOURCE FOR MANUFACTURE OF CASTS AND FORGED COMPONENTS FOR LEGACY AIRCRAFT.

(a) PROGRAM.—Not later than 60 days after the date of the enactment of this Act, the Secretary of Defense shall establish a demonstration and prototyping program, to be known as the ''Organic Industrial Base Qualification Program for Castings and Forgings for Legacy Aircraft'', to develop, test, and qualify the organic industrial base as an alternate source for the manufacture of casts and forged components for fixed wing or rotary wing legacy aircraft.

(b) SELECTION OF DEPOTS.—

(1) SELECTION.—The Secretary shall select one or more covered depots at which to carry out the Program.

(2) FOUNDRY REQUIREMENT.—The Secretary shall ensure that any covered depot selected under paragraph (1) has a foundry capable of manufacturing casts and forged components.

(c) ACTIVITIES AUTHORIZED.—In carrying out the Program, the Secretary of Defense may conduct at any covered depot selected pursuant to subsection (b) one or more of the following activities:

(1) Such activities as may be necessary to certify or otherwise accredit the covered depot to meet industry standards relating to the manufacturing of casts and forged components for legacy aircraft, including the processing of raw materials for such manufacturing.

(2) The identification of candidate casts or forged components to be manufactured at a covered depot for legacy aircraft.

(3) The manufacture of test articles for such candidate casts or forged components.

(4) The analysis, test, demonstration, and qualification of such candidate casts and forged components for use with respect to legacy aircraft.

(5) The manufacture, in limited production quantities, of such candidate casts and forged components for use as reserve stock for such legacy aircraft.

(6) The development or acquisition of such workforce, equipment, or materials as may be necessary to accomplish any activity under paragraphs (1) through (5).

(d) PUBLIC-PRIVATE PARTNERSHIP.—

(1) REQUIREMENT.—Under the Program, each covered depot selected under subsection (b) shall seek to enter into at least one public-private partnership with an original manufacturer of legacy aircraft for the purpose of such manufacturer supporting the activities conducted at the covered depot under subsection (c).

(2) AUTHORITY UNDER PARTNERSHIP.—As part of any partnership entered into between an original manufacturer of legacy aircraft and a covered depot under paragraph (1), such original manufacturer may analyze requirements and specifications relating to legacy aircraft, and update related technical data, to identify the minimum requirements for raw material, processing of such raw ma-

terial, and manufacturing, relating to casts and forged components for legacy aircraft.

(e) REPORT.—Not later than two years after the date of the enactment of this Act, the Secretary shall submit to the congressional defense committees a report on the activities carried out under the Program, including—

(1) an identification of any certification or accreditation achieved pursuant to subsection (c)(1);

(2) a description of the number and type of casts and forged components manufactured by each covered depot under the Program and whether such casts or forged components have been qualified for use with respect to legacy aircraft;

(3) a description of any operational or funding barriers to implementation of the Program;

(4) any recommendations for legislative, regulatory, or policy modifications necessary to reduce such barriers, including with respect to the receipt of funds to carry out the Program; and

(5) any other recommendations for improving the Program, including whether to extend the or make permanent the Program.

(f) TERMINATION.—The authority to carry out the Program shall terminate on the date that is five years after the date of the enactment of this Act.

(g) DEFINITIONS.—In this section:

(1) The term ''covered depot'' has the meaning given such term in 2476 of title 10, United States Code.

(2) The term ''organic industrial base'' means each covered depot.

(3) The term ''Program'' means the program established under subsection (a).

SEC. 1867. BRIEFING AND REPORT ON DEFENSE INDUSTRIAL BASE CHOKEPOINTS AND ORGANIC INDUSTRIAL BASE MODERNIZATION.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Assistant Secretary of Defense for Industrial Base Policy shall provide to the congressional defense committees a briefing and report that include each of the following:

(1) An identification of supply chain chokepoints for each covered strategic component, including—

(A) the defense articles and systems dependent on the chokepoint, particularly for components necessary to produce multiple critical defense articles;

(B) the current domestic and foreign sources of supply, including identification of

any covered nation sources and any single points of failure;

(C) the consequences to defense production of a disruption of the chokepoint; and

(D) the estimated time required to restore or replace the capability in the event of a disruption.

(2) A categorization of identified supply chain chokepoints into the following approaches best suited for expanding domestic production, including a description of the criteria used for each category:

(A) Government production.

(B) Government-supported commercial production.

(C) Commercially viable production with de-risked private entry.

(3) An evaluation of production and financing models and mechanisms best suited to expand domestic production for each identified supply chain chokepoint, including each of the following:

(A) Government-owned, government-operated, or other forms of government production;

(B) Government-owned, contractor-operated production;

(C) Contractor-owned, contractor-operated production, or other forms of commercial production;

(D) Pre-qualifying additional commercial production sources;

(E) Strategic stockpiling;

(F) Government lending, grants, and other financing; and

(G) Offtake agreements, price-floor commitments, multiyear procurement, or other government commitments to ensure predictable demand aggregation.

(4) Such recommendations, including legislative recommendations and recommendations for new or expanded production or financing authorities, as the Assistant Secretary considers appropriate to expand organic industrial base and other production needs identified in the briefing and report.

(b) DEFINITIONS.—In this section:

(1) The term ''covered strategic component'' means each of the following:

(A) High-strength steel and titanium castings and forgings and other components supporting the submarine industrial base.

(B) Subcomponents required for long-range fires and air and missile defense systems, including—

(i) solid rocket motors;

(ii) energetics and their precursors; and

(iii) sensitive electronics.

(C) Batteries, rare earth magnets, and other energy storage platforms.

(D) Castings and forgings.

(E) Printed circuit boards.

(F) Subcomponents for attritable, unmanned, and autonomous systems, including—

(i) optical sensors;

(ii) motors; and

(iii) cameras.

(G) Such other components as designated by the Assistant Secretary pursuant to a determination that the sector is critical to the ability of the United States to deter or prevail in a high-end conflict.

(2) The term ''supply chain chokepoint'' means any component or subcomponent that—

(A) is a necessary input to the production of one or more defense articles within a covered strategic sector; and

(B) is—

(i) produced by a limited number of domestic suppliers, a single domestic supplier, or no domestic supplier; or

(ii) is sourced in significant part from a covered nation, as such term is defined in section 4872(f)(2) of title 10, United States Code, the disruption of which would materially impair the production of one or more defense articles.

Subtitle D—Small Business Matters

SEC. 1871. EXCEPTION TO CONTRACT PRICE REQUIREMENT RELATING TO USE OF TEST AND EVALUATION INSTALLATIONS BY COMMERCIAL ENTITIES.

Section 4175 of title 10, United States Code, is amended—

(1) in subsection (c), by striking ''A contract entered into'' and inserting ''Except as provided in subsection (e), a contract entered into'';

(2) in subsection (d), by inserting ''or subsection (e)'' after ''subsection (c)'';

(3) by redesignating subsections (e) and (f) as subsections (f) and (g), respectively;

(4) by inserting after subsection (d) the following new subsection:

''(e) EXCEPTION TO CONTRACT PRICE REQUIREMENT.—(1) Notwithstanding subsection (c), a contract entered into under subsection (a) with a covered contractor may include a provision authorizing a commercial entity using a Major Range and Test Facility Installation under the contract to reimburse the Department of Defense for a cost that is less than the amount of all direct costs to the United States associated with the test and evaluation activities conducted by the covered contractor under the contract if the Secretary determines, and certifies in writing, that—

''(A) such test and evaluation activities are for a promising science and technology concept with a low technology readiness level;

''(B) the contract is expected to yield to the Department of Defense a significant, long-term technological benefit or benefit relating to the defense industrial base; and

''(C) such test and evaluation activities will not delay or displace previously scheduled test activities associated with an existing program of record or the

Portfolio Acquisition Executive of such program of record has provided written agreement to the delay or displacement.

''(2) The Secretary of Defense may delegate the authority under paragraph (1) to the commander of a Major Range and Test Facility Installation.''; and

(5) in subsection (g), as redesignated by paragraph (3), by adding at the end the following new paragraphs:

''(3) The term 'covered contractor' means a small business concern or nontraditional defense contractor, that, during the preceding fiscal year, received not greater than $50,000,000 in contracts or agreements from the Department of Defense.

''(4) The term 'nontraditional defense contractor' has the meaning given such term in section 3014 of this title.

''(5) The term 'small business concern' has the meaning given such term under section 3 of the Small Business Act (15 U.S.C. 632).''.

SEC. 1872. AMENDMENTS TO THE PROCUREMENT TECHNICAL ASSISTANCE COOPERATIVE AGREEMENT PROGRAM.

(a) PURPOSES.—Section 4952(1) of title 10, United States Code, as amended by section 861 of the National

Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60), is amended by striking ''furnishing procurement technical assistance'' and inserting ''furnishing confidential procurement technical assistance''.

(b) INCREASED FUNDING LIMITS.—Section 4955 of title 10, United States Code, as amended by section 861(c) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60), is amended—

(1) in subsection (a)—

(A) in paragraph (1), by striking ''$1,500,000'' and inserting ''$2,000,000'';

(B) in paragraph (2), by striking ''$750,000'' and inserting ''$1,000,000''; and

(C) in paragraph (4), by striking ''1,500,000'' and inserting ''$2,000,000''; and

(2) by adding at the end the following new subsection:

''(f) WAIVER.—The Secretary may waive or modify the dollar amounts in subsection (a) on a case-by-case basis, if the Secretary—

''(1) determines that it would be in the best interest of the program; and

''(2) provides the congressional defense committees notice of such modification or waiver not later

than 30 days after making such modification or issuing such waiver.''.

SEC. 1873. PILOT PROGRAM ON DIGITAL ENGINEERING AND ADVANCED MANUFACTURING TO ADDRESS NO-BID SOLICITATIONS.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Director of the Defense Logistics Agency, in coordination with the Assistant Secretary of Defense for Sustainment and the Assistant Secretary of Defense for Industrial Base Policy, shall establish a pilot program to leverage small business concerns to address supply chain gaps associated with parts, components, and assemblies listed on the No Bid Solicitation List.

(b) PROGRAM ACTIVITIES.—In carrying out the pilot program established under subsection (a), the Director shall—

(1) identify each part, component, or assembly listed on the No Bid Solicitation List that—

(A) is a critical readiness item of supply;

(B) is associated with a solicitation made at least 18 months in the past that has received no bids or no responsive offers; and

(C) is suitable to be produced by advanced manufacturing;

(2) for each part, component, or assembly identified under paragraph (1), identify one or more small business concerns with capabilities to produce or contribute to the production of the part, component, or assembly, including capabilities such as—

(A) utilization of digital engineering, digital twins, or model-based engineering;

(B) employment of advanced manufacturing technologies, including additive manufacturing;

(C) rapid prototyping or reverse engineering;

(D) ability to produce low-volume or legacy parts, components, or assemblies; or

(E) specialization in—

(i) development of engineering and technical data packages;

(ii) validated manufacturing processes and materials; or

(iii) support testing, certification, and qualification activities of parts, components, or assemblies; and

(3) use available authorities to enter into contracts or agreements with small business concerns identified under paragraph (2) for the manufacture

of parts, components, or assemblies identified under paragraph (1).

(c) DURATION.—The authority to carry out the pilot program under this section shall terminate on the date that is five years after the date on which the Director establishes the pilot program.

(d) REPORTS.—Not later than 180 days after the date on which the Director establishes the pilot program, and annually thereafter for the duration of the program, the Director shall submit to the congressional defense committees a report that includes—

(1) the number and type of parts, components, and assemblies addressed under the program;

(2) the number of small business concerns participating in the program;

(3) the number of small business concerns for which the contract or agreement entered into under the program is their first contract or agreement with the Department of Defense;

(4) improvements in lead times and readiness metrics as a result of the program; and

(5) recommendations of the Director regarding continuation, modification, or expansion of the program.

(e) DEFINITIONS.—In this section—

(1) the term ''advanced manufacturing'' has the meaning given such term in section 4841(f) of title 10, United States Code;

(2) the term ''critical readiness item of supply'' has the meaning given such term in section 4324 of title 10, United States Code;

(3) the term ''No Bid Solicitation List'' means the list maintained by the Defense Logistics Agency identifying solicitations that have received no bids or no responsive offers within required procurement timelines; and

(4) the term ''small business concern'' means a small business concern as defined under section 3 of the Small Business Act (15 U.S.C. 632).

SEC. 1874. PILOT PROGRAM TO IMPROVE PARTICIPATION BY SMALL BUSINESS CONCERNS IN CERTAIN DEPARTMENT OF DEFENSE CONTRACTS.

(a) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall establish a pilot program to improve participation by small business concerns (as defined under section 3 of the Small Business Act (15 U.S.C. 632)) seeking to submit offers for Department of Defense contracts relating to artificial intelligence, software modernization, cybersecurity, quantum technologies, autonomous systems,

advanced software development, and related dual-use technologies.

(b) PROCEDURES.—The pilot program established by subsection (a) shall include the following:

(1) Alternative acquisition pathways, including commercial solutions openings, simplified proposal requirements, accelerated acquisition timelines, and other streamlined acquisition procedures.

(2) Coordination with existing Department of Defense innovation organizations, including the Defense Innovation Unit, AFWERX, NavalX, Army Applications Laboratory, Strategic Capabilities Office, or similar organizations.

(c) REPORT.—Not later than one year after the date of the enactment of this section, the Secretary of Defense shall submit to the congressional defense committees, the Committee on Small Business of the House of Representatives, and the Committee on Small Business and Entrepreneurship of the Senate a report describing implementation of the pilot program established by subsection (a), including participation outcomes for small business concerns, barriers to submitting contracts described in subsection (a) identified by participants, and recommendations for improving participation of small business concerns in De-

partment of Defense emerging technology acquisition programs.

SEC. 1875. GUIDANCE TO ENSURE PROTECTION OF COVERED INFORMATION DURING COVERED PREAWARD ENGAGEMENTS.

(a) ESTABLISHMENT OF PROCESS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall establish a process to provide timely guidance to covered entities and Department of Defense personnel to ensure protection of covered information during covered preaward engagements.

(b) REQUIREMENTS.—The process established under subsection (a) shall provide the following:

(1) Standard procedures and guidance to Department of Defense personnel for structuring a covered preaward engagement to reduce the risk of inadvertent disclosure or improper receipt of classified or controlled information.

(2) Development and use of standard templates, request procedures, and best practices for use by covered entities and Department of Defense officials during covered preaward engagements.

(3) Timely notification to a covered entity on measures to ensure proper handling of sensitive information including—

(A) whether the proposed covered preaward engagement may involve covered information;

(B) whether a solicitation-stage Department of Defense Form 254, security classification guide, nondisclosure agreement, controlled unclassified information guidance, or other security instrument may be required before the engagement proceeds;

(C) appropriate procedures for marking, transmitting, storing, or discussing covered information during the engagement;

(D) referral, where appropriate, to existing mechanisms of the Department of Defense for access to classified facilities, secure workspaces, secure networks, or shared classified commercial infrastructure; and

(E) points of contact for resolving unresolved classification, disclosure, or safeguarding questions.

(c) BRIEFING.—Not later than 180 days after the date of the enactment of this section, the Secretary of Defense shall provide to the congressional defense committees a briefing on the implementation of this section, including—

(1) steps taken to coordinate the process established under this section with existing mechanisms of the Department of Defense for facility clearances, secure workspaces, classified networks, shared classified commercial infrastructure, and each solicitation-stage Department of Defense Form 254; and

(2) any recommendations for improving the ability of covered entities to engage with the Department before award of a contract, grant, cooperative agreement, other transaction agreement, or other agreement while protecting classified and controlled information.

(d) DEFINITIONS.—In this section:

(1) The term ''covered entity'' means—

(A) a small business concern, as defined under section 3 of the Small Business Act (15 U.S.C. 632); or

(B) a nontraditional defense contractor, as defined in section 3014 of title 10, United States Code.

(2) The term ''covered information'' means information that is or may be—

(A) classified information;

(B) controlled unclassified information;

(C) controlled technical information;

(D) export-controlled technical data;

(E) government-furnished information; or

(F) other technical, operational, or security-sensitive information that may require safeguarding under law, regulation, or Department of Defense policy.

(3) The term ''covered preaward engagement'' means an engagement between the Department of Defense and a covered entity before the award of a contract, grant, cooperative agreement, other transaction agreement, or other agreement, including market research, technical exchange, concept development, demonstration planning, request for information activity, broad agency announcement activity, commercial solutions opening activity, prototype discussions, or other preaward acquisition or technology-transition activity.

SEC. 1876. AUTHORIZATION OF USE OF APEX ACCELERATORS.

Notwithstanding any other provision of law, APEX Accelerators may assist small business concerns (as defined under section 3 of the Small Business Act (15 U.S.C. 632)) in receiving contracts for the production of and research on defense articles (as defined in section 301 of title 10, United States Code) under the partnership

among Australia, the United Kingdom, and the United States (commonly known as ''AUKUS'').

SEC. 1877. REPORT ON BARRIERS FOR SMALL AND MEDIUM-SIZED BUSINESSES COMPETING FOR CLASSIFIED CONTRACTS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on barriers to entry for small and medium-sized businesses seeking to compete for classified contracts with the Department of Defense.

(b) MATTERS TO BE INCLUDED.—Such report shall include the following:

(1) An examination of any barriers that impede the ability of such businesses to obtain and maintain the security clearances and access to networks necessary to compete for classified contracts that require such clearances.

(2) An examination of any other barriers that impede the ability of such businesses that are qualified and have subject-matter expertise to compete for classified contracts with the Department of Defense.

(3) Recommendations for how to lower such barriers to entry and better allow such businesses to compete for such contracts.

SEC. 1878. REPORT ON ALIGNING SMALL BUSINESS INVESTMENT COMPANY PROGRAM WITH DEFENSE INDUSTRIAL BASE REQUIREMENTS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for 5 years, the Secretary of Defense, in coordination with the Administrator of the Small Business Administration, shall submit to the congressional defense committees a report that—

(1) identifies priority capital-intensive defense industrial base sectors, including—

(A) munitions and energetics;

(B) forgings and castings;

(C) propulsion components;

(D) specialty chemicals; and

(E) other critical manufacturing sectors identified by the Secretary of Defense;

(2) assesses the extent to which investments made through the SBIC program are aligned with the sectors identified under paragraph (1);

(3) maps, to the extent practicable, SBIC-backed portfolio companies to defense-relevant pro-

duction and manufacturing activities, including those supporting—

(A) facility construction and expansion;

(B) tooling, industrial equipment, and advanced manufacturing capabilities;

(C) workforce development associated with production scaling; and

(D) supply chain resilience and domestic sourcing of critical inputs;

(4) assesses the extent to which the SBIC program is contributing to—

(A) increased production capacity and throughput;

(B) reduced production timelines and bottlenecks;

(C) expanded surge capacity and mobilization readiness; and

(D) mitigation of supply chain vulnerabilities, including reliance on foreign entities of concern;

(5) describes the types of capital deployed through SBIC funds in defense-relevant sectors, including equity investments, subordinated debt, and other financing structures, and evaluates whether

such capital is suited to capital-intensive manufacturing requirements;

(6) identifies barriers to greater SBIC participation in defense industrial base sectors, including—

(A) risk-return profiles associated with capital-intensive manufacturing investments;

(B) statutory or regulatory limitations within the SBIC program;

(C) information asymmetries between the Department of Defense and private fund managers; and

(D) challenges related to contracting timelines, demand signals, or program stability; and

(7) provides recommendations to improve alignment between the SBIC program and defense industrial base requirements.

(b) DEFINITIONS.—In this section:

(1) The term ''SBIC'' means a small business investment company (as defined in section 103 of the Small Business Investment Act of 1958 (15 U.S.C. 662)).

(2) The term ''SBIC program'' means the small business investment company program of the Small Business Administration.

Subtitle E—Defense Industrial Base Workforce Matters

SEC. 1881. SKILLS-BASED REQUIREMENTS FOR DEPARTMENT OF DEFENSE CONTRACTOR PERSONNEL.

(a) IN GENERAL.—Chapter 223 of title 10, United States Code, as amended by section 802, is further amended by inserting after section 3244 the following new section:

"§ 3245. Flexibility in contractor education requirements

''(a) PROHIBITION.—A solicitation, or a task order or delivery order under an indefinite delivery-indefinite quantity contract, issued by the Department for any procurement of property or services may not set forth any minimum education requirement for proposed contractor personnel in order for an offeror to be eligible for award of a contract (or task or delivery order, as applicable) unless the contracting officer includes in the solicitation (or task order or delivery order, as applicable) a written justification that explains why the needs of the Department cannot be met without any such requirement and clarifies how the requirement ensures the needs are met.

''(b) DEFINITIONS.—In this section:

''(1) The term 'education' means an associate, baccalaureate, graduate, or professional degree, specified coursework, or other form of educational attainment awarded by a junior or community college, baccalaureate, graduate, or professional degree or other form of educational attainment awarded by a junior or community college, college, or university that is accredited as a collegiate institution by a recognized accrediting agency or approved by the appropriate State education authority under State law (or the appropriate education authority of the District of Columbia) to grant associate or higher degrees.

''(2) The term 'education requirement' includes a requirement that can be met through—

''(A) education alone;

''(B) either education or experience; or

''(C) a combination of education and experience.''.

(b) APPLICABILITY.—Section 3245 of title 10, United States Code, as added by subsection (a), shall apply to solicitations, and to task or delivery orders, issued on or after the date that is 18 months after the date of the enactment of this Act.

(c) REGULATION.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall revise the Department of Defense Supplement to the Federal Acquisition Regulation to carry out such section 3245, including—

(1) instructions for contracting officers regarding the written justifications required under such section, including a standardized format or template for such justifications;

(2) instructions encouraging the use of alternatives to education requirements, including skills assessments, relevant work experience, professional certifications, apprenticeship completion, and demonstrated competencies; and

(3) requirements for data collection on the use of education requirements in solicitations, including the number and type of justifications issued and the rate at which education requirements are used relative to alternative qualifications.

(d) CONFORMING REPEAL.—Effective at the close of the date on which the Department of Defense Supplement to the Federal Acquisition Regulation is revised as required by subsection (c), section 813 of the Floyd D. Spence National Defense Authorization Act for Fiscal

Year 2001 (Public Law 106–398; 114 Stat. 1654A–214) is repealed.

SEC. 1882. MODIFICATION OF WORKING GROUP ON THE ADVANCED MANUFACTURING WORKFORCE.

(a) EXPANSION OF RESPONSIBILITIES.—Section 1843(c) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60) is amended—

(1) in paragraph (2), by striking ''skills and abilities that are required for such fields; and'' and inserting ''skills, abilities, training, and certifications that are required for such fields in the defense industrial base;'';

(2) by redesignating paragraph (3) as paragraph (4);

(3) by inserting after paragraph (2) the following new paragraph:

''(3) identify limitations to the capacity of entities in the defense industrial base to recruit, train, and certify a sufficient workforce in advanced manufacturing career fields in the defense industrial base; and''; and

(4) in paragraph (4) (as so redesignated)—

(A) in subparagraph (B), by striking ''; and'' and inserting a semicolon;

(B) by redesignating subparagraph (C) as subparagraph (D); and

(C) by inserting after subparagraph (B) the following new subparagraph:

''(C) approaches to expand the capacity to develop and sustain a sufficient workforce in advanced manufacturing career fields in the defense industrial base; and''.

(b) REPORT.—Not later than 180 days after the date of enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report, which may be included along with or as an addendum to the report required under section 1843(d) of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60), that includes—

(1) an assessment of the extent to which existing pilot programs or initiatives, such as the Accelerated Training in Defense Manufacturing program, demonstrate the ability to train and certify individuals in advanced manufacturing career fields in the defense industrial base;

(2) options for increasing the capacity to train and certify the advanced manufacturing workforce, including options to institutionalize existing pilot

programs or initiatives or to establish new programs to address workforce shortages;

(3) options for supporting the long-term sustainability and continuous improvement of workforce training and certification programs, including through public-private partnerships and other funding or cost-sharing mechanisms; and

(4) any recommendations the Secretary may have to accelerate training, credentialing, and qualification of workers supporting the defense industrial base, including recommendations related to improving the Department's planning and resourcing of such activities.

SEC. 1883. WORKFORCE DEVELOPMENT INITIATIVES TO SUPPORT MINING OF CRITICAL MINERALS.

(a) REQUIREMENT FOR INITIATIVES.—In order to support and enable the development of domestic critical mineral supply chains to meet defense industrial base requirements, the Secretary of Defense shall use existing authorities, including authorities under section 4817 of title 10, United States Code, to ensure that the workforce development initiatives of the Department of Defense for the defense industrial base include workforce development initiatives to support the mining industry.

(b) INITIATIVES THAT MAY BE INCLUDED.—The initiatives required by subsection (a) may include—

(1) contracts, grants, cooperative agreements, or other transactions with accredited mining schools for the purpose of recruiting and educating the next generation of mining engineers, faculty, and other qualified professionals;

(2) scholarship, stipend, or tuition assistance programs designed to reduce financial barriers to entry into fields related to critical minerals;

(3) workforce development pathways, such as cooperative education, apprenticeships, internships, and work-based learning opportunities, in fields related to critical minerals;

(4) industry-driven senior design projects, applied research opportunities, faculty development, and other experiential learning activities directly related to production and processing of critical minerals; and

(5) activities to recruit, train, qualify, and place individuals into the mining profession or occupations supporting the supply chains for critical minerals.

(c) PRIORITY.—In carrying out this section, the Secretary shall prioritize initiatives that—

(1) align with current and projected defense industrial base requirements for critical minerals; and

(2) demonstrate the ability to expand workforce training, credentialing, and placement into the mining profession or occupations supporting the supply chains for critical minerals.

(d) COORDINATION.—The Secretary shall ensure that activities carried out under this section are coordinated with other workforce development initiatives of the Department of Defense for the defense industrial base and with institutions and entities participating in such initiatives.

(e) RECOMMENDATIONS TO ENHANCE IMPLEMENTATION.—

(1) ASSESSMENT.—Not later than September 1, 2027, the Secretary shall complete an assessment of the feasibility and advisability of requiring, as a condition of award, that the prime awardee of a covered project award actively participate in one or more workforce development initiatives to support the mining industry, including the feasibility and advisability of requiring that the prime awardee—

(A) establish and maintain a partnership with an accredited mining school as described in subsection (b)(1);

(B) establish and maintain one or more workforce development pathways as described in subsection (b)(3) that are aligned with the workforce needs of the project and are for United States veterans and members of the Armed Forces who are transitioning to civilian life; and

(C) implement any other workforce development initiative identified by the Secretary for inclusion in the assessment.

(2) REPORT.—Not later than March 1, 2028, the Secretary shall submit to the congressional defense committees a report on the assessment, including the results of the assessment and any recommendations the Secretary may have to expand domestic mining, processing, refining, recycling, or related production capacity for critical minerals.

(f) ANNUAL BRIEFING.—Not later than one year after the date of the enactment of this Act, and each year thereafter through 2035, the Secretary shall provide to the congressional defense committees a briefing describing—

(1) the activities carried out under this section;

(2) the number of participants supported through workforce development initiatives described

in this section and the workforce placement outcomes for those participants; and

(3) any recommendations the Secretary may have to improve the development of mining schools to meet the future workforce needs.

(g) DEFINITIONS.—In this section:

(1) The term ''covered project award'' means an award for a project to expand domestic mining, processing, refining, recycling, or related production capacity for critical minerals made by the Department of Defense under section 4817 of title 10, United States Code.

(2) The term ''mining industry'' means the mining industry of the United States, consisting of the search for, and extraction, beneficiation, refining, smelting, processing, reprocessing, and recycling of, naturally occurring metal and nonmetal minerals from the earth.

(3) The term ''mining profession'' means the body of jobs directly relevant to—

(A) the exploration, planning, execution, and remediation of metal and nonmetal mining sites; and

(B) the extraction, including the separation, refining, alloying, smelting, concentration,

processing, beneficiation, reprocessing, and recycling, of mineral ores.

(4) The term ''mining school'' means a mining, metallurgical, or mineral engineering program accredited by the Accreditation Board for Engineering and Technology that is located at an institution of higher education, including a Tribal College or University.

(5) The term ''Tribal College or University'' has the meaning given the term in section 316(b) of the Higher Education Act of 1965 (20 U.S.C. 1059c(b)).

SEC. 1884. ESTABLISHMENT OF SCHEDULE V FOR VETERAN EMPLOYMENT REPORTING BY DEFENSE CONTRACTORS.

Chapter 367 of title 10, United States Code, is amended by adding at the end the following new section:

''§ 4755. Schedule V for veteran employment reporting by defense contractors

''(a) ESTABLISHMENT.—The Secretary of Defense shall develop and implement a standardized disclosure schedule, to be known as 'Schedule V', to be included in the terms of award of any contract, subcontract, or grant—

''(1) where the estimated annual value of such contract, subcontract, or grant is greater than or equal to $20,000,000; or

''(2) if the awardee of such contract, subcontract, or grant has an average annual revenue greater than or equal to $1,000,000,000.

''(b) DISCLOSURE REQUIREMENTS.—An awardee of a contract, subcontract, or grant described in subsection (a) shall, on an annual basis, disclose on Schedule V veteran employment and retention date, including—

''(1) the number of veterans hired annually for the previous three years;

''(2) the number of those veterans retained 12 and 24 months after initial hire date; and

''(3) a summary of the awardee's veteran retention initiatives, if any.

''(c) SUBCONTRACTING AND INDIRECT VENDORS.—The Secretary shall ensure Schedule V requirements apply, to the greatest extent practicable, to an indirect supplier or subcontractor of an awardee, where such supplier or subcontractor is performing a work under the awardee's contract, subcontract, or grant with estimated annual value greater than or equal to $20,000,000 or with an average annual revenue greater than or equal to $1,000,000,000.

''(d) PUBLIC ACCESSIBILITY.—The disclosures required under subsection (c) shall be submitted to the relevant contracting officer or grant officer and made publicly available through the Federal Procurement Data System or another centralized Government database designated by the Secretary.

''(e) IMPLEMENTATION.—The Secretary shall issue regulations to implement this section not later than one year after the date of the enactment of this section. These regulations may include exemptions for small business concerns (as defined under section 3 of the Small Business Act (15 U.S.C. 632)) and flexibilities for pilot implementation of the requirements of this section.''.

Subtitle F—Other Matters

SEC. 1891. EXEMPTION FROM TRADEMARK LICENSING FEES FOR CERTAIN MILITARY EXCHANGE CONTRACTORS.

Section 2260 of title 10, United States Code, is amended—

(1) in subsection (a), by striking ''and may retain'' and inserting ''and may, except as provided in subsection (f), retain'';

(2) in subsection (b), by striking ''The Secretary concerned'' and inserting ''Except as provided in subsection (f), the Secretary concerned'';

(3) by redesignating subsection (f) as subsection (g); and

(4) by inserting after subsection (e) the following new subsection:

''(f) EXEMPTION FOR LONG-TERM EXCHANGE CONTRACTORS.—(1) The Secretary concerned may not require contractor performing a contract of one year or longer with a military exchange—

''(A) to be subject to any fee described in subsection (a) or (b);

''(B) to obtain approval from the trademark and licensing office of a military department for the production or sale of items sold through such exchange; or

''(C) to pay a royalty or other licensing fee to the trademark and licensing office of a military department, including any royalty or other licensing fee collected pursuant to a licensing agreement authorized under this section, in connection with the production or sale of items through such exchange or a Morale, Welfare, and Recreation program.

''(2) In this subsection, the term 'Morale, Welfare, and Recreation program' means a nonappropriated fund activity providing community support, recreational, and quality-of-life services to members of the armed forces and

dependents of such members, as authorized under chapter 147 of title 10.''.

SEC. 1892. MAJOR SYSTEM COST GROWTH OVERSIGHT.

(a) SHORTEN NUNN-MCCURDY BREACH REPORT TIMELINE.—Section 4374 of title 10, United States Code, is amended—

(1) in subsection (a), by striking ''When a unit cost report'' and inserting ''Not later than 30 days after a unit cost report'';

(2) in subsection (b), by striking ''When a unit cost report'' and inserting ''Not later than 30 days after a unit cost report''; and

(3) in subsection (c), by amending paragraph (2) to read as follows:

''(2) TIME FOR SUBMISSION OF NOTIFICATION TO CONGRESS.—In the case of a determination based on a quarterly report submitted in accordance with section 4372 of this title or a report submitted in accordance with section 4373 of this title, the Secretary shall submit the notification to Congress within 30 days after the date on which the determination was made.''.

(b) END ITEM MAJOR SUBPROGRAM DESIGNATION.—Section 4203(a)(1) of title 10, United States

Code, is amended by adding at the end the following new subparagraph:

"(C) If the Secretary of Defense determines that a major defense acquisition program requires the delivery of two or more end items that are each estimated to require an eventual total expenditure for research, development, test, evaluation, operation, and support of more than $500,000,000, the Secretary shall designate each such end item as a major subprogram for the purposes of acquisition reporting under this subpart.".

(c) OPERATIONS AND SUPPORT COST INCLUSION.—Section 4214(a)(2) of title 10, United States Code, is amended by inserting "for the life cycle of such major defense acquisition program or designated major subprogram" before the period at the end.

(d) CRITICAL COST GROWTH TERMINATION.—Section 4376 of title 10, United States Code, is amended—

(1) in subsection (b), by adding at the end the following new paragraphs:

"(4) DELEGATION.—The Secretary may not delegate the submission of a written certification under paragraph (1)."; and

(2) in subsection (c)—

(A) in paragraph (2), by striking ''and'' at the end;

(B) in paragraph (3), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following new paragraph:

''(4) consideration of termination plans that maximize value, including—

''(A) immediate termination of the program with no further action;

''(B) termination of the program after completion of the end items in production and for which funds have been obligated or expended under the program as of the date that is the last day of the applicable 60-day period described in subsection (b)(1) for the program;

''(C) termination of the program after completion of the end items described in subparagraph (B) for which the resale value exceeds the cost of completing such end items; and

''(D) any other course of action to maximize the value to the Government of the funds that have been obligated or expended under the program as of the date that is the last day of

the applicable 60-day period described in subsection (b)(1) for the program.''.

SEC. 1893. INAPPLICABILITY OF BERRY AMENDMENT EXCEPTIONS TO CERTAIN SEAFOOD PURCHASES.

(a) IN GENERAL.—Section 4862 of title 10, United States Code, is amended—

(1) by amending subsection (g) to read as follows:

''(g) EXCEPTION FOR COMMISSARIES, EXCHANGES, AND OTHER NONAPPROPRIATED FUND INSTRUMENTALITIES.—Subsection (a) does not apply to items purchased for resale purposes in commissaries, exchanges, or nonappropriated fund instrumentalities operated by the Department of Defense.'';

(2) by inserting after subsection (k) the following new subsection:

''(l) APPLICATION TO CERTAIN SEAFOOD PURCHASES.—The exceptions in subsections (c) through (h) of this section shall not apply with respect to procurement of any fish, shellfish, or seafood product.

''(b) REPORT.—Not later than one year after the date of the enactment of this Act, and annually thereafter for three years, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the

House of Representatives a report on implementation of the amendments made by this section. The Secretary shall include in such report—

''(1) the total volume and value of fish, shellfish, and seafood products procured by commissaries, exchanges, and nonappropriated fund instrumentalities during the preceding fiscal year, disaggregated by domestic and foreign origin;

''(2) the States and territories of the United States from which such products were sourced, including the volume and value attributable to each; and

''(3) the steps taken by the Secretary to maximize procurement of domestically sourced seafood products, including from States and territories of the United States located within the area of responsibility of the United States Indo-Pacific Command.''.

SEC. 1894. CLARIFICATION OF COMMERCIAL SOLICITATION RESTRICTIONS DURING INITIAL ENTRY TRAINING FOR MEMORABILIA AND PHOTOGRAPHY.

(a) AMENDMENT TO IMPLEMENTING REGULATIONS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, acting

through each Secretary of a military department, shall revise any regulations governing commercial solicitation during initial entry training at military installations, including section 552.60(d) of title 32, Code of Federal Regulations and any similar provisions specific to a military department, to provide the following:

(1) Such regulations shall not apply to preorders for cycle-commemorative or unit-specific merchandise organized at the initiative of members of the Armed Forces or dependents of such members, provided that no financial commitment, payment, or other consideration is made by or collected from a member until delivery of the product occurs after completion of the applicable training cycle.

(2) Such regulations shall not apply to photography services provided by photographers operating under a contract or other agreement with a military installation, a Morale, Welfare, and Recreation program, or a military exchange, for the sale of graduation ceremony photographs to members of the Armed Forces or dependents of such members during or immediately following graduation ceremonies.

(b) UNIFORMITY OF APPLICATION.—Each Secretary of a military department shall ensure that any military installation-specific policies—

(1) are applied uniformly across military installations under the jurisdiction of such Secretary; and

(2) do not impose restrictions more stringent than those established by the regulations described in subsection (a), as revised by this section.

(c) DEFINITIONS.—In this section:

(1) The term ''military exchange'' means the Army and Air Force Exchange Service, the Navy Exchange Service Command, the Marine Corps Exchange, the Coast Guard Exchange, or any successor organization, as applicable.

(2) The term ''Morale, Welfare, and Recreation program'' means a nonappropriated fund activity providing community support, recreational, and quality-of-life services to members of the armed forces and their families, as authorized under chapter 147 of title 10, United States Code.

SEC. 1895. INVENTORY OF LEGACY SEMICONDUCTOR DEPENDENCIES.

(a) IN GENERAL.—The Secretary of Defense shall conduct an inventory of legacy semiconductors that are required for the production, sustainment, maintenance, or modernization of a major defense acquisition program and submit to the congressional defense committees a plan to

eliminate reliance on foreign single-source suppliers of such legacy semiconductors.

(b) DEFINITIONS.—In this section:

(1) The term ''legacy semiconductor'' means—

(A) a semiconductor device fabricated using process technologies of 28 nanometers or larger; or

(B) any semiconductor designated by the Secretary of Defense as a mature-node semiconductor critical to the sustainment, maintenance, or operation of a major defense acquisition program.

(2) The term ''major defense acquisition program'' has the meaning given in section 4201 of title 10, United States Code.

SEC. 1896. CRITICAL MINERALS RECOVERY FROM UNCONVENTIONAL FEEDSTOCKS.

(a) IN GENERAL.—The Secretary of Defense, in coordination with the Secretary of Energy and the Secretary of the Interior, shall support demonstration and early commercial deployment of technologies capable of recovering covered materials relevant to the defense industrial base from unconventional feedstocks, including tailings from mining operations, low-grade ores, industrial waste streams, and recycled materials.

(b) ELIGIBLE TECHNOLOGIES.—Technologies described in subsection (a) may include hydrometallurgical, solvent extraction, electrochemical, pyrometallurgical, separation and purification, biological, bioleaching, and other advanced recovery, processing, and refining technologies capable of recovering, upgrading, refining, or converting covered materials.

(c) FORM OF SUPPORT.—The Secretary of Defense may provide support under this section through—

(1) the authorities of title III of the Defense Production Act of 1950 (50 U.S.C. 4531 et seq.);

(2) grants, cooperative agreements, and other transactions;

(3) pilot projects, demonstration projects, and prototype projects;

(4) procurement contracts, purchase commitments, and offtake agreements;

(5) activities carried out under the Strategic Environmental Research and Development Program, the Environmental Security Technology Certification Program, Industrial Base Analysis and Sustainment activities, and other Department of Defense programs; and

(6) any other authority available to the Secretary.

(d) DEFINITIONS.—In this section:

(1) COVERED MATERIAL.—The term ''covered material'' means any mineral, element, substance, or material on the list of critical minerals published under section 7002(c) of the Energy Act of 2020 (30 U.S.C. 1606(c)), any critical material determined by the Secretary of Energy under section 7002(a)(2) of that Act, or any strategic and critical material under the Strategic and Critical Materials Stock Piling Act (50 U.S.C. 98 et seq.), including ores, oxides, intermediates, byproducts, and refined forms thereof.

(2) UNCONVENTIONAL FEEDSTOCK.—The term ''unconventional feedstock'' means any domestic source of covered materials other than newly mined, on-specification primary ore concentrate processed by conventional means, including:

(A) tailings, waste rock, and residues from current or legacy mining operations;

(B) low-grade, off-grade, or off-specification ores and concentrates;

(C) slags, drosses, anode slimes, leach residues, process liquors, and other byproducts, intermediate streams, or wastes from mineral

processing, smelting, refining, or manufacturing operations;

(D) industrial waste streams, including energy, chemical, metallurgical, and defense-related industrial processes; and

(E) recycled, scrap, end-of-life, and urban-mined materials.

SEC. 1897. REPORT ON USE OF COPPER BY ARMED FORCES.

Not later than 180 days after the date of the enactment of this section, the Secretary of Defense, in consultation with the Secretary of the Interior, shall submit to Congress a report that includes—

(1) an assessment of the annual copper requirements of the Armed Forces;

(2) an evaluation of the extent of the reliance of the Armed Forces on foreign sources of copper; and

(3) an identification of the effect that increased domestic mining and refining of copper may have on military readiness of the Armed Forces.

SEC. 1898. PREFERENCE FOR DOMESTICALLY SOURCED URANIUM AND OTHER CRITICAL MINERALS BY DEPARTMENT OF DEFENSE AND NATIONAL NUCLEAR SECURITY ADMINISTRATION.

(a) PREFERENCE.—In carrying out programs of the Department of Defense and the National Nuclear Security Administration authorized under this Act, the Secretary of Defense and the Administrator for Nuclear Security shall, to the maximum extent practicable, give preference to the sourcing of uranium and other critical minerals that are mined and processed in the United States.

(b) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary and the Administrator shall jointly submit to the congressional defense committees a report containing an assessment of—

(1) the domestic supply of uranium and other critical minerals for purposes of this section; and

(2) the dependence of the Department of Defense and the National Nuclear Security Administration on foreign countries of concern for such materials.

(c) DEFINITIONS.—In this section:

(1) The term ''critical mineral'' means any mineral on the list of critical minerals of the United States Geological Survey titled ''Final 2025 List of

Critical Minerals'' (90 Fed. Reg. 50494), dated November 7, 2025, as in effect on the date of the enactment of this Act.

(2) The term ''foreign country of concern'' means a foreign country designated as such by the Secretary of Defense or the Administrator for Nuclear Security for purposes of this section.

SEC. 1899. ASSESSMENT OF INDUSTRIAL BASE FOR TURBOJET PYROTECHNIC DEVICES.

(a) FINDINGS.—Congress finds the following:

(1) Turbojet pyrotechnic devices are critical for the operation of aerial targets and unmanned systems used in military training and testing, and weapon systems.

(2) Current supply chain lead times of 18 to 36 months exceed the Department of Defense's 12-month requirement, creating a production bottleneck that poses risks to readiness and operational effectiveness.

(b) REPORT REQUIRED.—Not later than March 1, 2027, the Under Secretary of Defense for Acquisition and Sustainment, in consultation with the Secretary of the Army and the Assistant Secretary of Defense for Industrial Base Policy, shall submit to the congressional defense

committees a report that, with respect to turbojet pyrotechnic devices—

(1) assesses—

(A) projected demand through fiscal year 2030, including with respect to initiators, igniters, pyroflares, turbine start cartridges, and other similar pyrotechnic devices;

(B) current United States production capacity, scalability, and lead times;

(C) supply chain vulnerabilities and impacts on readiness; and

(D) potential commercial or dual-use applications; and

(2) provides recommendations to reduce supply chain lead times, diversify suppliers, and strengthen the industrial base.

(c) IMPLEMENTATION AUTHORITY.—The Secretary of Defense may initiate pilot efforts or partnerships that support implementation of the recommendations in the report under subsection (b).

SEC. 1899A. FUNDING FOR FAN-OUT WAFER LEVEL PACKAGING PROGRAM OF INDUSTRIAL BASE ANALYSIS AND SUSTAINMENT PROGRAM.

(a) INCREASE.—Notwithstanding the amounts set forth in the funding tables in division D, the amount au-

thorized to be appropriated in section 201 for research, development, test, and evaluation, Defense-wide, line 233, as specified in the corresponding funding table in section 4201, is hereby increased by $10,000,000 for the fan-out wafer level packaging program of the Industrial Base Analysis and Sustainment Program of the Department of Defense.

(b) OFFSET.—Notwithstanding the amounts set forth in the funding tables in division D, the amount authorized to be appropriated in section 301 for operation and maintenance Defense-wide, line 480, as specified in the corresponding funding table in section 4301, for the Office of the Secretary of Defense, is hereby reduced by $10,000,000.

DIVISION B—MILITARY CONSTRUCTION AUTHORIZATIONS

SEC. 2001. SHORT TITLE.

This division may be cited as the ''Military Construction Authorization Act for Fiscal Year 2027''.

SEC. 2002. EXPIRATION OF AUTHORIZATIONS AND AMOUNTS REQUIRED TO BE SPECIFIED BY LAW.

(a) EXPIRATION OF AUTHORIZATIONS AFTER THREE YEARS.—Except as provided in subsection (b), all author-

izations contained in titles XXI through XXVII for military construction projects, land acquisition, family housing projects and facilities, and contributions to the North Atlantic Treaty Organization Security Investment Program (and authorizations of appropriations therefor) shall expire on the later of—

(1) October 1, 2029; or

(2) the date of the enactment of an Act authorizing funds for military construction for fiscal year 2030.

(b) EXCEPTION.—Subsection (a) shall not apply to authorizations for military construction projects, land acquisition, family housing projects and facilities, and contributions to the North Atlantic Treaty Organization Security Investment Program (and authorizations of appropriations therefor), for which appropriated funds have been obligated before the later of—

(1) October 1, 2029; or

(2) the date of the enactment of an Act authorizing funds for fiscal year 2030 for military construction projects, land acquisition, family housing projects and facilities, or contributions to the North Atlantic Treaty Organization Security Investment Program.

SEC. 2003. EFFECTIVE DATE.

Titles XXI through XXVII shall take effect on the later of—

(1) October 1, 2026; or

(2) the date of the enactment of this Act.

TITLE XXI—ARMY MILITARY CONSTRUCTION

SEC. 2101. AUTHORIZED ARMY CONSTRUCTION AND LAND ACQUISITION PROJECTS.

(a) INSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropriations in section 2103(a) and available for military construction projects inside the United States as specified in the funding table in section 4601, the Secretary of the Army may acquire real property and carry out military construction projects for the installations or locations inside the United States, and in the amounts, set forth in the following table:

Army: Inside the United States

State	Installation or Location	Amount
Guam	Joint Region Marianas	$155,000,000
Hawaii	Wheeler Army Air Field	$380,000,000
	Schofield Barracks	$30,000,000
Louisiana	Fort Polk	$237,000,000
New York	Fort Drum	$25,000,000
Oklahoma	Fort Sill	$94,000,000
Texas	Joint Base San Antonio	$918,000,000
	Fort Bliss	$35,000,000
	Fort Hood	$81,000,000

(b) OUTSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropria-

tions in section 2103(a) and available for military construction projects outside the United States as specified in the funding table in section 4601, the Secretary of the Army may acquire real property and carry out military construction projects for the installations or locations outside the United States, and in the amounts, set forth in the following table:

Army: Outside the United States

Country	Installation or Location	Amount
Italy	Caserma Renato Del Din	$17,000,000

SEC. 2102. FAMILY HOUSING.

(a) CONSTRUCTION AND ACQUISITION.—Using amounts appropriated pursuant to the authorization of appropriations in section 2103(a) and available for military family housing functions as specified in the funding table in section 4601, the Secretary of the Army may construct or acquire family housing units (including land acquisition and supporting facilities) at the installations or locations, in the number of units, and in the amounts set forth in the following table:

Army: Family Housing

Country	Installation	Amount
Germany	South Camp Vilseck	$95,060,000

(b) PLANNING AND DESIGN.—Using amounts appropriated pursuant to the authorization of appropriations in section 2103(a) and available for military family housing

functions as specified in the funding table in section 4601, the Secretary of the Army may carry out architectural and engineering services and construction design activities with respect to the construction or improvement of family housing units in an amount not to exceed $39,079,000.

SEC. 2103. AUTHORIZATION OF APPROPRIATIONS, ARMY.

(a) AUTHORIZATION OF APPROPRIATIONS.—Funds are hereby authorized to be appropriated for fiscal years beginning after September 30, 2026, for military construction, land acquisition, and military family housing functions of the Department of the Army as specified in the funding table in section 4601.

(b) LIMITATION ON TOTAL COST OF CONSTRUCTION PROJECTS.—Notwithstanding the cost variations authorized by section 2853 of title 10, United States Code, and any other cost variation authorized by law, the total cost of all projects carried out under sections 2101 and 2102 of this Act may not exceed the total amount authorized to be appropriated under subsection (a), as specified in the funding table in section 4601.

SEC. 2104. EXTENSION OF AUTHORITY TO CARRY OUT FISCAL YEAR 2021 PROJECT AT FORT GILLEM, GEORGIA.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal

Year 2021 (division B of Public Law 116–283; 134 Stat. 4294), the authorization set forth in the table in subsection (b), as provided in section 2101(a) of that Act (134 Stat. 4295) and most recently extended by section 2104 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat. 1266), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Army: Extension of 2021 Project Authorization

State	Installation or Location	Project	Original Authorized Amount
Georgia	Fort Gillem	Forensic Laboratory	$71,000,000

SEC. 2105. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2022 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2022 (division B of Public Law 117–81; 135 Stat. 2161), the authorization set forth in the table in subsection (b), as provided in section 2101 of that Act (135 Stat. 2163) and most recently extended by section 2105 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat.

1267), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Army: Extension of 2022 Project Authorizations

State/ Country	Installation or Location	Project	Original Authorized Amount
Georgia	Fort Stewart	Barracks	$105,000,000
Germany	Smith Barracks	Live Fire Exercise Shoothouse	$16,000,000

SEC. 2106. MODIFICATION OF AUTHORITY TO CARRY OUT FISCAL YEAR 2022 PROJECT AT FORT STEWART, GEORGIA.

In the case of the authorization contained in the table in section 2101 of the Military Construction Authorization Act for Fiscal Year 2022 (division B of Public Law 117–81; 135 Stat. 2161) for Fort Stewart, Georgia for construction of a barracks, the Secretary of the Army may construct a facility consisting of 193,347 square feet.

SEC. 2107. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2023 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2023 (division B of Public Law 117–263; 136 Stat. 2970), the authorizations set forth in the table in subsection (b), as provided in section 2101 of that Act (136

Stat. 2971), and extended by section 2106 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119-60; 139 Stat. 1267), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Army: Extension of 2023 Project Authorizations

State/ Country	Installation or Location	Project	Original Authorized Amount
Germany	East Camp Grafenwoehr	EDI: Battalion Trng Cplx2 (OPS/Veh Maint)	$64,000,000
Hawaii	Fort Shafter	Water System Upgrade	$33,000,000
	Tripler Army Medical Center	Upgrade Potable Water System	$38,000,000
Japan	Kadena Air Force Base	Vehicle Maintenance Shop	$80,000,000

SEC. 2108. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2024 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2024 (division B of Public Law 118–31; 137 Stat. 709), the authorizations set forth in the table in subsection (b), as provided in section 2101 of that Act (137 Stat. 710), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds

for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Army: Extension of 2024 Project Authorizations

State/ Country	Installation or Location	Project	Original Authorized Amount
Germany	Grafenwoehr	Automated Multi-purpose Machine Gun Range	$10,400,000
	Hohenfels	Simulations Center	$88,000,000
Hawaii	Aliamanu Military Reservation	Water Storage Tank	$20,000,000
	Fort Shafter	Clearwell and Booster Pump	$80,000,000
	Helemano Military Reservation	Wells and Storage Tanks	$90,000,000
	Schofield Barracks	Elevated Tank and Distribution Lines	$35,000,000
		Water Storage Tank	$35,000,000
Kentucky	Fort Campbell	Multipurpose Training Range	$39,000,000
North Carolina	Fort Liberty	Aircraft Maintenance Hangar	$61,000,000
		Barracks (Facility Prototyping)	$85,000,000
Texas	Red River Army Depot	Component Rebuild Shop	$113,000,000

SEC. 2109. MODIFICATION OF AUTHORITY TO CARRY OUT FISCAL YEAR 2025 PROJECT AT GRAFENWOEHR, GERMANY.

In the case of the authorization contained in the table in section 2101 of the Military Construction Authorization Act for Fiscal Year 2025 (Division B of Public Law 118–159; 138 Stat. 2211) for U.S. Garrison Bavaria, Germany, for construction of an Operational Readiness Training Complex (ORTC) underground electric line as specified in the funding table in section 4601 of such Act, the

Secretary of the Army may construct an Operational Readiness Training Complex (ORTC) underground electric line at Grafenwoehr, Germany.

SEC. 2110. MODIFICATION OF AUTHORITY TO CARRY OUT FISCAL YEAR 2026 PROJECT AT JOINT REGION MARIANAS, GUAM.

In the case of the authorization contained in the table in section 2101 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat. 1265) for Joint Region Marianas, Guam, for construction of PDI: Guam Defense System, EIAMD, Phase 2 (Inc), at that location, the Secretary of the Army may construct a 2,496 square foot pump house and 648,000 gallon non-portable water storage tank.

TITLE XXII—NAVY MILITARY CONSTRUCTION

SEC. 2201. AUTHORIZED NAVY CONSTRUCTION AND LAND ACQUISITION PROJECTS.

(a) INSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropriations in section 2203(a) and available for military construction projects inside the United States as specified in the funding table in section 4601, the Secretary of the Navy may acquire real property and carry out military construction projects for the installations or locations in-

side the United States, and in the amounts, set forth in the following table:

Navy and Marine Corps: Inside the United States

State	Installation or Location	Amount
California	Marine Corps Base Camp Pendleton	$53,150,000
Florida	Cape Canaveral Space Force Station	$60,990,000
Georgia	Naval Submarine Base Kings Bay	$490,550,000
	Albany	$86,350,000
Guam	Joint Region Marianas	$1,346,763,000
Hawaii	Ford Island	$183,760,000
	Marine Corps Base Kaneohe Bay	$210,640,000
Maryland	United States Naval Academy	$86,020,000
Nevada	Naval Air Station Fallon	$387,570,000
North Carolina	Camp Lejeune	$391,910,000
Virginia	Naval Air Station Oceana	$104,340,000
	Naval Station Norfolk	$177,980,000
	Joint Expeditionary Base Little Creek-Fort Story.	$65,640,000
Washington	Puget Sound Naval Shipyard	$14,759,360,000
	Naval Base Kitsap-Bremerton	$195,227,000
	Naval Base Kitsap-Bangor	$558,530,000

(b) OUTSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropriations in section 2203(a) and available for military construction projects outside the United States as specified in the funding table in section 4601, the Secretary of the Navy may acquire real property and carry out military construction projects for the installations or locations outside the United States, and in the amounts, set forth in the following table:

Navy: Outside the United States

Country	Installation or Location	Amount
Japan	Kadena Air Base	$31,780,000
Spain	Naval Station Rota	$64,080,000

SEC. 2202. FAMILY HOUSING.

Using amounts appropriated pursuant to the authorization of appropriations in section 2203(a) and available

for military family housing functions as specified in the funding table in section 4601, the Secretary of the Navy may carry out architectural and engineering services and construction design activities with respect to the construction or improvement of family housing units in an amount not to exceed $14,971,000.

SEC. 2203. AUTHORIZATION OF APPROPRIATIONS, NAVY.

(a) AUTHORIZATION OF APPROPRIATIONS.—Funds are hereby authorized to be appropriated for fiscal years beginning after September 30, 2026, for military construction, land acquisition, and military family housing functions of the Department of the Navy, as specified in the funding table in section 4601.

(b) LIMITATION ON TOTAL COST OF CONSTRUCTION PROJECTS.—Notwithstanding the cost variations authorized by section 2853 of title 10, United States Code, and any other cost variation authorized by law, the total cost of all projects carried out under sections 2201 and 2202 of this Act may not exceed the total amount authorized to be appropriated under subsection (a), as specified in the funding table in section 4601.

SEC. 2204. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2023 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal

Year 2023 (division B of Public Law 117–263; 136 Stat. 2970), the authorizations set forth in the table in subsection (b), as provided in section 2201 of that Act (136 Stat. 2975) and extended by section 2206 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat. 1271), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Navy: Extension of 2023 Project Authorizations

State/ Country	Installation or Location	Project	Original Authorized Amount
Florida	Naval Air Station Jacksonville	Engine Test Cells Modifications	$100,570,000
Hawaii	Joint Base Pearl Harbor-Hickam	Missile Magazines	$142,783,000
North Carolina	Marine Corps Air Station Cherry Point	CH-53K Gearbox Repair and Test Facility	$44,830,000
South Carolina	Marine Corps Recruit Depot Parris Island	Recruit Barracks	$81,690,000
		Recruit Barracks	$85,040,000
Spain	Naval Station Rota	EDI: Missile Magazines	$92,323,000

SEC. 2205. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2024 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2024 (division B of Public Law 118–31; 137 Stat. 709), the authorizations set forth in the table in sub-

section (b), as provided in section 2201 of that Act (137 Stat. 714), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Navy: Extension of 2024 Project Authorizations

State/ Country	Installation or Location	Project	Original Authorized Amount
California	Marine Corps Air Ground Combat Center Twentynine Palms	Communications Towers	$55,341,000
Connecticut	Naval Submarine Base New London	Weapons Magazine & Ordnance Operations Fac	$219,200,000
District of Columbia	Marine Barracks Washington (8th Street and I)	Bachelor Enlisted Quarters & Support Facility	$131,800,000
Guam	Naval Base Guam	PDI: Consolidated MEB HQ/NCIS Phase II	$19,740,000
		PDI: Satellite Communications Facility (INC)	$595,100,000
Hawaii	Marine Corps Base Kaneohe Bay	Water Reclamation Facility Compliance Upgrade	$318,845,000
Italy	Naval Air Station Sigonella	EDI Ordnance Magazines	$90,348,000
Maryland	Fort Meade	Cybersecurity Operations Facility	$186,480,000
	Naval Air Station Pax River	Aircraft Development and Maintenance Facilities	$141,700,000
North Carolina	Marine Corps Base Camp Lejeune	10th Marines Maintenance & Operations Complex	$117,550,000
Virginia	Marine Corps Base Quantico	Water Treatment Plant	$127,120,000

Navy: Extension of 2024 Project Authorizations—Continued

State/ Country	Installation or Location	Project	Original Authorized Amount
	Naval Station Norfolk	MQ-25 Aircraft Laydown Facility	$128,678,000
	Naval Weapons Station Yorktown	Weapons Magazines	$283,500,000
Washington	Naval Base Kitsap	Alternate Power Transmission Line	$19,000,000

SEC. 2206. EXTENSION AND MODIFICATION OF AUTHORITY TO CARRY OUT FISCAL YEAR 2024 PROJECT AT MARINE CORPS BASE QUANTICO, VIRGINIA.

(a) MODIFICATION.—In the case of the authorization contained in the table in section 2201 of the Military Construction Authorization Act for Fiscal Year 2024 (division B of Public Law 118–31; 137 Stat. 714) for construction of a Water Treatment Plant at Marine Corps Base Quantico, Virginia, the Secretary of the Navy may construct 20,000 linear feet of water supply lines, three pump houses (non-occupied), and one 2,300 square foot pump station/multi-purpose building (occupied) in lieu of a water treatment plant at the installation.

(b) EXTENSION.—Such authorization shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

SEC. 2207. MODIFICATION OF AUTHORITY TO CARRY OUT FISCAL YEAR 2026 PROJECT AT PACIFIC MISSILE RANGE FACILITY BARKING SANDS, HAWAII.

In the case of the authorization contained in the table in section 2201 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat. 1268) for construction of PDI: Airfield Pavement Upgrades at Pacific Missile Range Facility Barking Sands, Hawaii, the Secretary of the Navy may expand airfield pavement areas to 280,000 square meters to mitigate the risk of aircraft hydroplane.

SEC. 2208. TRANSFER OF AMOUNTS FOR MITIGATION FOR PROJECTS LOCATED AT PUGET SOUND NAVAL SHIPYARD, BREMERTON, WASHINGTON.

Not later than one year after the date of enactment of the National Defense Authorization Act for Fiscal Year 2027, the Secretary of the Navy shall transfer $42,000,000 of amounts authorized to be appropriated for fiscal year 2027 to the Secretary of the Navy to carry out the P454 military construction project (as authorized in the table in section 2201 of this Act) to an account for mitigation efforts not otherwise authorized by law relating to the projects known as ''Multi-Mission Drydock'' and ''Pier 2'' located at or near the Puget Sound Naval Ship-

yard in Bremerton, Washington, as described in the memorandum of the Assistant Secretary of the Navy signed on April 29, 2026.

TITLE XXIII—AIR FORCE MILITARY CONSTRUCTION

SEC. 2301. AUTHORIZED AIR FORCE CONSTRUCTION AND LAND ACQUISITION PROJECTS.

(a) INSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropriations in section 2303(a) and available for military construction projects inside the United States as specified in the funding table in section 4601, the Secretary of the Air Force may acquire real property and carry out military construction projects for the installations or locations inside the United States, and in the amounts, set forth in the following table:

Air Force: Inside the United States

State	Installation or Location	Amount
Alabama	Redstone Arsenal	$2,050,000,000
Alaska	Joint Base Elmendorf-Richardson	$2,066,050,000
	Eielson Air Force Base	$91,000,000
Arkansas	Little Rock Air Force Base	$27,000,000
California	Edwards Air Force Base	$4,500,000
Colorado	Schriever Space Force Base	$250,000,000
Florida	Tyndall Air Force Base	$160,000,000
	Eglin Air Force Base	$87,800,000
	Cape Canaveral Space Force Station	$409,800,000
Georgia	Moody Air Force Base	$15,870,000
Mississippi	Columbus Air Force Base	$11,800,000
Missouri	Whiteman Air Force Base	$169,000,000
Montana	Malmstrom Air Force Base	$1,390,000,000
Nevada	Nellis Air Force Base	$730,700,000
	Creech Air Force Base	$91,000,000
New Jersey	Joint Base McGuire-Dix-Lakehurst	$22,500,000
New Mexico	Kirtland Air Force Base	$250,000,000
North Dakota	Grand Forks Air Force Base	$250,000,000
	Minot Air Force Base	$232,000,000
Oklahoma	Tinker Air Force Base	$110,000,000
Tennessee	Arnold Air Force Base	$20,000,000

Air Force: Inside the United States—Continued

State	Installation or Location	Amount
Texas	Joint Base San Antonio	$180,000,000
	Lackland Air Force Base	$96,000,000
	Dyess Air Force Base	$386,000,000
Virginia	Joint Base Langley-Eustis	$49,000,000
Wake Island	Wake Island	$335,000,000
Wyoming	F.E. Warren Air Force Base	$171,000,000

(b) OUTSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropriations in section 2303(a) and available for military construction projects outside the United States as specified in the funding table in section 4601, the Secretary of the Air Force may acquire real property and carry out military construction projects for the installations or locations outside the United States, and in the amounts, set forth in the following table:

Air Force: Outside the United States

Country	Installation or Location	Amount
Djibouti	Chabelley Airfield	$27,000,000
Japan	Kadena Air Base	$99,000,000
Spain	Moron Air Base	$156,000,000

SEC. 2302. FAMILY HOUSING.

(a) CONSTRUCTION AND ACQUISITION.—Using amounts appropriated pursuant to the authorization of appropriations in section 2303(a) and available for military family housing functions as specified in the funding table in section 4601, the Secretary of the Air Force may construct or acquire family housing units (including land acquisition and supporting facilities) at the installations or

locations and in the amounts set forth in the following table:

Air Force: Family Housing

Country	Installation	Amount
United Kingdom	Royal Air Force Croughton	$24,104,000

(b) PLANNING AND DESIGN.—Using amounts appropriated pursuant to the authorization of appropriations in section 2303(a) and available for military family housing functions as specified in the funding table in section 4601, the Secretary of the Air Force may carry out architectural and engineering services and construction design activities with respect to the construction or improvement of family housing units in an amount not to exceed $25,854,000.

SEC. 2303. AUTHORIZATION OF APPROPRIATIONS, AIR FORCE.

(a) AUTHORIZATION OF APPROPRIATIONS.—Funds are hereby authorized to be appropriated for fiscal years beginning after September 30, 2026, for military construction, land acquisition, and military family housing functions of the Department of the Air Force, as specified in the funding table in section 4601.

(b) LIMITATION ON TOTAL COST OF CONSTRUCTION PROJECTS.—Notwithstanding the cost variations authorized by section 2853 of title 10, United States Code, and any other cost variation authorized by law, the total cost of all projects carried out under sections 2301 and 2302

of this Act may not exceed the total amount authorized to be appropriated under subsection (a), as specified in the funding table in section 4601.

SEC. 2304. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2019 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2019 (division B of Public Law 115–232; 132 Stat. 2240), the authorizations set forth in the table in subsection (b), as provided in section 2903 of that Act (132 Stat. 2287) and most recently extended by section 2305 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat. 1274), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Air Force: Extension of 2019 Project Authorizations

Country	Installation or Location	Project	Original Authorized Amount
United Kingdom	Royal Air Force Fairford	EDI: Construct DABS-FEV Storage	$87,000,000
		EDI: Munitions Holding Area	$19,000,000

SEC. 2305. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2020 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2020 (division B of Public Law 116–92; 133 Stat. 1862), the authorizations set forth in the table in subsection (b), as provided in sections 2301(a) and 2912(a) of that Act (133 Stat. 1867, 1913), and most recently extended by section 2306 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat. 1275), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Air Force: Extension of 2020 Project Authorizations

State	Installation or Location	Project	Original Authorized Amount
Florida	Tyndall Air Force Base	Deployment Center/ Flight Line Dining/AAFES	$43,000,000
Georgia	Moody Air Force Base	41 RQS HH–60W Apron	$12,500,000

SEC. 2306. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2023 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal

Year 2023 (division B of Public Law 117–263; 136 Stat. 2970), the authorizations set forth in the table in subsection (b), as provided in section 2301 of that Act (136 Stat. 2978), and extended by section 2308 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat. 1272), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Air Force: Extension of 2023 Project Authorizations

State/ Country	Installation or Location	Project	Original Authorized Amount
Florida	Patrick Space Force Base	Consolidated Communications Center	$97,000,000
Norway	Rygge Air Station	EDI: Base Perimeter Security Fence	$8,200,000
Texas	Joint Base San Antonio-Randolph	Child Development Center	$29,000,000

SEC. 2307. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2024 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2024 (division B of Public Law 118–31; 137 Stat. 709), the authorizations set forth in the table in subsection (b), as provided in sections 2301 and 2302 of that

Act (136 Stat. 719), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Air Force: Extension of 2024 Project Authorizations

State/Country	Installation or Location	Project	Original Authorized Amount
Alabama	Maxwell Air Force Base	MHPI Restructure AETC Group II	$65,000,000
Colorado	U.S. Air Force Academy	Construction Improvement	$9,282,000
Florida	Eglin Air Force Base	LRSO Hardware Software Development and Test Facility	$15,500,000
	MacDill Air Force Base	KC-46A ADAL Aircraft Corrosion Control	$25,000,000
		KC-46A ADAL Aircraft Maintenance Hangar	$27,000,000
		KC-46A ADAL Apron and Hydrant Fueling Pits	$78,000,000
		KC-46A ADAL Fuel System Maintenance Dock	$18,000,000
Guam	Joint Region Marianas	PDI: North Aircraft Parking Ramp (INC)	$411,000,000
Hawaii	Joint Base Pearl Harbor-Hickam	MHPI Restructure–Joint Base Pearl Harbor-Hickam	$75,000,000
Massachusetts	Hanscom Air Force Base	Child Development Center	$37,000,000
Mississippi	Keesler Air Force Base	MHPI Restructure-Southern Group	$80,000,000
Montana	Malmstrom Air Force Base	Fire Station Bay/Storage Area	$10,300,000
Norway	Rygge Air Station	EDI: DABS-FEV Storage	$96,000,000
		EDI: Munitions Storage Area	$40,000,000
Spain	Morón Air Base	EDI: Munitions Storage	$34,000,000
Texas	Joint Base San Antonio-Lackland	BMT-Chapel For America's Airmen	$90,000,000

Air Force: Extension of 2024 Project Authorizations—Continued

State/Country	Installation or Location	Project	Original Authorized Amount
United Kingdom	Royal Air Force Fairford	EDI: RADR Storage Facility	$67,000,000
	Royal Air Force Lakenheath	EDI: RADR Storage Facility	$51,000,000
Wyoming	F.E. Warren Air Force Base	GBSD Integrated Training Center	$85,000,000

SEC. 2308. AUTHORITY TO CARRY OUT PROJECT AT EGLIN AIR FORCE BASE, FLORIDA.

The Secretary of the Air Force may carry out a military construction project to construct a 6,934 square meter Joint All-Domain Command and Control (JADC2) and Air Battle Management Systems (ABMS) Test Facility at Eglin Air Force Base, Florida, in the amount of $87,800,000 using funds made available in fiscal year 2027, or any subsequent fiscal year, for research, development, test, and evaluation.

TITLE XXIV—DEFENSE AGENCIES MILITARY CONSTRUCTION

SEC. 2401. AUTHORIZED DEFENSE AGENCIES CONSTRUCTION AND LAND ACQUISITION PROJECTS.

(a) INSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropriations in section 2403(a) and available for military con-

struction projects inside the United States as specified in the funding table in section 4601, the Secretary of Defense may acquire real property and carry out military construction projects for the installations or locations inside the United States, and in the amounts, set forth in the following table:

Defense Agencies: Inside the United States

State	Installation or Location	Amount
Alabama	Maxwell Air Force Base	$44,000,000
Colorado	Def Reutil and Mktg Ofc-Colorado Springs	$85,000,000
Florida	Naval Air Station Jacksonville	$40,000,000
Guam	Joint Region Marianas	$315,286,000
Kentucky	Fort Knox	$117,000,000
Maryland	Bethesda Naval Hospital	$415,739,000
	Fort Meade	$1,393,465,000
Nevada	Creech Air Force Base	$25,381,000
North Carolina	Camp Lejeune	$72,000,000
	Fort Bragg	$115,000,000
Utah	Camp Williams	$471,000,000
Virginia	Joint Expeditionary Base Little Creek-Fort Story	$36,000,000
Wake Island	Wake Island	$1,652,000,000
Washington	Joint Base Lewis-McChord	$35,000,000

(b) OUTSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropriations in section 2403(a) and available for military construction projects outside the United States as specified in the funding table in section 4601, the Secretary of Defense may acquire real property and carry out military construction projects for the installations or locations outside the United States, and in the amounts, set forth in the following table:

Defense Agencies: Outside the United States

Country	Installation or Location	Amount
Belgium	Brussels	$33,000,000
Germany	Baumholder	$140,000,000
	Ramstein Air Base	$20,500,000
Japan	Yokota Air Base	$88,200,000

Defense Agencies: Outside the United States—Continued

Country	Installation or Location	Amount
	Camp Butler	$37,900,000
Korea	Kunsan Air Base	$65,000,000
United Kingdom	Menwith Hill Station	$35,000,000

SEC. 2402. AUTHORIZED ENERGY RESILIENCE AND CONSERVATION INVESTMENT PROGRAM PROJECTS.

(a) INSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropriations in section 2403(a) and available for energy conservation projects as specified in the funding table in section 4601, the Secretary of Defense may carry out energy conservation projects under chapter 173 of title 10, United States Code, for the installations or locations inside the United States, and in the amounts, set forth in the following table:

ERCIP Projects: Inside the United States

State	Installation or Location	Amount
Alabama	Redstone Arsenal	$90,000,000
California	Camp Roberts	$79,000,000
Florida	Eglin Air Force Base	$43,000,000
Pennsylvania	Defense Distribution Center, Susquehanna	$58,000,000
Puerto Rico	Fort Buchanan	$33,500,000
Texas	Brooks Army Medical Center	$55,500,000
Washington	Naval Base Kitsap	$132,690,000
	Yakima Training Center	$73,000,000
Wyoming	F.E. Warren Air Force Base	$51,717,000

(b) OUTSIDE THE UNITED STATES.—Using amounts appropriated pursuant to the authorization of appropriations in section 2403(a) and available for energy conservation projects as specified in the funding table in section 4601, the Secretary of Defense may carry out energy con-

servation projects under chapter 173 of title 10, United States Code, for the installations or locations outside the United States, and in the amounts, set forth in the following table:

ERCIP Projects: Outside the United States

Country	Installation or Location	Amount
Bahrain	Naval Support Activity Bahrain	$5,900,000
Germany	Army Garrison Ansbach	$72,000,000

SEC. 2403. AUTHORIZATION OF APPROPRIATIONS, DEFENSE AGENCIES.

(a) AUTHORIZATION OF APPROPRIATIONS.—Funds are hereby authorized to be appropriated for fiscal years beginning after September 30, 2026, for military construction, land acquisition, and military family housing functions of the Department of Defense (other than the military departments), as specified in the funding table in section 4601.

(b) LIMITATION ON TOTAL COST OF CONSTRUCTION PROJECTS.—Notwithstanding the cost variations authorized by section 2853 of title 10, United States Code, and any other cost variation authorized by law, the total cost of all projects carried out under sections 2401 and 2402 of this Act may not exceed the total amount authorized to be appropriated under subsection (a), as specified in the funding table in section 4601.

SEC. 2404. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2023 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2023 (division B of Public Law 117–263; 136 Stat. 2970), the authorizations set forth in the table in subsection (b), as provided in section 2402 of that Act (136 Stat. 2983) and most recently extended by section 2406 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat. 1281), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

ERCIP Projects: Extension of 2023 Project Authorizations

State/Country	Installation or Location	Project	Original Authorized Amount
California	Marine Corps Mountain Warfare Training Center	Microgrid and Backup Power	$25,560,000
Florida	Naval Air Station Jacksonville	Facility Energy Operations Center Renovation	$2,400,000
Georgia	Fort Stewart-Hunter Army Airfield	Power Generation and Microgrid	$25,400,000
	Naval Submarine Base Kings Bay	SCADA Modernization	$11,200,000
Texas	Fort Hood	Power Generation and Microgrid	$31,500,000

SEC. 2405. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2024 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2024 (division B of Public Law 118–31; 137 Stat. 709), the authorizations set forth in the table in subsection (b), as provided in sections 2401 and 2402 of that Act (137 Stat. 726, 727), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

Defense Agencies and ERCIP Projects: Extension of 2024 Project Authorizations

State/Country	Installation or Location	Project	Original Authorized Amount
California	Marine Corps Air Station Miramar	Electrical Infrastructure, On-Site Generation, and Microgrid Improvements	$30,550,000
	Vandenberg Space Force Base	Microgrid and Backup Power	$57,000,000
Georgia	Naval Submarine Base Kings Bay	Electrical Transmission and Distribution Improvements, Phase 2	$74,500,000
Kansas	Forbes Field	Microgrid and Backup Power	$5,850,000
Missouri	Lake City Army Ammunition Plant	Microgrid and Backup Power	$80,100,000
Nebraska	Offutt Air Force Base	Microgrid and Backup Power	$41,000,000

Defense Agencies and ERCIP Projects: Extension of 2024 Project Authorizations—Continued

State/Country	Installation or Location	Project	Original Authorized Amount
North Carolina ...	Fort Bragg (Camp Mackall)	Microgrid and Backup Power	$10,500,000
Oklahoma	Fort Sill	Microgrid and Backup Power	$76,650,000
Puerto Rico	Fort Buchanan	Microgrid and Backup Power	$56,000,000
Spain	Naval Station Rota	Bulk Tank Farm, Phase 1	$80,000,000
Texas	Fort Hood	Microgrid and Backup Power	$18,250,000
Wyoming	F.E. Warren Air Force Base	Microgrid and Battery Storage	$25,000,000

TITLE XXV—INTERNATIONAL PROGRAMS

Subtitle A—North Atlantic Treaty Organization Security Investment Program

SEC. 2501. AUTHORIZED NATO CONSTRUCTION AND LAND ACQUISITION PROJECTS.

The Secretary of Defense may make contributions for the North Atlantic Treaty Organization Security Investment Program as provided in section 2806 of title 10, United States Code, in an amount not to exceed the sum of the amount collected from the North Atlantic Treaty Organization as a result of construction previously financed by the United States, and in the amounts, set forth in the following table:

North Atlantic Treaty Organization Security Investment Program

Country	Installation or Location	Amount
Worldwide Unspecified	NATO Security Investment Program	$604,270,000

SEC. 2502. AUTHORIZATION OF APPROPRIATIONS, NATO.

Funds are hereby authorized to be appropriated for fiscal years beginning after September 30, 2026, for contributions by the Secretary of Defense under section 2806 of title 10, United States Code, for the share of the United States of the cost of projects for the North Atlantic Treaty Organization Security Investment Program authorized by section 2501 as specified in the funding table in section 4601.

Subtitle B—Host Country In-Kind Contributions

SEC. 2511. REPUBLIC OF KOREA FUNDED CONSTRUCTION PROJECTS.

Pursuant to agreement with the Republic of Korea for required in-kind contributions, the Secretary of Defense may accept military construction projects for the installations or locations in the Republic of Korea, and in the amounts, set forth in the following table:

Republic of Korea Funded Construction Projects

Component	Installation or Location	Project	Amount
Air Force	Osan Air Base	Consolidated Aircraft Maintenance Facility, Phase 1.	$78,000,000
Air Force	Osan Air Base	Upgrade Electrical Distribution, East, Phase 2.	$103,000,000

Republic of Korea Funded Construction Projects—Continued

Component	Installation or Location	Project	Amount
Army	Camp Walker	Elementary School	$91,000,000
Army	USAG Humphreys.	POL Pipeline	$35,000,000
Marine Corps	Camp Mujuk	Administrative District Access Control Point.	$18,500,000
Marine Corps	Yecheon Air Base	Replace Concrete Apron	$47,000,000
Navy	CFA Chinhae	Enlisted Unaccompanied Personnel Housing.	$44,000,000

SEC. 2512. REPUBLIC OF POLAND FUNDED CONSTRUCTION PROJECTS.

Pursuant to agreement with the Republic of Poland for required in-kind contributions, the Secretary of Defense may accept military construction projects for the installations or locations in the Republic of Poland, and in the amounts, set forth in the following table:

Republic of Poland Funded Construction Projects

Component	Installation or Location	Project	Amount
Air Force	Wroclaw	Dormitory and Multi-Use Support Building.	$32,000,000
Army	Powdiz	Rotary Wing Maintenance Hangars.	$102,000,000

TITLE XXVI—GUARD AND RESERVE FORCES FACILITIES

SEC. 2601. AUTHORIZED ARMY NATIONAL GUARD CONSTRUCTION AND LAND ACQUISITION PROJECTS.

Using amounts appropriated pursuant to the authorization of appropriations in section 2606 and available for the National Guard and Reserve as specified in the funding table in section 4601, the Secretary of the Army may

acquire real property and carry out military construction projects for the Army National Guard locations inside the United States, and in the amounts, set forth in the following table:

Army National Guard: Inside the United States

State	Location	Amount
Florida	Camp Blanding	$28,000,000
Guam	Barrigada	$20,000,000
Idaho	Orchard Training Area	$27,000,000
Illinois	Peoria	$8,000,000
Louisiana	Abbeville Readiness Center	$23,000,000
Massachusetts	Camp Edwards	$43,000,000
Oklahoma	Tulsa Army Aviation Support Facility	$18,500,000
Washington	Yakima Training Center	$18,000,000
West Virginia	Martinsburg Readiness Center	$20,000,000
Wisconsin	Black River Falls	$20,000,000

SEC. 2602. AUTHORIZED ARMY RESERVE CONSTRUCTION AND LAND ACQUISITION PROJECTS.

Using amounts appropriated pursuant to the authorization of appropriations in section 2606 and available for the National Guard and Reserve as specified in the funding table in section 4601, the Secretary of the Army may acquire real property and carry out military construction projects for the Army Reserve locations inside the United States, and in the amounts, set forth in the following table:

Army Reserve: Inside the United States

State	Location	Amount
Colorado	Fort Carson	$92,000,000
Illinois	Fort Sheridan	$38,000,000
Virginia	Richmond Reserve Center	$48,000,000

SEC. 2603. AUTHORIZED NAVY RESERVE AND MARINE CORPS RESERVE CONSTRUCTION AND LAND ACQUISITION PROJECTS.

Using amounts appropriated pursuant to the authorization of appropriations in section 2606 and available for the National Guard and Reserve as specified in the funding table in section 4601, the Secretary of the Navy may acquire real property and carry out military construction project for the Navy Reserve and Marine Corps Reserve location inside the United States, and in the amount, set forth in the following table:

Navy Reserve and Marine Corps Reserve: Inside the United States

State	Location	Amount
Florida	Naval Air Station Jacksonville	$47,000,000

SEC. 2604. AUTHORIZED AIR NATIONAL GUARD CONSTRUCTION AND LAND ACQUISITION PROJECTS.

Using amounts appropriated pursuant to the authorization of appropriations in section 2606 and available for the National Guard and Reserve as specified in the funding table in section 4601, the Secretary of the Air Force may acquire real property and carry out military construction projects for the Air National Guard locations inside the United States, and in the amounts, set forth in the following table:

Air National Guard: Inside the United States

State	Location	Amount
Alaska	Eielson Air Force Base	$16,000,000
Michigan	Selfridge Air National Guard Base	$425,000,000
Missouri	Rosecrans Air National Guard Base	$63,000,000
Texas	Naval Air Station Joint Reserve Base Fort Worth.	$27,000,000

SEC. 2605. AUTHORIZED AIR FORCE RESERVE CONSTRUCTION AND LAND ACQUISITION PROJECTS.

Using amounts appropriated pursuant to the authorization of appropriations in section 2606 and available for the National Guard and Reserve as specified in the funding table in section 4601, the Secretary of the Air Force may acquire real property and carry out military construction projects for the Air Force Reserve locations inside the United States, and in the amounts, set forth in the following table:

Air Force Reserve: Inside the United States

State	Location	Amount
Pennsylvania	Pittsburgh Air Reserve Station	$19,500,000

SEC. 2606. AUTHORIZATION OF APPROPRIATIONS, NATIONAL GUARD AND RESERVE.

Funds are hereby authorized to be appropriated for fiscal years beginning after September 30, 2026, for the costs of acquisition, architectural and engineering services, and construction of facilities for the Guard and Reserve Forces, and for contributions therefor, under chapter 1803 of title 10, United States Code (including the cost

of acquisition of land for those facilities), as specified in the funding table in section 4601.

SEC. 2607. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2023 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2023 (division B of Public Law 117–263; 136 Stat. 2970), the authorizations set forth in the table in subsection (b), as provided in sections 2601, 2602, 2603 and 2604 of that Act (136 Stat. 2986–2987) and extended by section 2607 of the Military Construction Authorization Act for Fiscal Year 2026 (division B of Public Law 119–60; 139 Stat. 1287), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

National Guard and Reserve: Extension of 2023 Project Authorizations

State/Country	Installation or Location	Project	Original Authorized Amount
Alaska	Joint Base Elmendorf-Richardson	Aircraft Maintenance Hangar	$63,000,000
Arizona	Morris Air National Guard Base	Base Entry Complex	$12,000,000
	Tucson International Airport	Land Acquisition	$11,700,000
Arkansas	Camp Robinson	Automated Multipurpose Machine Gun Range	$9,500,000

National Guard and Reserve: Extension of 2023 Project Authorizations—Continued

State/Country	Installation or Location	Project	Original Authorized Amount
Florida	Gainesville	National Guard Readiness Center	$21,000,000
	Perrine	Army Reserve Center/ AMSA	$46,000,000
Hawaii	Marine Corps Base Kaneohe Bay	C–40 Aircraft Maintenance Hangar	$116,964,000
Indiana	Fort Wayne International Airport	Munitions Maintenance and Storage Complex	$16,500,000
Puerto Rico	Camp Santiago Joint Maneuver Training Center	Engineering/Housing Maintenance Shops (DPW)	$14,500,000
West Virginia	McLaughlin Air National Guard Base	C–130J Apron Expansion	$12,500,000

SEC. 2608. EXTENSION OF AUTHORITY TO CARRY OUT CERTAIN FISCAL YEAR 2024 PROJECTS.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2024 (division B of Public Law 118–31; 137 Stat. 709), the authorizations set forth in the table in subsection (b), as provided in sections 2601, 2602, 2604, and 2605 of that Act (137 Stat. 735–737), shall remain in effect until October 1, 2027, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2028, whichever is later.

(b) TABLE.—The table referred to in subsection (a) is as follows:

National Guard and Reserve: Extension of 2024 Project Authorizations

State/Country	Installation or Location	Project	Original Authorized Amount
Alabama	Birmingham	Army Reserve Center/ AMSA/Land	$57,000,000
Arizona	Davis-Monthan Air Force Base	Guardian Angel POTFF Facility	$8,500,000
Arkansas	Ebbing Air National Guard Base	3-Bay Hangar	$54,000,000
		Special Access Program Facility	$21,989,000
Florida	Camp Blanding	Multipurpose Machine Gun Range	$11,000,000
Indiana	Fort Wayne International Airport	Fire Station	$8,900,000
New Mexico	Rio Rancho Training Site	National Guard Vehicle Maintenance Shop Addition	$11,000,000
Oregon	Portland International Airport	Special Tactics Complex, Phase 1	$23,000,000
		Special Tactics Complex, Phase 2	$21,000,000
		Special Tactics Complex, Phase 3	$24,000,000
		Special Tactics Complex, Phase 4	$11,000,000
Pennsylvania	Hermitage Readiness Center	National Guard Readiness Center	$13,600,000
Rhode Island	Quonset Point	National Guard Readiness Center	$41,000,000
South Carolina	Aiken County Readiness Center	National Guard Readiness Center	$20,000,000
	McCrady Training Site	Automated Multipurpose Machine Gun Range	$7,900,000
Texas	Naval Air Station Joint Reserve Base Fort Worth	LRS Warehouse	$16,000,000

SEC. 2609. MODIFICATION OF AUTHORITY TO CARRY OUT FISCAL YEAR 2026 PROJECT AT COLONIE, NEW YORK.

In the case of the authorization contained in the table in section 2601 of the Military Construction Authorization

Act for Fiscal Year 2026 (Division B of Public Law 119–60; 139 Stat. 1264) for Albany, New York, for construction of a readiness center as specified in the funding table in section 4601 of such Act, the Secretary of the Army may construct a readiness center at Colonie, New York.

SEC. 2610. EXTENSION AND MODIFICATION OF AUTHORITY TO CARRY OUT FISCAL YEAR 2022 PROJECT AT SUMPTER SMITH AIR NATIONAL GUARD BASE, BIRMINGHAM, ALABAMA.

(a) EXTENSION.—Notwithstanding section 2002 of the Military Construction Authorization Act for Fiscal Year 2022 (division B of Public Law 117-81; 135 Stat. 2161) the authorization set forth in the table in subsection (c), as provided in section 2604 of that Act (135 Stat. 2179), shall remain in effect until October 1, 2028, or the date of the enactment of an Act authorizing funds for military construction for fiscal year 2029, whichever is later.

(b) MODIFICATION OF PROJECT AMOUNTS.—

(1) PROJECT AUTHORIZATION.—The authorization table in section 2604 of the Military Construction Authorization Act for Fiscal Year 2022 (division B of Public Law 117–81; 135 Stat. 2179) is amended in the item relating to Sumpter Smith Air National Guard Base, Alabama, by striking the dollar amount and inserting ''$15,000,000''.

(2) FUNDING AUTHORIZATION.—The funding table in section 4601 of the National Defense Authorization Act for Fiscal Year 2022 is amended in the item relating to Sumpter Smith Air National Guard Base, Alabama—

(A) by striking the dollar amount and inserting ''$15,000,000''; and

(B) by striking ''security and''.

(c) TABLE.—The table referred to in subsection (a) is as follows:

Air National Guard: Extension of 2022 Project Authorization

State/ Country	Installation or Location	Project	Original Authorized Amount
Alabama	Sumpter Smith Air National Guard Base	Services Training Facility	$7,500,000

TITLE XXVII—BASE REALIGNMENT AND CLOSURE ACTIVITIES

SEC. 2701. AUTHORIZATION OF APPROPRIATIONS FOR BASE REALIGNMENT AND CLOSURE ACTIVITIES FUNDED THROUGH DEPARTMENT OF DEFENSE BASE CLOSURE ACCOUNT.

Funds are hereby authorized to be appropriated for fiscal years beginning after September 30, 2026, for base realignment and closure activities, including real property acquisition and military construction projects, as author-

ized by the Defense Base Closure and Realignment Act of 1990 (part A of title XXIX of Public Law 101–510; 10 U.S.C. 2687 note) and funded through the Department of Defense Base Closure Account established by section 2906 of such Act (as amended by section 2711 of the Military Construction Authorization Act for Fiscal Year 2013 (division B of Public Law 112–239; 126 Stat. 2140)), as specified in the funding table in section 4601.

TITLE XXVIII—MILITARY CONSTRUCTION GENERAL PROVISIONS

Subtitle A—Military Construction Programs

SEC. 2801. EXECUTION OF PROJECTS UNDER THE NORTH ATLANTIC TREATY ORGANIZATION SECURITY INVESTMENT PROGRAM.

Section 2350q of title 10, United States Code, is amended—

(1) in subsection (d), by striking ''The construction agent'' and all that follows through ''to execute'' and inserting ''The head of the contracting activity for the Department of Defense executing''; and

(2) in subsection (e), by striking ''construction agent designated by the Department of Defense'' and inserting ''head of the contracting activity''.

SEC. 2802. INCLUSION OF TRIBAL GOVERNMENTS IN DEFENSE COMMUNITY INFRASTRUCTURE PROGRAM.

Section 2391 of title 10, United States Code, is amended—

(1) in subsection (d)—

(A) in paragraph (1)(A), by inserting '' Indian tribes,'' after ''local governments,''; and

(B) in paragraph (2)(B), by striking ''or local government'' each place such term appears and inserting ''government, local government, or Indian tribe,''; and

(2) in subsection (e)—

(A) in paragraph (4)(A)(ii)(I), by striking ''or local government'' and inserting ''government, local government, or Indian tribe''; and

(B) by adding at the end the following new paragraph:

''(7) The term 'Indian tribe' has the meaning given that term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).''.

SEC. 2803. BRIEFING REQUIRED FOR CERTAIN BASING ACTIONS OF THE DEPARTMENT OF THE AIR FORCE.

Section 2392 of title 10, United States Code, is amended—

(1) by redesignating subsection (f) as subsection (g); and

(2) by inserting after subsection (e) the following new subsection:

''(f) BRIEFING REQUIRED FOR COVERED BASING ACTIONS.—(1) Not later than 15 days after any date on which the Secretary notifies the Committees on Armed Services of the House of Representatives and the Senate of a covered basing action, the Secretary shall provide to Congress a briefing with respect to the covered basing action that includes—

''(A) an identification of the affected basing action, military installation, and unit or weapons system;

''(B) an identification of the authority of the Secretary pursuant to which the covered basing action will be carried out;

''(C) an explanation of the reasons the covered basing action is not in compliance with the process for strategic basing actions under this section;

"(D) an assessment of potential consequences of the covered basing action, including how the covered basing decision may conflict with—

"(i) planning of the Department of the Air Force; and

"(ii) timelines for other military installations, units, or weapons systems;

"(E) an assessment of the military installation in receipt of units or weapons systems pursuant to the covered basing action, including—

"(i) whether the military installation is in compliance with applicable environmental protection laws;

"(ii) the amount of appropriations for military construction needed for the military installation;

"(iii) any deficiencies in infrastructure on the military installation with respect to—

"(I) operational capacity;

"(II) training capacity and requirements; and

"(III) funding.

"(2) In this subsection, the term 'covered basing action' means a basing action that—

''(A) is not approved by the strategic basing panel and strategic basing executive steering group pursuant to this section; and

''(B) the Secretary of the Air Force received direction to implement prior to completing the process for strategic basing actions under this section.''.

SEC. 2804. UNSPECIFIED MINOR MILITARY CONSTRUCTION DOLLAR THRESHOLDS.

(a) IN GENERAL.—Section 2805(a)(2) of title 10, United States Code, is amended by striking ''$9,000,000'' and inserting ''$12,000,000''.

(b) LABORATORY REVITALIZATION.—Section 2805(d) of title 10, United States Code, is amended by striking ''$9,000,000'' each place it appears and inserting ''$15,000,000''.

(c) ADJUSTMENT OF DOLLAR LIMITATIONS.—Section 2805(f) of title 10, United States Code, is amended—

(1) by striking ''FOR LOCATION'' and all that follows through ''Each fiscal year'' and inserting ''Each fiscal year''; and

(2) by striking ''may exceed'' and all that follows through the period at the end and inserting the following: ''may exceed—

''(1) with respect to a project described in subsection (d), 150 percent of the dollar amount specified in such subsection; and

''(2) with respect to any other project described in subsection (a)(2), 150 percent of the dollar amount specified in such subsection.''.

SEC. 2805. REPEAL OF LIMITATION ON AVAILABLE FUNDS FOR RESEARCH, DEVELOPMENT, TEST, AND EVALUATION MILITARY CONSTRUCTION PROJECTS.

(a) IN GENERAL.—Section 2810(f)(5) of title 10, United States Code, is repealed.

(b) APPLICABILITY.—The amendment made by subsection (a) shall apply with respect to amounts made available for research, development, test, and evaluation on or after the date of the enactment of this section.

SEC. 2806. MODIFICATION OF APPROVAL AND NOTIFICATION THRESHOLDS FOR REPAIR PROJECTS ON MILITARY FACILITIES.

Section 2811(b) of title 10, United States Code, is amended by striking ''$7,500,000'' and inserting ''$20,000,000''.

SEC. 2807. DEPARTMENT OF DEFENSE MILITARY INSTALLATION STORMWATER PROJECT ACCELERATION PROGRAM.

(a) ESTABLISHMENT OF PROGRAM.—Subchapter I of chapter 169 of title 10, United States Code, is amended by inserting after section 2815a the following new section:

"§ 2815b. Military Installation Stormwater Project Acceleration Program

''(a) ESTABLISHMENT.—The Secretary of Defense shall carry out a program to be known as the 'Military Installation Stormwater Project Acceleration Program' (in this section referred to as the 'Program').

''(b) ACTIVITIES.—Under the Program, the Secretary shall—

''(1) establish procedures to accelerate the planning for and implementation of military construction projects described in subsection (c); and

''(2) provide supplemental funding to military construction projects described in such subsection.

''(c) MILITARY CONSTRUCTION PROJECT DESCRIBED.—A military construction project described in this subsection is a military construction project that is—

''(1) specified in the military installation resilience component of a military installation master plan developed pursuant to section 2864(a);

''(2) identified as a potential military installation resilience project under section 2815 of this title;

''(3) identified as a stormwater management project under section 2815a of this title; or

''(4) identified as suitable to preserve or enhance defense access roads in accordance with section 210 of title 23.

''(d) MERIT-BASED CRITERIA.—The Secretary shall establish merit-based criteria for use in the selection of military construction projects to receive funding under the Program.

''(e) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to require or enable any official of the Department of Defense to provide funding under this section pursuant to—

''(1) a community project funding request; or

''(2) a congressionally directed spending item (as defined in the Standing Rules of the Senate).

''(f) ANNUAL REPORT.—Not later than March 1 of the first calendar year beginning after the date of the enactment of this section, and on an annual basis thereafter, the Secretary shall submit to the Committees on Armed Services of the Senate and the House of Representatives

a report on the Program. Each such report shall include the following:

''(1) A description of the nature and status of the military construction projects or actions undertaken in whole or part with funds appropriated for the Program.

''(2) An assessment of the effectiveness of such military construction projects or actions as part of a long-term strategy—

''(A) to prevent flooding on—

''(i) military installations;

''(ii) key supporting civilian infrastructure; and

''(iii) and defense access roads; and

''(B) to improve the management of stormwater on or related to a military installation.

''(3) An evaluation of the methodology and criteria used to select and establish priorities for military construction projects and actions funded in whole or part with funds appropriated for the Program.

''(4) Such recommendations as the Secretary determines appropriate for legislative or administra-

tive actions to improve the efficiency and effectiveness of the Program.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such subchapter is amended by inserting after the item relating to section 2815a the following new item:

''2815b. Military Installation Stormwater Project Acceleration Program.''.

SEC. 2808. EXPANSION OF ANNUAL REPORT ON UNFUNDED REQUIREMENTS FOR CERTAIN MILITARY CONSTRUCTION PROJECTS.

Section 2806 of the National Defense Authorization Act for Fiscal Year 2018 (Public Law 115–91; 10 U.S.C. 222a note) is amended—

(1) by striking ''The Under Secretary of Defense for Research and Engineering'' and inserting the following: ''(a) IN GENERAL.—The Chief of Staff of the Army, the Chief of Naval Operations, and the Chief of Staff of the Air Force, in coordination with the Under Secretary of Defense for Research and Engineering'';

(2) by striking ''order'' and all that follows through the end of the section and inserting ''order.''; and

(3) by adding at the end the following new subsections:

''(b) ELEMENTS.—Each report required under subsection (a) shall include, for each military construction project listed in the report—

''(1) a description that identifies the objectives of the national defense strategy required under section 113(g) of this title and the National Military Strategy required under section 139(b) of this title that would be advanced if the military construction project were funded, in whole or in part;

''(2) a detailed assessment of each specific risk to the execution of the national defense strategy and the National Military Strategy that would be reduced the military construction project were funded, in whole or in part; and

''(3) a Department of Defense Form 1391.

''(c) CONSISTENCY WITH MILITARY CONSTRUCTION REQUIREMENTS.—Information regarding project scope, cost estimate, and design maturity for military construction projects included in a report under subsection (a) shall be prepared and validated in a manner consistent with the requirements applicable to military construction projects included in the budget of the President submitted to Congress under section 1105(a) of title 31.

''(d) CERTIFICATION.—The Secretary of the military department concerned shall certify each military construc-

tion project under the jurisdiction of the Secretary that is listed in a report required under subsection (a) as—

''(1) a valid unfunded military construction requirement of the military department; and

''(2) appropriate for consideration by Congress as part of the unfunded priorities of the military department.''.

Subtitle B—Military Housing Reforms

SEC. 2811. CONGRESSIONAL NOTIFICATION OF WINDOW FALL INCIDENTS IN CERTAIN PRIVATIZED MILITARY HOUSING.

Section 2857(d) of title 10, United States Code, is amended—

(1) by striking ''The Secretary concerned'' and inserting ''(1) The Secretary concerned'';

(2) by inserting ''or any other individual'' after ''minor child''; and

(3) by adding at the end the following new paragraph:

''(2) Not later than 72 hours after any date on which an incident in which a minor child or any other individual falls from a window in a unit of military family housing under the jurisdiction of the Secretary concerned occurs, the Secretary concerned shall submit to the congressional

defense committees a notification that includes, with respect to such incident—

''(A) the date;

''(B) the location;

''(C) the associated circumstances; and

''(D) whether injury or death resulted.''.

SEC. 2812. EXPANSION OF PROTECTIONS AGAINST REPRISAL OR RETALIATION FOR CERTAIN TENANTS OF PRIVATIZED MILITARY HOUSING.

Section 2890 of title 10, United States Code, is amended—

(1) in subsection (b)(7), by striking ''and housing management office'' and inserting ''housing management office, the Chief Housing Officer of the Department of Defense, the Inspector General of the Department of Defense, the Inspector General of the military department concerned, or a Member of Congress''; and

(2) in subsection (e)—

(A) in paragraph (1), by striking ''for reporting an issue relating to a housing unit'' and inserting the following: ''who reports an issue relating to a housing unit to any of the following:

''(A) The landlord.

''(B) The chain of command.

''(C) The applicable housing management office.

''(D) The Chief Housing Officer of the Department of Defense.

''(E) The Inspector General of the Department of Defense.

''(F) The Inspector General of the military department concerned.

''(G) A Member of Congress.''; and

(B) in paragraph (2)—

(i) by redesignating subparagraphs (A) and (B) as subparagraphs (B) and (C), respectively;

(ii) by inserting before subparagraph (B), as so redesignated, the following new subparagraph (A):

''(A) provide notice of that determination to the Secretary of the military department concerned;''; and

(iii) in subparagraph (C), as so redesignated, by striking ''the Inspector General has taken final action'' and inserting ''the Secretary of the military department con-

cerned has notified the Inspector General that the Secretary has taken final action''.

SEC. 2813. TREATMENT OF NONDISCLOSURE AGREEMENTS WITH RESPECT TO PRIVATIZED MILITARY HOUSING.

Section 2890(f) of title 10, United States Code, is amended—

(1) in paragraph (1), in the first sentence—

(A) by striking ''A tenant or prospective tenant of a housing unit may not be required to sign'' and inserting ''A landlord may not request that a tenant, former tenant, or prospective tenant of a housing unit sign''; and

(B) by inserting ''or in connection with the provision of services related to the housing unit'' before the period; and

(2) by striking paragraphs (2) and (3) and inserting the following:

''(2) The prohibition under paragraph (1) shall apply to all housing units, including military family housing and military unaccompanied housing.

''(3) In this subsection, the term 'tenant' includes any party (other than a landlord) to a lease for a housing unit.''.

SEC. 2814. EXPANSION OF PILOT PROGRAM TO INCLUDE AUTHORITY TO REPLACE CERTAIN DEPARTMENT OF DEFENSE LABORATORIES.

Section 2835 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 10 U.S.C. 2821 note) is amended—

(1) in the heading, by striking ''**COVERED MILITARY UNACCOMPANIED HOUSING**'' and inserting ''**DEPARTMENT OF DEFENSE**''; and

(2) in subsection (a)—

(A) by striking '', to replace a covered military unaccompanied housing facility'';

(B) by redesignating paragraphs (1) and (2) as subparagraphs (A) and (B), respectively;

(C) by inserting before subparagraph (A), as so redesignated, the following new paragraph (1):

''(1) to replace a covered military unaccompanied housing facility—'';

(D) in subparagraph (B), as so redesignated, by striking the period at the end and inserting ''; and''; and

(E) by adding at the end the following new paragraph (2):

''(2) to replace a Department of Defense laboratory at which—

''(A) research with respect to science and technology is carried out; or

''(B) test and evaluation activities are conducted.''.

SEC. 2815. MODIFICATION TO PILOT PROGRAM FOR MILITARY CONSTRUCTION PROJECTS TO REPLACE CERTAIN MILITARY UNACCOMPANIED HOUSING FACILITIES.

Section 2835 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 10 USC 2821 note) is amended—

(1) in subsection (a)—

(A) by striking ''a covered military unaccompanied housing facility'';

(B) in paragraph (1), by striking ''that such Secretary determines is'' and inserting ''covered military housing facilities that such Secretary determines are''; and

(C) by striking paragraph (2) and inserting the following:

''(2) facilities in a failed or failing condition which are located within covered depots, or which are directly related to the function or activity managed through the Army Working Capital Fund.'';

(2) in subsection (d), by adding at the end the following new sentence: ''Charges for goods and services provided through a working capital fund may not include amounts necessary to recover costs of military construction projects funded under the pilot program.'';

(3) in subsection (f), by striking ''shall terminate on'' and all that follows through ''this Act'' and inserting ''shall terminate on October 1, 2032''; and

(4) in subsection (g)—

(A) by redesignating paragraph (2) as paragraph (3); and

(B) by inserting after paragraph (1) the following new paragraph (2):

''(3) The term 'covered depot' means a depot specified in paragraph (1) of section 2476(f) of title 10, United States Code.''.

SEC. 2816. ESTABLISHMENT OF TIMELINESS STANDARDS WITH RESPECT TO MAINTENANCE WORK ORDERS FOR COVERED MILITARY UNACCOMPANIED HOUSING; ANNUAL REPORT.

Section 2839 of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) is amended—

(1) in the heading, by inserting ''**; WORK ORDER TIMELINESS STANDARDS**'' after ''**COVERED MILITARY UNACCOMPANIED HOUSING**'';

(2) by redesignating subsections (c) through subsection (e) as subsections (d) through (f), respectively; and

(3) by inserting after subsection (b) the following new subsection:

''(c) WORK ORDER TIMELINESS STANDARDS; ANNUAL REPORT.—

''(1) IN GENERAL.—Not later than July 1, 2027, the Secretary of Defense shall establish Department of Defense-wide timeliness standards for the resolution of work orders for covered military unaccompanied housing.

''(2) ANNUAL REPORT.—In conjunction with the submission of the report under subsection (a) for fiscal year 2028, and on an annual basis thereafter during the reporting requirement under such subsection is effective, the Secretary shall submit to the congressional defense committees a report that includes, for each military installation under the jurisdiction of the Secretary, with respect to the fiscal year that precedes the fiscal year during which the report is submitted, an identification of—

"(A) the total number of work orders for covered military unaccompanied housing resolved within a period that complied with the timeliness standards under paragraph (1);

"(B) the total number of such work orders resolve within a period that did not comply with such timeliness standards;

"(C) the total number of such work orders that remain open at the end of the fiscal year covered by the report;

"(D) the total number of work orders comprising the total numbers under subparagraphs (A) through (C), respectively, that relate to the health and safety of covered military unaccompanied housing;

"(E) the total number of employees with duties that include the maintenance and administration of military unaccompanied housing authorized;

"(F) the total number of authorized positions for employment with such duties that remain open at the end of the fiscal year covered by the report; and

"(G) the total amount obligated or expended on service contracts for the maintenance

and administration of covered military unaccompanied housing.''.

SEC. 2817. EXPANSION OF ELEMENTS INCLUDED IN ANNUAL REPORTS ON THE CONDITION OF COVERED MILITARY UNACCOMPANIED HOUSING.

Section 2839(b) of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31) is amended—

(1) by redesignating paragraph (4) as paragraph (6); and

(2) by inserting after paragraph (3) the following new paragraphs:

''(4) A list of whether each such covered military unaccompanied housing facility located on each military installation under the jurisdiction of the Secretary of the military department concerned complies with the uniform minimum habitability standards for covered military unaccompanied housing as required under section 2856b of title 10, United States Code.

''(5) For such facilities that do not comply with uniform minimum habitability standards—

''(A) a list of elements that are not in compliance;

''(B) the funding required to conduct improvements to meet uniform minimum habitability standards; and

''(C) a five-year plan for carrying out such improvements.''.

SEC. 2818. MODIFICATION TO REQUIRED INVESTMENTS IN IMPROVING MILITARY UNACCOMPANIED HOUSING.

(a) IN GENERAL.—Section 2814 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81) is amended—

(1) in subsection (a)—

(A) by striking ''a covered fiscal year'' and inserting ''the fiscal years specified in subsection (e)''; and

(B) by striking ''five percent'' and inserting ''ten percent'';

(2) by amending subsection (b)(1) to read as follows:

''(1) The term 'military unaccompanied housing' has the meaning given in section 2871 of title 10, United States Code.'';

(3) by redesignating subsection (c) as subsection (e);

(4) by inserting after subsection (b) the following new subsections:

''(c) STANDARDS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall establish a Department-wide standard for tracking the use of facilities sustainment, restoration, and modernization funds for military unaccompanied housing.

''(d) REPORT.—Along with the submission of the budget of the President to Congress under section 1105(a) of title 31, United States Code, the Secretary of Defense shall report on the extent to which each Secretary of a military department is meeting the minimum requirements of this section. The first such report shall include data on the extent to which each Secretary of a military department has met such minimum requirements for each of fiscal years 2022 through 2026.''; and

(5) in subsection (e), by striking ''2026'' and inserting ''2031''.

(b) APPLICABILITY.—This section and the amendments made by this section shall apply with respect to amounts reserved pursuant to section 2814 of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81) on or after October 1, 2026.

SEC. 2819. INAPPLICABILITY OF NATIONAL HISTORIC PRESERVATION ACT TO CERTAIN MILITARY HOUSING.

Section 307104 of title 54, United States Code, is amended to read as follows:

"§ 307104. Inapplicability of division to White House, Supreme Court building, United States Capitol, and certain military housing

''(a) IN GENERAL.—Nothing in this division applies to—

''(1) the White House and its grounds, the Supreme Court building and its grounds; or

''(2) except as provided in subsection (b), any building or structure on a military installation that is or has ever been used as—

''(A) military unaccompanied housing; or

''(B) military family housing,

''(b) EXCEPTION.—The exception under subsection (a) shall not apply to—

''(1) any building or structure described in paragraph (2) of such subsection that is listed on the National Register of Historic Places as of January 20, 2025; or

''(2) any such building or structure the Secretary of Defense specifically exempts from this provision, subject to subsection (c).

''(c) LIMITATION.—

''(1) NUMBER OF EXEMPTIONS.—If the Secretary of Defense elects to make a discretionary exemption under subsection (b), the total number of discretionary exemptions may not exceed one-one-tenth of one percent of the total number of buildings or structures on military installations that are or ever have been used as military unaccompanied housing or military family housing.

''(2) MANAGEMENT OF EXEMPTED BUILDINGS.—Any buildings or structures specifically exempted by the Secretary of Defense pursuant to subsection (b)(1) shall be managed in accordance with this division unless or until the Secretary of Defense elects to remove the discretionary exemption granted to any such building or structure.''.

SEC. 2819A. NOTIFICATION TO TENANTS OF COMPLAINT DATABASE.

Section 2894a(a) of title 10, United States Code, is amended by adding at the end the following new sentence: ''Upon entering into or renewing a lease for a housing unit, the landlord responsible for such unit shall provide a notice to the tenant of such unit of the database established by this section.''

Subtitle C—Real Property and Facilities Administration

SEC. 2821. AUTHORIZATION FOR CERTAIN PLANNING, DESIGN, AND CONSTRUCTION CONTRACTS IN SUPPORT OF MILITARY SERVICE ACADEMIES.

Subchapter I of chapter 134 of title 10, United States Code, is amended by inserting after section 2246 the following new section:

"§ 2247. Authorization for certain planning, design, and construction contracts in support of military service academies

''(a) AUTHORITY.—Subject to subsection (b) and amounts made available in advance for such purpose, and pursuant to such regulations as the Secretary of Defense may prescribe, the Superintendent of a Service Academy may seek to enter into a contract with a covered foundation for the planning, design, construction, equipping, and maintenance of facilities and other projects that support the mission of such Service Academy.

''(b) LIMITATIONS.—Contractual agreements under subsection (a) may be provided only if such agreements—

''(1) are without any liability of the United States to the covered foundation;

''(2) do not affect the ability of any official or employee of the military department concerned to

carry out any responsibility or duty in a fair and objective manner;

''(3) do not compromise the integrity or appearance of integrity of any program of the military department concerned, or any individual involved in such a program;

''(4) comply with the Joint Ethics Regulation; and

''(5) have been reviewed and approved by an attorney of the military department concerned.

''(c) BRIEFING.—In any fiscal year during which the Superintendent of a Service Academy exercises the authority under subsection (a), the Secretary of the military department concerned shall provide a briefing not later than the last day of that fiscal year to the Committees on Armed Services of the Senate and House of Representatives regarding the campus improvement projects initiated during such fiscal year.

''(d) DEFINITIONS.—In this section:

''(1) The term 'covered foundation' means a charitable, educational, or civic nonprofit organization under section 501(c)(3) of the Internal Revenue Code of 1986, that the Secretary concerned determines operates exclusively to support, with respect to a Service Academy, any of the following:

''(A) Recruiting.

''(B) Parent or alumni development.

''(C) Academic, leadership, or character development.

''(D) Institutional development.

''(E) Athletics.

''(2) The term 'Service Academy' has the meaning given such term in section 347 of this title.''.

SEC. 2822. EXEMPTION OF CERTAIN MILITARY INSTALLATIONS FROM GUIDANCE WITH RESPECT TO AGGREGATE SQUARE FOOTAGE REQUIREMENTS.

Section 2849(f) of the National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159; 10 U.S.C. 2802 note) is amended by adding at the end the following new paragraph:

''(5) Military installations undergoing a mission transition as of the date of the enactment of this paragraph.''.

SEC. 2823. MATCHING REQUIREMENT FOR THE PUBLIC SCHOOLS ON MILITARY INSTALLATIONS PROGRAM.

(a) IN GENERAL.—With respect to a grant, cooperative agreement, or supplementary financial assistance provided to a State or local educational agency for a project

to construct, renovate, repair, or expand an elementary or secondary public school on a military installation pursuant to section 8109 of the Consolidated Appropriations Act, 2022 (Public Law 117–103; 136 Stat. 201), the Secretary of Defense shall ensure that the terms of such grant, cooperative agreement, or financial assistance do not require the recipient State or local educational agency to provide a matching contribution in an amount greater than the amount that is equal to 20 percent of the total cost of the project.

(b) RULEMAKING.—The Secretary of Defense shall revise the notice titled ''Department of Defense Program for Construction, Renovation, Repair or Expansion of Public Schools Located on Military Installations'' (76 Fed. Reg. 55883 et seq.; published September 9, 2011) to carry out the requirements of this section.

(c) APPLICABILITY.—Subsection (a) shall apply with respect to a grant awarded, cooperative agreement entered into, or financial assistance provided on or after the date of the enactment of this Act.

SEC. 2824. IMPROVEMENT TO PROCEDURES FOR PROCESSING VISITORS TO DEPARTMENT OF DEFENSE MILITARY INSTALLATIONS.

(a) IN GENERAL.—The Secretary of Defense shall ensure that, at all military installations located inside the United States—

(1) not fewer than one open gate always has the capability and procedures to process visitors for access to the military installation, regardless of whether the installation's primary visitor control center is open; and

(2) personnel at the military installation responsible for security at all open gates are able to direct visitors to the military installation to the appropriate office on the military installation for visitor processing.

(b) MILITARY INSTALLATION DEFINED.—In this section, the term ''military installation'' has the meaning given such term in section 2801 of title 10, United States Code.

SEC. 2825. RESTRICTIONS ON DATA FACILITY EQUIPMENT PLACED ON FACILITIES LEASED FROM THE DEPARTMENT OF DEFENSE.

(a) IN GENERAL.—The Secretary of Defense shall not to enter into an enhanced use lease unless the lease terms prohibit the lessee (and any sublessor or operator

thereof) from installing or operating data facility equipment that contains one or more significant components manufactured in, or by an entity domiciled in or subject to the jurisdiction of, a covered nation.

(b) DEFINITIONS.—In this section:

(1) The term ''covered nation'' shall mean—

(A) China;

(B) Russia;

(C) Iran; or

(D) North Korea.

(2) The term ''data facility'' shall mean any data center, supercomputer, or other facility for the mass storage, processing, or transmission of data.

(3) The term ''enhanced use lease'' means a lease entered into under section 2667 of title 10, United States Code, or any other similar authority.

(4) The term ''significant component'' shall mean—

(A) any covered printed circuit board, as that term is defined in section 4873 of title 10, United States Code;

(B) advanced semiconductors and chipsets, including any integrated circuit—

(i) manufactured using a non-planar transistor architecture; or

(ii) manufactured using a production technology node of 14 nanometers or smaller; and

(C) any other component that provides a unique functionality to the data facility that the Secretary of Defense determines to be a risk to national security of the United States.

SEC. 2826. NAME OF DEPARTMENT OF THE ARMY MILITARY INSTALLATION, AUGUSTA, GEORGIA.

The military installation under the jurisdiction of the Department of the Army located in Augusta, Georgia, shall after the date of the enactment of this Act be known and designated as ''Fort Shughart Gordon''. Any reference to such military installation in any law, regulation, map, document, record, or other paper of the United States shall be considered a reference to Fort Shughart Gordon.

SEC. 2827. NAME OF THE DEPARTMENT OF THE ARMY MILITARY INSTALLATION LOCATED IN MUSCOGEE COUNTY AND CHATTAHOOCHEE COUNTY, GEORGIA.

The military installation under the jurisdiction of the Department of the Army located in Muscogee County and Chattahoochee County, Georgia, shall on and after the date of the enactment of this Act be known and designated

as ''Fort Moore'', in commemoration of Lieutenant General Harold G. Moore, Jr., United States Army, and Mrs. Julia Compton Moore. Any reference to such military installation in any law, regulation, map, document, record, or other paper of the United States shall be considered a reference to Fort Moore.

SEC. 2828. MILITARY INSTALLATION RENAMINGS.

Upon the enactment of this section, the Secretary of Defense shall rename military installations as set forth in the following table:

Military Installation Renamings

State	Current Installation Name	New Installation Name
North Carolina	Fort Bragg	Fort Liberty
Georgia	Fort Benning	Fort Moore
Texas	Fort Hood	Fort Cavazos
Georgia	Fort Gordon	Fort Shughart-Gordon
Virginia	Fort Lee	Fort Gregg-Adams
Louisiana	Fort Polk	Fort Johnson
Alabama	Fort Rucker	Fort Novosel
Virginia	Fort Pickett	Fort Barfoot
Virginia	Fort A.P. Hill	Fort Walker

SEC. 2829. REPORT ON COUNTERINTELLIGENCE RISKS ASSOCIATED WITH REAL PROPERTY TRANSACTIONS NEAR MILITARY INSTALLATIONS.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the Committees on Armed Services of the House of Representatives and the Senate a report on efforts of the Department of Defense to identify, assess, and mitigate counterintelligence, force protection,

operational security, and military readiness risks arising from real property transactions located in proximity to military installations and other defense-sensitive sites within the United States.

(b) REPORT ELEMENTS.—The report required under subsection (a) shall include—

(1) a description of the policies, procedures, authorities, and resources used by the Department of Defense to identify, assess, and mitigate national security risks associated with real property acquisitions, leases, concessions, development projects, and other transactions located in proximity to military installations and other defense-sensitive sites;

(2) an assessment of counterintelligence, force protection, operational security, and military readiness risks associated with foreign ownership, control, influence, or investment involving property located in the United States and within—

(A) 100 miles of a military installation, as defined in section 2801(c)(4) of title 10, United States Code; or

(B) 50 miles of—

(i) a military training route, as defined in section 183a(h) of title 10, United States Code;

(ii) airspace designated as special use airspace under part 73 of title 14, Code of Federal Regulations, and managed by the Department of Defense;

(iii) a controlled firing area, as defined in section 1.1 of title 14, Code of Federal Regulations, used by the Department of Defense; or

(iv) a military operations area, as defined in section 1.1 of title 14, Code of Federal Regulations;

(3) a specific assessment of risks associated with transactions involving a foreign person owned or controlled by, acting on behalf of, or subject to the direction of—

(A) the Government of the People's Republic of China;

(B) the Government of the Russian Federation;

(C) the Government of the Islamic Republic of Iran;

(D) the Government of the Democratic People's Republic of Korea; or

(E) a foreign terrorist organization designated pursuant to section 219 of the Immigration and Nationality Act (8 U.S.C. 1189);

(4) a description of the processes used by the Department to coordinate with the Committee on Foreign Investment in the United States and other Federal departments and agencies regarding transactions that may present national security concerns;

(5) a description of transactions identified by the Department during the preceding three years as presenting potential counterintelligence, force protection, operational security, military readiness, or other national security concerns, including—

(A) the number and general nature of such transactions;

(B) the basis for the Department's concern, as appropriate;

(C) actions taken by the Department to assess, mitigate, or otherwise address such concerns; and

(D) coordination undertaken with the Committee on Foreign Investment in the United States or other Federal departments and agencies in connection with such transactions; and

(6) an assessment of any gaps in authorities, resources, personnel, intelligence collection, or information sharing capabilities that limit the ability of the Department to identify, assess, or mitigate such risks, together with recommendations for legislative action.

(c) FORM.—The report required by subsection shall be submitted in unclassified form but may include a classified annex.

(d) SENSE OF CONGRESS.—It is the sense of Congress that the Department of Defense should strengthen and maintain counterintelligence activities, threat awareness, and interagency coordination relating to real property transactions and development activities that may facilitate foreign intelligence collection or otherwise threaten the security of military installations and defense-sensitive sites within the United States, or otherwise present counterintelligence, intelligence collection, surveillance, operational security, force protection, or military readiness risks.

SEC. 2829A. STUDY ON CONSTRUCTION OF CHILD DEVELOPMENT CENTERS.

The Secretary of Defense shall submit to the congressional defense committees a recommendation for a strategy for military construction projects for a sufficient num-

ber of child development centers (as defined in section 2871 of title 10, United States Code) as necessary to eliminate wait lists for members of the Armed Forces seeking childcare at such child development centers.

SEC. 2829B. EXPANSION OF PRIORITY LIST FOR THE PUBLIC SCHOOLS ON MILITARY INSTALLATIONS PROGRAM.

The Secretary of Defense shall revise the notice titled ''Department of Defense Program for Construction, Renovation, Repair or Expansion of Public Schools Located on Military Installations'' (76 Fed. Reg. 55883 et seq.; published September 9, 2011) to ensure that not fewer than 90 public schools included on the 2018 Public Schools on Military Installations (PSMI) Priority List (approved April 15, 2019) are eligible to submit requests for competitive grants awarded pursuant to such program.

SEC. 2829C. PROHIBITION ON USE OF AUTOMATED SPEED ENFORCEMENT CAMERAS ON MILITARY INSTALLATIONS.

Section 2661 of title 10, United States Code, is amended by inserting at the end the following new subsection:

''(e) PROHIBITION ON USE OF AUTOMATED SPEED ENFORCEMENT CAMERAS.—(1) Notwithstanding any other provision of law, no Federal funds may be used by

the Secretary of Defense to purchase, install, operate, maintain, or contract for the operation of an automated speed enforcement camera system on a military installation.

''(2) By not later than 180 days after the date of the enactment of this subsection, the Secretary shall ensure that any automated speed enforcement camera system in operation on a military installation as of the date of the enactment of this section is decommissioned and removed.

''(3) Nothing in this subsection may be construed to—

''(A) limit the authority of an installation commander to enforce posted speed limits on the military installation under the jurisdiction of the commander through means other than automated speed enforcement cameras; or

''(B) affect the use of any camera or photographic device for purposes of security, access control, force protection, or criminal investigation, so long as such camera or photographic device is not primarily used for speed enforcement.

''(4) In this subsection:

''(A) The term 'automated speed enforcement camera system' means any system that uses a photographic, video, or other electronic device to—

''(i) automatically detect and record the speed of a motor vehicle; and

''(ii) generate a record of any vehicle traveling in excess of a posted speed limit.

''(B) The term 'military installation' has the meaning given such term in section 2801 of this title.''.

Subtitle D—Land Conveyances and Withdrawals

SEC. 2831. WITHDRAWAL AND RESERVATION OF LANDS LOCATED ON THE YUMA PROVING GROUND, ARIZONA, TO SUPPORT MILITARY READINESS AND SECURITY.

The Military Land Withdrawals Act of 2013 (title XXIX of Public Law 113–66; 127 Stat. 1025) is amended by adding at the end the following new subtitle: The Military Land Withdrawals Act of 2013 (title XXIX of Public Law 113–66; 127 Stat. 1025) is amended by adding at the end the following new subtitle:

"Subtitle H—Yuma Proving Ground, Arizona

"SEC. 2999B. WITHDRAWAL AND RESERVATION OF PUBLIC LAND.

''(a) WITHDRAWAL.—Subject to valid existing rights and except as otherwise provided in this subtitle, the public land (including interests in the land) described in subsection (b), and all other areas within the boundary of the land depicted on the map described in that subsection that may become subject to the operation of the public land laws, is withdrawn from—

''(1) all forms of entry, appropriation, and disposal under the public land laws;

''(2) location, entry, and patent under the mining laws; and

''(3) disposition under all laws relating to mineral and geothermal leasing.

''(b) DESCRIPTION OF LAND.—The public land (including interests in the land) referred to in subsection (a) consists of—

''(1) the approximately 21,782.981 acres of Federal land—

''(A) generally depicted as 'Highway 95 - Requested Withdrawal Area' on of the map titled 'U.S. Army Yuma Proving Ground With-

drawal Highway 95 Withdrawal Area', sheet 2 of 3, dated March 12, 2025; and

''(B) excluding the approximately 800 acres of subsurface estate owned by the State of Arizona within the area generally depicted as 'Surface Only Withdrawal/Subsurface Owned by Non-Federal Entity' on the map described in subparagraph (A); and

''(2) the approximately 249.29 acres of Federal land generally depicted as 'Howard Cantonment - Requested Withdrawal Area' on the map titled 'U.S. Army Yuma Proving Ground Withdrawal Howard Cantonment Withdrawal Area', sheet 3 of 3, dated March 12, 2025.

''(c) RESERVATION; PURPOSE.—The land described in subsection (b) is reserved for use by the Secretary of the Army for the purposes specified in Public Land Order No. 848 of July 1, 1952, and as authorized under section 2914.

"SEC. 2999C. MANAGEMENT OF WITHDRAWN AND RESERVED LAND.

''(a) APPLICABLE LAWS.—Except for defense-related purposes managed by the Secretary of the Army in accordance with section 2999B(c), the Secretary of the Interior

shall manage the land withdrawn and reserved by section 2999B in accordance with—

''(1) subtitle A and this subtitle;

''(2) the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.); and

''(3) any other applicable law.

''(b) AUTHORIZED ACTIVITIES.—To the extent consistent with applicable law and Executive orders, the land withdrawn and reserved by section 2999B may be managed in a manner that permits the following activities:

''(1) Conservation of wildlife and wildlife habitat.

''(2) Preservation of cultural properties.

''(3) Management of wild horses and burros.

''(4) Control of predatory and other animals.

''(5) Recreation, public access, and hunting.

''(6) Prevention and appropriate suppression of brush and range fires resulting from non-military activities.

''(c) NONDEFENSE USES.—Subject to subsection (d), all nondefense-related uses of the land withdrawn and reserved by section 2999B, shall be subject to any conditions and restrictions that the Secretary of the Interior and the Secretary of the Army jointly determine to be necessary

to permit the defense-related use of the land for the purposes described in this section.

''(d) ISSUANCE OF LEASES AND OTHER LAND USE AUTHORIZATIONS.—

''(1) IN GENERAL.—The Secretary of the Interior shall be responsible for the issuance of any lease, easement, right-of-way, permit, license, or other instrument authorized by law with respect to any activity that traverses both—

''(A) the public land withdrawn and reserved by section 2999B; and

''(B) any other land in the vicinity of the land withdrawn and reserved by section 2999B that is not under the administrative jurisdiction of the Secretary of the Army.

''(2) CONSENT REQUIRED.—Except as specified in section 2999E, any lease, easement, right-of-way, permit, license, or other instrument issued under paragraph (1) shall—

''(A) only be issued with the consent of the Secretary of the Army; and

''(B) be subject to such conditions as the Secretary of the Army may require with respect to the land withdrawn and reserved by section 2999B.

"SEC. 2999D. ASSIGNMENT OF MANAGEMENT RESPONSIBILITY TO SECRETARY OF THE ARMY.

"(a) AUTHORITY TO ASSIGN MANAGEMENT RESPONSIBILITY.—The Secretary of the Interior may assign the management responsibilities for the land withdrawn and reserved by section 2999B to the Secretary of the Army.

"(b) APPLICABLE LAW.—On assignment of the management responsibility under subsection (a), the Secretary of the Army shall manage the land in accordance with—

"(1) subtitle A and this subtitle;

"(2) title I of the Sikes Act (16 U.S.C. 670a et seq.);

"(3) the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.);

"(4) cooperative management arrangements entered into by the Secretary of the Interior and the Secretary of the Army; and

"(5) any other applicable law.

"SEC. 2999E. UTILITY CORRIDOR.

"(a) ISSUANCE OF UTILITY RIGHTS-OF-WAY.—Notwithstanding subsections (c) and (d) of section 2999C, the Secretary of the Interior may issue rights-of-way within the Bureau of Land Management designated Parker-Blaisdell Utility Corridor under the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.) for any critical regional-grid level utility infrastructure to

include above-ground transmission lines, consistent with the Memorandum of Understanding between the United States Department of the Interior Bureau of Land Management Yuma Field Office and United States Army Garrison Yuma Regarding the Yuma Proving Ground Highway 95 Withdrawal, dated February 28, 2025.

''(b) LIMITATION ON DELEGATION.—The authority to issue a right-of-way under subsection (a) may not be delegated below the level of the Bureau of Land Management State Director.

''(c) ARMY CONSENT NOT REQUIRED.—The decision to issue a right-of-way under subsection (a) is not subject to consent by the Secretary of the Army; however, the Secretary of the Interior, in consultation with the Secretary of the Army, shall incorporate conditions in any right-of-way issued under subsection (a) as much as practicable to minimize impacts to the mission of the Army.

''(d) LIMITATION.—The authority to issue rights-of-way under subsection (a) may not be assigned to the Secretary of the Army.

''SEC. 2999F. DURATION OF WITHDRAWAL AND RESERVATION.

''The withdrawal and reservation of public land made by section 2999B shall be in effect for—

''(1) an indefinite period; or

''(2) until the Secretary of the Army determines that there is no longer a military need for the withdrawal and reservation.''.

SEC. 2832. LAND CONVEYANCE, STATE ARMORY BOARD, UTAH NATIONAL GUARD, CAMP WILLIAMS STATE MILITARY RESERVATION, LEHI, UTAH.

(a) CONVEYANCE AUTHORIZED.—

(1) IN GENERAL.—The Secretary of the Army (in this section referred to as the ''Secretary'') may convey to the Utah National Guard, Lehi, Utah, all right, title, and interest of the United States in and to a parcel of real property, including any improvements thereon, consisting of three parcels described in subsection (b).

(2) CONTINUATION OF EXISTING EASEMENTS, RESTRICTIONS, AND COVENANTS.—The conveyance of the property under paragraph (1) shall be subject to any easement, restriction, or covenant of record applicable to the property and in existence on the date of the enactment of this Act.

(b) DESCRIPTION OF PROPERTY.—

(1) IN GENERAL.—The property, including all land, improvements, and appurtenances, described in this subsection is the following:

(A) FIRST PARCEL.—A strip of land of varying width situated in Section 35, Township 4 South, Range 1 West, Salt Lake Base and Meridian. Such strip of land extending 25 feet each side and parallel with the following described center line: Beginning at a point in the East line of section 35, 1298 feet East and 1808 feet North 44° 59″ West from the Southwest corner of Section 36, Township 4 South, Range 1 West, Salt Lake Base and Meridian; thence North 45° 9″ West 1999 feet, describing a 75 foot strip of land extending 25 feet Eastwardly and 50 feet Westwardly and Parallel with such center line; thence continuing on same bearing 1368.1 feet to the PC of a 5° spiralled curve to the right. Describing a 100 foot strip of land extending 50 feet each side and parallel with said center line, thence Northwesterly along said 5° curve to the right 507.9 feet more or less to a point in the South line of the Northeast quarter of the Northwest quarter of said Section 35, describing a 100 foot strip of land extending 50 feet each side and parallel with such center line.

(B) SECOND PARCEL.—An irregular shaped parcel of land situated in the Northeast quarter of the Northwest quarter of Section 35, Township 4 South Range 1 West, Salt Lake Base and Meridian. Beginning at the Northwest corner of the herein described land, said point bears West 194 feet from the North quarter corner of Section 35, thence South 5° 47″ West 587 feet more or less, thence along the line of the 5° spiralled curve to the left a distance of 767.4 feet to a point in the South line of the Northeast quarter of the Northwest quarter of said Section 35; thence East 50 feet to the west right of way line of the Utah Lake Irrigation Company's canal, thence North 1° 24″ East along said West right of way line in distance of 1180 feet more or less; thence North 3° 2″ West 128 feet; thence West 115 feet to the point of beginning.

(C) THIRD PARCEL.—A parcel of land situated in Southwest quarter of Section 26, Township 4 South, Range 1 West, Salt Lake Base and Meridian: Commencing 144 feet West from South quarter corner of Section 26; a strip of land 200 feet wide extending 100 feet

each side and parallel with the following described center line: Commencing from said point of beginning North 5° 47″ East 861.1 feet more or less, along the line of a 7° spiral cure to left a distance of 464.4 feet more of less to a point in North line of Southeast, quarter of Southwest quarter of Section 26, extending 100 feet each side and parallel with side center line.

(2) SURVEY.—The exact acreage and legal description of the parcels described in paragraph (1) shall be determined by a survey satisfactory to the Secretary.

(c) REVERSIONARY INTEREST.—

(1) IN GENERAL.—If the Secretary determines at any time that the property conveyed under subsection (a) is not being used for activities of the Utah National Guard relating to training and readiness, all right, title, and interest in and to the property, including any improvements thereto, may, at the option of the Secretary, revert to and become the property of the United States, and the United States may have the right of immediate entry onto such property.

(2) DETERMINATION.—A determination by the Secretary under paragraph (1) may be made on the record after an opportunity for a hearing.

(d) PAYMENT OF COSTS OF CONVEYANCE.—

(1) PAYMENT REQUIRED.—The Secretary may require the State of Utah to cover all costs (except costs for environmental remediation of the property) to be incurred by the Secretary, or to reimburse the Secretary for costs incurred by the Secretary, to carry out the conveyance under subsection (a), including costs for environmental and real estate due diligence and any other administrative costs related to the conveyance.

(2) REFUND OF EXCESS AMOUNTS.—If amounts are collected from the State under paragraph (1) in advance of the Secretary incurring the actual costs, and the amount collected exceeds the costs actually incurred by the Secretary to carry out the conveyance under subsection (a), the Secretary shall refund the excess amount to the State.

(e) LIMITATION ON SOURCE OF FUNDS.—The State may not use Federal funds to cover any portion of the costs required to be paid by the State under this section.

(f) ADDITIONAL TERMS AND CONDITIONS.—The Secretary may require such additional terms and conditions

in connection with the conveyance under subsection (a) as the Secretary considers appropriate to protect the interests of the United States.

SEC. 2833. LAND CONVEYANCE, MILAN ARMY AMMUNITION PLANT, TENNESSEE.

(a) CONVEYANCE AUTHORIZED.—The Secretary of the Army may convey, without consideration, to the University of Tennessee System (in this section referred to as the ''University'') all right, title, and interest of the United States in and to parcels of real property, including any improvements thereon, at Milan Army Ammunition Plant, Tennessee, that consist of a total of approximately 5,000 acres for the purpose of permitting the University to use the parcels for education research.

(b) REVISIONARY INTEREST.—

(1) INTEREST RETAINED.—

(A) IN GENERAL.—If the Secretary of the Army determines at any time that the property conveyed to the University under subsection (a) is not being used in accordance with the purpose of the conveyance specified in such subsection, all right, title, and interest in and to the conveyed property, including any improvements thereon, shall, at the option of the Secretary, revert to and become the property of the

United States, and the United States shall have the right of immediate entry onto the property.

(B) DETERMINATION.—A determination by the Secretary of the Army under subparagraph (A) shall be made on the record after an opportunity for a hearing.

(2) ALTERNATIVE CONSIDERATION OPTION.—In lieu of exercising the reversionary interest retained under paragraph (1), the Secretary of the Army may accept an offer by the University to pay to the Secretary an amount equal to the fair market value of the property conveyed under subsection (a), excluding the value of any improvements on the conveyed property constructed without Federal funds after the date the conveyance is completed, as determined by the Secretary.

(c) PAYMENT OF COSTS OF CONVEYANCE.—The Secretary of the Army shall require the University to pay costs (except costs for environmental remediation of the property) to be incurred by the Secretary, or to reimburse the Secretary for such costs incurred by the Secretary, to carry out the conveyance authorized under subsection (a), including survey costs, appraisal costs, costs for environmental documentation related to the conveyance, and any other administrative costs related to the conveyance.

(d) TREATMENT OF AMOUNTS RECEIVED.—

(1) IN GENERAL.—Amounts received as reimbursement under subsection (c) or as alternative consideration under subsection (b)(2) shall be credited to the fund or account that was used to pay the costs incurred by the Secretary of the Army in carrying out the conveyance under subsection (a) or, if the period of availability of obligation for appropriations to that fund or account has expired, to the fund or account that is currently available to the Secretary for the same purpose.

(2) MERGER OF AMOUNTS.—Amounts credited to a fund or account under paragraph (1) shall be merged with amounts in such fund or account and shall be available for the same purposes, and subject to the same conditions and limitations, as amounts in such fund or account.

(e) DESCRIPTION OF PROPERTY.—The exact acreage and legal description of the parcels of real property to be conveyed under subsection (a) shall be determined by a survey satisfactory to the Secretary of the Army.

(f) ADDITIONAL TERMS AND CONDITIONS.—The Secretary of the Army may require such additional terms and conditions in connection with the conveyance authorized

by subsection (a) as the Secretary considers appropriate to protect the interests of the United States.

SEC. 2834. LAND CONVEYANCE, JOINT BASE ELMENDORF-RICHARDSON, ANCHORAGE, ALASKA.

(a) CONVEYANCE AUTHORIZED.—Not later than 180 days after the date of the enactment of this section, but only after the completion of the appraisal under subsection (d)(1), the Secretary of the Air Force shall—

(1) determine whether the parcel of real property described in subsection (b), including any improvements thereon, is excess to the needs of Joint Base Elmendorf-Richardson, Anchorage, Alaska;

(2) if the Secretary determines such parcel is excess to such needs, declare that such parcel is excess to such needs; and

(3) take such actions as may be necessary to convey to the Municipality of Anchorage, Alaska (in this section referred to as the ''Municipality''), all right, title, and interest of the United States in and to such parcel, in accordance with—

(A) the North Anchorage Land Agreement; and

(B) any agreement reached between the Municipality and Ektuna, Incorporated, during the one-year period beginning on the date the

Secretary makes the declaration under paragraph (2).

(b) DESCRIPTION OF PROPERTY.—The parcel to be conveyed under subsection (a) consists of approximately 50 acres of land located on Joint Base Elmendorf-Richardson in Anchorage, Alaska, described as United States Survey Number 8690, Lot 2 Section 22, T14N R2W, Seward Meridian that is—

(1) located adjacent to the Anchorage Regional Landfill; and

(2) leased by the Municipality under the lease numbered USAF–PACAF–HJZH–18–2–0391 as of the date of the enactment of this section.

(c) TERMINATION OF LEASE.—Any authority granted under the lease referred to in subsection (b) shall terminate on the date on which the Secretary the conveys the property under subsection (a).

(d) TERMS AND CONDITIONS.—

(1) APPRAISAL.—The fair market value of the property to be conveyed under subsection (a) shall be determined pursuant to an appraisal to be carried out—

(A) by an independent appraiser selected by the Secretary; and

(B) in accordance with—

(i) the Uniform Appraisal Standards for Federal Land Acquisitions; and

(ii) the Uniform Standards of Professional Appraisal Practice.

(2) PAYMENT OF COSTS OF CONVEYANCE.—

(A) IN GENERAL.—The Secretary shall require the Municipality to cover costs to be incurred by the Secretary, or to reimburse the Secretary for such costs incurred by the Secretary, to carry out the conveyance under subsection (a), including such costs related to land survey, environmental documentation, real estate due diligence such as appraisals, and any other administrative costs related to the conveyance.

(B) REFUND.—If amounts are collected from the Municipality under paragraph (1) in advance of the Secretary incurring the actual costs, and the amount collected exceeds the costs actually incurred by the Secretary to carry out the conveyance, the Secretary shall refund the excess amount to the Municipality.

(C) TREATMENT OF AMOUNTS RECEIVED AS REIMBURSEMENT OF COSTS INCURRED.—

(i) CREDIT TO ACCOUNT.—Amounts received under paragraph (1) to reimburse the Secretary for costs incurred by the Secretary to carry out the conveyance under subsection (a) shall be credited to the fund or account used to cover those costs or to an appropriate fund or account available to the Secretary for the purpose for which the costs were paid.

(ii) AVAILABILITY.—Amounts credited to a fund or account under clause (i) shall—

(I) merge with amounts in such fund or account; and

(II) be available to the Secretary for the same purpose and subject to the same conditions and limitations as the amounts in such fund or account.

(D) DEPOSIT OF AMOUNTS RECEIVED AS PAYMENT.—Amounts received as consideration for the conveyance under subsection (a) shall be deposited in the special account in the Treasury established under section 572(b)(5) of title 40, United States Code.

(3) PRE-CONVEYANCE ENTRY.—

(A) IN GENERAL.—The Secretary, under the terms described in subparagraph (B) and any additional terms and conditions the Secretary determines appropriate, may authorize the Municipality to enter the property to be conveyed under subsection (a) at no charge for pre-construction activities, including site characterization under the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) and the Comprehensive Environmental Response, Compensation and Liability Act of 1980 (42 U.S.C. 9601 et seq.), before the property is conveyed under subsection (a).

(B) REQUIRED TERMS.—Any authorization granted under subparagraph (A) shall—

(i) be revocable at the discretion of the Secretary;

(ii) not be construed to covey any right, title, or interest in the property; and

(iii) require the Municipality to comply with installation access and safety requirements and such other requirements as the Secretary determines necessary to protect the interests of the United States.

(4) ADDITIONAL TERMS AND CONDITIONS.—The Secretary may require such additional terms and conditions in connection with the conveyance under subsection (a) as the Secretary considers appropriate to protect the interests of the United States.

(e) LIMITATION ON SOURCE OF FUNDS.—The Municipality may not use Federal funds to cover any portion of the costs required to be paid by the Municipality under this section.

(f) SAVINGS PROVISION.—Nothing in this section shall be construed to affect or limit the application of, or any obligation to comply with, any environmental law, including the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 and the Solid Waste Disposal Act (42 U.S.C. 6901 et seq.).

(g) NORTH ANCHORAGE LAND AGREEMENT DEFINED.—In this section, the term ''North Anchorage Land Agreement'' means the agreement entered into by the State of Alaska, the Municipality, and Eklutna, Incorporated, pursuant to section 1425 of the Alaska National Interest Lands Conservation Act (Public Law 96–487; 94 Stat. 2515) (including any amendments to that agreement as of the date of the enactment of this section).

SEC. 2835. ACQUISITION OF EASEMENTS FOR DEFENSE FUEL SUPPLY INFRASTRUCTURE.

(a) AUTHORITY TO ACQUIRE.—The Secretary of Defense is authorized to acquire, by purchase, donation, exchange, or condemnation, on behalf of the United States, such permanent easements over all lands along the route of the Santa Ynez Pipeline System, including all lands owned or otherwise held by the State of California or any agency, department, or instrumentality thereof, as the Secretary of Defense determines necessary to ensure continuous pipeline transportation of crude oil from the Santa Ynez Unit to domestic refineries supplying Department of Defense installations in the State of California. The acquisition of such easements is an authorized purpose for which the Secretary of Defense or the Secretary of a military department may exercise the land acquisition authorities of section 2663 of title 10, United States Code. Easements authorized to be acquired under this subsection include—

(1) a permanent easement over the Gaviota Segment sufficient for the operation, maintenance, inspection, and repair of Lines CA-324 and CA-325;

(2) a permanent easement over the State submerged lands traversed by the offshore pipeline segments of the Santa Ynez Pipeline System, sufficient

for the operation, maintenance, inspection, and repair of such segments; and

(3) such additional permanent easements over any other lands along the route of the Santa Ynez Pipeline System as the Secretary of Defense determines necessary for the continuous and unobstructed operation of such system.

(b) CONDEMNATION.—

(1) IN GENERAL.—In acquiring easements under subsection (a), the Secretary of Defense may institute condemnation proceedings in the United States district court for the district in which the property is located, pursuant to section 2663 of title 10, United States Code, and subchapter III of chapter 31 of title 40, United States Code.

(2) VITAL NATIONAL SECURITY DETERMINATION.—Congress finds that the acquisition of easements under subsection (a) is required to satisfy a requirement vital to the national security within the meaning of section 2663(g) of title 10, United States Code, and that delay in such acquisition would be detrimental to the national security. The Secretary of Defense may accordingly commence condemnation proceedings under subsection (a) in advance of the report otherwise required under sec-

tion 2663(f) of title 10, United States Code, and shall submit such report not later than seven days after commencement of such proceedings.

(3) STATE-OWNED LAND AND STATE SUBMERGED LANDS.—The authority to acquire easements under subsection (a) includes authority to acquire easements over—

(A) land owned or otherwise held by the State of California or any agency, department, or instrumentality thereof, including the California Department of Parks and Recreation; and

(B) State submerged lands.

(4) INAPPLICABILITY OF STATE LAW.—The State of California may not assert sovereign immunity, its title under section 3 of the Submerged Lands Act, or any other provision of State law as a defense to, or limitation upon, any condemnation proceeding brought by the United States under this section.

(5) IMMEDIATE POSSESSION AND USE.—Upon filing a declaration of taking pursuant to section 3114 of title 40, United States Code, and depositing with the court the estimated amount of just compensation, the United States shall be entitled to im-

mediate possession of, and the right to enter upon and use, the easements sought to be acquired. The court may not condition such possession, or such right to enter upon and use, upon any State administrative approval, State permit, or State agency determination.

(6) EXPEDITED PROCEEDINGS.—Any condemnation proceeding brought under this section shall be given priority on the docket of the court and shall be resolved on an expedited basis consistent with the national defense purposes of this section.

(c) JUST COMPENSATION.—The amount of just compensation payable to the State of California or any agency thereof shall be determined by the United States district court in which condemnation proceedings are brought, or by the United States Court of Federal Claims if the parties so elect. In determining just compensation for an easement over State submerged lands, the court shall account for the powers retained by the United States under section 6(a) of the Submerged Lands Act (43 U.S.C. 1314(a)), to which the State's title is subject.

(d) LICENSE TO OPERATOR.—

(1) IN GENERAL.—Upon acquisition of any easement under subsection (a), the Secretary of Defense shall issue to the operator of the Santa Ynez

Pipeline System a license authorizing such operator to use such easement for the operation, maintenance, inspection, and repair of the Santa Ynez Pipeline System for the purpose of transporting crude oil from the Santa Ynez Unit to domestic refineries supplying Department of Defense installations in the State of California. The Secretary shall include in any such license terms requiring compliance with all applicable Federal pipeline safety requirements under chapter 601 of title 49, United States Code.

(2) IRREVOCABILITY.—

(A) IN GENERAL.—A license issued under paragraph (1) may not be revoked, suspended, modified, or terminated by the Secretary of Defense or any other officer or employee of the executive branch except—

(i) by an Act of Congress that expressly references this section by name and subsection; or

(ii) by the Secretary of Defense, following a final order of the Secretary of Transportation under chapter 601 of title 49, United States Code (or, if such order is challenged, a final judgment of a United

States court of appeals sustaining such order), determining that the operator has committed a violation of Federal pipeline safety requirements under such chapter that creates an imminent hazard to public safety, and the operator has failed to cure such violation within a reasonable period after written notice and an opportunity to cure.

(B) NO STATE REVOCATION.—No order, judgment, or determination of a court of the State of California or of any other State shall constitute a basis for revocation, suspension, modification, or termination of a license issued under paragraph (1).

(C) INAPPLICABILITY OF OTHER ACTIONS.—No executive order, presidential directive, secretarial determination, or other administrative action shall otherwise operate to revoke, suspend, modify, or terminate a license issued under paragraph (1).

(3) TRANSFERABILITY.—A license issued under paragraph (1) shall be transferable to any successor operator of the Santa Ynez Pipeline System without further action by the Secretary of Defense, provided

that the successor operator is in compliance with all applicable Federal pipeline safety requirements under chapter 601 of title 49, United States Code. A successor operator that holds the authorizations required under such chapter 601 shall be deemed to be in compliance for purposes of this paragraph.

(4) CONTINUITY.—During the period in which a license issued under paragraph (1) is in effect, no permit, additional license, certification, or other authorization of a State or local government shall be required as a condition of the exercise of the rights granted by such issued license, to the extent that the requirement to obtain or maintain such permit, additional license, certification, or other authorization would have the effect, in practice, of halting or substantially delaying the use of such easement as described in paragraph (1). Nothing in this paragraph shall be construed to limit or affect any requirement of Federal law, any permit or authorization required under Federal law, or the authority of any Federal agency to issue, condition, enforce, or revoke the same.

(e) RELATIONSHIP TO STATE LAW.—

(1) PREEMPTION.—Any State law, regulation, order, or other requirement that has the purpose or

effect of preventing, conditioning, or delaying the Secretary of Defense from exercising the authority granted under this section, or that has the purpose or effect of preventing the operator of the Santa Ynez Pipeline System from utilizing any easement acquired by the United States under this section, is preempted.

(2) NO STATE PERMIT REQUIRED.—No authorization, lease, permit, or approval of the State of California or any agency thereof, including the California State Lands Commission and the California Department of Parks and Recreation, shall be required as a condition of the operation, maintenance, repair, or use of any segment of the Santa Ynez Pipeline System.

(3) PENDING LITIGATION.—No State court order, injunction, or other judicial relief issued in any proceeding to which the United States is not a party shall operate to prevent the Secretary of Defense from exercising the authority granted under this section or to prevent the operator of the Santa Ynez Pipeline System from utilizing any easement acquired by the United States under this section.

(f) RETAINED FEDERAL POWER OVER STATE SUBMERGED LANDS.—The grant of title to State submerged

lands under section 3 of the Submerged Lands Act (43 U.S.C. 1311) is, and has at all times remained, subject to the powers retained by the United States under section 6(a) of that Act (43 U.S.C. 1314(a)) for the constitutional purposes of commerce, navigation, national defense, and international affairs. The acquisition of easements over State submerged lands under this section, and the operation of the offshore pipeline segments of the Santa Ynez Pipeline System extending through such lands, are exercises of those retained powers, and the State of California holds no title or interest in such submerged lands that is superior to, or that may impede, the exercise of those powers.

(g) RECOVERY OF COSTS.—The Secretary of Defense may, as a condition of any license issued under subsection (d), require the licensee to reimburse the United States for all or a portion of any costs incurred by the United States in acquiring easements under this section, including just compensation paid to any State or private party. Amounts received as reimbursement under this subsection shall be credited to the appropriation, fund, or account from which the costs were paid.

(h) DEFINITIONS.—In this section:

(1) The term ''Gaviota Segment'' means the approximately four-mile segment of the Las Flores

Pipeline System traversing land administered by the California Department of Parks and Recreation within Gaviota State Park, Santa Barbara County, California.

(2) The term ''Las Flores Pipeline System'' means the onshore pipeline comprising Lines CA-324 and CA-325 (previously designated as Lines 901 and 903), including all associated pipeline segments, pump stations, equipment, and appurtenant infrastructure extending from the Las Flores Canyon processing facilities in Santa Barbara County, California, to Pentland Station in Kern County, California.

(3) The term ''Santa Ynez Pipeline System'' means the complete network of offshore and onshore pipelines and associated infrastructure used to transport crude oil and associated production from offshore platforms Harmony, Heritage, and Hondo to Pentland Station in Kern County, California, including—

(A) the offshore pipeline segments extending from such platforms over the Outer Continental Shelf and over State submerged lands to the Las Flores Canyon processing facilities; and

(B) the Las Flores Pipeline System.

(4) The term ''Santa Ynez Unit'' means the Federal offshore oil and gas production unit operated pursuant to one or more leases granted under the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.) off the coast of Santa Barbara County, California, including offshore platforms Harmony, Heritage, and Hondo.

(5) The term ''State submerged lands'' means the lands beneath navigable waters the title to which was conveyed to the State of California under section 3 of the Submerged Lands Act (43 U.S.C. 1311).

SEC. 2836. LAND EXCHANGE, CAMP PIKE AND CAMP JOSEPH T. ROBINSON, ARKANSAS.

(a) EXCHANGE AUTHORIZED.—The Secretary of the Army (referred to in this section as the ''Secretary'') may convey to the State of Arkansas all right, title, and interest of the United States in and to a parcel of real property, including any improvements thereon, consisting of approximately 16.02 acres at Camp Pike, North Little Rock, Arkansas, containing the facility commonly known as the 90th Readiness Division Headquarters and other real property north of Arkansas Avenue road as is determined by the survey under subsection (d)(1).

(b) CONSIDERATION.—

(1) As consideration for the conveyance under subsection (a), the State of Arkansas may convey to the United States all right, title, and interest of the State of Arkansas in and to a parcel of real property, including any improvements thereon, consisting all or part of approximately 68.16 acres at Camp Joseph T. Robinson, North Little Rock, Arkansas, containing the facility commonly known as the Chappell Armory and such additional adjoining lands as is determined by the survey under subsection (d)(1).

(2) The exchange of real property under this section shall be for parcels of approximately equal value, as determined by the Secretary through an appraisal acceptable to the Secretary. Pursuant to section 18240 of title 10, United States Code, no monetary consideration may be provided or accepted by either party to equalize the value of the properties exchanged.

(c) EXTINGUISHMENT OF REVERSIONARY INTEREST.—In connection with the exchange authorized by this section, the Secretary shall extinguish the reversionary interest of the United States, created by the Act of June 30, 1950 (64 Stat. 311, chapter 429), applicable to the

property to be conveyed by the State of Arkansas under subsection (b)(1).

(d) SURVEYS AND PROPERTY DESCRIPTIONS.—

(1) DETERMINATION.—The exact acreage and legal descriptions of the real property to be exchanged under this section shall be determined by surveys satisfactory to the Secretary.

(2) COSTS.—The State of Arkansas shall be responsible for all costs associated with the exchange authorized by this section, including the costs of surveys, appraisals, and any other administrative or environmental documentation required to complete the exchange.

(e) ADDITIONAL TERMS AND CONDITIONS.—The Secretary may require such additional terms and conditions in connection with the conveyances under this section as the Secretary considers appropriate to protect the interests of the United States.

(f) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to affect or limit the application of, or any requirement for, environmental remediation under the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601 et seq.) or any other law.

SEC. 2837. REMOVAL OF CONDITIONS ON USE OF CERTAIN LAND CONVEYED TO THE STATE OF INDIANA.

Section 2858 of the Military Construction Authorization Act for Fiscal Year 1996 (division B of Public Law 104–106; 110 Stat. 571), as amended by section 2838 of the Military Construction Authorization Act for Fiscal Year 1998 (division B of Public Law 105–85; 111 Stat. 2006) and section 2843(i) of the Military Construction Authorization Act for Fiscal Year 1999 (division B of Public Law 105–261; 112 Stat. 2217), is further amended—

(1) in subsection (b), by striking ''The conveyances'' and inserting ''Except as provided in subsection (d), the conveyances''; and

(2) by striking subsection (d) and inserting the following:

''(d) CONDITION ON RELEASE OF COVENANTS.—On the condition that the State convey approximately 80 acres of prior park property to the Indiana Army Ammunition Plan Reuse Authority, the Reuse Authority convey approximately 100 acres of prior industrial use property to the State, and the use of that 100 acres will be restricted by covenant to recreational purposes, the Secretary may release the covenant that requires the 80 acres of prior park property to be used for recreational purposes.''.

Subtitle E—Pilot Programs

SEC. 2841. DIGITAL TWIN MODELS AT CERTAIN MILITARY INSTALLATIONS.

(a) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Secretaries of the military departments, shall carry out a three-year pilot program to implement digital twin models at not less than five covered military installations for the purposes of identifying any vulnerabilities or interdependencies of such covered military installations.

(b) REQUIREMENTS OF MODELS.—The Secretary of Defense shall ensure that each digital twin model represents a virtual model of the infrastructure systems of the respective covered military installation, including—

(1) the energy systems;

(2) the water systems;

(3) the transportation systems;

(4) the communications systems; and

(5) any other critical mission-support systems.

(c) USE OF MODELS.—The Secretary of Defense shall use such digital twin models to—

(1) conduct an assessment of—

(A) the infrastructure system of each covered military installation represented by such digital twin models; and

(B) any public infrastructure systems, including local facilities of the bulk-power system, transportation systems, local systems for the distribution of fuel, and public water systems, that are used by such covered military installations; and

(2) to evaluate, during a disruption scenario, the resilience and continuity of operations of such covered military installations, including during—

(A) a cyber attack;

(B) a kinetic attack;

(C) a natural disaster; or

(D) an interruption of the supply chains of such covered military installations.

(d) COVERED MILITARY INSTALLATION.—In this section, the term ''covered military installation'' means a military installation that would be critical to a contingency operation in the Indo-Pacific region, as determined by the Secretary of Defense.

SEC. 2842. PILOT PROGRAM ON WASTEWATER MONITORING AND PATHOGEN-AGNOSTIC MONITORING SYSTEM OF CERTAIN MILITARY INSTALLATIONS.

(a) PILOT PROGRAM REQUIRED.—Not later than 180 days after the date of the enactment of this section, the Secretary of Defense shall carry out a pilot program under which the Secretary shall develop and implement a comprehensive wastewater monitoring system at not fewer than four military installations at which the Secretary seeks to identify the prevalence of infectious diseases among members of the Armed Forces at the installation (in this section referred to as the ''pilot program'').

(b) PATHOGEN-AGNOSTIC PILOT PROGRAM.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this section, the Secretary shall carry out a second pilot program under which the Secretary shall develop and implement a pathogen-agnostic monitoring system that leverages emerging biotechnologies for early detection of novel pathogens (in this section referred to as the ''pathogen-agnostic pilot program'').

(2) PURPOSES.—The purpose of the pathogen-agnostic pilot program shall aim to—

(A) improve detection, identification, and analysis of infectious disease prevalence among

members of the Armed Forces and other relevant Department of Defense personnel; and

(B) strengthen early-warning capabilities for novel pathogens.

(c) TECHNOLOGIES AND DATA SYSTEM USED.—In carrying out the pilot program under subsection (a), the Secretary shall ensure all systems developed and implemented under such subsection is comprised of appropriate technologies, standardized analytical tools, and a uniform data system.

(d) DURATION.—The pilot program shall be carried out during a two-year period beginning on the date of the commencement of the pilot program and the pathogen-agnostic pilot program, respectively.

(e) REPORT.—Not later than 90 days after the termination of the pilot program and the pathogen-agnostic pilot program, respectively, the Secretary shall submit to the congressional defense committees a report that includes the following:

(1) A summary of the findings from all monitoring systems under the pilot program and pathogen-agnostic pilot program.

(2) Recommendations for interventions or policy changes based on trends observed under the pilot program.

(3) An assessment of the effectiveness of the pilot program in enhancing force health protection, readiness, and early pathogen detection.

(f) STRATEGIC PLAN.—Not later than one year after the date of the enactment of this section, the Secretary shall submit to Congress a strategic plan that—

(1) defines requirements for implementing a scalable, pathogen-agnostic monitoring capability;

(2) identifies technologies and risk-based methodologies to achieve mission requirements; and

(3) demonstrates coordination with the Biodefense Council ensuring compliance with Privacy Act and Department regulations.

SEC. 2843. DEPARTMENT OF DEFENSE PILOT PROGRAM FOR DEVELOPMENT AND USE OF ONLINE REAL ESTATE INVENTORY TOOL.

(a) PILOT PROGRAM REQUIRED.—

(1) ESTABLISHMENT.—The Secretary of Defense shall establish a pilot program for the development of an online real estate tool to identify the existing inventory of space available at the military installations selected by the Secretary under paragraph (2) for the purposes specified in subsection (b).

(2) SELECTION OF PILOT LOCATIONS.—The Secretary shall evaluate the online inventory tool at not less than five, but not more than ten, Air Force, Navy, Marine Corps and Space Force military installations selected by the Secretary as appropriate locations for evaluation of the online inventory tool.

(3) COORDINATION WITH ARMY.—In addition to the military installations selected under paragraph (2), the Secretary shall include in the pilot program—

(A) all military installations under the jurisdiction of the Department of the Army that participated in the pilot program established under section 2866 of the Military Construction Authorization Act for Fiscal Year 2021 (division B of Public Law 116–283; 10 U.S.C. 7771 note prec.); and

(B) entries included in the online real estate tool of the Department of Army as of the date on which such pilot program terminated.

(4) CONSULTATION.—The Secretary shall establish the pilot program and develop the online inventory tool in consultation with the Administrator of General Services and each of the service Secretaries.

(b) PURPOSES.—The purposes of the online inventory tool are—

(1) to achieve efficiencies in real estate property management consistent with the National Defense Strategy goal of finding greater efficiencies within Department of Defense operations and leveraging commercial off-the-shelf technologies to better enable members of the Armed Forces;

(2) to provide a means to better market to the public information regarding space available at all Department of Defense military installations for better utilization of such space; and

(3) to provide a means to better quantify existing space available at all Department of Defense military installations and how it is utilized for current missions and requirements.

(c) CONSIDERATIONS.—To establish the pilot program, the Secretary of Defense shall—

(1) consider innovative approaches, including the use of other transaction authorities consistent with section 2371 of title 10, United States Code, and the use of commercial off- the-shelf technologies;

(2) develop appropriate protections of sensitive or classified information from being included with the online inventory tool; and

(3) develop appropriate levels of access for private sector users of the online inventory tool;

(4) in developing these considerations shall include lessons learned from the Secretary of the Army on the development of the pilot program for the online real estate tool under 2866 of the Military Construction Authorization Act for Fiscal Year 2021.

(d) ESTABLISHMENT OF USE POLICY.—In connection with the development of the online inventory tool, the Secretary of the Defense shall develop policy requiring the use of the online inventory tool at all Department of Defense military installations selected under subsection (a)(2) to query for existing inventory at such military installations before any military construction or off-post leases are agreed to for such military installations. The Secretary shall prescribe guidelines that will be implemented by each respective service secretary. Further, the Secretary shall ensure that all relevant notifications to congressional defense committees include certification that the online inventory tool was used.

(e) ONLINE INVENTORY TOOL DEFINED.—In this section, the term ''online inventory tool'' means the online real estate tool developed under the pilot program to identify existing inventory of space available at Department

of Defense military installations selected to participate in the pilot program.

(f) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to effect the application of title V of the McKinney- Vento Homeless Assistance Act (42 U.S.C. 11411 et seq.).

(g) REPORTING REQUIREMENT.—Not later than February 15, 2027, the Secretary of the Defense shall submit to Committees on Armed Services of the Senate and the House of Representatives a report evaluating the success of the pilot program in achieving the purposes specified in subsection (b). At a minimum, the report also shall identify and contain the following:

(1) The Department of Defense military installations selected under subsection (a)(2) to participate in the pilot program broken out by respective service.

(2) The number of real estate agreements entered into by each of the respective service secretaries that were facilitated by use of the online inventory tool, including for each agreement the installation, amount of space, value, and purpose of the agreement.

(3) An evaluation of the extent to which use of the online inventory tool reduced the need for military construction or off-post leases.

(4) An evaluation of any impediments to efficient use of the online inventory tool.

(5) The recommendations of the Secretary of Defense regarding whether the pilot program should be extended, expanded, or made permanent.

(h) DURATION.—The authority of the Secretary of the Defense to carry out the pilot program shall expire on September 30, 2031.

SEC. 2844. PILOT PROGRAM TO PROVIDE INTEGRATED CONNECTIVITY SERVICE.

(a) ESTABLISHMENT.—The Secretary of Defense, acting through the Assistant Secretary of Defense for Energy, Installations, and Environment, shall establish and carry out a pilot program to provide integrated connectivity service to a covered population—

(1) stationed at five covered military installations in the Middle East, as determined by the Secretary; and

(2) at no cost to such covered population.

(b) PROGRAM REQUIREMENTS.—

(1) SERVICE PROVISIONING AND ENSURING.—The Assistant Secretary shall enter into a contract

with an American contracted entity to act as telecommunications operator for the covered military installation—

(A) to provision the integrated connectivity service with a private network management system or a hybrid-capable network management system;

(B) to ensure the integrated connectivity service can support multiple tenant commands, or activity present on such covered military installations with individualized commitments, such as separate network slices and security policies that can be tailored to the tenant command requirements; and

(C) to provision and ensure operation of the integrated connectivity service.

(2) INTEGRATED CONNECTIVITY SERVICE REQUIREMENT.—The integrated connectivity service provided under the pilot program established pursuant to subsection (a) shall—

(A) provide broadband internet access service as the baseline service and meet or exceed any speed benchmarks established by the Chairman of the Federal Communications Com-

mission for broadband internet access services, including—

(i) a minimum download speed of 100-Mbps; and

(ii) a minimum upload speed of 20-Mbps; and

(B) support the integration of P5G data services with broadband internet access service over a common integrated connectivity service, where such mobile services are identified as required by the covered military installation tenant command.

(3) GOODS PROCURED UNDER CONTRACT.—Any goods procured under the contract described under paragraph (1) shall be the property of the Department of Defense.

(4) STANDARD.—Infrastructure setup and operation of the integrated connectivity service—

(A) shall be based on National Institute of Standards and Technology standards specified in NIST SP 800-171 Rev. 3, or successor standards, including any future revisions, updates, or successor publications to ensure the availability and security of such integrated connectivity service; and

(B) shall exclude hybrid-capable network management systems with availability and security risks, such as pure public cloud only network management systems.

(5) COST.—In carrying out the pilot program, the Assistant Secretary shall account for the full life cycle costs of such pilot program, including—

(A) the initial build and setup;

(B) a refresh, every five years during the period the authority to carry out the pilot program is effective, of the integrated connectivity service, including a refresh of the underlying infrastructure of the entire integrated connectivity service, to ensure long-term—

(i) availability;

(ii) security; and

(iii) usability; and

(C) monthly recurring costs, including services provided by—

(i) the host nation carrier for bandwidth; and

(ii) the telecommunications operator.

(6) METHODOLOGY.—When carrying out the pilot program, the Assistant Secretary shall use industry standard life cycle methodologies and broadly

adopted practices, including the NIST Cybersecurity Framework, NIST SP 800-53, Information Technology infrastructure library and the Plan, Prepare, Design, Implement, Operate, Optimize methodology to deliver a cost-effective, secure, sustainable, right-sized network infrastructure.

(7) EQUIPMENT PROCUREMENT.—Any articles, materials, or supplies procured by the American contracted entity for the purpose of providing integrated connectivity service, as described under paragraph (1), shall be made in the United States.

(c) REPORT.—Not later than five years after the date of the enactment of this section, and annually thereafter, the Assistant Secretary shall submit to Congress a report on the pilot program carried out under this section, including—

(1) an analysis of the cost; and

(2) a determination of which additional military installations located outside the contiguous United States should be provided with integrated connectivity service.

(d) DEFINITIONS.—In this section:

(1) The term ''5G'' means fifth generation mobile network technology, including higher-speed and

lower latency device connectivity over mobile radio networks.

(2) The term ''Assistant Secretary'' means the Assistant Secretary of Defense for Energy, Installations, and Environment.

(3) The term ''American contracted entity'' means an entity—

(A) organized in the United States and with its principal place of business located within the United States;

(B) majority-owned and controlled by a United States citizen, a lawful permanent resident, or publicly traded on a United States stock exchange and subject to United States laws and jurisdiction;

(C) that employs primarily personnel based in the United States to perform management, engineering, operations, and customer support functions, including staffing key operational and decision-making roles within the United States;

(D) that procures equipment and technology through a supply chain compliant with sections 889 and 1260H of the National Defense Authorization Act for Fiscal Year 2021

(Public Law 116–283), including the avoidance of prohibited or restricted telecommunications and video surveillance equipment and services; and

(E) that complies with section 8302 of title 41, United States Code, whenever practicable, prioritizing United States manufactured products, United States sourced components, and United States based subcontractors and suppliers wherever and whenever possible, consistent with project requirements, availability and cost reasonableness.

(4) The term ''broadband internet access service'' has the meaning given such term in section 8.1(b), title 47, Code of Federal Regulations, or any successor regulation.

(5) The term ''cloud only deployment model'' means a deployment model in which the network management system is delivered solely as a vendor-managed software-as-a-service offering, with no option for self-hosted, on-premises, or private cloud deployment.

(6) The term ''covered military installation'' means a military installation as defined in section 2801 of title 10, United States Code, under the ju-

risdiction of the Secretary of the Army, the Secretary of the Air Force, or the Secretary of the Navy and located in the Middle East.

(7) The term ''covered population'' means active duty members of the Armed Forces, as defined in section 101(d)(1) of title 10, United States Code, but may be expanded to include employees of a Defense Agency as defined in section 101(a)(11) of title 10, United States Code, by the tenant command of a covered military installation through the telecommunications officer of the covered military installation.

(8) The term ''host nation carrier'' means a telecommunications provider that is—

(A) licensed or authorized to operate in the foreign nation in which the covered military installation is located; and

(B) provides broadband internet access, data, or mobile communication services within the foreign nation.

(9) The term ''hybrid-capable network management system'' means a common architectural framework that supports both broadband internet access service and private or hybrid public and P5G mobile connectivity services, as required and is not limited

to a public only deployment model or a cloud only deployment model.

(10) The term ''integrated connectivity service'' means a fixed, high-speed broadband internet access service, and may include private or hybrid mobile connectivity, including P5G, as required by the Secretary to meet operational requirements.

(11) The term ''Mbps'' means one million bits per second.

(12) The term ''P5G'' means a private mobile network service using 5G mobile network technology and available only to members of the Armed Forces stationed on covered military installations participating in the pilot program established in subsection (a).

(13) The term ''private network management system'' means a network management system that is compliant with the requirements for a cyber security maturity model certification and which is not cloud-based.

(14) The term ''public only deployment model'' means a deployment model in which the network management system is hosted exclusively in a third-party public cloud environment, including AWS, Azure, and Google Cloud and cannot be deployed or

operated on customer-owned or on-premises infrastructure.

(15) the term ''pure public cloud only network management system'' means a network management platform hosted and operated exclusively within a third-party public cloud environment and delivered solely as a cloud-based service, with no capability for deployment, operation, or control within on-premises or private cloud infrastructure.

(16) The term ''telecommunications operator'' means an American contracted entity responsible for the design, installation, and ongoing operations and maintenance of the broadband internet access service and P5G mobile network access to be provided on a covered military installation.

Subtitle F—Miscellaneous Authorities

SEC. 2851. AUTHORITY FOR SECRETARY OF DEFENSE TO ACQUIRE REAL PROPERTY AND FACILITIES IN THE NATIONAL CAPITAL REGION AND TO ADMINISTER SUCH PROPERTY AS PART OF THE PENTAGON RESERVATION.

(a) AUTHORITY OF THE SECRETARY OF DEFENSE TO ACQUIRE REAL PROPERTY AND FACILITIES IN NATIONAL CAPITAL REGION.—Chapter 159 of title 10, United States

Code, is amended by inserting before section 2674 the following new section:

"§ 2673. Acquisition by Secretary of Defense of real property and facilities in the National Capital Region

''(a) AUTHORITY.—Notwithstanding section 2682 of this title, the Secretary of Defense may acquire real property and facilities in the National Capital Region for an element of the Department of Defense other than a military department.

''(b) AUTHORIZATION BY LAW REQUIRED FOR ABOVE-THRESHOLD ACQUISITION.—If the cost to acquire real property or facilities under subsection (a) exceeds the limitations specified in section 2663(c) of this title for an acquisition of interests in land, the Secretary may acquire the real property or facilities only if the acquisition is specifically authorized by law.

''(c) DEFINITIONS.—In this section, the terms 'National Capital Region' and 'Pentagon Reservation' have the meanings given those terms in section 2674(f) of this title.''.

(b) ACQUIRED REAL PROPERTY INCLUDED IN AUTHORITIES APPLICABLE TO PENTAGON RESERVATION.—Section 2674(f)(1) of such title is amended by striking

''means the'' and all that follows and inserting the following: ''means the following:

''(A) The Pentagon.

''(B) The Mark Center Campus.

''(C) The Raven Rock Mountain Complex.

''(D) Any real property or facility acquired under section 2673 of this title.''.

SEC. 2852. ESTABLISHMENT OF A DASHBOARD FOR MILITARY CONSTRUCTION PROJECTS FOR RESEARCH, DEVELOPMENT, TEST, AND EVALUATION FACILITIES.

(a) IN GENERAL.—Not later than one year after the enactment of this section, the Under Secretary of Defense for Research and Engineering, in coordination with each Secretary of a military department, shall establish a central dashboard to monitor and track Research, Development, Test, and Evaluation facility data related to military construction planning, design, and execution metrics across the military departments.

(b) REQUIREMENTS.—The database shall—

(1) use existing financial management tools;

(2) display relevant data for Research, Development, Test, and Evaluation facilities including, at a minimum, facility location, manager of the facility, building number, plant replacement value, age, size,

building condition index, mission dependency index, civil engineering projects programmed for the facility, and value of each such projects;

(3) track unfunded facility requirements;

(4) summarize laboratory real property and non-real property data and metrics;

(5) use Real Property Unique Identifiers (or a similar identifier for real property or other assets authorized by the Secretary of Defense) for Equipment Replacement Value of equipment that is not real property; and

(6) display trends across any data included in the database.

(c) NOTIFICATION TO CONGRESS.—Not later than 30 days after the date on which the dashboard required by subsection (a) is established, the Under Secretary of Defense for Research and Engineering shall submit to the congressional defense committees a certification that the dashboard is operational and meets the requirements of subsection (b).

(d) RECOMMENDATION.—Not later than three years after the enactment of this section, the Under Secretary of Defense for Research and Engineering shall submit to the Secretary of Defense a recommendation on whether use of the dashboard should be continued. Not later than

15 days after making such submission, the Under Secretary shall submit to the congressional defense committees a notice of such recommendation.

(e) TERMINATION.—The authority under this section terminates on December 30, 2030.

(f) DEFINITIONS.—In this section:

(1) The term ''Research, Development, Test, and Evaluation facility'' means a laboratory facility or a test and evaluation facility.

(2) The term ''Equipment Replacement Value'' means the estimated cost to replace the non-real property installed test equipment within a ground test infrastructure asset.

SEC. 2853. ADDITIONAL AUTHORITY FOR DEFENSE SITE REIMBURSEMENT IN THE FEDERATED STATES OF MICRONESIA.

Using amounts authorized to be appropriated on or after the date of enactment of this Act for such purposes, the Department of Defense is authorized to reimburse the Federal States of Micronesia for land acquisition costs for defense sites in Yap.

SEC. 2854. RECOGNITION OF CERTAIN ASPECTS OF THE NATIONAL NAVY UDT–SEAL MUSEUM IN FORT PIERCE, FLORIDA, AS A NATIONAL MEMORIAL, NATIONAL MEMORIAL GARDEN, AND NATIONAL K9 MEMORIAL.

The Secretary of the Navy shall recognize the National Navy SEAL Museum Memorial, the Memorial Garden and Living Beach, and the Naval Special Warfare K9 Memorial of the National Navy UDT–SEAL Museum, located at 3300 North Highway A1A, North Hutchinson Island, in Fort Pierce, Florida, as a national memorial, national memorial garden, and national K9 memorial, respectively, of the Navy SEALs.

SEC. 2855. FORWARD OPERATING BASE READINESS ASSESSMENT, ST. CROIX.

The Secretary of Defense to assess the feasibility of using appropriate facilities on the island of St. Croix as a forward operating base for the Army, the Air Force, and the Marine Corps.

SEC. 2856. FORWARD OPERATING BASE READINESS ASSESSMENT, ST. THOMAS.

The Secretary of Defense to assess the feasibility of using appropriate facilities on the island of St. Thomas as a forward operating base for the Navy.

Subtitle G—Reports and Other Matters

SEC. 2861. ANNUAL REPORT ON SUPERVISION, INSPECTION, AND OVERHEAD COSTS FOR MILITARY CONSTRUCTION PROJECTS.

Subchapter III of chapter 169 of title 10, United States Code, is amended by inserting after section 2851a the following new section:

"§ 2851b. Annual report on supervision, inspection, and overhead costs of military construction projects

''(a) IN GENERAL.—Not later than the date on which the budget of the President for fiscal year 2028 is submitted to Congress pursuant to section 1105 of title 31, and on an annual basis thereafter, the Secretary of Defense, in coordination with the Assistant Secretary of Defense for Energy, Installations, and Environment, shall submit to the congressional defense committees a report with respect to supervision, inspection, and overhead costs for military construction projects during the fiscal year immediately preceding the fiscal year in which the report is submitted.

''(b) ELEMENTS.—Each report required under subsection (a) shall include, with respect to the period covered by the report, the following:

''(1) The total amount of supervision, inspection, and overhead costs accrued, disaggregated by—

''(A) military department; and

''(B) construction agent.

''(2) A description of how amounts appropriated for supervision, inspection, and overhead for military construction projects were expended during such period, disaggregated by—

''(A) direct project supervision and inspection costs;

''(B) field office overhead;

''(C) regional office overhead; and

''(D) headquarters overhead.

''(3) The supervision, inspection, and overhead rate in effect during the fiscal year immediately preceding such period.

''(4) If the supervision, inspection, and overhead rate in effect as of the date of the submission of the report is different than the rate described in paragraph (3)—

''(A) a summary of the changes to such rate; and

''(B) the justification for such changes.

''(5) A summary that compares the total amount of supervision, inspection, and overhead

costs accrued to the total amount of supervision, inspection, and overhead funds expended, including—

"(A) an identification of any surplus or shortfall in such funds; and

"(B) a description of how any surplus of such funds was used.

"(6) The total amount of any similar overhead cost assessed on operation and maintenance funds used for facility sustainment, restoration, and modernization projects, disaggregated by military department, and a description of the facility sustainment, restoration, and modernization projects for which such operation and maintenance funds were expended.

"(7) Any recommendations of the Secretary with respect to adjustments to the supervision, inspection, and overhead rate for the fiscal year immediately succeeding the fiscal year during which such report is submitted, including the justification for any such recommendations.

"(c) DATA SUBMISSION BY CONSTRUCTION AGENTS.—Not later than 90 days before the deadline for each report required under subsection (a), the Chief of Engineers of the United States Army Corps of Engineers and the Commander of the Naval Facilities Engineering

Systems Command shall submit to the Secretary of Defense such data as the Secretary determines necessary to prepare such report, in such form as the Secretary determines appropriate.

''(d) CONSTRUCTION AGENT DEFINED.—In this section, the term 'construction agent' means—

''(1) the United States Army Corps of Engineers;

''(2) the Naval Facilities Engineering Systems Command; or

''(3) any other entity designated to supervise a military construction project pursuant to section 2851 of this title.''.

SEC. 2862. REQUIREMENTS RELATING TO THE MULTI-MISSION DRY DOCK MILITARY CONSTRUCTION PROJECT AT PUGET SOUND NAVAL SHIPYARD, WASHINGTON.

(a) DESIGNATION.—The Secretary of the Navy shall designate the Multi-Mission Dry Dock military construction project at Puget Sound Naval Shipyard, Washington, authorized under section 2201 of the Military Construction Authorization Act for Fiscal Year 2027, to be a subprogram of a major defense acquisition program (as defined in section 4201 of title 10, United States Code).

(b) SUBMISSION.—Not later than six months after the date of the enactment of this Act, the Secretary of the Navy shall submit to the congressional defense committees—

(1) a Baseline Estimate (as defined in section 4371(a)(4) of title 10, United States Code) for the project described in subsection (a); and

(2) the report described in section 4351 of title 10, United States Code, for the most recently concluded fiscal year quarter for such project.

SEC. 2863. COMPTROLLER GENERAL REVIEW OF SHIPYARD INFRASTRUCTURE OPTIMIZATION PROGRAM.

(a) REVIEW.—Not later than 180 days after the date of the enactment of this Act, and annually until Jan 1, 2031, the Comptroller General of the United States shall review the following:

(1) The costs, timeframes, risks, and progress of the Shipyard Infrastructure Optimization Program of the Department of the Navy.

(2) The status of each project conducted under the Shipyard Infrastructure Optimization Program.

(b) BRIEFING.—Not later than March 1, 2027, and annually thereafter until March 1, 2031, the Comptroller General shall provide to the congressional defense commit-

tees a briefing on findings from the review required under subsection (a).

(c) REPORT.—Not later than June 1, 2031, the Comptroller General shall provide to the congressional defense committees a report on the findings from the review required under subsection (a).

SEC. 2864. CONDITIONS ON TRANSFER OF DEPARTMENT OF DEFENSE POWER GRID INFRASTRUCTURE IN GUAM.

(a) GRID INFRASTRUCTURE TRANSFER PENDING REQUIREMENTS.—The Secretary of Defense may not transfer ownership of any power generation infrastructure or power transmission infrastructure located in Guam to the Guam Power Authority until the Secretary certifies to the congressional defense committees that such infrastructure is sufficient to meet projected mission requirements of the Department of Defense for power generation and transmission capacity in Guam through fiscal year 2036.

(b) UNDERGROUND TRANSMISSION REQUIREMENT.—Not less than 50 percent of the total linear miles of power transmission lines transferred to the Guam Power Authority pursuant to any agreement with the Secretary of Defense shall consist of underground transmission lines. For purposes of this subsection, trans-

mission lines supported by above-ground concrete poles shall not be considered to be underground transmission lines.

(c) AUTHORIZATION TO USE OPERATION AND MAINTENANCE AND MILITARY CONSTRUCTION FUNDS.—

(1) AMOUNTS DESCRIBED.—The Secretary of Defense may use amounts authorized to be appropriated or otherwise made available in fiscal year 2027 or subsequent fiscal years for Operation and Maintenance accounts and for Military Construction accounts to carry out upgrades, repairs, modernization, hardening, or undergrounding of transmission lines, capacity expansion, or other improvements necessary to ensure that power generation infrastructure and power transmission infrastructure in Guam meets the requirements set forth in this section before the Secretary transfers ownership of any such infrastructure to the Guam Power Authority. This paragraph shall apply to infrastructure owned by the Secretary of Defense, including infrastructure that is currently leased to, operated by, or otherwise made available for use by the Guam Power Authority.

(2) USE OF AMOUNTS.—Amounts described in paragraph (1) may be obligated or expended for

planning, design, environmental review, construction, recapitalization, equipment procurement, cybersecurity enhancements, resiliency measures, and related project management costs for power generation infrastructure and power transmission infrastructure necessary to achieve compliance with this section, regardless of whether such infrastructure is under direct control of the Secretary of Defense or subject to a lease or operating agreement with the Guam Power Authority at the time such funds are obligated.

(3) APPLICABILITY.—The authority provided by this subsection is in addition to any other authority available to the Secretary of Defense and shall not be construed to limit the availability or use of amounts otherwise authorized to be appropriated or otherwise made available by law for Operation and Maintenance accounts and for Military Construction accounts.

(d) GUAM POWER AUTHORITY DEFINED.—In this section, the term ''Guam Power Authority'' means the public corporation of the Government of Guam responsible for electric generation and transmission services in Guam.

SEC. 2865. ANNUAL REPORT ON MILITARY CONSTRUCTION PROJECTS SUPPORTING READINESS AND PUBLIC INTEREST IN GUAM.

Not later than December 31 of the first calendar year beginning after the date of the enactment of this section, and on an annual basis thereafter for five years, the Commander of Joint Region Marianas, in consultation with the Governor of Guam, shall submit to the Committee on Armed Services of the House of Representatives a report on military construction projects in progress as of the date of the enactment of this Act that support military readiness and public interests in Guam. Such report shall include military construction projects carried out—

(1) pursuant to—

(A) section 2802 of title 10, United States Code;

(B) section 2805 of such title;

(C) section 2815 of such title;

(D) section 2391(d) of such title; or

(E) any other provision of law granting authority to the Commander to carry out such a military construction project;

(2) using amounts authorized to be appropriated for the fiscal year covered by the report for operation and maintenance; and

(3) under any authority under which the Department of Defense transfers funds to other Federal agencies.

SEC. 2866. ANNUAL REPORT ON EFFECTS OF EXTREME WEATHER ON DEPARTMENT OF DEFENSE MILITARY INSTALLATIONS AND COMBATANT COMMANDER REQUIREMENTS.

(a) ANNUAL REPORT.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and on an annual basis thereafter, the Secretary of Defense shall submit to the congressional defense committees a report on vulnerabilities to military installations and combatant commander requirements resulting from extreme weather.

(2) CONSIDERATION.—In developing the first report required under paragraph (1), the Secretary shall—

(A) consider the report submitted under section 335(c) of the National Defense Authorization Act for Fiscal Year 2018 (Public Law 115–91; 131 Stat. 1358); and

(B) expand upon the elements described in subsection (c) of such section that were included in such report.

(b) ELEMENTS.—The report required by subsection (a) shall include the following:

(1) An assessment of how extreme weather affects—

(A) low-lying military installations;

(B) military installations under the jurisdiction of the Secretary of the Navy;

(C) military installations located outside the United States;

(D) the ability of members of the Armed Forces to use training ranges on military installations; and

(E) housing safety and food security on military installations.

(2) With respect to military installations located outside the United States, an assessment of the collaboration between the Department and the military or civilian agencies of the government of that country or nongovernmental organizations operating in that country to adapt to risks from extreme weather.

(3) An assessment of the strategic benefits to the national defense of the United States derived from—

(A) the segregation of Department infrastructure located in the United States from the national electric grid; and

(B) the use of energy-efficient, distributed, and smart power grids by the Armed Forces in the United States and overseas to ensure affordable access to electricity.

(4) For each military department, a list of the ten military installations under the jurisdiction of the department that are most vulnerable to extreme weather based on the effects of—

(A) geographic location;

(B) rising sea tides and sea levels;

(C) increased flooding;

(D) drought;

(E) desertification;

(F) wildfires;

(G) thawing permafrost; and

(H) such other categories as the Secretary determines necessary.

(5) A summary of efforts to mitigate the effects listed in subparagraphs (A) through (H) of paragraph (4), in addition to efforts undertaken by the Department as of the date of the enactment of this

section, that the Secretary determines may be necessary to—

(A) ensure the continued operational viability of the military installations identified under such paragraph; and

(B) increase the resilience of such military installations.

(6) An estimation of the costs to the United States of such the efforts described in paragraph (5).

(7) An assessment of how adapting to extreme weather affects the readiness of the Armed Forces to address the threats posed by Russia, China, Iran, North Korea, and violent extremism.

(c) FORM.—Each report required by subsection (a) shall be submitted in unclassified form but may contain a classified annex.

(d) PUBLICATION.—Upon submission of a report required by subsection (a), the Secretary of Defense shall publish the unclassified portion of the report on a publicly-available Internet website of the Department of Defense.

(e) UNITED STATES DEFINED.—In this section, the term ''United States'' means the several States, the District of Columbia, and any territory or possession of the United States.

SEC. 2867. REPORTS TO CENSUS BUREAU WITH RESPECT TO MILITARY AND CIVILIAN PERSONNEL ON MILITARY INSTALLATIONS.

(a) REPORTS REQUIRED.—Prior to the completion of each decennial census, the Secretary of Defense shall submit to the Director of the Census a report that identifies, with respect to each military installation located in the contiguous United States, the number of—

(1) military personnel who reside on such installation; and

(2) civilian personnel who reside on such installation.

(b) COORDINATION.—In carrying out subsection (a), the Secretary of Defense shall coordinate with the Secretaries of the military departments.

(c) MILITARY INSTALLATION DEFINED.—In this section, the term ''military installation'' has the meaning given that term in section 2801 of title 10, United States Code.

SEC. 2868. REPORT ON INTERGOVERNMENTAL SUPPORT AGREEMENTS FOR CERTAIN DEFENSE INSTALLATIONS.

Not later than December 31, 2026, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the use of intergovernmental support agreements

(as defined in section 2679 of title 10, United States Code) for military installations funded by a working-capital fund (established pursuant to section 2208 such title).

SEC. 2869. ASSESSMENT OF THE USE OF INTERGOVERNMENTAL SUPPORT AGREEMENTS FOR UNSPECIFIED MINOR MILITARY CONSTRUCTION PROJECTS.

(a) REPORT REQUIRED.—Not later than 120 days after the date of the enactment of this section, each covered Assistant Secretary shall submit to the congressional defense committees a report assessing the potential use of intergovernmental support agreements (as defined in section 2679 title 10, United States Code) to carry out unspecified minor military construction projects under section 2805 of title 10, United States Code.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) An assessment of the feasibility of applying revised maximum dollar thresholds for unspecified minor military construction projects carried out under intergovernmental support agreements as follows:

(A) $15,000,000 for laboratory revitalization projects.

(B) $12,000,000 for projects carried out using amounts from the Operation and Maintenance account.

(2) A list of not more than 10 projects included in a facilities investment plan or facility support program of a military department that could be carried out under intergovernmental support agreements.

(c) COVERED ASSISTANT SECRETARY DEFINED.—In this section, the term ''covered Assistant Secretary'' means—

(1) the Assistant Secretary of the Army for Installations, Energy, and Environment;

(2) the Assistant Secretary of the Navy for Energy, Installations, and Environment; and

(3) the Assistant Secretary of the Air Force for Installations, Environment, and Energy.

SEC. 2870. SENSE OF CONGRESS WITH RESPECT TO WARGAMING CENTER AT MAXWELL AIR FORCE BASE, MONTGOMERY, ALABAMA.

It is the sense of Congress that the Secretary of the Air Force should authorize and prioritize the design and development of a state-of-the-art Combined All-Domain Wargaming Center at Maxwell Air Force Base, Montgomery, Alabama to enhance the strategic training, edu-

cation, and simulation capabilities of the Department of Defense.

SEC. 2871. REPORT ON POWERTRAIN FACILITY AND FACILITY MODERNIZATION AT CORPUS CHRISTI ARMY DEPOT, CORPUS CHRISTI, TEXAS.

(a) IN GENERAL.—Not later than 60 days after the date of the enactment of this section, the Secretary of Defense shall provide to the Committees on Armed Services of the Senate and the House of Representatives a report on the status of Powertrain Engines Assembly Facility completion and facility modernization at Corpus Christi Army Depot, Corpus Christi, Texas.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) An accounting of the $60,000,000 provided for the Corpus Christi Army Depot in section 4601 of the National Defense Authorization Act for Fiscal Year 2026 (Public Law 119–60; 139 Stat. 1535) for the project titled ''COST TO COMPLETE—POWERTRAIN FACILITY (ENGINE ASSEMBLY''.

(2) An accounting of the $174,000,000 provided under section 20010 of Public Law 119–21 (139 Stat. 124) for facility modernization and workload at Corpus Christi Army Depot.

SEC. 2872. REPORT ON UNDERUTILIZED AIR NATIONAL GUARD AIRFIELD INFRASTRUCTURE.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this section, the Secretary of the Air Force shall, in consultation with the Chief of the National Guard Bureau and the Commander of United States Strategic Command, submit to the congressional defense committees a report evaluating the feasibility, infrastructure readiness, and cost-benefits of co-locating permanent, manned flying missions at Air National Guard installations that currently possess active runways but lack manned active aircraft.

(b) ELEMENTS.—The report required under subsection (a) shall include the following:

(1) An inventory of Air National Guard installations described in subsection (a) that possess active runway infrastructure of 9,000 feet or greater, secure military enclaves, and proximity to regional training corridors or geographic commands.

(2) An assessment of the capacity of such joint-use commercial airfield infrastructure, including taxiways and secure ramp space, to host permanent or distributed strategic assets.

(3) An evaluation of the workforce readiness and technical expertise, including cyber, intelligence,

and remotely piloted aircraft operations, to support advanced manned flying missions.

(4) An assessment of alternative or distributed basing options required to support strategic long-range strike systems in the event that total procurement exceeds the initial program of record.

SEC. 2873. REPORT ON BIOLOGICAL READINESS OF MILITARY INSTALLATIONS UNDER THE JURISDICTION OF THE SECRETARY OF THE ARMY.

(a) REPORT REQUIRED.—Not later than March 31, 2027, the commanding officer of the United States Army Installation Management Command shall submit to the congressional defense committees a report on the readiness of military installations under the jurisdiction of the Secretary of the Army to detect, respond to, mitigate, and sustain operations during biological threat conditions.

(b) ELEMENTS.—The report shall include—

(1) an assessment of current biological detection, warning, mitigation, emergency response, and continuity-of-operations capabilities at military installations under the jurisdiction of the Secretary of the Army;

(2) an assessment of the extent to which biological resilience has been incorporated into installation readiness, force protection, emergency manage-

ment, continuity-of-operations, and facility operations plans;

(3) an assessment of capability gaps, resource constraints, policy barriers, and acquisition challenges affecting installation biological readiness;

(4) an assessment of opportunities to employ commercial and other mature technologies, including air monitoring, filtration, treatment, detection, and facility-level warning systems, to improve biological security and resilience; and

(5) a five-year implementation and budget plan for improving biological readiness across military installations under the jurisdiction of the Secretary of the Army, including consideration of ASHRAE Standard 241 titled ''Control of Infectious Aerosols'' and related commercial best practices.

(c) FORM.—The report shall be submitted in both classified and unclassified forms.

DIVISION C—DEPARTMENT OF ENERGY NATIONAL SECURITY AUTHORIZATIONS AND OTHER AUTHORIZATIONS

TITLE XXXI—DEPARTMENT OF ENERGY NATIONAL SECURITY PROGRAMS

Subtitle A—National Security Programs and Authorizations

SEC. 3101. NATIONAL NUCLEAR SECURITY ADMINISTRATION.

(a) AUTHORIZATION OF APPROPRIATIONS.—Funds are hereby authorized to be appropriated to the Department of Energy for fiscal year 2027 for the activities of the National Nuclear Security Administration in carrying out programs as specified in the funding table in section 4701.

(b) AUTHORIZATION OF NEW PLANT PROJECTS.—From funds referred to in subsection (a) that are available for carrying out plant projects, the Secretary of Energy may carry out new plant projects for the National Nuclear Security Administration as follows:

Project 27–D–512 Plutonium Engineering Support Building, Los Alamos National Laboratory, Los Alamos, New Mexico, $88,700,000.

SEC. 3102. DEFENSE ENVIRONMENTAL CLEANUP.

Funds are hereby authorized to be appropriated to the Department of Energy for fiscal year 2027 for defense environmental cleanup activities in carrying out programs as specified in the funding table in section 4701.

SEC. 3103. OTHER DEFENSE ACTIVITIES.

Funds are hereby authorized to be appropriated to the Department of Energy for fiscal year 2027 for other defense activities in carrying out programs as specified in the funding table in section 4701.

SEC. 3104. NUCLEAR ENERGY.

Funds are hereby authorized to be appropriated to the Department of Energy for fiscal year 2027 for nuclear energy as specified in the funding table in section 4701.

Subtitle B—Program Authorizations, Restrictions, and Limitations

SEC. 3111. MODIFICATIONS TO REQUIREMENTS FOR PLUTONIUM PIT PRODUCTION CAPACITY.

Section 6128 of title 10, United States Code, is amended—

(1) by amending subsection (a) to read as follows:

''(a) REQUIREMENT.—Consistent with the requirements of the Secretary of Defense, the Secretary of Energy shall ensure that, by not later than 2050, the nuclear

security enterprise has the capability to reliably produce no fewer than 180 war reserve plutonium pits annually.''; and

(2) in subsection (e)—

(A) in paragraph (1), by striking ''each year'' and inserting ''each odd numbered year''; and

(B) in paragraph (2)(D), by striking ''as compared to the report submitted during the previous year'' and inserting ''as compared to the preceding report''.

SEC. 3112. MODIFICATION TO IMPLEMENTATION OF PROGRAMS FOR ACCELERATION OF REPLACEMENT OF CESIUM BLOOD IRRADIATION SOURCES.

Section 6156(b)(2) of title 10, United States Code, is amended by striking ''50 percent of the per-device cost'' and inserting ''100 percent of the cost''.

SEC. 3113. OTHER TRANSACTION AUTHORITY.

Chapter 608 of title 10, United States Code, is amended by inserting after section 6328 the following new section:

''§ 6329. Other transaction authority

''(a) AUTHORITY.—In addition to other acquisition authorities, the Administrator may exercise the acquisition

authorities referred to in sections 4021 and 4022 of this title to enhance the mission effectiveness of the Administration or to improve the nuclear security enterprise, subject to the provisions of this section.

''(b) ADMINISTERING AUTHORITY.—In carrying out this section, section 4021 and 4022 of this title shall be applied as follows:

''(1) By substituting 'Administrator' for 'Secretary of Defense', 'Secretary', and 'covered official'.

''(2) By substituting 'Administration' for 'Department of Defense' and 'agency'.

''(3) By substituting 'nontraditional government contractor' for 'nontraditional defense contractor'.

''(4) By substituting 'construction' for 'military construction'.

''(c) DELEGATION.—The Administrator may not delegate the authority under subsection (a) to any official other than the Principal Deputy Administrator.

''(d) ANNUAL REPORT.—(1) Not later than March 1, 2028, and annually thereafter, the Administrator shall submit to the congressional defense committees a report detailing the use by the Administrator of the authority under subsection (a).

''(2) Each report under paragraph (1) shall contain the following:

''(A) The number of transactions entered into using the authority under subsection (a).

''(B) The participants to each such transaction.

''(C) The purpose of each such the transaction.

''(D) The amount of each such transaction.

''(E) Any recommendations by the Administrator for legislative changes to improve the use of such authority.''.

SEC. 3114. EXTENSION OF ALTERNATIVE PERSONNEL SYSTEM OF THE NATIONAL NUCLEAR SECURITY ADMINISTRATION.

Section 3116 of the National Defense Authorization Act for Fiscal Year 2018 (Public Law 115–91; 50 U.S.C. 2441 note prec.) is—

(1) amended in subsection (a)(1), by striking ''until the date that is 10 years after the date of the enactment of this Act'' and inserting ''through December 31, 2032'';

(2) transferred to subtitle C of the National Nuclear Security Administration Act (50 U.S.C. 2441 et seq.);

(3) inserted after section 3241A of such Act; and

(4) redesignated as section 3242.

SEC. 3115. DEADLINE FOR COMMENCEMENT OF HIGH EXPLOSIVE SYNTHESIS, FORMULATION, AND PRODUCTION FACILITY.

Section 3127(a)(1) of the National Defense Authorization Act for Fiscal Year 2024 (Public Law 118–31; 137 Stat. 794) is amended by striking ''2034'' and inserting ''2032''.

SEC. 3116. CONTRACTING AUTHORITY TO ACQUIRE COMMERCIAL TESTING SERVICES FOR EFFECTS OF RADIATION.

(a) IN GENERAL.—The Administrator of the National Nuclear Security Administration, in coordination with the Secretary of Defense, may seek to enter into contractual arrangements with private entities to acquire services to test the effects of radiation in support of National Nuclear Security Administration and Department of Defense mission requirements for—

(1) nuclear deterrence;

(2) strategic systems survivability; and

(3) weapons component qualification testing.

(b) REPORTING REQUIREMENT.—Not later than 180 days after the first contractual agreement is executed under this section, and annually thereafter, the Administrator, in coordination with the Secretary, shall submit to Congress a report that includes—

(1) an assessment on the contractual arrangements best suited for accelerating timelines and delivering capabilities, to include, with respect to the number of parts to be tested, the—

(A) cost per radiation shot;

(B) cost per qualification; or

(C) cost per dose rate or fluence;

(2) testing capabilities acquired under the contractual agreement and the cost of such testing capabilities;

(3) an identification of the entities that will use such testing capabilities;

(4) cost comparison analysis relative to Government-owned facilities;

(5) test execution timelines compared to Government-owned facilities; and

(6) an assessment of how commercial entities can complement ongoing Government-owned facilities; and

(7) any recommendations for additional authorities or resources that the Administrator or the Secretary determines is necessary to support the implementation of this section.

SEC. 3117. PROHIBITION RELATING TO RECLASSIFICATION OF HIGH-LEVEL WASTE.

None of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of Energy may be obligated or expended by the Secretary of Energy to apply the interpretation of high-level radioactive waste described in the notice published by the Secretary titled ''Supplemental Notice Concerning U.S. Department of Energy Interpretation of High-Level Radioactive Waste'' (84 Fed. Reg. 26835), or successor notice, with respect to such waste located in the State of Washington.

SEC. 3118. PROHIBITION ON AVAILABILITY OF FUNDS FOR NATIONAL LABORATORIES THAT ADMIT CERTAIN FOREIGN NATIONAL VISITORS.

(a) PROHIBITION.—No funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2027 for the Department of Energy may be obligated or expended for any National Laboratory that authorizes the admission of a covered visitor to any area of the National Laboratory not accessible to the general public.

(b) DEFINITIONS.—In this section:

(1) The term ''covered visitor'', with respect to a National Laboratory—

(A) means a foreign national from a country of concern (as such term is defined in sec-

tion 8512 of the National Defense Authorization Act for Fiscal Year 2026 (50 U.S.C. 4581 note; Public Law 119–60)) that—

(i) is not an employee of the Department of Energy or a management and operations contractor operating the National Laboratory on behalf of the Department of Energy; and

(ii) has requested access to the premises, information, or technology of the National Laboratory; and

(B) does not include any lawful permanent resident of the United States.

(2) The term ''National Laboratory'' has the meaning given such term in section 2 of the Energy Policy Act of 2005 (42 U.S.C. 15801).

SEC. 3119. DESIGNATION OF NATIONAL NUCLEAR SECURITY ADMINISTRATION AS TECHNICAL NUCLEAR FORENSICS LEAD.

(a) IN GENERAL.—Section 3211(b) of the National Nuclear Security Administration Act (50 U.S.C. 2401(b)) is amended by adding at the end the following new paragraph:

''(7) To lead the technical nuclear forensics efforts of the United States.''.

(b) RULE OF CONSTRUCTION.—The amendment made by this section may not be construed to alter the functions vested in any department or agency of the Federal Government by statute other than the National Nuclear Security Administration pursuant to such amendment.

Subtitle C—Reports and Other Matters

SEC. 3121. TECHNICAL AND CONFORMING AMENDMENTS RELATING TO CODIFICATION OF ATOMIC ENERGY DEFENSE PROVISIONS.

(a) SECTION 6114.—Section 6114 of title 10, United States Code, is amended—

(1) in subsection (c)(9), by striking ''summary or''; and

(2) in subsection (d)(1)(A)—

(A) in clause (i), by striking ''subsection (d)(4)(A)(i)'' and inserting ''subsection (c)(4)(A)(i)''; and

(B) in clause (ii)—

(i) by striking ''subsection (d)(4)'' and inserting ''subsection (c)(4)''; and

(ii) by striking ''subparagraph (B)'' and inserting ''subparagraph (C)''.

(b) SECTION 6125.—Section 6125 of such title is amended in the section heading by striking ''**acquisition reports**'' and inserting ''**Acquisition Reports**''.

(c) SECTION 6171.—Section 6171 of such title is amended in the section heading by striking ''**environmental cleanup account**'' and inserting ''**Environmental Cleanup Account**''.

(d) SECTION 6180.—Section 6180(c) of such title is amended to read as follows:

''(c) COORDINATION.—In carrying out this section, the Secretary shall act through the Deputy Secretary of Energy, in coordination with such other officials of the Department as the Deputy Secretary determines appropriate.''.

(e) SECTION 6222.—Section 6222(c)(2)(D) of such title is amended by inserting ''pursuant'' after ''completed''.

(f) SECTION 6226.—Section 6226 of such title is amended in the section heading by striking ''**Annual**'' and inserting ''**Biennial**''.

(g) SECTION 6272.—Section 6272(a) of such title is amended by striking ''sections 5791 and 5792'' and inserting ''sections 6281 and 6282''.

(h) SECTION 6322.—Section 6322 of such title is amended in the section heading by striking ''**and report**''.

(i) SECTION 6332.—Section 6332 of such title is amended—

(1) by striking ''Of the funds'' and inserting ''(a) AUTHORITY.—Of the funds'';

(2) by striking ''in this Act or subsequent'' and inserting ''in any'';

(3) by striking ''Acts,'' and inserting ''Act,'';

(4) by striking '': *Provided,* That the'' and inserting ''. The'';

(5) by striking '': *Provided further,* That'' and inserting a period; and

(6) by striking ''notwithstanding Department'' and inserting the following:

''(b) ELIGIBILITY.—Notwithstanding Department''.

(j) SECTION 6334.—Section 6334 of such title is amended—

(1) by striking ''Of the funds'' and inserting ''Beginning October 1, 2015, of the funds'';

(2) by striking ''this or any subsequent Act'' and inserting ''any Act''; and

(3) by striking the colon and all that follows through ''2015''.

(k) SECTION 6353.—Section 6353 of such title is amended—

(1) by striking ''The Administrator may'' and inserting ''(a) AUTHORITY.—The Administrator may'';

(2) by striking '': *Provided,*'' and inserting a period;

(3) by striking ''That of the amount'' and inserting the following:

''(b) AMOUNTS.—Of the amount'';

(4) in subsection (b), as so designated—

(A) by striking ''these activities'' and inserting ''the activities under subsection (a)'';

(B) by striking '': *Provided further,* That'' and inserting a period; and

(C) by striking ''for purposes of this section,'' and inserting the following:

''(c) COVERED NUCLEAR WEAPONS FACILITY DEFINED.—In this section:''; and

(5) in paragraph (5) of subsection (c), as so designated, by striking ''Nevada Test Site'' and inserting ''Nevada National Security Site''.

SEC. 3122. MODIFICATION OF SUBMISSION DEADLINE FOR CERTAIN SELECTED ACQUISITION REPORTS.

Section 6125(a)(1) of title 10, United States Code, is amended by striking ''At the end of the first quarter of each fiscal year'' and inserting ''Not later than 30 days after the date on which the President transmits to Congress the budget for the following fiscal year pursuant to section 1105 of title 31''.

TITLE XXXII—DEFENSE NUCLEAR FACILITIES SAFETY BOARD

SEC. 3201. AUTHORIZATION.

There are authorized to be appropriated for fiscal year 2027, $45,000,000 for the operation of the Defense Nuclear Facilities Safety Board under chapter 21 of the Atomic Energy Act of 1954 (42 U.S.C. 2286 et seq.).

TITLE XXXIV—NAVAL PETROLEUM RESERVES

SEC. 3401. AUTHORIZATION OF APPROPRIATIONS.

(a) AMOUNT.—There are authorized to be appropriated to the Secretary of Energy $13,000,000 for fiscal year 2027 for the purpose of carrying out activities under chapter 869 of title 10, United States Code, relating to the naval petroleum reserves.

(b) PERIOD OF AVAILABILITY.—Funds appropriated pursuant to the authorization of appropriations in subsection (a) shall remain available until expended.

TITLE XXXV—MARITIME ADMINISTRATION

Subtitle A—Authorization of Appropriations

Subtitle A—Maritime Administration

SEC. 3501. AUTHORIZATION OF APPROPRIATIONS FOR MARITIME ADMINISTRATION.

(a) IN GENERAL.—There are authorized to be appropriated to the Department of Transportation for fiscal year 2027, for programs associated with maintaining the United States Merchant Marine, the following amounts:

(1) For expenses necessary to support the United States Merchant Marine Academy, $873,500,000 of which—

(A) $129,500,000 shall be for Academy operations;

(B) $120,000,000 shall be for construction of facilities and infrastructure at the United States Merchant Marine Academy in accordance with the Campus Modernization Plan and

for facilities maintenance and repair and equipment; and

(C) $624,000,000 shall be for construction of capital improvement projects at the United States Merchant Marine Academy, provided that such authorization shall expire on the later of—

(i) October 1, 2031; or

(ii) the date of the enactment of an Act authorizing funds for the United States Merchant Marine Academy for fiscal year 2032.

(2) For expenses necessary to support the State maritime academies, $53,400,000, of which—

(A) $9,400,000 shall be for the Student Incentive Payment Program;

(B) $7,000,000 shall be for direct payments for State maritime academies;

(C) $12,000,000 shall be for training ship fuel assistance;

(D) $4,000,000 shall be for offsetting the costs of training ship sharing; and

(E) $21,000,000 shall be for maintenance and repair of State maritime academy training vessels.

(3) For expenses necessary to support the National Security Multi-Mission Vessel program, including funds for construction and necessary expenses to construct shoreside infrastructure to support such vessels, $75,000,000.

(4) For expenses necessary to support Maritime Administration operations and programs, $105,760,000, of which—

(A) $20,000,000 shall be for the maritime environmental and technical assistance program under section 50307 of title 46, United States Code;

(B) $20,000,000 shall be to support the United States Center for Maritime Innovation under section 50307(e) of title 46, United States Code;

(C) $15,000,000 shall be for the United States marine highway program, including to make grants authorized under section 55601 of title 46, United States Code;

(D) $2,000,000 shall be for the Office of Environment and Compliance, including to assist in the environmental review of grant and permit programs administered by the Maritime Administration; and

(E) $73,760,000 shall be for headquarters operations expenses.

(5) For expenses necessary for the disposal of obsolete vessels in the National Defense Reserve Fleet of the Maritime Administration, $6,000,000.

(6) For expenses necessary to maintain and preserve a United States flag merchant marine to serve the national security needs of the United States under chapter 531 of title 46, United States Code, $400,500,000.

(7) For expenses necessary to maintain a Cable Security Fleet to serve the national security needs of the United States under chapter 532 of title 46, United States Code, $30,000,000.

(8) For expenses necessary to maintain and preserve a United States flag merchant marine to serve the national security needs of the United States under chapter 534 of title 46, United States Code, $167,600,000.

(9) For expenses necessary for the loan guarantee program authorized under chapter 537 of title 46, United States Code, $33,700,000, of which—

(A) $30,000,000 may be used for the cost (as such term is defined in section 502(5) of the Federal Credit Reform Act of 1990 (2

U.S.C. 661a(5)) of loan guarantees under the program; and

(B) $3,700,000 may be used for administrative expenses relating to loan guarantee commitments under the program.

(10) For expenses necessary to provide assistance to small shipyards and for maritime training programs authorized under section 54101 of title 46, United States Code, $105,000,000.

(11) For expenses necessary to implement the port infrastructure development program, as authorized under section 54301 of title 46, United States Code, subject to the limitation under subsection (b), $550,000,000, to remain available until expended.

(12) For maritime incentive payments to centers of excellence designated under section 51706 of title 46, United States Code, $300,000,000.

(b) LIMITATION.—

(1) IN GENERAL.—No funds may be obligated or expended for the port infrastructure development program pursuant to subsection (a)(10) to make a grant to be used for the purchase of fully automated cargo handling equipment that is remotely operated or remotely monitored with or without the exercise of human intervention or control, if the Secretary of

Transportation determines such equipment would result in a net loss of jobs within a port or port terminal.

(2) REPORT.—If the Secretary makes a determination pursuant to paragraph (1), not later than three days after the date on which such determination is made, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives a report that includes the data and analysis used by the Secretary in making such determination.

Subtitle B—Merchant Marine Academy

SEC. 3511. TRANSFERRING THE ADMINISTRATION OF THE UNITED STATES MERCHANT MARINE ACADEMY TO THE DEPARTMENT.

Chapter 513 of title 46, United States Code, is amended—

(1) in section 51301(c)(1), by striking ''of the Maritime Administrator under the'' and inserting ''and'';

(2) in section 51307—

(A) in subsection (b)—

(i) in paragraph (1) by striking ''if available'' and inserting ''if assigned to such vessel by the Superintendent of the Academy''; and

(ii) in paragraphs (2) and (3) by striking ''Maritime Administrator'' each place it appears and inserting ''Secretary''; and

(B) in subsection (c)(1) by striking ''if available'' and inserting ''if assigned to such vessel by the Superintendent of the Academy'';

(3) in section 51309—

(A) in subsection (a)(1) by striking ''United States Merchant Marine''; and

(B) in subsection (b) by striking ''Maritime Administration's Operations and Training'' and inserting ''Superintendent of the Academy's'';

(4) in section 51310 by striking ''of the military department that has jurisdiction over the service'' and inserting ''concerned, as defined in section 101(a)(9) of title 10,'';

(5) in section 51312(g)(3) by striking ''Maritime Administrator and'';

(6) in section 51313(a) by striking ''the Maritime Administrator and'';

(7) in section 51314(b) by striking ''Maritime Administration's Operations and Training'' and inserting ''Superintendent of the Academy's'';

(8) in section 51315—

(A) by striking ''Maritime Administrator'' in each place it appears and inserting ''Superintendent of the Academy'';

(B) in subsection (a)—

(i) by striking ''Merchant Marine'' and inserting ''such''; and

(ii) by striking ''Administrator's'' and inserting ''Superintendent's''; and

(C) in subsection (b) by striking ''Academy Gift Fund'' and inserting ''United States Merchant Marine Academy Gift Fund'' each place it appears;

(9) in section 51316 by striking ''Maritime Administrator'' and inserting ''Secretary'';

(10) in section 51317 by striking ''Maritime Administrator'' and inserting ''Superintendent of the Academy'' each place it appears;

(11) in section 51318—

(A) in subsection (a)(3)(A) by striking ''Maritime Administrator'' and inserting ''Secretary'';

(B) in subsection (b)—

(i) in paragraph (1) in the matter preceding subparagraph (A) by striking ''Maritime Administrator'' and inserting ''Secretary'';

(ii) in paragraph (2)(A) by striking ''Maritime Administrator'' and inserting ''Secretary''; and

(iii) in paragraph (3)(A) by striking ''Maritime Administrator'' and inserting ''Superintendent''; and

(C) by striking ''Office of Civil Rights of the Maritime Administration'' and inserting ''Office of the Secretary Office of Civil Rights'';

(12) in section 51319—

(A) in subsection (a)—

(i) in paragraph (4)(A)—

(I) by striking ''Not later than 90 days after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2018, the

Maritime Administrator'' and inserting ''The Superintendent''; and

(II) by striking ''Office of Civil Rights of the Maritime Administration'' and inserting ''Office of the Secretary Office of Civil Rights''; and

(ii) in paragraph (5)(H) by striking ''Director of the Maritime Administration Office of Civil Rights'' and inserting ''Director of the Office of the Secretary Office of Civil Rights'';

(B) in subsection (b)(1)—

(i) by amending subparagraph (A) to read as follows:

''(A) REPORTING.—Each sexual assault response coordinator shall report directly—

''(i) to the Superintendent; or

''(ii) upon belief that the Superintendent is acting inappropriately regarding sexual assault prevention and response matters, to the Secretary.''; and

(ii) in subparagraph (B) by striking ''Maritime Administration'' and inserting ''Office of the Secretary''; and

(C) in subsection (e) by striking ''Administrator of the Maritime Administration'' and inserting ''Secretary'';

(13) in sections 51320, 51321, 51322, 51325, and 51328 by striking ''Maritime Administrator'' and inserting ''Secretary'' each place it appears;

(14) in section 51322(c)(2) by striking ''with the international Convention of Safety of Life at Sea, 1974 (32 UST 47) and sections 8106 and 70103(c)'' and inserting the following: ''with

''(A) section 8106;

''(B) section 70103(c); and

''(C)(i) the International Convention of Safety of Life at Sea, 1974 (32 UST 47); or

''(ii) with a certificate of inspection issued under section 3309.'';

(15) in section 51322(e) by striking ''or staff of the Maritime Administration'' each place it appears; and

(16) in section 51326—

(A) in subsection (a) by striking ''Maritime Administrator'' and inserting ''Secretary'';

(B) in subsection (c) by striking ''Maritime Administrator'' and inserting ''Secretary'';

(C) in subsection (d) by striking ''Maritime Administrator'' and inserting ''Secretary'' each place it appears;

(D) in subsection (e) by striking ''Maritime Administrator'' and inserting ''Superintendent'';

(E) in subsection (f)(3) by striking ''Maritime Administrator'' and inserting ''Superintendent''; and

(F) in subsection (h) by striking ''Maritime Administrator'' and inserting ''Superintendent''.

SEC. 3512. ESTABLISHMENT OF THE UNITED STATES MERCHANT MARINE ACADEMY AS AN OFFICE WITHIN THE OFFICE IN THE DEPARTMENT.

Section 102 of title 49, United States Code, is amended by adding at the end the following:

''(k) OFFICE OF THE UNITED STATES MERCHANT MARINE ACADEMY.—

''(1) ESTABLISHMENT.—There is established in the Department an Office of the United States Merchant Marine Academy to—

''(A) operate the United States Merchant Marine Academy in Kings Point, New York; and

''(B) monitor the service obligations of Academy graduates established under chapter 513 of title 46.

''(2) LEADERSHIP.—

''(A) IN GENERAL.—

''(i) SUPERINTENDENT.—The head of the Office shall be the Superintendent of the Academy appointed under section 51301(c)(2) of title 46.

''(ii) REPORTING.—The Superintendent shall report directly to the Secretary of Transportation to carry out the duties prescribed by the Secretary.

''(B) DEPUTY SUPERINTENDENT.—

''(i) IN GENERAL.—A Deputy Superintendent of the Academy shall be appointed in the competitive service by the Secretary.

''(ii) DUTIES AND POWERS.—The Deputy Superintendent shall carry out the duties and powers prescribed by the Superintendent.

''(3) ELIMINATION OR CONSOLIDATION OF OFFICES AND OFFICE FUNCTIONS.—The Secretary may eliminate or consolidate any office or office function

within the Department into the Office of the United States Merchant Marine Academy that the Secretary determines has duties, responsibilities, resources, or expertise that support the purposes of the Office.

''(4) STAFFING AND BUDGETARY RESOURCES.—

''(A) IN GENERAL.—The Secretary shall ensure that the Office of the United States Merchant Marine Academy is adequately staffed and funded.

''(B) STAFFING.—

''(i) IN GENERAL.—The Secretary may transfer to the Office of the United States Merchant Marine Academy a position within the Department from any office that is eliminated or consolidated under this subsection if the Secretary determines that the position is necessary to carry out the purposes of the Office.

''(ii) SAVINGS PROVISION.—If the Secretary transfers a position to the Office under clause (i), the Secretary, in coordination with the appropriate modal administration, shall ensure that the transfer of the positions does not adversely affect the

obligations of such modal administration under any Federal law.''.

SEC. 3513. SUPPORT FOR ATHLETIC PROGRAMS OF THE UNITED STATES MERCHANT MARINE ACADEMY.

(a) IN GENERAL.—Chapter 513 of title 46, United States Code, is amended by adding at the end the following:

''§ 51329. Support for athletic programs of the United States Merchant Marine Academy

''(a) CORPORATION FOR SUPPORT AUTHORIZED.—

''(1) IN GENERAL.—The Secretary may, in accordance with the laws of the State of New York, establish a corporation (in this section referred to as the 'corporation') to support the athletic programs of the United States Merchant Marine Academy. All stock of the corporation shall be owned by the United States and held in the name of and voted by the Secretary.

''(2) OPERATION.—The corporation shall operate exclusively for charitable, educational, and civic purposes to support the athletic programs of the United States Merchant Marine Academy.

''(b) CORPORATE ORGANIZATION.—The corporation shall be organized and operated—

''(1) as a nonprofit corporation under section 501(c)(3) of the Internal Revenue Code of 1986;

''(2) in accordance with this section; and

''(3) pursuant to the laws of the State of New York, its articles of incorporation, and its bylaws.

''(c) CORPORATE BOARD OF DIRECTORS.—

''(1) IN GENERAL.—The members of the board of directors of the corporation shall serve without compensation as members of the board, except for reasonable travel and other related expenses for attendance at meetings of the board.

''(2) DEPARTMENT OF TRANSPORTATION EMPLOYEES.—The Secretary may authorize employees of the Department of Transportation to serve, in their official capacities, as members of the board of directors of the corporation, but such employees shall not hold more than one-third of the directorships. Such authorization to participate in the management of the corporation shall be without compensation and may be made only for the purpose of providing oversight and advice to, and coordination with, the corporation. Participation of the employee in the activities of the corporation may not extend to participation in the day-to-day operations of the corporation.

''(d) CONTRACTS AND COOPERATIVE AGREEMENTS.—

''(1) IN GENERAL.—The Secretary may enter contract and cooperative agreements with the corporation for the purpose of supporting the athletic programs of the United States Merchant Marine Academy.

''(2) AUTHORITY.—Notwithstanding section 3105 of title 41, the Secretary may enter into such contracts and cooperative agreements on a sole source basis pursuant to section 3304(a) of title 41.

''(3) ACQUISITIONS.—Notwithstanding chapter 63 of title 31, a cooperative agreement under this section may be used to acquire property, services, or travel for the direct benefit or use of the United States Merchant Marine Academy.

''(e) LEASES.—For the purpose of supporting the athletic programs of the United States Merchant Marine Academy, in consultation with the General Services Administration, the Secretary may rent or lease real property located at the United States Merchant Marine Academy, under such terms and conditions as are deemed advisable, for a period not exceeding 5 years, such real property as may not be required for immediate use by the United States Merchant Marine Academy, to the corporation, and

that proceeds from such a lease shall be retained and expended in accordance with subsection (j).

''(f) SUPPORT SERVICES.—

''(1) AUTHORITY.—To the extent required by a contract or cooperative agreement under subsection (a), the Secretary may provide support services to the corporation while the corporation conducts support activities at the United States Merchant Marine Academy only if the Secretary determines that the provision of such services is essential for the support of the athletic programs of the United States Merchant Marine Academy.

''(2) NO LIABILITY OF THE UNITED STATES.—Support services may only be provided without any liability of the United States to the corporation.

''(3) SUPPORT SERVICES DEFINED.—In this subsection, the term 'support services' includes utilities, office furnishings and equipment, communications services, records staging and archiving, audio and video support, and security systems, in conjunction with the leasing or licensing of property.

''(g) TRANSFERS FROM NONAPPROPRIATED FUND OPERATION.—

''(1) IN GENERAL.—Except as provided in paragraph (2), the Secretary may, subject to the accept-

ance of the corporation, transfer to the corporation all title to and ownership of the assets and liabilities of the United States Merchant Marine Academy nonappropriated fund instrumentality, the function of which includes providing support for the athletic programs of the United States Merchant Marine Academy, including bank accounts and financial reserves in the accounts of such fund instrumentality, equipment, supplies, and other personal property.

''(2) LIMITATION.—The Secretary may not transfer under paragraph (1) any interest in real property.

''(h) ACCEPTANCE OF SUPPORT.—

''(1) IN GENERAL.—Notwithstanding section 1342 of title 31, the Secretary may accept from the corporation funds, supplies, and services for the support of the athletic programs of the United States Merchant Marine Academy.

''(2) EMPLOYEES OF THE CORPORATION.—For purposes of this section, employees or personnel of the corporation may not be considered to be employees of the United States.

''(3) FUNDS RECEIVED FROM OTHER SOURCES.—The Secretary may charge fees for the support of athletic programs of the United States

Merchant Marine Academy. To support the athletic programs of the United States Merchant Marine Academy, the Secretary may accept funds from the National Collegiate Athletic Association, funds from athletic conferences, game guarantees from other educational institutions, fees for ticketing and licensing, and other consideration provided incidental to the execution of the athletic programs of the United States Merchant Marine Academy.

''(4) LIMITATION.—The Secretary shall ensure that contributions under this subsection and expenditure of funds pursuant to subsection (j) do not—

''(A) reflect unfavorably on the ability of the Department of Transportation or any employee of the Department of Transportation to carry out any responsibility or duty in a fair and objective manner; or

''(B) compromise the integrity or appearance of integrity of any program of the Department of Transportation, or any individual involved in such a program.

''(i) TRADEMARKS AND SERVICE MARKS.—

''(1) LICENSING, MARKETING, AND SPONSORSHIP AGREEMENTS.—An agreement under subsection (d) may, consistent with section 51330, au-

thorize the corporation to enter into licensing, marketing, and sponsorship agreements relating to trademarks and service marks identifying the United States Merchant Marine Academy, subject to the approval of the Secretary.

''(2) LIMITATIONS.—A licensing, marketing, or sponsorship agreement may not be entered into under paragraph (1) if—

''(A) such agreement would reflect unfavorably on the ability of the Department of Transportation or any employee of the Department of Transportation to carry out any responsibility or duty in a fair and objective manner; or

''(B) the Secretary determines that the use of the trademark or service mark would compromise the integrity or appearance of integrity of any program of the Department of Transportation or any individual involved in such a program.

''(j) RETENTION AND USE OF FUNDS.—Funds received by the Secretary under this section may be retained for use to support the athletic programs of the United States Merchant Marine Academy and shall remain available until expended.

"§ 51330. Licensing of intellectual property

''(a) AUTHORITY.—The Secretary may license trademarks and service marks owned or controlled by the Secretary with respect to the United States Merchant Marine Academy and may retain and expend fees received from such licensing in accordance with this section.

''(b) DESIGNATED MARKS.—The Secretary shall designate the trademarks and service marks regarding which the Secretary will exercise the authority to retain licensing fees under this section.

''(c) USE OF FEES.—The Secretary shall use fees retained under this section for the following purposes:

''(1) For payment of costs incurred by the Secretary of securing trademark registrations and of operating the licensing program under this section.

''(2) For support of athletic programs and recruiting activities of the United States Merchant Marine Academy under the jurisdiction of the Secretary, to the extent (if any) that the total amount of the licensing fees available under this section for a fiscal year exceed the total amount needed for such fiscal year under paragraph (1).

''(d) AVAILABILITY.—Fees received in a fiscal year and retained under this section shall be available until expended.

''(e) DEFINITIONS.—In this section, the terms 'trademark' and 'service mark' have the meanings given such terms in section 45 of the Act of July 5, 1946 (commonly referred to as the Trademark Act of 1946; 15 U.S.C. 1127).''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by adding at the end the following new items:

''51329. Support for athletic programs of the United States Merchant Marine Academy.
''51330. Licensing of intellectual property.''.

Subtitle C—Other Matters

SEC. 3521. LIMITATION ON WAIVER OF NAVIGATION AND VESSEL-INSPECTION LAWS TO ADDRESS FOREIGN ENTITIES OF CONCERN.

(a) LIMITATION.—Section 501 of title 46, United States Code, is amended—

(1) by redesignating subsection (d) as subsection (e); and

(2) by inserting after subsection (c) the following new subsection:

''(d) LIMITATION RELATING TO FOREIGN ENTITIES OF CONCERN.—No vessel may operate under a waiver issued under this section until—

''(1) the owner or operator of the vessel and the individual requesting such waiver (if not the owner or operator of the vessel) submits to the Maritime

Administrator sufficient proof that the vessel is not owned, operated, or crewed by a foreign entity of concern, as such term is defined in section 10612 of the CHIPS Act of 2022 (Public Law 117–167; 42 U.S.C. 19221); and

''(2) the Maritime Administrator confirms the validity of the proof submitted under paragraph (1).''.

(b) APPLICABILITY.—The amendments made by subsection (a) shall apply with respect to vessels operating on or after the date of the enactment of this Act, regardless of whether a waiver governing such operation has been issued under section 501 of title 46, United States Code, prior to such date of enactment.

SEC. 3522. FEDERAL SHIP FINANCING PROGRAM IMPROVEMENTS.

(a) Section 53701 of title 46, United States Code, is amended—

(1) in paragraph (3), by inserting ''retrofitting, reconfiguration, or similar work, as well as'' after ''include'';

(2) by redesignating paragraphs (5), (6), and (7) as paragraphs (7), (8), and (10) respectively and redesignating paragraphs (8) through (15) as paragraphs (12) through (19) respectively;

(3) by inserting after paragraph (4) the following:

''(5) ELIGIBLE EXPORT VESSEL.—The term 'eligible export vessel' means a vessel that—

''(A) is constructed, reconstructed, or reconditioned in the United States for use in world-wide trade; and

''(B) will, on delivery or redelivery, become or remain documented under the laws of a country other than the United States.

''(6) FISHING.—The term 'fishing' has the meaning given such term in section 3 of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1802).'';

(4) by inserting after paragraph (8), as redesignated by paragraph (2), the following new paragraph:

''(9) GENERAL SHIPYARD FACILITY.—The term 'general shipyard facility' means—

''(A) for operations on land—

''(i) a structure or appurtenance thereto designed for the construction, reconstruction, repair, rehabilitation, or refurbishment of a vessel, including a grav-

ing dock, building way, ship lift, wharf, or pier crane;

"(ii) the land necessary for the structure or appurtenance; and

"(iii) equipment that is for use with the structure or appurtenance and that is necessary for performing a function referred to in clause (i); and

"(B) for operations not on land, a vessel, floating drydock, or barge built in the United States and used for, equipped to be used for, or of a type normally used for, performing a function referred to in subparagraph (A)(i).''; and

(5) by inserting after paragraph (10), as redesignated by paragraph (2), the following new paragraph:

"(11) MODERN SHIPBUILDING TECHNOLOGY.—The term 'modern shipbuilding technology' means the best available proven technology, techniques, and processes appropriate to enhancing the productivity of shipyards, including engineering design, quality assurance, concurrent engineering, continuous process production technology, energy efficiency, waste minimization, design for recyclability or parts reuse,

inventory management, upgraded worker skills, and communications with customers and suppliers.''; and

(6) in paragraph (15), as so redesignated, by inserting ''used''″ before ''fishing vessels''.

(b) Section 53702(b) of title 46, United States Code, is amended—

(1) in the subsection heading by striking ''DIRECT LOANS FOR FISHERIES'' and inserting ''DIRECT LOANS'';

(2) in paragraph (1) by inserting ''used'' before ''fishing vessel''; and

(3) in paragraph (4) by striking ''the purpose of'' and all that follows through ''financing the purchase'' and inserting ''the purpose of financing the purchase''.

(c) Section 53703 of title 46, United States Code, is amended—

(1) in subsection (a)—

(A) in paragraph (1), by striking ''signed application'' and inserting ''completed application'';

(B) by striking paragraph (2) and inserting the following:

''(2) ADDITIONAL INFORMATION.—

''(A) The Secretary or the Administrator may—

''(i) request from an applicant additional information required to complete the review of an application; and

''(ii) establish a deadline for the applicant to provide such information.

''(B) If the applicant does not respond to the request for additional information, the Secretary or Administrator may—

''(i) notify the applicant that processing of the application will be suspended until the additional information is received; and

''(ii) toll the time for the decision.''; and

(2) in subsection (c), by amending paragraph (1)(D) to read as follows:

''(D) recommend financial covenants or financial ratios to be met by the applicant during the time a guarantee under this chapter is outstanding that are—

''(i) based on the financial covenants or financial ratios that are then applicable

to the obligor under private sector credit agreements, if any; or

''(ii) in lieu of other financial covenants appropriate to the obligor under this chapter when evaluating the risks of the project for compliance with the requirements of section 53708 of this title; and''.

(d) Section 53704 of title 46, United States Code, is amended—

(1) in subsection (a), by striking the second sentence and inserting the following: ''Of that amount

''(1) $850,000,000 shall be limited to obligations by the Secretary related to fishing facilities and used vessels; and

''(2) $3,000,000,000 shall be limited to obligations related to eligible export vessels.''; and

(2) in subsection (c)(4)—

(A) in subparagraph (I) by striking ''; and'' and inserting a semicolon;

(B) in subparagraph (J) by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(K) if applicable, the country risk for each eligible export vessel financed or to be financed by an obligation.''.

(e) Section 53706(a) of title 46, United States Code, is amended—

(1) in paragraph (1)(A)—

(A) by striking ''Financing (including reimbursement of an obligor for expenditures previously made for) the construction, reconstruction, or reconditioning, of a vessel'' and inserting ''Financing, including reimbursement of an obligor for expenditures previously made for, the construction, reconstruction, reconditioning, or purchase of a vessel (including an eligible export vessel)'';

(B) in clause (iv) by striking the last ''or'';

(C) in clause (v) by striking the period; and

(D) by adding at the end the following:

''(vi) as an eligible export vessel in worldwide trade; or

''(vii) in the fishing industry or seafood related trade.''; and

(2) by striking paragraph (8).

(f) Section 53707 of title 46, United States Code, is amended—

(1) in subsection (b) by striking ''construction, reconstruction, or reconditioning'' and inserting ''construction, reconstruction, reconditioning, or purchase''; and

(2) in subsection (c) by inserting ''or Administrator'' after ''Secretary''.

(g) Section 53708 of title 46, United States Code, is amended—

(1) in subsection (c)—

(A) in the subsection heading—

(i) by striking ''FISHING''; and

(ii) by inserting ''FISHING'' before ''FACILITIES''; and

(B) by amending paragraph (1) to read as follows:

''(1) in the case of a used vessel, reconstructed or reconditioned in the United States and will contribute to the development of the United States commercial shipbuilding or fishing industries; or''; and

(2) by adding at the end the following:

''(f) LIMITATION.—The Administrator may not guarantee or make a commitment to guarantee an obligation under this chapter if the Secretary determines such guar-

antee or commitment is inconsistent with the wise use of the fisheries resources and the development, advancement, management, conservation, and protection of the fisheries resources consistent with the Magnuson Stevens Fishery Conservation and Management Act (16 U.S.C. 1801 et seq.).''.

(h) Section 53709 of title 46, United States Code, is amended—

(1) by amending subsection (b) to read as follows:

''(b) LIMITATION ON AMOUNT BORROWED.—Except as otherwise provided, the principal amount of an obligation guaranteed under this chapter may not exceed 87.5 percent of the actual cost or depreciated actual cost, as determined by the Secretary or Administrator, of the vessel used as security for the guarantee.''; and

(2) in subsection (e) by inserting ''or Administrator'' after ''Secretary''.

(i) Section 53107(a)(4)(A) of title 46, United States Code, is amended by inserting ''or, in the case of an eligible export vessel, of the appropriate foreign authorities under a treaty, convention, or other international agreement to which the United States is a party'' after ''Coast Guard''.

(j) Section 53714(b) of title 46, United States Code, is amended by adding at the end the following:

''(6) FEES IN EXCESS OF THE COST OF A PROJECT.—For projects where the minimum percentage rate calculated under paragraph (5) exceeds the cost of a project required by section 53704(c) of this title and section 502 of the Federal Credit Reform Act of 1990 (2 U.S.C. 661a) such minimum percentage rate may be reduced to not exceed the cost of the project.''.

(k) Section 53715 of title 46, United States Code, is amended—

(1) in subsection (a)(1)(B), by deleting ''75 percent or 87.5 percent, whichever is applicable under section 53709(b) of this title,'' and inserting ''the percent applicable under section 53709(b)''; and

(2) in subsection (e)(1)(A)(ii), by deleting ''75 percent or 87.5 percent, whichever is applicable under section 53709(b) of this title,'' and inserting ''the percent applicable under section 53709(b)''.

(l) Section 53723 of title 46, United States Code, is amended—

(1) in subsection (a) by striking ''shall be paid in cash.'' and inserting the following: ''shall be—

''(1) paid in cash; and

''(2) include any applicable principal, interest, capitalized interest, premium, and late charges, if the obligation is held by the Federal Financing Bank.'';

(2) by redesignating subsections (b) through (d) as subsections (c) through (e), respectively; and

(3) by inserting after subsection (a) the following:

''(b) SUBROGATION.—If the Secretary or the Administrator makes a payment under this section, the Secretary or the Administrator shall be subrogated to the rights of the recipient of the payment as specified in the guarantee or related agreements.''.

(m) Section 53733 of title 46, United States Code, is amended—

(1) by striking subsection (a) and redesignating subsections (b) through (e) as subsections (a) through (d), respectively;

(2) in subsection (a), as so redesignated,—

(A) by striking ''advanced shipbuilding technology and modern shipbuilding technology'' and inserting ''shipyard capital improvements, including infrastructure and modern shipbuilding technology,''; and

(B) by striking ''Only a private shipyard is eligible to receive a guarantee'' and inserting ''To be eligible to receive a guarantee the obligor must have the authority to modify the general shipyard facility'';

(3) in subsection (c), as so redesignated, by striking ''advanced shipbuilding technology'' and inserting ''shipyard capital improvements, infrastructure,''; and

(4) by inserting the following new subsection (e):

''(e) MADE IN AMERICA.—The Administrator must exclude foreign components from a project eligible for a guarantee under this section, unless the Administrator grants a waiver based on non-availability of such foreign components due to timely availability, sufficient quality, or price competitive basis.''; and

(5) by striking subsection (f).

(n) Section 53734 of title 46, United States Code, is amended—

(1) in subsection (a)(1) by inserting ''fishing, or other seafood related,'' before ''coastwise, intercoastal, or foreign trade'';

(2) in subsection (b)(2) by striking ''construction or reconstruction of the vessel'' and inserting

''construction or refinancing and reconstruction of the vessel''; and

(3) by adding at the end the following:

''(f) APPLICABILITY.—Guarantees made under subsection (a) for the construction or refinancing and reconstruction of a vessel designed and to be used in fishing or seafood related trade or an eligible export vessel shall be made only with funds, including funds for the cost of guaranteed loans, appropriated on or after the date of enactment of the National Defense Authorization Act for Fiscal Year 2027.''.

(o) ELIGIBILITY.—Notwithstanding any requirements that such vessel be reconstructed, reconditioned, or repaired to qualify for a guarantee of an obligation, for a period of 2 years after the date of enactment of this Act, a fishing vessel greater than 79 feet overall in length built and documented after January 1, 2021, shall be eligible for a guarantee of an obligation from the Administrator under chapter 537 of title 46, United States Code.

(p) SAVINGS CLAUSE.—Nothing in this section, or the amendments made by this section, shall limit the authority of the Secretary of Commerce to provide direct loan obligations authorized by section 211(e) of the American Fisheries Act (Public Law 105-277).

(q) REPEAL IN NATIONAL DEFENSE AUTHORIZATION ACT.—Sections 3506(i)(2) and 3506(1)(2) of the National Defense Authorization Act of Fiscal Year 2020 (Public Law 116-92) are repealed, and the provisions of law that were repealed or amended by these sections are reenacted and amended, respectively, to read as if such sections were not enacted.

SEC. 3523. CRANES; SHORE POWER.

Section 54301 of title 46, United States Code, is amended—

(1) in subsection (a)(3)(A)(ii)(III)—

(A) by striking ''including projects to improve port resilience;'' and inserting ''including—''; and

(B) by adding at the end the following:

''(aa) projects to improve port resilience; and

''(bb) projects to upgrade port cranes or parts of port cranes (including hardware and software) that—

''(AA) were installed or provided by the People's Republic of China or any department, ministry, center,

agency, or instrumentality of the Government of the People's Republic of China; or

"(BB) are maintained, controlled, or sponsored by the People's Republic of China or any department, ministry, center, agency, or instrumentality of the Government of the People's Republic of China;"; and

(2) by adding at the end the following new subsection:

"(d) ELIGIBILITY OF SHORE POWER PROJECTS.—

"(1) IN GENERAL.—In making port infrastructure development grants under this section, the Secretary shall treat a project described in paragraph (2) as—

"(A) having met the requirements of paragraphs (1) and (6)(A)(i); and

"(B) being an eligible project under subsection (a)(3).

"(2) PROJECT DESCRIBED.—A project described in this paragraph is a project to provide

shore power at a port that services both of the following:

''(A) Passenger vessels described in section 3507(k).

''(B) Vessels that move goods or freight.''.

SEC. 3524. CARGOES PROCURED, FURNISHED, OR FINANCED BY UNITED STATES GOVERNMENT.

Section 55305 of title 46, United States Code, is amended—

(1) in subsection (a) by striking ''When the United States Government'' and inserting ''Except as provided in subsection (c), when the United States Government'';

(2) by redesignating subsections (c) through (f) as subsections (d) through (g), respectively; and

(3) by inserting after subsection (b) the following:

''(c) EXCEPTION.—When the Department of Transportation procures, contracts for, or otherwise obtains for its own account, or provides financing in any way with Federal funds or advances funds or credits, for the furnishing or obtaining of the equipment, materials, or commodities, the Secretary of Transportation or recipient of such financing shall take steps necessary and practicable to ensure that 100 percent of the gross tonnage of the

equipment, materials, or commodities (computed separately for dry bulk carriers, dry cargo liners, and tankers) which may be transported on ocean vessels is transported on privately-owned commercial vessels of the United States, as provided under subsection (b), to the extent such vessels are available at fair and reasonable rates for commercial vessels of the United States, in a manner that will ensure a fair and reasonable participation of commercial vessels of the United States in those cargoes by geographic areas.''.

SEC. 3525. ASSISTANCE FOR SMALL SHIPYARDS.

(a) IN GENERAL.—Section 54101 of title 46, United States Code, is amended—

(1) in subsection (c)(1)—

(A) in subparagraph (A) by inserting '', including through the acquisition of advanced digital manufacturing capabilities,'' after ''improvements''; and

(B) in subparagraph (B) by inserting '', including digital training technologies,'' after ''training''; and

(2) in subsection (h)—

(A) by striking ''SMALL SHIPYARD DEFINED'' and all that follows through ''the term''

and inserting the following: ''DEFINITIONS.—In this section:

''(1) SMALL SHIPYARD.—The term''; and

(B) by adding at the end the following:

''(2) ADVANCED DIGITAL MANUFACTURING CAPABILITIES.—The term 'advanced digital manufacturing capabilities' means commercially available integrated software and hardware used to plan, design, schedule, execute, and assure quality in ship construction and repair, including—

''(A) product lifestyle management;

''(B) 3-dimensional computer aided design;

''(C) computer aided manufacturing;

''(D) manufacturing execution systems;

''(E) quality management systems;

''(F) digital twin and internet of things sensors and gateways;

''(G) automation systems;

''(H) open data standards for interoperability;

''(I) cybersecurity controls; and

''(J) integration, commissioning, and data-migration services necessary for operational use.

''(3) DIGITAL TRAINING TECHNOLOGIES.—The term 'digital training technologies' means the use of digital tools and platforms, such as simulation, augmented or virtual reality, digital work instructions, e-learning, and learning management systems, to deliver and assess training in shipbuilding and ship repair competencies.''.

(b) TECHNICAL AMENDMENT.—The chapter heading for chapter 541 of title 46, United States Code, is amended by striking ''**MISCELLANEOUS**'' and inserting ''**SMALL SHIPYARD GRANT PROGRAM**''.

SEC. 3526. COMMITTEE ON THE MARINE TRANSPORTATION SYSTEM.

(a) IN GENERAL.—Section 50401 of title 46, United States Code, is amended—

(1) by redesignating and transferring such section to appear after subsection (k) of section 102 of title 49, United States Code (as added by this Act), as subsection (j), including by redesignating each subordinate provision appropriately to reflect the transfer and by amending the enumerator, subsection catchline, typeface, and typestyle to conform to those appearing in other subsections of such section;

(2) in paragraph (1), as so redesignated, by inserting ''in the Department within the Office of the Deputy Secretary'' after ''established''; and

(3) in paragraph (4), as so redesignated—

(A) in subparagraph (A), as so redesignated, by adding at the end the following:

''(iii) WORK PLAN.—The Coordinating Board shall approve annually a yearly work plan and to carry out the activities of the Committee.'';

(B) in subparagraph (B)—

(i) by striking ''The Secretary of Transportation'' and inserting the following:

''(i) IN GENERAL.—The Secretary of Transportation''; and

(ii) by adding at the end the following:

''(ii) REPORTING.—The Executive Director report directly to the Deputy Secretary.''; and

(C) by adding at the end the following:

''(D) EXECUTIVE SECRETARIAT.—The Executive Secretariat shall provide administrative, analytical, and operational support to the Exec-

utive Director to accomplish the purpose and activities of the Committee. The Secretary of Transportation, the Secretary of Defense, the Secretary of Homeland Security, and the Secretary of Commerce, shall each provide a minimum of one full-time staff member to the Executive Secretariat. Any head of any other member agency may provide additional staff support.''.

(b) CHAPTER 504.—Chapter 504 of title 46, United States Code, is amended by inserting before section 50402 the following:

''§ 50401. Maritime workforce advisory committee

''(a) ESTABLISHMENT.—There is established a National Maritime Workforce Advisory Committee (in this section referred to as the 'Committee').

''(b) FUNCTION.—The Committee shall advise the Secretary of Transportation on matters relating to the skills, training, and numbers of workers necessary to maintain the United States maritime industrial base workforce, including the merchant marine, shipyards, and associated activities.

''(c) MEMBERSHIP.—

''(1) IN GENERAL.—The Committee shall consist of not more than 25 members appointed by the

Secretary in accordance with this section and section 15109.

''(2) EXPERTISE.—Each member of the Committee shall have particular expertise, knowledge, and experience in matters relating to the function of the Committee.

''(3) REPRESENTATION.—At least 1 member of the Committee shall represent 1 of the following:

''(A) Ocean Common Carriers.

''(B) State maritime academies.

''(C) Centers of excellence designated under section 54101.

''(D) Unlicensed merchant mariner labor unions.

''(E) Licensed merchant mariner labor unions.

''(F) Shipyard labor unions.

''(G) Shipyards.

''(H) Vessel design and construction entities.

''(I) Post-secondary education vocational training.

''(J) Secondary education vocational training.

''(K) Offshore energy production.

''(L) Offshore support.

''(4) ADMINISTRATION.—For purposes of section 15109—

''(A) the Committee shall be treated as a committee established under chapter 151; and

''(B) the Secretary of Transportation shall fulfill all duties and responsibilities and have all authorities of the Secretary of Homeland Security with regard to the Committee.''.

SEC. 3527. ASSESSMENT OF CHANNEL DEPTHS AND PLACEMENT OF AIDS TO NAVIGATION.

Not later than 90 days after the date of enactment of this Act, the President shall submit to the Committee on Transportation and Infrastructure and the Committee on Natural Resources of the House of Representative and the Committee on Commerce, Science, and Transportation and the Committee on Environment and Public Works of the Senate a proposal to improve coordination between the Army Corps of Engineers, the National Oceanic and Atmospheric Administration, and the Coast Guard with respect to the measurement and publication of channel depths and real time physical oceanographic data with respect to Federal navigation channels and the timely marking of such channels with aids to navigation especially

after any changes to such channels as a result of construction or a natural disaster.

SEC. 3528. WAIVER.

Section 501 of title 46, United States Code, is amended—

(1) in subsection (a)(2) by inserting ", and the waiver" after "without such a waiver"; and

(2) in subsection (b)(4)(B) by inserting "the waiver and" after "subparagraph (A)(ii)".

SEC. 3529. TECHNICAL CORRECTIONS TO CHAPTER 3 ANALYSIS.

The analysis for chapter 3 of title 14, United States Code, is amended to read as follows:

"CHAPTER 3—COMPOSITION AND ORGANIZATION

"SUBCHAPTER I–ORGANIZATION

"Sec.
"301. Grades and ratings.

"SUBCHAPTER II–POSITIONS

"302. Commandant; appointment.
"303. Vice Commandant; appointment.
"304. Retirement of Commandant or Vice Commandant.
"305. Vice admirals.
"306. Retirement.
"307. Vice admirals and admiral, continuity of grade.
"308. Chief Acquisition Officer.
"309. Office of the Coast Guard Reserve; Director.
"310. Director of Coast Guard Investigative Service.
"311. United States Coast Guard Band; composition; Director.
"312. Western Alaska Oil Spill Planning Criteria Program.
"313. Chief of Staff to President: appointment.
"314. Captains of the port.
"315. Congressional affairs; Director.
"316. Commandant Advisory Judge Advocate.
"317. Special Advisor to Commandant for Tribal and Native Hawaiian affairs.
"318. Judge Advocate General; Deputy Judge Advocate General: appointment; duties.

''SUBCHAPTER III–PROGRAMS

''331. Centers of expertise for Coast Guard prevention and response.
''332. Marine industry training program.
''333. Training courses on workings of Congress.
''334. National Coast Guard Museum.
''335. Environmental Compliance and Restoration Program.
''336. Unmanned system program and autonomous control and computer vision technology project.
''337. Coast Guard Junior Reserve Officers' Training Corps.
''338. Redistricting notification requirement.
''339. Prevention and response workforces.''.

SEC. 3530. ENHANCING UNITED STATES MARITIME WORKFORCE.

(a) PROPOSALS.—Not later than 90 days after the date of the enactment of this Act, the President shall submit to the appropriate congressional committees proposals to implement the recommendations set forth in the Maritime Action Plan issued by the White House and dated February, 2026, with respect to—

(1) maximizing the credits for military training and sea service eligible to count toward merchant mariner credential endorsements and expanding associated fee exemptions to all members of the Armed Forces;

(2) in consultation with the National Merchant Marine Personnel Advisory Committee established under section 15103 of title 46, United States Code, formalizing equivalency guidance with respect to such credits and credentials;

(3) continuing to approve reciprocity for military courses to meet training requirements for such credentials;

(4) strengthening outreach and counseling to enable members of the Armed Forces eligible for preseparation counseling under section 1142 of title 10, United States Code, to efficiently convert relevant skills of such members to qualifications necessary for such credentials;

(5) streamlining and clarifying the processes for merchant mariner credentialing;

(6) streamlining training approvals for such credentials, including with respect to the approval of training involving simulators and other modern innovations, to safely accelerate the acquisition of skills and qualifications necessary for such credentials; and

(7) streamlining training requirements and provider accreditation to accelerate merchant mariner credentialing.

(b) DEFINITIONS.—In this section:

(1) The term ''appropriate congressional committees'' means—

(A) the Committee on Armed Services and the Committee on Transportation and Infrastructure of the House of Representatives; and

(B) the Committee on Armed Services and the Committee on Commerce, Science, and Transportation of the Senate.

(2) The term ''merchant mariner credential'' has the meaning given such term in section 2101 of title 46, United States Code.

SEC. 3531. ENHANCING UNITED STATES SHIPYARDS AND SHIPBUILDING.

(a) PROPOSALS.—Not later than 90 days after the date of the enactment of this Act, the President shall submit to the appropriate congressional committees proposals to implement the recommendations set forth in the Maritime Action Plan issued by the White House and dated February, 2026, with respect to—

(1) blending Federal and private resources for durable shipyards and shipbuilding component fabrication;

(2) simplifying and standardizing requirements relating to applications, eligibility, and compliance across programs of the Federal Government that provide assistance or financing for shipyards or shipbuilding;

(3) employing commercially available technologies and solutions in shipbuilding by the Federal Government;

(4) establishing a Federal Government-wide shipbuilding plan;

(5) expanding eligibility, improving efficiency, and streamlining program administration with respect to Federal funding and other incentives for shipbuilding, to align such funding and incentives with modern program management and business practices; and

(6) promulgating, revising, or rescinding such regulations as may be necessary to prioritize shipbuilding in the United States and repairs at domestic shipyards.

(b) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Armed Services and the Committee on Transportation and Infrastructure of the House of Representatives; and

(2) the Committee on Armed Services and the Committee on Commerce, Science, and Transportation of the Senate.

SEC. 3532. UNITED STATES COAST GUARD CORROSION CONTROL ASSISTANCE TEAM PILOT PROGRAM.

(a) ESTABLISHMENT OF PILOT PROGRAM.—

(1) ESTABLISHMENT.—Not later than 180 days after the date of enactment of this Act, the Commandant of the Coast Guard, acting through the Assistant Commandant for Acquisition, shall establish and carry out a pilot program, to be known as the ''United States Coast Guard Corrosion Control Assistance Team Pilot Program'', to provide corrosion prevention and control assistance to Coast Guard field units.

(2) AUTHORITIES.—In carrying out the pilot program established under paragraph (1), the Commandant shall—

(A) provide on-site corrosion prevention and control technical advisory services and direct assistance to Coast Guard field units upon request;

(B) develop and maintain a repository of corrosion prevention and control best practices and lessons learned applicable to Coast Guard maritime assets;

(C) assess corrosion conditions and recommend corrective and preventive maintenance actions at Coast Guard units;

(D) support training and education of Coast Guard personnel in corrosion prevention and control techniques; and

(E) collect data and metrics necessary to assess the effectiveness of the pilot program and inform future programmatic decisions.

(3) PILOT PROGRAM OBJECTIVES.—In carrying out the pilot program established under paragraph (1), the Commandant shall specifically seek to—

(A) demonstrate the feasibility and effectiveness of a Coast Guard-specific corrosion control assistance capability;

(B) apply lessons learned from the Navy's Corrosion Control Assistance Team program and other Department of Defense corrosion programs to the unique operational environment of the Coast Guard;

(C) quantify the impact of corrosion prevention and control interventions on Coast Guard asset readiness and service life; and

(D) develop recommendations related Coast Guard anti-corrosion prevention and control initiatives.

(b) ACTIVITIES.—In carrying out the pilot program established under subsection (a), the Commandant may—

(1) procure equipment, tools, and materials necessary for corrosion assessment and control activities;

(2) train program personnel;

(3) contract with non-Federal entities for technical expertise and advisory services; and

(4) develop data systems and information management tools to support program operations.

(c) ORGANIZATION AND STAFFING.—

(1) CORROSION CONTROL ASSISTANCE TEAMS.—

(A) IN GENERAL.—In carrying out the pilot program established under subsection (a), the Commandant shall establish not fewer than 2 Corrosion Control Assistance Teams consisting of qualified corrosion prevention and control specialists.

(B) TEAM COMPOSITION.—Each Corrosion Control Assistance Team shall consist of personnel with technical expertise in—

(i) marine coatings and surface preparation;

(ii) cathodic protection systems;

(iii) coatings and corrosion control training;

(iv) corrosion control of C5I (Command and Control, Communications, Computers, Combat Systems, and Intelligence) systems;

(v) corrosion engineering and failure analysis; and

(vi) preventive maintenance program development.

(C) QUALIFICATIONS.—

(i) IN GENERAL.—Members of the Corrosion Control Assistance Team shall possess relevant technical certifications, including corrosion control credentials from AMPP (including certified Coating Inspectors, Protective Coatings Specialists, Cathodic Protection Specialists, and Corrosion Specialists) and commensurate demonstrated expertise, as determined by the Commandant.

(ii) ACCREDITATION.—Firms performing the work should be AMPP QP 5 Accredited.

(2) CONTRACTS.—In establishing and staffing the pilot program, the Commandant may contract

with private sector entities possessing relevant technical expertise.

(d) REPORTING REQUIREMENTS.—

(1) INTERIM REPORT.—Not later than 18 months after the date on which the pilot program commences operations, the Commandant shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives an interim report on the pilot program that includes—

(A) a summary of field unit visits conducted and services provided;

(B) preliminary data on the impact of program activities on asset readiness and maintenance costs; and

(C) any significant challenges encountered in program implementation and proposed corrective actions.

(2) FINAL REPORT.—Not later than 90 days before the date on which the pilot program is scheduled to terminate under subsection (e), the Commandant shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infra-

structure of the House of Representatives a final report on the pilot program that includes—

(A) a comprehensive assessment of the effectiveness of the pilot program in achieving the objectives described in subsection (c)(3);

(B) quantified metrics on improvements in asset service life and operational readiness attributable to pilot program activities;

(C) lessons learned from the pilot program;

(D) a detailed assessment of the feasibility and projected cost of a permanent, full-scale Coast Guard corrosion prevention and control program; and

(E) a recommendation from the Commandant on whether to establish such a permanent program, and if so, a proposed program structure, staffing plan, and funding requirements.

(3) PUBLICATION.—The Commandant shall make each report required under this subsection publicly available on a publicly accessible website of the Coast Guard.

(e) DURATION OF PILOT PROGRAM.—

(1) IN GENERAL.—The pilot program shall terminate on the date that is 3 years after the date on which the pilot program commences operations.

(2) EXTENSION.—The Commandant may extend the pilot program for a period of not more than 2 additional years if the Commandant determines, and notifies the committees specified in subsection (d) not later than 180 days before the termination date, that—

(A) the pilot program has demonstrated sufficient effectiveness to warrant continuation; and

(B) additional time is needed to collect data necessary to make a final determination on the establishment of a permanent program.

(f) COAST GUARD-SPECIFIC ADAPTATIONS.—

(1) IN GENERAL.—In carrying out the pilot program, the Commandant shall, where appropriate, develop Coast Guard-specific adaptations of Department of Defense corrosion prevention and control standards and processes.

(2) ADOPTION OF NAVY CCAT PROCEDURES AND STANDARDS.—The Commandant shall specifically seek to, wherever practicable, adopt Navy Corrosion Control Assistance Team operational proce-

dures and technical standards that are applicable to Coast Guard assets.

(g) IMPLEMENTATION PLAN.—Not later than 1 year after the date of enactment of this Act, the Commandant shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives an implementation plan for the pilot program that includes—

(1) identification of the Coast Guard districts or units to be served during the initial phase of the pilot program;

(2) a proposed schedule for commencing pilot program operations; and

(3) a framework for measuring and reporting pilot program outcomes, including specific performance metrics.

SEC. 3533. DOMESTIC PROCUREMENT OF COAST GUARD BUOY, ANCHOR AND MOORING CHAIN.

Section 1154 of title 14, United States Code, is amended to read as follows:

"§ 1154. Procurement of buoy, anchor, and mooring chain

''(a) IN GENERAL.—Except as provided in subsection (b), the Secretary may not procure buoy, anchor, or moor-

ing chain for use on United States Coast Guard cutters, vessels, or shore facilities—

"(1) that is not manufactured in the United States; or

"(2) substantially all of the components of which are not produced or manufactured in the United States.

"(b) EXCEPTION AND NOTICE.—

"(1) EXCEPTION.—The Secretary may procure buoy, anchor, or mooring chain that is not manufactured in the United States if the Secretary determines that—

"(A) the price of buoy, anchor, or mooring chain manufactured in the United States is unreasonable;

"(B) a sufficient quantity of satisfactory quality buoy, anchor, or mooring chain which the requirement in subsection (a) applies is not available;

"(C) application of the requirement in subsection (a) would be inconsistent with the public interest or national security; or

"(D) emergency circumstances exist.

"(2) NOTICE.—Not later than 30 days after making a procurement under the exception under

this subsection, the Secretary shall notify the Committee on Transportation and Infrastructure of the House of the Representatives and the Committee on Commerce, Science, and Transportation of the Senate of the procurement and basis for the procurement.''.

Subtitle D—Coast Guard

SEC. 3541. VICE ADMIRALS.

Section 305(a)(1)(A) of title 14, United States Code, is amended—

(1) by striking ''five'' and inserting ''6'' in each place it appears; and

(2) in clause (ii) by striking ''one position shall oversee personnel management, workforce, and dependent support, training, and related matters; and'' and inserting the following: ''two of such positions shall include—

''(I) one that oversees personnel management, workforce and dependent support, training, and related matters; and

''(II) one that oversees design, planning, engineering, construction, rebuilding, and improvement of and program management for cutters,

small boats, aircraft and shoreside infrastructure; and''.

SEC. 3542. CHIEF PREVENTION OFFICER.

Section 312 of title 14 is amended—

(1) by redesignating subsections (a), (b), (c), (d), (e), (f) and (g) as subsections (f), (g), (h), (i), (j), (k), and (l), respectively; and

(2) by inserting the following:

''(a) IN GENERAL.—There shall be in the Coast Guard a Chief Prevention Officer selected by the Commandant who shall serve in the grade of a Rear Admiral (Upper Half) or higher. At a minimum, the Chief Prevention Officer shall serve at the Assistant Commandant level.

''(b) RESPONSIBILITIES.—The Chief Prevention Officer shall be responsible for carrying out the duties set forth in section 504(c).

''(c) AUTHORITIES.—In addition to the duties described in subsection (b), the Chief Prevention Officer shall—

''(1) be the sole office for the Coast Guard to promulgate regulations and agency policy regarding all Coast Guard duties in marine safety, security, and stewardship, subject only to the Commandant's directives;

''(2) make recommendations to the Commandant for the adoption of new methodologies or technologies that should be leveraged for marine safety, security, and stewardship; and

''(3) coordinate with Coast Guard research and development and have the authority to enter into memorandums of agreement or similar with public or private entities for the purpose of testing and assessing new technology.

''(d) STAFF.—Under the direction of the Chief Prevention Officer, a civilian from the Senior Executive Service (career reserved) shall serve as the Deputy Chief Prevention Officer.

''(e) LIMITATIONS.—

''(1) IN GENERAL.—The Secretary of the department in which the Coast Guard is operating is prohibited from removing or redesignating the Chief Prevention Officer position, to include the Deputy Chief Preservation Officer, unless otherwise permitted by an express Act of Congress.

''(2) FINAL AGENCY ACTION.—The Chief Prevention Officer, or his or her designee, has the sole authority to make agency decisions regarding marine safety, security, and stewardship in accordance with his or her duties. These decisions shall be considered

final agency action, and may only be appealed up to the Commandant of the Coast Guard.''.

SEC. 3543. CYBER COORDINATION AND SUPPORT IN FOREIGN TERRITORIES.

Chapter 7 of title 14, United States Code, is amended by adding at the end the following:

''§ 723. Cyber coordination in foreign territories

''(a) IN GENERAL.—The Secretary, acting through the Commandant, may coordinate with and provide support to a foreign entity for cyber operations prevention and response including cyber assessments, audits, inspections, and operations related to a marine transportation system and assets located outside the United States that have a nexus to the United States Marine Transportation System, or illegal, unreported, and unregulated fishing.

''(b) COORDINATION.—The Secretary may provide support under subsection (a) after coordination with the Secretary of State.

''(c) REIMBURSEMENT AUTHORITY.—The Secretary may require reimbursement from a foreign entity for costs incurred by the Coast Guard for assistance provided under subsection (a).

''(d) DEFINITIONS.—In this section:

''(1) FOREIGN ENTITY.—The term 'foreign entity' includes foreign governments and intergovern-

mental organizations the Secretary considers appropriate with consent from the Secretary of State.

''(2) MARINE TRANSPORTATION SYSTEM.—The term 'marine transportation system' means a navigable water transportation system, including the vessels, ports (and intermodal connections thereto), and shipyards and other vessel repair facilities that are components of that system.

''(3) UNITED STATES MARINE TRANSPORTATION SYSTEM.—The term 'United States Marine Transportation System' has the meaning given the term 'marine transportation system' in section 3516 of the National Defense Authorization Act for Fiscal Year 2010 (49 U.S.C. 109 note).''.

SEC. 3544. AUTHORITY TO ENTER INTO TRANSACTIONS OTHER THAN CONTRACTS, COOPERATIVE AGREEMENTS, AND GRANTS.

Section 1158 of title 14, United States Code, is amended—

(1) in the section heading, by striking ''**contracts and grants**'' and inserting ''**contracts, cooperative agreements, and grants**'';

(2) by amending subsection (a) to read as follows:

''(a) IN GENERAL.—Subject to subsections (b) and (c), the Commandant may enter into transactions (other than contracts, cooperative agreements, and grants) to operate, test, and acquire cost-effective technology for the purpose of meeting the mission needs of the Coast Guard, including—

''(1) transactions for prototype projects; and

''(2) follow-on production contracts or transactions awarded under subsection (f) for the purpose of transitioning technology that has been successfully operated, tested, and evaluated using transactions (other than contracts, cooperative agreements, and grants) involving the Coast Guard, the Department of Homeland Security, a consortium of United States industry and academic institutions, or the Department of Defense (including any military department or component of the Department of Defense).'';

(3) by redesignating subsection (f) as subsection (g); and

(4) by inserting after subsection (e) the following:

''(f) FOLLOW-ON PRODUCTION CONTRACTS AND TRANSACTIONS.—

''(1) IN GENERAL.—A transaction entered into under subsection (a) may provide for the award of a follow-on production contract or transaction to the participants in the transaction.

''(2) COMPETITIVE PROCEDURES.—Notwithstanding the requirements of chapter 221 of title 10 and even if explicit notification was not listed within the request for proposal for the transaction, a follow-on production contract or transaction provided for in a transaction under subsection (a) may be awarded to the participants in the transaction without the use of competitive procedures if—

''(A) competitive procedures were used for the selection of parties for participation in the transaction; and

''(B) the participants in the transaction successfully completed the prototype project provided for in the transaction.

''(3) DETERMINATION.—A follow-on production contract or transaction may be awarded, pursuant to this subsection, when the Commandant determines that an individual prototype or prototype subproject as part of a consortium is successfully completed by the participants.''.

SEC. 3545. COAST GUARD ACADEMY ADJUNCT PROFESSORS.

Chapter 19 of title 14, United States Code, is amended by adding at the end the following:

"§ 1949. Adjunct professors

''(a) IN GENERAL.—

''(1) DETERMINATION.—If the Commandant determines that there is a need for adjunct professors and the need is not of permanent duration, the Commandant may enter into contracts under paragraph (2).

''(2) CONTRACTS.—Subject to a determination under paragraph (1), the Commandant may enter into personal service contracts with individuals to provide services as adjunct professors at the Academy.

''(b) LIMITATION.—At no time shall the number of individuals with whom the Commandant has entered into personal service contracts under subsection (a), exceed 5 percent of the entirety of the instructional staff, part-time and full-time, at the Academy.

''(c) CONTRACT REQUIREMENTS.—Each contract entered into pursuant to subsection (a)—

''(1) shall be approved by the Commandant;

''(2) shall be for delivery of not more than 12 credits per semester, for not more than 3 years; and

''(3) shall be subject to the availability of appropriations.

''(d) EXTENSIONS AND RENEWALS.—Each individual covered by a contract under subsection (a)(2) shall be limited to 2 contracts.''.

SEC. 3546. DESIGNATION OF OFFICERS WITH PARTICULAR EXPERTISE IN HIGHLY SKILLED PROFESSIONAL FIELDS.

Section 2132 of title 14, United States Code, is amended—

(1) in the section heading, by striking ''**military justice or healthcare**'' and inserting ''**military justice, healthcare, or other highly skilled professional fields**'';

(2) in subsection (a)—

(A) in paragraph (1), by striking ''or'' at the end;

(B) in paragraph (2), by striking the period and inserting ''; or''; and

(C) by adding at the end, the following new paragraph:

''(3) other highly skilled professional fields.'';

(3) in subsection (b), by striking ''section 2126'' and inserting ''regulations prescribed by the Secretary''; and

(4) by adding at the end, the following new subsection:

''(c) DEFINITION OF OTHER HIGHLY SKILLED PROFESSIONAL FIELDS.—For purposes of this section, the term 'other highly skilled professional fields' means professional occupational specialties that require advanced technical expertise, or highly specialized training as determined appropriate by the Secretary, or a professional certification.''.

SEC. 3547. THE EFFECT OF FAILURE OF SELECTION FOR PROMOTION.

(a) REGULAR LIEUTENANTS; SEPARATION FOR FAILURE OF SELECTION FOR PROMOTION; CONTINUATION.—Section 2143 of title 14, United States Code, is amended—

(1) by redesignating subsections (b) and (c) as subsection (c) and (d) respectively;

(2) in subsection (d), as so redesignated, by striking ''subsection (b)'' and inserting ''subsection (c)''; and

(3) by inserting after subsection (a) the following:

''(b) COMPLETION OF ACTIVE DUTY SERVICE OBLIGATION.—

''(1) IN GENERAL.—If an officer is subject to discharge under paragraphs (1) or (2) of subsection (a) and, as of the date on which the officer is to be discharged under such subsection, the officer has not completed the officer's active duty service obligation, the officer shall be retained on active duty until completion of such active duty service obligation, and then be discharged under subsection (a)(1), unless sooner retired or discharged under another provision of law.

''(2) WAIVER.—The Secretary may waive the applicability of paragraph (1) to any officer if the Secretary determines that completion of the active duty service obligation of that officer is not in the best interest of the service.''.

(b) REGULAR LIEUTENANT COMMANDERS AND COMMANDERS; RETIREMENT FOR FAILURE OF SELECTION FOR PROMOTION.—Section 2145 of title 14, United States Code, is amended—

(1) by redesignating subsections (b) and (c) as subsections (c) and (d), respectively;

(2) in subsection (d)(2), as so redesignated, by striking ''subsection (b)'' and inserting ''subsection (c)''; and

(3) by inserting after subsection (a) the following:

''(b) COMPLETION OF ACTIVE DUTY SERVICE OBLIGATION.—

''(1) IN GENERAL.—If an officer is subject to discharge under paragraph (1) or (2) of subsection (a) and, as of the date on which the officer is to be discharged under such subsection, the officer has not completed the officer's active duty service obligation, the officer shall be retained on active duty until completion of such active duty service obligation, and then be discharged under paragraph (1) or (2) of subsection (a), unless sooner retired or discharged under another provision of law.

''(2) WAIVER.—The Secretary may waive the applicability of paragraph (1) to any officer if the Secretary determines that completion of the active duty service obligation of that officer is not in the best interest of the service.''.

SEC. 3548. SERVICE CREDIT FOR NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION OR THE PUBLIC HEALTH SERVICE.

Section 2152 of title 14, United States Code, is amended—

(1) by striking ''Any regular'' and inserting—

''(a) IN GENERAL.—Any regular''; and

(2) by adding at the end the following:

''(b) SERVICE CREDIT.—For purposes of subsection (a), active commissioned service in the National Oceanic and Atmospheric Administration or the Public Health Service shall be credited as active commissioned service in the armed forces for purposes of determining the retirement eligibility and computing the retired pay of a member of the armed forces.''.

SEC. 3549. REMOTE APPEARANCE BEFORE A BOARD OF INQUIRY.

Section 2162 of title 14, United States Code, is amended—

(1) in paragraph (3) by striking ''allowed'' and inserting ''subject to subsection (b), allowed'';

(2) in the matter preceding paragraph (1) by striking ''Each Officer'' and inserting the following: ''(a) IN GENERAL.—Each Officer''; and

(3) by adding at the end the following new subsection (b):

''(b) REMOTE APPEARANCE.—The Secretary may determine that, in exceptional circumstances, the appearance of an officer before the proceedings of a board of inquiry under section 2159 of this title may be via a means other than in person.''.

SEC. 3550. CAPTAIN OF THE PORT AUTHORITIES OVER UNMANNED MARITIME SYSTEMS.

Subchapter I of chapter 700 of title 46, United States Code, is amended by adding at the end the following:

"§ 70008. Captain of the port authorities over unmanned maritime systems

''(a) IN GENERAL.—For the purposes of sections 70002, 70022, 70051, and 70116, and any regulations or orders issued thereunder, an unmanned maritime system shall be treated as a vessel.

''(b) ENFORCEMENT.—Any violations involving an unmanned maritime system shall be subject to enforcement and penalties under sections 70036, 70052, 70019, and 70120, as appropriate.

''(c) SPECIAL AUTHORITY BEYOND TERRITORIAL SEA.—

''(1) IN GENERAL.—The Commandant of the Coast Guard is authorized to order an unmanned maritime system, consistent with customary international law, to operate or anchor in a manner the Commandant directs if the Commandant considers such order necessary—

''(A) for the promotion of safety of life and property on the artificial islands, installations, or other devices referred to in section 4(a) of the Outer Continental Shelf Lands Act (43

U.S.C. 1333(a)), and the waters adjacent thereto;

''(B) protection of the marine environment; or

''(C) protection of sovereign rights with respect to marine scientific research in the Exclusive Economic Zone and on the outer Continental Shelf.

''(2) VIOLATION.—A violation of an order issued under this subsection shall be treated as a violation under this chapter and section 70036 shall apply.

''(d) DEFINITIONS.—In this section:

''(1) UNMANNED MARITIME SYSTEM.—The term 'unmanned maritime system' means a self-propelled watercraft that navigates on the surface or subsurface of the water and is designed to operate without human operators onboard or a tether to a vessel.

''(2) MARINE ENVIRONMENT.—The term 'marine environment' has the meaning given the term in section 70031 of title 46, United States Code.

''(3) EXCLUSIVE ECONOMIC ZONE.—The term 'Exclusive Economic Zone' has the meaning given

the term 'Exclusive Economic Zone of the United States' in Presidential Proclamation 5030.

''(4) OUTER CONTINENTAL SHELF.—The term 'outer Continental Shelf' has the meaning given the term in section 2(a) of the Outer Continental Shelf Lands Act (43 U.S.C. 1331(a)).''.

SEC. 3551. TECHNICAL AMENDMENTS TO SURVEILLANCE REQUIREMENTS.

Section 4901 of title 46, United States Code, is amended—

(1) in subsection (a) by striking ''passengers'' and inserting ''passengers for hire'';

(2) in subsection (b)(3) by striking ''(43 U.S.C. 1331(a)).'' and inserting ''(43 U.S.C. 1331(a))).'';

and

(3) by redesignating the second subsection (g) as subsection (i).

SEC. 3552. RECEPTION FACILITIES.

Section 6(a)(3) of the Act to Prevent Pollution from Ships (33 U.S.C. 1905(a)(3)) is amended to read as follows:

''(3) The Secretary, after consultation with the Administrator and appropriate Federal agencies, shall prescribe regulations setting criteria for determining the adequacy of reception facilities for receiv-

ing ozone depleting substances, equipment containing such substances, and exhaust gas cleaning residues at a port or terminal, and stating any additional measures and requirements as are appropriate to ensure such adequacy. Persons in charge of ports and terminals shall provide reception facilities, or ensure that reception facilities are available, in accordance with those regulations. The Secretary, after consultation with the Administrator, may prescribe regulations to certify, and may issue certificates to the effect, that a port's or terminal's facilities for receiving ozone depleting substances, equipment containing such substances, and exhaust gas cleaning residues from ships are adequate.''.

SEC. 3553. SUPPORT.

(a) IN GENERAL.—Chapter 19 of title 14, United States Code, is amended by inserting after subchapter III the following:

''SUBCHAPTER IV—SUPPORT''.

(b) SUPPORT FOR COAST GUARD ACADEMY.—Section 953 of title 14, United States Code, is—

(1) redesignated as section 1951 of such title;

(2) transferred to appear after subchapter IV of such title; and

(3) amended by striking—

(A) subsection (h); and

(B) ''the athletic programs of'' each place it appears, except in subsection (d)(3).

(c) MIXED-FUNDED PROGRAMS.—Section 954 of title 14, United States Code, is—

(1) redesignated as section 1952 of such title;

(2) transferred to appear after section 1951 of such title (as redesignated by this Act); and

(3) amended by—

(A) striking the section heading and inserting ''**MIXED-FUNDED PROGRAMS OF THE COAST GUARD ACADEMY**'';

(B) in subsection (a) by striking ''athletic or recreational extracurricular''; and

(C) in subsection (b)—

(i) by striking ''athletic or recreational extracurricular'' each place it appears; and

(ii) by striking ''an'' and inserting ''a''.

(d) AUTHORIZATION FOR USE OF COAST GUARD ACADEMY FACILITIES AND EQUIPMENT BY QUALIFIED ORGANIZATIONS.—Section 1908 of title 14, United States Code, is—

(1) redesignated as section 1953 of such title;

(2) transferred to appear after section 1952 of such title (as redesignated by this Act); and

(3) amended—

(A) by striking the section title and inserting ''**AUTHORIZATION FOR USE OF COAST GUARD ACADEMY FACILITIES AND EQUIPMENT BY QUALIFIED ORGANIZATIONS**''; and

(B) by striking subsection (f); and

(C) by striking ''covered foundation'' and inserting ''qualified organization'' each place it appears.

(e) PARTICIPATION IN FEDERAL, STATE, OR OTHER EDUCATIONAL RESEARCH GRANTS.—Section 1906 of title 14, United States Code—

(1) is redesignated as section 1954 of such title;

(2) transferred to appear after section 1953 of such title (as redesignated by this Act); and

(3) amended by striking paragraph (5).

(f) QUALIFIED ORGANIZATION.—Subchapter IV of chapter 19 of title 14, United States Code, as added by this Act, is further amended by inserting after section 1954 the following:

"§ 1955. Qualified organization

''(a) QUALIFIED ORGANIZATION DEFINED.—In this subchapter, the term 'qualified organization' means an organization—

''(1) that is a charitable, scientific, or educational organization that operates under section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from taxation under subsection (a) of such section;

''(2) for which authorization under sections 1033(a) and 1589(a) of title 10 may be provided; and

''(3) that the Secretary determines operates exclusively to support—

''(A) recruiting activities with respect to the Coast Guard Academy;

''(B) parent or alumni development in support of the Coast Guard Academy;

''(C) academic, leadership, or character development of Coast Guard Academy cadets;

''(D) institutional development of the Coast Guard Academy;

''(E) athletics in support of the Coast Guard Academy; or

''(F) academic research, including applying for and administering Federal, State, or other

educational research grants on behalf of the Coast Guard Academy.''.

SEC. 3554. REPORT AND RECOMMENDATIONS ON INTEGRATION OF AUTONOMOUS AND REMOTELY OPERATED VESSELS.

(a) IN GENERAL.—Not later than 12 months after the date of enactment of this Act, the Commandant of the Coast Guard shall submit to the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate a report on the safe integration of autonomous and remotely operated vessels into the marine transportation system of the United States.

(b) CONSULTATION.—In preparing the report under subsection (a), the Commandant shall consult with—

(1) the National Merchant Marine Personnel Advisory Committee established under section 15103 of title 46, United States Code;

(2) the National Merchant Mariner Medical Advisory Committee established under section 15104 of title 46, United States Code; and

(3) vessel operators, builders, classification societies, licensed maritime labor organizations, unlicensed maritime labor organizations, and longshore labor organizations.

(c) CONTENTS.—The report required under subsection (a) shall include—

(1) an assessment of the provisions of title 46, United States Code, and the laws codified in title 33, United States Code, and the regulations issued thereunder, that condition the operation, manning, or navigation of a vessel on the performance of a function by an individual onboard and that may impact the safe operation of autonomous or remotely operated vessels, including—

(A) the manning and complement requirements under sections 8101 and 8301 of title 46, United States Code;

(B) the look-out requirement under the International Navigational Rules Act of 1977 (33 U.S.C. 1601 et seq.) and the Inland Navigational Rules under title 33, Code of Federal Regulations, as in effect on the date of enactment of this Act;

(C) the vessel design, construction, inspection, operation, and management requirements under chapters 32 and 33 of title 46, United States Code; and

(D) the vessel and facility security requirements under chapter 701 of title 46, United States Code;

(2) for each provision identified under paragraph (1), a determination of whether the provision may be addressed by the Secretary under existing authority, including through equivalency or alternative compliance determinations, or requires additional statutory authority;

(3) recommendations for any statutory or regulatory amendments the Commandant determines necessary or advisable to permit the safe operation of autonomous or remotely operated vessels on a basis providing a level of safety and security equivalent to or greater than that provided by a conventionally crewed vessel, including proposed legislative changes for any recommended statutory amendment;

(4) an analysis of the evolving role of merchant mariners in operating and supporting such vessels, both onboard and from remote locations, including effects on mariner training, credentialing, and the maritime workforce; and

(5) a description of how the recommendations relate to the safety and equivalency framework of the International Maritime Organization Inter-

national Code of Safety for Maritime Autonomous Surface Ships, to support interoperability for vessels of the United States operating on international voyages.

(d) INTERIM BRIEFING.—Not later than 6 months after the date of enactment of this Act, the Commandant shall brief the Committees described in subsection (a) on the progress of the report.

(e) RULE OF CONSTRUCTION.—Nothing in this section authorizes the operation of any vessel or modifies any requirement of title 46, United States Code, or the laws codified in title 33, United States Code.

SEC. 3555. REMOTELY CREWED OFFSHORE SUPPLY VESSEL PILOT PROGRAM.

(a) IN GENERAL.—Not later than 120 days after the date of enactment of this Act, the Commandant of the Coast Guard shall establish a pilot program to allow operation of remotely crewed offshore supply vessels described in subsection (b) in the Gulf of America.

(b) ELIGIBLE VESSELS.—Eligible vessels that may participate in the pilot program shall be limited to coastwise qualified vessels documented and endorsed under section 12112 of title 46, United States Code, which are remotely operated offshore supply vessels that have been built or repaired in United States shipyards within 5 years

of the date of enactment of this Act, do not exceed 6,000 deadweight tons, and are not longer than 350 feet in overall length.

(c) WAIVER OF CERTAIN REQUIREMENTS.—The Commandant shall modify or waive applicable vessel design and construction regulations regarding crew accommodations and related requirements, as necessary, to allow the vessels operating in the pilot program described in subsection (a) to operate in the Gulf of America while ensuring navigation safety and the reliable, safe and secure operation of such vessels.

(d) GEOGRAPHIC LIMITATIONS.—The vessels operating under the pilot program established under subsection (a) shall only be allowed to operate remotely within the Gulf of America beyond 12 nautical miles from shore.

(e) OPERATING REQUIREMENTS.—All operating functions of vessels operating under the pilot program established under subsection (a), including navigation, engineering, and vessel monitoring, shall be performed by credentialed United States citizens under standards established by the Coast Guard. The crew complement for each vessel shall be identical in size and certification to the currently required crew complement for vessels of this type, size and power.

(f) REPORT REQUIRED.—During the course of the pilot program established under subsection (a), the Commandant shall provide semiannual reports on the pilot program to the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate, which shall include—

(1) a description on the number of vessels participating in the pilot program;

(2) the number of voyages conducted by such vessels; and

(3) any information deemed relevant by the Commandant on the operation of such vessels in the pilot program.

(g) LENGTH OF PILOT PROGRAM.—The pilot program described in subsection (a) is authorized for a period of 5 years commencing on the date on which the Coast Guard establishes such pilot program.

SEC. 3556. CHANGE OF HOMEPORTS OR AIR STATIONS.

Section 910 of title 14, United States Code, is amended to read as follows:

"§ 910. Change of homeports or air stations

''(a) IN GENERAL.—Except as provided in subsection (b), the Secretary of the department in which the Coast

Guard is operating when not operating as a service in the Navy may not permanently—

''(1) close any Coast Guard station or unit; or

''(2) change the homeport of any cutters or the air station to which any aircraft is assigned.

''(b) NOTIFICATION TO CONGRESS.—

''(1) IN GENERAL.—Not later than 6 months before taking any permanent action under subsection (a)(1), or 90 days before taking any permanent action under subsection (a)(2), the Secretary of the department in which the Coast Guard is operating when not operating as a service in the Navy shall notify the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate, in writing, of such a closure or change.

''(2) CONTENTS.—The Secretary shall include in any notification under paragraph (1) an evaluation of the impacts of such a closure or change on—

''(A) spending from the Coast Guard;

''(B) the Operations and Support Account;

''(C) the Procurement, Construction, and Improvement Account;

''(D) the Environmental Restoration Account;

''(E) Coast Guard operations; and

''(F) the ability of the infrastructure of receiving communities, if any, to support forces, missions, and personnel as a result of such closure or change.

''(c) LIMITATION.—This section shall not apply to the closure of a Coast Guard station or unit or a realignment with respect to a Coast Guard station or unit, if the President certifies to the Congress in writing that such closure or change is implemented for reasons of national security.

''(d) PUBLIC COMMENT.—Before taking any closure or change action under this section, temporary or otherwise, the Commandant shall provide an opportunity for public comment and for public meetings in the area of the Coast Guard station or unit with regard to the decision to close such station or subunit.

''(e) DEFINITIONS.—In this section:

''(1) COAST GUARD STATION OR UNIT.—The term 'Coast Guard station or unit' means a base, station, yard, center, homeport facility for any ship or cutter, or other facility under the jurisdiction of the of Coast Guard, including any leased facility, which is located within any of the several States, the

District of Columbia, the Commonwealth of Puerto Rico, American Samoa, the Virgin Islands, the Commonwealth of the Northern Mariana Islands, or Guam.

''(2) CLOSURE; CHANGE.—The terms 'closure' or 'change' includes any action which both reduces and relocates functions and civilian personnel positions, but does not include a reduction in force resulting from workload adjustments, reduced personnel or funding levels, or skill imbalances for a period of more than 30 days in a calendar year.''.

SEC. 3557. ARCHITECTURAL AND ENGINEERING SERVICES AND CONSTRUCTION DESIGN; DESIGN-BUILD SELECTION PROCEDURES.

Subchapter I of chapter 11 of title 14, United States Code, is amended by adding at the end the following:

''§ 1112. Architectural and engineering services and construction design

''(a) IN GENERAL.—The Secretary may obtain architectural and engineering services and may carry out construction design in connection with the construction of facilities authorized under section 4902(2)(A).

''(b) NOTIFICATION.—

''(1) IN GENERAL.—In the case of architectural and engineering services and construction design to

be undertaken under subsection (a) for which the estimated cost exceeds $5,000,000, the Secretary shall notify the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate of the scope of the proposed project and the estimated cost of such services before the initial obligation of funds for such services.

''(2) TIMING OF OBLIGATION.—The Secretary may obligate funds for services described in paragraph (1) only after the end of the 14-day period beginning on the date on which the notification is provided to the Committees under paragraph (1).

''§ 1113. Design-build selection procedures

''Unless the traditional acquisition approach of design-bid-build established under chapter 11 of title 40 is used, or another acquisition procedure authorized by law is used, when entering into a contract for the design and construction of facilities authorized under section 4902(2)(A), the Secretary shall use the two-phase selection procedures authorized in subsections (a) through (e) of section 3241 of title 10, if such project is determined appropriate for the use of such a two-phase project when the criteria use included in section 3241(b) are applied to the project.''.

Subtitle E—Maritime Workforce and Education

SEC. 3561. COMMERCIAL SHIPBUILDING INFRASTRUCTURE PROGRAM.

Section 54101 of title 46, United States Code, is amended to read as follows:

"§ 54101. Commercial shipbuilding infrastructure program

''(a) ESTABLISHMENT.—

''(1) IN GENERAL.—Subject to the availability of appropriations, the Maritime Administrator shall carry out a program to provide financial assistance to shipyards for the purposes described in subsection (c).

''(2) GOAL.—The goal of the program shall be to fund eligible projects that will foster technical skills and operational productivity relating to shipbuilding, ship repair, and associated industries.

''(b) GRANT AUTHORITY.—

''(1) IN GENERAL.—In carrying out the program, the Maritime Administrator shall make grants to eligible applicants, on a competitive basis, in accordance with this section.

''(2) ADMINISTRATIVE COSTS.—Not more than 2 percent of amounts made available to carry out

the program authorized by this section may be used for necessary costs of administration of the program authorized by this section.

''(3) AVAILABILITY.—

''(A) IN GENERAL.—Amounts appropriated to make grants for shipyards under this section shall remain available until expended.

''(B) REUSE OF UNEXPENDED GRANT FUNDS.—Amounts awarded as a grant under this section that are not expended by the grantee during the 5-year period following the date of the award or that are returned shall remain available to the Maritime Administrator for use for grants under this section in a subsequent fiscal year.

''(4) AWARDS.—In providing assistance under this section, the Maritime Administrator shall not select an applicant for more than one award for the same fiscal year.

''(5) AMOUNT.—For grants other than those awarded under subsection (i), the minimum award size shall be $30,000,000.

''(6) PROHIBITED USES.—A maritime training center that has received funds awarded under section 51706 of title 46, United States Code, shall not

be eligible for grants under this section for training purposes in the same fiscal year.

''(c) ELIGIBLE PROJECTS.—Assistance provided under this section may be used to—

''(1) make capital and related improvements to shipyards owned or operated by eligible applicants; and

''(2) provide training for workers in shipbuilding, ship repair, and associated industries.

''(d) ELIGIBLE APPLICANTS.—To be eligible for financial assistance pursuant to this section, an applicant shall—

''(1) have authority as owner or operator of the shipyard facility to carry out the proposed project as required by subsection (j); and

''(2) be the owner or operator of a shipyard facility in a single geographic location in the United States that—

''(A) constructs, repairs, or reconfigures vessels 40 feet in length or more for commercial or government use; or

''(B) constructs, repairs, or reconfigures vessels 100 feet in length or more for non-commercial vessels.

''(e) BUY AMERICA.—

''(1) IN GENERAL.—Subject to paragraph (2), the Maritime Administrator shall not obligate funds under this section, unless each product and material purchased with those funds (including products and materials purchased by a grantee), and including any commercially available off-the-shelf item, is—

''(A) an unmanufactured article, material, or supply that has been mined or produced in the United States; or

''(B) a manufactured article, material, or supply that has been manufactured in the United States substantially all from articles, materials, or supplies mined, produced, or manufactured in the United States.

''(2) EXCEPTIONS.—

''(A) IN GENERAL.—Notwithstanding paragraph (1), the requirements of that paragraph shall not apply with respect to a particular product or material if the Administrator determines—

''(i) that the application of those requirements would be inconsistent with the public interest;

''(ii) that such product or material is not available in the United States in suffi-

cient and reasonably available quantities, of a satisfactory quality, or on a timely basis; or

"(iii) that inclusion of a domestic product or material will increase the cost of that product or material by more than 25 percent, with respect to a certain contract between a grantee and that grantee's supplier.

"(B) FEDERAL REGISTER.—A determination made by the Administrator under this subparagraph shall be published in the Federal Register.

"(3) DEFINITIONS.—In this subsection:

"(A) COMMERCIALLY AVAILABLE OFF-THE-SHELF ITEM.—The term 'commercially available off-the-shelf item' means—

"(i) any item of supply (including construction material) that is—

"(I) a commercial product, as defined by section 2.101 of title 48, Code of Federal Regulations (as in effect on the date of the enactment of this Act); and

"(II) sold in substantial quantities in the commercial marketplace; and

"(ii) does not include bulk cargo, as defined in section 40102(4) of this title, such as agricultural products and petroleum products.

"(B) PRODUCT OR MATERIAL.—The term 'product or material' means an article, material, or supply brought to the site by the recipient for incorporation into the building, work, or project. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site.

"(C) UNITED STATES.—The term 'United States' includes the District of Columbia, the

Commonwealth of Puerto Rico, the Northern Mariana Islands, Guam, American Samoa, and the Virgin Islands.

''(f) SOLICITATION AND APPLICATION.—

''(1) NOTICE OF FUNDING OPPORTUNITY.—Not later than 45 days after the date on which funds are made available to carry out the program, the Secretary shall publish a notice of funding opportunity for the funds.

''(2) APPLICATIONS.—

''(A) IN GENERAL.—To be eligible to receive a grant under this section, an applicant shall submit to the Maritime Administrator an application in such form and containing such information and assurances as the Maritime Administrator considers to be appropriate.

''(B) CONTENTS.—Such an application shall include, at minimum, a comprehensive description of—

''(i) the need for the project;

''(ii) the methodology for implementing the project; and

''(iii) any existing programs or arrangements that can be used to supple-

ment or leverage assistance under the program.

"(3) TIMING OF APPLICATIONS.—To be eligible to receive assistance under this section, an applicant must submit an application by such date as the Maritime Administrator may establish.

"(g) PRIMARY SELECTION CRITERIA.—In awarding grants under the program, the Maritime Administrator shall evaluate the extent to which a project fosters—

"(1) efficiency, competitive operations, quality ship construction, repair, and reconfiguration, and improves capacity at the shipyard (for capital improvement projects);

"(2) employee skills and enhanced productivity related to shipbuilding, ship repair, and associated industries (for maritime training program projects); and

"(3) improved capacity at the shipyard (for projects other than those under subsection (i)).

"(h) ADDITIONAL CONSIDERATIONS.—In selecting projects to receive grants under the program, the Maritime Administrator shall give substantial weight to—

"(1) the extent to which the project improves safety;

''(2) the utilization of non-Federal contributions;

''(3) the utilization of nontraditional financing, innovative design and construction techniques, or innovative technologies;

''(4) the extent to which the project supports critical shipbuilding and ship repair infrastructure as determined by the Maritime Administrator; and

''(5) contributions to geographic diversity among grant recipients.

''(i) ASSISTANCE TO SMALL SHIPYARDS.—

''(1) ALLOCATION OF FUNDS.—The Maritime Administrator shall reserve not less than 25 percent of the amounts made available for grants under this section each fiscal year to make grants to eligible applicants for eligible projects at shipyard facilities that have 1,200 production employees or fewer in one geographic location.

''(2) LIMITATIONS.—

''(A) IN GENERAL.—Grants awarded under this subsection may not be used to construct buildings or other physical facilities or to acquire land.

''(B) LIMITATION.—Not more than 25 percent of the funds available under this sub-

section may be awarded to any small shipyard in one geographic location that has more than 600 production employees.

''(3) PRODUCTION EMPLOYEES.—In this section, production employees include eligible applicant employees directly engaged in repair, construction, or reconstruction of vessels and does not include—

''(A) employees primarily engaged in administration, engineering, or support functions; or

''(B) contractors of any kind.

''(j) CONDITIONS ON PROVISION OF ASSISTANCE.—The Maritime Administrator may not award a grant under this section unless the Maritime Administrator determines that—

''(1) sufficient funding is available to meet the matching requirements of subsection (l);

''(2) the project will be completed without unreasonable delay; and

''(3) the recipient has authority to carry out the proposed project.

''(k) AWARDS.—

''(1) IN GENERAL.—Except as provided in subparagraph (2), not later than 270 days after the date on which amounts are made available to provide

grants under the program for a fiscal year, the Maritime Administrator shall announce the selection of awards of eligible projects to receive grants in accordance with this section.

''(2) ANNOUNCEMENT.—For projects selected under subsection (i), the Maritime Administrator shall announce the selection of awards of eligible projects not later than 150 days after the date on which amounts are made available to provide grants under the program for a fiscal year, in accordance with this section.

''(l) FEDERAL SHARE.—The Federal share of the cost of an eligible project carried out using a grant provided under the program shall not exceed 75 percent.

''(m) TECHNICAL ASSISTANCE.—

''(1) IN GENERAL.—On request of an eligible applicant that submitted an application for a project that is not selected to receive a grant under the program, the Maritime Administrator shall provide to the eligible applicant technical assistance and briefings relating to the project.

''(2) TREATMENT.—Technical assistance provided under this paragraph shall not be considered a guarantee of future selection of the applicable project under the program.

''(n) AUDITS AND EXAMINATIONS.—All grantees under this section shall maintain such records as the Maritime Administrator may require and make such records available for review and audit by the Maritime Administrator.

''(o) PROCEDURAL SAFEGUARDS.—The Maritime Administrator, in consultation with the Office of the Inspector General, shall issue guidelines to establish appropriate accounting, reporting, and review procedures to ensure that—

''(1) grant funds are used for the purposes for which they were made available;

''(2) grantees have properly accounted for all expenditures of grant funds; and

''(3) grant funds not used for such purposes and amounts not obligated or expended are returned.''.

SEC. 3562. DESIGNATION OF CENTERS OF EXCELLENCE FOR DOMESTIC MARITIME WORKFORCE TRAINING AND EDUCATION.

Section 51706(c) of title 46, United States Code, is amended—

(1) in paragraph (1)(A)—

(A) by inserting ''or territory of the United States'' after ''State''; and

(B) in clause (i), by striking ''Gulf of Mexico'' and inserting ''Gulf of America'';

(2) in paragraph (1)(B)—

(A) in clause (iii), by inserting ''or'' at the end;

(B) in clause (iv), by striking ''or'' at the end; and

(C) by striking clause (v);

(3) by striking paragraph (2); and

(4) by redesignating paragraphs (3) through (6) as paragraphs (2) through (5), respectively.

SEC. 3563. CIVILIAN MARINER EDUCATION AND DEVELOPMENT PAYMENTS.

(a) MARINER EDUCATION AND DEVELOPMENT PAYMENTS.—Chapter 515 of title 46, United States Code, is amended by adding at the end the following new section:

''§ 51512. Mariner education development payments

''(a) IN GENERAL.—If a State maritime academy has an agreement with the Secretary of Transportation under section 51505 of this title, the Secretary may make an agreement with a student at the academy who is a citizen of the United States to make mariner education development payments to the State Maritime Academy on behalf of the individual.

''(b) PAYMENTS.—

''(1) IN GENERAL.—Payments under an agreement under this section shall be—

''(A) based on the in-state annual cost of in-state tuition, on-campus room and board, fees, books, and uniforms at the State maritime academy the individual is attending;

''(B) paid in amounts as determined by the Secretary;

''(C) paid in such installments as the Secretary shall determine while the individual is attending the academy; and

''(D) allocated among the State maritime academies as prescribed by the Secretary.

''(2) AUTHORIZED USES.—The payments shall be used for the cost of tuition, room and board, fees, books, and uniforms at the academy.

''(c) AGREEMENT REQUIREMENTS.—An agreement under this section—

''(1) may provide for payments for the cost of tuition, room and board, fees, books, and uniforms for not more than 4 academic years; and

''(2) shall require the individual to—

''(A) complete the course of instruction at the academy the individual is attending within 6 years of the date of enrollment;

''(B) obtain a merchant mariner credential, without limitation as to tonnage or horsepower, from the Coast Guard as an officer in the merchant marine of the United States, accompanied by the appropriate national and international endorsements and certification required by the Coast Guard for service aboard vessels on domestic and international voyages, without limitation, within 3 months of completion of the course of instruction at the academy the individual is attending;

''(C) for at least 6 years after graduation from the academy, maintain—

''(i) a valid merchant mariner credential, unlimited as to horsepower or tonnage, issued by the Coast Guard as an officer in the merchant marine of the United States, accompanied by the appropriate national and international endorsements and certifications required by the Coast Guard for service aboard vessels on domestic and international voyages, without limitation;

''(ii) a valid transportation worker identification credential; and

''(iii) a Coast Guard medical certificate;

''(D) apply for, and accept if tendered, a position commensurate with the obtained merchant mariner credential, for a period of not less than 1 year but not more than 5 years, as determined by the Secretary of Transportation based on the amount of payments provided under this section, as—

''(i) a civil service mariner aboard a vessel owned and operated by the Military Sealift Command, National Oceanic and Atmospheric Administration, United States Coast Guard, United States Army Corps of Engineers, or other Federal agency;

''(ii) a merchant marine officer aboard a Federal vessel owned by the Military Sealift Command or the Maritime Administration, if the Secretary determines that employment under clause (i) is not available to the individual;

''(iii) a merchant marine officer on a vessel owned and operated by the United States Federal Government or by a State government of the United States if the

Secretary determines that employment under clauses (i) and (ii) is not available to the individual;

''(iv) a merchant marine officer on a U.S.-documented commercial oceangoing vessel if the Secretary determines that employment under clauses (i), (ii), and (iii) is not available to the individual;

''(v) a merchant marine officer on a U.S.-documented commercial vessel that is not an oceangoing vessel if the Secretary determines that employment under clauses (i) through (iv) is not available to the individual;

''(vi) an employee in a United States maritime-related industry, profession, or marine science (as determined by the Secretary), if the Secretary determines that service under clauses (i) through (v) is not available to the individual; or

''(vii) a merchant marine officer on a foreign-documented commercial oceangoing vessel that employs mariners through a U.S.-based labor union, if the Secretary determines that employment under clauses

(i) through (vi) is not available to the individual or in the best interests of the United States; and

''(E) report to the State maritime academy of graduation, or to the Secretary if directed, on compliance with subparagraphs (A) through (D) of this subsection.

''(d) FAILURE TO COMPLETE AGREEMENT REQUIREMENTS.—If the individual is unable or unwilling to meet the agreement requirements under subsection (c), the Secretary of Transportation may recover from the individual the amount paid under the commitment agreement, plus interest and attorney fees. The Secretary may reduce the amount to be recovered based on factors the Secretary determines merit a reduction.

''(e) ACTIONS TO RECOVER COST.—To aid in the recovery of the amount paid by the Government under a commitment agreement under this section, the Secretary of Transportation may—

''(1) request the Attorney General to bring a civil action against the individual; and

''(2) make use of the Federal debt collection procedures in chapter 176 of title 28 or other applicable administrative remedies.

''(f) MODIFICATION OR WAIVER.—The Secretary may waive any of the terms and conditions set forth in subsection (c) or modify such terms and conditions through the imposition of alternative service requirements.

''(g) ELIGIBILITY FOR ADDITIONAL PAYMENTS.—An individual who receives a payment pursuant to this section shall not be eligible for payments under section 51708 of this title until the individual has fulfilled the obligated years of service under subsection (c)(2)(D) of this section.

''(h) FUNDING AVAILABILITY.—Not to exceed 10 percent of the amounts appropriated for any fiscal year for payments authorized under this section may be transferred or reprogrammed and made available for the purpose of making payments authorized under sections 51509, 51513, and 51708, as determined by the Secretary.''.

SEC. 3564. MARITIME SERVICE EMPLOYMENT REIMBURSEMENT.

Chapter 517 of title 46, United States Code, is amended by adding at the end the following:

''§ 51708. Maritime service employment reimbursement

''(a) IN GENERAL.—The Secretary of Transportation may make an agreement with a maritime center of excellence to make payments to the maritime center of excel-

lence for the cost of reimbursing an individual for costs incurred to obtain, renew, or upgrade a merchant mariner credential or other credentials required for working ashore in the maritime industry.

''(b) ELIGIBLE INDIVIDUAL.—To receive assistance under this section, an individual must be a United States citizen.

''(c) COVERED COSTS.—Costs that are eligible for reimbursement under this section are costs incurred directly by an eligible individual to obtain, renew, or upgrade a merchant mariner credential or credentials required for working ashore in the maritime industry, including—

''(1) training tuition and fees;

''(2) credentialing fees;

''(3) medical screening and examination fees; and

''(4) other fees as determined by the Secretary.

''(d) PAYMENTS.—Subject to subsection (e), the Secretary of Transportation may provide payments to a maritime center of excellence for—

''(1) reimbursements provided by the maritime center of excellence to an eligible individual for covered costs incurred by the individual at the maritime center of excellence;

''(2) the costs of canceling or waiving payments on loans issued by the maritime center of excellence to an eligible individual, including interest on the loan of up to 5 percent per annum; or

''(3) other payments as determined by the Secretary.

''(e) AUTHORIZED USES.—Payments under subsection (d) may be used for covered costs incurred by an eligible individual who—

''(1) incurred the covered costs at the maritime center of excellence; and

''(2) has completed—

''(A) 150 sea service days on a U.S.-flag vessel of greater than 10,0000 gross register tons within 2 years of completing the course of instruction; or

''(B) 1 year of shoreside employment at a maritime facility that directly supports the construction, repair, or maintenance of U.S. vessels, as determined by the Secretary.

''(f) PROHIBITED USES.—Funds provided to a maritime center of excellence pursuant to this section may not be used to reimburse an eligible individual—

''(1) if the individual has already received reimbursements for the covered costs from an entity other than the maritime center of excellence;

''(2) if an entity other than the maritime center of excellence has paid for covered costs or provided training at no cost to the individual;

''(3) if the individual incurs covered costs associated with a degree program at a State maritime academy as defined in section 51501 of this title;

''(4) if the individual is a participant in a program under sections 51509, 51512, or 51513 of this title; or

''(5) for any expenses that exceed $10,000 per calendar year.

''(g) ADMINISTRATIVE EXPENSES.—

''(1) IN GENERAL.—A maritime center of excellence may retain not more than 3 percent of the annual funding provided by the Secretary to the maritime center of excellence under this section for administrative expenses incurred in providing reimbursements or payments under this section.

''(2) ADMINISTRATIVE AND OVERSIGHT COSTS.—The Secretary may retain not more than 2 percent of the amounts appropriated for each fiscal year to make payments under this section for the

administrative and oversight costs incurred by the Secretary in implementing this section.

''(h) FUNDING AVAILABILITY.—Not to exceed 10 percent of the amounts appropriated for any fiscal year for payments authorized under this section may be transferred or reprogrammed and made available for the purpose of making payments authorized under sections 51509, 51512, and 51513, as determined by the Secretary.

''(i) MARITIME CENTER OF EXCELLENCE DEFINED.—In this section, the term 'maritime center of excellence' means—

''(1) an American Maritime Center of Excellence, as designated under section 51501 of this title; or

''(2) a Center of Excellence for Domestic Maritime Workforce Training and Education, as designated under section 51706 of this title.''.

SEC. 3565. STUDENT INCENTIVE PAYMENT AGREEMENTS.

Section 51509 of title 46, United States Code, is amended—

(1) in subsection (b)—

(A) by striking paragraphs (1) and (2) and inserting the following:

''(1) IN GENERAL.—Payments under an agreement under this section shall be—

''(A) paid in amounts as determined by the Secretary, but shall not exceed 50 percent of the average total of the in-state cost of attendance charged by all State maritime academies for a four-year merchant marine officer preparation program;

''(B) paid in such installments as the Secretary shall determine while the individual is attending the academy; and

''(C) allocated among the State maritime academies as prescribed by the Secretary.'';

(B) by redesignating paragraph (3) as paragraph (2); and

(C) in paragraph (2), as so redesignated, by striking ''uniforms, tuition, books, and subsistence'' and inserting ''the cost of attendance at the Academy'';

(2) in subsection (e)(1)—

(A) in subparagraph (A)(ii) by striking ''$8,000'' and inserting ''10 percent of the agreed upon amount''; and

(B) in subparagraph (B)(ii) by striking ''$16,000'' and inserting ''25 percent of the agreed upon amount''; and

(3) by inserting after subsection (i) the following:

''(j) ELIGIBILITY FOR ADDITIONAL PAYMENTS.—A student who receives a payment pursuant to this section shall not be eligible for payments under section 51708 of this title until the student has fulfilled the obligated 3 years of service under subsection (d)(5).

''(k) FUNDING AVAILABILITY.—Not to exceed 10 percent of the amounts appropriated for any fiscal year for payments authorized under this section may be transferred or reprogrammed and made available for the purpose of making payments authorized under sections 51512, 51513, and 51708, as determined by the Secretary.

''(l) COST OF ATTENDANCE DEFINED.—In this section, the term 'cost of attendance' means tuition, room and board costs, fees, books, and uniforms.''.

SEC. 3566. STATE MARITIME ACADEMY REIMBURSEMENT FOR TRAINING SHIP CADET TUITION AND FEES.

Chapter 515 of title 46, United States Code, is amended by adding at the end the following:

"§ 51513. State maritime academy reimbursement for training ship cadet tuition and fees

''(a) IN GENERAL.—If a State maritime academy has an agreement with the Secretary of Transportation under section 51505 of this title, the Secretary may make an agreement with a student at the academy who is a citizen of the United States to make payments to the State maritime academy on behalf of the individual for the cost of the tuition and fees charged by the State maritime academy for the student to sail on a training cruise on a training ship owned by the Maritime Administration.

''(b) PAYMENTS.—Payments under this section shall be as prescribed by the Secretary but shall not exceed the cost charged by the State maritime academy for the student to obtain the minimum number of sea days needed on board a training ship owned by the Maritime Administration to obtain a merchant mariner credential, without limitation as to tonnage or horsepower, from the Coast Guard as an officer in the merchant marine of the United States, accompanied by the appropriate national and international endorsements and certifications required by the Coast Guard for service aboard vessels on domestic and international voyages, without limitation.

''(c) AGREEMENT REQUIREMENTS.—An agreement under this section shall require the student to—

''(1) complete the course of instruction at the academy the individual is attending within 6 years of enrollment;

''(2) obtain a merchant mariner credential, without limitation as to tonnage or horsepower, from the Coast Guard as an officer in the merchant marine of the United States, accompanied by the appropriate national and international endorsements and certification required by the Coast Guard for service aboard vessels on domestic and international voyages, without limitation, within 3 months of completion of the course of instruction at the academy the individual is attending;

''(3) for at least 6 years after graduation from the academy, maintain—

''(A) a valid merchant mariner credential, unlimited as to horsepower or tonnage, issued by the Coast Guard as an officer in the merchant marine of the United States, accompanied by the appropriate national and international endorsements and certifications required by the Coast Guard for service aboard vessels on domestic and international voyages, without limitation;

''(B) a valid transportation worker identification credential; and

''(C) a Coast Guard medical certificate;

''(4) apply for, and accept, if tendered a position commensurate with the obtained merchant mariner credential for 3 years after graduation from the academy or, if the individual has a student incentive program agreement under section 51509 one year in addition to the obligation required under section 51509(d)(5)—

''(A) as a merchant marine officer on a vessel operated by the United States Government or by a State;

''(B) as a merchant marine officer on a United States documented vessel;

''(C) as an employee in a United States maritime-related industry, profession, or marine science, as determined by the Secretary;

''(D) as a commissioned officer on active duty in an armed force of the United States, as a commissioned officer in the National Oceanic and Atmospheric Administration; or

''(E) by a combination of service alternatives referred to in subparagraphs (A) through (D) of this subsection; and

''(5) report to the State maritime academy of graduation, or to the Secretary if directed, on compliance with paragraphs (1) through (4) of this subsection.

''(d) STATE MARITIME ACADEMY REPORTING.—

''(1) IN GENERAL.—A State maritime academy that received payments on behalf of an individual under this section must provide the Maritime Administrator with information that demonstrates that compliance with subsection (c)(4) by that individual.

''(2) REPORT.—If a State maritime academy is unable to obtain information that demonstrates compliance with subsection (c)(4), the State maritime academy shall report to the Maritime Administrator that the individual is not in compliance with subsection (c)(4).

''(3) FREQUENCY.—The frequency of the State maritime academy reporting period under paragraph (2) shall not exceed 365 days.

''(4) LIMITATION.—A State maritime academy may retain not more than 3 percent of the annual funding provided by the Secretary under this section for administrative expenses incurred in complying with this subsection.

''(e) FAILURE TO COMPLETE AGREEMENT REQUIREMENTS.—If the individual is unable or unwilling to meet the agreement requirements under subsection (c), the Secretary of Transportation may recover from the individual the amount of payments in subsection (b), plus interest and attorney fees. The Secretary may reduce the amount to be recovered to reflect partial performance of obligations and other factors the Secretary determines merit a reduction.

''(f) ACTIONS TO RECOVER COST.—To aid in the recovery of funds provided by the Government under a commitment agreement under this section, the Secretary of Transportation may—

''(1) request the Attorney General to bring a civil action against the individual; and

''(2) make use of the Federal debt collection procedures in chapter 176 of title 28 or other applicable administrative remedies.

''(g) MODIFICATION OR WAIVER.—The Secretary may waive any of the terms and conditions set forth in subsection (c) or modify such terms and conditions through the imposition of alternative service requirements.

''(h) ELIGIBILITY FOR ADDITIONAL PAYMENTS.—An individual who receives a payment pursuant to this section shall not be eligible for payments under section 51708 of

this title until the individual has fulfilled the obligated three years of service under subsection (c)(4).

''(i) FUNDING AVAILABILITY.—Not to exceed 10 percent of the amounts appropriated for any fiscal year for payments authorized under this section may be transferred or reprogrammed and made available for the purpose of making payments authorized under sections 51509, 51512, and 51708, as determined by the Secretary.''.

SEC. 3567. MODIFICATION OF CARGO PREFERENCE THREE-YEAR ELIGIBILITY RULE.

Section 55305(b) of title 46, United States Code, is amended by striking ''after January 1, 2030,''.

SEC. 3568. CARGO PREFERENCE ENFORCEMENT.

(a) IN GENERAL.—Section 55305 of title 46, United States Code, is amended—

(1) in subsection (a)—

(A) by striking ''MINIMUM TONNAGE.—When the United States Government'' and inserting ''REQUIREMENT TO USE U.S.-FLAG VESSELS.—When a United States department or agency''; and

(B) by striking ''the appropriate agencies shall take steps necessary'' and all that follows through the end of the subsection and inserting

''the department or agency must ensure that all equipment, materials, or commodities that may be transported on ocean vessels, except when required for the timely transportation of cargoes under the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.), is transported on privately-owned commercial vessels of the United States.'';

(2) by striking subsection (d) and inserting the following:

''(d) WAIVERS.—

''(1) The requirements under this section may be waived as provided for in this subsection.

''(2) The President, the Secretary of War, or the Secretary of State may waive this section temporarily by—

''(A) declaring the existence of an emergency justifying a waiver; and

''(B) notifying the appropriate agencies of the waiver; or

''(3) Upon the request of a U.S. Government department or agency filed at least 10 days prior to transportation of equipment, materials, and commodities subject to this section, the Secretary of Transportation may waive the requirements in sub-

section (a), for all or part of the transportation, if the Secretary determines there are no privately-owned commercial vessels of the United States—

"(A) responsive to the solicitation by vessel type;

"(B) available at fair and reasonable rates for commercial vessels of the United States; or

"(C) otherwise available.

"(4) For waiver requests filed pursuant to paragraph (3), the Secretary of Transportation shall not be obligated to issue a waiver sooner than 10 days prior to transportation.

"(5) The Secretary of Transportation shall notify the Committee on Transportation and Infrastructure and the Committee on Armed Services of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate of—

"(A) any waiver request made pursuant to paragraph (3) not later than 72 hours after receiving such a request; and

"(B) the issuance of any such waiver not later than 72 hours after issuing the waiver.

''(6) Waivers issued pursuant to paragraph (3) shall be published on the Department of Transportation website within 5 business days.

''(7) The Secretary of Transportation, in consultation with the Secretary of State, is authorized to promulgate regulations defining ''fair and reasonable rates for commercial vessels of the United States as cost based'' for purposes of the determinations established in paragraph (3). The goal of such regulations shall be to provide clarity and reduce procedural friction in the waiver process by establishing an objective standard based on vessel cost, to the maximum extent possible, in relevant and accessible market and cost data.'';

(3) in subsection (e)—

(A) in the subsection heading by striking ''PROGRAMS OF OTHER AGENCIES'' and inserting ''DEPARTMENT AND AGENCY REQUIREMENTS'';

(B) by striking paragraph (1) and inserting the following:

''(1) Each Federal Government department or agency that transports equipment, commodities, or materials shall—

''(A) include provisions in each Federal solicitation, application, agreement, or procurement contract requiring each contract applicant or offeror to acknowledge that ocean transportation contracted under the agreement or procurement contract must comply with this section and related regulations issued by the Secretary of Transportation;

''(B) submit to the Secretary agreements, procurements, or other contracts at least 45 days before ocean carriage, along with corresponding plans for complying with this section that describe—

''(i) all cargoes, both known and anticipated, with specificity;

''(ii) the proposed ports of loading and discharge and expected dates of ocean carriage;

''(iii) all parties involved in the ocean transportation of the cargoes, including brokers and freight forwarders; and

''(iv) any other relevant information required by the Secretary of Transportation;

''(C) provide the Maritime Administration with the Automated Commercial Environment Internal Transaction Number that corresponds with each ocean bill of lading number for each ocean shipment of cargo under contract, including those transported on foreign-flag vessels—

''(i) within 20 working days after the date of loading for shipments originating in the United States;

''(ii) within 30 working days after the date of loading for shipments originating outside of the United States; or

''(iii) in instances for which an Automated Commercial Environment Internal Transaction Number is not available, a legible, complete copy of a rated on-board ocean bill of lading in English, within times specified in clauses (i) or (ii);

''(D) exercise contractual rights and remedies against contractors who fail to comply with contractual provisions requiring the use of U.S.-flag vessels, as determined by the Secretary of Transportation, including by—

''(i) equitably adjusting the contract price downward by an amount equal to the

difference in the cost of a foreign-flag vessel used in violation of the contract and the estimated cost of using a U.S.-flag vessel to carry the same cargo;

''(ii) determining that a contractor is ineligible for an award of such a contract; or

''(iii) terminating such a contract or suspension or debarment of the contractor for such a contract; and

''(E) retain records collected pursuant to this section for 5 years after each shipment is completed.''; and

(C) in paragraph (2)—

(i) by striking subparagraphs (A) and (B);

(ii) by redesignating subparagraphs (C) and (D) as subparagraphs (E) and (F), respectively;

(iii) by inserting before subparagraph (E), as so redesignated, the following:

''(A) has sole authority for determining compliance by a department, agency, or individual with this section;

"(B) may provide guidance on whether a department or agency is operating in compliance with the requirements of this section;

"(C) shall review every shipment and compliance plan subject to the requirements of this section;

"(D) shall annually submit to the Committee on Transportation and Infrastructure and Committee on Armed Forces of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate a report on department and agency compliance with this section, including submission of compliance plans;"; and

(iv) in subparagraph (F), as so redesignated, by striking "may take other measures as appropriate under" and inserting "shall notify agencies of violations so that other measures may be taken as appropriate under subsection (e)(1)(D) of this section or".

(b) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date that is 180 days after the date of enactment of this Act.

SEC. 3569. UNITED STATES VESSEL PREFERENCE REQUIREMENT.

(a) IN GENERAL.—Part D of subtitle V of title 46, United States Code, is amended by inserting after subchapter III the following new subchapter:

''SUBCHAPTER IV—UNITED STATES VESSEL PREFERENCE

''55351. Definitions.
''55352. Establishment of the United States vessel preference requirement.
''55353. Maritime special security agreement framework.
''55354. Enforcement and compliance.

''§ 55351. Definitions

''In this subchapter:

''(1) ALLIED COUNTRY.—The term 'allied country' means a country or group of countries designated by the Secretary of Defense, in consultation with the Secretary of Transportation and the Secretary of State, as an ally of the United States for purposes of this subchapter.

''(2) BENEFICIAL CARGO OWNER.—The term 'beneficial cargo owner' means an entity that retains the power to influence the routing of the cargo or owns the merchandise being transported at the time of shipment.

''(3) COUNTRY OF CONCERN.—The term 'country of concern' means a country identified pursuant to section 4651(7) of title 15, United States Code.

''(4) COVERED CARGO.—The term 'covered cargo' means inbound containerized cargo and roll-on/roll-off vehicles imported into the United States in the foreign commerce of the United States that are subject to entry, manifest reporting, or other customs documentation requirements under title 19, United States Code, as further specified by the Commission by regulation. The term does not include exports, bulk cargo, breakbulk cargo, or cargo excluded by regulation consistent with this subchapter.

''(5) INDUSTRIAL READINESS CERTIFICATION.—The term 'industrial readiness certification' means a certification made by the Maritime Administrator after evaluating shipyard capacity, mariner availability, and commercial feasibility for purposes of phased implementation. ″(6) Maritime Special Security Agreement; M-SSA.—The term 'Maritime Special Security Agreement' or 'M-SSA' means an agreement established under section 55353.

''(6) QUALIFYING UNITED STATES VESSEL.—The term 'qualifying United States vessel' means a vessel documented under chapter 121 of title 46 and meeting requirements under section 55352 and not

a U.S. warship, auxiliary vessel, or under time or bare-boat charter by the United States.

''(7) TRADE LANE.—The term 'trade lane' means a geographic shipping corridor designated by the Secretary of Transportation.

''(8) COMPLIANCE YEAR.—The term 'compliance year' means a calendar year for which participation targets apply under section 55352, as determined under section 55354(j).

''(9) COVERED MOVEMENT.—The term 'covered movement' means the transportation by water of covered cargo to the United States within a designated trade lane subject to participation targets under section 55352, as determined by the Commission under section 55354 using existing customs and shipping documentation.

''(10) COVERED SHIPPER.—The term 'covered shipper' means, with respect to a covered movement, the beneficial cargo owner, importer of record to which entity-level participation targets apply under section 55352(a)(2), or provider of third-party logistics services for cargo shipments, as determined by the Commission under section 55354 using existing customs and shipping documentation. The term does not include an ocean common carrier or an ocean

transportation intermediary solely by virtue of providing ocean transportation or arranging ocean transportation.

''(11) AFFILIATED COVERED SHIPPER GROUP.—The term 'affiliated covered shipper group' means 2 or more covered shippers that are treated as a single compliance unit because they are under common control, are alter egos, are successors, or act in concert with respect to routing, contracting, or payment for ocean transportation of covered cargo, as determined under section 55354.

''(12) CONTROL.—The term 'control' means, with respect to an entity, direct or indirect possession of the power to direct or cause the direction of management and policies of such entity (whether through ownership of voting securities, by contract, or otherwise), and shall be presumed where an entity directly or indirectly owns 50 percent or more of the equity or voting interests.

''(13) UNIQUE ENTITY IDENTIFIER.—The term 'unique entity identifier' means an Employer Identification Number (EIN) or such other persistent identifier as the Commission shall specify by regulation for foreign persons, including an identifier used

in customs entry, manifest, or service contract documentation.

''(14) ULTIMATE PARENT ENTITY.—The term 'ultimate parent entity' means the highest-level entity that controls a covered shipper, and that is not controlled by another entity.

''(15) COMMISSION.—The term 'Commission' means the Federal Maritime Commission.

''(16) OCEAN COMMON CARRIER.—The term 'ocean common carrier' has the meaning given that term at section 40102(18) of this title.

''(17) OCEAN TRANSPORTATION INTERMEDIARY.—The term 'ocean transportation intermediary' has the meaning given that term at section 40102(20) of this title.

''(18) SERVICE CONTRACT.—The term 'service contract' means service contracts as set forth at section 40102(21) of this title.

''(19) CIVIL PENALTY.—A 'civil penalty' is a civil penalty under sections 41107 and 41109 of this title.

''§ 55352. Establishment of the United States vessel preference requirement

''(a) ESTABLISHMENT.—

''(1) IN GENERAL.—The Secretary of Transportation shall establish a United States vessel cargo participation requirement applicable to the carriage of covered cargo within designated trade lanes.

''(2) APPLICATION.—Participation targets established under this section shall apply as entity-level participation requirements to each beneficial cargo owner or importer of record operating within a designated trade lane and shall be aggregated across the affiliated covered shipper group (if any) of such entity, as determined under section 55354.

''(3) PARTICIPATION TARGETS.—Participation targets—

''(A) may be established on a trade-lane-specific and commodity-specific basis, including the inclusion or exclusion of particular commodity categories, provided that aggregate participation meets or exceeds the minimum phase-based floors established under subsection (b); and

''(B) shall be implemented on a trade-lane-specific and, where appropriate, commodity-specific basis and shall be designed to expand participation of qualifying United States vessels in

a commercially feasible, capacity-aware, and phased manner.

''(4) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to establish a uniform nationwide cargo quota or to require identical participation targets across all trade lanes or commodity categories.

''(b) PHASED IMPLEMENTATION.—Participation targets established under this section shall be implemented through sequential phases designed to expand United States-flag participation in a commercially feasible and capacity-aware manner, as provided for in this section.

''(1) PHASE I—INITIAL MARKET ENTRY.—

''(A) Not later than 180 days following enactment of this section, the Secretary shall establish an initial participation target of not less than 3 percent of covered cargo overall on an annual basis within designated trade lanes be carried on qualifying United States vessels, unless a lower percentage is certified as necessary due to vessel or mariner availability.

''(B) Participation targets established during this phase shall—

''(i) be in effect for a period of no less than four years upon the first day of establishment;

''(ii) Be used to incentivize and facilitate re-flagging, new service entry, and contract restructuring to emphasize voluntary transition into the U.S.—flag fleet.

''(iii) be treated as a pilot period for purposes of evaluating commercial feasibility, workforce impacts, and industrial readiness; and

''(iv) be prioritized along trade lanes, as described in subsection (c), where qualifying United States vessels are already operating or can be deployed with minimal disruption to existing logistics structures.

''(2) PHASE II—CAPACITY EXPANSION.—For the four years following Phase I, the Secretary shall—

''(A) increase participation targets incrementally based on fleet availability, workforce capacity, and industrial readiness as determined annually by the Maritime Administrator; and

''(B) increase participation targets by not less than 1.5 percent annually unless the Mari-

time Administrator makes a determination that the United States fleet or mariner workforce cannot sustain a growth rate at that level; and

"(C) establish participation targets that prioritize the use of vessels built in the United States over foreign-built vessels that have re-flagged into the U.S. fleet.

"(3) PHASE III—ADAPTIVE SCALING.—Following Phase II—

"(A) the Secretary—

"(i) shall review participation targets not less than every three years; and ″(ii) may establish revised participation targets reflecting demonstrated fleet growth, shipyard output, and mariner supply.

"(B) participation targets—

"(i) may require that a percentage of covered cargo be carried only on vessels built in the United States; and

"(ii) may be trade-lane specific but vary by commodity classification; and

"(C) participation target growth shall be—

"(i) not less than 2 percent overall on an annual basis; and

''(ii) 1 percent for United States built ships unless a determination is made by the Administrator that the United States fleet or mariner workforce cannot sustain a growth rate at that level.

''(4) ANNUAL REVIEW AND CERTIFICATION.—Not less than once each year, the Maritime Administrator shall make a determination as to whether vessel capacity, mariner availability, and commercial feasibility support continuation or adjustment of participation targets.

''(A) The Maritime Administration shall provide to Congress annually a report on the targets for the succeeding fiscal year showing the growth in reflagged United States flag ships, growth in United States built ships, and the status of the overall United States flag fleet in international trade.

''(B) The Secretary may temporarily pause or modify scheduled increases upon certification of material capacity constraints.

''(5) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to establish a uniform nationwide cargo quota or to require identical targets across trade lanes or commodity categories.

''(c) PRIORITIZATION OF TRADE LANES AND COMMODITIES.—

''(1) IN GENERAL.—In selecting trade lanes and commodity groupings for phased implementation under this section, the Secretary of Transportation, in concurrence with the Secretary of State, and in consultation with the Secretary of the Treasury, Secretary of Commerce, United States Trade Representative, Chairperson of the Federal Maritime Commission, and Secretary of Homeland Security, shall give priority to trade lanes and commodities that have a direct bearing on national security, supply chain resilience, or United States economic competitiveness.

''(2) PRIORITY CONSIDERATIONS.—Priority considerations may include critical minerals, energy systems, defense-related cargo, strategic manufacturing inputs, and other sectors determined to be essential to national preparedness or long-term industrial capacity.

''(3) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to require uniform application across all trade lanes or to limit the Secretary's discretion to consider commercial feasibility, vessel availability, or workforce capacity.

''(d) COMMERCIAL FEASIBILITY.—Trade lane targets under this section must be operationally achievable within existing commercial shipping practices and account for vessel availability, mariner supply, and contractual logistics structures.

''(e) UNITED STATES CONTENT.—For purposes of this subchapter, United States content shall be measured, at the vessel level, as a percentage of the total cost of construction, conversion, repair, and refurbishment of the vessel that is attributable to labor performed in the United States and materials produced in the United States, consistent with the standards articulated in chapter 83 of title 41, United States Code. The Secretary shall prescribe by regulation methods of calculation, eligible costs, and documentation standards for certification and audit.

''(f) EQUIVALENCY AUTHORITY.—The Maritime Administrator may grant equivalencies on a per country basis where domestic industrial capacity is insufficient.

''(g) SPECIAL RULE FOR CONTAINERIZED COMMODITY CLASSIFICATION.—

''(1) CLASSIFICATION.—For purposes of commodity-specific preference targets, containerized cargo shall be classified based on Customs and Border Protection-recognized shipment programs rather than the individual contents of a container.

''(2) COMMODITY CATEGORIES DEFINED.—The Secretary may define commodity categories using—

''(A) Harmonized Tariff Schedule chapter ranges or groupings recognized by U.S. Customs and Border Protection;

''(B) beneficial cargo owner program declarations or certified logistics programs; or

''(C) service contract filings or vessel service designations maintained under applicable Federal Maritime Commission or customs reporting requirements.

''(3) MEASURING COMPLIANCE.—Compliance shall be measured using existing customs documentation, including bills of lading, manifest filings, or service contract identifiers, and shall not require inspection or valuation of individual goods within containers.

''(4) MIXED MERCHANDISE.—Where containers include mixed merchandise described as general cargo, the Secretary may treat such containers as part of a designated commodity program if tendered under a qualifying contract, Harmonized Tariff Schedule grouping, or certified cargo program.

''(5) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to require item

level auditing of container contents beyond existing customs reporting requirements; nor shall it be construed to limit, restrict, or alter the authority of the U.S. Coast Guard or U.S. Customs and Border Protection to inspect containers and cargo for safety, security, or law enforcement purposes.

''(6) RELIANCE ON EXISTING SYSTEMS.—Commodity classifications and compliance determinations under this subsection shall rely exclusively on customs declarations, service contract filings, or other reporting systems already required under Federal law, and shall not create a separate cargo classification regime.

''(h) REQUIREMENT TO PROTECT AND SHARE INFORMATION.—The Secretary and the Chairman of the Federal Maritime Commission shall execute an agreement to establish a formal framework for the exchange of information necessary to implement this section that protects the privacy and confidentiality rights of private parties.

''(i) NATIONAL SECURITY CONDITION FOR QUALIFICATION.—

''(1) IN GENERAL.—A vessel shall not be treated as a qualifying United States vessel for purposes of this subchapter if the vessel is owned, chartered, managed, or operated by or on behalf of an entity

subject to foreign ownership, control, or influence, unless such entity is operating pursuant to an approved Maritime Special Security Agreement under section 55353.

''(2) NO AUTOMATIC REQUIREMENT FOR DOMESTIC ENTITIES.—Nothing in this subsection shall be construed to require a Maritime Special Security Agreement for an entity that the Maritime Administrator determines is not subject to foreign ownership, control, or influence.

''(3) COUNTRY OF CONCERN PROHIBITION.—No vessel controlled by a citizen of a country of concern may qualify under this subchapter if such citizen holds, directly or indirectly, a controlling interest or other disqualifying influence in the entity owning, chartering, managing, or operating the vessel, as determined under regulations issued pursuant to section 55353.

''(j) QUALIFYING UNITED STATES VESSEL REQUIREMENTS.—

''(1) IN GENERAL.—A vessel is a qualifying United States vessel for purposes of this subchapter only if the vessel is documented under chapter 121 of this title and meets the requirements of this sub-

section, subsection (k), and section 55353 (as applicable).

''(2) REPAIRED OR REFURBISHED VESSELS.—A U.S.-documented vessel that is repaired or refurbished may be treated as meeting the United States content thresholds under paragraph (3) if the Secretary determines that the cost of such repairs or refurbishments includes sufficient United States content under subsection (g), and if the vessel was originally built in an allied country.

''(3) UNITED STATES CONTENT THRESHOLDS.—A qualifying United States vessel shall meet the following minimum United States content thresholds:

''(A) For calendar years 2027 through 2030, an allied-built vessel may qualify if the vessel is inspected, certificated, and documented consistent with section 53102(e) of this title and related Coast Guard guidance (including Navigation and Vessel Inspection Circular No. 01-13, and any successor guidance) and is operated by an entity in compliance with section 55353.

"(B) For calendar years 2031 through 2034, at least 20 percent United States content.

"(C) For calendar years 2035 through 2038, at least 30 percent United States content.

"(D) For calendar years 2039 through 2042, at least 40 percent United States content.

"(E) Beginning in calendar year 2042, at least 51 percent United States content.

"(4) QUALIFICATION EXTENSION.—Beginning in calendar year 2031, a vessel that first qualifies under this subchapter shall continue to be a qualifying United States vessel for not more than 20 years after the date the vessel is first documented under chapter 121 of this title, provided the vessel maintains at least 20 percent United States content throughout that period.

"(5) ALTERNATE COMPLIANCE PROGRAM REQUIREMENTS.—Requirements unique to the Alternate Compliance Program shall not apply to an allied-built vessel described in paragraph (3)(A) unless the Coast Guard determines such requirements are strictly necessary for safety or security; however,

United States-unique requirements contained in the Alternate Compliance Program U.S. Supplement are otherwise waived for eligible vessels.

''(6) COASTWISE TRADE.—Nothing in this subchapter shall be construed to alter or supersede the requirements of chapter 551 of this title (the coastwise trade laws). Qualifying United States vessels under this subchapter are intended for foreign commerce under United States registry and are not granted coastwise trading privileges by this subchapter.

''(7) EXPANSION TO MEET NATIONAL SECURITY NEEDS.—The President may expand the types of cargo subject to this subchapter if the President determines such expansion is necessary to meet the national security needs of the United States, provided that any cargo so added is afforded the same phased implementation and United States content requirements for qualifying vessels specified in this section.

''(k) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to—

''(1) impose a uniform nationwide cargo quota or to require preference targets to apply across all trade lanes or cargo categories;

''(2) waive or modify vessel documentation, inspection, certification, safety, security, or vessel-to-facility interface requirements administered by the Coast Guard or the Department of Labor;

''(3) deem any person or entity a citizen of the United States for purposes of this title, including chapter 121, except for the limited deeming described in subsection (j); or

''(4) limit any other national security review authority of the United States.

''§ 55353. Maritime special security agreement framework

''(a) ESTABLISHMENT.—Not later than 180 days after the date of enactment of this subchapter, the Secretary of Transportation in consultation with the Secretary of Defense and the Secretary of Homeland Security (including the Commandant of the Coast Guard), shall establish by regulation a Maritime Special Security Agreement framework (in this section referred to as an 'M-SSA'), modeled on foreign-ownership, control, or influence mitigation agreements used in national-security sectors, to permit allied and other foreign capital investment while ensuring United States operational control and protection of security-sensitive information.

''(b) PURPOSE; PARTIES; COVERED ENTITIES.—

''(1) PURPOSE.—An M-SSA is a written agreement intended to mitigate foreign ownership, control, or influence and to ensure that management and operational control over qualifying United States vessel operations under this subchapter remain vested in United States citizens, consistent with national security requirements.

''(2) PARTIES.—An M-SSA shall be executed between the Maritime Administrator and a vessel owner, vessel operator, or other entity that seeks to own, charter, manage, or operate a qualifying United States vessel under this subchapter (in this section referred to as a 'covered entity').

''(3) SCOPE OF APPLICATION.—An M-SSA shall apply only to the covered entity and the qualifying United States vessels and related operations identified in the agreement.

''(c) ELIGIBILITY; PROHIBITED CAPITAL.—The Maritime Administrator may approve an M-SSA only if—

''(1) the covered entity certifies that no citizen from a country of concern holds, directly or indirectly, a controlling interest or other disqualifying influence, as determined under regulations issued pursuant to subsection (j);

''(2) the covered entity agrees to comply with the governance, operational-control, information-security, reporting, and audit requirements of this section; and

''(3) the Maritime Administrator has consulted with the Secretary of Defense and the Secretary of Homeland Security regarding any national security conditions that should be incorporated into the M-SSA.

''(d) CORE REQUIREMENTS.—A covered entity operating under an M-SSA shall—

''(1) maintain a principal executive responsible for qualifying United States vessel operations who is a citizen of the United States;

''(2) ensure that qualifying United States vessel operations under this subchapter remain subject to governance and operational-control arrangements vested in citizens of the United States, as specified in the M-SSA;

''(3) establish a security committee or comparable governance mechanism composed solely of citizens of the United States to oversee security-sensitive decisions identified in the M-SSA;

''(4) implement information firewalls restricting foreign access to sensitive operational, logistics, and

defense-related data, consistent with subsection (f); and

''(5) designate one or more compliance officers responsible for administration of the MSSA who are citizens of the United States and eligible for any security clearances determined appropriate by the Secretary of Defense for purposes of the M-SSA.

''(e) SECURITY COMMITTEE OR EQUIVALENT GOVERNANCE MECHANISM.—

''(1) COMPOSITION.—The security committee or equivalent governance mechanism required under subsection (d)(3) shall consist solely of citizens of the United States.

''(2) AUTHORITIES.—The security committee or equivalent governance mechanism shall exercise such approval, oversight, or veto authorities over security-sensitive decisions as are specified by regulation and in the applicable M-SSA, including with respect to—

''(A) access to and dissemination of security-sensitive operational, cargo, routing, or defense-related information;

''(B) changes in key personnel positions identified in the M-SSA;

''(C) changes in ownership, governance, financing, chartering, or other arrangements that

could increase foreign ownership, control, or influence; and

''(D) such other matters as the Maritime Administrator determines necessary to mitigate national security risk, in consultation with the Secretary of Defense and the Secretary of Homeland Security.

''(3) GOVERNANCE INSTRUMENTS.—The covered entity shall adopt bylaws, delegations of authority, internal controls, and other governance instruments sufficient to give effect to the authorities required under this subsection.

''(f) INFORMATION FIREWALL; RECORDKEEPING.—

''(1) FIREWALL.—Each covered entity operating under an M-SSA shall maintain policies, technical controls, and procedures that prevent unauthorized foreign access to security-sensitive operational and defense-related information, including through remote access or third-party service providers.

''(2) RECORDS.—The covered entity shall maintain such books, records, and technical logs as the Maritime Administrator determines necessary to verify compliance, including records sufficient to support audits under subsection (h).

''(g) NOTICE OF CHANGE; PRIOR APPROVAL.—A covered entity operating under an M-SSA shall provide advance notice to the Maritime Administrator of any material change in ownership, governance, debt covenants, chartering arrangements, or other relationships that could reasonably increase foreign ownership, control, or influence, and shall obtain approval or amended M-SSA terms prior to implementing such change, as provided by regulation.

''(h) OVERSIGHT.—

''(1) IN GENERAL.—The Maritime Administrator, in coordination with the Secretary of Defense and the Secretary of Homeland Security, shall approve, audit, and monitor covered entities operating under an M-SSA at least annually.

''(2) COAST GUARD AND DEPARTMENT OF LABOR COORDINATION.—In conducting oversight under paragraph (1), the Maritime Administrator shall coordinate with the Commandant of the Coast Guard on matters implicating vessel documentation, inspection, certification, safety, security, crewing, or credentialing requirements administered by the Coast Guard and the Department of Labor on matters implicating safety requirements administered by the Department of Labor.

''(i) BREACH OF TERMS; REMEDIES.—

''(1) SUSPENSION OR REVOCATION.—Breach of M-SSA terms, or material misrepresentation in an application for or performance under an M-SSA, shall be grounds for suspension or revocation of—

''(A) M-SSA approval; and

''(B) the eligibility of any vessel operated by the covered entity to qualify under section 55352.

''(2) INTERIM MEASURES.—Pending a final determination, the Maritime Administrator may impose interim mitigation measures, including enhanced reporting, restricted information access, or temporary management controls.

''(j) DEEMING PROVISION; LIMITED SCOPE.—For the limited purpose of administering this subchapter and any Federal cargo-preference program that expressly incorporates this deeming provision, an entity operating under an approved M-SSA shall be deemed United States-controlled regardless of capital origin, provided such capital is not from a country of concern. Nothing in this subsection shall be construed to confer coastwise trading privileges or to alter any requirement under chapter 551 of this title or any other law governing coastwise trade.

''(k) REGULATIONS.—The Secretary of Transportation shall promulgate regulations to carry out this section, including—

''(1) definitions of 'control', 'disqualifying influence', and ″security-sensitive decisions;

''(2) minimum required authorities and procedures for the security committee or equivalent governance mechanism required under subsection (e);

''(3) audit standards, reporting requirements, and confidentiality protections for sensitive security information; and

''(4) procedures for expedited review where necessary to support timely implementation of section 55352(l)(3)(A).

''(l) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to—

''(1) waive or modify vessel documentation, inspection, certification, safety, or security requirements administered by the Coast Guard or the Department of Labor;

''(2) deem any person or entity a citizen of the United States for purposes of this title, including chapter 121, except for the limited deeming described in subsection (j); or

''(3) limit any other national security review authority of the United States.

''§ 55354. Enforcement and compliance

''(a) ADMINISTRATION BY FEDERAL MARITIME COMMISSION.—

''(1) IN GENERAL.—The Federal Maritime Commission shall administer and enforce this subchapter, including participation targets and any penalties for non-participation established under this subchapter.

''(2) REGULATIONS.—Not later than 1 year after the date of enactment of this subchapter, the Commission shall prescribe implementing regulations pursuant to section 46105. Such regulations and final orders under this section shall be treated as issued pursuant to section 46105 for purposes of chapter 158 of title 28.

''(3) PRESERVATION OF VESSEL QUALIFICATION DETERMINATIONS.—The Secretary of Transportation, in consultation with the U.S Trade Representative and Secretary of Commerce, shall retain authority to determine whether a vessel is a qualifying United States vessel (including any determinations involving a Maritime Special Security Agreement or similar mitigation arrangement). The Com-

mission shall accept such determinations as conclusive for purposes of this subchapter. Such determinations shall be made in accordance with sections 55351, 55352, and 55353.

''(b) SHIPPER-LEVEL COMPLIANCE DUTY.—

''(1) REQUIREMENT.—Each covered shipper, and each affiliated covered shipper group, shall ensure that its covered movements satisfy the applicable participation targets under this subchapter for each compliance year, as determined by the Commission. The Commission may determine, by regulation or order, to exempt low volume shippers from the requirements of this section if the Commission finds that such exemption will not result in a substantial impact on participation targets.

''(2) NO LIABILITY FOR QUALIFYING U.S. VESSEL MOVEMENTS.—A covered movement transported on a qualifying United States vessel shall be treated as compliant and shall not give rise to a non-participation assessment.

''(3) MEASUREMENT AND AGGREGATION.—Compliance shall be measured using existing customs documentation systems and shall be aggregated across each affiliated covered shipper group.

''(c) ANNUAL CERTIFICATION; DISCLOSURE.—

''(1) CERTIFICATION.—Not later than a date set by regulation (not later than 120 days after the close of each compliance year), each covered shipper shall file with the Commission an annual certification, in such form as the Commission shall prescribe, including—

''(A) the unique entity identifier of the covered shipper;

''(B) the identity and unique entity identifier of the ultimate parent entity;

''(C) a list of affiliated entities sufficient to identify the affiliated covered shipper group;

''(D) an attestation by a responsible corporate officer, under penalty of perjury, regarding completeness and accuracy; and

''(E) such shipment-level or aggregated data elements as are necessary to verify compliance using existing customs and shipping documentation.

''(2) UPDATES.—The Commission may require prompt updates upon changes in ultimate parent entity or control.

''(3) CONFIDENTIALITY.—Information submitted under this subsection shall be protected as commercial or financial information to the extent

permitted by law. The Commission may publish only aggregated, non-confidential compliance statistics.

''(d) VERIFICATION; INTERAGENCY COORDINATION.—

''(1) CUSTOMS INTEGRATION.—The Commission shall verify compliance using existing customs documentation, including vessel manifest and cargo declaration information and entry data, without creating a new cargo classification regime.

''(2) COORDINATION.—Not later than 180 days after enactment, the Commission shall enter into memoranda of understanding, as appropriate, with U.S. Customs and Border Protection, the Department of Transportation, the Department of Homeland Security, and the Department of the Treasury to support data access, verification, and collection.

''(3) AUDIT; RECORDS.—The Commission may audit covered shippers and affiliated covered shipper groups for purposes of this section and may require retention and production of records sufficient to substantiate certifications.

''(e) PENALTIES FOR NON-PARTICIPATION.—

''(1) IMPOSITION.—If the Commission determines, after notice and opportunity for hearing, that a covered shipper or affiliated covered shipper group

failed to satisfy applicable participation targets for a compliance year, the Commission shall impose civil penalties equal to not less than 10 percent of the value of the shipper or shipper group's incoming cargo to the United States in the period of non-compliance.

''(2) NO CREDIT FOR NON-COMPLIANCE.—Payment of an assessment under this subsection shall not satisfy, offset, or reduce any participation target applicable in a subsequent compliance year.

''(3) NATURE OF ASSESSMENT.—An assessment under this subsection is a civil monetary assessment and is in addition to any other civil penalty, customs duty, tax, fee, or remedy available under this subchapter or any other provision of law.

''(4) EXCLUSION OF COMPLIANT MOVEMENTS.—Covered movements transported on qualifying United States vessels shall not be included in calculating an assessment under this subsection.

''(5) DELINQUENCY; RELEASE OF CARGO.—After a final order finding repeated delinquency or evasion, the Commission may require, as a condition of release of additional covered cargo of the covered shipper or affiliated covered shipper group, the posting of payment security in a form acceptable to the

Commission and the Secretary of the Treasury, including a surety bond, letter of credit, or cash deposit.

''(6) ESCALATION.—The Commission may impose additional penalties for repeated nonparticipation, evasion, or delinquency, including increased civil monetary penalties, shortened cure periods, and payment-security requirements under subsection (g).

''(7) REGULATIONS.—The Commission shall prescribe regulations governing calculation, notice, collection, and mitigation of assessments under this subsection, but may not reduce the statutory minimum percentages established in paragraph (1).

''(f) WAIVER OF ADJUSTMENT.—The Secretary of Transportation may recommend waivers or reductions of assessments where compliance will materially disrupt critical supply chains during an ongoing national emergency as declared by the President.

''(g) CIVIL PENALTIES; FALSE STATEMENTS.—

''(1) IN GENERAL.—A person that violates this subchapter or a regulation or order of the Commission under this subchapter, including failure to file a certification, filing of a materially false certification, concealment of covered movements, willful misrepresentation, or evasion, is liable to the United

States Government for a civil penalty not to exceed— ″(A) $100,000 for each violation; and

''(B) $250,000 for each violation that is willfully and knowingly committed.

''(2) CONTINUING VIOLATIONS.—Each day of a continuing violation after written notice from the Commission shall constitute a separate violation.

''(3) SEPARATE OFFENSES.—Each false material statement, each material omission, each failure to certify, each concealed covered movement, each use of a successor or affiliate to evade this subchapter, and each failure to comply with a payment-security requirement may constitute a separate violation.

''(4) PROCEDURES.—The Commission shall provide notice and opportunity for hearing prior to issuance of a final order assessing a penalty or assessment. The Commission may seek injunctive relief under section 41307 of this title in connection with an investigation of alleged violations of this subchapter or a regulation or order of the Commission.

''(5) CUSTOMS PENALTIES PRESERVED.—Nothing in this section shall be construed to limit the authority of United States Customs and Border Protection to take action under title 19 against any per-

son that makes or causes to be made a materially false statement, act, or omission in customs-related documentation to evade or defeat this subchapter, including under section 1592 of title 19.

''(6) SEIZURE AND FORFEITURE.—Covered cargo introduced into the commerce of the United States through a material false statement, act, or omission to evade or defeat this subchapter is subject to seizure and forfeiture under applicable customs laws.

''(h) ANTI-EVASION; ATTRIBUTION; SUCCESSOR AND ALTER-EGO; PAYMENT SECURITY.—

''(1) AGGREGATION ACROSS AFFILIATES.—The Commission shall attribute covered movements and aggregate compliance across affiliated covered shipper groups, including common-control affiliates and persons acting in concert in routing, contracting, or payment.

''(2) ATTRIBUTION RULES.—The Commission shall by regulation prescribe rules to attribute covered movements using existing customs and shipping documentation, including service contract, bill of lading, and manifest/entry data elements, to the covered shipper and affiliated covered shipper group

most directly benefiting from, directing, or controlling such movements.

''(3) REBUTTABLE PRESUMPTIONS.—The Commission shall establish rebuttable presumptions that—

''(A) movements are attributable to the entity identified as the account party/cargo owner in customs and shipping documentation;

''(B) movements of a newly formed or thinly capitalized entity with substantially common ownership, management, address, or logistics operations with a covered shipper are attributable to the affiliated covered shipper group;

''(C) a person that materially reorganizes after notice of investigation acts to evade unless proven otherwise by clear and convincing evidence; and

''(D) a covered movement routed through an intermediate foreign port or third country shall not be excluded from a designated trade lane solely by virtue of such intermediate routing, and may be attributed and treated as occurring within the designated trade lane based on the shipment's underlying origin, consignee,

and account-party information in existing customs and shipping documentation, as specified by regulation.

''(4) SUCCESSOR; ALTER-EGO.—The Commission may treat a person as a successor or alter ego of another person for purposes of liability for assessments, penalties, and payment security where there is substantial continuity of ownership, management, operations, assets, or purpose, or where the transaction or formation had a principal purpose of evasion. Liability may be joint and several within an affiliated covered shipper group.

''(5) PAYMENT SECURITY FOR REPEAT EVASION OR DELINQUENCY.—After a final order finding repeated evasion or delinquency, the Commission may require a covered shipper or affiliated covered shipper group to post and maintain reasonable payment security (including surety bond, letter of credit, or cash deposit) to secure future assessments and penalties for a period not to exceed 2 years, renewable upon a new finding after notice and opportunity for hearing. This paragraph shall not be construed to establish a general licensing regime.

''(6) NO AVOIDANCE BY RESTRUCTURING.—The Commission may disregard any corporate form,

transfer, conversion, assignment, spin-off, merger, dissolution, reincorporation, change in importer of record, change in beneficial cargo owner designation, change in service contract party, or other restructuring the principal purpose or material effect of which is to avoid compliance with, attribution under, or liability arising under this subchapter.

''(7) JOINT AND SEVERAL LIABILITY OF CONTROLLING PERSONS.—Where the Commission finds that a predecessor, successor, affiliate, beneficial owner, ultimate parent entity, or controlling person participated in, directed, benefited from, or knowingly facilitated conduct described in paragraph (6), the Commission may impose joint and several liability on such person for assessments, penalties, interest, and payment-security obligations under this subchapter.

''(8) CONTROL AT LESS THAN MAJORITY OWNERSHIP.—For purposes of this subsection, the Commission may find control notwithstanding section 55351(13) at any ownership level, or through contractual, financial, operational, family, agency, or other relationships, where the facts demonstrate the power to direct routing, contracting, payment, or corporate conduct relating to covered movements.

''(i) LIMITED CARRIER LIABILITY; COOPERATION.—

''(1) NO CARRIER COMPLIANCE DUTY.—An ocean common carrier or ocean transportation intermediary, including a non-vessel-operating common carrier, shall not be responsible for a covered shipper's participation targets or assessments solely by transporting or arranging the transportation of covered cargo.

''(2) RECORDKEEPING AND PRODUCTION.—Ocean common carriers and ocean transportation intermediaries shall, as specified by regulation, retain and produce records reasonably necessary to support verification; failure to maintain or produce records, or knowing submission of false records, may be penalized under subsection (f).

''(j) TRANSITION; EFFECTIVE DATE.—

''(1) INITIAL COMPLIANCE YEAR.—The first compliance year shall begin on the first January 1 that occurs not less than 1 year after the date the Commission issues final regulations under subsection (a)(2), unless otherwise specified by statute.

''(2) SAFE HARBOR.—For the first compliance year only, the Commission shall provide a good-faith safe harbor for covered shippers that timely file complete certifications and enter into commercially rea-

sonable arrangements to meet targets, as defined by regulation.''.

(b) INTERAGENCY STEERING BODY.—The Secretary, in consultation with the Secretary of Treasury, Secretary of State, Secretary of Defense, Secretary of Commerce, Secretary of Labor, United States Trade Representative, and Chairman of the Federal Maritime Commission, conduct periodic reviews to evaluate fleet growth, workforce capacity, industrial impacts, and compliance effectiveness.

(c) DOMESTIC REPAIR UTILIZATION.—

(1) FINDINGS.—Congress finds the following:

(A) The United States ship repair sector constitutes a distinct and strategically critical component of the maritime industrial base and shall not be treated as merely an extension of ship construction.

(B) Domestic repair capacity supports routine operational readiness of United States naval forces, sustains commercial fleet availability during peacetime operations, and will be essential to maintaining maritime logistics and sealift capability during periods of contingency, mobilization, prolonged contested logistics operations, or contested operations.

(C) Strengthening the ship repair sector represents the most immediate and scalable means of restoring industrial depth because it leverages the existing fleet and workforce rather than future vessel construction pipelines.

(2) DOMESTIC REPAIR UTILIZATION.—Chapter 531 of title 46, United States Code, is amended by adding at the end the following new section 53112:

"§ 53112. Domestic repair utilization

''(a) DOMESTIC MAINTENANCE AND REPAIR REQUIREMENT.—

''(1) IN GENERAL.—Beginning not later than 3 years after enactment of this section, Qualified United States Vessels subject to an operating agreement under this chapter must have a percentage of maintenance and repair, as determined by cost, on the vessel conducted in United States shipyards, subject to a determination by the Maritime Administrator of sufficient shipyard capacity.

''(2) MAINTENANCE AND REPAIR TARGETS.—The Secretary of Transportation shall establish a target of not less than 10 percent of total maintenance and repair expenditures to be performed in United States shipyards, increasing annually by not less than 5 percent, unless the Maritime Adminis-

trator determines that available yard capacity, scheduling constraints, or operational readiness considerations warrant adjustment.

''(3) IMPLEMENTATION.—In implementing this section, the Secretary shall ensure that—

''(A) requirements remain subject to verified shipyard capacity, workforce availability, and operational schedules;

''(B) enhanced domestic repair utilization strengthens workforce continuity, preserves critical maintenance skills, and improves surge sustainment capability supporting national defense; and

''(C) implementation relies on existing contracting structures and avoids creation of duplicative regulatory regimes.

''(4) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to interfere with the normal flow of commerce or disrupt commercially necessary maintenance cycles.

''(5) COST OFFSETS.—To offset commercially reasonable cost differentials associated with increased domestic repair activity, the Secretary may—

''(A) subject to the availability of appropriations, adjust stipend amounts paid under vessel operating agreements; and

''(B) with the concurrence of the Secretary of Defense, allow surcharges to be placed on certain contracts.

''(6) WAIVERS.—The Secretary of Transportation may grant waivers or temporary deviations if—

''(A) compliance is not commercially feasible;

''(B) compliance would materially disrupt logistics operations; or ″(C) domestic yard capacity is unavailable.''.

(d) MARITIME WORKFORCE DEVELOPMENT.—

(1) MARITIME WORKFORCE NATIONAL CENTER OF EXPERTISE.—The Secretary of Transportation, in coordination with the Commandant of the Coast Guard and the Secretaries of Labor, Homeland Security, and Defense, shall establish a ''Maritime Workforce National Center of Expertise'' (the ''Center''). The Center shall serve as a national repository of best practices and provide training, technical assistance, and curriculum development support to

maritime academies, trade schools, unions, and other training providers.

(2) FUNCTIONS OF CENTER.—The Center shall develop model curricula for mariner and shipbuilding training, expand simulator training capacity, support the development and expansion of registered apprenticeship programs (RAPS) in shipbuilding occupations and pre-apprenticeship programs that lead to such RAPs, and disseminate proven practices to universities, career and technical schools, and high schools nationwide. The Center shall make recommendations to the Secretaries of Transportation and Labor, and through the Secretaries to Congress, on expanding United States mariner training programs and shipbuilding workforce development.

(3) MARINER TRAINING FINANCE PLAN.—Not later than 180 days after the date of enactment of this Act, the Secretary of Labor and the Secretary of Transportation shall jointly develop plans to maximize the use of federal workforce development and education funds, including Pell, Workforce Pell, JobCorps, WIOA Adult, WIOA Dislocated Worker, and WIOA Youth, Apprenticeship, YouthBuild, and Reentry Employment Opportunities.

(4) REVIEW OF CREDENTIALING REQUIREMENTS.—The Commandant of the Coast Guard, in consultation with industry representatives, labor unions, and maritime training institutions, shall review merchant mariner credentialing and training requirements and submit to Congress recommendations to streamline and accelerate training approval and credential issuance, while maintaining safety standards.

(5) INTERNATIONAL TRAINING PARTNERSHIPS.—The Secretary of State shall prioritize shipbuilding and mariner training in the Department of State's educational and cultural exchange programs, in order to strengthen the United States maritime workforce and share best practices with allied nations.

(6) CONSULTATION.—In carrying out this subsection, the Secretary shall consult with maritime labor organizations, industry, State maritime academies, and other training providers.

(7) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to alter the authorities of the Coast Guard with respect to credentialing, safety, or enforcement.

(e) GENERAL RULES OF CONSTRUCTION.—

(1) NO EFFECT ON COASTWISE TRADE LAWS.—Nothing in this section or the amendments made by this section shall be construed to alter, amend, waive, or supersede chapter 551 of title 46, United States Code, or any other law governing coastwise trade.

(2) PRESERVATION OF OTHER AUTHORITIES.—Nothing in this section or the amendments made by this section shall be construed to limit any authority otherwise available under law to the Federal Maritime Commission, the Department of Transportation, the Maritime Administration, the Coast Guard, the Department of Homeland Security, U.S. Customs and Border Protection, the Department of the Treasury, or the Department of Justice.

(3) NO PRIVATE RIGHT OF ACTION.—Nothing in this section or the amendments made by this section shall be construed to create a private right of action.

(4) SEVERABILITY.—If any provision of this section, an amendment made by this section, or the application of such provision or amendment to any person or circumstance is held to be invalid, the remainder of this section, the amendments made by this section, and the application of such provisions

and amendments to any other person or circumstance shall not be affected thereby.

TITLE XXXVI—SHIPS FOR AMERICA

SEC. 3601. SHORT TITLE.

This title may be cited as the ''Shipbuilding and Harbor Infrastructure for Prosperity and Security for America Act of 2026'' or the ''SHIPS for America Act of 2026''.

SEC. 3602. FINDINGS.

Congress finds the following:

(1) Strategic sealift, made up of Government and commercial vessels and mariners, is a critical capability for executing the maritime defense strategy and the wartime and peacetime economy of the United States.

(2) Ensuring a modern and ready capability will require significant investment, policy prioritization, and the innovation of the people of the United States.

(3) The worldwide ocean economy is worth between $3,000,000,000,000 and $6,000,000,000,000, according to the United Nations Conference on Trade and Development. Yet, vessels of the United

States carry less than 2 percent of United States international commercial cargoes by weight.

(4) The United States has fewer than 200 oceangoing vessels of the United States, of which only approximately 80 vessels participate in international commerce, compared with more than 5,500 Chinese documented vessels.

(5) Bracketed by the Atlantic, Pacific, and Arctic oceans, the prosperity and security of the United States has always been tied to its position as a maritime Nation. Throughout human history, the strength of maritime nations has been directly tied to the strength of their maritime industry. The United States won two world wars on the back of a strong maritime industry.

(6) Decades of apathy by the United States Government has harmed our strategically important maritime industry. Our weakened shipbuilding capacity, undersized maritime workforce, and shrinking fleet of shipping vessels means the United States relies on other nations to conduct international commerce and lacks the strategic sealift to support the United States military during wartime.

(7) Today, there are just 20 shipbuilders in the United States capable of building oceangoing ves-

sels—down from more than 80 at the end of the Second World War.

(8) During World War II, the United States Merchant Marine powered the Allies to victory with more than 10,000 oceangoing vessels of the United States. Today there are just 80 vessels of the United States engaged in international trade.

(9) The People's Republic of China has made investments in the maritime industry a strategic priority over the past 20 years.

(10) As of 2023, shipyards in the United States had fewer than 5 shipbuilding orders for oceangoing vessels, while shipyards in the People's Republic of China had more than 1,700 orders, according to BRS Group. According to the Office of Naval Intelligence, the People's Republic of China became the world's top shipbuilding and shipping nation, boasting 230 times more shipbuilding capacity than the United States.

(11) With just 12,000 United States merchant mariners operating oceangoing vessels, the United States may not have a sufficient number of mariners to fully power the strategic sealift vessels necessary in a future prolonged conflict.

(12) The American Civil Society of Engineers assesses that the United States has a national maintenance backlog amounting to $125,000,000,000 for bridges, $163,000,000,000 for ports, and $6,800,000,000 for inland waterways.

(13) The maritime industry is inherently international. Eighty percent of United States goods are imported by sea, of which 98 percent come into the United States on foreign documented vessels. Only 2 percent of such goods come into the United States on vessels of the United States, leaving the United States economy disproportionately dependent on oceangoing trade controlled by often adversarial foreign nations. The Nation's ability to provide services in both international and interstate commerce is critical to national and economic defense.

(14) Since November 2023, vessels engaged in international commerce have been threatened by the Houthis, which has threatened global supply chains, increased costs, and required naval force protection operations in the Red Sea through the United States-led Operation Prosperity Guardian that formed in December 2023.

(15) A fleet of commercial shipping vessels of the United States, crewed with citizen mariners, that

is competitive in domestic and international trade enhances the United States military's readiness, allows the United States to more strategically compete with China, and underwrites the security and survival of the United States in times of crisis and war.

SEC. 3603. SENSE OF CONGRESS.

It is the sense of Congress that the United States must—

(1) create a more favorable domestic and global maritime environment for vessels of the United States engaged in international commerce, shipbuilding, ship repair, maritime logistics, the maritime workforce, and naval power, contributing to assured access to the world's oceans free from coercion from strategic competitors and asymmetric adversaries;

(2) increase domestic shipbuilding and ship repair capacity, with programs and policies that enable the growth of United States shipyards and the maritime industrial base, enhance military sealift capacity, expand the United States maritime workforce, and enhance national security;

(3) revitalize the international fleet of vessels of the United States and foster a comparative advantage for the United States through targeted incen-

tives and regulatory reforms to make the fleet competitive with international carriers and to gain a sustainable share of the global maritime market in order to bolster supply chains, strengthen economic security, and lower prices, while protecting the United States economy from economic coercion;

(4) take all measures necessary to ensure that sufficient military, civil, and commercial resources will be available with assured access to meet defense deployment needs and essential economic activities for our Nation in times of crisis, war, or peace;

(5) recognize that a vibrant commercial shipbuilding industry provides supply chain resiliencies and creates economies of scale that improve military, Coast Guard, and Government shipbuilding and support military operations through strategic sealift to defend the freedom of the seas;

(6) nurture the comparative advantages of the United States to innovate to better compete in the global maritime marketplace, grow the maritime workforce, and create a favorable environment for investments to build modern maritime facilities and world-class academic institutions;

(7) ensure better coordination between Federal agencies, including the Maritime Administration, the

United States Coast Guard, the Department of Defense, the Federal Maritime Commission, and all other Federal agencies with a maritime nexus, to protect, regulate, and support the United States maritime industry, resolve disputes, and implement a whole-of-Government national maritime strategy;

(8) recognize that, while a strong Navy is the surest guarantee of peace, building the Navy, sustaining the Navy, and supplying the Navy is founded on a robust commercial industrial base;

(9) establish reliable long-term demand signals for, and investments in, oceangoing commercial vessels that are built in the United States, documented under the laws of the United States, and crewed by United States mariners;

(10) evaluate past and present maritime efforts to take actions to revitalize the United States maritime industry;

(11) strengthen the United States intercoastal and domestic trade fleet, which is the foundation upon which a revitalized United States-documented shipping and domestic shipbuilding industry will be built;

(12) recognize the important role that the support craft, passenger, and fishing vessel fleet play in the United States maritime industry;

(13) encourage the shipping of commercial cargo on vessels of the United States, with the aim of growing the size and carrying capacity of the international fleet of vessels of the United States;

(14) grow the shipping capacity of vessels of the United States and guarantee United States Government cargo during peacetime;

(15) develop a whole-of-Government effort to expand, develop, and protect the maritime workforce;

(16) recognize the need for more workers in the maritime sector and stimulate growth in the United States maritime and shipbuilding industries, including by increasing access to early maritime education, commissioning national marketing campaigns to demonstrate how United States shipbuilding, United States-documented shipping, and maritime workers are critical to national security, and implementing workforce accelerator programs;

(17) remove barriers to training mariners, including reevaluating Coast Guard training requirements regarding faculty credentials, instructional fa-

cility designs, sea time requirements, and other identified barriers, consistent with international treaty obligations;

(18) expand and nurture a robust mariner workforce that enhances the national security and strategic sealift readiness of the United States by increasing the number of United States mariners and improving existing pathways and establishing new pathways for new, current, and former merchant mariners to go to sea;

(19) recognize that the United States Merchant Marine Academy and our State maritime academies are critical to training the next generation of licensed officers and engineers on vessels of the United States;

(20) invest and innovate in domestic shipbuilding, ship repair, and the shipping capabilities and capacity of vessels of the United States to advance the power and influence of the maritime industry of the United States;

(21) drive multi-stakeholder research, development, assessment, and deployment of emerging marine technologies and best practices related to the maritime transportation system to ensure United

States leadership in next-generation shipbuilding, ship repair, and maritime logistics;

(22) drive modern business and manufacturing approaches, such as innovative maritime logistics, clean fuels, and advanced nuclear energy, human-machine teaming, additive manufacturing, and other advanced technologies;

(23) review and update regulations governing vessel design and engineering, vessel and facility operation, and merchant mariner credentialing, in order to revitalize the United States maritime industry;

(24) seek mutually beneficial relationships with treaty allies and strategic partners to grow the domestic shipping and shipbuilding industries of the United States and to share the burden of providing freedom of navigation on the high seas, while de-risking the United States maritime domain from the People's Republic of China, foreign countries of concern, and asymmetric or emerging maritime threats;

(25) harden critical maritime infrastructure and networks, and incrementally replace infrastructure built by foreign adversaries with domestic-built and allied-built infrastructure; and

(26) promote the values of the United States for freedom of the seas, worker safety and quality of life, environmental stewardship, and the resilience of our oceans, seas, and inland waterways.

SEC. 3604. DEFINITIONS.

In this title:

(1) The term ''appropriate committees of Congress'' means—

(A) the Committee on Armed Services, the Committee on Commerce, Science, and Transportation, and the Committee on Appropriations of the Senate; and

(B) the Committee on Armed Services, the Committee on Transportation and Infrastructure, and the Committee on Appropriations of the House of Representatives.

(2) The term ''domestic commerce'' means the transportation of goods or passengers between places in the United States.

(3) The term ''foreign commerce'' means—

(A) commerce or trade between the United States, its territories or possessions, or the District of Columbia, and a foreign country; and

(B) commerce or trade between foreign countries.

(4) The term ''foreign country of concern'' means—

(A) a country that is a covered nation (as defined in section 4872(d) of title 10, United States Code); and

(B) any country that the Maritime Administrator, in consultation with the Secretary of Defense, the Secretary of State, the Director of National Intelligence, and the Chair of the Federal Maritime Commission, determines to be engaged in conduct that is detrimental to the national security or foreign policy of the United States.

(5) The term ''foreign entity''—

(A) means—

(i) a government of a foreign country or a foreign political party, as those terms are defined in section 1 of the Foreign Agents Registration Act of 1938, as amended (22 U.S.C. 611);

(ii) a natural person who is not a lawful permanent resident of the United States, a citizen of the United States, or any other protected individual (as such term is defined in section 274B(a)(3) of

the Immigration and Nationality Act (8 U.S.C. 1324b(a)(3))); or

(iii) a partnership, association, corporation, organization, or other combination of persons organized under the laws of or having its principal place of business in a foreign country; and

(B) includes—

(i) any person (including an owner or operator of a vessel) owned by, controlled by, or subject to the direction of an entity listed in subparagraph (A);

(ii) any person, wherever located, who acts as an agent, representative, or employee of an entity listed in subparagraph (A);

(iii) any person who acts in any other capacity at the order, request, or under the direction or control, of an entity listed in subparagraph (A), or of a person whose activities are directly or indirectly supervised, directed, controlled, financed, or subsidized in whole or in major part by an entity listed in subparagraph (A);

(iv) any person who directly or indirectly through any contract, arrangement, understanding, relationship, or otherwise, owns 25 percent or more of the equity interests of an entity listed in subparagraph (A);

(v) any person with significant responsibility to control, manage, or direct an entity listed in subparagraph (A);

(vi) any person, wherever located, who is a citizen or resident of a country controlled by an entity listed in subparagraph (A); or

(vii) any corporation, partnership, association, or other organization organized under the laws of a country controlled by an entity listed in subparagraph (A).

(6) The term ''foreign entity of concern'' means any foreign entity that is—

(A) designated as a foreign terrorist organization by the Secretary of State under section 219 of the Immigration and Nationality Act (8 U.S.C. 1189);

(B) included on the list of specially designated nationals and blocked persons main-

tained by the Office of Foreign Assets Control of the Department of the Treasury;

(C) owned by, controlled by, or subject to the jurisdiction or direction of a government of a foreign country of concern;

(D) alleged by the Attorney General to have been involved in activities for which a conviction was obtained under—

(i) chapter 37 of title 18, United States Code (commonly known as the ''Espionage Act'') (18 U.S.C. 792 et seq.);

(ii) section 951 or 1030 of title 18, United States Code;

(iii) chapter 90 of title 18, United States Code (commonly known as the ''Economic Espionage Act of 1996'');

(iv) the Arms Export Control Act (22 U.S.C. 2751 et seq.);

(v) section 224, 225, 226, 227, or 236 of the Atomic Energy Act of 1954 (42 U.S.C. 2274, 2275, 2276, 2277, and 2284);

(vi) the Export Control Reform Act of 2018 (50 U.S.C. 4801 et seq.); or

(vii) the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.);

(E) designated by the Federal Maritime Commission as a controlled carrier under chapter 407 of title 46, United States Code;

(F) found by the Federal Maritime Commission to be practicing unfavorable conditions in foreign trade under chapter 421 or 423 of title 46, United States Code; or

(G) determined by the Maritime Administrator, in consultation with the Secretary of Defense, the Secretary of State, the Director of National Intelligence, and the Chair of the Federal Maritime Commission, to be engaged in unauthorized conduct that is detrimental to the national security or foreign policy of the United States.

(7) The term ''vessel of the United States'' has the meaning given that term in section 116 of title 46, United States Code.

Subtitle A—Oversight and Accountability

SEC. 3611. MARITIME SECURITY ADVISOR; MARITIME SECURITY BOARD.

(a) AMENDMENTS.—Chapter 504 of part A of subtitle V of title 46, United States Code, is amended—

(1) by striking the chapter heading and inserting the following: "**OVERSIGHT AND ACCOUNTABILITY**";

(2) by redesignating section 50401 as section 50403; and

(3) by inserting before section 50402, the following:

"§ 50401. Maritime Security Advisor; Maritime Security Board

"(a) MARITIME SECURITY ADVISOR.—

"(1) IN GENERAL.—Not later than 60 days after the date of enactment of this section, the President shall appoint a Special Advisor to the President (to be known as the 'Maritime Security Advisor') for coordinating national maritime affairs and policy, including developing, updating, and implementing the National Maritime Strategy as required under section 50114 of this title.

''(2) DUTIES.—The Maritime Security Advisor appointed under paragraph (1) shall serve as the Chair of the Maritime Security Board, shall be the principal advisor to the President on all issues related to the maritime industry, shipbuilding, and ship repair, and shall be responsible for developing, updating, and implementing the National Maritime Strategy under section 50114 of this title within and across the Federal Government.

''(3) OFFICE OF THE MARITIME SECURITY ADVISOR.—

''(A) IN GENERAL.—There is established in the Executive Office of the President, an Office of the Maritime Security Advisor. The Maritime Security Advisor described in this subsection shall be the head of such Office.

''(B) EMPLOYEES; CONTRACTS.—In carrying out the functions under this section, the Maritime Security Advisor is authorized to—

''(i) appoint such officers and employees as the Maritime Security Advisor may deem necessary to perform the functions now or hereafter vested in the Maritime Security Advisor and to prescribe their duties; and

''(ii) enter into contracts and other arrangements for studies, analyses, and other services with public agencies and with private persons, organizations, or institutions, and make such payments as the Maritime Security Advisor deems necessary to carry out the provisions of this section.

''(b) MARITIME SECURITY BOARD.—Not later than 90 days after the date of enactment of this section, the President shall establish a board, to be known as the 'Maritime Security Board' (in this section referred to as the 'Board').

''(1) COMPOSITION.—

''(A) IN GENERAL.—The Board shall be comprised of the following individuals and representatives:

''(i) The Maritime Security Advisor described in subsection (a).

''(ii) The Maritime Administrator.

''(iii) The Commandant of the Coast Guard.

''(iv) The Secretary of the Navy.

''(v) The Commander of the United States Transportation Command.

"(vi) The Chair of the Federal Maritime Commission.

"(vii) The Assistant Secretary of the Army for Civil Works.

"(viii) The chief United States delegate to the International Maritime Organization.

"(ix) The Under Secretary of Commerce for Oceans and Atmosphere.

"(x) The Commissioner for Customs and Border Protection.

"(xi) The Director of the Office of Management and Budget, or a designee.

"(xii) The Secretary of Transportation, or a designee.

"(xiii) The Secretary of Homeland Security, or a designee.

"(xiv) The Secretary of State, or a designee.

"(xv) The Secretary of Labor, or a designee.

"(xvi) The Secretary of Commerce, or a designee.

"(xvii) The Secretary of the Treasury, or a designee.

"(xviii) The Administrator of the Environmental Protection Agency, or a designee.

"(xix) From the Department of Defense—

"(I) the Secretary of Defense, or a designee;

"(II) The Commander of the Military Sealift Command;

"(III) The Commander of Naval Sea Systems Command;

"(IV) a representative of the Army, as appointed by the Secretary of Defense;

"(V) a representative of the Air Force, as appointed by the Secretary of Defense; and

"(VI) a representative of the Navy, as appointed by the Secretary of Defense.

"(B) NONVOTING MEMBERS.—The individuals and representatives listed in clauses (xi) through (xxi) shall be nonvoting members.

"(C) CHAIR.—The Maritime Security Advisor shall serve as the Chair of the Board.

''(2) DUTIES.—Consistent with the National Maritime Strategy under section 50114 of this title, the Board shall carry out the following duties:

''(A) Supporting the development of the marine transportation system of the United States, including—

''(i) assessing the adequacy of the marine transportation system (including ports, waterways, channels, and their intermodal connections);

''(ii) promoting the integration of the marine transportation system with other modes of transportation and other uses of the marine environment; and

''(iii) coordinating, improving the coordination of, and making recommendations with regard to Federal policies that impact the marine transportation system.

''(B) Establishing policy priorities relating to, and conducting independent oversight over, the financial assistance programs under part C of subtitle V of this title, including—

''(i) not later than 1 year after the date of enactment of the SHIPS for America Act of 2026 and annually thereafter,

establishing targets for the number, type, and requirements of vessels to be included in each of—

"(I) the Maritime Security Fleet (consistent with the most recent Mobility Capability Requirements Study produced by United States Transportation Command);

"(II) the Cable Security Fleet;

"(III) the Tanker Security Fleet (consistent with the most recent Mobility Capability Requirements Study produced by United States Transportation Command);

"(IV) the Strategic Commercial Fleet; and

"(V) the Shipbuilding Financial Incentives Program;

"(ii) submitting annual recommendations to the appropriate committees of Congress for any needed changes in the authorized number of vessels eligible to participate in the programs under part C of subtitle V of this title; and

''(iii) conducting oversight of the administration of such financial assistance programs to ensure such programs support the strategic sealift objectives and policy of the United States, as established in section 59101 of this title.

''(C) Supporting the Maritime Administrator in all efforts to conduct independent oversight of passenger and cargo preference requirements and supporting efforts to enable cargo to be carried on vessels of the United States, including—

''(i) conducting oversight and coordinating interagency efforts to comply with cargo preference requirements established under chapter 553 of this title and section 2631 of title 10;

''(ii) independently verifying that all Federal agencies follow the requirements for cargoes procured, furnished, or financed by the United States Government under section 55305 of this title, and notifying the appropriate committees of Congress of any identified violations of the requirements of such section;

''(iii) conducting outreach among non-governmental stakeholders, including private industry, to encourage more cargo to be moved on vessels of the United States;

''(iv) developing recommendations for regulations to be issued by Federal agencies to preference the movement of cargo on vessels of the United States; and

''(v) submitting recommendations to the appropriate committees of Congress for changes to laws relating to passenger and cargo preferences for the purpose of establishing a more robust fleet of vessels of the United States.

''(D) Conducting independent oversight and developing guidance and recommendations related to the enforcement of the requirements of chapters 121 and 551 of this title.

''(E) Coordinating national efforts to develop a robust maritime workforce that enhances the national security and strategic sealift readiness of the United States, including—

''(i) coordinating and conducting oversight of interagency efforts and partnerships with the maritime industry and

qualified labor organizations to recruit, train, and retain qualified licensed and unlicensed merchant mariners; and

''(ii) coordinating and conducting oversight of interagency efforts and partnerships with the shipbuilding industry to recruit, train, and retain qualified workers in the shipbuilding industry of the United States.

''(F) Establishing national priorities for research and development of next-generation technologies to enhance United States leadership in the shipbuilding and maritime industries, including through the Center for Maritime Innovation established under section 50307.

''(G) Coordinating efforts to protect vessels of the United States operating in international or domestic commerce from physical and cybersecurity threats.

''(H) Conducting oversight of the use of funds from the Maritime Security Trust Fund established under section 50301(b) of this title, and making recommendations to Congress for expenditures from the Trust Fund.

''(I) Conducting studies on subjects related to the maritime industry and international shipping, and undertaking other efforts related to strengthening the maritime security of the United States.

''(J) Carrying out other duties, as assigned by the President in consultation with the Maritime Security Advisor, related to the maritime industry, shipbuilding, ship repair, strategic sealift, and the marine transportation system of the United States.

''(3) DELEGATION.—The Board may task agencies who are represented by individuals on the Board (as described under paragraph (1)(A)) to carry out any duties of the Board.

''(4) MEETINGS.—The Board shall meet not less frequently than quarterly.

''(5) STAFF.—The Board may hire staff to support its activities.

''(c) REPORT TO CONGRESS.—

''(1) IN GENERAL.—Not later than 180 days after the President establishes the Maritime Security Board under this section, and annually thereafter, the Board shall submit a report to the appropriate committees of Congress describing—

''(A) the actions that the Board has taken to carry out the duties required of the Board under subsection (b)(2); and

''(B) a list of recommended actions that the Board recommends Congress take to enhance the strength of the United States maritime industry and support the economic and national security needs of the United States;.

''(2) APPROPRIATE COMMITTEES OF CONGRESS.—In this section, the term 'appropriate committees of Congress' means—

''(A) the Committees on Armed Services of the House of Representatives and the Senate;

''(B) the Committee on Transportation and Infrastructure of the House of Representatives; and

''(C) the Committee on Commerce, Science, and Transportation of the Senate.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 504 of subtitle V of title 46, United States Code, is amended to read as follows:

''50401. Maritime Security Advisor; Maritime Security Board.
''50402. Maritime Transportation System National Advisory Committee.
''50403. United States Committee on the Marine Transportation System.''.

(c) NATIONAL MARITIME STRATEGY.—Section 50114 of title 46, United States Code, is amended—

(1) by striking subsection (a), and inserting the following:

''(a) IN GENERAL.—

''(1) IN GENERAL.—Subject to paragraph (2), the Maritime Security Advisor, in consultation with the Maritime Security Board, shall develop a National Maritime Strategy and submit that National Maritime Strategy to the appropriate committees of Congress (as that term is defined in section 3604 of the SHIPS for America Act of 2026).

''(2) TRANSITION.—Notwithstanding paragraph (1), if a national maritime strategy has been developed and submitted in accordance with this section, as in effect on the day before the date of enactment of the SHIPS for America Act of 2026, in the 1-year period before such date of enactment, the Maritime Security Advisor shall implement and update that national maritime strategy and shall not develop a new national maritime strategy.''; and

(2) by striking subsections (c) and (d) and inserting the following:

''(c) IMPLEMENTATION.—Upon the release of a strategy under this section, the Maritime Security Advisor, in consultation with the Maritime Security Board, shall be

responsible for implementing the contents and recommendations of the strategy.

''(d) UPDATE.—The Maritime Security Advisor, in coordination with the Maritime Security Board, shall submit to the appropriate committees of Congress (as that term is defined in section 3604 of the SHIPS for America Act of 2026) an update to the strategy developed under subsection (a) not less often than every 5 years.

''(e) PUBLIC AVAILABILITY; IMPLEMENTATION PLAN.—Not later than 6 months after the submission of a strategy or update under subsection (a), the Maritime Security Advisor, in consultation with the Maritime Security Board, shall make publicly available on an appropriate website each strategy or updated strategy and an implementation plan for such strategy or update.''.

SEC. 3612. MARITIME TRANSPORTATION SYSTEM NATIONAL ADVISORY COMMITTEE.

Section 50402 is amended—

(1) in subsection (b), by striking ''Secretary of Transportation'' and inserting ''Maritime Security Advisor and Maritime Security Board''; and

(2) in subsection (c)—

(A) in paragraph (1), by striking ''by the Secretary of Transportation'';

(B) by striking paragraph (3) and inserting the following:

''(3) REPRESENTATION.—Members of the Committee shall be appointed as follows:

''(A) The Maritime Security Advisor shall appoint the following members of the Committee:

''(i) At least one member to represent the Environmental Protection Agency.

''(ii) At least one member to represent the Department of Commerce.

''(iii) At least one member to represent the Corps of Engineers.

''(iv) At least one member to represent the Coast Guard.

''(v) At least one member to represent Customs and Border Protection.

''(vi) At least one member to represent the Maritime Administration.

''(vii) At least one member to represent the Department of Agriculture.

''(viii) At least one member to represent the State Department.

''(ix) At least one member to represent State and local governmental entities.

''(B) Additional members shall represent private sector entities that reflect a cross-section of maritime industries, including credentialed United States merchant mariners, port and water stakeholders, academia, and labor, of whom—

''(i) 3 shall be appointed by the majority leader of the Senate;

''(ii) 3 shall be appointed by the minority leader of the Senate;

''(iii) 3 shall be appointed by the Speaker of the House of Representatives; and

''(iv) 3 shall be appointed by the minority leader of the House of Representatives.

''(C) The Maritime Security Advisor may appoint additional members of the Committee, including additional representatives from the United States Merchant Marine Academy, State maritime academies, or other Federal agencies, as the Secretary considers appropriate.''; and

(C) in paragraph (4), by redesignating subparagraphs (A) and (B) as clauses (i) and (ii), respectively, and adjusting the margins accordingly;

(D) by redesignating paragraph (4) as subparagraph (A) and adjusting the margins accordingly;

(E) by inserting after paragraph (3) the following:

''(4) RESTRICTIONS ON MEMBERS.—''; and

(F) at the end of paragraph (4), as so designated, by inserting the following:

''(B) RESTRICTIONS ON ADDITIONAL MEMBERS.—Members appointed under this paragraph that are not representing Federal agencies—

''(i) shall remain on the Committee for a term of 3 years from the date that the member is appointed; and

''(ii) may not serve more than 2 consecutive terms.''.

SEC. 3613. DIRECT HIRE AUTHORITY; AUTHORIZATION FOR ADMINISTRATIVE EXPENSES.

(a) MARITIME ADMINISTRATION DIRECT HIRE AUTHORITY.—

(1) IN GENERAL.—The Maritime Administrator may appoint, without regard to the provisions of sections 3309 through 3319 of title 5, United States Code, candidates to positions in the competitive service within the Maritime Administration for which—

(A) public notice has been given;

(B) the Administrator has determined that a critical hiring need exists; and

(C) the Administrator has consulted with the Director of the Office of Personnel Management regarding—

(i) the positions for which the Administrator plans to recruit;

(ii) the quantity of candidates the Administrator is seeking; and

(iii) the assessment and selection policies the Administrator plans to utilize.

(2) DEFINITION OF CRITICAL HIRING NEED.—In this subsection, the term ''critical hiring need'' means personnel necessary for the implementation of this title and associated work.

(b) COAST GUARD DIRECT HIRE AUTHORITY.—

(1) IN GENERAL.—The Secretary of the department in which the Coast Guard is operating may appoint, without regard to the provisions of sections

3309 through 3319 of title 5, United States Code, candidates to positions in the competitive service within offices under the Assistant Commandant for Prevention Policy of the Coast Guard, for which—

(A) public notice has been given;

(B) the Secretary has determined that a critical hiring need exists; and

(C) the Secretary has consulted with the Director of the Office of Personnel Management regarding—

(i) the positions for which the Secretary plans to recruit;

(ii) the quantity of candidates the Secretary is seeking; and

(iii) the assessment and selection policies the Secretary plans to utilize.

(2) DEFINITION OF CRITICAL HIRING NEED.—In this subsection, the term ''critical hiring need'' means personnel necessary for the implementation of this title and associated work.

(c) COMPETITIVE SERVICE.—In this section, the term ''competitive service'' has the meaning given the term in section 2102 of title 5, United States Code.

SEC. 3614. FEDERAL MARITIME COMMISSION REPORT ON VESSELS OF THE UNITED STATES.

(a) IN GENERAL.—The Federal Maritime Commission shall annually submit a report to the Maritime Security Board and the appropriate committees of Congress evaluating the competitiveness of vessels of the United States in foreign commerce. The Maritime Security Board shall utilize the findings of such report to inform the National Maritime Strategy under section 50114 of title 46, United States Code, and other activities of the Board.

(b) CONTENTS.—The report shall include—

(1) metrics concerning carriage of foreign commerce on vessels of the United States;

(2) information about the price parity of carriage of foreign commerce on vessels of the United States versus foreign vessels (as defined in section 110 of title 46, United States Code) by market;

(3) identification of markets of opportunity for the United States to compete in foreign commerce where rates are in relative parity to vessels of the United States;

(4) markets in which United States interests paid above average rates for foreign commerce, including with foreign and domestic carriers; and

(5) an assessment of the foreign vessel registries of peer competitor countries to determine—

(A) the roles of the governments of peer competitor countries in their vessel registry processes, including policy practices that may provide a disadvantage to the United States;

(B) the sizes of the fleets of foreign vessels registered with such countries, including how many of such foreign vessels are domestically built and how many are built in other countries; and

(C) the price parity of vessels of the United States, as compared to foreign vessels registered with peer competitor countries that are operating in global markets identified as a priority by the Federal Maritime Commission.

Subtitle B—Maritime Security Trust Fund

SEC. 3621. MARITIME SECURITY TRUST FUND ESTABLISHED.

Section 50301 of title 46, United States Code, is amended—

(1) by striking the section heading and inserting "**Funds established**";

(2) in subsection (e)—

(A) in paragraph (2), by redesignating subparagraphs (A), (B), and (C), as clauses (i),

(ii), and (iii), respectively, and adjusting the margins accordingly;

(B) by redesignating paragraphs (1), (2), and (3), as subparagraphs (A), (B), and (C), respectively, and adjusting the margins accordingly;

(C) in subparagraph (A), as redesignated by subparagraph (B), by striking ''paragraph (2)'' and inserting ''subparagraph (B)'';

(D) in subparagraph (B), as redesignated by subparagraph (B), in the matter preceding clause (i), by striking ''Paragraph (1)'' and inserting ''Subparagraph (A)''; and

(E) in subparagraph (C), as redesignated by subparagraph (B), by striking ''Paragraph (1)'' and inserting ''Subparagraph (A)'';

(3) in subsection (f), by redesignating paragraphs (1) through (4) as subparagraphs (A) through (D), respectively, and adjusting the margins accordingly;

(4) by redesignating subsections (b) through (g) as paragraphs (2) through (7), respectively, and adjusting the margins accordingly;

(5) in subsection (a), by striking ''IN GENERAL'' and all that follows through ''There is a'' and inserting the following:

''(a) VESSEL OPERATIONS REVOLVING FUND.—

''(1) IN GENERAL.—There is a'';

(6) in paragraph (4), by striking ''subsection (a)'' and inserting ''paragraph (1)''; and

(7) by adding at the end the following:

''(b) MARITIME SECURITY TRUST FUND.—

''(1) IN GENERAL.—There is a 'Maritime Security Trust Fund' for use in carrying out programs or activities associated with supporting the merchant marine of the United States and the maritime industrial base.

''(2) TOTAL BALANCE.—The total amount in the Maritime Security Trust Fund at any time shall not exceed $20,000,000,000.

''(3) EXPENDITURES.—Amounts in the Maritime Security Trust Fund shall be authorized to be appropriated out of the Maritime Security Trust Fund as provided by in appropriations acts made after the date of enactment of this Act.''.

Subtitle C—Sealift Capability

SEC. 3631. SEALIFT CAPABILITY.

(a) IN GENERAL.—Subtitle V of title 46, United States Code, is amended by adding at the end the following:

"PART H—STRATEGIC SEALIFT

"Sec.
"59101. Objectives and policy.
"59102. Procurement, maintenance, and operation.
"59103. Sealift prioritization.
"59104. Report on privilege.

"§ 59101. Objectives and policy

"(a) OBJECTIVES.—It is necessary for the national defense and economic security of the United States that the United States have vessels of the United States capable of providing and supporting strategic sealift—

"(1) sufficient to meet surge defense deployment and essential economic activities for the United States in times of crisis or war;

"(2) sufficient to respond unilaterally to national security threats in geographic areas not covered by alliance commitments and ensure economic security resilience for United States trade; and

"(3) built, operated, and maintained during all times, primarily in the United States to protect and ensure national security resiliency and avoid foreign coercion of critical supply chains.

''(b) POLICY.—It is the policy of the United States to encourage and aid the development and maintenance of vessels of the United States with strategic sealift capabilities satisfying the objectives described in subsection (a).

''(c) STRATEGY REQUIRED.—

''(1) IN GENERAL.—The Maritime Security Board shall annually develop a strategy to leverage the financial assistance programs established under part C of this subtitle to expand the number of vessels of the United States needed to accomplish the objectives described under subsection (a).

''(2) STRATEGY COMPONENTS.—The strategy developed by the Maritime Security Board shall include—

''(A) annual goals for the number of vessels that will be brought into the fleet of vessels of the United States capable of providing strategic sealift utilizing the Maritime Security Fleet under chapter 531 of this title, the Cable Security Fleet under chapter 532 of this title, the Tanker Security Fleet under chapter 534 of this title, the Strategic Commercial Fleet under chapter 536 of this title, and the Shipbuilding Financial Incentives program, consistent with

the most recent Mobility Capability Requirements Study produced by United States Transportation Command; and

''(B) an assessment of domestic shipbuilding capacity and a strategy to increase the capacity of the domestic shipbuilding industry utilizing the Shipbuilding Financial Incentives program.

''(3) NATIONAL MARITIME STRATEGY.—The strategy developed by the Maritime Security Board under paragraph (1) shall be consistent with the National Maritime Strategy developed under section 50114.

''(d) REPORT REQUIRED.—

''(1) IN GENERAL.—Upon completion, the Maritime Security Board shall transmit to the appropriate committees of Congress a summary of the strategy developed under subsection (c), with a classified annex as necessary.

''(2) DEFINITION.—In this part, the term 'appropriate committees of Congress' has the meaning given that term in section 3604 of the SHIPS for America Act of 2026.

"§ 59102. Procurement, maintenance, and operation

''(a) STATEMENT OF POLICY.—The Maritime Administrator, in coordination with the Secretary of Defense and the Secretary of Homeland Security, shall build, acquire, maintain, coordinate, support, and operate a sufficient and privileged fleet of vessels of the United States with commercial and military sealift capability.

''(b) SUPPLEMENTAL CAPABILITY.—In developing sealift capability under this part, the Secretary of Transportation and the Secretary of Defense shall continue to support a sufficient Maritime Security Fleet under chapter 531 of this title, a Cable Security Fleet under chapter 532 of this title, a Tanker Security Fleet under chapter 534 of this title, the Strategic Commercial Fleet under chapter 536 of this title, a Military Sealift Command of the Department of the Navy, and a Ready Reserve Force component of the National Defense Reserve Fleet under section 57100 of this title, to provide capacity and resiliency for unilateral United States strategic sealift in peace, crisis, and war.

''(c) JUDICIAL REVIEW.—No court shall have jurisdiction to review decisions made by the Maritime Administrator, the Secretary of Defense, or the Secretary of Homeland Security with respect to this section.

"§ 59103. Sealift prioritization

''(a) IN GENERAL.—In acquiring, maintaining, coordinating, and supporting a fleet of vessels capable of providing sealift capacity during wartime and crisis, the Maritime Administrator, in coordination with the Secretary of Defense, shall ensure the availability of vessels, in the following order of priority:

''(1) Commercial vessels of the United States.

''(2) Vessels of the United States that are owned and operated by the United States Government.

''(3) Vessels of countries that are defense treaty allies of the United States.

''(4) Vessels of countries that are strategic partners of the United States.

''(b) JUDICIAL REVIEW.—No court shall have jurisdiction to review decisions made by the Maritime Administrator or the Secretary of Defense with respect to this section.

"§ 59104. Report on privilege

''(a) IN GENERAL.—Not later than March 1, 2027, the Secretary of Transportation, in coordination with the Secretary of Commerce, the Chair of the Federal Maritime Commission, and the Director of the Office of Management and Budget, shall submit to the appropriate committees of Congress a report including ways to ensure vessels

of the United States operating in foreign commerce are privileged in regulation, fees, insurance, and policy compared to foreign vessels conducting trade with a United States domiciled entity, while remaining consistent with the international obligations of the United States.

''(b) CONTENTS.—In submitting the report under subsection (a), the Secretary of Transportation shall include options for regulating trade with foreign vessels in order to sustain and grow the Maritime Security Fleet under chapter 531 of this title, the Cable Security Fleet under chapter 532 of this title, the Tanker Security Fleet under chapter 534 of this title, the Strategic Commercial Fleet under chapter 536 of this title, and other vessels of the United States operating in foreign commerce.''.

(b) CLERICAL AMENDMENT.—The table of chapters for subtitle V of title 46, United States Code, is amended by adding at the end the following:

''PART H—STRATEGIC SEALIFT''.

SEC. 3632. NATIONAL FREIGHT STRATEGIC PLAN.

Section 70102(b) of title 49, United States Code, is amended—

(1) in paragraph (16), by striking ''and'' after the semicolon;

(2) in paragraph (17), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(18) consideration of United States strategic sealift objectives and strategies established under section 59101 of title 46; and

''(19) consideration of maritime networks in multimodal freight corridors.''.

SEC. 3633. FOREIGN SHIPPING PRACTICES; CONTROLLED CARRIERS.

(a) FOREIGN SHIPPING PRACTICES.—Section 42301(b) of title 46, United States Code, is amended—

(1) in paragraph (2), by inserting ''or passengers'' after ''transportation of cargo''; and

(2) in paragraph (5), by inserting ''or passengers'' after ''carriage of cargo''.

(b) CONTROLLED CARRIERS.—Chapter 407 of title 46, United States Code, is amended—

(1) in section 40701—

(A) in subsection (a)—

(i) in paragraph (1), by striking ''or'' at the end;

(ii) in paragraph (2), by striking the period at the end and inserting ''; or''; and

(iii) by adding at the end the following:

''(3) arrange or provide passenger transportation at a fare that is below a just and reasonable level.'';

(B) in subsection (b), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'';

(C) in subsection (c), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare''; and

(D) in subsection (d), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'';

(2) in section 40702(b)—

(A) in the matter preceding paragraph (1), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'';

(B) in paragraph (1), by striking ''rate or charge'' and inserting ''rate, charge, or fare''; and

(C) in paragraph (2), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'';

(3) in section 40703, by striking ''a rate, charge,'' and inserting ''a rate, fare, charge,''; and

(4) in section 40704—

(A) in subsection (a), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'';

(B) in subsection (b), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'';

(C) in subsection (c), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'' each place the term appears;

(D) in subsection (d)—

(i) in paragraph (1), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'' each place the term appears; and

(ii) in paragraph (2), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'' each place the term appears; and

(E) in subsection (e), by striking ''rule, or regulation'' and inserting ''rule, regulation, or fare'' each place the term appears.

Subtitle D—Vessels of the United States in International Commerce

CHAPTER 1—STRATEGIC SEALIFT PROGRAMS

SEC. 3641. FLEET TESTING AND BRIEFING REQUIREMENT.

(a) TEST.—Not later than 180 days after the date of enactment of this Act, the Commander of the United States Transportation Command, in coordination with the Secretary of the Navy and the Maritime Administrator, shall devise a tabletop exercise to test the effective control of the Maritime Security Fleet under chapter 531 of title 46, United States Code, and the Tanker Security Fleet under chapter 534 of such title, in case of crisis or war.

(b) BRIEFING.—After completion of the tabletop exercise under subsection (a), the Commander shall submit to the appropriate committees of Congress a briefing on the results of such tabletop exercise.

(c) ANNUAL TESTING.—Beginning not later than 1 year after the briefing is submitted under subsection (b), the Commander shall—

(1) carry out tabletop drills to test effective control of the Maritime Security Fleet under chapter 531 of title 46, United States Code, and the Tanker Security Fleet under chapter 534 of such title; and

(2) provide to the appropriate committees of Congress a briefing after each such drill on the results of such drill.

SEC. 3642. ASSESSMENT OF UNDERSEA CABLE REPAIR CONTINGENCIES.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary of Defense, in coordination with the Maritime Administrator, the Federal Communications Commission, and other relevant Federal agencies, shall submit to the appropriate committees of Congress an assessment on the ability and preparedness of the USNS Zeus and the Cable Security Fleet under chapter 532 of title 46, United States Code, to repair transoceanic submarine fiber optic cables that may be damaged or cut by adversaries.

(b) CONTENTS.—The assessment under subsection (a) shall include—

(1) a description of preparedness to address a situation in which the cables of partner countries in both the Pacific and Atlantic Oceans are damaged or severed at or around the same time;

(2) a determination as to how long it would take for the Cable Security Fleet, in coordination with partner countries, to repair such cables; and

(3) the options available to provide connectivity in an emergency or crisis caused by, or related to, the damaging or severing of such cables.

SEC. 3643. SHIPBUILDING FINANCIAL INCENTIVES.

(a) IN GENERAL.—Part C of subtitle V of title 46, United States Code, is amended by inserting after chapter 537 the following:

"CHAPTER 538—SHIPBUILDING FINANCIAL INCENTIVES

''(a) ESTABLISHMENT.—The Maritime Administrator shall establish a program that, in accordance with the requirements of this section, provides Federal grant assistance to covered entities to—

''(1) aid in the construction of a vessel that shall be documented under the laws of the United States; or

''(2) incentivize a qualified shipyard investment.

''(b) DEFINITIONS.—In this section:

''(1) APPROPRIATE COMMITTEES OF CONGRESS.—The term 'appropriate committees of Congress' means the Committee on Commerce, Science, and Transportation, the Committee on Armed Services, and the Committee on Appropriations of the Senate and the Committee on Armed Services, the Committee on Transportation and Infrastructure,

and the Committee on Appropriations of the House of Representatives.

''(2) COVERED ENTITY.—The term 'covered entity' means—

''(A) any proposed vessel purchaser who is a citizen of the United States; or

''(B) any shipyard of the United States with the ability, experience, financial resources, and other qualifications to construct or repair a military vessel or a vessel to be used in the foreign commerce of the United States.

''(3) FOREIGN COMMERCE.—The term 'foreign commerce' means—

''(A) commerce or trade between the United States, its territories or possessions, or the District of Columbia, and a foreign country; and

''(B) commerce or trade between foreign countries.

''(4) FOREIGN COUNTRY OF CONCERN; FOREIGN ENTITY OF CONCERN.—The terms 'foreign country of concern' and 'foreign entity of concern' have the meanings given such terms in section 3604 of the SHIPS for America Act of 2026.

''(5) QUALIFIED SHIPYARD INVESTMENT.—The term 'qualified shipyard investment' means an investment to construct, modernize, or expand—

''(A) a shipyard of the United States that constructs or repairs civilian or military vessels; or

''(B) a manufacturing facility—

''(i) that is—

''(I) a component supplier;

''(II) a subcomponent supplier; or

''(III) a manufacturing equipment supplier;

''(ii) that is based in the United States; and

''(iii)(I) at which at least 50 percent of the products produced will be sold to shipyards of the United States or used to construct vessels of the United States; or

''(II) at which the investment will more than double the facility's capacity to produce products to be sold to shipyards of the United Sates or used to construct vessels of the United States, as determined by the Administrator.

''(6) SHIPYARD OF THE UNITED STATES.—The term 'shipyard of the United States' has the meaning given that term in section 505 of the Merchant Marine Act,1936 (46 U.S.C. 53101 note).

''(c) PROCEDURE.—

''(1) APPLICATION.—A covered entity applying for grant funding under this section shall submit an application to the Maritime Administrator.

''(2) REQUIREMENTS.—In order for a covered entity to qualify for a grant under this section, the covered entity shall—

''(A) for grants related to construction of a vessel of the United States as described in subsection (a)(1)—

''(i) enter into an agreement with the Maritime Administrator establishing that the vessel that is constructed with Federal financial assistance shall be, for a period of not less than 10 years, documented under the laws of the United States; and

''(ii) agree to carry out all construction in a shipyard of the United States as the result of competitive bidding, after due advertisement, with the right reserved by

the Administrator to disapprove any or all bids;

"(B) for a grant related to qualified shipyard investments as described in subsection (a)(2), use the award amounts for investments in—

"(i) facilities or equipment related to shipbuilding or ship repair; or

"(ii) maritime component suppliers and subcomponent suppliers with over 50 percent maritime use in each such investment; and

"(C) make commitments to worker and community investment, including through—

"(i) programs to expand employment opportunity for economically disadvantaged individuals; and

"(ii) securing commitments from regional educational and training entities and institutions of higher education to provide workforce training, including programming for training and job placement of economically disadvantaged individuals.

"(3) REVIEW OF APPLICATIONS.—

"(A) CONSIDERATIONS FOR REVIEW.—With respect to the review by the Maritime Administrator of an application submitted—

"(i) the Maritime Administrator may not approve an application for construction of a vessel as described in subsection (a)(1) unless the Administrator—

"(I) determines that a vessel funded through the program will aid in the promotion and development of foreign commerce;

"(II) determines that the vessel purchaser applying for funding under this section possesses the ability, experience, financial resources, and other qualifications necessary for the operation and maintenance of the proposed new vessel;

"(III) determines that the shipyard that will construct a vessel under this section possesses the ability, experience, financial resources, equipment, and other qualifications necessary to properly to construct the proposed vessel;

''(IV) confirms that any newly constructed vessel has dedicated space for workforce training programs identified by the Administrator; and

''(V) has notified the appropriate committees of Congress not later than 15 days before making any award to any covered entity;

''(ii) the Maritime Administrator may not approve an application for qualified shipyard investments as described in subsection (a)(2) unless the Administrator—

''(I) confirms that the covered entity has received an incentive offered by a governmental entity to a covered entity for the purposes of supporting a qualified shipyard investment within that jurisdiction;

''(II) ensures that the covered entity has an executable plan to sustain the facility without additional Federal financial assistance under this subsection for the facility;

''(III) determines that the project to which the application relates is in

the economic interests of the United States; and

''(IV) receives detailed information on—

''(aa) the customers, or categories of customers, which the covered entity plans to serve;

''(bb) the type of expenditures which the covered entity plans to make; and

''(cc) the workforce positions that the covered entity plans to employ, including any required recruitment, training, and hiring; and

''(iii) the Maritime Administrator may consider—

''(I) whether the covered entity has previously received financial assistance under this section;

''(II) the price for the construction or repair of a vessel that has been negotiated between a shipyard and proposed vessel purchaser, and

whether the negotiated price is fair and reasonable;

"(III) whether the covered entity commits to use equipment, materials, and supplies that are produced in the United States, and utilize, to the maximum extent practicable, subcontractors and suppliers that are based in the United States; and

"(IV) whether the covered entity commits to utilizing new or emerging technologies.

"(B) RECORDS.—The Maritime Administrator may request records and information from the covered entity. The covered entity shall provide the records and information requested by the Administrator.

"(d) AWARD AMOUNTS.—

"(1) CONSTRUCTION OF A VESSEL OF THE UNITED STATES.—

"(A) IN GENERAL.—For grant awards related to construction of a vessel of the United States, as described in subsection (a)(1), the Maritime Administrator shall determine the ap-

propriate amount and funding for each financial assistance award made under this section.

''(B) DETERMINATION.—In making the determination under subparagraph (A), the Maritime Administrator shall consider the difference in the cost of constructing the proposed vessel within the United States over the fair and reasonable estimate of cost of the construction of that type of vessel if it were constructed under similar plans and specifications in a foreign shipbuilding center that is deemed by the Administrator to furnish a fair and representative example for the determination of the estimated foreign cost of construction of vessels of the type proposed to be constructed.

''(2) QUALIFIED SHIPYARD INVESTMENTS.—For grant awards provided to incentivize qualified shipyard investments as described in subsection (a)(2), the Maritime Administrator shall determine the appropriate amount for each financial assistance award made to a covered entity to maximize private sector investments and to expand shipyard and ship building capacity of the United States.

''(3) USE OF FUNDS.—A covered entity that receives a financial assistance award under this section

may only use the financial assistance award amounts to—

"(A)(i) finance the construction of a vessel to be built in the United States and documented under the laws of the United States; or

"(ii) support site development, construction, and modernization for qualified shipyard investments; and

"(B) support workforce development for a shipyard or qualified shipyard investment.

"(e) APPLICATIONS FOR RECONSTRUCTION, CONDITIONING, OR REPOWERING.—The Maritime Administrator may consider an application as described in subsection (a)(1), and award grants under this section, for the reconstruction, reconditioning, or repowering of an existing vessel in a shipyard of the United States.

"(f) PILOT PROGRAM FOR VESSELS IN DOMESTIC COMMERCE.—

"(1) IN GENERAL.—The Maritime Administrator may, if determined to be consistent with all other requirements of this section (except the requirement under subsection (c)(3)(A)(i)(I)(aa)), establish a pilot program to consider an application as described in subsection (a)(1), and award financial assistance under this section for the construction or

repair of a vessel for use in service other than foreign commerce.

''(2) ELIGIBLE VESSELS.—In addition to all other requirements of this section (except the requirement under subsection (c)(3)(A)(i)(I)(aa)), funding through the pilot program under this subsection shall only be used for construction or repair of vessels of the United States that—

''(A)(i) will operate in an emerging industry or a new trade lane;

''(ii) will not compete with existing vessels of the United States; and

''(iii) will not serve a market already served by a vessel of the United States with a coastwise endorsement;

''(B)(i) will replace an existing vessel of the United States that is or will be acquired by the Administrator to be placed in the National Defense Reserve Fleet, pursuant to section 57101; and

''(ii) as consideration for the payment of financial assistance, will operate for not longer than 21 years, at which time ownership will be transferred to the Maritime Administrator and

the vessel placed in the National Defense Reserve Fleet, pursuant to section 57101; or

''(C) will be an oceanographic research vessel (as defined in section 2101 of this title).

''(3) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to alter the requirements under section 55102.

''(g) CLARIFICATION.—Notwithstanding any other provision of law, the provision by the Administrator of Federal financial assistance for a project described in this section shall not be considered to be a major Federal action under the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) or an undertaking for the purposes of division A of subtitle III of title 54, United States Code.

''(j) BUY AMERICA.—Section 54101(d)(2) shall apply to any funds obligated by the Administrator under this section.

''(k) GAO REVIEW.—The Comptroller General of the United States shall—

''(1) not later than 2 years after the date of disbursement of the first financial award under this section, and biennially thereafter for 10 years, conduct a review of the program under this section; and

''(2) submit to the appropriate committees of Congress the results of each review.

''(l) PROHIBITION ON USE OF FUNDS.—

''(1) IN GENERAL.—No funds made available under this section may—

''(A) be used to construct, modify, or improve a facility outside of the United States;

''(B) be provided to a foreign entity of concern or to support a foreign entity of concern; or

''(C) be used to purchase materials that are procured or sourced from a foreign entity of concern, if such funds are for construction of a vessel as described in subsection (a)(1).

''(2) STOCK BUYBACKS.—An entity receiving financial assistance under this section may not engage in any stock buyback for a period of 5 years after receiving such assistance.''.

(b) CLERICAL AMENDMENT.—The table of chapters at the beginning of part C of subtitle V of title 46, United States Code, and at the beginning of subtitle V of such title, are each amended by inserting after the item relating to chapter 537 the following new item:

''538. Shipbuilding financial incentives ..... 53801''.

CHAPTER 2—CARGO PREFERENCE

SEC. 3644. UNITED STATES GOVERNMENT CARGO.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) only the Maritime Administrator, acting in the Administrator's capacity as Director of the National Shipping Authority, has the authority to determine the non-availability of qualified capacity of vessels of the United States (referred to in this subsection as ''qualified United States flag capacity'') at fair and reasonable rates for commercial vessels of the United States to meet the requirements of section 55305 or 55314 of title 46, United States Code; and

(2) the requirements of section 55305 or 55314 of title 46, United States Code, may only be waived temporarily by the President, the Secretary of Defense, or the Secretary of Transportation during a declared emergency justifying such a temporary waiver, following a determination by the Maritime Administrator, acting in the Maritime Administrator's capacity as Director of the National Shipping Authority, of the non-availability of qualified United States flag capacity at fair and reasonable rates for

commercial vessels of the United States pursuant to section 55305(d) of title 46, United States Code.

(b) APPLICABLE PERCENTAGE.—

(1) IN GENERAL.—Section 55305(a) of title 46, United States Code, is amended by striking ''at least 50'' and inserting ''100''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall take effect on the date that is 180 days after the date of enactment of this Act.

(c) WAIVER.—Section 55305(d)(1) of title 46, United States Code, is amended to read as follows:

''(1) WAIVER AUTHORITY.—

''(A) IN GENERAL.—Notwithstanding any other provision of law, when the President, the Secretary of Defense, or the Secretary of Transportation declares the existence of an emergency justifying a temporary waiver of this section or section 55314 of this title, the President, the Secretary of Defense, the Secretary of State, or the Secretary of Transportation, following a determination by the Maritime Administrator, acting in the Administrator's capacity as Director, National Shipping Authority, in consultation with the Maritime Security Board, of the non-availability of qualified United States

flag capacity at fair and reasonable rates for commercial vessels of the United States to meet the requirements of this section or section 55314 of this title, may waive compliance with such section to the extent, in the manner, and on the terms the Maritime Administrator, acting in such capacity, prescribes, and no other waivers of the requirements of this section or section 55314 of this title shall be authorized.

''(B) INTERAGENCY AGREEMENT FOR THE DETERMINATION OF NON-AVAILABILITY.—

''(i) IN GENERAL.—Not later than 180 days after the date of enactment of the SHIPS for America Act of 2026, the Maritime Security Advisor shall facilitate an interagency agreement between the Maritime Administrator and the head of each agency subject to the requirements of subsection (a).

''(ii) CONTENTS.—Each interagency agreement shall include—

''(I) an explanation of the process the agency shall follow to request a determination of non-availability by

the Maritime Administrator under subparagraph (A);

"(II) a standard process that the Maritime Administrator shall follow for making such a determination of non-availability; and

"(III) deadlines—

"(aa) for when an agency shall submit a request for such a determination of non-availability prior to the transportation of equipment, materials, or commodities subject to subsection (a); and

"(bb) for when the Maritime Administrator shall make such a determination of non-availability after receiving a request for a temporary waiver under subparagraph (A).

"(iii) CONGRESSIONAL NOTIFICATION.—The Maritime Security Advisor shall notify the appropriate committees of Congress—

''(I) when each interagency agreement required under this subparagraph is finalized; and

''(II) any time that an interagency agreement required under this subparagraph is updated.''.

(d) CLARIFICATION.—Section 55305(d)(3)(B) of title 46, United States Code, is amended by inserting ''Maritime Security Board and the'' after ''to the''.

SEC. 3645. CARGO PREFERENCE IMPLEMENTATION REGULATIONS.

(a) REGULATIONS AND GUIDANCE.—Not later than 180 days after the date of enactment of this Act, the Maritime Administrator, notwithstanding any other provision of law, regulation, or administrative order, shall—

(1) promulgate regulations under subchapter III of chapter 5 of title 5, United States Code, to fully implement and ensure compliance with sections 55305, 55314, 55315, and 55316 of title 46, United States Code;

(2) issue interagency guidance to other Federal departments and agencies on how to administer the programs that are subject to such sections in accordance with those sections, as applicable; and

(3) publish such guidance in the Federal Register and on the website of the Maritime Administration.

(b) REPEAL OF EARLIER REGULATORY DEADLINE.—Subsection (a) of section 3502 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (46 U.S.C. 55305 note; Public Law 117–263), is repealed.

SEC. 3646. CARGO PREFERENCE OVERSIGHT AND AUDIT.

Section 55301 of title 46, United States Code, is amended—

(1) in subsection (a)(2), by striking ''section 55305'' and inserting ''sections 55305, 55314, 55315, and 55316''; and

(2) by adding at the end the following:

''(d) NOTIFICATION OF VIOLATION.—The Maritime Administrator shall—

''(1) upon receiving any credible information, as determined by the Administrator, that a Federal department or agency that administers a program covered by a report required under subsection (a) was not in compliance with the requirements of section 55305, 55314, 55315, or 55316 of this title (as applicable), notify the Committee on Commerce, Science, and Transportation of the Senate and the

Committee on Transportation and Infrastructure of the House of Representatives not later than 14 days after receiving such information; and

''(2) upon receiving any credible information, as determined by the Administrator, that a Federal department or agency that administers a program covered by a report required under subsection (a) was not in compliance with the requirements of section 2631 of title 10, United States Code, notify the Committee on Commerce, Science, and Transportation and the Committee on Armed Services of the Senate and the Committee on Transportation and Infrastructure and the Committee on Armed Services of the House of Representatives not later than 14 days after receiving such information.''.

SEC. 3647. PRIORITY FOR VESSELS OF THE UNITED STATES.

(a) IN GENERAL.—Part D of subtitle V of title 46, United States Code, is amended by inserting after chapter 553 the following:

''CHAPTER 555—PRIORITY FOR VESSELS OF THE UNITED STATES

''Sec.
''55501. Priority for vessels of the United States.

''§ 55501. Priority for vessels of the United States

''(a) IN GENERAL.—The Secretary of Transportation may allow a vessel of the United States to be given priority

at any port in the United States, ahead of a waiting vessel of a foreign country of concern (as defined in section 3604 of the SHIPS for America Act of 2026) or owned by a foreign entity of concern (as so defined).

''(b) EXCEPTION.—Notwithstanding subsection (a), if the Secretary of Transportation finds that it is in the national interest, the Secretary may eliminate the priority under this section at any port. The Secretary shall report to the appropriate committees of Congress, as defined in section 3604 of the SHIPS for America Act of 2026, by not later than 30 days after an action eliminating priority under this section.''.

(b) CLERICAL AMENDMENT.—The table of chapters for subtitle V of title 46, United States Code, is amended by inserting after the item relating to chapter 553 the following:

''555. Priority for vessels of the United States ..... 55501''.

SEC. 3648. TRANSPORTATION REQUIREMENTS FOR CERTAIN EXPORTS SPONSORED BY THE SECRETARY OF AGRICULTURE.

Section 55314 of title 46, United States Code, is amended—

(1) by inserting before subsection (b) the following:

''(a) APPLICABILITY.—The requirements under section 55305 of this title shall apply with respect to the activities specified in subsection (b).'';

(2) in subsection (b)—

(A) in the matter preceding paragraph (1), by striking ''Secretary of Agriculture or the Commodity Credit Corporation'' and inserting ''Federal Government'';

(B) in paragraph (1), by inserting ''titles I, II, or III of'' after ''carried out under'';

(C) in paragraph (4), by striking ''agricultural commodities or their products'' and inserting ''agricultural products'';

(D) in paragraph (5), by striking ''agricultural commodities or their products'' and inserting ''agricultural products'';

(E) in paragraph (6), by striking ''agricultural commodities or their products'' and inserting ''agricultural products'';

(F) in paragraph (7), by striking ''agricultural commodities'' and inserting ''agricultural products'';

(G) by redesignating paragraphs (4), (5), (6), and (7) as paragraphs (6), (7), (8), and (9), respectively; and

(H) by inserting after paragraph (3) the following:

''(4) carried out under the Food for Progress Act of 1985 (7 U.S.C. 1736o);

''(5) carried out under the McGovern-Dole International Food for Education and Child Nutrition Program under section 3107 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 1736o–1);''; and

(3) by adding at the end the following:

''(c) AGRICULTURAL PRODUCT DEFINED.—In this section, the term 'agricultural product' means any food product, including an agricultural commodity, specialty crop (as such term is defined in section 3 of the Specialty Crops Competitiveness Act of 2004 (7 U.S.C. 1621 note)), or processed food product, exported from the United States.''.

SEC. 3649. SHIP AMERICA OFFICE.

(a) IN GENERAL.—Chapter 553 of title 46, United States Code, is amended by adding at the end the following:

''SUBCHAPTER IV—SHIP AMERICA OFFICE

''§ 55341. Establishment of Ship America Office

''(a) ESTABLISHMENT.—The Maritime Administrator shall establish within the Maritime Administration

an office to be known as the 'Ship America Office'. The Maritime Administrator shall appoint the head of the Ship America Office (in this section referred to as the 'Ship America Associate Administrator').

''(b) DUTIES.—The Ship America Associate Administrator shall have the following duties:

''(1) Providing assistance to private sector entities, Federal financial assistance recipients, Federal agencies, Federal contractors, and owners and operators of oceangoing vessels of the United States to facilitate the movement of commercial and government cargo on vessels of the United States in international commerce.

''(2) Maximizing compliance across Federal agencies with this chapter, section 2631 of title 10, and any other cargo preference law of the United States.

''(3) Providing training and assistance to Federal employees, in all Federal agencies responsible for shipping preference cargo, on the legal obligations under this chapter, section 2631 of title 10, United States Code, and any other cargo preference law of the United States.

''(4) Developing a 'Ship America' verification program to develop self-certification industry stand-

ards, in partnership with private sector entities, to allow private sector entities to verifiably demonstrate that a product was transported to the United States aboard a vessel of the United States.

''(5) Supporting the efforts of the executive branch to develop and sustain a fleet of vessels of the United States and maritime industrial base to meet the sealift needs of Federal agencies.

''(6) Where practicable, making accessible, and regularly updating, the publicly available contact information for oceangoing vessels of the United States for the purposes of moving international commerce.

''(7) Publishing, and regularly updating, centralized information on the commercial benefits available to private sector entities for moving commercial cargo on oceangoing vessels of the United States.

''(8) Preparing the reports under subsection (c).

''(c) REPORTS REQUIRED.—Not later than 1 year after the date of enactment of this section, and biennially thereafter, the Maritime Administrator, acting through the Ship America Associate Administrator, shall report to the appropriate committees of Congress (as defined in sec-

tion 3604 of the SHIPS for America Act of 2026) and the Maritime Security Board on—

''(1) the opportunities and challenges faced by commercial entities to move cargo on oceangoing vessels of the United States; and

''(2) recommendations to increase international commerce moving on vessels of the United States.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 553 of title 46, United States Code, is amended by adding at the end the following:

''SUBCHAPTER IV—SHIP AMERICA OFFICE

''55341. Establishment of Ship America Office.''.

CHAPTER 3—REGULATORY REFORM

SEC. 3655. ALTERNATE STANDARDS.

(a) IN GENERAL.—Chapter 33 of title 46, United States Code, is amended—

(1) by redesignating sections 3317 and 3318 as sections 3318 and 3319, respectively; and

(2) by inserting after section 3316 the following:

''§ 3317. Alternate standards

''(a) IN GENERAL.—Not later than 1 year after the date of enactment of the SHIPS for America Act of 2026, the Secretary, in consultation with the Maritime Administrator, shall establish alternate standards to allow self-pro-

pelled vessels providing oceangoing transportation that are not documented under chapter 121 of this title to receive a certificate of inspection if the vessel will become a documented vessel.

''(b) REQUIREMENTS.—Under the program established under subsection (a), a self-propelled vessel used to provide oceangoing transportation that is not documented under chapter 121 of this title shall be eligible for a certificate of inspection if the Secretary determines that—

''(1) the owner of the vessel has agreed to apply to have the vessel documented under chapter 121 upon receiving the certificate;

''(2) at the time of the receipt of such certificate, the vessel is eligible for documentation under such chapter;

''(3) the vessel is classed by and designed in accordance with the rules of a classification society accepted by the Secretary;

''(4) the vessel complies with applicable international agreements and associated guidelines, as determined by the country in which the vessel was documented immediately before becoming documented under chapter 121, notwithstanding any other law including any regulation;

''(5) the vessel has been assessed for cybersecurity and surveillance risks; and

''(6) the country in which the vessel was documented immediately before becoming documented under chapter 121 has not been identified by the Secretary as inadequately enforcing international vessel regulations as to that vessel.

''(c) CONTINUED ELIGIBILITY FOR CERTIFICATE.—This section does not apply to a vessel after any date on which the vessel fails to comply with the applicable international agreements and associated guidelines referred to in subsection (b)(4).

''(d) RELIANCE ON CLASSIFICATION SOCIETY.—

''(1) IN GENERAL.—The Secretary may rely on a certification from the American Bureau of Shipping or, subject to paragraph (2), another classification society accepted by the Secretary to establish that a vessel is in compliance with the requirements of paragraphs (3), (4), and (6) of subsection (b) and of subsection (c).

''(2) FOREIGN CLASSIFICATION SOCIETY.—The Secretary may accept certification from a foreign classification society under paragraph (1) only—

''(A) to the extent that the government of the foreign country in which the society is

headquartered provides access on a reciprocal basis to the American Bureau of Shipping; and

''(B) if the foreign classification society has offices and maintains records in the United States.

''(e) RULEMAKING PROCEDURE.—The Secretary may initiate a rulemaking procedure to implement this standard.

''(f) SAVINGS PROVISION.—Nothing in this section shall be interpreted to affect requirements related to merchant seamen credentials under part E of subtitle II of this title or the requirements related to manning of vessels under part F of such subtitle.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 33 of title 46, United States Code, is amended by striking the items relating to sections 3317 and 3318 and inserting the following:

''3317. Alternate standards.
''3318. Fees.
''3319. Penalties.''.

SEC. 3656. RULEMAKING COMMITTEE ON COMMERCIAL MARITIME REGULATIONS AND STANDARDS.

(a) DEFINITIONS.—In this section:

(1) COVERED REGULATION.—The term ''covered regulation''—

(A) means a commercial regulation or standard issued by the Coast Guard relating to

the operation of vessels in foreign commerce, including—

(i) vessel design and engineering standards;

(ii) merchant mariner training and credentialing; or

(iii) vessel operating and environmental standards; and

(B) does not include any commercial regulation or standard issued by the Coast Guard that exclusively applies to vessels in domestic commerce.

(2) RULEMAKING COMMITTEE.—The term ''rulemaking committee'' means the committee established under subsection (b).

(3) SECRETARY.—The term ''Secretary'' means the Secretary of the department in which the Coast Guard is operating.

(b) ESTABLISHMENT OF RULEMAKING COMMITTEE.—There is established, in the department in which the Coast Guard is operating, a rulemaking committee on commercial maritime regulations and standards to—

(1) review, and develop findings and recommendations regarding, the covered regulations; and

(2) provide to the Secretary a report on opportunities to review and update regulations governing vessel design and engineering, vessel and facility operation and environmental standards, and merchant mariner credentialing, in order to—

(A) revitalize the merchant marine and the commercial maritime industry in the United States; and

(B) better align, and limit redundancies between, the regulatory standards of the Coast Guard and the International Maritime Organization and international treaty requirements, while protecting United States mariners and the United States maritime industry from foreign regulations that undermine the maritime industrial competitiveness of the United States.

(c) MEMBERS.—

(1) COMPOSITION OF RULEMAKING COMMITTEE.—The Secretary shall appoint the following as members of the rulemaking committee:

(A) Each of the following Federal officers or employees, or their designees:

(i) The Maritime Security Advisor.

(ii) The Maritime Administrator.

(iii) The Commandant of the Coast Guard.

(iv) The Secretary of Commerce.

(v) The Administrator of the Environmental Protection Agency.

(vi) The Chair of the Federal Maritime Commission.

(vii) The chief United States delegate to the International Maritime Organization.

(B) Representatives from recognized classification societies, including the American Bureau of Shipping.

(C) Representatives of industry, including—

(i) owners and operators of vessels in domestic and foreign commerce of the United States;

(ii) shipbuilders; and

(iii) other representatives of industry the Secretary determines appropriate.

(D) Individuals with a merchant mariner credential, as defined in section 2101 of title 46, United States Code.

(E) Representatives of maritime labor organizations.

(F) Experts in maritime safety and regulatory matters.

(G) Other stakeholders the Secretary determines appropriate.

(2) PERIOD OF APPOINTMENT; VACANCIES.—

(A) IN GENERAL.—A member of the rulemaking committee shall be appointed for the life of the rulemaking committee.

(B) VACANCIES.—A vacancy in the rulemaking committee—

(i) shall not affect the powers of the rulemaking committee; and

(ii) shall be filled in the same manner as the original appointment.

(3) CHAIRPERSON AND VICE CHAIRPERSON.—The Secretary shall select a Chairperson and Vice Chairperson from among the members of the rulemaking committee.

(d) MEETINGS.—

(1) INITIAL MEETING.—Not later than 180 days after the date of enactment of this Act, the Secretary shall convene the rulemaking committee for the first meeting of the rulemaking committee.

(2) QUORUM.—A majority of the members of the rulemaking committee shall constitute a quorum, but a lesser number of members may hold hearings.

(e) DUTIES OF COMMITTEE.—

(1) CONSIDERATIONS.—The rulemaking committee shall consider each of the following:

(A) How the covered regulations interact with and compare to the treaty requirements and regulations established by the International Maritime Organization, including comparisons and interactions on the basis of—

(i) safety;

(ii) cost;

(iii) enforceability and compliance; and

(iv) international competitiveness.

(B) The benefits and challenges vessel owners and operators and United States mariners encounter when complying with both regulations of the International Maritime Organization and the covered regulations.

(C) The role that covered regulations play in enhancing the size and strength of the merchant marine and the domestic and international fleet of the United States.

(D) Recommended changes to covered regulations, and regulatory frameworks, to better promote alignment with international standards and the standards of countries that are allies and partners, with a focus on—

(i) increasing opportunities for qualified mariners that enter the merchant marine and reducing the barriers that lead qualified mariners to leave the merchant marine;

(ii) increasing the number of vessels documented under the laws of the United States that are operating in domestic and foreign commerce;

(iii) enhancing United States leadership within the International Maritime Organization and other international treaty organizations with a focus on the maritime industry;

(iv) streamlining regulatory processes and processing timelines to minimize dupli-

cative reviews and eliminate preventable delays; and

(v) maintaining and enhancing the safety and security of the merchant marine.

(E) Recommended changes to covered regulations and regulatory frameworks that govern mariner education training requirements, which may include—

(i) expanding the pool of qualified instructors for mariner training programs;

(ii) streamlining requirements related to training facility size and design to improve operational efficiencies at mariner training facilities, including requirements related to classroom size and design;

(iii) standardizing and streamlining training course and curriculum approval and evaluation to provide more certainty to mariner training programs; and

(iv) enhancing opportunities for mariner training programs to flexibly integrate sea-time into course instruction, consistent with treaty requirements and regulations

established by the International Maritime Organization.

(F) Any other matters the Secretary determines appropriate.

(2) REPORT.—Not later than 12 months after the date of enactment of this Act, the rulemaking committee shall submit to the Secretary a report that includes the findings and recommended changes to covered regulations of the rulemaking committee, as required under paragraph (1).

(f) POWERS OF RULEMAKING COMMITTEE.—

(1) HEARINGS.—The rulemaking committee may hold such hearings, sit and act at such times and places, take such testimony, and receive such evidence as the rulemaking committee considers advisable to carry out this section.

(2) INFORMATION FROM FEDERAL AGENCIES.—

(A) IN GENERAL.—The rulemaking committee may secure directly from a Federal department or agency such information as the rulemaking committee considers necessary to carry out this section, as permitted by law.

(B) FURNISHING INFORMATION.—On request of the Chairperson of the rulemaking committee, the head of the department or agen-

cy shall furnish the information to the rulemaking committee.

(g) RULEMAKING COMMITTEE PERSONNEL MATTERS.—

(1) NO COMPENSATION.—A member of the rulemaking committee shall not be compensated for service on the rulemaking committee.

(2) TRAVEL EXPENSES.—A member of the rulemaking committee shall be allowed travel expenses, including per diem in lieu of subsistence, at rates authorized for employees of agencies under subchapter I of chapter 57 of title 5, United States Code, while away from their homes or regular places of business in the performance of services for the rulemaking committee.

(h) ADMINISTRATION.—Except as specified otherwise in this section, the rulemaking committee shall be treated as a committee established under chapter 151 of title 46, United States Code, for purposes of section 15109 of such title and shall not be considered a temporary organization under section 3161 of title 5, United States Code.

(i) TERMINATION.—The rulemaking committee shall terminate on the earlier of—

(1) the date that is 90 days after the date on which the rulemaking committee submits the report under subsection (e)(2); or

(2) the date that is 7 years after the date on which the rulemaking committee is established.

(j) DUTIES OF THE SECRETARY.—The Secretary shall—

(1) not later than 30 days after receiving the rulemaking committee's report under subsection (e)(2), submit to the appropriate committees of Congress, and make publicly available, a copy of such report and the Secretary's views on the recommendations of the committee; and

(2) not later than 90 days after submitting the report under paragraph (1)—

(A) initiate a rulemaking activity and make such policy and guidance updates determined necessary by the Secretary to address the consensus recommendations reached by the rulemaking committee under subsection (e);

(B) submit a report to the appropriate committees of Congress identifying the recommendations of the rulemaking committee that require legislative changes; and

(C) submit a report to the Secretary of State identifying recommendations of the rule-making committee that require changes to treaty requirements and regulations established by the International Maritime Organization, including recommendations that should inform the policy of the United States as a member of the International Maritime Organization.

SEC. 3657. AMENDMENTS TO SHIPOWNERS' LIMITATION OF LIABILITY ACT OF 1851.

(a) IN GENERAL.—Section 30523 of title 46, United States Code, is amended—

(1) by striking subsection (a) and inserting the following:

''(a) LIMIT OF OWNER LIABILITY.—

''(1) IN GENERAL.—Except as provided in section 30524 of this title, the liability of—

''(A) the owner of a vessel of the United States for any claim, debt, or liability described in subsection (b) shall not exceed the value of the vessel and pending freight; and

''(B) the owner of a foreign vessel for any claim, debt, or liability described in subsection (b) shall not exceed the amount that is 5 times the value of the vessel and pending freight.

''(2) MULTIPLE OWNERS.—If a vessel has more than one owner, the proportionate share of the liability under paragraph (1) of any one such owner shall not exceed that owner's proportionate interest in the vessel and pending freight.''; and

(2) by striking subsection (c) and inserting the following:

''(c) CLAIMS NOT SUBJECT TO LIMITATION.—Subsection (a) does not apply to—

''(1) a claim for wages; or

''(2) with respect to the liability of an owner of a foreign vessel, a claim, debt, or liability arising from personal injury or wrongful death of a person who was not a crewmember or passenger of the foreign vessel at the time the injury (including fatal injury, if applicable) occurred.''.

(b) AMENDMENT TO CESSATION OF CERTAIN ACTIONS.—Section 30529(c) of title 46, United States Code, is amended by striking ''the matter in question'' and inserting ''a matter subject to consideration for limitation under section 30523 or section 30524''.

(c) EFFECTIVE DATE.—The amendments made by subsections (a) and (b) shall apply to any liability subject to section 30523(a) of title 46, United States Code, that arises on or after the date of enactment of this Act.

Subtitle E—Shipbuilding

CHAPTER 1—SHIPBUILDING FINANCIAL INCENTIVES

SEC. 3661. ANTICIPATED COMMERCIAL VESSEL CONSTRUCTION SURVEY.

(a) IN GENERAL.—Chapter 501 of title 46, United States Code, is amended by adding at the end the following:

"§ 50115. Anticipated commercial vessel construction survey

''(a) DEFINITION.—In this section, 'commercial vessel of the United States' means a vessel that is documented under the laws of the United States, not less than 6,000 deadweight tons, and operated in the domestic trade of the United States or foreign commerce, and may include—

''(1) a bulk carrier vessel;

''(2) a tanker vessel;

''(3) a roll-on/roll-off vessel;

''(4) a liquefied natural gas tanker vessel;

''(5) a container vessel;

''(6) a multi-purpose vessel;

''(7) a cable vessel (as defined in section 53201);

''(8) a heavy-lift vessel; or

''(9) any other type of vessel determined appropriate by the Administrator, in consultation with the Maritime Security Board.

''(b) IN GENERAL.—Not later than 180 days after the date of enactment of this section, and annually thereafter, the Maritime Administrator shall conduct a survey of owners, agents, or operators of commercial vessels of the United States to identify plans for the construction, maintenance, and modernization of commercial vessels of the United States.

''(c) PURPOSE.—The purpose of the survey conducted under this section is to inform the maritime industrial base of the future need for the construction of commercial vessels.

''(d) INCLUSIONS.—In conducting the survey under this section, the Maritime Administrator shall collect the following information from owners, agents, or operators of commercial vessels of the United States who participate in the survey:

''(1) The number of commercial vessels of the United States the participant is looking to construct during the 10-year period beginning on the date on which the participant takes the survey.

''(2) The capabilities of the vessels described in paragraph (1) that the participant is seeking in constructing such vessels.

''(3) Estimated timelines for when the participant aims to place each such vessel into service.

''(4) The number of major repairs of commercial vessels of the United States and overhauls of such commercial vessels the participant is looking to carry out during the 10-year period described in paragraph (1).

''(5) The major components that a shipbuilder would need from industrial base suppliers to support the construction, overhaul, or repair of commercial vessels of the United States during such 10-year period.

''(6) Estimates for the capital expenditures the participant is planning to make for the construction, overhaul, or repair of commercial vessels of the United States during such 10-year period.

''(7) Any additional information the Maritime Administrator determines appropriate.

''(e) PARTICIPATION.—The Administrator may not require any owner, agent, or operator of a commercial vessel of the United States to participate in the survey unless that owner, agency, or operator is participating in a finan-

cial assistance program established under part C of this subtitle.

''(f) RELEASE OF FINDINGS.—

''(1) DISTRIBUTION.—Each year, the Maritime Administrator may release the findings of the survey with shipyards in the United States and other maritime industrial base stakeholders the results of the survey conducted under this section for such year in such a manner as the Administrator determines appropriate.

''(2) PROPRIETARY INFORMATION.—Notwithstanding any other provision of law, including section 552 of title 5, United States Code, at the request of a survey participant, the Maritime Administrator shall withhold proprietary information provided as a part of a survey conducted under this section.

''(3) COORDINATION.—To the maximum extent practicable, the Maritime Administrator shall seek to conduct the annual surveys under this section and publish the results of such surveys on a similar timeline as the timeline for the annual naval vessel construction plans under section 231(a)(1) of title 10 and other shipbuilding construction surveys published by other Federal agencies.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 501 of title 46, United States Code, is amended by inserting after the item relating to section 50114 the following:

''50115. Anticipated commercial vessel construction survey.''.

SEC. 3662. STREAMLINED ENVIRONMENTAL REVIEW.

Section 41001(6) of the Fixing America's Surface Transportation Act (42 U.S.C. 4370m(6)) is amended—

(1) in subparagraph (A)—

(A) in the matter preceding clause (i), by inserting ''the maritime industry'' after ''waterways,'';

(B) by redesignating clauses (iii) and (iv) as clauses (iv) and (v), respectively; and

(C) by inserting after clause (ii) the following:

''(iii) is covered by a programmatic plan or environmental review developed for a project related to the maritime industry;''; and

(2) by adding at the end the following:

''(D) MARITIME INDUSTRY.—For the purposes of subparagraph (A), the term 'construction of infrastructure' for the maritime industry includes construction of—

"(i) shipyards and ship repair facilities;

"(ii) port terminals and other port facilities;

"(iii) manufacturing facilities for equipment and technology instrumental to the facilitation of maritime trade and commerce, as defined by the Council; and

"(iv) other industrial base facilities that support the Navy or the merchant marine of the United States.".

SEC. 3663. REPORTS.

(a) REPORT ON NATIONAL DEFENSE RESERVE FLEET.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, and every 2 years thereafter, the Maritime Administrator, in consultation with the Commander of the United States Transportation Command and the Secretary of the Navy, and in accordance with paragraph (2), shall submit to the appropriate committees of Congress and the Maritime Security Board a report—

(A) outlining a plan for using shipbuilding financial incentives and the financial incentive programs under subpart C of subtitle V of title

46, United States Code, to supplement the size and readiness of the National Defense Reserve Fleet and to improve national shipbuilding and shipping infrastructure; and

(B) describing ways in which an expanded and creative view of the make-up of vessels with Voluntary Intermodal Sealift Agreements or Voluntary Tanker Agreements and the shipbuilding financial incentives program authorized under such section can be used to ensure government access to other vessels that are critical to national security, such as icebreakers, oil and natural gas tankers, floating dry docks, salvage vessels, dredges, ocean tugs, offshore construction vessels, multi-use workboats, and commercial shipping vessels using small nuclear reactors.

(2) ADDITIONAL CONSULTATION.—In preparing the report under paragraph (1), the Maritime Administrator shall also consult with the Secretary of Commerce and the Secretary of Energy with respect to shipping vessels or mobile maritime power plants using small nuclear reactors.

(b) REPORT ON DE-RISKING MARITIME SECTOR.—Not later than 180 days after the date of enactment of

this Act, and every 2 years thereafter, the Secretary of Defense and the Secretary of Homeland Security, in coordination with the Secretaries of Treasury and State, the Maritime Administrator, and the Director of the Office of Management and Budget, shall submit to the appropriate committees of Congress and the Maritime Security Board a report outlining a comprehensive strategy for de-risking the United States maritime domain from the People's Republic of China and other asymmetric or emerging maritime threats.

(c) REPORT ON RESTRICTING FLOW OF CAPITAL TO CCP.—Not later than 180 days after the date of enactment of this Act, the Secretary of Transportation, the Secretary of Defense, the Secretary of Commerce, the Secretary of State, and the Secretary of the Treasury shall submit to the appropriate committees of Congress and the Maritime Security Board a report on ways and means for restricting the flow of capital from the United States to Chinese Communist Party maritime industries, which shall include recommendations for promoting the flow of capital within and between the United States and treaty allies of the United States. The report shall also include a survey of banks, pension funds, and large financial institutions, with recommendations for ways the United States

can incentivize domestic financial investments in the maritime industry.

SEC. 3664. EXPORT CONTROL REPORT.

Not later than 1 year after the date of enactment of this Act, the Secretary of State and the Secretary of Commerce shall jointly submit to Congress a report assessing methods to reduce the use of export controls and other restrictions under the Arms Export Control Act (22 U.S.C. 2751 et seq.) and the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations, and the Export Control Reform Act of 2018 (50 U.S.C. 4801 et seq.) and the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, or successor regulations, that limit the ability of foreign-owned marine industrial base companies to participate in the United States shipbuilding industry, specifically including shipbuilding for the Federal Government, while ensuring appropriate safeguards for United States-based firms and American workers.

CHAPTER 2—DEPARTMENT OF DEFENSE PROGRAMS

SEC. 3665. ASSESSMENT OF THE USE OF COMMERCIAL BEST PRACTICES FOR NAVY SHIPBUILDING.

(a) ASSESSMENT.—

(1) IN GENERAL.—The Secretary of the Navy, in coordination with the Secretary of Transportation and the Secretary of the Department in which the Coast Guard is operating, shall—

(A) conduct an assessment of best practices used in the construction and repair of commercial, oceangoing maritime vessels; and

(B) identify—

(i) opportunities for the Navy and Coast Guard to leverage those best practices to make ship construction and repair efforts of combatant and non-combatant vessels more efficient; and

(ii) advanced technologies that can be leveraged to improve the overall readiness and dominance of the United States maritime fleet (both commercial and military), to specifically include small modular reactors for ship power and propulsion.

(2) ELEMENTS.—The assessment required by paragraph (1) shall include the following:

(A) An evaluation of the best practices described in subparagraph (A) of such paragraph, including best practices used by commercial shipyards in foreign allied countries, consider-

ation of commercial design standards, and the vessel construction manager model used to construct the National Security Multi Mission Vessel Program, that could improve the efficiency of shipbuilding and repair by the Navy and Coast Guard.

(B) An identification of commercial-grade components and capabilities being used in state-of-the-art commercial, oceangoing maritime vessels and an assessment of whether the Navy and Coast Guard could better use commercial off-the-shelf components or capabilities to reduce costs, improve efficiencies, or enhance capabilities in the construction of new naval vessels and cutters, and in repair of naval vessels and cutters.

(C) A determination as to whether shipbuilding and acquisition programs of the Navy and Coast Guard use modern best practices from the commercial maritime industry in terms of contracting, ship design, construction, overhaul, and maintenance.

(D) An identification of technologies and procedures that are used in commercial shipbuilding that, if used by the Navy and Coast

Guard, would improve the efficiency of designing and constructing new naval vessels.

(E) An identification of technologies and procedures that are used in commercial shipbuilding and repair that, if used by the Navy and Coast Guard, would improve the efficiency of repairing naval vessels.

(F) An identification of opportunities to improve commonality in ship design, ship components, and shipbuilding procedures between commercial, oceangoing maritime vessels, naval vessels, and cutters that could lead to improved efficiencies and a more resilient industrial base to support shipbuilding and repair for military and civil maritime vessels.

(G) An identification of advanced nuclear technologies that are under development for use in commercial shipbuilding that, if used by the Navy and Coast Guard, would improve the operational capability of naval vessels and cutters.

(H) An identification of the barriers preventing or making prohibitive the use of small modular reactors in naval or commercial, oceangoing maritime vessels, including—

(i) ambiguity in regulations governing nuclear propulsion restricting the commercial maritime industry from utilizing nuclear propulsion or collaborating between United States and foreign entities under export controls requirements, including section 744.5 of title 15, Code of Federal Regulations (or a similar successor regulation); and

(ii) a lack of clarity in the meaning of ''maritime (civil) nuclear propulsion plant projects'' contained in the Export Administration Regulations and ''Naval Nuclear Propulsion'' contained in the International Traffic in Arms Regulations (Cat VI).

(I) An evaluation of education and technology development best practices used by commercial shipyards in foreign allied countries, and an identification of education and technology development opportunities, that could improve the efficiency of shipbuilding and repair by the Navy and Coast Guard.

(J) An evaluation of whether adoption of the best practices evaluated under subparagraph (A) for the construction and repair of

naval vessels and cutters would support the domestic commercial maritime shipbuilding industry, the commercial maritime industrial base, and the merchant marine of the United States.

(b) BRIEFING.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Navy shall provide to the congressional defense committees a briefing on—

(1) the results of the assessment required by subsection (a); and

(2) a plan to execute any measures pursuant to such assessment.

(c) STRATEGY REQUIRED.—Not later than 1 year after the date of enactment of this Act, and biennially thereafter, the Secretary of the Navy and Secretary of the Department in which the Coast Guard is operating shall—

(1) provide to the appropriate committees of Congress strategies describing how measures identified as a result of the assessment required by subsection (a) will be incorporated into shipbuilding programs for the Navy and Coast Guard; and

(2) publish a public version of the strategies.

(d) CONGRESSIONAL DEFENSE COMMITTEES DEFINED.—In this section, the term ''congressional defense

committees'' has the meaning given that term in section 101(a) of title 10, United States Code.

SEC. 3666. PLAN OF ACTION FOR USE OF DEFENSE PRODUCTION ACT OF 1950 AUTHORITIES.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the President shall submit to the appropriate committees of Congress a report on a plan of action for any use of authorities available under title III of the Defense Production Act of 1950 (50 U.S.C. 4531 et seq.)—

(1) to establish or enhance a domestic production capability for the construction of militarily useful, commercial maritime vessels that can be operated in foreign commerce or the domestic commerce of the United States;

(2) to establish, improve, or enhance the defense shipyard industrial base; or

(3) to establish, improve, or enhance maritime port infrastructure of the United States, including containers and ship-to-shore cranes that were built in the United States and are owned by citizens of the United States.

(b) COORDINATION.—The President shall develop the plan of action required by subsection (a) in consultation with—

(1) the maritime security advisor (as established by this title);

(2) the Maritime Security Board (as established by this title);

(3) an advisory committee established under section 708(d) of the Defense Production Act of 1950 (50 U.S.C. 4558(d)); and

(4) such stakeholders in the private sector as the President considers appropriate.

(c) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Committee on Armed Services, the Committee on Commerce, Science, and Transportation, and the Committee on Appropriations of the Senate; and

(2) the Committee on Armed Services, the Committee on Transportation and Infrastructure, and the Committee on Appropriations of the House of Representatives.

SEC. 3667. MILITARY SEALIFT COMMAND.

(a) AUTHORITY TO OFFER INCREASED PAID LEAVE ACCRUAL.—The Secretary of the Navy is authorized to offer government merchant mariners employed by Military Sealift Command paid leave accrual at a faster rate than

provided pursuant to the standard General Schedule (GS) system to make government seafaring jobs more competitive with the commercial sector.

(b) REPORT ON RECRUITING AND RETENTION EFFORTS.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter, the Secretary of the Navy, in coordination with the Commander of the Military Sealift Command and the Maritime Security Board, and in consultation with the Commander of United States Transportation Command, the Commander of United States Fleet Forces Command, and the Assistant Secretary of the Navy for Research, Development and Acquisition, shall submit to the appropriate committees of Congress a report on efforts to improve recruitment and retention of Military Sealift Command Mariners.

(2) ELEMENTS.—The report required under paragraph (1) shall consider—

(A) opportunities to enhance the integration of Military Sealift Commander civilian mariners into the military command structure;

(B) providing training on the roles and significance of Military Sealift Command civilian

mariner workforce to relevant military commands; and

(C) authorities required to improve recruitment and retention of civilian mariners in Military Sealift Command.

(c) REPORT ON EXTENDING CHARTER DURATIONS.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Navy shall submit to the appropriate committees of Congress a report assessing the merits of extending the maximum charter durations of commercial and specialty vessels for the Military Sealift Command.

CHAPTER 3—SHIPBUILDING INNOVATION AND INFRASTRUCTURE

SEC. 3668. UNITED STATES CENTER FOR MARITIME INNOVATION.

(a) IN GENERAL.—Section 50307(e) of title 46, United States Code, is amended—

(1) in paragraph (1), by inserting ''through the establishment, management, and coordination of geographically and topically diverse maritime incubators'' after ''maritime transportation system''; and

(2) by striking paragraphs (2), (3), and (4), and inserting the following:

''(2) COOPERATIVE AGREEMENT.—The cooperative agreement shall be with an organization or persons with substantial experience in the maritime industry, as determined by the Secretary, in consultation with the Maritime Security Board.

''(3) SELECTION.—The Center shall be—

''(A) selected through a competitive process of eligible entities, and if a private entity, a domestic entity;

''(B) based in the United States with technical expertise in emerging marine technologies and practices related to the maritime transportation system; and

''(C) located in close proximity to eligible entities with expertise in United States emerging maritime technologies and practices.

''(4) COORDINATION.—The Secretary of Transportation shall coordinate with the Maritime Security Board and other agencies critical for science, research, and regulation of emerging marine technologies for the maritime sector, including the Department of Defense, the Department of Energy, the Environmental Protection Agency, the National Science Foundation, the Coast Guard, the National Oceanic and Atmospheric Association, and the Ma-

rine Board of the National Academies when establishing the Center.

''(5) RESPONSIBILITIES.—The Center shall carry out the following activities:

''(A) Establish and support maritime incubators in accordance with paragraph (6).

''(B) Accelerate the adoption or integration of commercial technologies within the maritime industry to transform the capacity and capabilities of the merchant marine of the United States.

''(C) Serve as the principal liaison between the Maritime Security Board and maritime incubators.

''(D) Carry out programs, projects, and other activities to strengthen the merchant marine of the United States and the maritime industrial base.

''(E) Coordinate and harmonize the activities of other organizations and elements of the maritime industry on matters relating to commercial technologies, dual use technologies, and the innovation of such technologies.

''(F) Coordinate and advise efforts among elements of the maritime industry on matters

relating to the development, procurement, and fielding of nontraditional capabilities and connect entities developing those capabilities with the relevant incubators.

''(G) Coordinate with maritime industry stakeholders to identify operational challenges that have the potential to be addressed through the use of nontraditional capabilities, including dual-use technologies that are being developed and financed in the commercial sector.

''(H) Coordinate with maritime industry stakeholders and relevant Federal agencies to enhance the capacity and performance of seaports of the United States, including through hardening security, enhancing preparedness, and developing United States-based supply chains for port technologies and equipment.

''(I) Coordinate with other research and development programs and centers focused on modes of transportation besides maritime to develop intermodal interoperability with the maritime industry.

''(J) Develop a standard design for commercial vessels and components and features of commercial vessels to be manufactured in the

United States, using mature, proven designs, which—

"(i) includes, to the maximum extent practicable, included parts, components, and material manufactured in and sourced from the United States;

"(ii) does not include any parts, components, or materials manufactured by foreign entities of concern or which are produced in foreign countries of concern (as such terms are defined in section 3604 of the SHIPS for America Act of 2026); and

"(iii) includes priorities for design identified in consultation with the Secretary of the Navy, as necessary for strategic sealift, informed by requirements to sustain a wartime economy and military operations.

"(K) Lead engagement with industry, academia, labor organizations, and other nongovernmental entities to develop—

"(i) innovative, commercial, and dual-use manufacturing technologies and processes to construct, rehabilitate, or repair

maritime vessels of the Armed Forces or the merchant marine of the United States;

''(ii) additional naval architecture programs at institutions of higher education in the United States and to expand existing naval architecture programs;

''(iii) next-generation propulsion technologies for the merchant marine of the United States, to include small modular reactors, low-emission or carbon capture propulsion technologies, and other renewable energy solutions;

''(iv) new and innovative hardware, software, and systems for remote or autonomous operations at ports, intermodal facilities, or aboard oceangoing vessels;

''(v) technology and infrastructure solutions that enhance the safe operation of oceangoing vessels to protect lives, property, and the environment;

''(vi) solutions to recruit, train, and retain a skilled workforce capable of supporting a vibrant and growing United States maritime industry; and

''(vii) the capacity of international allies and partners of the United States, with respect to manufacturing technologies and processes, to construct, rehabilitate, or repair maritime vessels.

''(L) Work with academic and private sector response training centers and Centers of Excellence for Domestic Maritime Workforce Training and Education to develop maritime strategies and workforce development plans applicable to various segments of the United States maritime industry, including the inland, deep water, and coastal fleets.

''(M) Establish programs and initiatives to share—

''(i) shipbuilding best practices and maritime technology between vessels of the Department of Defense and commercial vessels of the United States; and

''(ii) port technology and logistics best practices between the Department of Defense and commercial port operators and port authorities within the United States.

''(N) Carry out such other activities as the Maritime Security Board determines appropriate.

''(6) ESTABLISHMENT OF MARITIME INCUBATORS.—

''(A) ESTABLISHMENT.—The Center shall, in consultation with the Maritime Security Board, seek out, identify, and support the development of and experimentation with commercial technologies that have the potential to be implemented within the maritime industry, through the establishment of a series of maritime incubators.

''(B) REFLECTION.—Each incubator shall reflect the unique nature of the region's capabilities and academic and investor base.

''(C) SELECTION.—Incubators shall be—

''(i) selected through a competitive process of eligible entities, and if a private entity, a domestic entity;

''(ii) based in the United States with technical expertise in emerging marine technologies and practices related to the maritime transportation system;

"(iii) based within a United States maritime security investment zone as defined in section 1400Z–3 of the Internal Revenue Code of 1986 (as added by section 708 of this Act); and

"(iv) topic-specific, according to regional maritime expertise in United States emerging maritime technologies and practices, to include designated incubators focused on—

"(I) clean energy, carbon capture, and alternative fuels;

"(II) ports and shoreside infrastructure;

"(III) vessel design and naval architecture;

"(IV) shipbuilding and next generation manufacturing;

"(V) advanced materials for ship construction; and

"(VI) other areas for maritime innovation and technology, as determined by the Center in coordination with the Maritime Security Board.

"(D) INCUBATOR RESPONSIBILITIES.—Each maritime incubator shall—

"(i) serve as the principal liaison between the Center and individuals and entities that can contribute to innovation within the maritime industry, including other maritime incubators under this subsection, entrepreneurs, startups, commercial technology companies, and venture capital sources; and

"(ii) establish and support multi-stakeholder research and innovation partnerships, as described in subparagraph (G).

"(E) REPORT.—Each incubator shall submit quarterly activity and status reports to the Center.

"(F) REVIEW AND TERMINATION.—

"(i) IN GENERAL.—The Maritime Administrator may, in consultation with the Maritime Security Board, terminate an agreement with an eligible entity selected to lead a maritime incubator if the Administrator certifies that the eligible entity is

failing to meet the requirements of this section.

''(ii) RESELECTION.—If the Administrator terminates an agreement with an eligible entity to lead a maritime incubator, the Center shall initiate a new selection process as required under subparagraph (C) to select a new eligible entity.

''(iii) REVIEW OF ELIGIBLE ENTITIES.—Not later than 5 years after the establishment of maritime incubators under this paragraph, and every 5 years thereafter, the Administrator, in coordination with the Maritime Security Board, shall conduct a review of all eligible entities selected to lead a maritime incubator and confirm the entity is adequately fulfilling the requirements of this section.

''(G) MULTI-STAKEHOLDER PARTNERSHIPS.—

''(i) IN GENERAL.—The maritime incubators established under this subsection shall establish and support multi-stakeholder research and innovation partnerships that—

"(I) have the potential to generate technologies, processes, products, or other solutions that support the United States maritime industry;

"(II) have as an objective the technology transfer or commercialization of the work product generated by the partnership, which may include work product that incorporates intellectual property developed by the Federal Government and licensed to the partnership in accordance with clause (iii); and

"(III) incentivize and expand geographically diverse participation in graduate and undergraduate institutions of higher education, community college, and other workforce programs relevant to the maritime industry.

"(ii) SUPPORT PROVIDED.—Support provided by the maritime incubator to a multi-stakeholder research and innovation partnership under this subsection may include—

"(I) providing funding or other resources to the partnership;

"(II) participating in the partnership;

"(III) providing technical and technological advice and guidance to the partnership;

"(IV) suggesting and introducing other participants for inclusion in the partnership;

"(V) providing the partnership with insight into desired solutions for defense and security needs;

"(VI) providing access to Ready Reserve ships for testing new technologies and conducting research, as the maritime incubator determines appropriate, in coordination with the Center and the Administrator; and

"(VII) such other forms of support as the Center, in consultation with maritime incubators and Maritime Security Board, determines appropriate.

''(iii) AVAILABILITY OF INTELLECTUAL PROPERTY.—To the extent the Center determines appropriate, the Center, in coordination with the maritime incubators, shall seek to actively inform potential participants in multi-stakeholder research and innovation partnerships of the availability of intellectual property developed by the Federal Government that may be licensed to the partnership.

''(7) REPORT.—Not later than 180 days after the date of enactment of the SHIPS for America Act of 2026, and annually thereafter, the Center shall submit to the Maritime Security Board and the appropriate congressional committees a report on the activities, advances, outcomes, and work product of the maritime incubators and the multi-stakeholder research and innovation partnerships supported under this subsection.

''(8) DEFINITIONS.—In this subsection:

''(A) MULTI-STAKEHOLDER RESEARCH AND INNOVATION PARTNERSHIP.—The term 'multi-stakeholder research and innovation partnership' means a partnership composed of any combination of 2 or more of the following:

"(i) Institutions of higher education (as defined in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002)) with research and innovation capability.

"(ii) Nonprofit organizations that provide policy, research, outreach, operations, organizational, management, testing, evaluation, technology transfer, legal, financial, or advocacy expertise.

"(iii) For-profit commercial enterprises that may be publicly or privately owned, early stage or mature, and incorporated or operating by another ownership structure.

"(iv) Centers of excellence for domestic maritime workforce training and education (established under section 51706).

"(v) Maritime labor organizations.

"(vi) Departments or agencies of the Federal Government with expertise, operations, or resources related to the objectives of the multi-stakeholder research and innovation partnership.

"(vii) State maritime academies (as defined in section 51102(4)).

''(viii) The United States Merchant Marine Academy.

''(ix) National research laboratories with expertise, operations, or resources related to the objectives of the partnership.

''(x) Operators and users of vessels of the University-National Oceanographic Laboratory System.

''(B) NONTRADITIONAL CAPABILITY.—The term 'nontraditional capability' means a solution to an operational challenge that can significantly leverage commercial innovation or external capital with minimal dependencies on fielded systems.

''(C) MARITIME INDUSTRY.—The term 'maritime industry' includes—

''(i) shipbuilders and ship repair facilities;

''(ii) ship owners;

''(iii) port operators;

''(iv) personnel of the merchant marine of the United States;

''(v) manufacturers of equipment, software, and technology instrumental to

the facilitation of maritime trade and commerce; and

''(vi) other members of the industrial base that support the Navy or the merchant marine of the United States.''.

(b) TRANSITION.—A Center for Maritime Innovation established by the Secretary of Transportation through a cooperative agreement pursuant to section 50307 of title 46, United States Code, as of the day before the date of enactment of this Act shall—

(1) be deemed to be the United States Center for Maritime Innovation under section 50307 of title 46, United States Code, as of the date of enactment of this Act, with all the authorities granted by such section; and

(2) coordinate activities of the Center with the Maritime Security Board pursuant to subsection (e)(4) of such section, as amended by this title.

SEC. 3669. NATIONAL SHIPBUILDING RESEARCH PROGRAM.

Section 50105(c) of title 46, United States Code, is amended to read as follows:

''(c) NATIONAL SHIPBUILDING RESEARCH PROGRAM.—

''(1) IN GENERAL.—The Maritime Administrator shall establish and carry out, in coordination

with the Secretary of the Navy, the National Shipbuilding Research Program.

''(2) PURPOSES.—The purpose of the National Shipbuilding Research Program shall be to develop plans for the economical construction of vessels and their propelling machinery, of most modern economical types, giving thorough consideration to all well-recognized means of propulsion and taking into account the benefits from standardized production where practicable and desirable.

''(3) ACTIVITIES.—The National Shipbuilding Research Program shall—

''(A) support technology transfers and industry networking;

''(B) select and execute research and development projects, which may include—

''(i) advancing best practices in shipbuilding and ship repair, including alternative project management and project financing arrangements for shipyards, such as public-private financing;

''(ii) improving efficiency across the shipyard industrial base of the United States; and

''(iii) developing, maturing, and implementing industry-relevant shipbuilding and sustainment technologies;

''(C) carry out ad hoc initiatives focused on specific target areas in shipbuilding and ship repair; and

''(D) carry out additional activities as determined by the Maritime Administrator or the Secretary of Defense.''.

SEC. 3670. ASSESSMENT ON MARITIME INFRASTRUCTURE READINESS.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Maritime Administrator shall submit to Congress a report on the status and resources and authorities needed to execute and complete necessary vessels, harborcraft, port, shipyard, and other infrastructure improvements to ensure the national security interests of the United States and support the domestic and foreign commerce of the United States.

(b) CONTENTS.—The report under subsection (a) shall include—

(1) consideration of existing literature and reporting from Federal and non-Federal sources;

(2) an assessment of the number of commercial shipping vessels by class required to sustain a peacetime and wartime national economy;

(3) an assessment of opportunities to leverage private sector funding to enhance the capability of marine infrastructure of the United States;

(4) an evaluation of future infrastructure needs to support alternative fuels for vessels and harborcraft;

(5) an assessment of an ability to construct and repair seaports and shipyards during national security emergencies, including readiness to construct temporary facilities, and carry out marine salvage and firefighting operations; and

(6) an evaluation of the possible effects on the commercial operations of United States ports and other critical infrastructure of prohibiting any entity that owns or operates a port or terminal in the United States from using or sharing data with—

(A) LOGINK;

(B) any logistics platform controlled by, affiliated with, or subject to the jurisdiction of the Chinese Communist Party or the Government of the People's Republic of China; or

(C) any logistics platform that shares data with a system described in subparagraph (A) or (B).

(c) DEFINITIONS.—

(1) CRITICAL INFRASTRUCTURE.—The term ''critical infrastructure'' has the meaning given the term in section 721(a) of the Defense Production Act of 1950 (50 U.S.C. 4565(a)).

(2) LOGINK.—The term ''LOGINK'' means the public, open, shared logistics information network known as the National Public Information Platform for Transportation and Logistics by the Ministry of Transport of the People's Republic of China.

Subtitle F—Workforce Development

CHAPTER 1—WORKFORCE INCENTIVES

SEC. 3671. ELIGIBILITY FOR EDUCATIONAL ASSISTANCE.

(a) IN GENERAL.—Chapter 521 of title 46, United States Code, is amended by adding at the end the following:

''§ 52102. Eligibility for educational assistance

''(a) ELIGIBILITY.—A covered individual shall be treated as an individual described in section 3311(b)(1) of title 38, United States Code, for purposes of entitle-

ment to educational assistance under chapter 33 of such title.

''(b) COVERED INDIVIDUAL.—

''(1) IN GENERAL.—In this section, the term 'covered individual' means an individual who—

''(A) served as a full-time, credentialed United States Merchant Mariner for not less than 10 years;

''(B) as a result of such service received the Merchant Marine Expeditionary Medal or another award for service in a designated combat zone after the date of enactment of this section; and

''(C) is not eligible under any other provision of law for benefits under laws administered by the Secretary of Veterans Affairs.

''(2) FULL-TIME, CREDENTIALED UNITED STATES MERCHANT MARINER.—For purposes of paragraph (1), serving as a 'full-time, credentialed United States Merchant Mariner' means possession of a Merchant Mariner Credential authorized by the Coast Guard and employment on board a vessel of the United States for not less than 150 days in a calendar year.

''(c) REIMBURSEMENT.—There is authorized to be appropriated to the Secretary of Veterans Affairs such sums as may be necessary to carry out this section from the Maritime Security Trust Fund established under section 50301(b) of this title.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 521 of title 46, United States Code, is amended by adding at the end the following:

''52102. Eligibility for educational assistance.''.

SEC. 3672. ELIGIBILITY OF MARINERS TO ATTEND NAVAL POSTGRADUATE SCHOOL.

(a) IN GENERAL.—Section 8545 of title 10, United States Code, is amended—

(1) in subsection (a), by adding at the end the following new paragraph:

''(3) The Secretary may permit an officer or unlicensed mariner of the United States Merchant Marine to receive instruction at the Naval Postgraduate School.'';

(2) in subsection (b)(1), by adding at the end the following new sentence: ''The Secretary of Transportation shall bear the cost of the instruction received by officers and unlicensed mariners of the United States Merchant Marine detailed for that instruction.''; and

(3) in subsection (c), by inserting ", and officers and unlicensed mariners of the United States Merchant Marine," after "Coast Guard".

(b) REPORT REQUIRED.—Not later than 180 days after the date of enactment of this Act, the Secretary of Transportation, in consultation with the Secretary of Defense, shall submit to Congress a report assessing what matters relating to military training it would be beneficial for mariners to study at the Naval Postgraduate School.

SEC. 3673. REIMBURSEMENT OF QUALIFYING SPOUSE RELICENSING COSTS AND BUSINESS COSTS.

(a) IN GENERAL.—Chapter 521 of title 46, United States Code, as amended by section 3671, is further amended by adding at the end the following:

"§ 52103. Reimbursement of qualifying spouse relicensing costs and business costs

"(a) IN GENERAL.—The Secretary of Transportation shall establish a program to reimburse an individual serving in the merchant marine of the United States for qualified relicensing costs and qualified business costs of the spouse of that individual when the individual relocates to a new jurisdiction or geographic area as the result of a reassignment as a result of service as a commissioned officer in the Navy Reserve (including the Strategic Sealift Officer Program, Navy Reserve), the Coast Guard Re-

serve, or any other reserve component of the Armed Services of the United States.

''(b) LIMITATIONS.—

''(1) RELICENSING.—Reimbursement provided to a member under this subsection for qualified relicensing costs may not exceed $1,000 in connection with each relocation described in paragraph (1).

''(2) BUSINESS COSTS.—Reimbursement provided to a member under this subsection for qualified business costs may not exceed $1,000 in connection with each relocation described in paragraph (1).

''(3) DEADLINE.—No reimbursement may be provided under this subsection for qualified relicensing costs or qualified business costs paid or incurred after December 31, 2036.

''(c) QUALIFIED RELICENSING COSTS.—In this section, the term 'qualified relicensing costs' means costs, including exam, continuing education courses, business license, permit, and registration fees, incurred by the spouse of an individual serving in the merchant marine of the United States if—

''(1) the spouse was licensed or certified in a profession, or owned a business, during the individual's previous assignment and requires a new professional license or certification, or business license or

permit, to engage in that profession in a new jurisdiction because of the individual's relocation described in paragraph (1); and

''(2) the costs were incurred or paid to secure or maintain the professional license or certification, or business license or permit, from the new jurisdiction in connection with such relocation.

''(d) QUALIFIED BUSINESS COSTS.—In this section, the term 'qualified business costs' means costs, including moving services for equipment, equipment removal, new equipment purchases, information technology expenses, and inspection fees, incurred by the spouse of an individual serving in the merchant marine of the United States if—

''(1) the spouse owned a business during the individual's previous assignment and the costs result from the individual's relocation described in paragraph (1); and

''(2) the costs were incurred or paid to move such business to a new location in connection with such relocation.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 521 of title 46, United States Code, as amended by section 3671, is further amended by adding at the end the following:

''52103. Reimbursement of qualifying spouse relicensing costs and business costs.''.

SEC. 3674. NONCOMPETITIVE ELIGIBILITY FOR FEDERAL EMPLOYMENT.

(a) AMENDMENT.—Chapter 521 of title 46, United States Code, as amended by sections 3682 and 3684, is amended by adding at the end the following:

''§ 52104. Noncompetitive eligibility for Federal employment

''(a) DEFINITION OF AGENCY.—In this section, the term 'agency'—

''(1) has the meaning given the term 'Executive agency' in section 105 of title 5, United States Code;

''(2) includes the United States Postal Service and the Postal Regulatory Commission; and

''(3) does not include the Government Accountability Office.

''(b) APPOINTMENT AUTHORITY.—The head of an agency may appoint noncompetitively—

''(1) a graduate of the United States Merchant Marine Academy who has met all of the requirements of their cadet commitment agreement under section 51306 of title 46, United States Code; or

''(2) a credentialed United States Merchant Mariner with an officer or rating endorsement who

has completed not less than 7 years of service aboard a vessel of the United States.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 521 of title 46, United States Code, as amended by sections 3682 and 3684, is amended by adding at the end the following:

''52104. Noncompetitive eligibility for Federal employment.''.

SEC. 3675. UNITED STATES MERCHANT MARINE CAREER RETENTION PROGRAM.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) it takes years of training and experience, and costly license trainings, to earn mariner qualifications;

(2) with just around 12,000 merchant mariners of the United States operating oceangoing vessels, compared with China's more than 1,700,000 seafarers, the United States may not have a sufficient number of mariners to fully power the strategic sealift vessels necessary in a future prolonged conflict;

(3) the United States requires a qualified workforce of sufficient size that is ready and available to crew vessels of the United States for national defense or national emergency; and

(4) a workforce committed to take all measures possible to expand, develop, and protect the domestic maritime workforce should—

(A) support a retention program to permit credentialed merchant mariners to maintain recency through a coordinated Federal program, in coordination with maritime labor organizations; and

(B) implement civil service, workplace, and hiring protections.

(b) AMENDMENT.—Chapter 521 of title 46, United States Code, as amended by sections 3682, 3684, and 3685, is further amended by adding at the end the following:

"§ 52105. United States Merchant Marine Career Retention Program

''(a) ESTABLISHMENT.—The Maritime Administrator shall establish a program, to be known as the 'United States Merchant Marine Career Retention Program', to ensure that a qualified workforce of sufficient size is ready to crew strategic sealift vessels in the event of a national defense or national emergency activation. Through the United States Merchant Marine Career Retention Program, the Maritime Administrator shall establish and administer mechanisms to register merchant

mariners and mariner employers to participate in the Program.

''(b) IMPLEMENTATION.—The Maritime Administrator shall—

''(1) appoint a board of directors to oversee the United States Merchant Marine Career Retention Program;

''(2) appoint and facilitate a working group to recommend policies, procedures, and a prioritization matrix for the United States Merchant Marine Career Retention Program, which shall be composed of representatives from major stakeholders, including maritime labor organizations, credentialed United States Merchant Mariners, vessel owners, vessel operators, the United States Merchant Marine Academy, State maritime academies, United States Military Sealift Command, and other likely employers of members of the United States Merchant Marine Career Retention Program; and

''(3) submit to Congress an annual evaluation of the United States Merchant Marine Career Retention Program.

''(c) MEMBERSHIP IN UNITED STATES MERCHANT MARINE CAREER RETENTION PROGRAM.—

''(1) IN GENERAL.—There shall be 2 paths to enrollment in the United States Merchant Marine Career Retention Program as described in paragraphs (2) and (3).

''(2) MEMBERS WHO WORK ASHORE WHO HOLD MARINER QUALIFICATIONS.—

''(A) OPPORTUNITIES.—The United States Merchant Marine Career Retention Program shall provide individuals who hold Coast Guard issued mariner qualifications who work ashore with an opportunity to maintain, or potentially upgrade, their mariner qualifications and credentials by—

''(i) providing qualified service at sea on vessels of the United States; and

''(ii) participating in compulsory training.

''(B) STRUCTURE.—The United States Merchant Marine Career Retention Program shall be open for enrollment to both licensed and unlicensed mariners and provide members with an 8–3–1 schedule as follows:

''(i) 8 months shoreside employment.

''(ii) 3 months sailing employment designed to ensure that members meet the

minimum sea-time requirement to maintain the credentials required by the Standards of Training, Certification, and Watchkeeping certification, or, depending on mariner and employer requirements, more frequent, but shorter-duration sailing assignments.

''(iii) 1 month vacation, which is in addition to vacation provided by the shoreside employer.

''(C) ASHORE EMPLOYERS.—

''(i) EMPLOYER OBLIGATIONS.—The employer of a member of the United States Merchant Marine Career Retention Program described under this paragraph shall grant the member—

''(I) an unpaid leave of absence for the duration of the member's training, sailing, and vacation with the United States Merchant Marine Career Retention Program; and

''(II) the same or an equivalent position with the employer when the member returns from training, sailing, or vacation with the United States

Merchant Marine Career Retention Program.

''(D) SEA DAY ASSIGNMENTS.—The United States Merchant Marine Career Retention Program shall, with respect to members described under this paragraph—

''(i) maintain records of each member's qualifications, sea time, and availability, and prioritize assignments on these and other factors with the goal of maximizing the United States Merchant Marine Career Retention Program readiness to support strategic sealift;

''(ii) maintain a 'job call' program office that coordinates how jobs become available for members from State maritime academies, vessel operating companies, maritime labor organizations, United States Military Sealift Command, and other organizations responsible for crewing vessels of the United States of qualifying tonnage or horsepower;

''(iii) establish partnerships with State maritime academies and the United States Military Sealift Command that aim to es-

tablish reliable crewing jobs with job cycles that maximize the readiness of United States Merchant Marine Career Retention Program;

''(iv) dispatch members to fill available jobs, prioritizing maximizing readiness for strategic sealift, taking into consideration mariner availability and credentials, sea time requirements to maintain merchant mariner credentials, predicted program demand for specific ratings, and expected expansion or contraction of the program's membership; and

''(v) coordinate with vessel operators and labor organizations to ensure that members in the United States Merchant Marine Career Retention Program are given opportunities to fulfill their sea time and maintain the credentials required by the Standards of Training, Certification, and, Watchkeeping certification.

''(E) USERRA PROTECTIONS.—Members of the United States Merchant Marine Career Retention Program described under this paragraph shall be entitled to protections and obli-

gations under chapter 43 of title 38 (commonly known as the 'Uniformed Services Employment and Reemployment Rights Act').

"(F) REQUIREMENT.—A member in the United States Merchant Marine Career Retention Program described under this paragraph may not fail to accept a sea day assignment and remain in good standing with the Program, unless a hardship exemption is provided by the Maritime Administrator under subsection (e).

"(3) MEMBERS SERVING ON FOREIGN VESSELS.—

"(A) IN GENERAL.—The United States Merchant Marine Career Retention Program shall be open for enrollment to individuals who—

"(i) hold Coast Guard issued merchant mariner credentials required by the Standards of Training, Certification, and Watchkeeping Certification;

"(ii) have completed their service obligations with respect to any previous enrollment in a Federal or State maritime academy, if applicable; and

"(iii) are serving on a foreign vessel (as defined in section 110) that is not owned by a foreign entity of concern (as that term is defined in section 3604 of the SHIPS for America Act of 2026) or a vessel registered under a registry of a foreign country of concern or operated under the authority of a foreign country of concern (as that term is defined in such section 3604).

"(B) REQUIREMENT.—Members of the United States Merchant Marine Career Retention Program described under this paragraph shall maintain—

"(i) Standards of Training, Certification, and Watchkeeping Certification currency;

"(ii) a valid merchant mariner credential, unlimited as to horsepower or tonnage, issued by the United States Coast Guard as an officer in the merchant marine of the United States, accompanied by the appropriate national and international endorsements and certifications required by the Coast Guard for service aboard ves-

sels on domestic and international voyages, without limitation;

"(iii) a valid transportation worker identification credential;

"(iv) a Coast Guard medical certificate; and

"(v) classes and certifications described in subparagraph (C).

"(C) CERTIFICATIONS.—The Administrator shall publish a list of classes and certifications required for individuals described in subparagraph (A) to be eligible for the United States Merchant Marine Career Retention Program.

"(D) RULE OF CONSTRUCTION.—Nothing in subparagraph (A) shall be construed to allow the United States Coast Guard to prevent or delay a merchant mariner who is otherwise eligible from attaining a more advanced rank or credential for Merchant Mariners sailing on foreign vessels.

"(E) USERRA PROTECTIONS.—Members of the United States Merchant Marine Career Retention Program described under this paragraph shall be entitled to protections and obli-

gations under chapter 43 of title 38 (commonly known as the 'Uniformed Services Employment and Reemployment Rights Act').

''(d) ENFORCEMENT.—The Maritime Administrator shall ensure all members of the Merchant Marine Career Retention Program remain in good standing with the requirements of the Program.

''(1) ENFORCEMENT.—Subject to paragraph (2), members found to be in noncompliance with the requirements of the Program shall—

''(A) have their reservist status terminated; and

''(B) forfeit the protections provided under chapter 43 of title 38 (commonly known as the 'Uniformed Services Employment and Reemployment Rights Act').

''(2) EXCEPTION.—In cases where the Maritime Administrator determines a hardship exists, which prevents the mariner from meeting the requirements of the Program, the requirements of paragraph (1) shall not apply.''.

(c) CLERICAL AMENDMENT.—The table of sections for chapter 521 of title 46, United States Code, as amended by sections 3682, 3684, and 3685, is amended by adding at the end the following:

''52105. United States Merchant Marine Career Retention Program.''.

CHAPTER 2—WORKFORCE PIPELINE

SEC. 3676. MARITIME WORKFORCE PROMOTION AND RECRUITMENT.

Section 539A(a) of the Servicemember Quality of Life Improvement and National Defense Authorization Act for Fiscal Year 2025 (Public Law 118–159) is amended by striking ''the heads of such other Federal agencies as the Secretary determines appropriate'' and inserting ''the Maritime Security Board''.

SEC. 3677. CENTERS OF EXCELLENCE FOR DOMESTIC MARITIME WORKFORCE TRAINING AND EDUCATION.

Section 51706(c)(1)(B)(iii) of title 46, United States Code, is amended by striking ''nonprofit entity'' and inserting ''entity''.

SEC. 3678. MARITIME CAREER AND TECHNICAL EDUCATION ADVISORY COMMITTEE.

(a) DEFINITIONS.—In this section:

(1) ADMINISTRATOR.—The term ''Administrator'' means the Maritime Administrator.

(2) ADVISORY COMMITTEE.—The term ''Advisory Committee'' means the Maritime Career and Technical Education Advisory Committee established under subsection (b).

(b) ADVISORY COMMITTEE PLAN AND ESTABLISHMENT.—

(1) PLAN.—Not later than 180 days after the date of enactment of this Act, the Administrator shall develop a plan, and notify Congress of such plan, to establish a Maritime Career and Technical Education Advisory Committee to—

(A) bring representatives of maritime industrial base employers and education providers together to identify joint opportunities to train needed workers for maritime careers; and

(B) develop and disperse best practices and recommendations for the improvement of shipbuilding education and training programs, naval architecture education programs, and merchant marine training and certification programs.

(2) ESTABLISHMENT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall establish the Advisory Committee.

(c) MEMBERSHIP.—

(1) ADMINISTRATOR.—The Advisory Committee shall include the Administrator (or a delegate of the Administrator) who shall serve as Chair of the Advisory Committee.

(2) REPRESENTATIVES.—The Advisory Committee shall be composed of representatives from each of the following, to be appointed the Administrator:

(A) Maritime education, including representatives from—

(i) the Centers of Excellence for Domestic Maritime Workforce Training and Education designated by the Maritime Administration, taking into consideration—

(I) geographic diversity;

(II) the rate of employment after graduation;

(III) training or skillset diversity; and

(IV) other qualities as determined by the Administrator;

(ii) the United States Naval Sea Cadet Corps;

(iii) kindergarten through grade 12 maritime education programs designated by the Maritime Administration;

(iv) the oceanographic science community, including from a University-National

Oceanographic Laboratory System institution; and

(v) institutions of higher education.

(B) The maritime workforce, including representatives from—

(i) skilled workers representing a wide swath of the career and technical maritime industry both onshore and offshore;

(ii) career and technical education certified instructors; and

(iii) maritime labor organizations.

(C) Maritime industry, including representatives from—

(i) shipbuilding, ship repair, and shipyard industry stakeholders;

(ii) maritime industrial base coalitions;

(iii) shipping industry stakeholders; and

(iv) owners and operators of vessels of the United States.

(D) Technical nonprofit organizations with expertise in the maritime industry, including representatives from—

(i) think tanks;

(ii) recognized classification societies; and

(iii) professional societies.

(E) The Federal Government, including representatives from—

(i) the Department of Education;

(ii) the Department of Labor;

(iii) the Department of Transportation;

(iv) the Department of the Navy;

(v) the United States Coast Guard;

(vi) the National Oceanic and Atmospheric Administration;

(vii) the Army Corps of Engineers; and

(viii) the Federal Maritime Commission.

(F) Any other representatives that the Maritime Administrator determines appropriate to appoint.

(d) MEETINGS.—

(1) IN GENERAL.—The Advisory Committee shall meet not less often than annually.

(2) QUORUM ESTABLISHED.—Two thirds of all members appointed by the Administrator under sub-

section (c) shall constitute a quorum for a meeting of the Advisory Committee.

(3) WORKING GROUPS.—The Advisory Committee shall include working groups that shall meet not less often than quarterly each year.

(e) FACA.—Chapter 10 of title 5, United States Code, shall apply to the Advisory Committee.

(f) DEVELOPMENT OF CURRICULA.—Consistent with the purposes of the Advisory Committee established in subsection (b) and applicable law (including regulations), the Advisory Committee shall recommend curricula for key skills for maritime professionals and make such curricula publicly available to institutions of higher education, career and technical education schools, and State maritime academies.

(g) REPORTING.—The Advisory Committee shall submit to the appropriate committees of Congress and the Maritime Security Board and publish on the website of the Maritime Administration, an annual report that includes best practices and policy recommendations, as described in subsection (b).

(h) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to create new regulatory authority or supersede existing law (including regulations) as of the day before the date of enactment of this Act, relating to

shipbuilding education and training programs, naval architecture education programs, and merchant marine training and certification programs.

SEC. 3679. MILITARY CANDIDATES TO MARINER CAREERS RECRUITMENT EXCHANGE.

(a) DUTIES OF SECRETARY OF DEFENSE.—The Secretary of Defense shall—

(1) encourage and incentivize military recruiters to recommend the United States Department of Transportation Maritime Administration to potential recruits who do not qualify for military service in the Armed Forces; and

(2) establish a mechanism for military recruiters to introduce recruits described in paragraph (1) who are interested in maritime service to representatives from the Maritime Administration, in accordance with the procedures established under subsection (b).

(b) DUTIES OF THE MARITIME ADMINISTRATOR.—The Maritime Administrator shall—

(1) establish a mechanism to receive recruitment referrals from military recruiters;

(2) provide hand-off services to connect recruits with educational resources and institutions, recognized Maritime Centers of Excellence, eligible mari-

time industry employers, and other maritime industry career services, as appropriate;

(3) track the number of referrals from the Department of Defense; and

(4) track the number of recruits who enroll in maritime industry programs, to the extent practicable.

(c) REPORTING REQUIREMENT.—

(1) BRIEFING ON THE IMPLEMENTATION STRATEGY.—Not later than 90 days after the date of enactment of this Act, the Maritime Administrator, in coordination with the Secretary of Defense, shall submit a briefing to the appropriate committees of Congress about a strategy for implementing the activities required under this section, including—

(A) a timeline for implementation; and

(B) the identification of the Department of Defense recruiter incentives and training required for maximum utility in carrying out such activities.

(2) ANNUAL REPORT ON PROGRAM EFFICACY.—One year after the date of enactment of this Act, and annually thereafter, the Maritime Administrator, in coordination with the Secretary of De-

fense, shall submit a report to the appropriate committees of Congress on the efficacy and utility of the activities carried out under this section, including—

(A) the number of Department of Defense referrals to the Maritime Administration;

(B) the number of Maritime Administration hand-offs to the maritime industry;

(C) an assessment of the efficacy of the activities carried out under this section; and

(D) challenges and recommendations relating to such activities.

SEC. 3680. MARITIME WORKER DATA COLLECTION.

(a) PUBLICATION OF REPORT.—The Maritime Administrator shall publish an biennial report on the state of the merchant mariner workforce.

(b) COMPLETION OF REPORT.—The Maritime Administrator shall complete the biennial report required under subsection (a) or enter into a contract with another entity to complete the report.

(c) CONTENT OF REPORT.—The biennial report required under subsection (a) shall include, at minimum—

(1) a count of United States Merchant Mariners with valid merchant mariner credentials and credentials in continuity endorsement;

(2) a count of inactive but credentialed and formerly credentialed United States Merchant Mariners, to the extent practicable, and an evaluation of—

(A) the challenges to identifying such individuals;

(B) opportunities to partner with Federal, State, local, and non-government entities to identify such individuals; and

(C) an action plan of how to implement the opportunities described under subparagraph (B);

(3) a count of United States mariners and foreign workers employed on vessels, rigs, platforms, and other vehicles or structures off the coast of the United States and an evaluation of the percentage of United States and foreign workers employed on—

(A) coastwise-endorsed vessels; and

(B) vessels of the United States which do not have a coastwise endorsement;

(4) a listing of actively operating vessels of the United States;

(5) a report of merchant mariner requirements needed in the event of a national defense sealift operation and any gaps identified in quantity and qual-

ity, and other variables of concern, as determined by the Administrator;

(6) a general outlook for the future of the merchant mariner industry and potential gaps or surpluses of merchant mariners;

(7) identification of any concerns in the credentialing of merchant mariners, which may include general processing issues, shortage of training providers or instructors, and barriers to entry due to costs to the economically disadvantaged; and

(8) recommendations, based on data collected, on ways to—

(A) improve retention of existing merchant mariners;

(B) create expedited pathways for mariners with expired credentials to renew their credentials; and

(C) encourage new merchant mariners to enter the industry.

(d) ACCESSIBILITY OF DATA.—

(1) IN GENERAL.—Except as provided in paragraph (2), the Maritime Administrator, and any authorized agent of the Maritime Administrator, shall have full access to available Coast Guard mariner credentialing data, in a manner that ensures the

protection of personally identifiable information, in order to complete the report required under subsection (a).

(2) EXCEPTION.—The Maritime Administrator, and any authorized agent of the Maritime Administrator, may not have access to confidential medical information pursuant to paragraph (1).

SEC. 3681. MILITARY TO MARITIME TRANSITION.

(a) RECOMMENDATIONS REQUIRED.—Not later than 180 days after the date of enactment of this Act, the Secretary of Defense, in consultation with the Secretary of the Navy, the Secretary of the Air Force, the Secretary of the Army, the Secretary of the department in which the Coast Guard is operating, the Maritime Security Board, the Department of Veterans Affairs, and the Department of Labor, shall submit a report to the appropriate committees of Congress containing—

(1) recommendations about how to increase and improve opportunities for transitioning servicemembers to secure employment in the maritime industry at sea and shoreside; and

(2) a plan to implement those recommendations.

(b) CONSIDERATIONS.—In carrying out subsection (a), the Secretary of Defense shall—

(1) identify barriers that servicemembers face when trying to transition to the United States maritime industry, including the merchant marines, shipbuilding, ship repair, and shipping;

(2) consider opportunities to improve, expedite, and alleviate the burdens on servicemembers transitioning to the maritime industry, including efforts to—

(A) inform transitioning servicemembers of employment opportunities in the United States maritime industry;

(B) assist transitioning servicemembers in determining how their military credentials and experience translate to credentialed civilian employment in the maritime industry;

(C) increase the establishment and uptake of accelerated or bridge programs to assist separating members of the Armed Forces in translating military credentials and experience into maritime industry credentials and employment;

(D) increase the availability and accessibility of preparatory activities under the SkillBridge program established under section 1143(e) of title 10, United States Code, in the United States maritime industry;

(E) incorporate the maritime industry in the Transition Assistance Program, as described in chapter 58 of title 10, United States Code; and

(F) enhance the activities carried out pursuant to the Military to Mariners Act of 2022 (section 11514 of division K of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263)); and

(3) specifically consider the transition of servicemembers to employment in the shipbuilding and ship repair maritime industries.

SEC. 3682. EARLY MARITIME EDUCATION AND YOUTH INVOLVEMENT.

(a) SECRETARY OF THE NAVY BUDGET REQUEST.—In the Secretary of the Navy's annual budget submission to Congress, the Secretary of the Navy shall include, as a distinct item, the funding request for the United States Naval Sea Cadet Corps.

(b) ENGAGEMENT WITH ELEMENTARY SCHOOL AND SECONDARY SCHOOL STUDENTS.—The Maritime Administrator shall encourage designated Centers of Excellence for Domestic Maritime Workforce Training and Education to engage with students in kindergarten through grade 12.

SEC. 3683. INTERNATIONAL SCHOLARSHIP FOR MARINER AND NAVAL ARCHITECTURE EXCHANGES.

(a) IN GENERAL.—The Maritime Administrator shall establish an international exchange program for mariners, naval architects, and marine engineers between the United States and countries described in subsection (b).

(b) ELIGIBLE PARTICIPANTS.—In carrying out the program under this section, the Administrator shall limit participation to United States citizens and citizens of—

(1) member countries of NATO;

(2) treaty allies of the United States; and

(3) major non-NATO allies of the United States.

(c) PLACEMENTS.—In carrying out the program under this section, the Administrator shall seek corporate and government partners for placement of eligible participants of the program.

CHAPTER 3—UNITED STATES MERCHANT MARINE ACADEMY AND STATE MARITIME ACADEMIES

SEC. 3684. UNITED STATES MERCHANT MARINE ACADEMY.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the United States Merchant Marine Academy, one of our Nation's 5 Federal service academies, is vital to our national security, and modern-

izing the Academy's aging infrastructure and investing in faculty and students must be congressional priorities;

(2) sufficient funding must be provided to enable the maximum student enrollment that the campus infrastructure of the United States Merchant Marine Academy can support; and

(3) considering the Academy's role as a co-equal military service academy, the United States Merchant Marine Academy should be included in the rotation of presidential attendance at graduations.

(b) CAMPUS MODERNIZATION PLAN.—Chapter 513 of title 46, United States Code, is amended by adding at the end the following:

"§ 51329. Campus modernization plan

''(a) IN GENERAL.—Not later than 30 days after the date of enactment of this section, the Secretary shall implement the Department of Transportation's 2025 Campus Modernization Plan for the phased rehabilitation, modernization, and construction of facilities and infrastructure at the United States Merchant Marine Academy.

''(b) REQUIREMENTS.—For the duration of the Campus Modernization Plan implemented under subsection (a), the Administrator shall ensure that the Academy remains fully operational.

''(c) REPORTING.—The Secretary of Transportation shall provide a briefing once every 6 months to the appropriate committees of Congress on the status of the implementation of the 2025 Campus Modernization Plan, as provided under subsection (a).''.

(c) REPORT ON ENROLLMENT.—Not later than 180 days after the date of enactment of this Act, the Maritime Administrator shall submit a report to the appropriate committees of Congress identifying the additional resources needed to increase enrollment at the United States Merchant Marine Academy.

SEC. 3685. STATE MARITIME ACADEMIES.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Maritime Administrator shall submit a report to Congress containing the results of a study to evaluate the additional resources needed to allow State maritime academies to increase enrollment and produce additional mariners.

(b) NEED FOR ADDITIONAL STATE MARITIME ACADEMIES.—Such study shall consider whether there is a need for additional State maritime academies in States that do not operate a maritime academy.

SEC. 3686. ENFORCEMENT OF SERVICE OBLIGATION REQUIREMENTS.

(a) IN GENERAL.—The Maritime Administrator shall ensure that—

(1) each citizen who is appointed as a cadet at the United States Merchant Marine Academy and signs a cadet commitment agreement under section 51306 of title 46, United States Code, meets the service obligation requirements of that agreement; and

(2) each individual that signs a student incentive payment agreement under section 51509 of title 46, United States Code, meets the service obligation requirements under that agreement.

(b) REPORTING REQUIREMENT.—The Maritime Administrator shall establish an electronic system through which each individual with a service obligation under such section 51306 or 51509 (referred to in this section as a ''service-obligated mariner'') shall annually demonstrate that they are meeting their service obligation or have a valid deferment consistent with section 51310 of title 46, United States Code, or section 51510 of title 46, United States Code, as applicable.

(c) NOTIFICATION OF VIOLATION.—The Maritime Administrator shall transmit a written notice to each service-obligated mariner who fails to meet the reporting re-

quirement of subsection (b), notifying such individual of the applicable penalties established under section 51306 of title 46, United States Code, or section 51509 of title 46, United States Code, for failure to carry out the applicable service requirements, including cost recovery.

(d) REPORT TO CONGRESS.—Not later than 180 days after the date of enactment of this section, and annually thereafter, the Maritime Administrator shall submit to the appropriate committees of Congress a report on the status of all service-obligated mariners, which shall include—

(1) information about how each service-obligated mariner is meeting their service obligation requirement, which shall be based on the results of the data collected under subsection (b);

(2) the number of service-obligated mariners who have not met their service obligation and have not complied with the reporting requirement under subsection (b); and

(3) the number of actions taken by the Maritime Administrator under sections 51306(b), 51306(d), 51306(f), and 51509(g) to recover costs from service-obligated mariners who have not demonstrated that they have met their service obligation requirements.

SEC. 3687. FUEL FUNDING FOR TRAINING SHIPS OPERATED BY STATE MARITIME ACADEMIES.

(a) CONFORMING AMENDMENT.—Section 51504 of title 46, United States Code, is amended by striking subsection (f) and inserting the following:

''(f) FUEL COSTS.—Subject to the availability of appropriations, the Secretary shall pay to each State maritime academy the costs of fuel used by a vessel provided under this section while used for training in accordance with section 51512.''.

(b) AMENDMENT.—Chapter 515 of title 46, United States Code, is amended by adding at the end the following:

''§ 51512. Funding for training ships operated by State maritime academies

''(a) FUEL FUNDING.—

''(1) IN GENERAL.—Subject to the availability of appropriations, the Secretary shall pay to each State maritime academy the costs of fuel used by a vessel that is loaned to the State maritime academy in accordance with section 51504 while used for training.

''(2) MAXIMUM AMOUNTS.—The amount of the payment to a State maritime academy under subsection (a) may not exceed $20,000,000 for each of fiscal years 2027 through 2036.

''(3) PROHIBITION.—Maritime academies that receive funding under subsection (a) may not—

''(A) profit from charging cadets to go to sea for their licensing when using federally provided fuel; or

''(B) utilize the vessel as housing for students outside of seasonal training cruises, unless students elect voluntarily to live aboard the vessel.

''(4) REQUIREMENT.—Each State maritime academy that receives fuel costs under this section shall offer billets for liaison officers from each military service during the time such vessel is provided to that State maritime academy.

''(b) CREW.—

''(1) IN GENERAL.—Each State maritime academy shall make crew positions available on a vessel that is loaned to the State maritime academy for mariners enrolled in the United States Merchant Marine Career Retention Program established under section 52105.

''(2) CREW FUNDING.—For each crew slot filled by a mariner enrolled in the career retention program, as provided for under paragraph (1), the Sec-

retary shall pay the crew costs for that mariner, subject to the availability of appropriations.''.

(c) CLERICAL AMENDMENT.—The table of sections for chapter 515 of title 46, United States Code, is amended by adding at the end the following:

''51512. Fuel funding for training ships operated by State maritime academies.''.

SEC. 3688. STATE MARITIME ACADEMY SEA TERM SCHOLARSHIP PROGRAMS.

(a) IN GENERAL.—Chapter 515 of title 46, United States Code, as amended by section 3700, is further amended by adding at the end the following:

''§ 51513. State Maritime Academy Sea Term Scholarship Programs

''(a) IN GENERAL.—The Maritime Administrator shall work with private entities in the maritime industry to establish a scholarship program—

''(1) for students at State maritime academies to offset expenses associated with completion of a summer sea term to receive sea-time required to earn a Coast Guard license; and

''(2) which is entirely or predominantly funded through contributions from a private entity.

''(b) CONTRIBUTED FUNDS.—The Maritime Administrator shall enter into a cooperative agreement, or other agreement, with private entities in the maritime industry

to accept funding from private entities for the purpose of establishing such a scholarship program. The cooperative agreement may include any terms considered necessary by the Maritime Administrator.

''(c) PRIVILEGES.—The Maritime Administrator may provide certain privileges to a private entity who contributes funds for a scholarship program under this section, including opportunities to provide information about employment opportunities with the private entity to students enrolled in the scholarship program.

''(d) STRUCTURE.—In establishing a scholarship program to offset expenses associated with a summer sea term—

''(1) the Maritime Administrator may enter into an agreement with a student at a State maritime academy that has an agreement with the Secretary of Transportation under section 51505 of this title, to offset expenses associated with completion of a summer sea term; or

''(2) the Maritime Administrator may enter into an agreement with a State maritime academy that has an agreement with the Secretary of Transportation under section 51505 of this title, to offset expenses for all students who participate in a summer sea term program.

''(e) RELATIONSHIP TO FINANCIAL ASSISTANCE PROGRAMS.—Recognizing the need for licensed merchant mariners, the Maritime Administrator shall encourage participants of the financial assistance programs under part C of this subtitle, to enter into agreements under this section to establish scholarship programs to offset expenses associated with summer sea term.

''(f) REQUIREMENTS FOR STUDENTS.—Any student who benefits from a scholarship program under this section shall enter into an agreement with the Maritime Administrator which requires the student to—

''(1) complete the course of instruction at the academy the individual is attending;

''(2) obtain a merchant mariner license, without limitation as to tonnage or horsepower, from the Coast Guard as an officer in the merchant marine of the United States, accompanied by the appropriate national and international endorsements and certification required by the Coast Guard for service aboard vessels on domestic and international voyages, without limitation, within 3 months of completion of the course of instruction at the academy the individual is attending;

''(3) serve in a position that supports the foreign and domestic commerce and the national de-

fense of the United States for at least 1 year after graduation from the academy—

''(A) as a merchant marine officer on a documented vessel or a vessel owned and operated by the United States Government or by a State; or

''(B) as a commissioned officer on active duty in an Armed Force of the United States, as a commissioned officer in the National Oceanic and Atmospheric Administration, or in other maritime-related Federal employment which serves the national security interests of the United States, as determined by the Maritime Administrator; and

''(4) report to the Maritime Administrator on compliance with this subsection.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 515 of title 46, United States Code, as amended by section 3700, is further amended by adding at the end the following:

''51513. State Maritime Academy Sea Term Scholarship Programs.''.

SEC. 3689. NAVAL JOINT EXERCISE INVOLVEMENT FOR TRAINING SHIPS OPERATED BY STATE MARITIME ACADEMIES.

(a) IN GENERAL.—The Secretary of the Navy, in coordination with the Maritime Administrator, shall, to the

extent practicable, include in national and international maritime warfare exercises not less than 1 training vessel used by a State maritime academy and maintained pursuant to section 51504 of title 46, United States Code, in order to provide an opportunity to integrate merchant mariners with naval and military operations.

(b) PARTICIPANTS.—Subject to guidance issued by the Secretary of the Navy and Maritime Administrator, an individual may participate in the exercise aboard that training ship if the individual is—

(1) a licensed merchant mariner; or

(2) a student from the United States Merchant Marine Academy, a State maritime academy, a Center of Excellence for Domestic Maritime Workforce Training and Education, or a merchant marine center established under section 147 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3197), as added by section 3677 of this title.

(c) PRIORITY.—In selecting participants under subsection (b) the Administrator shall give priority to students described in paragraph (2) of subsection (b).

(d) VESSELS.—In coordination with the Secretary of the Navy, the Maritime Administrator shall rotate training vessels to ensure that each training vessel described

in subsection (a) has an equal opportunity to participate in such exercises.

CHAPTER 4—MARITIME CREDENTIALING MODERNIZATION

SEC. 3690. MERCHANT MARINER CREDENTIALING MODERNIZATION.

(a) MERCHANT MARINER CREDENTIALING MODERNIZATION.—The Secretary of the department in which the Coast Guard is operating shall carry out necessary system and process changes to carry out the activities described in paragraphs (1) through (4).

(1) LICENSING, CERTIFICATION, AND DOCUMENTATION DATABASE.—Replacement of the merchant mariner licensing, certification, and documentation database such that the database allows for—

(A) the electronic submission of merchant mariner credential applications (including sea service, professional qualifications, course completion data, safety and suitability, and medical records) and course approval requests;

(B) direct submission of sea service information from employers and course completion data from training providers and other stakeholders to provide data securely and directly so

that documentation does not need to be submitted later by the merchant mariner; and

(C) the electronic processing and evaluation of information for the issuance of credentials and course approvals, including the capability for the Secretary to complete remote evaluation of the information submitted.

(2) SYSTEM FOR DATA EXCHANGE.—Implementation of a system that provides for the exchange of data with government agencies and industry stakeholders, which provides the Maritime Administration and other agencies, as appropriate, anonymized and aggregated data showing the following:

(A) The total amount of sea service for individuals with a valid merchant mariner credential.

(B) The number of credentialed mariners by individual rating and the capability to filter data by endorsements.

(C) Demographic information, including age, gender, ethnicity, and address or location.

(D) National Maritime Center processing times.

(E) The number of Coast Guard approved training providers, and, for each such training

provider, the number of courses taken by individuals who have, or who are applying for, a merchant mariner credential from that training provider.

(3) PUBLIC FACING PORTAL.—Implementation of a system that includes a public facing portal in the .gov domain instead of the .mil domain to accept merchant mariner applicant information, including credential applications, course completion data, and course approval requests, that complies with the requirements for cybersecurity and privacy information of electronic systems in the .gov domain.

(4) EXAMINATION PROCESSES.—Upgrading the examination processes for merchant mariner examinations, by—

(A) implementing an examination regime that provides for electronic and third party administration of examinations;

(B) reassessing the content of tests through the development of job task analysis for all credentials; and

(C) implementing a robust system to analyze examination data.

(b) REPORT.—The Secretary of the department in which the Coast Guard is operating shall submit—

(1) an annual report to the Committee on Commerce, Science, and Transportation, the Committee on Appropriations, and the Committee on Armed Services of the Senate, and the Committee on Transportation and Infrastructure, the Committee on Appropriations, and the Committee on Armed Services of the House of Representatives, on the progress of the system and process changes required under subsection (a); and

(2) a final report to those Committees 1 year after full operating capability of the complete system, comprised of all 4 systems required under subsection (a).

SEC. 3691. INSPECTIONS FOR TRANSPORTATION SECURITY.

(a) IN GENERAL.—Chapter 81 of part F of subtitle II of title 46, United States Code, is amended by adding at the end the following:

"§ 8109. Inspections for transportation security

''(a) IN GENERAL.—

''(1) INSPECTION.—The Secretary shall periodically, but not less than once annually, inspect each covered facility to verify that the owner or operator of the covered facility has a valid exemption under subsection (c) of section 30 of the Outer Continental Shelf Lands Act (43 U.S.C. 1356(c)).

''(2) COVERED FACILITY.—In this subsection, the term 'covered facility' means a vessel, rig, platform, or other vehicle or structure that, but for an exemption under subsection (c) of section 30 of the Outer Continental Shelf Lands Act (43 U.S.C. 1356(c)) would otherwise be subject to the regulations under subsection (a)(3) of such section.

''(b) TRANSPORTATION SECURITY CARD.—During an inspection under this section, the Secretary shall confirm that all crew members that are required to have a transportation worker identification credential pursuant to section 70105 have such a credential.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 81 of title 46, United States Code, is amended by adding at the end the following:

''8109. Inspections for transportation security.''.

SEC. 3692. RENEWAL OF MERCHANT MARINER LICENSES AND DOCUMENTS.

Section 7507 of title 46, United States Code, is amended by adding at the end the following:

''(d) RENEWAL.—With respect to any renewal of a valid merchant mariner credential issued under this part that is not an extension under subsection (a) or (b), the validity period of such credential shall begin the day after the expiration of the current credential.''.

SEC. 3693. REACTIVATION OF EXPIRED LICENSE.

(a) IN GENERAL.—Chapter 75 of subtitle II of part E, of title 46, United States Code, is amended by adding at the end the following:

"§ 7512. Authority for reactivation of United States Merchant Mariner credentials

''(a) LICENSES AND CERTIFICATES OF REGISTRY.—Notwithstanding sections 7106 and 7107, the Secretary of the department in which the Coast Guard is operating may renew for not more than 2 years an expired license or certificate of registry issued for an individual under chapter 71 if the Secretary determines that the renewal is in response to a national emergency declared by Congress or declared under section 201 of the National Emergencies Act (50 U.S.C. 1621), as deemed necessary by the Secretary.

''(b) MERCHANT MARINER DOCUMENTS.—Notwithstanding section 7302(g), the Secretary may renew for not more than 2 years an expiring merchant mariner's document issued for an individual under chapter 73 if the Secretary determines that the renewal is in response to a national emergency proclaimed by the President or declared by Congress, as deemed necessary by the Secretary.

''(c) MANNER OF RENEWAL.—Any renewal granted under this section may be granted to individual seamen or a specifically identified group of seamen.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 75 of title 46, United States Code, is amended by adding at the end the following:

"7512. Authority for reactivation of United States Merchant Mariner credentials.".

DIVISION D—FUNDING TABLES

SEC. 4001. AUTHORIZATION OF AMOUNTS IN FUNDING TABLES.

(a) IN GENERAL.—Whenever a funding table in this division specifies a dollar amount authorized for a project, program, or activity, the obligation and expenditure of the specified dollar amount for the project, program, or activity is hereby authorized, subject to the availability of appropriations.

(b) MERIT-BASED DECISIONS.—A decision to commit, obligate, or expend funds with or to a specific entity on the basis of a dollar amount authorized pursuant to subsection (a) shall—

(1) be based on merit-based selection procedures in accordance with the requirements of sections 3201 and 4024 of title 10, United States Code, or on competitive procedures; and

(2) comply with other applicable provisions of law.

(c) RELATIONSHIP TO TRANSFER AND PROGRAMMING AUTHORITY.—An amount specified in the funding

tables in this division may be transferred or reprogrammed under a transfer or reprogramming authority provided by another provision of this Act or by other law. The transfer or reprogramming of an amount specified in such funding tables shall not count against a ceiling on such transfers or reprogrammings under section 1001 of this Act or any other provision of law, unless such transfer or reprogramming would move funds between appropriation accounts.

(d) APPLICABILITY TO CLASSIFIED ANNEX.—This section applies to any classified annex that accompanies this Act.

(e) ORAL OR WRITTEN COMMUNICATIONS.—No oral or written communication concerning any amount specified in the funding tables in this division shall supersede the requirements of this section.

TITLE XLI—PROCUREMENT

SEC. 4101. PROCUREMENT.

SEC. 4101. PROCUREMENT
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
	AIRCRAFT PROCUREMENT, ARMY		
	FIXED WING		
003	SMALL UNMANNED AIRCRAFT SYSTEMS	291,472	306,472
	Fiber Optic Drone Procurement		[5,000]
	Program decrease		[–5,000]
	Solid Oxide Powered Long Range Reconnaissance Aircraft Procurement		[15,000]
004	UNMANNED AIRCRAFT SYSTEMS (UAS)	52,398	52,398
005	HADES PLATFORM, PAYLOADS/PED, AND INTEGRATION	227,569	227,569
	ROTARY		
007	AH–64 APACHE BLOCK IIIA REMAN	1,552	1,552
009	FUTURE VERTICAL LIFT FAMILY OF SYSTEMS AP	127,217	0
	Program realignment for operational test aircraft		[–127,217]
010	UH–60 BLACKHAWK M MODEL (MYP)	39,257	289,257
	6 additional aircraft		[250,000]
012	CH–47 HELICOPTER	210,645	591,645
	7 additional aircraft		[381,000]
	MODIFICATION OF AIRCRAFT		
015	MQ–1 PAYLOAD	53,190	53,190
016	GRAY EAGLE MODS2	2,556	2,556
017	AH–64 MODS	251,645	251,645

SEC. 4101. PROCUREMENT
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
018	SCALABLE CONTROL INTERFACE (SCI)	2,061	2,061
019	CH–47 CARGO HELICOPTER MODS (MYP)	108,408	108,408
020	UTILITY HELICOPTER MODS	120,013	125,013
	UH–72 Limited User Test for ARNG helicopters		[5,000]
021	NETWORK AND MISSION PLAN	29,235	29,235
022	COMMS, NAV SURVEILLANCE	14,384	14,384
024	AVIATION ASSURED PNT	55,055	55,055
	GROUND SUPPORT AVIONICS		
027	AIRCRAFT SURVIVABILITY EQUIPMENT	125,050	125,050
028	CMWS	21,511	21,511
029	COMMON INFRARED COUNTERMEASURES (CIRCM)	140,636	140,636
	OTHER SUPPORT		
030	COMMON GROUND EQUIPMENT	29,778	29,778
031	AIRCREW INTEGRATED SYSTEMS	15,229	15,229
032	AIR TRAFFIC CONTROL	11,044	11,044
033	LAUNCHER, 2.75 ROCKET	3,864	3,864
	TOTAL AIRCRAFT PROCUREMENT, ARMY	**1,933,769**	**2,457,552**
	MISSILE PROCUREMENT, ARMY		
	SURFACE-TO-AIR MISSILE SYSTEM		
001	LOWER TIER AIR AND MISSILE DEFENSE (AMD) SEN	2,036,358	2,036,358
002	TERMINAL HIGH ALTITUDE AREA DEFENSE (THAAD)	907,162	907,162
003	M-SHORAD—PROCUREMENT	712,690	712,690
004	MSE MISSILE	1,297,528	1,297,528
005	PRECISION STRIKE MISSILE (PRSM)	1,226,526	1,226,526
006	INDIRECT FIRE PROTECTION CAPABILITY INC 2–I	1,626,004	1,556,004
	Unjustified growth		[–70,000]
007	MID-RANGE CAPABILITY (MRC)	370,351	370,351
	AIR-TO-SURFACE MISSILE SYSTEM		
009	JOINT AIR-TO-GROUND MSLS (JAGM)	104,059	104,059
011	LONG-RANGE HYPERSONIC WEAPON	301,777	301,777
	ANTI-TANK/ASSAULT MISSILE SYS		
012	JAVELIN (AAWS-M) SYSTEM SUMMARY	417,031	417,031
014	GUIDED MLRS ROCKET (GMLRS)	1,014,937	1,014,937
015	GUIDED MLRS ROCKET (GMLRS) AP	49,106	49,106
016	MLRS REDUCED RANGE PRACTICE ROCKETS (RRPR)	7,412	7,412
017	HIGH MOBILITY ARTILLERY ROCKET SYSTEM (HIMARS	745,682	745,682
020	FAMILY OF LOW ALTITUDE UNMANNED SYSTEMS	139,191	139,191
	MODIFICATIONS		
021	PATRIOT MODS	796,837	796,837
022	STINGER MODS	10,786	10,786
023	AVENGER MODS	6,823	6,823
024	MLRS MODS	289,496	289,496
025	HIMARS MODIFICATIONS	54,363	54,363
	SPARES AND REPAIR PARTS		
026	SPARES AND REPAIR PARTS	6,698	6,698
	SUPPORT EQUIPMENT & FACILITIES		
027	AIR DEFENSE TARGETS	9,613	9,613
	TOTAL MISSILE PROCUREMENT, ARMY	**12,130,430**	**12,060,430**
	PROCUREMENT OF WEAPONS AND TRACKED COMBAT VEHICLES, ARMY		
	TRACKED COMBAT VEHICLES		
001	ARMORED MULTI PURPOSE VEHICLE (AMPV)	1,150,759	1,150,759
003	ASSAULT BREACHER VEHICLE (ABV)	17,807	17,807
005	XM30 MECHANIZED INFANTRY COMBAT VEHICLE (MICV	546,990	546,990
	MODIFICATION OF TRACKED COMBAT VEHICLES		
007	STRYKER UPGRADE	45,725	45,725
008	BRADLEY FIRE SUPPORT TEAM (BFIST) VEHICLE	4,863	4,863
009	BRADLEY PROGRAM (MOD)	161,979	161,979
010	M109 FOV MODIFICATIONS	74,070	74,070
011	PALADIN INTEGRATED MANAGEMENT (PIM)	84,193	260,193
	Program increase		[176,000]
012	IMPROVED RECOVERY VEHICLE (M88 HERCULES)	106,036	106,036
013	JOINT ASSAULT BRIDGE	163,354	163,354
014	ABRAMS UPGRADE PROGRAM	654,969	654,969
015	VEHICLE PROTECTION SYSTEMS (VPS)	16,134	16,134
	WEAPONS & OTHER COMBAT VEHICLES		
019	MORTAR SYSTEMS	3,575	13,575
	Modular Turreted Mortar System		[10,000]
020	LOCATION & AZIMUTH DETERMINATION SYSTEM (LADS	10,420	10,420
024	NEXT GENERATION SQUAD WEAPON	372,641	372,641
	MOD OF WEAPONS AND OTHER COMBAT VEH		
028	M777 MODS	1,569	1,569
030	M119 MODIFICATIONS	4,453	4,453
	SUPPORT EQUIPMENT & FACILITIES		
031	ITEMS LESS THAN $5.0M (WOCV-WTCV)	512	512
032	PRODUCTION BASE SUPPORT (WOCV-WTCV)	308,110	308,110

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Line	Item	FY 2027 Request	House Authorized
	TOTAL PROCUREMENT OF WEAPONS AND TRACKED COMBAT VEHICLES, ARMY.	**3,728,159**	**3,914,159**
	PROCUREMENT OF AMMUNITION, ARMY		
	SMALL/MEDIUM CAL AMMUNITION		
001	CTG, 5.56MM, ALL TYPES	114,418	134,418
	Program decrease		[–30,000]
	Program increase		[50,000]
002	CTG, 7.62MM, ALL TYPES	41,356	66,356
	Program decrease		[–15,000]
	Program increase		[40,000]
003	NEXT GENERATION SQUAD WEAPON AMMUNITION	536,695	556,695
	6.8mm		[20,000]
004	CTG, HANDGUN, ALL TYPES	6,719	6,719
005	CTG, .50 CAL, ALL TYPES	50,861	115,861
	Program increase		[65,000]
006	CTG, 20MM, ALL TYPES	9,427	9,427
007	CTG, 25MM, ALL TYPES	34,038	34,038
008	CTG, 30MM, ALL TYPES	164,116	164,116
009	CTG, 40MM, ALL TYPES	146,105	146,105
010	CTG, 50MM, ALL TYPES	58,221	58,221
	MORTAR AMMUNITION		
011	60MM MORTAR, ALL TYPES	67,727	67,727
012	81MM MORTAR, ALL TYPES	123,745	123,745
013	120MM MORTAR, ALL TYPES	192,826	192,826
	TANK AMMUNITION		
014	CARTRIDGES, TANK, 105MM AND 120MM, ALL TYPES	421,735	421,735
	ARTILLERY AMMUNITION		
015	ARTILLERY CARTRIDGES, 75MM & 105MM, ALL TYPES	48,841	48,841
016	ARTILLERY PROJECTILE, 155MM, ALL TYPES	120,703	120,703
018	ARTILLERY PROPELLANTS, FUZES AND PRIMERS, ALL	431,328	431,328
	MINES		
019	MINES & CLEARING CHARGES, ALL TYPES	47,012	47,012
021	MINE, AT, VOLCANO, ALL TYPES	4,026	4,026
	ROCKETS		
022	SHOULDER LAUNCHED MUNITIONS, ALL TYPES	50,235	50,235
023	ROCKET, HYDRA 70, ALL TYPES	92,772	92,772
	OTHER AMMUNITION		
024	CAD/PAD, ALL TYPES	11,615	11,615
025	DEMOLITION MUNITIONS, ALL TYPES	21,691	21,691
026	GRENADES, ALL TYPES	66,845	66,845
027	SIGNALS, ALL TYPES	44,927	44,927
028	SIMULATORS, ALL TYPES	11,508	11,508
	MISCELLANEOUS		
030	AMMO COMPONENTS, ALL TYPES	4,109	4,109
031	ITEMS LESS THAN $5 MILLION (AMMO)	16,290	16,290
032	AMMUNITION PECULIAR EQUIPMENT	14,007	14,007
033	FIRST DESTINATION TRANSPORTATION (AMMO)	18,712	18,712
034	CLOSEOUT LIABILITIES	101	101
	PRODUCTION BASE SUPPORT		
035	INDUSTRIAL FACILITIES	2,331,763	2,351,763
	6.8mm equipping support		[10,000]
	6.8mm facilities		[10,000]
036	CONVENTIONAL MUNITIONS DEMILITARIZATION	161,179	161,179
037	ARMS INITIATIVE	3,935	3,935
	TOTAL PROCUREMENT OF AMMUNITION, ARMY	**5,469,588**	**5,619,588**
	OTHER PROCUREMENT, ARMY		
	TACTICAL VEHICLES		
001	FAMILY OF SEMITRAILERS	129,602	129,602
003	GROUND MOBILITY VEHICLES (GMV)	526,796	526,796
004	ARNG HMMWV MODERNIZATION PROGRAM		100,000
	HMMWV ABS/ESC Rollover Mitigation		[100,000]
006	TRUCK, DUMP, 20T (CCE)	17,030	35,030
	M917A3 Heavy Dump Truck for the ARNG		[18,000]
007	FAMILY OF MEDIUM TACTICAL VEH (FMTV)	283,344	283,344
008	FAMILY OF COLD WEATHER ALL-TERRAIN VEHICLE (C	38,294	38,294
009	FIRETRUCKS & ASSOCIATED FIREFIGHTING EQUIP	40,203	40,203
010	FAMILY OF HEAVY TACTICAL VEHICLES (FHTV)	169,404	169,404
011	FAMILY OF COMMON TACTICAL TRUCKS	80,187	80,187
013	MODIFICATION OF IN SVC EQUIP	28,583	88,583
	Ground combat vehicle Organic Industrial Base		[60,000]
	NON-TACTICAL VEHICLES		
014	NONTACTICAL VEHICLES, OTHER	12,029	12,029
	COMM—JOINT COMMUNICATIONS		
016	C2 INFRASTRUCTURE	1,293,203	933,203
	Program decrease		[–360,000]
017	C2 TRANSPORT	1,581,863	1,121,863

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Line	Item	FY 2027 Request	House Authorized
	Program decrease		[–460,000]
018	JCSE EQUIPMENT (USRDECOM)	39	39
	COMM—SATELLITE COMMUNICATIONS		
021	DEFENSE ENTERPRISE WIDEBAND SATCOM SYSTEMS	73,959	73,959
022	ASSURED POSITIONING, NAVIGATION AND TIMING	243,303	243,303
	COMM—COMBAT COMMUNICATIONS		
025	HANDHELD MANPACK SMALL FORM FIT (HMS)	516,045	516,045
026	ARMY LINK 16 SYSTEMS	33,711	33,711
027	UNIFIED COMMAND SUITE	20,187	20,187
028	COTS COMMUNICATIONS EQUIPMENT	5,188	5,188
030	ARMY COMMUNICATIONS & ELECTRONICS	54,428	54,428
	COMM—INTELLIGENCE COMM		
031	CI AUTOMATION ARCHITECTURE-INTEL	16,382	16,382
032	MULTI-DOMAIN INTELLIGENCE	243,732	208,732
	Program decrease		[–35,000]
	INFORMATION SECURITY		
033	INFORMATION SYSTEM SECURITY PROGRAM-ISSP	853	853
034	COMMUNICATIONS SECURITY (COMSEC)	145,507	145,507
035	BIOMETRIC ENABLING CAPABILITY (BEC)	65	65
	COMM—BASE COMMUNICATIONS		
036	INFORMATION SYSTEMS	133,046	127,046
	Unjustified growth		[–6,000]
037	BASE EMERGENCY COMMUNICATION	50,644	50,644
038	INSTALLATION INFO INFRASTRUCTURE MOD PROGRAM	335,050	326,050
	Program decrease		[–9,000]
	ELECT EQUIP—TACT INT REL ACT (TIARA)		
042	TITAN	368,672	358,672
	Program decrease		[–10,000]
043	TERRESTRIAL LAYER SYSTEMS (TLS)	172,558	147,558
	Program decrease		[–25,000]
044	COLLECTION CAPABILITY	5,914	5,914
046	DCGS-A-INTEL	1,075	1,075
047	TROJAN	48,885	48,885
048	MOD OF IN-SVC EQUIP (INTEL SPT)	12,441	12,441
	ELECT EQUIP—ELECTRONIC WARFARE (EW)		
050	AIR VIGILANCE (AV)	106,497	106,497
052	ELECTRONIC WARFARE PLANNING & MGMT TOOLS (EWP	46,570	46,570
053	FAMILY OF PERSISTENT SURVEILLANCE CAP.	163	163
054	COUNTERINTELLIGENCE/SECURITY COUNTERMEASURES	8,427	8,427
	ELECT EQUIP—TACTICAL SURV. (TAC SURV)		
056	SENTINEL MODS	485,840	485,840
059	BASE EXPEDITIARY TARGETING AND SURV SYS	1,818	1,818
060	INDIRECT FIRE PROTECTION FAMILY OF SYSTEMS	18,000	18,000
061	FAMILY OF WEAPON SIGHTS (FWS)	15,340	15,340
062	ENHANCED PORTABLE INDUCTIVE ARTILLERY FUZE SE	13,228	13,228
063	SURVEILLANCE SYSTEMS	9,848	9,848
064	FORWARD LOOKING INFRARED (IFLIR)	84,134	84,134
065	COUNTER SMALL UNMANNED AERIAL SYSTEM (C-SUAS)	994,127	1,009,127
	Non-kinetic c-UAS swarm solutions		[15,000]
067	JOINT EFFECTS TARGETING SYSTEM (JETS)	7,663	7,663
068	COMPUTER BALLISTICS: LHMBC XM32	6,382	6,382
069	MORTAR FIRE CONTROL SYSTEM	2,391	2,391
070	MORTAR FIRE CONTROL SYSTEMS MODIFICATIONS	7,139	7,139
071	COUNTERFIRE RADARS	196,522	176,522
	Program decrease		[–10,000]
	Unjustified growth		[–10,000]
072	ADVANCED SITUATIONAL AWARENESS SYSTEMS	397,286	397,286
	ELECT EQUIP—TACTICAL C2 SYSTEMS		
074	FIRE SUPPORT C2 FAMILY	3,559	3,559
075	AIR & MSL DEFENSE PLANNING & CONTROL SYS	61,127	61,127
076	IAMD BATTLE COMMAND SYSTEM	1,052,868	982,868
	Unjustified growth		[–70,000]
077	AIAMD FAMILY OF SYSTEMS (FOS) COMPONENTS	16,446	16,446
078	LIFE CYCLE SOFTWARE SUPPORT (LCSS)	5,265	5,265
082	MOD OF IN-SVC EQUIPMENT (ENFIRE)	16,673	16,673
	ELECT EQUIP—AUTOMATION		
083	ARMY TRAINING MODERNIZATION	4,303	4,303
084	AUTOMATED DATA PROCESSING EQUIP	99,039	99,039
086	HIGH PERF COMPUTING MOD PGM (HPCMP)	75,004	75,004
	CLASSIFIED PROGRAMS		
087A	CLASSIFIED PROGRAMS	1,577	1,577
	CHEMICAL DEFENSIVE EQUIPMENT		
088	BASE DEFENSE SYSTEMS (BDS)	143	143
089	CBRN DEFENSE	65,020	65,020
	BRIDGING EQUIPMENT		
090	TACTICAL BRIDGE, FLOAT-RIBBON	35,806	35,806
	ENGINEER (NON-CONSTRUCTION) EQUIPMENT		
092	ROBOTICS AND APPLIQUE SYSTEMS	84,303	69,303

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Line	Item	FY 2027 Request	House Authorized
	Program decrease		[–15,000]
093	RENDER SAFE SETS KITS OUTFITS	12,461	12,461
094	FAMILY OF BOATS AND MOTORS	8,028	8,028
	COMBAT SERVICE SUPPORT EQUIPMENT		
095	HEATERS AND ECU'S	15,021	15,021
097	GROUND SOLDIER SYSTEM	193,491	193,491
101	CARGO AERIAL DEL & PERSONNEL PARACHUTE SYSTEM	39,505	39,505
103	ITEMS LESS THAN $5M (ENG SPT)	4,129	4,129
	PETROLEUM EQUIPMENT		
104	DISTRIBUTION SYSTEMS, PETROLEUM & WATER	133,881	133,881
	MEDICAL EQUIPMENT		
105	COMBAT SUPPORT MEDICAL	93,705	103,705
	Modernization of field deployed mobile X-rays		[10,000]
	MAINTENANCE EQUIPMENT		
106	MOBILE MAINTENANCE EQUIPMENT SYSTEMS	58,997	58,997
	CONSTRUCTION EQUIPMENT		
107	CONSTRUCTION EQUIPMENT	72,582	72,582
	RAIL FLOAT CONTAINERIZATION EQUIPMENT		
108	ARMY WATERCRAFT ESP	75,717	75,717
109	MANEUVER SUPPORT VESSEL (MSV)	104,705	166,705
	Army Autonomous Resupply Vessel		[62,000]
110	ITEMS LESS THAN $5.0M (FLOAT/RAIL)	22,021	22,021
	GENERATORS		
111	GENERATORS AND ASSOCIATED EQUIP	79,456	79,456
	MATERIAL HANDLING EQUIPMENT		
112	FAMILY OF FORKLIFTS	6,238	6,238
	TRAINING EQUIPMENT		
113	COMBAT TRAINING CENTERS SUPPORT	141,848	141,848
114	TRAINING DEVICES, NONSYSTEM	140,860	140,860
115	SYNTHETIC TRAINING ENVIRONMENT (STE)	115,535	115,535
116	GAMING TECHNOLOGY IN SUPPORT OF ARMY TRAINING	4,180	4,180
	TEST MEASURE AND DIG EQUIPMENT (TMD)		
117	INTEGRATED FAMILY OF TEST EQUIPMENT (IFTE)	18,570	18,570
118	TEST EQUIPMENT MODERNIZATION (TEMOD)	53,597	53,597
	OTHER SUPPORT EQUIPMENT		
119	PHYSICAL SECURITY SYSTEMS (OPA3)	137,271	137,271
120	BASE LEVEL COMMON EQUIPMENT	19,889	19,889
121	MODIFICATION OF IN-SVC EQUIPMENT (OPA–3)	41,358	41,358
122	PRODUCTION BASE SUPPORT (OTH)	362,356	362,356
123	BUILDING, PRE-FAB, RELOCATABLE	10,878	10,878
124	SPECIAL EQUIPMENT FOR TEST AND EVALUATION	88,721	88,721
	OPA2		
126	INITIAL SPARES—C&E	7,323	7,323
	TOTAL OTHER PROCUREMENT, ARMY	**12,667,053**	**11,922,053**
	AIRCRAFT PROCUREMENT, NAVY		
	COMBAT AIRCRAFT		
001	F/A–18E/F (FIGHTER) HORNET	49,088	49,088
002	JOINT STRIKE FIGHTER CV	995,707	995,707
003	JOINT STRIKE FIGHTER CV AP	651,081	651,081
004	JSF STOVL	62,363	62,363
005	JSF STOVL AP	77,963	77,963
006	CH–53K (HEAVY LIFT)	3,044,450	3,044,450
007	CH–53K (HEAVY LIFT) AP	429,295	429,295
009	H–1 UPGRADES (UH–1Y/AH–1Z)	5,974	5,974
010	P–8A POSEIDON	4,227,350	4,227,350
011	E–2D ADV HAWKEYE	2,075,025	1,725,025
	E–2D Multi-Year Procurement Cost Savings		[–350,000]
012	E–2D ADV HAWKEYE AP	550,000	495,000
	Excess to need		[–55,000]
	OTHER AIRCRAFT		
015	KC–130J	1,601,906	1,601,906
016	MQ–4 TRITON	104,326	104,326
017	MQ–25	771,177	771,177
018	MQ–25 AP	80,965	80,965
019	MARINE GROUP 5 UAS	118,600	118,600
020	OTHER SUPPORT AIRCRAFT	204,476	204,476
	MODIFICATION OF AIRCRAFT		
021	F–18 A-D UNIQUE	36,951	36,951
022	F–18E/F AND EA–18G MODERNIZATION AND SUSTAINM	563,832	563,832
023	MARINE GROUP 5 UAS SERIES	179,603	179,603
024	AEA SYSTEMS	37,125	37,125
026	INFRARED SEARCH AND TRACK (IRST)	171,345	171,345
027	ADVERSARY	24,732	24,732
028	F–18 SERIES	858,716	858,716
029	H–53 SERIES	91,903	91,903
030	MH–60 SERIES	236,555	236,555
031	H–1 SERIES	304,267	304,267

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Line	Item	FY 2027 Request	House Authorized
032	E–2 SERIES	96,428	96,428
033	TRAINER A/C SERIES	12,359	12,359
034	C–130 SERIES	185,266	185,266
036	CARGO/TRANSPORT A/C SERIES	20,100	20,100
037	E–6 SERIES	270,832	270,832
038	EXECUTIVE HELICOPTERS SERIES	57,319	57,319
039	T–45 SERIES	191,139	191,139
040	POWER PLANT CHANGES	23,765	23,765
041	JPATS SERIES	28,059	28,059
043	COMMON ECM EQUIPMENT	365,990	365,990
044	COMMON AVIONICS CHANGES	246,728	222,056
	Program decrease		[–24,672]
045	COMMON DEFENSIVE WEAPON SYSTEM	11,028	11,028
046	ID SYSTEMS	3,199	3,199
047	P–8 SERIES	381,014	381,014
048	MAGTF EW FOR AVIATION	20,686	20,686
049	V–22 (TILT/ROTOR ACFT) OSPREY	641,715	641,715
050	NEXT GENERATION JAMMER (NGJ)	458,658	458,658
051	F–35 STOVL SERIES	428,881	428,881
052	F–35 CV SERIES	135,612	135,612
053	QRC	27,686	27,686
054	MQ–4 SERIES	157,849	157,849
	AIRCRAFT SPARES AND REPAIR PARTS		
058	SPARES AND REPAIR PARTS	4,511,417	4,811,417
	F–35B Spare Parts		[150,000]
	F–35C Spare Parts		[150,000]
	AIRCRAFT SUPPORT EQUIP & FACILITIES		
059	COMMON GROUND EQUIPMENT	666,140	632,833
	Program decrease		[–33,307]
060	AIRCRAFT INDUSTRIAL FACILITIES	113,513	113,513
061	WAR CONSUMABLES	56,577	56,577
062	OTHER PRODUCTION CHARGES	61,970	61,970
063	SPECIAL SUPPORT EQUIPMENT	218,318	207,903
	Program decrease		[–10,415]
	TOTAL AIRCRAFT PROCUREMENT, NAVY	**26,947,023**	**26,773,629**
	WEAPONS PROCUREMENT, NAVY		
	BALLISTIC MISSILES		
001	CONVENTIONAL PROMPT STRIKE	750,387	750,387
	MODIFICATION OF MISSILES		
002	TRIDENT II MODS	3,912,267	3,912,267
	STRATEGIC MISSILES		
004	TOMAHAWK	1,015,106	1,015,106
	TACTICAL MISSILES		
005	AMRAAM	167,439	167,439
006	SIDEWINDER	174,750	174,750
007	JOINT ADVANCE TACTICAL MISSILE (JATM)	557,806	557,806
008	STANDARD MISSILE	733,159	733,159
010	SMALL DIAMETER BOMB II	166,688	166,688
011	RAM	119,166	119,166
012	MSE MISSILE	97,835	97,835
013	JOINT AIR GROUND MISSILE (JAGM)	73,226	73,226
015	AERIAL TARGETS	179,931	179,931
016	OTHER MISSILE SUPPORT	3,877	3,877
017	LRASM	670,456	606,456
	Transfer to RDN–95		[–64,000]
018	NAVAL STRIKE MISSILE (NSM)	75,972	75,972
019	NAVAL STRIKE MISSILE (NSM) AP	2,103	2,103
021	PRECISION ATTACK STRIKE MUNITION (PASM)	4,019	4,019
	MODIFICATION OF MISSILES		
022	TOMAHAWK MODS	799,139	799,139
023	ESSM	521,006	521,006
024	AARGM-ER	20	20
025	AARGM-ER AP	5,210	5,210
026	STANDARD MISSILES MODS	69,579	69,579
	SUPPORT EQUIPMENT & FACILITIES		
027	WEAPONS INDUSTRIAL FACILITIES	62,403	62,403
028	INDUSTRIAL PREPAREDNESS	640	640
	ORDNANCE SUPPORT EQUIPMENT		
029	ORDNANCE SUPPORT EQUIPMENT	43,261	43,261
	TORPEDOES AND RELATED EQUIP		
030	SSTD	3,969	3,969
031	MK–48 TORPEDO	571,274	571,274
032	ASW TARGETS	47,277	47,277
	MOD OF TORPEDOES AND RELATED EQUIP		
033	MK–54 TORPEDO MODS	112,126	112,126
034	MK–48 TORPEDO ADCAP MODS	67,279	67,279
035	MARITIME MINES	251,724	251,724

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Line	Item	FY 2027 Request	House Authorized
	SUPPORT EQUIPMENT		
036	TORPEDO SUPPORT EQUIPMENT	160,445	160,445
037	ASW RANGE SUPPORT	4,438	4,438
	DESTINATION TRANSPORTATION		
038	FIRST DESTINATION TRANSPORTATION	6,011	6,011
	GUNS AND GUN MOUNTS		
039	SMALL ARMS AND WEAPONS	13,946	13,946
	MODIFICATION OF GUNS AND GUN MOUNTS		
040	CIWS MODS	7,939	7,939
041	COAST GUARD WEAPONS	49,537	49,537
042	GUN MOUNT MODS	84,004	84,004
043	LCS MODULE WEAPONS	2,190	2,190
044	AIRBORNE MINE NEUTRALIZATION SYSTEMS	14,265	14,265
	SPARES AND REPAIR PARTS		
046	SPARES AND REPAIR PARTS	167,242	167,242
	TOTAL WEAPONS PROCUREMENT, NAVY	**11,769,111**	**11,705,111**
	PROCUREMENT OF AMMUNITION, NAVY AND MARINE CORPS		
	NAVY AMMUNITION		
001	GENERAL PURPOSE BOMBS	45,607	45,607
002	JDAM	96,935	96,935
003	AIRBORNE ROCKETS, ALL TYPES	92,145	92,145
004	MACHINE GUN AMMUNITION	14,832	14,832
005	PRACTICE BOMBS	46,782	46,782
006	CARTRIDGES & CART ACTUATED DEVICES	63,064	63,064
007	AIR EXPENDABLE COUNTERMEASURES	121,059	121,059
008	JATOS	8,179	8,179
009	5 INCH/54 GUN AMMUNITION	44,136	44,136
010	INTERMEDIATE CALIBER GUN AMMUNITION	40,095	40,095
011	OTHER SHIP GUN AMMUNITION	43,106	43,106
012	SMALL ARMS & LANDING PARTY AMMO	48,801	48,801
013	PYROTECHNIC AND DEMOLITION	9,510	9,510
015	AMMUNITION LESS THAN $5 MILLION	1,692	1,692
016	EXPEDITIONARY LOITERING MUNITIONS	165,662	165,662
	MARINE CORPS AMMUNITION		
017	MORTARS	181,464	181,464
018	DIRECT SUPPORT MUNITIONS	29,715	29,715
019	INFANTRY WEAPONS AMMUNITION	142,179	142,179
020	COMBAT SUPPORT MUNITIONS	12,510	12,510
021	AMMO MODERNIZATION	19,009	19,009
022	ARTILLERY MUNITIONS	723,278	713,278
	Unjustified growth		[–10,000]
023	ITEMS LESS THAN $5 MILLION	8,837	8,837
	TOTAL PROCUREMENT OF AMMUNITION, NAVY AND MARINE CORPS.	**1,958,597**	**1,948,597**
	SHIPBUILDING AND CONVERSION, NAVY		
	FLEET BALLISTIC MISSILE SHIPS		
001	COLUMBIA CLASS SUBMARINE	10,233,832	10,233,832
002	COLUMBIA CLASS SUBMARINE AP	4,763,342	4,888,342
	Additive manufacturing planning for submarine industrial base resilience		[45,000]
	Scaling of Low-Cost Titanum Manufacturing for Submarine Construction		[10,000]
	Submarine Workforce Pipeline		[70,000]
	OTHER WARSHIPS		
003	CARRIER REPLACEMENT PROGRAM	641,907	641,907
004	CARRIER REPLACEMENT PROGRAM AP	1,940,566	1,940,566
005	CVN–81	1,447,882	1,447,882
006	VIRGINIA CLASS SUBMARINE	8,402,316	8,402,316
007	VIRGINIA CLASS SUBMARINE AP	4,143,618	4,143,618
009	BBG(X) AP	1,000,000	1,000,000
010	CVN REFUELING OVERHAULS	4,418,902	4,418,902
011	CVN REFUELING OVERHAULS AP	53,070	53,070
012	DDG 1000	66,516	66,516
013	DDG–51	2,954,238	3,954,238
	Incremental funding for an additional DDG–51		[1,000,000]
017	FF(X)	1,429,000	1,429,000
	AMPHIBIOUS SHIPS		
018	LPD FLIGHT II	2,188,700	2,188,700
019	LPD FLIGHT II AP	355,950	355,950
021	LHA REPLACEMENT	3,850,319	3,850,319
	AUXILIARIES, CRAFT AND PRIOR YR PROGRAM COST		
026	AS SUBMARINE TENDER	4,444,000	3,564,000
	Program decrease		[–380,000]
	Reduction for incremental funding of submarine tender contract		[–500,000]
028	TAO FLEET OILER	1,946,063	1,946,063
031	TAGOS SURTASS SHIPS	610,664	580,664
	Program decrease		[–30,000]
035	STRATEGIC SEALIFT	450,000	450,000

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Line	Item	FY 2027 Request	House Authorized
036	OUTFITTING	741,270	741,270
037	SHIP TO SHORE CONNECTOR	733,895	733,895
038	SERVICE CRAFT	177,079	259,079
	Additional Yard, Repair, Berthing and Messing Barges		[82,000]
039	AUXILIARY PERSONNEL LIGHTER	83,000	83,000
040	BULK FUEL VESSEL	450,000	450,000
043	LCAC SLEP	37,998	37,998
045	COMPLETION OF PY SHIPBUILDING PROGRAMS	2,611,990	2,599,990
	Program decrease		[–12,000]
	TOTAL SHIPBUILDING AND CONVERSION, NAVY	**60,176,117**	**60,461,117**
	OTHER PROCUREMENT, NAVY		
	SHIP PROPULSION EQUIPMENT		
001	SURFACE POWER EQUIPMENT	22,668	22,668
	GENERATORS		
002	SURFACE COMBATANT HM&E	103,871	103,871
	NAVIGATION EQUIPMENT		
003	OTHER NAVIGATION EQUIPMENT	83,510	83,510
	OTHER SHIPBOARD EQUIPMENT		
004	SUB PERISCOPE, IMAGING AND SUPT EQUIP PROG	344,885	344,885
005	DDG MOD	1,000,278	1,000,278
006	FIREFIGHTING EQUIPMENT	177,708	177,708
007	COMMAND AND CONTROL SWITCHBOARD	2,259	2,259
008	LHA/LHD MIDLIFE	131,315	131,315
009	LCC 19/20 EXTENDED SERVICE LIFE PROGRAM	766	766
010	POLLUTION CONTROL EQUIPMENT	22,506	22,506
011	SUBMARINE SUPPORT EQUIPMENT	330,951	330,951
012	VIRGINIA CLASS SUPPORT EQUIPMENT	83,297	83,297
013	LCS CLASS SUPPORT EQUIPMENT	15,815	15,815
014	SUBMARINE BATTERIES	26,211	26,211
015	LPD CLASS SUPPORT EQUIPMENT	213,723	213,723
016	DDG 1000 CLASS SUPPORT EQUIPMENT	58,284	58,284
017	STRATEGIC PLATFORM SUPPORT EQUIP	72,163	72,163
018	DSSP EQUIPMENT	7,440	7,440
019	SMALL UNMANNED SURFACE VEHICLES	585	585
020	LCAC	22,515	22,515
021	UNDERWATER EOD EQUIPMENT	20,575	20,575
022	ITEMS LESS THAN $5 MILLION	69,425	69,425
023	CHEMICAL WARFARE DETECTORS	2,425	2,425
	REACTOR PLANT EQUIPMENT		
024	SHIP MAINTENANCE, REPAIR AND MODERNIZATION	2,737,140	2,737,140
025	REACTOR COMPONENTS	519,821	519,821
	OCEAN ENGINEERING		
026	DIVING AND SALVAGE EQUIPMENT	33,013	33,013
	SMALL BOATS		
027	MEDIUM UNMANNED SURFACE VEHICLE (MUSVS)	121,130	121,130
028	STANDARD BOATS	97,746	152,746
	Additional 40ft Patrol Boats		[55,000]
	PRODUCTION FACILITIES EQUIPMENT		
029	OPERATING FORCES IPE	492,100	492,100
	OTHER SHIP SUPPORT		
030	LCS COMMON MISSION MODULES EQUIPMENT	30,565	30,565
031	LCS MCM MISSION MODULES	65,113	65,113
032	LCS SUW MISSION MODULES	1,719	1,719
033	LCS IN-SERVICE MODERNIZATION	315,272	125,272
	Insufficient justification		[–35,000]
	Program decrease		[–155,000]
034	SMALL & MEDIUM UUV	110,955	110,955
035	LARGE UUV	222,998	256,998
	Procurement of dual modality large displacement unmanned undersea vehicles		[34,000]
036	EXTRA LARGE UUV	135,802	135,802
	LOGISTIC SUPPORT		
037	LSD MIDLIFE & MODERNIZATION	240	240
	SHIP SONARS		
039	AN/SQQ–89 SURF ASW COMBAT SYSTEM	142,355	142,355
040	SSN ACOUSTIC EQUIPMENT	454,161	454,161
	ASW ELECTRONIC EQUIPMENT		
042	SUBMARINE ACOUSTIC WARFARE SYSTEM	68,881	68,881
043	SSTD	14,857	14,857
044	FIXED SURVEILLANCE SYSTEM	490,548	490,548
045	SURTASS	72,190	72,190
	ELECTRONIC WARFARE EQUIPMENT		
046	AN/SLQ–32	653,483	653,483
	RECONNAISSANCE EQUIPMENT		
047	SHIPBOARD IW EXPLOIT	701,667	701,667
048	MARITIME BATTLESPACE AWARENESS	8,652	8,652
	OTHER SHIP ELECTRONIC EQUIPMENT		
049	COOPERATIVE ENGAGEMENT CAPABILITY	33,932	33,932

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Line	Item	FY 2027 Request	House Authorized
050	NAVAL TACTICAL COMMAND SUPPORT SYSTEM (NTCSS)	10,108	10,108
051	ATDLS	52,758	52,758
052	NAVY COMMAND AND CONTROL SYSTEM (NCCS)	16,167	16,167
053	MINESWEEPING SYSTEM REPLACEMENT	14,879	14,879
054	NAVSTAR GPS RECEIVERS (SPACE)	43,097	43,097
055	AMERICAN FORCES RADIO AND TV SERVICE	289	289
	AVIATION ELECTRONIC EQUIPMENT		
056	ASHORE ATC EQUIPMENT	83,057	83,057
057	AFLOAT ATC EQUIPMENT	62,581	62,581
058	ID SYSTEMS	35,620	35,620
059	JOINT PRECISION APPROACH AND LANDING SYSTEM (	2,976	2,976
060	NAVAL MISSION PLANNING SYSTEMS	54,487	54,487
	OTHER SHORE ELECTRONIC EQUIPMENT		
062	TACTICAL/MOBILE C4I SYSTEMS	48,262	48,262
063	INTELLIGENCE SURVEILLANCE AND RECONNAISSANCE (ISR)	11,824	11,824
064	CANES	493,046	486,046
	Program decrease		[–7,000]
065	RADIAC	38,000	38,000
066	CANES-INTELL	43,028	43,028
067	GPETE	31,462	31,462
068	MASF	5,822	5,822
069	INTEG COMBAT SYSTEM TEST FACILITY	6,454	6,454
070	EMI CONTROL INSTRUMENTATION	3,435	3,435
071	IN-SERVICE RADARS AND SENSORS	338,946	338,946
	SHIPBOARD COMMUNICATIONS		
072	BATTLE FORCE TACTICAL NETWORK	125,661	125,661
073	SHIPBOARD TACTICAL COMMUNICATIONS	50,350	50,350
074	SHIP COMMUNICATIONS AUTOMATION	156,605	156,605
075	COMMUNICATIONS ITEMS UNDER $5M	15,097	15,097
	SUBMARINE COMMUNICATIONS		
076	SUBMARINE BROADCAST SUPPORT	173,069	173,069
077	SUBMARINE COMMUNICATION EQUIPMENT	88,071	88,071
	SATELLITE COMMUNICATIONS		
078	SATELLITE COMMUNICATIONS SYSTEMS	57,961	57,961
079	NAVY MULTIBAND TERMINAL (NMT)	57,768	57,768
080	MOBILE ADVANCED EHF TERMINAL (MAT)	202,305	202,305
	CRYPTOGRAPHIC EQUIPMENT		
082	INFO SYSTEMS SECURITY PROGRAM (ISSP)	349,099	349,099
083	MIO INTEL EXPLOITATION TEAM	1,063	1,063
	CRYPTOLOGIC EQUIPMENT		
084	CRYPTOLOGIC COMMUNICATIONS EQUIP	7,419	7,419
	OTHER ELECTRONIC SUPPORT		
091	COAST GUARD EQUIPMENT	67,106	67,106
	DRUG INTERDICTION SUPPORT		
092	OTHER DRUG INTERDICTION SUPPORT	57,568	57,568
	SONOBUOYS		
093	SONOBUOYS—ALL TYPES	300,151	550,151
	Additional Procurement of Sonobuoys		[250,000]
	AIRCRAFT SUPPORT EQUIPMENT		
094	MINOTAUR	4,831	4,831
095	WEAPONS RANGE SUPPORT EQUIPMENT	119,900	119,900
096	AIRCRAFT SUPPORT EQUIPMENT	69,065	69,065
097	ADVANCED ARRESTING GEAR (AAG)	23,551	23,551
098	ELECTROMAGNETIC AIRCRAFT LAUNCH SYSTEM (EMALS	36,908	36,908
099	METEOROLOGICAL EQUIPMENT	7,477	7,477
100	AIRBORNE MCM	9,507	9,507
101	AVIATION SUPPORT EQUIPMENT	116,873	116,873
102	UMCS-UNMAN CARRIER AVIATION(UCA)MISSION CNTRL	211,216	211,216
	SHIP GUN SYSTEM EQUIPMENT		
103	SHIP GUN SYSTEMS EQUIPMENT	6,962	6,962
	SHIP MISSILE SYSTEMS EQUIPMENT		
104	HARPOON SUPPORT EQUIPMENT	195	195
105	SHIP MISSILE SUPPORT EQUIPMENT	431,069	416,069
	Insufficient justification		[–15,000]
106	TOMAHAWK SUPPORT EQUIPMENT	116,208	116,208
	FBM SUPPORT EQUIPMENT		
107	CPS SUPPORT EQUIPMENT	188,430	188,430
108	STRATEGIC MISSILE SYSTEMS EQUIP	327,941	327,941
	ASW SUPPORT EQUIPMENT		
109	SSN COMBAT CONTROL SYSTEMS	165,416	165,416
110	ASW SUPPORT EQUIPMENT	25,105	25,105
	OTHER ORDNANCE SUPPORT EQUIPMENT		
111	EXPLOSIVE ORDNANCE DISPOSAL EQUIP	48,252	48,252
113	ITEMS LESS THAN $5 MILLION	2,592	2,592
	OTHER EXPENDABLE ORDNANCE		
114	ANTI-SHIP MISSILE DECOY SYSTEM	606,241	606,241
115	SUBMARINE TRAINING DEVICE MODS	73,681	73,681
116	SURFACE TRAINING EQUIPMENT	218,181	218,181

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Line	Item	FY 2027 Request	House Authorized
	CIVIL ENGINEERING SUPPORT EQUIPMENT		
117	PASSENGER CARRYING VEHICLES	3,567	3,567
118	GENERAL PURPOSE TRUCKS	4,801	4,801
120	CONSTRUCTION & MAINTENANCE EQUIP	91,269	91,269
121	FIRE FIGHTING EQUIPMENT	17,107	17,107
122	TACTICAL VEHICLES	46,796	46,796
123	AMPHIBIOUS EQUIPMENT	53,916	53,916
124	POLLUTION CONTROL EQUIPMENT	3,586	3,586
125	ITEMS LESS THAN $5 MILLION	131,449	131,449
126	PHYSICAL SECURITY VEHICLES	998	998
	SUPPLY SUPPORT EQUIPMENT		
127	SUPPLY EQUIPMENT	67,828	67,828
128	FIRST DESTINATION TRANSPORTATION	4,732	4,732
129	SPECIAL PURPOSE SUPPLY SYSTEMS	323,644	323,644
	TRAINING DEVICES		
130	TRAINING SUPPORT EQUIPMENT	10,608	10,608
131	TRAINING AND EDUCATION EQUIPMENT	331,016	331,016
	COMMAND SUPPORT EQUIPMENT		
132	COMMAND SUPPORT EQUIPMENT	55,202	55,202
133	MEDICAL SUPPORT EQUIPMENT	54,862	54,862
135	NAVAL MIP SUPPORT EQUIPMENT	5,213	5,213
136	OPERATING FORCES SUPPORT EQUIPMENT	15,107	15,107
137	C4ISR EQUIPMENT	33,975	33,975
138	ENVIRONMENTAL SUPPORT EQUIPMENT	60,467	60,467
139	PHYSICAL SECURITY EQUIPMENT	218,037	191,037
	Insufficient justification		[–27,000]
140	ENTERPRISE INFORMATION TECHNOLOGY	40,490	40,490
	OTHER		
142	NEXT GENERATION ENTERPRISE SERVICE	223,647	216,647
	Unjustified growth		[–7,000]
143	CYBERSPACE ACTIVITIES	7,131	7,131
	CLASSIFIED PROGRAMS		
143A	CLASSIFIED PROGRAMS	42,813	42,813
	SPARES AND REPAIR PARTS		
144	SPARES AND REPAIR PARTS	765,711	765,711
	TOTAL OTHER PROCUREMENT, NAVY	**18,866,679**	**18,959,679**
	PROCUREMENT, MARINE CORPS		
	TRACKED COMBAT VEHICLES		
002	AMPHIBIOUS COMBAT VEHICLE FAMILY OF VEHICLES	237,336	237,336
003	LAV PIP	68,825	68,825
	ARTILLERY AND OTHER WEAPONS		
004	155MM LIGHTWEIGHT TOWED HOWITZER	5,709	5,709
005	ARTILLERY WEAPONS SYSTEM	341,085	341,085
006	WEAPONS AND COMBAT VEHICLES UNDER $5 MILLION	50,299	50,299
	GUIDED MISSILES		
008	NAVAL STRIKE MISSILE (NSM)	204,639	204,639
009	NAVAL STRIKE MISSILE (NSM) AP	14,391	14,391
010	GROUND BASED AIR DEFENSE	1,274,446	1,254,446
	Unjustified growth		[–20,000]
011	ANTI-ARMOR MISSILE-JAVELIN	63,020	63,020
012	FAMILY ANTI-ARMOR WEAPON SYSTEMS (FOAAWS)	808	808
013	ANTI-ARMOR MISSILE-TOW	1,265	1,265
014	GUIDED MLRS ROCKET (GMLRS)	61,355	61,355
	REPAIR AND TEST EQUIPMENT		
016	REPAIR AND TEST EQUIPMENT	65,665	65,665
	OTHER SUPPORT (TEL)		
017	MODIFICATION KITS	1,047	1,047
	COMMAND AND CONTROL SYSTEM (NON-TEL)		
018	ITEMS UNDER $5 MILLION (COMM & ELEC)	140,929	140,929
	RADAR + EQUIPMENT (NON-TEL)		
020	GROUND/AIR TASK ORIENTED RADAR (G/ATOR)	55,622	60,622
	Program increase		[5,000]
	INTELL/COMM EQUIPMENT (NON-TEL)		
021	ELECTRO MAGNETIC SPECTRUM OPERATIONS (EMSO)	79,269	79,269
022	GCSS-MC	3,435	3,435
023	FIRE SUPPORT SYSTEM	136,070	146,070
	Fiber Optic Drone Procurement		[10,000]
024	INTELLIGENCE SUPPORT EQUIPMENT	395,854	395,854
026	UNMANNED AIR SYSTEMS (INTEL)	262,815	262,815
028	UAS PAYLOADS	14,834	14,834
	OTHER SUPPORT (NON-TEL)		
029	MARINE CORPS ENTERPRISE NETWORK (MCEN)	190,282	190,282
030	COMMON COMPUTER RESOURCES	15,950	15,950
031	COMMAND POST SYSTEMS	442,308	442,308
032	RADIO SYSTEMS	764,001	764,001
034	COMM & ELEC INFRASTRUCTURE SUPPORT	37,640	37,640
035	CYBERSPACE ACTIVITIES	19,854	19,854

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Line	Item	FY 2027 Request	House Authorized
036	UNMANNED EXPEDITIONARY SYSTEMS	1,001	1,001
	CLASSIFIED PROGRAMS		
039A	CLASSIFIED PROGRAMS	2,029	2,029
	ADMINISTRATIVE VEHICLES		
040	COMMERCIAL CARGO VEHICLES	27,582	27,582
	TACTICAL VEHICLES		
041	MOTOR TRANSPORT MODIFICATIONS	22,460	22,460
042	JOINT LIGHT TACTICAL VEHICLE	244,941	244,941
043	TRAILERS	136,438	136,438
	ENGINEER AND OTHER EQUIPMENT		
044	TACTICAL FUEL SYSTEMS	112,197	112,197
045	POWER EQUIPMENT ASSORTED	34,219	34,219
046	AMPHIBIOUS SUPPORT EQUIPMENT	29,042	29,042
047	EOD SYSTEMS	24,297	24,297
	MATERIALS HANDLING EQUIPMENT		
048	PHYSICAL SECURITY EQUIPMENT	151,740	151,740
	GENERAL PROPERTY		
049	FIELD MEDICAL EQUIPMENT	227,761	227,761
050	TRAINING DEVICES	136,639	136,639
051	FAMILY OF CONSTRUCTION EQUIPMENT	115,681	115,681
052	ULTRA-LIGHT TACTICAL VEHICLE (ULTV)	972	972
	OTHER SUPPORT		
053	ITEMS LESS THAN $5 MILLION	54,228	54,228
	SPARES AND REPAIR PARTS		
054	SPARES AND REPAIR PARTS	18,925	18,925
	TOTAL PROCUREMENT, MARINE CORPS	**6,288,905**	**6,283,905**
	AIRCRAFT PROCUREMENT, AIR FORCE		
	STRATEGIC OFFENSIVE		
001	B–21 RAIDER	2,230,615	2,230,615
002	B–21 RAIDER AP	1,005,667	1,005,667
	TACTICAL FORCES		
003	F–35	2,393,723	2,393,723
004	F–35 AP	738,103	738,103
005	COLLABORATIVE COMBAT AIRCRAFT	996,528	996,528
006	COLLABORATIVE COMBAT AIRCRAFT AP	150,500	150,500
007	F–15EX	2,656,716	2,656,716
009	JOINT SIMULATION ENVIRONMENT	52,695	52,695
	TACTICAL AIRLIFT		
010	KC–46A MDAP	3,520,530	3,470,530
	BTAR early to need		[–50,000]
	OTHER AIRLIFT		
011	C–130J	636,680	916,680
	Additional C–130J weapon system trainer		[20,000]
	Two additional aircraft		[260,000]
	UPT TRAINERS		
012	ADVANCED PILOT TRAINING T–7A	529,464	529,464
013	ADVANCED PILOT TRAINING T–7A AP	69,690	69,690
	HELICOPTERS		
014	MH–139A	252,949	380,578
	Four additional aircraft		[127,629]
015	COMBAT RESCUE HELICOPTER	69,395	69,395
	MISSION SUPPORT AIRCRAFT		
016	C–37A	208,000	208,000
018	CIVIL AIR PATROL A/C	3,219	3,219
	OTHER AIRCRAFT		
020	TARGET DRONES	31,912	31,912
021	COMPASS CALL	660,000	660,000
024	RQ–20B PUMA	15,513	15,513
	STRATEGIC AIRCRAFT		
025	B–2A	178,668	178,668
026	B–1B	146,862	106,862
	Excessive growth		[–40,000]
027	B–52	422,399	422,399
028	LARGE AIRCRAFT INFRARED COUNTERMEASURES	66,638	66,638
	TACTICAL AIRCRAFT		
029	COLLABORATIVE COMBAT AIRCRAFT MODS	822	822
031	F–15	140,204	140,204
032	F–15EX	214,176	214,176
033	F–16 MODIFICATIONS	946,747	946,747
034	F–22A	1,052,088	1,052,088
035	F–35 MODIFICATIONS	335,973	335,973
036	F–15 EPAW	141,233	141,233
037	KC–46A MDAP	85,515	85,515
	AIRLIFT AIRCRAFT		
038	C–5	10,308	10,308
039	C–17A	59,867	59,867
042	OSA-EA MODIFICATIONS	136,786	136,786

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Line	Item	FY 2027 Request	House Authorized
	TRAINER AIRCRAFT		
043	GLIDER MODS	164	164
044	T–6	131,747	131,747
046	T–38	84,452	84,452
	OTHER AIRCRAFT		
047	U–2 MODS	297	10,297
	Program increase		[10,000]
050	C–130	23,546	23,546
051	C–130J MODS	315,308	315,308
052	C–135	158,715	148,715
	Slow execution		[–10,000]
053	COMPASS CALL	506,265	506,265
054	CVR (CONNON ULF RECEIVER) INC 2	18	18
055	RC–135	252,846	252,846
056	E–3	841	841
057	E–4	30,779	30,779
058	H–1	17,872	17,872
059	MH–139A MOD	5,021	5,021
061	HH60W MODIFICATIONS	46,662	46,662
062	HC/MC–130 MODIFICATIONS	257,742	257,742
063	OTHER AIRCRAFT	102,052	91,847
	Program decrease		[–10,205]
064	MQ–9 MODS	105,966	105,966
065	SOFTWARE DEFINED USER EQUIPMENT	25,847	25,847
066	SENIOR LEADER C3 SYSTEM—AIRCRAFT	32,654	32,654
067	CV–22 MODS	168,042	168,042
	AIRCRAFT SPARES AND REPAIR PARTS		
068	INITIAL SPARES/REPAIR PARTS	1,441,052	1,741,052
	F–35A Spare Parts		[300,000]
	COMMON SUPPORT EQUIPMENT		
071	AIRCRAFT REPLACEMENT SUPPORT EQUIP	252,808	227,528
	Program decrease		[–25,280]
	POST PRODUCTION SUPPORT		
073	B–2B	95,457	95,457
074	B–52	114	114
075	C–17A	3,027	3,027
076	CV–22 POST PRODUCTION SUPPORT	5,088	5,088
079	F–15EX	16,930	16,930
080	F–16 POST PRODUCTION SUPPORT	57,781	57,781
081	HC/MC–130 POST PROD	20,415	20,415
083	MQ–9 POST PROD	15,365	15,365
	INDUSTRIAL PREPAREDNESS		
084	INDUSTRIAL RESPONSIVENESS	20,590	20,590
	WAR CONSUMABLES		
085	WAR CONSUMABLES	85,387	85,387
	OTHER PRODUCTION CHARGES		
086	OTHER PRODUCTION CHARGES	2,528,401	2,528,401
	CLASSIFIED PROGRAMS		
088A	CLASSIFIED PROGRAMS	15,800	15,800
	TOTAL AIRCRAFT PROCUREMENT, AIR FORCE	**26,985,236**	**27,567,380**
	MISSILE PROCUREMENT, AIR FORCE		
	MISSILE REPLACEMENT EQUIPMENT—BALLISTIC		
001	MISSILE REPLACEMENT EQ-BALLISTIC	27,006	27,006
	BALLISTIC MISSILES		
003	GROUND BASED STRATEGIC DETERRENT	107,602	107,602
	STRATEGIC		
005	LONG RANGE STAND-OFF WEAPON	506,047	506,047
006	LONG RANGE STAND-OFF WEAPON AP	456,810	456,810
	TACTICAL		
007	REPLAC EQUIP & WAR CONSUMABLES	23,575	23,575
009	AGM–183A AIR-LAUNCHED RAPID RESPONSE WEAPON	452,035	452,035
010	FAMILY OF AFFORDABLE MASS MISSILE (FAMM)	55,000	55,000
011	HYPERSONIC ATTACK CRUISE MISSILE	403,974	403,974
012	JOINT AIR-SURFACE STANDOFF MISSILE	967,866	967,866
013	JOINT ADVANCED TACTICAL MISSILE	608,743	608,743
014	JOINT STRIKE MISSILE	384,607	384,607
015	LRASM0	500,916	500,916
016	SIDEWINDER (AIM–9X)	419,238	419,238
017	AMRAAM	115,856	115,856
019	SMALL DIAMETER BOMB	44,596	44,596
020	SMALL DIAMETER BOMB II	194,509	194,509
021	STAND-IN ATTACK WEAPON (SIAW)	401,607	401,607
	INDUSTRIAL FACILITIES		
022	INDUSTRIAL PREPAREDNESS/POL PREVENTION	931	931
	CLASS IV		
023	ICBM FUZE MOD	169,747	169,747
025	MM III MODIFICATIONS	9,865	9,865

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Line	Item	FY 2027 Request	House Authorized
026	AIR LAUNCH CRUISE MISSILE (ALCM)	30,407	30,407
	MISSILE SPARES AND REPAIR PARTS		
027	MSL SPRS/REPAIR PARTS (INITIAL)	15,621	15,621
028	MSL SPRS/REPAIR PARTS (REPLEN)	123,224	123,224
	SPECIAL PROGRAMS		
030	SPECIAL UPDATE PROGRAMS	168,578	168,578
	CLASSIFIED PROGRAMS		
030A	CLASSIFIED PROGRAMS	622,814	622,814
	TOTAL MISSILE PROCUREMENT, AIR FORCE	**6,811,174**	**6,811,174**
	PROCUREMENT OF AMMUNITION, AIR FORCE		
	ROCKETS		
001	ROCKETS	102,059	102,059
	CARTRIDGES		
002	CARTRIDGES	157,508	157,508
	BOMBS		
003	GENERAL PURPOSE BOMBS	168,469	168,469
004	MASSIVE ORDNANCE PENETRATOR (MOP)	755	755
005	JOINT DIRECT ATTACK MUNITION	129,568	129,568
006	B61–12 TRAINER	24,226	24,226
	OTHER ITEMS		
007	CAD/PAD	45,448	45,448
008	EXPLOSIVE ORDNANCE DISPOSAL (EOD)	7,168	7,168
009	SPARES AND REPAIR PARTS	626	626
010	FIRST DESTINATION TRANSPORTATION	2,873	2,873
011	ITEMS LESS THAN $5,000,000	5,468	5,468
	FLARES		
013	EXPENDABLE COUNTERMEASURES	99,180	99,180
	FUZES		
014	FUZES	141,149	141,149
	SMALL ARMS		
015	SMALL ARMS	25,619	25,619
	TOTAL PROCUREMENT OF AMMUNITION, AIR FORCE	**910,116**	**910,116**
	OTHER PROCUREMENT, AIR FORCE		
	SPECIAL PURPOSE VEHICLES		
005	JOINT LIGHT TACTICAL VEHICLE	103,304	103,304
	MATERIALS HANDLING EQUIPMENT		
009	MATERIALS HANDLING VEHICLES	2,132	2,132
	MISSION SUPPORT VEHICLES		
012	MISSION SUPPORT VEHICLES	439,892	439,892
	COMM SECURITY EQUIPMENT(COMSEC)		
014	COMSEC EQUIPMENT	374,613	374,613
	INTELLIGENCE PROGRAMS		
016	INTERNATIONAL INTEL TECH & ARCHITECTURES	19,060	19,060
017	INTELLIGENCE TRAINING EQUIPMENT	5,531	5,531
018	INTELLIGENCE COMM EQUIPMENT	37,717	37,717
	ELECTRONICS PROGRAMS		
019	AIR TRAFFIC CONTROL & LANDING SYS	58,313	58,313
021	BATTLE CONTROL SYSTEM—FIXED	3,391	3,391
022	THEATER AIR CONTROL SYS IMPROVEMEN	11,640	11,640
023	3D EXPEDITIONARY LONG-RANGE RADAR	430,607	430,607
024	WEATHER OBSERVATION FORECAST	33,111	33,111
025	STRATEGIC COMMAND AND CONTROL	89,931	89,931
026	CHEYENNE MOUNTAIN COMPLEX	7,434	7,434
027	MISSION PLANNING SYSTEMS	23,927	23,927
028	STRATEGIC MISSION PLANNING & EXECUTION SYSTEM	9,435	9,435
	SPCL COMM-ELECTRONICS PROJECTS		
029	GENERAL INFORMATION TECHNOLOGY	234,417	234,417
033	AIR FORCE PHYSICAL SECURITY SYSTEM	1,770,698	1,660,698
	Program decrease		[–110,000]
034	SAMTEC COMMUNICATIONS	17,641	17,641
035	COMBAT TRAINING RANGES	94,378	95,878
	BMGR LMR Upgrades		[1,500]
036	MINIMUM ESSENTIAL EMERGENCY COMM N	279,516	279,516
037	WIDE AREA SURVEILLANCE (WAS)	17,000	17,000
038	C3 COUNTERMEASURES	163,127	163,127
040	THEATER BATTLE MGT C2 SYSTEM	460	460
041	AIR & SPACE OPERATIONS CENTER (AOC)	23,778	23,778
	AIR FORCE COMMUNICATIONS		
042	BASE INFORMATION TRANSPT INFRAST (BITI) WIRED	125,702	125,702
043	AFNET	325,839	322,839
	Unjustified growth		[–3,000]
044	JOINT COMMUNICATIONS SUPPORT ELEMENT (JCSE)	16,267	16,267
045	USCENTCOM	15,328	15,328
046	USSTRATCOM	5,013	5,013
047	USSPACECOM	195,370	195,370
	ORGANIZATION AND BASE		

SEC. 4101. PROCUREMENT
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
048	TACTICAL C-E EQUIPMENT	162,835	162,835
049	NEXT GENERATION SURVIVAL RADIO (NGSR)	80,321	80,321
051	RADIO EQUIPMENT	36,874	36,874
052	BASE COMM INFRASTRUCTURE	158,113	158,113
	MODIFICATIONS		
053	COMM ELECT MODS	220,855	220,855
	PERSONAL SAFETY & RESCUE EQUIP		
054	PERSONAL SAFETY AND RESCUE EQUIPMENT	87,994	87,994
	DEPOT PLANT+MTRLS HANDLING EQ		
055	POWER CONDITIONING EQUIPMENT	14,444	14,444
056	MECHANIZED MATERIAL HANDLING EQUIP	24,594	24,594
	BASE SUPPORT EQUIPMENT		
057	BASE PROCURED EQUIPMENT	81,686	81,686
058	ENGINEERING AND EOD EQUIPMENT	247,989	247,989
059	MOBILITY EQUIPMENT	288,930	268,930
	Program decrease		[–20,000]
060	FUELS SUPPORT EQUIPMENT (FSE)	81,066	81,066
061	BASE MAINTENANCE AND SUPPORT EQUIPMENT	68,127	68,127
	SPECIAL SUPPORT PROJECTS		
063	DARP RC135	31,496	31,496
064	DCGS-AF	316,157	306,157
	Unjustified growth		[–10,000]
066	SPECIAL UPDATE PROGRAM	5,099,420	5,099,420
	CLASSIFIED PROGRAMS		
066A	CLASSIFIED PROGRAMS	27,241,704	27,241,704
	SPARES AND REPAIR PARTS		
067	SPARES AND REPAIR PARTS (CYBER)	8,657	8,657
068	SPARES AND REPAIR PARTS	14,129	14,129
	TOTAL OTHER PROCUREMENT, AIR FORCE	**39,199,963**	**39,058,463**
	PROCUREMENT, SPACE FORCE		
	SPACE PROCUREMENT, SF		
001	AF SATELLITE COMM SYSTEM	54,391	54,391
003	AUXILIARY PAYLOADS	241,076	241,076
005	COUNTERSPACE SYSTEMS	459,466	459,466
007	EVOLVED STRATEGIC SATCOM (ESS) AP	139,700	139,700
011	GROUND MOVING TARGET INDICATOR (GMTI)	1,016,612	1,016,612
013	GENERAL INFORMATION TECH—SPACE	14,895	14,895
014	GPSIII FOLLOW ON	680,875	680,875
017	SPACEBORNE EQUIP (COMSEC)	95,061	95,061
018	MILSATCOM	38,067	38,067
020	SPECIAL SPACE ACTIVITIES	2,021,299	2,021,299
021	MOBILE USER OBJECTIVE SYSTEM	50,640	50,640
022	NATIONAL SECURITY SPACE LAUNCH	3,370,958	3,370,958
024	PTES HUB	12,046	12,046
025	SPACE DEVELOPMENT AGENCY LAUNCH	835,197	835,197
026	SPACE DIGITAL INTEGRATED NETWORK (SDIN)	5,119	5,119
027	SPACE MODS	448,674	448,674
028	SPACELIFT RANGE SYSTEM SPACE	64,885	64,885
029	WIDEBAND SATCOM OPERATIONAL MANAGEMENT SYSTEMS	81,483	81,483
	SPARES		
030	SPARES AND REPAIR PARTS	971	971
	NON-TACTICAL VEHICLES		
031	USSF VEHICLES	6,032	6,032
	SUPPORT EQUIPMENT		
033	POWER CONDITIONING EQUIPMENT	7,906	7,906
	TOTAL PROCUREMENT, SPACE FORCE	**9,645,353**	**9,645,353**
	PROCUREMENT, DEFENSE-WIDE		
	MAJOR EQUIPMENT, OSD		
002	MAJOR EQUIPMENT, OSD	213,031	208,031
	Program decrease		[–5,000]
	MAJOR EQUIPMENT, WHS		
006	MAJOR EQUIPMENT, WHS	453	453
	MAJOR EQUIPMENT, DISA		
007	INFORMATION SYSTEMS SECURITY	27,652	27,652
008	TELEPORT PROGRAM	93,512	93,512
009	ITEMS LESS THAN $5 MILLION	24,013	24,013
010	DEFENSE INFORMATION SYSTEM NETWORK	392,650	392,650
012	WHITE HOUSE COMMUNICATION AGENCY	611,216	611,216
013	SENIOR LEADERSHIP ENTERPRISE	81,584	81,584
015	JOINT SERVICE PROVIDER	53,596	53,596
016	FOURTH ESTATE NETWORK OPTIMIZATION (4ENO)	60,808	60,808
	MAJOR EQUIPMENT, DLA		
022	MAJOR EQUIPMENT	19,707	19,707
	MAJOR EQUIPMENT, TJS		
024	MAJOR EQUIPMENT, TJS	11,689	11,689
025	COUNTER-SMALL UNMANNED AIRCRAFT SYSTEMS	800,000	800,000

SEC. 4101. PROCUREMENT
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
	MAJOR EQUIPMENT, MISSILE DEFENSE AGENCY		
029	BMDS AN/TPY–2 RADARS	17,840	17,840
030	SM–3 IIAS	778,964	778,964
031	ARROW 3 UPPER TIER SYSTEMS	150,000	150,000
032	SHORT RANGE BALLISTIC MISSILE DEFENSE (SRBMD)	30,000	30,000
035	IRON DOME	20,000	20,000
036	AEGIS BMD HARDWARE AND SOFTWARE	39,256	39,256
	MAJOR EQUIPMENT, DHRA		
037	PERSONNEL ADMINISTRATION	82,438	82,438
	MAJOR EQUIPMENT, DEFENSE THREAT REDUCTION AGENCY		
040	VEHICLES	99	99
041	OTHER MAJOR EQUIPMENT	8,963	8,963
042	DTRA CYBER ACTIVITIES	900	900
	MAJOR EQUIPMENT, DMACT		
044	MAJOR EQUIPMENT	6,854	6,854
	MAJOR EQUIPMENT, USCYBERCOM		
045	CYBERSPACE OPERATIONS	103,855	103,855
	CLASSIFIED PROGRAMS		
045A	CLASSIFIED PROGRAMS	3,587,405	3,587,405
	AVIATION PROGRAMS		
050	ROTARY WING UPGRADES AND SUSTAINMENT	185,930	185,930
051	SKYRAIDER II	59,894	279,894
	Program increase		[220,000]
053	NON-STANDARD AVIATION	72,650	110,290
	Non-Standard Aviations (NSAv)		[37,640]
055	MH–47 CHINOOK	168,411	168,411
056	CV–22 MODIFICATION	9,479	9,479
057	MQ–9 UNMANNED AERIAL VEHICLE	75,841	75,841
059	AC/MC–130J	366,857	366,857
	SHIPBUILDING		
060	UNDERWATER SYSTEMS	76,879	76,879
	AMMUNITION PROGRAMS		
061	ORDNANCE ITEMS <$5M	237,153	380,683
	Ground Organic Precision Strike Systems (GOPSS)		[25,519]
	Munitions War Reserves		[118,011]
	OTHER PROCUREMENT PROGRAMS		
062	INTELLIGENCE SYSTEMS	319,241	319,241
064	OTHER ITEMS <$5M	119,047	119,047
065	COMBATANT CRAFT SYSTEMS	33,858	33,858
066	SPECIAL PROGRAMS	130,462	130,462
067	TACTICAL VEHICLES	36,983	36,983
068	WARRIOR SYSTEMS <$5M	511,016	635,125
	Advanced Tactical Pants		[5,000]
	Electromagnetic Warfare (EW) Family of Systems		[79,945]
	Ground Infil Protection Systems(GIPS)		[39,164]
069	COMBAT MISSION REQUIREMENTS	4,988	4,988
070	OPERATIONAL ENHANCEMENTS INTELLIGENCE	28,074	28,074
071	OPERATIONAL ENHANCEMENTS	360,595	408,595
	Accelerated Fielding of Group 3 Unmanned Aerial System (UAS) Capability		[36,000]
	Ground Infil Protection Systems(GIPS)		[12,000]
	CBDP		
072	CHEMICAL BIOLOGICAL SITUATIONAL AWARENESS	223,166	223,166
073	CB PROTECTION & HAZARD MITIGATION	117,859	117,859
	TOTAL PROCUREMENT, DEFENSE-WIDE	**10,354,868**	**10,923,147**
	NATIONAL GUARD AND RESERVE EQUIPMENT		
	ARMY RESERVE		
001	MISC EQUIPMENT—ARMY RESERVE	155,000	155,000
	NAVY RESERVE		
002	MISC EQUIPMENT—NAVY RESERVE	57,000	57,000
	MARINE CORPS RESERVE		
003	MISC EQUIPMENT—MARINE CORPS RESERVE	23,000	23,000
	AIR FORCE RESERVE		
004	MISC EQUIPMENT—AF RESERVE	155,000	155,000
	ARMY NATIONAL GUARD		
005	MISC EQUIPMENT—ARMY NATIONAL GUARD	305,000	305,000
	AIR NATIONAL GUARD		
006	MISC EQUIPMENT—AIR FORCE NATIONAL GUARD	305,000	305,000
	TOTAL NATIONAL GUARD AND RESERVE EQUIPMENT	**1,000,000**	**1,000,000**
	DEFENSE STRATEGIC CAPITAL CREDIT PROGRAM		
	DEFENSE STRATEGIC CAPITAL CREDIT PROGRAM		
001	OFFICE OF STRATEGIC CAPITAL LOAN PROGRAM	216,000	216,000
	TOTAL DEFENSE STRATEGIC CAPITAL CREDIT PROGRAM.	**216,000**	**216,000**
	TOTAL PROCUREMENT	**257,058,141**	**258,237,453**

TITLE XLII—RESEARCH, DEVELOPMENT, TEST, AND EVALUATION

SEC. 4201. RESEARCH, DEVELOPMENT, TEST, AND EVALUATION.

SEC. 4201. RESEARCH, DEVELOPMENT, TEST, AND EVALUATION
(In Thousands of Dollars)

Line	Program Element	Item	FY 2027 Request	House Authorized
		RESEARCH, DEVELOPMENT, TEST AND EVALUATION, ARMY		
		BASIC RESEARCH		
001	0601102A	DEFENSE RESEARCH SCIENCES	215,322	225,322
		Program increase		[10,000]
002	0601103A	UNIVERSITY RESEARCH INITIATIVES	63,102	83,102
		Program increase		[20,000]
003	0601104A	UNIVERSITY AND INDUSTRY RESEARCH CENTERS	53,598	71,098
		Foundational Research for biotechnology		[5,000]
		Program increase		[10,000]
		Research Center of Excellence Partnership		[2,500]
005	0601275A	ELECTRONIC WARFARE BASIC RESEARCH	64,031	64,031
006	0601601A	ARTIFICIAL INTELLIGENCE AND MACHINE LEARNING BASIC RESEARCH.		2,500
		Army AI Integration Center		[2,500]
		SUBTOTAL BASIC RESEARCH	**396,053**	**446,053**
		APPLIED RESEARCH		
009	0602135A	COUNTER SMALL UNMANNED AERIAL SYSTEMS (C-SUAS) APPLIED RESEARCH.	26,523	29,023
		Enhanced Acoustic UAS Detection and Tracking		[2,500]
010	0602141A	LETHALITY TECHNOLOGY	232,046	239,546
		Applied Armaments Tech for Distributed Lethality		[2,500]
		Dynamic Digital Definition of Armaments Systems		[2,500]
		Program decrease		[–2,500]
		Rapid Apt Processing Technologies for Hypersonics		[5,000]
011	0602143A	SOLDIER LETHALITY TECHNOLOGY	68,018	90,518
		Advance Medical Simulation Science and Technologies for Warfighters.		[15,000]
		Isostatic Pressure Advanced Armor Development		[2,500]
		Next Generation Ballistic Plate		[2,500]
		Pathfinder Air Assault		[2,500]
012	0602144A	GROUND TECHNOLOGY	44,146	46,646
		Research on the Soil-Structure Interaction of Buildings Subjected to Blast Loading from Hypersonic Strike Vehicles.		[2,500]
013	0602145A	NEXT GENERATION COMBAT VEHICLE TECHNOLOGY	70,540	75,540
		Standardized Army Battery for Enhanced Performance and Safety.		[5,000]
014	0602146A	NETWORK C3I TECHNOLOGY	53,373	70,873
		Autonomous EMS Dominance & Edge Resilience		[2,500]
		Distributed Aperture Spectrum Dominance		[5,000]
		Enhancing Planning and Rehearsal for Large-Scale Combat Operations.		[5,000]
		Group 3 autonomous operations in RF-contested environments		[5,000]
015	0602147A	LONG RANGE PRECISION FIRES TECHNOLOGY	24,086	31,586
		Digital Arsenal for Solid Rocket Motors		[2,500]
		PRESTO-Fires Testbed		[5,000]
016	0602148A	FUTURE VERTICLE LIFT TECHNOLOGY	17,727	20,227
		UxS Platform Agnostic Intelligent Robotic Core		[2,500]
017	0602150A	AIR AND MISSILE DEFENSE TECHNOLOGY	36,113	43,613
		AI Integration and Security for IBCS		[5,000]
		C-UAS Testing and Research Center		[2,500]
021	0602183A	AIR PLATFORM APPLIED RESEARCH	43,700	53,700
		Ion-trap quantum computing systems		[10,000]
022	0602184A	SOLDIER APPLIED RESEARCH	2,429	2,429
023	0602213A	C3I APPLIED CYBER	63	63
024	0602275A	ELECTRONIC WARFARE APPLIED RESEARCH	51,184	46,184
		Unjustified growth		[–5,000]
025	0602276A	ELECTRONIC WARFARE CYBER APPLIED RESEARCH	9,857	9,857
026	0602345A	UNMANNED AERIAL SYSTEMS LAUNCHED EFFECTS APPLIED RESEARCH.	22,871	22,871
027	0602386A	BIOTECHNOLOGY FOR MATERIALS—APPLIED RESEARCH	14,979	14,979

SEC. 4201. RESEARCH, DEVELOPMENT, TEST, AND EVALUATION
(In Thousands of Dollars)

Line	Program Element	Item	FY 2027 Request	House Authorized
		Program decrease		[–2,500]
		Program increase		[2,500]
029	0602785A	MANPOWER/PERSONNEL/TRAINING TECHNOLOGY	14,275	14,275
030	0602787A	MEDICAL TECHNOLOGY	149,221	142,221
		Program decrease		[–7,000]
030A	9999999999	CLASSIFIED PROGRAMS	32,883	32,883
		SUBTOTAL APPLIED RESEARCH	**914,034**	**987,034**
		ADVANCED TECHNOLOGY DEVELOPMENT		
031	0603002A	MEDICAL ADVANCED TECHNOLOGY	17,876	17,876
		Unjustified growth		[–5,000]
		Wearable Blast Overpressure Monitoring System		[5,000]
032	0603007A	MANPOWER, PERSONNEL AND TRAINING ADVANCED TECHNOLOGY.	11,113	11,113
033	0603025A	ARMY AGILE INNOVATION AND DEMONSTRATION	3,325	5,825
		Army EW Sensing and Hunting UAS Payload		[2,500]
035	0603041A	ALL DOMAIN CONVERGENCE ADVANCED TECHNOLOGY	3,575	3,575
036	0603042A	C3I ADVANCED TECHNOLOGY	1,211	3,711
		Imaging Cold Environments using Multispectral Airborne Networks.		[2,500]
037	0603043A	AIR PLATFORM ADVANCED TECHNOLOGY	23,471	20,471
		Program decrease		[–3,000]
038	0603044A	SOLDIER ADVANCED TECHNOLOGY	3,951	3,951
039	0603116A	LETHALITY ADVANCED TECHNOLOGY	31,812	39,312
		Drone Netting Enclosure System for Counter UAS Testing		[2,500]
		Future Armaments Scalable Technologies		[2,500]
		Secure Hypersonic Prototype Manufacturing		[2,500]
040	0603118A	SOLDIER LETHALITY ADVANCED TECHNOLOGY	125,121	120,121
		Automated Paragliders for Paratroopers		[5,000]
		Program decrease		[–10,000]
041	0603119A	GROUND ADVANCED TECHNOLOGY	25,043	40,043
		Fuel cell multi-modular use development		[10,000]
		Intelligent Runway Technology Program		[2,500]
		Next Generation Cracked Armor Laminated Patch Repair Technology.		[2,500]
043	0603135A	COUNTER SMALL UNMANNED AERIAL SYSTEMS (C-SUAS) ADVANCED TECHNOLOGY.	156,520	154,020
		Program decrease		[–2,500]
044	0603275A	ELECTRONIC WARFARE ADVANCED TECHNOLOGY	156,326	149,326
		Unjustified growth		[–7,000]
045	0603276A	ELECTRONIC WARFARE CYBER ADVANCED TECHNOLOGY	15,278	15,278
046	0603345A	UNMANNED AERIAL SYSTEMS LAUNCHED EFFECTS ADVANCED TECHNOLOGY DEVELOPMENT.	33,129	33,129
047	0603386A	BIOTECHNOLOGY FOR MATERIALS—ADVANCED RESEARCH	22,402	22,402
048	0603457A	C3I CYBER ADVANCED DEVELOPMENT	8,509	8,509
049	0603461A	HIGH PERFORMANCE COMPUTING MODERNIZATION PROGRAM.	215,090	210,090
		Program decrease		[–5,000]
050	0603462A	NEXT GENERATION COMBAT VEHICLE ADVANCED TECHNOLOGY.	118,207	143,607
		Advanced Passive Fire Protection Technologies		[5,400]
		Discontinuous thermoplastic materials		[10,000]
		Ground Vehicle Systems Center		[10,000]
051	0603463A	NETWORK C3I ADVANCED TECHNOLOGY	48,490	93,790
		Development and demonstration of prototype communications solutions at overseas installations.		[15,000]
		Modular Radio Frequency (RF) Communications Technology		[7,000]
		OTM SATCOM Terminals		[23,300]
052	0603464A	LONG RANGE PRECISION FIRES ADVANCED TECHNOLOGY	422,590	430,090
		Missile Delivered Launched Effects- Virtual Test Range		[7,500]
053	0603465A	FUTURE VERTICAL LIFT ADVANCED TECHNOLOGY	14,984	19,984
		Program increase		[5,000]
054	0603466A	AIR AND MISSILE DEFENSE ADVANCED TECHNOLOGY	63,924	78,924
		CWS Enhanced Swarm Defeat Capability		[15,000]
056	0603920A	HUMANITARIAN DEMINING	7,619	7,619
056A	9999999999	CLASSIFIED PROGRAMS	80,717	80,717
		SUBTOTAL ADVANCED TECHNOLOGY DEVELOPMENT.	**1,610,283**	**1,713,483**
		ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES		
058	0603305A	ARMY MISSLE DEFENSE SYSTEMS INTEGRATION	8,367	12,367
		High Power Microwave (HPM) Against Lethal Threats (HALT)		[4,000]
059	0603308A	ARMY SPACE SYSTEMS INTEGRATION	59,573	91,573
		Gliding Offensive Lightweight Unmanned Munition (GOLUM)		[32,000]
061	0603619A	LANDMINE WARFARE AND BARRIER—ADV DEV	31,374	31,374
062	0603627A	SMOKE, OBSCURANT AND TARGET DEFEATING SYS-ADV DEV.	5,596	5,596

SEC. 4201. RESEARCH, DEVELOPMENT, TEST, AND EVALUATION
(In Thousands of Dollars)

Line	Program Element	Item	FY 2027 Request	House Authorized
063	0603639A	TANK AND MEDIUM CALIBER AMMUNITION	277,248	257,248
		Unjustified growth		[–20,000]
064	0603645A	ARMORED SYSTEM MODERNIZATION—ADV DEV	23,594	23,594
065	0603747A	SOLDIER SUPPORT AND SURVIVABILITY	4,109	4,109
066	0603766A	TACTICAL ELECTRONIC SURVEILLANCE SYSTEM—ADV DEV	98,331	113,331
		Harsh Environment Microelectronics Innovation		[15,000]
067	0603774A	NIGHT VISION SYSTEMS ADVANCED DEVELOPMENT	5,310	5,310
068	0603779A	ENVIRONMENTAL QUALITY TECHNOLOGY—DEM/VAL	19,499	19,499
069	0603790A	NATO RESEARCH AND DEVELOPMENT	5,145	5,145
071	0603804A	LOGISTICS AND ENGINEER EQUIPMENT—ADV DEV	12,822	12,822
072	0603807A	MEDICAL SYSTEMS—ADV DEV	1,017	1,017
073	0603827A	SOLDIER SYSTEMS—ADVANCED DEVELOPMENT	56,122	56,122
074	0604017A	ROBOTICS DEVELOPMENT	20,290	20,290
075	0604019A	EXPANDED MISSION AREA MISSILE (EMAM)	235,593	210,593
		Program decrease		[–25,000]
077	0604035A	LOW EARTH ORBIT (LEO) SATELLITE CAPABILITY	319	319
078	0604036A	MULTI-DOMAIN SENSING SYSTEM (MDSS) ADV DEV	99,471	99,471
079	0604037A	TACTICAL INTEL TARGETING ACCESS NODE (TITAN) ADV DEV.	4,123	4,123
080	0604100A	ANALYSIS OF ALTERNATIVES	10,077	10,077
084	0604114A	LOWER TIER AIR MISSILE DEFENSE (LTAMD) SENSOR	162,074	162,074
085	0604115A	TECHNOLOGY MATURATION INITIATIVES	314,671	304,271
		3D printed non-traditional battery manufacturing		[5,000]
		Program decrease		[–15,400]
086	0604117A	MANEUVER—SHORT RANGE AIR DEFENSE (M-SHORAD)	460,980	460,980
087	0604120A	ASSURED POSITIONING, NAVIGATION AND TIMING (PNT)	18,993	18,993
088	0604121A	SYNTHETIC TRAINING ENVIRONMENT REFINEMENT & PROTOTYPING.	219,137	219,137
089	0604129A	ADVANCED POWER APPLICATIONS	48,000	48,000
091	0604135A	STRATEGIC MID-RANGE FIRES	211,848	211,848
092	0604182A	HYPERSONICS	82,939	82,939
099	0305251A	CYBERSPACE OPERATIONS FORCES AND FORCE SUPPORT	22,889	21,889
		Unjustified growth		[–1,000]
099A	9999999999	CLASSIFIED PROGRAMS	261,466	261,466
		SUBTOTAL ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES.	**2,780,977**	**2,775,577**
		SYSTEM DEVELOPMENT AND DEMONSTRATION		
100	0604201A	AIRCRAFT AVIONICS	30,658	35,658
		Enhancing Cyber Resilience for Mission Assurance and Supply Chain Security.		[5,000]
101	0604270A	ELECTRONIC WARFARE DEVELOPMENT	2,807	2,807
102	0604601A	INFANTRY SUPPORT WEAPONS	55,296	64,296
		Combat Aviation Aircrew Enhancement – Safety and Lethality		[4,000]
		Operational evaluation of an omnidirectional tactical throwable camera.		[5,000]
103	0604604A	MEDIUM TACTICAL VEHICLES	23,763	23,763
104	0604611A	JAVELIN	10,217	10,217
105	0604622A	FAMILY OF HEAVY TACTICAL VEHICLES	43,003	43,003
108	0604642A	LIGHT TACTICAL WHEELED VEHICLES	6,142	6,142
110	0604710A	NIGHT VISION SYSTEMS—ENG DEV	418,427	418,427
111	0604713A	COMBAT FEEDING, CLOTHING, AND EQUIPMENT	6,701	6,701
112	0604715A	NON-SYSTEM TRAINING DEVICES—ENG DEV	29,685	31,685
		AI-Enabled Weapon System Sensor Integration for Training		[2,000]
113	0604741A	AIR DEFENSE COMMAND, CONTROL AND INTELLIGENCE—ENG DEV.	14,276	14,276
114	0604742A	CONSTRUCTIVE SIMULATION SYSTEMS DEVELOPMENT	5,618	5,618
115	0604746A	AUTOMATIC TEST EQUIPMENT DEVELOPMENT	9,625	9,625
116	0604760A	DISTRIBUTIVE INTERACTIVE SIMULATIONS (DIS)—ENG DEV.	7,883	7,883
117	0604798A	BRIGADE ANALYSIS, INTEGRATION AND EVALUATION	26,602	26,602
118	0604802A	WEAPONS AND MUNITIONS—ENG DEV	124,881	174,881
		Battalion Mortar System Modernization		[10,000]
		Development of 120mm APFSDS Propellant		[10,000]
		Medium Caliber Ammunition Fuzing		[5,000]
		Solid Rocket Second Source Qualification Increase		[25,000]
119	0604804A	LOGISTICS AND ENGINEER EQUIPMENT—ENG DEV	65,238	65,238
120	0604805A	COMMAND, CONTROL, COMMUNICATIONS SYSTEMS—ENG DEV.	5,541	5,541
121	0604807A	MEDICAL MATERIEL/MEDICAL BIOLOGICAL DEFENSE EQUIPMENT—ENG DEV.	9,744	9,744
122	0604808A	LANDMINE WARFARE/BARRIER—ENG DEV	17,586	17,586
123	0604818A	ARMY TACTICAL COMMAND & CONTROL HARDWARE & SOFTWARE.	42,584	42,584
124	0604820A	RADAR DEVELOPMENT	58,260	58,260
126	0604827A	SOLDIER SYSTEMS—WARRIOR DEM/VAL	5,663	5,663
127	0604852A	SUITE OF SURVIVABILITY ENHANCEMENT SYSTEMS—EMD	78,331	78,331
128	0604854A	ARTILLERY SYSTEMS—EMD	709,192	651,692

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Line	Program Element	Item	FY 2027 Request	House Authorized
		Program decrease		[–7,500]
		Unjustified growth		[–50,000]
129	0605013A	INFORMATION TECHNOLOGY DEVELOPMENT	121,525	116,525
		Program decrease		[–5,000]
130	0605018A	INTEGRATED PERSONNEL AND PAY SYSTEM-ARMY (IPPS-A)	102,694	102,694
131	0605030A	JOINT TACTICAL NETWORK CENTER (JTNC)	21,561	21,561
132	0605031A	JOINT TACTICAL NETWORK (JTN)	50,390	50,390
133	0605035A	COMMON INFRARED COUNTERMEASURES (CIRCM)	11,573	11,573
134	0605036A	COMBATING WEAPONS OF MASS DESTRUCTION (CWMD)	5,605	5,605
135	0605037A	EVIDENCE COLLECTION AND DETAINEE PROCESSING	5,513	5,513
136	0605038A	NUCLEAR BIOLOGICAL CHEMICAL RECONNAISSANCE VEHICLE (NBCRV) SENSOR SUITE.	13,864	13,864
137	0605041A	DEFENSIVE CYBER TOOL DEVELOPMENT	3,519	3,519
138	0605042A	TACTICAL NETWORK RADIO SYSTEMS (LOW-TIER)	3,804	3,804
139	0605047A	CONTRACT WRITING SYSTEM	4,777	4,777
141	0605051A	AIRCRAFT SURVIVABILITY DEVELOPMENT	106,621	96,621
		Program decrease		[–10,000]
142	0605052A	INDIRECT FIRE PROTECTION CAPABILITY INC 2—BLOCK 1	175,352	175,352
143	0605053A	GROUND ROBOTICS	192,185	182,185
		Low expenditure rates		[–10,000]
144	0605054A	EMERGING TECHNOLOGY INITIATIVES	147,881	164,881
		Vertically integrated advanced processes		[17,000]
145	0605058A	TERMINAL HIGH ALTITUDE AREA DEFENSE (THAAD) RDTE.	1,053,983	1,053,983
146	0605144A	NEXT GENERATION LOAD DEVICE—MEDIUM	2,380	2,380
147	0605148A	TACTICAL INTEL TARGETING ACCESS NODE (TITAN) EMD	35,769	35,769
151	0605224A	MULTI-DOMAIN INTELLIGENCE	49,594	49,594
152	0605231A	PRECISION STRIKE MISSILE (PRSM)	288,304	288,304
153	0605232A	HYPERSONICS EMD	446,616	446,616
154	0605233A	ACCESSIONS INFORMATION ENVIRONMENT (AIE)	33,770	33,770
155	0605235A	STRATEGIC MID-RANGE CAPABILITY	82,550	82,550
157	0605241A	FUTURE LONG RANGE ASSAULT AIRCRAFT DEVELOPMENT	2,140,569	2,267,786
		Program realignment for operational test aircraft		[127,217]
159	0605244A	JOINT REDUCED RANGE ROCKET (JR3)	16,014	16,014
161	0605275A	ELECTRONIC WARFARE SYSTEMS DEVELOPMENT	99,691	99,691
162	0605330A	C2 TRANSPORT	45,370	45,370
163	0605331A	C2 APPLICATIONS	488,401	488,401
164	0605332A	C2 DATA	306,019	306,019
165	0605333A	C2 INFRASTRUCTURE	64,849	64,849
166	0605345A	UNMANNED AERIAL SYSTEMS LAUNCHED EFFECTS SYSTEMS DEVELOPMENT.	816,433	816,433
167	0605347A	COUNTER UNMANNED AERIAL SYSTEMS (UAS) DEVELOPMENT.	359,182	359,182
169	0605457A	ARMY INTEGRATED AIR AND MISSILE DEFENSE (AIAMD)	126,623	126,623
170	0605531A	COUNTER—SMALL UNMANNED AIRCRAFT SYSTEMS SYS DEV & DEMONSTRATION.	695	695
172	0605625A	MANNED GROUND VEHICLE	290,069	290,069
173	0605766A	NATIONAL CAPABILITIES INTEGRATION (MIP)	17,211	17,211
174	0605812A	JOINT LIGHT TACTICAL VEHICLE (JLTV) ENGINEERING AND MANUFACTURING DEVELOPMENT PHASE (EMD).	2,749	2,749
175	0605830A	AVIATION GROUND SUPPORT EQUIPMENT	951	951
176	0303032A	TROJAN—RH12	3,946	3,946
178	0304270A	ELECTRONIC WARFARE DEVELOPMENT	125,301	125,301
178A	9999999999	CLASSIFIED PROGRAMS	89,121	89,121
		SUBTOTAL SYSTEM DEVELOPMENT AND DEMONSTRATION.	**9,760,747**	**9,888,464**
		MANAGEMENT SUPPORT		
179	0604256A	THREAT SIMULATOR DEVELOPMENT	60,233	60,233
180	0604258A	TARGET SYSTEMS DEVELOPMENT	16,488	16,488
181	0604759A	MAJOR T&E INVESTMENT	106,140	106,140
182	0605103A	RAND ARROYO CENTER	10,737	10,737
183	0605301A	ARMY KWAJALEIN ATOLL	7,051	7,051
184	0605326A	CONCEPTS EXPERIMENTATION PROGRAM	55,596	55,596
186	0605601A	ARMY TEST RANGES AND FACILITIES	469,723	479,723
		Space Layer Representation to Enhance Near-Peer Readiness		[10,000]
187	0605602A	ARMY TECHNICAL TEST INSTRUMENTATION AND TARGETS	62,303	62,303
188	0605604A	SURVIVABILITY/LETHALITY ANALYSIS	31,283	31,283
189	0605606A	AIRCRAFT CERTIFICATION	1,983	1,983
190	0605706A	MATERIEL SYSTEMS ANALYSIS	19,013	19,013
191	0605709A	EXPLOITATION OF FOREIGN ITEMS	10,481	10,481
192	0605712A	SUPPORT OF OPERATIONAL TESTING	60,733	60,733
193	0605716A	ARMY EVALUATION CENTER	65,565	65,565
194	0605718A	ARMY MODELING & SIM X-CMD COLLABORATION & INTEG	15,608	15,608
195	0605801A	PROGRAMWIDE ACTIVITIES	52,978	52,978
196	0605803A	TECHNICAL INFORMATION ACTIVITIES	27,004	27,004
197	0605805A	MUNITIONS STANDARDIZATION, EFFECTIVENESS AND SAFETY.	44,851	62,351

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Line	Program Element	Item	FY 2027 Request	House Authorized
		Demilitarization Process for White Phosphorus Ammunition Items		[10,000]
		Production of Critical Chemicals in a Flexible Manufacturing Facility.		[7,500]
198	0605857A	ENVIRONMENTAL QUALITY TECHNOLOGY MGMT SUPPORT	3,256	3,256
199	0605898A	ARMY DIRECT REPORT HEADQUARTERS—R&D - MHA	54,276	54,276
200	0606002A	RONALD REAGAN BALLISTIC MISSILE DEFENSE TEST SITE	118,585	118,585
201	0606003A	COUNTERINTEL AND HUMAN INTEL MODERNIZATION	5,802	5,802
202	0606118A	AIAMD SOFTWARE DEVELOPMENT & INTEGRATION	653,653	646,653
		Program decrease		[–7,000]
203	0606942A	ASSESSMENTS AND EVALUATIONS CYBER VULNERABILITIES.	6,468	6,468
		SUBTOTAL MANAGEMENT SUPPORT	**1,959,810**	**1,980,310**
		OPERATIONAL SYSTEM DEVELOPMENT		
205	0603778A	MLRS PRODUCT IMPROVEMENT PROGRAM	17,780	17,780
206	0605024A	ANTI-TAMPER TECHNOLOGY SUPPORT	6,613	16,613
		Secure Microelectronics for Anti-Tamper and Resilient Technology		[10,000]
207	0607101A	COMBATING WEAPONS OF MASS DESTRUCTION (CWMD) PRODUCT IMPROVEMENT.	488	488
208	0607131A	WEAPONS AND MUNITIONS PRODUCT IMPROVEMENT PROGRAMS.	21,553	21,553
209	0607136A	BLACKHAWK PRODUCT IMPROVEMENT PROGRAM	35,147	35,147
210	0607137A	CHINOOK PRODUCT IMPROVEMENT PROGRAM	7,277	7,277
211	0607139A	IMPROVED TURBINE ENGINE PROGRAM		100,000
		Program increase		[100,000]
213	0607145A	APACHE FUTURE DEVELOPMENT	30,759	30,759
214	0607148A	AN/TPQ–53 COUNTERFIRE TARGET ACQUISITION RADAR SYSTEM.	90,981	80,981
		Unjustified growth		[–10,000]
215	0607150A	INTEL CYBER DEVELOPMENT	13,694	13,694
216	0607212A	TENCAP ENHANCEMENTS	20,982	20,982
219	0607665A	FAMILY OF BIOMETRICS	1,640	1,640
220	0607865A	PATRIOT PRODUCT IMPROVEMENT	219,046	219,046
221	0203728A	JOINT AUTOMATED DEEP OPERATION COORDINATION SYSTEM (JADOCS).	11,255	11,255
222	0203735A	COMBAT VEHICLE IMPROVEMENT PROGRAMS	492,364	502,364
		Development and qualification of AGT1500 Abrams tank engine parts.		[10,000]
224	0203752A	AIRCRAFT ENGINE COMPONENT IMPROVEMENT PROGRAM	239	239
225	0203758A	DIGITIZATION	1,615	1,615
226	0203801A	MISSILE/AIR DEFENSE PRODUCT IMPROVEMENT PROGRAM	2,054	2,054
229	0205778A	GUIDED MULTIPLE-LAUNCH ROCKET SYSTEM (GMLRS)	73,639	73,639
232	0303140A	INFORMATION SYSTEMS SECURITY PROGRAM	15,932	15,932
234	0303142A	SATCOM GROUND ENVIRONMENT (SPACE)	4,870	4,870
237	0305179A	INTEGRATED BROADCAST SERVICE (IBS)	6,870	6,870
238	0305219A	MQ–1 GRAY EAGLE UAV	2,590	2,590
239	0708045A	END ITEM INDUSTRIAL PREPAREDNESS ACTIVITIES	68,097	85,097
		Army depot directed energy readiness		[5,000]
		Digital Forge		[12,000]
239A	9999999999	CLASSIFIED PROGRAMS	47,342	47,342
		SUBTOTAL OPERATIONAL SYSTEM DEVELOPMENT	**1,192,827**	**1,319,827**
		SOFTWARE AND DIGITAL TECHNOLOGY PILOT PROGRAMS		
240	0608041A	DEFENSIVE CYBER—SOFTWARE PROTOTYPE DEVELOPMENT.	94,095	91,095
		Program decrease		[–3,000]
		SUBTOTAL SOFTWARE AND DIGITAL TECHNOLOGY PILOT PROGRAMS.	**94,095**	**91,095**
		TOTAL RESEARCH, DEVELOPMENT, TEST AND EVALUATION, ARMY.	**18,708,826**	**19,201,843**
		RESEARCH, DEVELOPMENT, TEST AND EVALUATION, NAVY		
		BASIC RESEARCH		
001	0601103N	UNIVERSITY RESEARCH INITIATIVES		47,500
		Artificial Intelligence Maritime Maneuvering		[2,500]
		Multi-Frequency Satellite Data Reception and Technological Upgrades.		[5,000]
		Program increase		[40,000]
002	0601153N	DEFENSE RESEARCH SCIENCES	525,399	527,899
		Physiological Stress Response Program		[2,500]
		SUBTOTAL BASIC RESEARCH	**525,399**	**575,399**
		APPLIED RESEARCH		
003	0602114N	POWER PROJECTION APPLIED RESEARCH	38,838	43,838
		Hypersonics Correlation Modeling and Simulation		[5,000]

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Line	Program Element	Item	FY 2027 Request	House Authorized
004	0602123N	FORCE PROTECTION APPLIED RESEARCH	137,779	145,279
		Arctic Unmanned Resilient Offshore Reconnaissance Asset (AURORA) USV Study.		[5,000]
		Talent and Technology for Navy Power Systems		[2,500]
005	0602131M	MARINE CORPS LANDING FORCE TECHNOLOGY	57,567	60,067
		Unmanned Logistics		[2,500]
006	0602235N	COMMON PICTURE APPLIED RESEARCH	40,433	40,433
007	0602236N	WARFIGHTER SUSTAINMENT APPLIED RESEARCH	60,350	60,350
008	0602271N	ELECTROMAGNETIC SYSTEMS APPLIED RESEARCH	74,603	74,603
009	0602435N	OCEAN WARFIGHTING ENVIRONMENT APPLIED RESEARCH	64,693	64,693
010	0602651M	JOINT NON-LETHAL WEAPONS APPLIED RESEARCH	4,105	4,105
011	0602747N	UNDERSEA WARFARE APPLIED RESEARCH	52,515	55,015
		Academic Partnerships for Submarine and Undersea Vehicle Research and Manufacturing.		[2,500]
012	0602750N	FUTURE NAVAL CAPABILITIES APPLIED RESEARCH	305,357	300,357
		Program decrease		[–5,000]
013	0602782N	MINE AND EXPEDITIONARY WARFARE APPLIED RESEARCH	24,634	34,634
		Procurement of undersea attritable systems		[10,000]
015	0602861N	SCIENCE AND TECHNOLOGY MANAGEMENT—ONR FIELD ACITIVITIES.	74,378	74,378
		SUBTOTAL APPLIED RESEARCH	**935,252**	**957,752**
		ADVANCED TECHNOLOGY DEVELOPMENT		
016	0603123N	FORCE PROTECTION ADVANCED TECHNOLOGY	50,869	50,869
017	0603271N	ELECTROMAGNETIC SYSTEMS ADVANCED TECHNOLOGY	8,635	8,635
018	0603273N	SCIENCE & TECHNOLOGY FOR NUCLEAR RE-ENTRY SYSTEMS.	114,767	114,767
019	0603640M	USMC ADVANCED TECHNOLOGY DEMONSTRATION (ATD)	287,897	292,897
		Advanced Technology Demonstration		[5,000]
020	0603651M	JOINT NON-LETHAL WEAPONS TECHNOLOGY DEVELOPMENT.	8,727	8,727
021	0603673N	FUTURE NAVAL CAPABILITIES ADVANCED TECHNOLOGY DEVELOPMENT.	445,977	440,977
		Program decrease		[–5,000]
022	0603680N	MANUFACTURING TECHNOLOGY PROGRAM	79,132	116,632
		Pilot Program for Adaptive Electronic Warfare-Resilient and Quantum-Secure Autonomy small UAS Architecture Testing.		[2,500]
		Solid Rocket Second Source Qualification Increase		[25,000]
		Trusted Radiation-hardened integrated electronics		[10,000]
024	0603758N	NAVY WARFIGHTING EXPERIMENTS AND DEMONSTRATIONS.	66,395	76,395
		Deployable data centers that deliver remote and resilient edge computing.		[10,000]
		SUBTOTAL ADVANCED TECHNOLOGY DEVELOPMENT.	**1,062,399**	**1,109,899**
		ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES		
027	0603128N	UNMANNED AERIAL SYSTEM	35,706	35,706
029	0603207N	AIR/OCEAN TACTICAL APPLICATIONS	76,141	76,141
030	0603216N	AVIATION SURVIVABILITY	20,010	20,010
031	0603239N	NAVAL CONSTRUCTION FORCES	7,726	7,726
032	0603254N	ASW SYSTEMS DEVELOPMENT	20,070	20,070
033	0603261N	TACTICAL AIRBORNE RECONNAISSANCE	3,239	3,239
034	0603382N	ADVANCED COMBAT SYSTEMS TECHNOLOGY	32,263	38,263
		C-C Embedded Hypersonics Alternative PNT		[6,000]
035	0603502N	SURFACE AND SHALLOW WATER MINE COUNTERMEASURES.	32,451	32,451
036	0603506N	SURFACE SHIP TORPEDO DEFENSE	9,920	9,920
037	0603512N	CARRIER SYSTEMS DEVELOPMENT	8,806	8,806
038	0603525N	PILOT FISH	1,339,052	1,339,052
039	0603536N	RETRACT JUNIPER	275,300	275,300
040	0603542N	RADIOLOGICAL CONTROL	704	704
042	0603561N	UNDERSEA WARFARE SYSTEM DEVELOPMENT	132,885	138,885
		Automated System Operational Verification Test Capability for AN/BYG–1.		[6,000]
044	0603563N	SHIP CONCEPT ADVANCED DESIGN	353,893	363,893
		Hybrid Robotic Automation Demonstration		[10,000]
045	0603564N	SHIP PRELIMINARY DESIGN & FEASIBILITY STUDIES	666,640	666,640
046	0603570N	ADVANCED NUCLEAR POWER SYSTEMS	392,426	392,426
047	0603573N	ADVANCED SURFACE MACHINERY SYSTEMS	269,961	274,961
		Integration of Insulated Bus Pipe (IBP) Into Warship Designs		[5,000]
048	0603576N	CHALK EAGLE	149,351	149,351
049	0603581N	LITTORAL COMBAT SHIP (LCS)	12,576	7,576
		Insufficient justification		[–5,000]
050	0603582N	COMBAT SYSTEM INTEGRATION	18,819	18,819
051	0603595N	OHIO REPLACEMENT	331,577	346,577
		Large-Scale Superstructures Cooperative Processing		[15,000]

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052	0603596N	LCS MISSION MODULES	46,239	16,239
		Insufficient justification		[–30,000]
053	0603597N	AUTOMATED TEST AND RE-TEST (ATRT)	18,070	18,070
054	0603598N	ATRT ENTERPRISE RAPID CAPABILITY	87,585	97,585
		Digital Combat Console Capability for Aegis Low Altitude Air Defense Integration.		[10,000]
055	0603599N	FRIGATE DEVELOPMENT	212,041	212,041
056	0603609N	CONVENTIONAL MUNITIONS	10,216	10,216
057	0603635M	MARINE CORPS GROUND COMBAT/SUPPORT SYSTEM	521,995	501,995
		Unjustified growth		[–20,000]
058	0603654N	JOINT SERVICE EXPLOSIVE ORDNANCE DEVELOPMENT	43,568	43,568
059	0603713N	OCEAN ENGINEERING TECHNOLOGY DEVELOPMENT	15,903	25,903
		Expeditionary Lock-Out Dive Trainer		[10,000]
060	0603721N	ENVIRONMENTAL PROTECTION	19,347	19,347
061	0603724N	NAVY ENERGY PROGRAM	59,591	156,591
		Program increase		[97,000]
062	0603725N	FACILITIES IMPROVEMENT	13,738	18,738
		Robotic Navy Firefighting		[5,000]
063	0603734N	CHALK CORAL	995,658	995,658
064	0603739N	NAVY LOGISTIC PRODUCTIVITY	929	929
065	0603746N	RETRACT MAPLE	655,551	655,551
066	0603748N	LINK PLUMERIA	498,853	498,853
067	0603751N	RETRACT ELM	87,999	87,999
068	0603764M	LINK EVERGREEN	593,835	593,835
069	0603790N	NATO RESEARCH AND DEVELOPMENT	5,513	5,513
070	0603795N	LAND ATTACK TECHNOLOGY	985	985
071	0603851M	JOINT NON-LETHAL WEAPONS TESTING	14,152	14,152
072	0603860N	JOINT PRECISION APPROACH AND LANDING SYSTEMS—DEM/VAL.	73,813	73,813
073	0603889N	COUNTERDRUG RDT&E PROJECTS	6,500	6,500
074	0603925N	DIRECTED ENERGY AND ELECTRIC WEAPON SYSTEMS	94,825	97,325
		Containerized High Energy Laser with Integrated Optical-dazzler and Surveillance.		[5,000]
		Containerized Maritime High Energy Laser Weapon System		[2,500]
		Unjustified growth		[–5,000]
076	0604027N	DIGITAL WARFARE OFFICE	182,205	176,205
		Unjustified growth		[–6,000]
077	0604028N	SMALL AND MEDIUM UNMANNED UNDERSEA VEHICLES	24,598	24,598
078	0604029N	UNMANNED UNDERSEA VEHICLE CORE TECHNOLOGIES	62,460	62,460
081	0604112N	GERALD R. FORD CLASS NUCLEAR AIRCRAFT CARRIER (CVN 78—80).	111,241	111,241
082	0604127N	SURFACE MINE COUNTERMEASURES	17,762	17,762
083	0604272N	TACTICAL AIR DIRECTIONAL INFRARED COUNTERMEASURES (TADIRCM).	14,974	14,974
084	0604286N	NAVY ADVANCED MANUFACTURING	10,016	10,016
085	0604289M	NEXT GENERATION LOGISTICS	24	24
086	0604292N	FUTURE VERTICAL LIFT (MARITIME STRIKE)	5,314	5,314
087	0604295M	MARINE AVIATION DEMONSTRATION/VALIDATION	47,152	95,152
		Vertical Takeoff and Landing Development for autonomous logistics in contested environments.		[48,000]
088	0604320M	RAPID TECHNOLOGY CAPABILITY PROTOTYPE	125,999	125,999
089	0604454N	LX (R)	18,574	18,574
090	0604536N	ADVANCED UNDERSEA PROTOTYPING	164,512	164,512
091	0604545N	ADVANCED SHIP BUILDING INDUSTRIAL BASE AND FUTURE SHIP EXPERIMENTAL.		20,000
		Fielding of Uncrewed Surveillance Systems		[20,000]
092	0604636N	COUNTER UNMANNED AIRCRAFT SYSTEMS (C-UAS)	20,833	20,833
093	0604659N	PRECISION STRIKE WEAPONS DEVELOPMENT PROGRAM	206,873	206,873
094	0604707N	SPACE AND ELECTRONIC WARFARE (SEW) ARCHITECTURE/ENGINEERING SUPPORT.	8,657	8,657
095	0604786N	OFFENSIVE ANTI-SURFACE WARFARE WEAPON DEVELOPMENT.	104,527	168,527
		Transfer from WPN–17		[64,000]
097	0605513N	UNMANNED SURFACE VEHICLE ENABLING CAPABILITIES	255,135	255,135
098	0605514M	GROUND BASED ANTI-SHIP MISSILE	16,307	16,307
100	0605518N	CONVENTIONAL PROMPT STRIKE (CPS)	1,341,416	1,341,416
101	0105519N	NUCLEAR-ARMED SEA-LAUNCHED CRUISE MISSILE (SLCM-N) SUPPORT.		175,000
		Program adjustment		[175,000]
102	0207147M	COLLABORATIVE COMBAT AIRCRAFT	213,934	213,934
104	0303354N	ASW SYSTEMS DEVELOPMENT—MIP	3,206	3,206
105	0304240M	ADVANCED TACTICAL UNMANNED AIRCRAFT SYSTEM	1,979	1,979
107	0304797N	UNDERSEA ARTIFICIAL INTELLIGENCE / MACHINE LEARNING (AI/ML).	13,563	13,563
		SUBTOTAL ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES.	**11,237,683**	**11,650,183**
		SYSTEM DEVELOPMENT AND DEMONSTRATION		

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Line	Program Element	Item	FY 2027 Request	House Authorized
108	0603208N	TRAINING SYSTEM AIRCRAFT	80,617	80,617
109	0604038N	MARITIME TARGETING CELL	216,514	216,514
110	0604212N	OTHER HELO DEVELOPMENT	976	976
112	0604215N	STANDARDS DEVELOPMENT	4,399	4,399
113	0604216N	MULTI-MISSION HELICOPTER UPGRADE DEVELOPMENT	88,855	88,855
114	0604230N	WARFARE SUPPORT SYSTEM	73,080	73,080
115	0604231N	COMMAND AND CONTROL SYSTEMS	73,534	73,534
116	0604234N	ADVANCED HAWKEYE	390,260	390,260
117	0604245M	H–1 UPGRADES	66,446	66,446
118	0604261N	ACOUSTIC SEARCH SENSORS	48,875	48,875
119	0604262N	V–22	252,335	252,335
120	0604264N	AIR CREW SYSTEMS DEVELOPMENT	21,582	21,582
121	0604269N	EA–18	131,683	131,683
122	0604270N	ELECTRONIC WARFARE DEVELOPMENT	168,985	168,985
123	0604273M	EXECUTIVE HELO DEVELOPMENT	69,438	69,438
124	0604274N	NEXT GENERATION JAMMER (NGJ)	50,332	50,332
125	0604280N	JOINT TACTICAL RADIO SYSTEM—NAVY (JTRS-NAVY)	409,318	412,318
		TIMEly Undersea Communications Network		[3,000]
126	0604282N	NEXT GENERATION JAMMER (NGJ) INCREMENT II	497,011	457,011
		Program decrease		[–40,000]
127	0604307N	SURFACE COMBATANT COMBAT SYSTEM ENGINEERING	425,060	425,060
128	0604329N	SMALL DIAMETER BOMB (SDB)	64,428	64,428
129	0604366N	STANDARD MISSILE IMPROVEMENTS	539,279	539,279
130	0604373N	AIRBORNE MCM	8,567	8,567
131	0604378N	NAVAL INTEGRATED FIRE CONTROL—COUNTER AIR SYSTEMS ENGINEERING.	42,177	42,177
132	0604501N	ADVANCED ABOVE WATER SENSORS	67,900	67,900
133	0604503N	SUBMARINE SWFTS MODERNIZATION	195,361	195,361
134	0604504N	AIR CONTROL	41,610	41,610
135	0604512N	SHIPBOARD AVIATION SYSTEMS	30,970	30,970
136	0604516N	SHIP SURVIVABILITY	7,861	7,861
138	0604522N	AIR AND MISSILE DEFENSE RADAR (AMDR) SYSTEM	96,642	96,642
139	0604530N	ADVANCED ARRESTING GEAR (AAG)	60,518	60,518
140	0604558N	NEW DESIGN SSN	237,103	237,103
142	0604567N	SHIP CONTRACT DESIGN/ LIVE FIRE T&E	19,429	19,429
143	0604574N	NAVY TACTICAL COMPUTER RESOURCES	3,415	3,415
144	0604601N	MINE DEVELOPMENT	158,666	158,666
145	0604610N	LIGHTWEIGHT TORPEDO DEVELOPMENT	102,159	102,159
146	0604654N	JOINT SERVICE EXPLOSIVE ORDNANCE DEVELOPMENT	8,509	8,509
147	0604657M	USMC GROUND COMBAT/SUPPORTING ARMS SYSTEMS—ENG DEV.	69,478	69,478
148	0604703N	PERSONNEL, TRAINING, SIMULATION, AND HUMAN FACTORS.	8,316	8,316
149	0604727N	JOINT STANDOFF WEAPON SYSTEMS	1,447	1,447
150	0604755N	SHIP SELF DEFENSE (DETECT & CONTROL)	156,167	156,167
151	0604756N	SHIP SELF DEFENSE (ENGAGE: HARD KILL)	296,261	296,261
152	0604757N	SHIP SELF DEFENSE (ENGAGE: SOFT KILL/EW)	196,761	196,761
153	0604761N	INTELLIGENCE ENGINEERING	6,426	6,426
154	0604771N	MEDICAL DEVELOPMENT	6,900	6,900
155	0604777N	NAVIGATION/ID SYSTEM	3,388	3,388
156	0604850N	SSN(X)	315,914	315,914
157	0605013M	INFORMATION TECHNOLOGY DEVELOPMENT	14,380	14,380
158	0605013N	INFORMATION TECHNOLOGY DEVELOPMENT	149,089	149,089
159	0605024N	ANTI-TAMPER TECHNOLOGY SUPPORT	3,459	3,459
160	0605180N	TACAMO MODERNIZATION	1,662,723	1,552,723
		Contract delay		[–110,000]
161	0605212M	CH–53K RDTE	139,273	139,273
162	0605215N	MISSION PLANNING	82,618	82,618
163	0605217N	COMMON AVIONICS	133,855	133,855
164	0605220N	SHIP TO SHORE CONNECTOR (SSC)	4,519	4,519
165	0605285N	NEXT GENERATION FIGHTER	68,498	68,498
167	0605450M	JOINT AIR-TO-GROUND MISSILE (JAGM)	189,866	189,866
168	0605500N	MULTI-MISSION MARITIME AIRCRAFT (MMA)	87,173	87,173
169	0605504N	MULTI-MISSION MARITIME (MMA) INCREMENT III	52,951	52,951
170	0605516N	LONG RANGE FIRES	186,735	186,735
171	0605611M	MARINE CORPS ASSAULT VEHICLES SYSTEM DEVELOPMENT & DEMONSTRATION.	12,461	12,461
172	0605813M	JOINT LIGHT TACTICAL VEHICLE (JLTV) SYSTEM DEVELOPMENT & DEMONSTRATION.	2,413	2,413
173	0204202N	DESTROYERS GUIDED MISSILE (DDG–1000)	50,166	50,166
174	0301377N	COUNTERING ADVANCED CONVENTIONAL WEAPONS (CACW).	15,563	15,563
175	0302315N	NON-KINETIC COUNTERMEASURE SUPPORT	23,146	23,146
181	0304785N	ISR & INFO OPERATIONS	274,478	274,478
183	0306250M	CYBER OPERATIONS TECHNOLOGY DEVELOPMENT	8,962	8,962
		SUBTOTAL SYSTEM DEVELOPMENT AND DEMONSTRATION.	**8,977,280**	**8,830,280**

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		MANAGEMENT SUPPORT		
184	0604256N	THREAT SIMULATOR DEVELOPMENT	16,453	16,453
185	0604258N	TARGET SYSTEMS DEVELOPMENT	22,653	17,653
		Unjustified growth		[–5,000]
186	0604759N	MAJOR T&E INVESTMENT	112,458	104,458
		Unjustified growth		[–8,000]
187	0605152N	STUDIES AND ANALYSIS SUPPORT—NAVY	4,336	4,336
188	0605154N	CENTER FOR NAVAL ANALYSES	28,310	28,310
191	0605853N	MANAGEMENT, TECHNICAL & INTERNATIONAL SUPPORT	124,898	124,898
192	0605856N	STRATEGIC TECHNICAL SUPPORT	4,260	4,260
193	0605863N	RDT&E SHIP AND AIRCRAFT SUPPORT	170,699	170,699
194	0605864N	TEST AND EVALUATION SUPPORT	470,492	470,492
195	0605865N	OPERATIONAL TEST AND EVALUATION CAPABILITY	31,902	31,902
196	0605866N	NAVY SPACE AND ELECTRONIC WARFARE (SEW) SUPPORT	21,498	21,498
197	0605867N	SEW SURVEILLANCE/RECONNAISSANCE SUPPORT	25,144	25,144
198	0605873M	MARINE CORPS PROGRAM WIDE SUPPORT	70,013	70,013
199	0605898N	MANAGEMENT HQ—R&D	33,533	33,533
200	0606295M	MARINE AVIATION DEVELOPMENTAL MANAGEMENT AND SUPPORT.	19,165	19,165
201	0606355N	WARFARE INNOVATION MANAGEMENT	35,931	35,931
202	0606942N	ASSESSMENTS AND EVALUATIONS CYBER VULNERABILITIES.	11,282	11,282
203	0305327N	INSIDER THREAT	2,214	2,214
204	0902498N	MANAGEMENT HEADQUARTERS (DEPARTMENTAL SUPPORT ACTIVITIES).	2,054	2,054
		SUBTOTAL MANAGEMENT SUPPORT	**1,207,295**	**1,194,295**
		OPERATIONAL SYSTEM DEVELOPMENT		
208	0604840M	F–35 C2D2	469,779	469,779
209	0604840N	F–35 C2D2	428,545	428,545
210	0605520M	MARINE CORPS AIR DEFENSE WEAPONS SYSTEMS	133,041	133,041
211	0607658N	COOPERATIVE ENGAGEMENT CAPABILITY (CEC)	120,782	120,782
212	0101221N	STRATEGIC SUB & WEAPONS SYSTEM SUPPORT	1,051,736	1,051,736
213	0101224N	SSBN SECURITY TECHNOLOGY PROGRAM	65,856	65,856
214	0101226N	SUBMARINE ACOUSTIC WARFARE DEVELOPMENT	114,279	114,279
215	0101402N	NAVY STRATEGIC COMMUNICATIONS	88,572	88,572
216	0204136N	F/A–18 SQUADRONS	271,429	278,429
		Spiking Neuromorphic Advanced Processing		[7,000]
218	0204229N	TOMAHAWK AND TOMAHAWK MISSION PLANNING CENTER (TMPC).	76,653	76,653
219	0204311N	INTEGRATED SURVEILLANCE SYSTEM	71,901	71,901
220	0204313N	SHIP-TOWED ARRAY SURVEILLANCE SYSTEMS	954	954
221	0204413N	AMPHIBIOUS TACTICAL SUPPORT UNITS (DISPLACEMENT CRAFT).	1,526	1,526
222	0204460M	GROUND/AIR TASK ORIENTED RADAR (G/ATOR)	66,255	66,255
223	0204571N	CONSOLIDATED TRAINING SYSTEMS DEVELOPMENT	115,839	115,839
224	0204575N	ELECTRONIC WARFARE (EW) READINESS SUPPORT	198,560	198,560
225	0205601N	ANTI-RADIATION MISSILE IMPROVEMENT	80,491	72,442
		Program decrease		[–8,049]
227	0205632N	MK–48 ADCAP	123,011	123,011
228	0205633N	AVIATION IMPROVEMENTS	108,505	97,655
		Program decrease		[–10,850]
229	0205675N	OPERATIONAL NUCLEAR POWER SYSTEMS	252,893	252,893
230	0206313M	MARINE CORPS COMMUNICATIONS SYSTEMS	268,983	248,983
		Program decrease		[–20,000]
232	0206623M	MARINE CORPS GROUND COMBAT/SUPPORTING ARMS SYSTEMS.	79,031	79,031
233	0206624M	MARINE CORPS COMBAT SERVICES SUPPORT	19,915	19,915
234	0206625M	USMC INTELLIGENCE/ELECTRONIC WARFARE SYSTEMS	149,055	139,055
		Program decrease		[–10,000]
235	0207161N	TACTICAL AIM MISSILES	122,518	110,267
		Program decrease		[–12,251]
236	0207163N	ADVANCED MEDIUM RANGE AIR-TO-AIR MISSILE (AMRAAM)	24,675	24,675
237	0207255N	MQ–25 STINGRAY	513,308	513,308
238	0208043N	PLANNING AND DECISION AID SYSTEM (PDAS)	3,491	3,491
242	0303138N	AFLOAT NETWORKS	68,369	68,369
243	0303140N	INFORMATION SYSTEMS SECURITY PROGRAM	79,128	79,128
244	0305192N	MILITARY INTELLIGENCE PROGRAM (MIP) ACTIVITIES	5,187	5,187
247	0305220N	MQ–4C TRITON	10,515	10,515
248	0305232M	RQ–11 UAV	19,842	19,842
249	0305241N	MULTI-INTELLIGENCE SENSOR DEVELOPMENT	49,898	49,898
250	0305242M	UNMANNED AERIAL SYSTEMS (UAS) PAYLOADS (MIP)	20,750	20,750
251	0305421N	MQ–4C TRITON MODERNIZATION	344,890	344,890
252	0307577N	INTELLIGENCE MISSION DATA (IMD)	787	787
253	0308601N	MODELING AND SIMULATION SUPPORT	16,401	16,401
254	0702207N	DEPOT MAINTENANCE (NON-IF)	8,097	8,097
255	0708730N	MARITIME TECHNOLOGY (MARITECH)	1,710	1,710
255A	9999999999	CLASSIFIED PROGRAMS	2,755,838	2,755,838

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Line	Program Element	Item	FY 2027 Request	House Authorized
		SUBTOTAL OPERATIONAL SYSTEM DEVELOPMENT	**8,402,995**	**8,348,845**
		SOFTWARE AND DIGITAL TECHNOLOGY PILOT PROGRAMS		
256	0608013N	RISK MANAGEMENT INFORMATION—SOFTWARE PILOT PROGRAM.	13,017	13,017
257	0608231N	MARITIME TACTICAL COMMAND AND CONTROL (MTC2)—SOFTWARE PILOT PROGRAM.	25,299	25,299
		SUBTOTAL SOFTWARE AND DIGITAL TECHNOLOGY PILOT PROGRAMS.	**38,316**	**38,316**
		TOTAL RESEARCH, DEVELOPMENT, TEST AND EVALUATION, NAVY.	**32,386,619**	**32,704,969**
		RESEARCH, DEVELOPMENT, TEST AND EVALUATION, AIR FORCE		
		BASIC RESEARCH		
001	0601102F	DEFENSE RESEARCH SCIENCES	296,535	301,535
		Program increase		[5,000]
002	0601103F	UNIVERSITY RESEARCH INITIATIVES	91,394	96,394
		Program increase		[5,000]
		SUBTOTAL BASIC RESEARCH	**387,929**	**397,929**
		APPLIED RESEARCH		
003	0602020F	FUTURE AF CAPABILITIES APPLIED RESEARCH	44,029	44,029
005	0602102F	MATERIALS	139,872	152,872
		Advanced Composites in Hypersonics and Attritable Aircraft Research.		[10,000]
		Metals Affordability Initiative		[3,000]
007	0602202F	HUMAN EFFECTIVENESS APPLIED RESEARCH	103,170	103,170
008	0602203F	AEROSPACE SYSTEMS TECHNOLOGIES	397,809	402,809
		Reusable Hypersonics Development and Transition		[5,000]
009	0602204F	AEROSPACE SENSORS	164,962	169,962
		Microelectronic manufacturing development		[5,000]
011	0602298F	SCIENCE AND TECHNOLOGY MANAGEMENT— MAJOR HEADQUARTERS ACTIVITIES.	10,285	10,285
012	0602336F	NUCLEAR DELIVERY SYSTEMS TECH EXPLORATION	27,031	27,031
013	0602602F	CONVENTIONAL MUNITIONS	130,146	125,146
		Program decrease		[–5,000]
014	0602605F	DIRECTED ENERGY TECHNOLOGY	91,798	91,798
015	0602788F	DOMINANT INFORMATION SCIENCES AND METHODS	149,174	174,174
		Autonomous Battle Management Across the full Spectrum of Conflict.		[2,500]
		Distributed Quantum Networking Testbed and Quantum Cloud Computing Environment.		[2,500]
		Future Flag Operational Experimentation Testbed		[2,500]
		Ion-Trap Quantum Computer for Air Platform Applied Research activities.		[5,000]
		Photonic Quantum Computing		[2,500]
		Quantum entanglement distribution research		[10,000]
		SUBTOTAL APPLIED RESEARCH	**1,258,276**	**1,301,276**
		ADVANCED TECHNOLOGY DEVELOPMENT		
016	0603032F	FUTURE AF INTEGRATED TECHNOLOGY DEMOS	282,004	282,004
017	0603112F	ADVANCED MATERIALS FOR WEAPON SYSTEMS	32,808	37,808
		Hypersonics manufacturing development		[5,000]
018	0603199F	SUSTAINMENT SCIENCE AND TECHNOLOGY (S&T)	13,277	13,277
019	0603203F	ADVANCED AEROSPACE SENSORS	72,149	72,149
020	0603211F	AEROSPACE TECHNOLOGY DEV/DEMO	260,212	312,712
		Advanced High Mach Turbine Engines Using Additive Manufacturing.		[2,500]
		CCA Propulsion Integration		[20,000]
		Hybrid Integrated Turret for Extended-Capability High-Energy Lasers.		[2,500]
		Solid Rocket Second Source Qualification Increase		[25,000]
		Turboelectric Adaptive Engine Demonstration		[2,500]
022	0603273F	SCIENCE & TECHNOLOGY FOR NUCLEAR RE-ENTRY SYSTEMS.	165,949	172,949
		Smart Thermal Protection Systems (TPS) for Next-Gen Systems		[7,000]
023	0603456F	HUMAN EFFECTIVENESS ADVANCED TECHNOLOGY DEVELOPMENT.	20,338	20,338
024	0603601F	CONVENTIONAL WEAPONS TECHNOLOGY	131,397	128,397
		Program decrease		[–3,000]
025	0603605F	ADVANCED WEAPONS TECHNOLOGY	13,744	13,744
026	0603680F	MANUFACTURING TECHNOLOGY PROGRAM	99,908	102,408
		Virtual, Augmented, and Mixed Reality Readiness		[2,500]
027	0603788F	BATTLESPACE KNOWLEDGE DEVELOPMENT AND DEMONSTRATION.	31,938	46,938

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		Nationwide Integration of Time Resiliency for Operations		[2,500]
		Scalable Collaborative Autonomy for Unmanned Systems		[2,500]
		Secure Hardened Architecture for Radiation Environments		[10,000]
028	0604776F	DEPLOYMENT & DISTRIBUTION ENTERPRISE R&D	29,109	24,109
		Program decrease		[–5,000]
		SUBTOTAL ADVANCED TECHNOLOGY DEVELOPMENT.	**1,152,833**	**1,226,833**
		ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES		
030	0603036F	MODULAR ADVANCED MISSILE	15,099	15,099
031	0603260F	INTELLIGENCE ADVANCED DEVELOPMENT	4,012	4,012
033	0603742F	COMBAT IDENTIFICATION TECHNOLOGY	25,888	25,888
034	0603790F	NATO RESEARCH AND DEVELOPMENT	2,320	2,320
035	0603851F	INTERCONTINENTAL BALLISTIC MISSILE—DEM/VAL	72,112	72,112
036	0604001F	NC3 ADVANCED CONCEPTS	14,394	14,394
037	0604003F	ADVANCED BATTLE MANAGEMENT SYSTEM (ABMS)	1,040,945	1,035,945
		Program decrease		[–5,000]
039	0604005F	NC3 COMMERCIAL DEVELOPMENT & PROTOTYPING	61,355	61,355
041	0604009F	AFWERX	3,589	6,089
		Ultra-Short Takeoff and Landing Aircraft Development		[2,500]
042	0604010F	NEXT GENERATION ADAPTIVE PROPULSION	513,681	462,313
		Program decrease		[–51,368]
043	0604015F	LONG RANGE STRIKE—BOMBER	2,862,677	2,862,677
046	0604033F	HYPERSONICS PROTOTYPING	345,769	345,769
047	0604041F	FAMILY OF AFFORDABLE MASS MISSILES (FAMM)	525,223	472,701
		Program decrease		[–52,522]
048	0604060F	NORAD & USNORTHCOM (N&NC) EXPERIMENTATION	39,257	39,257
049	0604183F	HYPERSONICS PROTOTYPING—HYPERSONIC ATTACK CRUISE MISSILE (HACM).	806,142	806,142
050	0604257F	ADVANCED TECHNOLOGY AND SENSORS	38,756	38,756
052	0604317F	TECHNOLOGY TRANSFER	2,196	2,196
053	0604327F	HARD AND DEEPLY BURIED TARGET DEFEAT SYSTEM (HDBTDS) PROGRAM.	186,385	186,385
054	0604336F	NUCLEAR DELIVERY SYSTEMS PROTOTYPING	91,550	91,550
055	0604343F	ADVANCED TANKER SYSTEMS	13,036	13,036
056	0604414F	CYBER RESILIENCY OF WEAPON SYSTEMS-ACS	44,377	44,377
057	0604609F	REQUIREMENTS ANALYSIS & CONCEPT MATURATION	57,575	57,575
058	0604668F	JOINT TRANSPORTATION MANAGEMENT SYSTEM (JTMS)	57,802	57,802
059	0604776F	DEPLOYMENT & DISTRIBUTION ENTERPRISE R&D	5,136	5,136
060	0604858F	TECH TRANSITION PROGRAM	166,061	163,455
		AI Hardware and Software for Sensors and Countermeasures		[5,000]
		Critical Additive Advanced Manufacturing		[9,000]
		Program decrease		[–16,606]
061	0604860F	OPERATIONAL ENERGY AND INSTALLATION RESILIENCE	61,000	183,000
		Program increase		[122,000]
064	0606004F	NUCLEAR ENTERPRISE RESEARCH & DEVELOPMENT	1,105	26,105
		B–52 Agile Pod Advanced Sensor Fusion Software Development		[25,000]
065	0606005F	DIGITAL TRANSFORMATION OFFICE	183,398	183,398
067	0207147F	COLLABORATIVE COMBAT AIRCRAFT	1,373,740	1,236,366
		Program decrease		[–137,374]
068	0207179F	AUTONOMOUS COLLABORATIVE PLATFORMS	57,217	51,496
		Program decrease		[–5,721]
069	0207420F	COMBAT IDENTIFICATION	1,692	1,692
071	0207455F	THREE DIMENSIONAL LONG-RANGE RADAR (3DELRR)	22,335	22,335
072	0207522F	AIRBASE AIR DEFENSE SYSTEMS (ABADS)	85,305	85,305
073	0207606F	JOINT SIMULATION ENVIRONMENT (JSE)	302,801	302,801
074	0208030F	WAR RESERVE MATERIEL—AMMUNITION	14,663	14,663
075	0302060F	LOOKING GLASS NEXT	65,277	65,277
076	0303010F	AF ISR DIGITAL INFRASTRUCTURE	24,455	24,455
077	0305236F	COMMON DATA LINK EXECUTIVE AGENT (CDL EA)	26,401	23,761
		Program decrease		[–2,640]
079	0305913F	PERSISTENT SURVEILLANCE	29,325	29,325
080	0701200F	ENTERPRISE SELECT CLASS II	949	949
081	0708051F	RAPID SUSTAINMENT MODERNIZATION (RSM)	27,475	27,475
082	0808736F	SPECIAL VICTIM ACCOUNTABILITY AND INVESTIGATION	1,652	1,652
083	0808737F	INTEGRATED PRIMARY PREVENTION	4,271	4,271
084	0901410F	CONTRACTING INFORMATION TECHNOLOGY SYSTEM	25,815	25,815
085	1206415F	U.S. SPACE COMMAND RESEARCH AND DEVELOPMENT SUPPORT.	34,719	34,719
		SUBTOTAL ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES.	**9,338,932**	**9,231,201**
		SYSTEM DEVELOPMENT AND DEMONSTRATION		
086	0604200F	FUTURE ADVANCED WEAPON ANALYSIS & PROGRAMS	35,142	35,142
087	0604201F	PNT RESILIENCY, MODS, AND IMPROVEMENTS	710,780	710,780
088	0604222F	NUCLEAR WEAPONS SUPPORT	86,921	86,921
089	0604270F	ELECTRONIC WARFARE DEVELOPMENT	260,233	220,233

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		Program decrease		[–40,000]
090	0604281F	TACTICAL DATA NETWORKS ENTERPRISE	110,151	110,151
091	0604287F	PHYSICAL SECURITY EQUIPMENT	8,743	8,743
092	0604288F	SURVIVABLE AIRBORNE OPERATIONS CENTER (SAOC)	2,218,921	2,218,921
093	0604602F	ARMAMENT/ORDNANCE DEVELOPMENT	96,762	87,086
		Program decrease		[–9,676]
094	0604604F	SUBMUNITIONS	3,599	3,599
095	0604617F	AGILE COMBAT SUPPORT	19,348	19,348
096	0604706F	LIFE SUPPORT SYSTEMS	21,328	21,328
097	0604735F	COMBAT TRAINING RANGES	132,783	119,505
		Program decrease		[–13,278]
098	0604932F	LONG RANGE STANDOFF WEAPON	565,679	565,679
100	0605056F	OPEN ARCHITECTURE MANAGEMENT	43,482	39,134
		Program decrease		[–4,348]
101	0605223F	ADVANCED PILOT TRAINING	72,174	64,957
		Program decrease		[–7,217]
102	0605238F	GROUND BASED STRATEGIC DETERRENT EMD	4,521,370	4,521,370
103	0605296F	MICROELECTRONICS SECURE ENCLAVE	224,664	220,664
		Unjustified growth		[–4,000]
104	0101125F	NUCLEAR WEAPONS MODERNIZATION	23,066	23,066
105	0102417F	OVER-THE-HORIZON BACKSCATTER RADAR	173,975	173,975
106	0207039F	COGNITIVE ELECTROMAGNETIC WARFARE	50,496	50,496
107	0207110F	F–47	5,037,904	4,971,525
		Program decrease		[–66,379]
108	0207279F	ISOLATED PERSONNEL SURVIVABILITY AND RECOVERY	16,001	16,001
109	0207328F	STAND IN ATTACK WEAPON	115,882	115,882
110	0207407F	ELECTROMAGNETIC BATTLE MANAGEMENT (EMBM)	45,322	45,322
111	0207701F	FULL COMBAT MISSION TRAINING	6,501	6,501
112	0303008F	SATURN	4,771	4,771
116	0305282F	JOINT FIRES NETWORK (JFN)	313,982	313,982
117	0401221F	KC–46A TANKER SQUADRONS	543,788	315,788
		Program decrease		[–228,000]
118	0401319F	VC–25B	555,195	555,195
119	0401334F	LARGE AIRCRAFT SURVIVABILITY SYSTEMS (LASS)	17,996	17,996
120	0701212F	AUTOMATED TEST SYSTEMS	15,900	15,900
121	0804772F	TRAINING DEVELOPMENTS	4,947	4,947
		SUBTOTAL SYSTEM DEVELOPMENT AND DEMONSTRATION.	**16,057,806**	**15,684,908**
		MANAGEMENT SUPPORT		
123	0604256F	THREAT SIMULATOR DEVELOPMENT	44,526	44,526
124	0604759F	MAJOR T&E INVESTMENT	235,405	220,405
		Program decrease		[–15,000]
125	0605101F	RAND PROJECT AIR FORCE	13,312	13,312
127	0605712F	INITIAL OPERATIONAL TEST & EVALUATION	13,562	13,562
128	0605807F	TEST AND EVALUATION SUPPORT	1,802,502	1,747,802
		Digital Knowledge Model Upgrades		[5,300]
		Hypersonic Ground Testing Modernization		[30,000]
		Program decrease		[–90,000]
131	0605829F	ACQ WORKFORCE- CYBER, NETWORK, & BUS SYS	439,592	437,592
		Program decrease		[–2,000]
132	0605831F	ACQ WORKFORCE- CAPABILITY INTEGRATION	1,206,669	1,206,669
134	0605833F	ACQ WORKFORCE- NUCLEAR SYSTEMS	342,650	342,650
135	0605898F	MANAGEMENT HQ—R&D	6,209	6,209
136	0605976F	FACILITIES RESTORATION AND MODERNIZATION—TEST AND EVALUATION SUPPORT.	367,369	367,369
137	0605978F	FACILITIES SUSTAINMENT—TEST AND EVALUATION SUPPORT.	298,924	298,924
138	0606017F	REQUIREMENTS ANALYSIS AND MATURATION	21,678	19,511
		Program decrease		[–2,167]
139	0606398F	MANAGEMENT HQ—T&E	7,507	7,507
140	0208201F	OFFENSIVE SMALL UNMANNED AIRCRAFT SYSTEMS (SUAS)	30,187	30,187
141	0303255F	COMMAND, CONTROL, COMMUNICATION, AND COMPUTERS (C4)—STRATCOM.	18,068	18,068
142	0308602F	ENTEPRISE INFORMATION SERVICES (EIS)	80,342	80,342
143	0702806F	ACQUISITION AND MANAGEMENT SUPPORT	12,132	10,919
		Program decrease		[–1,213]
144	0804776F	ADVANCED DISTRIBUTED LEARNING	238	238
145	0901215F	PRODUCTIVITY INVESTMENTS	4,017	4,017
147	1001004F	INTERNATIONAL ACTIVITIES	4,514	4,514
		SUBTOTAL MANAGEMENT SUPPORT	**4,949,403**	**4,874,323**
		OPERATIONAL SYSTEM DEVELOPMENT		
148	0604222F	NUCLEAR WEAPONS SUPPORT	10,029	10,029
149	0604233F	SPECIALIZED UNDERGRADUATE FLIGHT TRAINING	22,071	22,071
150	0604283F	BATTLE MGMT COM & CTRL SENSOR DEVELOPMENT	44,187	44,187
152	0604840F	F–35 C2D2	1,128,748	1,138,748
		Supply Chain Advanced Manufacturing		[10,000]

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153	0605018F	AF INTEGRATED PERSONNEL AND PAY SYSTEM (AF-IPPS) ..	31,777	31,777
154	0605024F	ANTI-TAMPER TECHNOLOGY EXECUTIVE AGENCY	130,610	117,549
		Program decrease		[–13,061]
155	0605117F	FOREIGN MATERIEL ACQUISITION AND EXPLOITATION	4,676	4,676
156	0605229F	HH–60W	87,881	87,881
157	0605278F	HC/MC–130 RECAP RDT&E	34,932	34,932
158	0606018F	NC3 INTEGRATION	36,521	36,521
159	0101113F	B–52 SQUADRONS	1,478,648	1,478,648
160	0101122F	AIR-LAUNCHED CRUISE MISSILE (ALCM)	570	570
161	0101126F	B–1B SQUADRONS	273,552	273,552
162	0101127F	B–2 SQUADRONS	418,178	398,178
		Slow execution		[–20,000]
163	0101213F	MINUTEMAN SQUADRONS	79,313	79,313
164	0101316F	WORLDWIDE JOINT STRATEGIC COMMUNICATIONS	44,424	44,424
165	0101318F	SERVICE SUPPORT TO STRATCOM—GLOBAL STRIKE	56,203	56,203
166	0101328F	ICBM REENTRY VEHICLES	733,182	733,182
168	0102110F	MH–139A	7,046	7,046
169	0102326F	REGION/SECTOR OPERATION CONTROL CENTER MODERNIZATION PROGRAM.	709	709
171	0202834F	AVIATION SUPPORT EQUIPMENT—GENERAL	1,028	1,028
172	0203345F	OPERATIONS SECURITY (OPSEC)	45,000	45,000
173	0205219F	MQ–9 UAV	16,723	16,723
174	0205671F	JOINT COUNTER RCIED ELECTRONIC WARFARE	2,816	2,816
176	0207133F	F–16 SQUADRONS	527,739	527,739
177	0207134F	F–15E SQUADRONS	322,889	322,889
178	0207136F	MANNED DESTRUCTIVE SUPPRESSION	8,128	8,128
179	0207138F	F–22A SQUADRONS	950,375	950,375
180	0207142F	F–35 SQUADRONS	47,388	47,388
181	0207146F	F–15EX	133,274	133,274
182	0207161F	TACTICAL AIM MISSILES	98,861	93,975
		Dual Mode APKWS		[5,000]
		Program decrease		[–9,886]
183	0207163F	ADVANCED MEDIUM RANGE AIR-TO-AIR MISSILE (AMRAAM)	53,277	53,277
184	0207172F	JOINT ADVANCED TACTICAL MISSILE (JATM)	500,422	500,422
187	0207242F	SPECIAL PROGRAM APPLICATIONS	35,149	35,149
188	0207247F	AF TENCAP	50,913	50,913
189	0207249F	PRECISION ATTACK SYSTEMS PROCUREMENT	14,602	14,602
190	0207253F	COMPASS CALL	66,514	66,514
191	0207268F	AIRCRAFT ENGINE COMPONENT IMPROVEMENT PROGRAM	205,938	205,938
192	0207325F	JOINT AIR-TO-SURFACE STANDOFF MISSILE (JASSM)	133,092	133,092
193	0207327F	SMALL DIAMETER BOMB (SDB)	25,497	25,497
194	0207410F	AIR & SPACE OPERATIONS CENTER (AOC)	158,871	142,984
		Program decrease		[–15,887]
195	0207412F	CONTROL AND REPORTING CENTER (CRC)	18,137	18,137
196	0207418F	AFSPECWAR—TACP	5,206	5,206
198	0207431F	COMBAT AIR INTELLIGENCE SYSTEM ACTIVITIES	33,700	33,700
199	0207438F	THEATER BATTLE MANAGEMENT (TBM) C4I	7,014	7,014
200	0207439F	ELECTROMAGNETIC WARFARE INT REPROG (EWIR)	73,523	73,523
202	0207452F	DCAPES	5,254	5,254
203	0207457F	AIR FORCE SPECIAL WARFARE (SPECWAR)	24,423	24,423
204	0207461F	FLIGHT OPERATIONS SYSTEMS	15,978	15,978
205	0207521F	AIR FORCE CALIBRATION PROGRAMS	2,220	2,220
207	0207590F	SEEK EAGLE	36,710	36,710
208	0207611F	READINESS DECISION SUPPORT ENTERPRISE	6,823	6,823
209	0207697F	DISTRIBUTED TRAINING AND EXERCISES	83,659	73,659
		Program decrease		[–10,000]
210	0207701F	FULL COMBAT MISSION TRAINING	6,644	28,644
		AI-enabled maintenance intelligence platforms across air education and training command.		[22,000]
211	0208006F	MISSION PLANNING SYSTEMS	122,175	109,958
		Program decrease		[–12,217]
212	0208007F	TACTICAL DECEPTION	48,857	43,972
		Program decrease		[–4,885]
213	0208087F	DISTRIBUTED CYBER WARFARE OPERATIONS	71,868	69,868
		Unjustified growth		[–2,000]
214	0208088F	AF DEFENSIVE CYBERSPACE OPERATIONS	76,758	76,758
218	0208288F	INTEL DATA APPLICATIONS	7,511	17,511
		FireFly algorithm development		[10,000]
219	0301025F	GEOBASE	403	403
226	0301377F	COUNTERING ADVANCED CONVENTIONAL WEAPONS (CACW).	1,343	1,343
228	0301401F	AF MULTI-DOMAIN NON-TRADITIONAL ISR BATTLESPACE AWARENESS.	2,754	2,754
229	0302015F	E–4B NATIONAL AIRBORNE OPERATIONS CENTER (NAOC) ...	50,873	50,873
230	0302315F	NON-KINETIC COUNTERMEASURE SUPPORT	4,024	4,024
233	0303131F	MINIMUM ESSENTIAL EMERGENCY COMMUNICATIONS NETWORK (MEECN).	254,837	254,837
234	0303133F	HIGH FREQUENCY RADIO SYSTEMS	33,215	33,215

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235	0303140F	INFORMATION SYSTEMS SECURITY PROGRAM	117,658	117,658
236	0303248F	ALL DOMAIN COMMON PLATFORM	71,312	71,312
238	0304100F	STRATEGIC MISSION PLANNING & EXECUTION SYSTEM (SMPES).	89,663	89,663
239	0304109F	THRESHER	109	109
242	0304260F	AIRBORNE SIGINT ENTERPRISE	98,319	98,319
243	0304310F	COMMERCIAL ECONOMIC ANALYSIS	1,713	1,713
246	0304784F	LONG ENDURANCE—AIRBORNE ISR	16,570	16,570
249	0305022F	ISR MODERNIZATION & AUTOMATION DVMT (IMAD)	16,188	16,188
250	0305099F	GLOBAL AIR TRAFFIC MANAGEMENT (GATM)	4,210	4,210
251	0305103F	CYBER SECURITY INITIATIVE	318	318
252	0305111F	WEATHER SERVICE	29,331	29,331
253	0305114F	AIR TRAFFIC CONTROL, APPROACH, AND LANDING SYSTEM (ATCALS).	61,895	61,895
254	0305116F	AERIAL TARGETS	1,704	1,704
257	0305128F	SECURITY AND INVESTIGATIVE ACTIVITIES	9,642	9,642
258	0305146F	DEFENSE JOINT COUNTERINTELLIGENCE ACTIVITIES	2,469	2,469
259	0305155F	THEATER NUCLEAR WEAPON STORAGE & SECURITY SYSTEM.	24,364	24,364
261	0305179F	INTEGRATED BROADCAST SERVICE (IBS)	18,266	18,266
262	0305206F	AIRBORNE RECONNAISSANCE SYSTEMS	34,273	34,273
263	0305207F	MANNED RECONNAISSANCE SYSTEMS	17,114	17,114
264	0305208F	DISTRIBUTED COMMON GROUND/SURFACE SYSTEMS	85,365	85,365
266	0305221F	NETWORK-CENTRIC COLLABORATIVE TARGETING	9,146	9,146
268	0305240F	ISR TRANSPORT AND PROCESSING	312,037	277,037
		Program decrease		[–35,000]
269	0305249F	AF JWICS ENTERPRISE	19,324	19,324
270	0305600F	INTERNATIONAL INTELLIGENCE TECHNOLOGY AND ARCHITECTURES.	62,000	62,000
271	0305836F	C2IMERA	11,393	11,393
272	0305903F	COCOM MOBILE COMMAND AND CONTROL CENTERS (MCCCS).	2,013	2,013
273	0305984F	PERSONNEL RECOVERY COMMAND & CTRL (PRC2)	1,783	1,783
274	0307577F	INTELLIGENCE MISSION DATA (IMD)	3,151	3,151
275	0401119F	C–5 AIRLIFT SQUADRONS (IF)	76,233	76,233
276	0401130F	C–17 AIRCRAFT (IF)	178,130	198,130
		C–17 Mobility Connectivity increase		[20,000]
277	0401132F	C–130J PROGRAM	16,628	16,628
278	0401134F	LARGE AIRCRAFT IR COUNTERMEASURES (LAIRCM)	12,323	12,323
279	0401218F	KC–135S	121,742	141,742
		KC–135 Mobility Connectivity increase		[20,000]
280	0401318F	CV–22	45,699	45,699
281	0401334F	LARGE AIRCRAFT SURVIVABILITY SYSTEMS (LASS)	50,111	50,111
283	0708610F	LOGISTICS INFORMATION TECHNOLOGY (LOGIT)	21,518	21,518
284	0801380F	AF LVC OPERATIONAL TRAINING (LVC-OT)	23,472	23,472
285	0804743F	OTHER FLIGHT TRAINING	1,950	1,950
286	0901202F	JOINT PERSONNEL RECOVERY AGENCY	2,035	2,035
287	0901218F	CIVILIAN COMPENSATION PROGRAM	4,248	4,248
288	0901220F	PERSONNEL ADMINISTRATION	2,678	2,678
289	0901226F	AIR FORCE STUDIES AND ANALYSIS AGENCY	81,252	65,002
		Program decrease		[–16,250]
291	0901538F	FINANCIAL MANAGEMENT INFORMATION SYSTEMS DEVELOPMENT.	3,316	3,316
292	0901554F	DEFENSE ENTERPRISE ACNTNG AND MGT SYS (DEAMS)	38,301	38,301
293	1201921F	SERVICE SUPPORT TO STRATCOM—SPACE ACTIVITIES	700	700
293A	9999999999	CLASSIFIED PROGRAMS	29,113,107	29,113,107
		SUBTOTAL OPERATIONAL SYSTEM DEVELOPMENT	**39,930,435**	**39,878,249**
		TOTAL RESEARCH, DEVELOPMENT, TEST AND EVALUATION, AIR FORCE.	**73,075,614**	**72,594,719**
		RESEARCH, DEVELOPMENT, TEST, AND EVALUATION, SPACE FORCE		
		BASIC RESEARCH		
001	0601102SF	DEFENSE RESEARCH SCIENCES	20,833	20,833
002	0601103SF	UNIVERSITY RESEARCH INITIATIVES	14,426	14,426
		SUBTOTAL BASIC RESEARCH	**35,259**	**35,259**
		APPLIED RESEARCH		
004	1206601SF	SPACE TECHNOLOGY	234,190	256,690
		Hypersonic weapons advancement		[2,500]
		In-Space Operational Technologies		[10,000]
		Positioning, Navigation, and Timing (PNT) Quantum System demonstration.		[10,000]
		SUBTOTAL APPLIED RESEARCH	**234,190**	**256,690**
		ADVANCED TECHNOLOGY DEVELOPMENT		
005	1206310SF	SPACE SCIENCE AND TECHNOLOGY RESEARCH AND DEVELOPMENT.	313,738	313,738

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006	1206616SF	SPACE ADVANCED TECHNOLOGY DEVELOPMENT/DEMO	126,427	139,927
		Operational Spacecraft Capability Bridge Effort		[13,500]
		SUBTOTAL ADVANCED TECHNOLOGY DEVELOPMENT.	**440,165**	**453,665**
		ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES		
007	0604002SF	SPACE FORCE WEATHER SERVICES RESEARCH	3,581	6,581
		Enhancing U.S. Air Force Academy Rocket Propulsion Curriculum.		[3,000]
008	1203010SF	SPACE FORCE IT, DATA ANALYTICS, DIGITAL SOLUTIONS	45,971	45,971
010	1203622SF	SPACE WARFIGHTING ANALYSIS	128,546	128,546
011	1203710SF	EO/IR WEATHER SYSTEMS	144,434	144,434
012	1203955SF	SPACE ACCESS, MOBILITY & LOGISTICS (SAML)	9,724	9,724
013	1206410SF	SPACE TECHNOLOGY DEVELOPMENT AND PROTOTYPING	1,246,316	1,246,316
014	1206427SF	SPACE SYSTEMS PROTOTYPE TRANSITIONS (SSPT)	87,730	87,730
015	1206438SF	SPACE CONTROL TECHNOLOGY	62,031	62,031
016	1206458SF	TECH TRANSITION (SPACE)	241,056	241,056
017	1206617SF	OPERATIONAL TEST & TRAINING INFRASTRUCTURE	265,215	265,215
018	1206730SF	SPACE SECURITY AND DEFENSE PROGRAM	102,140	102,140
019	1206760SF	PROTECTED TACTICAL ENTERPRISE SERVICE (PTES)	155,885	155,885
020	1206761SF	PROTECTED TACTICAL SERVICE (PTS)	449,434	449,434
022	1206857SF	SPACE RAPID CAPABILITIES OFFICE	9,950	9,950
023	1206862SF	TACTICALLY RESPONSIVE SPACE	86,306	86,306
		SUBTOTAL ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES.	**3,038,319**	**3,041,319**
		SYSTEM DEVELOPMENT AND DEMONSTRATION		
024	1203269SF	GPS III FOLLOW-ON (GPS IIIF)	123,793	123,793
025	1206421SF	COUNTERSPACE SYSTEMS	43,702	43,702
026	1206422SF	WEATHER SYSTEM FOLLOW-ON	34,756	34,756
027	1206425SF	SPACE SITUATION AWARENESS SYSTEMS	1,317,841	1,317,841
028	1206431SF	ADVANCED EHF MILSATCOM (SPACE)	10,157	10,157
030	1206440SF	NEXT-GEN OPIR—GROUND	761,425	761,425
031	1206442SF	NEXT GENERATION OPIR	209,851	209,851
032	1206443SF	NEXT-GEN OPIR—GEO	485,703	485,703
033	1206444SF	NEXT-GEN OPIR—POLAR		415,000
		Next Generation OPIR, Block 0 Polar		[415,000]
034	1206445SF	COMMERCIAL SATCOM (COMSATCOM) INTEGRATION	68,554	68,554
035	1206446SF	RESILIENT MISSILE WARNING MISSILE TRACKING—LOW EARTH ORBIT (LEO).	3,564,176	3,564,176
036	1206447SF	RESILIENT MISSILE WARNING MISSILE TRACKING—MEDIUM EARTH ORBIT (MEO).	1,413,662	1,413,662
037	1206771SF	COMMERCIAL SERVICES	23,752	73,752
		Program increase		[50,000]
038	1206853SF	NATIONAL SECURITY SPACE LAUNCH PROGRAM (SPACE)—EMD.	2,748	2,748
039	1206855SF	EVOLVED STRATEGIC SATCOM (ESS)	1,838,718	1,838,718
		SUBTOTAL SYSTEM DEVELOPMENT AND DEMONSTRATION.	**9,898,838**	**10,363,838**
		MANAGEMENT SUPPORT		
042	1206392SF	ACQ WORKFORCE—SPACE & MISSILE SYSTEMS	260,731	260,731
043	1206398SF	SPACE & MISSILE SYSTEMS CENTER—MHA	13,717	13,717
044	1206399SF	SSC ENTERPRISE ENGINEERING & INTEGRATION	230,848	230,848
045	1206759SF	MAJOR T&E INVESTMENT—SPACE	65,731	65,731
046	1206860SF	ROCKET SYSTEMS LAUNCH PROGRAM (SPACE)	19,965	19,965
047	1206864SF	SPACE TEST PROGRAM (STP)	29,598	29,598
		SUBTOTAL MANAGEMENT SUPPORT	**620,590**	**620,590**
		OPERATIONAL SYSTEM DEVELOPMENT		
049	1201212SF	SERVICE-WIDE SUPPORT (NOT OTHERWISE ACCOUNTED FOR).	28,425	28,425
051	1203040SF	DCO-SPACE	481,251	481,251
052	1203109SF	NARROWBAND SATELLITE COMMUNICATIONS	855,860	855,860
053	1203110SF	SATELLITE CONTROL NETWORK (SPACE)	92,537	92,537
054	1203154SF	LONG RANGE KILL CHAINS	1,392,025	1,392,025
055	1203155SF	SPACE-BASED MOVING TARGET INDICATOR	253,355	253,355
056	1203156SF	DATA TRANSPORT AND NETWORKING	164,974	164,974
057	1203165SF	NAVSTAR GLOBAL POSITIONING SYSTEM (SPACE AND CONTROL SEGMENTS).	115,000	115,000
058	1203173SF	SPACE AND MISSILE TEST AND EVALUATION CENTER	22,487	22,487
059	1203174SF	SPACE INNOVATION, INTEGRATION AND RAPID TECHNOLOGY DEVELOPMENT.	10,538	10,538
060	1203182SF	SPACELIFT RANGE SYSTEM (SPACE)	56,781	56,781
061	1203330SF	SPACE SUPERIORITY ISR	64,290	64,290
064	1203906SF	NCMC—ITW/AA SYSTEM	25,092	25,092
065	1203909SF	BALLISTIC MISSILE EARLY WARNING SYSTEM (BMEWS)	128,630	128,630

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066	1203913SF	NUDET DETECTION SYSTEM (SPACE)	114,004	114,004
067	1203940SF	SPACE SITUATION AWARENESS OPERATIONS	294,902	294,902
068	1206423SF	GLOBAL POSITIONING SYSTEM III—OPERATIONAL CONTROL SEGMENT.	332,313	332,313
072	1206772SF	RAPID RESILIENT COMMAND AND CONTROL (R2C2)	109,190	109,190
073	1207440SF	AUTOMATE SAT C2	1,524,300	804,900
		Program decrease		[–719,400]
074	1208053SF	JOINT TACTICAL GROUND SYSTEM	92,731	92,731
074A	9999999999	CLASSIFIED PROGRAMS	17,330,381	17,330,381
		SUBTOTAL OPERATIONAL SYSTEM DEVELOPMENT	**23,489,066**	**22,769,666**
		SOFTWARE AND DIGITAL TECHNOLOGY PILOT PROGRAMS		
075	1208248SF	SPACE DOMAIN AWARENESS/PLANNING/TASKING SW	617,062	631,062
		Expanded Commercial Space Domain Awareness		[9,000]
		Space Command & Control—Software Pilot Program		[5,000]
		SUBTOTAL SOFTWARE AND DIGITAL TECHNOLOGY PILOT PROGRAMS.	**617,062**	**631,062**
		TOTAL RESEARCH, DEVELOPMENT, TEST, AND EVALUATION, SPACE FORCE.	**38,373,489**	**38,172,089**
		RESEARCH, DEVELOPMENT, TEST AND EVALUATION, DEFENSE-WIDE		
		BASIC RESEARCH		
001	0601000BR	DTRA BASIC RESEARCH	15,070	15,070
003	0601108D8Z	HIGH ENERGY LASER RESEARCH INITIATIVES	17,667	17,667
004	0601110D8Z	BASIC RESEARCH INITIATIVES	87,091	97,091
		Program increase		[10,000]
006	0601120D8Z	NATIONAL DEFENSE EDUCATION PROGRAM	165,488	215,488
		Pilot Program To Support Advanced Technology Centers At Community Colleges.		[50,000]
007	0601122E	EMERGING OPPORTUNITIES	387,633	387,633
008	0601228D8Z	HISTORICALLY BLACK COLLEGES AND UNIVERSITIES/MINORITY INSTITUTIONS.	99,706	125,706
		Program increase		[26,000]
009	0601384BP	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM	27,425	27,425
		SUBTOTAL BASIC RESEARCH	**800,080**	**886,080**
		APPLIED RESEARCH		
011	0602000D8Z	JOINT MUNITIONS TECHNOLOGY	32,145	32,145
012	0602023E	ACCESS AND AWARENESS	110,096	110,096
013	0602024E	WARFIGHTING PERFORMANCE	364,141	364,141
014	0602025E	MAKING, MAINTAINING, SUPPLY CHAIN AND LOGISTICS	1,624,523	1,624,523
017	0602128D8Z	PROMOTION AND PROTECTION STRATEGIES	4,260	4,260
018	0602230D8Z	DEFENSE TECHNOLOGY INNOVATION	43,405	43,405
019	0602234D8Z	LINCOLN LABORATORY RESEARCH PROGRAM	10,045	18,045
		Program increase		[8,000]
020	0602251D8Z	APPLIED RESEARCH FOR THE ADVANCEMENT OF S&T PRIORITIES.	59,560	59,560
022	0602384BP	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM	207,186	197,186
		Program decrease		[–10,000]
023	0602668D8Z	CYBER SECURITY RESEARCH	18,575	23,575
		Pacific Intelligence and Innovation Initiative		[5,000]
029	0602718BR	COUNTER WEAPONS OF MASS DESTRUCTION APPLIED RESEARCH.	157,287	157,287
030	0602751D8Z	SOFTWARE ENGINEERING INSTITUTE (SEI) APPLIED RESEARCH.	7,069	7,069
031	0602890D8Z	HIGH ENERGY LASER RESEARCH	50,408	50,408
032	0602891D8Z	FSRM MODELLING	6,635	6,635
033	1160401BB	SOF TECHNOLOGY DEVELOPMENT	50,856	55,856
		Radio Consolidation and Procurement		[5,000]
		SUBTOTAL APPLIED RESEARCH	**2,746,191**	**2,754,191**
		ADVANCED TECHNOLOGY DEVELOPMENT		
034	0603000D8Z	JOINT MUNITIONS ADVANCED TECHNOLOGY	64,251	64,251
036	0603055D8Z	OPERATIONAL ENERGY CAPABILITY IMPROVEMENT	165,060	205,060
		Program increase		[20,000]
		TRISO development		[20,000]
038	0603122D8Z	COMBATING TERRORISM TECHNOLOGY SUPPORT	73,618	323,618
		Emerging Tech Cooperation		[50,000]
		Israel Counter UXS Program		[100,000]
		Israel Subterranean Cooperation		[100,000]
039	0603133D8Z	FOREIGN COMPARATIVE TESTING	24,950	24,950
040	0603142D8Z	MISSION ENGINEERING & INTEGRATION (ME&I)	144,454	144,454
041	0603160BR	COUNTER WEAPONS OF MASS DESTRUCTION ADVANCED TECHNOLOGY DEVELOPMENT.	509,160	509,160
043	0603180C	ADVANCED RESEARCH	482,573	545,573

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		Hypersonic and counter-hypersonic testing from unmanned surface vessels.		[60,000]
		power source for directed energy missile defense satellite system ...		[3,000]
044	0603183D8Z	JOINT HYPERSONIC TECHNOLOGY DEVELOPMENT &TRANSITION.	424,422	454,422
		Acceleration of hypersonic system development		[10,000]
		AI Enhanced Hypersonic Seeker		[10,000]
		UCAH Classified AI/ML and Quantum Computing Infrastructure Project.		[10,000]
045	0603225D8Z	JOINT DOD-DOE MUNITIONS TECHNOLOGY DEVELOPMENT	45,375	45,375
048	0603288D8Z	ANALYTIC ASSESSMENTS	36,917	36,917
049	0603289D8Z	ADVANCED INNOVATIVE ANALYSIS AND CONCEPTS	51,960	51,960
050	0603330D8Z	QUANTUM APPLICATION	60,333	60,333
051	0603331D8Z	FUTURE GENERATION WIRELESS TECHNOLOGIES	5,000	5,000
052	0603342D8Z	DEFENSE INNOVATION UNIT (DIU)	522,559	540,559
		Off Grid Tactical Power Systems Pilot Program		[10,000]
		ONRAMP expansion and innovation acceleration activities		[3,000]
		Operator Embedded National Security Innovation Partnerships		[5,000]
053	0603375D8Z	TECHNOLOGY INNOVATION	982,694	917,694
		Program decrease		[–45,000]
		Unjustified growth		[–20,000]
054	0603379D8Z	ADVANCED TECHNICAL INTEGRATION	79,268	79,268
055	0603384BP	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM—ADVANCED DEVELOPMENT.	310,308	310,308
056	0603467E	DARPA ADVANCED TECHNOLOGY DEVELOPMENT	1,568,124	1,568,124
057	0603468E	ADVANCED COMPLEX SYSTEMS	540,362	540,362
058	0603469E	ADVANCED ENABLING TECHNOLOGIES	331,007	331,007
059	0603618D8Z	JOINT ELECTRONIC ADVANCED TECHNOLOGY	49,083	49,083
060	0603662D8Z	NETWORKED COMMUNICATIONS CAPABILITIES	696,297	661,297
		Program decrease		[–20,000]
		Unjustified growth		[–15,000]
062	0603680D8Z	DEFENSE-WIDE MANUFACTURING SCIENCE AND TECHNOLOGY PROGRAM.	581,847	599,347
		Advanced Robotics and Maintenance Automation		[10,000]
		Manufacturing Advancement for Novel Technology Innovation and Sustainment.		[5,000]
		Manufacturing of advanced composites for hypersonics aided by digital engineering.		[2,500]
063	0603680S	MANUFACTURING TECHNOLOGY PROGRAM	49,787	52,287
		Domestic Tantalum processing capability		[2,500]
064	0603712S	GENERIC LOGISTICS R&D TECHNOLOGY DEMONSTRATIONS	18,791	18,791
065	0603716D8Z	STRATEGIC ENVIRONMENTAL RESEARCH PROGRAM	60,774	60,774
066	0603720S	MICROELECTRONICS TECHNOLOGY DEVELOPMENT AND SUPPORT.	139,923	139,923
072	0603781D8Z	SOFTWARE ENGINEERING INSTITUTE	10,227	10,227
073	0603834D8Z	BIOSURVEILLANCE PROGRAM ADVANCED TECHNOLOGY DEVELOPMENT.	9,800	9,800
074	0603838D8Z	DEFENSE INNOVATION ACCELERATION (DIA)	310,977	293,477
		Program decrease		[–22,500]
		UAS Affordable Domestic Propulsion		[5,000]
075	0603924D8Z	HIGH ENERGY LASER ADVANCED TECHNOLOGY PROGRAM	201,125	206,125
		Ultra-Short Pulsed Laser (USPL) Weapons		[5,000]
076	0603941D8Z	TEST & EVALUATION SCIENCE & TECHNOLOGY	3,834,080	3,580,302
		Common Enterprise Range Network		[5,000]
		Hypersonics Testing and Evaluation Workforce Development		[10,000]
		Program decrease		[–233,778]
		Unjustified growth		[–35,000]
077	0603945D8Z	INTERNATIONAL INNOVATION INITIATIVES	158,345	154,345
		Program decrease		[–4,000]
080	1160402BB	SOF ADVANCED TECHNOLOGY DEVELOPMENT	126,085	126,085
		SUBTOTAL ADVANCED TECHNOLOGY DEVELOPMENT.	**12,669,536**	**12,720,258**
		ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES		
081	0603161D8Z	NUCLEAR MATTERS, ADVANCED COMPONENT DEVELOPMENT & PROTOTYPES.	44,685	44,685
082	0603600D8Z	WALKOFF	227,158	227,158
083	0603851D8Z	ENVIRONMENTAL SECURITY TECHNICAL CERTIFICATION PROGRAM.	125,066	125,066
085	0603882C	BALLISTIC MISSILE DEFENSE MIDCOURSE DEFENSE SEGMENT.	1,360,611	1,360,611
086	0603884BP	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM—DEM/VAL.	391,307	391,307
087	0603884C	BALLISTIC MISSILE DEFENSE SENSORS	865,420	868,420
		Deep Sentry		[3,000]
088	0603890C	BMD ENABLING PROGRAMS	1,457,437	1,180,437
		Program decrease		[–277,000]

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089	0603891C	SPECIAL PROGRAMS—MDA	1,742,778	1,742,778
090	0603892C	AEGIS BMD	927,870	979,870
		Aegis Guam Weapon System (AGS) capability enhancements, threat sets.		[52,000]
091	0603896C	BALLISTIC MISSILE DEFENSE COMMAND AND CONTROL, BATTLE MANAGEMENT AND COMMUNICATIONS (C2BMC).	939,987	939,987
092	0603898C	BALLISTIC MISSILE DEFENSE JOINT WARFIGHTER SUPPORT.	50,430	50,430
093	0603904C	MISSILE DEFENSE INTEGRATION & OPERATIONS CENTER (MDIOC).	57,892	57,892
094	0603906C	REGARDING TRENCH	29,807	29,807
095	0603907C	SEA BASED X-BAND RADAR (SBX)	274,204	274,204
096	0603913C	ISRAELI COOPERATIVE PROGRAMS	300,000	300,000
097	0603914C	BALLISTIC MISSILE DEFENSE TEST	1,065,474	1,065,474
098	0603915C	BALLISTIC MISSILE DEFENSE TARGETS	518,506	538,506
		Advanced Target Front End (ATFE) Configuration 3 (C3) Risk Reduction.		[10,000]
		Unmanned sea-based launch platforms		[10,000]
099	0603923D8Z	COALITION WARFARE	10,082	10,082
101	0604016D8Z	DEPARTMENT OF DEFENSE CORROSION PROGRAM	2,675	2,675
102	0604023D8Z	JOINT MUNITIONS COMPONENT PROTOTYPING	7,893	7,893
103	0604102C	GUAM DEFENSE DEVELOPMENT	212,413	232,413
		Program acceleration		[20,000]
104	0604115C	TECHNOLOGY MATURATION INITIATIVES	59,700	84,700
		Solid Rocket Second Source Qualification Increase		[25,000]
106	0604125D8Z	ADVANCED MANUFACTURING COMPONENTS AND PROTOTYPES.	52,122	52,122
107	0604162D8Z	CHEMICAL AND BIOLOGICAL WEAPONS ELIMINATION TECHNOLOGY DEVELOPMENT.	945	945
108	0604181C	HYPERSONIC DEFENSE	213,783	263,783
		GPI Acceleration		[50,000]
109	0604250D8Z	ADVANCED INNOVATIVE TECHNOLOGIES	2,626,130	2,626,130
110	0604294D8Z	TRUSTED & ASSURED MICROELECTRONICS	156,743	159,243
		Pilot Program on Semiconductor Antitampering and Authenticity Validation.		[2,500]
111	0604331D8Z	RAPID PROTOTYPING PROGRAM	238,800	308,800
		Multi-Mission Optionally Piloted Vessel prototyping		[70,000]
114	0604400D8Z	DEPARTMENT OF DEFENSE (DOD) UNMANNED SYSTEM COMMON DEVELOPMENT.	2,024	2,024
115	0604539D8Z	DEFENSE AUTONOMOUS WARFARE GROUP	1,000,000	1,000,000
116	0604551BR	CATAPULT INFORMATION SYSTEM	7,500	7,500
117	0604555D8Z	OPERATIONAL ENERGY PROTOTYPING—NON S&T	53,505	93,505
		Program increase		[40,000]
119	0604679D8Z	OFFICE OF STRATEGIC CAPITAL (OSC)	18,955	18,955
120	0604682D8Z	SUPPORT FOR STRATEGIC ANALYSIS	2,802	2,802
122	0604791D8Z	MULTI-DOMAIN JOINT OPERATIONS (MDJO)	32,001	32,001
123	0604797D8Z	JOINT ENERGETIC TRANSITION OFFICE	6,278	6,278
124	0604826J	JOINT C5 CAPABILITY DEVELOPMENT, INTEGRATION AND INTEROPERABILITY ASSESSMENTS.	28,314	28,314
125	0604834D8Z	BIOSURVEILLANCE PROGRAM DEVELOPMENT & PROTOTYPING.	7,000	7,000
126	0604873C	LONG RANGE DISCRIMINATION RADAR (LRDR)	125,074	125,074
127	0604874C	IMPROVED HOMELAND DEFENSE INTERCEPTORS	1,344,824	1,344,824
129	0604878C	AEGIS BMD TEST	61,969	61,969
130	0604879C	BALLISTIC MISSILE DEFENSE SENSOR TEST	52,919	52,919
131	0604880C	LAND-BASED SM–3 (LBSM3)	25,102	25,102
132	0604887C	BALLISTIC MISSILE DEFENSE MIDCOURSE SEGMENT TEST	53,761	53,761
133	0604924D8Z	HIGH ENERGY LASER ADVANCED COMPONENT DEVELOPMENT & PROTOTYPE.	44,485	44,485
134	0202057C	SAFETY PROGRAM MANAGEMENT	2,146	2,146
135	0208059JCY	CYBERCOM ACTIVITIES	31,735	31,735
137	0208086JCY	CYBER TRAINING ENVIRONMENT (CTE)	120,814	111,814
		Program decrease		[–9,000]
139	0305103C	CYBER SECURITY INITIATIVE	2,160	2,160
140	0305245D8Z	INTELLIGENCE CAPABILITIES AND INNOVATION INVESTMENTS.	15,047	15,047
142	1206895C	BALLISTIC MISSILE DEFENSE SYSTEM SPACE PROGRAMS	95,819	95,819
		SUBTOTAL ADVANCED COMPONENT DEVELOPMENT AND PROTOTYPES.	**17,094,152**	**17,090,652**
		SYSTEM DEVELOPMENT AND DEMONSTRATION		
144	0604123D8Z	CHIEF DIGITAL AND ARTIFICIAL INTELLIGENCE OFFICER (CDAO)—DEM/VAL ACTIVITIES.	11,197	11,197
145	0604133D8Z	ALPHA–1 DEVELOPMENT ACTIVITIES	969,825	929,825
		Program decrease		[–10,000]
		Unjustified growth		[–30,000]
146	0604161D8Z	NUCLEAR MATTERS, SYSTEM DEVELOPMENT & DEMONSTRATION.	14,919	14,919

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147	0604384BP	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM—EMD	261,947	234,447
		Program decrease		[–27,500]
148	0604771D8Z	JOINT TACTICAL INFORMATION DISTRIBUTION SYSTEM (JTIDS).	10,200	10,200
149	0605000BR	COUNTER WEAPONS OF MASS DESTRUCTION SYSTEMS DEVELOPMENT.	16,713	16,713
150	0605013BL	INFORMATION TECHNOLOGY DEVELOPMENT	13,620	13,620
151	0605021SE	HOMELAND PERSONNEL SECURITY INITIATIVE	9,334	9,334
152	0605022D8Z	DEFENSE EXPORTABILITY PROGRAM	5,943	5,943
153	0605027D8Z	OUSD(C) IT DEVELOPMENT INITIATIVES	273,253	268,253
		Program decrease		[–5,000]
154	0605080S	DEFENSE AGENCY INITIATIVES (DAI)—FINANCIAL SYSTEM	51,265	51,265
156	0605210D8Z	DEFENSE-WIDE ELECTRONIC PROCUREMENT CAPABILITIES.	7,918	7,918
157	0605294D8Z	TRUSTED & ASSURED MICROELECTRONICS	51,202	51,202
158	0605310D8Z	MILITARY AVIATION AND INSTALLATION ASSURANCE SITING CLEARINGHOUSE.	4,072	4,072
159	0605649D8Z	ACQUISITION INTEGRATION AND INTEROPERABILITY (AI2)	92,689	92,689
160	0605755D8Z	RADIOLOGICAL AND NUCLEAR DEFENSE MODERNIZATION SYSTEM DEVELOPMENT AND DEMONSTRATION.	3,090	3,090
161	0605772D8Z	NUCLEAR COMMAND, CONTROL, & COMMUNICATIONS	2,985	2,985
162	0205401JCA	COUNTER—SMALL UNMANNED AIRCRAFT SYSTEMS (JIATF–401).	580,348	580,348
164	0305282K	JOINT FIRES NETWORK (JFN)	35,000	35,000
165	0305304D8Z	REAL PROPERTY ANALYTICS	2,573	2,573
166	0305310D8Z	COUNTERPROLIFERATION ADVANCED DEVELOPMENT	12,751	12,751
		SUBTOTAL SYSTEM DEVELOPMENT AND DEMONSTRATION.	**2,430,844**	**2,358,344**
		MANAGEMENT SUPPORT		
168	0603829J	JOINT CAPABILITY EXPERIMENTATION	12,332	12,332
169	0604122D8Z	JADC2 DEVELOPMENT AND EXPERIMENTATION ACTIVITIES.	2,109,895	2,079,895
		Unjustified growth		[–30,000]
171	0604774D8Z	DEFENSE READINESS REPORTING SYSTEM (DRRS)	8,921	8,921
172	0604875D8Z	JOINT SYSTEMS ARCHITECTURE DEVELOPMENT	11,094	11,094
173	0604940D8Z	CENTRAL TEST AND EVALUATION INVESTMENT DEVELOPMENT (CTEIP).	1,153,754	1,113,754
		Program decrease		[–15,000]
		Unjustified growth		[–25,000]
175	0605001E	MISSION SUPPORT	108,101	108,101
176	0605100D8Z	JOINT MISSION ENVIRONMENT TEST CAPABILITY (JMETC)	234,700	234,700
177	0605126J	JOINT INTEGRATED AIR AND MISSILE DEFENSE ORGANIZATION (JIAMDO).	69,820	69,820
179	0605131D8Z	LIVE FIRE TESTING	9,020	9,020
180	0605142D8Z	SYSTEMS ENGINEERING	21,992	21,992
181	0605151D8Z	STUDIES AND ANALYSIS SUPPORT—OSD	5,255	5,255
182	0605161D8Z	NUCLEAR MATTERS MANAGEMENT SUPPORT	21,862	21,862
183	0605170D8Z	SUPPORT TO NETWORKS AND INFORMATION INTEGRATION	26,878	26,878
184	0605200D8Z	GENERAL SUPPORT TO OUSD(INTELLIGENCE AND SECURITY).	10,695	10,695
185	0605384BP	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM	89,467	89,467
192	0605711D8Z	CRITICAL TECHNOLOGY ANALYSIS	10,913	10,913
193	0605790D8Z	SMALL BUSINESS INNOVATION RESEARCH (SBIR)/ SMALL BUSINESS TECHNOLOGY TRANSFER (STTR) ADMINISTRATION.	8,435	8,435
194	0605797D8Z	MAINTAINING TECHNOLOGY ADVANTAGE	35,512	35,512
195	0605798D8Z	DEFENSE TECHNOLOGY ANALYSIS	165,450	165,450
196	0605801KA	DEFENSE TECHNICAL INFORMATION CENTER (DTIC)	57,576	57,576
197	0605803SE	R&D IN SUPPORT OF DOD ENLISTMENT, TESTING AND EVALUATION.	34,359	34,359
198	0605804D8Z	DEVELOPMENT TEST AND EVALUATION	35,106	35,106
199	0605898E	MANAGEMENT HQ—R&D	5,383	5,383
200	0605998KA	MANAGEMENT HQ—DEFENSE TECHNICAL INFORMATION CENTER (DTIC).	3,489	3,489
201	0606005D8Z	SPECIAL ACTIVITIES	19,260	19,260
202	0606100D8Z	BUDGET AND PROGRAM ASSESSMENTS	10,678	10,678
203	0606114D8Z	ANALYSIS WORKING GROUP (AWG) SUPPORT	11,668	11,668
205	0606220D8Z	OFFICE OF THE SECRETARY OF WAR ENTERPRISE TRANSFORMATION AND MODERNIZATION.	75,000	77,000
		Acquisition Workforce Data Analytics Capability		[2,000]
206	0606225D8Z	ODNA TECHNOLOGY AND RESOURCE ANALYSIS	3,264	3,264
207	0606300D8Z	DEFENSE SCIENCE BOARD	6,307	6,307
208	0606301D8Z	AVIATION SAFETY TECHNOLOGIES	986	15,986
		Health and Usage Monitoring Systems modernization		[10,000]
		HUMS		[5,000]
209	0606771D8Z	CYBER RESILIENCY AND CYBERSECURITY POLICY	30,746	30,746
211	0606775D8Z	JOINT PRODUCTION ACCELERATOR CELL (JPAC)	6,215	6,215

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212	0606829D8Z	SUSTAINMENT TRANSITION CAPABILITIES	29,408	29,408
215	0204571J	JOINT STAFF ANALYTICAL SUPPORT	5,088	5,088
216	0207834D8Z	BIOSURVEILLANCE PROGRAM	7,000	7,000
217	0208045K	C4I INTEROPERABILITY	72,581	72,581
218	0303169D8Z	INFORMATION TECHNOLOGY RAPID ACQUISITION	6,416	6,416
219	0305172K	COMBINED ADVANCED APPLICATIONS	5,566	5,566
221	0305208K	DISTRIBUTED COMMON GROUND/SURFACE SYSTEMS	2,951	2,951
222	0305248J	JOINT STAFF OFFICE OF THE CHIEF DATA OFFICER (OCDO) ACTIVITIES.	67,007	67,007
223	0804768J	COCOM EXERCISE ENGAGEMENT AND TRAINING TRANSFORMATION (CE2T2)—NON-MHA.	90,424	90,424
225	0808737SE	INTEGRATED PRIMARY PREVENTION	5,768	5,768
226	0901598C	MANAGEMENT HQ—MDA	31,863	31,863
228A	9999999999	CLASSIFIED PROGRAMS	36,977	36,977
		SUBTOTAL MANAGEMENT SUPPORT	**4,775,182**	**4,722,182**
		OPERATIONAL SYSTEM DEVELOPMENT		
229	0604011D8Z	NEXT GENERATION INFORMATION COMMUNICATIONS TECHNOLOGY (5G).	5,893	5,893
231	0604538D8Z	ECONOMIC DEFENSE UNIT (EDU)	403,903	403,903
232	0607162D8Z	CHEMICAL AND BIOLOGICAL WEAPONS ELIMINATION TECHNOLOGY IMPROVEMENT.	2,931	2,931
233	0607210D8Z	INDUSTRIAL BASE ANALYSIS AND SUSTAINMENT SUPPORT	1,177,356	1,234,856
		Digital Twin Center of Excellence For Army Ground Vehicles Center and Naval Special Warfare Systems.		[2,500]
		Domestic manufacturing capability for advanced reactive materials		[40,000]
		Expanding Engineering Research & Development Capability for Maritime Industrial Base.		[5,000]
		Next Generation Fiber Production Line		[2,500]
		Program decrease		[–2,500]
		Public-Private Advanced Manufacturing Initiative in the Indo-Pacific.		[10,000]
234	0607310D8Z	COUNTERPROLIFERATION MODERNIZATION	11,304	11,304
235	0607327T	GLOBAL THEATER SECURITY COOPERATION MANAGEMENT INFORMATION SYSTEMS (G-TSCMIS).	6,010	6,010
236	0607384BP	CHEMICAL AND BIOLOGICAL DEFENSE (OPERATIONAL SYSTEMS DEVELOPMENT).	82,695	82,695
237	0607385BR	COUNTER WEAPONS OF MASS DESTRUCTION OPERATIONAL SYSTEMS DEVELOPMENT.	4,108	9,108
		Operational Rapid Multi-Pathogen Diagnostic Tool		[5,000]
238	0607757D8Z	RADIOLOGICAL AND NUCLEAR DEFENSE MODERNIZATION OPERATIONAL SYSTEM DEVELOPMENT.	2,794	2,794
239	0208085JCY	ROBUST INFRASTRUCTURE AND ACCESS	155,613	155,613
240	0208097JCY	CYBER COMMAND AND CONTROL (CYBER C2)	85,958	85,958
241	0208099JCY	DATA AND UNIFIED PLATFORM (D&UP)	84,687	84,687
245	0302019K	DEFENSE INFO INFRASTRUCTURE ENGINEERING AND INTEGRATION.	13,312	13,312
246	0302609V	COUNTERING THREATS AUTOMATED PLATFORM	11,710	11,710
247	0303126K	LONG-HAUL COMMUNICATIONS—DCS	10,508	10,508
248	0303131K	MINIMUM ESSENTIAL EMERGENCY COMMUNICATIONS NETWORK (MEECN).	10,307	10,307
250	0303140D8Z	INFORMATION SYSTEMS SECURITY PROGRAM	35,214	35,214
252	0303140K	INFORMATION SYSTEMS SECURITY PROGRAM	33,502	33,502
253	0303153K	DEFENSE SPECTRUM ORGANIZATION	49,466	49,466
254	0303171K	JOINT PLANNING AND EXECUTION SERVICES	10,615	10,615
257	0303430V	FEDERAL INVESTIGATIVE SERVICES INFORMATION TECHNOLOGY.	50,900	50,900
265	0305104D8Z	DEFENSE INDUSTRIAL BASE (DIB) CYBER SECURITY INITIATIVE.	17,077	17,077
269	0305146V	DEFENSE JOINT COUNTERINTELLIGENCE ACTIVITIES	6,751	6,751
270	0305172D8Z	COMBINED ADVANCED APPLICATIONS	18,912	18,912
272	0305186D8Z	POLICY R&D PROGRAMS	11,740	11,740
275	0305199D8Z	NET CENTRICITY	55,673	55,673
282	0305387D8Z	HOMELAND DEFENSE TECHNOLOGY TRANSFER PROGRAM	1,730	1,730
283	0305601K	MISSION PARTNER ENVIRONMENTS	15,464	15,464
293	0306250JCY	CYBER OPERATIONS TECHNOLOGY SUPPORT	1,303,094	1,308,094
		Pathfinder		[15,000]
		Unjustified growth		[–10,000]
294	0307609V	NATIONAL INDUSTRIAL SECURITY SYSTEMS (NISS)	19,840	19,840
297	0708012K	LOGISTICS SUPPORT ACTIVITIES	2,051	2,051
298	0708012S	PACIFIC DISASTER CENTERS		2,500
		Program increase		[2,500]
299	0708047S	DEFENSE PROPERTY ACCOUNTABILITY SYSTEM	2,829	2,829
302	1160403BB	AVIATION SYSTEMS	216,781	216,781
303	1160405BB	INTELLIGENCE SYSTEMS DEVELOPMENT	109,227	109,227
304	1160408BB	OPERATIONAL ENHANCEMENTS	279,478	310,178
		Ground Infil Protection Systems(GIPS)		[25,700]
		Next Generation Geospatial Intelligence Data Awareness		[5,000]

SEC. 4201. RESEARCH, DEVELOPMENT, TEST, AND EVALUATION
(In Thousands of Dollars)

Line	Program Element	Item	FY 2027 Request	House Authorized
305	1160431BB	WARRIOR SYSTEMS	435,074	468,108
		Electromagnetic Warfare (EW) Family of Systems		[3,500]
		Ground Infil Protection Systems(GIPS)		[4,000]
		Ground Organic Precision Strike Systems (GOPSS)		[5,000]
		Low Cost, Platform Agnostic Lethal Packages (Warhead and Electronic Safe and Arm Device (ESAD)) for Group 1 Drones.		[12,000]
		Munitions War Reserves		[8,534]
306	1160432BB	SPECIAL PROGRAMS	25,761	25,761
309	1160483BB	MARITIME SYSTEMS	351,721	351,721
310	1160490BB	OPERATIONAL ENHANCEMENTS INTELLIGENCE	25,747	40,747
		Hybrid Threats Analytical Platform (HTAP)		[15,000]
311	1203610K	TELEPORT PROGRAM	22,244	22,244
311A	9999999999	CLASSIFIED PROGRAMS	8,923,353	9,102,253
		Foreign Materiel Program		[168,900]
		Forward Based Theater Foreign Materiel Exploitation		[10,000]
		SUBTOTAL OPERATIONAL SYSTEM DEVELOPMENT	**14,093,333**	**14,420,967**
		SOFTWARE AND DIGITAL TECHNOLOGY PILOT PROGRAMS		
312	0608140D8Z	ENTERPRISE PLATFORMS AND CAPABILITIES—SOFTWARE PILOT PROGRAM.	481,775	475,775
		Unjustified growth		[–6,000]
313	0608500D8Z	WEAPONEERING CODE SUSTAINMENT	23,071	23,071
314	0608648D8Z	ACQUISITION VISIBILITY—SOFTWARE PILOT PROGRAM	64,364	64,364
316	0608776D8Z	DEFENSE INNOVATION UNIT FIELDING	433,867	430,867
		Program decrease		[–3,000]
317	0303150K	GLOBAL COMMAND AND CONTROL SYSTEM	124,329	124,329
		SUBTOTAL SOFTWARE AND DIGITAL TECHNOLOGY PILOT PROGRAMS.	**1,127,406**	**1,118,406**
		TOTAL RESEARCH, DEVELOPMENT, TEST AND EVALUATION, DEFENSE-WIDE.	**55,736,724**	**56,071,080**
		GOLDEN DOME FOR AMERICA FUND		
		RESEARCH, DEV, TEST & EVAL*		
009	0604139D8Z	GOLDEN DOME FOR AMERICA—MDA	367,000	367,000
015	0901159D8Z	GOLDEN DOME FOR AMERICA	30,971	30,971
		SUBTOTAL RESEARCH, DEV, TEST & EVAL*	**397,971**	**397,971**
		TOTAL GOLDEN DOME FOR AMERICA FUND	**397,971**	**397,971**
		OPERATIONAL TEST AND EVALUATION, DEFENSE		
		MANAGEMENT SUPPORT		
001	0605118OTE	OPERATIONAL TEST AND EVALUATION	101,365	151,542
		Program increase		[50,177]
002	0605131OTE	LIVE FIRE TEST AND EVALUATION	11,000	108,109
		Program increase		[97,109]
003	0605814OTE	OPERATIONAL TEST ACTIVITIES AND ANALYSES		76,492
		Program increase		[76,492]
		SUBTOTAL MANAGEMENT SUPPORT	**112,365**	**336,143**
		TOTAL OPERATIONAL TEST AND EVALUATION, DEFENSE.	**112,365**	**336,143**
		TOTAL RDT&E	**218,791,608**	**219,478,814**

TITLE XLIII—OPERATION AND MAINTENANCE

SEC. 4301. OPERATION AND MAINTENANCE.

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
	OPERATION AND MAINTENANCE, ARMY		
	OPERATING FORCES		
010	MANEUVER UNITS	5,309,790	5,309,790
020	MODULAR SUPPORT BRIGADES	375,682	375,682
030	ECHELONS ABOVE BRIGADE	1,193,028	1,193,028
040	THEATER LEVEL ASSETS	2,395,049	2,395,049

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
050	LAND FORCES OPERATIONS SUPPORT	1,273,674	1,273,674
060	AVIATION ASSETS	1,930,557	1,930,557
070	FORCE READINESS OPERATIONS SUPPORT	7,186,195	7,186,195
080	LAND FORCES SYSTEMS READINESS	888,277	888,277
090	LAND FORCES DEPOT MAINTENANCE	2,022,115	2,142,115
	Ground combat vehicle sustainment		[120,000]
100	MEDICAL READINESS	786,815	796,815
	TC3Sim: Battlefield Trauma Readiness		[10,000]
110	BASE OPERATIONS SUPPORT	10,390,174	10,390,174
120	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	5,435,364	5,440,864
	Army National Guard Controlled Humidity Preservation		[5,500]
130	MANAGEMENT AND OPERATIONAL HEADQUARTERS	287,812	287,812
140	ADDITIONAL ACTIVITIES	383,610	383,610
150	RESET	117,880	117,880
160	US AFRICA COMMAND	693,812	835,812
	COCO ISR		[45,000]
	Information Operations		[94,000]
	Technology Experimentation and Demonstration		[3,000]
170	US EUROPEAN COMMAND	510,862	513,862
	including amount for Classified Program		*[40,000]*
	Technology Experimentation and Demonstration		[3,000]
180	US SOUTHERN COMMAND	464,769	467,769
	Technology Experimentation and Demonstration		[3,000]
190	US FORCES KOREA	77,775	77,775
200	CYBERSPACE ACTIVITIES—CYBERSPACE OPERATIONS	366,311	358,311
	Unjustified growth		[–8,000]
210	CYBERSPACE ACTIVITIES—CYBERSECURITY	579,954	579,954
	SUBTOTAL OPERATING FORCES	**42,669,505**	**42,945,005**
	MOBILIZATION		
220	STRATEGIC MOBILITY	53,602	53,602
230	ARMY PREPOSITIONED STOCKS	1,125,709	1,125,709
	including amount for maintenance of APS–2 in the USEUCOM AOR		*[380,000]*
240	INDUSTRIAL PREPAREDNESS	3,172	3,172
	SUBTOTAL MOBILIZATION	**1,182,483**	**1,182,483**
	TRAINING AND RECRUITING		
250	OFFICER ACQUISITION	193,530	193,530
260	RECRUIT TRAINING	70,431	70,431
270	ONE STATION UNIT TRAINING	96,115	96,115
280	SENIOR RESERVE OFFICERS TRAINING CORPS	503,896	503,896
290	SPECIALIZED SKILL TRAINING	1,204,230	1,204,230
300	FLIGHT TRAINING	1,381,437	1,381,437
310	PROFESSIONAL DEVELOPMENT EDUCATION	201,481	201,481
320	TRAINING SUPPORT	609,925	609,925
330	RECRUITING AND ADVERTISING	712,092	712,092
350	OFF-DUTY AND VOLUNTARY EDUCATION	216,256	216,256
360	CIVILIAN EDUCATION AND TRAINING	218,683	218,683
370	JUNIOR RESERVE OFFICER TRAINING CORPS	218,598	218,598
	SUBTOTAL TRAINING AND RECRUITING	**5,626,674**	**5,626,674**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
390	SERVICEWIDE TRANSPORTATION	1,483,938	1,311,438
	Program decrease		[–172,500]
400	CENTRAL SUPPLY ACTIVITIES	703,829	703,829
410	LOGISTIC SUPPORT ACTIVITIES	634,879	634,879
420	AMMUNITION MANAGEMENT	525,732	525,732
430	ADMINISTRATION	402,276	393,276
	Program decrease		[–9,000]
440	SERVICEWIDE COMMUNICATIONS	2,252,914	2,222,914
	Program decrease		[–30,000]
450	MANPOWER MANAGEMENT	324,069	324,069
460	OTHER PERSONNEL SUPPORT	961,851	961,851
470	OTHER SERVICE SUPPORT	2,179,562	2,179,562
480	ARMY CLAIMS ACTIVITIES	139,480	139,480
490	REAL ESTATE MANAGEMENT	308,271	308,271
500	FINANCIAL MANAGEMENT AND AUDIT READINESS	434,778	434,778

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
510	DEF ACQUISITION WORKFORCE DEVELOPMENT ACCOUNT	37,654	37,654
520	INTERNATIONAL MILITARY HEADQUARTERS	760,520	760,520
530	MISC. SUPPORT OF OTHER NATIONS	28,681	28,681
590A	CLASSIFIED PROGRAMS	3,457,587	3,457,587
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**14,636,021**	**14,424,521**
	UNDISTRIBUTED		
600	UNDISTRIBUTED		–417,800
	Historical unobligated balances		[–417,800]
	SUBTOTAL UNDISTRIBUTED		**–417,800**
	TOTAL OPERATION AND MAINTENANCE, ARMY	**64,114,683**	**63,760,883**
	OPERATION AND MAINTENANCE, ARMY RESERVE		
	OPERATING FORCES		
010	MODULAR SUPPORT BRIGADES	15,213	15,213
020	ECHELONS ABOVE BRIGADE	674,766	674,766
030	THEATER LEVEL ASSETS	121,223	121,223
040	LAND FORCES OPERATIONS SUPPORT	664,612	664,612
050	AVIATION ASSETS	37,490	72,490
	Aviation force structure		[35,000]
060	FORCE READINESS OPERATIONS SUPPORT	380,473	380,473
070	LAND FORCES SYSTEMS READINESS	41,301	41,301
080	LAND FORCES DEPOT MAINTENANCE	37,429	37,429
090	BASE OPERATIONS SUPPORT	577,337	577,337
100	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	411,093	411,093
110	MANAGEMENT AND OPERATIONAL HEADQUARTERS	27,810	27,810
120	CYBERSPACE ACTIVITIES—CYBERSPACE OPERATIONS	2,725	2,725
130	CYBERSPACE ACTIVITIES—CYBERSECURITY	19,422	19,422
	SUBTOTAL OPERATING FORCES	**3,010,894**	**3,045,894**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
140	SERVICEWIDE TRANSPORTATION	15,237	11,237
	Program decrease		[–4,000]
150	ADMINISTRATION	11,708	11,708
160	SERVICEWIDE COMMUNICATIONS	4,165	4,165
170	MANPOWER MANAGEMENT	7,300	7,300
180	OTHER PERSONNEL SUPPORT	63,330	63,330
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**101,740**	**97,740**
	UNDISTRIBUTED		
210	UNDISTRIBUTED		–34,700
	Historical unobligated balances		[–34,700]
	SUBTOTAL UNDISTRIBUTED		**–34,700**
	TOTAL OPERATION AND MAINTENANCE, ARMY RESERVE	**3,112,634**	**3,108,934**
	OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD		
	OPERATING FORCES		
010	MANEUVER UNITS	807,777	807,777
020	MODULAR SUPPORT BRIGADES	233,114	233,114
030	ECHELONS ABOVE BRIGADE	1,143,423	1,143,423
040	THEATER LEVEL ASSETS	84,598	84,598
050	LAND FORCES OPERATIONS SUPPORT	344,161	344,161
060	AVIATION ASSETS	1,096,948	1,096,948
070	FORCE READINESS OPERATIONS SUPPORT	864,172	873,672
	GAMER live training capabilty		[9,500]
080	LAND FORCES SYSTEMS READINESS	93,367	93,367
090	LAND FORCES DEPOT MAINTENANCE	171,055	171,055
100	BASE OPERATIONS SUPPORT	1,326,854	1,326,854

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
110	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	1,065,363	1,065,363
120	MANAGEMENT AND OPERATIONAL HEADQUARTERS	1,116,559	1,116,559
130	CYBERSPACE ACTIVITIES—CYBERSPACE OPERATIONS	6,831	6,831
140	CYBERSPACE ACTIVITIES—CYBERSECURITY	24,785	24,785
	SUBTOTAL OPERATING FORCES	**8,379,007**	**8,388,507**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
150	SERVICEWIDE TRANSPORTATION	6,604	6,604
160	ADMINISTRATION	50,221	55,221
	Center for the Study of the National Guard		[5,000]
170	SERVICEWIDE COMMUNICATIONS	24,846	24,846
180	OTHER PERSONNEL SUPPORT	239,142	239,142
190	REAL ESTATE MANAGEMENT	4,004	4,004
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**324,817**	**329,817**
	UNDISTRIBUTED		
200	UNDISTRIBUTED		–83,000
	Historical unobligated balances		[–83,000]
	SUBTOTAL UNDISTRIBUTED		**–83,000**
	TOTAL OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD	**8,703,824**	**8,635,324**
	COUNTER-ISLAMIC STATE OF IRAQ AND SYRIA TRAIN AND EQUIP		
	COUNTER-ISIL TRAIN AND EQUIP FUND (CTEF)		
010	COUNTER-ISIL TRAIN AND EQUIP FUND (CTEF)	303,099	253,099
	Program decrease		[–50,000]
	SUBTOTAL COUNTER-ISIL TRAIN AND EQUIP FUND (CTEF)	**303,099**	**253,099**
	TOTAL COUNTER-ISLAMIC STATE OF IRAQ AND SYRIA TRAIN AND EQUIP	**303,099**	**253,099**
	OPERATION AND MAINTENANCE, NAVY		
	OPERATING FORCES		
010	MISSION AND OTHER FLIGHT OPERATIONS	8,324,572	8,324,572
020	FLEET AIR TRAINING	3,128,764	3,128,764
030	AIR SYSTEMS SUPPORT	1,469,165	1,469,165
040	AIRCRAFT DEPOT MAINTENANCE	2,219,583	2,219,583
050	AVIATION LOGISTICS	2,664,360	2,664,360
060	MISSION AND OTHER SHIP OPERATIONS	7,424,752	7,424,752
070	SHIP OPERATIONS SUPPORT & TRAINING	1,713,065	1,713,065
080	SHIP DEPOT MAINTENANCE	14,292,873	14,292,873
090	SHIP DEPOT OPERATIONS SUPPORT	2,597,722	2,567,722
	Program decrease		[–45,000]
	Small Shipyard Grants		[15,000]
100	COMBAT COMMUNICATIONS AND ELECTRONIC WARFARE	1,821,744	1,821,744
110	MEDICAL READINESS	661,800	661,800
120	SPACE SYSTEMS AND SURVEILLANCE	572,000	572,000
130	WARFARE TACTICS	1,038,456	1,038,456
140	OPERATIONAL METEOROLOGY AND OCEANOGRAPHY	496,272	496,272
150	COMBAT SUPPORT FORCES	2,476,987	2,476,987
160	EQUIPMENT MAINTENANCE AND DEPOT OPERATIONS SUPPORT	62,570	62,570
170	COMBATANT COMMANDERS CORE OPERATIONS	105,379	105,379
180	COMBATANT COMMANDERS DIRECT MISSION SUPPORT	1,994,139	1,994,139
190	CYBERSPACE ACTIVITIES	662,040	653,040
	Unjustified growth		[–9,000]
200	STRATEGIC AND REGIONAL STRIKE DETERRENCE	2,220,083	2,220,083
210	WEAPONS MAINTENANCE	1,833,006	1,833,006
220	OTHER WEAPON SYSTEMS SUPPORT	834,752	834,752
230	ENTERPRISE INFORMATION	2,196,932	2,185,932
	Unjustified growth		[–11,000]
240	SUSTAINMENT, RESTORATION AND MODERNIZATION	4,891,828	4,891,828

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
250	BASE OPERATING SUPPORT	6,069,456	6,069,456
	SUBTOTAL OPERATING FORCES	**71,772,300**	**71,722,300**
	MOBILIZATION		
260	SHIP PREPOSITIONING AND SURGE	378,073	378,073
270	READY RESERVE FORCE	881,029	881,029
280	SHIP ACTIVATIONS/INACTIVATIONS	831,641	956,641
	Platform Supply Vessel		[125,000]
300	COAST GUARD SUPPORT	27,729	27,729
	SUBTOTAL MOBILIZATION	**2,118,472**	**2,243,472**
	TRAINING AND RECRUITING		
310	OFFICER ACQUISITION	198,743	198,743
320	RECRUIT TRAINING	17,813	27,813
	U.S. Naval Sea Cadets		[10,000]
330	RESERVE OFFICERS TRAINING CORPS	193,797	193,797
340	SPECIALIZED SKILL TRAINING	1,163,755	1,173,755
	Generative AI and Spatial Computing for Warfighter Performance		[10,000]
350	PROFESSIONAL DEVELOPMENT EDUCATION	280,521	280,521
360	TRAINING SUPPORT	504,282	504,282
370	RECRUITING AND ADVERTISING	261,140	261,140
380	OFF-DUTY AND VOLUNTARY EDUCATION	75,600	75,600
390	CIVILIAN EDUCATION AND TRAINING	60,191	60,191
400	JUNIOR ROTC	60,219	60,219
	SUBTOTAL TRAINING AND RECRUITING	**2,816,061**	**2,836,061**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
410	ADMINISTRATION	1,396,823	1,479,056
	Integrated Data Management Systems for Military Personnel Harmful Behaviors Prevention		[5,000]
	Support for Navy Tuition Assistance Funding		[77,233]
430	CIVILIAN MANPOWER AND PERSONNEL MANAGEMENT	244,308	244,308
450	MILITARY MANPOWER AND PERSONNEL MANAGEMENT	642,260	642,260
470	FOREIGN CURRENCY FLUCTUATION	5,517	5,517
480	DEF ACQUISITION WORKFORCE DEVELOPMENT ACCOUNT	60,440	60,440
490	SERVICEWIDE TRANSPORTATION	279,134	279,134
510	PLANNING, ENGINEERING, AND PROGRAM SUPPORT	605,530	605,530
520	ACQUISITION, LOGISTICS, AND OVERSIGHT	822,580	822,580
530	INVESTIGATIVE AND SECURITY SERVICES	1,076,664	1,076,664
760A	CLASSIFIED PROGRAMS	728,457	728,457
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**5,861,713**	**5,943,946**
	UNDISTRIBUTED		
770	UNDISTRIBUTED		–307,900
	Historical unobligated balances		[–307,900]
	SUBTOTAL UNDISTRIBUTED		**–307,900**
	TOTAL OPERATION AND MAINTENANCE, NAVY	**82,568,546**	**82,437,879**
	OPERATION AND MAINTENANCE, MARINE CORPS		
	OPERATING FORCES		
010	OPERATIONAL FORCES	3,113,102	3,113,102
020	FIELD LOGISTICS	2,807,429	2,807,429
030	DEPOT MAINTENANCE	344,750	344,750
040	MARITIME PREPOSITIONING	280,543	280,543
050	CYBERSPACE ACTIVITIES	351,199	351,199
060	SUSTAINMENT, RESTORATION & MODERNIZATION	3,629,008	3,629,008
070	BASE OPERATING SUPPORT	3,175,027	3,175,027
	SUBTOTAL OPERATING FORCES	**13,701,058**	**13,701,058**
	TRAINING AND RECRUITING		
080	RECRUIT TRAINING	45,521	45,521

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
090	OFFICER ACQUISITION	1,346	1,346
100	SPECIALIZED SKILL TRAINING	242,438	242,438
110	PROFESSIONAL DEVELOPMENT EDUCATION	64,994	64,994
120	TRAINING SUPPORT	838,526	838,526
130	RECRUITING AND ADVERTISING	363,287	363,287
140	OFF-DUTY AND VOLUNTARY EDUCATION	47,840	47,840
150	JUNIOR ROTC	33,292	33,292
	SUBTOTAL TRAINING AND RECRUITING	**1,637,244**	**1,637,244**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
180	SERVICEWIDE TRANSPORTATION	154,026	154,026
190	ADMINISTRATION	416,349	416,349
300A	CLASSIFIED PROGRAMS	80,140	80,140
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**650,515**	**650,515**
	UNDISTRIBUTED		
310	UNDISTRIBUTED		–80,300
	Historical unobligated balances		[–80,300]
	SUBTOTAL UNDISTRIBUTED		**–80,300**
	TOTAL OPERATION AND MAINTENANCE, MARINE CORPS	**15,988,817**	**15,908,517**
	OPERATION AND MAINTENANCE, NAVY RESERVE		
	OPERATING FORCES		
010	MISSION AND OTHER FLIGHT OPERATIONS	787,622	787,622
020	AIR SYSTEMS SUPPORT	9,733	9,733
030	AIRCRAFT DEPOT MAINTENANCE	215,547	215,547
040	AVIATION LOGISTICS	27,703	27,703
050	COMBAT COMMUNICATIONS	19,652	19,652
060	COMBAT SUPPORT FORCES	196,376	196,376
070	CYBERSPACE ACTIVITIES	288	288
080	ENTERPRISE INFORMATION	30,811	30,811
090	SUSTAINMENT, RESTORATION AND MODERNIZATION	59,386	59,386
100	BASE OPERATING SUPPORT	111,177	111,177
	SUBTOTAL OPERATING FORCES	**1,458,295**	**1,458,295**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
110	ADMINISTRATION	2,747	2,747
120	MILITARY MANPOWER AND PERSONNEL MANAGEMENT	14,944	14,944
130	ACQUISITION AND PROGRAM MANAGEMENT	1,230	1,230
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**18,921**	**18,921**
	UNDISTRIBUTED		
150	UNDISTRIBUTED		–20,600
	Historical unobligated balances		[–20,600]
	SUBTOTAL UNDISTRIBUTED		**–20,600**
	TOTAL OPERATION AND MAINTENANCE, NAVY RESERVE	**1,477,216**	**1,456,616**
	OPERATION AND MAINTENANCE, MARINE CORPS RESERVE		
	OPERATING FORCES		
010	OPERATING FORCES	142,416	142,416
020	DEPOT MAINTENANCE	23,213	23,213
030	SUSTAINMENT, RESTORATION AND MODERNIZATION	100,709	100,709
040	BASE OPERATING SUPPORT	128,902	128,902
	SUBTOTAL OPERATING FORCES	**395,240**	**395,240**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
050	ADMINISTRATION	9,440	9,440

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**9,440**	**9,440**
	UNDISTRIBUTED		
070	UNDISTRIBUTED		–7,000
	Historical unobligated balances		[–7,000]
	SUBTOTAL UNDISTRIBUTED		**–7,000**
	TOTAL OPERATION AND MAINTENANCE, MARINE CORPS RESERVE	**404,680**	**397,680**
	OPERATION AND MAINTENANCE, AIR FORCE		
	OPERATING FORCES		
010	PRIMARY COMBAT FORCES	1,798,263	1,798,263
020	COMBAT ENHANCEMENT FORCES	3,117,205	3,117,205
030	AIR OPERATIONS TRAINING (OJT, MAINTAIN SKILLS)	2,770,832	2,780,832
	Point Defense Battle Lab Program		[10,000]
040	DEPOT PURCHASE EQUIPMENT MAINTENANCE	6,092,998	6,092,998
050	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	6,100,395	6,105,395
	Advanced Nuclear Energy Demonstration Project		[5,000]
060	CYBERSPACE SUSTAINMENT	320,297	320,297
070	CONTRACTOR LOGISTICS SUPPORT AND SYSTEM SUPPORT	11,647,415	11,647,415
080	FLYING HOUR PROGRAM	7,265,480	7,265,480
090	BASE SUPPORT	11,318,037	11,318,037
100	GLOBAL C3I AND EARLY WARNING	1,214,408	1,214,408
110	OTHER COMBAT OPS SPT PROGRAMS	2,146,977	2,121,977
	Program decrease		[–25,000]
120	CYBERSPACE ACTIVITIES	1,155,815	1,146,815
	Unjustified growth		[–9,000]
130	TACTICAL INTEL AND OTHER SPECIAL ACTIVITIES	1,992,280	1,992,280
140	MEDICAL READINESS	561,626	561,626
150	US NORTHCOM/NORAD	746,165	746,165
160	US STRATCOM	656,448	656,448
170	US CENTCOM	405,438	405,438
180	US SOCOM	42,261	42,261
190	US TRANSCOM	694	694
210	USSPACECOM	555,147	555,147
210A	CLASSIFIED PROGRAMS	81,694	81,694
	SUBTOTAL OPERATING FORCES	**59,989,875**	**59,970,875**
	MOBILIZATION		
220	AIRLIFT OPERATIONS	3,782,668	3,782,668
230	MOBILIZATION PREPAREDNESS	321,889	321,889
	SUBTOTAL MOBILIZATION	**4,104,557**	**4,104,557**
	TRAINING AND RECRUITING		
240	OFFICER ACQUISITION	267,971	267,971
250	RECRUIT TRAINING	70,462	70,462
260	RESERVE OFFICERS TRAINING CORPS (ROTC)	143,686	143,686
270	SPECIALIZED SKILL TRAINING	589,549	589,549
280	FLIGHT TRAINING	1,122,297	1,122,297
290	PROFESSIONAL DEVELOPMENT EDUCATION	280,908	280,908
300	TRAINING SUPPORT	192,608	192,608
310	RECRUITING AND ADVERTISING	254,720	254,720
320	EXAMINING	7,261	7,261
330	OFF-DUTY AND VOLUNTARY EDUCATION	232,768	232,768
340	CIVILIAN EDUCATION AND TRAINING	354,678	354,678
350	JUNIOR ROTC	114,790	114,790
	SUBTOTAL TRAINING AND RECRUITING	**3,631,698**	**3,631,698**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
360	LOGISTICS OPERATIONS	1,124,763	1,124,763
370	TECHNICAL SUPPORT ACTIVITIES	159,721	159,721
380	ADMINISTRATION	1,292,758	1,294,758
	Integrated Data Management Systems for Military Personnel Harmful Behaviors Prevention		[5,000]
	Program decrease		[–3,000]

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
390	SERVICEWIDE COMMUNICATIONS	43,892	43,892
410	OTHER SERVICEWIDE ACTIVITIES	1,666,547	1,666,547
420	CIVIL AIR PATROL	32,984	32,984
430	DEF ACQUISITION WORKFORCE DEVELOPMENT ACCOUNT	58,936	58,936
440	SECURITY PROGRAMS	202,400	202,400
450	INTERNATIONAL SUPPORT	77,853	77,853
450A	CLASSIFIED PROGRAMS	1,653,652	1,653,652
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**6,313,506**	**6,315,506**
	UNDISTRIBUTED		
460	UNDISTRIBUTED		–408,800
	Historical unobligated balances		[–408,800]
	SUBTOTAL UNDISTRIBUTED		**–408,800**
	TOTAL OPERATION AND MAINTENANCE, AIR FORCE	**74,039,636**	**73,613,836**
	OPERATION AND MAINTENANCE, SPACE FORCE		
	OPERATING FORCES		
010	GLOBAL C3I & EARLY WARNING	1,056,824	1,056,824
020	SPACE LAUNCH OPERATIONS	415,322	415,322
030	SPACE OPERATIONS	1,266,939	1,266,939
040	EDUCATION & TRAINING	783,168	783,168
050	SPECIAL PROGRAMS	733,761	733,761
060	DEPOT MAINTENANCE	83,803	83,803
070	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	1,384,326	1,384,326
080	CONTRACTOR LOGISTICS AND SYSTEM SUPPORT	2,096,381	2,096,381
090	SPACE OPERATIONS -BOS	551,196	551,196
100	CYBERSPACE ACTIVITIES	289,958	289,958
100A	CLASSIFIED PROGRAMS	118,478	118,478
	SUBTOTAL OPERATING FORCES	**8,780,156**	**8,780,156**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
110	LOGISTICS OPERATIONS	36,164	36,164
120	ADMINISTRATION	449,597	449,597
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**485,761**	**485,761**
	UNDISTRIBUTED		
130	UNDISTRIBUTED		–54,400
	Historical unobligated balances		[–54,400]
	SUBTOTAL UNDISTRIBUTED		**–54,400**
	TOTAL OPERATION AND MAINTENANCE, SPACE FORCE	**9,265,917**	**9,211,517**
	OPERATION AND MAINTENANCE, AIR FORCE RESERVE		
	OPERATING FORCES		
010	PRIMARY COMBAT FORCES	2,138,964	2,138,964
020	MISSION SUPPORT OPERATIONS	217,542	221,542
	Program increase		[4,000]
030	DEPOT PURCHASE EQUIPMENT MAINTENANCE	787,861	787,861
040	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	187,022	187,022
050	CONTRACTOR LOGISTICS SUPPORT AND SYSTEM SUPPORT	654,233	654,233
060	BASE SUPPORT	632,638	632,638
070	CYBERSPACE ACTIVITIES	1,655	1,655
	SUBTOTAL OPERATING FORCES	**4,619,915**	**4,623,915**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
080	ADMINISTRATION	100,998	100,998
090	RECRUITING AND ADVERTISING	11,620	11,620
100	MILITARY MANPOWER AND PERS MGMT (ARPC)	15,893	15,893

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
110	AUDIOVISUAL	561	561
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**129,072**	**129,072**
	UNDISTRIBUTED		
120	UNDISTRIBUTED		–52,100
	Historical unobligated balances		[–52,100]
	SUBTOTAL UNDISTRIBUTED		**–52,100**
	TOTAL OPERATION AND MAINTENANCE, AIR FORCE RESERVE	**4,748,987**	**4,700,887**
	OPERATION AND MAINTENANCE, AIR NATIONAL GUARD		
	OPERATING FORCES		
010	AIRCRAFT OPERATIONS	2,744,277	2,744,277
020	MISSION SUPPORT OPERATIONS	663,367	663,367
030	DEPOT PURCHASE EQUIPMENT MAINTENANCE	1,210,460	1,210,460
040	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	531,241	531,241
050	CONTRACTOR LOGISTICS SUPPORT AND SYSTEM SUPPORT	1,632,461	1,632,461
060	BASE SUPPORT	1,128,729	1,128,729
070	CYBERSPACE SUSTAINMENT	26,354	26,354
080	CYBERSPACE ACTIVITIES	81,720	81,720
	SUBTOTAL OPERATING FORCES	**8,018,609**	**8,018,609**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
090	ADMINISTRATION	64,249	64,249
100	RECRUITING AND ADVERTISING	47,831	47,831
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**112,080**	**112,080**
	UNDISTRIBUTED		
110	UNDISTRIBUTED		–50,800
	Historical unobligated balances		[–50,800]
	SUBTOTAL UNDISTRIBUTED		**–50,800**
	TOTAL OPERATION AND MAINTENANCE, AIR NATIONAL GUARD	**8,130,689**	**8,079,889**
	OPERATION AND MAINTENANCE, DEFENSE-WIDE		
	OPERATING FORCES		
010	JOINT CHIEFS OF STAFF	534,218	534,218
020	JOINT CHIEFS OF STAFF—JTEEP	1,393,798	1,393,798
030	JOINT CHIEFS OF STAFF—CYBER	9,103	9,103
040	OFFICE OF THE SECRETARY OF DEFENSE—PSYOP	325,609	340,609
	AI-based IO agentic Assessment		[15,000]
050	SPECIAL OPERATIONS COMMAND COMBAT DEVELOPMENT ACTIVITIES	2,589,383	3,017,983
	Accelerated Fielding of Group 3 Unmanned Aerial System (UAS) Capability		[3,600]
	Maritime Mission Support Vessel		[425,000]
060	SPECIAL OPERATIONS COMMAND MAINTENANCE	1,388,865	1,437,629
	Electromagnetic Warfare (EW) Family of Systems		[1,286]
	Ground Infil Protection Systems(GIPS)		[15,340]
	Ground Organic Precision Strike Systems (GOPSS)		[3,639]
	Munitions War Reserves		[2,888]
	Non-Standard Aviations (NSAv)		[15,611]
	USASOC Dive Tank and Compression Chamber		[10,000]
070	SPECIAL OPERATIONS COMMAND MANAGEMENT/ OPERATIONAL HEADQUARTERS	180,691	180,691
080	SPECIAL OPERATIONS COMMAND THEATER FORCES	3,695,859	3,706,622
	Cognitive Performance Initiative		[7,500]
	Manpower for TSOC Next		[3,263]
090	SPECIAL OPERATIONS COMMAND CYBERSPACE ACTIVITIES	78,512	78,512
100	SPECIAL OPERATIONS COMMAND INTELLIGENCE	1,130,849	1,138,849

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
	Identity and Signature Management		[8,000]
110	SPECIAL OPERATIONS COMMAND OPERATIONAL SUPPORT	1,796,851	1,812,851
	Identity and Signature Management		[11,000]
	USSOCOM Lessons Learned Program		[5,000]
120	CYBERSPACE OPERATIONS	1,880,381	1,872,381
	Unjustified growth		[–8,000]
130	USCYBERCOM HEADQUARTERS	303,726	303,726
	SUBTOTAL OPERATING FORCES	**15,307,845**	**15,826,972**
	TRAINING AND RECRUITING		
140	DEFENSE ACQUISITION UNIVERSITY	193,017	193,017
150	JOINT CHIEFS OF STAFF	173,748	173,748
160	SPECIAL OPERATIONS COMMAND/PROFESSIONAL DEVELOPMENT EDUCATION	30,040	30,040
	SUBTOTAL TRAINING AND RECRUITING	**396,805**	**396,805**
	ADMINISTRATION AND SERVICE-WIDE ACTIVITIES		
170	CIVIL MILITARY PROGRAMS	118,488	374,488
	National Guard Youth Challenge Program (NGYCP)		[198,000]
	Senator Robert J. Dole Greatest Generation Education Program		[5,000]
	STARBASE		[53,000]
180	DEFENSE CONTRACT AUDIT AGENCY—CYBER	3,825	3,825
190	DEFENSE CONTRACT AUDIT AGENCY	611,600	611,600
200	DEFENSE CONTRACT MANAGEMENT AGENCY	1,462,988	1,462,988
210	DEFENSE CONTRACT MANAGEMENT AGENCY—CYBER	42,367	42,367
220	DEFENSE COUNTERINTELLIGENCE AND SECURITY AGENCY	1,035,974	1,035,974
240	DEFENSE COUNTERINTELLIGENCE AND SECURITY AGENCY—CYBER	16,885	16,885
250	DEFENSE HUMAN RESOURCES ACTIVITY—CYBER	49,611	49,611
260	DEFENSE HUMAN RESOURCES ACTIVITY	1,505,352	1,510,352
	Modernization of DOD Drug Testing		[5,000]
290	DEFENSE INFORMATION SYSTEMS AGENCY	3,873,222	3,873,222
300	DEFENSE INFORMATION SYSTEMS AGENCY—CYBER	602,017	602,017
310	DEFENSE LEGAL SERVICES AGENCY	147,620	147,620
320	DEFENSE LOGISTICS AGENCY	585,610	585,610
330	DEFENSE MEDIA ACTIVITY	207,551	207,551
340	DEFENSE POW/MIA OFFICE	160,358	160,358
350	DEFENSE SECURITY COOPERATION AGENCY	3,780,757	4,393,834
	Additional International Security Cooperation Programs—EUCOM		[210,000]
	including amount for Baltic Security Initiative		*[175,000]*
	Defense Institute for International Legal Studies		[1,396]
	Institute for Security Governance		[1,681]
	Prior-year authorization		[400,000]
360	DEFENSE TECHNOLOGY SECURITY ADMINISTRATION	47,101	47,101
370	DEFENSE THREAT REDUCTION AGENCY	637,514	637,514
390	DEFENSE THREAT REDUCTION AGENCY—CYBER	73,477	73,477
400	DEPARTMENT OF DEFENSE EDUCATION ACTIVITY	3,493,232	3,563,232
	Impact Aid		[50,000]
	Impact Aid Students with Disabilities		[20,000]
410	MISSILE DEFENSE AGENCY	487,235	487,235
420	OFFICE OF THE LOCAL DEFENSE COMMUNITY COOPERATION	142,597	152,597
	Program increase		[10,000]
430	JOINT CHIEFS OF STAFF—JIATF	431,652	431,652
470	OFFICE OF THE SECRETARY OF DEFENSE—CYBER	81,163	124,163
	DIB Cybersecurity		[4,000]
	Enterprise Unified Data Library		[15,000]
	Senior Military College DoD Cyber Institutes		[24,000]
480	OFFICE OF THE SECRETARY OF DEFENSE	3,832,831	3,875,831
	Readiness and Environmental Protection Integration Program (REPI)		[30,000]
	Legacy Resource Management Program		[8,000]
	Native American Lands Environmental Mitigation Program (NALEMP)		[5,000]
510	WASHINGTON HEADQUARTERS SERVICES	536,546	536,546

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
510A	CLASSIFIED PROGRAMS	24,579,358	24,637,358
	Automated Man-made Vertical Obstruction/Obstacle Detection Software Integration		[15,000]
	Forward Based Theater Foreign Materiel Exploitation		[21,100]
	Machine Speed Intelligence Fusion		[8,000]
	Personnel adjustments		[13,900]
	SUBTOTAL ADMINISTRATION AND SERVICE-WIDE ACTIVITIES	**48,546,931**	**49,645,008**
	UNDISTRIBUTED		
520	UNDISTRIBUTED		–1,380,803
	Foreign currency fluctuations		[–900,000]
	Historical unobligated balances		[–480,803]
	SUBTOTAL UNDISTRIBUTED		**–1,380,803**
	TOTAL OPERATION AND MAINTENANCE, DEFENSE-WIDE	**64,251,581**	**64,487,982**
	UNITED STATES COURT OF APPEALS FOR THE ARMED FORCES		
	ADMINISTRATION AND ASSOCIATED ACTIVITIES		
010	US COURT OF APPEALS FOR THE ARMED FORCES, DEFENSE	21,698	21,698
	SUBTOTAL ADMINISTRATION AND ASSOCIATED ACTIVITIES	**21,698**	**21,698**
	TOTAL UNITED STATES COURT OF APPEALS FOR THE ARMED FORCES	**21,698**	**21,698**
	DEPARTMENT OF DEFENSE ACQUISITION WORKFORCE DEVELOPMENT FUND		
	ACQUISITION WORKFORCE DEVELOPMENT		
010	ACQ WORKFORCE DEV FD	37,478	97,478
	Defense Civilian Training Corps		[30,000]
	IP cadre		[30,000]
	SUBTOTAL ACQUISITION WORKFORCE DEVELOPMENT	**37,478**	**97,478**
	TOTAL DEPARTMENT OF DEFENSE ACQUISITION WORKFORCE DEVELOPMENT FUND	**37,478**	**97,478**
	OVERSEAS HUMANITARIAN, DISASTER, AND CIVIC AID		
	HUMANITARIAN ASSISTANCE		
010	OVERSEAS HUMANITARIAN, DISASTER AND CIVIC AID	78,187	115,335
	Program increase		[37,148]
	SUBTOTAL HUMANITARIAN ASSISTANCE	**78,187**	**115,335**
	TOTAL OVERSEAS HUMANITARIAN, DISASTER, AND CIVIC AID	**78,187**	**115,335**
	COOPERATIVE THREAT REDUCTION ACCOUNT		
	FSU THREAT REDUCTION		
010	COOPERATIVE THREAT REDUCTION	221,332	221,332
	SUBTOTAL FSU THREAT REDUCTION	**221,332**	**221,332**
	TOTAL COOPERATIVE THREAT REDUCTION ACCOUNT	**221,332**	**221,332**
	ENVIRONMENTAL RESTORATION, ARMY		
	DEPARTMENT OF THE ARMY		
050	ENVIRONMENTAL RESTORATION, ARMY	282,444	282,444
	SUBTOTAL DEPARTMENT OF THE ARMY	**282,444**	**282,444**
	TOTAL ENVIRONMENTAL RESTORATION, ARMY	**282,444**	**282,444**
	ENVIRONMENTAL RESTORATION, NAVY		

SEC. 4301. OPERATION AND MAINTENANCE
(In Thousands of Dollars)

Line	Item	FY 2027 Request	House Authorized
	DEPARTMENT OF THE NAVY		
060	ENVIRONMENTAL RESTORATION, NAVY	305,246	305,246
	SUBTOTAL DEPARTMENT OF THE NAVY	**305,246**	**305,246**
	TOTAL ENVIRONMENTAL RESTORATION, NAVY	**305,246**	**305,246**
	ENVIRONMENTAL RESTORATION, AIR FORCE		
	DEPARTMENT OF THE AIR FORCE		
070	ENVIRONMENTAL RESTORATION, AIR FORCE	320,060	320,060
	SUBTOTAL DEPARTMENT OF THE AIR FORCE	**320,060**	**320,060**
	TOTAL ENVIRONMENTAL RESTORATION, AIR FORCE	**320,060**	**320,060**
	ENVIRONMENTAL RESTORATION, DEFENSE		
	DEFENSE-WIDE		
080	ENVIRONMENTAL RESTORATION, DEFENSE	8,957	8,957
	SUBTOTAL DEFENSE-WIDE	**8,957**	**8,957**
	TOTAL ENVIRONMENTAL RESTORATION, DEFENSE	**8,957**	**8,957**
	ENVIRONMENTAL RESTORATION, FORMERLY USED DEFENSE SITES		
	DEFENSE-WIDE		
090	ENVIRONMENTAL RESTORATION FORMERLY USED SITES	238,927	246,927
	Program increase		[8,000]
	SUBTOTAL DEFENSE-WIDE	**238,927**	**246,927**
	TOTAL ENVIRONMENTAL RESTORATION, FORMERLY USED DEFENSE SITES	**238,927**	**246,927**
	TOTAL OPERATION & MAINTENANCE	**338,624,638**	**337,672,520**

TITLE XLIV—MILITARY PERSONNEL

SEC. 4401. MILITARY PERSONNEL.

SEC. 4401. MILITARY PERSONNEL
(In Thousands of Dollars)

Item	FY 2027 Request	House Authorized
Military Personnel	**190,771,931**	**190,021,931**
Historical unobligated balances		[–750,000]
MERHCF	**14,349,269**	**14,349,269**

TITLE XLV—OTHER AUTHORIZATIONS

SEC. 4501. OTHER AUTHORIZATIONS.

SEC. 4501. OTHER AUTHORIZATIONS
(In Thousands of Dollars)

Item	FY 2027 Request	House Authorized
INDUSTRIAL OPERATIONS	20,563	20,563
SUPPLY MANAGEMENT—ARMY		
TOTAL WORKING CAPITAL FUND, ARMY	**20,563**	**20,563**
WORKING CAPITAL FUND, NAVY		
NAVAL SURFACE WARFARE CENTERS	266,212	266,212
TOTAL WORKING CAPITAL FUND, NAVY	**266,212**	**266,212**
WORKING CAPITAL FUND, AIR FORCE		
TRANSPORTATION		
CRITICAL SPARES	4,245,563	4,245,563
SUPPLIES AND MATERIALS	194,851	194,851
TOTAL WORKING CAPITAL FUND, AIR FORCE	**4,440,414**	**4,440,414**
NATIONAL DEFENSE STOCKPILE TRANSACTION FUND		
DEFENSE STOCKPILE	5,700	5,700
TOTAL NATIONAL DEFENSE STOCKPILE TRANSACTION FUND	**5,700**	**5,700**
WORKING CAPITAL FUND, DEFENSE-WIDE		
DEFENSE FINANCE OPERATIONS—DIRECT	273,760	273,760
DOD MARKET FLUCTUATION ACCOUNT (FUEL)	1,000,000	1,000,000
UNDISTRIBUTED		–400,000
WCF cash balances		[–400,000]
TOTAL WORKING CAPITAL FUND, DEFENSE-WIDE	**1,273,760**	**873,760**
WORKING CAPITAL FUND, DEFENSE COMMISSARY AGENCY		
COMMISSARY OPERATIONS	1,501,344	1,501,344
TOTAL WORKING CAPITAL FUND, DEFENSE COMMISSARY AGENCY	**1,501,344**	**1,501,344**
CHEMICAL AGENTS AND MUNITIONS DESTRUCTION, DEFENSE		
OPERATION AND MAINTENANCE		
RESEARCH, DEVELOPMENT, TEST, AND EVALUATION	55,972	55,972
TOTAL CHEMICAL AGENTS AND MUNITIONS DESTRUCTION, DEFENSE	**55,972**	**55,972**
DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE		
COUNTER-NARCOTICS SUPPORT	658,191	658,191
DRUG DEMAND REDUCTION PROGRAM	135,745	135,745
NATIONAL GUARD COUNTER-DRUG PROGRAM	117,418	117,418
NATIONAL GUARD COUNTER-DRUG SCHOOLS	6,648	9,648
Program increase		[3,000]
TOTAL DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE	**918,002**	**921,002**
OFFICE OF THE INSPECTOR GENERAL		
OPERATION AND MAINTENANCE	501,371	501,371

SEC. 4501. OTHER AUTHORIZATIONS
(In Thousands of Dollars)

Item	FY 2027 Request	House Authorized
OFFICE OF THE INSPECTOR GENERAL—CYBER	2,073	2,073
RESEARCH, DEVELOPMENT, TEST, AND EVALUATION	1,506	1,506
PROCUREMENT	1,393	1,393
TOTAL OFFICE OF THE INSPECTOR GENERAL	**506,343**	**506,343**
COMBAT AND OPERATIONAL MEDICINE PROGRAM		
IN-HOUSE CARE	10,863,317	10,994,317
Dental Readiness		[131,000]
CONSOLIDATED HEALTH SUPPORT	2,375,175	2,375,175
INFORMATION MANAGEMENT	2,600,177	2,600,177
MANAGEMENT ACTIVITIES	304,382	304,382
EDUCATION AND TRAINING	349,460	349,460
BASE OPERATIONS/COMMUNICATIONS	2,463,042	2,450,042
Program decrease		[–13,000]
R&D RESEARCH	41,924	66,924
Endometrial cancer research		[25,000]
R&D EXPLORATRY DEVELOPMENT	185,153	185,153
R&D ADVANCED DEVELOPMENT	361,241	428,841
Blast Overpressure		[6,000]
Cryopreserved Platelet Development		[5,000]
Freeze-Dried Platelet Hemostatics		[5,000]
Joint Neuroscience Demonstration Program		[10,000]
Musculoskeletal resilience		[7,000]
Pathogen Reduced Freeze-Dried Cryoprecipitate Manufacturing Technology		[7,600]
Pathogen reduction technology Funding		[7,000]
Physics-based Neutralizations of Threats to Human tissues and Organs Research		[5,000]
Resilient Optimization of Load & Integrated Neuromusculoskeletal Anabolism Research		[15,000]
R&D DEMONSTRATION/VALIDATION	186,018	214,018
Study of direct electrical nerve stimulation on lower limb amputees		[13,000]
Thermal Burn and Concurrent Pulmonary Therapies		[15,000]
R&D ENGINEERING DEVELOPMENT	124,662	124,662
R&D MANAGEMENT AND SUPPORT	100,912	100,912
R&D CAPABILITIES ENHANCEMENT	19,452	30,452
Advanced Vital Intervention Airborne Training for Emergencies (AVIATE)		[11,000]
PROC INITIAL OUTFITTING	25,555	25,555
PROC REPLACEMENT & MODERNIZATION	231,382	231,382
PROC JOINT OPERATIONAL MEDICINE INFORMATION SYSTEM	31,203	31,203
PROC MILITARY HEALTH SYSTEM—DESKTOP TO DATACENTER	78,588	78,588
TOTAL COMBAT AND OPERATIONAL MEDICINE PROGRAM	**20,341,643**	**20,591,243**
PRIVATE SECTOR CARE PROGRAM		
PRIVATE SECTOR CARE	22,175,472	22,175,472
TOTAL PRIVATE SECTOR CARE PROGRAM	**22,175,472**	**22,175,472**
TOTAL OTHER AUTHORIZATIONS	**51,505,425**	**51,358,025**

TITLE XLVI—MILITARY CONSTRUCTION

SEC. 4601. MILITARY CONSTRUCTION.

SEC. 4601. MILITARY CONSTRUCTION
(In Thousands of Dollars)

Account	State/Country and Installation	Project Title	FY 2027 Request	House Agreement
	Alabama			
Army	Anniston Army Depot	Access Control Point (INC)	0	53,000
Army	Anniston Army Depot	Consolidated Shipping and Receiving Facility (Design).	0	5,400
Army	Anniston Army Depot	Welding Shop (Design)	0	4,940
	Alaska			
Army	Fort Wainwright	Barracks (INC 2)	24,000	24,000
	Florida			
Army	Naval Air Station Key West	Command and Control Facility (INC 2)	160,000	160,000
	Germany			
Army	Grafenwoehr	Underground Electric Lines	12,800	12,800
	Guam			
Army	Joint Region Marianas	PDI: Guam Def Sys, EIAMD, PH 2 (INC 2)	190,000	190,000
Army	Joint Region Marianas	PDI: Guam Def Sys, EIAMD, PH 3	155,000	60,000
Army	Joint Region Marianas	PDI: Land Acquisition	29,000	0
	Hawaii			
Army	Fort Shafter	CTC: Clearwell and Booster Pump	71,000	71,000
Army	Helemano	CTC: Wells and Storage Tanks	72,000	72,000
Army	Schofield Barracks	CTC: Elevated Tank and Distribution Lines	26,000	26,000
Army	Schofield Barracks	CTC: Water Storage Tank	21,000	21,000
Army	Schofield Barracks	Fire Station	30,000	30,000
Army	Wheeler Army Air Field	Aircraft Maintenance Hangar (INC 1)	90,000	90,000
	Italy			
Army	Caserma Renato Del Din	Access Control Point	17,000	17,000
	Japan			
Army	Kadena Air Base	CTC: Vehicle Maintenance Shop	69,000	69,000
	Louisiana			
Army	Fort Polk	Rotational Unit Billeting Area	0	157,000
	New York			
Army	Fort Drum	Automated Record Fire Plus Range	25,000	25,000
	North Carolina			
Army	Fort Bragg	CTC: Aircraft Maintenance Hangar	31,000	31,000
	Oklahoma			
Army	Fort Sill	Automated-Aided Instruction Building	0	94,000
	Texas			
Army	Fort Bliss	Shipping and Receiving Building	35,000	35,000
Army	Fort Hood	Vehicle Maintenance Shop	0	81,000
Army	Joint Base San Antonio	Adv Ind Training Barracks-METC (INC)	303,000	103,000
	Washington			
Army	Joint Base Lewis-McChord	Airfield Fire and Rescue Station	89,000	89,000
	Worldwide Unspecified			
Army	Unspecified Worldwide Locations	Design	173,421	173,421
Army	Unspecified Worldwide Locations	Host Nation Support	53,521	53,521
Army	Unspecified Worldwide Locations	Minor Construction	178,626	178,626
Army	Unspecified Worldwide Locations	PDI: Minor Construction	76,270	76,270
Military Construction, Army Total			**1,931,638**	**2,002,978**
	Australia			
Navy	Royal Australian Air Force Base Darwin	PDI: Aircraft Maintenance Hangar (INC)	46,958	46,958
Navy	Royal Australian Air Force Base Darwin	PDI: Maintenance Support Facs (INC)	33,955	33,955
	California			
Navy	Marine Corps Base Camp Pendleton	Fire/Emergency Response Station (53 Area) Replace.	43,000	43,000
Navy	Marine Corps Base Camp Pendleton	Landfill Liner Phase III and IV	53,150	53,150
Navy	Naval Base Coronado	Ford Class CVN Infrastructure Upg., Pier Lima (INC).	33,000	33,000

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Account	State/Country and Installation	Project Title	FY 2027 Request	House Agreement
Navy	Naval Air Station Lemoore	Strike Fighter Center of Excellence Pacific (INC)	155,939	155,939
Navy	Naval Support Activity Monterey	Naval Innovation Center (INC)	50,000	50,000
Navy	Naval Base Ventura County Point Mugu	Community & Airfield Area Flood Protection	164,000	164,000
	Connecticut			
Navy	Naval Submarine Base New London	Submarine Pier 8 Replacement (INC)	142,124	142,124
Navy	Naval Submarine Base New London	Weapons Magazine & Ordnance Operations Fac. (INC).	79,600	79,600
	District of Columbia			
Navy	Naval Research Laboratory	Biomolecular Science & Synthetic Biology Lab	157,000	157,000
	Federated States of Micronesia			
Navy	Yap	PDI: Yap Port and Harbor Improvements (INC)	142,235	142,235
	Florida			
Navy	Marine Corps Support Facility Blount Island	Communications Infrastructure (INC)	46,075	46,075
Navy	Cape Canaveral Space Force Station	Cape Canaveral Railhead & Transfer Facilities	60,990	60,990
Navy	Naval Air Station Whiting Field	Child Development Center (Design)	0	4,135
Navy	Naval Air Station Jacksonville	Multi Aircraft Paint & Strip (Design)	0	28,225
	Georgia			
Navy	Albany	Consolidated Communication Facility	86,350	86,350
Navy	Naval Submarine Base Kings Bay	Transit Protection Program Facility (INC)	100,000	100,000
Navy	Naval Submarine Base Kings Bay	Trident Refit Fac. Expansion (Columbia Sub) (INC).	30,000	30,000
	Guam			
Navy	Andersen Air Force Base	PDI: Joint Consolidated Communications Center (INC).	132,416	132,416
Navy	Apra Heights	PDI: Inner Apra Harbor Resiliency (INC)	13,400	13,400
Navy	Joint Region Marianas	PDI: Defense Access Roads III (INC)	0	16,500
Navy	Joint Region Marianas	PDI: Joint Communication Upgrade (INC)	60,000	60,000
Navy	Joint Region Marianas	PDI: Polaris Point Electrical Capacity Upgrade	122,000	22,000
Navy	Joint Region Marianas	PDI: Polaris Point Submarine Pier (INC)	171,800	171,800
	Hawaii			
Navy	Ford Island	Pacific Warfighting Center Expansion	183,760	183,760
Navy	Joint Base Pearl Harbor-Hickam	Dry Dock 3 Replacement (INC)	507,453	507,453
Navy	Joint Base Pearl Harbor-Hickam	Water Treatment Plant (INC)	248,170	248,170
Navy	Marine Corps Base Kaneohe Bay	3d Mlr Armory Expansion	76,550	76,550
Navy	Marine Corps Base Kaneohe Bay	ATC CO M Compound	134,090	34,090
Navy	Marine Corps Base Kaneohe Bay	Main Gate Entry Control Point	49,260	49,260
Navy	Kauai	PDI: Airfield Pavement Upgrades (INC)	142,470	142,470
	Japan			
Navy	Kadena Air Base	Aircraft Intermediate Maintenance Facility	31,780	31,780
	Maine			
Navy	Portsmouth Naval Shipyard	Multi-Mission Drydock #1 Extension (INC)	50,755	50,755
Navy	Portsmouth Naval Shipyard	Power Reliability & Water Resilience Upgrade (INC).	138,875	138,875
	Maryland			
Navy	United States Naval Academy	Storm Water Management Facilities	0	86,020
	Nevada			
Navy	Naval Air Station Fallon	Range Training Complex Improvements	387,570	387,570
	North Carolina			
Navy	Camp Lejeune	Amphibious Combat Vehicle (ACV) Shelters (INC)	0	24,140
Navy	Camp Lejeune	10th Marines Operational Complex (INC)	77,520	77,520
Navy	Camp Lejeune	Ammunition Supply Point Upgrade Phase II (INC)	15,451	15,451
Navy	Camp Lejeune	Combat Water Survival Training Facility	141,880	141,880
Navy	Marine Corps Air Station Cherry Point	CTC: Aircraft Maintenance Hangar	47,560	47,560
Navy	Marine Corps Air Station Cherry Point	CTC: CH–53K Gearbox Repair and Test Facility	17,941	17,941
Navy	Marine Corps Air Station Cherry Point	F–35 Aircraft Sustainment Ctr (INC)	89,181	89,181

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Account	State/Country and Installation	Project Title	FY 2027 Request	House Agreement
Navy	Marine Corps Air Station Cherry Point	Maintenance Facility & Marine Air Group HQS (INC).	62,575	62,575
Navy	Marine Corps Air Station Cherry Point	2D LAAD Maintenance and Operations Facilities (Design).	0	19,390
	Federated States of Micronesia			
Navy	Palau	PDI: Palau Port and Harbor Improvements (INC)	384,560	384,560
	Pennsylvania			
Navy	Mechaniesburg	Machinery Control Development Center (INC)	79,140	79,140
	Rhode Island			
Navy	Naval Station Newport	Consolidated RDT&E Integration Laboratory	40,000	40,000
Navy	Naval Station Newport	Next Generation Submarine Platform Facility	73,000	73,000
Navy	Naval Station Newport	Submarine Payload Integration Laboratory	40,000	40,000
	South Carolina			
Navy	Charleston Air Force Base	Nuclear Power Training Fac Simulation Expan (INC).	161,700	161,700
	Spain			
Navy	Rota	UH for Permanent Party	64,080	64,080
	Virginia			
Navy	Joint Expeditionary Base Little Creek—Ft Story	Child Development Center	65,640	65,640
Navy	Naval Station Norfolk	Pier 10 Replacement (Design)	0	15,800
Navy	Naval Station Norfolk	Child Development Center	93,040	10,000
Navy	Naval Station Norfolk	Child Development Center	84,940	84,940
Navy	Naval Station Norfolk	Electrical Distribution System Upgrades (INC)	124,965	124,965
Navy	Naval Station Norfolk	MQ–25 Aircraft Laydown Facilities (INC)	54,622	54,622
Navy	Oceana Naval Air Station	Child Development Center	104,340	34,340
Navy	Portsmouth	Dry Dock 3 Modernization (INC)	189,353	189,353
Navy	Naval Weapons Station Yorktown	CTC: Containerized Long Weapons Storage Magazine.	16,170	16,170
Navy	Naval Weapons Station Yorktown	CTC: Conventional Prompt Strike Test Facility	13,710	13,710
Navy	Naval Weapons Station Yorktown	Weapons Magazines (INC)	100,782	100,782
	Washington			
Navy	Naval Base Kitsap-Bangor	Columbia Submarine Repair Facility Expansion (INC).	64,000	64,000
Navy	Naval Base Kitsap-Bangor	Columbia Submarine Training Facility Expansion	90,900	90,900
Navy	Naval Base Kitsap-Bremerton	Missile Assembly Building Replacement	195,227	195,227
Navy	Puget Sound Naval Shipyard	Multi-Mission Dry Dock (INC)	245,000	245,000
Navy	Naval Air Station Whidbey Island	EA–18G Aircraft Regional Service Facility	202,000	202,000
	Worldwide Unspecified			
Navy	Unspecified Worldwide Locations	Design	1,163,477	1,163,477
Navy	Unspecified Worldwide Locations	Unspecified Minor Construction	142,764	142,764
Navy	Unspecified Worldwide Locations	Unspecified Minor Construction	146,460	146,460
Military Construction, Navy Total			**8,266,703**	**8,107,873**
	Alabama			
AF	Redstone Arsenal	Space Force Operational Facility	250,000	250,000
AF	Redstone Arsenal	USSPACECOM HQ	450,000	450,000
	Alaska			
AF	Eielson Air Force Base	Jpare Range Operations Center	91,000	50,000
AF	Joint Base Elmendorf-Richardson	Joint Integrated Test and Training Ctr (INC)	42,000	42,000
AF	Joint Base Elmendorf-Richardson	FTR- ADAL Field Training Detachment (Ftd)	56,000	56,000
AF	Joint Base Elmendorf-Richardson	FTR- Conventional Munitions Complex	132,300	132,300
AF	Joint Base Elmendorf-Richardson	FTR- Dormitory	451,500	451,500
AF	Joint Base Elmendorf-Richardson	FTR- Flight Simulator	93,800	93,800
AF	Joint Base Elmendorf-Richardson	FTR- Fuel Cell Maintenance	31,250	31,250
AF	Joint Base Elmendorf-Richardson	FTR- Infrastructure & Utilities	422,100	422,100
AF	Joint Base Elmendorf-Richardson	FTR- Low Observable Aircraft Structural Maintenance.	63,250	63,250

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Account	State/Country and Installation	Project Title	FY 2027 Request	House Agreement
AF	Joint Base Elmendorf-Richardson	FTR- Operations and Generation Hangar	127,500	127,500
AF	Joint Base Elmendorf-Richardson	FTR- PGM Relocation	359,100	359,100
AF	Joint Base Elmendorf-Richardson	FTR- Public Traffic Route Realignment	50,000	50,000
AF	Joint Base Elmendorf-Richardson	FTR- Squadron 1–1 Airfield Pavements	125,250	125,250
AF	Joint Base Elmendorf-Richardson	FTR- Squadron 1–1 Flowthrough Hangars	154,000	154,000
	Arizona			
AF	Davis-Monthan Air Force Base	Hangar/Aircraft Maintenance Unit	15,000	15,000
	Arkansas			
AF	Little Rock Air Force Base	Child Development Center	27,000	27,000
	California			
AF	Edwards Air Force Base	Construct Vehicle Search Area Afrl Gate Ecp	0	4,500
AF	Beale Air Force Base	Multi-Domain Operations Complex	126,000	126,000
	Colorado			
AF	Schriever Space Force Base	Space Force Operational Facility	250,000	250,000
	Djibouti			
AF	Chabelley Airfield	Chabelley Power Plant and Primary Dist	27,000	27,000
	Federated States of Micronesia			
AF	Yap Airfield	PDI: Runway Extension (INC)	27,000	27,000
	Florida			
AF	Cape Canaveral Space Force Station	Base Support Warehouse	64,000	64,000
AF	Cape Canaveral Space Force Station	Command Facility	85,000	85,000
AF	Cape Canaveral Space Force Station	Communications Plant Warehouse	48,400	48,400
AF	Cape Canaveral Space Force Station	Launch Support Facility	84,000	84,000
AF	Cape Canaveral Space Force Station	LRS Vehicle Maintenance Facility	80,400	80,400
AF	Cape Canaveral Space Force Station	Security Forces Operations Facility	48,000	48,000
AF	Tyndall Air Force Base	AFCEC RDT&E Facilities and Gate	160,000	80,000
	Georgia			
AF	Moody Air Force Base	Military Working Dog Flight Operations Facility	0	15,870
	Hawaii			
AF	Maui	Secure Integration Support Lab W/ Land Acq	3,600	3,600
	Japan			
AF	Kadena Air Base	Theater Strategic Communications Hub	99,000	60,000
	Mississippi			
AF	Columbus Air Force Base	T–7A Allied Support	11,800	11,800
	Missouri			
AF	Whiteman Air Force Base	B–21 ADAL Field Training Detachment, B152	89,000	89,000
AF	Whiteman Air Force Base	B–21 Weapons Loader Trainer	80,000	80,000
	Montana			
AF	Malmstrom Air Force Base	Sentinel Land Acquisition (INC)	43,500	43,500
AF	Malmstrom Air Force Base	Sentinel Operations & Maint. Complex (INC)	95,000	95,000
	Nevada			
AF	Creech Air Force Base	RPA Reconnaissance Operations/Training Facility	0	36,000
AF	Creech Air Force Base	Mission Support Facility	0	55,000
AF	Nellis Air Force Base	F–47 2–Bay Fuel Cell (F–35)	52,000	52,000
AF	Nellis Air Force Base	F–47 Age Washrack	500	500
AF	Nellis Air Force Base	F–47 Aircraft Washrack & Support Facility	4,000	4,000
AF	Nellis Air Force Base	F–47 Apron Complex	192,500	192,500
AF	Nellis Air Force Base	F–47 Combined Operations Maintenance Hangar (Comh).	177,800	177,800
AF	Nellis Air Force Base	F–47 Consolidated Maintenance Facility	32,000	32,000
AF	Nellis Air Force Base	F–47 Fuel Cell	28,000	28,000
AF	Nellis Air Force Base	F–47 Fuel Station	10,000	10,000
AF	Nellis Air Force Base	F–47 Low Observable Corrosion Repair Facility	38,700	38,700
AF	Nellis Air Force Base	F–47 Maintenance Training Facility	29,000	29,000
AF	Nellis Air Force Base	F–47 R–11 East Side Shade Structure	1,800	1,800
AF	Nellis Air Force Base	F–47 Repair Munitions Admin Facility	4,600	4,600

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Account	State/Country and Installation	Project Title	FY 2027 Request	House Agreement
AF	Nellis Air Force Base	F–47 Re-Programming Lab	61,000	61,000
AF	Nellis Air Force Base	F–47 Simulator Facility	62,000	62,000
AF	Nellis Air Force Base	F–47 Weapons Load Training Facility	34,000	34,000
AF	Nellis Air Force Base	F–47 Weapons Storage Facility	2,800	2,800
	New Jersey			
AF	Joint Base McGuire-Dix-Lakehurst	Well No.6 and Wellhouse	0	11,500
AF	Joint Base McGuire-Dix-Lakehurst	Well No.5 and Wellhouse	0	11,000
	New Mexico			
AF	Cannon Air Force Base	Dormitory	10,000	10,000
AF	Kirtland Air Force Base	Space Force Operational Facility	250,000	250,000
	North Dakota			
AF	Grand Forks Air Force Base	Space Force Operational Facility	250,000	250,000
AF	Minot Air Force Base	Sentinel Consolidated Vehicle Maintenance Complex.	124,000	49,000
AF	Minot Air Force Base	Sentinel Security Forces Operations Complex	108,000	68,000
	Ohio			
AF	Wright-Patterson Air Force Base	Human Performance Wing Laboratory (INC)	0	21,000
AF	Wright-Patterson Air Force Base	Advanced Materials Research Lab (Design)	0	9,000
	Oklahoma			
AF	Tinker Air Force Base	E–7 AWACS Squadron Operations Facility	0	55,000
AF	Tinker Air Force Base	Bomber Agile Common Hangar (INC)	112,000	112,000
	Oregon			
AF	Mountain Home Air Force Base	Homeland Defense Over-the-Horizon Radar (INC)	33,650	33,650
	Spain			
AF	Moron	Parking Apron	75,500	75,500
	Tennessee			
AF	Arnold Air Force Base	Installation Access Control Point Gate 2 Upgrade	0	20,000
	Texas			
AF	Dyess Air Force Base	B–21 Flight Simulator Facility	63,000	63,000
AF	Dyess Air Force Base	B–21 Low Observable Corrosion Control Fac	74,000	74,000
AF	Dyess Air Force Base	B–21 Utilities Site Improvements Electric	23,000	23,000
AF	Fort Sam Houston	METC—Barracks/Ships/Dorms #1 (INC)	308,000	308,000
AF	Goodfellow Air Force Base	Pipeline Student Dormitory	12,000	12,000
AF	Joint Base San Antonio	MWD Large Capacity Kennel	180,000	80,000
AF	Lackland Air Force Base	91 Cyber Operations Center	96,000	40,000
	Utah			
AF	Hill Air Force Base	F–35 Maintenance Facility, Phase 1 (INC)	100,000	100,000
AF	Hill Air Force Base	T–7A Depot Maintenance Complex (INC)	72,000	72,000
	Virginia			
AF	Joint Base Langley-Eustis	Fuel System Maintenance Dock	49,000	49,000
	Wake Island			
AF	Wake Island	PDI: Aircraft Park. Apron (Wake) Phase 1 (INC)	129,000	129,000
	Worldwide Unspecified			
AF	Unspecified Worldwide Locations	Design	1,820,607	1,849,607
AF	Unspecified Worldwide Locations	Design	670,005	670,005
AF	Unspecified Worldwide Locations	Unspecified Minor Military Construction	315,810	315,810
	Wyoming			
AF	F.E. Warren Air Force Base	GBSD Operations Group Facility	171,000	31,000
AF	F.E. Warren Air Force Base	GBSD Utility Corridor (INC)	461,158	461,158
	Military Construction, Air Force Total		**10,601,180**	**10,298,050**
	Alabama			
Def-Wide	Maxwell Air Force Base	Maxwell Elementary/Middle School Addition	44,000	44,000
Def-Wide	Redstone Arsenal	Power Generation and Microgrid	0	90,000
	Bahrain			
Def-Wide	Naval Support Activity Bahrain	Power Generation	0	5,900
	Belgium			
Def-Wide	Brussels	Brussels Unit School Annex	33,000	33,000

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Account	State/Country and Installation	Project Title	FY 2027 Request	House Agreement
	California			
Def-Wide	Camp Roberts	Power Generation and Microgrid	0	79,000
	Colorado			
Def-Wide	Def Reutil and Mktg Ofc-Colorado Springs	General Purpose Warehouse	85,000	85,000
	Florida			
Def-Wide	Eglin Air Force Base	Power Generation and Microgrid	0	43,000
Def-Wide	Homestead Air Reserve Base	SOF Climate Controlled Tactical Storage Warehouse.	33,000	33,000
Def-Wide	Naval Air Station Jacksonville	Ambulatory Care Center Substance Abuse Rehabilitation Program (SARP) Replacement.	40,000	40,000
	Germany			
Def-Wide	Army Garrison Ansbach	Power Generation and Microgrid	0	72,000
Def-Wide	Baumholder	Baumholder Middle/High School	140,000	20,000
Def-Wide	Ramstein Air Base	Vehicle Fueling Facility	20,500	20,500
Def-Wide	Rhine Ordnance Barracks	Medical Center Replacement (INC 13)	95,002	95,002
	Guam			
Def-Wide	Joint Region Marianas	PDI: GDS, Command Center (INC)	99,700	99,700
Def-Wide	Joint Region Marianas	PDI: GDS, EIAMD, Ph1 (INC)	75,113	75,113
Def-Wide	Joint Region Marianas	PDI: GDS, EIAMD, PH3	179,446	179,446
	Japan			
Def-Wide	Camp Butler	PDI: Truck Offload Facilities	37,900	37,900
Def-Wide	Yokota Air Base	PDI: Bulk Storage Tanks PH 2	88,200	88,200
	Kentucky			
Def-Wide	Fort Knox	Scott Middle School	117,000	37,000
	Korea			
Def-Wide	Kunsan Air Base	Ambulatory Care Center Replacement	65,000	65,000
	Maryland			
Def-Wide	Bethesda Naval Hospital	MEDCEN Addition/Alteration (INC 10)	87,275	87,275
Def-Wide	Bethesda Naval Hospital	Support Facilities Replacement (INC)	55,000	55,000
Def-Wide	Fort Meade	Cyber National Mission Force Mission Operations Facility (INC).	98,411	98,411
Def-Wide	Fort Meade	NSAW East Campus Building #5 (INC 2)	180,000	180,000
Def-Wide	Fort Meade	NSAW East Campus Site Infrastructure	52,000	52,000
	Nevada			
Def-Wide	Creech Air Force Base	Ambulatory Care Center Addition/Alteration	25,381	25,381
	North Carolina			
Def-Wide	Fort Bragg	SOF Operations Ammunition Supply Point Phase 2.	0	65,000
Def-Wide	Fort Bragg	SOF Battallion Operations Facility (Design)	0	6,400
Def-Wide	Camp Lejeune	SOF Marine Raider Battalion Operations Facility	80,000	80,000
Def-Wide	Camp Lejeune	SOF Operational Support Facility	72,000	72,000
Def-Wide	Fort Bragg	SOF Operational Training Facility	50,000	50,000
	Pennsylvania			
Def-Wide	Defense Distribution Center, Susquehanna	Microgrid	0	58,000
	Puerto Rico			
Def-Wide	Fort Buchanan	Emergency Water Treatment System	0	33,500
	Texas			
Def-Wide	Brooks Army Medical Center	Power Generation and Energy Upgrades	0	55,500
	United Kingdom			
Def-Wide	Menwith Hill Station	Fire Station Replacement	35,000	35,000
Def-Wide	Royal Air Force Lakenheath	Hospital Replacement, Phase 2 (INC)	78,000	78,000
	Utah			
Def-Wide	Camp Williams	Nsau Consolidation—Mission Facility (INC)	50,000	50,000
	Virginia			
Def-Wide	Joint Expeditionary Base Little Creek—Ft Story	SOF Launch & Recovery Facility	36,000	36,000
	Wake Island			
Def-Wide	Def Fuel Spt Point Wake Island	PDI: Fueling Facilities	100,000	100,000
	Washington			
Def-Wide	Joint Base Lewis-McChord	SOF Tactical Equipment Maintenance Facility	35,000	35,000
Def-Wide	Yakima Training Center	Power Generation and Microgrid	0	73,000
Def-Wide	Naval Base Kitsap	Power Generation and Microgrid	0	132,690
	Worldwide Unspecified			
Def-Wide	Unspecified Worldwide Locations	Design (DHA)	45,813	45,813

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Def-Wide	Unspecified Worldwide Locations	Design (DODEA)	26,625	26,625
Def-Wide	Unspecified Worldwide Locations	Design (MDA)	42,846	42,846
Def-Wide	Unspecified Worldwide Locations	Design (SOCOM)	81,628	81,628
Def-Wide	Unspecified Worldwide Locations	Design (DLA)	100,511	100,511
Def-Wide	Unspecified Worldwide Locations	Design	16,783	16,783
Def-Wide	Unspecified Worldwide Locations	Design (NSA)	33,700	33,700
Def-Wide	Unspecified Worldwide Locations	Design—Joint Analysis Center of Excellence	5,000	5,000
Def-Wide	Unspecified Worldwide Locations	Energy Resilience & Conservation Investment Program.	694,307	0
Def-Wide	Unspecified Worldwide Locations	Design (ERCIP)	39,346	39,346
Def-Wide	Unspecified Worldwide Locations	Exercise Related Minor Construction	13,328	17,648
Def-Wide	Unspecified Worldwide Locations	INDOPACOM Military Construction Pilot Program.	27,740	27,740
Def-Wide	Unspecified Worldwide Locations	Minor Construction (SOCOM)	24,500	24,500
Def-Wide	Unspecified Worldwide Locations	PAX System Support	13,000	13,000
Def-Wide	Unspecified Worldwide Locations	UFC System Support	12,000	12,000
Def-Wide	Unspecified Worldwide Locations	Unspecified Minor Construction (DODEA)	10,000	10,000
Def-Wide	Unspecified Worldwide Locations	Unspecified Minor Construction (DLA)	14,237	14,237
Def-Wide	Unspecified Worldwide Locations	Unspecified Minor Construction	3,000	3,000
Def-Wide	Unspecified Worldwide Locations	Unspecified Minor Construction (NSA)	9,000	9,000
Def-Wide	Unspecified Worldwide Locations	Unspecified Minor Construction (MDA)	2,659	2,659
	Wyoming			
Def-Wide	F.E. Warren Air Force Base	Power Generation and Microgrid With Geothermal Heating and Cooling.	0	51,717
	Military Construction, Defense-Wide Total		**3,402,951**	**3,278,671**
	Worldwide Unspecified			
NATO	NATO Security Investment Program	NATO Security Investment Program	604,270	604,270
	NATO Security Investment Program Total		**604,270**	**604,270**
	Florida			
Army NG	Camp Blanding	Automated Multi Purpose Training Range	28,000	28,000
	Guam			
Army NG	Barrigada	National Guard Readiness Center Alteration	0	20,000
	Idaho			
Army NG	Orchard Training Area	Mission Training Complex (Small)	27,000	27,000
	Indiana			
Army NG	Shelbyville Armory	Aircraft Maintenance Hangar Addition/Alteration (INC).	0	27,500
	Louisiana			
Army NG	Abbeville	National Guard Readiness Center	23,000	23,000
	Massachusetts			
Army NG	Camp Edwards	National Guard Readiness Center	43,000	43,000
	New York			
Army NG	Colonie Readiness Center	National Guard Readiness Center	90,000	90,000
	North Carolina			
Army NG	Salisbury Readiness Complex	Aircraft Maintenance Hangar Addition/Alteration (INC).	0	69,000
	Oklahoma			
Army NG	Tulsa Army Aviation Support Facility	Aircraft Maintenance Bay	18,500	18,500
	Washington			
Army NG	Yakima Training Center	Dining Facility	18,000	18,000
	West Virginia			
Army NG	Martinsburg Readiness Center	National Guard Readiness Center Add/Alt	20,000	20,000

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	Worldwide Unspecified			
Army NG	Unspecified Worldwide Locations	Design	71,909	71,909
Army NG	Unspecified Worldwide Locations	Unspecified Minor Construction	19,500	19,500
	Military Construction, Army National Guard Total		**358,909**	**475,409**
	Colorado			
Army Res	Fort Carson	Equipment Concentration Site	92,000	92,000
	Illinois			
Army Res	Fort Sheridan	Area Maintenance Support Activity	38,000	38,000
	Virginia			
Army Res	Richmond Reserve Center	Army Reserve Center	48,000	48,000
	Worldwide Unspecified			
Army Res	Unspecified Worldwide Locations	Design	10,413	10,413
Army Res	Unspecified Worldwide Locations	Unspecified Minor Construction	21,500	21,500
	Military Construction, Army Reserve Total		**209,913**	**209,913**
	Florida			
N/MC Res	Naval Air Station Jacksonville	Ramp Expansion & Rte	47,000	47,000
	Texas			
N/MC Res	Fort Worth	Hangar 1050 Modernization (INC)	56,870	56,870
	Worldwide Unspecified			
N/MC Res	Unspecified Worldwide Locations	MCNR Design	6,578	6,578
N/MC Res	Unspecified Worldwide Locations	MCNR Unspecified Minor Construction	2,522	2,522
N/MC Res	Unspecified Worldwide Locations	USMCR Design	19,302	19,302
	Military Construction, Naval Reserve Total		**132,272**	**132,272**
	Alaska			
Air NG	Eielson Air Force Base	BCE Pavements and Grounds Facility	0	16,000
	Iowa			
Air NG	Sioux City	Repair Runway 13–31 (INC)	0	38,500
	Michigan			
Air NG	Selfridge Air National Guard Base	Mitigate Runway Encroachment	110,000	110,000
Air NG	Selfridge Air National Guard Base	Taxiway Alpha Extension	28,000	28,000
Air NG	Selfridge Air National Guard Base	Taxiway Bravo Extension	24,000	24,000
Air NG	Selfridge Air National Guard Base	F–15EX Maintenance Complex Phase 3	0	60,000
Air NG	Selfridge Air National Guard Base	F–15EX Maintenance Complex Phase 2	0	65,000
Air NG	Selfridge Air National Guard Base	Mcca KC–46 ADAL Airerew Training Facility	0	35,000
Air NG	Selfridge Air National Guard Base	KC–46 ASE Complex (Design)	0	4,300
Air NG	Selfridge Air National Guard Base	KC–46 ADAL Parking Apron (Design)	0	1,400
Air NG	Selfridge Air National Guard Base	Mcca KC–46 ADAL SQ Ops B17	0	38,000
Air NG	Selfridge Air National Guard Base	F–15EX Maintenance Complex Phase 1	0	65,000
Air NG	Selfridge Air National Guard Base	KC–46 Dual Bay Hangar (Design)	0	21,200
	Missouri			
Air NG	Rosecrans Air National Guard Base	Aircraft Parking Apron	0	63,000
	Oregon			
Air NG	Kingsley Air Force Base	F–35 FTU Academic Training Center	80,000	80,000
	Texas			
Air NG	Naval Air Station Joint Reserve Base Fort Worth	C–130J ADAL Maintenance Hangar B1676	27,000	27,000
	Worldwide Unspecified			
Air NG	Unspecified Worldwide Locations	Design	110,656	110,656

SEC. 4601. MILITARY CONSTRUCTION
(In Thousands of Dollars)

Account	State/Country and Installation	Project Title	FY 2027 Request	House Agreement
Air NG	Unspecified Worldwide Locations	Design	136,565	136,565
Air NG	Unspecified Worldwide Locations	Unspecified Minor Construction	9,000	9,000
	Military Construction, Air National Guard Total		**525,221**	**932,621**
	Pennsylvania			
AF Res	Pittsburgh Air Reserve Station	Communications Facility	19,500	19,500
	Worldwide Unspecified			
AF Res	Unspecified Worldwide Locations	Design	1,347	1,347
AF Res	Unspecified Worldwide Locations	Unspecified Minor Military Construction	1,325	1,325
	Military Construction, Air Force Reserve Total		**22,172**	**22,172**
	Germany			
FH Con Army	South Camp Vilseck	FH Replacement Construction (44 Units)	95,060	36,060
	Japan			
FH Con Army	Camp Zama	FH Improvement Construction (68 Units)	106,356	106,356
	Worldwide Unspecified			
FH Con Army	Unspecified Worldwide Locations	Family Housing Design	39,079	39,079
	Family Housing Construction, Army Total		**240,495**	**181,495**
	Worldwide Unspecified			
FH Ops Army	Unspecified Worldwide Locations	Furnishings	18,177	18,177
FH Ops Army	Unspecified Worldwide Locations	Leased Housing	132,820	132,820
FH Ops Army	Unspecified Worldwide Locations	Maintenance of Real Property Facilities	172,866	172,866
FH Ops Army	Unspecified Worldwide Locations	Management Account	42,802	42,802
FH Ops Army	Unspecified Worldwide Locations	Military Housing Privatization Initiative	42,026	42,026
FH Ops Army	Unspecified Worldwide Locations	Miscellaneous	92	92
FH Ops Army	Unspecified Worldwide Locations	Services	10,130	10,130
FH Ops Army	Unspecified Worldwide Locations	Utilities	49,494	49,494
	Family Housing Operation And Maintenance, Army Total		**468,407**	**468,407**
	District of Columbia			
FH Con Navy	Marine Barracks Washington (8th Street & I)	CTC: W/H Revitalization, Quarters #1 (1 Units)	1,532	1,532
	Guam			
FH Con Navy	Joint Region Marianas	CTC: Replace Andersen Housing PH V (74 Units)	25,876	25,876
FH Con Navy	Joint Region Marianas	CTC: Replace Andersen Housing PH VI (52 Units).	44,920	44,920
FH Con Navy	Joint Region Marianas	CTC: Replace Andersen Housing Phase 8 (62 Units).	33,771	33,771
FH Con Navy	Joint Region Marianas	Replace Andersen Housing PH 9 (149 Units) (INC).	144,495	144,495
	Japan			
FH Con Navy	Yokosuka Naval Base	W/H & Utility Revit, Ikego Th Ph6 (32 Units)	44,128	44,128
	Worldwide Unspecified			
FH Con Navy	Unspecified Worldwide Locations	Design	14,971	14,971
FH Con Navy	Unspecified Worldwide Locations	Navy Southeast MHPI (2nd Restructure) (100 Units).	52,177	52,177
	Family Housing Construction, Navy And Marine Corps Total		**361,870**	**361,870**
	Worldwide Unspecified			
FH Ops Navy	Unspecified Worldwide Locations	Furnishings	17,252	17,252
FH Ops Navy	Unspecified Worldwide Locations	Housing Privatization Support	60,997	60,997
FH Ops Navy	Unspecified Worldwide Locations	Leasing	66,242	66,242
FH Ops Navy	Unspecified Worldwide Locations	Maintenance	119,152	119,152

SEC. 4601. MILITARY CONSTRUCTION
(In Thousands of Dollars)

Account	State/Country and Installation	Project Title	FY 2027 Request	House Agreement
FH Ops Navy	Unspecified Worldwide Locations	Management	54,612	54,612
FH Ops Navy	Unspecified Worldwide Locations	Miscellaneous	445	445
FH Ops Navy	Unspecified Worldwide Locations	Services	14,394	14,394
FH Ops Navy	Unspecified Worldwide Locations	Utilities	52,515	52,515
	Family Housing Operation And Maintenance, Navy And Marine Corps Total		**385,609**	**385,609**
	Alaska			
FH Con AF	Joint Base Elmendorf-Richardson	MHPI Restructure—JBER Phase II (1,194 Units)	156,964	156,964
	Japan			
FH Con AF	Yokota Air Base	Yokota PAIP 10 PH 1 (32 Units)	36,100	36,100
	United Kingdom			
FH Con AF	Royal Air Force Croughton	Croughton (Replacement) (12 Units)	24,104	24,104
	Worldwide Unspecified			
FH Con AF	Unspecified Worldwide Locations	Design	25,854	25,854
	Family Housing Construction, Air Force Total		**243,022**	**243,022**
	Worldwide Unspecified			
FH Ops AF	Unspecified Worldwide Locations	Furnishings	28,691	28,691
FH Ops AF	Unspecified Worldwide Locations	Housing Privatization	40,627	40,627
FH Ops AF	Unspecified Worldwide Locations	Leasing	5,523	5,523
FH Ops AF	Unspecified Worldwide Locations	Maintenance	160,528	160,528
FH Ops AF	Unspecified Worldwide Locations	Management	64,841	64,841
FH Ops AF	Unspecified Worldwide Locations	Miscellaneous	2,492	2,492
FH Ops AF	Unspecified Worldwide Locations	Services	12,957	12,957
FH Ops AF	Unspecified Worldwide Locations	Utilities	51,097	51,097
	Family Housing Operation And Maintenance, Air Force Total		**366,756**	**366,756**
	Worldwide Unspecified			
FH Ops DW	Unspecified Worldwide Locations	Furnishings	93	93
FH Ops DW	Unspecified Worldwide Locations	Furnishings	566	566
FH Ops DW	Unspecified Worldwide Locations	Leasing (NSA)	14,320	14,320
FH Ops DW	Unspecified Worldwide Locations	Leasing (DIA)	34,693	34,693
FH Ops DW	Unspecified Worldwide Locations	Leasing (DSCA)	8,792	8,792
FH Ops DW	Unspecified Worldwide Locations	Maintenance	37	37
FH Ops DW	Unspecified Worldwide Locations	Utilities (DIA)	4,548	4,548
FH Ops DW	Unspecified Worldwide Locations	Utilities (NSA)	15	15
	Family Housing Operation And Maintenance, Defense-Wide Total		**63,064**	**63,064**
	Worldwide Unspecified			
FHIF	Unspecified Worldwide Locations	Administrative Expenses—FHIF	8,412	8,412
	DOD Family Housing Improvement Fund Total		**8,412**	**8,412**
	Worldwide Unspecified			
UHIF	Unspecified Worldwide Locations	Administrative Expenses—UHIF	501	501
	Unaccompanied Housing Improvement Fund Total		**501**	**501**

SEC. 4601. MILITARY CONSTRUCTION
(In Thousands of Dollars)

Account	State/Country and Installation	Project Title	FY 2027 Request	House Agreement
BRAC	Worldwide Unspecified Base Realignment & Closure, Army	Base Realignment and Closure	151,293	151,293
Base Realignment and Closure—Army Total			**151,293**	**151,293**
BRAC	Worldwide Unspecified Unspecified Worldwide Locations	Base Realignment & Closure	108,325	158,325
Base Realignment and Closure—Navy Total			**108,325**	**158,325**
BRAC	Worldwide Unspecified Unspecified Worldwide Locations	DOD BRAC Activities—Air Force	111,381	111,381
Base Realignment and Closure—Air Force Total			**111,381**	**111,381**
BRAC	Worldwide Unspecified Unspecified Worldwide Locations	INT–4: DLA Activities	1,318	1,318
Base Realignment and Closure—Defense-wide Total			**1,318**	**1,318**
Military Construction, Total			**28,565,682**	**28,565,682**

TITLE XLVII—DEPARTMENT OF ENERGY NATIONAL SECURITY PROGRAMS

SEC. 4701. DEPARTMENT OF ENERGY NATIONAL SECURITY PROGRAMS.

SEC. 4701. DEPARTMENT OF ENERGY NATIONAL SECURITY PROGRAMS
(In Thousands of Dollars)

Program	FY 2027 Request	House Authorized
Energy And Water Development, And Related Agencies Appropriation Summary:		
Nuclear Energy	160,000	160,000
Defense Uranium Enrichment D&D	253,000	0
Atomic Energy Defense Activities		
National nuclear security administration:		
Weapons activities	27,441,159	27,586,159
Defense nuclear nonproliferation	2,389,595	2,389,595
Naval reactors	2,393,692	2,243,692
Federal salaries and expenses	577,097	577,097
Total, National Nuclear Security Administration	**32,801,543**	**32,796,543**
Environmental and other defense activities:		
Defense environmental cleanup	6,983,318	7,194,318
Other defense activities	1,184,721	1,184,721
Total, Environmental & other defense activities	**8,168,039**	**8,379,039**
Total, Atomic Energy Defense Activities	**40,969,582**	**41,175,582**
Total, Discretionary Funding	**41,382,582**	**41,335,582**
Nuclear Energy		
Idaho sitewide safeguards and security	160,000	160,000
Total, Nuclear Energy	**160,000**	**160,000**
Defense Uranium Enrichment D&D		
Defense Uranium Enrichment D&D Program	253,000	0
Program decrease		[–253,000]

SEC. 4701. DEPARTMENT OF ENERGY NATIONAL SECURITY PROGRAMS
(In Thousands of Dollars)

Program	FY 2027 Request	House Authorized
Total, Defense Uranium Enrichment D&D	**253,000**	**0**
Weapons Activities		
Stockpile Management		
Stockpile Major Modernization		
B61–13	46,428	46,428
W80–4 LEP	1,048,340	1,048,340
W80–5 Modification Program	0	50,000
Program adjustment		[50,000]
W87–1 Modification Program	913,231	913,231
W93 Program	1,106,106	1,106,106
Future Programs	99,794	99,794
Total, Stockpile Major Modernization	**3,213,899**	**3,263,899**
Stockpile services		
Stockpile Operations	1,885,290	1,885,290
Weapons Dismantlement and Disposition	90,760	90,760
Production Operations	1,146,586	1,146,586
Nuclear Enterprise Assurance	121,015	121,015
Subtotal, Stockpile Services	**3,243,651**	**3,243,651**
Total, Stockpile Management	**6,457,550**	**6,507,550**
Production Modernization		
Primary Capability Modernization		
Plutonium Modernization		
Los Alamos Plutonium Modernization		
Los Alamos Pit Production	1,460,791	1,460,791
21–D–512 Plutonium Pit Production Project, LANL	812,100	812,100
07–D–220-04 Transuranic Liquid Waste Facility, LANL	10,000	10,000
04–D–125 Chemistry and Metallurgy Research Replacement Project, LANL	110,000	110,000
Subtotal, Los Alamos Plutonium Modernization	**2,392,891**	**2,392,891**
Savannah River Plutonium Modernization		
Savannah River Pit Production	302,000	302,000
21–D–511 Savannah River Plutonium Processing Facility, SRS	1,946,523	1,946,523
Subtotal, Savannah River Plutonium Modernization	**2,248,523**	**2,248,523**
Enterprise Pit Production Support	270,897	270,897
Total, Plutonium Modernization	**4,912,311**	**4,912,311**
High Explosives and Energetics		
High Explosives & Energetics	251,765	251,765
Total, High Explosives and Energetics	**251,765**	**251,765**
Total, Primary Capability Modernization	**5,164,076**	**5,164,076**
Secondary Capability Modernization		
Secondary Capability Modernization	1,728,546	1,728,546
06–D–141 Uranium Processing Facility, Y–12	290,000	365,000
Commissioning risk reduction and early casting demonstration		[75,000]
Total, Secondary Capability Modernization	**2,018,546**	**2,093,546**
Tritium and Defense Fuels Program		
Tritium and Defense Fuels Program	880,781	880,781
Total, Tritium and Defense Fuels Program	**880,781**	**880,781**
Non-Nuclear Capability Modernization		
Non-Nuclear Capability Modernization	258,008	258,008
26–D–511 MESA Photolithography Capability (MPC), SNL	51,000	51,000
22–D–513 Power Sources Capability, SNL	140,000	140,000
Total, Non-Nuclear Capability Modernization	**449,008**	**449,008**
Capability Based Investments	203,163	203,163
Warhead Assembly Modernization	47,965	47,965
18–D–680 Material Staging Capability, PX	22,500	42,500
Program acceleration		[20,000]
Total, Production Modernization	**8,786,039**	**8,881,039**
Stockpile Research, Technology, and Engineering		
Assessment Science		
Assessment Science	1,243,267	1,243,267
26–D–512 LANSCE Modernization Project (LAMP), LANL	15,200	15,200

SEC. 4701. DEPARTMENT OF ENERGY NATIONAL SECURITY PROGRAMS
(In Thousands of Dollars)

Program	FY 2027 Request	House Authorized
24–D–513 Z-pinch Experimental Underground System (ZEUS) Test Bed Facilities Improvement (ZTBFI), NNSS	91,700	91,700
17–D–640 U1a Complex Enhancements Project, NNSS	154,142	154,142
Total, Assessment Science	**1,504,309**	**1,504,309**
Engineering		
Engineering	230,043	230,043
26–D–513 Combined Radiation Environments for Survivability Testing, SNL	105,000	105,000
Total, Engineering	**335,043**	**335,043**
Rapid & Advanced Capabilities	499,209	499,209
Inertial Confinement Fusion		
Inertial Confinement Fusion	829,736	829,736
26–D–514 NIF Enhanced Fusion Yield Capability, LLNL	84,000	84,000
Total, Inertial Confinement Fusion	**913,736**	**913,736**
Advanced Simulation and Computing	909,765	909,765
Weapon Technology and Manufacturing Maturation	405,413	405,413
Total, Stockpile Research, Technology, and Engineering	**4,567,475**	**4,567,475**
Infrastructure and Operations		
Operations of facilities	1,752,310	1,752,310
Safety and environmental operations	217,902	217,902
Maintenance and repair of facilities	1,384,323	1,384,323
Recapitalization	1,203,127	1,203,127
Construction:		
27–D–512 Plutonium Engineering Support Building, LANL	88,700	88,700
25–D–511 PULSE New Access, NNSS	50,000	50,000
23–D–517 Electrical Power Capacity Upgrade, LANL	65,000	65,000
Total, Construction	**203,700**	**203,700**
Total, Infrastructure and operations	**4,761,362**	**4,761,362**
Secure transportation asset		
Operations and equipment	443,075	443,075
Program direction	143,996	143,996
Total, Secure transportation asset	**587,071**	**587,071**
Defense Nuclear Security		
Operations and Maintenance	1,305,793	1,305,793
Total, Defense nuclear security	**1,305,793**	**1,305,793**
Information technology and cybersecurity	935,000	935,000
Legacy contractor pensions	40,869	40,869
Total, Weapons Activities	**27,441,159**	**27,586,159**
Defense Nuclear Nonproliferation		
Defense Nuclear Nonproliferation Programs		
Material management and minimization		
Reactor Conversion and Uranium Supply	117,820	117,820
Nuclear Material Removal and Elimination	68,945	68,945
Plutonium Disposition	79,039	79,039
Total, Material management & minimization	**265,804**	**265,804**
Global material security		
International nuclear security	61,013	61,013
Radiological security	193,104	193,104
Nuclear smuggling detection and deterrence	136,457	136,457
Total, Global material security	**390,574**	**390,574**
Nonproliferation and arms control	214,494	214,494
Defense nuclear nonproliferation R&D		
Proliferation Detection	296,170	296,170
Nuclear Detonation Detection	318,447	318,447
Forensics R&D	30,000	30,000
Nonproliferation Stewardship Program	174,383	174,383
Total, Defense nuclear nonproliferation R&D	**819,000**	**819,000**
Total, Defense Nuclear Nonproliferation Programs	**1,689,872**	**1,689,872**
Nuclear counterterrorism and incident response program		
Emergency Management	35,045	35,045

SEC. 4701. DEPARTMENT OF ENERGY NATIONAL SECURITY PROGRAMS
(In Thousands of Dollars)

Program	FY 2027 Request	House Authorized
Counterterrorism and Counterproliferation	650,550	650,550
Total, Nuclear Counterterrorism and Incident Response Program	**685,595**	**685,595**
Legacy contractor pensions	14,128	14,128
Total, Defense Nuclear Nonproliferation	**2,389,595**	**2,389,595**
Naval Reactors		
Naval reactors operating	1,551,574	1,551,574
Program direction	71,841	71,841
Construction:		
25–D–530 Naval Examination Acquisition Project	80,000	80,000
14–D–901 Spent Fuel Handling Recapitalization Project, NRF	691,953	541,953
Program decrease		[–150,000]
Total, Construction	**771,953**	**621,953**
Use of prior-year balances	–1,676	–1,676
Total, Naval Reactors	**2,393,692**	**2,243,692**
Federal Salaries And Expenses		
Program Direction	577,097	577,097
Total, Federal Salaries And Expenses	**577,097**	**577,097**
Defense Environmental Cleanup		
Closure sites:		
Closure sites administration	500	500
Richland:		
River corridor and other cleanup operations	69,000	134,000
Project increase		[65,000]
Central plateau remediation	795,124	795,124
Richland community and regulatory support	12,000	12,000
Construction:		0
24–D–401 Environmental Restoration Disposal Facility Supercell 11 Expansion Proj	0	6,000
Project increase		[6,000]
Total, Construction—Richland	**0**	**6,000**
Total, Richland	**876,124**	**947,124**
Office of River Protection:		
Waste Treatment Immobilization Plant Commissioning	466,000	466,000
Rad liquid tank waste stabilization and disposition	984,000	984,000
Construction:		
01–D–16D High-Level Waste Facility	330,000	430,000
Project increase		[100,000]
15–D–409 Low Activity Waste Pretreatment System	75,000	75,000
23–D–403, Hanford 200 West Area Tank Farms Risk Management Project	90,000	90,000
Total, Construction—Office of River Protection	**495,000**	**595,000**
Total, Office of River Protection	**1,945,000**	**2,045,000**
Idaho National Laboratory:		
Idaho cleanup and waste disposition	472,726	472,726
Idaho community and regulatory support	3,295	3,295
Construction:		
22–D–403 Idaho Spent Nuclear Fuel Staging Facility	2,000	2,000
23–D–402—Calcine Construction	2,000	2,000
Total, Construction—Idaho	**4,000**	**4,000**
Total, Idaho National Laboratory	**480,021**	**480,021**
NNSA sites and Nevada off-sites		
Lawrence Livermore National Laboratory	1,955	1,955
Nuclear facility D & D		
Separations Process Research Unit	950	950
Nevada Site	64,835	64,835
Sandia National Laboratories	1,030	1,030
Los Alamos National Laboratory	293,937	293,937

SEC. 4701. DEPARTMENT OF ENERGY NATIONAL SECURITY PROGRAMS
(In Thousands of Dollars)

Program	FY 2027 Request	House Authorized
Total, NNSA sites and Nevada off-sites	**362,707**	**362,707**
Oak Ridge Reservation:		
OR Nuclear facility D & D	289,297	289,297
Total, OR Nuclear facility D & D	**289,297**	**289,297**
U233 Disposition Program	70,000	70,000
OR cleanup and disposition	85,800	85,800
Construction:		
17–D–401 On-site waste disposal facility	57,828	57,828
Total, Construction—Oak Ridge	**57,828**	**57,828**
Total, OR cleanup and waste disposition	**213,628**	**213,628**
OR community & regulatory support	5,100	5,100
OR technology development and deployment	3,500	3,500
Total, Oak Ridge Reservation	**511,525**	**511,525**
Savannah River Sites:		
Savannah River risk management operations	465,620	465,620
Total, Savannah River Risk Management Operations	**465,620**	**465,620**
SR Community and Regulatory Support	5,450	5,450
Savannah River National Laboratory Operations & Maintenance	90,719	90,719
Radioactive Liquid Tank Waste Stabilization and Disposition	1,066,000	1,106,000
Program increase		[40,000]
Construction:		
20-D–401 Saltstone Disposal Unit #10, 11, 12	82,500	82,500
Total, Construction—Savannah River sites	**82,500**	**82,500**
Total, Savannah River sites	**1,710,289**	**1,750,289**
Waste Isolation Pilot Plant		
Waste Isolation Pilot Plant	400,020	400,020
Construction:		
21–D–401 Hoisting Capability Project	72,000	72,000
Total, Construction—Waste Isolation Pilot Plant	**72,000**	**72,000**
Total, Waste Isolation Pilot Plant	**472,020**	**472,020**
Program Direction	297,318	297,318
Program Support	20,320	20,320
Safeguards and Security	291,482	291,482
Technology Development and Deployment	16,012	16,012
Total, Defense Environmental Cleanup	**6,983,318**	**7,194,318**
Other Defense Activities		
Environment, health, safety and security		
Program direction	81,179	81,179
Environment, Health, Safety & Security	150,761	150,761
Total, Environment, Health, safety and security	**231,940**	**231,940**
Office of Enterprise Assessments		
Program direction	56,632	56,632
Enterprise Assessments	32,183	32,183
Total, Office of Enterprise Assessments	**88,815**	**88,815**
Specialized security activities	471,082	471,082
Office of Legacy Management		
Legacy management	177,716	177,716
Program direction	22,670	22,670
Total, Office of Legacy Management	**200,386**	**200,386**
Defense-related administrative support	187,475	187,475
Office of hearings and appeals	5,023	5,023
Subtotal, Other Defense Activities	**1,184,721**	**1,184,721**
Total, Other Defense Activities	**1,184,721**	**1,184,721**

DIVISION E—SAVE AMERICA ACT

SEC. 4801. SHORT TITLE.

This division may be cited as the ''Safeguard American Voter Eligibility Act'' or the ''SAVE America Act''.

SEC. 4802. ENSURING ONLY CITIZENS ARE REGISTERED TO VOTE IN ELECTIONS FOR FEDERAL OFFICE.

(a) DEFINITION OF DOCUMENTARY PROOF OF UNITED STATES CITIZENSHIP.—Section 3 of the National Voter Registration Act of 1993 (52 U.S.C. 20502) is amended—

(1) by striking ''As used'' and inserting ''(a) IN GENERAL.—As used''; and

(2) by adding at the end the following:

''(b) DOCUMENTARY PROOF OF UNITED STATES CITIZENSHIP.—As used in this Act, the term 'documentary proof of United States citizenship' means, with respect to an applicant for voter registration, any of the following:

''(1) A form of identification issued consistent with the requirements of the REAL ID Act of 2005 that indicates the applicant is a citizen of the United States.

''(2) A valid United States passport.

''(3) The applicant's official United States military identification card, together with a United

States military record of service showing that the applicant's place of birth was in the United States.

''(4) A valid government-issued photo identification card issued by a Federal, State or Tribal government showing that the applicant's place of birth was in the United States.

''(5) A valid government-issued photo identification card issued by a Federal, State or Tribal government other than an identification described in paragraphs (1) through (4), but only if presented together with one or more of the following:

''(A) A certified birth certificate issued by a State, a unit of local government in a State, or a Tribal government which—

''(i) was issued by the State, unit of local government, or Tribal government in which the applicant was born;

''(ii) was filed with the office responsible for keeping vital records in the State;

''(iii) includes the full name, date of birth, and place of birth of the applicant;

''(iv) lists the full names of one or both of the parents of the applicant;

''(v) has the signature of an individual who is authorized to sign birth certificates

on behalf of the State, unit of local government, or Tribal government in which the applicant was born;

''(vi) includes the date that the certificate was filed with the office responsible for keeping vital records in the State; and

''(vii) has the seal of the State, unit of local government, or Tribal government that issued the birth certificate.

''(B) An extract from a United States hospital Record of Birth created at the time of the applicant's birth which indicates that the applicant's place of birth was in the United States.

''(C) A final adoption decree showing the applicant's name and that the applicant's place of birth was in the United States.

''(D) A Consular Report of Birth Abroad of a citizen of the United States or a certification of the applicant's Report of Birth of a United States citizen issued by the Secretary of State.

''(E) A Naturalization Certificate or Certificate of Citizenship issued by the Secretary of Homeland Security or any other document or method of proof of United States citizenship

issued by the Federal government pursuant to the Immigration and Nationality Act.

''(F) An American Indian Card issued by the Department of Homeland Security with the classification 'KIC'.''.

(b) APPLICATION OF REQUIREMENTS.—Section 4 of the National Voter Registration Act of 1993 (52 U.S.C. 20503) is amended by striking subsection (b) and inserting the following:

''(b) REQUIRING APPLICANTS TO PRESENT DOCUMENTARY PROOF OF UNITED STATES CITIZENSHIP.—Under any method of voter registration in a State, the State shall not accept and process an application to register to vote in an election for Federal office unless the applicant presents documentary proof of United States citizenship with the application.''.

(c) REGISTRATION WITH APPLICATION FOR MOTOR VEHICLE DRIVER'S LICENSE.—Section 5 of the National Voter Registration Act of 1993 (52 U.S.C. 20504) is amended—

(1) in subsection (a)(1), by striking ''Each State motor vehicle driver's license application'' and inserting ''Subject to the requirements under section 8(j), each State motor vehicle driver's license application'';

(2) in subsection (c)(1), by striking ''Each State shall include'' and inserting ''Subject to the requirements under section 8(j), each State shall include'';

(3) in subsection (c)(2)(B)—

(A) in clause (i), by striking ''and'' at the end;

(B) in clause (ii), by adding ''and'' at the end; and

(C) by adding at the end the following new clause:

''(iii) verify that the applicant is a citizen of the United States;'';

(4) in subsection (c)(2)(C)(i), by striking ''(including citizenship)'' and inserting '', including the requirement that the applicant provides documentary proof of United States citizenship''; and

(5) in subsection (c)(2)(D)(iii), by striking ''; and'' and inserting the following: '', other than as evidence in a criminal proceeding or immigration proceeding brought against an applicant who knowingly attempts to register to vote and knowingly makes a false declaration under penalty of perjury that the applicant meets the eligibility requirements

to register to vote in an election for Federal office; and''.

(d) REQUIRING DOCUMENTARY PROOF OF UNITED STATES CITIZENSHIP WITH NATIONAL MAIL VOTER REGISTRATION FORM.—Section 6 of the National Voter Registration Act of 1993 (52 U.S.C. 20505) is amended—

(1) in subsection (a)(1)—

(A) by striking ''Each State shall accept and use'' and inserting ''Subject to the requirements under section 8(j), each State shall accept and use''; and

(B) by striking ''Federal Election Commission'' and inserting ''Election Assistance Commission'';

(2) in subsection (b), by adding at the end the following: ''The chief State election official of a State shall take such steps as may be necessary to ensure that residents of the State are aware of the requirement to provide documentary proof of United States citizenship to register to vote in elections for Federal office in the State.'';

(3) in subsection (c)(1)—

(A) in subparagraph (A), by striking ''and'' at the end;

(B) in subparagraph (B) by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following new subparagraph:

''(C) the person did not provide documentary proof of United States citizenship when registering to vote.''; and

(4) by adding at the end the following new subsection:

''(e) ENSURING PROOF OF UNITED STATES CITIZENSHIP.—

''(1) PRESENTING PROOF OF UNITED STATES CITIZENSHIP TO ELECTION OFFICIAL.—An applicant who submits the mail voter registration application form prescribed by the Election Assistance Commission pursuant to section 9(a)(2) or a form described in paragraph (1) or (2) of subsection (a) shall not be registered to vote in an election for Federal office unless—

''(A) the applicant presents documentary proof of United States citizenship in person to the office of the appropriate election official not later than the deadline provided by State law for the receipt of a completed voter registration application for the election; or

''(B) in the case of a State which permits an individual to register to vote in an election for Federal office at a polling place on the day of the election and on any day when voting, including early voting, is permitted for the election, the applicant presents documentary proof of United States citizenship to the appropriate election official at the polling place not later than the date of the election.

''(2) NOTIFICATION OF REQUIREMENT.—Upon receiving an otherwise completed mail voter registration application form prescribed by the Election Assistance Commission pursuant to section 9(a)(2) or a form described in paragraph (1) or (2) of subsection (a), the appropriate election official shall transmit a notice to the applicant of the requirement to present documentary proof of United States citizenship under this subsection, and shall include in the notice instructions to enable the applicant to meet the requirement.

''(3) ACCESSIBILITY.—Each State shall, in consultation with the Election Assistance Commission, ensure that reasonable accommodations are made to allow an individual with a disability who submits the mail voter registration application form prescribed

by the Election Assistance Commission pursuant to section 9(a)(2) or a form described in paragraph (1) or (2) of subsection (a) to present documentary proof of United States citizenship to the appropriate election official.''.

(e) REQUIREMENTS FOR VOTER REGISTRATION AGENCIES.—Section 7 of the National Voter Registration Act of 1993 (52 U.S.C. 20506) is amended—

(1) in subsection (a)—

(A) in paragraph (4)(A), by adding at the end the following new clause:

''(iv) Receipt of documentary proof of United States citizenship of each applicant to register to vote in elections for Federal office in the State.''; and

(B) in paragraph (6)—

(i) in subparagraph (A)(i)(I), by striking ''(including citizenship)'' and inserting '', including the requirement that the applicant provides documentary proof of United States citizenship'';

(ii) by redesignating subparagraphs (B) and (C) as subparagraphs (C) and (D), respectively; and

(iii) by inserting after subparagraph (A) the following new subparagraph:

''(B) ask the applicant the question, 'Are you a citizen of the United States?' and if the applicant answers in the affirmative require documentary proof of United States citizenship prior to providing the form under subparagraph (C);''; and

(2) in subsection (c)(1), by inserting ''who are citizens of the United States'' after ''for persons''.

(f) REQUIREMENTS WITH RESPECT TO ADMINISTRATION OF VOTER REGISTRATION.—Section 8 of the National Voter Registration Act of 1993 (52 U.S.C. 20507) is amended—

(1) in subsection (a)—

(A) by striking ''In the administration of voter registration'' and inserting ''Subject to the requirements of subsection (j), in the administration of voter registration''; and

(B) in paragraph (3)—

(i) in subparagraph (B), by striking ''or'' at the end; and

(ii) by adding at the end the following new subparagraphs:

''(D) based on documentary proof or verified information that the registrant is not a United States citizen; or

''(E) the registration otherwise fails to comply with applicable State law;'';

(2) by redesignating subsection (j) as subsection (l); and

(3) by inserting after subsection (i) the following new subsections:

''(j) ENSURING ONLY CITIZENS ARE REGISTERED TO VOTE.—

''(1) IN GENERAL.—Notwithstanding any other provision of this Act, a State may not register an individual to vote in elections for Federal office held in the State unless, at the time the individual applies to register to vote, the individual provides documentary proof of United States citizenship.

''(2) REQUIREMENT IN CASES OF NAME DISCREPANCIES IN DOCUMENTATION.—Notwithstanding any other provision of law, a State shall accept and process an application to register to vote in an election for Federal office if the applicant—

''(A) presents with the application documentation that would constitute documentary proof of United States citizenship, except that

the name on the documentation is not the name of the applicant; and

''(B) provides, through a process established by the State (which shall be subject to any relevant guidance adopted by the Election Assistance Commission)—

''(i) additional documentation as necessary to establish that the name on the documentation is a previous name of the applicant; or

''(ii) an affidavit signed by the applicant attesting that the name on the documentation is a previous name of the applicant.

''(3) ADDITIONAL PROCESSES IN CERTAIN CASES.—

''(A) PROCESS FOR THOSE WITHOUT DOCUMENTARY PROOF.—

''(i) IN GENERAL.—Subject to any relevant guidance adopted by the Election Assistance Commission, each State shall establish a process under which an applicant who cannot provide documentary proof of United States citizenship under paragraph (1) may, if the applicant signs an attesta-

tion under penalty of perjury that the applicant is a citizen of the United States and eligible to vote in elections for Federal office, submit such other evidence to the appropriate State or local official demonstrating that the applicant is a citizen of the United States and such official shall make a determination as to whether the applicant has sufficiently established United States citizenship for purposes of registering to vote in elections for Federal office in the State.

''(ii) AFFIDAVIT REQUIREMENT.—If a State or local official makes a determination under clause (i) that an applicant has sufficiently established United States citizenship for purposes of registering to vote in elections for Federal office in the State, such determination shall be accompanied by an affidavit developed under clause (iii) signed by the official swearing or affirming the applicant sufficiently established United States citizenship for purposes of registering to vote.

"(iii) DEVELOPMENT OF AFFIDAVIT BY THE ELECTION ASSISTANCE COMMISSION.—The Election Assistance Commission shall develop a uniform affidavit for use by State and local officials under clause (ii), which shall—

"(I) include an explanation of the minimum standards required for a State or local official to register an applicant who cannot provide documentary proof of United States citizenship to vote in elections for Federal office in the State; and

"(II) require the official to explain the basis for registering such applicant to vote in such elections.

"(B) PROCESS IN CASE OF CERTAIN DISCREPANCIES IN DOCUMENTATION.—Subject to any relevant guidance adopted by the Election Assistance Commission, each State shall establish a process under which an applicant can provide such additional documentation to the appropriate election official of the State as may be necessary to establish that the applicant is a citizen of the United States in the event of a

discrepancy with respect to the applicant's documentary proof of United States citizenship.

"(4) STATE REQUIREMENTS.—Not later than 30 days after the date of the enactment of this subsection:

"(A) Each State shall take affirmative steps, on an ongoing basis, to ensure that only United States citizens are registered to vote under the provisions of this Act, and such affirmative steps shall include the establishment of a program described in subparagraphs (B) and (C).

"(B) Each State shall submit the complete, official list of individuals registered as eligible voters for Federal office in the State to the Department of Homeland Security for comparison through the Systematic Alien Verification for Entitlements ('SAVE') system for the purposes of identifying individuals who are not citizens of the United States and taking the necessary steps to remove such individuals who are not citizens from the official list, after notice is given to such individuals and such individuals are given the opportunity to provide documentary proof of United States citizenship, but a

State with a memorandum of agreement for such purposes with the Department of Homeland Security on the date of the enactment of this subsection may comply with this subparagraph by carrying out such purposes under the memorandum.

''(C) Each State may utilize such other sources of data available to the State for the purposes of identifying individuals who are not citizens of the United States and removing such individuals from the official list of eligible voters for Federal office in the State, including (but not limited to) the following:

''(i) State agencies that supply State identification cards or driver's licenses where the agency confirms the United States citizenship status of applicants.

''(ii) Other sources, including databases and information provided pursuant to an agreement with the Commissioner of Social Security under section 205(r)(9) of the Social Security Act, which can be used to confirm United States citizenship status, except that any such information provided by the Commissioner may not be the

sole grounds for the removal of an individual from the official list of eligible voters for elections for Federal office in a State.

''(5) AVAILABILITY OF INFORMATION.—

''(A) IN GENERAL.—At the request of a State election official (including a request related to a process established by a State under paragraph (3)(A) or (3)(B)), any head of a Federal department or agency possessing information relevant to determining the eligibility of an individual to vote in elections for Federal office shall, not later than 24 hours after receipt of such request, provide the official with such information as may be necessary to enable the official to verify that an applicant for voter registration in elections for Federal office held in the State or a registrant on the official list of eligible voters in elections for Federal office held in the State is a citizen of the United States, which shall include providing the official with such batched information as may be requested by the official.

''(B) USE OF SAVE SYSTEM.—The Secretary of Homeland Security may respond to a

request received under paragraph (1) by using the system for the verification of immigration status under the applicable provisions of section 1137 of the Social Security Act (42 U.S.C. 1320b–7), as established pursuant to section 121(c) of the Immigration Reform and Control Act of 1986 (Public Law 99–603).

''(C) SHARING OF INFORMATION.—The heads of Federal departments and agencies shall share information with each other with respect to an individual who is the subject of a request received under paragraph (A) in order to enable them to respond to the request.

''(D) INVESTIGATION FOR PURPOSES OF REMOVAL.—The Secretary of Homeland Security shall conduct an investigation to determine whether to initiate removal proceedings under section 239 of the Immigration and Nationality Act (8 U.S.C. 1229) if it is determined pursuant to subparagraph (A) or (B) that an alien (as such term is defined in section 101 of the Immigration and Nationality Act (8 U.S.C. 1101)) is unlawfully registered to vote in elections for Federal office.

''(E) PROHIBITING FEES.—The head of a Federal department or agency may not charge a fee for responding to a State's request under paragraph (A).

''(k) REMOVAL OF NONCITIZENS FROM REGISTRATION ROLLS.—A State shall remove an individual who is not a citizen of the United States from the official list of eligible voters for elections for Federal office held in the State at any time upon receipt of documentation or verified information that a registrant is not a United States citizen.''.

(g) CLARIFICATION OF AUTHORITY OF STATE TO REMOVE NONCITIZENS FROM OFFICIAL LIST OF ELIGIBLE VOTERS.—

(1) IN GENERAL.—Section 8(a)(4) of the National Voter Registration Act of 1993 (52 U.S.C. 20507(a)(4)) is amended—

(A) by striking ''or'' at the end of subparagraph (A);

(B) by adding ''or'' at the end of subparagraph (B); and

(C) by adding at the end the following new subparagraph:

''(C) documentary proof or verified information that the registrant is not a United States citizen;''.

(2) CONFORMING AMENDMENT.—Section 8(c)(2)(B)(i) of such Act (52 U.S.C. 20507(c)(2)(B)(i)) is amended by striking ''(4)(A)'' and inserting ''(4)(A) or (C)''.

(h) REQUIREMENTS WITH RESPECT TO FEDERAL MAIL VOTER REGISTRATION FORM.—

(1) CONTENTS OF MAIL VOTER REGISTRATION FORM.—Section 9(b) of such Act (52 U.S.C. 20508(b)) is amended—

(A) in paragraph (2)(A), by striking ''(including citizenship)'' and inserting ''(including an explanation of what is required to present documentary proof of United States citizenship)'';

(B) in paragraph (3), by striking ''and'' at the end;

(C) in paragraph (4), by striking the period at the end and inserting ''; and''; and

(D) by adding at the end the following new paragraph:

''(5) shall include a section, for use only by a State or local election official, to record the type of

document the applicant presented as documentary proof of United States citizenship, including the date of issuance, the date of expiration (if any), the office which issued the document, and any unique identification number associated with the document.''.

(2) INFORMATION ON MAIL VOTER REGISTRATION FORM.—Section 9(b)(4) of such Act (52 U.S.C. 20508(b)(4)) is amended—

(A) by redesignating clauses (i) through (iii) as subparagraphs (A) through (C), respectively; and

(B) in subparagraph (C) (as so redesignated and as amended by paragraph (1)(C)), by striking ''; and'' and inserting the following: '', other than as evidence in a criminal proceeding or immigration proceeding brought against an applicant who attempts to register to vote and makes a false declaration under penalty of perjury that the applicant meets the eligibility requirements to register to vote in an election for Federal office; and''.

(i) PRIVATE RIGHT OF ACTION.—Section 11(b)(1) of the National Voter Registration Act of 1993 (52 U.S.C. 20510(b)(1)) is amended by striking ''a violation of this Act'' and inserting ''a violation of this Act, including the

act of an election official who registers an applicant to vote in an election for Federal office who fails to present documentary proof of United States citizenship,''.

(j) CRIMINAL PENALTIES.—Section 12(2) of such Act (52 U.S.C. 20511(2)) is amended—

(1) by striking ''or'' at the end of subparagraph (A);

(2) by redesignating subparagraph (B) as subparagraph (D); and

(3) by inserting after subparagraph (A) the following new subparagraphs:

''(B) in the case of an officer or employee of the executive branch, providing material assistance to a noncitizen in attempting to register to vote or vote in an election for Federal office;

''(C) registering an applicant to vote in an election for Federal office who fails to present documentary proof of United States citizenship; or''.

(k) SPECIAL RULE FOR STATES NOT REQUIRING VOTER REGISTRATION.—Section 4 of the National Voter Registration Act of 1993 (52 U.S.C. 20503), as amended by subsection (b), is amended by adding at the end the following:

''(c) SPECIAL RULE FOR STATES NOT REQUIRING VOTER REGISTRATION.—In the case of a State or jurisdiction that does not require voter registration as a requirement to vote in an election for Federal office on or after the date of the enactment of this subsection, the State or jurisdiction shall be deemed to meet the requirements of this Act if the State or jurisdiction establishes a system for confirming the citizenship of individuals voting in an election for Federal office prior to the first day for voting with respect to such election and provides such confirmation of citizenship status for each eligible voter to election officials at the polling places during the voting period.''.

(l) ELECTION ASSISTANCE COMMISSION GUIDANCE.—Not later than 10 days after the date of the enactment of this Act, the Election Assistance Commission shall adopt and transmit to the chief State election official of each State guidance with respect to the implementation of the requirements under the National Voter Registration Act of 1993 (52 U.S.C. 20501 et seq.), as amended by this section.

(m) INAPPLICABILITY OF PAPERWORK REDUCTION ACT.—Subchapter I of chapter 35 of title 44 (commonly referred to as the ''Paperwork Reduction Act'') shall not apply with respect to the development or modification of voter registration materials under the National Voter Reg-

istration Act of 1993 (52 U.S.C. 20501 et seq.), as amended by this section, including the development or modification of any voter registration application forms.

(n) DUTY OF SECRETARY OF HOMELAND SECURITY TO NOTIFY ELECTION OFFICIALS OF NATURALIZATION.—Upon receiving information that an individual has become a naturalized citizen of the United States, the Secretary of Homeland Security shall promptly provide notice of such information to the appropriate chief election official of the State in which such individual is domiciled.

(o) RULE OF CONSTRUCTION REGARDING PROVISIONAL BALLOTS.—Nothing in this section or in any amendment made by this section may be construed to supercede, restrict, or otherwise affect the ability of an individual to cast a provisional ballot in an election for Federal office or to have the ballot counted in the election if the individual is verified as a citizen of the United States pursuant to section 8(j) of the National Voter Registration Act of 1993 (as added by subsection (f)).

(p) RULE OF CONSTRUCTION REGARDING EFFECT ON STATE EXEMPTIONS FROM OTHER FEDERAL LAWS.—Nothing in this section or in any amendment made by this section may be construed to affect the exemption of a State from any requirement of any Federal law other than

the National Voter Registration Act of 1993 (52 U.S.C. 20501 et seq.).

(q) EXCEPTION FOR ABSENT UNIFORMED SERVICES VOTERS.—The requirements in this section shall not apply with respect to an applicant who is an absent uniformed services voter, as defined in section 107(1) of the Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20310(1)).

(r) EFFECTIVE DATE.—This section and the amendments made by this section shall take effect on the date of the enactment of this section, and shall apply with respect to applications for voter registration which are submitted on or after such date.

SEC. 4803. REQUIRING VOTERS TO PROVIDE PHOTO IDENTIFICATION.

(a) REQUIREMENT TO PROVIDE PHOTO IDENTIFICATION AS CONDITION OF CASTING BALLOT.—

(1) IN GENERAL.—Title III of the Help America Vote Act of 2002 (52 U.S.C. 21081 et seq.) is amended by inserting after section 303 the following new section:

"SEC. 303A. PHOTO IDENTIFICATION REQUIREMENTS.

"(a) PROVISION OF IDENTIFICATION REQUIRED AS CONDITION OF CASTING BALLOT.—

"(1) INDIVIDUALS VOTING IN PERSON.—

"(A) REQUIREMENT TO PROVIDE IDENTIFICATION.—Notwithstanding any other provision of law and except as provided in subparagraph (B), the appropriate State or local election official may not provide a ballot for an election for Federal office to an individual who desires to vote in person unless the individual presents to the official a valid physical photo identification.

"(B) AVAILABILITY OF PROVISIONAL BALLOT.—

"(i) IN GENERAL.—If an individual does not present the identification required under subparagraph (A), the individual shall be permitted to cast a provisional ballot with respect to the election under section 302(a), except that the appropriate State or local election official may not make a determination under section 302(a)(4) that the individual is eligible under State law to vote in the election unless, not later than 3 days after casting the provisional ballot, the individual presents to the official—

"(I) the identification required under subparagraph (A); or

"(II) an affidavit developed and made available to the individual by the State attesting that the individual does not possess the identification required under subparagraph (A) because the individual has a religious objection to being photographed.

"(ii) NO EFFECT ON OTHER PROVISIONAL BALLOTING RULES.—Nothing in clause (i) may be construed to apply to the casting of a provisional ballot pursuant to section 302(a) or any State law for reasons other than the failure to present the identification required under subparagraph (A).

"(2) INDIVIDUALS VOTING OTHER THAN IN PERSON.—

"(A) IN GENERAL.—Notwithstanding any other provision of law and except as provided in subparagraph (B), the appropriate State or local election official may not accept any ballot for an election for Federal office provided by an individual who votes other than in person unless the individual submits with the ballot—

"(i) a copy of a valid photo identification; or

"(ii) the last four digits of the individual's Social Security number and an affidavit developed and made available to the individual by the State attesting that the individual is unable to obtain a copy of a valid photo identification after making reasonable efforts to obtain such a copy.

"(B) EXCEPTIONS.—Subparagraph (A) does not apply with respect to a ballot provided by—

"(i) an absent uniformed services voter, as defined in section 107(1) of the Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20310(1)); or

"(ii) an individual provided the right to vote otherwise than in person under section 3(b)(2)(B)(ii) of the Voting Accessibility for the Elderly and Handicapped Act (52 U.S.C. 20102(b)(2)(B)(ii)).

"(b) PROVIDING PUBLIC ACCESS TO DIGITAL IMAGING DEVICES.—With respect to each State, the appropriate State or local government official of the State shall ensure, to the extent practicable, public access to a digital

imaging device, which shall include a printer, copier, image scanner, or multifunction machine, at State and local government buildings in the State, including courts, libraries, and police stations, for the purpose of allowing individuals to use such a device at no cost to the individual to make a copy of a valid photo identification.

''(c) VALID PHOTO IDENTIFICATIONS DESCRIBED.—For purposes of this section, a 'valid photo identification' means, with respect to an individual who seeks to vote in a State, any of the following:

''(1) A valid State-issued motor vehicle driver's license that includes a photo of the individual and an expiration date.

''(2) A valid State-issued identification card that includes a photo of the individual and an expiration date issued by a State motor vehicle authority.

''(3) A valid United States passport for the individual.

''(4) A valid military identification for the individual.

''(5) A valid identification document issued by a Tribal government that includes a photo of the individual and an expiration date.

''(d) NOTIFICATION OF IDENTIFICATION REQUIREMENT TO APPLICANTS FOR VOTER REGISTRATION.—

''(1) IN GENERAL.—Each State shall ensure that, at the time an individual applies to register to vote in elections for Federal office in the State, the appropriate State or local election official notifies the individual of the photo identification requirements of this section.

''(2) SPECIAL RULE FOR INDIVIDUALS APPLYING TO REGISTER TO VOTE ONLINE.—Each State shall ensure that, in the case of an individual who applies to register to vote in elections for Federal office in the State online, the online voter registration system notifies the individual of the photo identification requirements of this section before the individual completes the online registration process.

''(e) EFFECTIVE DATE.—This section shall take effect on the date of the enactment of this section, and shall apply with respect to elections for Federal office held on or after such date.''.

(2) CLERICAL AMENDMENT.—The table of contents of such Act is amended by inserting after the item relating to section 303 the following new item:

''Sec. 303A. Photo identification requirements.''.

(b) CONFORMING AMENDMENT RELATING TO VOLUNTARY GUIDANCE BY ELECTION ASSISTANCE COMMIS-

SION.—Section 311(b) of such Act (52 U.S.C. 21101(b)) is amended—

(1) by striking ''and'' at the end of paragraph (2);

(2) by striking the period at the end of paragraph (3) and inserting ''; and''; and

(3) by adding at the end the following new paragraph:

''(4) in the case of the recommendations with respect to section 303A, October 1, 2025.''.

(c) CONFORMING AMENDMENT RELATING TO ENFORCEMENT.—Section 401 of such Act (52 U.S.C. 21111) is amended by striking ''sections 301, 302, 303, and 304'' and inserting ''subtitle A of title III''.

(d) EFFECTIVE DATE.—This section and the amendments made by this section shall take effect on the date of the enactment of this section, and shall apply with respect to elections for Federal office held on or after such date.

Passed the House of Representatives July 22, 2026.

Attest:

Clerk.

119TH CONGRESS
2D SESSION

H. R. 8800

AN ACT

To authorize appropriations for fiscal year 2027 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.